

THE HISTORIANS' HISTORY OF THE WORLD

A comprehensive narrative of the rise and development of nations
as recorded by over two thousand of the great writers of
all ages: edited, with the assistance of a distinguished
board of advisers and contributors,
by

HENRY SMITH WILLIAMS, LL.D.



IN TWENTY-FIVE VOLUMES
VOLUME V—THE ROMAN REPUBLIC

The Outlook Company
New York

The History Association
London

1904

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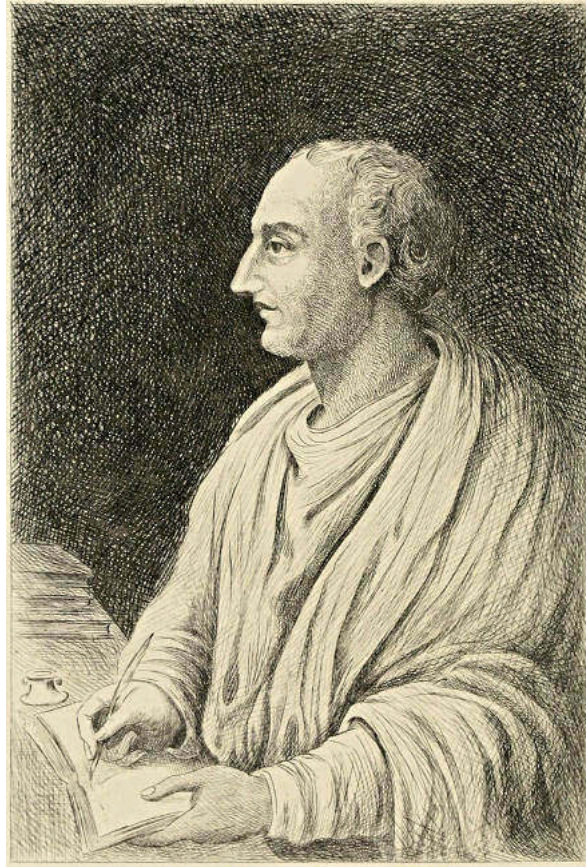
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LIVY

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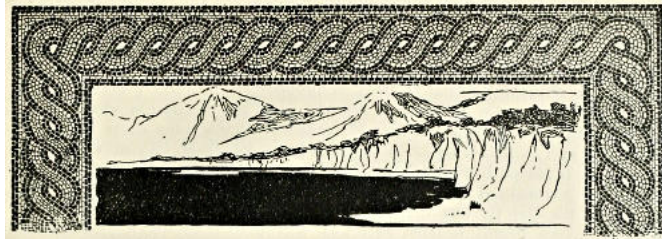
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THE WORLD INFLUENCE OF EARLY ROME

WRITTEN SPECIALLY FOR THE PRESENT WORK

By DR. EDUARD MEYER

Professor of Ancient History in the University of Berlin.

It might have been supposed that with the death of Alexander the political connection between the eastern and western halves of the Mediterranean, which had subsisted throughout the whole course of Greek history, was severed except for such occasional and superficial points of contact as, in the nature of things, had never been wholly lacking. As a matter of fact, the West was left to its own devices. But it presently became evident that the development which there took place, untroubled by interference from without, was fraught with consequences of the utmost moment to the Hellenistic political system. By abstaining from peremptory interference while such interference was yet possible, the Macedonian kingdoms permitted a power to arise in Italy so strong that in a very short time it proceeded to aim a fatal blow at their own existence.

This new power did not take its rise among those who had hitherto been the most formidable foes of Greece—the Sabello-Oscan tribes, whom Plato dreaded. These last were a race of warlike mountaineers living under a free system of tribal government, something like the Swiss of the later Middle Ages, except that cavalry, as well as infantry, played an important part in their armies. Like the Swiss, they strove to extend their borders on every side beyond the narrow limits of their native land. But they lacked what the Swiss of the Four Cantons gained by their league with Berne and Zurich—a steady political aim; tribe jostled tribe, the remoter endeavouring to wrest from the nearer what the latter had won. Thus, though they might subjugate cities of Greece, they were incapable of creating a great homogeneous state. The Caraceni, Pentri, Caudini, and Hirpini, the four tribes of the mountain tract about the sources of the Volturnus and its tributaries, were the only ones which constituted a compact federation. After the middle of the fourth century these tribes began to press forward in every direction, against the Apulians to the east, the Lucanians to the south, the Campanians, Sidicinians, and Volscians to the west. But there they were confronted by a power which was destined to prove greater than they.

As early as the sixth century, during the Etruscan period, the city of Rome on the Tiber had grown into a large and important community. After the overthrow of foreign dominion and the fall of the monarchy, it maintained its supremacy over at least the majority of the country townships of the little Latin nation, which laboriously warded off the attacks of its neighbours under Roman hegemony. Not till about the year 400 did it succeed in driving the Æqui and Volscians back into their mountain fastnesses; and in 388 it took the neighbouring Etruscan city of Veii. The great Celtic invasion brought it to the verge of ruin; but having survived this peril it maintained its former predominance after the withdrawal of the enemy. With the Greeks it was on friendly terms; from of old, Greek civilisation had found almost as ready acceptance among the Latins as among the Etruscans, and in the struggle with the latter people Latins and Greeks had fought side by side. The middle of the fourth century witnessed a great expansion of Roman power; the Romans conquered the Volscians and several refractory Latin cities, and vanquished their Etruscan neighbours, and in the year 350 the Etruscan city of Cære joined the Roman confederacy. At the same time Rome extended her dominion in the valley of the Liris and towards the coast; and in the latter quarter the great city of Capua (together with Cumæ, now an Oscan city, and many others) threw themselves into the arms of Rome for protection against the Samnites. Soon after, in 336-334, Capua and the Latin towns, which had revolted, were completely subjugated, and most of them incorporated into the Roman body politic. Peace had been maintained up to this time with the Samnites, to whom the south of the Campania and the valley of the upper Liris had been abandoned; but when, in 325, Rome gained a footing in Fregellæ and took the Greeks of Naples under her protection, an open conflict broke out between the two states, each of which was doing its utmost to extend its borders in Italy.

In spite of the higher level of civilisation to which it had risen, the state of Rome, like that of the Samnites, was a state of farmers. But it possessed what the Samnite tribal organisation lacked, a superior political system, which gave it the advantage of the municipal form of government, on exactly the same lines as the municipal republics of Greece. But with this municipal organisation it combined (and therein lay the secret of its success) a capacity for expansion and an ever increasing extension of civil rights which offers the strongest contrast to the churlish spirit of the Greek cities. In the latter, purity of descent and the exclusion of all foreigners from civil rights was an axiom

of political life, to which radical democracies, like Athens, clung even more tenaciously than the rest; and the consequence was that every success abroad led to the subjugation of the vanquished under the yoke of the ruling city. Rome, on the contrary, for all her conquests, made no subjects in Italy. In her own vicinity, and in Latium first of all, conquered communities were usually admitted to the Roman political confederacy on equal terms, and allowed to retain local autonomy (as *municipia*) under Roman supervision. She extended the same system far into middle Italy; the franchise and the right of voting in the Roman popular assemblies (*comitia*) being withheld only from communities of alien language, like the Etruscan Cærites, and the Campanians of Capua. In other cases, when Rome had vanquished a foe she took possession of a portion of the public lands, and established citizens there as settlers to cultivate the soil; the rest of the citizens retained complete liberty and political autonomy (Rome, however, altering the system of government according to her own good pleasure and taking care that the administration fell into the hands of her own adherents), but were pledged by an everlasting covenant to follow the Roman standards as free allies. Moreover, Rome had founded colonies in the heart of the enemy's country, daughter-cities organised as independent municipalities, which occupied the same position towards her as formerly (before 336) the cities of the Latin League, and were consequently known as Latin colonies. By this organisation Rome not only maintained possession, in every instance, of the territory she had won, but made provision for a constant supply of sound and capable peasantry, from whose ranks the army was recruited. While retaining, in her political administration, the form of a city, she had in effect far outgrown its limitations and become a great state, with all its forces at the disposal of the government unconditionally. To this circumstance it is due that while the constitution recognised the absolute sovereignty of the people (the abolition of the whole body of aristocratic privilege belongs to this very period)^[1] the government remained vested in the hands of the great families of patrician and plebeian descent, and the dignity of office, which was degraded to a mere phantom in the Greek democracies, remained virtually undiminished in Rome. The interests of the farming class and of the dominant families went hand in hand; the former profited by the agrarian policy of expansion on which the latter insisted, and every success abroad, no matter at what cost, consolidated and increased the strength of the community, and led a step farther on the road to supreme dominion.

In numbers, military capacity, and martial ardour, the Samnites were at least a match for the Romans, their generals were possibly superior to those of Rome in ability; the Samnites won more victories than their adversaries in the open field. The Samnites' farming communities perished through the defects of their political organisation; they could not make a breach in the solid fabric of the might of Rome, nor master the Roman fortresses, even though they might capture one now and again; while, thanks to her superior civilisation and the supplies of money, provisions, and war material furnished by the various cities within her territory, Rome was able to carry on war much more continuously than the Samnite farmer, whose armies could not remain in the field for more than a few weeks at a time, because, like the Peloponnesians in the war with Athens, their stock of provisions was exhausted and they were obliged to return home to till their land. In addition to this disadvantage, all their neighbouring tribes, the clans in the Abruzzi, the Apulians, and for a while even the Lucanians, took the part of Rome.

In spite of all their successes in the field the Samnites realised that they could not permanently withstand the Romans single-handed; they endeavoured to drag the other nations of Italy into the contest, and thus the long conflict took on the character of a decisive struggle for the sovereignty of Italy. Twice the Samnites succeeded in bringing about a great coalition; in 308 the Etruscans flung themselves upon Rome, in 295 the Samnite troops joined the hordes of the Celts in Umbria, while the Etruscans flew to arms once more. The Romans remained victors on both occasions, and the great battle of Sentinum in 295 decided the fate of Italy. When the war ended, in the year 290, Rome was the dominant power in Italy, and the submission of such portions of the country as still retained their independence was merely a matter of time. It was too late then for Tarentum to step into the breach and invoke the aid of Pyrrhus, king of Epirus, too late for the latter to resume the strife in the old spirit of the struggle of Greece against the Italians and Carthaginians. The particularist temper of the Greeks brought his successes to nought as soon as they were won; for all his superior ability as a commander, and though he defeated the Romans, he could not but recognise at once the superiority of their military system. Though he advanced to the frontiers of Latium and from afar saw the enemy's capital at his feet, he could not shatter the framework of the Roman state, and he ultimately succumbed to the Romans on the battle-field of Beneventum (275).

Rome had now completed the conquest of Italy up to the margin of the valley of the Po, and had everywhere inaugurated the system sketched in broad outline above. How firmly she had welded it was proved by the fiery test of the war of Hannibal. There was no lack of the particularist spirit even in Italy, and the numerous nationalities which inhabited the peninsula, none of whom understood the language of the others, had no such common bond as knit the various tribes of Greece together. In the territory over which Rome ruled in 264, no less than six different

languages were spoken, without counting the Ligurians, Celts, and Veneti. But Rome, by repressing all open insubordination with inflexible energy while at the same time pursuing a liberal policy with regard to the interests of the dependent communities and leaving scope for local autonomy as long as it was not dangerous to herself, did more than create a political entity; from this germ begins to grow a sentiment of Italian nationality that reaches beyond racial differences, and the new nation of the Italians or toga-wearers (*togati*) has come to the birth.

The mainspring of Roman success was the policy of agrarian expansion, and the farmers were the first to profit by it. This fact rendered impossible the development of a municipal democracy after the Greek model (such as Appius Claudius had attempted to set up in 308) based upon capital, trade, and handicraft, and the masses of the urban population, with an all-powerful demagogue at its head.

From that time forward the urban population, restricted as it was to four districts, was practically overridden, as far as political rights were concerned, in the *comitia tributa* (with which ordinary legislation rested) by the thirty-one districts of the agricultural class. But as the state grew into a great power and its chief town into a metropolis, the urban elements could not fail to acquire increasing influence, especially the wealthy capitalists (consisting largely of freedmen and the descendants of freedmen) who managed all matters of public finance. In the *comitia centuriata* which were organised on the basis of a property qualification, and whose functions included the election of magistrates and the settlement of peace and war, these circles exercised very great influence, and the wealthiest found a compact organisation in the eighteen centuries of knights.

The interests of the agricultural class did not extend beyond Italy; the late wars had provided plenty of land for distribution, and if more were wanted it could be found in the territory of the Celts on the Po, the southern portion of which had been conquered as early as 282 but not yet divided. The interests of the urban elements, the capitalists, on the contrary, extended beyond the sea. To them the most pressing business of the moment was to vindicate the preponderance of the state to the outside world, to adjust their relations abroad as best suited their own interests, and to deliver Italy from foreign competition, and, above all, from Carthage; and not a few of the great ruling families were allured, like the Claudii, by the tempting prospect.

Carthage and Rome had come dangerously near together during the last few decades. As long before as the year 306 the two had concluded a compact by which Rome was not to intervene in Sicily nor Carthage in Italy. The rival states had indeed united against Pyrrhus, but without ever laying aside their mutual distrust; each feared that the other might effect a lodgment within its sphere of influence. And now, in the year 264, the Oscan community of the Mamertines in Messina (whilom mercenaries of Agathocles, who had exterminated the Greek inhabitants of the city) appealed to both Carthage and Rome for aid against Hiero, the ruler of Syracuse.

Rome was thus brought face to face with the most momentous decision in her whole history. The Romans were not untroubled by moral scruples nor blind to the fact that to accede to the petition would necessarily lead to war with Carthage, since Carthage had promptly taken the city under her protection and occupied it with her troops; but the opportunity was too tempting, and if it were allowed to pass, the whole of the rich island would undoubtedly fall under the sovereignty of Carthage for evermore, and her power, formidable already, would be correspondingly increased. The senate hesitated, but the consul Appius Claudius brought the matter before the *comitia centuriata*, and they decided in favour of rendering assistance, and thereby in favour of war.

It was a step that could never be retraced, a step of the same incalculable consequence to Rome as the occupation of Silesia was to Prussia, or the war with Spain and the occupation of Cuba and the Philippines to the United States of America. Its immediate consequences were a struggle of twenty-four years' duration with Carthage for the possession of Sicily, and the creation of a Roman sea power which was not merely a match for that of Carthage, but actually annihilated it; its ultimate result was the acquisition of a dominion beyond sea in which Rome for the first time bore rule over tributary subjects governed by Roman magnates and exploited by Italian capitalists. A further consequence was that the Romans took advantage of the difficulties in which Carthage was involved by a mutiny of mercenaries in 237 to wrest Sardinia and Corsica from her and at the same time once more exact a huge indemnity.

In other directions, too, Rome became more and more deeply involved in the affairs of the outside world, and consequently with the political system of Hellenic states. As in the old conflict with the Etruscans and the recent war with Carthage, so a decade later she solved in the Levant a problem which had been propounded to Greece and for the solution of which she had not been strong enough. When the pirate state of the Illyrians of Scodra extended to the coasts of Italy the ravages it had inflicted upon the Greeks, Rome took vigorous action, used her lately acquired sea power for the speedy overthrow of the pirate state (229) and planted her foot firmly on the coast of

the Balkan peninsula; thereby encroaching on the sphere of influence of Macedonia, which was constrained to be a helpless spectator.

On the other hand the close amity with the court of Alexandria, which had been inaugurated after the war with Pyrrhus, was cemented; there were no grounds for antagonism between the first maritime power of the East and the first land power of the West, while, as far as their rivals were concerned, the interests of the two in both spheres went hand in hand. One result of this development was the ever readier acceptance of Greek civilisation at Rome. After the conclusion of the First Punic War the Greek drama, which formed the climax of the festivals of the Hellenic world, was adopted in the popular festivals of Rome, and a Greek prisoner of war from Tarentum, Livius Andronicus by name, who translated the Greek plays into Latin, likewise introduced Greek scholarship into Rome and translated the *Odyssey*, the Greek reading-book. There is no need to tell how with this the development of Latin literature begins, or how Nævius the Latin, who himself had fought in the First Punic War, takes his place beside the Greek author as a Roman national poet.

In other respects, however, Rome returned to her ancient Italian policy. After the year 236 she entered upon hostilities with the Ligurians north of the Arno; in 232 the border country taken from the Gauls was partitioned and settled by Caius Flaminius. This led to another great war with the Celts (225-222), the outcome of which was the conquest of the valley of the Po—involving the acquisition of another vast region for partition and colonisation. In this war the Veneti and the Celtic tribe of the Cenomani (between the Adige and the Addua) had voluntarily allied themselves with Rome, and her dominion therefore extended everywhere to the foot of the Alps.

But meanwhile a formidable adversary had arisen. At Carthage the Roman attack and the loss of the position maintained for centuries in the islands, as well as the loss of sea power, had no doubt been keenly felt by all classes of the population. But the government, *i.e.*, the merchant aristocracy, had accepted the arbitrament of war as final. They could not bring themselves to make the sacrifices which another campaign against Rome must cost, especially as they clearly foresaw that even if victory were won after a fiercer contest than before, it would certainly bring their own fall and the establishment of the rule of the victorious general in its train. They accordingly resigned themselves to the new state of things, and endeavoured, in spite of all changes, to maintain amicable relations with Rome, since only thus could trade and industry continue to flourish, and Carthage, despite the loss of her supremacy at sea, remain, as before, the first commercial city of the western Mediterranean.

But side by side with the government a military party had come into being, and its leader, Hamilcar Barca, who had held his ground unconquered to the last moment in Sicily and who afterwards (in concert with Hanno the Great, the general of the aristocratic party) quelled the mutiny of the mercenaries, was burning with eagerness to take vengeance on Carthage's autocratic and perfidious adversary. The power was in his hands and he was determined to use it to make every preparation for a fresh and decisive campaign. At the end of the year 237, immediately after the suppression of the mutiny, he proceeded on his own responsibility to Spain, and there conquered a new province for Carthage, larger than the possessions she had lost to Rome.

By allying himself with the popular party in Carthage, and giving his daughter in marriage to Hasdrubal, their leader, Barca gained a strong following in the capital; and even the dominant aristocracy, in spite of the suspicion with which they regarded the self-willed general—and not without good reason—could not but welcome gladly the revenues of the new province out of which they could defray the war indemnity to Rome. Hamilcar fell in 229; Hasdrubal, who took over his command, postponed the war against Rome and entered into an agreement with the latter, who was suspiciously watching developments in Spain, by which he pledged himself not to cross the Ebro. This made it possible for Rome to bring the Celtic War to an end and conquer the valley of the Po while Hasdrubal was organising the government of Spain. But when, after the assassination of Hasdrubal in 221, his youthful brother-in-law, Hannibal, then twenty-four years of age, took over the command, he promptly revived his father's projects.

In the year 219, by picking a quarrel with Saguntum, which had put itself under the protection of Rome, and attacking the city, which he took at the beginning of 218, he brought about a conflict which forced both Rome and the reluctant government of Carthage into hostilities. The declaration of war was brought to Carthage by a Roman embassy in the spring of 218. While Rome was making preparations for an attack on Spain and Africa simultaneously, Hannibal advanced by forced marches upon Italy by land, succeeded in evading the Roman army under Publius Scipio which had been landed at Massilia, and reached Italian soil before the beginning of winter. Rome was thereby foiled in her intention of taking the offensive. At the end of 218 and the beginning of 217 he had annihilated by a series of tremendous blows the Roman armies opposed to him, and, reinforced by hordes of Celts from the valley of the Po, had opened a way for himself into the heart of Italy.

Hannibal conceived of the war as a struggle against a state of overwhelming strength which by its mere existence made free action impossible for any other. He was perfectly well aware that he alone, with the army of twenty thousand seasoned veterans absolutely devoted to him, and the six thousand cavalry, which he had led into Italy, might defeat Rome in the field but could never overthrow her; in spite of any number of victories no attack on the capital could end otherwise than as the march of Pyrrhus on Latium had ended.

The Celts of the Po valley served to swell the ranks of his army but were of no consequence to the ultimate issue. Hannibal sacrificed them ruthlessly in every battle in order to save the flower of his troops for the decisive stroke. He made attempts again and again to break up the Italian confederacy, and after Cannæ, the greater part of the south of Italy, at least as far as Capua, went over to his side; but middle Italy, the heart of the country, stood by Rome with unfaltering loyalty. Carthage itself could do little, and its government would not do much; the Second Punic War is the war of Hannibal against Rome; Carthage took part in it only because and so far as she was ordered to do it. The fleets which Carthage sent against Italy could do nothing in face of Rome's superiority at sea; no serious naval engagement was fought throughout the whole war.

A more conclusive result might perhaps have been arrived at if Hannibal had been able to keep open his communication with Spain, and if his brother Hasdrubal could have followed him immediately, so making it possible for them to sweep down upon Rome from both sides. It was a point of cardinal importance, and one which from the outset paved the way for the ultimate victory of Rome, that when the consul Publius Scipio found himself unable to overtake Hannibal on the Rhone in the August of 218, he hastened in person to Italy, where there were troops enough to set army after army in array against Hannibal; but by a stroke of genius he despatched his legions to Spain and thereby forced Hasdrubal to fight for the possession of that country instead of proceeding to Italy. By the time that Hasdrubal, having lost almost the whole of the peninsula to Publius Scipio the Younger, resolved in 207 to abandon the remainder of the Carthaginian possessions and march into Italy with his army, it was too late; he succumbed before the Romans at the Metaurus. Complete success could only have been attained if Hannibal had succeeded in drawing the other states of the world into the war and carrying them with him in a decisive attack upon Rome.

The situation was in itself not unfavourable for such an undertaking. The Lagid empire, under the rule of Ptolemy II, surnamed Euergetes (247-221), had grown supine during that monarch's latter years; the king felt his tenure of power secure and no longer thought it necessary to devote the same close attention to general politics or intervene with the same energy that his father had displayed. The fact that in the year 221 he left Cleomenes of Sparta to succumb in the struggle with Antigonos II of Macedonia and the Achæans, by withdrawing the subsidies which alone enabled him to keep his army together, is striking evidence of the ominous change which had taken place in the policy of the Lagidæ.

Ptolemy IV, surnamed Philopator, the son of Euergetes, was a monarch of the type of Louis XV, not destitute of ability but wholly abandoned to voluptuous living, who let matters go as they would. Accordingly in Asia the youthful Antiochus III, surnamed "the great" (221-187) was able to restore the ancient glories of the Seleucid empire, and although when he attacked Phœnicia and Palestine, he suffered a decisive defeat at Raphia in the year 217, Ptolemy IV made no attempt to reap the advantage of his victory. In Europe Philip V maintained his supremacy over Greece and kept the Achæans fast in the trammels of Macedonia.

Thus there was a very fair possibility that both kings might enter upon an alliance with Hannibal and a war with Rome. Philip V, a very able monarch, fully realised the importance of the crisis; we still have an edict dated 214, addressed by him to the city of Larissa, which shows that he rightly recognised the basis of Rome's greatness, the liberality of her policy in the matter of civil rights and the continuous increase of national strength and territory which that policy rendered possible. But he could not extricate himself from the petty quarrels amidst which he had grown up; after a futile attempt to wrest their Illyrian possessions from the Romans he took no further part in the war, while Rome was able promptly to enter into an alliance with the Ætolians and Attalus of Pergamus and to take the offensive in Greece. Antiochus III, on the other hand, obviously failed altogether to grasp the political situation; to him the affairs of the west lay in the dim distance, and instead of taking action there he turned eastwards, to carry his arms once again to the Hindu Kush and the Indus.

The issue of the war was thus decided. From the moment when Rome determined not to give Hannibal a chance of another pitched battle but to confine herself to defensive measures and guerilla warfare, the latter could gain no further success. The fact that by this time he had won a great stretch of territory and was bound to defend it, hampered the mobility to which his successes had hitherto been due; the zenith of his victorious career was passed, he too was obliged to stand on the defensive, and could not avoid being steadily forced from one position after

another. And now for the first time the vast strength of the Roman state stood forth in all its imposing majesty; for while defending itself against Hannibal in Italy it was able to take the offensive with absolute success in every other theatre of war, Spain, Sicily, and Greece.

How there arose on the Roman side a statesman and commander of genius in the person of Publius Scipio the Younger, who, after the conquest of Spain carried the war into Africa and there extorted peace, need not be recounted in this place. Rome had gained a complete victory, and with it the dominion over the western half of the Mediterranean; thenceforth there was no power in the world that could oppose her successfully in anything she chose to undertake. The war of Hannibal against Rome is the climax of ancient history; if up to that time the development of the ancient world and of the Christian Teutonic nations of modern times have run substantially on parallel lines, here we come to the parting of the ways. In modern history every attempt made since the sixteenth century to establish the universal dominion of a single nation has come to naught; the several peoples have maintained their independence, and in the struggle political conglomerates have grown into states of distinct nationality, holding the full powers of their dominions at their own disposal to the same extent as was done by Rome only in antique times. On this balance of power among the various states and the nations of which they are composed, and upon the incessant rivalry in every department of politics and culture, which requires them at each crisis to strain every nerve to the utmost if they are to hold their own in the struggle, depends the modern condition of the world and the fact that the universal civilisation of modern times keeps its ground and (at present at least) advances steadily, while the leadership in the perpetual contest passes from nation to nation.

In ancient times, on the contrary, the attempt to establish a balance of power came to naught in the war of Hannibal; and from that time forward there is but one power of any account in the world, that of the Roman government, and for that very reason this moment marks first the stagnation, and then the decline, of culture. The ultimate result which grows out of this state of things in the course of the following centuries is a single vast civilised state in which all differences of nationality are abolished. But this involves the abolition of political rivalry and of the conditions vital to civilisation; the stimulus to advance, to outstrip competitors, is lacking; all that remains to be done is to keep what has already been gained, and, here as everywhere, that implies the decline and death of civilisation.

Rome herself, and with her the whole of Italy, was destined while endeavouring to secure the fruits of victory to experience to the full its disastrous consequences. She was dragged into a world-policy from which there was no escape, however much she might desire it; a return to the old Italian policy, with its circumscribed agrarian tendencies, had become impossible. Thus it comes about that the havoc wrought in Italy by the war of Hannibal has never been made good to this day, that the wounds it inflicted on the life of the nation have never been healed or obliterated. The state of Italy and the embryo Italian nation never came to perfection because the levelling universal empire of Rome sprang up and checked them.

There is no need to tell here how the preponderance of Rome made itself felt in political matters throughout the world immediately after the war with Hannibal, or how within little over thirty years all the states of the civilised world were subject to her sway. It is only necessary to point out that the ultimate result, the world-wide dominion of Rome, ensued inevitably from this preponderance of a single state, and was by no means consciously aimed at by Rome herself. All she desired was to shape the affairs of her neighbours as best consorted with her own interests and to obviate betimes the recurrence of such dangers as had menaced her in the case of Hannibal. Her ambition went no further; above all (though she kept Spain because there was no one to whom she could hand it over) she exhibited an anxious and well-grounded dread of conquests beyond sea. But she did not realise that by reducing all neighbouring states to helplessness and impotence she deprived them of the faculty of exercising the proper functions of a state. Thenceforth they existed only by the good will of Rome; they found themselves constrained to appeal to Roman arbitration in every question, and involved Rome perpetually in fresh complications, while at the same time they felt most bitterly their dependence on the will of an alien and imperious power.

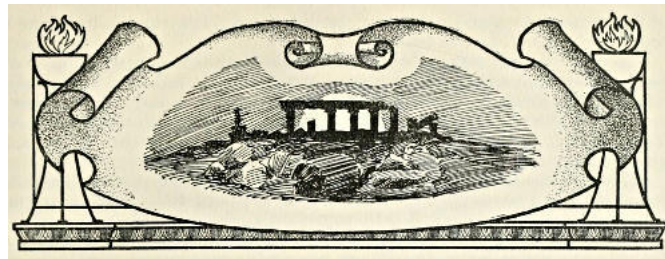
Thus Rome found herself at last under the necessity of putting an end to this state of things, first in one quarter and then in another, and undertaking the administration herself. In so doing she proceeded on no definite plan, but acted as chance or the occasion determined, letting other portions of her dominions get on as best they could, until matters had come to a crisis fraught with the utmost peril to Rome, and the only solution lay in a great war. For Rome, as for the world in general, it would have been far better if she had embarked on a career of systematic conquest.

Finally, let us briefly point out the effects of the policy of Rome on the development of civilisation. Rome and Italy assimilate more and more of the culture of Greece, and the latter, in its Latin garb, ultimately gains dominion over the entire West. Simultaneously, on the other hand, in the East a retrograde movement sets in. Rome strives by every means in her power to weaken the Seleucid empire, her perfidious policy fomenting every rebellion against it and placing obstacles of all kinds in the way of its lawful sovereign. Thus, after a struggle of more than thirty years' duration, all the East on the hither side of the Euphrates is lost to that empire. And although the Arsacid empire which succeeded it was neither nationalist nor hostile in principle to Hellenism, yet the mere fact that its centre was no longer on the Mediterranean but Babylonia, and that the connection of the Greek cities of the East with the mother-country was severed from that time forth, put an end to the spread of Hellenism and paved the way for the retrograde movement. It had already gained a firm footing in the Mediterranean; the support given by Antiochus IV, surnamed Epiphanes, to the Hellenising tendencies of certain Jews had driven the nationalist and religious party in Judea into revolt, and the disintegration of the empire by Roman intrigues gave them a fair field and enabled them to maintain their independent position. In the Lagid empire, about the same time, Ptolemy VII, surnamed Euergetes II, finally abandoned the old paths and the maxims of an earlier day, broke away from the Greeks, expelled the scholars of Alexandria, and sought to rely upon the Egyptian nationalist element among his subjects.

I shall not here trace beyond this point the broad outlines of the development of the ancient world. How the general situation reacted destructively upon the dominant nation; how the attempt to create afresh the farming class, which had been the backbone of Italy's military prowess and consequently the foundation of her supremacy, resulted in the Roman revolution; how in that catastrophe, and the fearful convulsions that accompanied it, the embryo world-wide empire sought its appropriate form, and ultimately found in it the principate; and how the constitution was gradually transformed from a modified revival of the old Roman Republic to a denationalised and absolute universal monarchy—are all matters which must be left to another occasion for treatment.

FOOTNOTES

[1] Not to the earlier date of 366, as is commonly supposed. The decisive political conflicts out of which the later system of Roman government was evolved fall within the period of the wars of the Latins and Samnites and come to a final end with the Lex Hortensia, in the year 287.



THE SCOPE AND DEVELOPMENT OF EARLY ROMAN HISTORY

WRITTEN SPECIALLY FOR THE PRESENT WORK

BY DR. WILHELM SOLTAU

Professor of Ancient History in Zabern.

The early centuries of the history of Rome are closely bound up with the history of the rest of Italy. We must therefore briefly touch upon the development of the whole country.

About the middle of the second millennium B.C. certain Italic tribes made their way from the north into the Apennine peninsula, which up to that time had been inhabited first by an Iberian and then by a Ligurian race.

The settlement of the Balkan Peninsula was due, to a great extent, to successive immigrations of kindred tribes, who in most cases found a population of their own race in possession. In Italy it was not so. In the east we find the Messapians, a tribe akin to the Illyrians, settled for the most part in Apulia and Calabria. Tuscany and the valley of the Po received from the valleys of the Alps a population of Etruscans, a race whose origin and affinities are an enigma to students to this day. Their language is certainly not Indo-Germanic, their earliest settlements were the pile-dwellings of the Po valley, their later abode the natural fortresses of the Tuscan mountain peaks. Hence they cannot have come into the country by way of the sea. Nevertheless in Egyptian monuments of the thirteenth century B.C. we find mention of the auxiliary troops of the "Turisha." They appear early to have won a certain reputation as pirates and soldiers in foreign service. Again, the Greeks believed that the Etruscans were akin to the Tyrrhenians of Asia Minor, and inscriptions in a language resembling Etruscan have been found in Lemnos, which seem to confirm this view. Whatever their origin, they represent a very ancient civilisation on Italian soil, and the Indo-Germanic tribes of Italy have been strongly influenced by them.

After the Etruscan immigration two other great tribes, this time of Aryan descent, pressed southward from the valley of the Po. Of these the first to come were probably the Siculi, a tribe which subsequently spread over Sicily and all the southwestern part of the mainland. The Ausonians of Campania belonged to this race, as did the dwellers in the "lowland" south of the Tiber, *i.e.*, in Latium.

The last to come was probably the Sabello-Umbrian race, which entered the country from the north by way of the Apennine valleys. For a long while it kept chiefly to the mountainous tracts of middle Italy, though some members of the tribe pushed forward, like advanced posts, to the west coast. The Umbrian settlement north of the Apennines was the only one which grew to large dimensions.

If we reflect that, besides these immigrations, a steady stream of Greek colonists had been occupying the coast of southern Italy ever since the eighth century B.C., their first settlements dating from two centuries earlier, and that, since the fifth century B.C. at latest, Gauls had been crossing the Alps to the valley of the Po, we can readily understand that Italy inevitably became the scene of violent conflicts. Yet she did not wholly miss the salutary effects of peaceful rivalry between the various racial elements. The population of southern Italy adopted the language, manners, and customs of the Greeks, and in the north the Etruscans served both as exponents of their own peculiar civilisation and as intermediaries between the Greeks and the mountain tribes.

Such were the conditions and influences under which Rome came into being. For centuries the Latins had fixed settlements in their mountain and woodland towns among the Alban Mountains. But the desire to secure themselves against Etruscan invasion on the one hand, and the growth of peaceful intercourse on the other, led them to found a colony on the Palatine "mount," the last spur of a range of hills along the Tiber. The extremely advantageous situation of this new settlement led to the establishment of others in its vicinity, and ultimately to the conjunction which gave birth to the City of the Seven Hills. The Aventine and Caelian hills did not as yet belong to it, but it included the Subura and the Velia, in addition to the Palatine mount, the Capitoline mount, the Esquiline mount, and the Quirinal and Viminal hills; and thus was even then one of the most considerable cities in Italy, with its fortified capitol, and its market-place or Forum between Mount Palatine and the "hill-town" (Collina) on the east. The colony soon threw Alba Longa, the mother-city, into the shade. Rome became the chief city of the Latin league. The capital of the confederate towns of Latium, the mistress of a small domain south of the lower Tiber, such is the aspect Rome bears when she emerges into history from the twilight of legend. The purity of the Latin language proves that she did not originate from a mixture of Latin, Sabine, and Etruscan elements as later

inventions would have us believe. On the other hand there can be no question that Rome adopted many details of her civilisation and municipal organisation from her Sabine and Etruscan neighbours. A more important point is that she early received an influx of foreign immigrants, especially Tuscans, who in the capacity of handicraftsmen and masons, exercised a salutary influence upon the advance of civilisation among the Latin farmers.

Rome was at that time ruled by kings, assisted by a council of the elders of the city (the hundred senators). In important affairs they had to obtain the assent of the popular assembly (*comitia curiata*) which voted in thirty *curiæ*, according to the number of the thirty places of sacrifice in the city. For the rest, the kings had a tolerably free hand in the appointment of magistrates and priests.

From the legendary details of the history of the monarchy one thing only is clear, to wit, that in the sixth century B.C. Rome was ruled by monarchs of Etruscan descent and was to some extent a dependency of the Etruscan rulers of the period.

In the seventh and sixth centuries B.C. the Etruscans had both vigorously repulsed the invasions of the Sabellians and taken the offensive on their own account. They had not only maintained and increased their dominion in the valley of the Po, but had established the Tuscan League of the Twelve Cities in Umbria, and thus put an end to Umbrian independence. At this time their sway extended southwards as far as Campania. A Tuscan stronghold (Tusculum) was built on the Alban hills. Etruscan sources of information, and first and foremost the pictures in Tuscan sepulchral chambers, leave no room to doubt that the Etruscan descent of the last three kings of Rome, the Tarquins and Servius Tullius, is a historic fact. Rome was therefore involved in the military operations of Etruscan commanders "*Lucumones*," who fortified the city, adorned it with temples and useful buildings (among others the famous *cloaca maxima*, the first monument of vaulted architecture on Roman soil), and reorganised the army by the introduction of the Servian system of centuries, which afterwards became the foundation-stone of the Roman constitution. The whole body of the people was divided into four urban and sixteen rural recruiting districts (*tribus*), and all freeholders (*assidui*) were laid under the obligation of military service on the basis of a property qualification. Classes I to III served as heavy-armed soldiers, classes IV and V as light-armed. The whole number together constituted a body of 170 companies (170×100), divided into two legions on the active list and two in reserve, each 4200 strong, or 193 centuries inclusive of the centuries of mounted troops. From the establishment of the republic onwards this army was called together to elect consuls and vote upon laws under the title of the *comitia centuriata*.

The municipal *comitia curiata* ceased to be politically effective first under the military despotism of foreign rulers and then by reason of the expansion of the state till it included an area of nearly a thousand square kilometres. From that time forward the *tribus* became the basis of all political organisation, and remained so to the end.

But the army thus reorganised was a two-edged weapon. The tyrannical license of the last Tarquin roused the love of liberty in the breasts of the Romans. The army renounced its allegiance; through years of conflict and in sanguinary battles Rome, and all Latium with her, won back its independence of foreign Tuscan rulers.

The wars waged by Rome in the century after the expulsion of the kings are hardly worthy to be recorded on the roll of history. After valiantly repulsing the Etruscan commanders who endeavoured to restore Tarquin (496 B.C., battle of Lake Regillus), Rome entered into a permanent alliance with the Latin confederacy, an alliance that was not only strong enough to protect her against the constant attacks of mountain tribes (*Æquians* and *Sabines* on the northeast and *Volscians* on the southeast) but enabled her gradually to push forwards and conquer the south Etruscan cities of *Veii* and *Fidenæ*. *Fidenæ* fell in the year 428 B.C., *Veii* the emporium of southern Etruria, was reduced in 396, after a siege of ten years' duration.

An attempt to intermeddle in the affairs of northern Etruria resulted in a catastrophe that threatened Rome with final annihilation. Some time earlier hordes of Gauls had penetrated into northern Italy through the passes of the Alps. At the beginning of the fourth century B.C. the Senonian Gauls effected a permanent settlement in the valley of the Po and from thence invaded Etruria. When they attacked *Clusium* (*Chiusi*) in middle Etruria the Romans made an attempt at diplomatic intervention, but only succeeded in diverting the wrath of the enemy to themselves. The Gauls made a rapid advance, succeeded in routing the Roman forces at the little river *Allia*, only a few miles from Rome, and occupied the city itself. The citadel alone held out, but more than six months elapsed before the flood of barbarians subsided, and Rome was forced to purchase peace by humiliating concessions.

Rome arose after her fall with an energy that commands admiration, and she had soon won a position in middle Italy more important than that which she had held before the Gallic invasion. By partitioning southern Etruria

among Roman citizens and founding colonies which at the same time served as fortresses and substantial bases for the advance of the Roman army she became a power of such consequence that she not only compelled the Æquians and Volscians by degrees to acknowledge her suzerainty but was able to assume the offensive in middle Etruria and the land of the Sabines.

When the Senonian Gauls returned to the attack, as they did two or three times a generation later (360, 349, and 330 B.C.), they found themselves confronted by the forces of the Latin league in such numbers that they declined to join issue in a pitched battle, presently retreated, and finally concluded a truce for thirty years (329-299 B.C.).

The increased strength of the Roman community within its own borders after the catastrophe of the Gauls is vouched for by the multiplication of municipal districts in spite of heavy losses in the field, the number and importance of the colonies, the gradual expansion of commerce and augmentation of the mercantile marine, the introduction of coined money (about 360 B.C.) in place of the clumsy bars of copper, and lastly, the increasingly active relations of Rome with foreign powers. About the year 360 B.C. the Romans sent votive offerings to Delphi, and made efforts both before and after to introduce Greek cults into their own country. But the strongest evidence of the extension of Roman trade and the esteem in which Rome was held as the contract-making capital of the commercial cities of middle Italy is furnished by her treaties with Carthage (probably 348 and 343 B.C.). The provisions (the text of which has come down to us) that Roman vessels should not sail westwards beyond a certain line in north Africa or in Spain, prove conclusively that the Carthaginians thought Italico-Roman competition a thing worth taking into account.

The internal development of the Roman state during this period (509-367 B.C.) is a matter of greater moment than many wars and military successes. The constitutional struggles which took place in an inland town in Italy are in themselves of small account in the history of the world. But the forms into which civil life and civil law were cast in Rome were subsequently (though in a much modified form) of great consequence to the whole Roman Empire. The division into *curiæ* obtained not only in Rome itself but in the remotest colonies of the empire in its day. The *tribus*, i.e., the districts occupied by Roman citizens enjoying full civil rights, afterward included all the citizens of the empire. Moreover, a particular interest attaches to the history of civil and private law among the Romans from the fact that its evolution has exercised a controlling influence on the juridical systems of the most diverse civilised peoples to this day.

The legal and constitutional changes which took place at Rome during this period were rendered imperatively necessary (in spite of the conservative character of the Roman people) by the changed status of the city. During the earlier half of the monarchy all civil institutions had been arranged with an eye to municipal conditions. But the Rome of the Tarquins (in the sixth century B.C.) had hardly become the capital of a domain of nearly a thousand square kilometres before she found herself under the necessity of admitting her new citizens, first into the companies (*centuriæ*) of the army, and presently (after 509 B.C.) into the popular assemblies which voted by centuries. The old sacral ordinances, which were unsuited to any but municipal conditions, were superseded by the *jus Quiritium*, or Law of the Spearman, an ordinance of civil law.

It was no longer necessary to secure the assistance of the pontiff and the assent of the popular assembly voting by *curiæ* in order to make a will or regulate other points of family law. The civil testament and corresponding civil institutions took the place of the old system.

But the Roman state did not escape grievous internal troubles. After the expulsion of the kings the patrician aristocracy strove to get all power into their own hands. The senators were drawn exclusively from their ranks, civil and military office became the prerogative of a class. All priestly offices were occupied by members of patrician families. The patricians were supposed to be the only exponents of human and divine law. And it was an additional evil that the aristocratic *comitia centuriata*, which actually excluded the poorer citizens, were wholly deficient in initiative.

The Roman *plebs* suffered even more from the lack of legal security under an unwritten law arbitrarily administered by patrician judges than from the lack of political rights. In the famous bloodless revolution of 494 B.C. the plebs won the right of choosing guardians of their own, in the person of the tribunes of the people, who had the right of intervention even against the consuls, and soon gained a decisive influence in all public affairs. By decades of strife the hardy champions of civil liberty succeeded in securing first a written code of common law and then a share for the plebeians in public office and honours. From 443 B.C. onward there were special rating-officers (*censors*) independent of the consul, whose business it was to settle the place of individual citizens on the register of recruiting and citizenship, and to regulate taxation and public burdens.

But the most important triumph was that the assemblies of the plebs succeeded by degrees in securing official recognition for the resolutions they passed on legal, judicial, and political questions. After the year 287 B.C. the *plebiscita* had the same force as laws (*leges*) passed by the whole body of the people.

Although the subject classes had thus won a satisfactory measure of civil rights and liberties, they never forgot—and this is the most significant feature of the whole struggle for liberty—that none but a strong government and magistracy can successfully meet ordinary demands or rise to extraordinary emergencies. At Rome the individual magistrate found his liberty of action restrained in many ways by his colleagues and superiors. But within the scope of his jurisdiction, his *provincia*, he enjoyed a considerable amount of independence.

The senate was the only power which ultimately contrived to impose limits upon this independence. In that body the effective authority of the government was concentrated by gradual degrees. In face of the constant augmentation in the number of magistrates it frequently succeeded in getting its own way without much trouble. In the bosom of its members reposed the *arcana imperii*, the secrets of a policy which had known how to make Rome great. Selfishness, consistency, perfidy, perseverance—such were the motives, some noble, and some base, which shaped its resolutions. Yet we cannot deny that there is a certain grandeur in the political aims represented by the senate. Nor did it fail of success; indeed, its achievements were marvellous.

In the year 390 B.C. the city of Rome was in the hands of the Gauls, and the Roman body politic had to all appearance perished. Exactly a hundred years later, at the end of the Second Samnite War, Rome was mistress of nearly the whole of Italy. A few years more, and she occupied Tarentum (272) and Rhegium (270). What is the explanation of this prodigious change?

It would be unjust not to assign its due share in the matter to the admirable temper of the Roman people. The self-sacrificing patriotism they invariably displayed, their stubborn endurance in perilous times, their manly readiness to hazard everything, even their very lives, if the welfare of the city so required—these qualities marked the Romans of that age, and they are capable of accomplishing great things. By them the admirable military system of Rome was first fitted for the great part it had to play in the history of the world, and became a weapon which never turned back before the most formidable of foes, and gave the assurance of lasting success.

In process of time the ancient Servian phalanx had been superseded by an admirably organised and mobile disposition of the troops in maniples of 160 men each. Ranged in three files, with lateral spaces between, these bodies relieved one another during the fight, and thus were able to quell the most vehement onslaught of the enemy by constantly bringing forward fresh troops, which first hurled their long javelins and then charged with their short swords.

It became more and more the practice of the Roman state to extend to the lower classes the obligation of military service, which in all other parts of Italy was a privilege of the *assidui* or freeholders. Large numbers of landless men and freedmen were enrolled in the recruiting districts (*tribus*) in war times by the famous censor Appius Claudius Cæcus.

Opportune political changes favoured the development of Roman supremacy in Italy. The Etruscan dominion had fallen into utter decay during the course of the fifth century. Rome's victorious struggle for liberty, the advance of the Samnites in southern Italy, and the immigration of the Gauls into northern Italy, had reduced Etruria to a second-class power. In the south the power of the wealthy Greek cities had been broken by Dionysius of Syracuse. Step by step Roman colonists made their way into lower Italy. Where the sword was of no avail Rome had recourse to road-making, the occupation and cultivation of waste land, and fresh settlements. Above all, the Latin colonies which she established in concert with the Latin league were of the utmost importance in securing the supremacy of Rome in middle Italy. These colonies served as fortresses, the colonists were a garrison always ready to stand on the defensive. The colonies themselves were established in such a way as to obstruct the coalition of the various races of Italy. They spread abroad Latin law and the Latin language among foreigners. They once more united the Romans and Latins in a common work of civilisation, after the two peoples had so hotly fought against each other in what is known as the Great Latin War (340-338 B.C.).

The skilful diplomatic negotiations and settlements by which Rome contrived either to gain over her former adversaries or reduce them to neutrality before she engaged in the struggle with the Samnites for the hegemony of Italy (342-340 and 326-304) are particularly worthy of note. She protected her rear by concluding armistices for many years with the Etruscans (351-311) and Gauls (329-299). She entered into friendly relations with the Greek cities, and won over many communities in Campania and Lucania which had put themselves under the protection of the Samnites. Nay, she did not shrink from purchasing the friendship of Carthage by allowing her to take and

plunder the seaboard cities of middle Italy which had revolted against Roman dominion. And she further displayed remarkable skill in securing her tenure of the possessions won in the Samnite wars. Only a small part of them was incorporated with Roman territory. Many cities received an accession of Latin colonists and so retained their municipal autonomy under new conditions. On the other hand the connection between the recalcitrant cantons of the Sabellian, Etruscan, and Middle Italian tribes was completely broken. Isolated and deprived of the right of intercourse (*commercium*) the various small cities and communities ceased to be of any importance either economically or politically.

The Romans had hardly completed the conquest of Etruria and the Samnite confederacy in the Third Samnite War (298-290 B.C.), and subjugated the kindred districts of Lucania and Bruttium when they found themselves involved in the struggles which then agitated the Greek world.

After 301 the several parts of the empire of Alexander the Great had become independent kingdoms. But the quarrels among the various diadochi went on and ultimately led to the expulsion of Demetrius Poliorcetes from Macedonia and the fall of Lysimachus of Thrace.

The unsettled state of these kingdoms inspired hordes of Gauls, athirst for plunder, with the idea of crossing the Alps and conquering both the Apennine and Balkan peninsulas. Italy owed her salvation to the vigorous defence made by the Romans at the Vadimonian Lake (283 B.C.); but Macedonia was occupied for several years and the swarms of Gauls spread as far as Delphi, and finally settled in Asia Minor under the name of Galatians.

Even before the Gallic invasion, Pyrrhus of Epirus, who had taken possession of Macedonia for a while, had withdrawn to his own home, and he and his army of mercenaries turned their eyes westward, eager for action. The wished-for opportunity of there regaining the influence and reputation he had lost in the west was not slow to present itself. Tarentum, the last independent city of any importance in Italy, had provoked Rome to hostilities and was endeavouring to enlist mercenaries for the war. Pyrrhus went to the help of the Tarentines, even as Alexander of Epirus, a cousin of Alexander the Great, had gone before him (334 B.C.). After some initial successes the latter had lost his life in battle against the Lucanians (331 B.C.). His nephew did not fare much better. The generalship of Roman mayors, elected afresh every year, was at first no match for that of Pyrrhus, who had great military successes to look back upon. Up to this time the Macedonian phalanx had invariably proved the instrument of victory, especially in the opening encounters of a campaign, and even the men of Rome gave ground before the elephants, the "heavy artillery" of the Epirots. But the second victory which the king gained over the Romans was a "Pyrrhic victory," for his gains did not compensate his losses. On this occasion Rome owed the victory mainly to the inflexible courage of her statesmen. The blind Appius Claudius, who thirty years before had borne an honourable part in the successful struggle with the Samnites, caused himself to be led into the senate and by his arguments induced the Romans inflexibly to refuse all offers of peace on less than favourable terms. "Never have the Romans concluded peace with a victorious foe." These proud words contain the secret of the ultimate success of Rome in all her wars of that century.

Fortunately for the Romans, at that very time the Greeks of Sicily urgently craved the aid of the king of Epirus. They had been defeated by the Carthaginians and their independence was menaced. Pyrrhus accordingly departed from Italy for more than two years, to gain some initial successes in Sicily and end in failure. When he returned to Italy it was too late. The Romans had established their dominion over the Italian rebels and were once more harassing Tarentum. Pyrrhus suffered a disastrous defeat at Beneventum in Samnium (275 B.C.), and Tarentum submitted soon after (272 B.C.). Pyrrhus himself was slain in Greece about the same time.

The subjugation of Italy was now complete. After Rhegium, the southernmost city in Italy, had been wrested from the hands of mutinous mercenaries (270 B.C.), Rome likewise took upon herself the economic administration of Italy by introducing a silver coinage (269 B.C.).

The war with Pyrrhus had clearly shown that Rome could not stop and rest content with the successes she had already gained, but would presently be forced into a struggle for all the countries about the Mediterranean, that is to say, for the dominion of the world as then known.

She contrived, it is true, very quickly to resume friendly relations with the Greek cities of Italy, whose sympathies had in some cases been on the other side in the war with Tarentum. The autonomous administration she allowed them to enjoy on condition of furnishing her with ships, and the protection which they, for their part, received from the leading power in Italy, could not but dispose them favourably to a continuance of her suzerainty.

With Carthage the case was different. Down to the time of the war with Pyrrhus the interests of Rome and Carthage had gone hand in hand to a great extent, or at worst had led to compromises in the three treaties of

alliance (348, 343, and 306 B.C.). But in the wars against Pyrrhus it was in the interests of Carthage that Pyrrhus should be kept busy in Italy, while the Romans had contrived to turn his energies against the Carthaginians. And when the Romans were preparing to occupy Tarentum, a Carthaginian fleet hove in sight and manifested a desire to seize upon that city, the most important port of southern Italy. A power which had one foot in Rhegium, as Rome had, was bound presently to set the other down in Messina, and that would be a *casus belli* under any circumstances. How could the Carthaginians endure to see the island for the possession of which they had striven for two hundred years pass into the hands of the Romans?

The actual pretext for the war is too dramatic to be passed over. The mutinous mercenaries of Agathocles (317-289 B.C.) had taken possession of the city of Messina. They were attacked by Hiero of Syracuse with such success that they appealed alternately to the Carthaginians and Romans for help. The Carthaginians came to the rescue first and put a garrison in the citadel of Messina. But the commander was so foolish as to enter into negotiations with the Roman legate, who had crossed the straits of Messina with a small body of troops, and in the course of them was taken prisoner—through his own perfidious treachery it must be acknowledged. Thus the key of Sicily fell into Roman hands, and war was declared. The history of the next hundred and twenty years is wholly occupied with the great struggle between these two cities, till at length, in 146 B.C., Carthage was laid level with the ground.

Thus the state of Rome, which had won for itself a leading position in Italy in the Wars of Liberation waged with the Etruscans and Sabellians, and had then been forced by the Samnites into a contest for the sovereignty of Italy, found itself driven almost involuntarily into a decisive struggle for dominion over all the coasts of the Mediterranean. The perseverance with which Rome strove towards the goal of ever higher ambitions commands our admiration, and we admire no less the government of the many-headed senate which kept one constant aim in view and consistently pursued it; which, moreover, steered the ship of state safely through all dangers, when the incompetency of its annually elected chief magistrates resulted in the gravest catastrophes. There lay the weakness of the Roman commonwealth. How could Roman consuls, elected annually by the people, usually on political grounds, acquire the capacity to command armies, to master the art of strategy, or to lead troops and fleets in regions to which they themselves were strangers? To the ill effects of this preposterous system Rome owed the severe reverses of the First Punic War (264-241 B.C.) and the beginning of the Second. The situation began to improve when two capable leaders, Marcellus and the Scipios, were left in command for several consecutive years.

Nevertheless, the Roman armies were frequently led by gallant and judicious men, and won some lasting successes even in the First Punic War, one of the most protracted and sanguinary wars of ancient times.

Hiero, king of Syracuse, was defeated at the outset, and compelled to conclude an alliance with Rome, which he loyally observed till his death in 216. Agrigentum and many other Sicilian towns fell into the hands of Roman generals. The famous victory (Mylæ, 260) won by the Romans with their first real navy over the most famous sea power of ancient times is absolutely astonishing. But Rome could be conquered only in Italy, Carthage only in Africa, and the Romans therefore proceeded to cross over to Africa after another brilliant naval victory near Ecnomus in the south of Sicily (256 B.C.). Fortune favoured them in their first engagements. The position of Carthage itself became grave. But after one of the consuls (Manlius) had gone home at the conclusion of his year of office and the Carthaginians had enlisted a sufficient number of Greek mercenaries and Numidian horsemen, the Roman army was annihilated, and its commander, Regulus, taken prisoner. The Roman fleet, which had been created afresh within the space of a few months, did indeed succeed in destroying that of Carthage off the headland of Mercury (Cape Bon), and taking the remnant of the defeated army on board, only to be wrecked itself by tempest off Camarina on the south coast of Sicily (255 B.C.). A like fate befell many another Roman fleet in the years 253 and 249 B.C. The Romans were neither sufficiently versed in the periodic recurrence of storms—a knowledge indispensable to a maritime nation—nor familiar enough with the character of the coast, and the rocks and shallows, to anticipate lasting success in naval warfare with any confidence. The taking of Panormus (Palermo) in the year 254 B.C., and the great victory won by Metellus over a large army of the enemy under the walls of the city in 250, did not suffice to compensate for the naval disasters. In the year 249 B.C. the severe defeat of Publius Claudius Pulcher and his fleet at Drepanum (in the west of Sicily) and the wreck of another fleet forced the Romans definitively to abandon hostilities at sea. Once more the fleets of Carthage swept the Mediterranean, plundered the coasts of Italy, and even endangered Rome's hold upon Sicily. In the west of the island Hamilcar Barca, the ablest of Carthaginian generals, had established himself upon Mount Eryx. From that base he made successful raids into Roman Sicily. The war dragged on until it was ended at length by a fleet which the Romans built by voluntary contributions. By a brilliant naval victory in the Ægæan Islands, Lutatius Catulus destroyed the last considerable Punic fleet; and so forced the Carthaginians to come to terms. Sicily was ceded to Rome and a moderate war-indemnity exacted from the vanquished city. But the twenty-four years of hostilities in which she

had strained her financial capacity to the utmost had exhausted the resources of Carthage, and she could no longer pay her mercenaries. The result was a formidable mutiny, which proclaimed to the world the bankruptcy of the whole body politic. Rome took advantage of her adversary's embarrassment in a most perfidious fashion. In spite of the fact that peace had been restored she made a compact with the mutineers and prevailed upon them to hand Corsica and Sardinia over to her.

Generally speaking, indeed, the interval between the First Punic War (264-241) and the Second (218-201) can only be regarded as an armed truce. Both parties were fully aware that the decisive struggle was yet to come and must be fought out at no distant period. We stand amazed at the genius, energy, and success of Hamilcar Barca, who, after successfully suppressing the mutiny of the mercenaries, won for his country, even in the hour of her profoundest humiliation, new provinces, new resources, and new armies in Spain. But the Romans, on their part, likewise made good use of the time. In the Illyrian War (229-228) they assumed the character of patrons of the Greek cities and of Greek commerce, they insured maritime traffic against molestation in the Adriatic and curbed the power of the Illyrian pirate state to the best of their ability. They endeavoured energetically to repel the Celts in Picenum and Umbria (236 and 232). But the Cisalpine Gauls poured in countless hordes through the passes of the Alps to the aid of their fellow-tribesmen, and forced Rome into one of the most sanguinary wars Italy has ever witnessed (225-222 B.C.). Rome endeavoured to enlist all Italians in her defence. Her register of Italians capable of bearing arms amounted to a grand total of seven hundred thousand foot and seventy thousand horse. The Gauls, defeated in Etruria on the Po, and at Milan, sued for peace, although their territory north of the Po was yet unconquered. The military colonies of Placentia (Piacenza) and Cremona (established in 218) made some attempt at least to secure for the Romans part of the territory they had won. But when Hannibal, after taking Saguntum, pressed forward across the Pyrenees and the Alps and summoned the Gauls to revolt, the whole valley of the Po was lost once more. In the Second Punic War (218-201 B.C.) the genius and energy of Hannibal brought Rome to the verge of ruin, and we know not which to admire most, the force of character that enabled the son of Hamilcar Barca to win the personal devotion of an army composed of the most incongruous elements and so to inspire them with enthusiasm for the cause of Carthage, or the generalship which, in the most critical situations, invariably made choice of the best expedient and carried it out in the best possible manner. In all the fifteen years which he spent in Italy (218-203 B.C.) Hannibal was never once defeated, nor did his army ever rebel against the measures he took, and his deadliest enemies could lay nothing to his charge unless it were his "more than Punic perfidy" (*plus quam Punica perfidia*)—a brilliant testimony not only to his constant superiority in state-craft but also to his personal integrity. And yet the stubborn perseverance and self-sacrificing patriotism of the Romans was even more worthy of admiration and more fruitful of consequences, than the amazing energy of this greatest general of ancient times. By this time, too, the bond which united the Latin league of middle Italy had attained a firmness beyond the power of Hannibal's armies or diplomatic arts to unknit. The national spirit of the race set bounds which his genius could not overpass.

At the beginning of the campaign the weakness of the Carthaginian naval forces had decided Rome to attempt to transfer the theatre of war to Africa and remain on the defensive on the Ebro. By crossing the Alps—a possibility which had never entered into Roman calculations—Hannibal made Italy the scene of the decisive struggle. After a victorious cavalry engagement not far from the Ticinus he enticed the Roman army posted at Placentia to cross the Trebia and then defeated it; only the smaller half of it made its way back to the fortress. He eluded the consul Sempronius, who was posted at Ariminum, crossed the Apennines into Etruria and destroyed the army of Flaminius in the narrow defiles on the shores of Lake Trasimene. Fabius Cunctator (the Dilatory) now persistently avoided joining issue with him, but when Hannibal marched through the provinces of middle Italy, pillaging as he went, the Romans ventured once more upon a pitched battle. At Cannæ, in Apulia, he found himself face to face with a force of eighty thousand men, and by a master-stroke succeeded in not merely defeating but positively annihilating the Roman troops in the open field with a force of only half their number (216 B.C.). It was the signal for the desertion of most of the allies (exclusive of the Latin colonies). Capua, Samnium, Lucania, Bruttium, and Apulia took the lead, and presently the whole of south and middle Italy went over to Hannibal, including even Tarentum. Syracuse revolted, and thus Sicily seemed lost; and Philip of Macedonia declared war against Rome (215 B.C.). But the policy of Rome was equal to the emergency. She contrived to win the Greek states of the second and third rank over to her interests. The Ætolians and Illyrians, Pergamus and Rhodes, kept Philip employed and prevented him from rendering Hannibal active assistance. Rome's fleet ruled the sea and successfully hindered any coalition between the hostile powers, and thus the Carthaginians could neither save Syracuse, nor send adequate reinforcements to Hannibal, nor effect a junction with Philip's fleet. Doughty commanders like Marcellus, the conqueror of Syracuse, contrived to exhaust his troops by frequent attacks.

The cause of the war in Italy presently began to stagnate more and more, especially after Capua and Tarentum had been retaken (in 211 and 209). Once, and once only, did the Carthaginians venture again to play for high stakes. Hasdrubal had skilfully evaded the Romans in Spain and had reached north Italy by way of the Pyrenees and Alps, intending there to join hands with his brother Hannibal (early in 207 B.C.). It was a critical moment, for both the consuls of the year 208 had fallen in battle. The speedy succour which the newly elected consul, Claudius Nero, despatched to his colleague, Livius, decided the victory in favour of the Romans. Hasdrubal lost both his army and his life (at Sinigaglia) on the banks of the Metaurus.

In the meantime the Romans had succeeded in wresting Spain from the Carthaginians. The two elder Scipios, Publius and Cneius, who, after fighting with varying fortune, had advanced as far as the Guadalquivir, both lost their lives in 211 B.C. But Publius Scipio the Younger, afterwards known as Africanus, a man of Hannibal's own temper, had taken New Carthage (209 B.C.), defeated the Carthaginian armies at Bæcula (208) and Silpia (207), and occupied Gades, the southernmost city of Spain, in 206.

Carthage, nevertheless, could only be conquered in Africa. This view had little to commend it in the eyes of many a prudent member of the senate so long as Hannibal remained in Italy. For all that, Scipio succeeded in transferring the theatre of war in 204 from his own province of Sicily to northern Africa. Allying himself with the Numidian prince, Masinissa, he defeated the Carthaginians and their ally, Syphax of Mauretania, in the year 203 B.C., and brought the war to a close by the decisive victory of Zama (202 B.C.), in which he routed Hannibal, who had returned from Italy, and the flower of his troops.

Carthage lost not only her fleet and foreign provinces, but her sovereignty itself; she was not allowed to go to war without the permission of Rome, while an irksome sentinel was set over her in the person of her adversary, Masinissa, who had been enriched with Punic territory.

Even after this catastrophe the Carthaginians did not utterly lose heart. Their commerce soon revived and prospered, and Hannibal did all he could to restore the prestige of his native city as long as the Romans tolerated his presence there, and to raise up fresh enemies to Rome after he had been driven into exile.

Rome was not long left to the tranquil enjoyment of her victory. Peace had been concluded. Not the citizens of Rome alone, but all Italy, yearned for a lasting peace. And yet the Roman senate, in defiance of popular feeling, was constrained to embark promptly on the adventures of a new and perilous war or to be false to the whole tenor of its policy up to that time.

Rome's success in dealing with Macedonia was due, as has already been stated, to the fact that she extended her protection to the smaller Greek states and thus gained a base from which she could hold the larger states of Greece, Macedonia first and foremost, in check. This policy obliged the Romans in the year 200 B.C. to go to the help of Egypt, which was hard pressed by the combined forces of Macedonia and Syria. Ever since the accession of the youthful Ptolemy Epiphanes in 205 B.C., Macedonia and Syria had united with a view to dividing the Egyptian empire and its dependencies between themselves.

Syria's share was to be Egypt and Cyprus, Macedonia's Cyrene, Ionia, and the islands of the Ægean Sea. Rome was the less able to be an indifferent spectator of the initial successes of these two great powers since they were won at the expense of the states of Pergamus, Rhodes, and Miletus, which were among her allies. In the case of Syria the Romans attained their object by the embassy of Marcus Æmilius Lepidus. Antiochus the Great evacuated Egypt, however, would not stay his hand, and thus the Macedonian War broke out, to be decided in favour of the Romans, after many years of indifferent success, by the advance of Flaminius into Thessaly and his victory at Cynoscephalæ (197 B.C.). At the Isthmian games Flaminius proclaimed that all Greeks were free, but the real effect of the proclamation was to reduce all Greek states to a common level of impotence and to give none of them any lasting satisfaction. The Ætolians, who had been the allies of Rome in the Macedonian War, and took no small credit to themselves for the result, were now the most bitterly enraged against her. Antiochus the Great, of Syria, profited by the prevailing sentiment to press forward in Asia Minor. Hannibal, who had been driven from Carthage, appeared at his court and endeavoured, though without success, to induce him to take the offensive against Italy. War was nevertheless inevitable. Antiochus had command of the sea, and crossed to Eubœa and Thessaly. The Ætolians rose in rebellion. The Romans, however, took up the quarrel with no lack of spirit. After the flower of Antiochus' forces had been vanquished at Thermopylæ, and the Syrian fleet, under the command of Hannibal, had twice suffered defeat, the Scipios crossed over into Asia Minor and destroyed the main army of Syria at Magnesia. A sanguinary conflict ended in the conquest of the mountain cantons of Ætolia (191-189) and the subjugation of the Galatian hordes (188). Antiochus was forced to resign his pretensions to Asia Minor.

That the Romans did not, at this time and during the ensuing decades, take advantage of their success to incorporate fresh provinces into their empire was partly due to their just appreciation of the fact that the conquest of the Greek world could be better and more easily achieved by breaking it up into isolated and impotent states, and partly to their melancholy experiences in the case of their latest acquisitions. For nearly seventy years after the Second Punic War Roman armies were fighting to maintain Rome's supremacy over her Spanish provinces, and even then the north and west remained free. From 151 to 133 a fierce rebellion was rampant in southern Spain and Lusitania (Portugal). The feats of the patriotic Viriathus and the desperate defence of Numantia showed the Romans to what extremities valiant races—however well disposed towards them in the first instance—could be driven by their execrable provincial administration. Moreover they were compelled to fight year after year, sometimes against Gauls and Ligurians, sometimes against Illyrians and Dalmatians. Nor was the strength of the Hellenic congeries of states by any means broken. The wretched empire of Syria alone, ruled by worthless monarchs and torn by internal dissensions, was fast falling into utter decay. A word from a Roman ambassador was enough to reduce the cowardly Antiochus Epiphanes to obedience and cure him of his inclination to join the enemies of Rome. But Macedonia was gaining strength under Philip and Perseus, and the latter actually succeeded in bringing about a great coalition of the states of the Balkan peninsula against Rome. In the Third Macedonian War the empire of Alexander was finally destroyed after the victory of Pydna (168 B.C.). Even then Rome refrained from dividing Macedonia and Greece into provinces; nor did she alter her policy until after repeated sanguinary revolts in Macedonia, headed by the pretender Andriscus, and the rebellion of the Achæan League (141-146). After that the turn of the west of Asia Minor soon came, and it received the name of the province of Asia in 133 B.C.

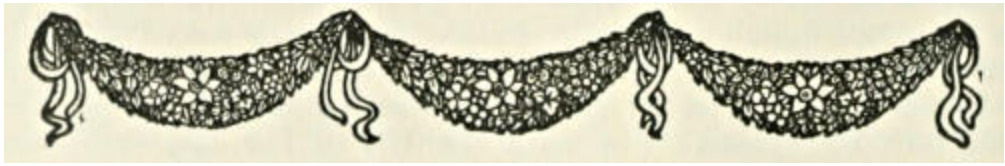
The keystone of the fabric of Roman sovereignty over the coasts of the Mediterranean was, however, still lacking. Carthage had once more risen to prosperity. Her commerce and wealth—insignificant by themselves—were only likely to become formidable if Rome were constrained, as in the year 150, to face hostile powers in both Spain and the East. Consequently Rome could not rest until she had swept the rival of her greatness from the face of the earth. After frequent quarrels with Masinissa, and after threats and humiliating demands of every sort, the Carthaginians in despair took up arms for their last fight for liberty. Scipio Æmilianus took Carthage in the year 146 B.C. Well might the victor shed tears at the sight of the city delivered over to the flames; reflecting that a like fate would some day befall his own birthplace. For with the fall of her last foe abroad the dominion of Rome began to crumble from internal decay. Sanguinary revolts of slaves (140-133 B.C.), the corruption of the aristocracy, the decay of the classes of free citizens and free peasants, were enemies which inflicted far worse wounds on the Roman Empire than the sword of its foes abroad.

Her sturdy peasantry and the moral worth of her citizens were the forces that had made Rome great. Her expansion by conquest had enabled her to ameliorate the condition of the poorer citizens by founding colonies and partitioning public lands, and thus to augment the numbers of a capable agricultural population. In proportion as the system of plantations worked by slave labour took the place of this healthy development the masses of the urban proletariat increased, while their fitness for military service diminished, and the ancient Roman *virtus* speedily became a thing of the past. We know too well how little such civilising influences as the Etruscans, and after them the Greeks of south Italy, brought to bear upon Roman life, could offer in the way of compensation. Many forms and usages of religious worship, many games and theatrical performances imitated from Greek models, found acceptance at Rome. Under the influence of Greek teachers a school of poetry and an elaborate style of Latin prose developed. With admirable readiness the self-contained Romans familiarised themselves, not only with the Greek language, but with many aspects of Greek philosophy and rhetoric.

But the dark side of the picture almost counterbalanced the brightness of this advance in culture. With the Greek philosophers came Greek soothsayers and charlatans, with the Greek drama the airs and abominations of the Greek world; with the Greek tutor the cook, the barber, and the courtesan came to Rome from the East and freely exercised their corrupting influence. The proceedings against the Bacchanalia in 186 B.C., in which thousands of guilty members of the secret society of Bacchus were condemned to death, show how rapid was the decline of the severity of Roman morals.

The forces which had made Rome great and won her a high place in the civilisation of the human race were spent. The rigid moral code of a well-regulated family life, the strict military discipline and organisation of the sturdy Italian peasantry, had become very rare, if they had not passed away altogether. Outwardly the development of Roman law and the Roman constitution maintained the appearance of freedom, but the selfishness of the ruling and moneyed classes threatened to destroy even this palladium of Roman *libertas*. With the fall of Carthage we reach the eve of the revolution which led to the repeated conquest of the capital by its own citizens, to the unchaining of mob violence, to a prætorian administration, and so to the rule of the Cæsars. "The beasts of the

forest,” as Tiberius Gracchus cried to the Romans of his day, “have their dens and burrows, but the lords of the world have no place where they can lay their heads.” Such is the reverse of the medal of which the obverse reads: Foundation of the universal empire of Rome, after Corinth and Numantia, Macedonia and Carthage, were laid in the dust.



BOOK I

EARLY ROMAN HISTORY TO THE FALL OF THE REPUBLIC

INTRODUCTION

THE SOURCES AND THE CHRONOLOGY OF EARLY ROMAN HISTORY

A GLANCE AT THE EARLY SOURCES

Monumental remains, casting more or less light directly or by inference upon Roman history, are numerous. The Romans were great practical builders, and wherever they went—even into distant Britain—they left architectural remains, of which traces at least are still in existence. In Rome itself, such monumental structures as the Colosseum, the Pantheon, Trajan's Pillar, and the ruins of the Forum, still bear testimony to the character of the ancient civilisation.

Even more interesting in some respects is the record brought to light through the exhumation of the buried cities of Herculaneum and of Pompeii. At Pompeii, in particular, the visitor of to-day finds himself in the midst of surroundings that give a most vivid impression of a Roman city of the golden age. The streets are flanked by the walls of buildings still intact as to their main structure; the road-beds themselves are paved with stones which still show deep channels made by the wheels of chariots that conveyed Romans of the time when Rome was mistress of the world. The broken pillars of the forums; the terraced seats of the great amphitheatres; the structure and contents of the private dwellings, unite to tell the story of the social life of a remote epoch with a vividness which no words can equal. And turning to details, the supply of interesting implements and utensils of every-day use which the lava and ashes of Vesuvius have preserved for us is almost inexhaustible.

Up to this point, the ruins of the buried Roman cities strongly suggest the ruins of Nineveh and Nippur, and those of the old Greek cities at Hissarlik. The parallel with the Mesopotamian cities holds even further, for there are numerous treasures of art preserved at Pompeii. But unfortunately, no such inexhaustible literary treasures as rewarded the explorer in Babylonia and Assyria have been discovered in the ruins of the Roman cities. A few most interesting tablets have been found; such tablets as both the Grecians and the Romans used constantly, but of which, owing to their perishable material, no examples whatever have been preserved, except in these buried cities and in Egypt. Then, too, a single collection of books was found in the small library of a private dwelling at Herculaneum. This collection, comprising several hundred papyrus rolls, gave promise of great things, if only the parched bundles could be unrolled and their contents deciphered. But when, with infinite patience, this end was effected, in a large number of instances the result was most disappointing; for contrary to expectation no important lost works of antiquity—no works throwing new light on any phase of ancient history—were found. Many of the manuscripts were injured beyond repair, and others have not yet been unrolled; but enough has been done to prove the general character of the collection and to dissipate the hopes of the antiquarian.

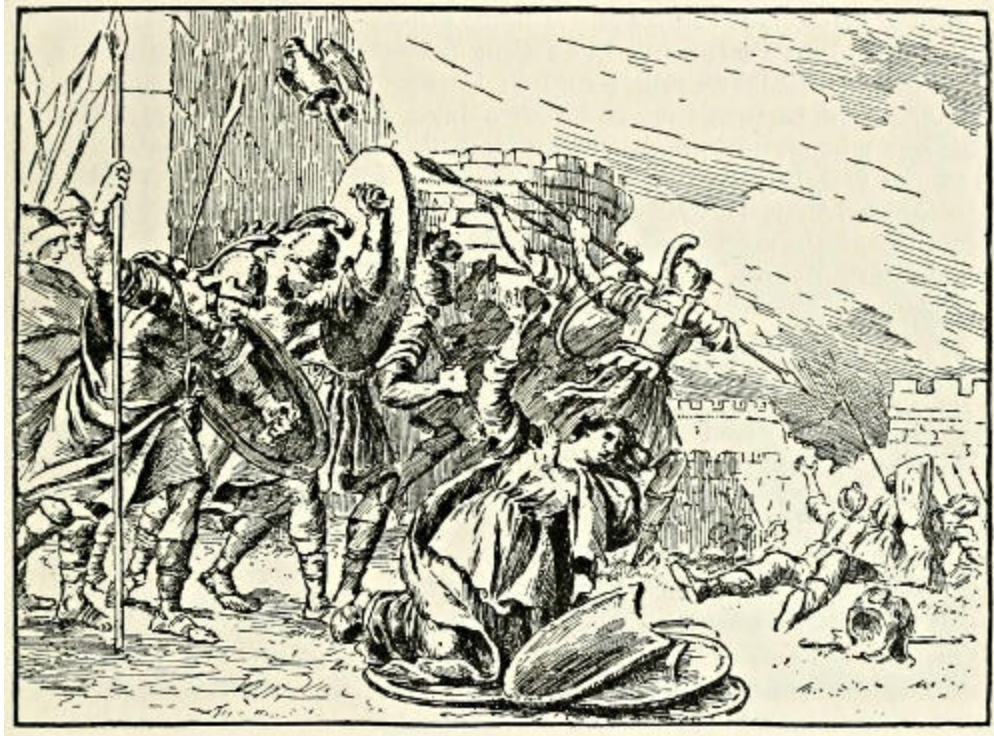
Of inscriptions on various monuments and on coins and medals there is no dearth. But these are by no means so comprehensive in their scope as were some of the inscriptions of the early Egyptian and Assyrian monarchs; and speaking broadly, it may be said that the entire epigraphic and numismatic testimony as to the history of Rome—particularly for the earlier period—amounts to no more than incidental references, and would leave us with but a vague knowledge of the subject, were it unsupported by more extensive records.

The more extensive records in question are, of course, the manuscripts of books. From a rather early day there was no dearth of writers in Rome, and among these the historians, or, as they more generally termed themselves, the annalists, were fully represented. Indeed, this class of writers appears to have held almost complete possession of the field in the early day. In the later Augustan age, though votaries of polite literature had fuller representation, yet the historians, with Livy at their head, still took front rank among writers of prose. No original manuscripts of any of these

writers have come down to us; indeed, no manuscripts of the classical period whatever have been preserved, except a few fragments in Egypt and the collection at Herculaneum just mentioned. Our copies of the Roman historians date from the Middle Ages, and few of them are intact. The works of the early annalists and chroniclers have disappeared almost entirely. Doubtless they were regarded as having little utility after such great master-builders as Dionysius and Livy had used them in the construction of their great works. Many of the writers of a later period fared not much better; and even the greatest of all have come down to us in a damaged condition. Livy himself is represented among extant manuscripts by only about one-fifth of his original history—to say nothing of his other writings, which have perished altogether. Dionysius has been no more fortunate, as only the earliest portion of his work is preserved.

Dionysius himself has left us a list of the early authorities upon whom he drew. His comment on his predecessors is interesting; after noting that “no accurate history of the Romans, written in the Greek language, has hitherto appeared, but only small accounts and short epitomes,” he criticises these synopses as follows:

“Hieronymus Cardianus (the first author I know of upon this subject) has given a cursory account of the Roman antiquities in his history of the Epigoni. After him, Timæus, the Sicilian, treated of antiquities in his universal history, and placed in a separate work the wars of the Romans with Pyrrhus of Epirus. Besides these, Antigonus, Polybius, Silenus, and innumerable other authors have attempted this same subject, though in a different manner; each of whom has written some things concerning the Romans, which they have compiled from common reports without any diligence or accuracy. Like to these in all respects are the histories, which some Romans also have published in Greek, concerning the ancient transactions of their own nation; of whom the most ancient are Quintus Fabius, and Lucius Cincius, who both flourished during the Punic wars: each of these has related the actions, at which he himself was present, with great exactness, as being well acquainted with them, but has given a summary account of those early events that happened soon after the building of the city.”



TREACHERY OF TARPEIA (SIXTH YEAR OF ROME)

([See p. 65](#))

It was to supply the deficiency thus noted, Dionysius alleged, that he undertook his work, being determined, he says, “not to pass over that beautiful part of the Roman history, which the ancient authors had disregarded.” But “lest some one should entertain the opinion that in introducing matter not found in the authors already mentioned, he resorted to invention,” Dionysius thinks it well to explain how he came by the materials for his history. He says:

“I came into Italy immediately after Augustus Cæsar had put an end to the civil war, in the middle of the hundred and eighty-seventh Olympiad; and having from that time to this present, that is, twenty-two years, lived at Rome, learned the Roman language and acquainted myself with their writings, I employed all that interval in preparing materials for this work; and some things I received from men of the greatest consideration among them for learning, whose conversation I used; and others I gathered from histories, written by the most approved Roman authors; such as Porcius Cato, Fabius Maximus, Valerius Antias, Licinius Macer, the Ælii, Gellii, and Calpurnii, and several others of good note. Supported, therefore, by the

authority of these histories, which are like the Greek annals, I undertook this work.”

Livy, our other great source for the early traditional history of Rome, unlike Dionysius, does not specifically enlighten us as to the sources of his information; but doubtless they were much the same as those employed by his great contemporary.

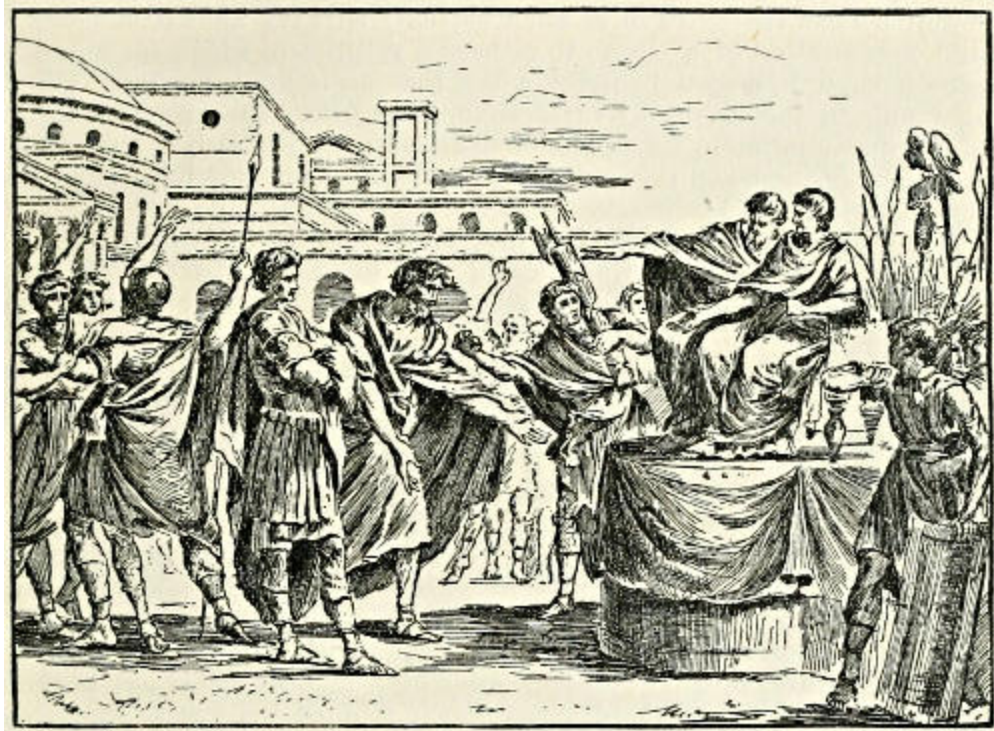
There was indeed a large company of early annalists and chroniclers, as the note of Dionysius indicates. Among others these names have come down to us: Q. Fabius Pictor and L. Cincius Alimentus, who lived in the time of the Second Punic War and wrote in Greek; the poet Ennius, who wrote annals from the earliest time to his own day; and A. Postumius Albinus and C. Acilius who wrote annals in Greek at about the same period. The original works of all of these, like those of many later historians, have been lost.

It appears that the Roman historians were accustomed to call their writings annals if they referred to ancient times, and histories if they described contemporary events. It will be recalled that Tacitus wrote both annals and histories. Necessarily, the works dealing with the early history of Rome were annals. Dionysius, however, termed his work *Archæologia* instead of annals. Dionysius lived in the latter half of the first century B.C., but he did not attempt to bring his historical records further down than the year 264 B.C.; his intention being to bridge the gap in Roman history preceding the time at which the work of Polybius begins. Livy's scope was far more comprehensive, as his work covered the period to his own time. In other words it was, using the Roman terminology, annals and history combined. It is curious to note his own estimate of the relative values of these two portions of his work. He says:

“Whether in tracing the series of the Roman history, from the foundation of the city, I shall employ my time to good purpose, is a question which I cannot positively determine; nor, were it possible, would I venture to pronounce such determination; for I am aware that the matter is of high antiquity, and has been already treated by many others; the latest writers always supposing themselves capable, either of throwing some new light on the subject, or, by the superiority of their talents for composition, of excelling the more inelegant writers who preceded them. However that may

be, I shall, at all events, derive no small satisfaction from the reflection that my best endeavours have been exerted in transmitting to posterity the achievements of the greatest people in the world; and if, amidst such a multitude of writers, my name should not emerge from obscurity, I shall console myself by attributing it to the eminent merit of those who stand in my way in the pursuit of fame. It may be further observed, that such a subject must require a work of immense extent, as our researches must be carried back through a space of more than seven hundred years; that the state has, from very small beginnings, gradually increased to such a magnitude, that it is now distressed by its own bulk; and that there is every reason to apprehend that the generality of readers will receive but little pleasure from the accounts of its first origin, or of the times immediately succeeding, but will be impatient to arrive at that period, in which the powers of this overgrown state have been long employed in working their own destruction.”

Obviously then, Livy regarded the portion of his history which dealt with remote antiquity as relatively unimportant. But posterity did not give suffrage to this view; for successive generations of copyists preserved the early portion of the work entire, while allowing the latter part to be lost, except for occasional fragments.



HORATIUS CONDEMNED

([See p. 79](#))

Livy's preface continues: "On the other hand, this much will be derived from my labour, that, so long at least as I shall have my thoughts totally occupied in investigating the transactions of such distant ages, without being embarrassed by any of these unpleasing considerations, in respect of later days, which, though they might not have power to warp a writer's mind from the truth, would yet be sufficient to create uneasiness, I shall withdraw myself from the sight of the many evils to which our eyes have been so long accustomed.

"As to the relations which have been handed down of events prior to the founding of the city, or to the circumstances that gave occasion to its being founded, and which bear the semblance rather of poetic fictions than of authentic records of history—these, I have no intention either to maintain or refute. Antiquity is always indulged with the privilege of rendering the origin of cities more venerable, by intermixing divine with human agency; and if any nation may claim the privilege of being allowed to consider its original as sacred, and to attribute it to the operations of the gods, surely the Roman people, who rank so high in military fame, may well expect, that,

while they choose to represent Mars as their own parent, and that of their founder, the other nations of the world may acquiesce in this, with the same deference with which they acknowledge their sovereignty. But what degree of attention or credit may be given to these and such like matters I shall not consider as very material.”

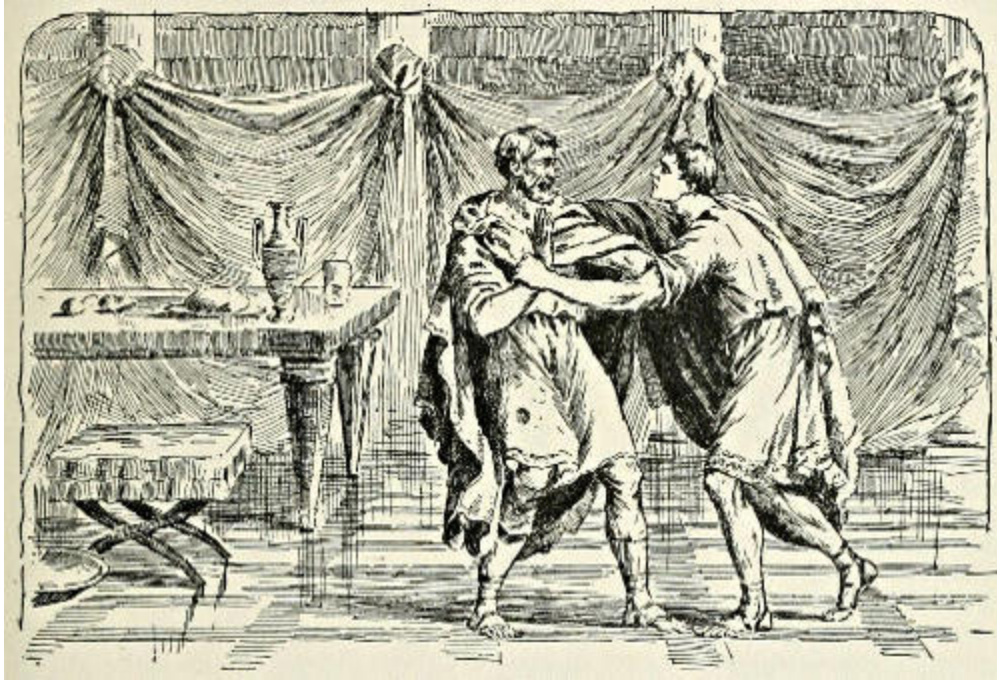
Particular attention should be called to the remarks of Livy, just quoted; which seem clearly enough to show that he was by no means so credulous regarding the traditions of early Rome as his manner of relating these traditions might lead one to suppose. It is probable that the judgment of later generations usually goes astray when attempting to estimate the exact level of credulity of any anterior generation. Doubtless the Romans as a class gave far more credence to the hero tales than we are disposed to give them now. We shall have abundant evidence that even in the golden period of the empire superstitions as to miracles and the like were not altogether repudiated, even by such writers as Tacitus; but, on the other hand, we may well believe that writers of such capacity as Livy allowed a desire for artistic presentation of a theme to conceal a scepticism which he would not otherwise have hesitated to avow. Be that as it may, posterity has all along clung to the myths of early Rome, and we of to-day cannot ignore them, whatever estimate we put upon their authenticity. It is through the pages of Dionysius and Livy, chiefly, that these fascinating tales have been preserved to us.

Coming down the centuries we find no great name until we reach the period when Rome, having firmly established her power in Italy, began to look out beyond the bounds of the peninsula and dream of foreign conquests. This great culminating epoch of Roman history found a great transcriber in Polybius. His work was avowedly written to describe and explain the events by which Rome “in the short period of fifty-three years,” conquered the world. Polybius was himself a Greek, born in Megalopolis. He was a practical statesman, and the personal friend of Aratus, the leader of the Achæan League. We have noted in a previous volume that Polybius was one of the thousand Greeks sent as hostages to Rome. He spent the greater part of the remainder of his life in Italy; became the personal friend of Scipio the Younger, and was present with that leader when Carthage was finally destroyed. Belonging thus to the later epoch of Grecian history, when the spirit of the age was philosophical rather than artistic, Polybius

wrote such a work as might be expected of a man of genius of his time. His point of view is utterly different from that of his great predecessor Herodotus, though not altogether dissimilar to that of Thucydides. He himself tells us over and over—in fact he never tires of repeating—that his intention is to instruct rather than to entertain; to teach the causes of Rome's success; to point the moral of her victories. Being a man of affairs, he not unnaturally holds that only men of affairs are competent to become reliable historians. He points out that there are two ways of gaining knowledge: "one derived from reading books, and the other from interrogating men;" he inveighs with some asperity against those historians, taking Timæus as a type, who confine themselves to the former method.

"The knowledge that is acquired by reading," he says, "is gained without any danger or any kind of toil. If a man will only fix his residence in the neighbourhood of a library, or in a city that abounds with written memoirs, he may make his researches with perfect ease; and, reposing himself with full tranquillity, may compare the accounts and detect the errors of former writers. But the knowledge which is drawn from personal examination and inquiry, is attended with great fatigue and great expense. It is this, however, which is the most important, and which gives indeed the chief value to history. Historians themselves are ready to acknowledge this truth. For Ephorus says, that if it were possible for the writers of history to be present at all transactions, such knowledge would be preferable to any other. To the same purpose is that passage of Theopompus: that the experience which is gained in battles renders a man a consummate general; that practice in pleading causes forms the perfect orator; and that the same observation is just with respect to the arts of navigation and of medicine.

"It was said by Plato," Polybius continues, "that human affairs would be well administered when philosophers should be kings, or kings philosophers. In the same manner I would say: that history would be well composed if those who are engaged in great affairs would undertake to write it; not in a slight and negligent manner, like some of the present age; but regarding such a work as one of the noblest and most necessary of their duties, and pursuing it with unremitted application, as the chief business of their lives; or if those, on the other hand, who attempt to write, would think it necessary also to be conversant in the practice of affairs. Till this shall happen, there will be no end of mistakes in history."



SCIPIO AND POLYBIUS

(From an old print)

But while thus speaking for men of affairs, Polybius has in mind also philosophers, for he declares that it is impossible to make a clear judgment of the victorious or vanquished by a bare account of events. We must know, he says, the laws and customs of the people, and the passions and circumstances which prevail among them with regard to public and private ends. With regard to the Romans in particular, he hopes by due attention to these things to present such a picture that the people of his own age will be able to discern “whether they ought to shun or choose subjection to the Romans; and posterity to judge whether the Roman government was worthy of praise and imitation or should rather be rejected as vicious and blamable;” for in this, he believes, must consist the utility of his history for his own and future ages.

All this is highly admirable; nor is it in dispute that Polybius attained a large measure of success along the lines he had laid down for his work. Only five of his forty books have come down to us entire, but these sufficiently illustrate his method and its results. It has been said of them that no student of the period can ignore them, but that no one else would willingly read them. This criticism, like most other epigrammatic verdicts,

is unjust. There is much in the work of Polybius that anyone who cares at all for historical writings may read with full interest. His descriptions of the major events are by no means so bald and unimaginative as some critics would contend. They do indeed eschew the marvellous and attempt to avoid exaggeration; but this surely is no fault; nor do these limitations exclude picturesqueness. But the really vital fault of Polybius is his method of construction. He uses virtually the plan which Diodorus adopted later of attempting to keep the narrative of events in different countries in the closest chronological sequence. This necessitates a constant interruption of his narrative, through shifting the scene of action from one country to another, until all sense of continuity is lost. Add to this an ineradicable propensity to be forever moralising,—interrupting the narrative of some startling event to explain in detail how startling events should be treated by the historian,—and the reasons are sufficiently manifest why Polybius is hard to read. It is a great pity that he did not, like Trogus Pompeius, find a Justin to epitomise his work; for by common consent he was one of the most dependable historians of antiquity; and he is recognised as the standard source for all periods of which his extant works treat. Indirectly his influence is even more extensive, since Livy made use of him as his authority for the events of the Second and Third Punic wars, and since Appian drew on him freely.

There is no great name among the Roman historians for about a century and a half after Polybius. Then comes Sallust, the historian of the Jugurthine War and the Catiline conspiracy; and Julius Cæsar, who has left us that remarkable record of his own exploits. Contemporary with Cæsar were Diodorus and Livy, the former of whom lived till about 7 B.C. and the latter till 17 A.D. Livy's account of his own time, as has already been mentioned, has most unfortunately perished. The chief record of these times that has been preserved, is the work of Appian, an Alexandrian Greek who lived in the time of Trajan, Hadrian, and Antoninus Pius; that is to say, in the early part of the second century A.D. His work is the sole authority—overlooking certain epitomes and fragments—for some periods of the civil wars. It was written in Greek, and is notable for the plan of its construction; which, departing radically from the method of Polybius, treated each important subject by itself. In other words his work is virtually a collection of monographs; the subject of each being one of the important wars of Rome. Appian has been charged with the opposite literary vice to that of

Polybius; he is said to have thought more of manner than of matter. Nevertheless, he necessarily used the older writers for his facts, and if he sometimes used them carelessly and uncritically, these are faults of his time. In the main he shows a fair degree of accuracy. Accurate or otherwise, he is, as has been said, our sole source for certain important periods of the later time of the republic.

If to the writers just named we add Dion Cassius; the general historian Trogus Pompeius (in Justin's celebrated epitome); and of the biographers Plutarch and Cornelius Nepos; and supplement our list with the names of the so-called epitomators, Eutropius, Velleius, Florus, Aurelius Victor, Zonaras, Festus Rufus, and Orosius (writers who made brief but more or less valuable epitomes based on the authorities), we shall have named practically all the important historians of Rome to the end of the republic whose works are now available in anything like their original form.

The modern historian gains incidental aid from various other fields: from the orations of Cicero, and the chance references of poets; from inscriptions on monuments and medals, and from the débris of ancient structures. Yet when all these have been examined, it is to the manuscripts that we must turn for the main incidents of the story.

Of the modern historians of Rome whose works have had much to do with the earliest period, it is sufficient here to mention the names of Niebuhr, Arnold, and Mommsen. More detailed notices of both ancient and recent authorities will be given from time to time as we proceed.

THE CHRONOLOGY OF EARLY ROMAN HISTORY

A PRELIMINARY SURVEY, GIVING A CURSORY VIEW OF THE SWEEP OF EVENTS

FIRST (LEGENDARY) PERIOD OF THE KINGS (TO ABOUT 510 B.C.)

(All dates for this period are approximate.)

753-716. **Romulus**, a mythical king. Rape of the Sabine women, and war with the Sabines. Through the treachery of Tarpeia, the fortress on the Capitol taken by the Sabellian king Titus Tatius. Formation of the double state of the Romans and Sabines under the rule of Romulus and Tatius. Disappearance of Romulus during a thunder storm; he is known and

worshipped from now on as the god Quirinus. 715-673. **Numa Pompilius**, of Cures, appointed king by the Romans after a year's interregnum. Founds the religion of the Romans. Building of the temple of Janus. 672-641. **Tullus Hostilius**. War with Alba Longa. After a contest between the Horatii and Curatii, Alba submits to a decision in favour of Rome. Alba Longa destroyed and its population transferred to Rome. 641-616. **Ancus Marcius**. Formation of the Fetiales. After the conquest of four Latin cities their inhabitants are transferred and settled on the Aventine Hill. Fortification of Janiculum. Building of the "pons Sublicius" and foundation of Ostia. 615-578. **Tarquinius Priscus**. Building of the temple of Jupiter on Capitoline Hill begun. The city divided into four districts, and a new military system introduced. Increase of the senate to three hundred members and doubling of the number of equites. Successful campaigns against the Sabines, Latins, and Etruscans. Tarquinius is assassinated by the sons of Ancus. 578-534. **Servius Tullius**. The son of a slave woman, Ocrisia, and a god; he becomes the son-in-law of Tarquinius. Formation of the four "tribes." Changes in the army, begun by Tarquinius, completed; distribution of all landholders into tribes, classes, and centuries. Wars with Veii. Rome joins the Latin league. Building of the walls of Rome. Assassination of Servius Tullius by his son-in-law. 534-510. **Tarquinius Superbus**. The Capitoline temple of Jupiter is completed. Subjugation of the Latin league. Suessa Pometia is conquered. Through the treachery of his son Sextus, Tarquinius captures the city of Gabii. Rape of Lucretia by Sextus the king's son, whereupon the indignant Romans rise in revolt. L. Junius Brutus heads the insurrection, and Tarquin is deposed. Rome besieged by Lars Porsenna, prince of Clusium; he grants honourable terms of peace and withdraws. Battle of Lake Regillus. Tarquin seeks revenge at Cumæ. Overthrow of the monarchy.

THE EARLY DAYS OF THE REPUBLIC (510-451 B.C.)

510. Rise of the Republic. 509. Consuls for the first year are L. Junius Brutus and L. Tarquinius Collatinus. Collatinus, being a descendant of Tarquin, is compelled by a decree of the senate to give up his office. He is replaced by P. Valerius Publicola. According to Polybius, L. Junius Brutus and Marcus Horatius were consuls for the first year. The first dictator is Titus Lartius. Unsuccessful attempts to restore the Tarquinians. Execution

of Brutus' son. Commercial treaty between Rome and Carthage. 508. The Romans are defeated by the Etruscan king Porsenna of Clusium, are forced to disarm and surrender certain lands. Alliance of thirty Latin cities under the dictatorship of Octavius with the object of restoring the Tarquinians to the sovereignty of Rome. Death of Valerius Publicola. 497. The Latins declare war against Rome. Aulus Postumius is appointed dictator at Rome. Tradition credits the Romans with a great victory over the Latins at Lake Regillus. The Latin cities make peace with Rome, and agree to banish Tarquinius. 494. The plebeians secede to the Sacred Hill, and compel the patricians to make important concessions, among which is the abrogation of oppressive debts. Establishment of the tribunate and the plebeian ædileship. 493. The eternal alliance between Rome and the Latin league is renewed under the consulate of Spurius Cassius on the basis of equality. Rome gradually regains hegemony over the Latins. The tribunate is the cause of anarchy, and leads to further disputes between the patricians and plebeians. Attempts to abolish the tribunate. 491. Marcius Coriolanus. During a famine he suggests granting, at the expense of the state, grain to the plebeians, on condition that they relinquish their claim to the tribunate. He is summoned before the tribal assembly but fails to appear, and according to Livy is banished, goes over to the Volscians, and leads their troops against Rome; at the rebuke of Veturia his mother, and the entreaties of his wife Volumnia, he abandons the war against his native city. 487. The consul Aquilius defeats the Hernici who invade Roman territory. 486. Spurius Cassius Viscellinus consul for the third time. He again defeats the Hernici, after which they join the Latin league. He introduces the first agrarian law, and proposes that a portion of the public lands be divided between the needy plebeians and Latins; the remainder to be leased for the benefit of the state. He is attacked by the patricians and wealthy plebeians on account of this measure, and the poorer plebeians, being opposed to the granting of lands to the Latins, abandon him. At the expiration of his consulship he is condemned and executed. 479. Withdrawal of the Fabian gens. 477. The Etruscans destroy the Fabian gens at the Cremera. Genucius, the people's tribune, assassinated for inquiring into the acts of two consuls. 472. Publilius Volero effects law that the tribal assembly henceforth shall elect plebeian magistrates. 468. Conquest of Antium from the Volscians; a Roman colony is sent thither. 463. Rome and all Italy visited by a terrible plague. Volscians and Æquians ravage the country up to the walls of Rome.

The safety of the city secured by the Latin Hernicans, not by the Romans. 462. C. Terentilius Harsa introduces a bill to secure the plebeians a better footing in the state, and to reduce the laws to a written code. The patricians violently oppose the measure. 460. A band of Sabines and exiled Romans under Herdonius seize the Capitol; civil strife is renewed. 457. To meet the desire of the plebeians, the number of the tribunes of the people is raised from five to ten. 456. Aventine Hill is divided into building lots and distributed among the poorer citizens. The dictatorship of L. Quinctius Cincinnatus. 454. Three ambassadors appointed to visit Greece and secure copies of the Solonian laws to be used as the groundwork of a new code of laws. 452. The ambassadors return. Rome free from domestic strife.

FROM THE DECENVIRS TO THE GALLIC INVASION (451-390 B.C.)

451. The decemvirs or consuls of ten appointed from the patricians with Appius Claudius and T. Genucius consuls for the first year, at their head. The code of the ten tables posted in the Forum and becomes law. 450. Appointment of the decemvirs. Appius Claudius the only one of the old decemvirs to be re-elected. Three plebeians are also elected. Two new tables are added to the code of laws. 449. The decemvirs under Appius Claudius, who have become more despotic than the early kings, remain in office during this year. Under the Valerii and Horatii an attempt on the part of the moderate aristocracy to compel the decemvirs to abdicate proves unsuccessful. Renewal of the border wars. The Sabines on the north and the Æquians on the northeast invade Roman territory. Two armies are sent to oppose them and both are defeated. Siccius Dentatus, a former tribune of the people, is murdered at the instigation of the decemvirs. Virginia, the betrothed of L. Icilius, the tribune who succeeded in allotting the Aventine Hill to the plebeians, is outraged by Appius Claudius. Her father Virginius stabs her in the Forum. These acts bring about a revolt against the decemvirs who abdicate. Appius Claudius is thrown into prison and commits suicide. Spurius Oppius, chief of the plebeian decemvirs, is accused by Numitorius and executed. 448. The new laws of Valerius Horatius. 445. A law making marriage legal between patricians and plebeians is passed by C. Canuleius. 444. Formation of military tribunes with consular authority. Plebeians and patricians both eligible. 443. A new office is created to which two patricians are elected and known as censors.

439. A wealthy plebeian Spurius Maelius charged with seeking regal power is assassinated by C. Servilius Ahala. 434. L. Aemilius Mamercus appointed dictator to conduct the war in lower Etruria. 431. Rome threatened by a combined attack of the Aequians and Volscians. They are defeated. 405-396. Siege of Veii. Dictator M. Furius Camillus captures and destroys Veii. 394. Camillus marches against Falerii, the chief city of the Falisci, who surrender. 391. Camillus is accused of unfairly dividing the booty at Veii, is impeached, and goes into exile. 390. The Gauls invade Rome and the senate accedes to their demand that the three Roman ambassadors who aided the Etruscans against the Gauls should be delivered to them, but the citizens reject the measure. Battle of the Allia in which the Romans are completely routed and their city left defenceless. Rome captured, plundered, and burned. The Gauls attack the Capitol but are repulsed and content themselves with a blockade. After a siege of seven months the Gauls agree to quit Rome on receiving one thousand pounds' weight of gold. Rebuilding of the city.

THE CONQUEST OF ITALY (376-264 B.C.)

376. New laws are proposed by C. Licinius and Lucius Sextius. 367. Licinian laws are passed. 366. L. Sextius Lateranus first plebeian consul. 367-349. Wars with the Gauls in upper Italy. 362-358. War with the Hernicans and the insurgent Latin cities. A new alliance formed of Latins, Romans, and Hernicans. 358-351. War with Tarquinii and other Etruscan cities. Southern Etruria acknowledges Roman supremacy. 350-345. Wars with the Volscians and Aurunci, who are completely subjugated. 348. Renewal of the commercial treaty with Carthage. 343. First Samnite War. 340-338. The great Latin War. Subjugation of Latium. 337-326. Revolt of Cales. Treaty with Alexander of Molossia. Siege and destruction of Palæopolis. 326. The Second Samnite War begins. 321. The great defeat of the Roman army at Caudine Forks. 319. L. Papirius Cursor conquers Luceria. 312. The Etruscans, on the expiration of the forty years' peace, join in the war against Rome. 309. L. Papirius Cursor utterly defeats the Samnites. 305. The Romans capture Bovianum, the Samnite capital. 304. End of the war. 299. The Third Samnite War. 295. The battle of Sentinum, in which the Romans prove victorious. 294. The allied Romans dissolve. 293. Defeat of the Samnites at Aquilonia. 290. The conclusion of peace.

285-282. War against the new league of Italian cities. 282. Opening of the war with Tarentum. 280. Pyrrhus lands in Italy. Battle of Heraclea. 279. Battle of Asculum. 275. Battle of Beneventum. Pyrrhus withdraws from Italy. 274-264. Final settlement of Italy.

FIRST PERIOD OF FOREIGN CONQUEST (264-132 B.C.)

264. First Punic War. The Carthaginians besiege Messana. 263. Invasion of Sicily by the Romans. The Syracusan king Hiero joins the Romans. 262. The Romans defeat Hanno and capture Agrigentum [Acragas]. 260. The Romans send a fleet under Cornelius Scipio against Lipara, which is defeated by the Carthaginians. Battle of Mylæ in which the Roman navy proves victorious. Sea fight off Ecnomus; defeat of the Carthaginian fleet. The Romans invade Africa. 255. Carthaginians under Xanthippus defeat the Romans under Regulus. Loss of the Roman fleet on homeward voyage. 254. Roman victory at Panormus. 251. Hasdrubal defeated at Panormus. 249. Carthaginian victory over the Romans at Drepanum. 248-243. Success of the Carthaginians under Hamilcar Barca on the Italian coast and in Sicily. 242. Romans defeat the Carthaginian fleet off Ægatian islands. 241. Hamilcar Barca concludes peace. The Carthaginians agree to pay indemnity and leave Sicily. 229-228. War with the Illyrians. 225-222. Annihilation of the Cisalpine Gauls. 218. The Second Punic War begins. The Roman army sent to Africa. Hasdrubal opposes Scipio in Spain. Hannibal crosses the Alps. 217. Hannibal defeats the Romans at Lake Trasimene. 216. The Romans annihilated at Cannæ. 215. First Macedonian War. Philip of Macedon joins Carthage. Hannibal is defeated in the battle of Nola. 214. Carthaginians land in Sicily. 212. Romans recover their position in Sicily. Carthaginian success in Spain. 211. The Romans besiege Capua. Hannibal at the gate of Rome. Hannibal's retreat from Rome. Fall of Capua. Defeat of Hasdrubal at Bæcula. 209. Hasdrubal crosses the Pyrenees and Gaul, and appears in the north of Italy. 207. Hasdrubal defeated and slain at the battle of Metaurus. 206. Carthaginians expelled from Spain. Macedonian War concluded. 204. Scipio in Africa. 203. Scipio defeats the Carthaginians. Hannibal recalled to Carthage. 202. Scipio defeats Hannibal in the battle of Zama. 201. Treaty of peace concluded. 200. Second Macedonian War. 200-197. Subjugation of upper Italy. 197. Second Macedonian War concluded. 192-189. War with Syria. 190. Battle of Magnesia. 171. Third Macedonian

War. 168. Overthrow of the Macedonian monarchy. 149. Third Punic War begins. Siege of Carthage. Viriathus successful in Lusitania. 146. Carthage taken and destroyed; her territories become Roman provinces and are organised as such. Achæan War. Battle of Leucopetra. Corinth surrenders peacefully. Destruction of Corinth. 143-141. Numantine War against the rebellious Celtiberians. Viriathus maintains himself against the Romans, and finally concludes a peace unfavourable to them. 140. The Romans violate the peace and renew the war. 139. Viriathus is murdered at Roman instigation. The Lusitanians renew the war but are defeated and disarmed. This is their last rebellion on a formidable scale. 133. Numantia taken and destroyed by Scipio Africanus the younger. Having resisted successive Roman generals since the year 143 it is now subdued after fifteen months' close investment. Its fall signalises the subjection of northern Spain to Rome. 135-132. First Servile War in Sicily. The slave Eunus leads an insurrection of the slaves and assumes the title of King Antiochus. A regular government is established, and in the war with Rome which follows the rebels are at first successful. When finally subdued they are punished by numerous executions. The consul Rupilius reorganises the administration of Sicily.

REFORMS OF THE GRACCHI (138-111 B.C.)

133. Tiberius Sempronius Gracchus elected tribune. He proposes the resumption of "common lands" held by unauthorised persons and the revival of the Licinian law limiting the amount of such land to be occupied by one individual. By this means he hoped to mitigate the evils resulting from the concentration of these estates in the possession of a few persons. Tiberius obtains the illegal removal from office of the tribune Caius Octavius, who had vetoed the passing of the new (Sempronian) law, and that law is then passed by the popular assembly. Tiberius Gracchus, his brother Caius, and his father-in-law Appius Claudius appointed to carry out the decree. Attalus III king of Pergamus dies, making the Romans his heirs. Tiberius Gracchus proposes that the money shall be employed to start the new settlers on the resumed lands and that the kingdom of Attalus (the new province of Asia) shall be governed by the people instead of by the senate, who were legally entitled to the disposal of both land and money. Tiberius prepares other reforms, and in order to preserve and continue his work

becomes a candidate for re-election as tribune, in defiance of the law forbidding re-election. He opposes the aristocratic resistance by force and is killed with many of his adherents in the ensuing riot. 131. C. Carbo, the tribune, obtains a law permitting secret voting for the ratification of laws by the popular vote. Scipio Africanus Minor obtains the defeat of Carbo's measure to legalise the re-election of tribunes. 129. Aristonicus, a natural son of Attalus III of Pergamus, executed for making war against the Romans in assertion of his rights to his father's kingdom. C. Carbo, Gracchus, and Marcus Fulvius Flaccus triumvirs for the execution of the Sempronian law; Scipio contrives to obtain a limitation of their powers, which virtually suspends the law. 125. Fulvius Flavius becomes consul. He raises the question of admitting the Latins to the Roman citizenship, and is then sent to Transalpine Gaul to aid the Massiliots against the Gauls. Fregellæ revolts against the Romans and is destroyed. 124. Aquæ Sextiæ (Aix) founded in Gaul. 123. Caius Gracchus clears himself from the charge of instigating the revolt of Fregellæ. He succeeds in driving into exile Popilius Lænas, the survivor of the consuls of 132. Finding himself confronted by a powerful opposition, Caius endeavours to conciliate the people by means of the *lex frumentarii*, a law providing for the regular distribution of corn at the expense of the state. He originates the idea of provincial colonies. The *lex judiciaria* transfers judicial functions from the senate to the order of *equites*, the moneyed, as distinguished from the aristocratic class. This measure weakens the power of the senate but does not render the administration of justice less corrupt. By the *lex de provincia Asia*, C. Gracchus places that province at the disposal of the equites. Caius Gracchus re-elected tribune for a second year. 122. C. Gracchus goes to establish the colony of Junonia on the site of Carthage. In his absence M. Livius Drusus proposes the foundation of twelve colonies in Italy, a popular measure intended to divert the people's favour from Gracchus. C. Gracchus attempts to extend the rights of citizenship to the Latins but is defeated by the united efforts of the senate and the mob. War with the Allobroges and Arverni and Roman victory of Vindalum. 121. Death of Caius Gracchus. This is the result of a riot originating in a murder committed by a partisan of Gracchus. The latter with his adherents takes possession of the Aventine, from which they were driven by the aristocratic party. 120. Agrarian law forbidding the sale of lands allotted to the peasants, repealed. Popilius Lænas recalled. 118. Common lands secured to those in possession on

payment of a fixed tax. Narbo, afterwards the capital of the Narbonensis, founded. 113. Invasion of the Cimbrians. They defeat the consul Cn. Papirius Carbo at Noreia, and pass into Helvetia and Gaul. 111. Common lands in Italy declared to be the private property of those in possession. This date marks the final failure of the reforms of the Gracchi.

THE JUGURTHINE AND OTHER WARS (111-100 B.C.)

111. Outbreak of the Jugurthine War. This war was occasioned by the quarrel between the two kings of Numidia, Jugurtha and Adherbal. The latter appealed to Rome, and a commission appointed by the senate made a regular division of the kingdom between the two claimants. War again broke out between them, and Adherbal was besieged in his capital Cirta. It was taken and Adherbal put to death. Whereupon Rome declared war against Jugurtha. The consul Calpurnius concludes a treaty with Jugurtha which the senate refuses to sanction. 110. Aulus Albinus capitulates to Jugurtha with his whole army. 109. Battle of the Muthul; Metellus defeats Jugurtha. M. Junius Silanus defeated by the Cimbri in Gaul. 107. L. Cassius Longinus defeated by the Cimbri on the Garonne. Metellus defeats Jugurtha, who takes refuge in the desert. Bocchus, king of Mauretania, makes alliance with Jugurtha. C. Marius succeeds Metellus. He defeats Jugurtha near Cirta and takes Capsa and other towns. 106. L. Cornelius Sulla joins Marius. Jugurtha repulsed at Cirta. 105. Sulla induces Bocchus to betray Jugurtha. Numidia divided between Bocchus and Jugurtha's half-brother Gauda. The Cimbri defeat the Romans at Arausio (Orange). 104. Marius elected consul. Preparations for defence of Italy against the barbarians. The Cimbri cross into Spain. Marius reorganises the Roman army. 103. Marius again consul. Second Servile insurrection in Sicily under Tryphon, who assumes the title of king. 102. The Cimbrians, Teutones, and Helvetians approach Italy in two bands. Battle of Aquæ Sextiæ. Marius defeats the Teutones and Ambrones. Catulus abandons the country north of the Po to the Cimbri. 101. Battle of Vercellæ (Campi Raudii). Marius destroys the army of the Cimbri and thus saves Italy from the barbarians. Athenion, the successor of Tryphon, defeated and slain by the consul Manius Aquilius. The fugitives taken and killed to the number of thirty thousand.

CIVIL STRIFE: TIME OF MARIUS (100-86 B.C.)

100. Marius chosen consul for the sixth time. Saturninus coerces the assembly of the tribes into accepting a measure for distributing conquered lands among the soldiers of Marius, and containing a clause obliging the senate to confirm the law. Q. Metellus alone refuses to do so and goes into banishment. The popular party endeavour to secure the consulship for 99 to Glaucia. His supporters kill the rival candidate in the Forum. Marius interferes in the cause of order, attacks the rioters and captures Saturninus and Glaucia. While awaiting trial the popular leaders with many of their adherents are put to death by the aristocratic party. 99. Q. Metellus recalled. 98. Marius retires to Asia. 95. Rutilius Rufus falsely accused of extortion while legatus in Asia Minor and sent into banishment. This unjust sentence reveals the abuse of the judicial power in the hands of the equites. 92. Sulla as prætor in Cilicia restores the king of Cappadocia who had been expelled at the instigation of Mithridates, king of Pontus. 91. Marcus Livius Drusus tribune. He introduces laws: (a) taking the judicial power from the equites and restoring it to the senate, and (b) providing for a redistribution of lands. These laws, passed by the popular assembly, are declared invalid by the senate. Drusus proceeds to execute them and to introduce a measure for admitting Italians to the citizenship. Drusus dies suddenly. 90. Trials and banishment of the supporters of the Italians. The Social War (90-88). The Italians revolt from Rome and form a republic with Corfinium as its capital. They attack the Latin colonies. Venusia and several other cities fall into their hands before the Romans can take the field. Lucius Julius Cæsar, the consul, twice defeated by the Italians. Campania and Apulia fall into their hands. The consul Rutilius defeated and slain on the Tolenus. Marius fails to distinguish himself. Cn. Pompeius Strabo defeated and besieged in Firmum, from whence he attacks and routs the Italians. The year closes with the Italians on the whole successful and with news of disturbances in the provinces. Rome conciliates the Latins and the loyal Italians by granting them citizen rights. 89. The Romans repeatedly defeat the Italians. The *lex Plautia-Papiria* confers Roman citizenship on all Italians desiring it. They are enrolled in eight of the tribes. 88. Mithridates, king of Pontus, makes war on the king of Bithynia and defeats the Roman armies supporting the latter. The Greek cities of Asia join Mithridates and put to death all Italians found in them. Sulla appointed to command in the Mithridatic War. P.

Sulpicius, a partisan of Marius, proposes to enrol Italians in all the thirty-five tribes. Sulla opposes the measure. The popular assembly transfers the command in the Mithridatic War to Marius. Sulla joins his army in Campania and marches on Rome. Marius makes a fruitless attempt to defend the city, but fails and has to flee to Africa. Sulla deprives the popular assembly of the right to vote on measures not previously sanctioned by the senate. 87. Sulla proceeds to the war against Mithridates, lands in Epirus, drives Mithridates' generals from Bœotia, and besieges Athens, which had declared for the king of Pontus. Meantime the consul L. Cornelius Cinna endeavours forcibly to revive the laws of Sulpicius. He is expelled by the aristocratic party. In conjunction with Marius he raises an army in Campania and occupies Rome. Five days spent in slaughter and pillage. Cinna interferes and orders the bands of Marius to be cut to pieces. 86. Marius a seventh time consul. Death of Marius. His colleague Cinna continues his tyrannical government.

TIME OF SULLA (86-78 B.C.)

86. Athens taken by Sulla. Battle of Chæronea won by Sulla. 85. Battle of Orchomenos won by Sulla. Sulla proceeds to Asia by way of Macedonia and Thrace. Another Roman army under the auspices of the democratic party wins successes against Mithridates, its leader, Fimbria, conducting the war in a savage fashion. 85. Sulla concludes a peace with Mithridates, by which the king surrenders all his conquests. Fimbria's army goes over to Sulla. 83. Sulla returns and lands at Brundisium with a large force. He is joined by the young Cn. Pompeius (Pompey the Great). He guarantees the Italians the rights previously secured them, including that of voting in the thirty-five tribes. Battle of Mount Tifata. Sulla defeats the consul C. Norbanus. The army of the consul L. Scipio goes over to Sulla. In this year the second Mithridatic War began. It lasted till 81, and was carried on by the proprætor Murena, who invaded Pontus, and was there defeated by Mithridates. 82. The younger Marius and Papirius Carbo consuls. Battle of Sacriportus. Marius is defeated by Sulla and retires to Præneste, where he is besieged. The democratic leaders flee from Rome. Sulla enters Rome without opposition. Battle of the Colline Gate. The Samnites attack Rome and are repulsed with great slaughter. Many of the prisoners are massacred. Præneste falls. Suicide of Marius. Sulla displays great cruelty towards the

conquered cities of Italy. He becomes dictator for an indefinite period, to reorganise the government. Proscription lists are published, the proscribed butchered, and their property confiscated. Senate reorganised and its privileges increased. The power of the tribunes reduced. 80. Sertorius, a distinguished member of the democratic party who had made himself an independent ruler in Lusitania, maintains himself against Fufidius and Q. Metellus. 79. Sulla abdicates his power. 78. Death of Sulla.

TIME OF POMPEY (78-60 B.C.)

78. M. Æmilius Lepidus and Marcus Junius Brutus attempt to overthrow Sulla's constitution. Lepidus is twice defeated. 77. Brutus defeated and put to death by Pompey. 76. Sertorius defeats Pompey in Spain. 75. Isauria, Pamphylia, and Pisidia occupied for Rome in consequence of a war against the Mediterranean pirates. 74. Bithynia bequeathed to Rome by Nicomedes III. Third Mithridatic War. Mithridates occupies Bithynia. Battle of Chalcedon. Mithridates defeats the Roman general Cotta. Lucullus relieves Chalcedon and Cyzicus. 73. Lucullus drives Mithridates from his kingdom. Third Servile War. Gladiators, who had escaped from a school at Capua, place themselves under the command of Spartacus, a Thracian captive, and being joined by numbers of slaves, ravage Italy. 72. Sertorius murdered by Perperna. Pompey defeats and executes Perperna. 71. Spartacus defeated and slain by M. Licinius Crassus. Pompey destroys the fugitives. 72-70. Lucullus reduces the cities on the Pontic coast and invades Armenia. 70. Privileges of the tribunes restored. 69. Battle of Tigranocerta. Lucullus defeats Tigranes, king of Armenia, and (68) advances across the Euphrates, but is compelled to retreat owing to a mutiny. 67. Mithridates defeats the Roman general Triarius at Zela. Lucullus retreats. Mithridates reconquers Pontus and invades Bithynia and Cappadocia. Pompey receives supreme command of the Mediterranean and the disposal of all the resources of the Roman provinces and dependent states. In three months he succeeds in completely extirpating piracy, which had scourged the sea for many years. Pompey supersedes Lucullus and recovers Pontus. 66. Battle on the Lycus. Pompey defeats Mithridates. 65. Pompey makes an expedition against the Caucasian tribes. He goes to Syria. 64. Pompey proceeds to organise the provinces in Asia Minor. Catiline conspiracy. The united parties of the democrats under M. Crassus and C. Julius Cæsar and the anarchists under

L. Sergius Catilina conspire to secure the consulship for Catiline and C. Antonius. Antonius and M. Tullius Cicero elected. Antonius deserts his supporters. 63. Plan of Catiline to murder his rivals for the consulship of 63 and seize the power by force. Cicero discovers and defeats the plot. 62. Battle of Pistoria. Catiline defeated and slain. 61. Cæsar proprætor in Farther Spain. Pompey returns to Italy. The senate refuses to ratify his dispositions in Asia and to fulfil his request respecting lands for his veterans.

THE FIRST TRIUMVIRATE (60-49 B.C.)

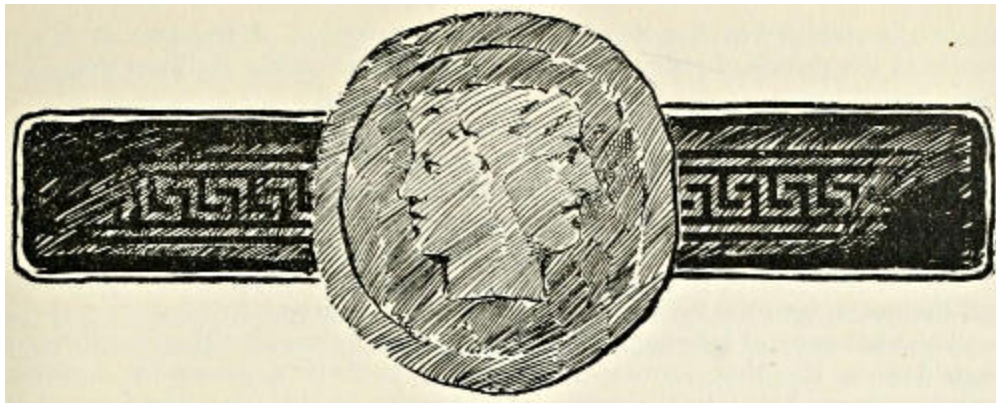
60. First triumvirate: a league between Pompey, Cæsar, and Crassus. 59. Cæsar's consulship. Pompey's dispositions in Asia ratified and a decree for the distribution of lands obtained from the popular assembly. The government of Gallia Cisalpina, Illyricum, and Gallia Narbonensis conferred on Cæsar for five years with extraordinary powers. 58. Cato appointed to take possession of Cyprus. Cicero driven into exile. The Helvetians invade Gaul and are crushed by Cæsar at Bibracte (Autun). Suevi under Ariovistus repulsed at Vesontio (Besançon). 57. Belgic tribes subjugated by Cæsar. Cicero and Cato return to Rome. 56. Veneti in Armorica subdued by Cæsar and the Aquitani by his lieutenant. Pompey and Crassus coerce the assembly into electing them as consuls for 55. Cæsar's command extended for another five years. 55. Cæsar crosses the Rhine and penetrates into Germany. Cæsar makes his first expedition to Britain. 54. Pompey delegates to his representatives the government of Spain, which had been conferred on him for five years. Crassus takes over the command of Syria. Cæsar makes a second expedition to Britain and encounters Cassivelaunus. 53. Battle of Carrhæ. Crassus defeated by the Parthians, and subsequently slain. Cæsar suppresses the revolt of the Eburones and other Gallic tribes. 52. P. Clodius, the partisan of the triumvirate, killed in a quarrel with T. Annius Milo. Consequent tumults. Pompey appointed sole consul to restore quiet. Vercingetorix leads a general revolt of the Gauls, which is suppressed by Cæsar after a hard contest. Breach between Cæsar and Pompey. 51. Cæsar completes the subjection and pacification of Gaul. 50. Cæsar's recall decreed by the senate.

DOMINATION OF JULIUS CÆSAR (49-44 B.C.)

49. Cæsar crosses the Rubicon. Pompey flees to Brundisium. Cæsar marches through Italy, compels Domitius to surrender at Corfinium and besieges Brundisium. Pompey passes over into Greece with his troops. Cæsar subdues Pompey's representatives in Spain. Curio subdues Sicily for Cæsar, wins the victory of Utica in Africa, and is defeated and slain at the Bagradas by the king of Numidia. Cæsar is proclaimed dictator at Rome, but abdicates and is appointed consul for 48. 48. Cæsar goes to Greece and is defeated by Pompey at Dyrrhachium. Cæsar defeats Pompey in the battle of Pharsalia, who flees to Egypt, where he is murdered. Cæsar lands in Egypt and interferes in the disputes for the throne. The people of Alexandria rise against Cæsar. Egyptian fleet burned by Cæsar's order. The great library perishes in the flames. Cæsar defeats the Egyptian army and establishes Cleopatra and her brother under Roman supremacy. 47. War with Pharnaces, son of Mithridates. Cæsar victorious in a five days' campaign. 46. Battle of Thapsus. Cæsar defeats and slaughters Pompey's adherents in Africa. Part of Numidia annexed to Africa. Death of Cato. Cæsar returns to Rome and is made dictator for ten years. Reform of the calendar. 45. Battle of Munda in Spain. Defeat and subsequent death of Pompey's eldest son. Final triumph of Cæsar. Cæsar now proceeds to various measures for organising public affairs. He extends the franchise, enlarges the senate, and makes appointments to it himself. He plants new colonies abroad, arranges for a survey of the empire, and plans a codification of the law. He makes various schemes for the construction and improvement of public works. He arrogates to himself the final decision in judicial cases. He abolishes the system of farming the taxes, institutes military reforms, and takes measures to curb the abuse of power by the provincial governors. The extensive powers which he possesses are exercised by right of the numerous offices and titles conferred on him. 44. Cæsar refuses the crown offered him at the Lupercalia. Murder of Cæsar by M. Junius Brutus, Decimus Brutus, Cassius, *etc.* Mark Antony incites the people against the conspirators. They take to flight. Mark Antony supreme in Rome. Mark Antony besieges Decimus Brutus in Mutina.

THE SECOND TRIUMVIRATE (44-30 B.C.)

43. The consuls and Cæsar's nephew, Caius Julius Cæsar Octavianus, sent against Antony by the senate. Battle of Mutina. Antony defeated. Octavian obtains the consulship and the condemnation of the conspirators. Decimus Brutus taken and put to death. The second triumvirate. Antony, Octavian, and Lepidus assume the supreme power. Proscriptions and confiscations. Murder of Cicero. 42. Battle of Philippi. Defeat and death of Brutus and Cassius. Antony meets Cleopatra at Tarsus. 41. War of Perusia between Octavian and the brother and wife of Antony respecting the distribution of lands to the veterans. Octavian makes himself supreme in Italy. 40. The triumvirs divide the empire between them. 39. Treaty of Misenum. The triumvirs grant Sicily, Sardinia, and Peloponnesus to Sextus, the surviving son of Pompey. Antony goes to Egypt. 38. Sicilian War between the triumvirs and Sextus Pompeius. 36. Battle of Naulochus. Defeat and flight of Sextus. Unsuccessful campaign of Antony against the Parthians. 34. Artavasdes, king of Armenia, defeated and captured by Antony. 31. Battle of Actium. Octavian defeats the fleet of Antony and Cleopatra. 30. Suicide of Antony and Cleopatra. Egypt made a Roman province. **Octavian** sole ruler of the Roman dominions.



CHAPTER I. LAND AND PEOPLE

The fundamental peculiarity of Roman history is the fact that it is the history, not of a country or, in the proper sense, of a nation, but of a city. In Egypt, Thebes was at one time dominant, and Memphis at another; the

supreme centre of Mesopotamia shifted between Babylon and Nineveh; whilst in Greece, Athens and Sparta long contested the supremacy. But in all these cases, with the possible exception of the Babylonian, the country as a whole gave its name to the people, and the city was, at best, only the heart of the civilisation; whereas Rome came into power as an isolated community within a little city, the very environs of which were at first hostile territory.

This city chanced to be located in Italy, but for some centuries the names “Roman” and “Italian” were in no sense synonymous. Indeed at an early date the main part of Italy was inhabited by people who were not at all under Roman dominion, and when the legions of Rome issued forth to conquer the territories and the little peninsula, the wars that led to this result had all the significance of foreign conquest. And when these conquests had spread beyond the bounds of Italy proper until, finally, they took in practically all of the civilised world that was worth conquering, except the Parthian kingdom in the far East, it was still the single city on the Tiber which was regarded as constituting the essence of the vast dominion; and the citizen who had come to share in the full rights and privileges of this vast domain needed no other specific designation than the single word “Roman.”

From the point of view of the ethnologist, Greeks and Romans had strong points of difference. The Greeks were dominated by a temperament perhaps more acute and sensitive than that of any other nation of the ancient world. They developed the fine arts in all their main branches—pottery, sculpture, architecture, grammar, and philosophy—to a height which has never been excelled by any subsequent people. But they paid the penalty of their sensibility and their versatility by an instability of purpose, a lack of civic discipline, which speedily worked their downfall.

The Romans developed comparatively little culture. Almost all the lasting monuments of the Romans were partly inspired by intercourse with the Greeks. On the other hand, as might have been expected of a people whose home was within the walls of a city, they were as eminent in the framing of laws, and in the art of government, as the Greeks were in the fine arts. The versatility and levity of the Greek, and his undisciplined life of individual freedom, ruined the nation of the noblest promise in all history. The virile stability of the Roman, and his conception of freedom as

subordinate to the duties of patriotism, made him master of the civilised world for many centuries.

To these two nations the world owes, perhaps, an equal debt. The peoples of modern Europe arose from the ruins of the Roman empire, and inherited from it the soundest laws and the best examples of government; which, in some respects, they have been able to improve upon; and, when they had progressed far enough in civilisation, they discovered the culture of the Greeks and developed it, each nation in accordance with its genius and its needs, into the civilisation of the later centuries.

The testimony of language has been accepted as proving that the Romans were Aryans, but that term itself has come to have a somewhat doubtful meaning, as we have already seen. The affinity of their language seems to make it clear that the Romans were more closely allied to the Greeks than to any other of their known contemporaries, and it has been assumed as proven that the ancestors of these two peoples remained in contact with each other long after their separation from the primitive Aryan swarm. But the problem in its entirety deals with many questions that are obscure in the extreme: just when or just how these supposititious Aryans migrated into Italy; what manner of people—what race even—they found there; to what extent they commingled ethnically with the races which they there met and conquered; these are all questions to which authentic history can give but the vaguest answers.^{[a](#)}

THE LAND OF ITALY

It is difficult in attempting a geographical sketch for the purpose of elucidating Roman history, to determine where we ought to begin and where to end. For during a long period we are hardly carried out of sight of the Capitol; and at the close of that period we are hurried with startling rapidity into the heart of every country, from the Atlantic to the mountains of Asia Minor, from the ridges of the Alps to the plains that lie beneath Mount Atlas. But since the origin and composition of the people we call Roman depend upon the early state and population of Italy at large, and since in course of time all Italians became Romans, it will be well to follow the usual custom, and begin with a geographical sketch of the Italian peninsula.

This peninsula, the central one of the three which stretch boldly forward from the southern coasts of Europe, lies nearly between the parallels of north latitude 38° and 46° . Its length, therefore, measured along a meridian arc, ought to be about 550 miles. But since, unlike the other two Mediterranean peninsulas, it runs in a direction nearly diagonal to the lines of latitude and longitude, its real length, measured from Mont Blanc to Cape Spartivento, is somewhat more than seven hundred miles.

To estimate the breadth of this long and singularly shaped peninsula, it may conveniently be divided into two parts by a line drawn across from the mouths of the Po to the northern point of Etruria. Below this line the average breadth of the leg of Italy does not much exceed one hundred miles. Above this line both coasts trend rapidly outwards, so that the upper portion forms an irregularly shaped figure, which lies across the top of the leg, being bounded on the north and west by the Alpine range from Illyria to the mouth of the Var, on the south by the imaginary line before drawn, and on the east by the head of the Adriatic Sea. The length of this figure from east to west is not less than 350 miles; while from north to south it measures, on the average, about 120 miles.

The surface of the whole peninsula, including both the leg of Italy and the irregular figure at the top, is estimated at about ninety thousand square miles, or an area nearly equal to the surface of Great Britain and Ireland. But a very large proportion of this surface is unproductive, and a great part even incapable of tillage.

The geographical features are simple. No deep gulfs and inlets are to be expected; for these are only found when mountain chains jut out into the sea, and maintain themselves as headlands, while the lower land between is eaten and washed away by the ceaseless action of the waves. Such phenomena are presented by Greece, and by the western coasts of Scotland, Wales, and Ireland. But in Italy there is but one uniform mountain chain. On the northern or Adriatic slope of the Apennines, indeed, a number of gorges open to the sea in a direction transverse to the main line of the mountains. But the projecting spurs which form these gorges are not considerable in height; and on the southern or Mediterranean side the main range sinks towards the sea in subordinate or secondary ranges, more or less parallel to the principal chain, and therefore seldom admitting of abrupt headlands with deep embrasures between. There is, however, one exception. At the

foot of Italy the central range forks off into two great branches, one running towards the toe of the peninsula, the other forming the heel. The low lands between these two ranges have been scooped out by the waves, and here has been formed the great Gulf of Tarentum, a vast expanse of sea, measuring from point to point no less than eighty miles. But except this great gulf, the coasts of the peninsula are indented by comparatively gentle curves. On the northern side the single inequality is presented by the projecting mass of Mount Garganus, which forms with the lower coast what is now called the Bay of Manfredonia. On the sole of the foot, below the Gulf of Tarentum, we find the Bay of Squillace (Sinus Scylacius). After passing the Straits of Messina, first occurs the Bay of St. Eufemia (Sinus Vibonensis), which is separated from that of Squillace by a mass of granitic rocks less than twenty miles in breadth. A little higher up we come to a wide sweep in the coast, known by the name of the Bay of Policastro.

That part of the southern coast which is most irregular deserves particular attention from the student of Roman history. Between the point where ancient Lucania borders on Campania, and that at which Latium begins, a distance of about 120 miles, the coast-line is broken into three fine bays, the Bay of Pæstum or Salerno on the south, the Bay of Gaeta on the north, and between them the smallest but most famous and most beautiful of the three—the Bay of Cumæ or Naples. From Cape Circello (Circeii), which forms the northern horn of the Bay of Gaeta, the coast-line runs onward to Genoa, unbroken save by the headlands of Argentaro and Piombino in Tuscany. But these do not project far enough to form any recess worthy to be named. Nor is the little Bay of Spezzia, just north of Tuscany, deserving of mention as a geographical feature.

The same circumstance which prevents Italy from abounding in deep bays and bold headlands also prevents its coasts from being studded with islands, which are but relics of projecting mountain chains. If we omit Sicily, which is in fact a continuation of the peninsula separated by a channel of two or three miles broad, and the Lipari islands, which are due to the volcanic action still at work beneath Etna and Vesuvius, the islands of Italy are insignificant. Capreæ (Capri) on the one hand, Prochyta (Procida) and Ischia on the other, are but fragments of the two headlands that form the Bay of Naples. Igilium (Giglio) and Ilva (Elba) stand in a similar relation to the headlands of Argentaro and Piombino. Besides these may be named

Pontiae (Ponza), Pandataria, with a few more barren rocks off the Bay of Gaeta, and a few even less important on the coast of Tuscany.

Except in northern Italy, which abounds in noble rivers, the narrowness of the peninsula forbids the existence of really large streams. Yet, the Apennine range, which forms on its southern side long parallel valleys, enables numerous torrents and rills which descend towards the south to swell into rivers of not inconsiderable size. Such especially are the Arno and the Tiber. Their waters are separated by the hills which terminate in the headlands of Argentaro and Piombino, so that the Arno flows northward, and enters the sea on the northern frontier of Tuscany, after a course of about 120 miles; while the Tiber runs in a southerly direction receiving the waters of the Clanis from the west, and those of the Nar (Nera) and Velinus from the east, till its course is abruptly turned by the Sabine hills. The entire length of its channel is about 180 miles. These two well-known rivers, with their affluents, drain the whole of Etruria, the Sabine country, and the Campagna of Rome.

Similar in their course, but on a smaller scale, are the Anio (Teverone) and the Liris. They both rise in the Æquian hills, the Anio flowing northward to swell the stream of the Tiber a little above Rome; the Liris, joined by the Trerus (Sacco) from the west, running southward so as to drain southern Latium and northern Campania, till it turns abruptly towards the sea, and enters it about the middle of the Bay of Gaeta, after a course of about eighty miles.

The Volturnus and the Calor run down opposite valleys from the north and south of the Samnite territory, till they join their streams on the frontier of Campania, and fall into the Bay of Gaeta only a short distance below the Liris. Both of these streams measure from their sources to their united mouth not less than one hundred miles.

The only other notable river on the western coast is the Silarus (Sele), which descends by a channel of about sixty miles from the central Apennines of Lucania into the Bay of Pæstum or Salerno. In the foot of Italy the mountains come down so close to the sea that from the mouth of the Silarus to the lower angle of the Gulf of Tarentum, the streams are but short and rapid torrents. Of these it is said that no fewer than eighty may be enumerated between Pæstum and the Straits of Messina. The Gulf of

Tarentum receives some streams of importance. The Bradanus and Casuentus (Basento) enter the gulf within four miles of each other after a course of about sixty miles. The Aciris (Agri) is to the south of these. The Siris (Sinno), notable as the scene of the first battle between Pyrrhus and the Romans, is a mere torrent, as is the Galesus upon which Tarentum stands.

The northern or Adriatic coast is almost devoid of lateral valleys, such as are found on the other coast, and therefore has few considerable streams. The Aufidus (Ofanto) in Apulia, renowned in Roman history from the fact that the fatal battle of Cannæ took place upon its banks, rises on the opposite side of the same range from which the Calor flows, and runs a course of about eighty miles. The Sagrus (Sangro) stands in the same relation to the Vulturnus as the Aufidus does to the Calor, and conveys the waters of the Fucine Lake from the Æquian hills through Samnium, by a nearly similar length of channel. But the largest river of this side is the Aternus, which finds its way from the Sabine hills into a valley parallel to the main range, and thus prolongs its course. It is joined by a number of smaller streams, and attains a considerable volume of water before it reaches the sea at the point where the Marrucian coast abuts on that of Picenum.

The whole coast from Mount Garganus northward is ploughed by numberless torrents which descend in rapid course down steep mountain gorges. Of these we need but name the Æsis between Picenum and Umbria; the Metaurus in Umbria, famous for the defeat of Hasdrubal; the Rubicon, which formed the boundary of Roman Italy on the northern side, as did the Macra (Magra) on the opposite coast.

The limestone mountain tract that occupies the whole narrow peninsula from the great valley of the Po downwards is often too steep, bare, and rugged to be capable of cultivation. There are, however, many rich plains of limited extent, among which Campania ranks first; and many narrow but fertile valleys, in which nature rewards the smallest labour with bountiful returns.

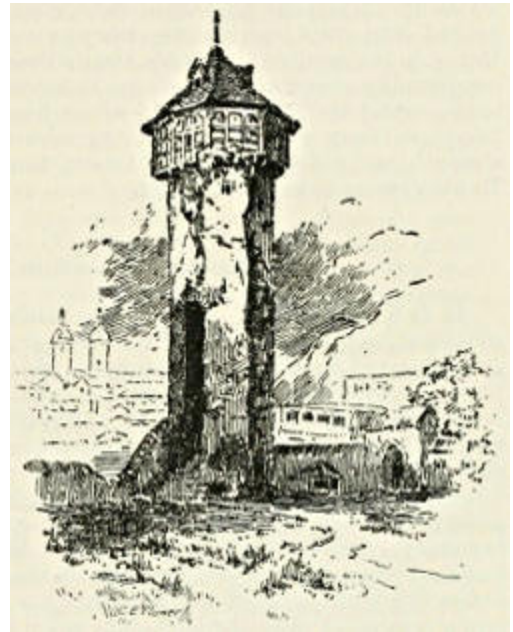
In speaking of lakes, we must resume our twofold division of the peninsula. On the Alpine slopes of the great valley of the Po, the granitic and ancient limestone rocks break into vast chasms at right angles to their

general direction, in which the waters of the rivers that flow downwards to join the Po accumulate and form those lakes so well known to all lovers of natural beauty. Such are Lake Benacus (Lago di Garda) formed by the waters of the Mincius; Larius (Lago di Como) by those of the Adda; Verbanus (Lago Maggiore) by those of the Ticino; not to mention the lakes of Lugano, Orta, and others, smaller, indeed, but hardly less beautiful.

But Apennine Italy, considering the great extent of its mountain districts, does not present many considerable lakes. Nor are these formed by the accumulated waters of rivers flowing through them, like the lakes of northern Italy or Switzerland. For the most part, like the lakes of Greece, they have no visible outlet, but lose their waters partly by evaporation, partly by underground fissures and channels. The Fucine Lake in the Æquian hills feeds the Sangro, and Lake Bradanus in the south feeds the river of the same name. But the celebrated Lake Trasimene in Etruria, and the lakes of the volcanic district, as the “great Volsinian Mere,” the lakes of Alba, Nemi, Amsanctus, and others, have no visible outlet. These, in fact, are the craters of extinct volcanoes. Roman history contains legends which relate to the artificial tapping of these cauldrons; and some of the tunnels cut through their rocky basins still remain.

The abundance of water which is poured over the hills is apt to accumulate in marshy swamps in the low districts towards the sea. Such is the case along the lower course of the Po, on the coast lands of Tuscany, and in the lower part of the Campagna of Rome. Mantua, which stands a little above the junction of the Mincio with the Po, is surrounded by marshes; and the whole coast between Venice and Ravenna is a swamp.

To keep the Po and its tributaries within their channels, the Lombards of the Middle Ages raised embankments on either side of the stream. But these embankments cause the rivers to deposit the whole of the mud with which



ANCIENT ROMAN TOWER NEAR ROME

they are charged within their channels, and the quantity thus deposited is so great that it is necessary to raise the embankments continually. Hence, in the course of centuries, the bottoms of the rivers have been elevated considerably above the plains; so that the streams of Lombardy in their lower course are in fact carried along huge earthen aqueducts. In time, human industry will not be equal to raise these embankments in sufficient strength, and a deluge will ensue more fearful than those which the poet of Mantua seems to have witnessed.

EARLY POPULATION OF ITALY

It is a common remark that mountains are the chief boundaries of countries, and that races of men are found in their purest state when they are separated by these barriers from admixture with other tribes. Italy forms an exception to this rule. It was not so much the “fatal gift of beauty,” of which the poet speaks, as the richness of its northern plain, that attracted successive tribes of invaders over the Alps. From the earliest dawn of historic knowledge, we hear of one tribe after another sweeping like waves over the peninsula, each forcing its predecessor onward, till there arose a power strong enough to drive back the current, and bar aggression for many an age. This power was the Roman Empire, which forced the Gauls to remain on the northern side of the Apennines, and preserved Italy untouched by the foot of the foreigner for centuries. No sooner was this power weakened, than the incursions again began.

But if the northern barriers of the peninsula failed to check the lust of invaders, its long straggling shape, intersected by mountains from top to bottom, materially assisted in breaking it up into a number of different nations. Except during the strength of the Roman Empire, Italy has always been parcelled out into a number of small states. In the earliest times it was shared among a number of tribes differing in race and language. Great pains have been taken to investigate the origin and character of these primeval nations. But the success has not been great, and it is not our purpose to dwell on intricate questions of this kind. We shall here only give results so far as they seem to be established.

It is well known that it was not till the close of the republic, or rather the beginning of the empire, that the name of Italy was employed, as we now

employ it, to designate the whole peninsula, from the Alps to the Straits of Messina. The term Italia, borrowed from the name of a primeval tribe which occupied the southern portion of the land, was gradually adopted as a generic title in the same obscure manner in which most of the countries of Europe, or (we may say) the continents of the world have received their appellations. In the remotest times the name only included lower Calabria; from these narrow limits it gradually spread upwards, till about the time of the Punic Wars its northern boundary ascended the little river Rubicon (between Umbria and Cisalpine Gaul), then followed the ridge of the Apennines westward to the source of the Macra, and was carried down the bed of that small stream to the Gulf of Genoa.

But under Roman rule even this narrower Italy wanted that unity of race and language which, in spite of political severance, we are accustomed to attribute to the name. Within the boundaries just indicated there were at least six distinct races, some no doubt more widely separated, but all marked by strong national characteristics. These were the Pelasgians, the Oscans, the Sabellians, the Umbrians, the Etruscans, and the Greeks.

It is certain that in primitive times the coasts and lower valleys of Italy were peopled by tribes that had crossed over from the opposite shores of Greece and Epirus. These tribes belonged to that ancient stock called the Pelasgian, of which so much has been written and so little is known. The names that remained in southern Italy were practically all of a half-Hellenic character. Such were, in the heel of Italy, the Daunians and Peucetians (reputed to be of Arcadian origin), the Messapians and Salentines; to the south of the Gulf of Tarentum, the Chaonians (who are also found in Epirus); and in the toe the Ænotrians, who once gave name to all southern Italy. Such also were the Siculians and other tribes along the coast from Etruria to Campania, who were driven out by the invading Oscan and Sabellian nations.

The Oscan or Opican race was at one time very widely spread over the south. The Auruncans of lower Latium belonged to this race, as also the Ausonians, who once gave name to central Italy, and probably also the Volscians and the Æquians. In Campania the Oscan language was preserved to a late period in Roman history, and inscriptions still remain which can be interpreted by those familiar with Latin.

The Umbrians at one time possessed dominion over great part of central Italy. Inscriptions in their language also remain, and manifestly show that they spoke a tongue not alien to the Latin. The irruption of the Sabellian and of the Etruscan nations was probably the cause which broke the power of the Umbrians, and drove them back to a scanty territory between the Æsis, the Rubicon, and the Tiber.

The greatest of the Italian nations was the Sabellian. Under this name we include the Sabines, who are said by tradition to have been the progenitors of the whole race, the Samnites, the Picenians, Vestinians, Marsians, Marrucinians, Pelignians, and Frentanians. This race seems to have been naturally given to a pastoral life, and therefore fixed its early settlements in the upland valleys of the Apennines. Pushing gradually along this central range, the mountaineers penetrated downwards towards the Gulf of Tarentum; and as their population became too dense to find support in their native hills, bands of warrior youths issued forth to settle in the richer plains below. Thus they mingled with the Opican and Hellenic races of the south, and formed new tribes, known by the names of Apulians, Lucanians, and Campanians. These more recent tribes, in turn, threatened the great Greek colonies on the coast, of which we shall speak presently.

We now come to the Etruscans, the most singular people of the peninsula. This people called themselves Rasena, or Rasenna—a name that reminds us of the Etruscan surnames Porsenna, Vibenna, Sisenna. At one time they possessed not only the country known to the Romans as Etruria (that is, the country bounded by the Macra, the central Apennine ridge, and the Tiber), but also occupied a large portion of Liguria and Cisalpine Gaul; and perhaps they had settlements in Campania. In early times they possessed a powerful navy, and in the primitive Greek legends they are represented as infesting the Mediterranean with their piratical galleys. They seem to have been driven out of their trans-Apennine possession by early invasions of the Gauls; and their naval power never recovered the blow which it received in the year 480 B.C., when Gelo, tyrant of Syracuse, defeated their navy, combined with that of Carthage, on the same day on which the battle of Salamis crippled the power of Persia.^[2]

But who this people were, or whence they came, baffles conjecture. It may be assumed as certain, that Hellenic settlers came in by sea from the western coasts of Epirus, which are distant from Italy less than fifty miles;

and that the Opican, Umbrian, and Sabellian races came in from the north by land. But with respect to the Etruscans all is doubtful. One well-known legend represents them as Lydians, who fled by sea from Asia Minor to avoid the terrible presence of famine. Another indicates that they came down over the Alps, and the origin of their name Rasena is traced in Rætia. On the former supposition, Etruria was their earliest settlement, and, pushing northward, they conquered the plain of the Po; on the latter, they first took possession of this fertile plain, and then spread southward over the Apennines.

Their language, if it could be interpreted, might help to solve the riddle. But though characters in which their inscriptions are written bear close affinity to the Greek and Roman alphabets, the tongue of this remarkable people has as yet baffled the deftest efforts of philology.

Of the Greek settlements that studded the coast of lower Italy, and gave to that district the name of Magna Græcia, little need here be said. They were not planted till after the foundation of Rome. Many of them, indeed, attained to great power and splendour; and the native Osco-Pelasgian population of the south became their subjects or their serfs. Sybaris alone, in the course of two centuries, is said to have become mistress of four nations and twenty-five towns, and to have been able to raise a civic force of 300,000 men. Croton, her rival, was even larger. Greek cities appear as far north as Campania, where Naples still preserves in a corrupt form her Hellenic name, Neapolis. The Greek remains discovered at Canusium (Canosi) in the heart of Apulia, attest the extent of Hellenic dominion. But the Greeks seem to have held aloof from mixture with the native Italians, whom they considered as barbarians. Rome is not mentioned by any Greek writer before the time of Aristotle (about 340 B.C.).

From the foregoing sketch it will appear that Latium formed a kind of focus, in which all the different races that in past centuries had been thronging into Italy converged. The Etruscans bordered on Latium to the west; the Sabines, with the Umbrians behind them, to the north; the Æquians and Volscians, Oscan tribes, to the northeast and east; while Hellenic communities are to be traced upon the coast lands. We should then expect beforehand to meet with a people formed by a commixture of divers tribes; and this expectation is confirmed.

Tradition tells us that the aborigines of Latium mingled in early times with a people calling themselves Siculians; that these Siculians, being conquered and partly expelled from Italy, took refuge in the island, which was afterwards called Sicily from them, but was at that time peopled by a tribe named Sicanians; that the conquering people were named Sacranians, and had themselves been forced down from the Sabine valleys in the neighbourhood of Reate by Sabellian invaders; and that from this mixture of aborigines, Siculians, and Sacranians arose the people known afterwards by the name of Latins. Where all is uncertain, conjecture is easy. But all conjectures bear witness to the compound nature of the Latin nation.^b

BEGINNINGS OF ROME AND THE PRIMITIVE ROMAN COMMONWEALTH

About fourteen miles upstream from the mouth of the river Tiber, and on either bank of the latter, rise gentle slopes, the higher on the right, the lower on the left; to the latter for at least two and a half thousand years the name of the Romans has been affixed. It cannot, of course, be positively declared how and when it arose, it is only certain that in the oldest form of the name known to us, the inhabitants of the province were not called Romans but—with a change of pronunciation natural enough in the more ancient stages of a language but not continued in the Latin known to us—Ramnians or Ramnes; an eloquent witness to the immemorial antiquity of this name. The exact derivation cannot be determined; it is possible that the Ramnes are the people of the stream. But they did not dwell alone on the bank of the Tiber. In the oldest classification of the Roman citizens, we find traces showing that the nation derived its origin from the fusion into a single commonwealth of three once apparently independent tribes, the Ramnes, the Tities, and the Luceres: that is, from a *synoikismos* like that whence Athens arose in Attica.^[3]

Again, after the union, each of these three ancient communities, which had now become demes, owned a third of the common lands, and was similarly represented in the militia as well as in the council of the elders, whilst in the religious organisation the numbers of the six vestal virgins, the three high priests of Jupiter, Mars, and Quirinus, are apparently to be referred to this threefold division.

The most wanton absurdities have been founded on the existence of the three elements into which the ancient Roman commonwealth was divided; the irrational idea that the Roman nation was a mixed race is connected with it, and its supporters labour in various ways to represent the three great Italian races as the component elements of ancient Rome, and to transform the people which developed its speech, its government, and its religion with a purity and national spirit attained by few others, into a confused mass of Etruscan, Sabine, Hellenic, and, still worse, even Pelasgic elements. Setting aside the sometimes contradictory, sometimes groundless hypotheses, all that can be said concerning the nationality of the various elements of the ancient Roman commonwealth may be summed up in a few words. That the Ramnes were of Latin origin cannot be doubted, since they gave their name to the new Roman commonwealth and maintained the chief place amongst the three tribes, so that they must have decided the nationality of the united community.

As to the descent of the Luceres, nothing can be said except that there is no obstacle to their being regarded as a Latin tribe like the Ramnes. On the other hand the second of these tribes is unanimously derived from that of the Sabines, doubtless on the authority of a respectable and authentic tradition of the "Titian brotherhood" which claimed to have been founded on the admission of the tribe to the confederacy for the preservation of its peculiar national ritual. Traces of such an aboriginal Sabine worship are in fact to be found in Rome; as for instance the honouring of Maurs or Mars and of Semo Sancus, side by side with the corresponding Latin *Dius Fidius*. It was at a very remote period, when the Latin and Sabine tribes were yet unquestionably far less distinctly unlike in language and customs than were the Roman and the Samnite later, that a Sabellian community entered into a Latin tribal union; exactly in the same way that some centuries afterwards the Sabine clan of Attus Clanzus, or Appius Claudius, and his clients emigrated to Rome, obtained a grant of land on the right bank of the Anio and was soon completely absorbed into the Roman community.



DEATH OF REMUS

(From a picture by Mirys)

A fusion of various nationalities did of course take place; but we are not therefore justified in counting the Romans amongst mixed peoples. With the exception of isolated national institutions transplanted into the ritual, the existence of Sabellian elements is never manifested in Rome, and in especial the Latin tongue affords no support to such an hypothesis. It would indeed be more than surprising if the addition to the Latin nation of a single tribe from one of the races nearest allied to the Latin, had affected its nationality in perceptible fashion; and in addition it must by no means be forgotten that, at the time when the Titians settled near the Romans, the Latin nationality had its headquarters at Latium, not at Rome. The new threefold Roman commonwealth was, in spite of its quickly assimilated Sabellian element, just what the tribe of the Ramnes had been—a part of the Latin nation.

Long before an urban settlement rose on the Tiber, those Ramnes, Titians, and Luceres may have had their township on the Roman hills and tilled their fields from the surrounding villages, at first separately and afterwards in concert. The festival of the wolf, *lupercalia*, which the family of Quinctii

celebrated on the Palatine Hill, may be a tradition of this earliest time; it was a festival of peasants and shepherds which preserves the homely sports of patriarchal simplicity in a way equalled by none other, and remarkably enough was the one of all the heathen festivals which survived for a time in Christian Rome.

From these settlements, then, sprang the later Rome. Of the actual foundation of the town as the legend relates it, we cannot of course in any sense speak; Rome was not built in a day. It is, however, well worth considering by what means Rome could have attained to her eminent political position in Latium, when the nature of the locality would rather lead us to an opposite expectation. The site on which Rome stands is less healthy and less fertile than that of most old Latin towns. The vine and the fig tree do not thrive in the immediate neighbourhood of Rome, and there is a lack of bountiful springs—for neither the excellent fount of Camenæ before the Porta Capena, nor the Capitoline well, afterwards enclosed in the Tullianum, yields much water. To all this was added the frequent overflowing of the river, which, owing to its very slight incline, was unable during the rainy season to carry seaward the copious influx from the mountain streams with speed enough to prevent its flooding the valleys and low tracts of land which opened between the hills, and reducing them to a mere marsh. The place is by no means alluring to the settler and even in ancient times it was said that it could not have been its fitness for colonisation which attracted the first immigrant farmers to that unhealthy and infertile spot in a favoured district; but that necessity, or rather some other very special reason, must have prompted the building of the town.

The strangeness of the choice is acknowledged even in the legend; the tale of the foundation of Rome by refugees from Alba, under the leadership of the Albanian princes Romulus and Remus, is nothing but a naïve attempt of early quasi-history to explain the strangeness of the establishment of the city on so unfavourable a site, and at the same time to connect the origin of Rome with the common metropolis of Latium. It is especially from such fairy tales which purport to be history and are nothing but inventions made on the spur of the moment and not particularly clever, that serious history has to disencumber itself; but perhaps it is permissible to go a step further, and after considering the special features of the neighbourhood, to advance

a positive theory, not as to the origin of the place, but as to the cause of its swift and astonishing prosperity and of its peculiar position in Latium.

Let us look first at the ancient boundaries of the Roman territory. To the east the towns of Antemnæ, Fidenæ, Cænina, Collatia, and Gabii lie in the near neighbourhood, some of them not five miles distant from the gates of Servian Rome; the boundary of the province must consequently have been hard by the city gates. Fourteen miles to the south we come on the powerful communities of Tusculum and Alba, and here the Roman territory seems not to have extended farther than to the Fossa Cluilia, five miles from Rome. Similarly, in the southwesterly direction, the boundary between Rome and Lavinium was already encountered at the sixth milestone.

Whilst on the land side the Roman province was everywhere confined to the narrowest possible limits, on the other hand, from the earliest times it stretched uninterruptedly along both banks of the Tiber in the direction of the sea; and no place representing an ancient provincial centre nor any sort of trace of an ancient provincial border is encountered between Rome and the coast. It is true that legend, which can assign an origin for everything, is here also able to inform us that the Roman possessions on the right bank of the Tiber, the “seven hamlets” (*septem pagi*), and the important salt-works at its mouth were taken by King Romulus from the Veientes, and that King Ancus fortified the *tête de pont*, the “Mount of Janus” (*Janiculum*), on the right bank of the Tiber, and on the left laid the foundation of the Roman Piræus, the harbour town at the “mouth” (*ostia*) of the river. But on the other hand the fact that the possessions on the Etruscan bank must have belonged to the very earliest Roman territory is attested by a better witness, namely by the grove of the creative goddess (*Dea Dia*) which stood in this very place, at the fourth milestone of the road subsequently made to the harbour, and was the original high place of the Roman Arval festival and Arval brotherhood. Indeed, from time immemorial, the clan of the Romilii, probably the most distinguished among all the Roman clans, had its seat here; the Janiculum was a part of the town itself and Ostia a citizen colony, that is, a suburb. This cannot have been mere chance. The Tiber was the natural highway of Latium, and its mouth, on a coast so poorly provided with harbours, was the necessary place of anchorage for ships.

Moreover, the Tiber formed, from the earliest times, the frontier defence of the Latin stock against their northern neighbours. No place is better

qualified than Rome to be both the *entrepôt* of the Latin river and sea commerce and the frontier fortress of Latium. She combined the advantages of a strong position and the immediate neighbourhood of the river; she commanded both banks of the stream down to its mouth; she was equally convenient for the river-ships descending the Tiber or the Anio or, in those days of moderate-sized vessels, for those designed for the sea; and she afforded better protection against pirates than the towns lying immediately on the coast. That it was to these commercial and strategical advantages that Rome owed, if not her origin, at least her importance, numerous proofs are forthcoming, which are of far greater importance than the data furnished by historical romances. With these are connected her early relations with Cære, which was to Etruria what Rome was to Latium, and consequently became the city's closest neighbour and commercial ally; thence came the extraordinary importance of the bridges over the Tiber, and of bridge building generally in the Roman commonwealth, and hence the galley in the city arms.

This was also the origin of the ancient Roman harbour dues, which were originally imposed only on goods for sale (*promercale*), and not on those which passed to and from Ostia for the shipper's own use, and thus were really a tax on trade. And hence, to anticipate, arose the relatively early appearance of coined money in Rome and the commercial treaties with states over-sea. Thus, from this point of view at any rate, Rome may be regarded as the legend implies, rather as a created than a gradually developed town and rather as the youngest than the oldest of the Latin towns. Doubtless the land had been already to some extent brought under cultivation and towns planted on the Alban hills as well as many other heights of the surrounding country when the Latin frontier emporium rose on the Tiber.

Whether it was a decree of the Latin confederacy, or the genius and insight of some unknown founder, or the natural development of commerce, which called the city of Rome into existence, we have not even grounds to conjecture. But there is another point to be observed in connection with the position of Rome as the emporium of Latium. When history begins to dawn upon us Rome stands in contrast to the league of the Latin communities as a single enclosed city. The Latin custom of dwelling in open villages and only using the common town as a fortress and place of assembly or in time of

need, was, in all probability, far sooner restricted in the Roman province than anywhere else in Latium. Not that the Roman had ceased to manage his farm himself, or to regard it as his real home; but already the unhealthiness of the country air had had the effect of inducing him to fix his abode on the more airy and healthy heights of the town; and with the farmers a numerous non-agricultural population of foreigners and natives must have been established there for a long time. This to some extent accounts for the dense population of the Roman territory, which at most can only be reckoned as extending over 115 square miles of soil, part of it marsh and sand, and yet, according to the city's oldest constitution, furnished a city militia of thirty-three hundred freemen, and therefore must have counted at least ten thousand free inhabitants.

But there is something more. Everyone acquainted with the Romans and their history is aware that the peculiarity of their public and private existence lies in their municipal and commercial life, and that the distinction between them and other Latins, and Italian nations generally, is before all the distinction between the citizen and the farmer. It is true that Rome was not a mercantile city like Corinth or Carthage; for Latium is an essentially agricultural district and Rome was, and remained, above everything a Latin town. But the distinction of Rome above the crowd of other Latin towns must still be referred to her commercial position and to the influence of that position upon the character of her citizens. If Rome was the emporium of the Latin district, it is easy to understand that here, over and above the Latin husbandry, a vigorous municipal life quickly developed itself and so laid the foundation of her pre-eminence. The tracing of the course of this mercantile and strategic development of the city of Rome is far more important and far easier than the thankless task of making a chemical analysis of the insignificant and very similar communities of antiquity; we can follow this development to some extent in the traditions concerning these successive walls and fortifications of Rome, whose erection must have gone hand in hand with the advance of the Roman commonwealth to importance as a city.

Both in former and recent times many attempts have been made to give an historical character to the legend that the three different communities which composed the ancient Roman nation once dwelt within separate walls on the Seven Hills; but the scientific inquirer is obliged to banish it to

the same regions as the battle of the Palatine and the graceful story of Tarpeia.

There exists, it is true, a real and very decided distinction between the fortification of the Capitol and the erection of the town walls. The Capitol is in name and fact the Acra of Rome, the town with one gate and a town fountain, the carefully fenced “spring house” (tullianum). That this fortification dates far back to a time when as yet there was no settlement at all in this neighbourhood, is shown by a custom which was scrupulously observed down to a late period, and according to which private houses did not and perhaps were not allowed to stand on the twin peaks of the Capitol.

On the other hand the town contained a treasure chamber with the archives, the prison, and the oldest place of assembly for the councillors as well as the citizens. The space between the two peaks of the Capitoline Hill, the sanctuary of the angry Jupiter (*Vediovis*) or as it was called in the later hellenising period, the Asylum, was covered with a wood and evidently originally intended to shelter the peasants and their flocks when flood or war drove them from the plain.

In Rome, as everywhere else, the urban settlement must have begun not within but below the citadel; when it was considerable enough to call for the protection of a wall and moat, the town proper first came into being outside the Capitol, and to this, again, suburbs were added, and as these also prospered and required to be defended, new walls were added and in the marshes a new dike, until a whole series of such separate circumvallations surrounded the citadel. It was the memory of this which was preserved in the “festival of the Seven Hills” (*Septimontium*), whose celebration was continued long after the ancient fortifications had ceased to exist.

The “seven circles” are the Palatine; the Cermalus, a branch of the Palatine extending towards the swamp (Velabrum) which in early days stretched between it and the Capitol; the Velia, the ridge which connected the Palatine with the Esquiline and afterwards almost completely disappeared owing to the constructions erected under the empire; the three summits of the Esquiline, Oppius, Cispius, and Fagutal; and finally the Secusa or Subura, an ingenious stronghold on the low ground between the Capitol, the Esquiline, and the Palatine. It is obvious that these walls did not spring up all at once. According to credible witnesses the oldest

constructions only embrace the Palatine or the primitive Rome, called at a later period “the square” (*Roma quadrata*) from the shape of the Palatine Hill which was that of an irregular square. The gates and walls of this ancient urban circle remained visible down to the time of the empire; the position of two of them, namely the Porta Romana, near S. Giorgio in Velabro, and the Porta Mugionis at the arch of Titus, are still known to us, and the wall encircling the Palatine is even described by Tacitus from his own observation, at least on the side facing the Aventine and the Cælian. Although, of course, the earliest seat of the trade of the community was not here but at the citadel, still there are sufficient indications to show that this was the centre and the original seat of the urban settlers. On the Palatine was to be found its holy symbol, the so-called “outfit vault” (*mundus*) in which they had deposited all the requisites of a household and added a handful of their beloved native earth. Here too stood the building in which the *curiæ* assembled, each at its own altar, for religious and other purposes (*curiæ veteres*). Here too was the sanctuary of “the wolves” (*lupercal*), the house of assembly for “the leapers” (*curia saliorum*), and the dwelling of Jupiter’s priest. It was on and round this hill that the legend of the founding of the city was principally localised, and the believer was shown the straw-covered house of Romulus, the shepherd’s hut of his foster-father Faustulus, the holy fig tree on to which the coffer containing the twins was driven, and other similar relics.

The Palatine was, and remained, the most aristocratic quarter of the city and therefore subsequently gave its name to the first Servian district. The oldest offshoots may have been the settlement on the branch of the Cermalus and the Velian heights, both of which were immediately connected with the Palatine and, under the Servian division of the town, were apparently included in the Palatine quarter. The position of the suburb on the Cermalus, between the town wall and that of the citadel, as well as the designation of the principal street by the name of “the Tuscan,” seems to indicate that this settlement was not voluntary but reserved for the custody of colonists of foreign race.

Beyond this there was a settlement on the Carinæ, the farthest summit of the Esquiline, with the fortress for defence against the Sabines in the valley of the Subura; this afterwards became the second Servian quarter. At that time the Esquilæ (which did not properly speaking include the Carinæ)

formed, as the name signifies, a suburb (*exquiliæ*, the same as *inquilinus*). That the town should have extended itself in this direction is explained by the simple fact that the people remained on the heights, especially on the Palatine and the Velian, avoiding both the isolated hills and the swampy and wholly defenceless valleys which lay between. At a later time the suburb was included in the town, and under the Servian division it became the third quarter.

The “bridge of piles” (*pons sublicius*) thrown across that natural pier, the island in the Tiber, and the *tête de pont* on the Etruscan shore, the citadel of the Janiculum, remained outside the fortifications of the “Seven Hills.” And as, for military reasons, it was necessary to be able to break down or burn the bridge at the shortest notice, there arose a fixed rule which down to a very late period was observed as a traditional religious law, that no iron could be used in the construction of the bridge, but only wood. Thus a town came into being, but nevertheless the real and complete amalgamation of the various bodies which formed the settlement was not yet effected. As there was no common city altar, but the separate altars of the different curies merely stood side by side in the same neighbourhood, so not only did the distinction between citadel and town continue, but the seven circles themselves were rather a collection of urban settlements than a united town until the gigantic defensive works, ascribed to King Servius Tullius, surrounded the inner and outer city and the open suburbs with a single great wall. But before these strong works were set in hand, the position of Rome in relation to the surrounding district had doubtless entirely changed.

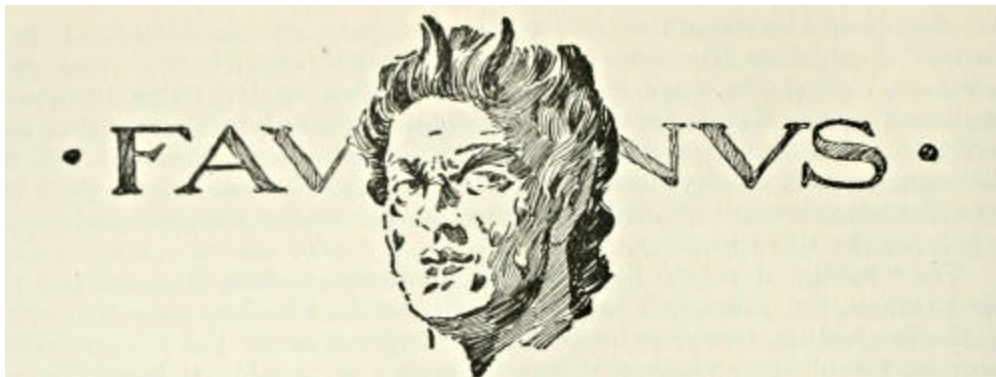
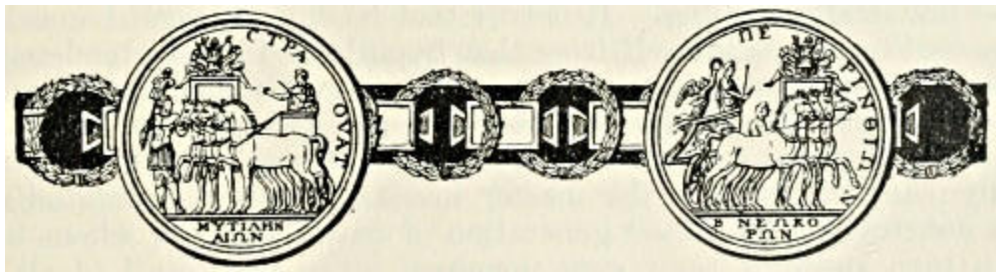
As the primitive uncommercial and inactive epoch of the Latin stock corresponds to the period in which the husbandman drove the plough on the Palatine as well as over the other hills of Latium, and the place of refuge on the Capitol, which in ordinary times stood empty, presented only the commencement of a fortified settlement; and as later the flourishing settlement on the Palatine and within the seven circles coincides with the occupation of the estuary of the Tiber by a Roman community and generally with the progress of the Latins to a free and active intercourse, and urban civilisation especially in Rome, and indeed to a firmer political consolidation both of the separate states and of the confederacy; so does the establishment of a single great city by means of the Servian rampart belong

to that epoch in which the city of Rome was enabled to contend for the supremacy of the Latin confederacy and finally to get the upper hand.^c

FOOTNOTES

[2] [The decisive overthrow of the Etruscans was achieved by Hiero, his successor, in a battle fought off Cumæ in 474.]

[3] [Meyer^d thinks it probable that the Roman (like the four Ionic) tribes were an artificial division patterned after a pre-existing ethnic scheme.]



CHAPTER II. EARLY LEGENDS OF ROME—ÆNEAS AND ROMULUS

It is not easy to determine between either the facts or the writers, which of them deserves the preference: I am inclined to think that history has been much corrupted by means of funeral panegyrics and false inscriptions on statues; each family striving by false representations to appropriate to itself the fame of warlike exploits and public honours. From this cause, certainly, both the actions of individuals and the public records of events have been confused. Nor is there

extant any writer, contemporary with those events, on whose authority we can certainly rely.—LIVY.

According to the legends immortalised by Virgil^f if not by Livy,^c Æneas, escaping from Troy, after its destruction by the Greeks (as narrated in the Homeric poems), fled to Italy, and there became the progenitor of the people afterwards to be known as the Romans. So firmly stamped did this legend become in classical literature that few or no writers share even Livy's polite scepticism. For many centuries after the Roman Empire itself had passed away, the fabulous stories of the foundation of Rome were repeated by one generation after another of historians, as unequivocal fact.

It was only about a century ago, in an age of scepticism, that an iconoclastic critic arose to lay rude hands upon the time-honoured stories. This critic was the German Niebuhr.^e He analysed legends not alone of the foundation, but of the supposed early history of Rome, and reached the indubitable conclusion that the familiar stories of early Roman kings and heroes were little better than pure fictions.

The work which Niebuhr began has been carried on by a school of successors, until it must be said that the entire fabric of once-accepted early Roman history has been torn into shreds. And in its place has been substituted—practically nothing. It is true that Niebuhr himself, iconoclast that he was, could not free himself from that hypothesis-forming tendency which is the heritage of all active minds, and put forward many prosaic guesses at the truth as substitutes for the old-time poetical guesses which he had dethroned. But these latter-day hypotheses, though accepted for the moment by many disciples of the master historian, have been treated with far scantier courtesy by the newer generation of critics, many of whom, however, have in turn supplied their own surmises. The net result of all the researches of the past century, and of all the surmises with which these researches have been supplemented, is to leave us practically without any acceptable hypothesis, except perhaps a meagre though consistent outline of institutional and civic development.

And scarcely less vague are the outlines of the story of the early growth of Rome, and of its internal government and external accomplishments during some centuries of its undoubted existence. That it was ruled in the early days by kings, has been accepted on the basis of universal tradition,

but it can scarcely be said that any one of these kings is to be regarded to-day as a known historic personage. We are not even sure as to the time when the kings were banished and a republican form of government supplanted the monarchy, though the accepted dates ascribe this transition to the year 509 B.C.—which, curiously enough, was the time of the banishment of the Pisistratidæ from Athens. If this date be accepted, it would seem that the evolution of political ideas in Greece was curiously paralleled by the growth of the same spirit in Rome, and it would follow that the civilisations of the two peoples were more closely contemporaneous than they are usually considered to have been.

But the true fruitage of a nation is found in the permanent works which it transmits to posterity, and judged by this standard Rome surely did not come to its prime until Greece was on the path of its decadence. It may be true that Rome banished her kings and came under republican sway almost as early as Athens; but the Greek city had had a far longer preparation and burst at once into its full bloom of civilisation, as evidenced in the “Age of Pericles,” whereas the Roman civilisation had still to pass through many generations of development before it began to produce those lasting records which mark the difference between tradition and history. Even so, however, the gap in time between the Grecian and the Roman periods was not very great—there were but three centuries between Alexander and Cæsar. And in the time of the later emperors the two civilisations were curiously merged in the East, where the whole aspect of the Roman court became Grecian, and the Greek language even became the official medium of communication throughout the remnants of the Roman Empire.

Of these later phases of the development and decay of the Roman Empire, abundant and secure records are in evidence, as we shall see later on. Meantime, though the stories of the early or mythical period cannot be called history, in the narrower sense of the word, they were too long believed, and have too often been repeated to be suddenly ignored. They are no longer accepted as sober history, and yet the most sober historian dares not altogether discard them. As in the case of the Greek mythology, the happiest compromise seems to be that in which the more interesting tales are retained and repeated with the explicit qualification that they are to be accepted as legends only. This applies not merely to the stories of the foundation of Rome and of the earlier kings, but even, it must freely be

admitted, to the hero tales of Horatius, the elder Brutus, Cincinnatus, Coriolanus, and the rest; though doubtless, as one comes down the years, the historical element makes itself more and more felt, and the legendary basis becomes less and less dominant. We have first to do, however, with a series of citations which, let it be said once for all, are purely legendary, and which each individual reader is quite at liberty to interpret as best suits his individual imagination.^a

THE ÆNEAS LEGEND

When the fatal horse was going to be brought within the walls of Troy, and when Laocoön had been devoured by the two serpents sent by the gods to punish him because he had tried to save his country against the will of fate, then Æneas and his father Anchises, with their wives, and many who followed their fortune, fled from the coming of the evil day. But they remembered to carry their gods with them, who were to receive their worship in a happier land. They were guided in their flight from the city by the god Hermes, and he built for them a ship to carry them over the sea. When they put to sea the star of Venus, the mother of Æneas, stood over their heads, and it shone by day as well as by night, till they came to the shores of the land of the West. But when they landed the star vanished and was seen no more; and by this sign Æneas knew that he was come to that country wherein fate had appointed him to dwell.

The Trojans, when they had brought their gods on shore, began to sacrifice, but the victim, a milk-white sow just ready to farrow, broke from the priest and his ministers and fled away. Æneas followed her; for an oracle had told him that a four-footed beast should guide him to the spot where he was to build his city. So the sow went forward still she came to a certain hill, about two miles and a half from the shore where they had purposed to sacrifice, and there she lay down and farrowed, and her litter was of thirty young ones. But when Æneas saw that the place was sandy and barren, he doubted what he should do. Just at this time he heard a voice which said: "The thirty young of the sow are thirty years; when thirty years are passed, thy children shall remove to a better land; meantime do thou obey the gods, and build thy city in the place where they bid thee to build." So the Trojans built their city on the spot where the sow had farrowed.

Now the land belonged to a people who were the children of the soil, and their king was called Latinus. He received the strangers kindly, and granted to them seven hundred jugera of land, seven jugera to each man, for that was a man's portion. But soon the children of the soil and the strangers quarrelled; and the strangers plundered the lands round about them; and King Latinus called upon Turnus, the king of the Rutulians of Ardea, to help him against them. The quarrel became a war: and the strangers took the city of King Latinus, and Latinus was killed; and Æneas took his daughter Lavinia and married her, and became king over the children of the soil; and they and the strangers became one people, and they were called by one name, Latins.

But Turnus called to his aid Mezentius, king of the Etruscans of Cære. There was then another battle on the banks of the river Numicius, and Turnus was killed, and Æneas plunged into the river and was seen no more. However his son Ascanius declared that he was not dead, but that the gods had taken him to be one of themselves; and his people built an altar to him on the banks of the Numicius, and worshipped him by the name of Jupiter Indiges, which means, "the god who was of that very land."

THE ASCANIUS LEGEND

The war went on between Mezentius and Ascanius, the son of Æneas; and Mezentius pressed hard upon the Latins, till at last Ascanius met him man to man, and slew him in single fight. At that time Ascanius was very young, and there were only the first soft hairs of youth upon his cheeks; so he was called Iulus, or "the soft-haired," because, when he was only a youth, he had vanquished and slain his enemy, who was a grown man. At length the thirty years came to an end, which were foreshown by the litter of thirty young ones of the white sow. Ascanius then removed with his people to a high mountain, which looks over all the land on every side, and one side of it runs steep down into a lake: there he hewed out a place for his city on the side of the mountain, above the lake; and as the city was long and narrow, owing to the steepness of the hill, he called it Alba Longa, which is, "the white long city," and he called it white, because of the sign of the white sow.

Ascanius was succeeded by a son of Æneas and Lavinia named Silvius, and the eleven kings of Alba who succeeded him all bore the surname of Silvius.

THE LEGEND OF ROMULUS AND REMUS

Numitor was the eldest son of Procas, the last king of Alba Longa, and he had a younger brother called Amulius. When Procas died, Amulius seized by force on the kingdom, and left to Numitor only his share of his father's private inheritance. After this he caused Numitor's only son to be slain, and made his daughter Silvia become one of the virgins who watched the ever-burning fire of the goddess Vesta. But the god Mamers, who is called also Mars, beheld the virgin and loved her, and it was found that she was going to become the mother of children. Then Amulius ordered that the children, when born, should be thrown into the river. It happened that the river at that time had flooded the country; when, therefore, the two children in their basket were thrown into the river, the waters carried them as far as the foot of the Palatine Hill, and there the basket was upset, near the roots of a wild fig tree, and the children thrown out upon the land. At this moment there came a she-wolf down to the water to drink, and when she saw the children, she carried them to her cave hard by, and gave them to suck; and whilst they were there, a woodpecker came backwards and forwards to the cave, and brought them food. At last one Faustulus, the king's herdsman, saw the wolf suckling the children; and when he went up, the wolf left them and fled; so he took them home to his wife Larentia, and they were bred up along with their own sons on the Palatine Hill; and they were called Romulus and Remus.

When Romulus and Remus grew up, the herdsmen of the Palatine Hill chanced to have a quarrel with the herdsmen of Numitor, who stalled their cattle on the hill Aventinus. Numitor's herdsmen laid an ambush, and Remus fell into it, and was taken and carried off to Alba. But when the young man was brought before Numitor, he was struck with his noble air and bearing, and asked him who he was. And when Remus told him of his birth, and how he had been saved from death, together with his brother, Numitor marvelled, and thought whether this might not be his own daughter's child. In the meanwhile, Faustulus and Romulus hastened to

Alba to deliver Remus; and by the help of the young men of the Palatine Hill, who had been used to follow him and his brother, Romulus took the city, and Amulius was killed; and Numitor was made king, and owned Romulus and Remus to be born of his own blood.

[ca. 753-716 B.C.]

The two brothers did not wish to live at Alba, but loved rather the hill on the banks of the Tiber where they had been brought up. So they said that they would build a city there; and they inquired of the gods by augury, to know which of them should give his name to the city. They watched the heavens from morning till evening, and from evening till morning; and as the sun was rising, Remus saw six vultures. This was told to Romulus; but as they were telling him, behold there appeared to him twelve vultures. Then it was disputed again, which had seen the truest sign of the gods' favour; but the most part gave their voices for Romulus. So he began to build his city on the Palatine Hill. This made Remus very angry; and when he saw the ditch and the rampart which were drawn round the space where the city was to be, he scornfully leaped over them, saying, "Shall such defences as these keep your city?" As he did this, Celer, who had the charge of the building, struck Remus with the spade which he held in his hand, and slew him; and they buried him on the hill Remuria, by the banks of the Tiber, on the spot where he had wished to build his city.



ROMAN URN

The Sabines with their king dwelt on the hill Saturnius, which is also called Capitolium, and on the hill Quirinalis; and the people of Romulus with their king dwelt on the hill Palatinus. But the kings with their counsellors met in the valley between Saturnius and Palatinus, to consult about their common matters; and the place where they met was called Comitium, which means "the place of meeting."

Soon after this, Tatius was slain by the people of Laurentum, because some of his kinsmen had wronged them, and he would not do them justice. So Romulus reigned by himself over both nations; and his own people were called the

Romans, for Roma was the name of the city on the hill Palatinus; and the Sabines were called Quirites, for the name of their city on the hills Saturnius and Quirinalis was Quirium.

The people were divided into three tribes: the Ramnes, and the Tities, and the Luceres; the Ramnes were called from Romulus, and the Tities from Tatius; and the Luceres were called from Lucumo, an Etruscan chief, who had come to help Romulus in his war with the Sabines, and dwelt on the hill called Cælius. In each tribe there were ten curiæ, each of one hundred men; so all the men of the three tribes were three thousand, and these fought on foot, and were called a legion. There were also three hundred horsemen, and these were called Celerians, because their chief was that Celer who had slain Remus. There was besides a council of two hundred men, which was called a senate, that is, a council of elders.

Romulus was a just king, and gentle to his people; if any were guilty of crimes he did not put them to death, but made them pay a fine of sheep or of oxen. In his wars he was very successful, and enriched his people with the spoils of their enemies. At last, after he had reigned nearly forty years, it chanced that one day he called his people together in the Field of Mars, near the Goats' Pool: when all on a sudden there arose a dreadful storm, and all was as dark as night; and the rain, and thunder, and lightning were so terrible, that all the people fled from the field, and ran to their several homes. At last the storm was over, and they came back to the Field of Mars, but Romulus was nowhere to be found; for Mars, his father, had carried him up to heaven in his chariot. The people knew not at first what was become of him; but when it was night, as one Proculus Julius was coming from Alba to the city, Romulus appeared to him in more than mortal beauty and grown to more than mortal stature, and said to him; "Go, and tell my people that they weep not for me any more; but bid them to be brave and warlike, and so shall they make my city the greatest in the earth." Then the people knew that Romulus was become a god; so they built a temple to him, and offered sacrifice to him, and worshipped him evermore by the name of the god Quirinus.^b

The Rape of the Sabines

The Roman state was become so powerful, that it was a match for any of the neighbouring nations in war, but, from the paucity of women, its greatness could only last for one age of man; for they had no hope of issue at home, nor had they any intermarriages with their neighbours. Therefore, by the advice of the fathers, Romulus sent ambassadors to the neighbouring states to solicit an alliance and the privilege of intermarriage for his new subjects, saying that cities, like everything else, rose from humble beginnings; that those which the gods and their own merit aided, gained great power and high renown; that he knew full well, both that the gods had aided the origin of Rome, and that merit would not be wanting; wherefore that, as men, they should feel no reluctance to mix their blood and race with men. Nowhere did the embassy obtain a favourable hearing: so much did they at the same time despise and dread, for themselves and their posterity, so great a power growing up in the midst of them. They were dismissed by the greater part with the repeated question; whether they had opened any asylum for women also, for that such a plan only could obtain them suitable matches. The Roman youth resented this conduct bitterly, and the matter unquestionably began to point towards violence.

Romulus, in order that he might afford a favourable time and place for this, dissembling his resentment, purposely prepares games in honour of Neptunus Equestris; he calls them Consualia. He then orders the spectacle to be proclaimed amongst their neighbours; and they prepare for the celebration with all the magnificence they were then acquainted with, or were capable of doing, that they might render the matter famous, and an object of expectation. Great numbers assembled, from a desire also of seeing the new city; especially their nearest neighbours, the Cæninenses, Crustumini, and Antemnates. Moreover the whole multitude of the Sabines came, with their wives and children. Having been hospitably invited to the different houses, when they had seen the situation, and fortifications, and the city crowded with houses, they became astonished that the Roman power had increased so rapidly. When the time of the spectacle came on, and while their minds and eyes were intent upon it, according to concert a tumult began, and upon a signal given the Roman youth ran different ways to carry off the virgins by force.

A great number were carried off at haphazard, according as they fell into their hands. Persons from the common people, who had been charged with

the task, conveyed to their houses some women of surpassing beauty, destined for the leading senators. They say that one, far distinguished beyond the others for stature and beauty, was carried off by the party of one Talassius, and whilst many inquired to whom they were carrying her, they cried out every now and then, in order that no one might molest her, that she was being taken to Talassius; that from this circumstance this term became a nuptial one.

The festival being disturbed by this alarm, the parents of the young women retired in grief, appealing to the compact of violated hospitality, and invoking the god, to whose festival and games they had come, deceived by the pretence of religion and good faith. Neither had the ravished virgins better hopes of their condition, or less indignation. But Romulus in person went about and declared that what was done was owing to the pride of their fathers, who had refused to grant the privilege of marriage to their neighbours; but notwithstanding, they should be joined in lawful wedlock, participate in all their possessions and civil privileges, and, than which nothing can be dearer to the human heart, in their common children. He begged them only to assuage the fierceness of their anger, and cheerfully surrender their affections to those to whom fortune had consigned their persons. He added that from injuries love and friendship often arise; and that they should find them kinder husbands on this account, because each of them, besides the performance of his conjugal duty, would endeavour to the utmost of his power to make up for the want of their parents and native country. To this the caresses of the husbands were added, excusing what they had done on the plea of passion and love, arguments that work most successfully on women's hearts.

The minds of the ravished virgins were soon much soothed, but their parents by putting on mourning, and tears, and complaints roused the states. Nor did they confine their resentment to their own homes, but they flocked from all quarters to Titus Tatius, king of the Sabines; and because he bore the greatest character in these parts, embassies were sent to him. The Cæninenses, Crustumini, and Antemnates were people to whom a considerable portion of the outrage extended. To them Tatius and the Sabines seemed to proceed somewhat dilatorily. Nor even do the Crustumini and Antemnates bestir themselves with sufficient activity to suit the impatience and rage of the Cæninenses. Accordingly the state of the

Cæninenses by itself makes an irruption into the Roman territory. But Romulus with his army met them ravaging the country in straggling parties, and by a slight engagement convinces them that resentment without strength is of no avail. He defeats and routs their army, pursues it when routed, kills and despoils their king in battle, and having slain their general takes the city at the first assault.

From thence having led back his victorious army, and being a man highly distinguished by his exploits, and one who could place them in the best light, he went to the Capitol, carrying before him, suspended on a frame curiously wrought for that purpose, the spoils of the enemy's general, whom he had slain; and there, after he had laid them down at the foot of an oak held sacred by the shepherds, together with the offering, he marked out the bounds for a temple of Jupiter, and gave a surname to the god: "Jupiter Feretrius." He says, "I, King Romulus, upon my victory, present to thee these royal arms, and to thee I dedicate a temple within those regions which I have now marked out in my mind, as a receptacle for the grand spoils which my successors, following my example, shall, upon their killing the kings or generals of the enemy, offer to thee." This is the origin of that temple, the first consecrated at Rome. It afterwards so pleased the gods both that the declaration of the founder of the temple should not be frustrated, by which he announced that his posterity should offer such spoils, and that the glory of that offering should not be depreciated by the great number of those who shared it. During so many years, and amid so many wars since that time, grand spoils have been only twice gained, so rare has been the successful attainment of that honour.

Whilst the Romans are achieving these exploits, the army of the Antemnates, taking advantage of their absence, makes an incursion into the Roman territories in a hostile manner. A Roman legion being marched out in haste against these also, surprise them whilst straggling through the fields. Accordingly the enemy were routed at the very first shout and charge; their town was taken; and as Romulus was returning, exulting for this double victory, his consort, Hersilia, importuned by the entreaties of the captured women, beseeches him to pardon their fathers, and to admit them to the privilege of citizens; that thus his power might be strengthened by a reconciliation. Her request was readily granted. After this he marched against the Crustumini, who were commencing hostilities; but as their

spirits were sunk by the defeat of their neighbours, there was still less resistance there. Colonies were sent to both places, but more were found to give in their names for Crustuminus, because of the fertility of the soil. Migrations in great numbers were also made from thence to Rome, chiefly by the parents and relatives of the ravished women.

The last war broke out on the part of the Sabines, and proved by far the most formidable; for they did nothing through anger or cupidity, nor did they make a show of war, before they actually began it. To prudence stratagem also was added. Sp. Tarpeius commanded the Roman citadel; Tatius bribed his maiden daughter with gold, to admit armed soldiers into the citadel; she had gone by chance outside the walls to fetch water for sacrifice. Those who were admitted crushed her to death by heaping their arms upon her; either that the citadel might seem rather to have been taken by storm, or for the purpose of establishing a precedent, that no faith should, under any circumstances, be kept with a traitor. A story is added, that the Sabines commonly wore on their left arm golden bracelets of great weight, and large rings set with precious stones, and that she bargained with them for what they had on their left hands; hence that their shields were thrown upon her instead of the golden presents. There are some who say that in pursuance of the compact to deliver up what was on their left hands, she expressly demanded their shields, and that appearing to act with treachery, she was killed by the reward of her own choosing.

The Sabines, however, kept possession of the citadel, and on the day after, when the Roman army, drawn up in order of battle, filled up all the ground lying between the Palatine and Capitoline hills, they did not descend from thence into the plain, till the Romans, fired with resentment, and with a desire of retaking the citadel, advanced to attack them. Two chiefs, one on each side, animated the battle—viz., Mettus Curtius on the part of the Sabines, Hostus Hostilius on that of the Romans. The latter, in the front ranks, supported the Roman cause by his courage and bravery, on disadvantageous ground. As soon as Hostus fell, the Roman line immediately gave way and was beaten to the old gate of the Palatium. Romulus, himself too carried away with the general rout, raising his arms to heaven, says, “O Jupiter, commanded by thy birds, I here laid the first foundation of the city on the Palatine Hill. The Sabines are in possession of the citadel, purchased by fraud. From thence they are now advancing hither,

sword in hand, having already passed the middle of the valley. But do thou, father of gods and men, keep back the enemy at least from hence, dispel the terror of the Romans, and stop their shameful flight. Here I solemnly vow to build a temple to thee as Jupiter Stator, as a monument to posterity, that this city was saved by thy immediate aid.”

Having offered up this prayer, as if he had felt that his prayers were heard, he cries out, “At this spot, Romans, Jupiter, supremely good and great, commands you to halt, and renew the fight.” The Romans halted as if they had been commanded by a voice from heaven; Romulus himself flies to the foremost ranks. Mettus Curtius, on the part of the Sabines, had rushed down at the head of his army from the citadel, and driven the Romans in disorder over the whole ground now occupied by the Forum. He was already not far from the gate of the Palatium, crying out, “We have defeated these perfidious strangers, these dastardly enemies. They now feel that it is one thing to ravish virgins, another far different to fight with men.” On him, thus vaunting, Romulus makes an attack with a band of the most courageous youths. It happened that Mettus was then fighting on horseback; he was on that account the more easily repulsed: the Romans pursued him when repulsed; and the rest of the Roman army, encouraged by the gallant behaviour of their king, rout the Sabines. Mettus, his horse taking fright at the din of his pursuers, threw himself into a lake; and this circumstance drew the attention of the Sabines to the risk of so important a person. He, however, his own party beckoning and calling to him, acquired new courage from the affection of his many friends, and made his escape. The Romans and Sabines renewed the battle in the valley between the hills; but Roman prowess had the advantage.

At this juncture the Sabine women, from the outrage on whom the war originated, with hair dishevelled and garments rent, the timidity of their sex being overcome by such dreadful scenes, had the courage to throw themselves amid the flying weapons, and making a rush across, to part the incensed armies, and assuage their fury; imploring their fathers on the one side, their husbands on the other, that as fathers-in-law and sons-in-law they would not contaminate each other with impious blood, nor stain their offspring with parricide, the one their grandchildren, the other their children. “If you are dissatisfied with the affinity between you, if with our marriages—turn your resentment against us; we are the cause of war, of

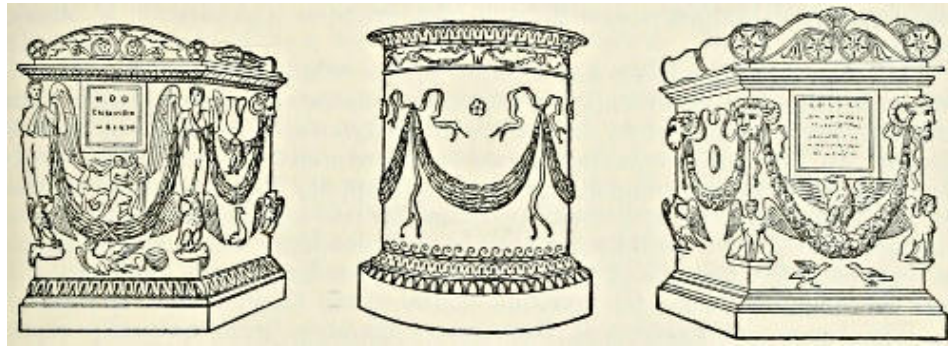
wounds and of bloodshed to our husbands and parents. It were better that we perish than live widowed or fatherless without one or other of you.” The circumstance affected both the multitude and the leaders. Silence and a sudden suspension ensued.

Upon this the leaders came forward in order to concert a treaty, and they not only concluded a peace, but formed one state out of two. They associated the regal power, and transferred the entire sovereignty to Rome. The city being thus doubled, that some compliment might be paid to the Sabines, they were called Quirites, from Cures. As a memorial of this battle, they called the place where the horse, after getting out of the deep marsh, first set Curtius in shallow water, the Curtian Lake. This happy peace following suddenly a war so distressing, rendered the Sabine women still dearer to their husbands and parents, and above all to Romulus himself. Accordingly, when he divided the people into thirty curiæ, he called the curiæ by their names. Since, without doubt, the number of the Sabine women was considerably greater than this, it is not recorded whether those who were to give their names to the curiæ were selected on account of their age, or their own or their husbands’ rank, or by lot. At the same time three centuries of knights were enrolled, called Ramnes from Romulus; Tities, from Titus Tatius. The reason of the name and origin of the Luceres is uncertain.^c

A Critical Study of the Legends

From the bare account of these two famous legends, it is interesting to turn to their critical consideration. The myth of the Trojan colony is said to have been handed down from generation to generation, but it nowhere bears the characteristic features of genuine popular tradition. It is wholly devoid of poetic feeling, it has every appearance of being a made-up thing, the result of a dispassionate study of facts, customs, cults, antiquities, memorials, and names of places, out of which a spurious history has been spun. If real heroic deeds, performed by Æneas in the home-land of Latium, had passed from mouth to mouth, in what different and how much richer colours would the story have been painted. The sow of Lavinium and her thirty piglings would not play such a prominent part as it does. Æneas never became the national hero of the Romans: not all the art of Virgil could accomplish that. None of the numerous Roman festivals, none of the public

games, celebrate his memory. Doubtless the tradition of him and his settlement in Latium rests upon no real historical tradition. In considering the Roman tradition of Æneas we must bear in mind the fact that it is not the only one of its kind.



ALTAR AND SARCOPHAGI

(After Hope)

A host of Italian towns date their origin from the heroes of Greek legends, particularly those of the Homeric period. Thus Tusculum was supposed to have been built by Telegonus, the son of Ulysses and Circe; Præneste by the same Telegonus, or by a grandson of Ulysses and Circe, named Prænestes; Lanuvium by Diomedes; Ardea by the son of Circe so named, or by Danaë, the mother of Perseus; Antium by a son of Ulysses and Circe; Politorium by Polites son of Priamus; the towns of the Veneti by Antenor; the names of Diomedes, Ulysses, Philoctetes constantly appear in the myths of the foundations of the cities.

There is no lack of supposed settlements of fugitive Trojans. Besides the city of Segesta, and the tribe of the Elymi in Sicily, the town of Siris on the river Siris was a supposed Trojan settlement; and Cora owed its foundation to Dardanians. The tradition of the settlement of Æneas in Latium is to be judged by the same criterion as these sagas, which were no doubt generally credited in the various towns concerned. It is, however, no better authenticated or more worthy of belief than the rest, which have no historical foundation, and only arose from the attempt of many Italian cities to trace their origin to the figures of Greek mythology, and especially to connect themselves with the Trojan myth. The analogy therefore forces us to realise that the connection of the story of the settlement in Latium with the Æneas myth has no better authority.

The argument that this story became the state religion of the Romans eight hundred years later rests on a very slight foundation; moreover the religion of the Roman state taught that Mars was the father of the founder of the city. There are countless traditions which (albeit at one time officially recognised) are mere historical fictions.

The test of the historical accuracy of a tradition is the age and the authenticity of the witness for it, not the universality of its recognition at a time in which

there was neither the demand for, nor the means of, critical examination. Granted, for example, that Rome had been the city of Tusculum, which owed its origin to Telegonus, and that Rome was the seat of the Mamilii, who traced their descent from the same Telegonus, the Telegonus legend would then no doubt have been invested with the same glory as that of Æneas, and as much honour would have fallen to the Mamilii as was reflected on the Julii from Æneas in Rome.

The Swiss national story of Tell shows how easily romances of this kind grow from popular tales into popular beliefs, and even popular dogma, when they flatter the self-esteem of a people.

Confidently as we may speak of the want of historical foundation for the Roman legend of Æneas, we must recollect the many difficulties in the way of establishing its origin and motive. The Latin legend of Æneas cannot be satisfactorily explained unless light be thrown upon the relation of Æneas to Lavinium.

Lavinium was the Lares and Penates of the whole of Latium. According to Latin religious ideas, every city, every household, every greater community, every street, every crossway, every quarter of the town, had its Lares. In like manner public Lares were appointed for the political family to which all Latium belonged, and we must suppose that at the foundation of the Latin league a spot was appointed for the cult of the Lares of the community. Lavinium bore for Latium the same significance as the temple of Vesta and the temples of the Penates and the Lares bore for Rome. It was the religious centre, the spiritual capital of the Latin confederation.

The Lares and Penates of Rome, as a member, were naturally represented in the Lavinium sanctuary of the confederation. Hence solemn sacrifices were offered annually to the Penates, in the name of the Roman people, by the Roman augurs and flamens, and other sacred rites were performed in their honour. The Roman consuls, prætors, and dictators offered sacrifices to Vesta and the Penates on assuming and resigning office, as did also the Roman emperors when they visited the provinces. The custom may have originated at the time when Rome was a co-ordinate member of the Latin confederation, the members of which alternately appointed the prætor or general of the confederation, who had of course to sacrifice in his official capacity.

The miracles which occurred at the foundation of Lavinium likewise arose from the idea of a city of the Lares and Penates. The first of these prodigies is the sow which indicated the seat of the Penates at the foundation of the city.

That a four-footed animal should indicate the seat of a colony is not unprecedented. At Ephesus it was a wild boar; the part is often played by an ox, a fact which led to the frequent appearance of the sacrificial ox in Latin legends. The choice of the sow to indicate the site of the city of the Lares and Penates at the building of Lavinium has its ground in the close association of swine with the Lares.

The second prodigy is the birth of the thirty pigs. It is evident that these thirty pigs symbolise the thirty cities of the confederation of which Lavinium was the religious capital. By ancient writers they are generally held to refer to the thirty years, which, according to tradition, elapsed between the foundation of Lavinium and Alba. But this secondary meaning does not affect the original significance of the symbolical miracle. Timæus (as we see in Lycophron) rightly associates the thirty pigs with the thirty states of Latium; and according to another version, the sow did not give birth to the thirty pigs on the site of the future Lavinium but on the site of the future Alba Longa. A bronze statue of the Lavinian sow and pigs existed in the time of Varro, and no doubt in the time of Timæus also, in a public place at Lavinium. It symbolised the position of Lavinium as the mother of the thirty states of which Latium was composed, and which had their Lares represented as their guardian spirits there. According to Cassius Hemina, a Roman annalist, the prodigy of the thirty pigs was adopted by Rome. "When the shepherds," he says, "appointed Romulus and Remus as kings, a miracle took place: a sow gave birth to thirty pigs and a sanctuary was erected to the grunting Lares." These thirty pigs refer apparently to the political division of the thirty *curiæ* into which the newly built city was divided.

The prodigy of the spread table is an outcome of worship of the Penates, to whom the table was sacred. At every meal it was the custom to leave some food, doubtless as an offering to the Penates. In their honour a salt-cellar and a plate of food were always left standing. Dry bread and cakes were given to the Penates; they were called *mensæ panicæ* ("tables of bread"). These no Roman would eat unless in great straits; it was in the eyes of the Romans a sign of the greatest need or poverty. Therefore the most ancient and authentic form of the story of Æneas seems to be that in which the eating of "the tables" (*mensæ*) was prophesied with ominous meaning. In Virgil, the harpy Calæno tells the voyagers that it is decreed that they are not to find a home before they have suffered the extremest misery, and that their utter homelessness is to be the turning-point of their fate.

Explanation of the Æneas Legend

We will return now to the starting-point of our inquiry, the question of why the origin of Lavinium is referred to Æneas. The answer must take us back to the previously mentioned fact that a large number of Italian or Latin states ascribed their origin to heroes of the Greek and particularly of the Trojan collection of stories.

This fact cannot be fully explained; psychologically it is nothing really incomprehensible, and is not without analogy. We can well understand how the Italian cities and races, as they came into nearer communication with the Grecian colonies of lower Italy and thus became acquainted with the heroic legends and the epic cycle of the Greeks, thought it an honour to connect their remote origin with the brilliant, much-lauded names of Greek heroes. The epic poems of the Greeks exercised a far greater influence in ancient Italy than is generally thought. When they were looking for the founder of the Penates city of the land of Latium, no other hero seemed so fit as Æneas. The chief deed which shed such glory on his name was the rescue of the holy images of Troy. The most ancient poets who sang of the fall of Troy relate it, so does Stesichorus, as one may see on the Ilian tablet where Anchises carries in his hands or on his shoulders a little chapel-shaped *ædícula*. In short nobody seemed better qualified to be the founder of the city of the Penates than the honoured saviour of the Trojan Penates.

Virgil's *Æneid* shows clearly that this is the leading reason for the introduction of Æneas into the Latin legend and his position as founder of Lavinium and father of Latin glory. His greatest achievement consists in bringing the gods and sacred treasures to Latium. As the reputed founder of Lavinium, he could also be credited with bringing to honour its Latin name, for Latium as a political community only existed after the establishment of the Latin league and the founding of Lavinium as the sanctuary of the league.

One word in conclusion on the Trojan families. The tradition of the settlement of Æneas gave the vanity of the Roman families the wished-for ground for glorifying their pedigree. Thus the Cæcili, Clodii, Gerganii, Memmii, Sergii, Cluentii, Junii, and Nautii, all traced their line back to Æneas. Dionysius says that at the foundation of Rome about fifty Trojan families came from Alba Longa to settle there, a number which is evidently exaggerated, as it exceeds the sum total of Roman patrician families in the time of Augustus. But it is evident from the writings of Varro and Hyginus on *The Trojan Families*, that a great number of Roman families boasted of Trojan descent.

We cannot of course ascertain what led to this belief among these families, but with many it was only a similarity of name. This is seen in the case of the origin of the Nautii. The worship of Minerva was in vogue among them. From the etymology of the name the founder of the family must have been a seaman, and so we come to the well-known story of Nautius, the companion of Æneas, taking away the palladium from Troy, or, according to another tradition, being intrusted with it by Diomedes.

O. Müller supposes that there was a similar ground in the worship of Apollo for the descent of the Julii from Æneas. Augustus, at any rate, refers very explicitly to Apollo as the tutelary god of the Julian family. Julius Cæsar, on the contrary, always speaks of Venus as the foundress of his family. So that the worship of Venus or Aphrodite can be attributed to the Julii with equal reason.

The connection of the Julian family with Æneas could be very simply established by the fiction that the eponymous founder of the family Iulus was one and the same person as Ascanius, the son of Æneas, who consequently had two names. The advantage gained by the Julian race from this fiction was considerable. The descent from Æneas gave a certain appearance of legitimacy to the claims of Julius Cæsar upon the sovereignty. Therefore Cæsar used every opportunity of certifying this origin of his race. Virgil's *Æneid* has also the subordinate political aim of investing the monarchy of Augustus with the halo of legitimacy by basing it to a certain extent on the idea of succession.

The Romulus Legend Examined

The deeds and institutions ascribed by the Romans to Romulus are the outcome of their conception of him. In the first two kings of the Roman state legend has personified the two fundamental elements of the Roman state—the warlike spirit of the nation, and its religious character.

Accordingly the first king was made to found the Roman state on the power of arms, imbuing it with the spirit of conquest and the ambition for ascendancy in arms, whilst the second, founding it on religion and morality, was made to give it a second birth.

Warlike activity is the chief feature of the influence of Romulus, his last word to his Romans and his political testament was the call to a zealous following of the art of war. A truthful conception incontestably lay at the root of this tradition.

The conditions of every state are in accordance with its origin, nothing can alter its historical basis; and if it be true that a kingdom must be maintained by the means by which it was founded, the opposite conclusion—that the means by which a state is maintained are those upon which its foundation was based—seems no less to be a truth. Hence a state which is maintained by the sword must owe its origin to the sword. In the legends of their origin many nations exhibit a very just knowledge of their national character and their mission in history. The trade and artifice claimed as the foundation of Carthage were a happy emblem of the spirit of this commercial race.

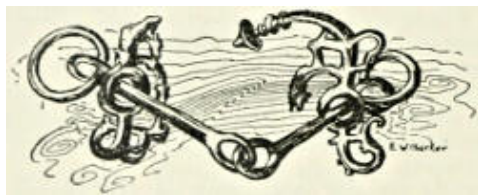
Rome was founded by the sword, a warrior hero made it, and no other founder was worthy of so great a military state. But Romulus, the first king, was not only credited with the foundation and military organisation of the rising state, but with the establishment of its fundamental political institutions. Accordingly he was supposed to have divided the people into tribes and *curiæ*, and some writers go so far as to credit him with their division into the two classes of patricians and plebeians, as well as the institution of patronage and clientage. Religion and religious law were attributed to Numa for the most part, though the Rome of Romulus could not have been quite destitute of religious worship. Some temples (those of Jupiter Feretrius and of Jupiter Stator) are unanimously reported by tradition to have been founded by Romulus. He is also said to have erected several chapels and altars, instituted festivals and services, founded priesthoods, the *sacra* of the *curiæ*, and, in particular, to have instituted the order and manner of the worship of the gods. But the particular form of worship which he is supposed to have introduced is not specified more clearly. There is even some doubt as to whether Romulus or Numa instituted the worship of Vesta, the primal worship of every colony.

On the other hand it is impossible for the institution of the augurs, which was wholly religious, to have originated with Numa. For the foundation—*i.e.*, the existence of the Roman state, no less than that of her fundamental institutions, must have rested upon divine sanction, and been consecrated by divine protection, if the Roman nation's consciousness of being a chosen people under the protection and guidance of the immortal gods has any historical foundation. The faith of the Romans in their divine origin and the institution of their state by providence necessarily involves the *augustum augurium* which decided the foundation of Rome and was the groundwork of Roman faith. Hence Romulus must have built the city after consulting the augurs, and in settling all the early institutions he must have been the first and best augur.

The warrior king must moreover have organised the war department of the young state as well as the political constitution; it is really his principal achievement. Directly after the foundation of the city he organised all men capable of bearing arms into a military system. According to Dionysius they numbered three thousand foot-soldiers and three hundred horsemen—a fact which clearly shows that this was the strength of the oldest legion. For it was supposed that the original fighting strength of Rome was a legion, each of the three tribes contributing a thousand foot-soldiers and a hundred horsemen. It is clear that these three thousand foot-soldiers and three hundred horsemen were originally regarded by tradition as the collective contingent of the three tribes, and it follows from the number itself, and from Plutarch's account, that the original colony of Romulus consisted of three thousand householders—*i.e.*, armed men. But later tradition has misunderstood that fact, and has falsely reported that the legion was doubled to six thousand foot-soldiers and six hundred horsemen on the arrival of the Sabines; hence the original number should have been tripled at the arrival of the third tribe. Plutarch, contrary to his aforementioned report, speaks of several legions at the foundation of Rome, every one consisting of three thousand foot-soldiers and three hundred horsemen.

Dionysius goes further still, and says that the Roman army at the death of Romulus consisted of forty-six thousand foot-soldiers and not much less than one thousand horsemen—a stupid and in every respect an unskilfully calculated number, in which the careless hand of Valerius Antias is clearly perceptible.

In Dionysius' account, which represents the cavalry as consisting of not much less than “a thousand horsemen,” we have the nine hundred horsemen according to the later tradition, being three hundred for the contingent of every tribe.



GRÆCO-ROMAN LAMP HOOK

On the other hand the more ancient account only speaks of three hundred horsemen in the whole of Romulus' three *centuriæ* of knights. They are the three *centuriæ*, the equites of the Ramnes, Tities, and Luceres. It is evident that these three hundred knights (*centuriæ equitum*) could not have existed before the recognition of the three tribes. If, therefore, the third tribe was only added after Romulus (about the time of the Albans),^[4] there could only have been one *centuria equitum* (Luceres) from that time. The oldest name for these horsemen, or knights, was *celeres*. When Livy and Plutarch take the *celeres* for the bodyguard

of the king, and distinguish these three hundred celeres or bodyguards from the three hundred horsemen, it is doubtless an error according to the etymological meaning of the name, as, according to better-informed authorities, the three hundred celeres and the three centuriæ equitum of Romulus are one and the same. The story of the bodyguard of Romulus rests partly upon the misconception of the archaic word “celeres,” and partly on the tradition that Romulus became a despot in the latter years of his reign, and was therefore obliged to have a bodyguard like the Greek tyrants. The leader of the three hundred celeres was called a tribunus celerum.

It is a fiction of later historians to credit Romulus with certain statutes of civil and sacred law, as, for example, those pertaining to the family and to marriage, as well as with the political and military system.

All these so-called Romulean laws are nothing more than ancient laws of custom which were not specified in writing or defined by legal acts. They may have existed in the Papirian collection, although of this we can only be absolutely certain in the case of one Romulean law; whilst the comparatively late origin of this collection itself can be proved to demonstration. The Tabula Marliani cannot be thought worthy of serious consideration at the present day.

The wars conducted by Romulus are purely fictitious, like so many supposititious accounts of the monarchy; they are a garbling of events of the historical period. The campaign against Fidenæ is evidently an imitation of the successful campaign of the year 328, in which a cleverly managed ambushade was the decisive factor, and Fidenæ was likewise conquered by the Romans entering the gates on the heels of the fleeing foe. The fall and conquest of Fidenæ is an event which so constantly recurs in history that we cannot avoid the suspicion that the annalists purposely multiplied it to swell the empty chronicles of the years of the monarchy. The tale that Veii was called to arms by the fall of Fidenæ is also borrowed from later history, in which Veii appears more than once in league with Fidenæ.

The traditional story of Romulus' campaign against Veii is moreover quite devoid of colour and character. The hundred years' truce is mentioned at random. Dionysius makes the condition of it the surrender of the Septem Pagī^[5] and Salt plains, another incident borrowed from subsequent history. And yet these two short and uneventful campaigns are supposed to have occupied the long reign of a monarch so warlike, restless, and active, a monarch of whom it was said that he barbarised the Roman nation by his incessant wars. Not only is it clear that there exists no authentic account of these wars, but no mention is

made of them in ancient tradition, which only records the entrance of Romulus into the world and his exit from it. The interregnum is occupied for the most part by literary inventions made to fill up the gaps in tradition and to present a complete historical account.

The method of Romulus' departure from the world is the natural consequence of his earthly existence. He who had come into the world by a miracle could only leave it by a miracle. To accentuate the singularity of both events an eclipse celebrates both his arrival and his departure. Hercules is a parallel instance in Greek mythology. A thundercloud transports him to heaven, where he is reconciled to his enemy Hera, whose daughter Hebe he takes to wife.

Either this or a cognate myth in Greek mythology was in the mind of the Roman poets, because the conception of such an apotheosis was as foreign to the Italian religions as was the idea of sexual intercourse between gods and men, and the conception of men by gods. Both ideas are creations of Greek mythology. It was doubtless Ennius, learned in Greek lore, who first cast into poetic shape the apotheosis of Romulus and introduced the idea of it to Rome.

The deified Romulus was called Quirinus. As Romulus was the eponymous hero of the Palatine Romans, so Quirinus was the chief and most highly venerated, and perhaps the eponymous divinity of the Quiritian Sabines; hence the identification. It is a figure of the amalgamation of the two nations into one, a symbol of their complete unity in constitution and religion. The wife of Quirinus, the deified Romulus, was called Hora or Horta. She was presumably a female divinity united in the religion of the Sabines to Quirinus. The festival of the people's flight (*Poplifugia*) or the Caprotinæ nones, which tradition has confused with the death of Romulus, is an ancient feast of purification; for, according to the story, Romulus disappeared during a feast of purification which he had ordained on that day. From other customs it is evident that the festival was chiefly a festival of female fecundity, to which purification from every pollution and sin was held to be conducive, by averting all pernicious influences, by propitiating the fructifying powers, and in short by purification or lustration. The festival of the Caprotinæ nones was very like the Lupercalian festival in purpose and significance. The particular resemblance between them was the part played by the goat, the symbol of animal fecundity. At the Lupercalia a goat was sacrificed, and the luperci (the priests who officiated) ran through the streets, clothed in goatskins, lashing the women with whips made with the skins of the victims. There is a connection with the same festival in the name of the Caprotinæ nones. The Goats' Pool on the Field of Mars was the place where it was held, the sacrifice was offered under a pine tree (*caprificus*),

the milk of the tree was used, and under the shade of the pine trees the women and maidens were solemnly regaled.

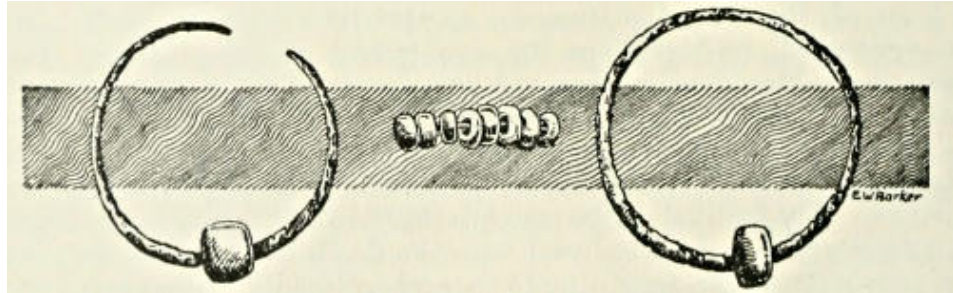
Moreover, the symbolical people's flight which figures in the festival customs of the Caprotinæ nones is suggestive of a similar rite in the Lupercalia —*i.e.*, the running away (*discurrere*) of the luperci after the offering of the sacrifice. But the ancients say nothing definite concerning this symbolical flight of the people; they only explained it as due either to the sudden and fearful disappearance of Romulus, or to panic at the threatened attack of some neighbouring cities on Rome when she was exhausted and feeble from the Gallic reverse, or after a defeat at the hands of the Etruscans. A more exact interpretation is impossible. But if we are forced to assign the ceremony to the Caprotinan festival, it can only have been a ceremony of lustration. Probably, when the sin and impurity of the people had been symbolically laid upon a vicarious victim (like a sacrificial animal) the flight of the people symbolised their freedom and deliverance from sin. It had probably the same meaning as the flight of the rex sacrificulus from the Comitium. In the Greek religion we find the same ceremony of symbolical flight and there it is certainly a rite of lustration.

We now arrive at the question of how tradition came to celebrate the disappearance of Romulus at this festival of the Poplifugia or the Caprotinæ nones. What connection had the name or person of Romulus with this feast? Unfortunately the darkness which envelops the earliest religion of the Romans excludes all light on the question. One can only say that the same reason which conduced to the association of Romulus with the Lupercalian festival lay at the root of his connection with the kindred ceremony in the festival of the Caprotina.^d

FOOTNOTES

[4] [Cf. [page 51, note.](#)]

[5] "Pagus," old word for "canton."



ETRUSCAN JEWELRY

(In the British Museum)



NUMA POMPILIUS CHOSEN KING

(From a drawing by Mirys)

CHAPTER III. LEGENDARY HISTORY OF THE KINGS

NUMA POMPILIUS

Egeria! sweet creature of some heart
Which found no mortal resting-place so fair
As thine ideal breast; whate'er thou art
Or wert,—a young Aurora of the air,
The nympholepsy of some fond despair;
Or, it might be, a beauty of the earth,
Who found a more than common votary there
Too much adoring; whatsoe'er thy birth,
Thou wert a beautiful thought, and softly bodied forth.

—BYRON. *Childe Harold*.

[ca. 716-673 B.C.]

When Romulus was taken from the earth, there was no one found to reign in his place. The senators would choose no king, but they divided themselves into tens; and every ten was to have the power of king for five days, one after the other. So a year passed away, and the people murmured, and said that there must be a king chosen.

Now the Romans and the Sabines each wished that the king should be one of them; but at last it was agreed that the king should be a Sabine, but that the Romans should choose him. So they chose Numa Pompilius; for all men said that he was a just man, and wise, and holy.

Some said that he had learned his wisdom from Pythagoras, the famous philosopher of the Greeks; but others would not believe that he owed it to any foreign teacher. Before he would consent to be king, he consulted the gods by augury, to know whether it was their pleasure that he should reign. And as he feared the gods at first, so did he even to the last. He appointed many to minister in sacred things, such as the pontifices who were to see that all things relating to the gods were duly observed by all; and the augurs, who taught men the pleasure of the gods concerning things to come; and the flamens, who ministered in the temples; and the virgins of Vesta, who tended the ever burning fire; and the salii, who honoured the god of arms with solemn songs and dances through the city on certain days, and who kept the sacred shield which fell down from heaven. And in all that he did, he knew that he should please the gods; for he did everything by the direction of the nymph Egeria, who honoured him so much that she took him to be her husband, and taught him in her sacred grove, by the spring that welled out from the rock, all that he was to do towards the gods and towards men. By her counsel he snared the gods Picus and Faunus in the grove on the hill Aventinus, and made them tell him how he might learn from Jupiter the knowledge of his will, and might get him to declare it either by

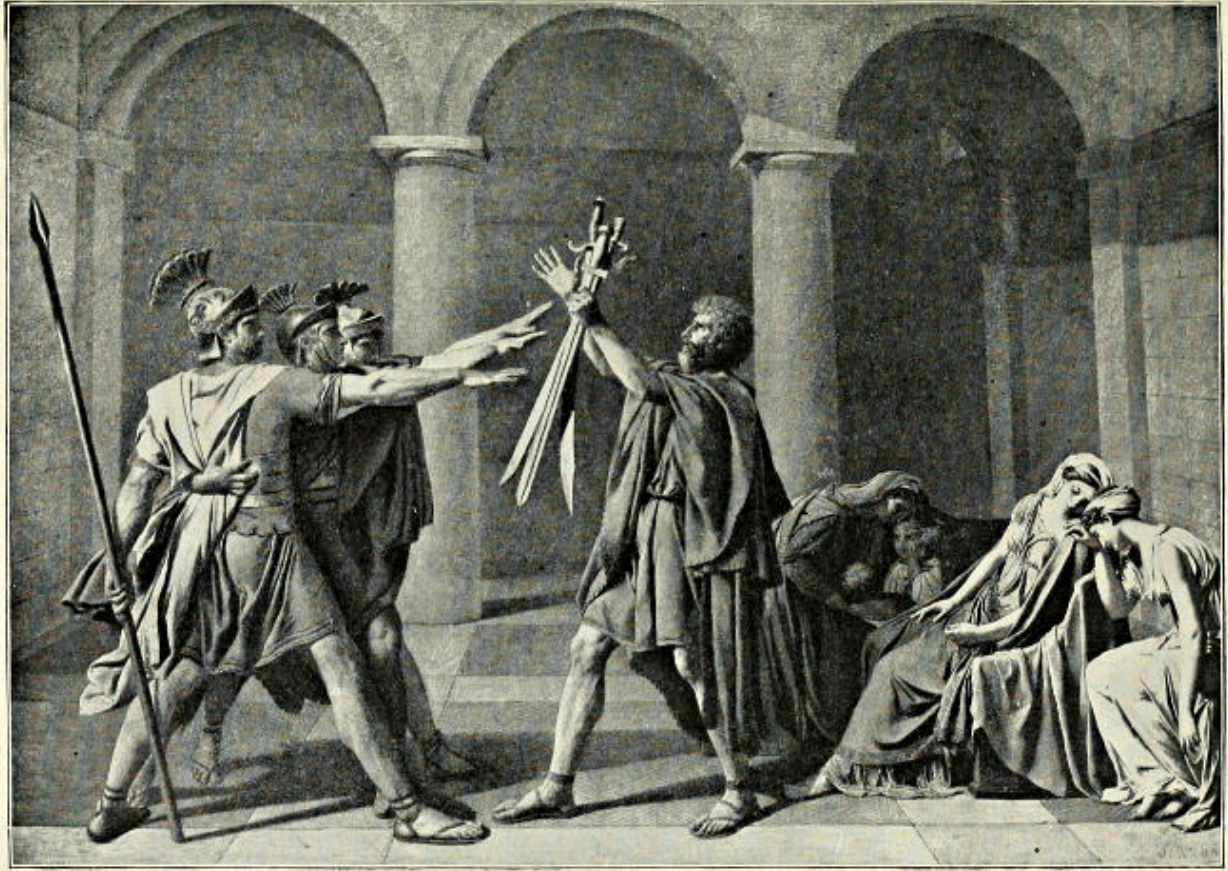
lightning or by the flight of birds. And when men doubted whether Egeria had really given him her counsel, she gave him a sign by which he might prove it to them. He called many of the Romans to supper, and set before them a homely meal in earthen dishes; and then on a sudden he said that now Egeria was come to visit him; and straightway the dishes and the cups became of gold or precious stones, and the couches were covered with rare and costly coverings, and the meats and drinks were abundant and most delicious. But though Numa took so much care for the service of the gods, yet he forbade all costly sacrifices; neither did he suffer blood to be shed on the altars, nor any images of the gods to be made. But he taught the people to offer in sacrifice nothing but the fruits of the earth, meal and cakes of flour, and roasted corn.

For he loved husbandry, and he wished his people to live every man on his own inheritance in peace and in happiness. So the lands which Romulus had won in war, he divided out amongst the people, and gave a certain portion to every man. He then ordered landmarks to be set on every portion; and Terminus the god of landmarks had them in his keeping, and he who moved a landmark was accursed. The craftsmen of the city, who had no land, were divided according to their callings; and there were made of them nine companies. So all was peaceful and prosperous throughout the reign of King Numa; the gates of the temple of Janus were never opened, for the Romans had no wars and no enemies; and Numa built a temple to Faith, and appointed a solemn worship for her, that men might learn not to lie or to deceive, but to speak and act in honesty. And when he had lived to the age of fourscore years, he died at last by a gentle decay, and he was buried under the hill Janiculum, on the other side of the Tiber; and the books of his sacred laws and ordinance were buried near him in a separate tomb.

TULLUS HOSTILIUS

[ca. 673-641 B.C.]

When Numa was dead, the senators again for a while shared the kingly power amongst themselves. But they soon chose for their king Tullus Hostilius, whose father's father had come from Medullia, a city of the Latins, to Rome, and had fought with Romulus against the Sabines. Tullus loved the poor, and he divided the lands which came to him as king amongst those who had no land. He also bade those who had no houses to settle themselves on the hill Cælius, and there he dwelt himself in the midst of them.



THE HORATII

Tullus was a warlike king, and he soon was called to prove his valour; for the countrymen of the Alban border and of the Roman border plundered one another. Now Alba was governed by Caius Cluilius, who was the dictator; and Cluilius sent to Rome to complain of the wrongs done to his people, and Tullus sent to Alba for the same purpose. So there was a war between the two nations, and Cluilius led his people against Rome, and lay encamped within five miles of the city, and there he died. Mettius Fuffetius was then chosen dictator in his room; and as the Albans still lay in their camp, Tullus passed them by, and marched into the land of Alba. But when Mettius came after him, then, instead of giving battle, the two leaders agreed that a few in either army should fight in behalf of the rest, and that the event of this combat should decide the quarrel. So three twin brothers were chosen out of the Roman army, called the Horatii, and three twin brothers out of the Alban army, called the Curiatii.^b

The Combat of the Horatii and the Curiatii

The treaty being concluded, the twin brothers, as had been agreed, took arms. Whilst their respective friends exhortingly reminded each party that their country's gods, their country and parents, all their countrymen both at home and in the army, had their eyes then fixed on their arms, on their hands. Naturally brave, and animated by the exhortations of their friends, they advanced into the midst between the two lines. The two armies sat down before their respective camps, free rather from present danger than from anxiety; for the sovereign power was at stake, depending on the valour and fortune of so few. Accordingly, therefore, eager and anxious, they have their attention intensely riveted on a spectacle far from pleasing.

The signal was given; and the three youths on each side, as if in battle array, rushed to the charge with determined fury, bearing in their breasts the spirits of mighty armies: nor did the one nor the other regard their personal danger; the public dominion or slavery is present to their mind, and the fortune of their country, which was ever after destined to be such as they should now establish it. As soon as their arms clashed on the first encounter, and their burnished swords glittered, great horror struck the spectators; and, hope inclining to neither side, their voice and breath were suspended. Then having engaged hand to hand, when not only the movements of their bodies and the rapid brandishings of their arms and weapons, but wounds also and blood were seen, two of the Romans fell lifeless, one upon the other, the three Albans being wounded. And when the Alban army raised a shout of joy at their fall, hope entirely, anxiety however not yet, deserted the Roman legions, alarmed for the lot of the one whom the three Curiatii surrounded. He happened to be unhurt, so that, though alone he was by no means a match for them all together, yet he was confident against each singly.

In order therefore to separate their attack, he took to flight presuming that they would pursue him with such swiftness as the wounded state of his body would suffer each. He had now fled a considerable distance from the place where they had fought, when, looking behind, he perceived them pursuing him at great intervals from each other; and that one of them was not far from him. On him he turned round with great fury. And whilst the Alban army shouted out to the Curiatii to succour their brother, Horatius, victorious in having slain his antagonist, was now proceeding to a second attack. Then the Romans encouraged their champion with a shout such as is usually given by persons cheering in consequence of unexpected success; he also hastened to put an end to the combat. Wherefore before the other, who was not far off, could come up, he despatched the second Curiatius also. And now, the combat being brought to

an equality of numbers, one on each side remained, but they were equal neither in hope nor in strength. The one his body untouched by a weapon, and by double victory made courageous for a third contest; the other dragging along his body exhausted from the wound, exhausted from running, and dispirited by the slaughter of his brethren before his eyes, presented himself to his victorious antagonist. Nor was that a fight. The Roman, exulting, said, "Two I have offered to the shades of my brothers: the third I will offer to the cause of this war, that the Roman may rule over the Alban." He thrust his sword down into his throat, whilst faintly sustaining the weight of his armour, he stripped him as he lay prostrate.

The Romans received Horatius with triumph and congratulation; with so much the greater joy, as success had followed so close on fear. They then turned to the burial of their friends with dispositions by no means alike; for the one side was elated with the acquisition of empire, the other subjected to foreign jurisdiction: their sepulchres are still extant in the place where each fell; the two Roman ones in one place nearer to Alba, the three Alban ones towards Rome; but distant in situation from each other, and just as they fought. ^{[6]c}



COMBAT BETWEEN THE HORATII AND THE CURIATII

(After a drawing by Mirys)

Then the Romans went home to Rome in triumph, and Horatius went at the head of the army, bearing his triple spoils. But as they were drawing near to the Capenian Gate, his sister came out to meet him. Now she had been betrothed in

marriage to one of the Curiatii, and his cloak, which she had wrought with her own hands, was borne on the shoulders of her brother; and she knew it, and cried out, and wept for him whom she had loved. At the sight of her tears Horatius was so wroth that he drew his sword, and stabbed his sister to the heart; and he said, "So perish the Roman maiden who shall weep for her country's enemy." But men said that it was a dreadful deed, and they dragged him before the two judges who judged when blood had been shed. For thus said the law:

"The two men shall give judgment on the shedder of blood.
If he shall appeal from their judgment, let the appeal be tried.
If their judgment be confirmed, cover his head.
Hang him with a halter on the accursed tree;
Scourge him either within the sacred limit of the city or without."

So they gave judgment on Horatius, and were going to give him over to be put to death. But he appealed, and the appeal was tried before all the Romans, and they would not condemn him because he had conquered for them their enemies, and because his father spoke for him, and said that he judged the maiden to have been lawfully slain. Yet as blood had been shed, which required to be atoned for, the Romans gave a certain sum of money to offer sacrifices to atone for the pollution of blood. These sacrifices were duly performed ever afterwards by the members of the house of the Horatii.

The Albans were now become bound to obey the Romans; and Tullus called upon them to aid him in a war against the people of Veii and Fidenæ. But in the battle the Alban leader, Mettius Fuffetius, stood aloof, and gave no true aid to the Romans. So, when the Romans had won the battle, Tullus called the Albans together as if he were going to make a speech to them; and they came to hear him, as was the custom, without their arms; and the Roman soldiers gathered around them, and they could neither fight nor escape. Then Tullus took Mettius and bound him between two chariots, and drove the chariots different ways, and tore him asunder. After this he sent his people to Alba, and they destroyed the city, and made all the Albans come and live at Rome; there they had the hill Cælius for their dwelling-place, and became one people with the Romans.

After this Tullus made war upon the Sabines, and gained a victory over them. But now, whether it were that Tullus had neglected the worship of the gods whilst he had been so busy in his wars, the signs of the wrath of heaven became manifest. A plague broke out among the people, and Tullus himself was at last

stricken with a lingering disease. Then he bethought him of good and holy Numa, and how, in his time, the gods had been so gracious to Rome, and had made known their will by signs whenever Numa inquired of them. So Tullus also tried to inquire of Jupiter, but the god was angry and would not be inquired of, for Tullus did not consult him rightly; so he sent his lightnings, and Tullus and all his house were burned to ashes. This made the Romans know that they wanted a king who would follow the example of Numa; so they chose his daughter's son Ancus Marcius to reign over them in the room of Tullus.

ANCUS MARCIUS

[ca. 642-616 B.C.]

Ancient history does not tell much of Ancus Marcius. He published the religious ceremonies which Numa had commanded, and had them written out upon whited boards, and hung up round the Forum, that all might know and observe them. He had a war with the Latins and conquered them, and brought the people to Rome, and gave them the hill Aventinus to dwell on. He divided the lands of the conquered Latins amongst all the Romans, and he gave up the forests near the sea which he had taken from the Latins, to be the public property of the Romans. He founded a colony at Ostia, by the mouth of the Tiber. He built a fortress on the hill Janiculum, and joined the hill to the city by a wooden bridge over the river. He secured the city in the low grounds between the hills by a great dyke, which was called the dyke of the Quirites. And he built a prison under the hill Saturnius, towards the Forum, because as the people grew in numbers, offenders against the laws became more numerous also. At last King Ancus died, after a reign of three-and-twenty years.

L. TARQUINIUS PRISCUS

[ca. 616-578 B.C.]

In the days of Ancus Marcius there came to Rome from Tarquinii, a city of Etruria, a wealthy Etruscan and his wife. The father of this stranger was a Greek, a citizen of Corinth, who left his native land because it was oppressed by a tyrant, and found a home at Tarquinii. There he married a noble Etruscan lady, and by her he had two sons. But his son found that for his father's sake he was still looked upon as a stranger; so he left Tarquinii, and went with his wife Tanaquil to Rome, for there, it was said, strangers were held in more honour. Now as he came near to the gates of Rome, as he was sitting in his chariot with Tanaquil

his wife, an eagle came and plucked the cap from his head, and bore it aloft into the air; and then flew down again and placed it upon his head, as it had been before. So Tanaquil was glad at this sight, and she told her husband, for she was skilled in augury, that this was a sign of the favour of the gods, and she bade him be of good cheer, for that he would surely rise to greatness.



TARQUINIUS

Now when the stranger came to Rome, they called him Lucius Tarquinius, and he was a brave man and wise in council; and his riches won the good word of the multitude; and he became known to the king. He served the king well in peace and war, so that Ancus held him in great honour, and when he died he named him by his will to be the guardian of his children.

But Tarquinius was in great favour with the people; and when he desired to be king, they resolved to choose him rather than the sons of Ancus. So he began to reign, and he did great works both in war and peace. He made war on the Latins, and took from them a great spoil. Then he made war on the Sabines, and he conquered them in two battles, and took from them the town of Collatia, and gave it to Egerius, his brother's son, who had come with him from Tarquinii. Lastly, there was another war with the Latins, and Tarquinius went round to their cities, and took them one after another; for none dared to go out to meet him in open battle. These were his acts in war.

He also did great works in peace; for he made vast drains to carry off the water from between the Palatine and the Aventine, and from between the Palatine and the Capitoline hills. And in the space between the Palatine and the Aventine, after he had drained it, he formed the Circus, or great race-course, for chariot and for horse races. Then in the space between the Palatine and the Capitoline he made a forum or market-place, and divided out the ground around it for shops or stalls, and made a covered walk round it. Next he set about building a wall of stone to go round the city; and he laid the foundations of a great temple on the Capitoline Hill, which was to be the temple of the gods of Rome. He also added a hundred new senators to the senate, and doubled the number of the horsemen in the centuries of the Ramnes, Tities, and Luceres, for he wanted to strengthen his force of horsemen; and when he had done so, his horse gained him great victories over his enemies.

Now he first had it in his mind to make three new centuries of horsemen, and to call them after his own name. But Attus Navius, who was greatly skilled in augury, forbade him. Then the king mocked at his art, and said, "Come now, thou augur, tell me by thy auguries, whether the thing which I now have in my mind may be done or not." And Attus Navius asked counsel of the gods by augury, and he answered, "It may." Then the king said, "It was in my mind that thou shouldst cut in two this whetstone with this razor. Take them, and do it, and fulfil thy augury if thou canst." But Attus took the razor and the whetstone, and he cut, and cut the whetstone asunder. So the king obeyed his counsels, and made no new centuries; and in all things afterwards he consulted the gods by augury, and obeyed their bidding.

Tarquinius reigned long and prospered greatly; and there was a young man brought up in his household, of whose birth some told wonderful tales, and said that he was the son of a god; but others said that his mother was a slave, and his father was one of the king's clients. But he served the king well, and was in favour with the people, and the king promised him his daughter in marriage. The young man was called Servius Tullius. But when the sons of King Ancus saw that Servius was so loved by King Tarquinius, they resolved to slay the king, lest he should make this stranger his heir, and so they should lose the crown forever. So they set on two shepherds to do the deed, and these went to the king's palace, and pretended to be quarrelling with each other, and both called on the king to do them right. The king sent for them to hear their story; and while he was hearing one of them speak, the other struck him on the head with his hatchet, and then both of them fled. But Tanaquil, the king's wife, pretended that he was not dead, but only stunned by the blow; and she said that

he had appointed Servius Tullius to rule in his name, till he should be well again. So Servius went forth in royal state, and judged causes amidst the people, and acted in all things as if he were king, till after a while it was known that the king was dead, and Servius was suffered to reign in his place. Then the sons of Ancus saw that there was no hope left for them; and they fled from Rome, and lived the rest of their days in a foreign land.

SERVIUS TULLIUS

[ca. 578-534 B.C.]

Servius Tullius was a just and good king; he loved the commons, and he divided among them the lands which had been conquered in war, and he made many wise and good laws, to maintain the cause of the poor, and to stop the oppression of the rich. He made war with the Etruscans, and conquered them. He added the Quirinal and the Viminal hills to the city, and he brought many new citizens to live on the Esquiline; and there he lived himself amongst them. He also raised a great mound of earth to join the Esquiline and the Quirinal and the Viminal hills together, and to cover them from the attacks of an enemy.

He built a temple of Diana on the Aventine, where the Latins, and the Sabines, and the Romans, should offer their common sacrifices; and the Romans were the chief in rank amongst all who worshipped at the temple.

He made a new order of things for the whole people; for he divided the people of the city into four tribes, and the people of the country into six-and-twenty. Then he divided all the people into classes, according to the value of their possessions; and the classes he divided into centuries; and the centuries of the several classes furnished themselves with arms, each according to their rank and order: the centuries of the rich classes had good and full armour, the poorer centuries had but darts and slings. And when he had done all these works, he called all the people together in their centuries, and asked if they would have him for their king; and the people answered that he should be their king. But the nobles hated him, because he was so loved by the commons; for he had made a law that there should be no king after him, but two men chosen by the people to govern them year by year. Some even said that it was in his mind to give up his own kingly power, that so he might see with his own eyes the fruit of all the good laws that he had made, and might behold the people wealthy and free and happy.

Now King Servius had no son, but he had two daughters; and he gave them in marriage to the two sons of King Tarquinius. These daughters were of very unlike natures, and so were their husbands: for Aruns Tarquinius was of a meek and gentle spirit, but his brother Lucius was proud and full of evil; and the younger Tullia, who was the wife of Aruns, was more full of evil than his brother Lucius; and the elder Tullia, who was the wife of Lucius, was as good and gentle as his brother Aruns. So the evil could not bear the good, but longed to be joined to the evil that was like itself: and Lucius slew his wife secretly, and the younger Tullia slew her husband, and then they were married to one another, that they might work all the wickedness of their hearts, according to the will of fate.

Then Lucius plotted with the nobles, who hated the good king; and he joined himself to the sworn brotherhoods of the young nobles, in which they bound themselves to stand by each other in their deeds of violence and of oppression. When all was ready, he waited for the season of the harvest, when the commons, who loved the king, were in the fields getting in their corn. Then he went suddenly to the Forum with a band of armed men, and seated himself on the king's throne before the doors of the senate house, where he was wont to judge the people. And they ran to the king, and told him that Lucius was sitting on his throne. Upon this the old man went in haste to the Forum, and when he saw Lucius, he asked him wherefore he had dared to sit on the king's seat. And Lucius answered that it was his father's throne, and that he had more right in it than Servius. Then he seized the old man, and threw him down the steps of the senate house to the ground; and he went into the senate house, and called together the senators, as if he were already king. Servius meanwhile arose, and began to make his way home to his house; but when he was come near to the Esquiline Hill, some whom Lucius had sent after him overtook him and slew him, and left him in his blood in the middle of the way.

Then the wicked Tullia mounted her chariot, and drove into the Forum, nothing ashamed to go amidst the multitude of men, and she called Lucius out from the senate house, and said to him, "Hail to thee, King Tarquinius!" But Lucius bade her to go home; and as she was going home, the body of her father was lying in the way. The driver of the chariot stopped short, and showed to Tullia where her father lay in his blood. But she bade him drive on, for the furies of her wickedness were upon her, and the chariot rolled over the body; and she went to her home with her father's blood upon the wheels of her chariot. Thus Lucius Tarquinius and the wicked Tullia reigned in the place of the good king Servius.

LUCIUS TARQUINIUS THE TYRANT

[ca. 534-510 B.C.]

Lucius Tarquinius gained his power wickedly, and no less wickedly did he exercise it. He kept a guard of armed men about him, and he ruled all things at his own will; many were they whom he spoiled of their goods, many were they whom he banished, and many also whom he slew. He despised the senate, and made no new senators in the place of those whom he slew, or who died in the course of nature, wishing that the senators might become fewer and fewer, till there should be none of them left. And he made friends of the chief men among the Latins, and gave his daughter in marriage to Octavius Mamilius of Tusculum; and he became very powerful amongst the Latins, insomuch that when Turnus Herdonius of Aricia had dared to speak against him in the great assembly of the Latins, Tarquinius accused him of plotting his death, and procured false witnesses to confirm his charge; so that the Latins judged him to be guilty, and ordered him to be drowned. After this they were so afraid of Tarquinius, that they made a league with him, and followed him in his wars wherever he chose to lead them. The Hernicans also joined this league, and so did Ecetra and Antium, cities of the Volscians.

Then Tarquinius made war upon the rest of the Volscians, and he took Suessa Pometia, in the lowlands of the Volscians, and the tithe of the spoil was forty talents of silver. So he set himself to raise mighty works in Rome; and he finished what his father had begun, the great drains to drain the low grounds of the city, and the temple on the Capitoline Hill. Now the ground on which he was going to build his temple was taken up with many holy places of the gods of the Sabines, which had been founded in the days of King Tatius. But Tarquinius consulted the gods by augury whether he might not take away these holy places to make room for his own new temple. The gods allowed him to take away all the rest, except only the holy places of the god of youth, and of Terminus the god of boundaries, which they would not suffer him to move. But the augurs said that this was a happy omen, for that it showed how the youth of the city should never pass away, nor its boundaries be moved by the conquest of an enemy. A human head was also found, as they were digging the foundations of the temple, and this too was a sign that the Capitoline Hill should be the head of all the earth.^[Z] So Tarquinius built a mighty temple, and consecrated it to Jupiter, and to Juno, and to Minerva, the greatest of the gods of the Etruscans.

At this time there came a strange woman to the king, and offered him nine books of the prophecies of the Sibyl for a certain price. When the king refused

them, the woman went and burned three of the books, and came back and offered the six at the same price which she had asked for the nine; but they mocked at her and would not take the books. Then she went away, and burned three more, and came back and asked still the same price for the remaining three. At this the king was astonished, and asked of the augurs what he should do. They said that he had done wrong in refusing the gift of the gods, and bade him by all means to buy the books that were left. So he bought them; and the woman who sold them was seen no more from that day forwards. Then the books were put into a chest of stone, and were kept underground in the Capitol, and two men were appointed to keep them, and were called the two men of the sacred books.

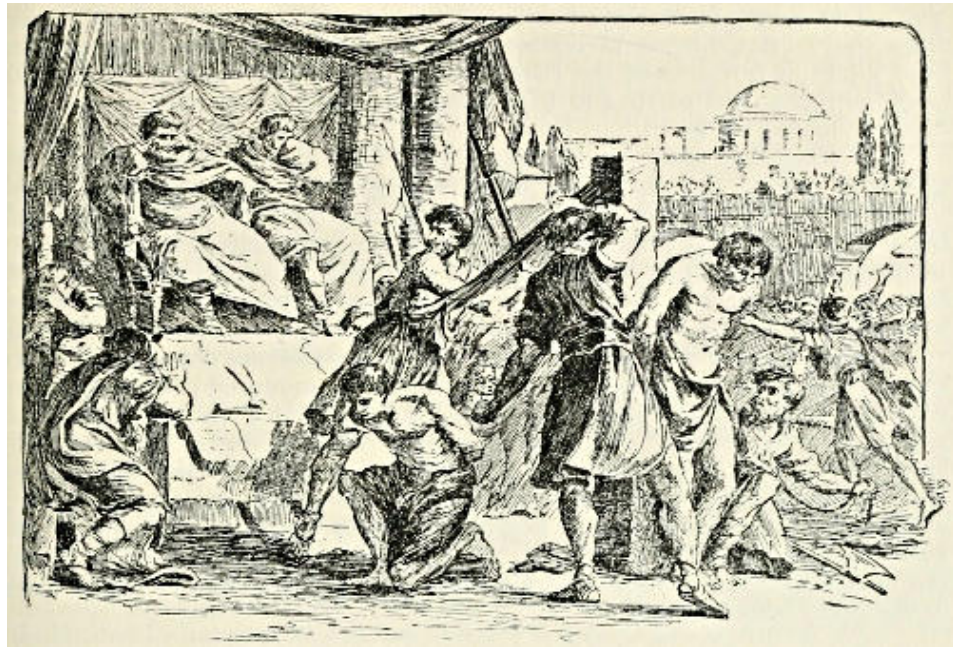
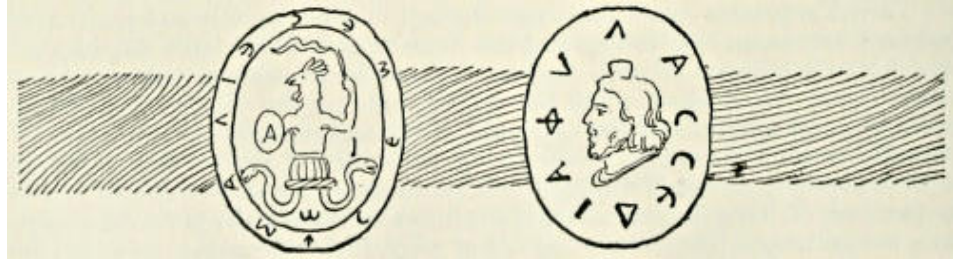
Now Gabii would not submit to Tarquinius, like the other cities of the Latins, so he made war against it; and the war was long, and Tarquinius knew not how to end it. So his son Sextus Tarquinius pretended that his father hated him, and fled to Gabii; and the people of Gabii believed him and trusted him, till at last he betrayed them into his father's power. A treaty was then made with them, and he gave them the right of becoming citizens of Rome, and the Romans had the right of becoming citizens of Gabii, and there was a firm league between the two people.

Thus Tarquinius was a great and mighty king; but he grievously oppressed the poor, and he took away all the good laws of King Servius, and let the rich oppress the poor, as they had done before the days of Servius. He made the people labour at his great works: he made them build his temple and dig and construct his drains; and he laid such burdens on them, that many slew themselves for very misery; for in the days of Tarquinius the tyrant it was happier to die than to live.^b

FOOTNOTES

[6] The two Roman champions, we have seen, fell in the one place, *super alium alius*; consequently were buried together; whilst the Curiatii fell in different places, as Horatius contrived to separate them to avoid their joint attack.

[7] ["After the work had been carried down to a great depth there was found the head of a man newly killed, with the face like that of a living man, and the blood which flowed from the abrasion warm and fresh."—DIONYSIUS.^d]



THE EXECUTION OF TITUS AND TIBERIUS

(From a drawing by Mirys)

CHAPTER IV. THE BANISHMENT OF THE KINGS— CRITICISMS OF MONARCHIAL HISTORY

TARQUINIUS CONSULTS THE ORACLE

[ca. 510 B.C.]

While King Tarquinius was at the height of his greatness, it chanced upon a time that from the altar in the court of his palace there crawled out a snake, which devoured the offerings laid on the altar. So the king thought it not enough to consult the soothsayers of the Etruscans whom he had with him, but he sent two

of his own sons to Delphi, to ask counsel of the oracle of the Greeks; for the oracle of Delphi was famous in all lands. So his sons Titus and Aruns went to Delphi, and they took with them their cousin Lucius Junius, whom men called Brutus, that is, the dullard; for he seemed to be wholly without wit, and he would eat wild figs with honey. This Lucius was not really dull, but very subtle; and it was for fear of his uncle's cruelty, that he made himself as one without sense; for he was very rich, and he feared lest King Tarquinius should kill him for the sake of his inheritance. So when he went to Delphi he carried with him a staff of horn, and the staff was hollow, and it was filled with gold, and he gave the staff to the oracle as a likeness of himself; for though he seemed dull, and of no account to look upon, yet he had a golden wit within. When the three young men had performed the king's bidding, they asked the oracle for themselves, and they said, "O Lord Apollo, tell us, which of us shall be king in Rome?" Then there came a voice from the sanctuary and said, "Whichever of you shall first kiss his mother." So the sons of Tarquinius agreed to draw lots between themselves, which of them should first kiss their mother, when they should have returned to Rome; and they said they would keep the oracle secret from their brother Sextus, lest he should be king rather than they. But Lucius understood the mind of the oracle better; so as they all went down from the temple, he stumbled as if by chance, and fell with his face to the earth, and kissed the earth; for he said, "The earth is the true mother of us all."

Now when they came back to Rome, King Tarquinius was at war with the people of Ardea; and as the city was strong, his army lay a long while before it, till it should be forced to yield through famine. So the Romans had leisure for feasting and for diverting themselves; and once Titus and Aruns were supping with their brother Sextus, and their cousin Tarquinius of Collatia was supping with them. And they disputed about their wives, whose wife of them all was the worthiest lady. Then said Tarquinius of Collatia, "Let us go, and see with our own eyes what our wives are doing, so shall we know which is the worthiest." Upon this they all mounted their horses, and rode first to Rome; and there they found the wives of Titus, and of Aruns, and of Sextus, feasting and making merry. They then rode on to Collatia, and it was late in the night, but they found Lucretia, the wife of Tarquinius of Collatia, neither feasting, nor yet sleeping, but she was sitting with all her handmaids around her, and all were working at the loom. So when they saw this, they all said, "Lucretia is the worthiest lady." And she entertained her husband and his kinsmen, and after that they rode back to the camp before Ardea.

THE RAPE OF LUCRETIA

But a spirit of wicked passion seized upon Sextus, and a few days afterwards he went alone to Collatia, and Lucretia received him hospitably, for he was her husband's kinsman. At midnight he arose and went to her chamber, and he said that if she yielded not to him, he would slay her and one of her slaves with her, and would say to her husband that he had slain her in her adultery. So when Sextus had accomplished his wicked purpose, he went back again to the camp.

Then Lucretia sent in haste to Rome, to pray that her father Spurius Lucretius would come to her; and she sent to Ardea to summon her husband. Her father brought along with him Publius Valerius, and her husband brought with him Lucius Junius, whom men call Brutus. When they arrived, they asked earnestly, "Is all well?" Then she told them of the wicked deed of Sextus, and she said, "If ye be men, avenge it." And they all swore to her, that they would avenge it. Then she said again, "I am not guilty; yet must I too share in the punishment of this deed, lest any should think that they may be false to their husbands and live." And she drew a knife from her bosom, and stabbed herself to the heart.

At that sight her husband and her father cried aloud; but Lucius drew the knife from the wound, and held it up, and said, "By this blood I swear, that I will visit this deed upon King Tarquinius, and all his accursed race; neither shall any man hereafter be king in Rome, lest he do the like wickedness." And he gave the knife to her husband, and to her father, and to Publius Valerius. They marvelled to hear such words from him whom men called dull; but they swore also, and they took up the body of Lucretia, and carried it down into the Forum; and they said, "Behold the deeds of the wicked family of Tarquinius." All the people of Collatia were moved, and the men took up arms, and they set a guard at the gates, that none might go out to carry the tidings to Tarquinius, and they followed Lucius to Rome. There, too, all the people came together, and the crier summoned them to assemble before the tribune of the Celeres, for Lucius held that office. And Lucius spoke to them of all the tyranny of Tarquinius and his sons, and of the wicked deed of Sextus. And the people in their curiæ took back from Tarquinius the sovereign power, which they had given him, and they banished him and all his family. Then the younger men followed Lucius to Ardea, to win over the army there to join them; and the city was left in the charge of Spurius Lucretius. But the wicked Tullia fled in haste from her house, and all, both men and women, cursed her as she passed, and prayed that the furies of her father's blood might visit her with vengeance.^b

NIEBUHR ON THE STORY OF LUCRETIA

This entire story, which Shakespeare himself put into poetry, has met with the wholesale scepticism that has visited all the Roman legends. But the incredulous Niebuhr, for one, accepts it: "It may easily be believed," he says, "that Sextus Tarquinius committed the outrage on Lucretia, for similar things are still of every-day occurrence in Turkey, and were frequently perpetrated in the Middle Ages by Italian princes down to the time of Pietro Luigi Farnese (in the sixteenth century); in antiquity similar crimes are met with in oligarchies and tyrannies, as is well known from the history of Demetrius Poliorcetes at Athens. Cicero is quite right in saying that it was a misfortune that Sextus hit upon a woman belonging to one of the most powerful families. It may readily be believed that the woman tried to avenge herself, but the whole of the subsequent events, by which the story acquired individuality and its connection with the campaign against Ardea, are of no historical value. The king is said to have been encamped before Ardea, and to have concluded a truce for fifteen years; but Ardea was dependent upon Rome before that time, since it occurs among the towns on behalf of which Rome concluded the treaty with Carthage. All therefore that remains and bears the appearance of probability, is that Lucretia was outraged, and that her death kindled the spark which had long been smouldering under the ashes.

"We are in the same perplexity in regard to the person of Brutus. He is said to have feigned stupidity in order to deceive the king, and there were several traditions as to the manner in which he attempted to accomplish this object. His mission to Delphi along with the sons of Tarquinius, although the mission from Agylla at an earlier period cannot be doubted, seems to betray a later hand, and probably the same as introduced the stories from Herodotus into Roman history. It is further said that Tarquinius, in order to render the dignity of *tribunus celerum* the highest after that of the king, powerless for mischief, gave the office to Brutus. But there is every reason for believing that the whole story of Brutus' idiocy arose solely from his name. Brutus is undoubtedly an Oscan word connected with the same root as Bruttii; it signifies 'a runaway slave,' a name which the insolent faction of the king gave to the leader of the rebels because he was a plebeian. How is it conceivable that a great king, such as Tarquinius really was, should have raised an idiot whom he might have put to death to the dignity of *tribunus celerum*—for the purpose of rendering it contemptible? Tarquinius was not a tyrant of such a kind as to be under the necessity of weakening the state in order to govern it; he might have given it

power and vigour and yet ruled over it by his great personal qualities; nor did the Romans think differently of him, for his statue continued to be preserved in the Capitol.”^f

THE BANISHMENT OF TARQUINIUS

Meanwhile King Tarquinius set out with speed to Rome to put down the tumult. But Lucius turned aside from the road, that he might not meet him, and came to the camp; and the soldiers joyfully received him, and they drove out the sons of Tarquinius. King Tarquinius came to Rome, but the gates were shut, and they declared to him, from the walls, the sentence of banishment which had been passed against him and his family. So he yielded to his fortune, and went to live at Cære with his sons Titus and Aruns. His other son, Sextus, went to Gabii, and the people there, remembering how he had betrayed them to his father, slew him. Then the army left the camp before Ardea, and went back to Rome. And all men said, “Let us follow the good laws of the good king Servius; and let us meet in our centuries, according as he directed, and let us choose two men year by year to govern us, instead of a king.” Then the people met in their centuries in the field of Mars, and they chose two men to rule over them, Lucius Junius, whom men called Brutus, and Lucius Tarquinius of Collatia.

But the people were afraid of Lucius Tarquinius for his name’s sake, for it seemed as though a Tarquinius were still king over them. So they prayed him to depart from Rome, and he went and took all his goods with him, and settled himself at Lavinium. Then the senate and the people decreed that all the house of the Tarquini should be banished, even though they were not of the king’s family. And the people met again in their centuries, and chose Publius Valerius to rule over them together with Brutus, in the room of Lucius Tarquinius of Collatia.

Now at this time many of the laws of the good king Servius were restored, which Tarquinius the tyrant had overthrown. For the commons again chose their own judges, to try all causes between a man and his neighbour; and they had again their meetings and their sacrifices in the city and in the country, every man in his own tribe and in his own district. And lest there should seem to be two kings instead of one, it was ordered that one only of the two should bear rule at one time, and that the lictors with their rods and axes should walk before him alone. And the two were to bear rule month by month.

Then King Tarquinius sent to Rome, to ask for all the goods that had belonged to him; and the senate after a while decreed that the goods should be given back. But those whom he had sent to Rome to ask for his goods, had meetings with many young men of noble birth, and a plot was laid to bring back King Tarquinius. So the young men wrote letters to Tarquinius, pledging to him their faith, and among them were Titus and Tiberius, the sons of Brutus. But a slave happened to overhear them talking together, and when he knew that the letters were to be given to the messengers of Tarquinius, he went and told all that he had heard to Brutus and to Publius Valerius. Then they came and seized the young men and their letters, and so the plot was broken up.

After this there was a strange and piteous sight to behold. Brutus and Publius sat on their judgment seats in the Forum, and the young men were brought before them. Then Brutus bade the lictors to bind his own two sons, Titus and Tiberius, together with the others, and to scourge them with rods, according to the law. And after they had been scourged, the lictors struck off their heads with their axes, before the eyes of their father; and Brutus neither stirred from his seat nor turned away his eyes from the sight, yet men saw as they looked on him that his heart was grieving inwardly over his children. Then they marvelled at him, because he had loved justice more than his own blood, and had not spared his own children when they had been false to their country, and had offended against the law.

When King Tarquinius found that the plot was broken up, he persuaded the people of Veii and the people of Tarquinii, cities of the Etruscans, to try to bring him back to Rome by force of arms. So they assembled their armies, and Tarquinius led them within the Roman border. Brutus and Publius led the Romans out to meet them, and it chanced that Brutus, with the Roman horsemen, and Aruns, the son of King Tarquinius, with the Etruscan horse, met each other in advance of the main battles. Aruns, seeing Brutus in his kingly robe, and with the lictors of a king around him, levelled his spear, and spurred his horse against him. Brutus met him, and each ran his spear through the body of the other, and they both fell dead. Then the horsemen on both parts fought, and afterwards the main battles, and the Veientes were beaten, but the Tarquinians beat the Romans, and the battle was neither won nor lost; but in the night there came a voice out of the wood that was hard by, and it said, "One man more has fallen on the part of the Etruscans than on the part of the Romans; the Romans are to conquer in the war." At this the Etruscans were afraid, and believing the voice, they immediately marched home to their own country, while the Romans took up Brutus, and carried him home and buried

him; and Publius made an oration in his praise, and all the matrons of Rome mourned for him for a whole year, because he had avenged Lucretia well.

When Brutus was dead, Publius ruled over the people himself; and he began to build a great and strong house on the top of the hill Velia, which looks down upon the Forum. This made the people say, "Publius wants to become a king, and is building a house in a strong place, as if for a citadel where he may live with his guards, and oppress us." But he called the people together, and when he went down to them, the lictors who walked before him lowered the rods and the axes which they bore, to show that he owned the people to be greater than himself. He complained that they had mistrusted him, and he said that he would not build his house on the top of the hill Velia, but at the bottom of it, and his house should be no stronghold. And he called on them to make a law, that whoever should try to make himself king should be accursed, and whosoever would might slay him. Also, that if a magistrate were going to scourge or kill any citizen, he might carry his cause before the people, and they should judge him. When these laws were passed, all men said, "Publius is a lover of the people, and seeks their good": and he was called Publicola, which means, "the people's friend," from that day forward.

Then Publius called the people together in their centuries, and they chose Spurius Lucretius, the father of Lucretia, to be their magistrate for the year, in the room of Brutus. But he was an old man, and his strength was so much gone, that after a few days he died. They then chose in his room Marcus Horatius.

Now Publius and Marcus cast lots which should dedicate the temple to Jupiter on the hill of the Capitol, which King Tarquinius had built; and the lot fell to Marcus, to the great discontent of the friends of Publius. So when Marcus was going to begin the dedication, and had his hand on the doorpost of the temple, and was speaking the set words of prayer, there came a man running to tell him that his son was dead. But he said, "Then let them carry him out and bury him"; and he neither wept nor lamented, for the words of lamentation ought not to be spoken when men are praying to the blessed gods, and dedicating a temple to their honour. So Marcus honoured the gods above his son, and dedicated the temple on the hill of the Capitol; and his name was recorded on the front of the temple.

PORSENNA'S WAR UPON THE ROMANS; THE STORY OF HORATIUS AT THE BRIDGE, AS TOLD BY DIONYSIUS

But when King Tarquinius found that the Veientes and Tarquinians were not able to restore him to his kingdom, he went to Clusium, a city in the farthest part of Etruria, beyond the Ciminian forest, and besought Lars Porsenna, the king of Clusium, to aid him. So Porsenna raised a great army, and marched against Rome, and attacked the Romans on the hill Janiculum, the hill on the outside of the city beyond the Tiber.^b

When the two armies charged, they both fought bravely and sustained the shock for a considerable time, the Romans having the advantage of their enemies both in experience and perseverance, and the Tyrrhenians and Latins being much superior in number. And, many being killed on both sides, fear seized the Romans; first, those on the left wing, when they saw their two commanders, Valerius, and Lucretius, carried out of the field wounded; after which, those on the right wing, who had already the advantage over the forces commanded by Tarquinius, seeing the flight of their friends, were possessed with the same terror. And all of them, hastening to the city, and endeavouring to force their way in a body over the same bridge, the enemy made a strong attack upon them; and the city having no walls in that part next the river, was very near being taken by storm, which had certainly happened if the pursuers had entered it at the same time with those who fled. But three men put a stop to the pursuit of the enemy and saved the whole army; two of these were Spurius Lartius and Titus Herminius among the elders, who had the command of the right wing; and of the younger, Publius Horatius, who was called Cocles from the loss of one of his eyes, which had been struck out in a battle; a person, of all men, the most remarkable for the fine proportion of his limbs, and for his bravery. This man was nephew to Marcus Horatius, one of the consuls, but derived his high birth from Marcus Horatius, one of the three brothers who overcame the three Albans. These three without other assistance, placing their backs against the bridge, stopped the passage of the enemy for a considerable time, and stood their ground while a shower of all sorts of weapons fell upon them, and numbers also pressed them sword in hand, till the whole army passed the river.

When they judged their own men to be in safety, two of them, Herminius, and Lartius, their defensive arms being now rendered useless by continual strokes, retreated leisurely; while Horatius alone, though not only the consuls, but the rest of the people, solicitous above all things to preserve such a man for his country and his parents, called to him from the city to retire, could not be prevailed on, but remained upon the same spot where he first stood, and directed Herminius and Lartius to desire the consuls, as from him, to order that

part of the bridge which was next the city immediately to be cut off (for there was but one bridge at that time, which was built of wood, and mortised together with timber alone, without iron, which the Romans preserve even to this day in the same condition) and that, when the greatest part of the bridge was broken down and little of it remained, they should give him notice of it by some signals, or by speaking louder than ordinary; as to the rest, he told them he would take care of it. Having given these directions to these two persons, he stood upon the bridge itself, and when the enemy advanced upon him, he struck some of them with his sword, and beating down others with his shield, he repulsed all who attempted to pass the bridge; for these looking upon him as a madman, and one who had devoted himself to destruction, durst no longer approach him; at the same time, it was not easy for them to come near him, because the river defended him on the right and left, and before him lay a heap of arms and dead bodies. But standing all at a distance, they threw spears, darts, and large stones at him, and those who were not supplied with these, threw the swords and bucklers of the slain. But he fought still, making use of their own weapons against them; and throwing these among the crowd, he could not fail, as may well be supposed, to hit somebody. And now, overwhelmed with missive weapons, and having a great number of wounds in many parts of his body, but one particularly, occasioned by a spear, which, passing over the top of his thigh, pierced the forepart of one of his hips, and putting him to great pain, impeded his motion. When hearing those behind him call out that the greatest part of the bridge was broken down, he leaped, with his arms, into the river, and swimming across the stream with great difficulty (for the current, being divided by the piles, ran swift, and formed large eddies), he landed without losing any of his arms.



HORATIUS DEFENDING THE BRIDGE OVER THE TIBER

This action gained him immortal glory, for the Romans immediately crowned him, and conducted him into the city with songs, as one of the heroes; and all the inhabitants ran out of their houses, desiring to have the last sight of him before he died, for it was thought he could not long survive his wounds. And when he was recovered, the people erected a brazen statue of him all armed, in the most conspicuous part of the Forum, and gave him as much of the public land as he himself could plough around in one day with a yoke of oxen. Besides these things bestowed upon him by the public, every particular man and woman in the city, at a time when they were all the most oppressed by a dreadful scarcity of necessary provisions, gave him as much as would maintain each of them one day, the number of people in the whole amounting to more than three hundred thousand. Thus Horatius, who had shown so great valour upon that occasion, was looked upon by the Romans with all possible admiration; but rendered useless by his lameness in the subsequent affairs of the commonwealth, and by reason of his calamity, he obtained neither the consulship nor any other military command.⁹

Caius Mucius and King Porsenna

But the Etruscans still lay before the city, and the Romans suffered much from hunger. Then a young man of noble blood, Caius Mucius by name, went to the senate, and offered to go to the camp of the Etruscans, and to slay King

Porsenna. So he crossed the river and made his way into the camp, and there he saw a man sitting on a high place, and wearing a scarlet robe, and many coming and going about him; and, saying to himself, "This must be King Porsenna," he went up to his seat amidst the crowd, and when he came near to the man he drew a dagger from under his garment, and stabbed him. But it was the king's scribe whom he had slain, who was the king's chief officer; so he was seized and brought before the king, and the guards threatened him with sharp torments, unless he would answer all their questions. But he said, "See now, how little I care for your torments"; and he thrust his right hand into the fire that was burning there on the altar, and he did not move it till it was quite consumed. Then King Porsenna marvelled at his courage, and said, "Go thy way, for thou hast harmed thyself more than me; and thou art a brave man, and I send thee back to Rome unhurt and free." But Caius answered, "For this thou shalt get more of my secret than thy tortures could have forced from me. Three hundred noble youths of Rome have bound themselves by oath to take thy life. Mine was the first adventure; but the others will each in his turn lie in wait for thee. I warn thee therefore to look to thyself well." Then Caius was let go, and went back again into the city.

But King Porsenna was greatly moved, and made the Romans offers of peace, to which they listened gladly, and gave up the land beyond the Tiber which had been won in former times from the Veientes; and he gave back to them the hill Janiculum. Besides this the Romans gave hostages to the king, ten youths and ten maidens, children of noble fathers, as a pledge that they would truly keep the peace which they had made. But it chanced as the camp of the Etruscans was near the Tiber, that Clœlia, one of the maidens, escaped with her fellows and fled to the brink of the river, and as the Etruscans pursued them, Clœlia spoke to the other maidens, and persuaded them, and they rushed all into the water, and swam across the river, and got safely over. At this King Porsenna marvelled more than ever, and when the Romans sent back Clœlia and her fellows to him, for they kept their faith truly, he bade her go home free, and he gave her some of the youths also who were hostages, to choose whom she would; and she chose those who were of tenderest age, and King Porsenna set them free. Then the Romans gave lands to Caius, and set up a statue of Clœlia in the highest part of the Sacred Way; and King Porsenna led away his army home in peace.

After this King Porsenna made war against the Latins, and his army was beaten, and fled to Rome; and the Romans received them kindly, and took care of those who were wounded, and sent them back safe to King Porsenna. For this

the king gave back to the Romans all the rest of their hostages whom he had still with him, and also the land which they had won from the Veientes. So Tarquinius, seeing that there was no more hope of aid from King Porsenna, left Clusium and went to Tusculum of the Latins; for Octavius Mamilius, the chief of the Tusculans, had married his daughter, and he hoped that the Latins would restore him to Rome, for their cities were many, and when he had been king he had favoured them rather than the Romans.

So, after a time, thirty cities of the Latins joined together and made Octavius Mamilius their general, and declared war against the Romans. Now Publius Valerius was dead, and the Romans so loved and honoured him that they buried him within the city, near the hill Velia, and all the matrons of Rome had mourned for him for a whole year: also because the Romans had the Sabines for their enemies as well as the Latins, they had made one man to be their ruler for a time instead of two; and he was called the master of the people, or the commander, and he had all the power which the kings of Rome had in times past. So Aulus Postumius was appointed master of the people at this time, and Titus Æbutius was the chief or master of the horsemen; and they led out the whole force of the Romans, and met the Latins by the lake Regillus, in the country of Tusculum: and Tarquinius himself was with the army of the Latins, and his son and all the houses of the Tarquinius; for this was their last hope, and fate was now to determine whether the Romans should be ruled over by King Tarquinius, or whether they should be free forever.

There were many Romans who had married Latin wives, and many Latins who had married wives from among the Romans. So before the war began, it was resolved that the women on both sides might leave their husbands if they chose, and take their virgin daughters with them, and return to their own country. And all the Latin women, except two, remained in Rome with their husbands: but the Roman women loved Rome more than their husbands, and took their young daughters with them, and came home to the houses of their fathers.

THE BATTLE OF LAKE REGILLUS

Then the Romans and the Latins joined battle by the lake Regillus. There might you see King Tarquinius, though far advanced in years, yet mounted on his horse and bearing his lance in his hand, as bravely as though he were still young. There was his son Tarquinius, leading on to battle all the band of the house of the Tarquinius, whom the Romans had banished for their name's sake,

and who thought it a proud thing to win back their country by their swords, and to become again the royal house, to give a king to the Romans. There was Octavius Mamilius, of Tusculum, the leader of all the Latins, who said, that he would make Tarquinius, his father, king once more in Rome, and the Romans should help the Latins in all their wars, and Tusculum should be the greatest of all the cities whose people went up together to sacrifice to Jupiter of the Latins at his temple on the high top of the mountain of Alba. And on the side of the Romans might be seen Aulus Postumius, the master of the people, and Titus Æbutius, the master of the horsemen. There also was Titus Herminius, who had fought on the bridge by the side of Horatius Cocles, on the day when they saved Rome from King Porsenna. There was Marcus Valerius, the brother of Publius, who said he would finish by the lake Regillus the glorious work which Publius had begun in Rome; for Publius had driven out Tarquinius and his house, and had made them live as banished men, and now they should lose their lives as they had lost their country. So at the first onset King Tarquinius levelled his lance, and rode against Aulus; and on the left of the battle, Titus Æbutius spurred his horse against Octavius Mamilius. But King Tarquinius, before he reached Aulus, received a wound into his side, and his followers gathered around him, and bore him out of the battle. And Titus and Octavius met lance to lance, and Titus struck Octavius on the breast, and Octavius ran his lance through the arm of Titus. So Titus withdrew from the battle, for his arm could no longer wield its weapon; but Octavius heeded not his hurt, but when he saw his Latins giving ground, he called to the banished Romans of the house of the Tarquinius, and sent them into the thick of the fight. On they rushed so fiercely that neither man nor horse could stand before them; for they thought how they had been driven from their country, and spoiled of their goods, and they said that they would win back both that day through the blood of their enemies.

Then Marcus Valerius, the brother of Publius, levelled his lance and rode fiercely against Titus Tarquinius, who was the leader of the band of the Tarquinius. But Titus drew back, and sheltered himself amidst his band: and Marcus rode after him in his fury, and plunged into the midst of the enemy, and a Latin ran his lance into his side as he was rushing on; but his horse stayed not in his career, till Marcus dropped from him dead upon the ground. Then the Romans feared yet more, and the Tarquinius charged yet more vehemently, till Aulus, the leader of the Romans, rode up with his own chosen band; and he bade them level their lances, and slay all whose faces were towards them, whether they were friends or foes. So the Romans turned from their flight, and Aulus and his chosen band fell upon the Tarquinius; and Aulus prayed, and vowed that he would raise a temple to Castor and to Pollux, the twin heroes, if

they would aid him to win the battle; and he promised to his soldiers that the two who should be the first to break into the camp of the enemy should receive a rich reward. When behold there rode two horsemen at the head of his chosen band, and they were taller and fairer than after the stature and beauty of men, and they were in the first bloom of youth, and their horses were white as snow. Then there was a fierce battle, when Octavius, the leader of the Latins, came up with aid to rescue the Tarquini; for Titus Herminius rode against him, and ran his spear through his body, and slew him at one blow; but as he was spoiling him of his arms, he himself was struck by a javelin, and he was borne out of the fight and died. And the two horsemen on white horses rode before the Romans; and the enemy fled before them, and the Tarquini were beaten down and slain, and Titus Tarquinius was slain among them; and the Latins fled, and the Romans followed them to their camp, and the two horsemen on white horses were the first who broke into the camp. But when the camp was taken, and the battle was fully won, Aulus sought for the two horsemen to give them the rewards which he had promised; and they were not found either amongst the living or amongst the dead, only there was seen imprinted on the hard black rock, the mark of a horse's hoof, which no earthly horse had ever made; and the mark was there to be seen in after ages. And the battle was ended, and the sun went down.

Now they knew at Rome that the armies had joined battle, and as the day wore away all men longed for tidings. And the sun went down, and suddenly there were seen in the Forum two horsemen, taller and fairer than the tallest and fairest of men, and they rode on white horses, and they were as men just come from the battle, and their horses were all bathed in foam. They alighted by the temple of Vesta, where a spring of water bubbles up from the ground and fills a small deep pool. There they washed away the stains of the battle, and when men crowded round them, and asked for tidings, they told them how the battle had been fought, and how it was won. And they mounted their horses, and rode from the Forum, and were seen no more; and men sought for them in every place, but they were not found.

Then Aulus and all the Romans knew how Castor and Pollux, the twin heroes, had heard his prayer, and had fought for the Romans, and had vanquished their enemies, and had been the first to break into the enemies' camp, and had themselves, with more than mortal speed, borne the tidings of their victory to Rome. So Aulus built a temple according to his vow to Castor and Pollux, and gave rich offerings, for he said, "These are the rewards which I promised to the two who should first break into the enemies' camp; and the twin

heroes have won them, and they and no mortal men have won the battle for Rome this day.”

So perished the house of the Tarquini, in the great battle by the lake Regillus, and all the sons of King Tarquinius, and his son-in-law Octavius Mamilius, were slain on that battle-field. Thus King Tarquinius saw the ruin of all his family and of all his house, and he was left alone, utterly without hope. So he went to Cumæ, a city of the Greeks, and there he died. And thus the deeds of Tarquinius and of the wicked Tullia, and of Sextus their son, were visited upon their own heads; and the Romans lived in peace, and none threatened their freedom any more.^b

Before leaving the Roman monarchy it is necessary to give a critical discussion of the myths of the kings as well as an estimate of their historical value. To do this we draw upon two of the most famous students of this period, Schwegler^c and Otto Gilbert.^d

THE MYTHS OF THE ROMAN KINGS CRITICALLY EXAMINED

Against Schlegel^h we have maintained the position that, in the first place, the traditional history of primitive Rome was not the work of a Greek but an indigenous product of Roman national life,^[8] in the second, that in its original form it was not the product of any literary activity whatever; against Niebuhr^f that it is not a creation of popular poetry but a result of deliberate reflection. The process by which it came into being we may conclude—conjecturally, of course—to have been as follows.

The genuine and veracious tradition of the foundation and earliest fortunes of Rome seems to have soon perished—if indeed it ever existed. This could hardly have been otherwise. It had neither been safeguarded against destruction or travesty by written records, nor cast into fixed traditional form, in song at least, by becoming the subject of popular poetry; and it was therefore in the nature of things that during the course of generations it should pass into silence and oblivion.

It is possible—it is even probable—that as far back as the decemvirate the Romans had no trustworthy information concerning the origin of their city. But they did not rest content in their ignorance. They felt the need of affirming something definite about that period and those events none the less strongly for their lack of historical knowledge, and on the foundation of dim memories and

isolated legends that had survived, of proper names, monuments, institutions, and customs, they therefore elaborated a superstructure of history to supply the gaps of tradition. There is not the slightest suggestion of conscious deceit or deliberate falsification of history in this; on the contrary they held in good faith that in these tales they had made successful guesses at the actual facts and thus reconstructed the original story—a naïve proceeding characteristic of myth-invention in general.

It is obvious that a history made up in this artificial fashion would not start as the connected whole presented to us in Roman historical works; this whole, in which the legend of the settlement of Æneas is brought into circumstantial relation with the founding and history of Alba Longa, and the dynasty of the Alban kings with the founding of Rome, so that the history of Rome and that of the antecedent period from the landing of Æneas to the fall of the younger Tarquin are held together by an unbroken thread of continuous historical narrative—this systematised whole must naturally have come into existence by a process of linking and welding together, the result, in part no doubt, of literary effort and reflection.



If we resolve this history into its component parts and examine each of these parts separately as to its origin and genetic motive, we perceive that the Roman legends and traditions take origin from very diverse sources and demand very diverse explanations.

First of all, we cannot but recognise that certain fundamental facts in the traditional history of the monarchy are historically true and derived from historical reminiscence. The memory of the most vital moments in the development of the Roman constitution survived, though much confused, down to the age of written records. Hence we cannot refuse a certain amount of credence to traditions relating to public law. The double state formed by the union of Romans and Sabines, the three original tribes, the succession in which they originated, the three centuries of knights, the successive augmentations of the senate till it reached the number of three hundred, the rise of a plebeian class,^[9] the creation of the inferior *gentes*, the

A ROMAN OFFICER

(After Vecellio)

introduction of the censorship, the fall of the monarchy, and the establishment of the republic—these fundamental facts of early constitutional history are in all likelihood historical in essence, even though the circumstantial details (more particularly the estimates of numbers) with which they are adorned and the relation of cause and effect in which they are placed by the historian may be due to the ingenuity, or construed according to the opinion, of posterity. Round this stock of fact, however, has twined a luxuriant growth of fiction, a garland of legend, the origin of which we will forthwith proceed to examine, and so exhibit it in the germ.

A distinction is generally and rightly drawn between legend and myth. The legend is a reminiscence of remarkable events transmitted from generation to generation by oral tradition, especially by means of popular poetry, tinged with the marvellous by the imaginative faculty, more or less arbitrarily, though without conscious intention. The myth is the exact opposite. Where the legend has a kernel of historic fact, merely adorned and exaggerated by the accompaniment of fiction, the kernel and genetic motive of the myth is, on the contrary, a particular idea, and the facts of the story are merely the medium or material used by the poet to set forth and impress this idea.

If we consider the primitive history of Rome from this point of view we cannot deny that it contains both legends and myths, according to the definition just given. To take some examples—the heroic deeds of a Horatius Cocles, a Mucius Scævola, or a Clœlia, may rank as legends; Brutus is a legendary figure; the battle of Lake Regillus is coloured with the hues of legend; as are Coriolanus' career of conquest, the destruction of the Fabii; and the march of Cincinnatus to Mount Algidus. On the other hand, we have a specimen of the myth in the begetting of Servius Tullius by the tutelary god of the Regia, a myth which expresses the idea that in this king the inmost spirit of the Roman monarchy was embodied.

A pure myth, again, and one which takes its rise from nature-symbolism, is the battle of Hercules (*i.e.*, of Sancus the sky-god) with Cacus who belches forth fire and smoke. We have an instance of the historic myth in that which refers the disparate elements of Roman national character, in which military and political capacity were so curiously blended with religious superstition, to the disparate personality of the two original founders of Rome, the one a military ruler, regulating the state and military affairs, the other a prince of peace, regulating the religion and the worship of the gods.

But the majority of Roman traditions fall neither under the definition of legend nor of purely notional myth. Most of these traditions are what we may call ætiological myths, that is to say, they relate events and transactions which have been devised or worked up to explain genetically some present fact, the existence or the name of a ceremony, a custom, a cult, an institution, a locality, a monument, a sanctuary, and so forth. The ætiological myth is a curious variety of the myth proper. It is a myth in so far as the actual occurrences which it narrates are pure invention, but it differs from the genuine myth in this, that its starting-point and motive is not an idea or mental conception, but some external accident which the narrative is intended to show cause for and explain.

Ætiological myths are primitive, and for the most part puerile attempts at historical hypothesis. The early history of Rome is very rich in ætiological myths of this sort; the settlement of Evander, the presence of Hercules in Rome, the story concerning the Potitii and Pinarii, the Nautians taking charge of and rescuing the Palladium, the sow with the litter of thirty, the rape of the Sabines, the fair one of Talassius, the fable of the Tarpeian, the foundation of the temple of Jupiter stator, the legends concerning the origin of the name of Lacus Curtius, the miracle of Attus Navius, and other legends of the same character may serve as examples, and will be explained from this point of view in the course of the present inquiry. Plutarch's^e *Roman Questions* is a rich and instructive collection of such ætiological myths.

A sub-variety of the ætiological myth is the etymological myth, which takes as its starting-point a particular proper name and tries to explain the origin of it by a substructure of actual fact. The primitive history of Rome is rich in myths of this class also, and a multitude of the fables contained in it have been spun out of proper names. Such are the fables of Argos, Evander's host; of the Argive colony in Rome; of the birth of Silvius Postumus in the forest; of the relations between the good Evander and the evil Cacus; the suckling of Romulus; the relation of the sucklings to the sacred fig-tree (*Ficus ruminalis*), the pretended origin of the Fossa Cluilia; the origin of the Tarquins from Tarquinii; the discovery of the head of Olor; the birth of Servius Tullius from a slave girl; the building of the Tullianum by the king of that name; the imbecility of Brutus; the burning of Scævola's right hand; the conquest of Corioli by Coriolanus; and so forth.

There is another variety of Roman legend which must be distinguished from the ætiological and etymological myth: the legend which may be described as the mythic garb of actual conditions and events, and which thus stands midway between legend and myth. To this class belong, for example, the legend of the

Sibyl who comes to Rome in the time of the younger Tarquin, and would have him buy nine books of divine prophecies for a great price, and who, being mocked by him, burns three books before his eyes, and yet another three, and finally sells the three remaining books to the king for the price she had asked at the beginning. There is not the slightest doubt that this legend is based on a substratum of fact, the fact that the Sibylline prophecies were probably brought from Cumæ to Rome under the second Tarquin, but this fact is clothed in a garb of poetical fiction; it is a cross between legend and myth. The same may hold good of the number of the Roman kings; these seven kings stand for and figure forth the seven fundamental facts of the ancient (pre-republican) history of Rome which have been held in historic remembrance.

Generally speaking, indeed, it is the peculiar and distinguishing characteristic of Roman myths that they are not, as a rule, pure inventions, not creations of the fancy, not, above all, like most of the tales of Greek mythology, myths based on natural philosophy or on nature-symbolism, but that they are historical myths, that a certain contemplation of actual conditions and real events lies at the bottom of them, either as the genetic motive or the raw material of the narrative. For instance, the figures of Romulus and Tatius are in themselves mythical; they never really existed, but the twofold sway ascribed to them has nevertheless something of historic truth in it; it is the mythical expression of actual historic conditions, the twofold state of the united Latins and Sabines. The same criticism applies to the conflict of Tarquinius Priscus with the augur Attus Navius; in the form in which it has been handed down it can hardly be historical; the story of the whetstone is a manifest fable, but none the less a real occurrence is imaged in it—namely, the historical conflict between the pre-Tarquinian hierarchy and the political ideas of the Tarquinian dynasty. In this way most of the myths and legends of primitive Roman history contain a deposit of historic memories and views, which can be recovered if each myth is traced back to the general fundamental conception which forms its genetic motive.

It should hardly be necessary to vindicate this view of primitive Roman history, and of the myth in general, against such objections as have recently been brought forward, as when the objectors profess to find the “frivolity” and the “vain and idle play of fancy” displayed in such myth-invention incompatible with the severity of manners and the practical genius of the old Roman races. These objections would only hit the mark if the myths were arbitrary and conscious inventions—if they were deliberate falsehoods. But this is so little their character that we may rather say that they are the only language in which a

race in a certain stage of civilisation could give expression to its thoughts and ideas. For example, at the stage which the Roman people had reached when the myth was invented, they had no vocabulary which could have furnished them with a definite and exhaustive exposition of the conflict between Tarquinian and pre-Tarquinian ideas in the body politic; and they therefore had recourse to the expedient of symbolising that conflict and the course of events connected with it, and presenting them in a single significant scene, a scene which, regarded empirically, is certainly non-historic, but which is nevertheless at bottom historically true.

Let us imagine any people feeling, in a particular stage of civilisation, the need of contemplating its original character, of forming a mental image of primitive conditions concerning which it has no historical knowledge, of basing its political and religious traditions upon their first causes—how can it satisfy this need except by myth-invention? As long as it is not intellectually mature enough to advance the statements which, on the basis of its present consciousness, it makes concerning its origin as historical hypotheses, it must of necessity express these statements in symbolical form, that is, in the language of myth.

In the foregoing pages we have shown the various motives and modes of origin of the Roman legends and traditions. The legends which originated in these ways were then spun out and linked together by rational reflection; and thus there gradually came into being the whole body of legendary lore which the Roman historians found ready to their hand and set down in writing. The legend of Silvius Postumus, the ancestor of the Alban Silvii, may serve as an example of this spinning-out process. This Silvius, the story goes, was so-called because he was born in the forest—evidently an etymological myth. Therefore, the deduction proceeds, at the time of his birth his mother Lavinia must have been sojourning in the forest; therefore, she must have fled thither, presumably after the death of her husband Æneas; therefore, probably in fear of her stepson Ascanius.

It is obvious that all these statements are not founded upon tradition but are mere sophistries. Similarly, the legend of the reputed origin of Rome from a mixed rabble, and the tale that for this reason the ambassadors whom Romulus sent with offers of connubium (the right to intermarry) to the neighbouring peoples were repulsed with scornful words, is certainly based on nothing but deductions and conclusions drawn from the (purely mythical) story of the rape of the Sabines. Again, the despotic power which Romulus is said to have exercised in the latter years of his reign, and the bodyguard with which he

surrounded himself, seem to be mere inferences drawn from the legend (likewise mythical in origin) of the tearing of his body piecemeal, to serve as an explanation for that enigmatical proceeding.

It is self-evident that it would be impossible to clear up every single point of the traditional history; but the mode of origin of the whole will have been made sufficiently plain by the foregoing observations.^c

The Historical Value of the Myths

Although as we proceed with critical examination we find abundant confirmation of a general kind for the assumption that the names of the Roman kings correspond severally to a like number of originally independent communities, it is nevertheless necessary to note at this stage more precisely a hypothesis which is of the greatest moment and consequence in the consideration and investigation of the early history of the city.

In the first place, there can be no doubt that the Tarquins are real historical personages, and must therefore be conceived of in quite another fashion than the more ancient figures about which the various genealogical legends centre, and whose historical existence is due to personification alone. By adding their names to the older names the pontifices arbitrarily connected two entirely different elements, which ought in reality to be kept quite apart. The more ancient figures only—Romulus, Titus Tatius, Tullus Hostilius, Ancus Marcius, and Servius Tullius—are personifications, and of them only does the statement hold good that they are the representatives of diverse and distinct communities and of diverse elements of nationality. Here as everywhere legend and history meet and mingle, combining into a single line personifications and genuine historical figures, which were originally cognate but not equivalent ideas.

As for the actual names of the kings, they, as we shall presently see in individual cases, are either the real names of the communities personified, or appellations taken from special conditions which characterised such communities; they always furnish some pregnant hint concerning the nature of the people personified. It is easy to understand how these names would ultimately stand forth as the names of kings: the “king” was the representative of the community before gods and men, and the nation, if personified, would naturally appear in the status and dignity of its legal representative. Accordingly, in the several Roman kings we must recognise a representation of the several communities under kingly rule which went to make up Rome, set forth under the figure of separate reigning monarchs.

Firmly as we must now hold to the kernel of historic truth underlying these regal figures, we must not disregard the possibility that they have been disguised, overlaid, and distorted, to a very great extent, by a quantity of extraneous accessories, mythical and fictitious.

The first point which we must bear in mind is that every legend of a nation, race, or community, is intimately connected with the religion of that nation or race. In other words, the legends of the ancestral hero, the eponym, tend to be confounded with the myths of the tribal divinity in course of time, the latter are set to the credit (in part at least) of the hero of the former, and the residuum of actual historic fact in the legend becomes more and more distorted and confused. This holds good in the case of the Roman kings. In considering them therefore these mythical elements must be discarded and left out of account.

We are next confronted by a unanimous tendency to make the kings, *i.e.* the communities personified in them, appear as Romans from the outset. The tendency is comprehensible: the name Roman took its rise originally from one community, but in the course of time it had become an honourable title common to all, the descriptive cognomen of all citizens of the conjoint city, and every man desired to pose as a Roman of the old stock, a good citizen of the Roman commonwealth. This was, however, in direct contravention of history. The greater number of these kings, *i.e.* of these communities, were in reality originally strangers or even enemies, the destiny of the city had frequently accomplished itself through deadly feuds and bloody battles, and if it had been thought desirable to insist on these facts the ancient history of the city would have worn a very different aspect from that with which we are familiar. But in that case a very questionable light would have been thrown on most of the elements out of which it had grown; and hence there was naturally a general endeavour to obliterate the traces of ancient conflict. The remembrance of those old-world struggles was intentionally confused, or effaced by fictitious additions, modified by tradition, or rejected altogether.

In the only, or almost the only version in which it is known to us, the picture drawn by later hands of the most ancient history of Rome, both of the monarchy and the early days of the republic, conveys no hint, or at least only the remotest, of the crises which the city and state must have passed through before taking the form in which it became the basis of a common life and activity to all elements of the community alike. The attitude assumed by this false patriotism is chiefly responsible for the falsification of the earlier history, especially the records connected with the names of the kings.

Again, a third force which we must take into consideration as exercising a dubious influence on the form into which the primitive history of the city was cast, is the singular love of combination which distinguished the Roman priests and antiquaries. The true and original meaning of the ancient traditions, institutions, and antiquated terms in civil and ecclesiastical law, had passed out of mind in the lapse of years, and yet there was a general desire for enlightenment and a right understanding of these things. Whereupon sacerdotal wisdom, which seldom rose above the level of the schoolboy, combined with an absolute freedom, nay, an amazing boldness of arbitrary interpretation, and attempted by this means to render the ancient and extinct legends, institutions, and ideas, clear and comprehensible. From its confined point of view the most superficial likenesses, the most trivial relations, were naturally the most highly favoured in the interpretation of these traditions, ideas, and institutions. Above all, we must lay stress in this connection upon the incredible passion of these exponents for etymology. The remotest assonance of words or phrases sufficed to bring the underlying ideas into connection in their minds and to make them derive the one circumstantially from the other. These combinations and interpretations are handed on to us by antiquaries who either made them out for themselves or borrowed them as authoritative explanations and definitions from the priestly circles, or the writings of pontifices, augurs, etc. In every single case the keenest critical acumen is required to separate these manufactured combinations and deductions from the genuine deposit of older traditions.

Finally we must mention, as the last force which contributed to the distortion of primitive Roman history, the unbounded vaingloriousness of later times. The Romans suffered—the expression is permissible—from the vastness of the proportions of their state and city at a subsequent period. Theoretically they could still persuade themselves and believe that Rome had once been small, but the realisation of the fact in practical detail was beyond them. Thus, in the idea of the city current in later days, it appears as a metropolis from the time of its foundation; the peasant fights become mighty wars skilfully conducted between powerful states and cities, detail and colour being provided by the observation and technical knowledge of a later date. Before attempting to explain the conditions of the Roman monarchy we must therefore always reduce them from the scale on which they are presented to us in this picture to the scale which really befits their original proportions. The gradual rise of the city, its inception and growth step by step from the federal union of villages and settlements, must first be sought for and studied in such instances as have remained free from the influence of sacerdotal handling and vainglory.^d

FOOTNOTES

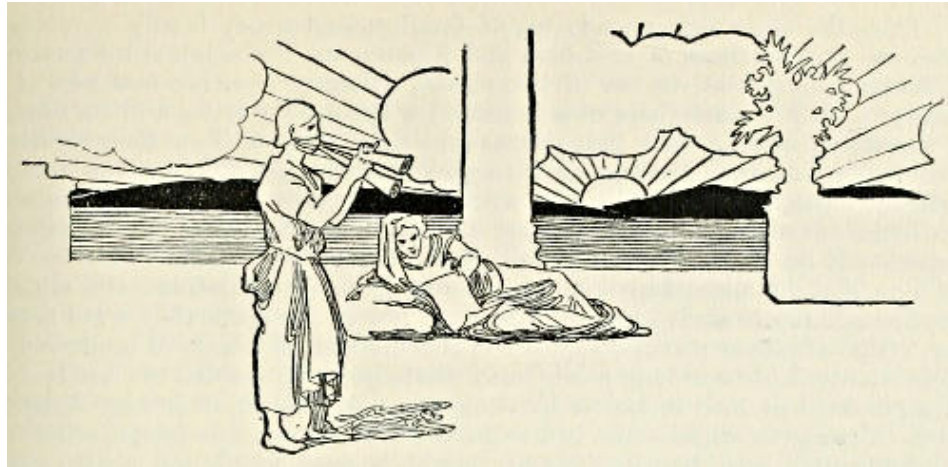
[8] [In his desire to claim an origin for Roman legends separate from the Greek, Schwegler exaggerates the position of his opponent. In his lecture on *The Influence of the Greeks over the Romans*, Schlegel repeatedly admits that the debt of Rome to Greece for legendary material does not imply a total absence of original Roman matter.]

[9] [Myth, or tradition, however, represents the plebeian class as existing from the beginning of the city, though most modern writers have assumed that the plebs rose later as a class of aliens or conquered slaves.]



COSTUME OF AN ETRUSCAN WOMAN OF
THE UPPER CLASS

(Based on Racinet)



CHAPTER V. CIVILISATION OF THE REGAL PERIOD

ORGANISATION OF THE STATE

[ca. 753-510 B.C.]

The people or citizens of Rome were divided into the three tribes of the Ramnes, Tities, and Luceres,^[10] to whatever races we may suppose them to belong, or at whatever time and under whatever circumstances they may have become united. Each of these tribes was divided into ten smaller bodies called *curiæ*; so that the whole people consisted of thirty *curiæ*: these same divisions were in war represented by the thirty centuries which made up the legion, just as the three tribes were represented by the three centuries of horsemen; but that the soldiers of each century were exactly a hundred, is apparently an unfounded conclusion.

We have said that each tribe was divided into ten *curiæ*; it would be more correct to say that the union of ten *curiæ* formed the tribe. For the state grew out of the junction of certain original elements; and these were neither the tribes, nor even the *curiæ*, but the *gentes*^[11] or houses which made up the *curiæ*. The first element of the whole system was the *gens* or house, a union of several families who were bound together by the joint performance of certain religious rites. Actually, where a system of houses has existed within historical memory, the several families who composed a house were not necessarily related to one another; they were not really cousins more or less distant, all descended from a common ancestor. But there is no reason to doubt that in the original idea of a house, the bond of union between its several families was truly sameness of blood: such was likely to be the earliest acknowledged tie; although afterwards, as names are apt to outlive their meanings, an artificial bond may have

succeeded to the natural one; and a house, instead of consisting of families of real relations, was made up sometimes of families of strangers, in the hope that law, and custom, and religion, might together rival the force of nature.

Thus the state being made up of families, and every family consisting from the earliest times of members and dependents, the original inhabitants of Rome belonged all to one of two classes: they were either members of a family, and, if so, members of a house, of a curia, of a tribe, and so, lastly, of the state; or they were dependents on a family; and, if so, their relation went no further than the immediate aggregate of families, that is, the house: with the curia, with the tribe, and with the state, they had no connection.

These members of families were the original citizens of Rome; these dependents on families were the original clients.

The idea of clientship is that of a wholly private relation; the clients were something to their respective patrons, but to the state they were nothing. But wherever states composed in this manner, of a body of houses with their clients, had been long established, there grew up amidst, or close beside them, created in most instances by conquest, a population of a very distinct kind. Strangers might come to live in the land, or more commonly the inhabitants of a neighbouring district might be conquered, and united with their conquerors as a subject people. Now this population had no connection with the houses separately, but only with a state composed of those houses: this was wholly a political, not a domestic relation; it united personal and private liberty with political subjection. This inferior population possessed property, regulated their own municipal as well as domestic affairs, and as free men fought in the armies of what was now their common country. But, strictly, they were not its citizens; they could not intermarry with the houses; they could not belong to the state, for they belonged to no house, and therefore to no curia, and no tribe; consequently they had no share in the state's government, nor in the state's property. With whatever belonged to the state in its aggregate capacity, these, as being its neighbours merely, and not its members, had no concern.

Such an inferior population, free personally, but subject politically, not slaves, yet not citizens, was the original plebs, the commons of Rome.^[12]

The mass of the Roman commons were conquered Latins. These, besides receiving grants of a portion of their former lands, to be held by them as Roman citizens, had also the hill Aventinus assigned as a residence to those of them who removed to Rome. The Aventine was without the walls, although so near to them: thus the commons were, even in the nature of their abode, like the

Pfahlbürger of the Middle Ages—men not admitted to live within the city, but enjoying its protection against foreign enemies.

It will be understood at once, that whatever is said of the people in these early times, refers only to the full citizens, that is, to the members of the houses. The assembly of the people was the assembly of the *curiæ*; that is, the great council of the members of the houses; while the senate, consisting of two hundred senators, chosen in equal numbers from the two higher tribes of the Ramnes and Tities, was their smaller or ordinary council.

Within the walls every citizen was allowed to appeal from the king, or his judges, to the sentence of his peers; that is, to the great council of the *curiæ*. The king had his demesne lands, and in war would receive his portion of the conquered land, as well as of the spoil of movables.

THE STATUS OF THE MONARCHY

The dominion and greatness of the monarchy are attested by two sufficient witnesses; the great works completed at this period, and still existing; and the famous treaty with Carthage, concluded under the first consuls of the commonwealth, and preserved to us by Polybius.^f Under the last kings the city of Rome reached the limits which it retained through the whole period of the commonwealth, and the most flourishing times of the empire. What are called the walls of Servius Tullius continued to be the walls of Rome for nearly eight hundred years, down to the emperor Aurelian. They enclosed all those well-known Seven Hills, whose fame has so utterly eclipsed the Seven Hills already described of the smaller and more ancient city.

The line of the mound or rampart may still be distinctly traced, and the course and extent of the walls can be sufficiently ascertained; but very few remains are left of the actual building. But the masonry with which the bank of the Tiber was built up, a work ascribed to the elder Tarquinius, and resembling the works of the Babylonian kings along the banks of the Euphrates, is still visible. So also are the massy substructions of the Capitoline temple, which were made in order to form a level surface for the building to stand on, upon one of the two summits of the Capitoline Hill. Above all, enough is still to be seen of the great cloaca or drain, to assure us that the accounts left us of it are not exaggerated. The foundations of this work were laid about forty feet under ground, its branches were carried under a great part of the city, and brought at last into one grand trunk which ran down into the Tiber exactly to the west of the Palatine

Hill. It thus drained the waters of the low grounds on both sides of the Palatine; of the Velabrum, between the Palatine and the Aventine; and of the site of the Forum between the Palatine and the Capitoline. The stone employed in the cloaca is in itself a mark of the great antiquity of the work; it is not the peperino of Gabii and the Alban hills, which was the common building stone in the time of the commonwealth; much less the travertino, or limestone of the neighbourhood of Tibur, the material used in the great works of the early emperors; but it is the stone found in Rome itself, a mass of volcanic materials coarsely cemented together, which afterwards was supplanted by the finer quality of the peperino. Such a work as the cloaca proves the greatness of the power which effected it, as well as the character of its government. It was wrought by task-work, like the great works of Egypt; and stories were long current of the misery and degradation which it brought upon the people during its progress. But this task-work for these vast objects shows a strong and despotic government, which had at its command the whole resources of the people; and such a government could hardly have existed, unless it had been based upon some considerable extent of dominion.

What the cloaca seems to imply, we find conveyed in express terms in the treaty with Carthage. As this treaty was concluded in the very first year of the commonwealth, the state of things to which it refers must clearly be that of the latest period of the monarchy. It appears then that the whole coast of Latium was at this time subject to the Roman dominion: Ardea, Antium, Circeii, and Tarracina, are expressly mentioned as the subject allies (ὕπηκοοι) of Rome. Of these, Circeii is said in the common story to have been a Roman colony founded by the last Tarquinius; but we read of it no less than of the others as independent, and making peace or war with Rome, during the commonwealth down to a much later period. Now it is scarcely conceivable that the Romans could thus have been masters of the whole coast of Latium, without some corresponding dominion in the interior; and we may well believe that Rome was at this time the acknowledged head of the Latin cities, and exercised a power over them more resembling the sovereignty of Athens over her allies than the moderate supremacy of Lacedæmon. On the right bank of the Tiber the Romans seem to have possessed nothing on the coast; but the stories of Etruscan conquests which we find in the common accounts of Servius Tullius, are so far justified by better testimony as to make it probable that in the direction of Veii the Roman dominion had reached beyond the Tiber, and that the territory thus gained from the Etruscans formed a very considerable part of the whole territory of Rome. It is well known that the number of local tribes established by the later kings was thirty; whereas a few years after the beginning of the

commonwealth we find them reduced to twenty. Now, as even the common account of the war with Porsenna describes the Romans as giving up to the Veientes a portion of territory formerly conquered from them, it becomes a very probable conjecture that the Etruscans, soon after the expulsion of the kings, recovered all the country which the kings had taken from them; and that this was so considerable in extent, that by its loss the actual territory of the Roman people was reduced by one-third from what it had been before.

It may thus be considered certain that Rome under its last kings was the seat of a great monarchy, extending over the whole of Latium on the one side, and possessing some considerable territory in Etruria on the other. But how this dominion was gained it is vain to inquire. There are accounts which represent all the three last kings of Rome, Servius Tullius no less than the two Tarquins, as of Etruscan origin. Without attempting to make out their history as individuals, it is probable that the later kings were either by birth or by long intercourse closely connected with Etruria, inasmuch as at some early period of the Roman history the religion and usages of the Etruscans gave a deep and lasting colouring to those of Rome; and yet it could not have been at the very origin of the Roman people, as the Etruscan language has left no traces of itself in the Latin; whereas if the Romans had been in part of Etruscan origin, their language, no less than their institutions, would have contained some Etruscan elements.

The Etruscan influence, however introduced, produced some effects that were lasting, and others that were only temporary; it affected the religion of Rome, down to the very final extinction of paganism; and the state of the Roman magistrates, their lictors, their ivory chairs, and their triumphal robes, are all said to have been derived from Etruria. A temporary effect of Etruscan influence may perhaps be traced in the overflow of the free constitution ascribed to Servius Tullius, in the degradation of the Roman commons under the last king, and in the endeavours of the patricians to keep them so degraded during all the first periods of the commonwealth. It is well known that the government in the cities of Etruria was an exclusive aristocracy, and that the commons, if in so wretched a condition they may be called by that honourable name, were like the mass of the people amongst the Slavonic nations, the mere serfs or slaves of the nobility. This is a marked distinction between the Etruscans, and the Sabine and Latin nations of Italy; and, as in the constitution of Servius Tullius a Latin spirit is discernible, so the tyranny which, whether in the shape of a monarchy or an aristocracy, suspended that constitution for nearly two centuries, tended certainly to make Rome resemble the cities of Etruria, and may possibly be

traced originally to that same revolution which expelled the Sabine gods from the Capitol, and changed forever the simple religion of the infancy of Rome.

RELIGION

It is a remarkable story that towards the end of the sixth century of Rome, the religious books of Numa were accidentally brought to light by the discovery of his tomb under the Janiculum. They were read by A. Petillius, the prætor urbanus, and by him ordered to be burned in the comitium, because their contents tended to overthrow the religious rites then observed in Rome. We cannot but connect with this story what is told of Tarquinius the elder, how he cleared away the holy places of the Sabine gods from the Capitoline Hill, to make room for his new temple; and the statement which Augustine quotes from Varro, and which is found also in Plutarch, that during the first hundred and seventy years after the foundation of the city, the Romans had no images of their gods.

All these accounts represent a change effected in the Roman religion; and the term of one hundred and seventy years, given by Varro and Plutarch, fixes this change to the reigns of the later kings. It is said also that Jupiter, Juno, and Minerva, the three deities to whom the Capitoline temple was dedicated, were the very powers whose worship, according to the Etruscan religion, was essential to every city; there could be no city without three gates duly consecrated, and three temples to these divinities. But here again we gain a glimpse of something real, but cannot make it out distinctly.

Images of the gods belong rather to the religion of the Greeks than of the Etruscans; and the Greek mythology, as well as Grecian art, had been familiar in the southern Etruscan cities from a very early period, whether derived from the Tyrrhenians, or borrowed directly from Hellas or the Hellenic colonies. Grecian deities and Greek ceremonies may have been introduced, in part, along with such as were purely Etruscan. But the science of the haruspices, and especially the attention to signs in the sky, to thunder and lightning, seems to have been conducted according to the Etruscan ritual; perhaps also from the same source came that belief in the punishment of the wicked after death, to which Polybius ascribes so strong a moral influence over the minds of the Romans, even in his own days. And Etruscan rites and ordinances must have been widely prevalent in the Roman commonwealth, when, as some writers asserted, the Roman nobility were taught habitually the Etruscan language, and when the senate provided by a special decree for the perpetual cultivation of the Etruscan

discipline by young men of the highest nobility in Etruria; lest a science so important to the commonwealth should be corrupted by falling into the hands of low and mercenary persons.

CONSTITUTION

Nothing is more familiar to our ears than the name of the classes and centuries of Servius Tullius; nothing is more difficult, even after the immortal labour of Niebuhr,^c than to answer all the questions which naturally arise connected with this part of the Roman history. But first of all, in considering the changes effected in the Roman constitution during the later period of the monarchy, we find another threefold division of them presenting itself. We have, first, the enlargement of the older constitution, on the same principles, in the addition to the number of senators and of the centuries of the knights, commonly ascribed to Tarquinius Priscus. Second, we have the establishment of a new constitution on different principles, in the famous classes and centuries of Servius Tullius. And, third, we have the overthrow, to speak generally, of this new constitution, and the return to the older state of things, modified by the great increase of the king's power, in the revolution effected by Tarquinius Superbus, and in his subsequent despotism.

The old constitution was enlarged upon the same principles, in the increase of the number of senators, and of the centuries of the knights. It has been already shown that the older constitution was an oligarchy, as far as the clients and commons were concerned; it is no less true, that it was democratical, as far as regarded the relations of the citizens, or members of the houses, to each other. Both these characters, with a slight modification, were preserved in the changes made by Tarquinius Priscus. He doubled, it is said, the actual number of senators, or rather of patrician houses; which involved a corresponding increase in the numbers of the senate; but the houses thus ennobled, to use a modern term, were distinguished from the old by the title of the "lesser houses"; and their senators did not vote till after the senators of the greater houses.



A VESTAL VIRGIN

According to the same system, the king proposed to double the number of the tribes, that is, to divide his newly created houses into three tribes, to stand beside the three tribes of the old houses, the Ramnes, Tities, and Luceres. Now as the military divisions of the old commonwealths went along with the civil divisions, the tribes of the commonwealth were the centuries of the army; and if three new tribes were added, it involved also the addition of three new centuries of knights or horsemen; and it is in this form that the proposed change is represented in the common stories. But here it is said that the interest of the old citizens, taking the shape of a religious objection, was strong enough to force the king to modify his project. No new tribes were created, and consequently no new centuries; but the new houses were enrolled in the three old centuries, so as to form a second division in each, and thus to continue inferior in dignity to the old houses in every relation of the commonwealth. It may be fairly supposed, that

these second centuries in the army were also second tribes and second *curiæ* in the civil divisions of the state; and that the members of the new houses voted after those of the old ones no less in the great council, the *comitia* of the *curiæ*, than in the smaller council of the senate.

The causes which led to this enlargement of the old constitution may be readily conceived. Whether Tarquinius was a Latin or an Etruscan, all the stories agree in representing him as a foreigner, who gained the throne by his wealth and personal reputation. The mere growth of the Roman state would, in the natural course of things, have multiplied new families, which had risen to wealth, and were in their former country of noble blood; but which were excluded from the *curiæ*, that is, from the rights of citizenship at Rome; the time was come to open to them the doors of the commonwealth; and a foreign king, ambitious of adding to the strength of his kingdom, if it were but for the sake of his own greatness, was not likely

to refuse or put off the opportunity. Beyond this we are involved in endless disputes and difficulties; who the Luceres were, and why Tarquinius raised them to a level with the old tribes, we never can determine.

That there were only four vestal virgins before, and that Tarquinius made them six, would certainly seem to show, that a third part of the state had hitherto been below the other two-thirds, at least in matters of religion; for it was always acknowledged that the six vestal virgins represented the three tribes of the Ramnes, Tities, and Luceres, two for each tribe. But in the additions made to the senate and to the centuries, the new citizens must have been more than a third of the old ones; and indeed here the story supposes that in military matters, at any rate, the Luceres were already on an equality with the Ramnes and Tities. It is enough therefore to say, that there had arisen at Rome so great a number of distinguished families, of whatever origin, or from whatever causes, that an extension of the rights of citizenship became natural and almost necessary: but as these were still only a small part of the whole population, the change went no further than to admit them into the aristocracy; leaving the character and privileges of the aristocracy itself, with regard to the mass of the population, precisely the same as they had been before.

But a far greater change was effected soon afterwards; no less than the establishment of a new constitution, on totally different principles. This constitution is no doubt historical, however uncertain may be the accounts which relate to its reputed author. "The good king Servius and his just laws," were the objects of the same fond regret amongst the Roman commons, when suffering under the tyranny of the aristocracy, as the laws of the good king Edward the Confessor amongst the English after the Norman conquest; and imagination magnified, perhaps, the merit of the one no less than of the other: yet the constitution of Servius was a great work, and well deserves to be examined and explained. Servius, like Tarquinius, is represented as a foreigner, and is said also, like him, to have ascended the throne to the exclusion of the sons of the late king. According to the account which Livy^d followed, he was acknowledged by the senate, but not by the people; and this, which seemed contradictory so long as the people, *populus*, and the commons, *plebs*, were confounded together, is in itself consistent and probable, when it is understood that the people, who would not acknowledge Servius, were the houses assembled in their great council

of the *curiæ*, and that these were likely to be far less manageable by the king whom they disliked, than the smaller council of their representatives assembled in the senate. Now supposing that the king, whoever he may have been, was unwelcome to what was then the people, that is, to the only body of men who enjoyed civil rights, it was absolutely necessary for him, unless he would maintain his power as a mere tyrant, through the help of a foreign paid guard, to create a new and different people out of the large mass of inhabitants of Rome who had no political existence, but who were free, and in many instances wealthy and of noble origin; who therefore, although now without rights, were in every respect well fitted to receive them.

The principle of an aristocracy is equality within its own body, ascendancy over all the rest of the community. Opposed to this is the system, which, rejecting these extremes of equality and inequality, subjects no part of the community to another, but gives a portion of power to all; not an equal portion however, but one graduated according to a certain standard, which standard has generally been property. Accordingly, this system has both to do away with distinctions and to create them; to do away, as it has generally happened, with distinctions of birth, and to create distinctions of property. Thus at Rome, in the first instance, the tribes or divisions of the people took a different form.

The old three tribes of Ramnes, Tities, and Luceres, had been divisions of birth, real or supposed; each was made up of the houses of the *curiæ*, and no man could belong to the tribe without first belonging to a curia, and to a house; nor could any stranger become a member of a house except by the rite of adoption, by which he was made as one of the same race, and therefore a lawful worshipper of the same gods. Each of these tribes had its portion of the *Ager Romanus*, the old territory of Rome. But now, as many others had become Romans in the course of time, without belonging to either of these three tribes, that is, had come to live under the Roman kings, many in Rome itself, and had received grants of land from the kings beyond the limits of the old *Ager Romanus*, a new division was made including all these; and the whole city and territory of Rome, except the Capitol, were divided into thirty tribes, four for the city, and twenty-six for the country, containing all the Romans who were not members of the houses, and classing them according to the local situation of their property. These thirty

tribes corresponded to the thirty curiæ of the houses; for the houses were used to assemble, not in a threefold division, according to their tribes, but divided into thirty, according to their curiæ: and the commons were to meet and settle all their own affairs in the assembly of their tribes, as the houses met and settled theirs in the assembly of their curiæ.

Thus then there were two bodies existing alongside of each other, analogous to the House of Lords and the House of Commons of England's ancient constitution, two estates distinct from and independent of each other, but with no means as yet provided for converting them into states-general or a parliament. Nor could they have acted together as jointly legislating for the whole nation; for the curiæ still regarded themselves as forming exclusively the Roman people, and would not allow the commons, as such, to claim any part in the highest acts of national sovereignty.^[13] There was one relation, however, in which the people and the commons felt that they belonged to one common country, in which they were accustomed to act together, and in which therefore it was practicable to unite them into one great body. This was when they marched out to war; then, if not equally citizens of Rome, they felt that they were alike Romans.

It has ever been the case, that the distinctions of peace vanish amidst the dangers of war; arms and courage, and brotherhood in perils, confer of necessity power and dignity. Thus we hear of armies on their return home from war stopping before they entered the city walls to try, in their military character, all offences or cases of misconduct which had occurred since they had taken the field: whereas when once they had entered the walls, civil relations were reassumed, and all trials were conducted according to other forms, and before other judges. This will explain the peculiar constitution of the comitia of centuries, which was a device for uniting the people and the commons into a national and sovereign assembly in their capacity of soldiers, without shocking those prejudices which as yet placed a barrier between them as soon as they returned to the relations of peace.

THE ORGANISATION OF THE ARMY

But in order to do this with effect, and to secure in this great assembly a preponderance to the commons, a change in the military organisation and tactics of the army became indispensable. In all aristocracies in an early

stage of society, the ruling order or class has fought on horseback or in chariots and their subjects or dependents have fought on foot. The cavalry service under these circumstances has been cultivated, that of the infantry neglected; the mounted noble has been well armed and carefully trained in warlike exercises, whilst his followers on foot have been ill armed and ill disciplined, and quite incapable of acting with equal effect. The first great step then towards raising the importance of the infantry, or in other words, of the commons of a state, was to train them to resist cavalry, to form them into thick masses instead of a thin extended line, to arm them with the pike instead of the sword or the javelin. Thus the phalanx order of battle was one of the earliest improvements in the art of war; and at the time we are now speaking of, this order was in general use in Greece, and must have been well known, if only through the Greek colonies, in Italy also. Its introduction into the Roman army would be sure to make the infantry from henceforward more important than the cavalry; that is, it would enable the commons to assert a greater right in Rome than could be claimed by the houses, inasmuch as they could render better service. Again, the phalanx order of battle furnished a ready means for giving importance to a great number of the less wealthy commons, who could not supply themselves with complete armour; while on the other hand it suggested a natural distinction between them and their richer fellows, and thus established property as the standard of political power, the only one which can in the outset compete effectually with the more aristocratical standard of birth; although in a later stage of society it becomes itself aristocratical, unless it be duly tempered by the mixture of a third standard, education and intelligence. In a deep phalanx, the foremost ranks needed to be completely armed, but those in the rear could neither reach or be reached by the enemy, and only served to add weight to the charge of the whole body. These points being remembered, we may now proceed to the details of the great comitia of Servius.

The traditional reformer, Servius Tullius, found the knights of Rome divided into three centuries of horsemen, each of which, in consequence of the accession to its numbers made by the last king, contained within itself two centuries, a first and a second. The old citizens, anxious in all things to keep up the old form of the state, had then prevented what were really six centuries from being acknowledged as such in name; but the present change extended to the name as well as the reality; and the three double centuries

of the Ramnes, Tities, and Luceres, became now the six votes (*sex suffragia*) of the new united assembly. To these, which contained all the members of the houses, there were now added twelve new centuries of knights,^[14] formed, as usual in the Greek states, from the richest members of the community, continuing, like the centuries below them, to belong to the thirty tribes of the commons.

Classes of Foot-soldiers

It remained to organise the foot-soldiers of the state. Accordingly, all those of the commons whose property was sufficient to qualify them for serving even in the hindmost ranks of the phalanx, were divided into four classes. Of these the first class contained all whose property amounted to one hundred and fifty thousand pounds' weight of copper. The soldiers of this class were required to provide themselves with the complete arms used in the front ranks of the phalanx; the greaves, the coat of mail, the helmet, and the round shield, all of brass; the sword, and the peculiar weapon of the heavy-armed infantry, the long pike. And as these were to bear the brunt of every battle, and were the flower of the state's soldiers, so their weight in the great military assembly was to be in proportion; they formed eighty centuries; forty of younger men, between the ages of fifteen and forty-five years complete; and forty of elders, between forty-five and sixty: the first to serve in the field, the second to defend the city. The second class contained those whose property fell short of 100,000 pounds of copper, and exceeded or amounted to 75,000 pounds. They formed twenty centuries, ten of younger men, and ten of elders; and they were allowed to dispense with the coat of mail, and to bear the large oblong wooden shield called scutum, instead of the round brazen shield, clipeus, of the first ranks of the phalanx. The third class contained a like number of centuries, equally divided into those of the younger men and elders; its qualification was property between 50,000 pounds of copper, and 75,000 pounds; and the soldiers of this class were allowed to lay aside the greaves as well as the coat of mail. The fourth class again contained twenty centuries; the lowest point of its qualification was 25,000 pounds of copper, and its soldiers were required to provide no defensive armour, but to go to battle merely with the pike and a javelin. These four classes composed the phalanx; but a fifth class divided into thirty centuries, and consisting of those whose property was between

25,000 pounds of copper and 12,500, formed the regular light-armed infantry of the army, and were required to provide themselves with darts and slings. ^[15]

The poorest citizens, whose property fell short of 12,500 pounds, were considered in a manner as supernumeraries in this division. Those who had more than 1,500 pounds of copper, were still reckoned amongst the taxpayers (*assidui*), and were formed into two centuries, called the *accensi* and *velati*. They followed the army, but without bearing arms, being only required to step into the places of those who fell; and in the meantime acting as orderlies to the centurions and decurions. Below these came one century of the *proletarii*, whose property was between 1,500 pounds and 375 pounds. These paid no taxes, and in ordinary times had no military duty; but on great emergencies arms were furnished them by the government, and they were called out as an extraordinary levy. One century more included all whose property was less than 375 pounds, and who were called *capite censi*; and from these last no military service was at any time required, as we are told, till a late period of the republic.

Three centuries of a different character from all the rest remain to be described, centuries defined not by the amount of their property, but by the nature of their occupation; those of carpenters and smiths (*fabrorum*); of hornblowers (*cornicines*); and of trumpeters (*tubicines*), or, as Cicero calls them (*liticines*). The first of these was attached to the centuries of the first class, the other two to the fourth. The nature of their callings so connected them with the service of the army, that this peculiar distinction was granted to them. ^[16]

The position held in the comitia by the patricians' clients is involved in great obscurity. We know that they had votes, and probably they must have been enrolled in the classes according to the amount of their property, without reference to its nature: at the same time Niebuhr^c thinks that they did not serve in the regular infantry along with the plebeians. It would seem from the story of the three hundred Fabii, and from the adventures related of Caius Marcius, that the clients followed their lords to the field at their bidding, and formed a sort of feudal force quite distinct from the national army of the commons, like the retainers of the nobles in the Middle Ages, as distinguished from the free burghers of the cities.

Such is the account transmitted to us of the constitution of the comitia of centuries. As their whole organisation was military, so they were accustomed to meet without the city, in the Field of Mars; they were called together, not by lictors, like the comitia of the curiæ, but by the blast of the horn: and their very name was “the Army of the City,” *Exercitus Urbanus*.

It is quite plain that this constitution tended to give the chief power in the state to the body of the commons, and especially to the richer class among them, who fought in the first ranks of the phalanx. For wherever there is a well-armed and well-disciplined infantry, it constitutes the main force of an army; and it is a true observation of Aristotle, that in the ancient commonwealths the chief power was apt to be possessed by that class of the people whose military services were most important: thus when the navy of Athens became its great support and strength, the government became democratical; because the ships were manned by the poorer classes.

POPULAR INSTITUTIONS

Other good and popular institutions were ascribed to the reign of Servius. As he had made the commons an order in the state, so he gave them judges out of their own body to try all civil causes; whereas before they had no jurisdiction, but referred all their suits either to the king or to the houses. These judges were, as Niebuhr^c thinks, the *centumviri*, the hundred men of a later period, elected three from each tribe, so that in the time of Servius their number would probably have been ninety.

To give a further organisation to the commons, he is said also to have instituted the festivals called Paganalia and Compitalia. In the tribes in the country, many strongholds on high ground, pagi, had been fixed upon as general refuges for the inhabitants and their cattle in case of invasion. Here they all met once a year to keep festival, and every man, woman, and child paid on these occasions a certain sum, which being collected by the priests gave the amount of the whole population. And for the same purpose, every one living in the city paid a certain sum at the temple of Juno Lucina for every birth in his family, another sum at the temple of Venus Libitina for every death, and a third at the temple of Youth for every son who came to the age of military service. The Compitalia in the city answered to the Paganalia in the country, and were yearly festivals in honour of the Lares or

guardian spirits, celebrated at all the compita, or places where several streets met.

Other laws and measures are ascribed to Servius, which seem to be the fond invention of a later period, when the commons, suffering under a cruel and unjust system, and wishing its overthrow, gladly believed that the deliverance which they longed for had been once given them by their good king, and that they were only reclaiming old rights, not demanding new ones. Servius, it is said, drove out the patricians from their unjust occupation of the public land, and ordered that the property only, and not the person, of a debtor should be liable for the payment of his debt.

Further, to complete the notion of a patriot king, it was said that he had drawn out a scheme of popular government, by which two magistrates, chosen every year, were to exercise the supreme power, and that he himself proposed to lay down his kingly rule to make way for them. It can hardly be doubted that these two magistrates were intended to be chosen the one from the houses and the other from the commons, to be the representatives of their respective orders.



RUINS OF A TEMPLE OF SATURN, ROME

But the following tyranny swept away the institutions of Servius, and much more prevented the growth of that society for which alone his institutions were fitted. No man can tell how much of the story of the murder of the old king and of the impiety of the wicked Tullia is historical; but it is certain that the houses, or rather a strong faction among them, supported Tarquinius in his usurpation: nor can we doubt the statement that the aristocratical brotherhoods or societies served him more zealously than the legal assembly of the curiæ; because these societies are ever to be met with in the history of the ancient commonwealths, as pledged to one another for the interests of their order, and ready to support those interests by any crime. Like Sulla in after-times, he

crushed the liberties of the commons, doing away with the laws of Servius, and, as we are told, destroying the tables on which they were written; abolishing the whole system of the census, and consequently the arrangement of the classes, and with them the organisation of the phalanx; and forbidding even the religious meetings of the Paganalia and Compitalia, in order to undo all that had been done to give the commons strength and union.

Further it is expressly said by Dionysius^e that he formed his military force out of a small portion of the people, and employed the great bulk of them in servile works, in the building of the circus and the Capitoline temple, and the completion of the great drain or cloaca; so that in his wars, his army consisted of his allies, the Latins and Hernicans, in a much greater proportion than of Romans. His enmity to the commons was all in the spirit of Sulla; and the members of the aristocratical societies, who were his ready tools in every act of confiscation, or legal murder, or mere assassination, were faithfully represented by the agents of Sulla's proscription, by L. Catilina and his patrician associates. But in what followed, Tarquinius showed himself, like Critias or Appius Claudius, a mere vulgar tyrant, who preferred himself to his order, when the two came into competition, and far inferior to Sulla, the most sincere of aristocrats, who, having secured the ascendancy of his order, was content to resign his own personal power, who was followed therefore by the noblest as well as by the vilest of his countrymen, by Pompey and Catulus no less than by Catiline.

Thus Tarquinius became hated by all that was good and noble amongst the houses, as well as by the commons; and both orders cordially joined to effect his overthrow. But the evil of his tyranny survived him; it was not so easy to restore what he had destroyed as to expel him and his family; the commons no longer stood beside the patricians as an equal order, free, wealthy, well armed, and well organised; they were now poor, ill armed, and with no bonds of union; they therefore naturally sank beneath the power of the nobility, and the revolution which drove out the Tarquins established at Rome not a free commonwealth, but on the other hand an exclusive and tyrannical aristocracy.

THE WEALTH OF THE ROMANS AND ITS SOURCES

Niebuhr^c has almost exhausted the subject of the Roman copper money. He has shown its originally low value, owing to the great abundance of the metal; that as it afterwards became scarce, a reduction in the weight of the coin followed naturally, not as a fraudulent depreciation of it, but because a small portion of it was now as valuable as a large mass had been before. The plenty of copper in early times is owing to this, that where it is found, it exists often in immense quantities, and even in large masses of pure metal on the surface of the soil. Thus the Copper Indians of North America found it in such abundance on their hills that they used it for all domestic purposes; but the supply thus easily obtained soon became exhausted.

The small value of copper at Rome is shown not only by the size of the coins, they having been at first a full pound in weight, but also by the price of the war-horse, according to the regulation of Servius Tullius, namely ten thousand pounds of copper.^[17] This statement, connected as it is with the other details of the census, seems original and authentic; nor considering the great abundance of cattle, and other circumstances, is it inconsistent with the account in Plutarch's life of Publicola, that an ox in the beginning of the commonwealth, was worth one hundred oboli, and a sheep worth ten; nor with the provisions of the Aternian law, which fixed the price of the one at one hundred asses and the other at ten.

The sources of wealth amongst the Romans, under their later kings, were agriculture, and also, in a large proportion, foreign commerce. Agriculture, indeed, strictly speaking, could scarcely be called a source of wealth; for the portions of land assigned to each man, even if from the beginning they were as much as seven jugera, were not large enough to allow of the growth of much superfluous produce. The *ager publicus*, or undivided public land, was indeed of considerable extent, and this as being enjoyed exclusively by the patricians might have been a source of great profit. But in the earliest times it seems probable that the greatest part of this land was kept as pasture; and only the small portions of two jugera, allotted by the houses to their clients, to be held during pleasure, were appropriated to tillage.^[18] The low prices of sheep and oxen show that cattle must have been abundant; the earliest revenue according to Pliny^g was derived from pasture; that is, the patricians paid so much to the state for their enjoyment of the *ager publicus*, which was left unenclosed as pasture ground; and all accounts speak of the great quantities of cattle reared in Italy from time immemorial. Cattle then

may have been a source of wealth; but commerce must have been so in a still greater degree.

The early foundation of Ostia at the mouth of the Tiber, ascribed to Ancus Marcius, could have had no object, unless the Romans had been engaged in foreign trade; and the treaty with Carthage, already alluded to, proves the same thing directly and undeniably. In this treaty the Romans are allowed to trade with Sardinia, with Sicily, and with Africa westward of the Fair Headland, that is, with Carthage itself, and all the coast westward to the Pillars of Hercules; and it is much more according to the common course of things that this treaty should have been made to regulate a trade already in activity, than to call it for the first time into existence. By this commerce great fortunes were sure to be made, because there were as yet so many new markets open to the enterprising trader, and none perhaps where the demand for his goods had been so steadily and abundantly supplied as to destroy the profit of his traffic.

But although much wealth must thus have been brought into Rome, it is another question how widely it was distributed. Was foreign trade open to every Roman, or was it confined to the patricians and their clients, and in a still larger proportion to the king? The king had large domains of his own, partly arable, partly pasture, and partly planted with vines and olives; hence he was in a condition to traffic with foreign countries, and much of the Roman commerce was probably carried on by the government for its own direct benefit, as was the case in Judea in the reign of Solomon. The patricians also, we may be sure, exported, like the Russian nobility, the skins and wool of the numerous herds and flocks which they fed upon their public land, and were the owners of trading ships, as it was not till three centuries afterwards that a law was passed with the avowed object of restraining senators, a term then become equivalent with patricians, from possessing ships of large burden.

All these classes then might, and probably did, become wealthy; but it may be doubted whether the plebeian landholders had the same opportunities open to them. Agriculture was to them the business of their lives; if their estates were ill cultivated, they were liable to be degraded from their order.

Beyond this we have scarcely the means of proceeding. Setting aside the tyranny ascribed to Tarquinius, and remembering that it was his policy to deprive the commons of their lately acquired citizenship, and to treat them like subjects rather than members of the state, the picture given of the wealth and greatness of Judea under Solomon may convey some idea of the state of Rome under its later kings. Powerful amongst surrounding nations, exposed to no hostile invasions, with a flourishing agriculture and an active commerce, the country was great and prosperous; and the king was enabled to execute public works of the highest magnificence, and to invest himself with a splendour unknown in the earlier times of the monarchy. The last Tarquinius was guilty of individual acts of oppression, we may be sure, towards the patricians no less than the plebeians; but it was these last whom he laboured on system to depress and degrade, and whom he employed, as Solomon did the Canaanites, in all the servile and laborious part of his undertakings. Still the citizens or patricians themselves found that the splendour of his government had its burdens for them also; as the great majority of the Israelites, amid all the peace and prosperity of Solomon's reign, and although exempted from all servile labour, and serving only in honourable offices, yet complained that they had endured a grievous yoke, and took the first opportunity to relieve themselves from it by banishing the house of Solomon from among them forever.^b

ROMAN EDUCATION

The aim of education in the family and in public life was to repress the freedom of the individual in the interest of the state, to make a nation of brave warriors and of dutiful citizens. The highest results of this stern training were reached in the Samnite wars,—a period known thereafter as the golden age of virtue and of heroism. A citizen of this time was, in the highest degree, obedient to authority, pious, frugal, and generally honest. But though he was willing to sacrifice his life for the good of the state, he was equally ready to enrich himself at the expense of his neighbours; the wealthy did not hesitate to sell the poor into slavery for debt, till they were forbidden to do so by law. Their hard, stern souls knew neither generosity nor mercy. Severe toward the members of their family, cruel in the treatment of slaves, and in their business transactions shrewd and grasping, the Romans of the time, however admirable for their heroic virtues, were

narrow, harsh, and unlovable. Greed was one of their strongest motives for conquest. Not for glory,—much less for the good of their neighbours,—did they extend their power over Italy; it was rather that more of the peasants might be supplied with farms and that the nobles might be given larger tracts of the public land and a greater number of places of honour and of profit to use and to enjoy.

As long as they remained poor and under strict discipline, they were moral. In the following period they were to gain greater freedom from the control of their magistrates and, at the same time, power and wealth. These new conditions were to put their virtue and even their government to the severest test.ⁱ

MORALS AND POLITICS OF THE AGE

It is difficult to form a clear idea of the moral character of the Roman people under its kings, because we cannot be sure that the pictures handed down to us of that period were not copied from the manners of a later time, and thus represent in fact the state of the Commonwealth rather than that of the Monarchy. Thus the simple habits of Lucretia seem copied from the matrons of the republic in the time of its early poverty, and cannot safely be ascribed to the princesses of the magnificent house of the Tarquini. Again, we can scarcely tell how far we may carry back the origin of those characteristic points in the later Roman manners, the absolute authority possessed by the head of a family over his wife and children. But it is probable that they are of great antiquity; for the absolute power of a father over his sons extended only to those who were born in that peculiar form of marriage called *connubium*, a connection which anciently could only subsist between persons of the same order, and which was solemnised by a peculiar ceremony called *confarreatio*; a ceremony so sacred, that a marriage thus contracted could only be dissolved by certain unwonted and horrible rites, purposely ordered as it seems to discourage the practice of divorce.

All these usages point to a very great antiquity, and indicate the early severity of the Roman domestic manners, and the habits of obedience which every citizen learned under his father's roof. This severity, however, did not imply an equal purity; *connubium* could only be contracted with one wife,



ROMAN YOUTH

(From a statue)

but the practice of concubinage was tolerated, although the condition of a concubine is marked as disreputable by a law so old as to be ascribed to Numa. And the indecency of some parts of the ancient religious worship, and the licence allowed at particular festivals, at marriages, and in the festal meetings of men amongst themselves, belong so much to an agricultural people, as well as to human nature in general, that these too may be safely presumed to be coeval with the very origin of the Roman nation.

But the most striking point in the character of the Romans, and that which has so permanently influenced the condition of mankind, was their love of institutions and of order, their reverence for law, their habit of considering the individual as living only for that society of which he was a member. This character, the very opposite to that of the barbarian and the savage, belongs apparently to that race to which the Greeks and Romans both belong, by whatever name, Pelasgian, Tyrrhenian, or Sicelian, we choose to distinguish it. It has indeed marked the Teutonic race, but in a less degree: the Celts have been strangers to it, nor do we find it developed amongst the nations of Asia: but it strongly characterises the Dorians in Greece, and the Romans; nor is it wanting among the Ionians, although in these last it was modified by that individual freedom which arose naturally from the surpassing vigour of their intellect, the destined well-spring of wisdom to the whole world. But in Rome, as at Lacedæmon, as there was much less activity of reason, so the tendency to regulate and to organise was much more predominant.

Accordingly we find traces of this character in the very earliest traditions of Roman story. Even in Romulus, his institutions go hand in hand with his deeds in arms; and the wrath of the gods darkened the last years of the warlike Tullus, because he had neglected the rites and ordinances established by Numa. Numa and Servius, whose memory was cherished

most fondly, were known only as lawgivers; Ancus, like Romulus, is the founder of institutions as well as the conqueror, and one particular branch of law is ascribed to him as its author, the ceremonial to be observed before going to war. The two Tarquini are represented as of foreign origin, and the character of their reigns is foreign also. They are great warriors and great kings; they extend the dominion of Rome; they enlarge the city and embellish it with great and magnificent works; but they add nothing to its institutions; and it was the crime of the last Tarquinius to undo those good regulations which his predecessor had appointed.

THE FINE ARTS

It is allowed, on all hands, that the works of art executed in Rome under the later kings, whether architecture or sculpture, were of Etruscan origin; but what is meant by "Etruscan," and how far Etruscan art was itself derived from Greece, are questions which have been warmly disputed. The statue of Jupiter in the Capitol, and the four-horsed chariot on the summit of the temple, together with most of the statues of the gods, were at this period wrought in clay; bronze was not generally employed till a later age. There is no mention of any paintings in Rome itself earlier than the time of the commonwealth; but Pliny⁹ speaks of some frescoes at Ardea and at Cære, which he considered to be older than the very foundation of the city, and which in his own age preserved the freshness of their colouring, and in his judgment were works of remarkable merit. The Capitoline temple itself was built nearly in the form of a square, each side being about two hundred feet in length; its front faced southwards, towards the Forum and the Palatine, and had a triple row of pillars before it, while a double row enclosed the sides of the temple. These, it is probable, were not of marble, but made either of the stone of Rome itself, like the cloaca, or possibly from the quarries of Gabii or Alba.

Of the Roman mind under the kings, Cicero knew no more than we do. He had seen no works of that period, whether of historians or of poets; he had never heard the name of a single individual whose genius had made it famous, and had preserved its memory together with his own. A certain number of laws ascribed to the kings, and preserved, whether on tables of wood or brass in the Capitol, or in the collection of the jurist Papirius, were

almost the sole monuments which could illustrate the spirit of the early ages of the Roman people. But even these, to judge from the few extracts with which we are acquainted, must have been modernised in their language; for the Latin of a law ascribed to Servius Tullius is perfectly intelligible, and not more ancient in its forms than that of the fifth century of Rome; whereas the few genuine monuments of the earliest times, the hymns of the Salii, and of the Brotherhood of Husbandry, *Fratres Arvales*, required to be interpreted to the Romans of Cicero's time like a foreign language; and of the hymn of the *Fratres Arvales* we can ourselves judge, for it has been accidentally preserved to our days, and the meaning of nearly half of it is only to be guessed at. This agrees with what Polybius says of the language of the treaty between Rome and Carthage, concluded in the first year of the commonwealth; it was so unlike the Latin of his own time, the end of the sixth and beginning of the seventh century of Rome, that even those who understood it best found some things in it which with their best attention they could scarcely explain. Thus, although verses were undoubtedly made and sung in the times of the kings, at funerals and at feasts, in commemoration of the worthy deeds of the noblest of the Romans and although some of the actual stories of the kings may perhaps have come down from this source, yet it does not appear that they were ever written; and thus they were altered from one generation to another, nor can any one tell at what time they attained to their present shape. Traces of a period much later than that of the kings may be discerned in them; and we see no reason to differ from the opinion of Niebuhr,^c who thinks that as we now have them they are not earlier than the restoration of the city after the invasion of the Gauls.

If this be so, there rests a veil not to be removed, not only on the particular history of the early Romans, but on that which we should much more desire to know—and which in the case of the Greeks stands out in such full light—the nature and power of their genius, what they thought, what they hated, and what they loved.^b

FOOTNOTES

[10] [Cf. [page 51, note 1.](#)]

[11] [According to Meyer,^h Botsford,ⁱ and others, however, the gens was not primitive, but a growth of the late regal and early republican periods; the city developing from the canton, a group of villages with a common place of refuge on a hill-top.]

[12] [Though this view of the status of the social ranks is that of the majority of modern authorities, certain prominent historians like Meyer^h are returning to the theory of the ancient writers—that the clients and the plebeians were citizens from the beginning, with the right of voting in the curiæ, and that the patricians were simply the nobles.]

[13] [Cf. [page 104, note.](#)]

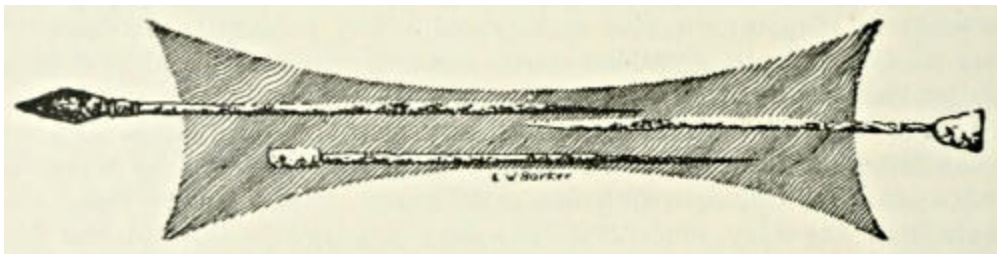
[14] [According to some writers this was not done till a century later.]

[15] [Doubtless in the original organisation the classes were based not upon the money value of property but upon the amount of land possessed by the citizens, the value being later represented by its money equivalent. It is also asserted that the first three classes formed the phalanx of heavy-armed infantry, whereas the last two classes composed the light-armed force. It is asserted further that the centuriate organisation applied only to the army in the field. Towards the end of the regal period, then, the army in active service would consist regularly of eighty-four centuries of infantry and six centuries of cavalry. All scholars agree that the so-called Servian organisation was purely military, and that the comitia centuriata gradually developed from it. The army and the comitia were never strictly identical in composition: cf. Soltau.^j]

[16] [There being in public life no difference between clients and plebeians, such stories as that of the Fabii and their clients may indicate the survival of a primitive military organisation after the phalanx was introduced.]

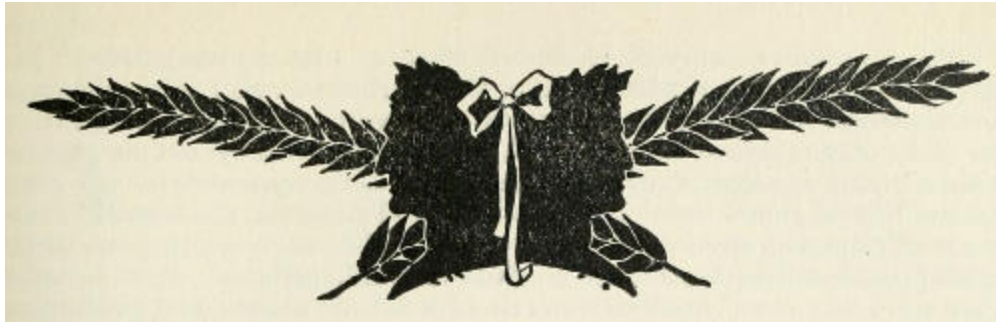
[17] [This valuation, however, originated after the coins had been lightened.]

[18] [More probably the clients received two jugera as private, hereditary property, while they tilled, as tenants or for hire, the arable lands of their lord.]



ROMAN WRITING IMPLEMENTS

(In the British Museum)



CHAPTER VI. THE FIRST CENTURY OF THE REPUBLIC

[510-451 B.C.]

The next task of the Romans was to regain the old position of Servius Tullius in Latium. Aided by the pressure constantly brought to bear on the Latins by the Volscians, the Romans also succeeded, in the year 493, in renewing with the former people their earlier alliance—an alliance based on perfect equality and reciprocity.^[19] Highly important, moreover, from a military point of view was the treaty concluded in 486 between the Romans and the Latins on the one side and the Hernicans on the other.

About this time began the lingering feuds between the Romans and their allies and the neighbouring populations on the line that reached from the Etruscan cities Veii and Fidenæ, through the country of the Sabines and the Æquians to the scattered colonies of the Volscians on the southern borders of Latium. These conflicts rarely bore the character of actual warfare, being confined for the most part to carrying on or repelling burning and marauding expeditions. Yet there was no lack, especially with the Etruscans, of more serious engagements which, as we shall see, had great influence in determining the future of Italy and the Romans. Meanwhile these struggles served the Romans as an excellent school of war; but their political importance was not nearly so great as that of the internal conflicts that marked the development of republican Rome.

The conditions in Rome after the expulsion of the Tarquins were similar to those which prevailed in Greece under what was called the Eupatridian rule. The supreme power which was formerly vested in the king, now passed into the hands of a magisterial body whose members were to be appointed by vote. These republican officials, now commonly called consuls, were then given the title of prætors; a title that since the time of the

decemvirs fell into disuse as designating the head of the state, but was later applied to the incumbents of a newly created office. The weight of the high civil, military, and judicial authority that passed from the hands of the king into those of the head of the republic, became considerably lessened by the action of causes that were, from their very nature, bound to make themselves more and more strongly felt. From the beginning of the republic, the Romans always placed two consuls at the head in order that the actions of the one might be under the restraining influence of the other's veto. The term of the highest office was never longer than one year. At the expiration of the year the consul returned to the class of citizens to which he belonged, but could at any time be called to account for his official acts.

This system of one-year tenure of office was later found to have grave defects: but so much a part was it of the patrician as well as the democratic republicanism of that day that it never occurred to any one to change it. To the eminently practical Roman mind, however, the disadvantages connected with a yearly change of officials must have been apparent in many ways. As the life of Rome developed in fulness and freedom, the "scribes," those lower officials who were permanently appointed to their posts, came to be of great importance in the actual conduct of public affairs. In time of war when naturally every head of the republic did not show equal qualifications for military leadership, the command of the army was given to some experienced general who was specially appointed by the proper authorities. When a consul was confronted by great and unexpected difficulties, he was empowered by the senate to appoint the best man of the state as dictator, and this dictator was in his turn to select as his assistant a master of horse—*magister equitum*. The dictatorship, which was for the term of but six months, had control over all minor offices, and as the dictator could not be held accountable, and as there was no appeal from his decisions, the patricians frequently had recourse, during the course of internal struggles, to the appointment of one, in order effectually to quell the plebeian opposition.

The consuls were preceded by but twelve lictors bearing the axe and fasces, while to the dictators were given twenty-four, like the kings in earlier days. Owing to the constant increase in the volume of public affairs the consuls frequently appointed, for the performance of certain duties, deputies, whose term of office expired with their own. Associated with the

consuls in the keeping of the state archives and treasure were the two quaestors, probably the same officials to whom was also entrusted the prosecution of criminals. Two commissioners were appointed by the consuls to judge cases of sedition and high treason; the consuls had further to select and instruct two private personages who were to decide all civil suits. The consuls had unlimited power to impose fines; and as punishment for disobedience to certain laws, notably those governing the recruiting service, could even pronounce sentence of death. In cases requiring corporal or capital punishment the consuls and their aids had jurisdiction in the first instance; but save in cases that came under martial law, delinquents whom they had condemned could after the foundation of the republic (by virtue of the Valerian law, 509 B.C.) appeal to the higher tribunal of the general assembly, this body having also, even before 451, entire jurisdiction in regard to heavy fines.

The most marked limitation of the consuls' power arose from the altered position of the senate towards them. According to formal law the senators stood in the same relation to the consuls as they did to the kings, being not above but under the head of the republic: who every four years, on the occasion of assessment for taxes, revised the list of senators and appointed new ones to fill whatever vacancies had occurred. Now, however, little by little, but ever more sensibly, began to be felt the enormous predominance held in all ages by any large aristocratic corporation whose members, all men of great political experience, have a life-long tenure of office, over functionaries who are appointed to their responsible positions for but the term of a single year. The senate represented the unity, and the firmly established traditions of Roman politics and rule. Not all the proud self-consciousness of a few powerful consuls could prevent the office as a whole from coming to be considered as merely the executive organ of the senate.

Since the foundation of the republic the people's assemblies had also assumed an entirely different character and position. The necessity felt by the governing power at the overthrow of the Tarquins, to make sure of the sympathy of the lower classes had brought the centuriate assembly—in which both patricians and plebeians were bound together for the rendering of important decisions—into great prominence. The function of this body extended to the election of consuls, to the ratification or rejection of measures proposed by the higher government, to the declaration of wars of

aggression, and lastly to the exercise of jurisdiction in criminal cases where appeal, now the privilege of the plebeian as well as of the noblest patrician, was permitted from the sentence of the quæstors.

PLEBEIANS AND PATRICIANS

The plebeians were soon forced to see, however, that under the new order all the advantages of public life fell to the patricians. If this class had at that time so far risen above its prejudices as to take into its own circles the more nearly related plebeian families, to admit them to equal marriage rights, to rights in the senate, and to eligibility for the various public offices; and if it had further opened the state's domains to the mass of plebeians, and striven by a just apportionment of the land to found a new and more contented peasant order, there would be no need now to write the account of a hundred and fifty years' struggle between these two classes. But instead of doing these things the Roman patricians displayed the most tenacious selfishness and greed—qualities manifested, it is true, in equal degree by all their plebeian kindred.

In matters pertaining to legal marriage, as well as in higher affairs of state, religious superstition played a very prominent part. It remained for some decades the honest belief of the patricians that they alone had the right of holding communications with the gods or of taking correct auspices, maintaining further that any intermingling by marriage with plebeian blood would impair if not destroy this power of reading signs. According to them, auspices taken by plebeians, being of no value, always failed in their effect; hence there could be no question of appointing plebeians to offices which were so indissolubly connected with the taking of public auspices.

Thus it came about that not long after the foundation of the republic, the *populus*, i.e., the patrician body, and the plebeian stood arrayed against each other like two entirely unrelated races—between whom there cannot possibly be any unity of feeling or equality of rights. Through absorption of the Sabellian clan of Appius Claudius—who, at variance with his own people, had gone over to the side of the Romans and at the head of five thousand followers had settled on the opposite shore of the Anio—the patrician party was much the stronger and more numerous, and having alone the right to make appointments to civil office and to the priesthood,

was the true guardian and promoter of the legal traditions and spiritual knowledge of the state.

The election of consuls was by no means carried on by free vote; rather, it appears, a list of nominees was made out beforehand by the presiding consul and the senate, from which the voters must choose, having the right at most to reject the candidates offered without that of substituting others in their places. Should the majority of votes fall to an opposition candidate, however, the presiding consul was neither obliged to recognise the votes nor to proclaim the candidate elected. The curiate assembly of the patricians alone had the right to confer by the passage of a *lex curiata de imperio*, the supreme power or *imperium* upon the successful candidate. In the beginning of the republic the system of allowing colleges of the priesthood to appoint their own members was introduced, as was also that of appointing isolated priests and vestals through the pontifical college—an institution modelled doubtless on that of the pontifex maximus.

It was not those plebeians who enjoyed greater material advantages who gave the first signs of dissatisfaction at the existing condition of things; neither was it in the domain of politics, using the word in a narrow sense, that the first reactionary movements were observed: the first epoch-making uprising of the plebs had its origin in the social condition of the poorer peasants and leaseholders.

This class had suffered long under the judicial system of the patricians, who decided all causes according to a code of laws unknown to the inferior orders; but still greater was the oppression felt from another source. It is undoubtedly true that there existed a scale of social importance among the patrician landholders themselves, and that the possessions of many of them did not exceed those of the better situated among the plebeians; yet in other directions there were open to them opportunities from which the plebeians were debarred. Many of the larger property owners among the patricians could be reckoned—there having as yet arisen in Rome no great and independent commercial class—as capitalists. The trade in products of the soil was entirely in the hands of these rich proprietors, who in common with the other patricians besides realised all the profits resulting from the exploitation of the public lands. A considerable portion of these lands could, with the consent of the government, be “temporarily” occupied and cultivated by patrician landowners on payment of a yearly rental—such

domains never to lose their character as state property, nor the government to release the right of remanding them at any time.

As a matter of fact, however, these terms were rarely kept, and the state domains were given away, sold, bequeathed or hypothecated exactly as though they had been private property. Apart from the illegality of such proceedings, they worked considerable harm to the plebeians, who deeply and bitterly resented the injustice shown by the authorities in exempting these estates from payment of rent and taxation. Whenever the situation of the state made it necessary to tax the patricians, it was their private property only that was assessed, and this made their condition, by reason of their large tax-free domains, greatly superior to that of the plebeians, who possessed only assessable lands. There was further the extreme severity shown in leaving free from impost the money capital of the patricians, while in the case of the plebeians no allowance was made for mortgages on their property.

We touch now upon the darkest spot in the situation of the poorer plebeians. The conflicts that had repeatedly broken out since the fall of the Tarquins, between the Roman populations and the neighbouring peoples, had pressed hard upon the plebeians. The successive calls to arms, the devastation of their lands, the plundering of their belongings, together with the heavy war-tax, formed an almost unsupportable burden, which was but little lightened by the declaration that the increase in impost would be looked upon by the government as a mere temporary advance and would be returned at a later period.

The pressure of these conditions plunged the greater part of the poorer leaseholders heavily in debt. The legal rate of interest was enormously high, considering the pecuniary shortage that prevailed—so high that it was welcomed by the plebeians as a great relief when later (probably 357 B.C.) the maximum was reduced to $8\frac{1}{3}$ or 10 per cent. In case of failure to pay the interest on a debt, the accumulated interest was added to the original debt until the amount owed was increased to an overwhelming figure. It was a menace to the internal peace of the country that the creditors of the peasants were usually their patrician neighbours who, as capitalists, were the only ones in a position to lend. Analogous to the course pursued in Attica a century before, the Roman manor lords were now about to make the situation of the plebs one of economic dependence upon themselves. Hence

in Rome, as in Attica, the first attack of the common people on the patrician classes was made on the ground of the extreme harshness of the Roman laws governing debt, framed, as they were, by a race which knew no mercy where its material interests were concerned. Sometimes the creditor, into whose hands the law gave complete possession of the person and property of the debtor, left this latter in nominal control and occupation of his land only to oppress him still further by demands for rent. To this arrangement the debtor frequently preferred taking advantage of the *nexum*, or usual form of loan contract under which he could place himself in bondage to the creditor to serve him as many years as were required to liquidate the debt, or until the creditor actually sold him as a slave in a foreign land.

It is no wonder that out of conditions so one-sided and oppressive, the deepest aversion should have arisen among the plebeians against the patrician rule. There were, indeed, some among the noble families who sought to establish better and more conciliatory relations between themselves and the lower people, notably the Valerii and the Horatii; but for the most part the patricians of those days were characterised by the harshest egotism and imperiousness. These qualities were particularly conspicuous in the Sabine Fabii, in the newly settled family of Appius Claudius,—who later displayed a certain eccentricity in good as well as evil that belied the usual conservative traits of the aristocracy,—and in the Quinctii and Manlii, who were the acknowledged supporters of a sort of iron military discipline to be applied in their relations with the lower classes.

From all this it will be seen that only by a movement bordering on a general revolution could a new political adjustment be brought about that would insure an amendment in the social condition of the plebeians.



ROMAN PEASANT

(After Racinet)

[495-457 B.C.]

According to the chronology, often faulty, of tradition, the distress of the plebeians and their consequent dissatisfaction had already, in the year 495 B.C., reached a momentous pitch. In 494 the plebs consented to serve only under the dictator Manius Valerius, beloved of the people, who conducted the first enlistments and met later with success in the field. But when his proposals looking to a modification of the laws against debtors fell through in the senate, the patience of the plebeians was at an end. Valerius, who was rightfully incensed, resigned his office; and the consuls of that year wishing to continue the war, the plebeian portion of the army withdrew from the main body and the patrician city, and under the conduct of their officers retired to the so-called “Sacred Mount” on the peninsula formed three Roman miles from Rome by the junction of the Anio and the Tiber.

This move was actuated by a desire on the part of the plebeians to cut themselves completely off from the rest of the people and establish themselves as an independent body at an entirely new point. The seriousness of the situation finally obliged the patricians and the senate to yield; and negotiations ensued, the effects of which were felt even as late as the imperial epoch.

The new compact between the two branches of the Roman population, to which was given an international form, provided that the plebeians residing in the state should be organised into an independent body, having their own official representatives that were to rival in power those of the patricians. In opposition to the consuls were placed two plebeian tribunes (usually called “people’s tribunes”) who were later increased in number to four, and after 457 to ten; who were appointed, according to all probability, by the state assemblies of the plebeians. Guardians of the community in the true sense of the word, their *ædiles* being ever at the service of the plebeians as police and general administration agents, these chosen tribunes had the right and duty to protect their fellow plebeians against injustice and maladministration on the part of the consuls, to resolutely uphold the right of appeal—in a word, to interfere whenever the interests of the plebeians seemed to be endangered. They were powerless only against the dictator and the military jurisdiction or *imperium* of the consuls outside the city. In Rome they had the right to prevent, by making prompt and personal protest,

the execution of any patrician order whereat a citizen might take offence; and also to block or veto any patrician measure recommended to the citizen body, which was found to be unjust. This was called the right of intercession, or the veto of the plebeian tribunes.

From these circumstances it ensued that no tribune could, after the 10th of December, the date of accession to office, pass a single night outside the city during the whole official year;^[20] his house, moreover, having to stand open night and day as a refuge for any who might need protection. To insure them perfect security in the performance of their duties the persons of the plebeian tribunes were declared “doubly sacred” and as such unassailable and inviolable. Whoever committed an attack on these personages was said to fall under the malediction of the gods and was, even according to earthly laws, adjudged guilty of a crime punishable with death. Hence every patrician, consuls included, who in any way infringed the tribunes’ rights, or offered them personal indignity could be held to strict account; in serious cases even arrested and brought before the tribunes themselves, who had power to inflict a penalty of fines or death. From their judgment however it was possible to appeal to the plebeian assemblies.

[457-390 B.C.]

Up to the time of the great wars with the Veientes and the Celts, the civil dissensions with which Rome was torn constantly grew in importance and menace, until shortly after the so-called decemviral period the class conflicts had assumed a character entirely different from that borne by them during the first half of the fifth century B.C. Before the great crisis ushered in by the decemvirate the work of the plebeian party leaders had been limited to bringing their state within a state to complete organisation, widening the breach that existed between the plebeians and the *populus*, or patrician body, and endeavouring by every means in their power to lessen the authority exercised by patrician officials over the plebeians. This period during which the two divisions of the Roman people met in a conflict of unexampled ferocity and hate, presents little that can be dwelt on with pleasure. Incidents of the most revolting nature arose from the extreme arrogance of the patrician youth; even the word assassination has frequently to be employed, while the internal strife had a serious effect on the fortunes of the nation in the wars it was constantly waging abroad. Yet even in those troubled times the foreign foe would singularly misreckon who counted on

the connivance of either patricians or plebeians to open to him the city's door, since when an external common danger threatened, the divided factions united as a rule to present a front solid and impenetrable as a wall of brass.

Fortunately for the future of Rome the bent towards a constantly widening separation between the plebeians and the patricians received, in the decemvir period, an entirely different turn. From that time the plebeian leaders were chiefly occupied in winning for their constituents their proper social and political position in the Roman state, with the balance leaning strongly, up to the decisive battle for the hegemony on the Apennine peninsula, to the side of the purely political questions of dispute. The sympathy of modern observers is almost entirely with the plebeians. The demands were moderate and the political views of the energetic honourable Roman peasants were immeasurably higher than those of the Greek democrats.^[21]

In spite of all the heat and passion evinced on both sides, revolution was the last thing the parties thought of up to the very time of the Gracchi. Whereas in Hellas the triumphant party rarely receded from a position once taken or abandoned any pretensions however lofty, the Roman peasant assemblies contented themselves with claiming merely what, according to our modern ideas, was their just due. Attacked as they frequently were in their deepest interests, the only revenge dreamed of by the plebeians was secession—the voluntary cutting of themselves adrift from the patrician state; and their end at last attained, in good qualities as in bad they manifested precisely the same robust qualities that characterised their patrician adversaries. Their subsequent acts fully justified their course, since in their public affairs they revealed a vigour and capacity well-nigh inexhaustible.

But we must not judge the patrician class too harshly; revolting as their laws against debtors appear to us, we are not justified in attributing their adroitly maintained policy of resistance purely to the arrogance and selfishness of a privileged class, nor their refusal to admit plebeians to equal marriage laws and municipal offices entirely to base hypocrisy. We must, moreover, take into account the natural hesitation of an old, experienced governing body to give the leadership in public affairs into the hands of new and untried elements; and the plebeians themselves, far from despising

the adversaries they so deeply hated, never failed to recognise those sterling qualities by which in peace and war they had achieved such signal service to the state, and elevated them to the position of models for their own character and conduct. And finally, at the decisive turning points in the evolution of Rome's ancient constitution, it was not before superior might that the patricians lowered their banner and reached out the hand of friendship to their foe; it was solely in obedience to their own patriotic perception of what was best for the state and to the force of inner necessity.

[510-452 B.C.]

The wonderful tenacity displayed by both the divisions of the people in their conflicts with each other, proclaims them to be of one blood, and to have in actual fact but one cause, that of their agricultural interests. This kinship further explains the conservative character of these struggles, and the aristocratic tendencies constantly to be observed in the Roman administration from the time of the complete triumph of the plebeians down to that of the elder Cato. It was these class struggles and the manner in which they were carried on that gave the Roman constitution, as it gradually developed through succeeding generations, that stability and elasticity that later excited in more than one Greek statesman feelings of envy.

One failure, however, was not spared this people, in spite of that practical sense that led them on only tried political ground, and caused them to advance by successive cautious steps rather than by means of dangerous innovations. It was precisely this conservative character maintained throughout by the Roman constitution that prevented the problems that confronted it from ever finding complete solution, that cumbered it with a number of empty, useless forms, and gave new life to certain dangerous elements—notably that of dualism—that were later, when the creative power of the people was on the wane and the national character for ability and skill about to disappear, to unfold in disastrous might.

The first period of inner dissensions, that extending to the middle of the fifth century B.C., has not completely been made known to us; historical accounts being so intermingled with myths and the chronicles and traditions of noble families as to be wholly unreliable. The period was certainly characterised, however, by incessant feuds with the neighbouring populations, and in the interior by the phase of the conflict between the

patricians and the plebeians which revealed the two factions under their least favourable aspect.

The resentment shown by the burghers and higher officials at the institution of the plebeian tribunes caused for a number of years the most common use of the latter's authority to be the protection from encroachment by the patricians and from the consequences of their own acts, such plebeians as had resisted unlawful taxation, or refused to render military service. The tribunes also, after 476 repeatedly upheld the rights of the plebeians in cases of breach of the compact with the patricians, and had the power to condemn any individual patrician who was guilty of such a breach to a heavy fine or even exile. Gradually the personal sanctity and inviolability of the tribunes had come to serve them as a means of aggression rather than of mere defence. Wherever they chose to interpose, all hindrances disappeared from their path; it was only when they contemplated some decided step that their fellow tribunes had the right to interfere, all important measures being adopted by a council of the tribunes.

This right of intercession soon assumed a high significance. Without actual legal right to resist the laws passed by patrician rulers the tribunes yet could, by simply declaring their readiness to support the plebeians in their passive stand against the demands of senate and consuls for troops of war, offer effectual opposition to the enforcement of the state's decrees. In this way they came to have a widely extended power of intervention, and at an early date they claimed the right of being present at all meetings of the senate. Unquestionably the mass of the citizens would gladly have seen the plebeian tribunes driven from office, and on both sides party hatred ran high. In this period tradition, untrustworthy as history, places the murder (473) of Genucius, the tribune, and the legend of Coriolanus.

SPURIUS CASSIUS AND THE FIRST AGRARIAN LAW

[494-466 B.C.]

The taxation abuses and the tyranny of the laws regulating debt, as well as the monopoly by patricians of state domains, had been allowed to go uncorrected until 494. In this year a high-minded citizen, Spurius Cassius Viscellinus, who was appointed consul for the third time in 486 and who then brought about the alliance with the Hernicans, as he had earlier, in 493,

brought about that with the Latins, took an important conciliatory step in agrarian matters by proposing that the public lands be surveyed and given out in grants to the poorer plebeians, the remaining portions to be rented to patricians under much stricter conditions of payment than formerly. His law, it appears, was passed, but was never actually enforced.^[22] Out of revenge his compeers hurled at him the accusation, fatal in republican Rome, of having aspired to mount the throne; and in the following year at the expiration of his term of office he was sentenced to death.

From this time until 466, when it was again driven into oblivion by the pressure of outside wars, the tribunes demanded the full enforcement of the *Lex Cassia*. Important advance in the development of the constitution was meanwhile made in another direction. With the institution of the tribunes, the informal, irregularly held meetings of the peasant assemblies were organised into the officially recognised diet of the whole plebeian body, which excluding the patricians and their clients (the latter now casting in their votes with the plebeians in the *centuriata*, thus considerably strengthening the position of the patricians in this assembly) broke up into smaller assemblies presided over by their tribunes and called the *comitia tributa* (or assembly of the tribes) from the twenty-one district tribes into which the new organisation had divided the plebeians. These assemblies or *comitia* offered an opportunity to the tribunes gradually to educate the commonalty up to the high political standard set by the ablest of the plebeians.

In this manner alone could the plebeians develop their full strength and importance as a class, since all the advantages conferred by ancient tradition and political routine, by a clear insight into their own needs, and a firmly established social, religious, and political position, were on the side of the patricians, the plebeians having further to contend against the disadvantage of being widely scattered over a great extent of territory and of having received no preparatory political training or instruction. It was precisely these hindrances to the advancement of their people that the more active among the tribunes set about to overcome. A series of truly notable plebeian statesmen now came to the fore, the most prominent among them being the Icili, the Virginii, and later the Duilii.

[492-452 B.C.]

As early as 492 an Icilius had passed a law making it a punishable crime to interrupt or in any way

disturb the tribunes when in the act of laying their criminal decisions before the plebeians in the assembly of the tribes. Furthermore the tribunes, preventing as they did any violent interruption of the process of development by holding the plebeians, in all their upward strivings, strictly to the line of legal right, came to be the most powerful factor in the gradual development and formation of the Roman constitution. In domestic legislation they also constantly took the initiative, being chiefly concerned in gaining for the tribal assembly and their proceedings—which latter as merely “legislative monologues” had hitherto remained without result—a recognised position in the magistracy of the state. The centuriate assembly was at that time of comparatively little service to the plebeians. The plebeians eligible to vote greatly outnumbered the patricians of the same class; yet the arrangement of “voices” in the centuriata was such that the patricians largely predominated. The first census class consisted of eighty centuries, the mass of the members possessing the least means being united into one, while the second, third, fourth, and fifth census classes—those formed of the peasantry of the middle class—were divided up into ninety centuries.



PUNISHMENT OF CASSIUS [\[23\]](#)

[482-452 B.C.]

It was long, however, before the tribunes gained for their tribal assembly the recognition of the state. It was as late as 482, that the commonalty was entirely bound to the choice of the consuls and senate in consular elections, and it was only in 473—when the uprising provoked by the murder of the tribune Genucius, brought an able and energetic plebeian, Volero Publilius, forward as leader of the plebs—that any important step was made in advance. In the year 471 this tribune, by securing the passage of a law providing that the election of the tribunes and ædiles should be ratified by the tribal assembly, raised this body to a position beside that of the national assembly as an organ of the state with a special function in state legislation. The right of the plebs to deliberate and render decisions in their separate assemblies was thus recognised, and their hope of one day taking “legislative initiative” made an actual fact. All measures proposed by them, drawn up in the form of petitions to the senate, must pass through the hands of the tribunes, and the senate had no longer the right to reject such proposals straightway, but must first take counsel upon them with the tribunes. In case of approval by the senate the rogations (where they did not relate exclusively to the affairs of the plebeians) were laid before the curiate assembly as the last step preliminary to their passage as laws. ^[24]

THE INSTITUTION OF THE DECENVIRATE

According to the fragmentary accounts that have been handed down there was a long cessation of the civil strife in consequence of the heavy burden of wars and pestilence under which Rome at one time laboured: but the old struggle was finally renewed under conditions that made possible an entire change of tactics on the part of the plebeian leaders. In the year 462 the tribune Caius Terentilius Harsa proposed a measure—adopted the following year by the united college of tribunes—that empowered the commonalty to appoint a committee of five plebeians who should frame certain laws for the limiting and regulating of the arbitrary power of punishment exercised by the consuls in suits against plebeians; just so much judicial power as the plebeian allowed him should the consul wield, but he was not to rule according to his own whim and pleasure. The aim of this measure was to complete the organisation of the plebs as an independent organ of the state, and to restrict as far as possible the functions of patrician magistrates in the

administration of justice. It naturally met with the most determined opposition on the part of the older citizens; and even the most liberal and clear sighted among the patrician statesmen were alarmed at this incursion of the plebeians into a new field, since the greatest sufferers from any increase in the rights and independence of the plebs that would inevitably widen the gulf already existing between governing power and people, would be themselves. Bitter and prolonged were the party struggles that ensued, the same tribunes being appointed year after year by the people's assemblies, while the senate and the older citizens, with equal obstinacy, rejected again and again the same old measures. The senate tried to conciliate the plebs by making other concessions, but in vain; finally in the year 457 it gave its consent to the number of the tribunes being increased to ten—a doubtful victory for the plebs, since among so many one or another could surely be found who could be induced by patrician influence to use his right of intercession against any plans of his colleagues that might be troublesome. [\[25\]](#)

[454-449 B.C.]

In one of the following years the consuls, A. Aternius and Sp. Tarpeius, passed a law limiting the hitherto unrestricted right of the consuls to impose property fines; according to its terms no man (except in cases of appeal) could be sentenced to a heavier fine than two sheep or thirty head of cattle in one day. In spite of all this the obstinacy of the people's party remained unshaken until the senate finally succeeded in effecting a compromise, whereby the power of the consuls to inflict punishment was considerably lessened, while the dangerous power of initial rogation by the tribunes was completely done away with. Between 454-452 an agreement with the tribunes was reached that both divisions of the Roman people should have a common civil and criminal code, and the codification of the new statute book was intrusted to a commission of ten men appointed by the comitia centuriata. The choice was made in 452, and the commissioners—decemvirs, so-called, including none but patricians—entered upon their functions May 15th, 451. A complete reorganisation of the old system being the work in hand, the magistrates, particularly consuls and tribunes, were, according to an ancient custom, suspended from office under a proviso that safeguarded the sworn rights and liberties of the commonalty, while it bound the tribunes not to make appeal to the people, and their full power was given into the hands of the new governing body.

The manner in which the decemvirs at first discharged their duties is well known; so great was the legislative ability they displayed that during their first year of office, 451, they brought to completion the main object of their work. A code was shortly after approved by the senate, and accepted by the comitia centuriata, and affixed in the form of ten copper tablets to the speaker's pulpit in the Forum. Ten new decemvirs were appointed for the year 450, and among these were several plebeians, the first non-aristocratic office holders to act as representatives for the entire Roman people. Whatever may have been the plan of the politicians of that day, it never reached fulfilment; as shortly after the completion of the new code, which comprised in all Twelve Tables, the decemvirate, headed by the brutally arrogant Appius Claudius,^[26] began to assume the character of the most intolerable despotism. Dissatisfaction reached its height when Appius Claudius and his associates attempted, against all legal right, to retain their office after the 15th of May, 449, and undertook war against the Sabines and the Æquians.^b

THE STORY OF VIRGINIA TOLD BY DIONYSIUS

[449 B.C.]

A plebeian, whose name was Lucius Virginius, a man inferior to none in military accomplishments, had the command of a century in one of the five legions that were employed against the Æqui; this person had a daughter, called from her father, Virginia, who far surpassed all the Roman virgins in beauty, and was promised in marriage to Lucius, formerly a tribune, the grandson of that Icilius who first instituted, and was first invested with, the tribunitian power. Appius Claudius, the chief of the decemvirs, having seen this virgin, who was now marriageable, as she was reading in a school (for the schools stood at that time near the Forum) he was presently captivated with her beauty, and the violence of his passion forcing him often to return to the school, his frenzy was, by this time, increased. But, finding it impossible for him to marry her, both because she was promised to another, and because he himself was married; and looking upon it, at the same time, to be below him to marry into a plebeian family, and contrary to the law, which he himself had inserted among those of the Twelve Tables, he first endeavoured to corrupt her with money; and, for that purpose, was continually sending some women to her governesses (for Virginia had lost

her mother) and gave them much, and promised more. The women he sent to tempt the governesses had orders not to acquaint them with the name of the man who was in love with Virginia, but only that he was a person who had it in his power to do good and bad offices to those he thought fit. When he found himself unable to gain the governesses, and saw the virgin guarded even with greater care than before, his passion was inflamed, and he resolved upon more audacious measures. Then, sending for Marcus Claudius, who was one of his clients, a daring man, and ready for any service, he acquainted him with his passion; and, having instructed him what he would have him do and say, he sent him away, accompanied with a band of the most profligate men. Claudius, going to the school, seized the virgin, and attempted to lead her away publicly through the Forum; but there being an outcry, and a great concourse of people, he was hindered from carrying the virgin to the place he had designed, and addressed himself to a magistrate. This was Appius, who was then sitting alone in the tribunal to hear causes, and administer justice to those who applied for it. But, when Claudius was going to speak, the people, who stood round the tribunal cried out and expressed their indignation, and all desired he might stay till the relations of the virgin were present. And Appius ordered it should be so. In a short time, Publius Numitorius, uncle to Virginia by her mother, a man of distinction among the plebeians, appeared with many of his friends and relations; and, not long after, came Lucius, to whom she had been promised by her father, accompanied with a strong body of young plebeians. He came to the tribunal out of breath, and labouring for respiration, and desired to know who it was had dared to lay hands upon a virgin, who was a Roman citizen, and what he meant by it.

All being silent, Marcus Claudius, who had laid hold on Virginia, spoke as follows: "I have committed neither a rash nor a violent action in relation to this virgin, Appius Claudius; but, as I am her master, I take her according to law. I shall now inform you by what means she is become mine. I have a female slave, who belonged to my father, and has served a great many years. This slave, being with child, was engaged by the wife of Virginius, whom she was acquainted with, and used to visit, to give her the child she should be brought to bed of; and, in performance of this promise, when delivered of this daughter, she pretended to us that she was brought to bed of a dead child, and gave the girl to Numitoria; who, having no children, either male, or female, took the child; and, supposing it, brought it up. For a

long time, I was ignorant of all this; but now being informed of it, and provided with many credible witnesses, and having also examined the slave, I fly to that law, which is common to all, and determines that the children shall belong to their mothers, not to those who suppose them; that, if the mothers are free, the children shall be free; if those are slaves, the children shall be slaves also; and that both the children and the mothers shall have the same masters. In virtue of this law, I desire that I may take the daughter of my slave, and I am ready to submit my pretensions to a trial; and, if any one claims her, to give sufficient sureties to produce her at the time appointed; but if they desire to have this affair speedily determined, I am willing this minute to plead my cause before you, and shall neither give security for her appearance, nor offer anything that may create a delay. Let them choose which of these conditions they like best.”

After Claudius had said this, and added many entreaties that his claim might not be less regarded than that of his adversaries, because he was his client, and of mean birth, the uncle of Virginia answered in few words, and those such as were proper to be addressed to a magistrate, saying, that Virginius, a plebeian, was the father of this girl, and then abroad in the service of his country; that Numitoria, his own sister, a woman of virtue and worth, was her mother, who died not many years before; that the virgin herself had been educated in such a manner as became a person of free condition, and a citizen of Rome; that she had been solemnly betrothed to Icilius, and that the marriage had taken effect, if the war with the Æqui had not intervened; that, during no less than fifteen years, Claudius had never attempted to aver anything of this kind to the relations of Virginia, but that now the virgin was marriageable, and of distinguished beauty, he was charmed with it, and published an infamous calumny, contrived not indeed by himself, but by a man who thought he had a right to gratify all his passions by all the methods he could invent. He added that, as to the trial, the father himself would defend the cause of his daughter when he returned from the campaign; and that, in the meantime, as he was her uncle, and ready to support her right, he himself claimed her person, to which he was entitled by the laws; and in this, he insisted upon nothing that was either new, or not allowed to every Roman, if not to every other man, which is, that if it is pretended that any person is a slave, not the man who maintains that he is so, but he who asserts his liberty, shall have the custody of that person, till the decision of the contest. And he said that Appius was obliged,

on many accounts, to observe this institution; first, because he had inserted this very law with the rest in the Twelve Tables; and, in the next place, because he was chief of the decemvirate; and, besides, that he was invested not only with the consular, but also with the tribunitian, power, the principal function of which was to relieve such of the citizens as were weak and destitute of all other help. He then desired him to compassionate a virgin, who fled to him for assistance, and who had long since lost her mother, and was then deprived of her father, and in danger of losing not only her paternal fortunes, but also her husband, her country, and, the greatest of all human blessings, her liberty. And, having lamented the abuse to which the virgin would be delivered up, and by that means raised great compassion in all present, he at last spoke of the time to be appointed for the decision of this cause. [He urged that he be given custody of the girl until the return of her father. Appius however refused this request. Icilius, the virgin's betrothed lover, protested that the outrage should never be consummated while he lived.]

Icilius was going on, when the lictors, by order of the magistrate, kept him off from the tribunal, and commanded him to obey the sentence. Upon which Claudius laid hold on the virgin, and was going to take her away, while she hung upon her uncle, and her spouse. The people, who stood round the tribunal, seeing her in so moving an agony, cried out all at once, and, without regarding the authority of the magistrate, fell upon those who were endeavouring to force her away. So that Claudius, fearing the violence, quitted Virginia, and fled for refuge under the feet of the decemvir. Appius, seeing all the people in a rage, was at first greatly disordered, and in doubt for a considerable time what measures to take; then calling Claudius to the tribunal, and speaking a few words to him, as it seemed, he made a sign for the audience to be silent, and said: "Since I find you are exasperated at the sentence I have pronounced, citizens, I shall waive the exactness of that part of it which relates to the giving sureties by Claudius for the appearance of Virginia; and, in order to gratify you, I have prevailed upon my client to consent that the relations of the virgin shall bail her till the arrival of her father. Take away the virgin, therefore, Numitorius, and acknowledge yourself bound for her appearance to-morrow. For this time is sufficient for you both to give Virginius notice to-day, and to bring him hither in three or four hours from the camp to-morrow." And they

desiring further time, he gave no answer, but rose up, and ordered his seat to be taken away.

He left the Forum full of anguish, distracted with love, and determined not to relinquish the virgin any more to her relations; but when she was produced by her surety, to take her away by force; to place a stronger guard about his person, in order to prevent any violence from the multitude, and early to post a great number of his friends and clients round the tribunal. That he might execute this resolution with a show of justice under the pretence of the non-appearance of the father, he sent some horsemen, whom he chiefly confided in, to the camp with letters for Antonius, who commanded the legion in which Virginius served, to desire he would detain the man in safe custody, lest, when he was informed of the situation of his daughter, he might escape out of the camp. But his design was prevented by the son of Numitorius, and the brother of Icilius, who being sent away by the rest of her relations upon the first motion of this affair, as they were young, and full of spirit, rode full speed; and, arriving at the camp before the men sent by Appius, informed Virginius of everything which had passed; who, going to Antonius, and concealing the true cause of his request, pretended that he had received an account of the death of some near relation, whose funeral and burial he was obliged by the law to perform; and, by that means obtained his dismissal; and, setting out in the evening with the youths, he took a byroad for fear of being pursued both from the camp, and the city; which really happened; for Antonius, having received the letters about the first watch, detached a party of horse after him, and others, sent from the city, patrolled all night in the road that led from the camp to Rome. When Appius was informed of the unexpected arrival of Virginius, he was in a fury; and, going to the tribunal with a great number of attendants, ordered the relations of Virginia to appear. When they were come, Claudius repeated what he had said before, and desired Appius to decide the contest without delay, saying that both his informer and his witnesses were present, and that he was ready to deliver up the slave herself to be examined. He ended all with a feigned lamentation, grounded on a supposed fear of not obtaining the same justice with others, as he had said before, because he was his client; and also with desiring that Appius would not relieve those whose complaints were the most affecting, but whose demands were the most equitable.

On the other side, the father of the virgin, and the rest of her relations, brought many just and well-grounded proofs to show the child could not have been supposed; alleging that the sister of Numitorius, and wife of Virginius, could have no probable reason to suppose a child, since she was then young, and married to a young man, and had brought forth a child no very considerable time after her marriage; neither, if she had been ever so desirous to introduce a foreign offspring into her own family, would she have taken the child of another person's slave, rather than that of a free woman united to her by consanguinity, or friendship, whose fidelity might have secured to her the possession of the child she had taken; and, when she had it in her power to take either a male or a female child, she would have certainly chosen the former. For, after a woman is brought to bed, if she wants children, she must necessarily be contented with, and bring up, whatever nature produces; whereas, a woman who supposes a child will, in all probability, choose one of that sex which excels the other. As to the informer, and the credible witnesses which Claudius said he would produce in great numbers, they disproved their testimony by this reason, drawn from probability, that Numitoria would never have done a thing openly, and in conjunction with witnesses of free condition, which required secrecy, and might have been transacted by one person, and, by that means, have exposed herself to have the girl taken from her by the master of the mother, after she had brought her up.

While they were alleging these reasons, and many others of equal weight, and such as could admit of no reply, and at the same time representing the calamities of the virgin in a very affecting manner, all who heard them, when they cast their eyes upon her, compassionated the distresses in which her beauty had involved her (for, being dressed in mourning, her looks fixed on the ground, and the lustre of her eyes drowned in tears, she attracted the regard of all the spectators; such was her beauty, and such her grace, that she appeared more than mortal), and all bewailed this unexpected turn of fortune, when they considered from what prosperity she was fallen, and to what abuses and insults she was going to be exposed. They also reflected that, since the law which had secured their liberty was violated, nothing could hinder their own wives and daughters also from suffering the same treatment. While they were making these, and the like reflections, and communicating them to one another, they could not refrain from tears. But Appius, who was not in his nature a man of sense, being then corrupted

with the greatness of his power, his mind distempered, and his heart inflamed with the love of Virginia, paid no regard to the reasons alleged in her favour, nor was moved with her tears, but even resented the compassion shown to her by the audience; since he looked upon himself to deserve greater compassion and to suffer greater torments from that beauty which had enslaved him. Wrought up to madness, therefore, by all these incentives, he had the confidence both to make a shameless speech, by which he plainly confirmed the suspicion that he himself had contrived the calumny against the virgin, and to commit a tyrannical and cruel action.

For, while they were going on to plead in her favour, he commanded silence; and all being silent, and the people in the Forum flocking to the tribunal from a desire to hear what he would say, he often turned his eyes here and there to observe the number of his friends, who by his orders had posted themselves in different parts of the Forum, and then spoke as follows: "This is not the first time, Virginius, and you who attend with him, that I have heard of this affair; I was informed of it long ago, even before I was invested with this magistracy. Hear now by what means it came to my knowledge: The father of this Marcus Claudius, when he was dying, desired me to be trustee for his son, whom he was leaving an infant; for the Claudii are hereditary clients to our family. During the time of this trust, I had information given me that Numitoria had supposed this girl, whom she had received from the slave of Claudius; and, upon examining into the matter, I found it was so. As it did not become me to stir in this affair myself, I thought it best to leave it to this man, when he grew up, either to take away the girl if he thought fit, or to come up to an accommodation with those who had brought her up, for a sum of money, or to gratify them with the possession of her. Since that time, being engaged in public affairs I gave myself no further concern about those of Claudius. But it is probable that when he was taking an account of his own fortunes he also received the same information concerning this girl which had before been given to me; neither does he claim anything unwarranted by law, in desiring to take the daughter of his own slave. If they would have accommodated this matter, it had been well; but, since it is brought into litigation, I give this testimony in his favour, and decree him to be the master of the girl."

When those who were uncorrupted and friends of justice heard this sentence, they held up their hands to heaven, and raised an outcry mixed

with lamentation and resentment; while the flatterers of the oligarchy gave acclamations capable of inspiring the men in power with confidence. And the assembly being inflamed and full of various expressions and agitations, Appius commanded silence, and said: "Disturbers of the public tranquillity, and useless both in peace and war, if you cease not to divide the city and to oppose us in the execution of our office, necessity shall teach you to submit. Think not that these guards in the Capitol and the fortress are placed there by us only to secure the city against a foreign enemy, and that we shall suffer you to sit here and taint the administration of the government. Be more prudent for the future than you are now; depart all of you who have nothing to do here, and mind your own affairs, if you are wise. And do you, Claudius, take the girl, and lead her through the Forum without fearing anyone, for the twelve axes of Appius shall attend you." After he had said this, the people withdrew from the Forum, sighing, beating their foreheads, and unable to refrain from tears; while Claudius was taking away the virgin, who hung round her father, kissing him, and calling upon him with the most endearing expressions. In this distress Virginius resolved upon an action, deplorable indeed, and afflicting for a father, but at the same time becoming a lover of liberty and a man of great spirit; for, having desired leave to embrace his daughter for the last time without molestation, and to say what he thought fit to her in private before she was taken from the Forum, he obtained it from the magistrate; and his enemies retiring a little, he held her in his arms, while she was fainting, sinking to the ground, and scarce able to support herself, and for some time called upon her, kissed her, and wiped off her tears that flowed without ceasing; then, drawing her on by degrees, when he came to a cook's shop, he snatched up a knife from the table and plunged it in her breast, saying only this, "I send thee, child, to the manes of thy ancestors with liberty and innocence, for if thou hadst lived, that tyrant would not have suffered thee to enjoy either."^[27] An outcry being raised, he held the bloody knife in his hand, and, covered as he was with the blood of his daughter, he ran like a madman through the city and called the citizens to liberty. Then, forcing his way through the gates, he mounted a horse that stood ready for him, and rode to the camp accompanied by Numitorius, who had attended him from thence to the city. He was followed by about four hundred other plebeians.^e

FALL OF THE DECENVIRATE

[449-445 B.C.]

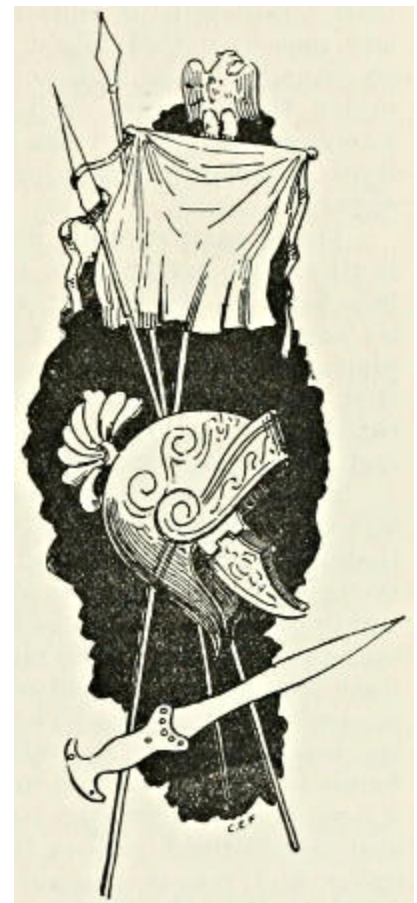
The plebeian legions, infuriated by the story of the outrage, as related by Virginius, advanced on the city and invested the Aventine. Icilius in concert with the liberal patricians, L. Valerius Potitus and M. Horatius Barbatus, had already organised a party in Rome; and as the decemvirs, supported by a contingent of the old citizens, persisted in their refusal to relinquish their office, the plebeians, on the advice of M. Duilius, again withdrew in a body to the Sacred Mount on the Anio. This new secession forced the decemvirs to resign; and by means of negotiations with the senate carried on by Valerius and Horatius in the summer of 449, important concessions were gained, which assured—the old order of things having meanwhile been resumed—the future position of the plebs in the Roman state. As before there were appointed two magistrates (Valerius and Horatius being the first to fill this office) elected by the free choice of the citizens, to whom the name consul was now for the first time properly applied, and the plebs were again represented by their tribunes. The only legacy of the decemvirs to be taken up was the new system of laws, the complete revision and codification of all the legal forms and processes that had hitherto been current in Rome. In the “Twelve Tables” the whole Roman people had now a just and uniform code of marriage, property, civil, and criminal laws.^[28] Apparently an attempt was made to mitigate their severity in certain respects; but the law of debtor and creditor still remained extremely harsh, and the maintenance of the prohibition against marriage between patricians and plebeians, with the denial of all legal rights to the issue of such marriages, kept alive the most intense phase of the animosity felt toward each other by the divided classes. On the other hand the new statutes sought to overthrow the former evil practices in consequence of which patricians and plebeians accused of capital political crimes were certain to receive severe sentence, the first from the tribal assembly, the second from the curiata. Hereafter the centuriate assembly was to be the sole organ of the people’s will in the trial and judgment of criminal offences. It was apparently at this epoch also that the Romans first caused their raw supplies of copper ore to be minted in copper coins.

Under the conduct of the consuls Horatius and Valerius, and of the able and energetic tribune of the plebs, M. Duilius, the affairs of Rome were soon brought into a condition of order and peace. A series of laws were set in operation which may be looked upon as the Magna Charta of the plebs,

and on the proposition of the consuls the right of appeal was confirmed by the centuriate assembly, and given the most solemn and binding form, so that no magistrate (the dictator himself, who had retained all his former power, not excepted) who had pronounced sentence of death without admitting the right of appeal to the people could be a second time elected to office. The inviolability of the people's tribunes was again declared, and safeguarded anew by a special enactment of the citizens under the sanction of the gods; and, representatives of the entire people as they were henceforth, their official organisation underwent important changes.

This was the beginning of the period during which patricians were driven by various causes to seek the protection of the tribunes, and the senate frequently availed itself of their support to break the opposition of the consuls. Their share in the transactions of the senate was now formally recognised; but they could still impose only money penalties on patrician opponents summoned before the tribal assembly, and when they contemplated bringing a capital charge they were obliged to apply first to the patrician magistrate, who would himself lay the charge before the centuriata. With the increase in importance of their position the tribunes received the right to take auspices. The election of quæstors, who as yet acted only in matters of finance, was also given over, in 447, to the tribunes under supervision by the consuls.

The great advance made by the plebs during the crisis the state had passed through was best evidenced by the altered position of the tribal assembly which, in obedience to the Valerio-Horatian law that declared the decisions of the plebs as uttered in the tribal assembly to be binding on the entire people, was given equal rights with the centuriata and elevated beside it to the importance of a second national assembly. Widely different interpretations have been given of the actual functions and position of the tribal assembly



ROMAN ARMS AND STANDARD

up to the time of the Tarentine War; but the views which seem most acceptable state that in order to become laws the decisions of the tribuna in general matters, as well as those of the centuriata, needed the sanction of the senate, merely as a form, perhaps, and without any special proviso attached. The position of the senate appears to have remained unchanged in so far as that the tribunes were obliged to take counsel with that body and obtain its consent or authority before undertaking the passage of any measures that might require in their carrying out the full executive machinery of the state. This was the more necessary in that the senate, under the republic, had gradually assumed entire control of the state's finances; and neither the consuls nor the dictator himself, with all his unlimited power, could touch any of the public funds without the senate's express consent.

The tribal assembly, unhampered as it was by the complicated business routine that marked the proceedings of the centuriate assembly, offered the best field for the further development of the Roman state. Here the popular assemblies under the tribunes took a leading part in legislation, and the plebeians carried into the camp of the old citizens an active political war that was as ever directed towards levelling the distinctions that still separated them from the aristocratic classes, and gaining for themselves the rights and privileges that should be theirs under an impartial state rule.

Thus we see that from the close of the great crisis the plebs continued to gain ground slowly but surely. Aside from the rustic population, that lived widely scattered in villages or on country estates and were seldom brought into the current of political agitation unless great interests were at stake; there was still another class of plebeians who took no part in the general strife but bent their energies solely towards securing and making permanent their newly won advantage, and establishing peaceful relations with the aristocratic families. These designs were greatly aided by the fact that the leadership in all the upward movements of the plebs fell naturally into the hands of the richest and most able, politically, among them. It was only at a later period, when the issue at stake was the winning of a great political and agricultural victory for the benefit of the entire community, that the lesser and poorer peasant landholders, whose interests were more deeply involved than those of any other class, rose in union and brought to bear on the higher rank that mighty, irresistible pressure which is in their power to

exert. Under these conditions the political conflict took on the character of a “class war,” with all the statesmanship, shrewdness, and craft, usual to such contests.

THE CANULEIAN LAW

[445-421 B.C.]

The first successful assault made since the great crisis on the position of the aristocracy in the state was that of the tribune Caius Canuleius, who in 445 B.C. caused the passage of a rogation which raised the prohibition against marriages between patricians and plebeians, and declared the full legality of such contracts. The chief object of this reform was to assure the rank and position of the patrician father to the children of plebeian women, the old law having declared all children of mixed marriages to belong to the order of plebs. This victory was particularly important from a political point of view, since it paved the way for the final coalescence of the two parties of the state. Encouraged by their success the tribunes prepared to push a new measure which, brought forward simultaneously with the rogation of Canuleius, had for design to facilitate the appointment of plebeians to the consulate, by leaving it open to the citizens to select for the office either plebeians or patricians. After a prolonged contest the old citizens yielded in so far as to effect a compromise agreeing to admit to consular power such plebeians as had distinguished themselves in a military career. The centuriate assembly appointed in place of consuls and to the same term of office military tribunes, invested with full consular authority, and to this position, which was decidedly inferior to that of consul in dignity and rank, plebeians were now eligible. For long this victory was one in theory only to the plebeians, the question constantly arising whether at the next election consuls or consular tribunes were to be appointed. Finally, in 444, the old-citizen party forced the newly elected military tribunes, among whom were doubtless two plebeians, to resign after only a few months, by pretexting errors made in taking the auspices at their election; and for the remainder of that year and the whole of the year following patrician consuls were appointed. As a result of such chicanery the consulship was filled by none but patricians up to the year 401 B.C.

Simultaneously with the establishment of consular tribunes the patricians introduced a new system of tactics to defend their political position, being led thereto partly by the constantly increasing mass of public affairs that passed under their hands. They withdrew one after the other from the consulship several important functions which they placed in the hands of officials newly created for that purpose, and thus secured to themselves the conduct of some of the weightiest of the state's affairs. As the plebeian consular tribunes were persistently denied all share in the administration of justice, two new patrician officers of state were appointed called censors, to whom was entrusted the estimate and establishment every five years of the budget, the framing of the list of citizens, the assessment for taxation, the holding of the census, and the right of filling vacancies in the senate and of striking undesirable names off the lists of senators, knights, and citizens.

The office of censor as originally instituted was to last for the period of a lustrum, or five years; but in 434 the term was limited to one year and a half. Usually filled by former consuls or military tribunes, the position of censor gradually rose in dignity and power until it came to be the highest office in the Roman state. The later censors also had the right of punishing such citizens as had been guilty of dishonourable or immoral conduct, without laying themselves directly open to the action of the law, by means of a so-called censorial "note." All senators who had fallen under their censure must resign their seat, all knights must forego performing their duties on horseback, and all citizens must withdraw from the associations of their tribe and submit to an increased tax.

Meanwhile the slow but steady onward march of the plebeians was not to be withstood. In the year 421 a proposal was made and adopted declaring them eligible to the quaestorship, and in 409 three out of four positions of quaestor were awarded to plebeian candidates. From the fact that after 400 one or more plebeians were regularly appointed to the military tribunate^[29] it would appear that the road to political equality between the two great Roman orders at last lay open. And indeed the nation would have progressed to full and peaceful development both at home and abroad had not the orderly course of events been suddenly and disastrously broken in upon by a terrible storm of war.

EXTERNAL WARS

[483-449 B.C.]

Since the conclusion of the alliance with the Latins and the Hernicans scarcely a year had passed that was not marked by conflicts between the Romans, aided by their new allies, and one or another of their foes in central Italy—the attitude of the Romans during these hostilities, as late as the middle of the fifth century, being for the most part one of defence. At the time of the institution of the people's tribunate Rome's most dangerous enemy were the Etruscans of Veii, a people with whom she had waged, since 483, a bitter and disastrous frontier war. After a defeat suffered by the Veientines in 475, a truce to last four hundred months was concluded, which was not broken until 437.

During this time the feuds with other adversaries raged all the fiercer, that with the Sabines, which had commenced in 505, lasting until the great victory won by the consul, M. Horatius, in 449. Since then Rome's peace had not been menaced from that quarter, all the vigorous young men of true Sabine blood having, as it appears, deserted their native cantons to follow the fortunes of their Sabellian kindred in the conquest of southern Italy. Hence the more prolonged and obstinately fought were the heavy wars carried on by the Romans against the brave Æquians, and those ancient foes of Latium, the mighty, warlike Volscians.^b

While Rome in her early wars was for the most part triumphing over her enemies, and laying the foundations of her future power and glory, the daring enterprise of a handful of adventurers achieved what even the Gauls failed to accomplish, and struck a blow at her very heart. A band of slaves and exiles, amounting to about 4000, or not much more, and led by Herdonius, a Sabine, having descended the Tiber in boats in the dead of night, landed near the Capitoline Hill, apparently just beyond the wall which ran from the hill to the river, and where, as we have seen, its bank was unprotected. Hence Herdonius led his men towards the Forum and up the ascent of the Capitoline, without meeting with any resistance till he arrived at the Porta Pandana, and here only from the guard; for we have already mentioned that this gate was always left open. The guard being forced, the invaders proceeded up the hill, took possession of the Capitol and Arx, and invoked the slaves of Rome to strike for freedom. The origin of this daring attempt is involved in mystery. It may possibly have been organised by Cæso Quinctius, son of Cincinnatus, who was an exile; but

that he took a personal share and perished in the enterprise, as Niebuhr, and after him Dr. Arnold, have assumed, there is not a tittle of evidence to show. It was not possible that the attempt should be permanently successful, yet, from the dissensions then prevailing at Rome, it caused great embarrassment and was only put down with the aid of the Tusculans. The Capitol was retaken by storm; Herdonius and many of his band were slain in the affray; the rest were captured and put to death.⁹

In these wars all the efforts of the Volscians were directed towards acquiring the territory to the north, and that on the seacoast and on the river Trerus, while the Æquians strove to extend their dominions westward and southwestward as far as the Latin-Roman domains.

[487-425 B.C.]

The Romans, on their side, sought to check the growth of the Volscians by spreading out parallel with them; and they immediately planted settlements or rather military posts all through the mountain regions between the Trerus and the Pomptine marsh, to separate the eastern tribes of the Volscians from those of the western. At times very serious in character, this war was carried on for a long period without any advantage to the Latins or the Romans, until at last, after 487, the struggle was brought almost to the very doors of Rome.^[30] Step by step the Æquians pushed on until they gained possession of the Latin marshes as far as Mount Algidus, on the eastern wall of the Alban hills; and it was this chain of mountains that the latter made the starting-point of all their marauding expeditions into the Roman territory. It was 459 before a change came that was favourable to the Romans. In this year the western branch of the Volscians which for seventy years had not taken up arms against Rome, concluded a formal peace with the Romans, doubtless sacrificing thereto their capital, Antium, which had so frequently been the object of dispute. Relieved on that side, the Romans could now direct all their power against the Æquians and the eastern Volscians and in 431 there came a decidedly favourable turn in their affairs.

Probably the Volscians had been considerably weakened by incursions from the constantly expanding Sabellian tribes in their rear, and the Romans now took the offensive against them with growing success until piece by piece they regained all the territory that had formerly been taken from the Latins. The Æquians were driven back to their highlands, and the country of the eastern Volscians, turned into a seat of war, was traversed in 408 by the

Romans who plundered on all sides. So weakened were Rome's adversaries in 404 that they looked on passively at the siege and capture of Veii. In 400 Tarracina was taken, and in 393 Circeii was freshly colonised, so that even in the later period when it had attained its greatest size all of Latium was either subject or allied to Rome. Moreover as a result of these struggles, and during their course, the compact between the Romans and their Latin allies grew into a sort of hegemony, the Romans claiming the sole right to decide in all matters relating to wars and contracts, while the Latin prætors ceased to alternate with the Roman generals as commanders-in-chief of the army, and the positions of staff officers in the allied troops, at first open only to men appointed by the Romans, soon came to be filled almost exclusively by the Romans themselves.

The close of the fifth century was also marked by new conflicts between the Roman-Latin nations and the Veientines. The peace with this people which had lasted so many years came to an end in 438, when the Roman city Fidenæ, on the Tiber, fell into the possession of Veii. In 437 a war broke out that was interrupted in 434 by the conclusion of an eight years' truce, then resumed until the total overthrow of Fidenæ in 425, after which it terminated in a second truce of twenty years. During all this period of truce the political situation of the Rasena, the race that had for long been powerful in Italy, was so adverse that the Romans were led to entertain the project of entirely destroying Veii and then proceeding northward from the Tiber on a grand conquering expedition against Etruria. The power of the Rasena had attained its height in the beginning of the fifth century when, firmly established on their three mainland districts, in alliance with the Carthaginians they made Greeks and Italians feel their supremacy on the Tyrrhenian Sea. Etruria had also owned for many decades—as Carthage had, since 500, owned the island of Sardinia—the coast lands of Corsica; but these possessions were seriously threatened by the rise in power of the Hellenes.

[425-395 B.C.]

Since the crushing defeat suffered by the Etruscans in 474 at the hands of Hiero I of Syracuse and the Greeks of Cyme, in a sea battle near that town, Syracuse, Tarentum, and Massilia had further impaired their predominance on the Italian seas. The Campanian province of Etruria and northern Italy were also about that time menaced simultaneously by

different but equally powerful enemies. The danger on the Campanian side was from the Sabellian populations. At the time of Tarquinius' departure the Samnites had probably been long in possession of the mountainous regions extending between the lowlands of the Apulian and Campanian coasts, and since the middle of the fifth century had sent out successive conquering expeditions which, penetrating further and further southward and seaward, threatened equal danger to the Italians and the Etruscans. Simultaneously with the uprising of the Lucanian Sabellians in Magna Græcia, in the third decade before the close of the fifth century, Campanian Sabellians invaded the beautiful regions on the Gulf of Naples. In 420 the Greeks lost Cyme—henceforth Italian Cumæ—but continued to have dominion in and around Naples for several centuries, and in 424, when Etruscan Capua fell, the Rasena were driven forever from that part of Italy.

More disastrous still to the Rasena of northern Italy were the conquests of the Celts, a people destined to play the gloomy rôle of destroyer, who had lately made violent irruption among the Italian races.

Their irresistible onward sweep against the Etruscans seems to have taken place in the early part of the fifth century, some time after the first migratory tribes had wandered out of Gaul. During the last three decades of the century the Celtic swarms also crossed the Padus and extended their conquests into the lowlands as far as the Adriatic Sea. So engrossed were the Etruscans of the regions between the Arno and the Tiber in their efforts to repel these invading hordes, that they had neither time nor thought to give to Veii which had been harassed by the Romans since 405. This war, during the course of which Veii was first blockaded in 404, then regularly invested in 403, marks a threefold epoch in the history of Rome. With it the Romans took the first step in the perilous path of foreign conquest, and departed from their old-time custom of short summer campaigns, the troops remaining the whole winter through in the lines and camps with which Veii was surrounded. This innovation was made possible by a resolution adopted by the senate that foot soldiers should be paid wages by the state; and a great amelioration was brought in the condition of the peasants and their grown sons, who were obliged to leave their farms in charge of their wives and servants while serving in the army, though they were under the same necessity of raising tribute as before. The perseverance of the Romans, coupled with the ability of their first true military leader, M. Furius

Camillus, at last gained for them a victory over the stubbornly defended town. The list of Rome's great generals opens with the name of the conqueror of Veii. A man possessing in the highest degree all the qualities of a commander, he first came into prominence in 401; and it was as dictator, in 396, that he took Veii by storm and completely destroyed it as a political commonwealth, thereby achieving the greatest victory, from a political, military, and territorial point of view, that had fallen to the Roman arms since the expulsion of the Tarquinians.

[395-391 B.C.]

The warlike spirit of the Romans and their thirst for conquest were raised to a high pitch by this success. Soon their might extended unbroken from the limits of the Ciminian forest, then an impenetrable wilderness, which they conquered between 395 and 391, to the southern frontiers of Latium. But their difficult apprenticeship was not yet at an end, for just then the Celts subjected them to a test which their political and military ability could not withstand; and both in its inner and outer development the Roman state received a check from which it could not readily recover.^b

LEGENDS OF THE VOLSCIAN AND ÆQUIAN WARS

There are some famous legends connected with these threefold wars, which cannot be omitted by any writer of Roman history. These are the legends of Coriolanus, of Cincinnatus, and of the Fabian gens. The exact time to which they refer is uncertain; nor is it material to determine. They fall, however, within the period now under consideration.

CORIOLANUS AND THE VOLSCIANS

Caius Marcius was a youth of high patrician family, descended from the Sabine king, Ancus Marcius; and he was brought up by his mother Volumnia,^[31] a true Roman matron, noble and generous, proud and stern, implacable towards enemies, unforgiving towards the faults of friends. Caius grew up with all the faults and virtues of his mother, and was soon found among the chief opponents of the plebeians. He won a civic crown of oak for saving a fellow-citizen at the battle of Lake Regillus, when he was seventeen years of age. But he gained his chief fame in the Volscian Wars.

For the Romans, being at war with this people, attacked Corioli, a Latin city which then had fallen into the hands of the Volscians. But the assailants were driven back by the garrison; when Caius Marcius rallied the fugitives, turned upon his pursuers, and, driving them back in turn, entered the gates along with them; and the city fell into the hands of the Romans. For this brave conduct he was named after the city which he had taken, Caius Marcius Coriolanus.

Now it happened, after this, that the Roman people being much distressed by having their lands ravaged in war, and tillage being neglected, a great dearth ensued. Then Gelo, the Greek king of Syracuse, sent them ships laden with corn, to relieve the distress. It was debated in the senate how this corn should be distributed. Some were for giving it away to the poorer sort; some were for selling it at a low price; but Coriolanus, who was greatly enraged at the concessions that had been made to the plebeians, and hated to see them protected by their new officers, the tribunes, spoke vehemently against these proposals, and said: "Why do they ask us for corn? They have got their tribunes. Let them go back to the Sacred Hill, and leave us to rule alone. Or let them give up their tribunes and then they shall have the corn." This insolent language wrought up the plebeians to a height of fury against Caius Marcius, and they would have torn him in pieces; but their tribunes persuaded them to keep their hands off; and then cited him before the assembly to give account of his conduct. The main body of the patricians were not inclined to assist Coriolanus; so, after some violent struggles, he declined to stand his trial, but left Rome, shaking the dust from his feet against his thankless countrymen (for so he deemed them), and vowing that they should bitterly repent of having driven Caius Marcius Coriolanus into exile.



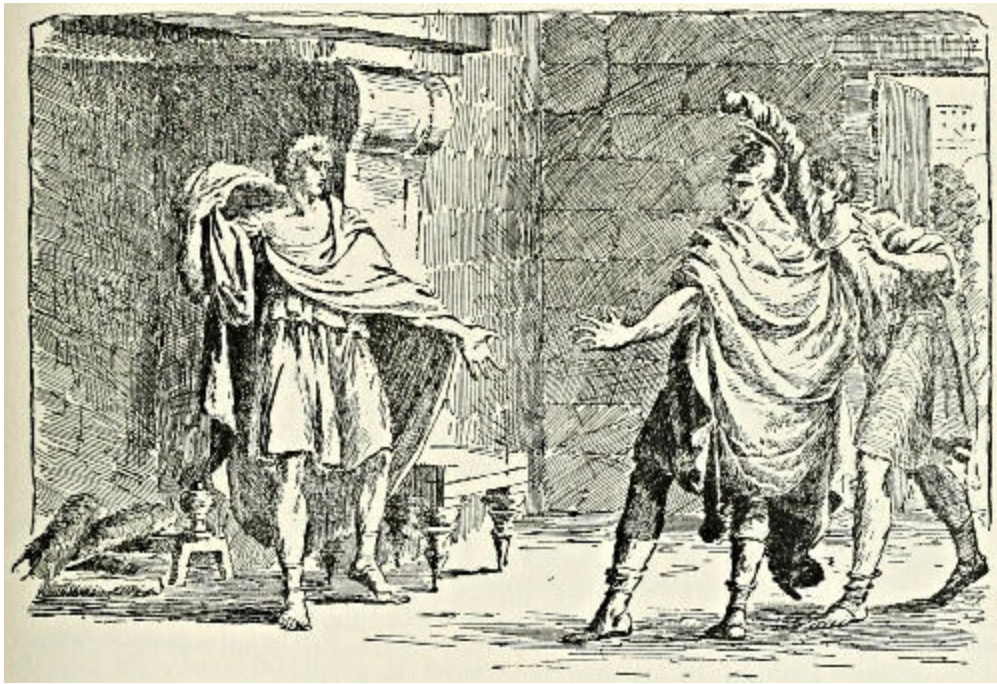
BANISHMENT OF CORIOLANUS

He went straight to Antium, another Latin city which had become the capital of the Volscians, and going to the house of Attius Tullius, one of the chief men of the nation, he seated himself near the hearth by the household gods, a place which among the Italian nations was held sacred. When Tullius entered, the Roman rose and greeted his former enemy: "My name," he said, "is Caius Marcius; my surname, Coriolanus—the only reward now remaining for all my services. I am an exile from Rome, my country; I seek refuge in the house of my enemy. If ye will use my services, I will serve you well; if you would rather take vengeance on me, strike, I am ready."

Tullius at once accepted the offer of the "banished lord"; and determined to break the treaty which there then was between his people and the Romans. But the Volscians were afraid to go to war. So Tullius had recourse to fraud. It happened that one Titus Atinius, a plebeian of Rome, was warned in a dream to go to the consuls, and order them to celebrate the great games over again, because they had not been rightly performed the first time. But he was afraid and would not go. Then his son fell sick and died; and again he dreamed the same dream; but still he would not go. Then he was himself stricken with palsy; and so he delayed no longer, but made his friends carry him on a litter to the consuls. And they believed his words, and the great games were begun again with increased pomp; and many of

the Volscians, being at peace with Rome, came to see them. Upon this Tullius went secretly to the consuls, and told them that his countrymen were thronging to Rome, and he feared they had mischief in their thoughts. Then the consuls laid this secret information before the senate; and the senate decreed that all Volscians should depart from Rome before sunset. This decree seemed to the Volscians to be a wanton insult, and they went home in a rage. Tullius met them on their way home at the fountain of Ferentina, where the Latins had been wont to hold their councils of old; and he spoke to them and increased their anger, and persuaded them to break off their treaty with the Romans. So the Volscians made war against Rome, and chose Attius Tullius and Caius Marcius the Roman to be their commanders.

The army advanced against Rome, ravaging and laying waste all the lands of the plebeians, but letting those of the patricians remain untouched. This increased the jealousy between the orders, and the consuls found it impossible to raise an army to go out against the enemy. Coriolanus took one Latin town after another, and even the Volscians deserted their own general to serve under his banners. He now advanced and encamped at the Cluilian Fossa, within five miles of the city.



CORIOLANUS RECEIVED BY THE VOLSCIANS

(From a picture by Mirys)

Nothing was now to be seen within the walls but consternation and despair. The temples of the gods were filled with suppliants; the plebeians themselves pressed the senate to make peace with the terrible Coriolanus. Meantime the enemy advanced to the very gates of the city, and at length the senate agreed to send five men, chiefs among the patricians, to turn away the anger of their countryman. He received them with the utmost sternness; said that he was now general of the Volscians, and must do what was best for his new friends; that if they wished for peace they must restore all the lands and places that had been taken from the Volscians, and must admit these people to an equal league, and put them on an equal footing with the Latins. The deputies could not accept these terms, so they returned to Rome. The senate sent them back, to ask for milder terms; but the haughty exile would not suffer them to enter his camp.

Then went forth another deputation, graver and more solemn than the former—the pontiffs, flamens, and augurs, all attired in their priestly robes, who besought him, by all that he held sacred, by the respect he owed to his country's gods, to give them assurance of peace and safety. He treated them

with grave respect, but sent them away without relaxing any of his demands.

It seemed as if the glory of Rome were departing, as if the crown were about to be transferred to the cities of the Volscians. But not so was it destined to be. It chanced that as all the women were weeping and praying in the temples, the thought arose among them that they might effect what patricians and priests had alike failed to do. It was Valeria, the sister of the great Valerius Publicola, who first started the thought, and she prevailed on Volumnia, the stern mother of the exile, to accompany the mournful train. With them also went Virgilia, his wife, leading her two boys by the hand, and a crowd of other women. Coriolanus beheld them from afar, as he was sitting on a raised seat among the Volscian chiefs, and resolved to send back them also with a denial. But when they came near, and he saw his mother at the head of the sad procession, he sprang from his seat, and was about to kiss her. But she drew back with all the loftiness of a Roman matron, and said: "Art thou Caius Marcius, and am I thy mother? or art thou the general of the Volscian foe, and I a prisoner in his camp? Before thou kissest me, answer me that question." Caius stood silent, and his mother went on: "Shall it be said that it is to me, to me alone, that Rome owes her conqueror and oppressor? Had I never been a mother, my country had still been free. But I am too old to feel this misery long. Look to thy wife and little ones; thou art enslaving thy country, and with it thou enslavest them." The fierce Roman's heart sank before the indignant words of her whom he had feared and respected from his childhood; and when his wife and children hanging about him added their soft prayers to the lofty supplications of his mother, he turned to her with bitterness of soul, and said: "O my mother, thou hast saved Rome, but lost thy son!"

So he drew off his army, and the women went back to Rome and were hailed as the saviours of their country. And the senate ordered a temple to be built and dedicated to "Woman's Fortune" (*Fortuna Muliebris*); and Valeria was the first priestess of the temple.

But Coriolanus returned to dwell among the Volscians; and Tullius, who had before become jealous of his superiority, excited the people against him, saying that he had purposely spared their great enemy the city of Rome, even when it was within their grasp. So he lost favour, and was slain

in a tumult;^[32] and the words he had spoken to his mother were truly fulfilled.^c

Critical Examination of the Story of Coriolanus

“If we examine the particulars of the foregoing narrative,” says Wilhelm Ihne, “we find that no single feature of it can be considered historical, and that it consists altogether of baseless fictions of a later period, which betray a great want of skill in the invention of a probable narrative, and even ignorance of the institutions and manners of the Roman people. The conquest of Corioli is evidently invented to account for the name Coriolanus. For the whole of the alleged history of the campaign in which Corioli is reported to have been conquered, the annalists, as Livy himself admits, had no positive testimony. And so thoughtless and ignorant were the Roman annalists, that they mentioned as the benefactor of the distressed Romans the tyrant Dionysius of Syracuse. This chronological error was discovered by the learned archæologist Dionysius, who was too well acquainted with the history of his disreputable namesake of Syracuse to suppose that he could have sent corn to Rome about half a century before he was born. He therefore substitutes Gelo as the Greek tyrant who is said to have sent the corn. It is evident that the removal of a gross blunder does not amount to positive evidence, and the learning and ingenuity of Dionysius are therefore thrown away.

“The accusation and sentence of Coriolanus by the plebs, almost immediately after the first election of tribunes, was impossible. According to Livy, the Volscians conquered, in the course of one summer, twelve—and, according to Dionysius, fourteen—Latin towns, overran the whole of Latium, and penetrated into the immediate neighbourhood of Rome. When we consider what a small measure of success usually followed a campaign, how difficult, even in the time of their undisputed supremacy, the Romans found it to reduce a single town, it may well be looked upon as a miracle that the Volscians took seven towns, as Dionysius says, in thirty days. But what is still more wonderful than the rapid conquest of so many Latin towns by the Volscians, is the ready restoration of them to the Latins.

“As a punishment for this treachery, which the Volscians, as it appears, were obliged to submit to, they were reported to have cruelly murdered

Coriolanus at the end of the campaign. Yet another, and probably older, form of the legend says nothing of this revenge, but allows him to attain a great age among the Volscians, and to lament his banishment from his fatherland. The simple-minded old annalist saw nothing unnatural in the fact that a Roman exile should restore to the Romans towns conquered by the military strength of the Volscians.

“The germ from which the whole legend sprang is the story of the filial love of Coriolanus, and of the great authority exercised in olden times by Roman matrons over their sons and husbands. Now it is not beyond the range of possibility that, at one time or other, a Roman party leader, expelled in one of the numerous civil broils, may have joined the national enemies, and may have been induced by the tears of his mother and wife to desist from hostilities against his native city; but the story of Coriolanus, as given by Livy and Dionysius, relates things utterly impossible in Rome. The Roman senate could at no time have dreamed of sending an embassy of priests to ask for peace from a public enemy; still less can we reconcile a deputation of matrons with what we know of Roman manners and law, granting even that such a deputation was self-appointed, and not formally commissioned by the senate to act for the Roman people.”^d

CINCINNATUS AND THE ÆQUIANS

In the course of these wars, Minucius, one of the consuls, suffered himself to be cut off from Rome in a narrow valley of Mount Algidus, and it seemed as if hope of delivery there was none. However, five horsemen found means to escape and report at Rome the perilous condition of the consul and his army. Then the other consul consulted the senate, and it was agreed that the only man who could deliver the army was L. Quinctius Cincinnatus. Therefore this man was named dictator, and deputies were sent to acquaint him with his high dignity.

Now this Lucius Quinctius was called Cincinnatus, because he wore his hair in long curling locks (*cincinni*); and, though he was a patrician, he lived on his own small farm, like any plebeian yeoman. This farm was beyond the Tiber, and here he lived contentedly with his wife Racilia.

Two years before he had been consul, and had been brought into great distress by the conduct of his son Cæso, a wild and insolent young man,

who despised the plebeians and hated their tribunes, like Coriolanus. Like Coriolanus, he was impeached by the tribunes, but on very different grounds. One Volscius Fictor alleged that he and his brother, an old and sickly man, had been attacked by Cæso and a party of young patricians by night in the Subura; his brother had died of the treatment then received. The indignation of the people rose high; and Cæso, again like Coriolanus, was forced to go into exile. After this the young patricians became more insolent than ever, but they courted the poorest of the people, hoping to engage them on their side against the more respectable plebeians. Next year all Rome was alarmed by finding that the Capitol had been seized by an enemy during the night. This enemy was Appius Herdonius, a Sabine, and with him was associated a band of desperate men, exiles and runaway slaves. The first demand he made was that all Roman exiles should be restored. The consul, P. Valerius, collected a force, and took the Capitol. But he was himself killed in the assault, and L. Quinctius Cincinnatus, father of the banished Cæso, was chosen to succeed him. When he heard the news of his elevation, he turned to his wife and said, "I fear, Racilia, our little field must remain this year unsown." Then he assumed the robe of state, and went to Rome. Now it was believed that Cæso had been concerned in the desperate enterprise that had just been defeated. What had become of him was unknown, but that he was already dead is pretty certain; and his father was very bitter against the tribunes and their party, to whom he attributed his son's disgrace and death. P. Valerius, the consul, had persuaded the plebeians to join in the assault of the Capitol, by promising to gain them further privileges: this promise Cincinnatus refused to keep, and used all his power to frustrate the attempts of the tribunes to gain its fulfilment. At the end of his year of office, however, when the patricians wished to continue him in the consulship, he positively declined the offer, and returned to his rustic life as if he had never left it.

It was two years after these events that the deputies of the senate, who came to invest him with the ensigns of dictatorial power, found him working on his little farm. He was clad in his tunic only; and as the deputies advanced, they bade him put on his toga, that he might receive the commands of the senate in seemly guise. So he wiped off the dust and sweat, the signs of labour, and bade his wife fetch his toga, and asked anxiously whether all was right or not. Then the deputies told him how the army was beset by the Æquian foe, and how the senate looked to him as the

saviour of the state. A boat was provided to carry him over the Tiber; and when he reached the other bank he was greeted by the senate, who followed him to the city, while he himself walked in state, with his four-and-twenty lictors. Cincinnatus then chose L. Tarquinius as his master of the horse. This man was a patrician, but, like the dictator himself, was poor—so poor that he could not afford to keep a horse, but was obliged to serve among the foot-soldiers.

That same day the dictator and his master of the horse came down into the Forum, ordered all shops to be shut, and all business to be suspended. All men of the military age were to meet them in the Field of Mars before sunset, each man with five days' provisions and twelve stakes; the older men were to get the provisions ready, while the soldiers were preparing the stakes. Thus all was got ready in time; the dictator led them forth, and they marched so rapidly that by midnight they had reached Mount Algidus, where the army of the consul was hemmed in.

Then the dictator, when he had discovered the place of the enemy's army, ordered his men to put all their baggage down in one place, and then to surround the enemy's camp. They obeyed, and each one raising a shout, began digging the trench and fixing his stakes, so as to form a palisade round the enemy. The consul's army, which was hemmed in, heard the shout of their brethren, and flew to arms; and so hotly did they fight all night, that the Æquians had no time to attend to the new foe, and next morning they found themselves hemmed in on all sides by the trench and palisade, so that they were now between two Roman armies. They were thus forced to surrender. The dictator required them to give up their chiefs, and made their whole army pass under the yoke, which was formed by two spears fixed upright in the ground, and a third bound across them at the top.

Cincinnatus returned to Rome amid the shouts and exultation of his soldiers; they gave him a golden crown, in token that he had saved the lives of many citizens; and the senate decreed that he should enter the city in triumph.

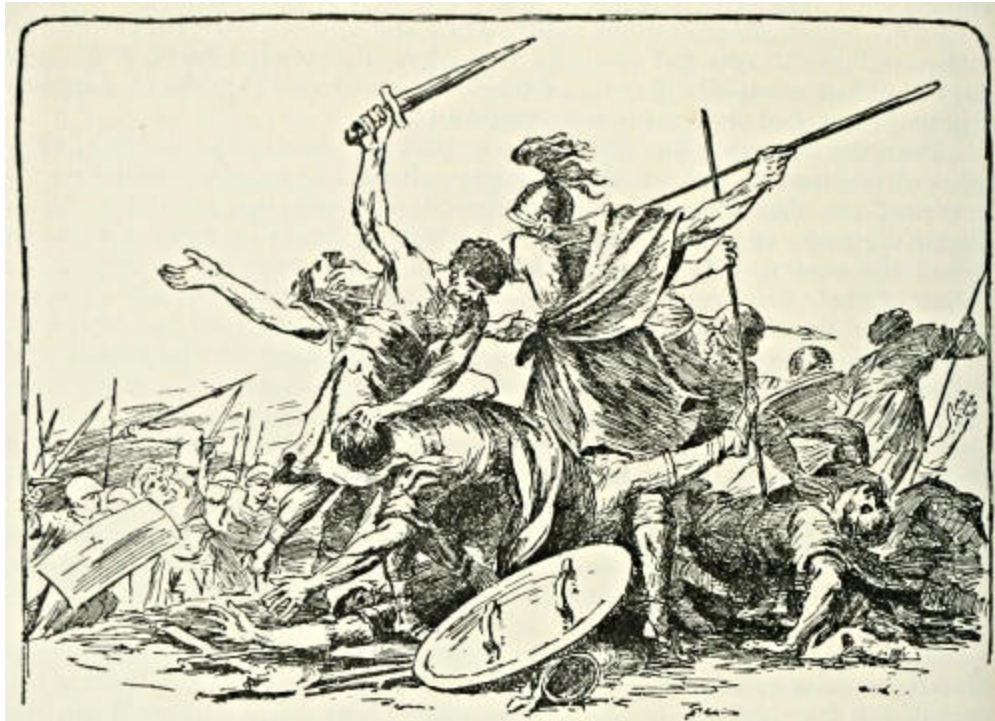
So Cincinnatus accomplished the purpose for which he had been made dictator in twenty-four hours. One evening he marched forth to deliver the consul, and the next evening he returned victorious. But he would not lay down his high office till he had avenged his son Cæso. Accordingly he

summoned Volscius Fictor, the accuser, and had him tried for perjury. The man was condemned and banished; and then Cincinnatus once more returned to his wife and farm.^c

Critical Examination of the Story of Cincinnatus

“That this story belongs less to the region of history than to that of fancy,” says Ihne, “is evident from the physical impossibilities it contains. The distance between Rome and the hill Algidus is more than twenty miles. This distance the Roman army under Cincinnatus is said to have accomplished between nightfall and midnight, though the soldiers were burthened with three or four times the usual number of stakes for intrenchments. Then, after such a march, the men were set to work to make a circumvallation round the whole Æquian army, which itself enclosed the army of Minucius, and must, therefore, have occupied a considerable extent of ground. The work of circumvallation was accomplished in the same night, uninterrupted by the Æquians, though the Romans at the very commencement had raised a shout to announce their arrival to the blockaded army of Minucius. With these details the story is, of course, mere nonsense. But if, following the example of Dionysius, we strip off from the popular legend all that is fanciful, exaggerated, or impossible, and place the heroic deed of Cincinnatus on such a footing that it assumes an air of probability, we shall gain nothing, because by such a rationalising process we shall not be able to convert a legend into genuine history.”

“We arrive at the same conclusion by observing the fact that the story of Cincinnatus, in its general and characteristic features, is related no less than five times.”^d



DEFEAT OF THE FABII

THE FABIAN GENS AND THE VEIENTINES

It has already been related that, after the final expulsion of the Tarquins, the patricians withdrew from the plebeians those rights which they had originally obtained from King Servius, and which had been renewed and confirmed to them during the time that the Tarquins were endeavouring to return. And for a number of years it appears that the Fabii engrossed a great share of this power to themselves. For we find in the lists of consuls that for seven years running (from 485 to 479 B.C.), one of the two consuls was always a Fabius. Now these Fabii were the chief opponents of the Agrarian law; and Cæso Fabius, who was three times consul in the said seven years, was the person who procured the condemnation of Sp. Cassius, the great friend of the plebeians. This Cæso, in his second consulship, found himself as unpopular as Appius Claudius. His soldiers refused to fight against the enemy. But in his third consulship, which fell in the last of the seven years, he showed an altered spirit, he and all his house. For the Fabii saw the injustice they had been guilty of towards the plebeians, and the injury they had been doing to the state; and Cæso himself came forward, and proposed that the Agrarian law of Sp. Cassius should be carried into full effect. But

the patricians rejected the proposal with scorn; and so the whole Fabian gens determined to leave Rome altogether. They thought they could serve their country better by warring against the Veientes than by remaining at home. So they assembled together on the Quirinal Hill, in all 306 men, besides their clients and followers, and they passed under the Capitol, and went out of the city by the right-hand arch of the Carmental gate. They then crossed the Tiber, and marked out a place on the little river Cremera, which flows into the Tiber below Veii. Here they fortified a camp, and sallied forth to ravage the lands of the Veientes and drive their cattle.

So they stood between Rome and Veii for more than a year's time, and the Romans had peace on that side, whereas the Veientes suffered greatly. But there was a certain day, the Ides of February, which was always held sacred by the Fabii, when they offered solemn sacrifices on the Quirinal Hill, to the gods of their gens. On this day, Cæso their chief led them forth for Rome; and the Veientes, hearing of it, laid an ambush for them, and they were all cut off. And the plebeians greatly mourned the loss of their patrician friends, and Menenius, the consul, who was encamped near at hand, but did not assist them, was accused by the tribunes of treacherously betraying them, as has been above recorded.

But one young Fabius, who was then a boy, was left behind at Rome when the rest of his gens went forth to settle on the Cremera. And he (so it was said) was the father of the Fabii who were afterwards so famous in the history of Rome. After this, it is said, the men of Veii asked and obtained a peace of forty years.^c

FOOTNOTES

[19] [It must be remembered, however, that formerly Rome had been a member of the Latin league; while the treaty of 493 was ratified by Rome on the one side and the Latin league on the other.]

[20] [In the time of the Punic Wars, however, we find the tribunes sometimes undertaking long journeys on public commissions.]

[21] [This idealised view is not held by all scholars.]

[22] [More probably, according to Herzog,^m his bill never became a law; and, as no record was made of unpassed bills, we do not know the precise nature of his proposal. Possibly it aimed to give the peasants a better title to the lands they held.]

[23] [According to some authorities, he was hurled from the Tarpeian Rock; other ancient writers assert that his father put him to death.]

[24] [The comitia centuriata was now the great legislative body. At this early period the tribunes could influence legislation by moral suasion or by obstructing the levy of troops, disturbing public business, and threats of violence. The tribal assembly had as yet no legislative power. Cf. Herzog, [m](#)]

[25] [As long as the function of the tribunes was limited to the protection of the weak and to the obstruction of public business, an increase in number added strength; but when they acquired a right to initiate legislation, their great number weakened them, as the text makes clear.]

[26] [Recent researches convince Fiskeⁿ that Appius Claudius was a liberal, far-sighted statesman, neither brutal nor unnecessarily despotic; but it is hardly probable that anything can now dispel the traditional view. Unfavourable contemporary judgments are seldom reversed by posterity.]

[27] [Livy^h makes Virginius say: "In this manner, my child, the only one in my power, do I secure your liberty." Livy continues as follows: "Then looking back on Appius, 'With this blood, Appius,' said he, 'I devote thee and thine head to perdition.' Appius, alarmed by the cry raised at such a horrid deed, ordered Virginius to be seized. But he, clearing a passage with the weapon wherever he went, and protected also by a great number of young men who escorted him, made his way to the gate. Icilius and Numitorius raised up the lifeless body and exposed it to the view of the people, deploring the villainy of Appius, the fatal beauty of the maiden, and the necessity which had urged the father to the act. The matrons who followed joined their exclamations: 'Are these the consequences of rearing children? Are these the rewards of chastity?' with other mournful reflections, such as are suggested by grief to women, and which, from the greater sensibility of their tender minds, are always the most affecting. The discourse of the men, and particularly of Icilius, turned entirely on their being deprived of the protection of tribunes, and consequently of appeals to the people, and on the indignities thrown upon all."]

[28] [The Twelve Tables were considered as the foundation of all law, and Cicero always mentions them with the utmost reverence. But only fragments remain, and those who have bestowed the greatest labour in examining these can give but an imperfect account of their original form and contents. A few provisions only can be noticed here.

(1) The patricians and their clients should be included in the plebeian tribes. And when we speak of clients, we must now comprehend also the freedmen (*libertini*), who were a large and increasing class. Further, the three old patrician tribes now, or before this, became obsolete; and henceforth a patrician was known not as a Ramnian, a Titian, or a Lucerian, but as a burgess of the Pollian, Papirian, or some other local tribe.

(2) The law of debt was left in its former state of severity. But the condition of borrowing money was made easier; for it was made illegal to exact higher interest than 10 per cent. For this is the meaning of *fœnus unciarium*. *Uncia* (derived from *unus*) is one of the twelve units into which the as was divided, each being one-twelfth part of the whole. Now $\frac{1}{12}$ of the capital is $8\frac{1}{3}$ per cent.;

but as the old Roman year was only ten months, we must add two months' interest at the same rate; and this amounts to 10 per cent. for the year of twelve months.

(3) No private law or *privilegium*—that is a law to impose any penalty or disability on a single citizen, similar in character to our bills of attainder—was to be made.

(4) There was to be an appeal to the people from the sentence of every magistrate; and no citizen was to be tried for his life except before the centuriate assembly.

(5) The old law or custom prohibiting all intermarriage (*connubium*) between the two orders was now formally confirmed, and thus a positive bar was put to any equalisation of the two orders. No such consummation could be looked for, when the code of national law proclaimed them to be of different races, unfit to mingle one with the other.

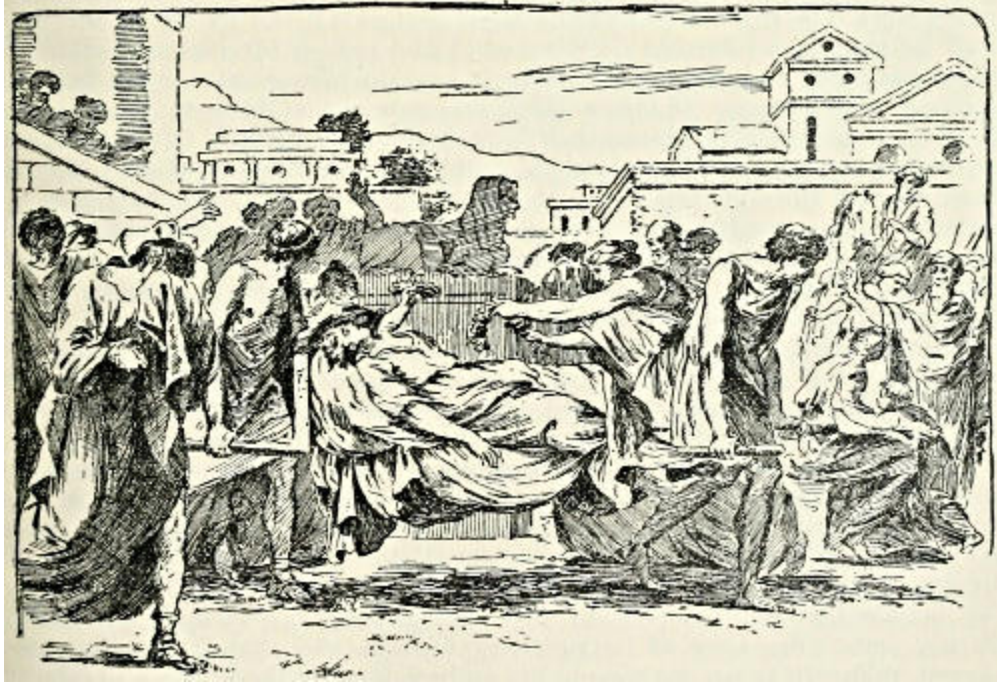
(6) To this may be added the celebrated law by which any one who wrote lampoons or libels on his neighbours was liable to be deprived of civil rights (*diminutio capitis*). By this law the poet Nævius was punished when he assailed the great family of the Metelli.^c]

[29] [As a matter of fact, plebeians were represented in the office for but two or three years; it then fell exclusively into the hands of the patricians. Cf. Herzog.^m]

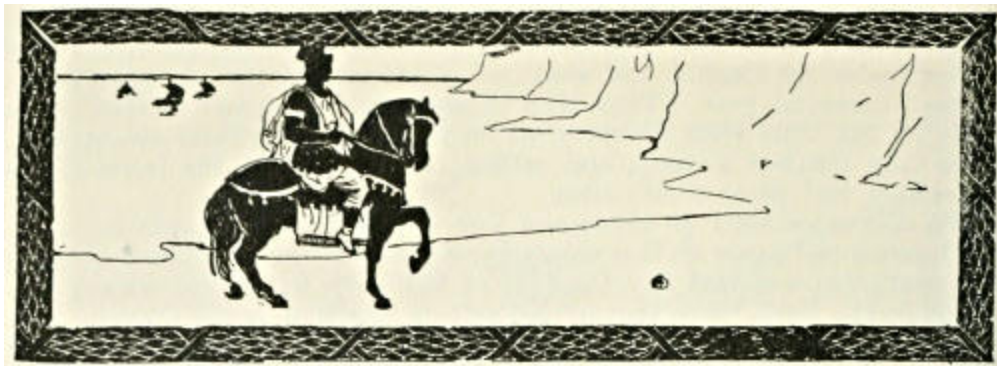
[30] [“After these events,” says Eutropius,^f “a census was held in the city, in which the number of the citizens was found to be 119,319.”]

[31] [That is, according to Plutarch.ⁱ Other authorities give Veturia as the name of his mother and Volumnia as that of his wife.]

[32] [Eutropius^f writes him this dismal epitaph: “He was the next after Tarquin that acted as general against his country.”]



THE BODY OF VIRGINIA CARRIED THROUGH THE STREETS OF ROME



CHAPTER VII. THE INVASION OF THE GAULS AND ITS SEQUEL

We come now to a period in which Roman courage and fortitude were put to a severe test—when one of the unknown peoples of the north, henceforth to be familiar as Gauls, invaded Italy, and came, at last, to the walls of Rome itself. They were hardy warriors, as full of courage

seemingly as the Romans themselves, and accustomed to carry all before them.

The exact details of their conflict with the Romans have been so mingled with tradition that no one, nowadays, pretends to know just what they really were. A full story of their alleged doings is given by Livy,^c and may well be reproduced here as showing what has passed for history during all these centuries, and what is, perhaps, as near to history as we can hope to attain in this matter. If for no other reason we must turn to this account because it contains incidents that have become proverbial. It is here, for example, that one finds the tale of the cackling geese which awakened Marcus Manlius, and through him saved the city from the Gauls, who were surreptitiously scaling the heights. Here, again, is the story that the Romans, forced finally to capitulate through famine and pestilence, made complaint of unfair weights used by the Gauls, and that Brennus, the conquering leader, threw his sword into the scale, crying insolently, "Woe to the conquered!" The dramatic climax, with true theatrical precision, makes the once exiled Camillus, now dictator of the Romans, appear just at this moment to offer the insolent Brennus the sword instead of gold, and in the final outcome to conquer him and his hosts, destroying them to the last man.

This is the completion of the story which Livy and his successors have made famous for all time. It matters little now as to just how much of this is true, and how much fable; and even if it did matter, the facts can never be known. We must be content, despite all the bickerings of specialists as to this or that feature of the transaction, to believe that the Gauls actually did invade Italy at this period; that they actually did conquer and ravish Rome, destroying most of its precious records, and that finally, for some reason unknown to us, the conquerors retired, leaving the Romans to rebuild their city and to take up anew the interrupted course of their progress.

The lasting importance of the invasion was, perhaps, due more to the destruction of the Roman records, thus shutting us out from the true history of early Roman times, than to any other direct evils which the Gauls inflicted upon their enemies.^a

THE GAULS

[391-390 B.C.]

The course of Roman history, hitherto disturbed only by petty border wars, now suffers a great convulsion. Over her neighbours on the east and north the republic was in the ascendant; on the west the frail oligarchies of Etruria had sunk before Camillus and his hardy soldiers; when, by an untoward union of events, Rome saw her best general banished, and heard of the barbarian host which was wasting the fair land of Italy. The Gauls burst upon Latium and the adjoining lands with the suddenness of a thunderstorm. It swept over the face of Italy, crushing and destroying. The Etruscans were weakened by it; and if Rome herself was laid prostrate, the Latins also suffered greatly, the Volscians trembled, and the Æquians were irrecoverably weakened.

The Gauls were a tribe of that large race of mankind who are known under the name of Celts, and who at the time in question peopled nearly the whole of western Europe, from the heart of Germany to the ocean. The northern and central parts of the continents were already in the hands of various nations, called by the common name of Germans or Teutons, to whom belonged the Goths, Saxons, Danes, Normans, Lombards, Franks, and Alamanni, while the Celts possessed France, a great part of Germany, most of Spain and Portugal, together with the British Isles. Of these Celts there were two great divisions, commonly called Gael and Cymri, differing in habits and language. The ancient inhabitants of France were Gael, those of Britain and Belgica were Cymri; and the Druidical religion, though sometimes adopted by the Gael, was properly and originally Cymric. Gael are still found in Ireland and in the Highlands of Scotland; Cymri in Wales and Low Brittany; and they have left traces of their name in Cumberland.

Before the time we are now speaking of, there had been a great movement in the Celtic nations. Two great swarms went out from Gaul. Of these, one crossed the Alps into Italy; the other, moving eastward, in the course of time penetrated into Greece, and then passed into Asia Minor, where they were known under the name of Galatians.

It is supposed that the Gael who dwelt in the eastern parts of Gaul, being oppressed by Cymric tribes of the west and north, went forth to seek new homes in distant lands, as in later times the Gothic and German nations were driven in the contrary direction by the Huns and other Asiatic hordes, who were thronging into Europe from the east. At all events, it is certain

that large bodies of Celts passed over the Alps before and after this time, and having once tasted the wines and eaten the fruits of Italy, were in no hurry to return from that fair land into their own less hospitable regions. The course taken by these adventurers was probably over divers passes of the Alps, from the Mount Cenis and the Little St. Bernard to the Simplon. Pouring from these outlets, they overran the rich plains of northern Italy, and so occupied the territory which lies between the Alps, the Apennines, and the Adriatic, that the Romans called this territory Gallia Cisalpina, or Hither Gaul. The northern Etruscans gave way before these fierce barbarians, and their name is heard of no more in those parts. Then the Gauls crossed the Apennines into southern Etruria, and while they were ravaging that country they first came in contact with the sons of Rome.

The common date for this event is 390 B.C. How long before this time the Gallic hordes had been pouring into Italy we know not. But whenever it was that they first passed over the Alps, it is certain that now they first crossed the Apennines.

The tribe which took this course were of the Senones, as all authors say, and therefore we may suppose they were Gaelic; but it has been thought they were mixed with Cymri, since the name of their king or chief was Brennus, and *brenhin* is Cymric for “a king.” They are described as large-limbed, with fair skins, yellow hair, and blue eyes, in all respects contrasted with the natives of southern Italy. Their courage was high, but their tempers fickle. They were more fitted for action than endurance; able to conquer, but not steady enough to maintain and secure their conquests.

Brennus and his barbarians (it was said or sung) passed into Etruria at the invitation of Aruns, a citizen of Clusium (Chiusi), whose daughter had been dishonoured by a young Lucumo or noble of the same place. To avenge his private wrongs this Etruscan called in the Gauls, as Count Julian in the Spanish romance called in the Moors to avenge the seduction of his daughter by Roderic the Goth. The Gauls, nothing loath, crossed the mountains, and laid siege to Clusium; on which the Etruscans of the city, terrified and helpless, despairing of effectual succour from their own countrymen, sent to seek aid from the city of the Tiber, which had conquered so many old Etruscan cities. Common danger makes friends of foes; and the senate determined to support the Etruscans against the barbarians. However, all they did was to send three ambassadors, sons of

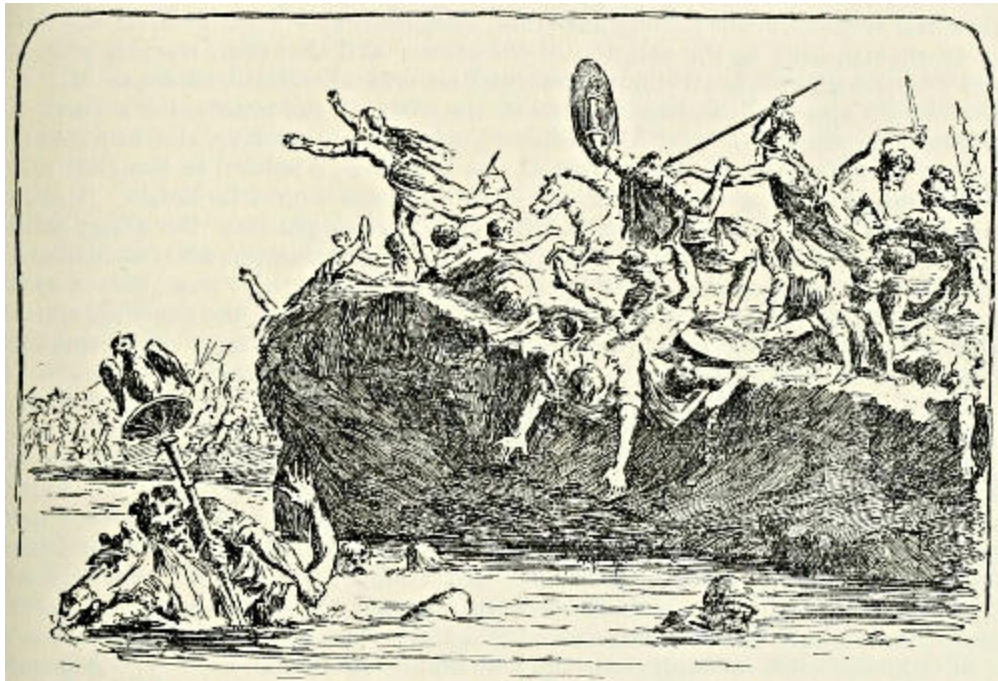
Fabius Ambustus, the pontifex maximus, to warn the Gauls not to meddle further with the men of Clusium, for Clusium was the ally of Rome. The barbarians took slight notice of the message, and continued the war. Now it chanced that there was a battle fought while the three Fabii were still at Clusium; and they, forgetting their peaceful character of envoys, took part with the Clusians against the Gauls, and one of them was seen stripping the arms off a Gallic champion whom he had slain. The barbarians, in high wrath, demanded to be led straight against the city whose sons were so faithless; but their chiefs restrained them, and sent an embassy to Rome demanding that the envoys should be given up. Then the senate, not caring to decide so weighty a matter, referred it to the people; and so far was the people from listening to the demands of the Gaul, that at the comitia next ensuing, these very envoys were all three elected military tribunes. On hearing of this gross and open insult, Brennus broke up his camp at Clusium, and marched southward for Rome. The river Clanis, upon which stood Clusium, led them down to the Tiber beneath Volsinii. Having crossed that river, and pouring down its left bank, they found themselves confronted by the Romans on the banks of the Allia, a little stream that rises in the Sabine hills and empties itself into the Tiber at a point nearly opposite the Cremera. Their left rested on the Tiber, the Allia was in their front, and their right occupied some hilly ground. Brennus attempted not to attack in front, but threw himself with an overpowering force upon the right flank of the enemy; and the Romans, finding their position turned, were seized with panic fear and fled. The greater part plunged into the Tiber in the hope of escaping across the river to Veii, and many made their escape good; but many were drowned, and many pierced by Gallic javelins. A small number reached Rome.^b

LIVY'S ACCOUNT OF THE GAULS IN ROME

[390 B.C.]

The miraculous attainment of so sudden a victory held even the Gauls in a state of stupefaction. And at first they stood motionless with panic, as if not knowing what had happened; then they apprehended a stratagem; at length they began to collect the spoils of the slain, and to pile up the arms in heaps, as is their custom. Then, at length, when no appearance of anything hostile was anywhere observed, having proceeded on their journey, they reach the

city of Rome not long before sunset: where, when some horsemen, who had advanced before, brought back word that the gates were not shut, that no guard was posted before the gates, no armed troops on the walls, another cause of amazement similar to the former made them halt; and dreading the night and ignorance of the situation of the city, they posted themselves between Rome and the Anio, after sending scouts about the walls and the several gates to ascertain what plans the enemy would adopt in their desperate circumstances.



BATTLE BETWEEN ROMANS AND GAULS AT THE RIVER ALLIA

With respect to the Romans, as the greater part had gone to Veii from the field of battle, and no one supposed that any survived except those who had fled back to Rome—being all lamented as lost, both those living and those dead—they caused the entire city to be filled with wailings. The alarm for the public interest stifled private sorrow, as soon as it was announced that the enemy were at hand. Presently the barbarians patrolling around the walls in troops, they heard their yells and the dissonant clangour of their arms. All the interval up to the next day kept their minds in such a state of suspense that an assault seemed every moment about to be made on the city: on their first approach, when they arrived at the city (it was expected); for if this were not their design, that they would have remained at the Allia;

then towards sunset, because there was not much of the day remaining, they imagined that they would attack them before night; then that the design was deferred until night, in order to strike the greater terror. At length the approach of light struck them with dismay; and the calamity itself followed closely upon their continued apprehension of it, when the troops entered the gates in hostile array. During that night, however, and the following day, the state by no means bore any resemblance to that which had fled in so dastardly a manner at the Allia. For as there was not a hope that the city could be defended, so small a number of troops now remaining, it was determined that the youth fit for military service, and the abler part of the senate with their wives and children, should retire into the citadel and Capitol, having collected stores of arms and corn; and thence from a fortified post, that they should defend the deities, and the inhabitants, and the Roman name: that the flamen (Quirinalis) and the vestal priestesses should carry away far from slaughter and conflagration the objects appertaining to the religion of the state; and that their worship should not be intermitted, until there remained no one who could continue it. If the citadel and Capitol, the mansion of the gods, if the senate, the source of public counsel, if the youth of military age, should survive the impending ruin of the city, the loss of the aged, the crowd left behind in the city, and who were sure to perish^[33] under any circumstances would be light. And in order that the plebeian portion of the multitude might bear the thing with greater resignation, the aged men, who had enjoyed triumphs and consulships, openly declared that they would die along with them, and that they would not burden the scanty stores of the armed men with those bodies, with which they were now unable to bear arms, or to defend their country. Such was the consolation addressed to each other by the aged now destined to death.

Their exhortations were then turned to the band of young men, whom they escorted to the Capitol and citadel, commending to their valour and youth whatever might be the remaining fortune of a city which for 360 years had been victorious in all its wars. When those who carried with them all their hope and resources parted with the others, who had determined not to survive the ruin of their captured city, both the circumstance itself and the appearance (it exhibited) was really distressing, and also the weeping of the women and their undecided running together, following now these, now those, and asking their husbands and children what was to become of them,

(all together) left nothing that could be added to human misery. A great many of them, however, escorted their friends into the citadel, no one either preventing or inviting them; because the measure which was advantageous to the besieged, that of reducing the number of useless persons, was but little in accordance with humanity.

The rest of the crowd, chiefly plebeians, whom so small a hill could not contain, nor could they be supported amid such scarcity of corn, pouring out of the city as if in one continued train, repaired to the Janiculum. From thence some were dispersed through the country, some made for the neighbouring cities, without any leader or concert, following each his own hopes, his own plans, those of the public being given up as lost. In the meantime the flamen Quirinalis and the vestal virgins, laying aside all concern for their own affairs, consulting which of the sacred deposits should be carried with them, which should be left behind, for they had not strength to carry them all, or what place would best preserve them in safe custody, considered it best to put them into casks and to bury them in the chapel adjoining to the residence of the flamen Quirinalis, where then it was profane to spit out. The rest they carried away with them, after dividing the burden among themselves, by the road which led by the Sublician bridge to the Janiculum.

Meanwhile at Rome, all arrangements being now made, as far as was possible in such an emergency, for the defence of the citadel, the crowd of aged persons having returned to their houses, awaited the enemy's coming with minds firmly prepared for death. Such of them as had borne curule offices, in order that they might die in the insignia of their former station, honours, and merit, arraying themselves in the most magnificent garments worn by those drawing the chariots of the gods in procession, or by persons riding in triumph, seated themselves in their ivory chairs, in the middle of their halls. Some say that they devoted themselves for their country and the citizens of Rome, Marcus Fabius, the chief pontiff, dictating the form of words.

The Gauls, both because by the intervention of the night they had abated all angry feelings arising from the irritation of battle, and because they had on no occasion fought a well-disputed fight, and were then not taking the city by storm or violence, entering the city the next day, free from resentment or heat of passion, through the Colline Gate which lay open,

advance into the Forum, casting their eyes around on the temples of gods, and on the citadel, which alone exhibited any appearance of war. From thence, after leaving a small guard, lest any attack should be made on them whilst scattered, from the citadel or Capitol, they dispersed in quest of plunder; the streets being entirely desolate, some of them rushed in a body into the houses that were nearest; some repair to those which were most distant, considering these to be untouched and abounding with spoil.

Afterwards being terrified by the very solitude, lest any stratagem of the enemy should surprise them whilst being dispersed, they returned in bodies into the Forum and the parts adjoining to the Forum, where the houses of the commons being shut, and the halls of the leading men lying open, almost greater backwardness was felt to attack the open than the shut houses; so completely did they behold with a sort of veneration men sitting in the porches of the palaces, who besides their ornaments and apparel more august than human, bore a striking resemblance to gods, in the majesty which their looks and the gravity of their countenance displayed. Whilst they stood gazing on these as on statues, it is said that Marcus Papirius, one of them, roused the anger of a Gaul by striking him on the head with the ivory, while he was stroking his beard, which was then universally worn long; and that the commencement of the bloodshed began with him, that the rest were slain in their seats. After the slaughter of the nobles, no person whatever was spared; the houses were plundered, and when emptied were set on fire.

But whether it was that all were not possessed with a desire of destroying the city, or it had been so determined by the leading men of the Gauls, both that some fires should be presented to their view (to see) if the besieged could be forced into a surrender through affection for their dwellings, and that all the houses should not be burned down, so that whatever portion should remain of the city, they might hold as a pledge to work upon the minds of the enemy; the fire by no means spread either indiscriminately or extensively on the first day, as is usual in a captured city.

The Romans beholding from the citadel the city filled with the enemy, and their running to and fro through all the streets, some new calamity presenting itself in every different quarter, were neither able to preserve their presence of mind, nor even to have perfect command of their ears and eyes. To whatever direction the shouts of the enemy, the cries of women and

children, the crackling of the flames, and the crash of falling houses, had called their attention, thither, terrified at every incident, they turned their thoughts, faces, and eyes, as if placed by fortune to be spectators of their falling country, and as if left as protectors of no other of their effects, except their own persons: so much more to be commiserated than any others who were ever besieged, because, shut out from their country, they were besieged, beholding all their effects in the power of the enemy. Nor was the night, which succeeded so shockingly spent a day, more tranquil; daylight then followed a restless night; nor was there any time which failed to produce the sight of some new disaster. Loaded and overwhelmed by so many evils, they did not at all abate their determination (resolved) though they should see everything in flames and levelled to the dust, to defend by their bravery the hill which they occupied, small and ill-provided as it was, being left (as a refuge) for liberty. And now, as the same events recurred every day, as if habituated to misfortunes, they abstracted their thoughts from all feeling of their circumstances, regarding their arms only, and the swords in their right hands, as the sole remnants of their hopes.

The Gauls also, after having for several days waged an ineffectual war against the buildings of the city, when they saw that among the fires and ruins of the captured city nothing now remained except armed enemies, neither terrified by so many disasters nor likely to turn their thoughts to a surrender, unless force were employed, determined to have recourse to extremities, and to make an attack on the citadel. A signal being given at break of day, their entire multitude was marshalled in the Forum; thence, after raising the shout and forming a testudo, they advanced to the attack. Against whom the Romans, acting neither rashly nor precipitately, having strengthened the guards at every approach, and opposing the main strength of their men in that quarter where they saw the battalions advancing, suffered the enemy to ascend, judging that the higher they ascended, the more easily would they be driven back down the steep. About the middle of the ascent they met them; and making a charge thence from the higher ground, which of itself bore them against the enemy, they routed the Gauls with slaughter and destruction, so that never after, either in parties or with their whole force, did they try that kind of fighting.

Laying aside all hope of succeeding by force of arms, they prepare for a blockade; of which having had no idea up to that time, they had, whilst

burning the city, destroyed whatever corn had been therein, and during those very days all the provisions had been carried off from the land to Veii. Accordingly, dividing their army, they resolved that one part should plunder through the neighbouring states, that the other part should carry on the siege of the citadel, so that the ravagers of the country might supply the besiegers with corn.

The Gauls, who marched from the city, were led by fortune herself, to make trial of Roman valour, to Ardea, where Camillus was in exile: who, more distressed by the fortune of the public than his own, whilst he now pined away arraigning gods and men, fired with indignation, and wondering where were now those men who with him had taken Veii and Falerii, who had conducted other wars rather by their own valour than by the favour of fortune, heard on a sudden that the army of the Gauls was approaching, and that the people of Ardea in consternation were met in council on the subject.

Both friends and enemies were satisfied that there existed nowhere at that time a man of equal military talent. The assembly being dismissed, they refreshed themselves, carefully watching for the moment the signal should be given; which being given, during the silence of the beginning of the night they attended Camillus at the gates. Having gone forth to no great distance from the city, they found the camp of the Gauls, as had been foretold, unprotected and neglected on every side, and attacked it with a shout. No fight anywhere, but slaughter everywhere; their bodies, naked and relaxed with sleep, were cut to pieces. Those most remote, however, being roused from their beds, not knowing what the tumult was, or whence it came, were directed to flight, and some of them, without perceiving it, into the midst of the enemy. A great number flying into the territory of Antium, an attack being made on them in their straggling march by the townspeople, were surrounded and cut off.

A like carnage was made of the Tuscans in the Veientian territory; who were so far from compassionating the city which had now been its neighbour for nearly four hundred years, overpowered as it now was by a strange and unheard-of enemy, that at that very time they made incursions on the Roman territory; and laden with plunder, had it in contemplation to lay siege to Veii, the bulwark and last hope of the Roman race. The Roman soldiers had seen them straggling over the country, and collected in a body, driving the spoil before them, and they perceived their camp pitched at no

great distance from Veii. Upon this, first self-commiseration, then indignation, and after that resentment, took possession of their minds: “Were their calamities to be a subject of mockery to the Etrurians, from whom they had turned off the Gallic war on themselves?” Scarce could they curb their passions, so as to refrain from attacking them at the moment; and being restrained by Quintus Cædicius, the centurion, whom they had appointed their commander, they deferred the matter until night. A leader equal to Camillus was all that was wanted; in other respects matters were conducted in the same order and with the same fortunate result. And further, under the guidance of some prisoners, who had survived the nightly slaughter, they set out to Salinæ against another body of Tuscans; they suddenly made on the following night still greater havoc, and returned to Veii exulting in their double victory.

Meanwhile, at Rome, the siege, in general, was slow, and there was quiet on both sides, the Gauls being intent only on this, that none of the enemy should escape from between their posts; when, on a sudden, a Roman youth drew on himself the admiration both of his countrymen and the enemy. There was a sacrifice solemnised at stated times by the Fabian family on the Quirinal Hill. To perform this Caius Fabius Dorso having descended from the Capitol, in the Gabinæ cincture, carrying in his hands the sacred utensils, passed out through the midst of the enemy’s post, without being at all moved by the calls or threats of any of them, and reached the Quirinal Hill; and after duly performing there the solemn rites, coming back by the same way with the same firm countenance and gait, confident that the gods were propitious, whose worship he had not even neglected when prohibited by the fear of death, he returned to the Capitol to his friends, the Gauls being either astounded at such an extraordinary manifestation of boldness, or moved even by religious considerations, of which the nation is by no means regardless.

In the meantime, not only the courage, but the strength of those at Veii increased daily, not only those Romans repairing thither from the country who had strayed away after the unsuccessful battle, or the disaster of the city being taken, but volunteers also flowing in from Latium, to come in for share of the spoil. It now seemed high time that their country should be recovered and rescued from the hands of the enemy. But a head was wanting to this strong body. The very spot put them in mind of Camillus,

and a considerable part consisted of soldiers who had fought successfully under his guidance and auspices, and Cædicius declared that he would not give occasion that any one, whether god or man, should terminate his command rather than that, mindful of his own rank, he would himself call (for the appointment of) a general. With universal consent it was resolved that Camillus should be sent for from Ardea, but not until the senate at Rome were first consulted; so far did a sense of propriety regulate every proceeding, and so carefully did they observe the distinctions of things in their almost desperate circumstances. They had to pass at great risk through the enemy's guards. For this purpose a spirited youth, Pontius Cominius, offered his services, and supporting himself on cork was carried down the Tiber to the city. From thence, where the distance from the bank was shortest, he makes his way into the Capitol over a portion of the rock that was craggy, and therefore neglected by the enemy's guard: and being conducted to the magistrates, he delivers the instructions received from the army. Then having received a decree of the senate, both that Camillus should be recalled from exile at the comitia curiata, and be forthwith appointed dictator by order of the people, and that the soldiers should have the general whom they wished, he passed out the same way and proceeded with his despatches to Veii; and deputies being sent to Camillus to Ardea, conducted him to Veii: or else the law was passed by the curiæ, and he was nominated dictator in his absence; for I am more inclined to believe that he did not set out from Ardea until he found that the law was passed; because he could neither change his residence without an order of the people, nor hold the privilege of the auspices in the army until he was nominated dictator.

Whilst these things were going on at Veii, in the meanwhile the citadel and Capitol of Rome were in great danger. For the Gauls either having perceived the track of a human foot where the messenger from Veii had passed, or having of themselves remarked the easy ascent by the rock at the temple of Carmentis, on a moonlight night, after they had at first sent forward an unarmed person, to make trial of the way, delivering their arms, whenever any difficulty occurred, alternately supported and supporting each other, and drawing each other up, according as the ground required, they reached the summit in such silence that they not only escaped the notice of the sentinels, but of the dogs also, an animal extremely wakeful with respect to noises by night.



A ROMAN SOLDIER

The notice of the geese they did not escape, which, as being sacred to Juno, were spared though they were in the greatest scarcity of food. Which circumstance was the cause of their preservation. For Marcus Manlius, who three years before had been consul, a man distinguished in war, being aroused from sleep by their cackling and the clapping of their wings, snatched up his arms, and at the same time calling the others to do the same, proceeded to the spot; and whilst the others were thrown into confusion, he struck with the boss of his shield and tumbled down a Gaul, who had already got footing on the summit; and when the fall of this man as he tumbled threw down those who were next him, he slew others, who in their consternation had thrown away their arms, and caught hold of the rocks to which they clung. And now the others also having assembled, beat down the enemy by javelins and stones, and the entire band, having lost their footing, were hurled down the precipice in promiscuous ruin. The alarm then subsiding, the remainder of the night was given up to repose (as far as could be done considering the disturbed state of their minds), when the danger, even though past, still kept them in a state of anxiety.

Day having appeared, the soldiers were summoned by sound of trumpet to attend the tribunes in assembly, when recompense was to be made both to merit and to demerit; Manlius was first of all commended for his bravery and presented with gifts, not only by the military tribunes, but with the consent of the soldiers, for they all carried to his house, which was in the citadel, a contribution of half a pound of corn and half a pint of wine: a matter trifling in the relation, but the prevailing scarcity had rendered it a strong proof of esteem, when each man, depriving himself of his own food, contributed in honour of one man a portion subtracted from his body and from his necessary requirements. Then the guards of that place where the enemy had climbed up unobserved, were summoned; and when Quintus Sulpicius declared openly that he would punish all according to the usage of military discipline, being deterred by

the consentient shout of the soldiers who threw the blame on one sentinel, he spared the rest. The man, who was manifestly guilty of the crime, he threw down from the rock, with the approbation of all. From this time forth the guards on both sides became more vigilant; on the part of the Gauls, because a rumour spread that messengers passed between Veii and Rome, and on that of the Romans, from the recollection of the danger which occurred during the night.

But beyond all the evils of siege and war, famine distressed both armies; pestilence, moreover, oppressed the Gauls, both as being encamped in a place lying between hills, as well as heated by the burning of the houses, and full of exhalations, and sending up not only ashes but embers also, whenever the wind rose to any degree; and as the nation, accustomed to moisture and cold, is most intolerant of these annoyances, and, suffering severely from the heat and suffocation, they were dying, the diseases spreading as among cattle, now becoming weary of burying separately, they heaped up the bodies promiscuously and burned them; and rendered the place remarkable by the name of Gallic piles.

A truce was now made with the Romans, and conferences were held with the permission of the commanders; in which when the Gauls frequently alluded to the famine, and referred to the urgency of that as a further motive for their surrendering, for the purpose of removing that opinion, bread is said to have been thrown in many places from the Capitol, into the advanced posts of the enemy. But the famine could neither be dissembled nor endured any longer. Accordingly, whilst the dictator is engaged in person in holding a levy, in ordering his master of the horse, Lucius Valerius, to bring up the troops from Veii, in making preparations and arrangements, so that he may attack the enemy on equal terms, in the meantime the army of the Capitol, wearied out with keeping guard and with watches, having surmounted all human sufferings, whilst nature would not suffer famine alone to be overcome, looking forward from day to day, to see whether any succour would come from the dictator, at length not only food but hope also failing, and their arms weighing down their debilitated bodies, whilst the guards were being relieved, insisted that there should be either a surrender, or that they should be bought off, on whatever terms were possible, the Gauls intimating in rather plain terms, that they could be induced for no very great compensation to relinquish the siege. Then the

senate was held and instructions were given to the military tribunes to capitulate.

Upon this the matter was settled between Quintus Sulpicius, a military tribune, and Brennus, the chieftain of the Gauls, and one thousand pounds weight of gold was agreed on as the ransom of a people, who were soon after to be the rulers of the world. To a transaction very humiliating in itself, insult was added. False weights were brought by the Gauls, and on the tribune objecting, his sword was thrown in in addition to the weight by the insolent Gaul, and an expression was heard intolerable to the Romans, "Woe to the vanquished!"



THE ROMANS' TREATY WITH THE GAULS

(After Mirys)

But both gods and men interfered to prevent the Romans from living on the condition of being ransomed; for by some chance, before the execrable price was completed, all the gold being not yet weighed in consequence of the altercation, the dictator comes up, and orders the gold to be removed, and the Gauls to clear away. When they, holding out against him, affirmed that they had concluded a bargain, he denied that the agreement was a valid one, which had been entered into with a magistrate of inferior authority without his orders, after he had been nominated dictator; and he gives

notice to the Gauls to get ready for battle. He orders his men to throw their baggage in a heap, and to get ready their arms, and to recover their country with steel, not with gold, having before their eyes the temples of the gods, and their wives and children, and the soil of their country disfigured by the calamities of war, and all those objects which they were solemnly bound to defend, to recover, and to revenge. He then draws up his army, as the nature of the place admitted, on the site of the half-demolished city, and which was uneven by nature, and he secured all those advantages for his own men, which could be prepared or selected by military skill.

The Gauls, thrown into confusion by the unexpected event, take up arms, and with rage, rather than good judgment, rushed upon the Romans. Fortune had now changed; now the aid of the gods and human prudence assisted the Roman cause. At the first encounter, therefore, the Gauls were routed with no greater difficulty than they had found in gaining the victory at Allia. They were afterwards beaten under the conduct and auspices of the same Camillus, in a more regular engagement, at the eighth stone on the Gabine road, whither they had betaken themselves after their defeat. There the slaughter was universal: their camp was taken, and not even one person was left to carry news of the defeat.

The dictator, after having recovered his country from the enemy, returns into the city in triumph; and among the rough military jests which they throw out on such occasions he is styled, with praises by no means undeserved, Romulus, and parent of his country, and a second founder of the city. His country, thus preserved by arms, he unquestionably saved a second time in peace, when he hindered the people from removing to Veii, both the tribunes pressing the matter with greater earnestness after the burning of the city, and the commons of themselves being more inclined to that measure; and that was the cause of his not resigning his dictatorship after the triumph, the senate entreating him not to leave the commonwealth in so unsettled a state.^c

OTHER ACCOUNTS OF THE DEPARTURE OF THE GAULS

[390-349 B.C.]

Such was the conclusion of the legend. But, unfortunately for Roman pride, here also, as in the tale of Porsenna, traces of true history are preserved

which show how little the Roman annalists regarded truth. Polybius tells us, as if he knew no other story, that the departure of the Gauls was caused by the intelligence that the Venetians, an Illyrian tribe, had invaded their settlements in northern Italy, and that they actually received the gold and marched off unmolested to their homes. It is added by a later historian, that Drusus, the elder brother of the emperor Tiberius, recovered this very gold from the Gauls of his own day.

The Gauls left the city in ruins, in whatever way they were compelled to retire, whether by the sword of Camillus, or by the softer persuasion of gold. Two later inroads of the Gauls are distinguished by two famous legends: the last, or nearly the last, which occur in the pages of Roman history.

In the Manlian house there was a family which bore the name of Torquatus. This name was said to have been won by T. Manlius, who fought with a gigantic Gallic champion on the bridge over the Anio in 361 B.C., and slew him. From the neck of the slain enemy he took the massy chain (*torques*) which the Gallic chiefs were in the habit of wearing. He put it round his own neck, and returning in triumph to his friends, was ever after known by the name of T. Manlius Torquatus. Of him we shall hear more.

Again, when L. Camillus, a nephew of the great Camillus, was pursuing the Gauls through the Volscian plains in 349 B.C., a champion challenged any one of the Roman youth to single combat. The challenge was readily accepted by M. Valerius, who, by the side of the huge Gaul, looked like a mere stripling. At the beginning of the combat (wonderful to tell) a crow lighted upon his helmet; and as they fought, the bird confounded the Gaul by flying in his face and striking him with his beak, and flapping its wings before his eyes; so that he fell an easy conquest to the young Roman. Hence M. Valerius was ever after known by the name of Corvus, and his descendants after him. Him also we shall hear of hereafter; for he lived to be a great general, and more than once delivered his country from great danger.^b

Thus runs the legend of the first great event in Roman history—an event so important that the echo reached even to Greece. “The capture of Rome by the Gauls,” says George Cornewall Lewis,^f “is the first event in Roman history which, so far as we know, attracted the notice of the contemporary

Greeks. Plutarch says that Heraclides of Pontus spoke of a report from the far West, which described an Hellenic city called Rome, situated somewhere near the great sea, as having been taken by an army from the distant land of the Hyperboræans.”

Ihne^g is very incredulous of most of the legends, even suggesting that the legend of the geese had an ætiological origin and was merely invented to explain a religious ceremony in which a dog was impaled and a goose decorated with gold, instead of being actually the origin of that annual ceremony. Lewis, however, finds the older story amply substantiated.^[34] Among the chief sceptics are Mommsen,^h Schwegler,ⁱ and Pais^j the most radical of all. Niebuhr’s^e story of the whole event is worth quoting, beginning with his comments on the story that Aruns of Clusium brought in the Gauls.^a

NIEBUHR ON THE CONDUCT OF THE ROMANS

Though history rejects the incident as demonstrably false, it is well suited to the legend; and every legend which was current among the people long before the rise of literature among them, is itself a living memorial of ancient times,—even though its contents may not be so,—and deserves a place in a history of Rome written with a due love for the subject.

The determination to sacrifice the old men certainly cannot be called inconceivable in a people of antiquity. This however is inconceivable, that they should have been so far influenced by the example of the patricians, as to await their doom like devoted victims. Could they be sure that a wished-for death would speedily release them? that wanton cruelty would not protract it by torture? that they should not be driven along as slaves, without regard to their strength, at the mere caprice of the barbarians? They might have defended the walls and the gates, might have maintained a resistance with all sorts of missiles in the interior of the city, might have made many of their enemies share their fate; had the quarters that held out been set fire to, the victor would have been deprived of his spoil. But in fact Livy is the only writer who speaks of this torpid resignation. Others related that, while all the rest of the people quitted their homes, eighty priests and aged patricians of the highest rank sat down in the Forum on their curule thrones

in festal robes awaiting death. That such a resolution should have been freely taken by men of the same class, who deemed it intolerable to outlive the republic and the worship of the gods, is by no means improbable; least of all if, after resolving to face death, they solemnly devoted themselves by the hands of the chief pontiff for the republic and for the destruction of her foes. On the other hand it is utterly inconceivable that the chief part of the women and children should not have retired from the city, where every kind of insult and outrage inevitably awaited them, when it was yet possible for them to be saved by flight. It is said that a great number pressed forward at the last moment and gained admittance into the Capitol and the citadel; as if, had this been feasible, they would not all have forced their way in; as if that small place could have held more than the men requisite to defend it, with provisions for them. Finally, the story that the Romans in their despair did not close the gates of the city, and that nothing but the fear of some stratagem withheld the conquerors from marching in, sounds very incredible. On this point, however, we do not want any internal reasons; since the authentic account in Diodorus states that the Gauls, on finding the walls entirely deserted, burst open the gates.

It would be extremely unjust to impute what has here been said about Livy's narrative to a design of detracting from his merits. Such criticisms cannot impair his imperishable fame. As soon as we cease to call for what it was Livy's least care to supply, nothing remains to disturb the pleasure which his description must yield to every unprejudiced mind. If there be one so distempered as to forego that pleasure, because his account has been proved to be historically untenable, we may pity, but we must not indulge its perverseness.

A writer who adopts a dry and neglected report in preference to a well-known and masterly narrative, must justify himself, and show that it is not from the love of paradox, that he has discarded the more beautiful story. [Niebuhr reminds his readers of his previously expressed admiration for Livy with renewed assurances of his entire sincerity. He then concludes thus eloquently]: And in his own peculiar excellencies, in that richness and that warmth of colouring which many centuries after were the characteristics of the Venetian painters born under the same sky, Livy never shone more brilliantly than in this very description; a more vivid one is not to be found in any Latin or Greek historian.^e

SEQUEL OF THE GALLIC WAR

[390-384 B.C.]

We can imagine better than describe the blank dismay with which the Romans, on the departure of the Gauls, must have looked upon their ancient homes. Not only was the country ravaged, as had often happened in days of yore, but the city itself, except the Capitol, was a heap of ruins. It is not strange that once again the plebeians should have thought of quitting Rome forever. Not long before they had wished to migrate to Veii; now, they had actually been living there for many months. Rome no longer existed; patriotism, they said, no longer required them to stand by their ancient home; why should not all depart—patricians with their clients and freedmen, as well as plebeians—and make a new Rome at Veii? In vain Camillus opposed these arguments with all the influence which his late services had given him. Standing in the Forum, under shadow of the Capitol, with the citadel defended by Manlius over their heads, in the sight of their country's gods, now brought back from Cære, the plebeians were ready to agree to a general migration of the whole people, when (so runs the story) a sudden omen changed their hearts. A certain centurion was leading a party of soldiers through the city, and, halting them in the Forum while the question was in hot debate, he used these memorable words: "Standard-bearer, pitch the standard here; here it will be best for us to stay!"

It was therefore resolved to rebuild the city, and the senate did all in their power to hasten on the work. They took care to retrace, as far as might be, the ancient sites of the temples; but it was impossible to prescribe any rules for marking out the streets and fixing the habitations of the citizens. All they did was to supply tiling for the houses at the public expense. So men built their houses where they could, where the ground was most clear of rubbish, or where old materials were most easy to be got. Hence, when these houses came to be joined together by others, so as to form streets, these streets were narrow and crooked, and, what was still worse, were often built across the lines of the ancient sewers, so that there was now no good and effectual drainage. The irregularity continued till Rome was again rebuilt after the great fire in the time of the emperor Nero.

Great were the evils that were caused by this hurry. The healthiness of the city must have been impaired, order and decency must have suffered, but

there was one particular evil at the moment which threatened very great mischief. The mass of the people, having little or nothing of their own, or having lost all in the late destruction, were obliged to borrow money in order to complete their dwellings: and as tillage had for the last season been nearly suspended, the want and misery that prevailed were great. Now again, as after the wars against the Tarquins, many of the poorer sort were reduced to bondage in the houses of the wealthy.

Then it was that M. Manlius, the defender of the Capitol, stood forth as the patron of the poor. He saw a debtor being taken to prison, whom he recognised as a brave centurion that had formerly served with him in the wars. He instantly paid the man's debt, and set him free. Then, selling the best part of his landed property, he declared that, while he could prevent it, he would never see a fellow-citizen imprisoned for debt. His popularity rose high, and with the poorer sort the name of M. Manlius was more in esteem than that of the great Camillus. Nor did he content himself with relieving want; he also stepped forward as an accuser of the patricians and senators: they had divided among themselves, he said, part of the gold which had been raised to pay the Gauls. On the other hand, the patricians asserted that Manlius was endeavouring to make himself tyrant of Rome, and that this was the real purpose of all his generosity. The senate ordered a dictator to be named, and A. Cornelius Cossus was chosen. He summoned Manlius before him, and required him to prove the charge which he had maliciously brought against the ruling body. He failed to do so and was cast into prison, but claimed to be regularly tried before the whole people assembled in their centuries; and his claim was allowed. On the appointed day he appeared in the Campus Martius, surrounded by a crowd of debtors, every one of whom he had redeemed from bondage. Then he exhibited spoils taken from thirty enemies slain by himself in single combat; eight civic crowns, bestowed each of them for the life of a citizen saved in battle, with many other badges given him in token of bravery. He laid bare his breast and showed it all scarred with wounds, and then, turning to the Capitol, he called those gods to aid whom he had saved from the sacrilegious hands of the barbarians. The appeal was felt, and if the centuries had then given their votes, he would certainly have been acquitted of high treason. So his enemies contrived to break up that assembly; and shortly after he was put on his trial in another place, the Peteline grove, whence (it is said) the Capitol could not be seen. Here he was at once found guilty, and condemned to be thrown

down the Tarpeian rock. A bill was then brought in and passed, enacting that his house on the Capitol should be destroyed, and that no one of his gens should hereafter bear the forename of Marcus.^[35]

[384-376 B.C.]

But something was done to relieve the poor. The lands which had been taken from the Veientines on the right bank of the Tiber were now incorporated into the Roman territory and divided into four tribes, so that all free men settled in these districts became burgesses of Rome, and had votes in the comitia both of the centuries and tribes. This politic measure, however, served no less to conciliate the affections of their new Etrurian subjects than to benefit their own poor citizens. Moreover an attempt was made to plant a number of poor citizens in the Pontine district. Yet these measures were insufficient to heal the breach which still subsisted between the patricians and plebeians. Nothing could be effectual to this end but the admission of the plebeians to the chief magistracy; and a struggle now commenced for that purpose.

It has been said that all difference between the patrician and plebeian orders was rapidly disappearing, or rather that the patrician families were gradually becoming fewer, while many plebeian families were rising to wealth and power. Already we have seen the plebeians obtain a footing in the senate; they were allowed to fill the offices of quæstor and ædile, and, as military tribunes, could command the armies of the state; but to the highest curule offices, as the censorship and consulship, they were not admissible, the reason given being, that for these offices the auguries must be taken and no religious rites could be performed save by persons of pure patrician blood. This now began to be felt to be a mockery. Men saw with their own eyes and judged with their own



understanding that patricians and plebeians were men of like natures, were called on alike to share burdens and danger in the service of the state, and therefore ought to share alike the honours and dignities which she conferred. So Canuleius argued many years before, so the plebeians thought now; and two resolute tribunes arose, who at length carried the celebrated laws by which plebeians were admitted to the highest honours. These were C. Licinius Stolo and L. Sextius, his kinsman.

There is a well-known story of the manner in which they were first roused to the undertaking. It runs thus: M. Fabius Ambustus, a patrician, had two daughters, the elder married to Ser. Sulpicius, a patrician, the younger to C. Licinius, a plebeian. It happened that Sulpicius was consular tribune in the same year that Licinius was tribune of the plebs; and as the younger Fabia was on a visit to her sister, Sulpicius, returning home from the Forum with his lictors, alarmed the plebeian's wife by the noise he made in entering the house. The elder sister laughed at this ignorance; and the younger Fabia, stung to the quick, besought her husband to place her on a level with her proud sister. But the story must be an invention—because Licinius' wife could not have been ignorant of the dignities of the office; and because there was nothing to prevent Licinius himself from being consular tribune, and thus equal to his brother-in-law. ^[36]

THE LICINIAN ROGATIONS

[376 B.C.]

However this might be, Licinius and Sextius, being tribunes of the plebs together in the year 376 B.C., promulgated the three bills which have ever since borne the name of the Licinian Rogations. These were:

I. That of all debts on which interest had been paid, the sum of the interest paid should be deducted from the principal, and the remainder paid off in three successive years.

II. That no citizen should hold more than five hundred jugera (nearly 320 acres) of the public land, nor should feed on the public pastures more than

one hundred head of larger cattle and five hundred of smaller, under penalty of a heavy fine.

III. That henceforth consuls, not consular tribunes, should always be elected, and that one of the two consuls must be a plebeian.

Of these laws, the first is of a kind not very uncommon in rude states of society. If persons lend and borrow money they enter into a legal contract, and the state is bound to maintain this contract. Cases will occur when the borrower is unable to pay his debts, and that from no fault or neglect of his own; and the laws provide for cases of insolvency in which the insolvent is not guilty of fraud. But if the state were to cancel all legal debts, persons would be very slow to lend money at all, and thus credit and commerce would be destroyed. At Rome, after the Gallic War, as at Athens in the time of Solon (when a similar ordinance was passed), all things were in such confusion that it might be necessary to resort to arbitrary measures; and we may well believe that Licinius, himself a wealthy man, would not have interfered but for necessity. But the precedent was bad; and in later times one of the worst means used by demagogues was a promise of *novæ tabulæ*, or an abolition of all debts.

The second law was a general agrarian law. Former agrarian laws had merely divided certain portions of public land among the needy citizens; but this laid down a general rule, by which the holding (*possessio*) of all such lands was to be limited. The purpose of Licinius was good. He wished to maintain that hardy race of yeomen who were the best soldiers in the state-militia; whereas if all these lands were absorbed by the rich, they would be cultivated by hired labourers or slaves. The subsequent history will show how unfortunate it was for Rome that this law was not more fully executed.

[376-368 B.C.]

At first the patricians were equally opposed to all these laws; they were the chief creditors, and therefore would lose by the first law; they held the bulk of the public lands on easy terms, and therefore would lose by the second; they alone could be consuls, and therefore they could not brook the third. We need not therefore wonder at a violent resistance; nor is it wonderful that they should enlist many rich plebeians on their side, for these persons would suffer as much as themselves from the first two laws. Accordingly we find that some tribunes were found to put a veto on the

bills. But Licinius and Sextius would not be thus thwarted, and themselves turned the powerful engine of the veto against their opponents. When the time of the elections arrived they interdicted all proceedings in the comitia of the centuries; consequently no consuls, consular tribunes, censors, or quæstors could be elected. The tribunes and ædiles, who were chosen at the comitia of tribes, were the only officers of state for the ensuing year.

This state of things (as the Roman annalists say) lasted for five years,^[37] Licinius and Sextius being re-elected to the tribunate every year. But in the fifth year, when the people of Tusculum, old allies of Rome, applied for aid against the Latins, the tribunes permitted consular tribunes to be elected to lead the army, and among them was M. Fabius Ambustus, the father-in-law and friend of Licinius. The latter, far from relaxing his claims, now proposed a fourth bill, providing that, instead of two keepers of the Sibylline books (*duumviri*), both patricians, there should be ten (*decemviri*), to be chosen alike from both orders—so scornfully did he treat the pretensions of the patricians to be sole ministers of religion.

The latter felt that the ground was slipping from under them, and that the popular cause was daily gaining strength. In vain did the senate order a dictator to be named for the purpose of settling the matter in their favour. The great Camillus assumed the office for the fourth time, but resigned; and P. Manlius Capitolinus, who was named presently after, effected nothing.

Once more, as when the patricians were in opposition to the tribunes, Terentilius and Canuleius, so now did the more moderate party propose a compromise. The law respecting the keepers of the Sibylline books was allowed to pass, and it was suggested that the two former of the Licinian rogations, the two social laws, might be conceded, if the plebeians would not press the political law, and claim admission to the highest curule rank. But this the tribunes refused. They could not, they said, effectually remedy the social evils of their poor brethren unless they had access to the highest political power; and they declared they would not allow the first two bills to become law unless the third was passed together with them. “If the people will not eat,” said Licinius, “neither shall they drink.” In vain the patricians endeavoured to turn this declaration against them; in vain they represented the tribunes as ambitious men who cared not really for the wants of the poor in comparison of their own honour and dignity; in vain the mass of the plebeians avowed themselves ready to accept the compromise. The tribunes

set their faces like iron against the threats of the higher sort and the supplications of the lower. For another five years the grim conflict lasted, till at length their resolution prevailed, and in the year 367 B.C. all the three Licinian rogations became law.

This great triumph was achieved with little tumult (so far as we hear) and no bloodshed. Who can refuse his admiration to a people which could carry through their most violent changes with such calmness and moderation?

But the patricians, worsted as they were, had not yet shot away all their arrows. At the first election after these laws were passed, L. Sextius was chosen the first plebeian consul. Now the consuls, though elected at the comitia of the centuries, were invested with the imperium or sovereign power by a law of the curies. This law the patricians, who alone composed the curies, refused to grant; and to support this refusal the senate had ordered Camillus, who was now some eighty years old, to be named dictator for the fifth time. The old soldier, always ready to fight at an advantage, perceived that nothing now was practicable but an honourable capitulation. The tribunes advised the people to submit to the dictator, but declared that they would indict him at the close of his office; and he, taking a calm view of the state of things, resolved to act as mediator.

EQUALISATION OF THE TWO ORDERS

[368-367 B.C.]

The matter was finally adjusted by a further compromise. The plebeian consul was invested with the imperium; but the judicial power was now taken from the consuls and put into the hands of a supreme patrician judge, called the Prætor of the City (*Prætor Urbanus*), and Sp. Camillus, son of the dictator, was the first prætor. A hundred men (*centumviri*) were named, to whom he might delegate all difficult cases not of a criminal nature. At the same time also another magistracy, the curule ædileship, was created, to be filled by patricians and plebeians in alternate years. These curule ædiles shared the duties of the plebeian ædiles, and besides this, had to superintend the great games, for which they were allowed a certain sum from the treasury. At the same time a fourth day was added to these games in honour of the plebeians.

Thus the patricians lost one of the consulships, but retained part of the consular functions under other titles. And when Camillus had thus effected peace between the orders, he vowed a temple to Concord; but before he could dedicate it, the old hero died. The temple, however, was built according to his design; its site, now one of the best known among those of ancient Rome, can still be traced with great certainty at the northwestern angle of the Forum, immediately under the Capitoline. The building was restored with great magnificence by the emperor Tiberius; and it deserved to be so, for it commemorated one of the greatest events of Roman history,—the final union of the two orders, from which point we must date that splendid period on which we now enter. By this event was a single city enabled to conquer, first of all Italy, and then all the civilised countries of the known world, that is, all the peoples bordering on the Mediterranean Sea.

Various causes were for some time interposed to prevent the due execution of the Licinian laws. Indeed the first two of these measures, which aimed at social improvements, may be said to have failed. Social abuses are always difficult to correct. The evils are, in these cases, of slow growth; their roots strike deep; they can only be abated by altering the habits and feelings of the people, which cannot be effected in the existing generation; they will not give way at once to the will of a law-giver, however good his judgment, however pure his motives, however just his objects. But the common difficulty of removing social evils was increased in Rome at this time by circumstances.

[367-343 B.C.]

For two years a pestilence raged in the city, which swept away great numbers of citizens and paralysed the industry of all. The most illustrious of its victims was Camillus, who died even more gloriously than he had lived, while discharging the office of peacemaker. About the same time the region of the city was shaken by earthquakes; the Tiber overflowed its bed and flooded the Great Circus, so that the games then going on were broken off. Not long after a vast gulf opened in the Forum, as if to say that the meeting-place of the Roman people was to be used no more. The seers said that the gods forbade this gulf to close till that which Rome held most valuable were thrown into it. Then, when men were asking what this might be, a noble youth, named M. Curtius, said aloud that Rome's true riches were brave

men, that nothing else so worthy could be devoted to the gods. Thus saying, he put on his armour, and mounting his horse, leaped into the gulf; and straightway, says the legend, the earth closed and became solid as before; and the place was called the Lacus Curtius forever after.

To these direct visitations of God, the pestilence and the earthquake, was added a still more terrible scourge in the continued inroads of the Gauls. It has been noticed above that in the years 361 and 350 B.C. hordes of these barbarians again burst into Latium and again ravaged the Roman territory.

These combined causes increased the distress of the poor, and we read without surprise that in the year 357 B.C., ten years after the passing of the Licinian laws, a bill was brought forward by Duilius and Mænius, tribunes of the plebs, to restore the rate of interest fixed by the Twelve Tables, which in the late troubles had fallen into neglect; and five years later (in 352) the consuls brought forward a measure to assist the operation of the Licinian law of debt. They appointed five commissioners (*quinqueviri*), with power to make estimates of all debts and of the property of the debtors. This done, the commissioners advanced money to discharge the debt, as far as it was covered by the property of the debtor. The measure was wise and useful, but could only be partial in its effects. It could not help those debtors who had no property, or not enough property to pay their debts withal. Hence we find that in another five years (347 B.C.) the rate of interest was reduced to 5 per cent.; and some years afterwards it was tried to abolish interest altogether. But, laws to limit interest proved then, as they have proved ever since, ineffectual to restrain the practices of grasping and dishonest usurers.

There were, then, great difficulties in the way of a law for relieving debtors. These were increased, as has been seen, by circumstances, and we must now add the selfishness and dishonesty of the rich patricians and plebeians, who held the bulk of the public land in their own hands, and contrived to evade the Licinian law in the following way. If a man held more than five hundred jugera, he emancipated his son and made over a portion of the land nominally to him, or, if he had no son, to some other trusty person. With sorrow we hear of these practices, and with still greater sorrow we learn that in the year 354 B.C. C. Licinius himself was indicted by the curule ædile, M. Popilius Lænas, for fraudulently making over five hundred jugera to his son, while he held another five hundred in his own name. Thus this remedy for pauperism was set aside and neglected, till the

Gracchi arose, and vainly endeavoured, after more than two centuries of abuse, to correct that which at first might have been prevented.

The law for equalising political power was more effective. For eleven years after the Licinian law one consul was always a plebeian. Then the patricians made one last struggle to recover their exclusive privilege; and in the year 355 B.C. we have a Sulpicius and a Valerius as consuls, both of them patricians; and in the course of the next dozen years we find the law violated in like manner no less than seven times. After that it is regularly observed, one consul being patrician and the other plebeian, till at length in the year 172 B.C., when the patrician families had greatly decreased, both consulships were opened to the plebeians, and from that time forth the offices were held by men of either order without distinction.

These violations of the law above mentioned were effected by the power by which the senate ordered the patrician consul to name a dictator. At least in the space twenty-five years after the Licinian laws we have no fewer than fifteen dictators. Now several of these were appointed for sudden emergencies of war, such as the Gallic invasions of 361 and 350. But often we find dictators when there is no mention of foreign war. In the year 360 we find that both the consuls enjoyed a triumph, and not the dictator. These and other reasons have led to the belief that these dictators were appointed to hold the consular comitia, and brought the overbearing weight of their political power to secure the election of two patrician consuls.

But if this were the plan of the patricians, it availed not. After the year 343 B.C. the law was regularly observed, by which one consul was necessarily a plebeian. The plebeians also forced their way to other offices. C. Marcius Rutilus, the most distinguished plebeian of his time, who was four times elected consul, was named dictator in the year 356 B.C., no doubt, by the plebeian consul Popilius Lænas; and five years later (351) we find the same Marcius elected to the censorship.

Practically, therefore, the political reform of Licinius and Sextius had been effectual so far as the admission of plebeians to the highest offices of state was concerned. It must be remarked, however, that these privileges, though no longer engrossed by patricians, seem to have been open only to a few wealthy plebeian families. C. Marcius Rutilus, as we have just remarked, held the consulship four times in sixteen years (357-342). M.



ETRUSCAN WOMAN OF QUALITY

Popilius Lænas and C. Pœtelius Libo enjoyed a similar monopoly of honours.

As the exclusive privileges of the patricians thus gradually and quietly gave way, instead of being maintained (as in modern France) till swept away by the violent tide of revolution, so did the power of the senate rise. It was by the wisdom or policy of this famous assembly that the city of Rome became mistress of Italy and of the world. Hitherto the contest has been internal, of citizen against citizen, in order to gain an equality of rights. Henceforth, for two hundred years, we shall have to relate contests with foreign peoples, and to give an account of the conquest of Italy, for which the Roman senate and people, now at length

politically united, were prepared.

EXTERNAL AFFAIRS

[390-342 B.C.]

Abroad, after the burning of the city, Rome had once more to struggle for very existence. Before the city was so far restored as to be habitable, it was announced that the Æquians and Volscians were in arms. The Æquians seem to have shared in the general disaster caused by the Gallic inroad; henceforth at least the part they play is insignificant. But the Volscians boldly advanced to Lanuvium, and once more encamped at the foot of the Alban hills. The city was in great alarm; and Camillus was named dictator for the exigency. He defeated them with great loss, and pursued them into

their own territory. He then marched rapidly to Bola, to which place the Æquians had advanced and gained another victory.

But in the moment of triumph news came that Etruria was in arms. The Etruscans hoped by a brave effort to recover the territory which the Romans had for the second time appropriated. A force was sent against them; but so completely was it routed on the nones of July, that this day was noted in the Calendar as the Poplifugia. Siege was then laid to Sutrium by the victors, and it fell. But the prompt dictator, on the first alarm, marched his troops straight from Bola to the point of danger; and on the very day on which Sutrium had yielded to the foe, it was again taken by the Roman general. Thus Camillus again appears as the saviour of Rome. He enjoyed a threefold triumph over the Volscians, the Æquians, and the Etrurians.

It was two years after, that the Etruscan territory, now effectually conquered, was formed into four tribes. By the addition of these new tribes, the first that had been added since this very territory had been wrested from Rome by Porsenna, the whole number was raised to twenty-five. The late assault of the Etruscans, perhaps, suggested the wisdom of making the free inhabitants of this district citizens of Rome. Men who had lately been subject to the oppressive government of a civic oligarchy, being now mingled with Roman plebeians who had received allotments in the district, and seeing the comparative freedom of all Roman burgesses, were sure to fight for Rome rather than join in an insurrection against her. Here was the beginning of that sagacious policy, which for a time led political enfranchisement hand in hand with conquest. Thirty years later (358 B.C.) the senate pursued the same course with respect to the Pontine district and other lowlands which had been recovered from the grasp of the Volscians. A settlement of poor plebeians, which was attempted in 387 B.C., failed; the emigrants were cut off by the Volscian hills-men. But the territory being now formed into two tribes, so as to make the whole number twenty-seven, the inhabitants had an interest in repressing predatory inroads.

[387-354 B.C.]

Soon after followed the struggle for the Licinian laws; and during this period the annals are altogether silent on the subject of wars.

But before the promulgation of the Licinian laws, there were threatenings of greater danger than was to be feared either from Etruscans or Volscians.

The Latins and Hernicans, who since the time of Sp. Cassius had fought by the side of Rome in all her border wars, no longer appeared in this position. The inroad of the Gauls had broken up the league. Rome had been reduced to ashes, and was left in miserable weakness. Many of the thirty Latin towns, the names of which occur in the league of Cassius, were so utterly destroyed, that the antiquary in vain seeks for their site in the desolation of the Campagna. But the two important cities of Tibur and Præneste (Tivoli and Palestrina), perched on steep-scarped rocks, defying the rude arts of the invader, had gained strength by the ruin of their neighbours, and appear as independent communities, standing apart from the rest of Latium and from Rome. It was believed that the Prænestines encouraged the Volscians in their inroads, and in 382 B.C. war was declared against them. Some of the Latin cities joined Præneste; others sought protection against her from Rome. In this war even the Tusculans deserted Rome. But after a struggle of five years, the dictator, T. Quinctius, took nine insurgent cities, and blockaded Præneste itself, which capitulated on terms of which we are not informed. Soon after Tusculum also was recovered; and for the present all fear of the Latins subsided.

But a few years after the temple of Concord had been erected by old Camillus, fresh alarms arose. The Hernicans gave signs of disquietude. War was declared against them in 362 B.C. Next year came the second inroad of the Gauls, and it was observed with consternation, that this terrible foe occupied the valley of the Anio, and was not molested either by the Latins of Tibur or by the Hernicans. In the year 360 B.C. the *Fasti* record a triumph of the consul Fabius over this last-named people, and another of his colleague Pœtelius over the men of Tibur and the Gauls—an ominous conjunction.

But this new inroad of the barbarians, which threatened Rome with a second ruin, really proved a blessing; for the remaining Latin cities, which in the late conflicts had stood aloof, terrified by the presence of the Gauls, and seeing safety only in union, now renewed their league with Rome, and the Hernicans soon after followed their example. The glory of concluding this second league belongs to C. Plautius, the plebeian consul of the year 358 B.C. The Gauls now quitted Latium; and Privernum and Tibur, the only Latin cities which rejected the alliance, were both compelled to yield (357, 354 B.C.).

While these dangers were successfully averted on the northeastern frontier, war had been declared against Rome by the powerful Etruscan city of Tarquinii, which lies beyond the Ciminian hills. This was in the very year in which the new league was formed with the Latins and Hernicans. But for this, it is hard to imagine that Rome, exhausted as she was, could have resisted the united assaults of Gauls, Volscians, Latins, Hernicans, and Etruscans. As it was, she found it hard to repel the Tarquinians. This people made a sudden descent from the hills, defeated the consul C. Fabius, and sacrificed 307 Roman prisoners to their gods (358 B.C.). Two years later they were joined by the Faliscans. Bearing torches in their hands, and having their hair wreathed into snake-like tresses, they attacked the Romans with savage cries, and drove them before them. They overran the four new tribes, and threatened Rome itself. Then M. Popilius Lænas, the plebeian consul, being ordered by the senate to name a dictator, named another plebeian, C. Marcius Rutilus, the first of his order who was advanced to this high office; and his conduct justified the appointment. The enemy was defeated. The senate refused a triumph to the plebeian, but the people in their tribes voted that he should enjoy the well-earned honour.

[356-351 B.C.]

For a moment the people of Cære, the old allies of the Roman people, who had given shelter to their sacred things, their women, and children, in the panic of the Gallic invasion, joined the war; but almost immediately after sued for peace. The Romans, however, remembered this defection. The Tarquinians were again defeated in a great battle. Three hundred and fifty-eight prisoners were scourged and beheaded in the Forum to retaliate for former barbarity. In the year 351 B.C. a peace of forty years was concluded, after a struggle of eight years' duration.

It was in the very next year after the conclusion of this war that the third inroad of the Gauls took place, of which we have above spoken, when M. Valerius gained his name of Corvus. Thus remarkably was Rome carried through the dangers of intestine strife and surrounding wars. When she was at strife within, her enemies were quiet. Before each new assault commenced, a former foe had retired from the field, and Rome rose stronger from every fall. She had now recovered all the Latin coast land from the Tibur to Circeii; and her increasing importance is shown by a renewed treaty with the great commercial city of Carthage. But a more

formidable enemy was now to be encountered than had as yet challenged Rome to conflict, and a larger area opened to her ambition. In the course of a very few years after the last event of which we have spoken the First Samnite War began.^b

The destruction of Rome by the Gauls is the dividing point between historical and ante-historical Rome, as Ihne^g justly notes; for the conflagration wiped out not only the records but most of the monuments as well. He complains, however, that it is long after the conflagration before the chronicles become really trustworthy. He doubts equally the story of how Valerius won the name of Corvus and the achievements of L. Furius Camillus. He says in conclusion:

“The result of our investigations is that the whole of the six wars with the Gauls, as Livy^c relates them, are not much more than stop-gaps, marking points of time at which the annals of the old time have been filled up with edifying and patriotic matter. We can, therefore, infer that a considerable part of the other wars is equally apocryphal, and we may perhaps have the satisfaction of thinking that there were no wars to relate and that the Romans had now and then a little breathing-place.” So extreme an erasure of tradition with all its details will not, however, win the approval of many students of these times.^a

FOOTNOTES

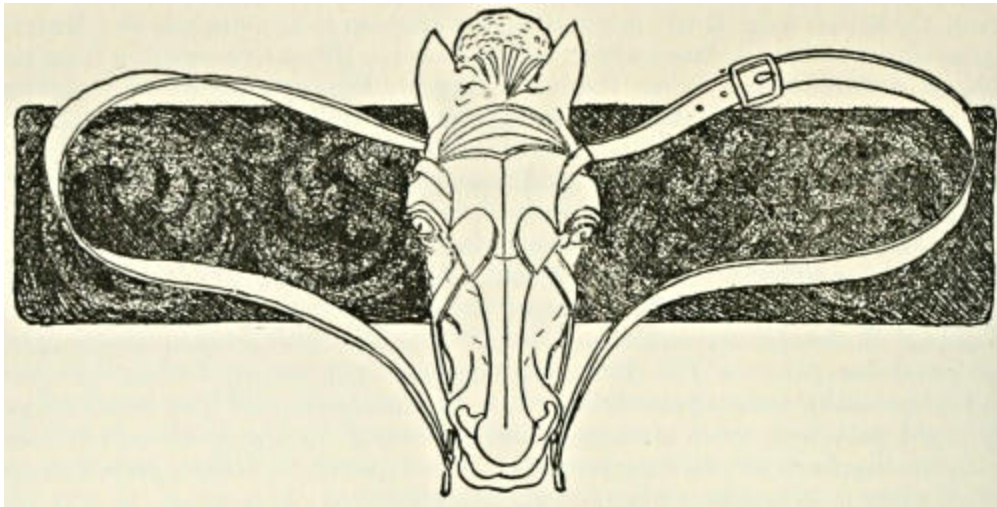
[33] The aged were doomed to perish under any circumstances (*utique*), from scarcity of provisions, whether they retired into the Capitol with the military youth, or were left behind in the city.

[34] [As a forewarning here of the comparatively recent Gallic re-invasions of Italy, one may quote what J. J. Ampère^d says in his *L’histoire romaine à Rome*: “To terminate cheerfully the story of the geese of Manlius, I will recall a caricature representing a French soldier plucking a goose on the Capitoline Hill; beneath were the words, ‘Vengeance of a Gaul.’”]

[35] It may be observed that each *gens et familia* clung to the same forenames. Thus Publius, Lucius, Cneius, were favourite forenames of the Cornelii; Caius of the Julii; Appius of the Claudii; and so on.

[36] [And yet, though constitutionally eligible, Licinius could hardly have won the consular tribuneship, for the patricians had practically monopolised the office, as the *fasti* prove.]

[37] [The annalists were probably wrong in supposing that Rome was without magistrates for this period. Doubtless their error is due to chronological confusion.]



CHAPTER VIII. THE CONQUEST OF CENTRAL ITALY

THE SAMNITES

The fifth century is the most beautiful century of Rome. The plebeians had conquered the consulship and are succeeding in conquering their admission to other magistracies which the patricians wished to reserve; they free themselves from the servitude which, under the name of Nexus, weighed on the debtors. They arrive at political equality and individual independence; at the same time the old aristocracy still dominates in the senate and maintains there the inflexibility of its resolves and the persistence of its designs. It was thanks to this interior condition that the Roman people was able to survive the strongest tests from without over

which it had triumphed, and to make that progress which cost it most dear. We see the peoples fight, one by one, and often all together; the Latin people, the Etruscans, the Goths, the Samnites, the other Sabellian peoples of the Apennines; and the end is always victory. The beginnings of this history were sombre. Rome was afflicted by one of those pestilences which one finds in all the epochs of the history of this unsanitary city. Thence was the origin of those scenic pieces imported by the Etruscans and giving origin to comedy—a means devised to appease the gods; so that Roman comedy had an origin religious and dismal. The fifth century is for Rome the age of great devotions and of grand sacrifices.^d

We must now carry our eyes beyond the plain of Latium, and penetrate into Campania and the valleys of the Apennines.

The Sabines are a people connected with the earliest legends of Rome. But the Sabines of Cures and the country between the Anio and the Tiber are those who have hitherto engaged our attention. It is in the highlands of Reate and Amiternum that we must search for the cradle of the race. The valleys of this high district afford but scanty subsistence; and the hardy mountaineers ever and anon cast off swarms of emigrants, who sought other homes, and made good their claim by arms. It was a custom of the Sabellian tribes, when famine threatened and population became dense, to devote the whole produce of one spring-time to the gods. Among other produce, the youth born in that year were dedicated to the god Mamers (Mars), and went forth to seek their fortunes abroad. On one such occasion the emigrants, pressing southward from the Sabine highlands, occupied the broad mountainous district which lies northward of Campania, and took the name of Samnites. The Picenians and Frentanians, on the north coast, with the four allied cantons of the Vestinians, Marrucians, Pelignians, and Marsians, who were interposed between the Samnites and their ancestral Sabines, claimed kin with both nations. The Samnites themselves also formed four cantons—the Caraceni, Pentri, Caudini, and Hirpini. Of these the Pentri were far the most considerable; they occupied the rugged mountain district between the upper valleys of the Volturnus and the Calore. Here a great mass of mountains, now known by the name of Mount Matese, rises boldly from the central chain to the height of more than six thousand feet; and its steep defiles offer defences of great natural strength. But the remains of massive polygonal masonry, which are

still seen on the rocky heights occupied by their towns of Æsernia and Bovianum (Isernia and Bojano), showed that the Samnites used art to strengthen their natural defences. Below Mount Matese, in the valley of the Calor, lay the canton of the Caudinians, whose town of Beneventum (anciently called Maleventum or Maliessa) was also made strong by art. It is within these limits, from Æsernia to Beneventum, that the scenes of the chief campaigns of the Samnite wars were laid.

[423-354 B.C.]

From the nature of their country the Samnites were a pastoral people. Their mountains break into numberless valleys, sloping both north and south, well watered, and fresh even in the summer heats. Into these valleys, as is still the practice of the country, the flocks were driven from the lower lands, ascending higher as the heats increased, and descending towards the plain as autumn inclined towards winter.

But the Samnites were not contented with these mountain homes. As they had themselves been sent forth from a central hive, so in time they cast forth new swarms of emigrants. In early times a Samnite tribe, under the name of Frentanians, had taken possession of the coast lands north of Apulia. Other bands of adventurous settlers pushed down the Volturnus and Calor into the rich plain that lay beneath their mountains, to which they gave the name of Campania, or the champagne land. In earlier times this fair plain had attracted Etruscan conquerors; and its chief city, anciently called Vulturnum, is said from them to have received the lasting name of Capua. But about the year 423 B.C., nearly a century before the time of which we are presently to speak, a band of Samnites seized the famous city, and reduced the ancient Oscan inhabitants to the condition of clients. Soon after, the great Greek city of Cumæ, which then gave name to the Bay of Naples, was conquered by the new lords of Capua, who from this time forth, under the name of Campanians, became the dominant power of the country. In course of time, however, the Samnites of Capua, or the Campanians, adopted the language and customs of their Oscan subjects. Hence the Campanian Samnites broke off their connection with the old Samnites of the mountains, just as the Roman Sabines lost all sympathy with the old Sabines of Cures, and as in England the Anglo-Normans became the national enemies of the French.

It may be added that the Lucanians and Apulians, who stretched across the breadth of Italy below Campania, were formed by a mixture of Samnite invaders with the ancient population, themselves a compound of Oscan and Pelasgian races; while the Bruttians, who occupied the mountainous district south of the Gulf of Tarentum, were a similar offcast from the Lucanians. But these half-Sabellian tribes, like the old races from whom the Samnites came, lent uncertain aid to their kinsmen in the struggle with Rome.

[354-343 B.C.]

These remarks will prepare us for the great conflict which in fact determined the sovereignty of Italy to be the right of the Roman, and not of the Samnite people.^[38] The first war arose out of a quarrel such as we have just alluded to between the Campanians and the old Samnites of the Matese. In the year 354 B.C. a league had been concluded with the Romans and the Samnites. Since that time, Samnite adventurers had been pressing down the valley of the Liris, and had taken the Volscian cities of Sora and Fregellæ, while the Romans, combined with the Latins again since the year 358 B.C., were forcing back the Volscians from the west. In 343 B.C., the Samnites pursued their encroachments so far as to assail Teanum, the chief city of the Sidicines, an Oscan tribe, who occupied the lower hills in the north of Campania. The Sidicines demanded the aid of Capua against their assailants; and the Campanians, venturing to give this aid, drew upon their own heads the wrath of the mountaineers. The Samnites took possession of Mount Tifata, a bare hill which overhangs Capua on the north, and plundered at will the rich plain below. Unable to meet the enemy in the field, the degenerate Campanians entreated the assistance of the Roman and Latin league. There was some difficulty in listening to this application; for a treaty of peace had been concluded eleven years before, and no aggression against Rome was chargeable upon the Samnites. But it is probable that their progress in the valleys of the Liris and Volturnus had alarmed the senate; and all scruples were removed when the Campanians offered to surrender their city absolutely, so that in defending them Rome would be defending her own subjects. This quibbling bargain was struck, and war was declared against the Samnites.^b

THE FIRST SAMNITE WAR

[343-342 B.C.]

The consuls were ordered to take the field. The consul M. Valerius Corvus led his legions into Campania, where, probably in consequence of some reverses of which we are not informed, he encamped on the side of Mount Gaurus over Cumæ. The Samnite army came full of confidence; the consul led out his troops, and a battle commenced, highly important in the history of the world, as the prelude of those which were to decide whether the empire of Italy and of the world was reserved for Rome or for Samnium.

The two armies were equal in courage, and similarly armed and arrayed; that of the Samnites consisted entirely of infantry, and the cavalry, which the consul sent first into action, could make no impression on its firm ranks. He then ordered the cavalry to fall aside to the wings, and led on the legions in person. The fight was most obstinate: each seemed resolved to die rather than yield: at length, a desperate effort of despair on the part of the Romans drove the Samnites back; they wavered, broke, and fled to their entrenched camp, which they abandoned in the night, and fell back to Suessula. They declared to those who asked why they had fled, that the eyes of the Romans seemed to be on fire and their gestures those of madmen, so that they could not stand before them.

The other consul, A. Cornelius Cossus, having been directed to invade Samnium, led his army to Saticula, the nearest Samnite town to Capua. The Apennines in this part run from north to south, in parallel ranges, enclosing fertile valleys, and the road to Beneventum passes over them. The consul, advancing carelessly, had crossed the first range, and his line of march had reached the valley, when on looking back the Romans saw the wooded heights behind them occupied by a Samnite army. To advance was dangerous, retreat seemed impossible. In this perplexity a tribune named P. Decius proposed to occupy with the hastats and principes of one legion (that is, sixteen hundred men,) an eminence over the way along which the Samnites were coming. The consul gave permission; Decius seized the height, which he maintained against all the efforts of the enemy till the favourable moment was lost, and the consul had led back his army and gained the ridge. When night came, the Samnites remained about the hill and went to sleep; in the second watch Decius led down his men in silence, and they took their way through the midst of the slumbering foes. They had got halfway through, when one of the Romans in stepping over the

Samnites struck against a shield; the noise awoke those at hand; the alarm spread; the Romans then raised a shout, fell on all they met, and got off without loss. They reached their own camp while it was yet night, but they halted outside of it till the day was come. At dawn, when their presence was announced, all poured forth to greet them, and Decius was led in triumph through the camp to the consul, who began to extol his deeds; but Decius interrupted him, saying that now was the time to take the enemy by surprise. The army was then led out, and the scattered Samnites were fallen on and routed with great slaughter. After the victory the consul gave Decius a golden crown and a hundred oxen, one of which was white with gilded horns; this Decius offered in sacrifice to Father Mars, the rest he gave to his comrades in peril, and each soldier presented them with a pound of corn and a pint (*sextarius*) of wine, while the consul, giving them each an ox and two garments, assured them of a double allowance of corn in future. The army further wove the obsidional crown of grass and placed it on the brows of Decius, and a similar crown was bestowed on him by his own men. Such were the generous arts by which Rome fostered the heroic spirit in her sons!

Meantime the Samnites at Suessula had been largely reinforced, and they spread their ravages over Campania. The two consular armies being united under Valerius, came and encamped hard by them, and as Valerius had left all the baggage and camp-followers behind, the Roman army occupied a much smaller camp than was usual to their numbers. Deceived by the size of their camp the Samnites clamoured to storm it, but the caution of their leaders withheld them. Necessity soon compelled them to scour the country in quest of provisions, and emboldened by the consul's inactivity they went to greater and greater distances. This was what Valerius waited for; he suddenly assailed and took their camp, which was but slightly guarded; then leaving two legions to keep it, he divided the rest of the army, and falling on the scattered Samnites cut them everywhere to pieces. The shields of the slain and fugitives amounted, we are told, to forty thousand, the captured standards to one hundred and seventy. Both consuls triumphed.

While the Roman arms were thus engaged in Campania, the Latins invaded the territory of the Pelignians, the kinsmen and allies of the Samnites.

No military events are recorded of the year 342, but a strange tale of an insurrection of the Roman army has been handed down. The tale runs thus:

The Roman soldiers, who at the end of the last campaign, had been left to winter in Capua, corrupted by the luxury which they there witnessed and enjoyed, formed the nefarious plan of massacring the inhabitants and seizing the town. Their projects had not ripened, when C. Marcius Rutilus, the consul for 342, came to take the command. He first, to keep them quiet, gave out that the troops were to be quartered in Capua the following winter also; then noting the ringleaders, he sent them home under various pretexts and gave furloughs to any that asked for them; his colleague, Q. Servilius Ahala, meantime taking care to detain all who came to Rome. The stratagem succeeded for some time; but at length the soldiers perceived that none of their comrades came back; and a cohort that was going home on furlough halted at Lautulæ, a narrow pass between the sea and the mountains east of Tarracina; it was there joined by all who were going home singly on leave, and the whole number soon equalled that of an army. They soon after broke up, and marching for Rome encamped under Alba Longa. Feeling their want of a leader, and learning that T. Quinctius, a distinguished patrician, who being lame of one leg from a wound had retired from the city, was living on his farm in the Tusculan district, they sent a party by night, who seized him in his bed, and gave him the option of death or becoming their commander. He therefore came to the camp, where he was saluted as general, and desired to lead them to Rome. Eight miles from the city they were met by an army led by the dictator M. Valerius Corvus. Each side shuddered at the thought of civil war, and readily agreed to a conference. The mutineers consented to entrust their cause to the dictator, whose name was a sufficient security. He rode back to the city, and at his desire the senate and curies decreed that none should be punished for, or even reproached with, their share in the mutiny, that no soldier's name should be struck out of the roll without his own consent, that no one who had been a tribune should be made a centurion, and that the pay of the knights (as they had refused to join in the mutiny) should be reduced. And thus this formidable mutiny commenced in crime and ended in—nothing!

Another and a far more probable account says that the insurrection broke out in the city, where the plebeians took arms, and having seized C. Manlius in the night, and forced him to be their leader, went out and encamped four miles from the city, where, as it would seem, they were joined by the army from Campania. The consuls raised an army and advanced against them; but when the two armies met, that of the consuls saluted the insurgents, and the

soldiers embraced one another. The consuls then advised the senate to comply with the desires of the people, and peace was effected.

The still existing weight of debt seems to have been the cause of this secession also, and a cancel of debts to have been a condition of the peace. Lending on interest at all is said to have been prohibited at this time by a *plebiscitum*, or decree of the tribes; and others were passed forbidding any one to hold the same office till after an interval of ten years, or to hold two offices at the same time. It was also decreed that both the consuls might be plebeians. The name of the tribune L. Genucius being mentioned, it is probable that he was the author of the new laws.

[341-340 B.C.]

The following year (341) peace was made with the Samnites on the light condition of their giving a year's pay and three months' provisions to the Roman army; and they were allowed to make war on the Sidicinians. This moderation on the side of the Romans might cause surprise, were it not that we know they now apprehended a conflict with their ancient allies the Latins; for the original terms of their federation could not remain in force, and one or other must become the dominant state.

The Sidicinians and Campanians, on being thus abandoned, put themselves under the protection of the Latins, with whom the Volscians also formed an alliance. The Hernicans adhered to the Romans, and the Samnites also became their allies. As war between Rome and Latium seemed inevitable, T. Manlius Torquatus, and P. Decius Mus were made consuls for the ensuing year with a view to it. But the Latins would first try the path of peace and accommodation; and at the call, it is said, of the Roman senate, their two prætors and ten principal senators repaired to Rome. Audience was given to them on the Capitol, and nothing could be more reasonable than their demands. Though the Latins were now the more numerous people of the two, they only required a union of perfect equality,—one of the consuls and one-half of the senate to be Latins, while Rome should be the seat of government, and Romans the name of the united nation.^[39] But the senate exclaimed against the unheard-of extravagance of these demands, the gods were invoked as witnesses of this scandalous breach of faith, and the consul Manlius vowed that if they consented to be thus dictated to, he would come girt with his sword into the senate-house and slay the first Latin he saw there. Tradition said, that when the gods were

appealed to, and the Latin prætor L. Annius spoke with contempt of the Roman Jupiter, loud claps of thunder and a sudden storm of wind and rain told the anger of the deity, and that as Annius went off full of rage, he tumbled down the flight of steps and lay lifeless at the bottom. It was with difficulty that the magistrates saved the other envoys from the fury of the people. War was forthwith declared, and the consular armies were levied.

THE LATIN WAR

[340 B.C.]

As the Latin legions were now in Campania (340), the Romans, instead of taking the direct route through Latium, made a circuit through the country of the Sabines, Marsians, and Pelignians, and being joined by the Samnites, and probably the Hernicans, came and encamped before the Latins near Capua. Here a dream presented itself to the consuls: the form of a man, of size more than human, appeared to each, and announced that the general on one side, the army on the other, was due to the Manes and Mother Earth; of whichever people the general should devote himself and the adverse legions, theirs would be the victory. The victims when slain portending the same, the consuls announced, in presence of their officers, that he of them whose forces first began to yield would devote himself for Rome.

To restore strict discipline and to prevent any treachery, the consuls forbade, under pain of death, any single combats with the enemy. One day the son of the consul Manlius chanced with his troop of horse to come near to where the Tusculan horse was stationed, whose commander, Geminus Metius, knowing young Manlius, challenged him to a single combat. Shame and indignation overpowered the sense of duty in the mind of the Roman; they ran against each other, and the Tusculan fell; the victor, bearing the bloody spoils, returned to the camp and came with them to his father. The consul said nothing, but forthwith called an assembly of the army; then reproaching his son with his breach of discipline, he ordered the lictor to lay hold of him and bind him to the stake. The assembly stood mute with horror; but when the axe fell, and the blood of the gallant youth gushed forth, bitter lamentation, mingled with curses on the ruthless sire, arose. They took up the body of the slain, and buried it without the camp, covered with the spoils he had won; and when after the war Manlius entered Rome

in triumph, the young men would not go forth to receive him, and throughout life he was to them an object of hatred and aversion.



MANLIUS CONDEMNING HIS SON TO DEATH

The war between Rome and Latium was little less than civil; the soldiers and officers had for years served together in the same companies and they were all acquainted. They now stood in battle-array opposite each other at the foot of Mount Vesuvius, the Samnites and Hernicans being opposed to the Oscan allies of the Latins. Both the consuls sacrificed before the battle; the entrails of the victim offered by Decius portended misfortune, but hearing that the signs boded well to Manlius, "'Tis well," said he, "if my colleague has good signs." In the battle, the left wing, led by Decius, was giving way; the consul saw that his hour was come; he called aloud for M. Valerius, the pontifex maximus, and standing on a naked weapon, clad in his consular robe, his head veiled, and his hand on his chin, he repeated after the pontiff the form of devotion. He then sent the lictors to announce to Manlius what he had done, and girding his robe tightly round him, and mounting his horse, he rushed into the midst of the enemies. He seemed a destructive spirit sent from heaven; wherever he came he carried dismay and death; at length he fell covered with wounds. The ardour of the Roman soldiers revived, and the skill of Manlius secured the victory. When the front ranks (*antesignani*) of both armies were wearied, he ordered the *accensi* to advance; the Latins then sent forward their triarians; and when

these were wearied, the consul ordered the Roman triarians to rise and advance. The Latins having no fresh troops to oppose to them were speedily defeated, and so great was the slaughter that but one-fourth of their army escaped. Next day the body of the consul Decius was found amidst heaps of slain, and magnificently interred.

[340-338 B.C.]

The Latins fled to the town of Vescia, and by the advice of their prætor Numisius a general levy was made in Latium, with which, in reliance on the reduced state of the Roman army, he ventured to give the consul battle at a place named Trifanum, between Sinuessa and Minturnæ, on the other side of the Liris. The rout of the Latins, however, was so complete, that few of the towns even thought of resistance when the consul entered Latium. The Latin public land, two-thirds of that of Privernum, and the Falernian district of Campania, were seized for the Roman people, and assignments of $2\frac{3}{4}$ jugera on this side, $3\frac{1}{4}$ on the other side of the Liris, were made to the poor plebeians, who murmured greatly at the large quantity that was reserved as domain. As the Campanian knights (sixteen hundred in number) had remained faithful to Rome, they were given the Roman *municipium*, and each assigned a rent charge of 350 denarii a year on the state of Capua.

The Latin and Volscian towns continued singly to resist, and the conquest was not completed till the year 338. Prudence and some moderation were requisite on the part of Rome, in order not to have rebellious subjects in the Latins. Citizenship therefore, in different degrees, was conferred on them; but they were forbidden to hold national diets, and commerce and intermarriage between the people of their different towns were prohibited. The principal families of Velitræ were forced to go and live beyond the Tiber, and their lands were given to Roman colonists. Their ships of war were taken from the Antiates, who were forbidden to possess any in future. Some of them were brought to Rome; the beaks (*rostra*) of others were cut off, and the pulpit (*suggestum*) in the Forum was adorned with them, whence it was named the “rostra.” The *municipium*, such as the Latins had formerly had, was given to the people of Capua, Cumæ, Suessula, Fundi, and Formiæ. The Latin contingents in war were henceforth to serve under their own officers apart from the legions.

While the Roman dominion was thus extended without, wise and patriotic men of both orders saw the necessity of internal concord, and of

abolishing antiquated and now mischievous claims and pretensions. In 339, therefore, the patrician consul Tib. Æmilius named his plebeian colleague Q. Publilius Philo dictator, who then brought forward the following laws to complete the constitution. (1) The patricians should give a previous consent to any law that was to be brought before the centuries; for as such a law must previously have passed the senate, and the centuries could make no alteration in it, their opposition, it would seem, could hardly have any ground but prejudice and spite. (2) The *Plebiscita* should be binding on all Quirites. (3) One of the censors should of necessity be a plebeian. The curies were induced, we know not how, to give their assent to these laws.^[40] Internal discord was now at an end, and the golden age of Roman heroism and virtue began.

THE SECOND SAMNITE WAR

[338-325 B.C.]

The affairs for the ten succeeding years are of comparative unimportance. The Romans and Samnites both knew that another war was inevitable, and they made the necessary preparations for it. In the year 327 the people of the Greek town of Palæopolis (*Old Town*) being in alliance with the Samnites, began to exercise hostilities against the Roman colonists in Campania. As they refused to give satisfaction, the consul Q. Publilius Philo was sent against them, while his colleague, L. Cornelius Lentulus, watched the motions of the Samnites. Publilius encamped between Palæopolis and its kindred town of Neapolis (*New Town*), and on his sending word home that there was a large body of Samnite and Nolan troops in them, envoys were sent to Samnium to complain of this breach of treaty. The Samnites replied that those were volunteers, over whom the state had no control; that moreover they had not, as the Romans had alleged, excited the people of Fundi and Formiæ to revolt, while the Romans had sent a colony to Fregellæ, in a district which of right was theirs; that, in fine, there was no use in arguing or complaining when the plain between Capua and Suessula offered a space on which they might decide whose should be the empire of Italy. The Roman fetial then veiled his head, and with hands raised to heaven prayed the gods to prosper the arms and counsels of Rome if right was on her side; if not, to blast and confound

them. Right certainly was not on the side of Rome, for she had first violated the treaty; but war was not to be averted, and it was now to begin.

A Roman army entered Samnium on the Volscian side, ravaged the country, and took some towns. Publilius' year having expired, his command was continued to him (326) under the new title of proconsul; and soon a party in Neapolis, weary of the insolence of the foreign soldiers, began to plot a surrender. While Nymphius, one of the leading men, induced the Samnites to go out of the town, to embark in the ships in the port, and make a descent on the coast of Latium, Charilaus, another of the party, closed the gate after them, and admitted the Romans at another. The Samnites instantly dispersed and fled home; the Nolans retired from the town unmolested.

A chief ally of the Samnites were the people of the Greek city of Tarentum; on the other hand, their kinsmen, the Apulians and Lucanians, were in alliance with Rome. But in this year, a revolution took place in Lucania, in consequence of which the country became subject to Samnium. A similar fate menaced the Apulians, if not aided; but to reach Apulia it was necessary to pass through the Vestinian country, the people of which (one of the Marsian confederacy) refused a passage. It was apprehended at Rome, that if the Vestinians were attacked, the other three states, who were now neutral, would take arms, and throw their weight into the Samnite scale, and their valour was well known; but, on the other hand, the importance of Apulia, in a military point of view, was too great to allow it to be lost. The consul D. Junius Brutus accordingly led his army (325) into the Vestinian country: a hard-fought victory, and the capture of two of their towns, reduced the Vestinians to submission, and the other members of the league remained at peace.

The other consul, L. Camillus, fell sick as he was about to invade Samnium and L. Papirius Cursor was made dictator;^[41] but as there was said to have been some error in the auspices, he was obliged to return to Rome to renew them. As he was departing, he strictly charged Q. Fabius Rullianus, the master of the horse, whom he left in command, not to risk an action on any account during his absence. But, heedless of his orders, Fabius seized the first occasion of engaging the enemy, over whom he gained a complete victory. As soon as the dictator learned what had occurred, he hastened to the camp, breathing fury. Fabius, warned of his approach, besought the soldiers to protect him. Papirius came, ascended his

tribunal, summoned the master of the horse before him, and demanded why he had disobeyed orders, and thus weakened the military discipline. His defence but irritated his judge the more; the lictors approached and began to strip him for death; he broke from them, and sought refuge among the triarians: confusion arose; those nearest the tribunal prayed, the more remote menaced, the dictator: the legates came round him, entreating him to defer his judgment till the next day; but he would not hear them. Night at length ended the contest.

[325-322 B.C.]

During the night Fabius fled to Rome, and by his father's advice made his complaint of the dictator to the assembled senate; but while he was speaking, Papirius, who had followed him from the camp with the utmost rapidity, entered, and ordered his lictors to seize him. The senate implored; but he was inexorable: the elder Fabius then appealed to the people, before whom he enlarged on the cruelty of the dictator. Every heart beat in unison with that of the time-honoured father; but when Papirius showed the rigorous necessity of upholding military discipline, by which the state was maintained, all were silent, from conviction. At length the people and their tribunes united with Fabius and the senate in supplication, and the dictator, deeming his authority sufficiently vindicated, granted life to his master of the horse.

Papirius, when he returned to his army, gave the Samnites a decisive defeat; and having divided the spoil among his soldiers to regain their favour, and granted a truce for a year to the enemy, on condition of their giving each soldier a garment and a year's pay, he returned to Rome and triumphed.

The events of the next year (323) are dubious; but in 322 the camp of the dictator, A. Cornelius Arvina, who had entered Samnium without sufficient caution, was surprised by a superior force of the enemy. The day closed before an attack could be made, and in the night the dictator, leaving a number of fires burning in the camp, led away his legions in silence. But the enemy were on the alert, and their cavalry hung on the retiring army, to slacken its pace. With daybreak the Samnite infantry came up, and the dictator, finding further retreat impossible, drew his forces up in order of battle. A desperate conflict commenced; during five hours neither side gave way an inch; the Samnite horse, seeing the baggage of the Romans but

slightly guarded, made for it, and began to plunder: while thus engaged, they were fallen on and cut to pieces by the Roman horse, who then turned and assailed the now unprotected rear of the Samnite infantry. The dictator urged his legions to new exertions; the Samnites wavered, broke, and fled; their general and thousands fell, and thousands were made captives.

[322-321 B.C.]

Meantime, on the side of Apulia an equally glorious victory was gained by the consul Q. Fabius; and the spirit of the Samnites being now quite broken, they were anxious for peace on almost any terms. As it is usual with a people, when measures to which they have given their full and eager consent have failed, to throw the entire blame on their leaders, so now the Samnites cast all their misfortunes on Papius Brutulus, one of their principal men, and resolved to deliver him up to the Romans as the cause of the war. The noble Samnite saved himself from disgrace by a voluntary death; his lifeless corpse was carried to Rome; the Roman prisoners, of whom there was a large number, were released, and gold was sent to ransom the Samnites. The utmost readiness to yield to all reasonable terms was evinced; but nothing would content the haughty senate but the supremacy, and sooner than thus resign their national independence the Samnites resolved to dare and endure the uttermost.

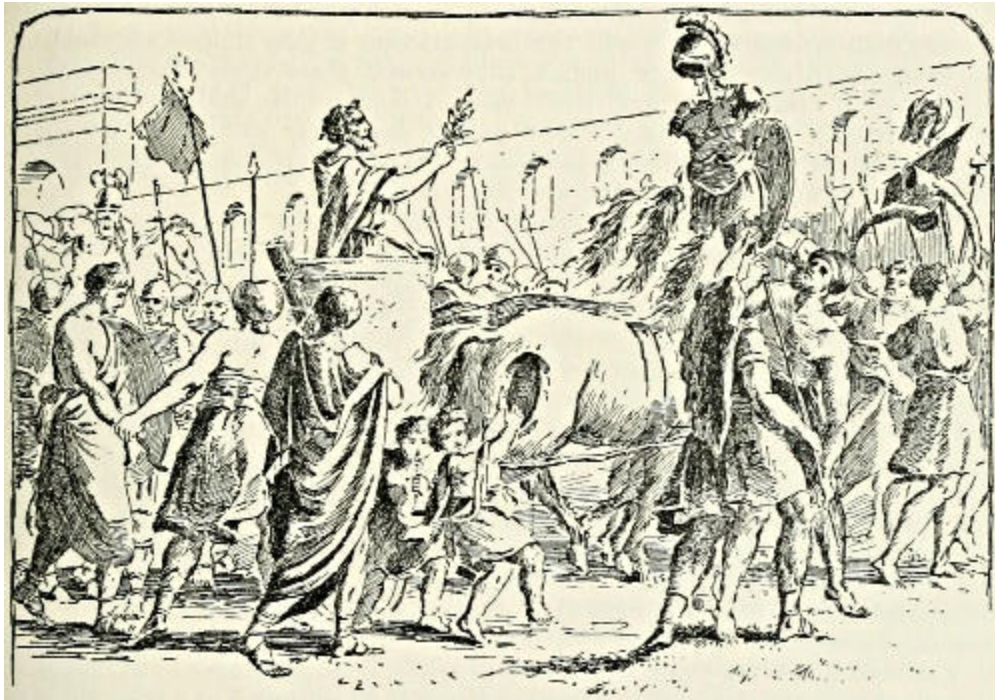
In the spring (321) the Roman legions, led by the consuls T. Veturius and Sp. Postumius, encamped at Calatia in Campania, with the intention of directing their entire force against central Samnium. But the Samnite general, C. Pontius, having spread a false report that Luceria, in Apulia, was hard pressed by a Samnite army, and on the point of surrender, the consuls resolved to attempt its relief without delay. They entered the Samnite country, and advanced heedlessly and incautiously. In the vicinity of the town of Caudium they reached the Caudine Forks, as a pass was named consisting of a deep valley between two wooded mountains; a hollow way led into it at one end, and a narrow path over a mountain, which closed it up, led out of it at the other end. Into these toils the consuls conducted their army; they saw nothing to alarm them till the head of the column came to the further end, and found the passage stopped with rocks and trunks of trees, and on looking round they beheld the hills occupied by soldiery. To advance or to retreat was now equally impossible; they therefore threw up entrenchments in the valley, and remained there, the Samnites not attacking

them, in reliance on the aid of famine. At length, when their food was spent and hunger began to be felt, they sent deputies to learn the will of the Samnite leaders. It is said that Pontius, on this occasion, sent for his father to advise him: this venerable old man, who, in high repute for wisdom, dwelt at Caudium, was conveyed to the camp in a wain, and his advice was either to let the Romans go free and uninjured, or totally to destroy the army. Pontius preferred a middle course, and the old man retired, shedding tears at the misery he saw thence to come on his country. The terms accorded by Pontius were the restoration of the ancient alliance between Rome and Samnium, the withdrawal of Roman colonies from places belonging to the Samnites, and the giving back of all places to which they had a right. The arms and baggage of the vanquished army, were, as a matter of course, to be given up to the conquerors. How rarely has Rome ever granted a vanquished enemy terms so mild as these! Yet the Roman historians had the audacity to talk of the insolence of the victorious Samnites, and the Roman senate and people the baseness and barbarity to put to an ignominious death the noble Pontius twenty-seven years after!

These terms were sworn to by the consuls and their principal officers, and six hundred knights were given as hostages till they should have been ratified by the senate and people. A passage wide enough for one person to pass was made in the paling with which the Samnites had enclosed them, and one of the pales laid across it, and through this door the consuls, followed by their officers and men, each in a single garment, came forth. Pontius gave beasts of burden to convey the sick and wounded, and provisions enough to take the army to Rome. They then departed and reached Capua before nightfall; but shame, or doubt of the reception they might meet with, kept them from entering. Next morning, however, all the people came out to meet and console them. Refreshments and aid of every kind were given them, and they thence pursued their way to Rome.

When the news of their calamity had first reached Rome, a total cessation of business (*justitium*) had taken place, and a general levy, either to attempt their relief or to defend the city, had been made, and all orders of people went into mourning. In this state of things the disgraced army reached the gates. It there dispersed; those who lived in the country went away; those who dwelt in the city slunk with night to their houses. The consuls, having named a dictator for the consular elections, laid down their office; and Q.

Publilius Philo and L. Papirius Cursor were appointed to be their successors.^c



TRIUMPH OF PAPIRIUS

“If other nations delight in remembering the days of national triumphs,” says Wilhelm Ihne, “and in celebrating the memory of victories by which they feel their strength was increased and their pride gratified, the greatness of the Roman people is shown much more by their keeping continually before their eyes the evil days when the god of battles was unfavourable to them, and by celebrating the anniversaries of their defeats, in a certain degree, as days of national humiliation. The day of the Allia and the day of Cannæ stood before the eye of the Roman in more burning colours than the day of the victory of Zama. But by the side of those names there was yet a third in the list of evil days—a name which was more painful than any other to the proud Roman, because the feeling of national disgrace and humiliation could not be separated from it; it was the name of the Caudine Pass. At the Allia and at Cannæ thousands fell in open battle; at Caudium four legions agreed to purchase life and freedom by the sacrifice of military honour, and the Roman people, when they refused to ratify the agreement, covered themselves with a load of infamy, from which no sophistry could free them, even in their own conscience.”^f

[321-315 B.C.]

The senate having met to consider of the peace, the consul Publilius called on Sp. Postumius to give his opinion. He rose with downcast looks, and advised that himself and all who had sworn to the treaty should be delivered up to the Samnites, as having deceived them, by making a treaty without the consent of the Roman people, and a fresh army be levied, and the war renewed; and though there was hardly a senator who had not a son or some other relative among the hostages, it was resolved to do as he advised. Postumius and his companions were taken bound to Caudium; the fetial led them before the tribunal of Pontius, and made the surrender of them in the solemn form. Postumius, as he concluded, struck his knee against the fetial's thigh, and drove him off, crying, "I am now a Samnite, thou an ambassador: I thus violate the law of nations; ye may justly now resume the war."

Pontius replied with dignity: he treated this act of religious hypocrisy as a childish manœuvre; he told the Romans that if they wished to renounce the treaty with any show of justice, they should place their legions as they were when it was made; but their present conduct he said was base and unworthy, and he would not accept such a surrender as this, or let them thus hope to avert the anger of the gods. He then ordered Postumius and the other Romans to be unbound and dismissed.

The war therefore was renewed, and the Romans returning to their original plan of carrying it on simultaneously in Apulia and on the western frontier of Samnium, sent (319) the consul Papirius to lay siege to Luceria, which was now in the hands of the Samnites, while his colleague Publilius led his army into Samnium. Papirius sat down before Luceria; but a Samnite army came and encamped at hand, and rendered his communication with Arpi, whence he drew his supplies, so difficult, that it was only by the knights' going and fetching corn in little bags on their horses that any food could be had in the camp. They were at length relieved by the arrival of Publilius, who having defeated a Samnite army marched to their aid; and after a fruitless attempt of the Tarentines to mediate a peace, the Romans attacked and stormed the Samnite camp with great slaughter, which, though they were unable to retain it, had the effect of making the Samnite army retire, and leave Luceria to its fate. Its garrison of seven

thousand men then capitulated, on condition of a free passage, without arms or baggage.

The two following years were years of truce, in consequence of exhaustion on both sides; and during the truce the Romans so extended and consolidated their dominion in Apulia that no attempt was ever after made to shake it off. The war was resumed in 316, and the Romans laid siege to Saticula, an Oscan town not far from Capua and in alliance with the Samnites. Meantime the Samnites reduced the colonial town of Plistia; and the Volscians of Sora, having slain their Roman garrison, revolted to them. They then made an attack on the Roman army before Saticula, but were defeated with great loss, and the town immediately surrendered. The Roman armies forthwith entered and ravaged Samnium, and the seat of war was transferred to Apulia. While the consular armies were thus distant, the Samnites made a general levy, and came and took a position at Lautulæ, in order to cut off the communication between Rome and Campania. The dictator, Q. Fabius, instantly levied an army, and hastened to give them battle. The Romans were utterly defeated, and fled from the field; the master of the horse, Q. Aulius, unable to outlive the disgrace of flight, maintained his ground, and fell fighting bravely. Revolt spread far and wide among the Roman subjects in the vicinity; the danger was great and imminent, but the fortune of Rome prevailed, and the menacing storm dispersed.

[314-311 B.C.]

In 314 the Samnites sustained a great defeat near a town named Cinna, whose site is unknown. The Campanians, who were in the act of revolting at this time, submitted on the appearance of the dictator, C. Mænius, and the most guilty withdrew themselves from punishment by a voluntary death. The Ausonian towns, Ausona, Minturnæ, and Vescia, were taken by treachery and stratagem, and their population massacred or enslaved, as a fearful lesson to the subjects of Rome against wavering in their allegiance.

The united armies of the consuls, M. Pœtelius and C. Sulpicius, entered Samnium on the side of Caudium; but while they were advancing timidly and cautiously through that formidable region, they learned that the Samnite army was wasting the plain of Campania. They immediately led back their forces, and ere long the two armies encountered. The tactics of the Romans were new on this occasion; the left wing, under Pœtelius, was made dense

and deep, while the right was expanded more than usual. Pœtelius, adding the reserve to his wing, made a steady charge with the whole mass: the Samnites gave way; their horse hastened to their aid, but Sulpicius coming up with his body of horse, and charging them with the whole Roman cavalry, put them to the rout. He then hastened to his own wing, which now was yielding; the timely reinforcement turned the scale, and the Samnites were routed on all sides with great slaughter.

The following year (313) was marked by the capture of Nola and some other towns, and by the founding of colonies, to secure the dominion which had been acquired. In 312 Sora was taken in the following manner: A deserter came to the consuls, and offered to lead some Roman soldiers by a secret path up to the Arx, or citadel, which was a precipitous eminence over the town. His offer was accepted; the legions were withdrawn to a distance of six miles from the town; some cohorts were concealed in a wood at hand, and ten men accompanied the Soran traitor. They clambered in the night up through the stones and bushes, and at length reached the area of the citadel. Their guide, showing them the narrow, steep path that led thence to the town, desired them to guard it while he went down and gave the alarm. He then ran through the town crying that the enemy was on the citadel; and when the truth of his report was ascertained, the people prepared to fly from the town; but in the confusion, the Roman cohorts broke in and commenced a massacre. At daybreak the consuls came; they granted their lives to the surviving inhabitants, with the exception of 225, who, as the authors of the revolt, were brought bound to Rome, and scourged and beheaded in the Forum.

[311-310 B.C.]

The tide of war had turned so decidedly against the Samnites, that one or two campaigns more of the whole force of Rome would have sufficed for their subjugation. But just now a new enemy was about to appear, who was likely to give ample employment to the Roman arms for some time. The Etruscans, who, probably owing to their contests with and fears of the Gauls, had for many years abstained from war with the Romans, either moved by the instances of the Samnites or aware of the danger of suffering Rome to grow too powerful, began to make such hostile manifestations that great alarm prevailed at Rome. Various circumstances, however, kept off the war for nearly two years longer; at length in 311 all the peoples of

Etruria, except the Arretines, having sent their troops, a Tuscan army prepared to lay siege to the frontier town of Sutrium. The consul Q. Æmilius came to cover it, and the two armies met before it. At daybreak of the second day, the Tuscans drew out in order of battle; the consul, having made his men take their breakfast, led them out also. The armies stood opposite each other, each hesitating to begin, till after noon; the Tuscans then fell on: night terminated a bloody and indecisive action, each retired to their camp, and neither felt themselves strong enough to renew the conflict next day.

The next year (310) a Tuscan army having laid siege to Sutrium, the consul Q. Fabius hastened from Rome to its relief. As his troops were far inferior to the Etruscans in number, he led them cautiously along the hills. The enemy drew out his forces in the plain to give him battle; but the consul, fearing to descend, formed his array on the hillside in a part covered with loose stones. Relying on their numbers the Tuscans charged up hill; the Romans hurled stones and missile weapons on them, and then charging, with the advantage of the ground, drove them back, and the horse getting between them and their camp forced them to take refuge in the adjacent Ciminian wood. Their camp became the prize of the victors.

Like so many others in the early Roman history, this battle has probably been given a magnitude and an importance which does not belong to it, and the truth would seem to be, that the consul only repulsed the advanced guard of the enemy, and not feeling himself strong enough to engage their main army, resolved to create a diversion by invading their country.

To the north of Sutrium, between it and the modern city of Viterbo, extends a range of high ground, which at that time formed the boundary between Roman and independent Etruria. It was covered with natural wood, and was thence named the Ciminian wood. Over this barrier Fabius resolved to lead his troops. He sent to inform the senate of his plan, in order that measures might be taken for the defence of the country during his absence. Meantime he directed one of his brothers, who spoke the Tuscan language, to penetrate in disguise to the Umbrians, and to form alliances with any of them that were hostile to the Etruscans. The only people however whom the envoy found so disposed were the Camertes, who agreed to join the Romans if they penetrated to their country.

The senate, daunted at the boldness of Fabius' plan, sent five deputies accompanied by two tribunes of the people to forbid him to enter the wood, perhaps to arrest him if he should hesitate to obey. But they came too late: in the first watch of the night Fabius sent forward his baggage, the infantry followed; he himself a little before sunrise led the horse up to the enemy's camp, as it were to reconnoitre. In the evening he returned to his own camp, and then set out and came up with his infantry before night. At daybreak they reached the summit of the mountain, and beheld the cultured vales and plains of Etruria stretched out before them. They hastened to seize the offered prey: the Etruscan nobles assembled their vassals to oppose them, but they could offer no effectual resistance to the disciplined troops of Rome. The Roman army spread their ravages as far as Perugia, where they encountered and totally defeated a combined army of Etruscans and Umbrians; and Perugia, Cortona, and Arretium, three of the leading cities of Etruria, sent forthwith to sue for peace, which was granted for a term of thirty years. As the Romans were returning to the relief of Sutrium they encountered at the lake of Vadimo another Etruscan army, of select troops bound by a solemn oath (*lege sacrata*) to fight to their uttermost. The two armies engaged hand to hand at once; the first ranks fought till they were exhausted; the reserve then advanced, and the victory was only decided by the Roman knights dismounting and taking their place in the front of the line.

While Fabius was conducting the war in Etruria, his colleague C. Marcius had entered Samnium and taken Allifæ and some other strongholds. The Samnites collected their forces and gave him battle, and the Romans were defeated; several of their officers slain, the consul himself wounded, and their communication with Rome cut off. When the news reached Rome, the senate at once resolved to create a dictator, and to send him off to the relief of Marcius with the reserve which had been levied on account of the Etruscan War. Their hopes lay in L. Papirius Cursor; but the dictator could only be named by the consul; there was no way of reaching Marcius, and Fabius had not yet forgiven the man who had thirsted after his blood. The resolve of the senate was borne to Fabius by consulars; they urged him to sacrifice his private feelings to the good of his country: he heard them in silence, his eyes fixed on the ground, and they retired in uncertainty. In the stillness of the night he arose, and, as was the usage, named L. Papirius dictator, and in the morning he again listened in silence

to the thanks and praises of the deputies. The dictator immediately set forth and relieved the army of Marcius, but, impetuous as he was, he contented himself for some time with merely observing the enemy.

[310-304 B.C.]

At length the time arrived for a decisive action. The Samnite army was divided into two corps, the one clad in purple, the other in white linen tunics, the former having their brazen shields adorned with gold, the latter with silver: the shields were broad above, narrow below. Each soldier wore a crested helmet, a large sponge to protect his breast, and a greave on his left leg. In the battle the Roman dictator led the right wing against the gold-shielded, the master of the horse, C. Junius, the left against the silver-shielded Samnites. Junius made the first impression on the enemy; the dictator urged his men to emulation, and the Roman horse by a charge on both flanks completed the victory. The Samnites fled to their camp, but were unable to retain it, and ere night it was sacked and burned. The golden shields adorned the dictator's triumph, and they were then given to the money dealers to ornament their shops in the Forum.

Q. Fabius was continued in the consulate for 309 and P. Decius given to him as his colleague; the former had the Samnite, the latter the Etruscan War. Fabius routed the Marsians and Pelignians, who had now joined against Rome, and he then led his legions into Umbria, whose people had taken arms, and with little difficulty reduced them to submission. Decius meantime had forced the Etruscans to sue for peace, and a year's truce was granted them on their giving each soldier two tunics, and a year's pay for the army.

In the remaining years of the war, the exhausted powers of the Samnites could offer but a feeble resistance to the legions of Rome. On the occasion of a defeat which they sustained in 308, the proconsul, Q. Fabius, adopted the novel course of dismissing the Samnite prisoners, and selling for slaves those of their allies. Among these there were several Hernicans, whom he sent to Rome; the senate having instituted an inquiry into the conduct of the Hernican people in this affair, those who had urged them to give aid to the Samnites now engaged them to take arms openly. All the Hernican peoples but three shared in the war; but they made a stand little worthy of their old renown; one short campaign sufficed for their reduction, and they were

placed (307) on nearly the same footing as the Latins had been thirty years before.

The Samnites at length (304) sued for peace, and obtained it on the condition they had so often spurned, that of acknowledging Rome's supremacy, in other words, of yielding up their independence; but peace on any terms was now necessary, that they might recruit their strength for future efforts. The Romans then turned their arms against the Æquians who had joined the Hernicans in aiding the Samnites, and in fifty days the consuls reduced and destroyed forty-one of their Cyclopean-walled towns. The Marsian league sought and obtained peace from Rome.

THE THIRD SAMNITE AND ETRUSCAN WARS

[304-297 B.C.]

A few years passed away in tolerable tranquillity; in 298 Lucanian envoys appeared at Rome, praying for aid against the Samnites who had entered their country in arms, given them various defeats, and taken several of their towns. The Romans, in right of their supremacy, sent orders to the Samnites to withdraw their troops from Lucania: the pride of the Samnites was roused at being thus reminded of their subjection; they ordered the fetials off their territory, and war was once more declared against them by the Romans. As the Etruscans were now also in arms, the consul L. Cornelius Scipio went against them, while his colleague Cn. Fulvius invaded Samnium.

Scipio engaged a numerous Etruscan army near Volaterræ. Night ended a hard-fought battle, leaving it undecided. The morn however revealed that the advantage was on the side of the Romans, as the enemy had abandoned their camp during the night. Having placed his baggage and stores at Falerii, Scipio spread his ravages over the country, burning the villages and hamlets; and no army appeared to oppose him. Fulvius meantime carried on the war with credit in Samnium. Near Bovianum he defeated a Samnite army, and took that town and another named Aufidena.

The rumour of the great preparations which the Samnites and the Etruscans were said to be making caused the people to elect Q. Fabius to the consulate, against his will; and at his own request they joined with him



ETRUSCAN WARRIOR

(From a statuette)

P. Decius. As the Etruscans remained quiet, both the consuls invaded Samnium (297), Fabius entering from Sora, Decius from Sidicinium. The Samnites gave Fabius battle near Tifernum, their infantry stood firm against that of the Romans, and the charge of the Roman cavalry had as little effect. At length, when the reserve had come to the front, and the contest was most obstinate, the legate Scipio, whom the consul had sent away during the action with the hastats of the first legion, appeared on the neighbouring hills. Both armies took them for the legions of Decius; the Samnites' courage fell, that of the Romans rose, and evening closed on their victory. Decius had meantime defeated the Apulians at Maleventum. During five months both armies ravaged Samnium with impunity; the traces of five-and-forty camps of Decius, of eighty-six of Fabius, bore witness to the sufferings of the ill-fated country.

The next year (296) the Samnites put into execution a daring plan which they

[297-295 B.C.]

had formed in the preceding war, namely, sending an army, to be paid and supported out of their own funds, into Etruria, leaving Samnium meantime at the mercy of the enemy. The Samnite army, under Gellius Egnatius, on arriving there, was joined by the troops of most of the Tuscan states; the Umbrians also shared in the war, and it was proposed to take Gallic mercenaries into pay. The consul App. Claudius entered Etruria with his two legions and twelve thousand of the allies, but he did not feel himself strong enough to give the confederates battle. His colleague L. Volumnius, probably by command of the senate, led his army to join him; but Appius gave him so ungracious a reception that he was preparing to retire, when the officers of the other army implored him not to abandon them for their general's fault. Volumnius then agreed to

remain and fight: a victory was speedily gained over the Etruscans and Samnites, whose general Egnatius was unfortunately absent; 7300 were slain, 2120 taken, and their camp was stormed and plundered.

As Volumnius was returning by rapid marches to Samnium, he learned that the Samnites had taken advantage of his absence to make a descent on Campania, where they had collected an immense booty. He forthwith directed his course thither: at Cales he heard that they were encamped on the Vulturnus, with the intention of carrying their prey into Samnium to secure it. He came and encamped near them, but out of view; and when the Samnites had before day sent forward their captives and booty under an escort, and were getting out of their camp to follow them, they were suddenly fallen on by the Romans: the camp was stormed with great slaughter; the captives, hearing the tumult, unbound themselves, and fell on their escort; the Samnites were routed on all sides—six thousand were slain, twenty-five hundred were taken, seventy-four hundred captives, with all their property, were recovered.

The union of the Samnites, Etruscans, Umbrians, and Gauls, which had now been formed, caused the greatest apprehension at Rome, and the people insisted on again electing Q. Fabius consul, to which he would only consent on condition of his approved mate in arms P. Decius being given him for colleague. His wish was complied with. The four legions of the former year were kept on foot and completed, two new ones were raised, and two armies of reserve formed. The number of troops furnished by the allies was considerable: among them were one thousand Campanian horse; for as the Gauls were strong in this arm, it was necessary to augment its force.

[295-293 B.C.]

During the winter, Fabius set out, with four thousand foot and six hundred horse, to take the command in Etruria. As he drew nigh to the camp of App. Claudius he met a party sent out for firewood; he ordered them to go back and use the palisades of their camp for the purpose. This gave confidence to the soldiers; and to keep up their spirits, he never let them remain stationary, but moved about from place to place. In the spring (295) he returned to Rome to arrange the campaign, leaving the command in Etruria with L. Scipio.

The consuls led their main force to join the troops left with Scipio; one army of reserve, under the proprætor Cn. Fulvius, was stationed in the Faliscan; another, under the proprætor L. Postumius, in the Vatican district. But the Gauls, pouring in by the pass of Camerinum, had annihilated a Roman legion left to defend it; their numerous cavalry spread over Umbria and got between Scipio and Rome; and as they rode up to the consular army, the heads of the slain Romans which they carried on spears and hung at their horses' breasts, made the Romans believe that Scipio's whole army had been destroyed. A junction however was formed with him, and the proconsul L. Volumnius, who commanded in Samnium, was directed to lead his legions to reinforce those of the consuls. The three united armies then crossed the Apennines, and took a position in theentine country to menace the possessions of the Senonian Gauls; and the two armies of reserve advanced in proportion, the one to Clusium, the other to the Faliscan country. The confederates came and encamped before the Romans; but they avoided an action, probably waiting for reinforcements. The consuls, learning by deserters that the plan of the enemy was for the Gauls and Samnites to give them battle, and the Etruscans and Umbrians to fall on their camp during the action, sent orders to Fulvius to ravage Etruria: this called a large part of the Etruscans home, and the consuls endeavoured to bring on an engagement during their absence. For two entire days they sought in vain to draw the confederates to the field; on the third their challenge was accepted.

Fabius commanded on the right, opposed to the Samnites and the remaining Etruscans and Umbrians; Decius led the left wing against the Gauls. Ere the fight began, a wolf chased a hind from the mountains down between the two armies; the hind sought refuge among the Gauls, by whom she was killed; the wolf ran among the Romans, who made way for him to pass; and this appearance of the favourite of Mars was regarded as an omen of victory.

In the hope of tiring the Samnites, Fabius made his men act rather on the defensive, and he refrained from bringing his reserve into action. Decius, on the other hand, knowing how impetuous the first attack of the Gauls always was, resolved not to await it; he therefore charged with both foot and horse, and twice drove back the numerous Gallic cavalry; but when his horse charged a third time, the Gauls sent forward their war-chariots, which

spread confusion and dismay among them; they fled back among their infantry; the victorious Gauls followed hard upon them. The battle, and with it possibly the hopes of Rome, was on the point of being lost, when Decius, who had resolved, if defeat impended, to devote himself like his father at Vesuvius, desired the pontiff M. Livius, whom he had kept near him for the purpose, to repeat the form of devotion; then adding to it these words, "I drive before me dismay and flight, slaughter and blood, the anger of the powers above and below; with funereal terrors I touch the arms, weapons, and ensigns of the foe; the same place shall be that of my end and of the Gauls and Samnites," he spurred his horse, rushed into the thick of the enemies, and fell covered with wounds.

The pontiff to whom Decius had given his lictors, encouraged the Romans; a part of Fabius' reserve came to their support: the Gauls stood in a dense mass covered with their shields; the Romans, collecting the *pila* that lay on the ground, hurled them on them; but the Gauls stood unmoved, till Fabius, who by bringing forward his reserve, and causing his cavalry to fall on their flank, had driven the Samnites to their camp, sent five hundred of the Campanian horse, followed by the principes of the third legion, to attack them in the rear; they then at length broke and fled. Fabius again assailed the Samnites under their rampart; their general, Gellius Egnatius, fell, and the camp was taken. The confederates lost twenty-five thousand men slain and eight thousand taken; seven thousand was the loss in the wing led by Decius, twelve hundred in that of Fabius. Such was the victory at Sentinum, one of the most important ever achieved by the arms of Rome.

The following year (294) the war was continued in Etruria and Samnium, and a bloody but indecisive battle was fought at Nuceria. The next year (293) the consuls, L. Papirius Cursor and Sp. Carvilius, took the field against a Samnite army, which all the aids of superstition had been employed to render formidable.

All the fighting men of Samnium were ordered to appear at the town of Aquilonia. A tabernacle, two hundred feet square, and covered with linen, was erected in the midst of the camp. Within it a venerable man named Ovius Pacctius offered sacrifice after an ancient ritual contained in an old linen book. The emperor or general then ordered the nobles to be called in separately: each as he entered beheld through the gloom of the tabernacle the altar in the centre, about which lay the bodies of the victims, and around

which stood centurions with drawn swords. He was required to swear, imprecating curses on himself, his family, and his race, if he did not in the battle go whithersoever the imperator ordered him; if he fled himself, or did not slay any one whom he saw flying. Some of the first summoned, refusing to swear, were slain, and their bodies lying among those of the victims served as a warning to others. The general selected ten of those who had thus sworn, each of whom was directed to choose a man till the number of sixteen thousand was completed, which was named from the tabernacle the Linen legion. Crested helmets and superior arms were given them for distinction. The rest of the army, upwards of twenty thousand men, was little inferior in any respect to the Linen legion.

The Roman armies entered Samnium; and while Papirius advanced to Aquilonia, Carvilius sat down before a fortress named Cominium, about twenty miles from that place. The ardour for battle is said to have been shared to such an extent by all the Roman army, that the pullarius, or keeper of the sacred fowl, made a false report of favourable signs. The truth was told to the consul as he was going into battle; but he said the signs reported to him were good, and only ordered the pullarii to be placed in the front rank; and when the guilty one fell by the chance blow of a *pilum*, he cried that the gods were present, the guilty was punished. A crow was heard to give a loud cry as he spoke; the gods, he then declared, had never shown themselves more propitious, and he ordered the trumpets to sound and the war-cry to be raised.

The Samnites had sent off twenty cohorts to the relief of Cominium; their spirits were depressed, but they kept their ground, till a great cloud of dust, as if raised by an army, was seen on one side. For the consul had sent off before the action Sp. Nautius, with the mules and their drivers, and some cohorts of the allies, with directions to advance during the engagement, raising all the dust they could. Nautius now came in view, the horseboys having boughs in their hands, which they dragged along the ground; and the arms and banners appearing through the dust, made both Romans and Samnites think that an army was approaching. The consul then gave the sign for the horse to charge; the Samnites broke and fled, some to Aquilonia, some to Bovianum. The number of their slain is said to have been 30,340, and 3870 men and 97 banners were captured. Aquilonia and Cominium were both taken on the same day. Carvilius then led his army

into Etruria; his colleague remained in Samnium, ravaging the country, till the falling of the snow obliged him to leave it for the winter.

[293-290 B.C.]

In the next campaign (292), the Samnite general C. Pontius gave the Roman consul Q. Fabius Gurges, son of the great Fabius, a complete defeat. A strong party in the senate, the enemies of the Fabian house, were for depriving the consul of his command; but the people yielded to the prayers of his father, who implored them to spare him this disgrace in his old age; and he himself went into Samnium as legate to his son. At a place whose name is unknown the battle was fought, which decided the fate of Samnium. Fabius gained the victory by his usual tactics, of keeping his reserve for the proper time. The Samnites had twenty thousand slain and four thousand taken, among whom was their great general C. Pontius. In the triumph of Fabius Gurges, his renowned father humbly followed his car on horseback; and C. Pontius was led in bonds, and then, to Rome's disgrace, beheaded. Q. Fabius Maximus, one of the greatest men that Rome ever produced, died, it is probable, shortly afterwards.

The Samnite War, which had lasted with little intermission for nine-and-forty years, was now terminated by a peace, of the exact terms of which we are not informed (290). The Sabines, who, after a cessation of 150 years, foolishly took up arms against Rome, were easily reduced by the consul M. Curius Dentatus, and a large quantity of their land was taken from them. Much larger assignments than the usual seven jugera might now be made, but Curius deemed it unwise to pass that limit; and when the people murmured, he replied that he was a pernicious citizen whom the land which sufficed to support him did not satisfy. He refused for himself five hundred jugera and a house at Tifata which the senate offered him, and contented himself with a farm of seven jugera in the Sabine country.

The Samnite War caused considerable distress at Rome, and it even came to a secession. The people posted themselves on the Janiculum; but the dictator, Q. Hortensius, induced them to submit, either by an abolition or a considerable reduction of the amount of their debts. This is the last secession we read of in Roman history.

On this occasion the Hortensian law, which made the plebiscits binding on the whole nation, was passed;^[42] a measure probably caused by the

obstinacy and caprice of the patricians, but pregnant with evil, from which however the good fortune of Rome long preserved her. It was as if in England a measure which had passed the Commons were to become at once the law of the land.

Among the events of this period, the introduction of the worship of the Grecian god Æsculapius deserves to be noticed. In the year 293 an epidemic prevailed at Rome, and the Sibylline books being consulted, it was directed to fetch Æsculapius to Rome. A trireme with ten deputies was sent to Epidaurus for that purpose. The legend relates, that the senate of that place agreed that the Romans should take whatever the god should give them; and that as they were praying at the temple, a huge snake came out of the sanctuary, went on to the town five miles off, through the streets, to the harbour, thence on board the Roman trireme, and into the cabin of Q. Ogulnius. The envoys having been instructed in the worship of the god, departed, and a prosperous wind brought them to Antium. Here they took shelter from a storm; the snake swam ashore, and remained twined round a palm-tree at the temple of Apollo while they stayed. When they reached Rome he left the ship again, and swimming to the island, disappeared in the spot where the temple of the god was afterwards built.

LUCANIAN, GALLIC, AND ETRUSCAN WARS

[290-282 B.C.]

Rome now rested from war for some years. At length (284) the Tarentines, who had been the chief agents in exciting the last Samnite War, succeeded in inducing the Etruscans, Umbrians, and Gauls in the north, and the Lucanians, Bruttians, and Samnites in the south, to take arms simultaneously against her. The commencement was the hostility exercised by the Lucanians against the people of the Greek town of Thurii, who, despairing of aid from any other quarter, applied to the Romans.

[282-280 B.C.]

In 282, a Roman army under C. Fabricius Luscinus came to the relief of Thurii. The spirits of the Romans sank as they viewed their own inferiority of force; when, lo! a youth of gigantic stature, wearing a double-crested helm, like those on the statues of Mars, was seen to seize a scaling-ladder, and mount the rampart of the enemies' camp. The courage of the Romans

rose, that of the foes declined, and a signal victory crowned the arms of Rome. When next day the consul sought that valiant youth, to bestow on him the suitable meed, he was nowhere to be found. Fabricius then directed a thanksgiving to Father Mars (as it must have been he) to be held throughout the army. Many other victories succeeded; and no Roman general had as yet acquired so much booty as Fabricius did in this campaign.

When the Roman army retired, a garrison was left for the defence of Thurii. As it was only by sea that a communication could be conveniently kept up with it, a squadron of ten triremes, under the duumvir L. Valerius, was now in these waters. Some years before, it had been an article in a treaty with the Tarentines, that no Roman ship of war should sail to the north of the Lacinian Cape; but as they had taken no notice of it now, and there was as yet no open hostility between them and the Romans, Valerius appeared off the port of Tarentum. The people unluckily happened at that moment to be assembled in the theatre, which commanded a view of the sea; a demagogue named Philocharis, a man of the vilest character,^[43] pointing to the Roman ships, reminded them of the treaty; the infuriated populace rushed on shipboard, attacked and sank four, and took one of the Roman vessels. The Tarentines then sent a force against Thurii, where they plundered the town and banished the principal citizens: the Roman garrison was dismissed unmolested.

The Romans, as they had an Etruscan war on their hands, were anxious to accommodate matters amicably in the south. Their demands were therefore very moderate: they only required the release of those taken in the trireme; the restoration of the Thurians, and restitution of their property; and the surrender of the authors of the outrage. Audience was given to the envoys in the theatre. When they entered, the people laughed at the sight of their purple-bordered *prætextæ*, and the faults of language committed by L. Postumius, the chief of the embassy, redoubled their merriment. As the envoys were leaving the theatre, a drunken buffoon came and befouled the robe of Postumius in the most abominable manner: the peals of laughter were redoubled; but Postumius, holding up his robe, cried out, “Ay, laugh, laugh while ye may; ye will weep long enough when ye have to wash this out in blood.” He displayed at Rome his unwashed garment; and the senate, after anxious deliberation, declared war against Tarentum (281). The consul

L. Æmilius Barbula was ordered to lead his army thither, to offer anew the former terms, and if they were refused, to carry on the war with vigour. The Tarentines, however, would listen to no terms; they resorted to their usual system of seeking aid from the mother country, and sent an embassy to invite over Pyrrhus, the renowned king of Epirus. Meantime Æmilius laid waste their country, took several strong places, and defeated them in the field.

We will now turn our view northwards. In 283 a combined army of Etruscans and Senonian Gauls having laid siege to Arretium, the prætor L. Metellus hastened to its relief; but his army was totally defeated, thirteen thousand men being slain, and nearly all the remainder made prisoners. When an embassy was sent to the Gauls to complain of breach of treaty, and to redeem the prisoners, the Gallic prince Britomaris, to avenge his father, who had fallen at Arretium, caused the fetiales to be murdered. The consul P. Cornelius Dolabella instantly marched through the Sabine and Picentian country into that of the Senonians, whom he defeated when they met him in the field: he then wasted the lands, burned the open villages, put all the men to death, and reduced the women and children to slavery. Britomaris, who was taken alive, was reserved to grace the consul's triumph.

The Boians, who dwelt between the Senonians and the Po, were filled with rage and apprehension at the fate of their brethren, and assembling all their forces they entered Etruria, where being joined by the Etruscans and the remnant of the Senonians, they pressed on for Rome; but at the Lake Vadimo the consular armies met and nearly annihilated their whole army; the Senonians, it is said, in frenzy of despair put an end to themselves when they saw the battle lost. The Gauls appeared again the next year (284) in Etruria; but a signal defeat near Populonia (282) forced them to sue for peace, which on account of the war in the south, the Romans readily granted.

The war with the Etruscans continued till the year 280, when, in consequence of that with Pyrrhus, the Romans concluded a peace with them on most favourable terms. This peace terminated the conflict, which had now lasted for thirty years, and converted Etruria into Rome's steadiest and most faithful ally.^c

FOOTNOTES

[38] [Edward A. Freeman^e calls the Samnites “the worthiest foes whom Rome ever met within her own peninsula.” He adds, “There can be little doubt that they possessed a Federal Constitution. Their resistance ended only with the extermination of their race.”]

[39] [Freeman^e notes that Rome had never appeared to be “the mere capital of the Latin League. As far as the faintest glimmerings of history go back, Rome holds a position towards Latium far more lordly than that of Thebes towards Bœotia. It is no wonder that a League of small towns could not permanently bear up against a single great city of their own race whose strength equalled their united strength, and which was more liberal of its franchise than any other city-commonwealth ever was.”]

[40] [In the interpretations of clauses 1 and 2 of the Publilian Law scholars are divided. The comitia curiata had now lost all real power, and in fact had never enjoyed the right to pass upon resolutions adopted by other assemblies. It was probably either the senate or the patrician part of the senate which was required to give its previous consent to bills brought before the centuries. Clause 2 probably gave validity to resolutions of the tribal assembly, even when no patricians were present; cf. Botsford.^h]

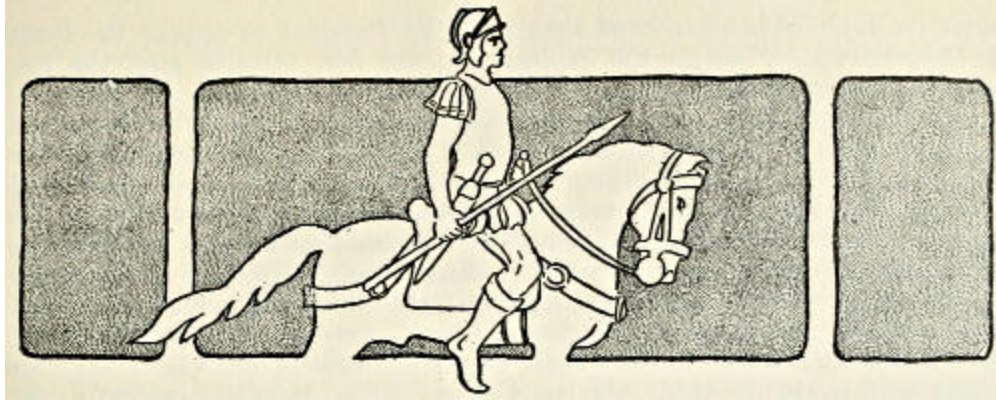
[41] [This is the Papirius Cursor of whom Livy^g writes the glowing eulogy we have quoted in the preceding Volume, Chapter LVII, where Livy claims that Papirius Cursor—as the contemporary of Alexander and the general whom he would have met had he attacked Rome instead of Persia—would have equalled the Macedonian and driven him out of Italy.]

[42] [This law probably made unnecessary the consent of the senate to resolutions passed by the tribal assembly under the presidency of the plebeian tribunes.]

[43] [The Tarentines were not of course so bad as the Roman historians represent. Though imprudent, they had good ground for indignation.]



ROMAN TROPHIES



CHAPTER IX. THE COMPLETION OF THE ITALIAN CONQUEST

Through a long series of struggles, Rome had now become mistress of central Italy, with growing power in the north, and almost complete subjugation of the Greek cities of the south. There were a few of the latter, however, that still held out against the Roman influence. Pre-eminent among these was Tarentum, and it was through a conflict with this city that the Romans were threatened by the first important invasion of an armed force from the east. This force came under the guidance of Pyrrhus, king of Epirus, a relative of Alexander the Great, who sought to emulate the deeds of that great hero.

Pyrrhus was not precisely another Alexander, but he was quite the foremost warrior of his time. Doubtless he had the aspiration to make Epirus the centre, and himself the master, of the world. His ambition was not to be realised; but he was able, for a time, to challenge the power of Rome, and more cogently to threaten its overthrow than any one before him had done, since the invasion of the Gauls, or than any one after him was able to do, with the single exception of Hannibal, until a late period of imperial history. The invasion of Pyrrhus, quite aside from the personal ambitions of the invader, had the widest and most world-historic importance, for it was a struggle of the old East against the new West—a repetition in some sense of that earlier struggle in which the Persians had sought to overthrow the growing power of Greece. Pyrrhus brought with him the famed Macedonian phalanx. He was met by the Roman legion, which, in its time, was to become even more famous, and with even better

reason. Whether for the moment phalanx or legion would have proved the more formidable it is difficult to say, but in addition Pyrrhus brought with him a troop of war elephants, and it was this factor, largely, which turned the scale at first in his favour. Up to this time no elephant, probably, had ever been landed on the peninsula of Italy, and the sight of these beasts advancing in line of battle was enough to bring terror to the heart of the most hardened veterans.

It is true that fifty years earlier the Macedonians had met an oriental enemy aided by this, to them, new arm of warfare, and had easily found a means of overcoming their adversary, and nullifying the advantage which these great beasts were supposed to give them. Whether it was the lack of an Alexander, or that the Romans were of less staunch fibre than the Macedonians, or that the soldiers of Pyrrhus were more competent to meet the Romans hand to hand than were the Persians to oppose the hosts of Alexander—whatever the explanation, the fact remains that the elephants of Pyrrhus turned the scale clearly in his favour in the first two great battles in which he met the Romans on their soil. But the Romans, if defeated, were by no means dishonoured. The classical saying of Pyrrhus that another such victory would mean his ruin, shows that the battles of Heraclea and Asculum were very different affairs from most of the battles of an earlier day, in which Greek had met Persian, or even those in which Greek met Greek. In those Grecian battles, as we have seen, the courageous front of the one side, and the timidity of the other, often decided the day with scarcely more than the clashing of arms, or the chance wounding of here and there a fugitive. But here, the arbitrament of arms in its sternest phase was necessary to decide the victory. The Macedonians, with the fame of Alexander fresh in their minds, might scorn at first, but soon learned to respect these new foemen of the West, finding them, indeed, foemen worthy of their steel, and the conqueror who remained on the field after the battle had almost as much cause for regret over his losses as for rejoicing over his victory.

But the strangest thing of all was the way in which the vanquished Romans met their fate and rallied from defeat, refusing to recognise their disasters as more than momentary checks. Herein it was that the Roman proved himself a very different person from the typical Greek, of, for example, the best day of Athens. Instead of acknowledging defeat and

accepting or offering terms of surrender, the Romans indignantly rejected all overtures from Pyrrhus, and set desperately to work to rehabilitate an army and win back their laurels, declaring that they would never rest content while the enemy remained on Italian soil; and in due time they made their word good. Pyrrhus, indeed, for a period of two years left Italian soil, not to return to Greece, but to go to Sicily, there to aid the Syracusans who were beset by the Carthaginians. Recognising in Pyrrhus a common enemy, the Carthaginians and the Romans for the first and last time in their history formed an alliance, and the Carthaginians did good service for the cause in defeating the fleet of Pyrrhus when on its way back from Sicily. Beyond this, however, the land-forces of Rome—and up to this time it was solely as a land power that Rome could lay claim to great importance—were left to their own resources in dealing with the Epirot enemy. This resource, however, proved in the end quite sufficient, for in the great battle of Beneventum, in the year 275 B.C., the tables were turned on Pyrrhus and his forces were unequivocally routed. Nothing remained for him but to return to Epirus, where local wars also claimed his attention.

It is more than likely that in thus retreating from Italy, Pyrrhus intended some day to return and revenge himself for his losses, but if so the intention never became a reality, for three years later the greatest warrior of his time was killed at Argos after a victorious siege of that city. Meantime Rome had proved herself able to cope with the Epirot invasion, and she was never again to be seriously threatened from that direction.

It would probably be difficult to overestimate the value to the Roman commonwealth of this test of skill with Pyrrhus and his famed Macedonian phalanx in giving them confidence in themselves and in their own prowess which should stand them in good stead in meeting those other enemies who must needs be put down before Rome could become what she was now aspiring to be, Mistress of the World.^a

PYRRHUS IN ITALY

Pyrrhus was now in his thirty-eighth year. His whole life had been a course of adventure and peril. His father, Æacides, had been king of Epirus; and the young prince, being left an orphan at the age of five amid the troubles which followed the death of Alexander the Great, led a wandering

and uncertain life, till, at about seventeen years of age, he sought refuge at the court of Antigonos, the Macedonian king of Syria. Here he formed a friendship with the king's son, the celebrated Demetrius Poliorcetes, and was present on the bloody field of Ipsus (301 B.C.), which deprived Antigonos of his life, and Demetrius of his succession. After this defeat, he was received at the magnificent court of Ptolemy Soter, the first Macedonian king of Egypt, as a hostage for his friend Demetrius. Here Pyrrhus found favour with Queen Berenice, who gave him in marriage Antigone, her daughter by a former marriage, and persuaded Ptolemy to assist him in recovering his Epirot sovereignty, where he established himself so firmly that on the death of Cassander, he disputed with his former friend Demetrius the succession to the throne of Macedon. For a time he was master of the eastern provinces; but, after a seven months' reign, Pyrrhus was again driven across the mountains into Epirus (287 B.C.). For the next few years he lived at peace; built Ambracia as a new capital of his dominions, and reigned there in security and magnificence. He was in the prime of life, handsome in person, happy in temper, popular from his frankness and generosity, and reputed to be a skilful soldier. But neither his nature nor his restless youth had fitted him for the enjoyment of happy tranquillity. He had married as his second wife the daughter of Agathocles of Syracuse; the exploits of that remarkable man fired his soul; he remembered that Alcibiades, that Alexander, that every Greek conqueror had looked to the West as a new scene for enterprise and triumph; and he lent a ready ear to the solicitations of the Italian envoys. After defeating the Romans and Carthaginians, he might return as king of southern Italy and Sicily, and dictate terms to the exhausted monarchs of Macedon and Asia. These had been the dreams of less romantic persons than himself. ^[44]

[281-280 B.C.]

It was at the end of the year 281 B.C. that he left Epirus with a force of about twenty thousand foot, and four thousand or five thousand horse, together with a squadron of twenty elephants, held by the Greeks at that time to be a necessary part of a complete armament. On the passage his ships were scattered by a storm, but eventually they all reached Tarentum in safety. His infantry was in part supplied by Ptolemy Ceraunus, now king of Macedon. His cavalry were Thessalian, the best in Greece. It was a small army for the execution of designs so vast. But he trusted to the promises of the Lucanians and Samnites; and he also intended to make the Tarentines into

soldiers. No sooner had he landed, than this people found how true were the words of their fellow-citizen. They had meant Pyrrhus to fight their battles, like his kinsman, Alexander of Molossus; but he resolved that they also should fight his battles. He shut up the theatres and other places of public amusement; closed the democratic clubs; put some demagogues to death, and banished others; and ordered all citizens of military age to be drilled for the phalanx. The indolent populace murmured, but in vain. The horse had taken a rider on his back to avenge him on the stag, and it was no longer possible to shake him off.

With the early spring the Romans took the field. Ti. Coruncanius, plebeian consul for the year 280, commanded against the Etrurians, with orders to make a peace if possible. P. Valerius Lævinus, his patrician colleague, was to march through Lucania, so as to prevent the Lucanians from joining the king; while Æmilius, consul of the former year, was stationed at Venusia, to hold the Samnites and Apulians in check. A Campanian legion, composed of Mamertines, commanded by one Decius Jubellius, an officer of their own choosing, occupied Rhegium, in order (we may suppose) to intercept communications from Sicily.

As the king moved along the coast from Heraclea he came in view of the Roman army, encamped on the right bank of the little river Siris. His practised eye was at once struck by the military order of the enemy's camp. And when he saw them cross the broad but shallow stream in the face of his own army, and form their line before he could close with them, he remarked, "In war, at least, these barbarians are no way barbarous."

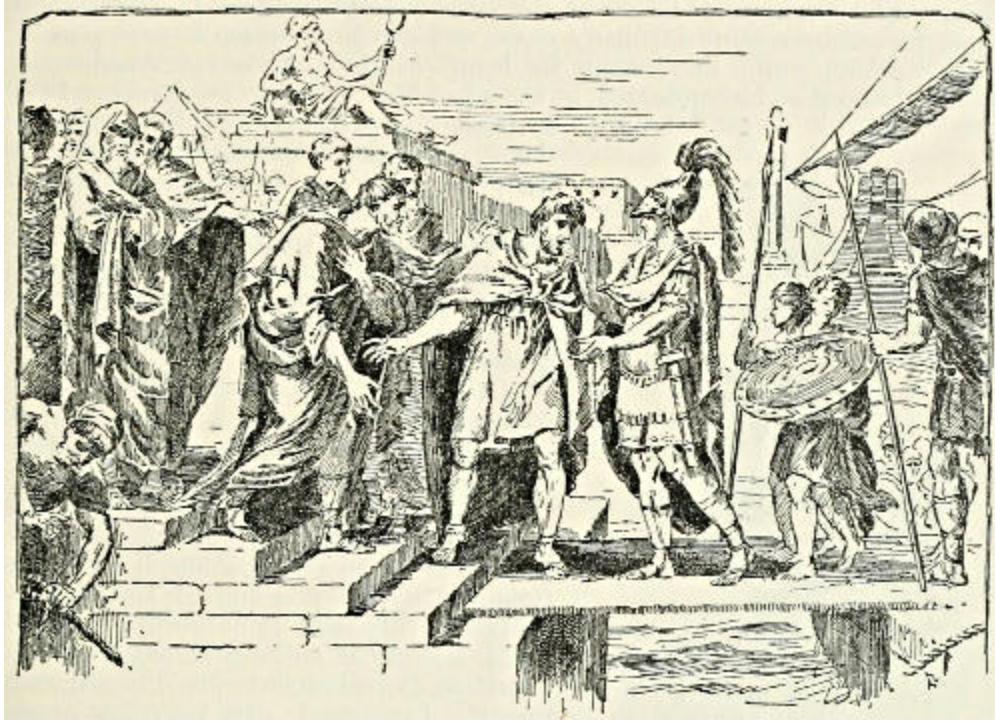
And now for the first time the Roman legions had to stand the shock of the Greek phalanx. The tactics of the two armies were wholly different. The free order of the legions, which now fought with pila and swords, has been described above. On the other hand, the Epirots formed two great columns, called the phalanxes, in which each man stood close to his fellow, so that half his body was covered by his right-hand man's shield. They were drawn up sixteen deep, and their long pikes, called sarissæ, bristled so thickly in front, that the line was impenetrable unless a gap could be made in the front ranks. They acted mechanically, by weight. If they were once broken they were almost defenceless. Level ground, therefore, was necessary to their effective action.

Pyrrhus had secured this last-named advantage: the plain of Heraclea was well adapted for the regular movement of the phalanxes, as well as for that of his cavalry and elephants. The action began by the Roman cavalry crossing the Siris, and driving back a squadron of the Thessalian horse, the remainder of which, with the elephants, were yet in the rear. The main body of the Romans, inspired by this success, followed across the bed of the river to assail the phalanxes. But they could make no impression on these solid masses; the principes took the place of the hastati, and the triarii succeeded to the principes, in vain. Lævinus then ordered up his cavalry to attack the phalanxes in flank. But they were met by the whole body of Thessalian horse, supported by the elephants. The Romans had never before seen these monstrous animals, which in their ignorance they called “Lucanian oxen”: their horses would not face them, and galloped back affrighted among the infantry. Pyrrhus now led his whole line forward, and the rout was general. The Romans were driven back across the Siris, and did not attempt to defend their camp. Yet they soon rallied, and retired in good order into Apulia, where Venusia was ready to receive them. It was now seen with what judgment the senate had occupied that place with a large colony.

The victory of Heraclea was gained at a very heavy loss. Pyrrhus now rightly estimated the task he had undertaken. He had a soldier’s eye. When he visited the field of battle next day, and saw every Roman corpse with its wounds in front, he exclaimed: “If these were my soldiers, or if I were their general, we should conquer the world.” When he offered in the temple of Jove at Tarentum a portion of the spoils taken after the battle, he placed on them the following inscription:

“Those who had ne’er been vanquished yet, great Father of Olympus,
Those have I vanquished in the fight, and they have vanquished me.”

And when he was asked why he spoke thus, he answered: “Another victory like this will send me without a man back to Epirus.”



ARRIVAL OF PYRRHUS AT TARENTUM

The battle of Heraclea, however, encouraged the Greek cities of Locri and Rhegium to throw off the Roman yoke. Locri joined Pyrrhus; but Decius Jubellius, with his Campanian soldiers, declared themselves independent, and seized Rhegium for themselves. But, above all, the battle of Heraclea left the ground open for the Lucanians and Samnites to join the king; and he advanced into Samnium to claim the fulfilment of their promises. But as he advanced he was struck by the desolate condition of the country; and he reproached the Italians with deceiving him. The battle which had just been fought taught him how formidable was the foe he had to deal with, and what he now saw, that he must trust to his own resources. He resolved therefore to end the war at once by negotiating an advantageous peace.

The person employed in this negotiation was Cineas, a name only less remarkable than that of Pyrrhus himself. He was a Thessalian Greek, famous for his eloquence, but still more famous for his diplomatic skill. He served Pyrrhus as minister at home and ambassador abroad. "The tongue of Cineas," Pyrrhus used to say, "had won him more battles than his own sword." So quick was his perception, and so excellent his memory, that he had hardly arrived in Rome when he could call every senator by his name,

and address every one according to his character. The terms he had to offer were stringent; for Pyrrhus required that all Greek cities should be left free, and that all the places that had been taken from the Samnites, Apulians, and his other allies, should be restored. Yet the skill of Cineas would have persuaded the senate to submit to these terms if it had not been for one man. This was Appius Claudius the censor. He was now in extreme old age; he had been blind for many years, and had long ceased to take part in public affairs. But now, when he heard of the proposed surrender, he caused himself to be conducted to the senate-house by his four sons and his five sons-in-law, and there, with the authoritative eloquence of an oracle, he confirmed the wavering spirits of the fathers, and dictated the only answer worthy of Rome—that she would not treat of peace with Pyrrhus till he had quitted the shores of Italy. The dying patriotism of Appius covers the multitude of arbitrary acts of which he was guilty in his censorship.

Cineas returned to Pyrrhus, baffled and without hope. He told his master, that “to fight with the Roman people was like fighting with the hydra”; he declared that “the city was as a temple of the gods, and the senate an assembly of kings.” But the king resolved to try what effect might be produced by the presence of his army in Latium. He passed rapidly through Campania, leaving it to be plundered by the Samnites, and advanced upon Rome by the upper or Latin road. He took the colony of Fregellæ by storm; he received the willing submission of Anagnia, the capital of the Hernicans, and was admitted into the impregnable citadel of Præneste, for both the Hernicans and the Prænestines were only half Roman citizens; they bore the burdens without enjoying the privileges, and were therefore glad to welcome a chance of liberty. He then advanced six miles beyond Præneste, within eighteen miles of Rome. But here his course was stayed. There were no signs of defection among the bulk of the Latins, or Volscians, or Campanians, who had been admitted into the tribes and enjoyed the full honours of Roman citizenship. Ti. Coruncanius, afterwards chief pontiff, and now consul, was himself a Latin of Tusculum. What he had gained all might hope for.

This winter is famous for the embassy of C. Fabricius, who was sent by the senate with two other consulars to propose to Pyrrhus an interchange of prisoners. The character and habits of Fabricius resembled those of Curius. He lived in frugal simplicity upon his own farm, and was honoured by his

countrymen for his inflexible uprightness. He was somewhat younger than Curius, and seems to have been less rough in manners and more gentle in disposition. The stories are well known which tell how Pyrrhus practised upon his cupidity by offering him gold, and upon his fears by concealing an elephant behind the curtains of the royal tent, which, upon a given signal, waved its trunk over his head; and how Fabricius calmly refused the bribe, and looked with unmoved eye upon the threatening monster. Pyrrhus, it is said, so admired the bearing of the Roman that he wished him to enter into his service like Cineas, an offer which, to a Roman ear, could convey nothing but insult. The king refused to give up any Roman citizens whom he had taken, unless the senate would make peace upon the terms proposed through Cineas: but he gave his prisoners leave to return home in the month of December to partake in the joviality of the *Saturnalia*, if they would pledge their word of honour to return. His confidence was not misplaced. The prisoners used every effort to procure peace; but the senate remained firm, and ordered every man, under penalty of death, to return to Tarentum by the appointed day.



PYRRHUS

[280-278 B.C.]

Hostilities were renewed next year. The new consuls were P. Sulpicius for the Patricians, and P. Decius Mus, son and grandson of those illustrious plebeians who had devoted themselves to death beneath Vesuvius and at Sentinum. We are ignorant of the details of the campaign till we find the consuls strongly encamped on the hills which command the plain of Apulian Asculum. Here Pyrrhus encountered them. After some skilful manœuvring he drew the Romans down into the plain, where his phalanx and cavalry could act freely. He placed the Tarentines in the centre, the Italian allies on his left wing, and his Epirots and Macedonians in phalanx on the right; his cavalry and elephants he kept in reserve. A second time the Roman legions wasted their strength upon the phalanxes. Again and again they charged that iron wall with unavailing bravery, till Pyrrhus brought up

his cavalry and elephants, as at Heraclea, and the Romans were broken. But this time they made good their retreat to their entrenched camp, and Pyrrhus did not think it prudent to pursue them. He had little confidence in his Italian allies, who hated the Greeks even more than they hated the Romans, and gave signal proof of their perfidy by plundering the king's camp while he was in action. The loss on both sides was heavy. The second victory was now won; but the king's saying was fast being fulfilled. In these two battles he had lost many of his chief officers and a great number of the Epirots, the only troops on whom he could rely. He dared not advance; and when he returned to Tarentum news awaited him which dispirited him still more. The Romans, he heard, had concluded a defensive alliance with Carthage, so that the superiority of Tarentum at sea would be lost; Ptolemy Ceraunus, who had promised him fresh troops from Macedon, had been slain by the Gauls, and these barbarians were threatening to overrun Greece.

Under these circumstances he seized the first occasion of making peace with Rome. This was afforded early in the next year by a communication he received from the new consuls Q. Æmilius and C. Fabricius. They sent to give him notice that his physician or cup-bearer (the accounts vary) had offered to take him off by poison. Pyrrhus returned his warmest thanks, sent back all his prisoners fresh-clothed and without ransom, and told his allies he should accept an invitation he had just received to take the command of a Sicilian-Greek army against the Carthaginians and Mamertines. Accordingly he sailed from Locri to Sicily, evading the Carthaginian fleet which had been lying in wait for him. He left the Italians to the mercy of the Romans, but Milo still kept hold of the citadel of Tarentum, and Alexander, the king's son, remained in garrison at Locri.

He had been a little more than two years in Italy, for he came at the end of the year 281 B.C. and departed early in 278: he returned towards the close of 276, so that his stay in Sicily was about two years and a half. The events of this period may be very briefly summed up.

[278-275 B.C.]

The Samnites and Lucanians continued a sort of partisan warfare against Rome, in which, though the consuls were honoured with triumphs, no very signal advantages seem to have been gained. The Romans no doubt took back the places on the Latin road which had submitted to the king; they also made themselves masters of Locri, and utterly destroyed the ancient city of

Croton, but they failed to take Rhegium, which was stoutly maintained by Decius Jubellius and his Campanians against Pyrrhus and Romans alike. Meanwhile Pyrrhus was pursuing a career of brilliant success in Sicily. He confined the Mamertines within the walls of Messana, and in a brilliant campaign drove the Carthaginians to the extreme west of the island. But in an evil hour he undertook the siege of Lilybæum, a place which the Carthaginians had made almost impregnable. He was obliged to raise the siege and lost the confidence of his fickle Greek allies. Before this also death had deprived him of the services of Cineas. Left to himself, he was guilty of many harsh and arbitrary acts, which proceeded rather from impatience and disappointment than from a cruel or tyrannical temper. It now became clear that he could hold Sicily no longer, and he gladly accepted a new invitation to return to Italy.

Accordingly, late in the year 276 B.C., he set sail for Tarentum. On the passage he was intercepted by a Carthaginian fleet, and lost the larger number of his ships; and, on landing between Rhegium and Locri, he suffered further loss by an assault from the Campanians, who still held the former city. Yet, once in Italy, he found himself at the head of a large army, composed partly of his veteran Epirots, and partly of soldiers of fortune who had followed him from Sicily. His first act was to recover possession of Locri; and here, in extreme want of money, he listened to evil counsellors, and plundered the rich temple of Proserpine. The ships that were conveying the plunder were wrecked, and Pyrrhus, conscience-stricken, restored all that was saved. But the memory of the deed haunted him: he has recorded his belief that this sacrilegious act was the cause of all his future misfortunes.

The consuls of the next year were L. Cornelius Lentulus and M. Curius Dentatus. On Curius depended the fortunes of Rome. The people were much disheartened, for pestilence was raging. The statue of Capitoline Jupiter had been struck by lightning, and men's hearts were filled with ominous forebodings. When the consuls held their levy, the citizens summoned for service did not answer to their names. Then Curius ordered the goods of the first recusant to be sold, a sentence which was followed by the loss of all political rights. This severe measure had its effect, and the required legions were made up.

Lentulus marched into Lucania, Curius into Samnium. Pyrrhus chose the latter country for the seat of war. He found Curius encamped above Beneventum, and he resolved on a night attack, so as to surprise him before he could be joined by his colleague. But night attacks seldom succeed: part of the army missed its way, and it was broad daylight before the Epirot army appeared before the camp of the consul. Curius immediately drew out his legions, and assaulted the enemy while they were entangled in the mountains. He had instructed his archers to shoot arrows wrapped in burning tow at the elephants, and to this device is attributed the victory he won. One of the females, hearing the cries of her young one, which had been wounded in this way, rushed furiously into the ranks of her own men. Curius now brought up the main body of his foot and attacked the disordered phalanxes; they were broken and became helpless. The defeat was complete: Pyrrhus fell back at once upon Tarentum, and resolved to quit the shores of Italy, leaving Milo to hold the citadel.

But the glory of his life was ended; the two or three years that remained of it were passed in hopeless enterprises. In storming Argos he was killed by a tile thrown by a woman from the roof of a house. Such was the end of this remarkable man. Like Richard I of England or Charles XII of Sweden, he passed his life in winning battles without securing any fruits of victory; and, like them, a life passed in the thick of danger was ended in a petty war and by an unknown hand. His chivalric disposition won him the admiration even of his enemies; his impetuous temper and impatience of misfortune prevented him from securing the confidence of his friends. Yet he left a name worthy of his great ancestry; and we part with regret from the history of his Italian wars, for it is the most frank and generous conflict in which Rome was ever engaged.

THE FINAL REDUCTION OF ITALY

[273-272 B.C.]

The departure of Pyrrhus left Italy at the mercy of Rome. Yet Milo, the king's lieutenant, still held the citadel of Tarentum, and none of the nations who had lately joined the Epirot standard submitted without a final struggle. The Samnites, Lucanians, Bruttians, and other tribes continued a kind of guerrilla warfare, for which their mountains afforded great facilities. To put

an end to this, in the year 272 B.C., L. Papirius Cursor the younger, and Sp. Carvilius, who had crushed the Samnites at the close of the third war, were again elected consuls. Papirius invested Tarentum; and while the lines were being formed, he received the submission of the Lucanians and Bruttians.

Meanwhile Carvilius attacked the Samnites, and the scattered remnants of that brave people saw themselves compelled to submit finally to Rome, after a struggle of about seventy years. Thus ended what is sometimes called the Fourth Samnite War.

The same summer witnessed the reduction of Tarentum. Papirius entered into a secret treaty with Milo, by which the latter was to evacuate the city and leave it to the will of the Romans. He sailed for Epirus with all his men and stores, and Tarentum was left to itself. The aristocratical party instantly seized the government, and made submission to Rome. They were allowed to continue independent, on condition of paying an annual tribute to the conqueror; but their fortifications were razed, their arsenal dismantled, the fleet surrendered to Rome, and a Roman garrison placed in their citadel.

The attention excited by the failure of Pyrrhus is attested by the fact that in the year 273 B.C. Ptolemy Philadelphus, sovereign of Egypt, sent ambassadors to Rome, and entered into alliance with Rome. Thus began a connection with Egypt which continued unbroken to the time of Cæsar.

[271-265 B.C.]

In 271 B.C. the plebeian consul C. Genucius was sent to reduce Decius Jubellius and the Campanian soldiers, who had made themselves lords of Rhegium, and formed a military oligarchy in that city. The senate formed a treaty with the Mamertine soldiery, who had occupied Messana in the same manner, and thus detached them from alliance with their compatriots; they also secured supplies of corn from Hiero, the new sovereign of Syracuse. The Campanians of Rhegium being thus forsaken, the city was taken by assault and all the soldiery put to the sword, except the original legionaries of Jubellius, who as burgesses of Capua possessed some of the rights of Roman citizens, and were therefore reserved for trial before the people of Rome. Not more than three hundred still survived out of several thousands; but they met with no mercy. Every tribe voted that they should be first scourged and then beheaded as traitors to the republic. Rhegium was restored to the condition of a Greek community.

A few years later, the Salentines and Messapians in the heel of Italy submitted to the joint forces of both consuls. Brundisium and its lands were ceded to Rome; and about twenty years afterwards (244 B.C.) a colony was planted there. Brundisium became the Dover of Italy, as Dyrrhachium, on the opposite Epirot coast, became the Calais of Greece.

In the year 268 B.C. both consuls undertook the reduction of the Picenians, who occupied the coast land between Umbria and the Marrucinians. Their chief city, Asculum, was taken by storm. A portion of the people was transferred to that beautiful coast between Naples and the Silarus, where they took the name of Picentines. Soon after (266 B.C.) Sarsina, the chief city of the Umbrians, was taken, and all Umbria submitted to Rome.

It remains to speak of Etruria. No community here was strong enough, so far as we hear, to maintain active war against Rome; even Volsinii was now compelled to sue for succour. The ruling aristocracy had ventured to arm their serfs, probably for the purpose of a Roman war; but these men had turned upon their late masters, and were now exercising a still direr oppression than they had suffered. The senate readily gave ear to a call for assistance from the Volsinian lords; and (in the year 265 B.C.) Q. Fabius Gurgus, son of old Fabius Maximus, invested the city. He was slain in a sally made by the Etruscan serfs, who were, however, obliged to surrender soon after. The Romans treated the city as lawfully gotten booty. The old Etruscan town on the hill-top, with its polygonal walls, was destroyed; its two thousand statues and other works of art were transferred to Rome; a new town was founded on the low ground, which in the modernised name of Bolsena still preserves the memory of its ancient fame. After the fall of Volsinii, all the Etruscan communities made formal submission; and all Italy awaited the will of the conquering city of the Tiber.

GOVERNMENT OF THE ACQUIRED TERRITORY

[265 B.C.]

To conceive of ancient Rome as the capital of Italy in the same sense that London is the capital of England, or Paris of France, would be a great mistake. London and Paris are the chief cities of their respective countries only because they are the seat of government. But the city of ancient Rome

was a great corporate body or community, holding sovereignty over the whole of Italy, from the Macra and Rubicon southwards. The Roman territory itself, in the first days of the Republic, consisted (as we have seen) of twenty-one tribes or wards. Before the point at which we have arrived, these tribes had been successively increased to three-and-thirty. These tribes included a district beyond the Tiber stretching somewhat farther than Veii; a portion of the Sabine and Æquian territory beyond the Anio; with part of Latium, part of the Volscian country, and the coast land as far as the Liris, southwards. None but persons enrolled on the lists of these tribes had a vote in the popular assemblies or any share in the government and legislation of the city. The Latin cities not included in the tribes, and all the Italian communities, were subject to Rome, but had no share in her political franchise.

The principles on which the Italian nations were so settled as to remain the peaceable subjects of Rome were these: first, they were broken up and divided as much as possible; secondly, they were allowed, with little exception, to manage their own affairs. The isolation enforced by Rome prevented them from combining against her. The self-government granted by Rome made them bear her supremacy with contentment.

Prefectures; Municipalities

The arts by which isolation was produced were put in practice at the settlement of Latium fifty years before. The same plan was pursued with the different Italian nations. Those which submitted with a good grace were treated leniently. Those which resisted stubbornly were weakened by the confiscation of their lands and by the settlement of colonies in their principal towns. The Frentanians are the best examples of the milder treatment; the Samnites afford the most notable instance of the more harsh.

The work of isolation was promoted partly by the long and narrow shape of Italy and the mountain range by which it is traversed, which make a central government difficult, and still break it up into many states, but partly also by a sentiment common to most of the Italian nations, as well as to those of Greece. They regarded a man, not as one of a nation, but as the member of a civic community. Every one regarded his first duties as owed to his own city, and not to his nation. Their city was their country. They

addressed one another not as fellow-countrymen, but as fellow-citizens. Rome herself was the noblest specimen of this form of society. And the settlement which she adopted throughout Italy took advantage of this prevailing rule, and perpetuated it.

Not only were the Italians split up into civic communities, but these communities were themselves placed in very different conditions. The division of the Italian communities, as established by the Roman government, was threefold—prefectures, municipal towns, and colonies.

The prefectures did not enjoy the right of self-government, but were under the rule of prefects or Roman governors, annually appointed; and the inhabitants of the prefecture were registered by the Roman censor, so as to be liable to all the burdens of Roman citizens, without enjoying any of their privileges. This condition was called the *Cære* franchise, because the town of *Cære* was the first community placed in this dependent position. Amid the terror of the Gallic invasion, *Cære* had afforded a place of refuge to the sacred things, to the women and children of the Romans, and had been rewarded by a treaty of equal alliance. But at a later period she joined other Etruscan communities in war against Rome, and for this reason she was reduced to the condition of a prefecture. Capua afterwards became a notable instance of a similar change. After the Samnite Wars she enjoyed a state of perfect equality in respect to Rome. The troops which she supplied in virtue of the alliance between her and Rome formed a separate legion, and were commanded by her own officers, as in the case of Decius Jubellius. But in the Hannibalic War she joined Hannibal; and to punish her she was degraded to the condition of a prefecture.

At the period of which we write, the municipal towns were communities bound to Rome by treaties of alliance, framed on a general principle with respect to burdens and privileges. Their burdens consisted in furnishing certain contingents of troops, which they were obliged to provide with pay and equipments while on service. Their privileges consisted in freedom from all other taxes, and in possessing the right of self-government. This condition was secured by a treaty of alliance, which, nominally at least, placed the municipal community on a footing of equality with Rome; though sometimes this treaty was imposed by Rome without consulting the will of the other community.^[45] Thus there was, no doubt, a considerable diversity of condition among the municipia. Some regarded their alliance as

a boon, others looked upon it as a mark of subjection. In the former condition were Cære and Capua before they were made prefectures; in the latter condition was Volsinii and the Etruscan cities. The municipal towns enjoyed the civil or private rights of Roman citizens; but none, without special grant, had any power of obtaining the political or public rights. In some cases even the private rights were withheld, as from the greater part of the Latin communities after the war of 338 B.C., when the citizens of each community were for a time forbidden to form contracts of marriage or commerce with Roman citizens or with their neighbours. They stood to Rome and to the rest of Italy much in the same condition as the plebeians to the patricians before the Canuleian law. But these prohibitions were gradually and silently removed. Municipal towns were often rewarded by a gift of the Roman franchise, more or less completely, while those which offended were depressed to the condition of prefectures. At length, by the Julian and other laws (B.C. 90), all the municipal towns of Italy, as well as the colonies, received the full Roman franchise; and hence arose the common conception of a municipal town—that is, a community of which the citizens are members of the whole nation, all possessing the same rights, and subject to the same burdens, but retaining the administration of law and government in all local matters which concern not the nation at large.

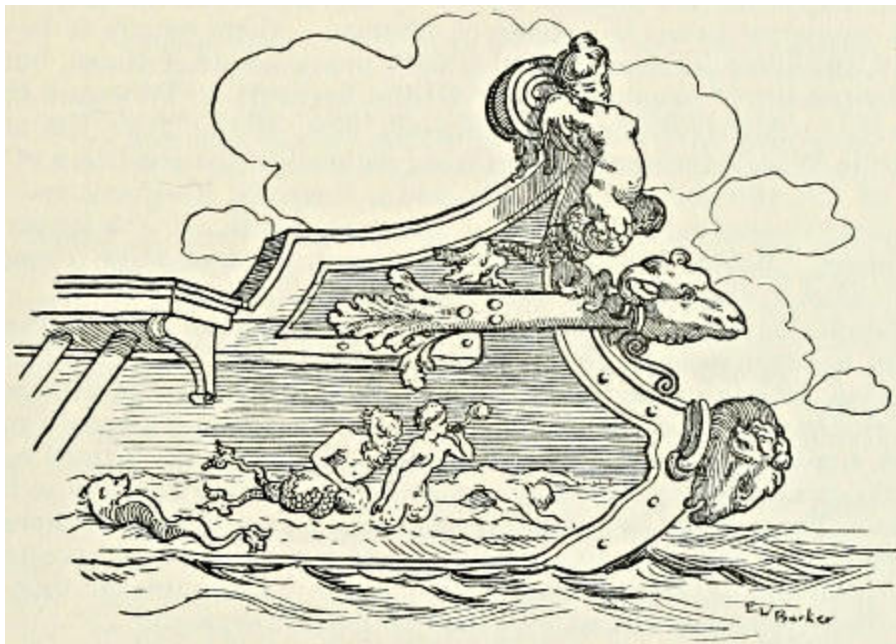
Colonies; Free and Confederate States

It is in the colonial towns that we must look for the chief instruments of Roman supremacy in Italy. Directly dependent upon Rome for existence, they served more than anything to promote that division of interests which rendered it so difficult for any part of Italy to combine against Rome.

When we speak or think of Roman colonies, we must dismiss all those conceptions of colonisation which are familiar to our minds from the practice pursued in the familiar cases of the maritime states of modern Europe.^[46] Roman colonies were not planted in new countries by adventurers who found their old homes too narrow for their wants or their ambition. When the Romans planted a colony (at the time we speak of and for more than a century later), it was always within the limits of the Italian peninsula, and within the walls of ancient cities whose obstinate resistance made it imprudent to restore them to independence, and whose reduced condition rendered it possible to place them in the condition of subjects. But

these colonies were not all of the same character. They must be distinguished into two classes: the colonies of Roman citizens, and the Latin colonies.

The colonies of Roman citizens consisted usually of three hundred men of approved military experience, who went forth with their families to occupy conquered cities of no great magnitude, but which were important as military positions, being usually on the seacoast. These three hundred families formed a sort of patrician caste, while the old inhabitants sank into the condition formerly occupied by the plebeians at Rome. The heads of these families retained all their rights as Roman citizens, and might repair to Rome to vote in the popular assemblies. When in early Roman history we hear of the revolt of a colony, the meaning seems to be that the natives rose against the colonists and expelled them. Hence it is that we hear of colonists being sent more than once to the same place, as to Antium.



PROW OF A ROMAN WAR GALLEY

(After De Montfaucon)

But more numerous and more important than these were the Latin colonies, of which there were thirty in existence when Hannibal crossed the Alps. Of these thirty no fewer than twenty-six had been founded before the close of the year 263 B.C. The reason for the name they bore was this: We

have seen that a close connection had subsisted between Rome and the Latin communities from the earliest times. Under the later kings Rome was the head of Latium; and by Spurius Cassius a league was formed between Rome and Latium, which continued with a slight interruption till the great Latin war of 338 B.C. So long as this league lasted, Latins enjoyed all the private rights of Roman citizens in Rome; and Romans enjoyed all the private rights of the Latin citizens in any of the cities of Latium. During the period of the league many colonies were sent forth, in which the settlers consisted jointly of Romans and Latins, and were not confined to the small number of three hundred, but usually amounted to some thousands. But the citizens of these Latin colonies seem to have had no rights at Rome, except such as were possessed by the allied municipal towns. They were therefore regarded politically as communities in alliance with Rome. After the Latin war, similar colonies still continued to be sent forth. Indeed, these were the colonies which chiefly relieved the poor of the Roman territory.

The rights and privileges of these Latin colonies are only known to us as they are found at a later period of the republic under the name *Latinitas*, or the Right of Latium (*Jus Latii*). This right, at the later time we speak of, we know to have consisted in the power of obtaining the full rights of a Roman burgess, but in a limited and peculiar manner. Any citizen of a Latin community, whether one of the free cities of Latium or a Latin colony, was allowed to emigrate to Rome and be enrolled in one of the Roman tribes, on two conditions: first, that he had held a magistracy in his native town: secondly, that he left a representative of his family in that native town. Thus was formed that large body of half-Roman citizens throughout Italy, who are so well known to readers of Livy under the appellation of “the Latin name.” *Socii et nomen Latinum*—the allies and the Latin name—was the technical expression for all those Italian communities who were bound to supply soldiers for her armies.

Besides the mass of the Italian communities which were in a condition of greater or less dependence upon Rome,—the prefectures in a state of absolute subjection, the colonies bound by ties of national feeling and interest, the municipal towns by articles of alliance,—there remain to be noticed, fourthly, the cities which remained wholly independent of Rome, but bound to her by treaties of equal alliance. Of the Latin cities, Tibur and Præneste alone were in this condition; in Campania, most of the cities, till,

after the Hannibalic War, Capua and others were reduced to the condition of prefectures; of the Hellenic cities in the south, Neapolis, Rhegium, and others; in Umbria, Camerium; in Etruria, Iguvium; with all the cities of the Frentanians. But as Roman power increased, most of these communities were reduced to the condition of simple municipal towns.

Whatever is known of the internal constitution of these various communities belongs to later times, when by the Julian law they all obtained the Roman franchise, and became part and parcel of the Roman state. There can, however, be little doubt that in the colonies a constitution was adopted similar to that of Rome herself. The colonists formed a kind of patriciate or aristocracy, and the heads of their leading families constituted a senate. There were two chief magistrates, called *duumviri*, representing the consuls, to whom (in the more important towns) were added one or two men to fulfil the duties of censor and quæstor. In course of time similar constitutions were introduced into the municipal towns also.

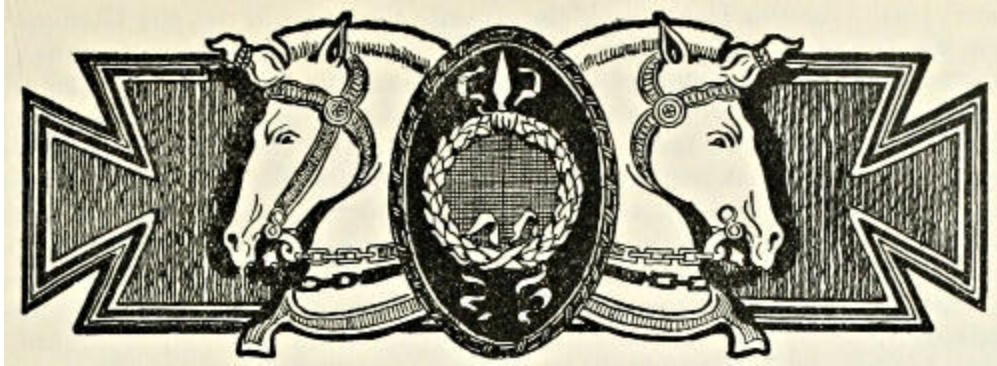
Thus, by placing the Italian cities in every possible relation to herself, from real independence to complete subjection, and by planting colonies, some with full Roman rights, some with a limited power of obtaining these rights, Rome wove her net of sovereignty over the peninsula, and covered every part with its entangling meshes. The policy of Rome, as has been said, may be summed up in the two words—isolation and self-government.^c

FOOTNOTES

[44] [Mommsen^b thinks of Pyrrhus as “simply a military adventurer.” He finds his dream of western empire, “analogous in greatness and boldness to the idea which led Alexander over the Hellespont.” But he finds a vast difference between the chances of success, seeing in the disorganised and independent Italian states “poor material for a united realm.” In all points the plan of the Macedonian appears as a feasible, that of the Epirot as an impracticable, enterprise; the former as the completion of a great historical task, the latter as a remarkable blunder. And yet we must not forget that we look at these attempts from the viewpoint of result not of purpose, and to his contemporaries the conquest of Italy would have seemed easier, if less worth while, than the then apparently impossible dream of Alexander.]

[45] Hence the distinction between *Civitates Federatæ* and *Liberæ*. All federate communities were free, but not all free communities were federate.]

[46] [Roman colonies were essentially similar to the cleruchies of Athens.]



CHAPTER X. THE FIRST PUNIC WAR

Carthage clears the Alps, Rome traverses the seas, the two peoples, personified in two men Hannibal and Scipio, wrestle and are desperate to terminate the struggle. 'Tis a duel *à outrance*, a fight to the death. Rome totters, she utters a cry of anguish: *Hannibal ad portas!* But she rises again, uses the limits of her strength in a last blow, throws herself on Carthage and effaces her from the world.—VICTOR HUGO.

A taste of blood whets the appetite of a nation no less than of an animal. It is notorious that the love of power grows with its acquisition. It was inevitable then that the Romans, after beating off their eastern enemy, should turn their eyes more and more jealously towards their one remaining rival in the west—namely, Carthage. A certain amount of antagonism there had doubtless been all along between Rome and Carthage, but there was a long time during which the Italian city had hardly achieved strength enough to excite a real jealousy on the part of a community of such recognised power as Carthage. And even now there was no possibility that Rome could claim to compete with her rival on the sea. Inheriting the traditions of her mother city, Tyre, Carthage was pre-eminently a commercial city. She occupied that pre-eminence of the western Mediterranean that Tyre so long

held in the East, and she was little disposed to accept without a struggle the rivalry of a people of another land and race. It was inevitable then that a war to the death must sooner or later determine the question of mastery so soon as Rome had achieved a degree of power which enforced her recognition as an actual rival of Carthage. The contest was precipitated—as might have been expected—by the condition of things in Sicily, an island which lay intermediate between the territories of the two powers, and thus almost of necessity became a bone of contention between them. In the early days, indeed, it was the Greeks and Carthaginians who disputed over Sicily, and perpetually quarrelled there, but now after the death of Agathocles, the powerful tyrant of Syracuse, and the defeat of Pyrrhus, it became clear that Syracuse and the other Greek cities of Sicily must look for aid in future to Rome rather than to Greece. But the acceptance of such an alliance on the part of Rome virtually implied war with Carthage, and such a war broke out actively only a few years after the expulsion of Pyrrhus from Italy. It required indeed a series of three most memorable wars, extending over a period of more than a century, finally to decide the fate of Carthage.

The first of these wars—in some sense perhaps the most important, yet as regards its results by far the least striking in itself—lasted some twenty-three years. It was fought out largely in Sicily itself by the Romans who were, for the most part, successful and in the end entirely victorious; and on the sea, where the fleets of the Romans were for a long time quite unable to compete with their rivals; the same dogged pertinacity, however, that had made Rome mistress of Italy and that had brought about the final triumph over Pyrrhus, stood them in good stead in the new effort to create a powerful navy—an effort which was at last crowned with such complete success that in the final decisive battle at the Ægatian Islands, the fleet of Carthage was entirely destroyed and dispersed. At last Carthage sued for peace, acknowledging the supremacy of Rome in Sicily and giving up all claim to that island.

The events that followed illustrate not merely the inertia of long-established institutions in the way in which Carthage rallied from her defeat and returned again and again to the contest, but they illustrate even more strikingly the influence which individual great men have in history. There have been philosophers who have contended that great statesmen and great warriors are rather the result of the opportunity of their times than a

directing influence; but it is hard for any one who attentively considers the course of history to overlook the fact that the great man, even though in some sense called forth by the necessities of the time, yet may put his stamp in a most definitive way upon the trend of future events. So it was, for example, with Alexander; so it was with Pyrrhus; and so it was now with a group of great Carthaginians including Hamilcar Barca, his son-in-law Hasdrubal, and most notably of all, the son of Hamilcar, the famous but ill-fated warrior Hannibal.

These men, fired with loyalty to their native city, were imbued with a bitter hatred of Rome, and swore to devote their lives to the work of gaining back prestige for Carthage and to the destruction of her enemy. In the end their effort was not successful; yet the struggle in which they participated was one of the most wonderful and picturesque episodes in all history, and it has bequeathed us the name of Hannibal as that of one of the three or four greatest generals of all time. The story of how he precipitated the Second Punic War through the destruction of Saguntum; how he crossed the Alps with his army, invading the territory of Italy itself, and there defeating the Romans again and again until their very national existence seemed threatened; and of how, finally, recalled from Italy to protect Carthage herself against the invasion of the Roman Scipio Africanus, Hannibal was defeated before Carthage, all his labour of years coming to nought—must be told in detail. Suffice it here to say that this story, fascinating in itself, is of double interest, because it relates not merely to the prowess of individual warriors, of individual hosts, but to the evolution of that world-power through which Rome was to stamp her influence for all time on European history.

Yet a Third Punic War was necessary before Carthage was finally removed for all time from the stage of important history. Another Scipio, called Africanus Minor, the adopted son of his great predecessor, was the leader of the Roman arms in that final assault upon Carthage, and the somewhat unwilling officer who carried out the mandate of the Roman senate, which declared that Carthage should be absolutely destroyed. That mandate was put into effect. No rival remained to Rome in the West, and, as we shall see, steps had been taken which resulted almost simultaneously in the final subjugation of those powers that hitherto had disputed the influence of Rome in the East.^{[a](#)}

CAUSES OF THE FIRST PUNIC WAR

[326-289 B.C.]

Nothing is more remarkable in the history of Rome than the manner in which she was brought into contact with only one enemy at a time. During the heat of her contest with the Samnites, Alexander of Macedon was terminating his career. The Second Samnite War broke out in 326 B.C.; and in the following year the great king died at the untimely age of thirty-two. The possibility that he might have turned his course westward occurred to Roman minds. Livy^c broaches the question, whether Rome would have risen superior to the contest or not, and decides it in the affirmative. But his judgment is that of a patriot, rather than of a historian. Scarcely did Rome prevail over the unassisted prowess of the Samnites. Scarcely did she drive the adventurous Pyrrhus from her shores. If a stronger than Pyrrhus—a man of rarest ability both for war and peace—had joined his power to that of C. Pontius the Samnite, it can hardly be doubted that the history of the world would have been changed.

The same good fortune attended Rome in her collision with Carthage. The adventurous temper of Pyrrhus led him from Italy to Sicily, and threw the Carthaginians into alliance with the Romans. What might have been the result of the Tarentine War, if the diplomacy of Cineas had been employed to engage the great African city against Rome? Now that Italy was prostrate, it was plain that a collision between the two governments was inevitable. As Pyrrhus left the soil of Italy forever, he said regretfully: “How fair a battle-field we are leaving for the Romans and Carthaginians!”

It was by means of her fleets that Carthage was brought into connection and collision with other countries. In early days she had established commercial settlements in the south of Spain and in Sicily. It was in the latter country that she came in contact first with the Greeks, and afterwards with the Romans. In early times the Carthaginians contented themselves with obtaining possession of three factories or trading marts on the coast of Sicily—Panormus, Motya, and Lilybæum, which they fortified very strongly. But after the great overthrow of the Athenian power by the Syracusans (413 B.C.), the Carthaginian government formed the design of becoming masters of this fertile and coveted island. But their successes were checked by Dionysius the tyrant of Syracuse, whose long reign of

thirty-eight years (405-367 B.C.) comprises the time of Rome's great depression by the Gallic invasion, while the year of his death is coincident with that of the Licinian laws, the era from which dates the constant advance of the great Italian city. After many vicissitudes he was obliged to conclude a peace by which the river Halycus was settled as the boundary between Grecian and Carthaginian Sicily, and the territory of Agrigentum was added to Syracusan rule (383 B.C.).

In 317 B.C. Agathocles made himself king of Syracuse, and in 310 B.C. the Carthaginians declared war against him. Reduced to great straits, he took the bold step of transporting the troops which remained for the defence of the capital into Africa, so as to avail himself of the known disaffection of the Libyan subjects of Carthage. His successes were marvellous. One of the suffets fell in battle, the other acted as a traitor. All the Libyan subjects of Carthage supported the Sicilian monarch, but he was obliged to return to Sicily by an insurrection there. The remainder of his life was spent in vain attempts in Sicily, in Corcyra, and in southern Italy. He died in 289 B.C., less than ten years before the appearance of that other fearless adventurer Pyrrhus in Italy.

[289-264 B.C.]

After the death of Agathocles, the Carthaginians and Greeks of Sicily rested quiet till Pyrrhus undertook to expel the former from the island. The appearance of Carthaginian fleets off Ostia, and in the Gulf of Tarentum, roused the jealousy of the Italian republic, and an opportunity only was wanting to give rise to open war between the two states.

The occupation of Messana by the Campanian mercenaries of Agathocles, calling themselves Mamertines, has been noticed. From this place they became dangerous neighbours of Syracuse. A young man named Hiero, who had won distinction in the Sicilian campaigns of Pyrrhus, defeated these marauders at Centuripæ, and was by his grateful compatriots proclaimed king about the year 270 B.C. In 265 B.C. the new king resolved to destroy this nest of robbers, and advanced against Messana with a force superior to any they could bring into the field against him. The Mamertines, in this peril, were divided; one party wished to call in the Carthaginians, another preferred alliance with Rome. The latter prevailed, and envoys were despatched to demand immediate aid. The senate were well inclined to grant what was asked; for that Messana, a town with a good harbour, and

separated from Italy by a narrow strait, should pass into the hands of Carthage, might have given alarm to a less watchful government. Yet shame restrained them. It was barely six years since Hiero had assisted them in punishing the Campanian legion which had seized Italian Rhegium, as the Mamertines had seized Sicilian Messina, and the senate declined to entertain the question. But the consuls, eager for military glory, brought the matter before the centuriate assembly, which straightway voted that support should be given to the Mamertines, or in other words, that the Carthaginians should not be allowed to gain possession of Messina. The consul Appius Claudius, son of the old censor, was to command the army.

During this delay, however, the Carthaginian party among the Mamertines had prevailed, and Hanno, with a party of Carthaginian soldiers, had been admitted into the town. But Appius succeeded in landing his troops to the south of the town,^[47] and defeated Hiero with such loss that the prudent king retired to Syracuse. Next day the Romans fell upon Hanno, and also defeated him. The consul pursued his successes by plundering the Syracusan dominions up to the very gates of the city.

The Romans, having now set foot in Sicily, determined to declare war against Carthage. It is probable that the senate, recollecting the rapid success of Pyrrhus, who in two years almost swept the Carthaginians out of the island, reckoned on a speedy conquest; else, after their late exhausting wars, they would hardly have engaged in this new and terrible conflict. But they were much deceived. The First Punic War, which began in 264 B.C., did not end till 241, having dragged out its tedious length for three-and-twenty years. The general history of it is most uninteresting. All the great men of Rome, who had waged her Italian wars with so much vigour and ability, were in their graves; we hear no more of Decius, or Curius, or Fabricius, and no worthy successors had arisen. The only men of note who appear on the Roman side are Duilius and Regulus. But the generals of Carthage are no less obscure, except the great Hamilcar.^[48]

THE WAR BEGINS

[264-262 B.C.]

To make the dreary length of this war more intelligible, it may conveniently be divided into three periods. The first comprises its first seven years

(264-257), during which the Romans were uniformly successful, and at the close of which they had driven the Carthaginians to the south and west coasts of Sicily. The second is an anxious period of mingled success and failure, also lasting for seven years (256-250): it begins with the invasion of Africa by Regulus, and ends with his embassy and death. The third is a long and listless period of nine years (249-241), in which the Romans slowly retrieve their losses, and at length conclude the war by a great victory at sea.

FIRST PERIOD (264-257 B.C.)

The ill success of Hanno at Messana so displeased the Carthaginian government that they ordered the unfortunate general to be crucified. The Romans pursued their first success with vigour. In the year 264 B.C. both the consuls crossed over into Sicily with an army of nearly fifty thousand men. A number of the Sicilian towns declared in favour of the new power, which might (they hoped) secure their independence against both Syracuse and Carthage; for at present no one dreamed of a permanent occupation of the island by the Romans. Hiero, a prudent man, was struck by the energy of the new invaders. "They had conquered him," he said, "before he had had time to see them." He shrewdly calculated that the Carthaginians would prove inferior in the struggle, and forthwith concluded a treaty of alliance with Rome, by which he was left in undisturbed possession of a small but fertile region lying round Syracuse; some more remote towns, as Tauromenium, being also subject to his sceptre.

From this time forth to the time of his death, a period of forty-seven years, he remained a useful ally of the Roman people. In 262 B.C. both consuls laid siege to the city of Agrigentum, which, though fallen from her ancient splendour, was still the second of the Hellenic communities in Sicily. Another Hanno was sent from Carthage to raise the siege, and for some time fortune favoured him. He drew a second circle of entrenchments round the Roman lines, so as to intercept all supplies; and thus the besiegers, being themselves besieged, were reduced to the greatest straits. But the consul at length forced Hanno to give him battle, and gained a complete victory. Upon this the commandant of the garrison, finding further defence useless, slipped out of Agrigentum by night, and deserted the

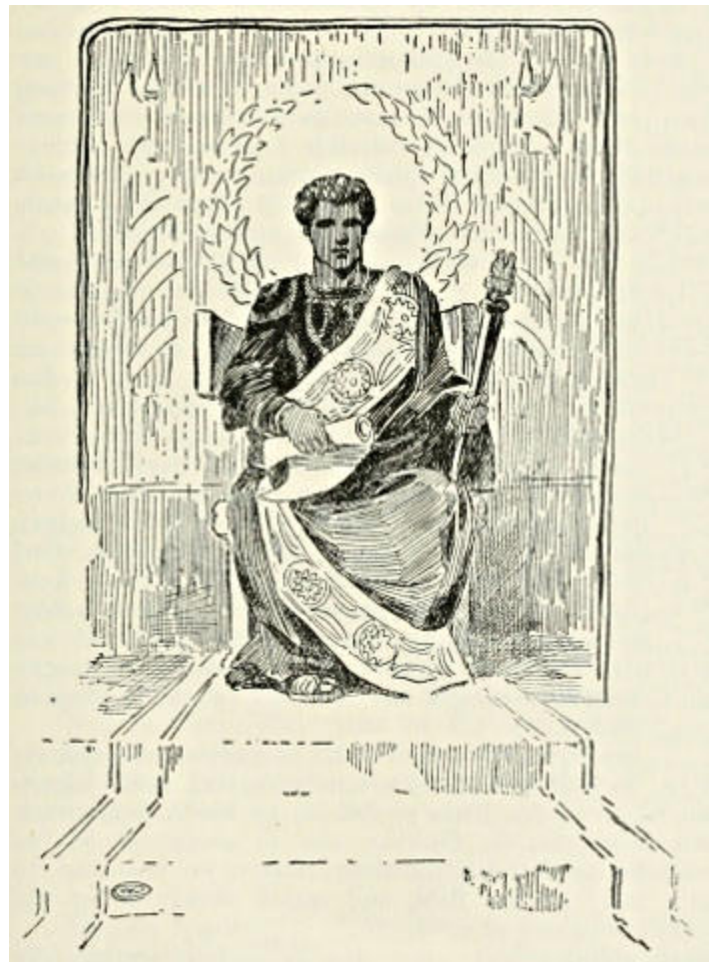
hapless city after a siege of seven months. The Romans repaid themselves for the miseries they had undergone by indulging in all those excesses which soldiers are wont to commit when they take a town by storm after a long and obstinate defence. It is said that twenty-five thousand men were slain.

[262-260 B.C.]

This
great
success

raised the spirits of the Romans. And now the senate conceived the hope and formed the plan of expelling the Carthaginians entirely from Sicily: but after a short experience, that sagacious council became aware that a fleet was indispensable for success. Nothing shows the courage and resolution of the Romans more than their manner of acting in this matter. It is no light matter for landmen to become seamen; but for unpractised landmen to think of encountering the most skilful seamen then known might have been deemed a piece of romantic absurdity, if the men of Rome had not undertaken and accomplished it.

What they wanted first was a set of ships, which, in size at least and weight, should be a match for those of the enemy. It is a mistake to suppose that the Romans had no fleet before this time. The treaties with Carthage sufficiently prove the contrary; and on several occasions we hear of ships being employed by them. But these ships were of the trireme kind, formerly employed by the Greeks. The Carthaginians, like the Greeks after



A ROMAN CONSUL

Alexander, used quinqueremes; and it would have been as absurd for the small Roman ships to have encountered those heavier vessels, as for a frigate to cope with a three-decker. The Romans therefore determined to build quinqueremes. A Carthaginian ship cast ashore on the coast of Bruttium served as a model; the forest of Sila, in that district, supplied timber. In sixty days from the time the trees were felled they had completed, probably by the help of Greek artisans, a fleet of one hundred quinqueremes, and twenty triremes; and while it was building, they trained men to row in a manner which to us seems laughable, by placing them on scaffolds ranged on land in the same way as the benches in the ships (262 B.C.).

[260-256 B.C.]

The consul Cn. Cornelius put to sea first with seventeen ships, leaving the rest of the fleet to follow; but he was surprised near Lipara and captured, with the whole of his little squadron, by the Carthaginian admiral. His plebeian colleague, C. Duilius, was in command of the army in Sicily; but as soon as he heard of this disaster, he hastened to take charge of the main body of the fleet, and sailed slowly along the north coast of Sicily (260 B.C.).

Meantime, the Roman shipwrights had contrived certain engines, by means of which their seamen might grapple with the enemy's ships, so as to bring them to close quarters and deprive them of the superiority derived from their better construction and the greater skill of their crews. These engines were called crows (*corvi*). They consisted of a gangway thirty-six feet long and four broad, pierced with an oblong hole towards one end, so as to play freely round a strong pole twenty-four feet high, which was fixed near the ship's prow. At the other end was attached a strong rope, which passed over a sheaf at the head of the pole. By this rope the gangway was kept hauled up till within reach of the enemy's ship; it was then suddenly let go, and as it fell with all its weight, a strong spike on its under side (shaped like a crow's beak) was driven into the enemy's deck. Then the Roman men-at-arms poured along the gangway, and a stand-up fight followed, in which the best soldiers must prevail.

Thus prepared, Duilius encountered the enemy's fleet. He found them ravaging the coast at Mylæ, a little to the west of Palermo. The admiral was the same person who had commanded the garrison of Agrigentum, and was

carried in an enormous septireme, which had formerly belonged to Pyrrhus. Nothing daunted, Duilius attacked without delay. By his rude assault the skilful tactics of the Carthaginian seamen were confounded. The Roman fighting-men were very numerous, and when they had once boarded an enemy's ship, easily made themselves masters of her. Duilius took thirty-one Carthaginian ships and sunk fourteen. For a season, no Roman name stood so high as that of Duilius. Public honours were awarded him; he was to be escorted home at night from banquets and festivals by the light of torches and the music of the flute; a pillar was set up in the Forum, ornamented with the beaks of the captured ships, and therefore called the *Columna Rostrata*, to commemorate the great event; fragments of the inscription still remain in the Capitoline Museum at Rome. And no doubt the triumph was signal. The honours conferred upon the conqueror cannot but give a pleasing impression of the simple manners then prevailing at Rome, especially when we contrast them with the cruelty of the Carthaginian government, who crucified their unfortunate admiral. To have defeated the Mistress of the Sea upon her own element in the first trial of strength was indeed remarkable.

The sea fight of Duilius was fought in the year 260 B.C. In the following years the Carthaginians were only able to act upon the defensive. Not only Agrigentum, but Camarina, Gela, Enna, Segesta, and many other cities had surrendered to the Romans. The Carthaginians were confined to their great trading marts, Drepana, Lilybæum, Eryx, and Panormus. They did not dare to meet the Romans in the field; yet these places were very strong, especially Lilybæum. Against its iron fortifications all the strength of Pyrrhus had been broken. It was not time yet for Carthage to despair.

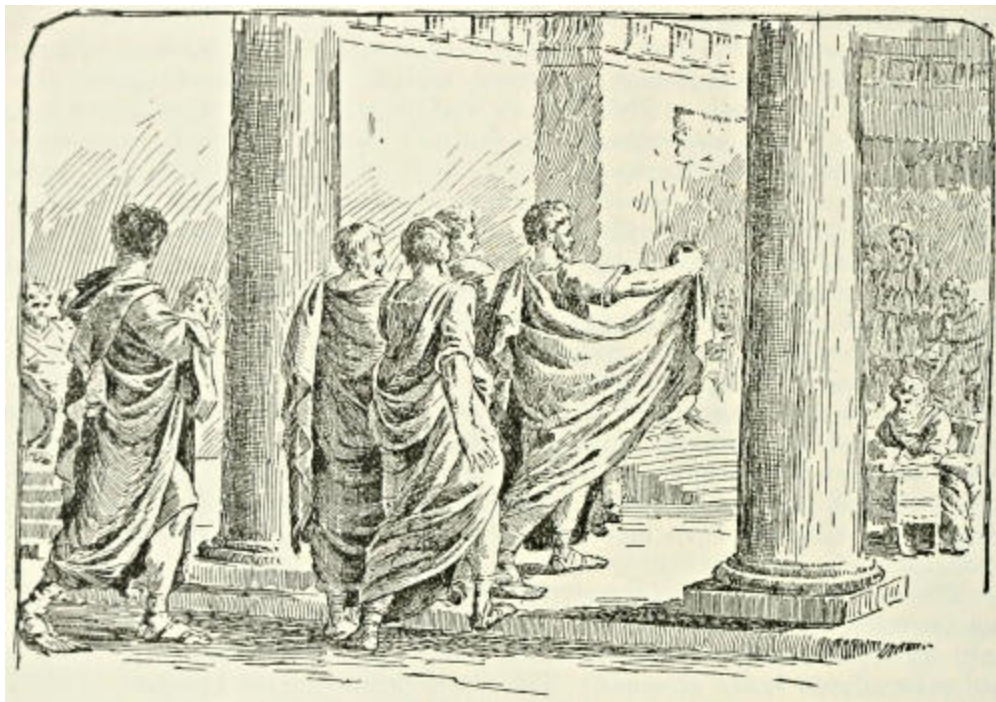
But in the eighth year of the war the senate determined on more decisive measures. They knew the weakness of the Carthaginians at home; they had a victorious fleet, and they determined not to let their fortune slumber.

SECOND PERIOD (256-250 B.C.)

[256-255 B.C.]

Duilius appears for a brief time as the hero of the first part of the war; but its second period is marked by the name of a man who has become famous as a patriot—M. Atilius Regulus. It was in the year 256, the eighth of the war,

that the consuls, M. Regulus and L. Manlius, sailed from Italy and doubled Cape Pachynus with a fleet of 330 quinqueremes. The Carthaginian fleet, even larger in number, had been stationed at Lilybæum to meet the enemy, whether they should approach from the north or from the east. They now put to sea, and sailed westwards along the southern coast of Sicily. They met the Roman fleet at a place called Ecnomus, a little more than halfway along that coast. The battle that ensued was the greatest that, up to that time, had ever been fought at sea; it is calculated that not fewer than 300,000 men were engaged. It was desperately contested on both sides; but at Ecnomus, again, we are astonished to find the Roman fleet victorious (256 B.C.).



ROMAN EMBASSY AT CARTHAGE

(After Mirys)

The way was now open to Africa. The consuls, after refitting and provisioning their fleet, sailed straight across to the Hermæan promontory, which is distant from the nearest point of Sicily not more than eighty miles. But the omens were not auspicious; the Roman soldiery went on board with gloomy forebodings of their fate; one of the tribunes refused to lead his legionaries into the ships, till Regulus ordered the lictors to seize him. The passage, however, was favoured by the wind. The consuls landed their men,

drew up the fleet on shore, and fortified it in a naval camp; and then, marching southwards, they took the city of Aspis or Clupea by assault. No Carthaginian army met them; every place they came near, except Utica, surrendered at discretion, for they were unfortified and defenceless. Carthage, being of old mistress of the sea, feared no invaders, and, like England, trusted for defence to her wooden walls. Yet she had not been unwarned. Sixty years before the adventurous Agathocles had landed like Regulus. Then, as now, the whole country lay like a garden before him, covered with wealthy towns and the luxurious villas of the Carthaginian merchants. Then two hundred towns or more had surrendered almost without stroke of sword. It appeared as if the same easy success now awaited Regulus and the Romans.

The consuls were advancing along the coast of the gulf towards Carthage, when Manlius was recalled with the greater part of the army, and Regulus was left in Africa with only fifteen thousand foot and five hundred horse. Yet even with this small force he remained master of the country. He had gone round the whole Gulf of Tunis as far as Utica, and now he turned upon his steps with the intention of marching upon the capital itself. On his way he was obliged to cross the river Bagradas, and here (so ran the legend) the army was stopped by a huge serpent, so strong and tough of skin that they were unable to destroy it, till they brought up their artillery of catapults and balists; he then continued his route southwards to the Bay of Carthage. He was allowed to take Tunis, which stood within twenty miles of Carthage. The great city was now reduced to the utmost straits. A Roman army was encamped within sight; famine stared the townsmen in the face; the government trembled. In this abject condition the council sent an embassy to ask what terms of peace Regulus would grant.

The consul was so elated by success, that he demanded the most extravagant concessions. The Carthaginians were to give up their fleet, pay all the expenses of the war, and cede all Sicily, with Sardinia, Corsica, and the Balearic Isles, to Rome. When these terms were reported, the government took care to publish them, and public indignation rose against the arrogant invaders. The civic force was not untrained to arms, and they had now to fight for their hearths and altars. A good general was sought for. At that time there happened to be at Carthage a soldier of fortune, by name Xanthippus, a Lacedæmonian. ^[49] This man had been heard to censure the

native generals, and to declare that the victories of the Romans were due, not to their own superior skill, but to the faults of their opponents. He was summoned before the council and desired to give reasons for his remarks. He did so; and, for a moment, the government, dismissing all jealousy, appointed this obscure foreigner general-in-chief. Xanthippus immediately drew together all the mercenaries he could find, and united them with the armed citizens; then, supported by a large body of elephants, he boldly took the field. The Romans were astonished; but they were too much accustomed to victory to hesitate about accepting battle. But they were both outnumbered and outgeneralled. Xanthippus gained a victory as easy as it was complete. Regulus himself was taken prisoner; only two thousand of his men succeeded in making good their retreat to Clupea.

Thus was Carthage delivered by the ability of one man, and that man a foreigner. The government did not improve in wisdom or generosity; their incapable generals resumed the command, and Xanthippus, loaded with honours and presents, prudently withdrew from the jealous city.

The Roman senate did their best to repair this great calamity. The new consuls were ordered to put to sea, and bring off the garrison and fugitives from Clupea. Near the Hermæan promontory they encountered the enemy's fleet, and again defeated it; and then, having taken up the ships and men at Clupea, they sailed for Syracuse. But a still greater disaster was in store for Rome than the destruction of her African army. This was the loss of that fleet of which she was justly proud. The time of year was about the beginning of the dog-days, when the Mediterranean is apt to be visited by sudden storms. The consuls, upon their passage, were warned that such a storm was at hand; but they were ignorant and rash, and continued their course. Before they could double Cape Pachynus they were caught by the tempest; almost the whole fleet was wrecked or foundered; the coast of Sicily from Camarina to Pachynus was strewn with fragments of ships and bodies of men. Such was the end of the first Roman fleet (255 B.C.).

[255-250 B.C.]

These successive disasters might well raise the hopes of Carthage, and they sent a considerable force into Sicily, with 140 elephants. Agrigentum is said to have been recovered, and no doubt it was expected that the whole island would once more become their own. But the Romans showed a spirit equal to the need. In three months' time (so wonderful was their energy) a new fleet of 220 sail was ready for sea. The consuls of the year 254 B.C., having touched at Messina to take up the remnants of the old fleet, passed onwards to Drepana. They could not take this strong place, but they were more successful at Panormus, the modern Palermo, which yielded after a short siege to the Roman arms. This was an important conquest.

Next year the fleet touched at several places on the African coast, but without making any impression on the country. Among the shoals and currents of the Lesser Syrtis it ran great danger of being lost; but having escaped this peril, the consuls returned to Panormus and thence stood straight across for the mouth of the Tiber. On the passage they were overtaken by another of those terrible storms, and again nearly the whole fleet was lost. Thus, within three years, the Romans lost two great fleets. This was enough to damp even their courage; and the senate determined to try whether it were not possible to keep their ground in Sicily without a navy. For the present they gave up all claim to the command of the sea, and limited themselves to a small fleet of sixty ships.

Matters continued in this state for two years. Neither party seemed willing to hazard a battle by land; but in 250 B.C. Hasdrubal, the Carthaginian general, was induced to march secretly from Lilybæum to Panormus, in the hope of surprising and recovering that important town. The Roman commandant was the proconsul L. Cæcilius Metellus. He allowed the enemy to approach the walls, and then suddenly sallied forth, covering his attack by a cloud of light troops, slingers, and javelin-men. Some of the elephants being wounded, carried confusion into their own ranks, and Metellus, seizing the occasion, charged the enemy and defeated them utterly. Besides thirteen Carthaginian generals, 120 elephants were taken and carried across the sea on strong rafts to adorn the triumph of the proconsul. The battle of Panormus was the greatest battle that was fought on land in the course of the war, and it was the last. In memory of this victory we find the elephant as a frequent device on the coins of the great family of the Metelli.^b We may well quote here Polybius' account both of the loss of the fleet in 255 and of this victory at Panormus or Palermo.

POLYBIUS' ACCOUNT OF ROMAN AFFAIRS^[50]

[255-251 B.C.]

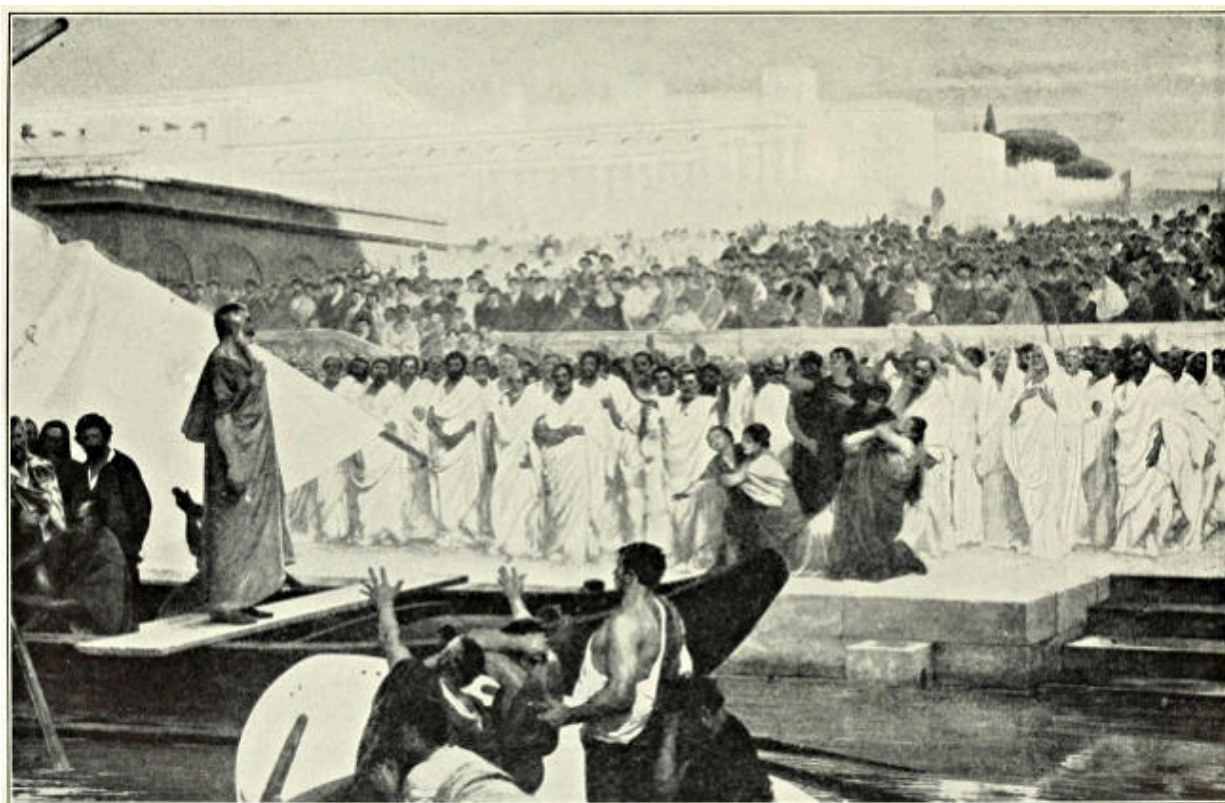
The *Romans* had made ready, early in the Spring, a Fleet of Three Hundred and Fifty Sail; and Embarking their Army under the Command of their new Consuls, *M. Æmilius*, and *Servius Fulvius*, and standing along the Coast of *Sicily* towards *Africa*, they met, and fought off of *Cape Mercury* with the *Carthaginian* Fleet, which was not able to sustain the first shock, but being entirely beaten, lost in the Engagement, an Hundred and Fourteen of their Vessels, and all that was in them, to the *Romans*; who afterwards prosecuting their course, arriv'd at *Aspis*; where taking their Men on Board that remain'd in *Africa*, they shap'd their Course back to *Sicily*. And being well advanc'd on their way, they were surpriz'd off of *Camarina* with so dreadful a Tempest, that the losses and hardships they sustain'd were without Example, and beyond Expression: So terrible it was, that of Three Hundred and Seventy odd Vessels that compos'd their Fleet, Fourscore only escap'd Shipwreck, the rest being either founder'd in the Sea, or were lost and broken against the Rocks, that whole Coast being cover'd with dead bodies, and strew'd with the Ruines and Fragments of their Ships, insomuch as History affords no Example of the like dreadful disaster. And yet it may be said, that this Calamity was not owing so much to Fortune, as to the obstinacy of the Consuls: For the Pilots endeavour'd to obviate the hazard they should be expos'd to by Navigating on that Coast of *Sicily*, which borders on the *African* Sea, there being there not only no Harbours to succour vessels in distress; but the Season too of the Year was now improper; for by observation of the rising and setting of *Orion* and the *Dog Star*, they compute and know the safe Seasons for Navigation. But the Consuls, contemning their Counsel, stood boldly out to Sea, in hopes that after this signal Victory, their appearing suddenly on the Coast, might terrify many Towns, and awe them to submission: But their folly was chastis'd by this memorable loss, which they sustain'd upon a motive much too little for the hazard. The *Romans* have indeed this inflexibility of Mind peculiar to them, believing that whatsoever they have resolv'd and determin'd to undertake, ought to be indispensably perform'd; and they have establish'd it into a Principle, that what they once have decreed to execute, cannot be impossible to bring to pass: The effect, indeed, of a generous obstinacy, but the cause oftentimes of their falling into pernicious Errors and Misfortunes, and their sustaining unspeakable losses, especially in their Naval Expeditions. As to their Exploits by Land, where the Encounter is only Man to Man, their Courage frequently conducts them to the Success they propose, by reason their adventures are with Men like themselves; and yet there want not

Examples wherein their Measures and Forces have fail'd, and they have sunk and miscarry'd under the weight of their Enterprises. But whenever, by a temerarious Audacity, they act against these raging Elements, and attempt to vanquish the Sea and Wind, they are sure to reap no other fruit of their Obstinacy, than Loss and Calamity. This we have now mentioned, is an instance, and they have heretofore smarted by the like Errors; and they shall always stand liable to the same disasters, till they appear better advis'd and instructed in the weakness of that overweening Presumption, which they are apt to entertain in all their Designs, vainly imagining, that both Sea and Land should on all occasions consent and open their way to Success in all their Enterprises.

The *Carthaginians*, upon advice of this Misfortune of the *Romans* at Sea, were of Opinion, that they should now be a match for them by Land, whereunto they were perswaded through the late Victory they had gain'd. That they should be equal to them likewise by Sea, they had no doubt, by reason of their late great loss by Tempest; howbeit they omitted not to reinforce their Strength both by Sea and Land. They dispatch'd *Hasdrubal* into *Sicily*, to whom, besides the Forces already there, they order'd a farther supply of Troops out of those that were lately drawn out of *Heraclea*, together with an Hundred and Forty Elephants: He was no sooner departed, but they sent after him Two Hundred Vessels laden with all things necessary for the Service of the War. *Hasdrubal*, being safely arriv'd at *Lilybæum*, apply'd himself with diligence to Exercise and Discipline his Troops and his Elephants, intending to spread his Army all over the Country, and to make himself entire Master of the Field. As for the *Romans*, they were not without a very sensible sorrow, when by those who had escap'd Shipwreck, they receiv'd an account of the mighty loss they had sustain'd at Sea; nevertheless, being determin'd not to yield the Advantage to the Enemy, they order'd a new Fleet to be speedily built, to consist of Two Hundred and Twenty Sail; which Fleet (a wonderful and incredible thing to relate) was compleatly built and finish'd in the space of three Months; on which the new Consuls, *Aulus Atilius*, and *C. Cornelius* speedily Embark'd; who, after having pass'd the *Streight*, and touch'd at *Messina*, to take with them the Vessels that had been sav'd in the late Storm, shap'd their Course for *Palermo* with a Naval Army consisting of Three Hundred Sail, and forthwith sat down and besieg'd that place, which then was the Capital City of the *Carthaginians* in *Sicily*. They made their Attacks in two several places, and when their Works were advanc'd to their Minds, they approach'd with their Engines of Battery, by which, a Tower or Work standing near the Sea, was quickly, and without much trouble, demolish'd; at which breach the Souldiers enter'd, and took by Assault, and

kept Possession of that quarter of the City call'd the *New Town*, whereby the place it self was put into manifest danger; but the Inhabitants coming seasonably in to the Relief, they advanc'd no farther; so the Consuls, after they had put a good Garrison into the place they had taken, return'd back to *Rome*. Early the next Summer the new Consuls, *C. Servilius*, and *C. Sempronius*, sail'd over to *Sicily* with all their Naval Power, and from thence, soon after, stood for the Coast of *Africk*, where they made several Descents, but perform'd nothing of moment; at length arriving at the Island of the *Lotophagy*, which is likewise call'd *Meninx*, not far distant from the *lesser Syrtis*, or *Flatts*; here being unacquainted with the Coast, their Fleet fell among the Sands, where their Vessels grounded, and stuck fast, as if they had been a-shoar, and there remain'd till the Flood fetch'd them off; when with great difficulty and hazard, throwing their Lumber over-board, they made a shift to escape. From thence, like People flying from an Enemy, they stood away for the Coast of *Sicily*; and after they had doubl'd the Cape of *Lilybæum* they got into the Port of *Palermo*. But from thence steering their Course homeward, a Storm took them in the *Phare* of *Messina*, where, by a blind Obstinacy they were imbay'd, which Storm attack'd them with such violence, that above an Hundred and Fifty of their Ships miscarry'd. Things happening thus adverse to them by Sea, tho' the Senate and People could not subdue their Thirst of Glory and Empire, nevertheless their Losses and Calamities, and the straits to which they were now reduc'd, prevail'd with them to quit all farther attempts of trying their Fortune by Sea; so they now totally abandon'd all thoughts of Naval Preparations. And determining to rely solely on their Land Armies, they dispatch'd the Consuls, *L. Cæcilius*, and *Cn. Furius* to *Sicily* with the Legions, alotting them only about Threescore Vessels whereon securely to Embark and waft over the Army, their Baggage and Amunition. These Misfortunes of the *Romans* much augmented the *Carthaginian* Glory and Fame in the World, and gave a new Face to their Affairs. In a word, as the *Romans* had now yielded them up the Dominion of the Sea, it was no difficulty for them to be entirely Masters there; nor were they without hopes of succeeding in their Affairs by Land; nor did they reckon very wide of the matter, for from the time of the defeat of the *Roman* Army, by the assistance of the Elephants, which discompos'd and broke their Ranks in the Battel fought in *Africk*, where those Animals made such destruction of their People, the Souldiers became so terribly aw'd, that tho' they had been on several occasions drawn up in Battalia to ingage within five or six Furlongs of the *Carthaginian* Army; sometimes in the Territory of *Selinunce*, sometimes about *Lilybæum*, yet for the space of two Years together they wanted Resolution to ingage them, or to adventure to abide in the Champain Country, so great a

dread they had conceiv'd of the Fury and Shock of those stupendious beasts: So that little or no Progress was made in their Affairs during all that space, saving the taking of *Lipary* and *Thermes*, the Army continuing Coopt up in the Mountains, and Inaccessible Places. Wherefore the *Romans*, observing this Terroure among their Legions, took a Resolution once more, to tempt their Fortune by Sea: Accordingly upon the Creation of *C. Atilius* and *L. Manlius* Consuls, they Order'd the Building of Fifty Vessels, and Levies of men for that Service; and now they had a Navy once again establish'd.



REGULUS' DEPARTURE FOR CARTHAGE

[251-250 B.C.]

Hasdrubal having observ'd this dread that possess'd the *Roman* Army, when ever he presented them Battel, and having Intelligence that one of the Consuls was now return'd back to *Rome*, and one half of the Army with him; and that *Cæcilius* with the rest of the Troops was at *Palermo*, Assisting their Allies in gathering in their Harvest, their Corn being now Ripe; he March'd out of *Lilybæum* with his Troops, and came and Incamp'd on the Borders of the Territory of *Palermo*. *Cæcilius* observing this weak Proceeding of the *Carthaginian*, kept his People within the Walls of the Town, thereby to ingage him to Advance nearer, which *Hasdrubal* accordingly did, perswaded thereto by the shew of fear the *Romans*

were under, and imagining that *Cæcilius* had not the Resolution to appear in the Field, he rashly adventur'd his Army into a narrow Straight: and albeit he wasted the Country to the very Walls of *Palermo*, *Cæcilius* nevertheless held his first determination, not to move till the Enemy had pass'd the River that runs close by the Town. When, in short, after the Elephants and the whole Army had got over, he Order'd some of his light Arm'd Souldiers, to advance out against them to Pickeer, and draw them the more boldly on. And observing all things to Succeed as he had projected, he Posted a Body of select and skilful Souldiers upon the Counterscarp of the Town, with Orders that if the Elephants advanc'd upon them, to Attack them with Darts and Missive Weapons, and in case they should be press'd by those Animals, that they should then retire into the Ditch; and from thence gall and molest them all they could. He Order'd the Towns People at the same time to furnish themselves with great quantities of Darts, and Post themselves without the Town at the Foot of the Walls, and there abide in a Posture of Defence. *Cæcilius* himself with all his troops remain'd in readiness at a certain Gate of the Town, that was oppos'd to the Right Wing of the Enemy, from whence he sustain'd the Troops with fresh Supplies of men, who were already Ingaged. In a Word, the Battel began now to grow warm, and the Leaders of the Elephants being resolv'd to be sharers with *Hasdrubal* in the Honour of the day, proceeding as if they design'd the Victory should be wholly owing to them, advanc'd all in Order upon the *Romans*, whom they soon forc'd to give Ground and retire into the Ditch. But now the Elephants, smarting with the Wounds they had receiv'd, and vex'd with the Darts wherewith they were gall'd both from the Ditch and the Walls of the Town, began to grow unruly, fell upon their own People, and destroy'd many, and put their Troops in disorder. This being observ'd by *Cæcilius* he forthwith Salli'd out with his Troops fresh and in good Order, and attacking the Enemy in Flank, who were already in Confusion, slew many, and put the rest of the Army to Flight. Ten Elephants were then taken with the *Indians* their Guides, and others who had lost their Leaders fell likewise into their Hands after the Battel. The happy Issue of this Action got *Cæcilius* the Reputation every where of having Restor'd the *Roman* Courage by Land, to Attempt Incamping in the open and plain Country, and to know how to behave themselves well again out of their Retrenchments. There was great joy at *Rome* upon the Arrival of the News of this Defeat, not so much on account of the Elephants which had been taken, tho' it was a very sensible blow to the Enemy, but because the taking of those Animals, and the Victory obtain'd against them, had restor'd the Souldiers Resolution. Wherefore they determin'd once again, as had been propos'd (to the end they might at any rate put a Period to this War) to Dispatch the Consuls away with a new Navy. And

when all things were in readiness for the Expedition, they departed for *Sicily* with a Fleet of Two Hundred Sail, it being now the Fourteenth Year of the First Punic War.^d

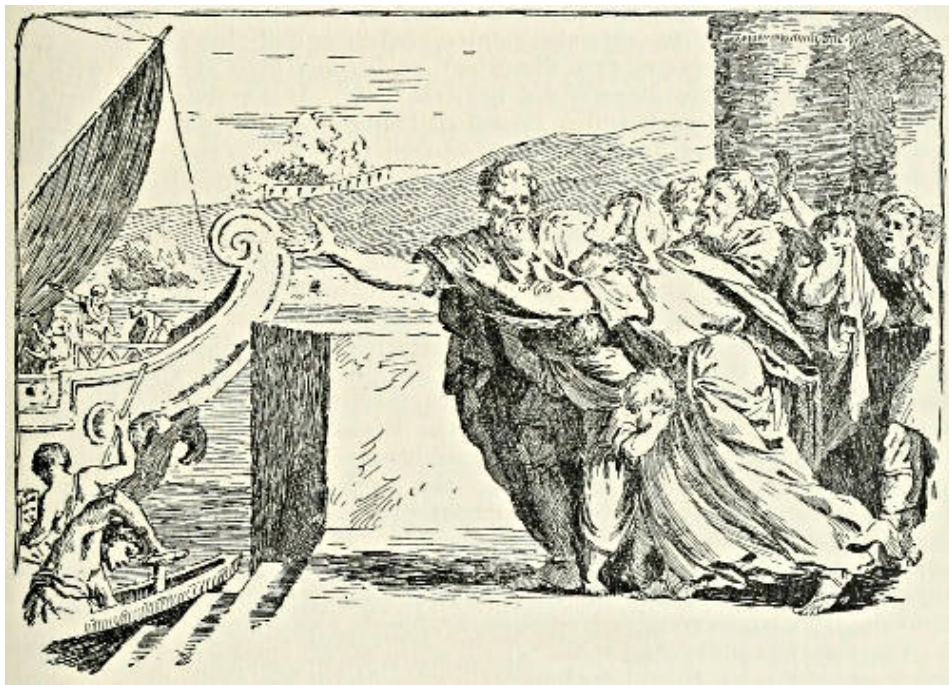
[250-249 B.C.]

After the battle of Panormus, the hopes of the Romans rose again, and the senate gave orders to build a third fleet of two hundred sail. But the Carthaginians, weary of the expenses of the war, and suffering greatly in their commerce, thought that a fair opportunity for making peace was now offered. The Romans had not so entirely recovered from their late disasters, but that they might be glad to listen to fair terms. Accordingly an embassy was despatched to offer an exchange of prisoners and to propose terms on which a peace might be concluded. Regulus (according to the well-known story) accompanied this embassy, under promise to return to Carthage if the purposes of the embassy should fail. When he arrived at Rome he refused to enter the walls and take his place in the senate, as being no longer a citizen or a senator. Then the senate sent certain of their own number to confer with him in presence of the ambassadors, and the counsel which he gave confirmed the wavering minds of the fathers. "Useless it was," he said, "to ransom prisoners who had ignobly yielded with arms in their hands: let them be left to perish unheeded; let war go on till Carthage be subdued." His counsel prevailed, and the embassy returned without effect. Regulus also returned to suffer the vengeance of the Carthaginians. Every one knows the horrid tortures by which it is said that life was taken from him; how his eyelids were cut off; how he was placed in a barrel stuck full of nails, with one end knocked out; and how he was exposed to the unmitigated glare of an African sun, to die by the slow agonies of pain, and thirst, and fever.

Regulus was a man of the old Roman kind, like Curius and Fabricius, devoted to his country, eager for glory, frugal, bold, resolute or (call it) stubborn. He has been censured for excessive presumptuousness in his African campaign, and for the extravagance by which he lost all the advantages which he might have secured. But it must be allowed that he had some grounds even for overweening confidence. Ever since the two nations had met in arms, the star of Carthage had grown dim before that of Rome. Even on the sea, where her navies had long ridden triumphant, the Queen of the Mediterranean had twice been beaten by her unskilled rival. There was enough to make more sagacious men than Regulus believe that Carthage was well-nigh powerless against Rome. The Romans had yet to learn that when the jealous government of Carthage allowed great generals to command their armies, such as

Xanthippus, and Hamilcar, and Hannibal, then the well-trained mercenaries might gain easy victories over their own brave but less practised citizens.

The whole story of the embassy and death of Regulus has been doubted, chiefly because of the silence of Polybius, the most authentic historian of the time; and from the certainty that at least one mythical marvel has been introduced into the narrative. But if allowance be made for some patriotic exaggeration, there is nothing improbable in the story. Those who crucified their own unlucky generals would not be slow to wreak any measure of vengeance on a recusant prisoner. We read also that the Romans retaliated by torturing some Carthaginian prisoners, and this fact can hardly be an invention. At all events, the personal qualities of Regulus rest too firmly on old tradition to be questioned. While we read the beautiful passage in which Cicero describes his disinterested patriotism; while we repeat the noble ode, in which Horace paints him as putting aside all who would have persuaded him to stay—people, friends, and family—and going forth to torture and death with the same serene indifference as if he were leaving the busy life of Rome for the calm retirement of his country house, so long will the blood flow more quickly and the heart beat higher at mention of the name of Regulus.^b



REGULUS RETURNS TO CARTHAGE

(After Mirys)

Of Regulus, Niebuhr writes rather sharply: Few events in Roman history are more celebrated than this embassy and the martyrdom of Regulus, which have been sung by Roman poets and extolled by orators. Who does not know that Regulus, as a slave of the Carthaginians, refused to enter the city; that he attended the deliberations of the senate with their sanction, and rejected the exchange no less vehemently than the peace; that he confirmed the wavering fathers in their resolution; that he preferred his honour and his oath to all the enticements to remain behind; and that, in order to remove the temptation, he pretended that a slow poison had been administered him by Punic faithlessness, which would soon end his days, even if the senate, less mindful of the country than of the individual, should wish to retain him by exchange or protection; how he withdrew from the embraces of his friends as a dishonoured man, and after his return to Carthage was put to death by diabolical tortures?

Palmerius^g was the first who attacked this account after the Valesian extracts from Diodorus^h had become known, and his reasons have been strengthened by Beaufortⁱ with very appropriate arguments besides. But Beaufort has perhaps carried his scepticism too far in doubting, and in reality rejecting, the truth of the embassy on account of the silence of Polybius.

Neither of these writers has mentioned, which is of great importance, that Dion Cassius^j declared the martyrdom of Regulus to be a mere fable, although he repeated it. He also related that after Regulus had fallen into captivity, his sleep was at first disturbed, as he was kept shut up with an elephant, but that this cruelty did not last long. It may be accounted for, and even pardoned, as Regulus forgot all human feelings towards Carthage when it had fallen and implored his compassion; and it is not unlikely that this account may have given rise to the more widely extended one respecting the mode of his death.

It is most probable that the death of Regulus happened in the course of nature; and it is very possible that the cruel maltreatment of the Punic prisoners, respecting whom it is certain, even according to Roman testimonies, that they were surrendered to the family as hostages or for revenge, has become the occasion of the prevailing narrative through that unpardonable calumny which the Romans constantly indulged in against Carthage. It seems most credible that Hasdrubal and Bostar were given as hostages, because Regulus actually believed, and the Romans shared his opinion, that he was secretly poisoned. But with an unbiassed judgment we must regard the narrative of Diodorus respecting the perfectly inhuman fury of the family of Regulus against these innocent prisoners to be no less doubtful than the Roman one; since it is quite

certain that no Roman recorded this disgrace to his nation, and here, as well as elsewhere, Philinus must be regarded as the source of Diodorus, whose hatred against Rome is very pardonable, but always renders his testimony highly suspicious.

For the rest, if this deed of Regulus had not been praised to us in early years as heroic, we should without prejudice find it less brilliant. That he went back because he had sworn, was an act which, if he had not done it, would have been branded with infamy. If he had reason to fear, it was a consequence of the shameful abuse which he himself had made of his victory, inasmuch as he only knew how to use it as a mere child of fortune, and in a way inferior to most of the generals who were his contemporaries.^e

THIRD PERIOD (249-241 B.C.)

[249-244 B.C.]

It has been said that the senate, encouraged by the victory of Panormus, resolved once more to attempt the sea. In the year 249 B.C. the third fleet was ready, and its purpose soon became evident. The consuls were ordered to invest Lilybæum, the queen of Carthaginian fortresses, both by sea and land. If this strong place fell, the Carthaginians would have no firm hold on Sicily: but it could not be taken unless it were blockaded by sea, for by sea supplies could be poured into it from Carthage. The Romans began the siege with activity; they constructed enormous works, they endeavoured to throw a dam across the harbour, but in vain. The skilful seamen of Carthage contrived to carry provision ships into the harbour through the midst of the Roman fleet. Their navy lay at hand in the Bay of Drepana, ready to take advantage of any remissness on the part of the Romans.

Yet the invincible perseverance of the Romans would have prevailed but for the headstrong folly of the patrician consul for the year 249 B.C. This was P. Claudius, a younger son of the old censor, brother of him who had relieved Messana. As he lay before Lilybæum, he formed a plan for surprising the enemy's fleet at Drepana, and left his station for this purpose. In vain he was warned by the pullarii, that the sacred chickens would not feed. "Then let them drink," said the irreverent commander, and threw them into the sea. But the men were much dispirited by the omen and the contempt of the omen. And the consul had managed matters with so little secrecy and skill that the enemy were informed of his intended attack. As the Romans sailed in column into the harbour, the Carthaginian fleet was seen sailing outward. But on a sudden they

tacked and bore down upon the side of the Roman column. Of Claudius' 220 ships, only thirty escaped.

The reckless consul was recalled to Rome by the senate, and ordered to supersede himself by naming a dictator. With the old insolence of his family, he named the son of one of his own freedmen, by name Claudius Glycias. But the senate set aside the nomination, and themselves appointed A. Atilius Calatinus, also called Serranus. What became of Claudius we know not. But he was dead three years after; for a story is preserved, that at that time his sister insolently expressed a wish that he were still alive, that he might lose more men, and make the streets less crowded. She was heavily fined for this speech; and if words deserve punishment, none deserved it more than hers.

The loss of the fleet of Claudius was not the only disaster of the year. L. Junius, his plebeian colleague, was less guilty, but even more unfortunate. He was convoying a large fleet of ships, freighted with supplies for the forces at Lilybæum, when, near Camarina, he was overtaken by a tremendous hurricane, and both the convoy and the convoying squadron perished. The destruction was so complete, that every single ship was broken up, and not a plank (says Polybius) was fit to be used again.

Thus by the folly of one consul and the misfortune of the other, the Romans lost their entire fleet for the third time. It seemed to them as if the god of the sea was jealous of these new pretenders to his favour.

These disasters left the Carthaginians once more masters of the sea. And at the same time a really great man was appointed to a command in Sicily. This was Hamilcar, the father of Hannibal. He seems not to have had many ships or troops at his command; but the skill with which he used his means abundantly shows what might have been done if the government had trusted him more completely. He made continual descents on the coast of Italy, plundering and alarming. Before long he landed suddenly near Panormus, and in the face of the Roman commandant seized a hill called Hercta, which overhung the town (the same with the modern Monte Pelegrino). Here he fortified himself; and hence he carried on a continual predatory warfare against the Romans for the space of three years. After this, by an equally sudden movement, he made a descent on Eryx, which had been taken by the Romans not long before, and surprised it. To this place he now shifted his quarters, and continued the same harassing attacks.

[243-241 B.C.]

Except for this, matters were at a standstill. The whole strength of the Romans was concentrated in the lines of Lilybæum; but they had no fleet now, and therefore the

place was fully supplied from the sea. On the other hand the activity of Hamilcar kept the enemy always in alarm. Slight actions constantly took place; and an anecdote is told by Diodorus, which sets the character of Hamilcar in a pleasing light. In a skirmish with the Roman consul, C. Fundanius, he had suffered some loss, and sent (according to custom) to demand a truce, that he might bury his dead. But the consul insolently replied that he ought to concern himself about the living rather than the dead, and save further bloodshed by surrendering at once. Soon after it was Hamilcar's turn to defeat the Romans, and when their commander sent for leave to bury their dead, the Carthaginian general at once granted it, saying that he "warred not with the dead, but with the living."

These interminable hostilities convinced the senate that they must once more build a fleet, or give up all hopes of driving the Carthaginians out of Sicily. Lilybæum would foil all their efforts, as it had foiled the efforts of Pyrrhus. The siege had now lasted eight years, from 250 to 241 B.C., and it appeared no nearer its conclusion than at first. All sacrifices must be made. A fleet must be built. And it was built. At the beginning of the year 241 B.C., the patrician consul, C. Lutatius Catulus, put to sea with more than two hundred sail. This was the fourth navy which the Romans had created. It is impossible not to admire this iron determination; impossible not to feel satisfaction at seeing it rewarded.

The consul, with his new fleet, sailed early in the year, and blockaded Drepana by sea and land, hoping to deprive the Carthaginians of the harbour in which their fleet lay to watch the Romans at Lilybæum. He also took great pains to train his seamen in naval tactics. In an action which took place at Drepana he was severely wounded.

On the other hand the Carthaginians had of late neglected their navy; and it was not till early in the following year (241) that a fleet was despatched to the relief of Drepana. It was heavily freighted with provisions and stores. Hanno, its commander, touched at Hieria, a small island, about twenty or twenty-five miles from the port of Drepana. Of this (it appears) Catulus was informed, and, though still suffering from his wound, he at once put to sea, hoping to intercept the enemy before they unloaded their ships. On the evening of the 9th of March he lay to at Ægusa, another small island, not above ten miles distant from Hieria. Next morning the Carthaginians put to sea and endeavoured to run into Drepana. But they were intercepted by the Roman fleet, and obliged to give battle. They fought under great disadvantages, and the Romans gained an easy victory. Fifty of the enemy's ships were sunk, seventy taken; the rest escaped to Hieria.

This battle, called the battle of the Ægatian Islands (for that was the general name of the group), decided the war. It was plain that Lilybæum must now surrender; and that though Hamilcar might yet stand at bay, he could not recover Sicily for the present. The merchants of Carthage were eager for the conclusion of the war; and the government sent orders to Hamilcar to make a peace on the best terms he could obtain. Catulus at first required, as a preliminary to all negotiations, that Hamilcar should lay down his arms, and give up all Roman deserters in his service. But when the Carthaginians disdainfully refused this condition, the consul prudently waived it, and a treaty was finally agreed on by the two commanders to the following effect—that the Carthaginians should evacuate Sicily; should give up all Roman prisoners without ransom; and should pay twenty-two hundred talents in twenty years towards the expenses of the war. But the Roman tribes refused to ratify the treaty without inquiry. Accordingly the senate sent over ten envoys, who confirmed the treaty of Catulus, except that they raised the sum to thirty-two hundred talents, and required this larger sum to be paid in ten years, instead of twenty. They also insisted on the cession of all the small islands between Italy and Sicily.

Thus ended the First Punic War. The issue of this long struggle was altogether in favour of Rome. She had performed few brilliant exploits; she had sent few eminent men to conduct the war; but she had done great things. She had beaten the Mistress of the Sea upon her own element. She had gained possession of an island nearly twice as large as Yorkshire, and fertile beyond the example of other lands. Her losses, indeed, had been enormous; for she had lost seven hundred ships, a vast number of men, and large sums of money. But Carthage had suffered still more. For though she had lost not more than five hundred ships, yet the interruption to her trade, and the loss of her great commercial emporiums of Lilybæum and Drepana, not only crippled the resources of the state, but largely diminished the fortunes of every individual citizen. The Romans and Italians, who fought in this war, were mostly agricultural; and the losses of such a people are small, and soon repaired, while those suffered by a great commercial state are often irreparable.

This war was only the prelude to a more fierce and deadly contest. Carthage had withdrawn discomfited from Sicily, and her empty treasury and ruined trade forbade her to continue the conflict at that time. But it was not yet decided whether Rome or Carthage was to rule the coasts of the Mediterranean. The great Hamilcar left Eryx without despair. He foresaw that by patience and

prudence he might shake off the control of his jealous government, and train up an army in his own interest, with which he might defy the Roman legions.

EVENTS BETWEEN THE FIRST AND SECOND PUNIC WARS

[241-218 B.C.]

The First Punic War lasted three-and-twenty years; and the interval between the end of this war and the beginning of the next was of nearly the same duration. In the course of this period (from 240 to 218 B.C.) both Rome and Carthage, notwithstanding their exhausted condition, were involved in perilous wars. In the next three years Carthage was brought to the very brink of destruction by a general mutiny of her mercenary troops, which had been employed in Sicily, and were now to be disbanded. Their leaders were Spendius, a runaway Campanian slave, who feared to be given up to the Romans, and Matho, a Libyan, who had been too forward in urging the demands of the army for their pay, to hope for forgiveness from the Carthaginian government. Led on by these desperadoes, the soldiers gave full vent to their ferocity; they seized Gisco, who had been sent to treat with them, as a hostage; plundered the country round about; raised the subject Africans in rebellion; besieged the fortified towns of Utica and Hippo; and cut off all communication by land with the promontory upon which Carthage stands. At the end of the second year, however, Hamilcar, being invested with the command of the civic forces, reduced Spendius to such extremities that he surrendered at discretion, and compelled Matho to shut himself up in Tunis.

[240-235 B.C.]

The spirit of the insurgents was now quite broken, and they would fain have given in. But Matho and his officers were fighting with halts round their necks, and whenever any one attempted to persuade peaceful measures, a knot of the more violent cried him down; and thus, as usually happens in popular commotions, the real wishes of the greater part were drowned in the loud vociferations of a few bold and resolute desperadoes. What made the task of these men easier was that the army was composed of a great many different nations; and the soldiers, not being able to understand one another, could not so readily combine against their leaders. Almost the only word which was understood by all, was the terrible cry of "Stone him, stone him!" which was raised by the leading insurgents, whenever any one rose to advocate peace, and was re-echoed by the mass in ignorance or fear. But Hamilcar maintained a strict blockade, and the insurgents in Tunis were reduced to such extremities of famine that Matho was

obliged to risk a battle. He was utterly defeated, taken prisoner, and put to death. Thus terminated this terrible war, which had lasted more than three years and four months, and at one time threatened the very existence of Carthage. It was known by the name of the War without Truce, or the Inexpiable War.

The forbearance shown by the Romans to Carthage during this fearful war makes their conduct at its close the more surprising. The mercenary troops in Sardinia had mutinied after the example of their brethren, and had taken possession of the island. After the close of the war in Africa these insurgents, fearing that their turn was come, put themselves under Roman protection; and their prayer for aid, like that of the Mamertines, was granted. The senate had the effrontery not only to demand the cession of Sardinia and Corsica, but also the payment of a further sum of twelve hundred talents. The Carthaginians were too weak to refuse; not even Hamilcar could have counselled them to do so. But this ungenerous conduct strengthened Hamilcar's grim resolve, to take full vengeance on the grasping Italian republic.

To execute this resolve it was necessary for him to obtain an independent authority, so as to form armies and carry on campaigns, without being fettered by the orders of the narrow-minded government. And now seemed the time to obtain this authority. Hanno and the leading members of the council had long been jealous of the family of Barca, of which Hamilcar was the chief. Hamilcar's fame and popularity were now so high that it was possible he might overthrow the power of the council of One Hundred. It was, therefore, with pleasure that they received his proposal to reduce Spain under the Carthaginian power. Carthage already had settlements in the south of Spain, and the old trading city of Gades was in alliance with her. But the rest of the country was peopled by wild and savage tribes, who could not be conquered in a day. But, before we trace the consequences of this extension of Carthaginian power in Spain, the affairs of Rome and Italy claim our attention.

During the Mercenary War in Africa, the Romans had remained at peace; and so profound was the general tranquillity in the year 235 B.C., that the temple of Janus was closed by the consul Manlius Torquatus, for the first time (say the annals) since the reign of Numa. In the last year of the First Punic War, the lower Sabine country had been formed into two tribes—the Veline and the Quirine. Thus the number of thirty-five was completed, and no addition was hereafter made to the Roman territory.



THE MASSACRE OF THE INSURGENTS BY HAMILCAR

This tranquillity was of no long duration. The success of their arms in Sicily, and their newly acquired maritime power, encouraged the Romans to cross the Adriatic, not so much for the purpose of advancing their own dominion as to render a service to all who frequented these seas for the purposes of traffic. The far side of the Adriatic, then called Illyricum, consists of a narrow ledge of coast land flanked by parallel mountain chains. Many islands appear off the shore, and several large creeks afford safe anchorage for ships. These natural advantages made the Illyrians of the coast skilful seamen. Their light barks (lembi) issued from behind the islands or out of the creeks, and practised piracy on their neighbours. Their main stronghold was Scodra (Scutari). In 231 B.C., Teuta, a woman of bold and masculine spirit, became chief of this piratical race during the infancy of her son Pinnes, and in 230 B.C. had made herself supreme over all the islands except Issa, which she blockaded in person in that year. The senate had not hitherto found leisure to check the progress of these pirates. But in the year just named, they sent C. and L. Coruncanius as envoys to

remonstrate with Teuta. But Teuta was little disposed to listen to remonstrance. It was not, she said, customary for the chiefs of Illyricum to prevent their subjects from making use of the sea. The younger Coruncanius, indignant at this avowal of national piracy, replied that if such were the institutions of the Illyrians, the Romans would lose no time in helping her to mend them. Exasperated by this sarcasm, Teuta ordered the envoys to be pursued and the younger one to be put to death. The Romans at once declared war against the Illyrians.

[235-229 B.C.]

After the surrender of Issa, the Illyrian queen pursued her success by the capture not only of Dyrrhachium, but also of Corcyra; and Demetrius, a clever and unscrupulous Greek of Pharos (a place on the coast of upper Illyricum), the chief counsellor of Teuta, was made governor of this famous island. The Epirots now sent ambassadors to crave protection from Rome; and the senate gladly took advantage of this opening. Early in the next spring both consuls appeared at Corcyra with a powerful fleet and army. Demetrius quickly discerned to which side fortune would incline, and surrendered Corcyra to the Romans without a blow. This treachery paralysed Teuta's spirit; and Demetrius enabled the Roman commanders to overpower her forces with little trouble. She was obliged to surrender the greater part of her dominions to the traitor, who now became chief of Corcyra and southern Illyricum, under the protection of Rome. The Illyrians were not to appear south of Lissus with more than two barks at a time.

The suppression of Illyrian piracy was even more advantageous to the commerce of Greece than that of Rome. The leading men of the senate began, even at this time, to show a strong disposition to win the good opinion of the Greeks, who, degenerate as they were, were still held to be the centre of civilisation and the dispensers of fame. Postumius the consul, therefore, sent envoys to various Greek states to explain the appearance of a Roman force in those quarters. They were received with high distinction. The Athenians and Corinthians, especially, paid honour to Rome; and the latter people recognised her Greek descent by voting that her citizens should be admitted to the Isthmian games (228 B.C.). This short war was scarcely ended, when Rome saw a conflict impending, which filled her with alarm.

It will be remembered that just before the war with Pyrrhus, the Senonian Gauls had been extirpated, and the Boians defeated with great slaughter in two battles near Lake Vadimo in Etruria (283 B.C.). From that time the Gauls had remained quiet within their own boundaries. But in 232 B.C., the tribune C.

Flaminius, a man who will hereafter claim more special notice, proposed to distribute all the public land held by Rome on the Picenian and Umbrian coasts to a number of poor citizens; a law which was put into effect four years afterwards. When the colonies of Sena Gallica and Ariminum had been planted on that same coast, the Boians were too much weakened by their late defeats to offer any opposition. But in two generations their strength was recruited, and they were encouraged to rise against Rome by the promised support of the Insubrians, a powerful tribe who occupied the trans-Padane district about Milan. The arrival of large bodies of Gauls from beyond the Alps completed their determination, and increased the terror which the recollections of the Allia still wrought upon the Roman mind. Report exaggerated the truth, and the Romans made larger preparations for this Gallic war than they had made against Pyrrhus or the Carthaginians. Active preparations were seconded by superstitious rites. The Sibylline books were consulted, and in them it was found written that the soil of Rome must be twice occupied by a foreign foe. To fulfil this prediction, the government barbarously ordered a Gaulish man and woman, together with a Greek woman, to be buried alive in the Forum.



STANDARD BEARER

[229-223 B.C.]

The campaign opened in northern Etruria. The Gauls crossed the Apennines into the vale of the Arno and fell suddenly upon the prætor stationed with an army at Fæsulæ. Him they overpowered, and defeated with great slaughter. The consul Æmilius now, with great promptitude, crossed the Umbrian hills into Etruria; and on his approach the Gauls retired northwards along the coast, wishing to secure their booty; while Æmilius hung upon their rear, without venturing to engage in a general action. But near Pisa they found that the other consul, Atilius, had landed from Sardinia; and thus hemmed in by two consular armies, they were obliged to give battle at a place called Telamon. The conflict was desperate; but the Romans were better armed and better disciplined than of old, while the Gauls had remained stationary. Their large heavy broadswords, forged of ill-tempered iron, bent at the first blow, and while they stooped to straighten them with the foot, they were full exposed to the thrust of the short Roman sword. The victory of Telamon was as signal as that of Sentinum or of Vadimo (225 B.C.).

The consuls of the next year (224 B.C.) again invaded the Boian country, and received the complete submission of all the tribes on the left bank of the Po. In the following year C. Flaminius, the reputed cause of the war, was consul, and pushed across the Po, with the resolution of punishing the Insubrians (Milanese) for the part they had taken in the invasion of Etruria. The place at which he crossed the great river was somewhere above Mantua; and here he formed a league with the Cenomani, who were at deadly feud with the Insubrians. Assisted by these auxiliaries, he moved westward across the Adda, the boundary of the Insubrian district. At this moment Flaminius received despatches from the senate, forbidding him to invade the Insubrian country. But he laid them aside unopened, and at once gave battle to the enemy. He gained a signal victory; and then, opening the despatches, he laughed at the caution of the senate.

During the winter the Insubrians sued for peace; but the new consuls, Cn. Cornelius Scipio and M. Claudius Marcellus, afterwards so celebrated, persuaded the senate to undertake a fourth campaign. The consuls both marched north, and entered the Insubrian territory. But Marcellus, hearing that Viridomarus, the Insubrian chief, had crossed the Po to ravage the country lately occupied by the Romans, left his colleague to reduce the principal towns of the Insubrians, while he pursued the chief with his army. He came up with him near Clastidium, and attacked him with his cavalry alone. A smart action ensued, in which Marcellus encountered Viridomarus, and slew him with his own hand; and the Gauls fled in disorder. Thus were won the third and last *spolia opima*. Meanwhile Scipio had taken Mediolanum (Milan), the chief city of the Insubrian Gauls, and the war was concluded (221 B.C.).

Soon after this it was resolved, probably at the instance of Flaminius, to plant two colonies, Cremona and Placentia, on opposite sides of the Po, so as to secure the territory lately won in the Boian and Insubrian territories. But the execution of this project did not take place till three years later, when Hannibal was on his march. Some years afterwards we hear this district spoken of as the province of Ariminum. Communication was secured between Rome and Ariminum by a road constructed in the censorship of Flaminius, which bore his name (220 B.C.).

During this great disturbance in Italy, Demetrius of Pharos proved as false to his new patrons as he had been to Teuta. Relying on the support of Philip, king of Macedon, he assumed the air of an independent chief, and encouraged his subjects in their old piratical practices. In 219 B.C. L. Æmilius Paulus, the patrician consul, received orders from the senate to put a stop to these

proceedings. In one short campaign he reduced Corcyra, took Pharos, and forced Demetrius to take refuge at the court of Philip, where we shall find him at a later time active in promoting hostilities against Rome. Illyricum again fell into the hands of native chiefs; the Romans, however, kept possession of the island of Corcyra, together with the strong towns of Oricum and Apollonia—positions of great service in the Macedonian Wars.

Thus triumphant on all sides and on all sides apparently secure, the Roman government had no presentiment of the storm that had long been gathering in the west. We must now return to Hamilcar.

HAMILCAR AND HANNIBAL

[235-219 B.C.]

He crossed the straits of Gibraltar in 235 B.C. With him went his son-in-law Hasdrubal, and his son Hannibal, then a boy of nine years old, but even then giving promise of those qualities which afterwards made him the terror of Rome. Hamilcar had not intended to take him to Spain; but the boy pleaded so earnestly, that the father yielded on condition that he should swear eternal enmity to Rome and the Romans. Hannibal himself, in his old age, told the tale to Antiochus, king of Syria, how he was led to the altar of his country's gods, and took this direful oath. Nothing can more strongly show the feelings with which Hamilcar left his country. He went, not as the servant of Carthage but as the enemy of Rome, with feelings of personal hostility, not to be appeased save by the degradation of his antagonist.

His first object was to conquer Spain, and thus put Carthage in possession of a province which might itself become a great kingdom, and was worth many Sicilies and Sardinias. One of the chief advantages he proposed to himself in this conquest was the supply of hardy soldiers, which would be given by the possession of Spain. But he was well aware that for this purpose conquest was not sufficient; he must enlist the feelings of the Spaniards in his cause, he must teach them to look up to himself and his family as their friends and benefactors. Accordingly he married a Spanish lady of Castulo; he lived among the natives like one of themselves; he taught them to work their rich silver mines; and in all ways opened out the resources of the country. Meanwhile he collected and disciplined an excellent army, with which he reduced many of the ruder tribes to the northward of the modern Andalusia and Murcia. Thus he reigned (this is the best word to express his power) with vigour and wisdom for eight years; and in the ninth he fell in battle, admired and regretted by all southern Spain.

Hannibal was yet only in his eighteenth year, too young to take up the work which his father had left unfinished. But Hasdrubal, the son-in-law of the great commander, proved his worthy successor. He at once assumed supreme authority. By the gentler arts of conciliation he won over a great number of tribes; and in order to give a capital to this new realm, he founded the city of New Carthage, now Carthagena, on the coast of Murcia. The successes of Hamilcar had already attracted the notice of the senate; and in the year 227 B.C., presently after his death, they concluded a league with Hasdrubal, whereby the river Ebro was fixed as the northern boundary of the Carthaginian empire in Spain. Hasdrubal fell by the knife of an assassin in the year 221 B.C., the seventh of his command.

Hannibal was now in his twenty-fourth year. He was at once elected by the acclamations of the army to stand in his great father's place. Nor did the government venture to brave the anger of a young general at the head of an army devoted to his cause. Hannibal remained as ruler of Carthaginian Spain. The office was becoming hereditary in his family.

Hamilcar had enlarged the Carthaginian rule in Spain from a few trading settlements to a great province. Hasdrubal had carried the limits of this province as far as the sierra of Toledo. Hannibal immediately crossed this range into the valley of the Tagus, and reduced the Celtiberian tribes which then occupied Castille. He even passed the Castilian Mountains which form the upper edge of the basin of the Tagus, and made the name of Carthage feared among the Vaccæans of the Douro, by taking their chief town, Helmantica (Salamanca). At the close of the year 220 B.C., all Spain south of the Ebro was in subjection to Carthage, or in alliance with her. The great qualities of the three men through whom they knew her made them not unwilling vassals.

[219-218 B.C.]

But there was one city south of the Ebro which still maintained independence. This was Saguntum, an ancient colony from the Greek island of Zacynthus. Its site on the coast of modern Valencia is marked by the present town of Murviedro (Muri Veteres), rather more than halfway between New Carthage and the mouth of the Ebro. Saguntum had been for some time in alliance with Rome; and therefore, though it was on the Carthaginian side of the Ebro, was by Roman custom entitled to support. In the year 219 B.C. this city was at war with a neighbouring tribe, and Hannibal eagerly accepted an invitation to destroy the ally of his enemy. He surrounded Saguntum with a large army; but the people held out for eight months with that heroic obstinacy which seems to distinguish

all dwellers on Spanish ground, when engaged in defensive warfare. In many respects the siege of Saguntum brings that of Saragossa to mind.

While the siege yet lasted, the Roman senate had sent envoys to Hannibal, requiring him to desist from attacking their ally. He replied coldly, that “he could not answer for their safety in his camp; they had better seek redress at Carthage.” They went on their way; but meantime the news of the fall of Saguntum reached Rome, and an embassy was sent to Carthage to demand that Hannibal, the author of the mischief, should be given up. There was a large party, that of Hanno and the government, which would probably have complied with this demand. But Rome was hated at Carthage, and the government did not dare to oppose the general feeling. They replied that Saguntum was not mentioned in the treaty of Hasdrubal; even if it were, that treaty had never been ratified by the government, and therefore was of no authority. Then Q. Fabius Buteo, chief of the Roman envoys, doubling his toga in his hand, held it up and said: “In this fold I carry peace and war: choose ye which ye will have.” “Give us which you will,” replied the suffet. “Then take war,” said the Roman, letting his toga fall loose. “We accept the gift,” cried the senators of Carthage, “and welcome.”

Thus war was formally declared against Rome. But before we pass on to the narrative of this war, it will be well to form some idea of the extraordinary man who, by his sole genius, undertook and supported it with success for so many years.

Hannibal was now in his twenty-eighth year, nearly of the same age at which Napoleon Bonaparte led the army of the French republic into Italy. And when we have named Napoleon, we have named, perhaps, the only man, ancient or modern, who can claim to be superior, or even equal, to Hannibal as a general. Bred in the camp, he possessed every quality necessary to gain the confidence of his men. His personal strength and activity were such that he could handle their arms and perform their exercises, on foot or on horseback, more skilfully than themselves. His endurance of heat and cold, of fatigue and hunger, excelled that of the hardiest soldier in the camp. He never required others to do what he could not and would not do himself. To these bodily powers he added an address as winning as that of Hasdrubal his brother-in-law, talents for command fully as great as those of his father Hamilcar. His frank manners and genial temper endeared him to the soldiery; his strong will swayed them like one man. The different nations who made up his motley arms—Africans and Spaniards, Gauls and Italians—looked upon him each as their own chief.

Amid the hardships which his mixed army underwent for sixteen years in a foreign land, there never was a mutiny in his camp. This admirable versatility of the man was seconded by qualities required to make the general. His quick perception and great sagacity led him to marvellously correct judgment of future events and distant countries—which in those days, when travellers were few and countries unknown, must have been a task of extraordinary difficulty. He formed his plans after patient inquiry, and kept them profoundly secret till it was necessary to make them known. But with this caution in designing was united marvellous promptness in executing. “He was never deceived himself,” says Polybius, “but never failed to take advantage of the errors of his opponent.” Nor was he a mere soldier. In leisure hours he delighted to converse with Greeks on topics of intellectual cultivation. As a statesman, he displayed ability hardly inferior to that which he displayed as a general.

Against these great qualities, he is said to have been cruel even to ferocity, and treacherous beyond the common measure of his country. As to perfidy, we hear of no single occasion on which Hannibal broke faith with Rome. As to cruelty, there can be no doubt that he was indifferent to human life; and on several occasions we shall find him, under the influence of passion, treating his prisoners with great barbarity. But though he had been trained to consider the Romans as his natural enemies, to be hunted down like wolves, we shall find him treating worthy foemen, such as Marcellus, with the magnanimity of a noble nature.

But whatever might be the ability, whatever the hardihood of the young general, he required it all. To penetrate from the Ebro to the Po—with chains of giant mountains to bar his progress, through barbarous and hostile countries, without roads or maps or accurate knowledge of his route, without certain provision for the food and clothing of his army, without the hearty concurrence of his own government—was an undertaking from which the boldest might shrink, and to have accomplished this march with triumphant success would alone justify the homage which is still paid to the genius of Hannibal.^b

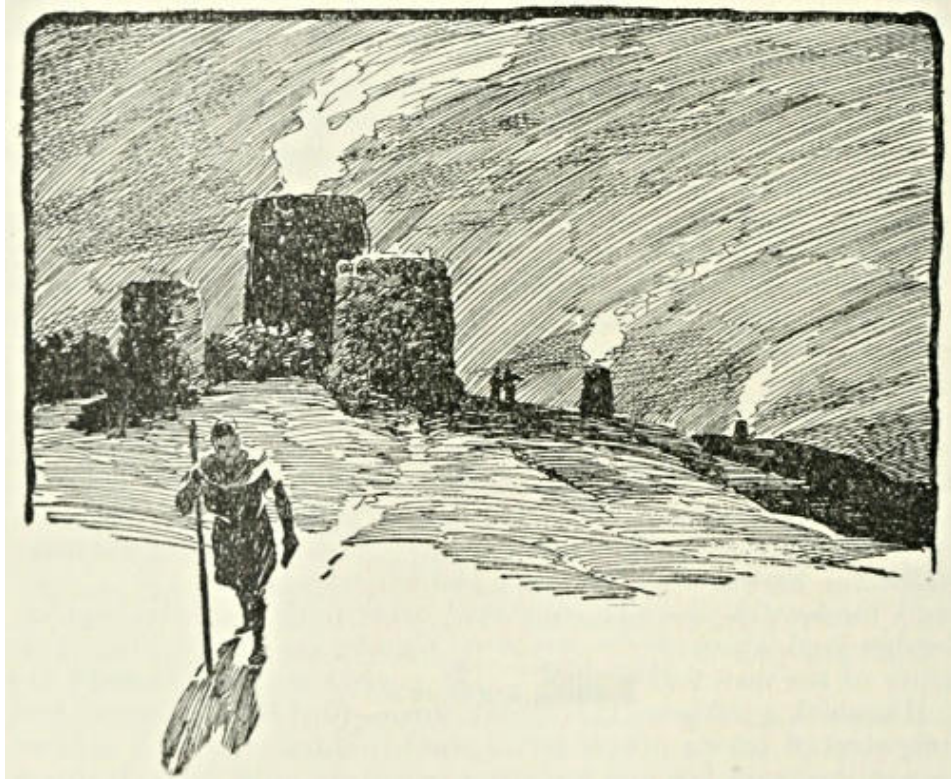
FOOTNOTES

[47] [In the words of Polybius,^d “App. Claudius with unspeakable bravery passing the strait by night, got at length into Messana.”]

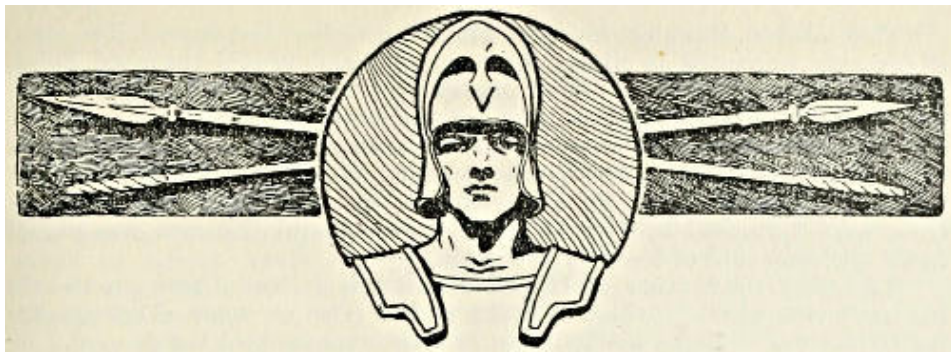
[48] [Hamilcar took command of an army in Sicily six years before the close of the war. The story of his brilliant achievements reads like a romance; but all his energy, skill, and daring did not save his city from defeat.]

[49] [Appian^f says that Lacedæmon, being asked for a general, sent Xanthippus.]

[50] [H. Shear's version of 1693 is here adopted. We retain the chief features of the original typographical setting, in keeping with the quaint phraseology.]



ROMAN BEACON FIRES



CHAPTER XI. FIRST HALF OF THE SECOND PUNIC WAR

War was resolved upon and declared on both sides—a war which stands forth in the annals of the ancient world without a parallel. It was not a war about a disputed

boundary, about the possession of a province, or some partial advantage; it was a struggle for existence, for supremacy or destruction. It was to decide whether the Greco-Roman civilisation of the West or the Semitic civilisation of the East was to be established in Europe, and to determine its history for all future time. The war was one of those in which Asia struggled with Europe, like the war of the Greeks and Persians, the conquests of Alexander the Great, the wars of the Arabs, the Huns and the Tatars. Whatever may be our admiration of Hannibal, and our sympathy with heroic and yet defeated Carthage, we shall nevertheless be obliged to acknowledge that the victory of Rome—the issue of this trial by battle—was the most essential condition for the healthy development of the human race.—IHNE.^b

FIRST PERIOD (218-216 B.C.)

The war which began with the invasion of Italy by Hannibal lasted for seventeen years. The periods of the war are four. The first comprehends the victorious career of Hannibal, from the passage of the Alps to Capua. Each year is marked by a great battle—Trebia, Trasimene, Cannæ (218-215 B.C.). The second is of five years, in which the Romans succeed in recovering Capua, while they lose Tarentum (215-211 B.C.). The third, of four years, in which Hannibal, left without support from home, is obliged more and more to confine himself to the mountain regions of Calabria. It ends with the disastrous battle of the Metaurus (211-207 B.C.). The fourth, of four years, in which Hannibal stands at bay in the extremity of Italy, while the main scene of the war shifts to Spain, Sicily, and Africa. It terminates with the great battle of Zama, and peace (206-202 B.C.).

But during the former periods of the great war, the Roman arms were also engaged in Spain, in Sicily, and in Epirus. From the very beginning of the war they maintained the conflict in Spain. After 215 B.C. they were obliged to besiege Syracuse and reconquer Sicily, as well as Sardinia. In 212 B.C. they declared war against Philip of Macedon, in order to prevent him from sending aid to Hannibal in Italy.

The winter of 219 was passed by Hannibal in active preparation. His soldiers received leave of absence, with orders to be present at New Carthage at the very beginning of the next spring. He sent envoys into the south of Gaul and north of Italy, to inform the Celts on both sides of the Alps of his expedition to win the Transalpine Gauls with hopes of the plunder of Italy, to rouse the Cisalpine by promises of delivery from the Roman yoke.

Thus assured, Hannibal reviewed his troops at New Carthage. The army of invasion amounted to ninety thousand foot and twelve thousand horse, with some fifty elephants. The infantry were mostly Spanish, the veteran soldiers of

Hamilcar and Hasdrubal, recruited by new levies of his own. The Spaniards, however, were kept in balance by a large body of Libyan mercenaries. The light infantry, slingers and archers, were from the Balearic Isles. Of the cavalry, the heavy troopers were Spanish, while the light horse were furnished by Numidia; and the whole of this arm was placed under the command of the fiery Maharbal.

Hasdrubal, the brother of Hannibal, was left at New Carthage, to rule the lately conquered province of Spain, and to raise an army of reserve for the Italian war. Mago, his youngest brother, accompanied the general.

Having left New Carthage about the end of May, Hannibal marched with no interruption to the Ebro; but as soon as he had crossed that river, the whole country up to the Pyrenees was hostile. By great rapidity of movement, though with the loss of many men, he reduced all the tribes to submission in a few weeks, and, leaving an officer, with eleven thousand men, in charge of this district, he pushed forwards to the Pyrenees. Here his Spanish soldiers first discovered that they were to be led into strange and unknown lands; discontent appeared in the camp; three thousand Carpetanians, a tribe which had not been long conquered, seized their arms and set off homewards. Upon this, Hannibal, with prudent frankness, called the troops together, told them his whole design, and gave all who were unwilling to go on, free leave to return. Nearly eight thousand more availed themselves of this permission.

He passed round the eastern end of the Pyrenees, where the mountains sink gently towards the sea, and halted his army for a few days at Ruscino (Roussillon). On a review, it appeared that the losses he had sustained, together with the twenty-two thousand men whom he had left in Catalonia or who had gone home, had reduced his foot to fifty thousand, and his horse to nine thousand. With this force he advanced almost unopposed to the banks of the Rhone.

It is now time to inquire what the Romans were doing to meet the coming danger. The senate had not been idle. But they had acted on the supposition that the Second Punic War, like the First, would be fought on foreign soil. It is almost amusing to contrast their expectations with the result. The plebeian consul, Ti. Sempronius Longus, was sent to Lilybæum with a large fleet, with orders to invade Africa: the other consul, P. Cornelius Scipio, was to land in Spain and take the field against Hannibal. And it is plain that the senate thought this service the least important of the two, because they detained Scipio's army rather than that of Sempronius, to quell a rebellion which broke out in Cisalpine Gaul, in consequence of the proceedings of the triumviri, who had been sent to

distribute the confiscated lands of the Boians and Insubrians among the colonists of Placentia and Cremona. Just at this time the envoys of Hannibal arrived, and the Gauls rushed to arms. To repress this outbreak, one of Scipio's legions was sent off in all haste, and the consul could not set sail for Spain till he had raised a new legion. His troops met at Pisa, and he was just weighing anchor for Spain when he heard that Hannibal had already crossed the Pyrenees.

On receiving this news, he put in at the allied city of Massilia (Marseilles), and disembarked there, intending to arrest Hannibal's march upon the Rhone. He did not expect him there for some time yet, and therefore he gave his army some days' rest, while he despatched a reconnoitring party of three hundred picked horse up the left bank of the river, under the trusty guidance of the Massaliots.

But Hannibal had crossed the Rhone while these horsemen were on their way up the river. The point at which he reached it was not far above Avignon, about fifty miles from the coast. The river itself is large, and the rapidity of its stream proverbial. But, besides these natural difficulties, he found the left bank occupied by a large host of Gauls. Upon this, he immediately made preparations for forcing the passage. After two days spent in seizing boats and constructing rafts, he sent Hanno, son of Bomilcar, with a strong detachment of cavalry, to cross the river about twenty miles higher up, so as to come round upon the rear of the Gauls. On the morning of the third day after his departure, Hanno signalled his arrival to Hannibal by a column of smoke; and the Carthaginians immediately pushed their boats and rafts into the stream. The Gauls flocked down to the water's edge, brandishing their arms and uttering wild yells of defiance. But while the boats were in midstream, a cry arose from the rear; and, looking round, the barbarians beheld their tents in flames. They hastened back, and were charged by Hanno with his cavalry. Meanwhile, the first divisions of the army, forming under the general's eye, completed the defeat of the Gauls; and for the remainder of the day the Carthaginians lay encamped in the enemy's late quarters. All the army, except the elephants, had effected the passage. It was on this very day that Scipio sent off his three hundred horse from Marseilles.

On the next morning (the sixth after his arrival on the Rhone) news reached Hannibal that the Romans had landed. Upon this he instantly despatched a body of five hundred Numidian horse to reconnoitre, while he himself spent the day in preparations for bringing over the elephants. At this moment, some Boian and Insubrian chieftains arrived from Italy to inform him of what their people were doing and had done against the Romans, and to describe in glowing colours the richness and beauty of the land which would welcome him after the toils of the

Alpine pass. This news had a great effect upon the army, which was somewhat dispirited by the opposition offered by the Gauls upon the Rhone.

In the evening the Numidian horse galloped into camp in great disorder, having lost half their number. At some distance a body of cavalry appeared in pursuit, who reined in their horses on coming in view of the Carthaginian camp, and then turned about and rode off down the river. This was Scipio's reconnoitring party, which had encountered the Numidians and defeated them.

Hannibal, finding the enemy so near at hand, sent off the whole of his infantry next morning to march up the left bank of the Rhone. He himself only stayed till he saw his elephants, now about thirty in number, safely across the stream; and then, with the elephants and cavalry, he followed the army.



HANNIBAL

Scipio, on his part, so soon as he heard that the Carthaginians had already crossed the Rhone, proceeded by forced marches up the river. But it was three or four days after Hannibal's departure that he arrived at the point where the Carthaginians had crossed. It was in vain to pursue the enemy into unknown regions, peopled by barbarous tribes; and Scipio had the mortification to reflect that, if he had marched at once from Marseilles, he might have come in time to assist the Gauls in barring Hannibal's passage. Not able to undo the past, he provided wisely for the future. He despatched his brother Cneius to Spain with the fleet and the consular army, deeming it of high importance to cut off communication between Hannibal and that country; and himself returned to Pisa, to take command of the army which had been left to suppress the Gallic insurrection. He expected to meet Hannibal's army shattered by the passage of the Alps, and to gain an easy victory.

Meanwhile, Hannibal continued his march up the Rhone, and crossing the Isère found himself in the plains of Dauphiné, then inhabited by the Allobrogian Gauls. He marched thus far north, about one hundred miles beyond the place where he had crossed the Rhone, at the invitation of a chieftain who was contending for the dominion of the tribe with his younger brother. Hannibal's

veterans put the elder brother in possession; and the grateful chief furnished the army with arms and clothing, entertained them hospitably for some days, and guided them to the verge of his own dominions. This must have brought them to the point at which the Isère issues from the lower range of the Alps into the plain, near the present fortress of Grenoble. To this point there is little doubt as to the route taken by Hannibal; but after this all is doubtful.^c

Besides the fact that no modern historian can offer any better authority than Polybius for this portion of history, no more brilliant and dramatic account of the crossing of the Alps exists than his. We may then quote it at length.^a

POLYBIUS' ACCOUNT OF THE CROSSING OF THE ALPS

Some Authors, who have writ of *Hannibal's* passage over the *Alpes*, entertain us with astonishing and incredible Tales of that Voyage, without heeding that they have thereby committed two Errors, which History of all things will not permit, for they are constrain'd thereby to coin Falsehoods of their own, and often become liable to contradict themselves. For as they give to *Hannibal* all the Encomiums of a great and valiant Leader; so at the same time they make him act with the greatest Imprudence imaginable. Then when they are taken in their own fabulous Snares, they are forc'd to bring down the Gods and Demi-Gods to their Aid, who should not be nam'd but in matters of Truth. Furthermore, they feign that the *Alpes* are so desart and inaccessible, that far from being passable by Armies, Horses, and Elephants, Men cannot without unspeakable travel pass them on foot. They tell us farther, that some parts thereof are so waste and destitute of all Succour, that without the Aid of some Divinity, who led *Hannibal*, as it were by the Hand, through those wild labyrinths, he and his Army had inevitably perish'd; these, I say, are two Faults in an Historian, which Men of common Sense easily discover and dislike. For these Authors make *Hannibal* in the spring of his Hopes at the head of a flourishing victorious Army, perform such things as are not likely would be acted by a People already vanquish'd and undone, and reduc'd to the last extremity; namely, to ingage their Troops in Countries and Places totally unknown. For while they tell us all was waste and desart, and the Country nowhere passable, do they not plainly accuse their own Forgeries? But they knew not that the *Gauls*, who inhabit about the *Rhosne*, had often pass'd the *Alpes* with numerous Armies, long before *Hannibal's* time; and not only heretofore, but of late days, they had march'd to the relief of those *Gauls* who dwell about the *Po*, during their Wars with the *Romans*. Furthermore, they were to learn that

even the *Alpes* themselves are inhabited by numerous Nations; but it was their Ignorance indeed that brought the Demi-God down to show *Hannibal* his way. Wherein they follow the Poets, who in their Tragedies, having for the most part nothing but Fiction and extravagant Adventures for the subject of their Plays, are able to bring nothing handsomely to pass without a God or a Machine.

Most certain it is that *Hannibal* did not conduct his Affairs at the rate these Authors would persuade, but like a wise and able Captain. And there is no doubt, but he well knew that the Country, into which he was leading his Army, was fertile and abounding in all things, and the Inhabitants alien'd in their Inclinations to the *Romans*; that he had with him for Guides the very People of the Country, who had engag'd to partake with him in all his Fortunes. For my own particular, I speak of these things with so much the more assurance, by how much I have not only been instructed therein by those who liv'd in those Days, but that I might be less liable to error, I made my self a Journey into the *Alpes* for my better information.

Hannibal having march'd near an hundred Miles in ten days along the River *Rhosne*, met with mighty difficulties after his Army had enter'd on the Mountains; and in truth the *Allobroges* had no purpose to attack them, while they held their March in the Plains, fearing both their Horse, and the *Gauls* that accompany'd the Army. But these were no sooner gone, and that *Hannibal* began to ascend the Mountains, when they drew together in great numbers, and possess'd themselves of the Posts where *Hannibal* must unavoidably March; and most assuredly, had they but kept themselves longer conceal'd, the *Carthaginian* Army had run a mighty hazard; but being discover'd by *Hannibal*, tho' they did him some Mischief, they were requited with equal loss. For *Hannibal* was no sooner inform'd, that the *Barbarians* were Masters of the Passes, when he made his Army halt, and take their Quarters that night among the Rocks and Fastnesses. In the mean while, he dispatch'd a Party of *Gauls*, who serv'd him for Guides, to discover the Posture of the Enemy, and learn what they could of their purpose. And having understood that they kept Guard in those Places only by day, but that in the night they retir'd to a Town not far off; he found this Expedient to obviate the present Inconvenience: He decamp'd in broad day, and by slow motions advanc'd with his Army; till arriving not far from the Streights, he then encamp'd not far from the Enemy; and causing Fires to be made in the Camp about the first Watch of the Night, where he left the greatest part of his Troops, himself, in the mean while, with a Detachment of his best Men, pass'd the Streights in the Night; and while the Enemy was retir'd to

the Town according to their Custom, took possession of those Posts, where they were wont before to keep their Guard.

When day discover'd to the Enemy what had pass'd, they did not presently determine what to do; but when they observ'd the great quantity of Baggage that appear'd, and perceiv'd that the Horse could afford them no succour, which by reason of the narrow, stony, and broken ways, could not march but in defiles, they then resolv'd on the Attack. And now as the Barbarians thus fell on them from all Quarters at once, the Way it self being almost as terrible as the Enemy, the *Carthaginians* receiv'd great loss, especially in their Horses and Beasts of Carriage; for the Way being streight, stony, and broken, the Beasts of Burden were easily thrown down, and disorder'd, falling into Precipices. But the Horses that were wounded gave them the greatest trouble; for falling by their Wounds among the other Beasts, and labouring to rise and recover their feet in so narrow a way, so crowded, they cast down others by their striving to save themselves; which was the occasion of great labour and tumult.

This being observ'd and consider'd by *Hannibal*, who well knew the Army could not subsist without their Beasts of Burthen which carry'd their Necessaries, he immediately left the Posts he had taken, and came to the relief of those who were thus hard press'd in their passage; when falling on the Enemy from higher ground, he did not fail of doing them great damage: But the evil was, that his own People were thereby equal Sufferers; for the fear encreasing everywhere by this new Tumult, many miscarry'd and were lost in the Crowd; but, in the end, most of the *Allobroges* were slain on the place, and the rest sav'd themselves by flight. And now their Horses and other Beasts, after some time of rest, were led with great trouble and difficulty through the Streight; but *Hannibal*, after he had escap'd this Danger, march'd himself with a good Detachment against the Town, that had harbour'd the Enemy, which he took without resistance, finding it almost quite deserted, the Inhabitants being all gone out in hopes of Booty. This adventure prov'd very useful to his Affairs, both with respect to the present and the future: For he here recover'd many, both Men and Horses and other Beasts, which had fallen into the Enemy's hands, and Cattel and Corn sufficient to sustain the Army for three Days.

But, above all, the terrour he had given by this success to the circumjacent places was such, that none of the *Gauls* inhabiting the Towns near which he was to pass, gave him the least molestation in his passage. In this Town *Hannibal* took up his Quarters, where he remain'd a Day to rest and refresh his Army, and then prosecuted his Journey. For three days together he march'd without trouble or alarm; but the fourth he fell into much danger. The People inhabiting in the

Towns on the way he was to pass having secretly conspir'd against him, met him however, with Olive-branches and Garlands of Flowers, Signs among the Barbarians of Peace and Friendship, as the *Caduceus* is among the *Greeks*. *Hannibal*, who had now learn'd how far he was to trust these People, endeavour'd by Questions to inform himself of their Purposes.

They told him, That they had receiv'd notice of his success against the Town, and of the loss and defeat of those who had attack'd him in his march; but as to themselves, they came to give him assurance, That they were resolv'd to do him no injury, nor suffer any to be done to him by others: And that they were ready to give him Hostages for their Fidelity. *Hannibal* remain'd long undetermin'd what to do, having no great Opinion of their Sincerity; but, in the end, weighing that to make a show of believing them, might work on their Good-nature, and by degrees win them to his Friendship, if he seem'd to accept their Tenders, and that in case of refusal, they might presently become his Enemies, he feign'd to consent to their proposal, and seem'd, as they did, dispos'd to enter into terms of Friendship with them. In short, after these Barbarians had given him security for their peaceable Behaviour, supply'd his Army with Provisions, and that they convers'd among the *Carthaginians* with all manner of freedom and Confidence, *Hannibal* began to have a better Opinion of their Sincerity, and accepted their Service for his Guides through the many remaining difficult ways by which they were to pass. Howbeit, after they had thus conducted the Army for two Days together, they assembled at length all into one Body, and attack'd the Rear at a Defile, or streight Passage, as they were marching in a Valley full of Rocks and broken Ground.

Great likelihood there was that the *Carthaginian* Army had here run the hazard of being entirely destroy'd, had not their General, who reserv'd a secret doubt of the well-meaning of this People, obviated the mischief of this treasonable Purpose of theirs, by ordering his Horse and Baggage to march in the Van of the Army, and his choicest Foot to sustain the Reer. But having dispos'd matters after this manner, his loss became less grievous; for his Foot in the Arreer-guard prov'd sufficient to put a stop to the violence of the Attempt. Nevertheless, they were not without great loss both of Men and Horses; and the Enemy, who was possess'd of the Ground above them, brought such terrour into the Army, by rowling down mighty Stones and Rocks from the Precipices upon them, and showering Volleys of Stones on their heads, that *Hannibal* was compell'd to take up his Quarters for that Night on the top of an Eminence, expos'd to the open Sky, with that part of the Army that was with him, remote from the Horse, and the rest of the Troops, and the Baggage, the better to cover

and defend them from danger; who were hardly able, in all that Night, with great labour to compass their passage through the Valley.

In the morning, the Enemy being now retir'd, *Hannibal* join'd his Army and Baggage, and advanc'd towards the top of the *Alpes*. After this the *Gauls* attempted no more to attack them in Bodies, but in smaller Parties, and with less ardour than before; nevertheless, falling sometimes on the Van, sometimes on the Reer of the Army, they seldom fail'd of making some spoil of the Baggage. The Elephants happen'd to be of great use to the *Carthaginians* in these Conflicts; for wheresoever they chanc'd to appear, they so terrify'd the Enemy, that the Army march'd by that means with much less molestation. In nine Days after this, *Hannibal* gain'd the top of the Mountains, where he halted two Days, being willing to give some repose to such of his Army as were come thus far without wound or sickness, and to attend the coming of the rest of his Troops that were yet behind. During this stay, many Horses and Beasts of Carriage, which had fallen and stray'd out of the way, came in of their own accord, following the Track of the Army to the great wonder of the Beholders.

But whereas the Snows were yet great in the Mountains (Winter not being there quite over), *Hannibal* perceiving his Souldiers to be somewhat discourag'd by reason of the Sufferings they had already felt, and out of apprehension of what yet threatned them, caus'd the Army to be assembled, to the end he might speak to them, and inspire them with new Resolution; which he could no way better effect, than by giving them a view and prospect of *Italy*; which, in a word, lies so fairly to the eye, spreading and extending it self at the foot of those Mountains, that Nature seems to have design'd them as a Rampart to cover and defend it. So he gave them a survey of the Champaign Country that spreads it self all about the River *Po*; and gave them to understand how welcome they should be to the People that inhabited it. He pointed out likewise to them whereabout the City of *Rome* stood; and by this Artifice animated his harass'd Army.

The Day following he decamp'd, and began to descend the Mountains; and now saw no more of the Enemy to molest them in their march, saving some small scatter'd Parties, who rather awaited occasions how to steal than to fight. Howbeit, *Hannibal's* Losses were not lessen'd, by reason of the great Snows and the exceeding bad march they had had, which much weaken'd the Army. Nor was their passage much better in the descent; for what with the streight, steep, and slippery ways, and the depth of the Snow, the Soldier knew not where to set his foot with safety; for whenever they slipp'd, they were in danger of being lost and swallow'd up in the depths and precipices which lay hid and

cover'd by the Snow. Nevertheless, the long practice in those Hardships and Dangers, taught them to suffer all with constancy: But at length coming to a place where neither their Elephants nor Horses could pass, the Way, which was very steep before, being now, by the falling away of some of the Earth, become more difficult, renew'd their Fears; which was manifest over the whole Army. Upon this accident, *Hannibal* took a resolution to attempt another way, by taking a compass about those Mountains, tho' there was no appearance of any passage; but forasmuch as the great Snows render'd that Resolution too hazardous, all places being cover'd and hid from the view, he therefore chang'd his purpose.

In the interim, there having fallen much new Snow on that which remain'd of the Winter before; this last being loose, and not yet deep, yielded firm footing enough to the Soldiers; but this was no sooner trampled on, but it dissolv'd into dirt and mire; whereby the Snow of last Year being frozen under it, it became impossible to march thereon any more than on Ice it self, none being able to keep their Feet; and when they endeavour'd to sustain themselves on their Hands and Knees, they often slid and were lost in Pits and Precipices. When their Horses at any time slip'd, they by their weight and labouring broke the Ice under them, and so became buried and frozen to death.

Whereupon *Hannibal* now desperate of obtaining his passage that way, encamp'd his Army at the entrance of this Pass, after he had first order'd the Snow to be remov'd which cover'd all the ground; and then by the labour of his Soldiers he wrought into the Hill it self, and by unspeakable pains made his passage at length through it: So in one Day he made way for his Horses and other Beasts to pass, which immediately march'd on. And now decamping the Army, he sent his Horse and other Beasts to forrage and recruit themselves, as they could come at Pasture, where the Ground was not cover'd with Snow. In the mean time he order'd the *Numidians* to make a passage for the Elephants, which cost them three Days labour with great difficulty to effect; but at length they made way for those Animals, which had suffer'd much, and were almost dead with hunger. For there was neither Forrage nor Tree to be found on that part of the *Alpes*, nor in the neighbourhood; the Ground lying ever cover'd with Snow Winter and Summer, but the lower Grounds on all sides produce Woods and Covert, and there is no place thereabout that is not habitable.

After *Hannibal* had united his Troops, he prosecuted his march, and in the space of three Days got past these difficult and incommodious Places, whereof we have given an account, and recover'd the Plains, howbeit with the loss of great numbers of his People; for many fell by the Enemy, many were drown'd

in passing the Rivers, and many of Sickness and the Hardships of their march to and over the *Alpes*. And as he lost many Men, so his loss of Horses and other Beasts of burthen, was yet much greater.

In a word, after a march of five Months from his departure from *New-Carthage*, and fifteen Days passage over the *Alpes*, he boldly advanc'd into the Champaign Country, lying about the River *Po*, and the Frontiers of the *Insubrians*. Of the Troops that march'd out with him, there now remain'd; of *Africans* about twelve thousand; eight thousand *Spaniards*, and six thousand Horse, according to his own Register, left by him, engrav'd on the Column at *Lacinium*, which specify'd that number. About this time *Publius Cornelius*, who had left his Troops with *Cneius* his Brother, to prosecute the War against *Asdrubal* in *Spain*, embark'd for *Pisa*.^d

HANNIBAL IN ITALY

[218-217 B.C.]

Hannibal descended among the mountains of the *Salassians*, and pushed on into the friendly country of the *Insubrians* (*Milanese*), where he rested his troops for some time, and procured fresh horses for many of his cavalry. He rewarded the services of the *Insubrians* by marching against the hostile tribe of the *Taurini*, whose capital city (*Turin*) he took by assault.

It was now December. He was moving down the left bank of the *Po*, above its junction with the *Ticinus*, on the *Piedmontese* side of the latter river, when his cavalry came in conflict with the Roman horse, commanded by the consul *Scipio* himself.

Scipio had returned to *Pisa*, whence he moved northward to encounter Hannibal on his descent from the Alps. He crossed the *Po* near *Pavia*, made a bridge over the *Ticinus* to secure his retreat, and, crossing the latter river, he began to march up the left bank of the *Po*, just as Hannibal was coming down it. Both generals were in advance with their cavalry, and came unexpectedly in sight of each other. A smart action followed, in which the Romans had the worst. The consul was severely wounded, his life being saved by the devotion of a *Ligurian* slave, or, as others said, by his son *Publius*, afterwards the great *Africanus*, then a youth only seventeen years old. He fell back upon his main body and recrossed the *Ticinus* so rapidly that, in breaking up the bridge, he left six hundred men behind, who fell into the hands of Hannibal. This was the skirmish of the *Ticinus*, which proved Hannibal's superiority in cavalry. It had

the effect of making the Boian Gauls on the south of the Po declare in his favour.

Hannibal, continuing his march down the Po, crossed somewhere below Placentia; and Scipio, not finding his position near that town secure, fell back westward so as to place the Trebia between himself and Hannibal. On the left bank of this river he fortified a strong camp, with the purpose of awaiting the arrival of his colleague Sempronius, whom the senate had ordered to hasten from Sicily into the north of Italy. Hannibal followed the Romans, and encamped in view of them on the right bank of the Trebia. Here he received offers from a Brundusian, who was in charge of the Roman magazine at Clastidium, a town in Scipio's rear, to betray the place; and it must have been while he was absent in this quarter that Sempronius joined Scipio. Sempronius, not daring to sail direct from Sicily to Pisa at that time of year, had sent his army over the Straits of Messana, with orders to rendezvous at Ariminum; and so expeditious were they that they performed the whole march from Lilybæum to Scipio's camp in forty days. Scipio endeavoured to dissuade Sempronius from venturing a general action, but in vain; and being still confined by the consequences of his wound, he was obliged to leave the whole army under the direction of his colleague. Hannibal, for his part, was anxious for a battle. The Gauls began to complain of the burden of two armies in their country, and victory was necessary to secure them in his interest.

The Trebia is a mountain stream, which in summer runs babbling over a broad gravelly bed, so shallow that the foot-traveller walks over it unheeding; but in winter, or after heavy rains, it rises to a deep and rapid torrent. It was now nearly the end of December, and Hannibal resolved that he would not cross the water to attack the Romans, but would make them cross it to attack him. He executed his purpose with great skill. On his left there was a sort of gully, thickly grown with reeds and brushwood, in which he concealed his brother Mago with one thousand foot and as many horse. Then, early in the morning, he sent his Numidian riders across the river, and ordered the whole army to prepare for the cold of the day by rubbing themselves with oil and making a hearty meal.

As soon as Sempronius saw the Numidians cross the water, he sent his cavalry, about four thousand strong, to meet them, and then drew out his whole army, amounting to about thirty-six thousand men, to support the attack. The Numidians feigned to be beaten and fled across the river. The Romans pursued, but the water was running breast high and was deadly cold; sleet was falling, which was driven in their faces by the east wind; and when they reached the

other side, they were half dead with cold and wet and hunger. Their treacherous foes now opened on both sides and displayed Hannibal's infantry in battle order with the rest of the cavalry and the elephants on either wing. The Roman cavalry, which was also on the wings, was greatly outnumbered and soon put to flight; but the legions and allies kept their ground bravely under all disadvantages till Mago rose from ambush and attacked them in rear. Then the rout became general. A body of ten thousand men, however, cut their way through the Carthaginian lines to Placentia; the rest were driven back with great slaughter to the Trebia, in which many were drowned, but a large number, with the consul Sempronius himself, recrossed in safety.

The battle of the Trebia ended Hannibal's first campaign. The two consuls, with the relics of their armies, contrived to throw themselves into Placentia and Cremona, and afterwards made good their retreat to Ariminum. Sempronius had sent home a varnished account of the battle, but the fatal truth soon betrayed itself. Two consular armies had been defeated; Cisalpine Gaul was abandoned to the Carthaginians.

The senate, 217 B.C., made great preparations for the next campaign. Sicily, Sardinia, and Tarentum were garrisoned against the Carthaginian fleets; the new consuls were to keep Hannibal out of Roman Italy. The patrician consul for the year was Cn. Servilius; C. Flaminius was the plebeian. Flaminius, it will be remembered, had held this high office in 223 B.C., and had won a great battle over the Insubrian Gauls, in contempt of the orders of the senate. As censor, he still dwells in memory for having made the Flaminian way, the great high road from Rome through the Sabine country to Ariminum. He had won extraordinary popularity by a sweeping agrarian law to divide the coast lands of Umbria and Picenum among a number of poor citizens. This was the man elected by popular favour to oppose Hannibal—brave and generous, but adventurous and reckless. Fearing that the senate might even yet bar his consulship by an appeal to the omens, he left the city before the ides of March,^[51] which was at that time the day for the consuls to enter upon office. But no such attempt was made. Servilius was sent to Ariminum to guard the Flaminian road; Flaminius himself took post at Arretium to watch the passes of the Apennines.

As the spring approached, Hannibal was anxious to leave Cisalpine Gaul. His friends the Insubrians and Boians, however much they wished to be relieved from the Roman yoke, did not relish entertaining a large army. They were proverbially fickle; and so much did Hannibal mistrust them, that, to prevent attempts upon his life, he continually wore disguises, and assumed false hair. Leaving the Roman colonies of Placentia and Cremona unassailed, he passed

the Apennines early in the year by an unfrequented route, which brought him down into the neighbourhood of Pistoria and Lucca. From this point eastward he had to march through the Val d'Arno, which was at that time an unwholesome swamp. Here his men and horses suffered much; he himself, being attacked by ophthalmia, lost the sight of one eye, and was obliged to have recourse to the single elephant which survived the cold of the Alps and a winter in the north of Italy. In the neighbourhood of Fæsulæ he rested his army, now much increased by Gallic recruits, and rewarded his men with the plunder of Etruria. Flaminius now found that his dexterous enemy had stolen a march upon him, and Hannibal, on his part, heard with delight the rash and adventurous character of the new consul. Trusting to this, he led his army past Arretium, where Flaminius lay encamped, and leaving Cortona on the left, passed on towards Perugia along the northern side of Lake Trasimene. As soon as Flaminius found that the Carthaginian had passed him in this disdainful way, he immediately marched in pursuit.

As the traveller comes upon the northwestern corner of Lake Trasimene, the road ascends a low ridge, now called Monte Gualandro. The broad lake lies to his right and the road descends into a crescent-shaped plain, skirted on the left by hills of some height, while between the road and the lake the ground undulates considerably. After traversing this open space the road passes the modern village of Passignano, and ascends a hill. This was the ground Hannibal chose for awaiting Flaminius. He placed his Balearians and light troops in ambush along the hills on the left; he himself, with his infantry, lay in front somewhere near Passignano, while his cavalry were ensconced in the uneven ground next the lake, ready to close upon the rear of the Romans so soon as they were fairly in the plain. While the Carthaginians were thus disposed, Flaminius was encamping for the night on the Tuscan side of Monte Gualandro. In the morning a thick mist hung over the lake and low lands, so that, as the consul advanced, he could see nothing. Hannibal suffered the Roman vanguard, consisting of six thousand men, to pass Passignano before he gave the signal for attack. Hearing the cries of battle behind, the vanguard halted anxiously on the hill which they were then ascending, but could see nothing for the mist.

Meantime the consul, with the main army, was assailed on all sides. Charged in front by the Spanish and African infantry, on his right and rear by the Gauls and cavalry, exposed on his left flank to the ceaseless fires of the slingers and javelin-men, Flaminius and his men did all that brave men could. They fought valiantly and died fighting. Not less than fifteen thousand Italians fell on that fatal field. Such was the scene disclosed to the soldiers of the vanguard when

the mist cleared off. Hannibal now sent Maharbal to pursue this division, which surrendered at discretion. Such of them as were Romans or Latins were all thrown into chains; the Italian allies were dismissed without ransom. Thus did Hannibal's plan for the conquest of Rome begin to show itself; he had no hope of subduing Rome and Italy with a handful of Spanish and African veterans. These were to be the core of a great army, to be made up of Italians, who (as he hoped) would join his victorious standard, as the Gauls had already done. He had come, he said, "into Italy, not to fight against the Italians, but to fight for the liberty of the Italians against Rome."

Such was the battle of Lake Trasimene. So hot was the conflict that the combatants did not feel the shock of an earthquake, which overthrew many cities of Italy.

Stragglers escaping from the slaughter carried the evil tidings to Rome, and the praetor, unable to extenuate the loss, came into the Forum, where the people were assembled, and ascending the rostra uttered the brief but significant words: "We have been defeated in a great battle." Dreadful was the terror. The gates were thronged with mothers and children, eagerly questioning the fugitives about the fate of their sons, and fathers, and kinsfolk. Every hour Hannibal was expected. Three days passed and he came not; but the news of a fresh disaster came. Cn. Servilius, the other consul, as soon as he heard of Hannibal's presence in Etruria, resolved to join his colleague immediately, and sent on his horse, four thousand strong, as an earnest of his own arrival. Hannibal, informed of their approach, detached Maharbal with a division of cavalry and some light-armed troops to intercept them, and half of the Romans were cut in pieces.

Amid the terror which prevailed the senate alone maintained their calmness. They sat, without adjournment, to receive intelligence and deliberate on measures of safety. It was resolved (an extraordinary measure) to call upon the people to elect a dictator, the person recommended being Q. Fabius Maximus, a man of known discretion; M. Minucius Rufus was also elected as his master of the horse. Fabius consulted the Sibylline books, and advised the senate to decree a "sacred spring," according to the ancient custom of the Sabines. Then, collecting the troops that had escaped, and filling up their ranks by a new levy, he sent for the army of Servilius, and thus with four legions and their auxiliary troops he prepared to take the field.

Meanwhile the movements of Hannibal had relieved the Romans of all immediate fear. It seems that he had little hopes of the Etruscans, for he

straightway passed northwards by the Flaminian road into Picenum, collecting plunder from all the Roman settlements as he went. Here he lay quiet during the heat of summer. As the weather became cooler, he advanced along the coast of the Adriatic into Apulia, still plundering as he went. The soldiers revelled in the abundance of Italy: it is said they bathed their horses in wine. But the colonies of Luceria and Venusia, as of old, refused entrance to the invader, and Hannibal passed the Apennines again into lower Samnium, where Beneventum, also a colony, defied him like the rest.

By this time Fabius had taken the field. He had made up his mind not to risk a battle. His plan of campaign was to move along the heights, so as to keep Hannibal in view, cutting off his supplies, intercepting his communications, and harassing him in all ways without a general action. This was not for Hannibal's interest. He wished to fight another great battle and win another great victory (the things were synonymous with him), in order that the Samnites and Italians lately conquered might rise and join him. It was no doubt with the purpose of provoking Fabius to a battle, or of showing the Italians that the Romans dared not fight him, that Hannibal descended from Beneventum down the Volturnus into the rich Falernian plain.^[52]

Here dwelt Roman citizens; this was the garden of Italy: would not the dictator fight to defend them and their country from the spoiler? No: Fabius persisted in his cautious policy. He closed all the passes leading from the plain, where Hannibal's soldiers were now luxuriating, and waited patiently, thinking he had caught the invader in a trap. But the wily Carthaginian eluded him by a simple stratagem. Collecting the oxen of this favoured region, he ordered fagots to be tied to their horns and lighted as soon as it was night; and thus the animals were driven, tossing their heads with fright and waving the flames, up the pass which leads from Teanum to Allifæ. The troops who guarded this pass fled panic-stricken to the heights of Mount Callicula, and left free passage for the Carthaginian army. When morning broke Hannibal was lying safely encamped near Allifæ. Thence he pursued his devastating course through the Pelignian and Frentanian lands, till he again reached Apulia, and there fixed on a strong position near Geronium for his winter quarters. The place was warm and sunny; corn and provisions were abundant.

Fabius, however discomfited by Hannibal's escape from Campania, persisted in earning his name of "The lingerer"; and following Hannibal as before, took post at Larinum, within five or six miles of the enemy's camp.

He was now recalled to Rome, ostensibly to preside over certain sacred offices, but really to give an account of his conduct. He found the people much discontented. He had been in command of two consular armies for several months, and had done worse than nothing; he had allowed the lands of the Roman colonists in Apulia and Samnium, the lands of Roman citizens in Campania, to be wasted and spoiled before his eyes.



A ROMAN GENERAL

These discontents were fomented by Minucius, the master of the horse, who had been left in command at Larinum. Though charged by the dictator not to risk an action, he pushed his camp forward within two miles of Hannibal, gained some advantages in skirmishing with the Carthaginian foraging parties, and sent home highly coloured despatches describing his successes. Popular feeling rose to its height, and Terentius Varro became its mouthpiece. This man was a petty merchant by trade, the son of a butcher; but he had been prætor the year before, and was now candidate for the consulship. His eloquence was great; and he forced the senate to consent to a law which gave Minucius an equal command with the dictator. Fabius quietly gave up half the army to his late subordinate, and was soon repaid for his moderation. Hannibal discovered the rash character of the new commander, and drew him out to battle. Minucius would have been defeated as utterly as Flaminius at Lake Trasimene, had not the watchful Fabius come up; upon which Hannibal drew off his men and Minucius, acknowledging Fabius as his deliverer, craved his pardon and resumed his post of master of the horse. The whole army returned to its old quarters at Larinum.

[217-216 B.C.]

Thus ended the second campaign, not greatly to the satisfaction of either party. Hannibal had hoped that ere this all southern Italy would have risen like one man against Rome. He had shown himself her master in the field; wherever her soldiers had dared to meet his, they had been grievously defeated. He had shown all indulgence for Italian prisoners, though he had put to the sword all Roman citizens. But not one city had yet opened its gates to receive him. The

Gauls of the north were the only people who had joined him since he crossed the Alps. The Romans, indeed, continued to suffer cruelly, and their ordinary revenues were grievously curtailed. It was agreed that a great effort must be made in the ensuing campaign; an overpowering force was to be brought against Hannibal; he was to be crushed, if not by skill, by numbers.

When the day of electing the consuls came, out of six candidates C. Terentius Varro alone obtained a sufficient number of votes in any tribe to be returned. It is difficult to ascertain the true character of this man. His vigorous eloquence had won the confidence of the people; but so much is plain, that he was no general, and his election was esteemed a public misfortune by the senate. Varro himself presided at the election of his colleague, and the senate, anxious to provide an able general, put forward L. Æmilius Paulus as a candidate. Paulus had shown his ability in his former consulship, when he concluded the Illyrian War in a single campaign. His manners were unpopular; but so earnestly did the senate represent the necessity of the case, that he was returned without opposition.

These were the consuls elected to fight Hannibal. Their four legions were to be added to the four which Fabius commanded just before; and these eight legions were raised to more than their usual complement, so that the whole army to be commanded by the consuls must, with the allied force, have amounted to at least eighty thousand foot and more than six thousand horse.

In 216, the late consuls (Atilius had succeeded Flaminius), now serving as proconsuls, moving from Larinum southwards towards Venusia, had busied themselves with forming magazines at Canusium and Cannæ; and on the plain near the latter place their camp was formed. Hannibal, as the spring advanced, exhausted his supplies; and having by this time received recruits from Cisalpine Gaul, he made a rapid movement and seized the Roman magazine at Cannæ, encamping not far from that place, on the left bank of the Aufidus. The proconsuls sent home word of this disaster, but received strict orders to continue on the defensive till the consuls arrived to take the command. Yet it was some time before this took place, certainly not till near the end of July, for the great battle, which is now to be described, was fought on the second of August, [\[53\]](#) and it was fought soon after the arrival of the consuls.

The consuls immediately moved the army to the neighbourhood of Hannibal, with the intention of offering battle. But when Paulus observed the open plain, he was desirous to put off an engagement, and manœuvre so as to draw the enemy into ground less favourable for the action of cavalry. Varro, however,

thought otherwise; and now appeared the evil of both consuls being joined in command of the same army. It was a repetition of the arrangement which had answered so ill in the last years with Fabius and Minucius; with this additional evil, that the consuls, instead of dividing the army between them, took the command of the whole on alternate days. The consuls were, by the constitution, equal, and Varro was far too confident of success to give way to his more experienced colleague. Æmilius felt bitterly the truth of Fabius' parting injunction: "Remember that you will have to oppose not only Hannibal, but also Varro."

On the first day of his sole command, Varro moved the whole army to the right bank of the Aufidus, between Cannæ and the sea, so that only the river separated the Roman camp from that of the Carthaginians. Next day Æmilius fortified a smaller camp on the left side of the river, fronting Hannibal, so as to secure the passage of the river, but resolutely declined battle. On the third day, however, when morning broke, the red standard, which was the Roman signal for battle, was seen flying from Varro's tent. The men rejoiced at this; they were weary of their long inactivity; they were confident in their numbers, and the resolution of their favourite Varro was highly applauded.

When Æmilius found that a battle must be fought on the plain of Cannæ, he did his best to support his colleague. The whole army was drawn up facing nearly south, with the right resting on the river Aufidus. The Roman cavalry, only twenty-four hundred strong, were on this right flank; the left was covered in like manner by the cavalry of the allies. Æmilius commanded on the right, Varro on the left; the centre was under the orders of Servilius and Atilius, the proconsuls. It must be especially observed that the legionaries and allied infantry were not drawn up, as usual, in an open line, but with the ranks made deep and closed up almost like the phalanx. It has been above observed how serviceable the phalanx was on plain ground; and probably the consuls imagined that by these compact masses of infantry they might offer a more complete resistance to the formidable cavalry of Hannibal.

But Hannibal skilfully availed himself of this close array, and formed his line accordingly. He had crossed the river early, as soon as he saw the Romans in motion. The Spanish and Gallic infantry, much inferior in number to the Romans, he drew out in an extended line, equal in length to that of the enemy, but much less deep and massive. This line advanced in a convex form, and at each end he placed his Africans, so as to form two flanking columns of narrow front but great depth. He himself, with his brother Mago, commanded the infantry. On his left flank, next the river, were the heavy cavalry of Spain and

Gaul, commanded by an officer named Hasdrubal, not the brother of the general. On the right were the Numidian light horse, under the orders of Maharbal.

After some indecisive skirmishing between the light troops, the real battle began with a conflict on the river side between the Roman cavalry and the horse of Hasdrubal. The latter were greatly superior in force, and charged with such effect as to drive the Roman horse across the river.

Meantime the Roman legions, and their allied infantry, advanced steadily against Hannibal's centre. The long crescent-shaped line above described was unable to withstand the shock. Nor had the general expected it. On the contrary, he had instructed the centre so to fall back as to form a concave figure, and then the whole line retired slowly, so as to draw on the Roman masses between the African flanking columns. The Romans pressed eagerly on the retiring foe; but as they advanced, the Africans attacked the Romans on both flanks. The latter, jammed together, and assailed on both sides, fell into great disorder, very few of their vast army being able to use their weapons. But the consul, Æmilius, who had been wounded by a sling in an early part of the action, contrived to restore some sort of order, and it seemed as if the battle was not lost; when Hasdrubal fell upon the rear of the legions and the rout became complete.

This able officer, after destroying the Roman cavalry, had led his heavy horse round to the other wing, where he found the Numidians engaged with the allied cavalry. The latter fled in confusion; and Hasdrubal, leaving Maharbal to pursue them, made that decisive charge upon the rear of the legions which completed the defeat of the Roman army.

Then the battle became a mere massacre. The Romans and allies, mingled in a disorderly mass, were cut down on all sides. The consul, Æmilius, fell. Varro, with but seventy horsemen, escaped to Venusia. Other parties of fugitives made good their retreat to Canusium; some thousands took refuge in the camps. But on the bloody field that evening, there lay dead, at the lowest computation, more than forty thousand Roman foot and three thousand horse. The loss in the cavalry involved the death of some of the wealthiest and most distinguished men at Rome. With them had fallen one consul, two proconsuls, two quæstors, one-and-twenty out of eight-and-forty tribunes, and not less than eighty senators. All who had taken refuge in the camp surrendered at discretion next day. Hannibal's loss is variously stated at from six to eight thousand.

This, then, was the battle of Cannæ. History does not record any defeat more complete, and very few more murderous. The great army levied to conquer

Hannibal had been annihilated. The feverish anxiety with which all men at Rome followed the consuls in thought may be imagined; those who stayed behind in horrible suspense, flocked to the temples, offered vows, consulted the auguries, raked up omens and prophecies, left no means untried to divine the issue of the coming battle. What must have been the dismay, what the amazement, with which they received the first uncertain tidings of defeat! What the despair, what the stupor, which the dreadful reality produced!

Among the fugitives who came in with the tidings, was a tribune of the legions, Cn. Lentulus by name. As he rode off the field he had seen Æmilius the consul sitting on a stone, mortally wounded. He had dismounted and offered him his horse. But the consul replied, "No, my hours are numbered: go thou to Rome, seek out Q. Fabius, and bid him prepare to defend the city; tell him that Æmilius dies, as he lived, mindful of his precepts and example." To Fabius, indeed, all eyes were now turned. The senate instantly met; and at his motion each senator was invested with the power of a magistrate; they were to prevent all public lamentations; to hinder the people from meeting in the Forum, lest they should pass resolutions in favour of peace; to keep the gates well guarded, suffering no one to pass in or out without a special order. Every one feared to see the army of Hannibal defiling through the Apennines upon the plain of Latium.

What the Romans feared the Carthaginians desired. "Only send me on," said Maharbal to the general, "with the cavalry, and within five days thou shalt sup in the Capitol." But Hannibal thought otherwise. His army was small; he was totally unprovided with materials for a siege; Rome was strongly fortified. He felt that the mere appearance of his army before the walls would rather rouse to action than terrify into submission; and meanwhile the golden time for raising the Samnites and other nations of Italy might be lost. Already he was in negotiation with the leading men at Capua, a city second only to Rome in point of size, superior in wealth. To this place he resolved to march as soon as his men were rested. When their allies had deserted, Rome must agree to his terms, without giving him the trouble of a siege.

He resolved, however, to try the temper of the Romans, and accordingly sent ten of the chief men among his prisoners, with offers to hold all whom he had taken to ransom. The senate, on the motion of T. Manlius Torquatus, a man who had inherited the stern decision of his ancestor, refused to admit the messengers to an audience, and ordered all to return, as they had bound themselves, to Hannibal's camp. Hannibal, greatly provoked at this almost contemptuous reply to his advances, sold the greater part of his prisoners into slavery. This was but

the common custom of the times. But besides this, he reserved the bravest and noblest youths to fight as gladiators for the amusement of his army; and on their refusal he put them to death by torture. The fact shows that in moments of passion Hannibal was too justly liable to the accusation of barbarous cruelty.

The senate were now busily occupied in taking all steps possible for the safety of Rome. The public horror was increased by a discovery that two vestal virgins had been guilty of unchastity. One was, as the law directed, buried alive; the other put herself to death. To avert the wrath of the gods, Fabius Pictor was sent to consult the Greek oracle at Delphi; and by the orders of the Sibylline books, a Greek man and woman and a Gallic man and woman were buried alive in the Forum, according to the same horrid practice used in the last Gallic War. But to these superstitious rites were added wiser precautions. Fabius, with the coolness of age and experience, continued to direct their measures. M. Claudius Marcellus, now prætor, was sent to take the command of the fugitives in Apulia; for despatches had arrived from Varro, stating that he had been joined by about four thousand men at Venusia, and that about the same number had assembled at Canusium under Appius Claudius, young P. Scipio (now about nineteen years of age), and other tribunes. It was added that some of the young nobles at Canusium, headed by a Metellus, had formed a plan to fly from Italy and offer their services to some foreign prince, despairing of the republic; that young Scipio had gone instantly to the lodgings of Metellus, and standing over him with a drawn sword, had made him swear that neither would he desert the republic, nor allow others to do so; that, to support the noble conduct of Scipio, Varro had himself transferred his headquarters to Canusium, and was using all his efforts to collect the remains of the defeated army.

Having given up his command to Marcellus, Varro set out for Rome. With what feelings he approached the city may be imagined. But as he drew near, the senate and people went out to meet him, and publicly thanked him, “for that he had not despaired of the republic.” History presents no nobler spectacle than this. Had he been a Carthaginian general, he would have been crucified.

The dictator ordered levies in Rome and Latium. But the immense losses sustained in the three past years had thinned the ranks of those who were on the military list. From the action on the Ticinus to Cannæ, the loss of the Romans and their allies, in battle alone, could not have been less than eighty thousand men. The dictator, therefore, proposed to buy eight thousand slaves to serve as light troops; and also to enrol debtors, prisoners, and other persons by law incapable of serving in the Roman legions. Marcellus, with the remains of the

army of Cannæ, took his post at Casilinum. All commanders were instructed to keep to the defensive system of Fabius, and on no account to risk another battle.

Meanwhile Hannibal had advanced through Samnium to Capua, where he found all prepared to receive him. The senate, being in the interest of Rome, was dismissed, and the chief power committed to a popular leader, named Pacuvius Calavius. His first act was to seize on Roman residents and put them to death; he then made an agreement with Hannibal that no Carthaginian officer should exercise authority in Capua; and demanded that three hundred Roman prisoners should be put into his hands as hostages for the safety of three hundred Capuan knights who were serving in the Roman army in Sicily. Hannibal agreed to these demands, and entered Capua in triumph. One man only, by name Decius Magius, ventured to oppose these measures. Hannibal treated him with magnanimous clemency, and contented himself with sending him off to Africa.

All southern Italy had by this time declared in Hannibal's favour. Most of the Apulians, the Hirpinian and Caudinian Samnites, the Surrentines, most of the Lucanians, the Bruttians, and all the Greek cities of the south which were not held by Roman garrisons, welcomed him as their deliverer. It seemed as if he were now about to realise his great project of raising Italy in insurrection against Rome.

He was obliged to send detachments of his army into these several districts; and he employed what small force he still retained in attempting to gain possession of the cities in the plains of Campania. Nuceria, Acerræ, and others submitted, as Capua had done. But Neapolis and Cumæ closed their gates; and the senate of Nola, fearing that the people might rise against them, as at Capua, sent for Marcellus to Casilinum. This bold officer threw himself into the city, and by a successful sally repulsed Hannibal from the gates. He then seized and executed seventy persons who were suspected of treason, and entrenched himself strongly in a fixed camp near the city. Hannibal, thus repulsed from Nola, determined to invest Casilinum, which from its proximity to Capua was likely to prove a troublesome neighbour.^[54] The garrison held out obstinately, but were at length obliged to yield. This was almost the only town in Italy which Hannibal took by a regular siege.

Hannibal now went into winter quarters at Capua, in expectation of receiving succours from home. Soon after the battle he had sent off his brother Mago to carry home the tidings of his great success. For three years he had pursued a career of victory unassisted by the government; Rome was at his feet; he only

wanted force enough to crush her. In proof of the greatness of the victory of Cannæ, Mago poured out on the floor of the senate-house a bushel of gold rings, which had been worn by Roman knights who had fallen on that fatal field. But the jealous government, headed by a Hanno, the mortal enemy of the Barcine family, listened coldly to Mago's words; they asked "whether one Roman or Latin citizen had joined Hannibal? He wanted men and money; what more could he want, had he lost the battle instead of winning it?" At length, however, it was agreed that Mago should carry reinforcements to Hannibal. But the war in Spain assumed so threatening an aspect, that these succours were diverted to this nearer danger, and Mago was ordered to the support of his brother Hasdrubal in that country. All that reached Hannibal was a paltry force of four thousand Numidian horse, with about forty elephants, and a stinted supply of money.

[216-215 B.C.]

Perhaps the general had not expected much from this quarter. No doubt the person to whom he looked for chief support was his brother Hasdrubal in Spain. But here he was doomed to disappointment. It will be remembered that P. Scipio, the consul of the year 218, when he returned from Marseilles to Pisa, had sent on his brother Cneius into Spain, according to the original orders of the senate. The wisdom of this step was proved by the event. Cn. Scipio landed at Emporiæ (Ampurias), an old Greek colony. Within the year he had driven Hanno across the Ebro. In the next year, the year of Trasimene, he defeated Hasdrubal by sea, ravaged the coast up to the suburbs of New Carthage, and made large booty in one of the Balearic Isles. P. Scipio joined his brother towards the close of the same year; and when the battle of Cannæ made Hannibal master of southern Italy, the two brothers had subdued all northern Spain.

Hannibal's hopes, therefore, of reinforcements for the next campaign rested with his new Italian allies. The additional cavalry and elephants from Carthage would still give him the command of the open country. But the Romans had learned wisdom by sore experience, and Hannibal could not expect to win great victories, such as had marked his first three campaigns. What he wanted was a good engineer corps and siege apparatus, to take the Latin colonies and other free towns, which even in the districts that had joined him still maintained the cause of Rome. Why he did not employ his winter at Capua in organising a force of this nature we know not. But, whatever was the cause, he was never able to take towns by force; and the Romans never gave him an opportunity of winning another great battle. Consequently all the Latin colonies and free towns

remained faithful to Rome, and Hannibal was only half master even of southern Italy.

The Romans, for their part, passed the winter^[55] in the most active preparations. The first step necessary was to fill up the numerous vacancies caused in the senate by the late disastrous battles. It appeared, on calling over the list, that not fewer than 177 members were missing. Sp. Carvilius proposed to recruit the ranks of the senate by admitting the chief citizens of the Latin towns. But this liberal proposal was not listened to, and it was resolved to commit the whole business to the care of a dictator, specially appointed for the purpose. The person chosen was M. Fabius Buteo, the same who had been sent as chief ambassador to Carthage in the year 219 B.C. He was an old man, universally respected, and the way he discharged the duty laid upon him gave great satisfaction. The bravest and the worthiest men were named as the new members. The consuls elected for the ensuing year were Ti. Sempronius Gracchus, and L. Postumius, now prætor commanding in Cisalpine Gaul. But before the ides of March came the sad intelligence that Postumius, with all his army, had been cut off by the Gauls. Fabius Maximus himself was elected consul for the third time, to supply his place. Marcellus and Varro were to remain in command as proconsuls.

To add to the difficulties of the Romans, means were scanty to support the vast expenses of the war; for the revenues of the whole of southern Italy were cut off.

It must have been a further discouragement to find that Hannibal had entered into negotiations with Philip, king of Macedon. The messengers of the king were taken on their way to Capua. For the present, therefore, the danger to be expected from this quarter was averted; but for the future the prospect was made more gloomy.

Few things, probably, could mark the public feeling more than a law which was passed in the next year at the instance of the tribune, Oppius, by which it was forbidden that any woman should wear a gay-coloured dress, or have more than half an ounce of gold to ornament her person, and that none should approach within a mile of any city or town in a car drawn by horses. Public need must be very urgent before it is possible to restrain private expense by enactments so rigid as those of the Oppian law.

SECOND PUNIC WAR: SECOND PERIOD (215-211 B.C.)

[215 B.C.]

The first period of this great war closed with the revolt of Capua. That which now claims our attention ends with the recovery of that important city by the Romans.

After the battle of Cannæ, Q. Fabius Maximus, great-grandson of that Q. Fabius who won so high a name in the Second Samnite War, became for some years the virtual chief of senate and people. He was already an old man; more than seventy summers had passed over his head. His disposition was so mild or so apathetic that he was known by the popular name of Ovicula, or the lamb. His abilities seem not to have been great. His merit was that he had the hardihood to avow that the Roman militia were no match for Hannibal's veterans, and the courage to act on his belief. The cautious system which he had practised after the battle of Lake Trasimene had excited discontent; but the great defeat of Cannæ had most unhappily vindicated it. For some years it was rigorously carried out by commanders more skilful in war than Fabius himself.

Of these coadjutors the ablest was unquestionably M. Claudius Marcellus, who was called the Sword of Rome, as Fabius was called the Shield. He also was past the middle age, being at this time more than fifty. In his first consulship he had distinguished himself by a brilliant victory over the Insubrian Gauls; and his name now stood very high, for having given the first check to Hannibal in his career of victory. Marcellus was a true Roman soldier—prompt and bold in action, resolute in adversity, stern and unyielding in disposition, blunt and illiterate, yet not without touches of finer feeling, as was proved at the siege of Syracuse. With him must be mentioned Ti. Sempronius Gracchus, a man of humane and kindly temper, and possessing high talents for command. Had he not been cut off so early, he might have rivalled the fame of Marcellus.

Q. Fulvius Flaccus, who, like Marcellus, had already been twice consul, disdained not for the two following years to act as prætor of the city. He enjoyed the confidence of Fabius and the senate, and this office gave him, in the continued absence of the consuls, the whole management of the home government. He was not less than sixty years of age, discreet and cautious as Fabius himself, but more active, energetic, and relentless.

To carry out the defensive system of war now adopted, the two consuls and a proconsul were stationed in Campania, each with two legions and their auxiliary cohorts. In the present year Fabius took post on the Latin road, between Cales and Casilinum; Gracchus occupied the entrenched camp, which had been formed by Marcellus near Sinuessa; and Marcellus himself occupied a similar camp near Nola. Thus these commanders were always ready to harass Capua,

and were also able to make forays into Samnium, Apulia, and Lucania whenever Hannibal was absent. Their connection with the sea was maintained by the great seaports of Naples and Cumæ.

Hannibal, on the other hand, formed a strong camp on the ridge of Mount Tifata above Capua. But he was often obliged to move his forces into the south, leaving the Capuans to defend themselves. We have no means of estimating the amount of Hannibal's army, but it may be inferred that it was small; we never find him able to act in force both in Campania and in the south.

He soon came in collision with the consul Gracchus. This general was in his camp at Sinuessa, busily employed in training two legions of slaves, who, by the name of volones or volunteers, served under his command. Here he received information from the people of Cumæ that the Capuans were coming to hold a festival near their city, and he was enabled to fall upon the Capuans by night, and slaughter a great number. The news soon reached Hannibal, who descended from his camp, only to find Gracchus safe behind the walls of Cumæ.

While Gracchus was thus engaged at Cumæ, Fabius had occupied his camp at Sinuessa, and Marcellus was making forays in the Samnite country. The sufferers sent earnest appeals for defence to Hannibal, who now appeared a second time before the walls of Nola, being induced by some of the popular party, which in all the cities was hostile to Rome, to hope that the place might be betrayed. But Marcellus made a well-timed sally, in which he cut off a large body of the Carthaginian army; and Hannibal, again retiring in disappointment, went into winter quarters at Arpi in Apulia.



A ROMAN GENERAL

(Based on De Montfaucon)

[214-212 B.C.]

Returning spring (214 B.C.) found Hannibal again in his camp on Tifata, and the same Roman commanders opposed to him. Fabius was still consul, with Marcellus for his colleague; while Gracchus had taken the place of the latter as proconsul. The circumstance of the election of these consuls deserves noting, because it shows that the people had completely surrendered their right of free choice into the hands of Fabius. The old consul purposely halted in the Campus Martius, and held the election without having entered the city, by which means he retained his imperium. The prerogative century, which happened to be the juniors of the Aniense tribe, gave their vote for M. Æmilius Regillus and T. Otacilius Crassus. Otacilius was a nephew of Fabius, and had served as prætor in command of the fleet during the current year, but without much credit. Upon this vote being given, the old consul stopped the proceedings. "The republic," he said, "was struggling for existence; she was maintaining nearly twenty legions; and that with revenues diminished and citizens thinned: what was the use of all her exertions if she committed her armies to untried men? Therefore," he concluded, "go, lictor, call back the juniors of the Aniense tribe to give their vote anew." All men felt that the old man had not only power, but reason on his side. The same century, which had voted for other men, now gave their voices for Fabius himself and Marcellus.

At the same time the senate gave an earnest of their stern determination by passing a decree that the soldiers of Cannæ should be sent to serve in Sicily, without hope of honour and glory, till the end of the war. And the censors, in the course of this year, summoned before them Metellus and the others who had wished to desert the republic after the defeat of Cannæ, and deprived them of their civic rights.

Early in this campaign, Hannibal was enticed from Campania by a message sent from certain friends whom he had made within the walls of Tarentum, and left Hanno to cover Samnium and Campania. Hanno seems to have had hopes of surprising the Roman colony of Beneventum. But the proconsul Gracchus threw himself into the town; "And now," he told his slave-soldiers, "now the time was come when they might win their liberty. Every one who brought in an enemy's head should be made free." In the battle which followed, victory was long undetermined; till Gracchus proclaimed that without victory none should be enfranchised, but if they

conquered, none should remain a slave. Thus the desperate conflict was determined in favour of the Romans, and Hanno, after great loss, made good his retreat back into the Bruttian territory. Then Gracchus fulfilled the promise made to his volones, and celebrated their enfranchisement by a public festival, in which they all appeared wearing white caps in token of liberty. So pleased was their commander with the scene, that he had a picture painted to commemorate it on the walls of the temple of Liberty on the Aventine Hill.

Hannibal, therefore, had the mortification to hear of this reverse, without the satisfaction of succeeding in his own expedition. For M. Valerius Lævinus, the Roman prætor stationed at Brundusium, being informed of the plot to betray Tarentum, threw a strong garrison into the place under the command of M. Livius, and the conspirators could not fulfil their promises.

The next year (213 B.C.) was still less fruitful in decisive events than the two foregoing. That is, it was favourable to the Romans; for to Hannibal's cause inaction was fatal. And there are not wanting indications to show that the Italians who had joined him began even now to falter in their resolution, and to look with fearful eyes on the little progress he had made since the battle of Cannæ, and on the tenacity with which the Romans kept hold of every city. Arpi in Apulia, Hannibal's late winter quarters, was betrayed to Fabius the Younger, who was now consul, assisted by his father as legate. The three hundred Capuan knights, who were in the service of Rome at the time when their city threw itself into Hannibal's arms, had shown their disapprobation of this step by enrolling themselves as citizens of Rome; and about this time one hundred and twelve more of the same order came in to the Roman camp at Suessula. But out of Italy, Hannibal's skilful negotiations had raised up enemies to Rome wherever his envoys could find an opening—in Macedonia, in Sardinia, in Sicily.

It has been mentioned that the first letters of Philip of Macedon to Hannibal had been intercepted by the Romans; and through fear of an attack from this quarter they had stationed Lævinus with a fleet at Brundusium. A second embassy was more successful, and an alliance was concluded by Hannibal with the king, by which the latter bound himself to send an auxiliary force to support the Carthaginians in Italy. But Lævinus and his successors carried the war into Epirus, and Philip was unable to send the promised succours.

In Sardinia an insurrection broke out in the year after Cannæ. Q. Fulvius, the city prætor, was ordered to provide for its suppression, with leave to appoint any commander whom he thought fit. He straightway made choice of T. Manlius Torquatus, a man as stern and uncompromising as himself, who in his consulship twenty years before had first conquered the island. The old general landed with little delay, and in one decisive battle completely restored Sardinia to subjection.

Affairs in Sicily gave much more trouble. Indeed in the years 211 and 212 this island became the chief seat of the war. Hiero, the old king of Syracuse, who for fifty years had never faltered in his alliance with Rome, died soon after the fatal day of Cannæ. He was succeeded by his grandson Hieronymus, a youth of fifteen years of age, whose imagination was captivated by the brilliant career of Hannibal. The able Carthaginian soon availed himself of the opportunity which thus presented itself to send over agents, into whose hands the young prince completely surrendered himself. These were two brothers named Hippocrates and Epicydes, Syracusan Greeks by descent, but natives of Carthage. The young king, however, after little more than a year's reign, was assassinated by a gang of obscure conspirators; a republic was proclaimed at Syracuse; and shortly after, all the remaining members of the royal family were massacred with circumstances of singular atrocity. The question now was whether the new government should side with Rome or Carthage. The brothers, Hippocrates and Epicydes, at first resolved to return to Hannibal; but they changed their plan, and pretending to fall in with the views of the conspirators, were elected generals-in-chief with several others. Yet the popular feeling seems to have inclined towards Rome, and Hippocrates, unable to control it, contrived to leave Syracuse with a body of troops, and repaired to Leontini, where he was joined by his brother Epicydes. They then threw off the mask, and the Leontines declared themselves independent of Syracuse.

This was probably late in the year 214 B.C. And about that time the consul Marcellus arrived to take the command of the army in Sicily.

Marcellus, without delay, laid siege to Leontini, and took the town by assault. He did what he could to spare the inhabitants; but he was guilty of a piece of most imprudent severity in scourging and putting to death as deserters two thousand of the garrison, who had once been in the service of Rome. It appears that there were many soldiers of like condition now in the

Syracusan army. When they heard of the cruel death of their comrades at Leontini, they lent a ready ear to the persuasion of Hippocrates and Epicydes, who had escaped from Leontini, and turned the severity of Marcellus to good account. These two adventurers were elected sole generals, and Syracuse closed her gates against Rome. Marcellus made some fruitless attempts at negotiation and finally commenced the siege of Syracuse.

The city of Syracuse had been greatly enlarged since the Athenian expedition. The island of Ortygia had become the citadel, and the suburb along the seacoast, called Achradina, was now part of the town. The rugged triangular surface called Epipolæ was well fortified, and its northern approaches, especially, were strongly defended by a fort called Hexapylum.

Marcellus at first attempted to take the city by assault. He himself attacked the sea wall of Achradina, while his officers attempted to force Hexapylum. The Romans were always famous for their skill in the attack and defence of fortifications, and Marcellus was well provided with engines of all kinds. But within the walls was an engineer more skilful than any the Romans possessed. Archimedes, the most celebrated mathematician of ancient times, was now seventy-five years old, but age had not quenched the inventive vigour of his mind. He was so devoted to abstruse calculations that sometimes he forgot even to take his meals; yet speculation had not unfitted him for practical pursuits. Marvellous are the stories told of the engines which he invented to thwart the assaults of the Romans, both by sea and land. The whole wall was armed with ballists and catapults of immense power, so that the ships dared not come within shot. If they ventured to get close under the walls, favoured by the darkness of night, they were galled by a fire from myriads of loopholes, and nearly crushed by enormous stones let drop from the battlements; or one end of the ship was grasped by an "iron hand" let down from a projecting crane, which suddenly lifted it up, and as suddenly let it go, so that first one end and then the other was plunged in the water. It is said also that burning-glasses of great power were so placed as to set on fire ships which approached within their reach. This is probably a fiction. But this much is certain, that Marcellus was compelled to desist from his assault, and began to blockade it by regular lines of circumvallation. After many months the Romans were as far from taking Syracuse as ever.

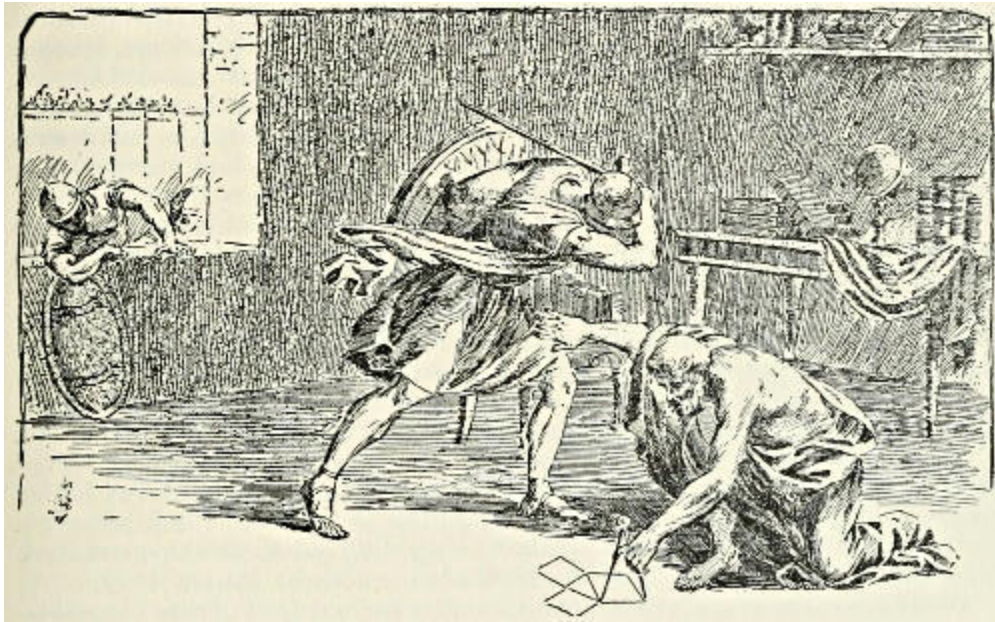
Meantime, the Roman cause was daily losing ground in Sicily. Even Morgantium, the headquarters of the fleet, surrendered to Carthage; and Enna, a strong fortress, was only saved by the prompt cruelty of the commandant, who massacred the whole of its inhabitants. But this barbarous act, though efficacious on the spot, served still more to alienate the Sicilians from Rome. Agrigentum surrendered, and numerous other towns threw off the yoke.

[212 B.C.]

But there was treason within the walls of Syracuse. Marcellus at length succeeded in scaling the walls of Hexapylum by night, when by reason of a festival they were left unguarded. He soon gained possession of the whole upper city; and as he gazed from the heights of Epipolæ on the fair view beneath him, even his rude nature was so affected by the beauty of the scene and the greatness of his success, that he burst into a flood of tears. The southern quarters of the town surrendered; but Epicydes, within Achradina, prepared for a desperate defence; and Hippocrates, who had gone to obtain succours from Carthage, soon returned with a considerable force. But Marcellus lay safe within the upper city, and the army of Hippocrates, encamped on the marshy ground at the mouth of the Anapus, was thinned by disease as the hot weather came on: among the dead was Hippocrates himself. Still the sea was open, and a fleet was daily expected from Carthage. At length it came in view; but the Roman squadron put out to meet it, and great was the disappointment of Epicydes, when he saw the Carthaginians bear away towards Italy. He left the city secretly and fled to Agrigentum.

Many of the garrison were deserters from the Romans, who could expect little mercy from the severe Marcellus. But the rest, when they found themselves deserted by their general, slew their officers, and admitted Marcellus by night within the walls of Achradina. Next morning, the city was given up to plunder; and in the massacre which followed, Archimedes was slain by a soldier, whose question he did not answer, being absorbed in a geometrical problem. For the honour of Marcellus, it should be recorded that he was deeply grieved by this mischance, that he gave honourable burial to the corpse of the philosopher, and showed great kindness to his relations. The royal treasure was reserved for the state; and the exquisite works of the Grecian chisel which adorned the splendid city were sent to

Rome—a beginning of that system of plunder which enriched Rome at the expense of Greece.



DEATH OF ARCHIMEDES

(After Mirys)

Thus fell Syracuse, in the summer of 212 B.C., after a siege of nearly two years. But though Syracuse was taken, Sicily was not conquered. It will be well to anticipate events a little, so as to finish our narrative of this war in this place.

[212-210 B.C.]

Epicydes, who had escaped to Agrigentum, continued his ceaseless activity, and persuaded the Carthaginian government to send out another large force to his aid. Hannibal also sent over an officer named Mutin or Mutton, who henceforth became the soul of the war in Sicily. This man was a half-bred Carthaginian; and the African blood in his veins degraded him as much in the eyes of pure Carthaginians, as the taint of black blood degrades a man in the United States. But his abilities as a soldier made Hannibal overlook vain distinctions, and Mutin took the command of the Numidian horse in the army of Hanno and Epicydes. With such skill did he use this formidable cavalry, that Marcellus rather lost ground than gained it. But the Carthaginian officers, jealous of the upstart commander, took occasion to

give battle to the Romans during his absence. Marcellus accepted the challenge, and gained a signal victory (211 B.C.).

In the next year (210 B.C.) Valerius Lævinus took the command in Sicily, where Mutin still continued to defy the Romans. But the jealousy of the Carthaginians so provoked the hot-blooded African, that he put himself at the head of his faithful Numidians, and threw open the gates of Agrigentum to the Roman consul. Epicydes escaped to Carthage, leaving the army an easy prey to the Roman legions. The town was sacked and plundered, and the inhabitants reduced to slavery. And in a short time Lævinus was able to send despatches to the senate, reporting the entire submission of all Sicily. Mutin was made a Roman citizen, and received five hundred jugera of state land. His Numidian horse took service with Rome.

It is now time to return to Italy, where also the war had resumed a more active form. Early in 212 B.C. Hannibal once more marched southward to Tarentum, and this time with better success than before. He encamped at a distance of about three miles, and was constantly visited by two young Greeks, who left the city under pretence of hunting. It was by the landward side that the conspirators proposed to admit Hannibal; and the time they chose was a night on which it was well known that M. Livius, the commandant, would be engaged in a drinking bout. The Romans went to bed in drunken security, and at daybreak found the city in the hands of the Carthaginians. A great part of the garrison were put to the sword, but Livius made good his escape to the citadel. Hannibal immediately took measures for besieging it; and the Tarentines, having dragged their ships overland from the harbour into the open sea, blockaded it both by sea and land.

Meanwhile the consuls—Appius Claudius and old Q. Fulvius Flaccus—were preparing to besiege Capua. Gracchus, with his volones, was stationed in Lucania; one prætor, Claudius Nero, occupied the old camp at Suessula; another, Cn. Fulvius, brother of the consul, lay in Apulia. The Capuans, fearing they should be cut off from all supplies, sent a hasty message to Hannibal at Tarentum: and he straightway sent orders to provision the town, in case it should be besieged. Hanno executed his difficult task with success; but near Beneventum, the consuls fell upon him, and captured the supplies. He was obliged to retire into Bruttium, and leave Capua to its fate.

The Roman armies now began to close round that devoted city. But they were destined to suffer heavy losses before they were able to invest it. First, Gracchus, who was coming northwards from Lucania, to reinforce the consuls, was slain in an ambuscade, and his volones, so long faithful to their favourite leader, dispersed and fled, each man to his own home. Next, Hannibal himself once more appeared in Campania. He had already sent Mago with a division of cavalry to encourage the Capuans; and now he entered the city in person without the knowledge of the consuls. He was in high spirits at his successes in the south. Not only Tarentum, but also Metapontum and Thurii, had joined him; and though Syracuse had fallen, the war was raging fiercely in Sicily. But the Roman commanders were cautious; and Hannibal, finding he could not bring on a battle, was anxious to return to press the siege of the citadel of Tarentum. He went by way of Lucania, and on his route met a Roman army, commanded by M. Centenius, an old centurion, who had collected an army, and with equal courage and folly attempted to bar Hannibal's march. He fell as a valiant soldier should fall; and many thousand brave men paid the penalty of trusting to his promises. Hannibal now passed the mountains into Apulia; and here, near Herdonea, he surprised the prætor, Cn. Fulvius. He was like Centenius in rashness, but unlike him in being a profligate and a coward. In this action also many thousand Romans were cut to pieces.

But notwithstanding these thick-coming losses, the consuls held to their resolution of blockading Capua. No sooner was Hannibal's back turned than they again appeared before the city; and before the expiration of the year the lines of circumvallation were completed. The armies of Rome always contained good workmen; their common agricultural habits accustomed them to the use of the spade; the great works that had for some time been going on, roads and aqueducts, had trained a number of men for military work. Yet the rapidity with which the vast extent of lines necessary to enclose a great city like Capua was completed, cannot but surprise us. These lines were secured by a double wall, and care was taken to supply the besiegers with provisions.

The consuls for the next year (211 B.C.) were not allowed to supersede Appius and Fulvius: to them was left the glory of completing well what they had well begun.

When the Capuans found themselves blockaded, their spirits fell, and they again sent an urgent message to Hannibal. In an assault upon the Roman lines, he was beaten off with loss. And now only one hope remained. It was possible that, if he threatened Rome itself, the besieging army might be recalled to defend the capital. Accordingly, he sent the Capuans notice of his purpose by means of a pretended deserter, and the next morning the proconsuls saw his camp on Mount Tifata empty. They thought, probably, that he had returned to the south. But they soon discovered the truth from country people, who came in full of horror to tell that Hannibal's wild Numidians and monstrous elephants were in full route for Rome. Fulvius sent word to the senate of this fearful visitation; and the opinion of Fabius was unanimously adopted, that one of the proconsuls should be recalled to defend the city with part of his army and the city legions, while the other was left to maintain the blockade of Capua. Accordingly, Fulvius marched straight to Rome by the Appian road, while Hannibal took a circuitous route by the north, to avoid the thick-studded cities which might have barred his passage. Fulvius, therefore, arrived at Rome before Hannibal, and encamped within a mile or two of the city. The consternation at Rome was in some measure quelled by the arrival of Fulvius; and still more, when Hannibal himself, after riding up to the Colline gate, and then skirting the walls, was attacked by the old proconsul, and obliged to fall back upon his camp. It is said that, while he lay there, the land occupied by his camp was put up to sale and bought at a price not at all below its value. Hannibal laughed, and bade an auctioneer put up the silversmiths' shops in the Forum for sale. But though he put a bold face upon the matter, he felt in his heart that he had failed. Rome was able to defend herself, and yet had left a sufficient force at Capua to continue the blockade.

The line of his retreat is as uncertain as that of his advance. It is known, however, that he conducted his army through Apulia into Bruttium, which became thenceforth his headquarters in Italy.

Meanwhile, Fulvius had returned to the lines round Capua, full of exultation. Time wore on, and famine began to oppress the wretched inhabitants. How long the desperate resistance was prolonged we know not. But at length it appeared manifest that surrender must ensue within a few hours; upon which Vibius Virrius, one of the insurgent chiefs, gave a

splendid banquet to all senators who would partake of it. Twenty-seven came, and when the feast was over, a poisoned cup went round, in which the guests pledged their host. They went home to die; and next morning the city was surrendered. The savage old Fulvius determined to wreak a bloody vengeance upon the leaders of the insurgents. Five-and-twenty were sent to Cales, to Teanum eight-and-twenty, there to await their doom. In vain Appius pleaded for milder measures. Fulvius heeded no intercession. On the morning after the capture, he rode in person to Teanum, and saw all the prisoners beheaded. He then galloped off to Cales; but when the prisoners there were being bound, a messenger from Rome brought him letters from the senate. He put them into his bosom, and ordered the executions to proceed; nor till all the heads had fallen, did he open the letters, which contained orders to reserve the prisoners for the judgment of the senate. Others of the chief men were imprisoned, and all the commoner sort were sold into slavery. The city itself was confiscated to Rome.

The fall of Syracuse and Capua had given a decided superiority to the Roman arms. Yet, though Hannibal was at present so weak that he could not leave the south, nor give effectual succour to his Campanian allies, there were many causes to give him hopes of retrieving his fortunes. The diversions made by Mutin in Sicily had proved most successful, and it was not till a year later that the cause of Carthage in that island was betrayed. Though the citadel of Tarentum still held out, that great city itself, with all Magna Græcia, except Rhegium, had joined Hannibal: and he lived in hope that at length Philip of Macedon would come over to oppose the common enemy.

Now also he looked with confidence to Spain. For a long time the successes of the Scipios had cut off all hope of succour from his brother Hasdrubal. The successes continued, notwithstanding the arrival of Mago with reinforcements from Carthage; many of the Celtiberian tribes enlisted under their banners, eager to try a change of masters; Syphax, a prince of the Numidians, formed an alliance with them, and they seemed thus early to have formed the design of carrying the war into Africa. In the year 212 B.C., the same which witnessed the fall of Syracuse and the investment of Capua, the two brothers entertained high hopes of a successful campaign. Cn. Scipio marched against Hasdrubal, the brother of Hannibal; Publius directed his course against a second Carthaginian army, under Mago. But

the Celtiberians in the army of Cneius deserted: and the Roman proconsul was in full retreat, when he heard that his brother Publius had been surprised and slain with a great portion of his army. The united Carthaginian armies now threw themselves on the retreating army of Cn. Scipio. He fell fighting bravely, with most of his officers. The remains of the Roman armies were collected by a brave knight, by name L. Marcius. But for the time the defeat and death of the two Scipios gave back to the Carthaginians all that they had lost in Spain since the departure of Hannibal.

The road now lay open for Hasdrubal to lead a large force to the assistance of his brother in Italy. Notwithstanding his losses, no Roman general had dared to meet him in a fair field of battle since Cannæ. What might he not hope when largely reinforced? It belongs to the history of the next period to show how irremediably these hopes were blighted.^c

FOOTNOTES

[51] From the year 223 to 153 B.C., the consuls entered office on the ides of March; after the latter date, on the calends of January.

[52] This is the statement of Polybius.^d The story in Livy,^c that Hannibal told the guides to lead him to Casinum, and that they by a mistake took him to Casilinum in Campania, is not noticed by the graver historian.

[53] It is probable, however, that the Roman Calendar was in error, and that the battle was really fought earlier in the year.

[54] Casilinum is the modern Capua. It lies on the river. The site of the ancient Capua is about two miles eastward, on an eminence.

[55] ["During this winter, at Rome, and in its vicinity, many prodigies either happened, or, as is not unusual when people's minds have once taken a turn towards superstition, many were reported and credulously admitted. Among others, it was said, that an infant of a reputable family, and only six months old, had, in the herb-market, called out, 'Io Triumphe'; that, in the cattle-market, an ox had, of his own accord, mounted up to the third story of an house, whence, being affrighted by the noise and bustle of the inhabitants, he threw himself down; that a light had appeared in the sky in the form of ships; that the temple of Hope, in the herb-market, was struck by lightning; that, at Lanuvium the spear of Juno had shaken of itself; and that a crow had flown into the temple of Juno and pitched on the very couch; that, in the district of Amiternum, in many places, apparitions of men in white garments had been seen at a distance, but had not come close to anybody; that in Picenum, a shower of stones had fallen; at Cære, the divining tickets were diminished in size; in Gaul, a wolf snatched the sword of a soldier on guard out of the scabbard, and ran away with it."—Livy.^e]



CHAPTER XII. CLOSE OF THE SECOND PUNIC WAR

THIRD PERIOD (210-207 B.C.)

[210-209 B.C.]

The last year's campaign was full of heavy discouragement to the Romans. Syracuse had been taken; but Sicily remained in full revolt. Capua had fallen; but Tarentum, all except the citadel, was lost. The unmolested march of Hannibal to the walls of Rome showed that no part of Italy save the fortified towns and entrenched camps could be called their own, so long as the Carthaginian general could lead his wild and lawless mercenaries whithersoever he pleased. The loss of Spain had placed before them the dreadful possibility that their great enemy might soon be reinforced by numbers so large as to make him stronger than he had been since he crossed the Alps.

It is evident that mutterings of discontent were beginning to arise against Fabius and his friends. The bitter lesson of Cannæ had taught the Romans the necessity of caution, and proved that, to act with success against Hannibal, they must act on the defensive. But was this system to last forever? Were they never to meet Hannibal in the field? Thoughts like these, no doubt, suggested the experiment of electing a popular consul for the year 210 B.C. When the votes of the prerogative century were taken, it

appeared that the men of their choice were old T. Manlius Torquatus, the conqueror of Sardinia, and that same T. Otacilius who had been ousted from his consulship five years before by his uncle Fabius. But Manlius immediately rose and declined the consulship; he was, he said, "old and nearly blind: a general should be able to use his own eyes. They must choose other and better men." The century, after some hesitation, obeyed, and gave one of their votes for Marcellus, as no doubt Fabius and the senate wished, while they bestowed the other upon M. Valerius Lævinus, who had served the state well in Epirus.

Valerius probably owed his choice to the fact that he was not disposed to submit to Fabius and Fulvius. An opportunity soon arose for showing this. As he passed through Capua on his way to Rome, the Campanians, smarting under the rule of Fulvius, besought him to let them follow in his train, that they might lay their grievances before the senate; and when he arrived at Rome, he was greeted by a deputation of Sicilians, who had heard with alarm that the imperious Marcellus was about to return to their island with consular authority. The affairs of both peoples were brought before the senate. As to the Campanians, the fathers confirmed in all respects the stern edicts of Fulvius; and not unjustly, for of all cities Capua had been most generously treated by Rome: her rebellion had been prompted, not by love of liberty (for she was already free) but by lust for power. Capua, therefore, now became a prefecture. On the other hand, Marcellus at once gave up his Sicilian province to his colleague Lævinus, and agreed to take the command in Italy against Hannibal; and the senate, though they ratified the previous measures of Marcellus, now recommended the Sicilians to the special care of Lævinus. Upon this, the Sicilian envoys, fearing the future anger of Marcellus, fell at his feet and entreated him to take them as his clients. For many years the Marcelli, his descendants, are found as patrons and protectors of the island.

Before the consuls took the field, they were called upon to meet the financial difficulties under which the state was labouring. The force which had been maintained by Rome now for many years was very large, and the cost enormous. The number of legions kept on foot since the battle of Cannæ had averaged about twenty; so that the number of soldiers, legionaries and allies, amounted to nearly two hundred thousand men. While the expenditure was thus prodigiously increased, the revenues were

greatly diminished; and it is a recorded fact that about this time corn had risen to many times its ordinary price. Although the imposts had been doubled early in the war, the state was obliged to contract loans in various ways. An extraordinary measure was now taken for manning the fleets. All citizens, except the poor, were required to furnish one or more seamen, with six months' pay and their full accoutrements. Senators were called upon to equip eight, and the rest in proportion to their rated property. Such was the Roman "ship-money."

The necessities of the present year (210 B.C.) were greater than ever. Every resource seemed to be exhausted. Among other means, the coinage had been gradually lowered in value. The as, which had originally been a pound weight of copper, had now been diminished to one-sixth of that weight; and all payments for the treasury were no doubt made in this depreciated coinage. The usual results of such measures had followed. A temporary relief was gained. But the prices of all articles were raised to meet the change, and public credit was shaken.

In these difficulties, the senate proposed again to levy ship-money. But the people were in no mood to bear it. They had been much impoverished in the last four years—continued increase of taxation had drained their resources; continued service in the army had prevented the proper cultivation of their lands; the marauding march of Hannibal in the year before had ruined many. The ferment caused by this new impost assumed a formidable appearance. The senate met to deliberate, and the consul Lævinus proposed that the great council should set an example of patriotic devotion. "Let us," said he, "contribute all our treasure for the service of the state. Let us reserve—of gold, only our rings, the bullæ worn by our sons, and for the ornaments of our wives and daughters one ounce apiece: of silver, the trappings of our horses, the family salt-cellar, and a small vessel, for the service of the gods, of copper, five thousand pounds for the necessities of each family." The proposal was carried by acclamation, and the noble example followed emulously by all the people. So eager was the throng which pressed to the treasury that the clerks were unable to make a full register of the names. This patriotic loan (for it was intended that it should be repaid hereafter) saved the state; and it was even more valuable in the spirit which it called forth, than for the actual relief which it afforded to the treasury.

The consuls now took the field. Marcellus arrived in Samnium only to hear that Cn. Fulvius Centumalus, the last year's consul, had shared the fate of his namesake and predecessor, Cn. Fulvius Flaccus, and had been cut off with the greater part of his army. The relics of this force were sent to be added to the remains of the army of Cannæ, which the relentless senate still kept in banishment in Sicily. Marcellus cautiously advanced to Venusia, and so dogged Hannibal's footsteps that he was unable to strike another blow. The town of Salapia in Apulia—where lived a lady whom Hannibal loved too well and who is said to have more than once detained him from the field—was betrayed to Marcellus, as Arpi had been to Fulvius, and was another example of the altered feeling of the Italians.

Lævinus, as has above been mentioned, was enabled by a stroke of good luck to finish the war in Sicily with ease and credit; and he returned to Rome accompanied by the redoubtable Mutin. Before he left Sicily he had sent over his fleet to examine the coasts of Africa. The officer despatched on this service learnt that the Carthaginian government were actively engaged in collecting troops to be placed under Hasdrubal's command for a second invasion of Italy from the north; he immediately forwarded this intelligence to the consul at Rome. The senate in alarm ordered Lævinus to return instantly to his province without waiting to preside at the comitia. He was to name a dictator for that purpose, and the person submitted to him for nomination was old Q. Fulvius, the governor of Capua. Lævinus, however, refused to name his personal enemy, upon which the ruling party referred the matter to the people, who peremptorily ordered the consul to name Fulvius, and no one else. But Lævinus, to avoid this necessity, had already left Rome, and the fathers were obliged to send for Marcellus to execute their orders. When the old dictator held the comitia, the prerogative tribe gave its vote for Fulvius himself and Fabius. An objection was taken by two of the tribunes, that a presiding magistrate could not allow himself to be elected. But this, like many other ordinances was overruled at this critical season by the senate, and the election proceeded. The next year was to see Hannibal confronted with the three men reputed to be the ablest commanders in Rome—Fabius and Fulvius the consuls, and Marcellus as proconsul. It was hoped that by their united efforts the enemy might be crushed before the arrival of Hasdrubal and his Spaniards.

But the result was not equal to expectation. In the very outset of this year (209 B.C.) the levies were delayed by a circumstance which looked even more threatening than the financial difficulties of the previous year. The Latin colonies, now thirty in number, have been mentioned as the chief stays of Roman power in the subject districts of Italy. They had hitherto borne the toils and expenses of the war unrepiningly. What then was the alarm of the consuls and the senate, when twelve of the thirty openly declined to comply with the requisition to furnish their contingents for the armies of this year. The refusal was due in part no doubt to exhaustion and poverty; but it was partly caused by anger at the fact that most of the defeated soldiers of Centumalus lately banished to Sicily were citizens of their towns. The consuls endeavoured to reason with them, but in vain; and when the deputies of the other eighteen colonies, which comprised all the largest and most important places, declared their steadfast and unaltered allegiance, they determined to pass the matter over for the present, saying that they would not deign to ask assistance from those who would not give it willingly.

[209-208 B.C.]

To provide for the current expenses a large treasure of gold, which had been reserved for the emergency of another Gallic war, was now first invaded.

Fulvius resumed his station at Capua, Marcellus was to engage Hannibal's attention in Apulia, while old Fabius made an attempt to recover Tarentum. Marcellus found his enemy at Canusium, and a series of indecisive actions followed, in which (although the Roman annalists claim the advantage for their hero) it is plain that he must have suffered greatly, for he remained inactive during the rest of the campaign. But fortunately for Fabius' attempt upon Tarentum, Hannibal's presence was required in Bruttium to defend his allies from a band of free mercenaries, who, formerly in the service of the Carthaginians in Sicily, had now been engaged by Lævinus, and sent to Rhegium to harass their old masters. The appearance of the great general was enough to scare these marauders into submission, but scarcely was this done, than he heard the news that Fabius had invested Tarentum. Instantly he put his army in motion, and marched day and night to relieve this important city. But he was too late. By treachery he had won the place, and by treachery he lost it. The officer in

command at Tarentum was a Bruttian. This man had a mistress, sister to an Italian serving in the army of Fabius; she it was who persuaded him to open the gates to the consul, and Hannibal, while yet upon his march, heard this disastrous news. The old consul gave up the despised city of the Greeks to be plundered by his soldiers, reserving the public treasure for the service of the state. But when he was asked whether he would have the statues and works of art taken to Rome, after the example set by Marcellus at Syracuse, "No," he said, "let the Tarentines keep their angry gods." The capture of Tarentum was the greatest exploit of Fabius, and it was his last—an honourable close to an honourable career.

Besides the recovery of Tarentum, the Samnites and Lucanians, long wavering, again returned to their allegiance, and were restored by Fulvius to their position as allies, without any notice being taken of their revolt.

Notwithstanding this, men were dissatisfied with the result of the campaign. Three consular armies had not sufficed to defeat Hannibal; Marcellus, reputed their best general, had done nothing. But the party who murmured against Fabius and his friends were as yet feeble. Very lately Lævinus had been compelled to relinquish his opposition; and when Marcellus appeared to give a narrative of his services, all men's hearts were turned, and not only was he forgiven freely, but was even elected consul for the ensuing year (208 B.C.). His colleague was T. Quinctius Crispinus, who had served under him in Sicily.

The defection of the Italians had no doubt weakened Hannibal, and the two consuls determined to throw themselves upon him with their conjoint force. They found him near Venusia, and every day they drew out their forces before his camp and offered him battle. But the odds were too great even for Hannibal, and he kept close within his entrenchments. It happened that between his camp and that of the consuls there was a hill, which Marcellus thought it desirable to occupy. Accordingly he rode up to the top, accompanied by his colleague and a small detachment of cavalry, unconscious that a large body of Numidian horse were lurking in the woods below. In a moment the consuls were surrounded. Marcellus was run through by the spear of one of these wild horsemen, and fell dead from his horse; Crispinus escaped mortally wounded to his camp. As soon as Hannibal heard of this great stroke of good luck he hastened to the scene of conflict, and saw with his own eyes his ablest antagonist lying dead before

him. His conduct proved the true nobility of his nature. He showed no triumph; but simply drew the gold ring from the dead man's finger, saying: "There lies a good soldier, but a bad general." He then ordered the corpse to receive a soldier's burial. Like his father Hamilcar, he warred not with the dead, but with the living.

Great was the consternation at Rome when intelligence of this untoward event arrived. The consul Crispinus lived just long enough to be carried in a litter to Capua, where he was on Roman ground, and could therefore execute the command of the senate to name a dictator. He named old Manlius Torquatus. But no attempt was made to molest Hannibal again this year. Torquatus only exercised his office in holding comitia for the election of new consuls. The occasion was a grave one. Never before, since the beginning of the republic, had she been bereft of both her consuls at one blow. But in order to understand the full importance of the choice now to be made, it must be mentioned that Hasdrubal, the brother of Hannibal, had already set out upon his march from Spain, and in a short time might be expected to arrive in Italy.

[211-208 B.C.]

All notice of the Spanish War since the death of the two Scipios has purposely been deferred. Here it will be enough to say, that soon after that event, the senate, well understanding the importance of maintaining the war in Spain, had endeavoured to retrieve their losses in that quarter; and in 211 B.C. young P. Scipio, the hero of the latter part of the war, had accepted the dangerous command left vacant by his father and uncle. In the next chapter notice will be taken of his splendid successes during the three years which had passed. But these successes had not served to divert Hasdrubal from his purpose. This general had collected an army of tried soldiers, which he skilfully carried through the heart of Spain, and, crossing the Pyrenees near Bayonne, entered Gaul by the pass which is now threaded by the high-road from Paris to Madrid. By this dexterous movement he eluded the vigilance of the Romans, who knew not whither he was gone. But towards the close of the present year news came from the friendly people of Marseilles, to the effect that Hasdrubal had arrived in Aquitania, and intended wintering in Gaul, as the season was too far advanced for the safe passage of the Alps.

[208-207 B.C.]

Such were the grave circumstances under which Torquatus summoned the people to elect consuls for

the year 207 B.C.

It might have been thought that the ablest patrician to be found was M. Valerius Lævinus, who was still in Sicily. Not only had he restored that province to order, but had laid in large stores of provisions for the Italian armies, and had assisted in other ways in lightening the expenses of the war. But the senate distrusted him: they had not forgotten the contumacious way in which he had quitted Rome, rather than name a dictator at their bidding. They therefore turned their eyes on C. Claudius Nero, a man of known energy, who had served now for many years under Fulvius and Marcellus. He had been sent to Spain at the first news of the disasters there, and remained in command till the appointment of young Scipio. All men agreed that Nero should be the patrician consul. But who was to be his plebeian colleague? Marcellus was dead, and Gracchus was dead; and Fulvius was nearly as old as Fabius.

At length it was resolved to choose M. Livius Salinator, a man who was also well stricken in years, for he had been consul with Æmilius Paulus in the year before Hannibal's invasion, and had triumphed with him over the Illyrians. But he had been accused of unfair division of the spoil taken in that Illyrian War, and had been condemned to pay a fine by the vote of all the tribes save one. Indignant at an unjust sentence, he had withdrawn to his estate in the country, and had only lately reappeared in the senate at the command of the censors, but when there, he sat in moody silence, till at length he started up to speak in defence of his kinsman Livius, the commandant of Tarentum, who was accused of having lost that city. On this occasion Fabius' conduct had not been conciliatory. For when it was urged in defence of the accused that he had mainly assisted in recovering the city, Fabius dryly remarked that he did not wish to condemn Livius: certainly he had assisted in recovering Tarentum, for if he had not lost it, it would not have been recovered at all. These recollections rankled in the heart of the old senator; and he refused the proffered consulship. Here, however, he yielded to the command, rather than the entreaty of the Fathers. But one difficulty remained. The cross-grained old man was at feud with his colleague Nero; and when friends tried to reconcile them, he replied that he saw no occasion for it: if they remained enemies, they would keep a keener watch for each other's faults. At last he gave way, and before they took the field the consuls were in perfect agreement.



A ROMAN HELMET

They hastened early in the year to their respective stations, Nero to take the command in southern Italy, against the feeble army of Hannibal; Livius to Ariminum on the frontier of Cisalpine Gaul, to await the arrival of Hasdrubal.

As soon as the season permitted, Hasdrubal advanced from his winter quarters to the passage of the Alps. He avoided the coast-road taken by his brother, and passed through the country of the Arvernians (who have left their name in French Auvergne), and thus came straight to the point where the Rhone and Isère meet, so as to take the same route over the mountains which had been pursued by his brother eleven years

before. The time of year was favourable: in the period which had elapsed the Gauls had become better acquainted with the Carthaginians; and Hasdrubal achieved his passage into Italy with little loss or difficulty. He straightway marched through the plains of Cisalpine Gaul to the banks of the Po, where the Roman colony of Placentia, one of the eighteen lately found faithful, had before defied the arms of Hannibal. Hannibal had not wasted time in assailing this town; but Hasdrubal probably wished to oblige the Gauls, whom he expected to swell the numbers of his army. For hitherto they had not given Hannibal much assistance. In the eventful year of Cannæ they had cut off the consul-elect Postumius, and still drank mead out of his skull. But since then they had remained quiet; and Varro, with a single legion at Ariminum, had sufficed to watch them. And now they seem to have given Hasdrubal indifferent support, so that the time he spent at Placentia must have been nearly thrown away.

Before he left his lines at Placentia, he sent off six couriers, four Gauls and two Numidians, to inform his brother of his intended route. Hannibal, meantime, had been constantly on the move—marching from Bruttium into Lucania, from Lucania into Apulia, from Apulia again into Bruttium, and then once more back into Apulia. We cannot but admire the skill with which

he eluded Nero, who pursued him with a double army of four legions. Yet it was one of these marches that accidentally proved the ruin of his cause. The couriers despatched by Hasdrubal from Placentia made their way into Apulia, but unfortunately arrived just when Hannibal was absent in Bruttium. They attempted to follow him, but missed their way, and fell into the hands of the prætor stationed on the Tarentine frontier. That officer immediately sent off the despatches found upon them to Nero at Canusium. An interpreter was procured, and the whole plan of the enemy's campaign was revealed to the consul. Hasdrubal told his brother that he intended to advance along the Adriatic, by way of Ariminum, and proposed that they should join forces in Umbria, in order to march upon Rome. Nero's determination was soon taken. Legally, he had no power to quit his district in southern Italy, but in this emergency he resolved to set all forms at defiance.

He picked out six thousand foot and one thousand horse, the flower of his army, and gave out that he would march at nightfall on a secret expedition into Lucania. As soon as it was dark, he set out; but the soldiers soon discovered that Lucania was not their destination. They were marching northwards towards Picenum, and they found that provisions and beasts of burden were ready for them all along the road, by the consul's orders. As soon as he was well advanced upon his march, he addressed his men, and told them that in a few days they would join their countrymen under Livius in his camp at Sena Gallica in Umbria; that combined they would intercept Hasdrubal and his invading army; that victory was certain; that the chief share of the glory would be theirs. The men answered such an address as soldiers should; and everywhere, as they passed, the inhabitants came out to meet them, pressing upon them clothes, victuals, horses—all, and more than all, that they could want. In a week's time they accomplished a distance of about 250 miles, and found themselves within a short distance of Sena. Nero halted till it was dark, that he might enter his colleague's camp unperceived by Hasdrubal.

Nero had previously written to the senate, informing them of his march, and urging them to throw forward a strong force to defend the defile through which the Flaminian road passes at Narnia, in case the consuls should be beaten by Hasdrubal. Answers had reached him, fully approving his bold design, and promising all support. It was, therefore, with full

confidence that he entered his colleague's camp, and beheld the watch-fires of Hasdrubal at not more than half a mile's distance in front. His men were warmly greeted by their comrades, and received within the camp of Livius, that Hasdrubal might not observe the increase of the army. After one day's rest, Nero urged immediate action, lest his absence from Apulia might be discovered by Hannibal, or his presence in Umbria by Hasdrubal. Accordingly, the two legions of Livius, the two commanded by the prætor Porcius, together with Nero's troops, drew out before Hasdrubal's camp and offered battle. The experienced eye of the Carthaginian was struck by an apparent increase of numbers; and his suspicions were confirmed, when he heard the trumpet sound twice in the consuls' lines. This convinced him that Nero had joined his colleague, and full of anxious fear as to the fate of his brother, he determined to retreat under cover of night; and when the next day broke, they found Hasdrubal's camp deserted. Orders were given to pursue. The Romans came up with the Carthaginian army on the banks of the Metaurus, about twelve or fourteen miles north of their former position. The river was swollen by rains, so that the Carthaginians could not pass it except at certain places; and, their guides having deserted them, they could not find the fords. Hasdrubal, therefore, was obliged to give battle with the river in his rear.^b

THE DEATH OF HASDRUBAL DESCRIBED BY POLYBIUS

[207 B.C.]

Hasdrubal was in all respects dissatisfied with the state in which things appeared. But as it was now too late to take other measures, because the Romans were already formed, and beginning to advance towards him, he was constrained to draw up the Spaniards, and the Gauls that were with him, in order of battle. He placed the elephants, which were ten in number, in front; increased the depth of his files; and ranged his whole army upon a very narrow ground. He then took his post in the centre of the line, behind the elephants; and moved to attack the left of the enemy; having before determined that in this battle he would either conquer or die.

Livius, leading on his troops with a slow and haughty pace, began the combat with great vigour. But Claudius [Nero] who commanded on the right, was unable to advance so as to surround the enemy; being utterly

obstructed by those difficulties of the ground which have before been mentioned, and which had determined Hasdrubal to make his whole attack upon the left. Anxious therefore, and not willing to remain inactive, he had recourse to the measure which the occasion itself suggested to him. For having drawn away his troops from the right, he led them round the field of battle; and, passing beyond the left of the Roman army, attacked the Carthaginians in flank behind the elephants. To this moment the success of the battle had remained doubtful. For both the Carthaginians and the Romans, well knowing that they had no hopes of safety but in victory, maintained the fight with equal bravery. The service also, which the elephants performed, had been the same to both. For these beasts, being enclosed between the two armies, and wounded by the darts, spread no less disorder among the ranks of the Spaniards, than among those of the Romans.

But when Claudius [Nero] fell upon the enemy from behind, the engagement was no longer equal. The Spaniards, pressed at once both in front and rear, were almost all slaughtered in their ranks. Six of the elephants were killed, together with the men that conducted them; and four, which had forced their way through the disordered ranks, were afterwards taken, but without their leaders. Hasdrubal, who had so often distinguished himself upon former occasions, displayed no less courage in this last action, and fell in the battle.

The Romans, as soon as they had gained the victory, pillaged the camp of the enemy. Finding many of the Gauls drunk, and sleeping upon their straw, they slaughtered them as victims without resistance. The prisoners were then collected together; and from this part of the booty more than three hundred talents were brought into the public treasury. Not fewer than ten thousand Gauls and Carthaginians fell in the engagement; and about two thousand of the Romans. Some of the Carthaginians that were of eminent rank were taken alive; the rest were destroyed in the action.^c

REJOICING AT ROME. NERO'S INHUMANITY AND TRIUMPH

At Rome, as may be well imagined, the news of Nero's march had filled all hearts with hope and fear. And now, after some ten days of intense anxiety, vague rumours came that a battle had been fought and won. Still,

men feared to believe what they wished; and the anxiety rose higher and higher, till the officer in command at Narnia sent home despatches to say that two horsemen had arrived at that place from the field of battle with certain news of a great victory. So eager were the people, that the prætor had great difficulty in preventing the despatches from being seized and torn open before they had been read in the senate. And when he brought them out from the senate house, and read them publicly from the rostra, a burst of exultation broke from every tongue; and men, women, and children thronged to the temples to bless the gods for their great deliverance. Thanks were decreed to the consuls and their armies; three days were appointed for a public thanksgiving to the gods. Never was public joy and gratitude more deserved. The battle of the Metaurus was the salvation of Italy; and Horace spoke with as much historic truth as poetic fervour when he said that “then, by the death of Hasdrubal, then fell all the hope and fortune of Carthage.”

The news was conveyed to Hannibal in a barbarous fashion. Nero had returned to his camp at Canusium as speedily as possible, and his lieutenants had kept the secret so well that Hannibal had remained ignorant of his absence; when one morning a grisly head was thrown into his camp, and Hannibal knew the features of his brother. Two prisoners sent in, and a large body paraded before the Roman camp, confirmed the dismal forebodings of the general, and he said with a heavy heart that “the doom of Carthage was spoken.” This treatment of his brother’s remains was an ill return for the generosity shown by Hannibal to the corpses of his opponents; and Nero, by this act, forfeited all claim to admiration, except such as must be bestowed on a skilful general and a resolute man.

Hannibal now retreated into Bruttium. The people of this wild country, still nearly as wild as it was then, clung to his fallen fortunes with unshaken fidelity. Here he maintained himself for four years longer, almost more admirable in adversity than in prosperity. Even now no Roman general was able to gain a victory over him; even now every veteran soldier remained faithful to his great leader. But he was driven into a corner, and stood like a lion at bay—still terrible, but without hope. The war in Italy may now be considered at an end.

The victory of the Metaurus was held to be an occasion for allowing a triumph to the victorious generals. No triumphal procession had passed down the Sacred Way and ascended to the Capitol since Æmilius Paulus

and Livius Salinator had led up the captive Illyrians in the year before Hannibal's invasion. All former successes in the war had been but the recoveries of losses, all except the capture of Syracuse; and Marcellus was refused a full triumph then, because he left the Sicilian War unfinished. But now there was no drawback. The two consuls met at Præneste, and advanced with the army of Livius and the captives in long procession to the temple of Bellona, in the Campus Martius. Here they were received by the senate and people in festal array. Livius appeared in the triumphal car drawn by four white horses, attended by his army; Nero rode on horseback beside him unattended: for the battle had been fought in Livius' district. Yet all men turned their eyes on the patrician consul, and the acclamations of the crowd showed to whom belonged the true honours of the triumph.

Notwithstanding these honours, Nero (strange to say) was never again employed during the war; and it was not till the Neros became heirs of the empire of Augustus that poets sang of the debt which Rome owed to that name. A star was appearing in the west which soon eclipsed the brightness of Nero's fame. The remaining period of the war will be little more than a history of the deeds of Scipio.

THE FOURTH AND LAST PERIOD OF THE WAR

[210-207 B.C.]

The history of the war in Spain has been left almost unnoticed, since the death of the two Scipios in 212 or 211 B.C. It is now time to return to that country; for the issue of the war between Rome and Hannibal was in reality determined on Spanish soil.

After the disasters of that campaign, the senate determined to despatch reinforcements without delay; and the officer appointed to take the temporary command was C. Claudius Nero, the future hero of the Metaurus. But the senate resolved to take the unusual course of calling upon the people to elect a proconsul for Spain at the great comitia. The policy of continuing the Spanish War was manifest; but the risk of failure was so great, that the senate thought fit to throw the responsibility upon the people. But when the day came that candidates for the proconsulate should present themselves in the Campus Martius, no candidate appeared. Men looked at one another in blank dismay. It seemed that none of the soldiers of the

republic dared to undertake so great and hazardous an enterprise; when, to the surprise and admiration of all, P. Cornelius Scipio, son and nephew of the slain proconsuls, arose and offered himself to the suffrages of the people. He was barely twenty-six years of age; but his name and character were well known, and though he had hitherto held no office higher than that of ædile, he was elected by acclamation.

THE CHARACTER OF SCIPIO

Scipio presents in almost all respects a striking contrast to the men who had hitherto conducted the affairs of Rome in the Second Punic War. They were far advanced in years, cautious and distrustful; he was in the prime of youth, enterprising and self-confident. They had been trained in the severity of the old Roman discipline; he is said to have been dissolute in early years, and was still thought to affect too much the easy laxity of Grecian manners. They were strictly obedient to the letter of the law; he was accustomed from his very youth to put himself above the laws and customs of Rome. They always acted as the faithful ministers of the senate; he very soon showed that the senate must be content to follow his policy, rather than guide it. They, however, gentle to their countrymen, were to foreigners harsh, arrogant, and cruel; he treated foreigners with a humanity and courteousness that made his name better loved in Spain than in Italy. Yet in some respects he was a true Roman. Notwithstanding the excesses charged upon his youth, he had long learned to control his passions absolutely, and to submit every desire to his own views of duty. Notwithstanding the grace and affability of his manner, he preserved a loftiness of deportment which kept men at a certain distance from him. Few shared his intimacy; but where he gave his confidence, as to his friend C. Lælius, that confidence was complete and unreserved.

One point in his character calls for particular attention—the religiousness of his life. Never, from his first appearance in public, had he been known to undertake any enterprise without first resorting to the great temple on the Capitol, and remaining there for hours absorbed in devotion. The religion of Scipio might not be consistent; yet, on the whole, it would be unjust to doubt that he acted in reliance on the support of higher powers. In this lies the secret of his character. That self-confidence, which prompted him to

shrink from no responsibility, led him also to neglect the laws, when they seemed to oppose what he thought necessary. Every incident in his youth shows this confidence. Not to insist on the doubtful story of his saving his father's life, when he was yet a boy, we have seen him a tribune of the legions at the age of twenty, assisting to rally the broken remains of the army of Cannæ, and barring the secession of the young nobles after that disastrous day. Three years after, we find him offering himself as candidate for the curule ædileship; and, when it was objected that he was yet too young for the office, promptly answering, "If the people vote for me, that will make me old enough." And now, after the death of his father and uncle in Spain, we see him modestly waiting till it was clear that no experienced commander would claim the dangerous honour of succeeding them, and then bravely offering himself to the acceptance of the people.

SCIPIO IN SPAIN

[210-209 B.C.]

Scipio arrived in Spain late in the summer of 210, or perhaps not till the spring of 209 B.C. He landed at Emporiæ, with his friend Lælius and his elder brother Lucius, who accompanied him as legates. He found that the three generals commanding the Carthaginians in Spain—Hasdrubal and Mago, brothers of Hannibal, and Hasdrubal, son of Gisco—were at discord one with another. Their forces lay scattered over a wide extent of country from Gades to Celtiberia; and there seems to have been no disposition to act on the offensive against the Romans. Scipio, taking advantage of these circumstances, determined to strike a blow which would confirm the enthusiastic feelings of the Roman people towards him, and would mark that a general had arisen who would not rest content with the timid discretion of the Fabian policy. By a bold stroke it might be possible to surprise New Carthage itself. His purpose was revealed to none save Lælius, who sailed in command of the fleet, while Scipio himself led his army across the Ebro, and arrived in an incredibly short time under the walls of the city.

New Carthage lay on a hilly peninsula jutting out into a fine bay, which forms the harbour. On the land side its walls were covered by a marsh or lagoon, which was overflowed by the sea, so that the place was only

approachable by a narrow neck of land between the lagoon and the harbour. On this neck of land Scipio took up his position, entrenching himself in rear, but leaving the front of his camp open towards the city. No time was to be lost; and next morning he gave orders to assault the walls. He addressed his soldiers and assured them of success; Neptune, he said, had appeared to him in a dream, and promised to fight with the Romans. The men advanced gallantly to the escalade, confident in their young general. But the walls were high and strong; the garrison made a stout defence; and before noon Scipio called off his soldiers. But he did not give up his enterprise. In the afternoon, he was informed, the water in the lagoon would be very low, in consequence of a fall in the tide assisted by a strong wind. He therefore picked out five hundred men, who were ordered to take a number of scaling-ladders and dash through the water so as to mount the walls unobserved, while the main body of the army made a feigned attack by the neck of land. Thus Neptune would fulfil his promise.

The device succeeded completely. The garrison had retired to their noonday's sleep, and while they were hurrying to repel the feigned attack, the five hundred got into the town unopposed, and rushing to the main entrance threw open the gates. Scipio, with a chosen detachment, pushed on to the citadel, into which the garrison had fled; and the commandant surrendered at discretion. All pillaging and slaughter were now stopped; and at the close of the day the young general found himself master of this important city, with a very large treasure and an immense supply of stores.

The Carthaginian rule was no longer beloved in Spain, and Scipio turned this disposition to his own advantage with admirable dexterity. He set free all the hostages retained by the Carthaginians, as well as all of Spanish blood who had been taken prisoners in the city. Among these hostages was the wife of Mandonius, brother of Indibilis, a powerful chief who had formerly been the friend of Carthage, and the daughters of Indibilis himself. He sent them home with as much care as if they had been his own kinswomen, although Indibilis and Mandonius had been actively engaged against his unfortunate father and uncle. Then the soldiers brought him a beautiful girl, whom they had reserved as a special gift for their youthful commander. But Scipio observing her tears, inquired into her condition; and finding she was the betrothed of Allucius, a young Celtiberian chief, he sent for the youth, and restored his bride unharmed, without ransom or

condition. This generous conduct was not without its reward. The Spaniards, quick in feeling and romantic in disposition, regarded the young conqueror as a hero sent to deliver them from the yoke of Carthage. His noble bearing, his personal beauty, confirmed the favourable impressions caused by his conduct to the hostages; and when he advanced next year into Celtiberia, he was welcomed by Indibilis and Mandonius at the head of their vassals. Soon after, a deputation of Spaniards came to him with entreaties to become their king. But Scipio courteously declined the offer, informing them that he was but the general of the Roman people, in whose ears the name of king was a by-word and a reproach.

[209-206 B.C.]

The Carthaginian generals were quite unable to make head against the well-earned popularity of the youthful Roman. Hasdrubal Barca attempted to retake New Carthage by surprise, but in vain; and the year 208 B.C. found him too busily engaged in preparing for his Italian expedition to act with energy against the Romans. All Spain north of the Bætis (Guadalquivir) was relinquished; but at length Hasdrubal found himself obliged to give battle at a place called Bæcula, near that river. The Romans won the day; but the Carthaginian commander made a skilful retreat, leaving his camp and baggage in the hands of the enemy. Hasdrubal now drew back into Lusitania, leaving his brother Mago and Hasdrubal, son of Gisco, to cover the borders of that district, which with the province now called Andalusia were the only parts of Spain left to the Carthaginians. Meanwhile he himself crossed the Tagus, and marching northwards (as we have seen) by ways unknown to the Romans, crossed the Pyrenees near the shores of the Bay of Biscay. Scipio was informed of his intentions to pass into Italy, and had expected him to follow the course of his brother Hannibal. But in the beginning of 207 B.C., while he was lying upon the Ebro, he heard that his able opponent had eluded him, and was already in the heart of Gaul.



A ROMAN GENERAL

(From a statue)

In that year the Carthaginians made great efforts to retrieve their falling fortunes. Fresh forces were sent from Africa, and young Masinissa, son of Gala, a powerful Numidian chief, also took the field with a large body of his formidable horsemen. Scipio himself did not appear in the south till late in the season, when he found that his brother Lucius, with his legate Silanus, had kept the Carthaginians in check. But the news of the Metaurus had reached him, and he burned with eagerness to eclipse the glory of Nero.

Late in this year, therefore, or early in 206, Scipio with his whole force prepared to pass the Bætis and bring the enemy to action. The Carthaginians, confident in their numbers, were equally ready, and their united forces boldly faced the enemy. The place of the battle is unknown; its name is variously given as Silpia or Elinga. But the result is certain. Scipio's victory was complete; the whole Carthaginian army was broken and destroyed; its scattered remains took refuge behind the walls of Gades, with Hasdrubal Gisco and Mago; while the wily Masinissa entered into secret negotiations with the Romans. The senate, therefore, at the commencement of the year 206, had to congratulate the people not only on seeing Italy almost delivered from the army of Hannibal, but also on the important fact that all Spain, except the town of Gades, was in the hands of the Roman armies.

But Scipio regarded Spain as a mere stepping-stone to Africa. Here, and here only, he felt convinced, could the war be concluded. Already Valerius Lævinus had made descents upon the African coast, and found the country nearly as defenceless as in the days of Agathocles and of Regulus. Scipio determined not to return to Rome till he had laid the train for an invasion of Africa; and then, with the confidence that marked his whole career, he would offer himself for the consulship, and force the senate to allow him his own way.

At that time the country to the west of the Carthaginian territory, from Bona to Oran, was known by the name of Numidia; and the Numidians themselves were divided into two great tribes, the eastern Numidians or Masæsylians, and the western or Massylians. Of the Masæsylians, Syphax was king; his capital being Cirta, now well known under the name of Constantine as the chief fortress of Algeria. Gala, father of Masinissa, was ruler of the Massylians; and Scipio had already entered into negotiations with Masinissa. But Masinissa had not yet any power of his own; while the

position of Syphax on the Carthaginian frontier necessarily made him the most dangerous enemy of Carthage. It was therefore of the greatest importance to secure the friendship of this powerful but unstable chieftain. Scipio resolved, with a boldness almost romantic, to pay a visit to the Numidian capital; and, to show his confidence in Syphax, he sailed from New Carthage to Africa with two ships only. It happened that Hasdrubal Gisco, who had before this left Spain in despair, appeared at the court of Syphax at the self-same time, with the self-same purposes. Both the rivals were entertained by the Numidian; but the winning manners and personal grace of Scipio prevailed for the present, and Syphax formed an alliance with the Romans.

When Scipio returned to Spain, he found that his short absence had produced a serious change. Three important cities in the vale of the Bætis, Illiturgi, Castulo, and Astapa, had closed their gates and declared their independence. Without delay, he laid siege to Illiturgi. The town was taken after an obstinate defence, and given up to massacre and pillage. This dreadful fate of their countrymen produced immediate, but opposite, effects on Castulo and Astapa. The men of Castulo, stricken with fear, surrendered at discretion. The men of Astapa collected all their property into a huge funeral pile in the market-place, and placed their wives and daughters under a guard, who had orders to slay them and fire the pile as soon as the gates should be forced. The rest of the citizens fell fighting bravely, and the Romans were left masters of a heap of ashes.

Another circumstance showed that the Roman power in Spain rested on a precarious tenure. Scipio fell ill at New Carthage, and a report was spread that he was dead. Upon this, Indibilis and Mandonius, believed to be his most faithful friends, raised the standard of revolt and advanced into Celtiberia. A division of Italian troops, eight thousand strong, stationed upon the Sucro, broke into open mutiny, driving away their Roman officers, and choosing two Italians as their chiefs. The prompt and decisive way in which Scipio quelled this dangerous mutiny recalls the conduct of Clive in Bengal on a similar occasion. He sent messengers to the mutineers, desiring them to come to New Carthage and state their grievances; and as they approached the town, he ordered the division of the army in that place to prepare for marching against the revolted Spaniards. The Italians, therefore, met the army leaving New Carthage as they entered it, and fondly deemed

that the general would now be completely at their mercy. But when they appeared next morning before Scipio, they found that thirty-five persons, the ringleaders of the mutiny, had been arrested during the night; and the clash of arms in the streets leading to the Forum apprised them that the army had returned from its pretended march. Scipio reproved the mutineers with much severity. He ordered the ringleaders for execution, and pardoned the rest on their taking the oath of allegiance anew. Indibilis and Mandonius hastened to make full submission. But no sooner had Scipio left Spain, than these discontented chiefs again took arms. Indibilis fell in battle; Mandonius was taken prisoner and put to death.

It was now apparent that the Carthaginians had no longer any hope of recovering their ground in Spain. Hasdrubal Gisco had returned to Africa. Masinissa obtained an interview with Scipio, and renewed his promises of friendship. Mago, the last remaining brother of Hannibal, after a vain attempt to surprise New Carthage, returned to Gades, and found that the inhabitants shut their gates against him. He enticed the chief magistrates, called suffets (as at Carthage), into a negotiation, and seizing their persons, crucified them in sight of the town. This brutal and treacherous act forfeited his last claim on the sympathies of the people of Gades. They surrendered to the Romans, while Mago sailed off to the Balearic Isles, and occupied himself in preparing a descent upon the coast of Italy, as a last chance of relieving his illustrious brother.

The soil of the Spanish peninsula was now completely cleared of the Carthaginians, and Scipio prepared to return to Rome. Three years before, he had left his country amid the hopes and expectations of all men. He now returned, having more than fulfilled those hopes and expectations. His friend Lælius had been sent home to announce his first great success; his brother Lucius had lately arrived to prepare the senate and people for the speedy arrival of the hero; and no one doubted that at the approaching elections Scipio would be raised to the consulship by the unanimous voice of the people.

SCIPIO RETURNS TO ROME

[206-204 B.C.]

It was towards the close of the year 206 B.C. that he returned. The senate met him at the temple of

Bellona; but refused him a triumph on the ground that he had not held any regular magistracy during his absence. He therefore entered the city, and offered himself candidate for the consulship. Every tribe united in giving him their suffrages, though he was not yet thirty years old. But the common rules of election had been neglected throughout the war, and no difficulty seems to have been raised on the score of age. His colleague was P. Licinius Crassus, who was pontifex maximus, and therefore unable to leave Italy. Whatever foreign enterprise was undertaken must fall to the lot of Scipio. He himself was at no pains to conceal his intention of carrying the war into Africa; and it was generally understood that, if the senate refused leave, he would bring a special bill for the purpose before the people. Fabius, with Fulvius and the old senatorial party, vehemently opposed these bold projects. But the time was gone by when they could use the votes of the people against an enterprising consul, as they had done some years before against Lævinus. The senate was fain to compromise the matter by naming Sicily as his province, with permission to cross over into Africa if he deemed it expedient. They refused him, however, the additional levies and supplies which he required. But the Etruscans and other Italians enthusiastically volunteered to give all he wanted. Yet he was unable during the year of his consulate to make any attempt on Africa, and was continued in his command as proconsul.

The enemies of Scipio made one more attempt to thwart his African enterprise. Hearing that the citadel of Locri had been taken by Q. Pleminius, who commanded as proprætor in Bruttium, but that Hannibal had come to the relief of the place, he left his province without hesitation, and sailing into the harbour of Locri obliged the Carthaginian to retire. Pleminius was no sooner left in command there than he indulged in gross and brutal outrages, not only against the people of Locri, but against such Romans as ventured to oppose his will. Scipio was appealed to, but declined to interfere, desiring the Locrians to lay their complaints before the senate at Rome. These complaints arrived early in the year 204 B.C., and old Fabius again loudly inveighed against the presumptuous audacity of his young rival. He ended his speech by proposing that he should be deprived of his command. Other complaints were made against Scipio—that by going to Locri he had transgressed the limits of his province, as he had done before by visiting Syphax in Numidia; moreover, that he spent his time in pursuits unfit for a Roman soldier, frequenting the schools and gymnasia of the

Greek cities, and wearing a Greek dress; while his men were daily becoming corrupted by licentious living and want of discipline. The senate ventured not to act on these vague accusations without previous inquiry; and it was therefore resolved to send a commission into Sicily to examine into the truth of the charges. The result was highly favourable to the general. It was reported that he was guiltless of the excesses of Pleminius, who was arrested, and left to die in prison; that his troops, instead of being neglected or undisciplined, were in the highest order; and that arms, engines, and supplies of every kind were provided for the invasion of Africa. It was universally resolved that Scipio should retain his command till he should bring the war to a close.

The confidence which the senate felt in the altered state of affairs is fully shown by two decrees passed in this same year. The first respected the twelve Latin colonies, which five years before had refused to furnish soldiers. At the time, it had been thought prudent to pass over this contumacious conduct. But now they were required to furnish twice their proper contingent till the end of the war. They murmured, but submitted. The other decree was moved by Lævinus for the repayment of the patriotic loan advanced during his consulship in the year 210 B.C. It was apparent, therefore, that the battle of the Metaurus, backed by the great successes of Scipio in Spain, had raised the republic above all fear of disaffection in her colonies, or of bankruptcy at home. Other signs of confidence appear. A huge stone, supposed to represent the Great Mother of the gods, was brought in state to Rome from Pessinus in Sicily. The Sibylline books directed that the care of this precious relic should be given to “the best man” at Rome; and the senate adjudged the title to P. Scipio Nasica, son of Cn. Scipio, who had died in Spain, and first cousin to the great man who was now making the name illustrious.

SCIPIO INVADES AFRICA

[204-203 B.C.]

All obstacles being now removed, Scipio prepared to cross over into Africa. His army and fleet were assembled at Lilybæum under his own eye. His brother Lucius and his friend Lælius still attended him as legates; and his quæstor was a young man destined hereafter to become famous, M. Porcius

Cato. It was towards the close of 204 B.C. that he set sail. His army was not so numerous as it was well appointed and well disciplined, composed of men who had grown old in service, skilful in sieges, prepared for all dangers; for the greater part knew that in the successful termination of the war lay their only chance of returning home to end their days in peace. As the ships left the harbour at daybreak, Scipio prayed aloud to all the gods, that his enterprise might be blessed by their favour; that the evils which Carthage had wrought against Rome might now be visited upon her own head. When the second morning broke, they were in sight of land; and Scipio, when he heard that they were off the Fair Promontory, said that the omen was good, and there should be their landing-place.

Masinissa joined him with only two hundred of his Numidian horse; but his knowledge of the country, and his ceaseless activity, would have made him welcome, even if he had come alone.

Scipio immediately laid siege to Utica. Terror at Carthage rose to its highest pitch. For a time he was left to carry on his operations unmolested. But as winter advanced, Hasdrubal Gisco succeeded in collecting a considerable force, and persuaded Syphax, his son-in-law, to lend his aid in relieving Utica. Scipio was encamped on a headland to the eastward of this town, on a spot which long retained the name of "the Cornelian camp," where the ruins of his entrenchments are still to be traced; and the Carthaginians hoped that they might blockade him here both by land and sea. Scipio remained quiet the whole winter, except that he amused Syphax by entering into negotiations for peace. But these negotiations were carried on to mask a design, which, as spring came on, he was enabled to put in practice. He observed that Hasdrubal occupied one camp, and Syphax another. The huts occupied by the Numidians were formed of stakes wattled and thatched with reeds; and the quarters of the Carthaginians, though somewhat more substantial, consisted solely of timber. Scipio contrived to obtain an accurate knowledge of the plan and disposition of these camps; and when the time for the execution of his design was arrived, he suddenly broke off the negotiations, and told Syphax that all thoughts of peace must be deferred till a later time.

On the first dark night that followed, he sent Lælius and Masinissa against the camp of Syphax, while he moved himself towards that of Hasdrubal. Masinissa obtained an easy entrance into the lines of his

countrymen, and straightway set fire to their inflammable habitations. The unfortunate men rose from their beds or from their wine-cups, and endeavoured to extinguish the flames. But the work had been too well done; and as they attempted to escape, they found that every avenue of the camp was beset by enemies. Fire was behind them, death by the sword before; and though Syphax escaped, his army was destroyed. The same fate befell Hasdrubal. On the first alarm, he conjectured the truth, and made off, leaving his men a prey to Scipio. When morning broke, the Romans pursued the fugitives; and it is not too much to say that the whole force on which Carthage depended for safety was cut off in this horrible way. The recital makes the blood run cold. Yet neither the act itself, nor the duplicity by which it was carried into execution, were ever thought to cast any slur on the fair fame of Scipio.

The Carthaginian senate were ready to give up matters as lost. But at this juncture ten thousand Celtiberians landed in Africa and offered their services to Syphax; and this prince was persuaded by the entreaties of his wife Sophonisba, daughter of Hasdrubal Gisco, to renew the struggle. Hasdrubal also exerted himself to collect a new army; and in the course of thirty days the two allied generals appeared on the great plains, which lie about seventy or eighty miles to the southwest of Utica and Carthage. Scipio, leaving his fleet and a division of his army to continue the blockade of Utica, advanced to give them battle without delay. The Celtiberians made a stout resistance; but, being deserted by the rest of the army, they were entirely cut to pieces. Hasdrubal fled to Carthage, Syphax to his own kingdom; so that the whole country was left to the mercy of the Romans. Scipio advanced towards Carthage, receiving the submission of the different towns by which he passed. Encamping at Tunis, within sight of the capital, he awaited the submission of the government.



A ROMAN CITIZEN

Meanwhile Lælius and Masinissa, with the Italian and Numidian cavalry, pursued Syphax to Cirta. The unlucky king made a faint show of resistance; but he was defeated, and his capital surrendered at discretion. Masinissa now received his reward, and was proclaimed king of all Numidia. When he entered Cirta, he was met by Sophonisba, formerly his betrothed, and now the wife of his rival. Her charms melted his heart; and fearing lest Scipio might claim her as his captive, to lead her in triumph by the side of Syphax, he took the bold step of marrying her at once. Scipio sent for the young chief and rebuked him sternly for venturing to take possession of a Roman captive. Masinissa felt that he was unable to protect his unhappy bride; but, resolved that at least she should have the option of escaping from the degradation of a Roman triumph, he sent her a cup of poison, telling her that herein lay her only possible deliverance. She took the potion, saying that she accepted the nuptial gift, and drained it to the dregs. When the tragical fate of Sophonisba reached the ears of Scipio, he feared that he had dealt too harshly with his Numidian ally. He sent for him, and, gently reproving him for his haste, he publicly presented him with the most honourable testimonies to his bravery and fidelity which a Roman general could bestow. In the delights of satisfied ambition and the acquisition of a powerful sovereignty, Masinissa soon forgot the sorrows of Sophonisba.

While Scipio remained at Tunis, the Carthaginian fleet made an attack on the Roman ships in the harbour of Utica, and gained some advantage. Intelligence also reached the government that Mago, on landing in Italy, had been welcomed by the Ligurians and a portion of the Gauls, and had lately taken position on the Po with a considerable force. Here, however, he was encountered by a Roman army and defeated after a severe struggle. Mago, himself wounded, took refuge among the Ligurians, who still remained faithful to his cause.

Ambassadors were now despatched by the Carthaginians to Rome to treat for peace, while orders were sent to Hannibal and Mago to return with such forces as they could bring. Mago obeyed the orders immediately, but died of his wound upon the passage. Hannibal also with bitter feelings prepared to obey. For sixteen years had the indomitable man maintained himself on foreign ground; and even now the remains of his veteran army clung to him with desperate fidelity. He felt that, so far as he was concerned, he had been more than successful; if he had failed, it had been the fault of that

ungrateful country, which had left him long years unsupported, and now was recalling him to defend her from the enemy. What Scipio was now to Carthage, that might Hannibal have been to Rome. Still he saw that no advantage could be gained by remaining longer in Italy: he therefore bade farewell to the foreign shores, so long his own, and set sail for that native land which had not seen him for nearly forty years.

[203-202 B.C.]

Great was the joy at Rome when the news came that their dire enemy had been at length compelled to leave the shores of Italy. A public thanksgiving was decreed; sacrifices offered to all the great gods of Rome, and the Roman games, which had been vowed by Marcellus in his last consulship, were now at length performed. It was at this moment of triumph that the Carthaginian ambassadors arrived. The senate received them (inauspicious omen!) in the Temple of Bellona. Lævinus moved that they should be at once dismissed, and that orders should be sent to Scipio to push on the war with vigour. After some debate, his proposition was adopted. The close of the year 203 B.C. therefore rendered it certain that the war must be decided by a trial of strength between the two great generals, who, each triumphant in his own career, had never yet encountered each other in arms. About the same time old Fabius died in extreme old age. He has the merit of first successfully opposing Hannibal; but his somewhat narrow mind, and the jealous obstinacy which often accompanies increasing years, prevented him from seeing that there is a time for all things; that his own policy was excellent for retrieving the fortunes of the republic, but that the weakness of Hannibal left the field open for the bolder measures of Scipio.

Hannibal landed at Leptis, to the south of Carthage, with his veterans; and thence marching northwards, took up his position on the plain of Zama, within five days' march of Carthage. Scipio, early in the year (202 B.C.), advanced from Tunis to meet him; and finding that the Carthaginian general had sent spies to ascertain his strength, he ordered them to be led through his camp, and bade them make a full report of what they had seen. Hannibal felt that he had to deal with a superior force, led by a general only second in ability to himself. His own veterans were few in number; the remainder of his army were raw levies or allies little to be trusted; the Numidian horse, his main arm in Italy, were now arrayed against him under the enterprising Masinissa. He therefore proposed a personal conference, in the faint hope

that he might effect a treaty with Scipio. But it was too late. The generals parted from their conference with feelings of mutual esteem, and prepared to decide the fate of the civilised world by battle.^b

THE BATTLE OF ZAMA DESCRIBED BY POLYBIUS

[202 B.C.]

On the following day, as soon as the dawn appeared, they drew out their forces on both sides and prepared to engage; the Carthaginians, for their own safety and the possession of Africa; the Romans, for the sovereignty of the whole, and for universal empire. Is there any one that can forbear to pause at this part of the story or remain unmoved by the relation? Never were there seen more warlike nations; never more able generals, or more completely exercised in all the art and discipline of war; never was a greater prize proposed by fortune than that which was now laid before the combatants. For it was not Africa alone, nor Italy, that waited to award the conquerors, but the entire dominion of the whole known world. And this, indeed, was not long afterwards the event.

Scipio drew up his army in battle in the following manner: He placed in the first line the Hastati, leaving intervals between the cohorts. In the second, the Principes; but posted their cohorts, not, as the Roman custom was, opposite to the intervals, but behind the cohorts of the former line and at a considerable distance from them, on account of the great number of elephants that were in the Carthaginian army. Last of all, in the third line, he drew up the Triarii. Upon the left wing he stationed Caius Lælius, with the cavalry of Italy; and Masinissa and the Numidians upon the right. The intervals of the first line he filled with companies of the light-armed troops, who were ordered to begin the action, and if they should find themselves too violently pressed by the elephants, that the swiftest of them should retire through the strait intervals to the rear of all the army, and the rest, if they should be intercepted on their way, direct their course to the right or left along the open distances that were between the lines. When his disposition was thus completed, he went round to all the troops and harangued them in a few words, but such as the occasion seemed to require.

“Remember,” said he, “your former victories, and show now a courage worthy of yourselves and of your country. Let it ever be present to your

view that by gaining the victory in this battle, you not only will become the masters of all Africa, but secure to Rome the undisputed sovereignty of the rest of the world. If, on the other hand, you should be conquered, they who fall bravely in the action will obtain an honour far more glorious than any rights of sepulchre, the honour of dying for their country; while those that shall escape must be condemned to pass the remainder of their lives in the extremity of disgrace and misery. For Africa will afford no place of safety, and if you fall into the hands of the Carthaginians, what your condition must be your own reason will easily instruct you to foresee. But may none of you ever know it by experience. When fortune, then," continued he, "has offered to us upon either side so noble a prize, universal empire or glorious death, how lost must we be both to honour and to sense, if we should reject these, the greatest of goods, and choose, through a desire of life, the most insupportable of evils. When you advance, therefore, against the enemy, carry that resolution with you into action, which is sure always to surmount the strongest resistance. Be determined either to conquer or to die. Retain not so much as a thought of life. With such sentiments, the victory cannot fail to be your own."

Such was the harangue of Scipio. Hannibal, on his part, having placed the elephants, more than eighty in number, at the head of all the army, formed his first line of the mercenaries, who were a mixed multitude of Gauls, Ligurians, Balearics, and Maurusians, and amounted together to about twelve thousand men. Behind these were the Carthaginians and the subject Africans. The third line was composed of the troops which he had brought with him from Italy, and was placed at the distance of more than a stadium from the second line. The cavalry was posted upon the wings; that of the Numidian auxiliaries upon the left, and the Carthaginian cavalry upon the right. He ordered the officers who commanded the different bodies of the mercenaries to exhort severally their own soldiers, and to encourage them to be assured of victory, since they were now joined by Hannibal and his veteran forces. The leaders of the Carthaginians were instructed, on the other hand, to lay before their view the fatal consequences of a defeat, and to enumerate all evils to which their wives and children would be exposed. And while these orders were obeyed, he himself, going round to his own troops, addressed them with the greatest earnestness, and in words like these:

“Remember, soldiers, that we have now borne arms together during the course of seventeen years. Remember in how many battles we have been engaged against the Romans. Conquerors in them all, we have not left to the Romans even the smallest hope that they ever should be able to defeat us. But beside the other innumerable actions in which we always obtained the victory, remember also, above all the rest, the battle of Trebia, which we sustained against the father of that very general who now commands the Roman army; the battle of Thrasymene, against Flaminius, and that of Cannæ, against Æmilius. The action in which we are now ready to engage is not to be compared with those great battles, with respect either to the number or the courage of the troops. For, turn now your eyes upon the forces of the enemy. Not only they are fewer; they scarcely make even a diminutive part of the numbers against which we were then engaged. Nor is the difference less with respect to courage. The former were troops whose strength was entire, and who had never been disheartened by any defeat. But these before us are either the children of the former or the wretched remains of those very men whom we subdued in Italy, and who have so often fled before us. Lose not then upon this occasion the glory of your general and your own. Preserve the name which you have acquired, and confirm the opinion which has hitherto prevailed, that you are never to be conquered.”

When the generals had thus on both sides harangued their troops, and the Numidian cavalry for some time had been engaged in skirmishing against each other, all things being now ready, Hannibal ordered the elephants to be led against the enemy. But the noise of the horns and trumpets, sounding together on every side, so affrighted some of these beasts that they turned back with violence against their own Numidians, and threw them into such disorder that Masinissa dispersed without much difficulty that whole body of cavalry which was on the left of the Carthaginian army. The rest of the elephants, encountering with the light-armed forces of the Romans in the space that was between the armies, suffered much in the conflict, and made great havoc also among the enemy; till at last, having lost all courage, some of them took their way through the intervals of the Roman army, which afforded an open and safe passage for them, as Scipio wisely had foreseen; and the rest, directing their course to the right, were chased by darts from the cavalry, till they were driven quite out of the field. But as they occasioned likewise some disorder upon their own right wing in their flight,

Lælius also seized that moment to fall upon the Carthaginian cavalry; and having forced them to turn their backs, he followed closely after them, while Masinissa, on his side, was pursuing the Numidian cavalry with no less ardour.

And now the heavy-armed forces on both sides advanced to action with a slow and steady pace, those troops alone excepted which had returned with Hannibal from Italy, and which remained still in the station in which they at first were placed. As soon as they were near, the Romans, shouting all together, according to their custom, and rattling their swords against their bucklers, threw themselves upon the enemy. On the other side, the Carthaginian mercenaries advanced to the charge with confused and undistinguishable cries. For as they had been drawn together, as we have said, from different countries, there was not among them, as the poet expresses it (*Iliad*, IV, 437):

“One voice, one language found;
But sounds discordant as their various tribes.”

In this first onset, as the combatants were so closely joined that they were unable to make use of their spears, or even of their swords, and maintained the action hand to hand and man to man, the mercenaries, by their boldness and dexterity, obtained at first the advantage, and wounded many of the Romans; but the latter, assisted by the excellence of their disposition and the nature of their arms, pressed forward and still gained ground, being supported by the rest of their own army, who followed and encouraged them from behind.

The mercenaries, on the other hand, were neither followed nor supported. For the Carthaginians that were behind them came not near to assist them in the action, but stood like men who had lost all courage. At last, therefore, the strangers turned their backs; and, thinking themselves manifestly to have been deserted by their own friends, they fell, as they retired, upon the Carthaginians that were behind, and killed them. The latter, however, fell not without a brave and vigorous defence; for, being thus unexpectedly attacked, and compelled to fight both with their own mercenaries and the Romans, they exerted their utmost efforts; and engaging with a frantic and disordered rage, made a promiscuous slaughter of friends and enemies.

Amidst this confusion, the Hastati also were so pressed that they were forced to break their ranks. But the leaders of the principes, perceiving the disorder, brought up their troops close behind to support them; so that, in the end, the greatest part of the Carthaginians and the mercenaries were destroyed in the place, partly by themselves and partly by the Hastati. Hannibal would not suffer the rest that escaped to be received into the third line towards which they fled, but ordered the foremost ranks to point their spears against them as they approached. They were forced, therefore, to retire along the wings into the open plain.



BATTLE BETWEEN THE SOLDIERS OF SCIPIO AND HANNIBAL

(After Mirys)

As the whole ground that was between the forces that now remained was covered with blood and slaughter and dead bodies, the Roman general was in no small degree perplexed, being apprehensive that this obstacle would prevent him from obtaining a complete and perfect victory. For it seemed to be no easy thing to lead on the troops, without breaking their ranks, over bleeding and slippery carcasses, thrown one upon another, and over arms which were scattered in confusion, and preposterously intermingled with the heaps of the dead. Having ordered the wounded, however, to be carried into the rear of the army, he called back the Hastati from the pursuit, and drew them up in order, as they returned, in the forefront of the ground upon

which the action had passed, and the opposite to the centre of the enemy. He then commanded the principes and the Triarii to close their ranks, to form a wing on either side, and to advance over the dead. And when these troops, having surmounted all the intermediate obstacles, were come into the same line, with the Hastati, the action was then begun on both sides with the greatest eagerness and ardour. As the numbers were nearly equal, as the sentiments, the courage, and the arms on both sides were the same, the battle remained for a long time doubtful; for so obstinate was the contention that the men all fell in the place in which they fought. But Lælius and Masinissa, returning back from the pursuit of the routed cavalry, arrived most providentially in the very moment in which their assistance was chiefly wanted, and fell upon the rear of Hannibal. The greatest part, therefore, of his troops were now slaughtered in their ranks; and among those that fled, a very small number only were able to escape, as they were followed closely by the cavalry through an open country. Above fifteen hundred of the Romans fell in the action; but on the side of the Carthaginians, more than twenty thousand were killed, and almost an equal number taken prisoners. Such was the battle between Hannibal and Scipio,—the battle which gave to the Romans the sovereignty of the world.

When the action was ended, Publius, after he had for some time pursued those that fled, and pillaged the camp of the Carthaginians, returned back to his own camp. Hannibal, with a small number of horsemen, continued his retreat without stopping, and arrived safe at Adrumetum, having performed, upon this occasion, all that was possible to be done by a brave and experienced general. For first, he entered into a conference with his enemy, and endeavoured by himself alone to terminate the dispute. Nor was this any dishonour to his former victories, but showed only that he was diffident of fortune and willing to secure himself against the strange and unexpected accidents which happen in war. In the battle afterwards, so well had he disposed things for the action, that no general, using even the same arms and the same order of battle as the Romans, could have engaged them with greater advantage.

The order of the Romans in battle is very difficult to be broken, because the whole army in general, as well as each particular body, is ready always to present a front to their enemies on which side soever they appear. For the cohorts by a single movement turn themselves together as the occasion

requires towards the side from whence the attack is made. Add to this that their arms also are well contrived both for protection and offence, their bucklers being large in size, and their swords strong, and not easily injured by the stroke. Upon these accounts, they are very terrible in action, and are not to be conquered without great difficulty. But Hannibal opposed to each of these advantages the most effectual obstacles that it was possible for reason to contrive. He had collected together a great number of elephants, and stationed them in the front of his army, that they might disturb the order of the enemy and disperse their ranks. By posting the mercenaries in the first line, and the Carthaginians afterwards in a line behind them, he hoped to disable the Romans by fatigue before the battle should be brought to the last decision, and render their swords useless by continual slaughter. As he had thus placed the Carthaginians also between two lines, he compelled them to stand, and, as the poet has said (*Iliad*, IV, 430):

“Forced them by strong necessity to fight,
However loth.”

In the last place he drew up the bravest and the firmest of his troops at a distance from the rest; that, observing from afar the progress of the action, and possessing their whole strength as well as their courage entire, they might seize the most favorable moment, and fall with vigour upon the enemy. If therefore, when he had thus employed all possible precautions to secure the victory, he was now for the first time conquered, he may very well be pardoned. For fortune sometimes counteracts the designs of valiant men. Sometimes again, according to the proverb,

“A brave man by a braver is subdued.”

And this indeed it was which must be allowed to have happened upon the present occasion.

TERMS DICTATED TO CARTHAGE; SCIPIO’S TRIUMPH

When men, in lamenting the wretchedness of their fortunes, exceed in their actions all the customary forms of grief, if their behaviour seems to be the effect of genuine passion, and to arise only from the greatness of their calamities, we are all ready to be moved by the strangeness of the sight, and can neither see nor hear them without commiserating their condition. But if these appearances are feigned, and assumed only with an intention to deceive, instead of compassion, they excite indignation and disgust. And this was now what happened with respect to the Carthaginian ambassadors. Publius told them in few words: That with regard to themselves, they had clearly no pretensions to be treated with gentleness or favour, since by their own acknowledgment they had at first begun the war against the Romans, by attacking Saguntum in contempt of treaty; and now lately again had violated the articles of a convention which they had ratified in writing, and bound themselves by oaths to observe. That the Romans, however, as well upon their own account as in consideration also of the common condition and fortune of humanity, had resolved to display towards them upon this occasion a generous clemency. That such indeed it must appear to themselves to be, if they would view all circumstances in a proper light, for since fortune having first precluded them by the means of their own perfidious conduct, from every claim to mercy or to pardon, had now thrown them wholly into the power of their enemies, no hardships which they should be forced to suffer, no conditions which should be imposed, no concessions which should be exacted from them, could be considered as rigorous or severe; but rather it must appear to be a matter of astonishment if any article of favour should be yielded to them. After this discourse he recited first the conditions of indulgence which he was willing to grant, and afterwards those of rigour, to which they were required to submit. The terms which he proposed to them were these:

That they should retain all the cities which they held in Africa before the beginning of the last war which they had made against the Romans; and all the lands likewise which they had anciently possessed, together with the cattle, the men, and the goods that were upon them. That from the present day all hostilities should cease. That they should be governed by their own laws and customs, and not receive any garrison from the Romans. Such were the articles of favour; the others, of a contrary kind, were these:

That the Carthaginians should restore all that they had taken unjustly from the Romans during the continuance of the truce. That they should send back all the prisoners and deserters, that had at any time fallen into their hands. That they should deliver up all their long vessels, ten triremes only excepted; and likewise their elephants. That they should not make war at any time upon any state out of Africa, nor upon any in Africa, without the consent of the Romans. That they should restore to King Masinissa the houses, lands, and cities, and everything besides that had belonged to him, or to his ancestors within the limits which should hereafter be declared. That they should furnish the Roman army with corn sufficient for three months, and pay also the stipends of the troops, till an answer should be received from Rome confirming the conditions of the treaty. That they should pay ten thousand talents of silver in the course of fifty years, bringing two hundred Euboic talents every year. That, as a security for their fidelity, they should give a hundred hostages which should be chosen by the Roman general out of all their youth, between the ages of fourteen and of thirty years.

As soon as Publius had finished the recital of these articles, the ambassadors returned in haste to Carthage, and reported the terms that were proposed. Upon this occasion, when one of the senators was going to object to the conditions and had begun to speak, Hannibal, it is said, stepped forward, and taking hold of the man, dragged him down from his seat. And, when the rest of the senate appeared to be much displeased at an action so injurious to the customs of that assembly, he again stood up and said, That he might well be excused, if his ignorance had led him to offend against any of their established forms. That they knew that he had left his country when he was only nine years old and had now returned to it again at the age of more than forty-five. He entreated them, therefore, not so much to consider whether he had violated any custom, as whether he had been moved by a real concern for the distressed condition of his country. That what he had felt upon that account was indeed the true cause of his offence. For that it appeared to him to be a most astonishing thing, and altogether preposterous, that any Carthaginian, not ignorant of all which their state in general, as well as particular men, had designed against the Romans, should not be ready to worship his good fortune, when, having fallen into their power, he now found himself treated by them with so great clemency. That if the Carthaginians had been asked but a few days before what their country

must expect to suffer if they should be conquered by the Romans, they would not have been able to make any answer, so great, so extensive were the calamities which were then in prospect. He begged therefore that they would not now bring the conditions into any debate, but admit them with unanimous consent; offering sacrifices at the same time to the gods, and joining all together in their prayers, that the treaty might be ratified by the Roman people. This advice appeared to be so sensible and so well suited to the present exigency, that the senate resolved to consent to a peace upon the terms which have been mentioned, and immediately sent away some ambassadors to conclude the treaty.

[201 B.C.]

Not long after this time [in the beginning of the year 201 B.C.], Publius Scipio returned to Rome from Africa. As the greatness of his actions had raised in men a very high and general expectation, he was surrounded by vast crowds upon his entrance and received by the people with the greatest marks of favour. Nor was this only reasonable, but an act also of necessary duty. For they who not long before had not so much as dared to hope that Hannibal ever could be driven out of Italy, or the danger be removed from their own persons and their families, now saw themselves not only freed from apprehension of any present evils, but established also in a lasting and firm security by the entire conquest of their enemies. Upon this occasion, therefore, they set no bounds to their joy. On the day likewise in which he entered the city in triumph, as the objects that were viewed in the procession represented most clearly to the senses of the people the dangers from which they had escaped, they stood as in an ecstasy of passion, pouring out thanks to the gods, and acknowledgments to the author of so great a deliverance. Among the rest of the prisoners Syphax also, the Masæsylian king, was led along a captive in the procession; and after some time he died in prison. When the solemnity of the triumph was finished, there was afterwards in Rome, during many days a continual succession of games and spectacles, the expense of which was defrayed by Scipio with a generosity which was worthy of him.^c

AN ESTIMATE OF HANNIBAL

[201-202 B.C.]

Scipio's great antagonist lived a good many years after the battle of Zama, finally dying in exile, as we shall see. But his career as the foremost man of his time practically terminated with his defeat at Zama, and we may fitly pause for a moment here to attempt an estimate of his character and influence. One of the most recent historians of the Punic Wars, Dr. Fuchs, thus characterises the greatest of Carthaginians:

Hannibal doubtless stands in the first rank of warrior heroes. Many indeed would, and not without justice, give him the first place. Certainly Alexander conquered the enormous kingdom which overspread the whole of Asia Major and once stretched its arm over Europe and Africa; but the feet of this colossus were of clay and it was long known to the world that its power was not in proportion to its size. Seventy years before, a prince of the reigning house conceived the valiant idea of attacking it with ten thousand Greek heavy-armed soldiers, and Agesilaus had the bold design of piercing the heart of the giant with eight thousand men. Alexander's father not only bequeathed him the means of carrying out this great plan, but left him a powerful peasant class, a nobility ready for service, well-ordered finances, and the majesty of the royal name.

Cæsar and Napoleon also excited the admiration of their times. The former traversed three parts of the world with his victorious legions, and the latter shook to the foundation the whole of Europe and her constitutions. Less fortunate than the royal heir, Agesilaus, they were not only the leaders but the creators of their armies. But the supremacy of the might environing the Roman government, and the power of the French consulate and imperialism were due to their being founded on law. Thus having full and free scope, it cheerfully sacrificed the prevalent enthusiasm for young liberty, and enthusiasm never weighs what it gives. The strength of the enemy in the first case was weak in that it was founded on a decadent system, the unity of leadership had been destroyed by the arrogance of the high-born Romans who reaped but did not sow; and in the latter case, the art of war was divorced from nature and made as pedantic as the whole trend of the time.

It was not so easy for Hannibal. He also had an inheritance—the inheritance of a resemblance to his great father, which gained him the commander's staff. Hannibal had made too great an impression upon the

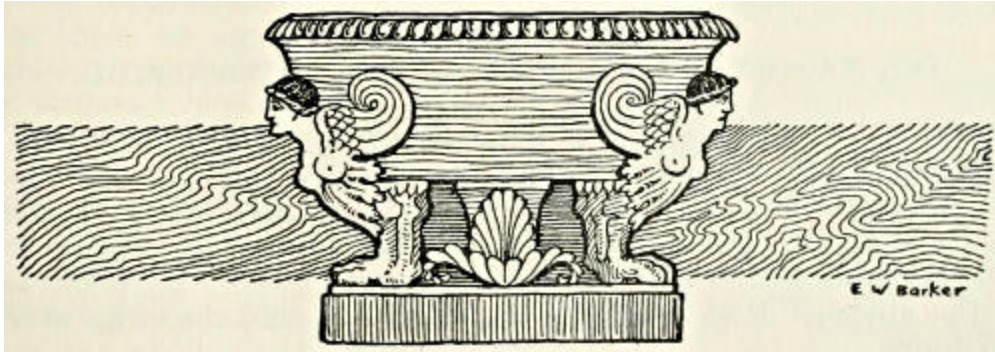
minds of the Carthaginian mercenaries for them to withhold the leadership from the son on the threshold of manhood, who bore the features of his father. But flattering as this choice was to the father, it was fraught with danger to the son. It certainly put him at the head of the army, but it did not endow him with the authority which hedges a royal heir or one empowered by government to hold a high position in the state; he was placed in the difficult situation of either compensating for this drawback by his own personality or gradually becoming the tool of a licentious soldiery.

This danger was increased by the character of the troops which chose him, whose will was undirected by the moral force of patriotism, and uninspired with the desire for freedom; they were brought together only by a common desire for loot. But Hannibal succeeded by his own force of character in giving a moral turn to this mass, in disciplining them, and imbuing them with the spirit of military honour. He not only dared to impose the greatest fatigue upon the troops, but always remained their master; and even in the supreme effort of crossing the Alps not a sound of complaint or cowardice is recorded in history—and such a difficult march is an infallible test of military discipline. Hannibal, therefore, proved himself to be an incomparable leader of men and performed a task which neither Alexander, Cæsar, nor Napoleon could have accomplished. He surpasses them in this deed, high as they may stand in the estimation of history.^[56]

And Hannibal was not favoured by fate in death. Alexander was right in envying the heroes of antiquity because they had in Homer a recorder of their greatness. For every heroic deed lies dead and is belittled and made of no account if there be no clever pen inspired by enthusiasm to raise it to its fitting place of greatness. Alexander has found grateful pens which have acquainted the astonished world with his deeds; Cæsar himself gave to posterity an account of his campaigns with incomparable clearness and remarkable simplicity; and our own military era calls Napoleon the professor of the field of war. But Hannibal's portrait has been given only by his enemies. However, try as they may to call wisdom cunning, and strong measures, necessitated by war, cruelty, they cannot cast down this colossal figure, deface as they may the regularity of its features. Clouds may envelop the contour of a great mountain, but its summit shows its height.^d

FOOTNOTES

[56] [It is in fact impossible to say what Cæsar or Napoleon could or could not have done, had either been in Hannibal's place. Most modern estimates of Hannibal are favourable; cf. especially R. B. Smith.^e]



ROMAN CISTERN



CHAPTER XIII. THE MACEDONIAN AND SYRIAC WARS AND THE THIRD PUNIC WAR (200-131 B.C.)

From the time of Pyrrhus, Macedonia, and all Greece as well, had abundant causes to look with jealousy upon the growing power of Rome. For the most part Greece was in too shattered a condition—though doubtless most contemporary citizens did not realise the fact—to enter into active dispute with the new Mistress of the West. There were times, however, when Macedonia, not yet able to forget the brief period of her recent supremacy, strove to become a factor in the contest that was going on between Rome and Carthage.

And so it happened that Philip V of Macedon, an unworthy successor of his great namesake, made an alliance with Hannibal, and even promised to

send troops to the active assistance of the Carthaginian general. The promise was never kept, thanks to the indecisive nature of Philip. But the intention brought upon Philip the wrath of Rome, and led, among other causes, to a series of contests between Macedonia and Rome, in which the latter always had the advantage; and in which, finally, all Greece was involved, partly on one side and partly on the other—with that suicidal lack of unity which was always the bane of the Greek character. The ultimate result was that all Greece, including Macedonia, became at last a Roman province. The destruction of Corinth followed close upon the destruction of Carthage, and for some generations after these events there was no maritime city left to dispute in any sense the position of Rome as mistress both by sea and land. The commonwealth of Rome thus stood at the apex of its power, little knowing that even in the day of its prime the period of decline was being ushered in.^a

THE MACEDONIAN WAR; WAR WITH ANTIOCHUS III

[200-192 B.C.]

The victory of Zama gave the Romans the dominion of the west; the ambitious senate then aspired to that of the east, and the king of Macedonia was selected as the first object of attack. The people, wearied out with service and contributions, were with some difficulty induced to give their consent; and war was declared against Philip under the pretext of his having injured the allies of Rome, namely, the Athenians, and the kings of Egypt and Pergamus.

Philip after the late peace had been assiduous in augmenting his fleet and army; but instead of joining Hannibal when he was in Italy, he employed himself, in conjunction with Antiochus, king of Syria, in seizing the islands and the towns on the coast of the Ægean, which were under the protection of Egypt, whose king was now a minor. This engaged him in hostilities with the king of Pergamus and the Rhodians. A Roman army, under the consul P. Sulpicius, passed over to Greece (200); the Ætolians declared against Philip, and gradually the Bœotians and Achæans were induced to follow their example.

Philip, thus threatened, made a gallant resistance against this formidable confederacy; but the consul T. Quinctius Flaminius gave him at length

(197) a complete defeat at Cynoscephalæ in Thessaly, and he was forced to sue for peace, which, however, he obtained on much easier terms than might have been expected, as the Romans were on the eve of a war with the king of Syria. The peace with Philip was followed by the celebrated proclamation at the Isthmian games of the independence of those states of Greece which had been under the Macedonian dominion; for the Romans well knew that this was the infallible way to establish their own supremacy, as the Greeks would be sure never to unite for the common good of their country.

After an interval of a few years, the long-expected war with Antiochus the Great of Syria broke out. The immediate occasion of it was the discontent of the Ætolians, who, being mortally offended with the Romans, sent to invite him into Greece. He had been for three years making preparations for the war, and he had now at his service the greatest general of the age, if he had known how to make use of him. For Hannibal having been appointed one of the suffets at Carthage, and finding the power of the judges enormous in consequence of their holding their office for life, had a law passed reducing it to one year. This naturally raised him a host of enemies, whose number was augmented by his financial reforms; for discovering that the public revenues had been diverted into the coffers of the magistrates and persons of influence, while the people were directly taxed to pay the tribute to the Romans, he instituted an inquiry, and proved that the ordinary revenues of the state were abundantly sufficient for all purposes. Those who felt their incomes thus reduced sought to rouse the enmity of the Romans against Hannibal, whom they charged with a secret correspondence with Antiochus; and though Scipio strongly urged the indignity of the Roman senate becoming the instrument of a faction in Carthage, hatred of Hannibal prevailed, and three senators were sent to Carthage, ostensibly to settle some disputes between the Carthaginians and Masinissa. Hannibal, who knew their real object, left the city secretly in the night, and getting on board a ship sailed to Tyre. He thence went to Antioch, and finding that Antiochus was at Ephesus he proceeded to that city, where he met with a most flattering reception from the monarch (195).

[192-191 B.C.]

Hannibal, true to his maxim that the Romans were only to be conquered in Italy, proposed to the king to let him have a good fleet and ten thousand men, with

which he would sail over to Africa, when he hoped to be able to induce the Carthaginians to take arms again; and if he did not succeed he would land somewhere in Italy. He would have the king meanwhile to pass with a large army into Greece, and to remain there ready to invade Italy, if necessary. Antiochus at first assented to this plan of the war; but he afterwards lent an ear to the suggestions of Thoas the Ætolian, who was jealous of the great Carthaginian, and gave it up. He himself at length (192) passed over to Greece with a small army of ten thousand men; but instead of acting immediately with vigour, he loitered in Eubœa, where he espoused a beautiful maiden, wasted his time in petty negotiations in Thessaly and the adjoining country, by which he highly offended King Philip, whom it was his first duty to conciliate, and thus gave the consul M. Acilius Glabrio time to land his army and enter Thessaly. Antiochus hastened from Eubœa to defend the pass of Thermopylæ against him; but he was totally defeated, and forced to fly to Asia (191).

[191-189 B.C.]

Antiochus flattered himself at first that the Romans would not follow him into Asia; but Hannibal soon proved to him that such an expectation was a vain one, and that he must prepare for war. At Rome the invasion of Asia was at once resolved on. The two new consuls, C. Lælius and L. Scipio (190), were both equally anxious to have the conducting of this war; the senate were mostly in favour of Lælius, an officer of skill and experience, while L. Scipio was a man of very moderate abilities. But Scipio Africanus offering, if his brother was appointed, to go as his legate, Greece was assigned to him as his province without any further hesitation. The Scipios then, having raised what troops were requisite, among which five thousand of those who had served under Africanus came as volunteers, passed over to Epirus with a force of about thirteen thousand men. In Thessaly Acilius delivered up to them two legions which he had under his command, and being supplied with provisions and everything else they required they marched through Macedonia and Thrace for the Hellespont. A Roman fleet was in the Ægean, which, united with those of Eumenes of Pergamus and the Rhodians, proved an overmatch for that of Antiochus, even though commanded by Hannibal. When the Scipios reached the Hellespont they found everything prepared for the passage by Eumenes. They crossed without any opposition; and as this was the time for moving

the *Ancilia* at Rome, P. Scipio, who was one of the salii, caused the army to make a halt of a few days on that account.

While they remained there an envoy came from Antiochus proposing peace, on condition of his giving up all claim to the Grecian cities in Asia and paying one-half of the expenses of the war. The Scipios insisted on his paying all the expenses of the war, as he had been the cause of it, and evacuating Asia on this side of Mount Taurus. The envoy then applied privately to P. Scipio, telling him that the king would release without ransom his son, who had lately fallen into his hands, and give him a large quantity of gold and every honour he could bestow, if through his means he could obtain more equitable terms. Scipio expressed his gratitude, as a private person, to the king for the offer to release his son; and, as a friend, advised him to accept any terms he could get, as his case was hopeless. The envoy retired; the Romans advanced to Ilium, where the consul ascended and offered sacrifice to Minerva, to the great joy of the Ilienses, who asserted themselves to be the progenitors of the Romans. They thence advanced to the head of the river Caicus. Antiochus, who was at Thyatira, hearing that P. Scipio was lying sick at Elæa, sent his son to him, and received in return his thanks, and his advice not to engage till he had rejoined the army. As in case of defeat his only hopes lay in P. Scipio, he took his counsel, and retiring to the foot of Mount Sipylus formed a strong camp near Magnesia.

The consul advanced, and encamped about four miles off; and as the king seemed not inclined to fight, and the Roman soldiers were full of contempt for the enemy, and clamorous for action, it was resolved, if he did not accept the proffer of battle, to storm his camp. But Antiochus, fearing that the spirit of his men would sink if he declined fighting, led them out when he saw the Romans in array.

The Roman army, consisting of four legions, each of fifty-four hundred men, was drawn up in the usual manner, its left resting on a river; three thousand Achæan and Pergamenian foot were placed on the right, and beyond them the horse, about three thousand in number; sixteen African elephants were stationed in the rear. The army of Antiochus consisted of sixty-two thousand foot, twelve thousand horse, and fifty-four elephants. His phalanx of sixteen thousand men was drawn up in ten divisions, each of fifty men in rank and thirty-two in file, with two elephants in each of the

intervals. On the left and right of the phalanx were placed the cavalry, the light troops and the remainder of the elephants, the scythed chariots, and Arab archers, mounted on dromedaries.

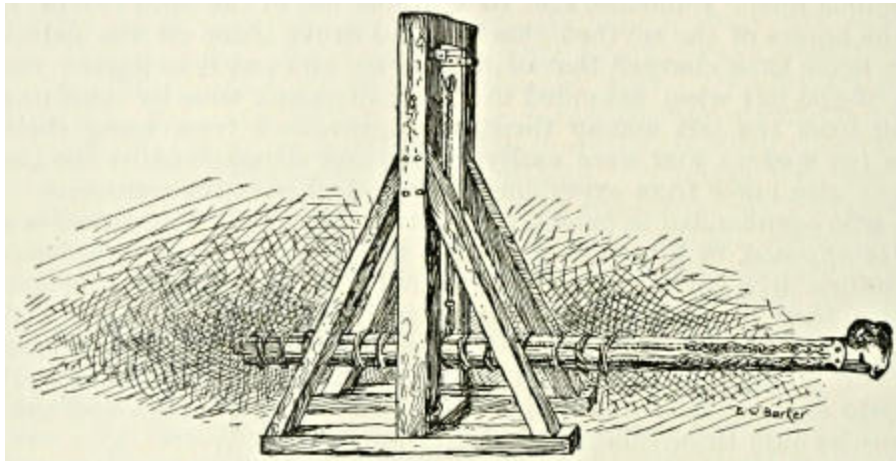
When the armies were arrayed, there came on a fog, with a slight kind of rain, which relaxed the bowstrings, slings, and dart thongs of the numerous light troops of the king, and the darkness caused confusion in his long and various line. Eumenes, also, by a proper use of the light troops, frightened the horses of the scythed chariots, and drove them off the field. The Roman horse then charged that of the enemy and put it to flight; the confusion of the left wing extended to the phalangites, who, by their own men rushing from the left among them, were prevented from using their long *sarissæ* (or spears), and were easily broken and slaughtered by the Romans, who now also knew from experience how to deal with the elephants. Antiochus, who commanded in person on the right, drove the four *turms* or troops of horse opposed to him, and a part of the foot, back to their camp; but M. Æmilius, who commanded there, rallied them. Eumenes' brother, Attalus, came from the right with some horse; the king turned and fled; the rout became general; the slaughter, as usual, was enormous; the camp was taken and pillaged. The loss of the Syrians is stated at fifty-three thousand slain and fourteen hundred taken; that of the Romans and their ally Eumenes at only three hundred and fifty men (190).

All the cities of the coast sent in their submission to the consul, who advanced to Sardis. Antiochus was at this time at Apamea; and when he learned that P. Scipio, who had not been in the battle, was arrived, he sent envoys to treat of peace on any terms. The Romans had already arranged the conditions of peace, and P. Scipio announced them as follows: Antiochus should abstain from Europe, and give up all Asia this side of Taurus; pay fifteen thousand Euboic talents for the expenses of the war, five hundred down, fifteen hundred when the senate and people ratified the peace, the remainder in twelve years, at one thousand talents a year; give Eumenes four hundred talents and a quantity of corn; give twenty hostages; and, above all, deliver up Hannibal, Thoas the Ætolian, and three other Greeks. The king's envoys went direct to Rome, whither also went Eumenes in person, and embassies from Rhodes and other places; the consul put his troops into winter quarters at Magnesia, Tralles, and Ephesus.

At Rome the peace was confirmed with Antiochus. The greater part of the ceded territory was granted to Eumenes, Lycia and a part of Caria to the Rhodians (whose usually prudent aristocracy committed a great error in seeking this aggrandisement of their dominion), and such towns as had taken part with the Romans were freed from tribute. L. Scipio triumphed on his return to Rome, and assumed the surname of Asiaticus, to be in this respect on an equality with his illustrious brother.

[189-183 B.C.]

Cn. Manlius Vulso succeeded Scipio in Asia (189), and as the Roman consuls now began to regard it as discreditable and unprofitable to pass their year without a war, he looked round him for an enemy from whom he might derive fame and wealth. He fixed on the Gallo-Grecians, as the descendants of those Gauls were called who had passed over into Asia in the time of Pyrrhus, and won a territory for themselves, named from them in after-times Galatia. He stormed their fortified camp on Mount Olympus in Mysia, gave them a great defeat on the plains of Ancyra, and forced them to sue for peace. The booty gained, the produce of their plunder for many years, was immense. Manlius then led his army back to the coast for the winter. The next year (188) ten commissioners came out to ratify the peace with Antiochus; they added some more conditions, such as the surrender of his elephants; the peace was then sworn to, and the Romans evacuated Asia.



ROMAN BATTERING RAM

Hannibal, when he found that the Romans demanded him, retired to Crete; not thinking himself, however, safe in that island, he left it soon after and repaired to the court of Prusias, king of Bithynia, who felt flattered by the presence of so great a man. But the vengeance of Rome did not sleep, and no less a person than T. Flamininus was sent (183) to demand his death or his surrender. The mean-spirited Prusias, immediately after a conference with the Roman envoy, sent soldiers to seize his illustrious guest.⁴ Cornelius Nepos thus describes the tragic result:

Hannibal constantly confined himself to one place, being a castle with which the king had presented him as a reward for his services, which he so contrived, that he had sallies on all sides through which he might escape if he should have occasion; for he always suspected that that would befall him, which at last did really happen. The Roman ambassadors, accompanied with a great number of men, having at length surrounded this castle on all parts, his servant perceiving them from the gate, runs to his master and acquaints him that there appeared a more than usual company of armed men; upon which he commanded him to go round all the doors of the house and speedily bring him word whether there was any way to escape. When the boy had immediately acquainted him how the case stood, and had farther assured him that all the passages were stopped, he was soon satisfied that this could not happen by accident, but that they came to seize his person; and that consequently he could not long enjoy his life, which he was resolved should not be in another man's disposal: upon which he

immediately swallowed a dose of poison, which he was always accustomed to carry with him. Thus, this our most valiant hero, harassed with numerous and various labours, reposed himself in death.^{[h](#)}

It is said that Scipio Africanus died in the same year with his illustrious rival, an instance also of the mutability of fortune, for the conqueror of Carthage breathed his last in exile. In the year 193 he had had a specimen of the instability of popular favour; for while at the consular elections he and all the Cornelian gens exerted their influence in favour of his cousin P. Cornelius Scipio, the son of Cneius who had been killed in Spain,—and who was himself of so exemplary a character that, when the statue of the Idæan mother Cybele was, by the direction of the Sibylline books, brought to Rome from Pergamus, it was committed to his charge, as being the best man in the city—they were forced to yield to that of the vainglorious T. Quinctius Flaminius, who sued for his brother, the profligate L. Quinctius. But, as the historian observes, the glory of Flaminius was fresher; he had triumphed that very year; whereas Africanus had been now ten years in the public view, and since his victory over Hannibal he had been consul a second time, and censor—very sufficient reasons for the decline of his favour with the unstable people.

[187-183 B.C.]

The year after the conclusion of the peace with Antiochus (187) the Q. Petillii, tribunes of the people, at the instigation it is said of M. Porcius Cato, cited Scipio Africanus before the tribes, to answer various charges on old and new grounds, of which the chief was that of having taken bribes from Antiochus, and not having accounted for the spoil. Scipio was attended to the Forum by an immense concourse of people; he disdained to notice the charges against him; in a long speech he enumerated the various actions he had performed, and taking a book from his bosom, “In this,” said he, “is an account of all you want to know.” “Read it,” said the tribunes, “and let it then be deposited in the treasury.” “No,” said Scipio, “I will not offer myself such an insult”; and he tore up the book before their faces.

The night came on; the cause was deferred till the next day: at dawn the tribunes took their seat on the rostra; the accused, on being cited, came before it, attended by a crowd of his friends and clients. “This day, ye tribunes and quirites,” said he, “I defeated Hannibal in Africa. As, therefore, it should be free from strife and litigation, I will go to the Capitol and give

thanks to Jupiter and the other gods who inspired me on this and other days to do good service to the state. Let whoso will, come with me and pray to the gods that ye may always have leaders like unto me.” He ascended the Capitol; all followed him, and the tribunes were left sitting alone. He then went round to all the other temples, still followed by the people; and this last day of his glory nearly equalled that of his triumph for conquered Africa. His cause was put off for some days longer; but in the interval, disgusted with the prospect of contests with the tribunes which his proud spirit could ill brook, he retired to Liternum in Campania. On his not appearing, the tribunes spoke of sending and dragging him before the tribunal; but their colleagues interposed, especially Ti. Sempronius Gracchus, from whom it was least expected, as he was at enmity with the Scipios. The senate thanked Gracchus for his noble conduct,^[57] the matter dropped, and Scipio spent the remainder of his days at Liternum. He was buried there, it is said, at his own desire, that his ungrateful country might not even possess his ashes.

The actions of the two great men who were now removed from the scene sufficiently declare their characters. As a general Hannibal is almost without an equal; not a single military error can be charged to him, and the address with which he managed to keep an army composed of such discordant elements as his in obedience, even when obliged to act on the defensive, is astonishing. The charges of perfidy, cruelty, and such like, made against him by the Roman writers, are quite unfounded, and are belied by facts. Nowhere does Hannibal’s character appear so great as when, after the defeat of Zama, he, with unbroken spirit, applied the powers of his mighty mind to the reform of political abuses and the restoration of the finances, in the hopes of once more raising his country to independence. Here he shone the true patriot.

The character of his rival has come down to us under the garb of panegyric; but even after making all due deductions, much remains to be admired. His military talents were doubtless considerable; of his civil virtues we hear but little, and we cannot therefore judge of him accurately as a statesman. Though a high aristocrat, we have, however, seen that he would not hesitate to lower the authority of the senate by appealing to the people in the gratification of his ambition; and we certainly cannot approve of the conduct of the public man who disdained to produce his accounts

when demanded. Of his vaunted magnanimity and generosity we have already had occasion to speak, and not in very exalted terms. Still Rome has but one name in her annals to place in comparison with that of Africanus; that name, Julius Cæsar, is a greater than his—perhaps than any other.

[201-171 B.C.]

To return to our narrative. In the period which had elapsed since the peace with Carthage, there had been annual occupation for the Roman arms in Cisalpine Gaul, Liguria, and Spain. The Gauls, whose inaction all the time Hannibal was in Italy seems hard to account for, resumed arms in the year 201, at the instigation of one Hasdrubal, who had remained behind from the army of Mago; they took the colony of Placentia, and met several consular and prætorian armies in the field, and, after sustaining many great defeats, were completely reduced; the Ligurians, owing to their mountains, made a longer resistance, but they also were brought under the yoke of Rome. In Spain the various portions of its warlike population, ill brooking the dominion of strangers, rose continually in arms, but failed before the discipline of the Roman legions and the skill of their commanders. The celebrated M. Porcius Cato when consul (195) acquired great fame by his conduct in that country.

Philip of Macedonia, who with all his vices was an able prince, had long been making preparations for a renewed war with Rome, which he saw to be inevitable. He died however (179) before matters came to an extremity. His son and successor Perseus was a man of a very different character; for while he was free from his father's love of wine and women, he did not possess his redeeming qualities, and was deeply infected by a mean spirit of avarice. It was reserved for him to make the final trial of strength with the Romans. Eumenes of Pergamus went himself to Rome, to represent how formidable he was become, and the necessity of crushing him; the envoys of Perseus tried in vain to justify him in the eyes of the jealous senate; war was declared (172) against him on the usual pretext of his injuring the allies of Rome, and the conduct of it was committed to P. Licinius Crassus, one of the consuls for the ensuing year.

[171-168 B.C.]

The Macedonian army amounted to thirty-nine thousand foot, one-half of whom were phalangites, and four thousand horse, the largest that Macedonia had sent to the field since the time of Alexander the Great. Perseus

advanced into Thessaly at the head of this army (171), and at the same time the Roman legions entered it from Epirus. An engagement of cavalry took place not far from the river Peneus, in which the advantage was decidedly on the side of the king. In another encounter success was on that of the Romans; after which Perseus led his troops home for the winter and Licinius quartered his in Thessaly and Bœotia.

Nothing deserving of note occurred in the following year. In the spring of 169 the consul Q. Marcius Philippus led his army over the Cambunian mountains into Macedonia, and Perseus, instead of occupying the passes in the rear and cutting off his supplies from Thessaly, cravenly retired before him, and allowed him to ravage all the south of Macedonia. Marcius returned to Thessaly for the winter, and in the ensuing spring (168) the new consul, L. Æmilius Paulus (son of the consul who fell at Cannæ), a man of high consideration, of great talent, and who had in a former consulate gained much fame in Spain, came out to take the command.

Meantime the wretched avarice of Perseus was putting an end to every chance he had of success. Eumenes had offered, for the sum of fifteen hundred talents, to abstain from taking part in the war, and to endeavour to negotiate a peace for him: Perseus gladly embraced the offer, and was ready enough to arrange about the hostages which Eumenes agreed to give; but he hesitated to part with the money before he had had the value for it, and he proposed that it should be deposited in the temple at Samothrace till the war was ended. As Samothrace belonged to Perseus, Eumenes saw that he was not to be trusted, and he broke off the negotiation. Again, a body of Gauls, with ten thousand horse and an equal number of foot, from beyond the Ister, to whom he had promised large pay, were now at hand; Perseus sought to circumvent them and save his money, and the offended barbarians ravaged Thrace and returned home. It is the opinion of the historian, that if he had kept his word with these Gauls, and sent them into Thessaly, the situation of the Roman army, placed thus between two armies, might have been very perilous. Lastly, he agreed to give Gentius, king of Illyricum, three hundred talents if he went to war with the Romans: he sent ten of them at once, and directed those who bore the remainder to go very slowly; meantime his ambassador kept urging Gentius, who, to please him, seized two Roman envoys who arrived just then, and imprisoned them. Perseus, thinking him

fully committed with the Romans by this act, sent to recall the rest of his money.

Paulus led his army without delay into Macedonia, and in the neighbourhood of Pydna he forced the crafty Perseus to come to an engagement. The victory was speedy and decisive on the side of the Romans; the Macedonian horse fled, the king setting the example, and the phalanx thus left exposed was cut to pieces. Perseus fled with his treasures to Amphipolis, and thence to the sacred isle of Samothrace. All Macedonia submitted to the consul, who then advanced to Amphipolis after Perseus, who in vain sent letters suing for favour (168).

Meantime the prætor Cn. Octavius was come with his fleet to Samothrace. He sought ineffectually to induce Perseus to surrender, and then so wrought on the people of the island, that the unhappy prince, considering himself no longer safe, resolved to try to escape to Cotys, king of Thrace, his only remaining ally. A Cretan ship-master undertook to convey him away secretly; provisions, and as much money as could be carried thither unobserved, were put on board his bark in the evening, and at midnight the king left the temple secretly and proceeded to the appointed spot. But no bark was there; the Cretan, false as any of his countrymen, had set sail for Crete as soon as it was dark. Perseus having wandered about the shore till near daylight, slunk back and concealed himself in a corner of the temple. He was soon obliged to surrender to Octavius, by whom he was conveyed to the consul. Macedonia was, by the direction of the senate, divided into four republics, between which there was to be neither intermarriage nor purchase of immovable property (*connubium* or *commercium*); each was to defray the expenses of its own government, and pay to Rome one-half of the tribute it had paid to the kings; the silver and gold mines were not to be wrought, no ship-timber was to be felled, no troops to be kept except on the frontiers; all who had held any office, civil or military, under Perseus were ordered to quit Macedonia and go and live in Italy, lest if they remained at home they should raise disturbances. In Greece the lovers of their country were put to death or removed to Italy, under pretext of their having favoured the cause of Perseus, and the administration of affairs was placed in the hands of the tools of Rome.

Paulus on his return to Rome celebrated his triumph with great magnificence. His soldiers—because he had maintained rigid discipline and

had given them less of the booty than they had expected—instigated by Ser. Sulpicius Galba, one of their tribunes, a personal enemy to the consul, had tried to prevent it; but the eloquence of M. Servilius and others prevailed. Perseus and his children, examples of the mutability of fortune, preceded the car of the victor. After the triumph, Perseus was confined at Alba in the Marsian land,^[58] where he died a few years after.

Octavius was allowed to celebrate a naval triumph; and the prætor L. Anicius Gallus, who had in thirty days reduced Illyricum and made Gentius and all his family captives, also triumphed for that country.

AFFAIRS OF CARTHAGE^[59]

[201-149 B.C.]

After the conclusion of the Hannibalian War, the Carthaginians seemed disposed to remain at peace; but the ambition of their neighbour Masinissa, whose life, to their misfortune, was extended to beyond ninety years, would not allow them to rest. He was continually encroaching on their territory and seizing their subject towns. The Roman senate, when appealed to as the common superior, sent out commissioners, who almost invariably decided in favour of Masinissa, and he gradually extended his dominion from the ocean inlands to the Syrtes.

On one of these occasions M. Porcius Cato was one of those sent out; and when he saw the fertility of the Carthaginian territory and its high state of culture, and the strength, wealth, and population of the city, he became apprehensive of its yet endangering the power of Rome; his vanity also, of which he had a large share, was wounded, because the Carthaginians, who were manifestly in the right, would not acquiesce at once in the decision of himself and his colleagues; and he returned to Rome full of bitterness against them. Henceforth he concluded all his speeches in the senate with these words, “I also think that Carthage should be destroyed.” On the other side, P. Scipio Nasica, either from a regard to justice, or, as it is said, persuaded that the only mode of saving Rome from the corruption to which she was tending was to keep up a formidable rival to her, strenuously opposed this course. The majority, however, inclined to the opinion of Cato; it was resolved to lay hold on the first plausible pretext for declaring war, and to those who were so disposed a pretext was not long wanting.

At Carthage there were three parties; the Roman, the Numidian, and the popular party. This last, which, with all its faults, alone was patriotic, drove out of the city about forty of the principal of the Numidian party, and made the people swear never to re-admit them nor listen to any proposals for their return. The exiles repaired to Masinissa, who sent his sons Micipsa and Gulussa to Carthage on their behalf. But Carthalo, a leader of the popular party, shut the gates against them, and Hamilcar, the other popular leader, fell on Gulussa as he was coming again, and killed some of those who attended him. This gave occasion to a war; a battle was fought between Masinissa and the Punic troops led by Hasdrubal, which lasted from morning to night without being completely decided. But Masinissa having enclosed the Punic army on a hill, starved them into a surrender; and Gulussa, as they were departing unarmed, fell on and slaughtered them all. The Carthaginians lost no time in sending to Rome to justify themselves, having previously passed sentence of death on Hasdrubal, Carthalo, and the other authors of the war. The senate, however, would accept of no excuse; and after various efforts on the part of the Carthaginians to avert it, war was proclaimed against them (149), and the conduct of it committed to the consuls L. Marcius Censorinus and M'. Manilius Nepos, with secret orders not to desist till Carthage was destroyed. Their army is said to have consisted of eighty thousand foot and four thousand horse, which had been previously prepared for this war.

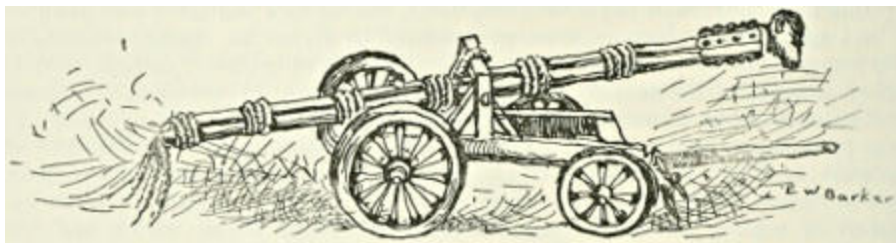
OUTBREAK OF THE THIRD PUNIC WAR

[149 B.C.]

The Carthaginians were informed almost at the same moment of the declaration of war and of the sailing of the Roman army. They saw themselves without ships (for they had been prohibited to build any), without an ally (even Utica, not eight miles from their city, having joined the Romans), without mercenaries, or even supplies of corn, and the flower of their youth had been lately cut off by Masinissa. They again sent an embassy to Rome, to make a formal surrender of their city. The senate replied that if within thirty days they sent three hundred children of the noblest families as hostages to the consuls in Sicily, and did whatever the consuls commanded them, they should be allowed to be free and governed by their own laws,

and to retain all the territory they possessed in Africa. At the same time secret orders were sent to the consuls to abide by their original instructions.

The Carthaginians became somewhat suspicious at no mention of their city having been made by the senate. They however resolved to obey, and leave no pretext for attacking them; the hostages accordingly were sent to Lilybæum, amidst the tears and lamentations of their parents and relatives. The consuls straightway transmitted them to Rome, and then told the Carthaginians that they would settle the remaining matters at Utica, to which place they lost no time in passing over, and when the Punic envoys came to learn their will, they said that as the Carthaginians had declared their wish and resolution to live at peace they could have no need for arms and weapons; they therefore required them to deliver up all that they had. This mandate also was obeyed; two hundred thousand sets of armour, with weapons of all kinds in proportion, were brought on wagons into the Roman camp, accompanied by the priests, the senators, and the chief persons of the city. Censorinus then, having praised their diligence and ready obedience, announced to them the further will of the senate, which was that they should quit Carthage, which the Romans intended to level, and build another town in any part of the territory they pleased, but not within less than ten miles of the sea. The moment they heard this ruthless command they abandoned themselves to every extravagance of grief and despair; they rolled themselves on the ground, they tore their garments and their hair, they beat their breasts and faces, they called on the gods, they abused the Romans for their treachery and deceit. When they recovered from their paroxysm they spoke again, requesting to be allowed to send an embassy to Rome. The consul said this would be to no purpose, for the will of the senate must be carried into effect. They then departed, with melancholy forebodings of the reception they might meet with at home, and some of them ran away on the road, fearing to face the enraged populace. Censorinus forthwith sent twenty ships to cast anchor before Carthage.



The people, who were anxiously waiting their return, when they saw their downcast melancholy looks, abandoned themselves to despair and lamented aloud. The envoys passed on in silence to the senate house, and there made known the inexorable resolve of Rome. When the senators heard it they groaned and wept; the people without joined in their lamentations; then giving way to rage, they rushed in and tore to pieces the principal advisers of the delivery of the hostages and arms; they stoned the ambassadors and dragged them about the city; and then fell on and abused in various ways such Italians as happened to be still there. The senate that very day resolved on war; they proclaimed liberty to the slaves, they chose Hasdrubal—whom they had condemned to death, and who was at a place called Nepheris at the head of a force of twenty thousand men—general for the exterior, and another Hasdrubal, the grandson of Masinissa, for the city; and having again applied in vain to the consuls for a truce that they might send envoys to Rome, they prepared vigorously for defence, resolved to endure the last rather than abandon their city. The temples and other sacred places were turned into workshops, men and women laboured day and night in the manufacture of arms, and the women cut off their long hair that it might be twisted into bowstrings. The consuls meantime, though urged by Masinissa, did not advance against the city, either through dislike of the unpleasant task, or because they thought that they could take it whenever they pleased. At length they led their troops to the attack of the town.

The city of Carthage lay on a peninsula at the bottom of a large bay; at its neck, which was nearly three miles in width, stood the citadel, Byrsa, on a rock whose summit was occupied by the temple of Esmun or Æsculapius; from the neck on the east ran a narrow belt or tongue of land between the lake of Tunis and the sea; at a little distance inlands extended a rocky ridge, through which narrow passes had been hewn. The harbour was on the east side of the peninsula; it was double, consisting of an outer and an inner one, and its mouth, which was seventy feet wide, was secured with iron chains; the outer harbour was surrounded by a quay for the landing of goods. The inner one, named the Cothon, was for the ships of war; its only entrance was through the outer one, and it was defended by a double wall; in its centre was an elevated island, on which stood the admiral's house, whence there was a view out over the open sea. The Cothon was able to contain 220

ships, and was provided with all the requisite magazines. A single wall environed the whole city; that of Byrsa was triple, each wall being thirty ells high exclusive of the battlements, and at intervals of two hundred feet were towers four stories high. A double row of vaults ran round each wall, the lower one containing stalls for three hundred elephants and four thousand horses, with granaries for their fodder; the upper barracks, for twenty thousand foot and four thousand horse. Three streets led from Byrsa to the market, which was near the Cothon, which harbour gave name to this quarter of the town. That part of the town which lay to the west and north was named Megara; it was more thinly inhabited, and full of gardens divided by walls and hedges. The city was in compass twenty-three miles, and is said to have contained at this time seven hundred thousand inhabitants.

The consuls divided their forces; Censorinus attacked from his ships the wall where it was weakest, at the angle of the isthmus, while Manilius attempted to fill the ditch and carry the outer works of the great wall. They reckoned on no resistance; but their expectations were deceived, and they were forced to retire. Censorinus then constructed two large battering-rams, with which he threw down a part of the wall near the belt; the Carthaginians partly rebuilt it during the night, and next day they drove out with loss such of the Romans as had entered by the breach. They had also in the night made a sally and burned the engines of the besiegers. It being now the dog days, Censorinus finding the situation of his camp, close to a lake of standing water, unwholesome, removed to the sea-shore. The Carthaginians then, watching when the wind blew strong from the sea on the Roman station, used to fill small vessels with combustibles, to which they set fire, and spreading their sails let the wind drive them on the Roman ships, many of which were thus destroyed.

Censorinus having gone to Rome for the elections, the Carthaginians became more daring, and they ventured a nocturnal attack on the camp of Manilius, in which they would have succeeded but for the presence of mind of Scipio, one of the tribunes, who led out the horse at the rear of the camp and fell on them unexpectedly. A second nocturnal attack was frustrated by the same Scipio, who was now the life and soul of the army. Manilius then, contrary to the advice of Scipio, led his troops to Nephesis against Hasdrubal; but he was forced to retire with loss, and four entire cohorts

would have been cut off had it not been for the valour and the skill of Scipio. Shortly after, when commissioners came out from Rome to inquire into the causes of the want of success, Manilius and his officers, laying aside all jealousy, bore testimony to the merits of Scipio; the affection of the army for him was also manifest; of all which the commissioners informed the senate and people on their return.

[149-147 B.C.]

Masinissa dying at this time, left the regulation of his kingdom to Scipio, who divided the regal office among the three legitimate sons of the deceased monarch; giving the capital and the chief dignity to Micipsa, the eldest, the management of the foreign relations to Gulussa, and the administration of justice to Mastanabal. Scipio also induced Himilco Phamæas, a Punic commander, who had hitherto done the Romans much mischief, to desert to them, bringing over with him twenty-two hundred horses.

In the spring (148) the new consul L. Calpurnius Piso came out to take the command of the army, and the prætor L. Hostilius Mancinus to take that of the fleet. They attacked the town of Clupea by sea and land, but were repulsed; and Calpurnius then spent the whole summer to no purpose in the siege of a strong town named Hippagreta. The Carthaginians, elevated by their unexpected good fortune, were now masters of the country; they insulted the Romans, and endeavoured to detach the Numidians. Hasdrubal, proud of his successes over Manilius, aspired to the command in the city; he accused the other Hasdrubal of having intelligence with his uncle Gulussa, who was in the Roman camp; and when this last, on being charged with it in the senate, hesitated from surprise, the senators fell on and killed him with the seats; and his rival thus gained his object.

The elections now came on at Rome; Scipio was there as a candidate for the ædileship; all eyes were turned on him, his friends doubtless were not idle, and the letters from the soldiers in Africa represented him as the only man able to take Carthage. The tribes therefore resolved to make him consul, though he was not of the proper age.^[60] The presiding consul opposed in vain; he was elected, and the people further assumed the power of assigning him Africa for his province.

This celebrated man was son to Æmilius Paulus, the conqueror of Macedonia. He had been adopted by Scipio the son of Africanus; the Greek

historian Polybius and the philosopher Panætius were his instructors and friends; and he had already distinguished himself as a soldier both in Spain and Africa.

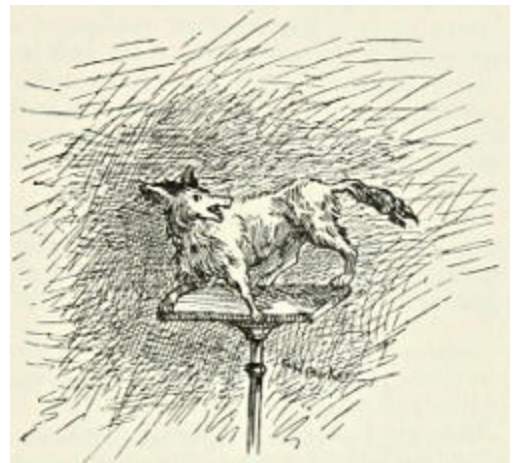
[147 B.C.]

The very evening that Scipio arrived at Utica (147) he had again an opportunity of saving a part of the Roman army; for Mancinus, a vain rash man, having brought the fleet close to Carthage, and observing a part of the wall over the cliffs left unguarded, landed some of his men, who mounted to the wall. The Carthaginians opened a gate and came to attack them; the Romans drove them back and entered the town. Mancinus landed more men, and as it was now evening he sent off to Utica, requiring provisions and a reinforcement to be forwarded without delay, or else they would never be able to keep their position. Scipio, who arrived that evening, received about midnight the letters of Mancinus; he ordered the soldiers he had brought with him and the serviceable Uticans to get on board at once, and he set forth in the last watch, directing his men to stand erect on the decks and let themselves be seen; he also released a prisoner, and sent him to tell at Carthage that Scipio was coming. Mancinus meantime was hard pressed by the enemies, who attacked him at dawn; he placed five hundred men with armour around the remainder (three thousand men), who had none; but this availed them not; they were on the point of being forced down the cliffs when Scipio appeared. The Carthaginians, who expected him, fell back a little, and he lost no time in taking off Mancinus and his companions in peril.

Scipio, on taking the command, finding extreme laxity of discipline and disorder in the army, in consequence of the negligence of Piso, called an assembly, and having upbraided the soldiers with their conduct, declared his resolution of maintaining strict discipline; he then ordered all sutlers, camp-followers, and other useless and pernicious people to quit the camp, which he now moved to within a little distance of Carthage. The Carthaginians also formed a camp about half a mile from their walls, which Hasdrubal entered at the head of six thousand foot and one thousand horse,—all seasoned troops.

When Scipio thought the discipline of his men sufficiently revived, he resolved to attempt a night attack on the Megara; but being perceived by the defenders, the Romans could not scale the walls. Scipio then observing a

turret (probably a garden one) which belonged to some private person, and was close to the wall, and of the same height with it, made some of his men ascend it. These drove down with their missiles those on the walls opposite them, and then laying planks and boards across got on the wall, and jumping down opened a gate to admit Scipio, who entered with four thousand men. The Punic soldiers fled to the Byrsa, thinking that the rest of the town was taken, and those in the camp hearing the tumult ran thither also; but Scipio, finding the Megara full of gardens with trees and hedges and ditches filled with water, and therefore unsafe for an invader, withdrew his men and went back to his camp. In the morning Hasdrubal, to satiate his rage, took what Roman prisoners he had, and placing them on the walls in sight of the Roman camp, mutilated them in a most horrible manner, and then flung them down from the lofty battlements. When the senators blamed him, he put some of them to death, and he made himself in effect the tyrant of the city.



A ROMAN STANDARD

Scipio having taken and burned the deserted camp of the enemy, formed a camp within a dart's cast of their wall, running from sea to sea across the isthmus, and strongly fortified on all sides. By this means he cut them off from the land; and as the only way in which provisions could now be brought into the city was by sea, when vessels, taking advantage of winds that drove off the Roman ships, ran into the harbour, he resolved to stop up its mouth by a mole. He commenced from the belt, forming the mole of great breadth and with huge stones. The besieged at first mocked at the efforts of the Romans; but when they saw how rapidly the work advanced they became alarmed, and instantly set about digging another passage out of the port into the open sea; they at the same time built ships out of the old materials; and they wrought so constantly and so secretly, that the Romans at length saw all their plans frustrated, a new entrance opened to the harbour, and a fleet of fifty ships of war and a great number of smaller vessels issue from it. Had their evil destiny now allowed the Carthaginians to take advantage of the consternation of the Romans, and fall at once on

their fleet, which was utterly unprepared, they might have destroyed it; but they contented themselves with a bravado and then returned to port. On the third day the two fleets engaged from morn till eve with various success. The small vessels of the enemy annoyed the Romans very much in the action; but in the retreat they got ahead of their own ships, and blocking up the mouth of the harbour, obliged them to range themselves along a quay which had been made without the walls for the landing of goods, whither the Roman ships followed them and did them much mischief. During the night they got into port, but in the morning Scipio resolved to try to effect a lodgment on the quay which was so close to the harbour. He assailed the works that were on it with rams, and threw down a part of them; but in the night the Carthaginians came, some swimming, some wading through the water, having combustibles with them, to which they set fire when near the machines, and thus burned them. They then repaired the works; but Scipio finally succeeded in fixing a corps of four thousand men on the quay.

During the winter Scipio took by storm the Punic camp before Nepheris, and that town surrendered after a siege of twenty-two days. As it was from Nepheris that Carthage received almost the whole of its supplies, they now failed, and famine was severely felt.^c

APPIAN'S ACCOUNT OF THE DESTRUCTION OF CARTHAGE

[146 B.C.]

As soon as spring came on, Scipio assaulted the citadel called Byrsa and the gate called Cothon at the same time, which caused Hasdrubal to set on fire that part of the gate which was square; but whilst he expected Scipio should make a new attempt on that side, and stood firm with the inhabitants, Lælius mounted privately by the other side of the gate which was of a round figure, and making himself master of it, the shouts of those that were already got up so dismayed the enemies that the other soldiers now contemning the besieged, and having filled all the places difficult to pass with beams, engines, and planks, they leaped in on all sides in spite of all the resistance of the guards oppressed with hunger and lost to all courage; Scipio thus possessed of the wall that encompassed the gate called Cothon, got thence into the great place of the city which was nigh unto it, where night coming on, and not suffering him to go farther, he kept there in arms

with those soldiers he had with him, and as soon as day broke, caused four thousand fresh men to come thither, who being got into Apollo's temple, plundered his statue which was all of gold, and all the inside of the temple, which was covered with plates of gold of a thousand talents' weight. They cut in pieces the plates with their swords, do what their captains could to hinder them, till such time as having got what they could they pursued their enterprise.

Meanwhile Scipio's chief design was against the place called Byrsa, for that was the strongest of all the city, and a world of people were retreated thither. The way from the great place thither was up hill through three streets, on each side of which there was a continuance of very high houses, whose upper stories, jetting somewhat over into the street, whole showers of darts flew from thence upon the Romans, who were constrained before they passed farther to force the first houses and there post themselves, that from thence they might drive out those that fought in the neighbouring houses, and after they had driven them out, they laid beams and planks from one side of the street to the other, on which, as on bridges, they passed across the streets; thus they maintained war in the chambers whilst as fast as they met they fought more cruelly below in the streets.

All places were filled with cries and groans, people dying a thousand different sorts of deaths, some at sword's point, some thrown headlong down from the tops of the houses upon the pavement, others falling upon javelins, pikes, and swords presented against them, however none durst yet set fire because of those who maintained the fight in the lofts; but when Scipio had gained the foot of the fortress all the three streets were immediately in a flame, and the soldiers had charge to hinder the ruins of the houses caused by the fire from falling into the street, that the whole army might have the more convenient passage; and now were new spectacles of calamity to be seen, the fire devouring and overturning the houses, and the Roman soldiers all about so far from hindering it, that they endeavoured to involve the rest in the same ruin. The miserable Carthaginians in despair falling confusedly with the stones and bricks on the pavement, dead bodies, nay, people yet living, and especially old men, women, and children, who had hidden themselves in the most secret places of the houses, some laden with wounds, others half burnt, and all crying out in a deplorable manner, others tumbling headlong from the upper stories of

the houses among the mass of stones and wood were in their falls torn in pieces.

Nor was this the end of their miseries, for the pioneers, who to make way for the soldiers, removed the rubbish out of the middle of the streets, tossed with their hooks and forks the bodies, as well of the dead as living, into the vaults, turning them with their iron instruments as if they had been pieces of wood or stones, so that there might be seen holes full of heaps of men, of which some having been headlong thrown in, yet breathed a long time and lay with their legs above ground, and others interred up to the neck were exposed to the cruelty of the masons and pioneers, who took pleasure to see their heads and brains crushed under the horses' feet, for these sort of people placed not those wretches so by chance but of set purpose.

As for the men of war, their being engaged in the fight, with the hopes of approaching victory, the eagerness of the soldiers heightened by the sounds of the trumpets, the noise made by the majors and captains in giving their orders, made them even like furies and hindered them from amusing themselves at these spectacles. In this bloody toil they continued six days and six nights without respite, save only that the soldiers were from time to time relieved by other fresh ones, lest the continual watchings, labour, slaughter and horror should make their hearts fail them. Scipio only bore out all this time without sleeping; he was continually in action, continually running from one place to another, and taking no food but what offered itself by chance as he was passing, till such time as quite tired out he sat down in an eminent place, that he might see what passed. Meanwhile strange havoc was made on all sides and this calamity seemed likely to continue much longer, when on the seventh day they had recourse to his clemency, and came to him bringing in their hand the Vervein of Æsculapius whose temple is the most considerable in all the fortress, desiring no other composition but that he would please to give their lives to all that would come forth, which he granted to them, except only to the runaways. There came forth fifty thousand as well men as women, who he caused to pass out of the little gate towards the fields with a good guard.

The runaways, who were about nine hundred, seeing there was no mercy for them, withdrew into the temple with Hasdrubal, his wife and children, where, though they were a small number, they might defend themselves, because of the height of the place situated upon rocks, and to which in time

of peace they ascended by sixty steps, but at length oppressed with famine, watchings, and fear, and seeing their destruction so nigh, impatience seized them, and quitting the lower part of the temple they fled to the highest story. Hasdrubal meanwhile privately withdrew himself and went to Scipio with a branch of olive in his hand; Scipio having commanded him to come up and prostrate himself at his feet, showed him to the runaways, who seeing him demanded silence, which being granted, after having vomited forth an infinite number of revilings and reproaches against Hasdrubal, they set fire to the temple, and buried themselves in the flame. It is said that whilst the fire was kindling, Hasdrubal's wife, decking herself in the best manner she could, and placing herself in the sight of Scipio, spoke to him with a loud voice in this manner.

The Oration of Hasdrubal's Wife; Scipio's Moralising

“I wish nothing to thee, O Roman, but all prosperity, for thou dost act only according to the rights of war. But I beseech the gods of Carthage, and thou thyself to punish, as he deserves, that Hasdrubal, who has betrayed his country, his gods, his wife, and children,” and then addressing her speech to Hasdrubal: “Perfidious wretch,” said she, “thou most wicked of all mankind! This fire is about to devour me and my children; but thou, great captain of Carthage, for what triumph are not thou reserved, or what punishment will not he make thee suffer, at whose feet I now see thee.”^[61]

After these reproaches she cut her children's throats and cast them into the fire, and then threw herself headlong in; such, as is reported, was the end of this woman, but this death had certainly better become her husband.

As for Scipio, seeing that city which had flourished for seven hundred years since it was first built, comparable to any empire whatsoever for extent of dominion by sea and land, for its arms, for its fleets, for its elephants, for its riches, and preferable even to all nations on the earth for generosity and resolution, since after their arms and ships were taken away, they had supported themselves against famine and war for three years together,—seeing it, I say, now absolutely ruined, it is said that he shed tears and publicly deplored the hard fortune of his enemies. He considered that cities, peoples, and empires are subject to revolutions, as well as the conditions of private men, that the same disgrace had happened to Troy, that

powerful city, and afterwards to the Assyrians, Medes, and Persians, whose dominion extended so far, and lately to the Macedonians, whose empire was so great and flourishing, which was the reason that unawares, and as it were without thinking of it, that distich of Homer's escaped him,—

“Priam's and Troy's time come, they Fates obey,
And must to fire and sword be made a prey.”

And Polybius who had been his tutor, demanding of him in familiar discourse what he meant by those words, he ingeniously answered, that the consideration of the vicissitude of human affairs had put him in mind of his country, whose fate he likewise feared; as the same Polybius reports in his histories.

Plundering the City

Carthage thus taken, Scipio gave the plunder to the soldiers for some days, except only the gold and silver, and offerings, which were found in the temple. After which he distributed several military recompenses to all his soldiers, except only those who had pillaged Apollo's temple. And having caused a very light ship to be laden with the spoil of the enemy, he sent it to Rome to carry the news of victory, and caused it to be signified throughout all Sicily that those who would come and claim the offerings made to their temples, which had been carried away by the Carthaginians when they had made war in that island, should have them restored. Thus giving testimonies of his goodness in all that he could, he gained the good will of all the people. And, at last, having sold what remained of the spoil, he caused all the bucklers, engines, and useless ships to be piled together, and being girt after the manner of the Romans, set fire to them as a sacrifice to Mars and Minerva.

The ship that went from Carthage happened to arrive at Rome in an evening, where as soon as the news was known of the taking of that city, all the people flocked to the public places, and the night was spent in rejoicings and embracing each other, as if this victory (the greatest that ever the Romans had gained) had confirmed the public repose, which they before thought insecure. They knew well, that they and their predecessors had

done great things against the Macedonians, the Spaniards, and lately against the great Antiochus, as likewise in Italy; but they confessed they never had a war so much to be feared as this, by reason of the generosity, prudence, and hardiness of their enemies; nor so perilous, by reason of their infidelity. They likewise remembered the miseries they had suffered by the Carthaginians in Sicily, in Spain, and likewise in Italy, for sixteen whole years together, during which Hannibal had sacked four hundred cities, and destroyed in divers encounters three hundred thousand men, and being several times come to the very gates of their city, had reduced them to the last extremities. These things considered, made them with difficulty believe what was told of the victory, and they often demanded of one another if it were certain that Carthage was destroyed.

Thus they passed the night in recounting one to another how, after having disarmed the Carthaginians, they had presently made themselves new arms beyond judgment of all the world. How having taken away their ships, they had built others of old stuff; and how having stopped the entrance of their port, they had in a few days dug a new one on the other side. They spoke likewise of the unmeasurable height of their walls, the vast stones they were built with, the fire which they had several times put to the engines. In short they represented to the eyes of the auditors the whole figure of this war; insomuch that giving life to their discourse by their gesture they seemed to see Scipio on the ladders, on the ships, in the gates, and in the streets, running from one side to the other.

Sacrifices and the Triumph

The people having thus spent the night, on the morrow solemn sacrifices were made to the gods, and public prayers, wherein every tribe assisted separately; after which plays and spectacles were exhibited to public view, and then the senate sent ten commissioners, of the number of the Fathers, to settle jointly with Scipio such orders as were most necessary for that province and for the Romans' best advantage. As soon as they were arrived they ordered Scipio to demolish what remained of Carthage; henceforth forbidding any to inhabit there, with horrible imprecations against those who in prejudice of this interdict should attempt to rebuild anything, especially the fort called Byrsa, and the place called Megara, to the rest they defended no man's entrance. They decreed likewise that all the cities which

in that war had held on the enemy's party should be razed, and gave their territories, conquered by the Roman arms, to the Roman allies, particularly gratifying those of Utica with all the country extending from Carthage to Hippone; they made all the rest of the province tributary, from which neither men or women were exempt, resolving that every year there should be a prætor sent from the city, and having given these orders they returned to Rome. Scipio having executed them, and beholding himself at the height of his wishes, made sacrifices, and set forth plays in honour of the gods, and after settling all things in a good condition returned to Rome, whither he entered in triumph. Never was anything beheld more glorious, for there was nothing to be seen but statues and rarities, and curious pieces of an inestimable price which the Carthaginians had for so long a time been bringing into Africa from all parts of the world, where they had gained an infinite of victories.⁹

THE ACHÆAN WAR

[151-147 B.C.]

In the same year in which Lucullus and Galba took command in Spain, the senate was induced to perform an act of tardy justice in the release of the Achæan captives. The abduction of the best men in every state of Greece gave free scope, as has been said, to the oppressions of the tyrants favoured by Rome. In the Achæan assembly alone there was still spirit enough to check Callicrates, who never ventured to assail the persons and property of his fellow-citizens. Meantime years rolled on; the captives still languished in Etruscan prisons; hope deferred and sickness were fast thinning their numbers; the assembly asked only that Polybius and Stratius might return, but the request was met by a peremptory negative. At last, when Scipio returned from Spain, he induced Cato to intercede for these unhappy men. The manner of the old censor's intercession is characteristic.

The debate had lasted long and the issue was somewhat doubtful, when Cato rose, and, without a word about justice or humanity, simply said: "Have we really nothing to do but to sit here all day, debating whether a parcel of old Greeks are to have their coffins made here or at home?" The question was decided by this unfeeling argument, and the prisoners, who in sixteen years had dwindled from one thousand to three hundred, were set

free. But when Polybius prayed that his comrades might be restored to their former rank and honours, the old senator smiled, and told him “he was acting like Ulysses, when he ventured back into the cave of the Cyclops to recover his cap and belt.”

The men released in this ungracious way had passed the best part of their lives in captivity. The elder and more experienced among them were dead. The survivors returned with feelings embittered against Rome; they were rash and ignorant, and, what was worse, they had lost all sense of honour and all principle, and were ready to expose their country to any danger in order to gratify their own passions. The chief name that has reached us is that of Diæus. Polybius did not return at first, and when he reached Greece he found his countrymen acting with such reckless violence that he gladly accepted Scipio’s invitation to accompany him to the siege of Carthage. Callicrates, by a strange reverse, was now the leader of the moderate party. Diæus advocated every violent and unprincipled measure. On an embassy to Rome the former died, and Diæus returned as chief of the Achæan League.

Not long after (in 148 B.C.) a pretender to the throne of Macedon appeared. He was a young man named Andriscus, a native of Adramyttium, who gave himself out as Philip, a younger son of that luckless monarch. The state of Macedonia, divided into four republics, each in a state of compulsory excommunication, was so distracted, that, in the year 151, the people sent an embassy to Rome, praying that Scipio might be sent to settle their affairs, and he had only been prevented from undertaking the task by the self-imposed duty of accompanying the army of Lucullus into Spain. The pretender, however, met with so little success in his first attempt that he fled to the court of Demetrius at Antioch, and this prince sent him to Rome. The war with Carthage was then at its height. The senate treated the matter lightly, and the adventurer was allowed to escape. Some Thracian chiefs received him, and with troops furnished by them he penetrated into Thessaly. The Roman prætor, Juventius Thalna, was defeated and slain by the pretender.

The temporary success of Pseudo-Philippus (as the Romans called him) encouraged Diæus to drive the Achæans into a rupture with Rome. The haughty republic, he said, was at war with Carthage and with Macedon; now was the time to break their bonds. Q. Metellus, who had just landed in

Greece with a considerable army, gave the Achæans a friendly warning, but in vain.

Metellus soon finished the Macedonian War. At his approach the pretender hastily retired from Thessaly, and was given up to the Roman prætor by a Thracian chief whose protection he had sought.

Meanwhile, a commission had already arrived at Corinth, headed by M. Aurelius Orestes, who summoned the chiefs of the League to hear the sentence of the senate upon their recent conduct. He informed them that they must relinquish all claims of sovereignty over Corinth, Argos, and Lacedæmon—a doom which reduced the Achæan League nearly to the condition from which Aratus first raised it. The chiefs reported what they had heard to the assembly. A furious burst of passion rose, which Diæus did not attempt to restrain. Orestes and the Romans hardly escaped personal violence.

[147-146 B.C.]

Orestes instantly returned to Rome; and the senate, preferring diplomacy to force, sent a second commission headed by Sext. Julius Cæsar, with instructions to use gentle language, and merely to demand the surrender of those who had instigated the violent scenes lately enacted at Corinth. A contemptuous answer was returned, upon which Cæsar returned to Rome, and the senate, roused at the Grecian insolence, declared war against the Achæans (147).

Metellus hoped to win the glory of pacifying Greece, as well as of conquering Macedonia. He sent some of his chief officers to endeavour to bring the Achæans to their senses. But their leaders were too far committed; and at the beginning of 146 B.C. Critolaus, a friend of Diæus, who was general for the year, advanced into Thessaly, and was joined by the Thebans, always the inveterate enemies of Rome. Metellus had already heard that the Achæan War was to be conducted by L. Mummius, one of the new consuls; and, anxious to bring it to a close before he was superseded, he advanced rapidly with his army. On this the braggart chiefs of the Achæans retreated in all haste, not endeavouring to make a stand even at Thermopylæ. Their army dispersed almost without a blow. Metellus pushed on straight towards the isthmus. Thebes he found deserted by her inhabitants; misery and desolation appeared everywhere.

Diæus prepared to defend Corinth. But popular terror had succeeded to popular passion; few citizens would enlist under his banner: though he emancipated a number of slaves, he could not muster more than fifteen thousand men.

When Metellus was almost within sight of Corinth, Mummius landed on the isthmus with his legions, and assumed the command. The Romans treated the enemy with so much contempt that one of their outposts was surprised; and Diæus, flushed with this small success, drew out his forces before the city. Mummius eagerly accepted the challenge, and the battle began. The Achæan cavalry fled at the first onset; the infantry was soon broken, and Diæus fled into one gate of Corinth and out of another without attempting further resistance. The Romans might have entered the city that same day; but seeing the strength of the Acropolis, and suspecting treachery, Mummius held back, and twenty-four hours elapsed before he took possession of his unresisting prey. But the city was treated as if it had been taken by assault; the men were put to the sword, the women and children reserved to be sold by auction. All treasures, all pictures, all the works of the famous artists who had moulded Corinthian brass into effigies of living force and symmetry, were seized by the consul on behalf of the state; then, at a given signal, fire was applied, and Corinth was reduced to a heap of ashes.

Mummius, a new man, was distinguished by the rudeness rather than by the simplicity of an Italian boor. He was not greedy, for he reserved little for himself; and when he died, his daughter found not enough left for her dowry; but his abstinence seems to have proceeded from indifference rather than self-denial. He cared not for the works of Grecian art. He suffered his soldiers to use one of the choicest works of the painter Aristides as a draught-board; but when Attalus offered him a large sum for the painting, he imagined it must be a talisman, and ordered it to be sent to Rome. Every one knows his speech to the seamen who contracted to carry the statues and pictures of Corinth to Rome. "If they lost or damaged them," he said, "they must replace them with others of equal value."

In the autumn ten commissioners arrived, as usual, with draughts of decrees for settling the future condition of Macedon and Greece. Polybius, who had returned from witnessing the conflagration of Carthage just in time to behold that of Corinth, had the melancholy satisfaction of being called to

their counsels—a favour which he owed to the influence of Scipio. A wretched sycophant proposed to the commissioners to destroy the statues of Aratus and Philopœmen; but Polybius prevented this dishonour by showing that these eminent men had always endeavoured to keep peace with Rome. At the same time he declined to accept any part of the confiscated property of Diæus. Politically he was able to render important services. All Greece south of Macedonia and Epirus was formed into a Roman province under the name of Achaia.^[62] The old republican governments of the various communities were abolished, and the constitution of each assimilated to that of the municipal cities of Italy. Polybius was left in Greece to settle these new constitutions, and to adjust them to the circumstances and wants of each place. His grateful countrymen raised a statue to his honour by the side of their old heroes, and placed an inscription on the pedestal, which declared that, if Greece had followed his advice, she would not have fallen.

Such was the issue of the last struggle for Grecian liberty. It was conducted by unworthy men, and was unworthy of the name it bore. Polybius had always opposed attempts at useless and destructive insurrection. He considered it happy for Greece that one battle and the ruin of one city consummated her fall. Indeed it was a proverb of the day that “Greece was saved by her speedy fall.”

The ten commissioners passed northwards into Macedonia, and formed that country, in conjunction with Epirus, into another province. Illyricum was so constituted soon after Cæsar’s conquest of Gaul.

Metellus and Mummius both returned to Rome before the close of 146 B.C., and were honoured with triumphs not long after Scipio had carried the spoils of Carthage in procession to the Capitol. In memory of their respective services, Metellus was afterwards known by the name of Macedonicus, while Mummius, who appears to have had no third name of his own, was not ashamed to assume the title of Achaicus.

SPANISH WARS: FALL OF NUMANTIA

[150-141 B.C.]

While Rome was engaged in war with Carthage, the Lusitanians resumed their inroads under the conduct of the gallant Viriathus, who had escaped

from the massacre of Galba. No Roman general could gain any positive advantage over this indefatigable enemy, and in the year 143 B.C. the war assumed a much more serious aspect. The brave Celtiberian tribes of Numantia and its adjacent districts again appeared in the field. For several years we find two Roman commanders engaged in Spain, as before the treaty of Gracchus: one opposed to the Numantians and their Celtiberian allies in the north, the other carrying on an irregular warfare against Viriathus and the Lusitanians in the south.

The conduct of the Celtiberian War was committed to Q. Metellus Macedonicus, who had been elected consul for the year 143. He remained in command for two years, and was so successful in his measures that by the close of the second campaign he had compelled the enemy to shut themselves up in their strong cities. But he was disappointed, as in Greece, by finding anticipated triumph snatched from his grasp by Q. Pompeius, consul for the year 141 B.C.

Pompeius and his successors could make no impression upon the Numantians. Nay, C. Hostilius Mancinus, consul for the year 137, suffered a memorable reverse. Mancinus set out for his province amid general alarm, excited by the unfavourable omens at his inaugural sacrifices. He was attended as quæstor by young Ti. Gracchus, who had already distinguished himself at the siege of Carthage. Mancinus found the army before Numantia in a state of complete disorganisation, and deemed it prudent to retreat from his position in front of that city. The Numantians pursued and pressed him so hard that he was obliged to entrench himself in an old camp, and sent a herald with offers to treat on condition that his army should be spared. The enemy consented, but only on the understanding that young Gracchus was to make himself responsible for the execution of the treaty. Articles of peace were accordingly signed by Mancinus himself, with Gracchus and all the chief officers of the army.

[141-140 B.C.]

Before we notice the sequel of the famous Treaty of Mancinus, it will be well to follow the Lusitanian War to its conclusion.

Here also the fortune of Rome was on the decline. Q. Fabius Servilianus was surprised by Viriathus in a narrow defile, and so shut up that escape was impossible. The Lusitanian captain offered liberal terms, which were

gladly accepted by the proconsul. This peace was approved by the senate, and Viriathus was acknowledged as the ally of Rome.

But Q. Servilius Cæpio, brother by blood of Servilianus, was little satisfied by the prospect of an inactive command. By importunity he wrung from the senate permission to break the peace so lately concluded by his brother, and ratified by themselves—a permission basely given and more basely used. Cæpio assailed Viriathus, when he little expected an attack, with so much vigour that the chief was fain to seek refuge in Gallæcia, and sent envoys to ask Cæpio on what ground the late treaty was no longer observed. Cæpio sent back the messengers with fair words, but privily bribed them to assassinate their master. They were too successful in their purpose, and returned to claim their blood-money from the consul. But he, with double treachery, disowned the act, and referred them to the senate for their reward.

The death of Viriathus was the real end of the Lusitanian War. He was (as even the Roman writers allow) brave, generous, active, vigilant, patient, faithful to his word; and the manner in which he baffled all fair and open assault of the disciplined armies of Rome gives a high conception of his qualities as a guerilla chief. His countrymen, sensible of their loss, honoured him with a splendid military funeral. The senate, with a wise moderation which might have been adopted years before, assigned lands to a portion of the mountaineers within the province, thus at length making good the broken promises of Galba. Such was the discreditable termination of the Lusitanian War. We must now return to Mancinus and his treaty.

[140-138 B.C.]

He returned to defend his conduct before the senate. He pleaded that the army was so demoralised that no man could wield it with effect, and admitted



JUNO

(From a statue in the Vatican)

that he had concluded a treaty with Numantia without the authority of the senate and the people; as that treaty was not approved, he declared himself ready to support a bill for delivering up the persons of himself and all who had signed it to the Numantians. Such a bill was accordingly brought before the tribes. But young Gracchus upheld the treaty, and Scipio, his brother-in-law, made an eloquent speech in his behalf. But the people, always jealous of defeat, voted for delivering up Mancinus alone as an expiatory offering. Accordingly a person, consecrated for this special purpose, carried him to Numantia. But the Spaniards, like the Samnites of old, refused to accept such a compensation; one man's body, they said was no equivalent for the advantage they had lost. Mancinus, therefore, returned to Rome. But when he took his place in the senate, the tribune Rutilius ordered him to leave the curia, because, he said, one who had been delivered over to the enemy with religious ceremony was no longer a citizen of Rome, and could not recover his rights by simply returning to his country. A special law was introduced to restore Mancinus to his former position.

Dec. Junius Brutus, consul for 138, an able officer, was entrusted with the pacification of Lusitania; the town of Valentia owes its origin to a colony of this people planted there by him. After finishing this business, he carried his arms northward across the Tagus, the Douro, and the Minho, and received homage from the tribes of the western Pyrenees. He was the first Roman who reached the shores of the Bay of Biscay, and saw the sun set in the waters of the Atlantic; and he was not unjustly honoured with the name of Callaicus for his successes.

But Numantia still defied the arms of Rome. Men began to clamour for a consul fit to command; and all eyes fell upon Scipio. His qualities as a general had been tested by success at Carthage, and circumstances had since occurred which raised him to great popularity.

After his triumph in 146 B.C., Scipio had continued to lead the simple life in which he had been bred, and which not all the wealth he inherited from his adoptive father induced him to abandon. He affected an austerity of manners which almost emulated that of Cato, though he was free from the censorious dogmatism and rude eccentricities of that celebrated man. In 142 B.C. he was elected censor in conjunction with Mummius, who so thwarted all the efforts of his colleague to promote reforms that the latter publicly exclaimed, "I should have been able to do my duty, either with a colleague

or without one.” Scipio had gained a clear conception of the unsound state of things, which long-continued wars and senatorial government had produced. In the prayer, which he offered on entering upon the censor’s office, he altered the usual form; and instead of asking that “the gods would increase and magnify the power of Rome,” he said, “I pray that they may preserve it; it is great enough already.”

[138-133 B.C.]

His frugal life carried with it a guarantee of honesty and devotion to public interests, which would alone have secured him public favour. But several acts gained him more direct popularity. The son of his kinsman Nasica, nicknamed Serapio, had joined the high oligarchical party. But the son of Æmilius Paulus, on the few occasions on which he appeared in public, took the popular side. In 137 the tribune Cassius proposed the first law for taking votes by secret ballot,^[63] with the intention of neutralising the undue influence of the senators. Scipio came forward and addressed the people in favour of this law. As his popularity was increased, his favour with the senate proportionately fell. Six years before, when he was canvassing for the censorship, App. Claudius, seeing the motley crowd which followed him, exclaimed: “Ah, Æmilius, it would trouble thy spirit to see thy son followed by such a crew.”

Yet he courted not popularity; he seldom even visited the Forum, though he spoke with force and eloquence when he chose. When the same Appius boasted that he knew all who frequented the Forum by name, Scipio replied: “True, I do not know many of my fellow-citizens by name, but I have taken care that all should know me.” Popularity came unasked, and the people cast their eyes upon him to retrieve the dishonour of the Roman arms in Spain. Legally he could not hold the consulship, for a law had been lately passed forbidding a second election in any case. But Scipio received the votes of every century, though he was not a candidate.

He was now fifty-one years of age, and he proceeded to execute his commission with the same steady vigour which distinguished him on other occasions. He found the demoralisation of the army not less than it had been described, and he applied himself to correct it with the same severity that his father had used in Macedonia, and he himself had used before Carthage. All courtesans and hucksters, together with fortune-tellers who drove a lucrative trade in the dispirited army, he commanded to quit the

camp. All carriages, horses, and mules he ordered to be sold, except those that were needed for actual service. No cooking utensils were allowed except a spit, a camp bottle, and a drinking-cup. Down beds were forbidden; the general himself slept upon a straw pallet.

After some time spent in training his army, he led it to Numantia by a difficult and circuitous route, in order to avoid a battle. As he approached the place he was joined by young Jugurtha, bastard son of Micipsa, who came from Numidia with twelve elephants and a large body of light cavalry. By this time the season for war was nearly over, and he ordered two strong camps to be formed for winter quarters. In one he fixed himself, the other he put under the command of his brother Fabius.

With the beginning of spring (133 B.C.) he began to draw lines of circumvallation round the city, and declined all attempts made by the Numantians to provoke a general action—a circumstance which is rather surprising, if it be true that the available troops of the Spanish city amounted to no more than eight thousand men.

Numantia lay on both sides of the Douro, not far from its source. The blockade was so strict, and the inhabitants were so ill provided, that in no long time they were reduced to feed on boiled leather, and at length (horrible to tell) on the bodies of the dead. In vain those who retained sufficient strength attempted sallies by day and night; Scipio had established so complete a system, that additional troops were always ready to strengthen any weak point which might be assailed. In vain did the young men of Lubia endeavour to relieve their brave neighbours. Scipio promptly marched to that place with a division of light troops, and, having compelled the government to surrender four hundred of the most active sympathisers, he cut off their right hands and returned. Such was the cruelty which the most enlightened men of Rome permitted themselves to use towards barbarians. Nor does any ancient historian whisper a word of reproach.

The wretched Numantians now inquired on what terms they might be admitted to surrender. The reply was, that on that very day they must lay down their arms, and on the next appear at a given place. They prayed for time to deliberate. In the interval a certain number of brave men, resolved not to submit on any terms, put themselves to death; the remnant came forth from the gates. Their matted hair, squalid apparel, and wasted forms made

even the Romans turn away in horror from their own work. Scipio selected fifty to walk in his triumphal procession, and sold the rest. The town was so effectually destroyed that its very site cannot be discovered.^b The Roman historian Florus gives a slightly different but very vivid account.

FLORUS ON THE FALL OF NUMANTIA

[133 B.C.]

But when famine pressed hard upon them, (as they were surrounded with a trench and breastwork, and camps,) they entreated of Scipio to be allowed the privilege of engaging with him, desiring that he would kill them as men, and, when this was not granted, they resolved upon making a sally. A battle being the consequence, great numbers of them were slain, and, as the famine was still sore upon them, the survivors lived for some time on their bodies. At last they determined to flee; but this their wives prevented, by cutting with great treachery, yet out of affection, the girths of their saddles. Despairing, therefore, of escape, and being driven to the utmost rage and fury, they resolved to die in the following manner. They first destroyed their captains, and then themselves and their native city, with sword and poison and a general conflagration. Peace be to the ashes of the most brave of all cities; a city, in my opinion, most happy in its very sufferings; a city which protected its allies with honour, and withstood, with its own force, and for so long a period, a people supported by the strength of the whole world. Being overpowered at length by the greatest of generals, it left no cause for the enemy to rejoice over it. Its plunder, as that of a poor people, was valueless; their arms they had themselves burnt; and the triumph of its conquerors was only over its name.

Hitherto the Roman people had been noble, honourable, pious, upright, and illustrious. Their subsequent actions in this age, as they were equally grand, so were they more turbulent and dishonourable, their vices increasing with the very greatness of their empire. So that if any one divides this third age, which was occupied in conquest beyond the sea, and which we have made to consist of two hundred years, into two equal parts, he will allow, with reason and justice, that the first hundred years, in which they subdued Africa, Macedonia, Sicily, and Spain, were (as the poets sing) golden years; and that the other hundred, which to the Jugurthine,

Cimbrian, Mithridatic, and Parthian wars, as well as those of Gaul and Germany, (in which the glory of the Romans ascended to heaven,) united the murders of the Gracchi and Drusus, the Servile War and (that nothing might be wanting in their infamy) the war with the gladiators, were iron, blood-stained, and whatever more severe can be said of them. Turning at last upon themselves, the Romans, as if in a spirit of madness, and fury, and impiety, tore themselves in pieces by the dissensions of Marius and Sulla, and afterwards by those of Pompey and Cæsar.^e Such was the destructive, but not glorious work, which earned for Scipio the name of Numantinus, as the ruin of Carthage had given him a better title than adoption to that of Africanus.

Commissioners were sent, according to custom, to reorganise the Spanish provinces. The conquests of Scipio and of Dec. Brutus were comprehended in the limits of the hither province, and for some years Spain remained in tranquillity.

There was no enemy now left on the coast lands of the Mediterranean to dispute the sovereignty of Rome. Nine provinces, each fit to be a kingdom, owned her sway, and poured yearly taxes into her revenue. The kings of Asia Minor, of Syria, of Egypt, were her obedient vassals.

FIRST SLAVE WAR IN SICILY

[134-133 B.C.]

While Numantia was yet defying the Roman generals, a war broke out near home of a more dreadful kind than any distant contest with foreigners could be—the insurrection of the slaves in Sicily. Some remarks have already been made on the rapid increase in the number of slaves which attended the career of Roman conquest; and it was observed that, while domestic slaves usually were well treated, the agricultural slaves were thrust down to a condition worse than that of the oxen which laboured on the land. The evils which such oppression might engender were now proved by terrible experience.

Every one knows that in the early times of Rome the work of the farm was the only kind of manual labour deemed worthy of a free citizen. This feeling long survived, as may be seen from the praise bestowed on

agriculture by Cicero, whose enthusiasm was caught from one of his favourite heroes, old Cato the censor, whose *Treatise on Agriculture* has been noticed. The taste for books on farming continued. Varro the antiquarian, a friend of Cicero, has left an excellent treatise on the subject. A little later came the famous *Georgics* of Virgil, followed at no long interval by Pliny's notices, and then by the elaborate *Dissertations* of Columella, who refers to a great number of Roman writers on the same subject. It is manifest that the subject of agriculture possessed a strong and enduring charm for the Roman mind.

But, from the times of the Hannibalic War, agriculture lost ground in Italy. When Cato was asked what was the most profitable kind of farming, he said, "Good grazing." What next? "Tolerable grazing." What next? "Bad grazing." What next? "Corn-growing." Later writers, with one accord, deplore the diminished productiveness of land.

This result was due in part, no doubt, to war, but much more to other causes. Corn could be imported with facility from the southern lands of Sicily, from Egypt, and from Numidia, while a great part of Italy was little suited for the production of grain-crops. These causes found a powerful assistant in the growth of large estates, and the profitable employment of slaves as shepherds and herdsmen.

A few examples will show the prodigious number of slaves that must have been thrown into the market after the Second Punic War. To punish the Bruttians for the fidelity with which they adhered to the cause of Hannibal, the whole nation were made slaves; 150,000 Epirots were sold by Æmilius Paulus; fifty thousand captives were sent home from Carthage. These numbers are accidentally preserved; and if, according to this scale, we calculate the hosts of unhappy men sold into slavery during the Syrian, Macedonian, Illyrian, Grecian, and Spanish wars, we shall be prepared to hear that slaves fit only for unskilled labour were plentiful and cheap.

There was also a slave trade regularly carried on in the East. The barbarous tribes on the coasts of the Black Sea were always ready to sell their own flesh and blood; Thrace and Sarmatia were the Guinea Coast of the Romans. The *entrepôt* of this trade was Delos, which had been made a free port by Rome after the conquest of Macedonia. Strabo tells us that in one day ten thousand slaves were sold there in open market. Such were the

vile uses to which was put the Sacred Island, once the treasury of Greece, when her states were banded together to secure their freedom against the Persian.

It is evident that hosts of slaves, lately free men, and many of them soldiers, must become dangerous to the owners. Nor was their treatment such as to conciliate. They were turned out upon the hills, made responsible for the safety of the cattle put under their charge, and compelled to provide themselves with the common necessities of life. A body of these wretched men asked their master for clothing: "What," he asked, "are there no travellers with clothes on?" The atrocious hint was soon taken; the shepherd slaves of lower Italy became banditti, and to travel through Apulia without an armed retinue was a perilous adventure. From assailing travellers, the marauders began to plunder the smaller country houses; and all but the rich were obliged to desert the country and flock into the towns. So early as the year 185 B.C., seven thousand slaves in Apulia were condemned for brigandage by a prætor sent specially to restore order in that land of pasturage. When they were not employed upon the hills, they were shut up in large prison-like buildings (*ergastula*), where they could talk together of their wrongs, and form schemes of vengeance.

The Sicilian landowners emulated their Italian brethren; and it was their tyrannical conduct that led to the frightful insurrection which reveals to us somewhat of the real state of society which existed under the rule of Rome.

In Sicily, as in lower Italy, the herds are driven up into the mountain pastures during the summer months, and about October return towards the plains. The same causes which were at work in Italy were at work, on a smaller scale, in Sicily. The city of Enna, once famous for the worship of Demeter, had become the centre of a pastoral district; and of the neighbouring landowners, Damophilus was the wealthiest. He was famous for the multitude of his slave herdsmen, and for his cruel treatment of them, and his wife Megallis emulated her lord in the barbarities which she practised on the female slaves. At length the cup was full, and four hundred of his bondsmen, meeting at Enna, took counsels of vengeance against Damophilus.

At Enna there lived another rich proprietor, named Antigenes; and among his slaves was a Syrian, known by the Greek name of Eunos. This man was

a kind of wizard, who pretended to have revelations of the future, and practised a mode of breathing fire, which passed for a supernatural power. At length he gave out that his Syrian gods had declared to him that he should be king hereafter. His master treated him as a jester, and at banquets used to call him in to make sport for his guests; and they, entering into his humour, used to beg him to remember them when he gained his sceptre. But to the confederate slaves of Damophilus, Eunus seemed in truth a prophet and a king sent to deliver them. They prayed him to become their leader, he accepted their offer; and the whole body entered the city of Enna, with Eunus at their head breathing fire.

The wretched city now felt the vengeance of men brutalised by oppression. Clad in skins, armed with stakes burned at the end, with reaping hooks, spits, or whatever arms rage supplied, they broke into the houses, and massacred all persons of free condition, from the old man and matron to the infant at the breast. Crowds of slaves joined them; every man's foes were those of his own household. Damophilus was dragged to the theatre and slain. Megallis was given over to the female slaves, who first tortured her, and then cast her down the crag on which the city stands.

Eunus thus saw the wildest of his dreams fulfilled. He assumed the diadem, took the royal name of Antiochus, and called his followers Syrians. The ergastula were broken open, and numbers of slaves sallied out to join him. Soon he was at the head of ten thousand men. He showed no little discretion in the choice of officers. Achæus, a Greek, was made general of the army, and he exerted himself to preserve order and moderate excesses.

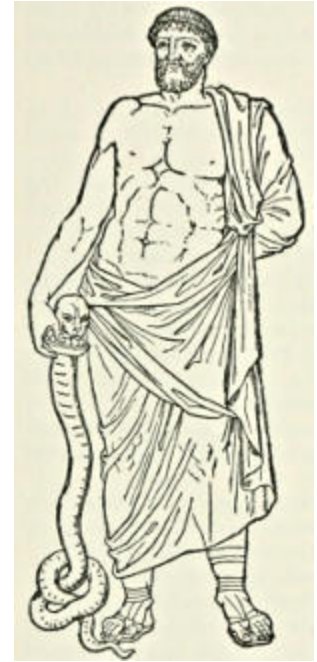
A few days after the massacre at Enna, Cleon, a Cilician slave, raised a similar insurrection near Agrigentum. He also was soon at the head of several thousand men.

The Romans in Sicily, who had looked on in blank dismay, now formed hopes that the two leaders might quarrel—hopes soon disappointed by the tidings that Cleon had acknowledged the sovereign authority of King Antiochus. There was no Roman magistrate present in Sicily when the insurrection broke out. The prætor of the last year had returned to Italy; and his successor now arrived, ignorant of all that was passing. He contrived to collect eight thousand men in the island, and took the field against the

slaves, who by this time numbered twenty thousand. He was utterly defeated, and the insurrection spread over the whole island.

The consternation at Rome was great. No one could tell where the evil would stop. Movements broke out in various parts of the empire; but the magistrates were on the alert, and all attempts were crushed forcibly. At Rome itself 150 slaves, detected in organising an outbreak, were put to death without mercy.

The insurrection seemed to the senate so serious that they despatched the consul, C. Fulvius Flaccus, colleague of Scipio in the year 134 B.C., to crush it. But Flaccus obtained no advantage over the insurgents. In the next year L. Calpurnius Piso succeeded in wresting Messana from the enemy, and advanced to Enna, a place strongly defended by nature, which he was unable to take. His successor, P. Rupilius, a friend of Scipio, began his campaign with the siege of Tauromenium. The slaves offered a desperate resistance. Reduced to straits for want of food, they devoured the children, the women, and at length began to prey upon each other. Even then the place was only taken by treachery. All the slaves taken alive were put to the torture and thrown down a precipice. The consul now advanced to Enna, the last stronghold of Eunos. The fate of the insurgents was inevitable. Cleon of Agrigentum chose a soldier's death, and, sallying forth with all who breathed the same spirit as himself, he died fighting valiantly. Of the end of Achæus we are not informed. Eunos, with a bodyguard of six hundred men, fled to the neighbouring hills; but, despairing of escape, the greater part of the wretched men slew one another. The mock king himself was taken in a cave, with his cook, baker, bathing-man, and jester. He showed a pusillanimity far unlike the desperate courage of the rest, and died eaten by vermin in a dungeon at Morgantium.^c



ÆSCULAPIUS

To show how horrible the thought of fighting slaves was to the Roman mind, it may be well to quote Florus upon this first war, the quelling of which he credits to Perperna.^a

THE WAR AGAINST THE SLAVES

[133 B.C.]

Though, in the preceding war, we fought with our allies (which was bad enough), yet we contended with free men, and men of good birth; but who can with patience hear of a war against slaves on the part of a people at the head of all nations! The first war with slaves occurred in the infancy of Rome, in the heart of the city, when Herdonius Sabinus was their leader, and when, while the state was distracted with the seditions of the tribunes, the Capitol was besieged and wrested by the consul from the servile multitude. But this was an insurrection rather than a war. At a subsequent period, when the forces of the empire were engaged in different parts of the world, who would believe that Sicily was much more cruelly devastated by a war with slaves than in that with the Carthaginians? This country, fruitful in corn, and, in a manner, a suburban province, was covered with large estates of many Roman citizens; and the numerous slave houses and fettered tillers of the ground supplied force enough for a war. A certain Syrian, by name Eunus (the greatness of our defeats from him makes us remember it), counterfeiting a fanatical inspiration, and tossing his hair in honour of the Syrian goddess, excited the slaves by command of heaven as it were, to claim their liberty and take up arms. And that he might prove this to be done by supernatural direction, he concealed a nut in his mouth, which he had filled with brimstone and fire, and, breathing gently, sent forth flame together with his words. This prodigy at first attracted two thousand of such as came in his way; but in a short time, by breaking open the slave houses, he collected a force of above sixty thousand; and, being adorned with ensigns of royalty, that nothing might be wanting to his audacity, he laid waste, with lamentable desolation, fortresses, towns, and villages. The camps even of prætors (the utmost disgrace of war) were taken by him; nor will I shrink from giving their names; they were the camps of Manilius, Lentulus, Piso, and Hypsæus. Thus those, who ought to have been dragged home by slave-takers, pursued prætorian generals routed in battle. At last vengeance was taken on them by our general, Perperna; for having conquered them, and at last besieged them in Enna, and reduced them with famine as with a pestilence, he threw the remainder of the marauders into chains, and then crucified them. But over such enemies he was content with

an ovation, that he might not sully the dignity of a triumph with the name of slaves.^e

[133-131 B.C.]

Thus was crushed for a time this perilous insurrection, the result of the slave system established by Roman conquest. The well-being of Sicily had even now been so seriously impaired that extraordinary measures were deemed necessary for restoring order. The Sibylline books were consulted. The oracular page ordered the propitiation of “Ceres the most ancient”; and a solemn deputation of priests proceeded to the august temple of the goddess in the city of Enna. This circumstance, seemingly unimportant, becomes significant, when it is considered that the war really originated in the neglect of agricultural labours, and was at its height during the notable year in which Ti. Gracchus was bringing to all men’s knowledge the reduced condition of the farmers of Italy.

Ten commissioners were sent to assist Rupilius in drawing up laws for the better regulation of the agricultural districts. The code formerly established by Hiero at Syracuse was taken as the basis of their legislation, a measure which gave great satisfaction to all the Greek communities. The whole land was required to pay a tithe of its produce to the Romans except the five free cities and some others which were allowed to pay a fixed annual sum. The collection of these tithes was to be let to Roman contractors. But to prevent extortion, courts of appeal were provided. All disputes between citizens of the same town were left to be decided in the town courts; those between citizens of different towns, by judges drawn by lot under the eye of the prætor; those between a town community and an individual, by the senate of some other city; those between a Roman citizen and a Sicilian, by a judge belonging to the same nation as the defendant. There can be no doubt that the general condition of the Sicilian landholders was considerably improved by this system; and agriculture again flourished in Sicily as it had done in former times.^b

FOOTNOTES

[57] For this, and for his similar conduct to L. Scipio, the family gave him in marriage Cornelia, the daughter of Africanus. The two celebrated Gracchi were their sons.

[58] This town, which must not be confounded with the ancient Alba Longa, lay on the Fucine Lake.

[59] [The great original authority for the Third Punic War was Polybius,^d whose accounts of striking incidents in the Hannibalic Wars we have previously quoted. Polybius was the personal friend of Scipio the Younger and was present, as we shall see, at the destruction of Carthage. Unfortunately his first-hand description of that memorable event has not been preserved. But the accounts of Livyⁱ and of Appian^g were based largely, if not solely, upon Polybius. Appian's account of the war as a whole is too long for insertion here; but Keightley's^c description is virtually an abridgment of Appian, paragraph by paragraph, at times the translation being almost literal. For the concluding scenes we shall turn to Appian himself.]

[60] The lawful age for the consulate at this time was forty-three years, and Scipio was only thirty-eight.

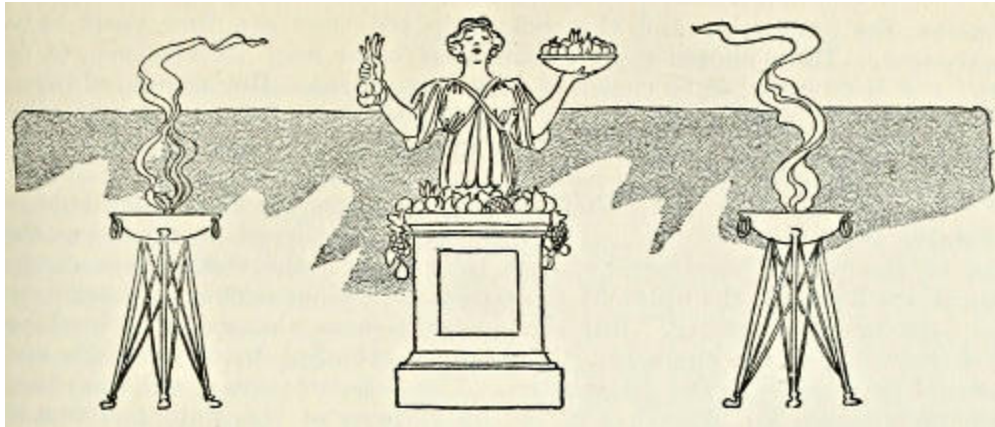
[61] [Ihne^f says of this: "We have serious doubts about the truth of this dramatic effect, which would do honour to any stage manager. A woman standing on the roof of a burning temple, and, in the midst of uproar and carnage, haranguing her husband, who is at a safe distance, is a scene passing all bounds of historical probability. What makes it particularly suspicious is the pretty little piece of adulation which the frantic woman has the politeness to address to Scipio: σοὶ μὲν οὐ νέμεσις ἐκθεῶν ὧ Ῥωμαῖε, ἐπὶ γὰρ πολέμιαν ἐστρατεύσας. Appian,^g VIII, 31. Καὶ τῷ στρατηγῷ μεγάλας ἐπανῆγε τὰς χάριτας. Polybius,^d XXXIX, 3, 6. All this is as much a fiction as any scene in a sensational novel. We have no doubt that Hasdrubal and his wife were retained by the Roman deserters against their will. At last Hasdrubal succeeded in escaping from them (λαθὼν ἔφυγε, Appian, VIII, 131). It is possible that thereupon his wife and children were murdered before his eyes."]

[62] [According to Marquardt,^j Achaia was not organised into a separate province till the reign of Augustus.]

[63] These *Leges Tabellariæ* (as the Romans called them, *tabella* being their word for a ballot) were four in number: (1) The *Gabinian* (139 B.C.), introducing the use of the ballot at elections. (2) The *Cassian* (137), introducing it in all state-trials, except in the case of high-treason (*perduellio*). (3) The *Papirian* (131), introducing it into the Legislative Assembly. (4) The *Cælian* (107), which cancelled the single exception made by the Cassian Law.



ANCIENT TOMB, HEWN FROM SOLID ROCK



CHAPTER XIV. CIVILISATION AT THE END OF THE PERIOD OF CONQUEST

ORGANISATION OF THE GOVERNMENT

Now that we have seen Rome first become mistress of Italy, and then, after a life and death struggle, rise superior to Carthage; now that we shall have to follow her in her conquest of all the countries bordering on the Mediterranean, so that this sea became what in modern phrase may be called a Roman lake, we naturally inquire, what was the form of government, what the treatment of the subject foreigners, what the condition of the people?

About the time of the Punic Wars the framework of the Roman constitution was complete. The only trace remaining of ancient severance was the regulation by which, of the two consuls and the two censors, one must be a patrician, one a plebeian. In a few years even this partition of offices fell into disuse, and no political distinction remained, save that persons of patrician pedigree were excluded from the tribunate of the plebs.

[\[64\]](#)

In correspondence with the advance of plebeian and the decay of patrician families, a silent revolution had been wrought in most parts of the constitution. The assembly of the curies had become a mere form. They continued to meet even to Cicero's time; but their business had dwindled away to the regulation of the religious observances proper to the patrician gentes. A few lictors, who were present as the attendants of the presiding

magistrates, alone appeared to represent the descendants of the Valerii, the Claudii, and the Postumii. ^[65]

With regard to the executive government, the chief officers of state employed in the administration of Roman affairs remained as they had been settled after the Licinian laws. In Cicero's time it is well known that every Roman who aspired to the highest offices was obliged to ascend through a regular scale of honours. An age was fixed before which each was unattainable. The first office so held was the quæstorship, and the earliest age at which this could then be gained appears to have been about twenty-seven. Several years were then to elapse before a Roman could hold the first curule office, that is, the ædileship. But between this and each of the highest honours, the prætorship and the consulship, only two complete years were interposed. To be chosen ædile a man must be at least thirty-seven, to be prætor at least forty, to be consul at least forty-three. But no settled regulations had yet been made. Many cases occur, both before and after the Second Punic War, in which men were elected to the consulship at a very early age, and before they had held any other curule office.

There can be little doubt that the ædileship was the least acceptable to an active and ambitious man. The chief duties of the ædiles related to the care of the public buildings (whence their name), the celebration of the games and festivals, the order of the streets, and other matters belonging to the department of police. But the quæstors were charged with business of a more important character. They were attached to the consuls and prætors as treasurers and paymasters. The tax-gatherers (*publicani*) paid into their hands all moneys received on account of the state, and out of these funds they disbursed all sums required for the use of the army, the fleet, or the civil administration. They were originally two in number, one for each consul; but very soon they were doubled, and at the conquest of Italy they were increased to eight. Two always remained at home to conduct the business of the treasury, the rest accompanied the consuls, and prætors, and proconsuls to the most important provinces.

The office of prætor was supplementary to that of the consuls, and was at first chiefly judicial. The original prætor was called "prætor urbanus," or president of the city courts. A second was added about the time when Sicily became subject to Rome, and a new court was erected for the decision of cases in which foreigners were concerned: hence the new magistrate was

called “prætor peregrinus.” For the government of the two first provinces, Sicily and Sardinia, two more prætors were created, and when Spain was constituted as a double province, two more, so that the whole number amounted to six. In the absence of the consuls the prætors presided in the senate and at the great assembly of the centuries. They often commanded reserve armies in the field, but they were always subordinate to the consuls; and to mark this subordinate position they were allowed only six lictors, whereas each consul was attended by twelve. Of the consuls it is needless to speak in this place. Their position as the supreme executive officers of the state is sufficiently indicated in every page of the history.

To obtain any of these high offices the Roman was obliged to seek the suffrages of his fellow-citizens. They were open to the ambition of every one whose name had been entered by the censors on the register of citizens, provided he had reached the required age. No office, except the censorship, was held for a longer period than twelve months: no officer received any pay or salary for his services. To defray expenses certain allowances were made from the treasury by order of the senate. To discharge routine duties and to conduct their correspondence, each magistrate had a certain number of clerks (*scribæ*) who formed what we should call the civil service.

But though the highest offices seemed thus absolutely open to every candidate, they were not so in practice. About the time of the First Punic War an alteration was made which, in effect, confined the curule offices to the wealthy families. The ædiles, for the expenses of the public games, had an allowance made them from the treasury. But at the time just mentioned this allowance was withdrawn. Yet the curule ædiles were still expected to maintain the honour of Rome by costly spectacles at the great Roman games, the Megalesian festival, and others of less consequence. Thus the choice of the people was limited to those who could buy their favour.

THE ARMY

The Romans had no standing army. Every Roman citizen between the complete ages of seventeen and forty-five, possessing property worth at least four thousand pounds of copper, was placed on the military roll. From this roll four legions, two for each consul, were enlisted every year, and in cases of necessity additional legions were raised. But at the close of the

year's campaign these legionary soldiers had a right to be relieved. Nor were there any fixed officers. Each legion had six tribunes and sixty centurions; but these were chosen, like the consuls and soldiers, fresh every year. The majority of the tribunes were elected at the comitia of the tribes, and the remainder were nominated by the consuls of the year, the only limitation to such choice being that those appointed should have served in the legions at least five campaigns. The centurions were then nominated by the tribunes, subject to the approval of the consuls.

Hence it appears that the Roman system, both in army and state, was strictly republican, that is, calculated to distribute public offices to as many citizens as possible, and to prevent power being absorbed by any single man or classes of men. There were no professed statesmen or officers, but there was a large number of men who had served for a time in each capacity. There was no standing army, but there was a good militia. There was no regularly trained soldiery, but every citizen had served in his time several campaigns, and every one was something of a soldier.

But no republic, however jealous, can rigidly carry out such a system; necessity will modify it in practice. During the Samnite Wars we find the same eminent men repeatedly elected to the consulship, notwithstanding a provision that no man should hold this high office except at intervals of ten years. Valerius Corvus was chosen consul at three-and-twenty; he held the office four times in fourteen years. So also Papirius Cursor, Fabius Maximus, and others held the same sovereign office repeatedly at short intervals. In the year 326 B.C. another plan was adopted to secure permanency. From this time it became common to continue a consul or prætor in his command for several successive years, with the title of proconsul or proprætor. The proconsul also was allowed to keep part of his old army, with his tribunes and centurions. The hope of booty and the desire to serve out his campaigns (for after a certain number of campaigns served the legionary was exempt, even though he was much under forty-five years) kept many soldiers in the field; and thus the nucleus of a regular army was formed by each commander. In the Punic Wars the ten years' law was suspended altogether, and proconsuls were ordered to remain in office for years together.^b

No more vivid picture of the Roman army could be given than that of Polybius, who contrasts the Greek phalanx with the Roman arrangement as

follows:

POLYBIUS ON GREEK AND ROMAN BATTLE-ORDERS

Pyrrhus employed not only the arms but the troops of Italy; and ranged in alternate order a company of those troops and a cohort disposed in the manner of the phalanx, in all his battles with the Romans. And yet, even with the advantage of this precaution, he was never able to obtain any clear or decisive victory against them. It was necessary to premise these observations for the sake of preventing any objection that might be made to the truth of what we shall hereafter say.

It is easy to demonstrate, by many reasons, that while the phalanx retains its proper form and full power of action, no force is able to stand against it in front or support the violence of its attack. When the ranks are closed in order to engage, each soldier, as he stands with his arms, occupies a space of three feet. The spears, in their most ancient form, contained seventeen cubits in length. But, for the sake of rendering them more commodious in action, they have since been reduced to fourteen. Of these, four cubits are contained between the part which the soldier grasps in his hands and the lower end of the spear behind, which serves as a counterpoise to the part that is extended before him; and the length of this last part from the body of the soldier, when the spear is pushed forwards with both hands against the enemy, is, by consequence, ten cubits. From hence it follows that when the phalanx is closed in its proper form, and every soldier pressed within the necessary distance with respect to the man that is before him and upon his side, the spears of the fifth rank are extended to the length of two cubits, and those of the second, third, and fourth to a still greater length, beyond the foremost rank. The manner in which the men are crowded together in this method is marked by Homer in the following lines:

“Shield stuck to shield, to helmet helmet joined,
And man to man; and at each nod that bowed
High waving on their heads the glittering cones,
Rattled the hair-crowned casques: so thick they stood.”

This description is not less exact than beautiful. It is manifest, then, that five several spears, differing each from the other in the length of two cubits, are extended before every man in the foremost rank. And when it is considered, likewise, that the phalanx is formed by sixteen in depth, it will be easy to conceive what must be the weight and violence of the entire body, and how great the force of its attack. In the ranks, indeed, that are behind the fifth, the spears cannot reach so far as to be employed against the enemy. In these ranks, therefore, the soldiers instead of extending their spears forward, rest them upon the shoulders of the men that are before them, with their points slanting upwards; and in this manner they form a kind of rampart which covers their heads, and secures them against those darts which may be carried in their flight beyond the first ranks, and fall upon those that are behind. But when the whole body advances to charge the enemy, even these hindmost ranks are of no small use and moment. For as they press continually upon those that are before them, they add, by their weight alone, great force to the attack, and deprive also the foremost ranks of the power of drawing themselves backwards or retreating. Such then is the disposition of the phalanx, with regard both to the whole and the several parts. Let us now consider the arms, and the order of battle, of the Romans, that we may see by the comparison in what respects they are different from those of the Macedonians.

To each of the Roman soldiers, as he stands in arms, is allotted the same space, likewise, of three feet. But as every soldier in the time of action is constantly in motion, being forced to shift his shield continually that he may cover any part of his body against which a stroke is aimed; and to vary the position of his sword, so as either to push, or to make a falling stroke; there must also be a distance of three feet, the least that can be allowed for performing these motions to advantage, between each soldier and the man that stands next to him, both upon his side and behind him. In charging, therefore, against the phalanx, every single Roman, as he has two Macedonians opposite to him, has also ten spears, which he is forced to encounter. But it is not possible for a single man to cut down these spears with his sword, before they can take their effect against him. Nor is it easy, on the other hand, to force his way through them. For the men that are behind add no weight to the pressure, nor any strength to the swords, of those that are in the foremost rank. It will be easy, therefore, to conceive that while the phalanx retains its own proper position and strength, no

troops, as I before observed, can ever support the attack of it in front. To what cause, then, is it to be ascribed, that the Roman armies are victorious, and those defeated that employ the phalanx? The cause is this. In war, the times and the places of action are various and indefinite. But there is only one time and place, one fixed and determinate manner of action, that is suited to the phalanx. In the case, then, of a general action, if an enemy be forced to encounter with the phalanx in the very time and place which the latter requires, it is probable, in the highest degree, from the reasons that have been mentioned, that the phalanx always must obtain the victory. But if it be possible to avoid an engagement in such circumstances, and indeed it is easy to do it, there is then nothing to be dreaded from this order of battle. It is a well-known and acknowledged truth, that the phalanx requires a ground that is plain and naked, and free likewise from obstacles of every kind, such as trenches, breaks, obliquities, the brows of hills, or the channels of rivers; and that any of these are sufficient to impede it, and to dissolve the order in which it is formed. On the other hand again, it must be as readily allowed that, if it be not altogether impossible, it is at least extremely rare, to find a ground containing twenty stadia, or more, in its extent, and free from all these obstacles. But let it, however, be supposed that such a ground may perhaps be found. If the enemy, instead of coming down upon it, should lead their army through the country, plundering the cities, and ravaging the lands, of what use then will be the phalanx? As long as it remains in this convenient post, it not only has no power to succour its friends, but cannot even preserve itself from ruin. For the troops that are masters of the whole country without resistance will cut off from it all supplies. And if, on the other hand, it should relinquish its own proper ground, and endeavour to engage in action, the advantage is then so great against it that it soon becomes an easy prey to the enemy.

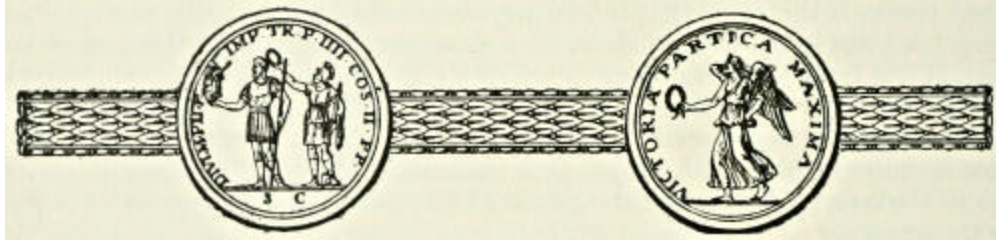
But, further, let it be supposed that the enemy will come down into this plain. Yet, if he brings not his whole army at once to receive the attack of the phalanx; or if, in the instant of the charge, he withdraws himself a little from the action, it is easy to determine what will be the consequence from the present practice of the Romans. For we now draw not our discourse from bare reasoning only, but from facts which have lately happened. When the Romans attack the phalanx in front, they never employ all their forces, so as to make their line equal to that of the enemy; but lead on a part only of their troops, and keep the rest of the army in reserve. Now, whether the

troops of the phalanx break the line that is opposed to them, or whether themselves are broken, the order peculiar to the phalanx is alike dissolved. For if they pursue the fugitives, or if, on the other hand, they retreat and are pursued, in either case they are separated from the rest of their own body. And thus there is left some interval or space, which the reserve of the Roman army takes care to seize, and then charges the remaining part of the phalanx, not in front, but in flank, or in the rear. As it is easy then to avoid the times and circumstances that are advantageous to the phalanx, and as those, on the contrary, that are disadvantageous to it can never be avoided, it is certain that this difference alone must carry with it a decisive weight in the time of action.

To this it may be added, that the troops of the phalanx also are, like others, forced to march and to encamp in every kind of place; to be the first to seize the advantageous posts; to invest an enemy, or be invested; and to engage also in sudden actions, without knowing that the enemy was near. These things all happen in war, and either tend greatly to promote, or sometimes wholly determine the victory. But, at all such times, the Macedonian order of battle either cannot be employed, or is employed in a manner that is altogether useless.

For the troops of the phalanx, as must be evident, lose their strength when they engage in separate companies, or man with man. The Roman order, on the contrary, is never attended, even upon such occasions, with any disadvantage. Among the Romans every single soldier, when he is once armed and ready for service, is alike fitted to engage in any time and place, or upon any appearance of the enemy; and preserves always the same power, and the same capacity of action, whether he engages with the whole of the army, or only with a part; whether in separate companies, or singly man against man. As the parts, therefore, in the Roman order of battle, are so much better contrived for use than those in the other, so the success also in action must be greater in the one than the other.

If I have been rather long in examining this subject, it was because many of the Greeks, at the time when the Macedonians were defeated, regarded that event as a thing surpassing all belief; and because many others also may hereafter wish to know in what particular respects the order of phalanx is excelled by the arms and the order of battle of the Romans.^f



ROMAN TROPHIES

THE SENATE

The chief officers both in state and army were continually liable to change, but there was a mighty power behind them, which did not change. This was the senate. The importance of this body can hardly be overstated. All the acts of the Roman republic ran in the name of the senate and people, as if the senate were half the state, though its number was but three hundred.

The senate of Rome was perhaps the most remarkable assembly that the world has ever seen. Its members held their seats for life; once senators always senators, unless they were degraded for some dishonourable cause. But the senatorial peerage was not hereditary. No father could transmit the honour to his son. Each man must win it for himself. ^[66]

The manner in which seats in the senate were obtained is tolerably well ascertained. The members of this august body, all—or nearly all—owed their places to the votes of the people. In theory, indeed, the censors still possessed the power really exercised by the kings and early consuls, of choosing the senators at their own will and pleasure. But official powers, however arbitrary, are always limited in practice. The censors followed rules established by ancient precedent, and chose the senate from those who had held the quæstorship and higher magistracies. In the interval between two censorships, that is in the course of five years, the number of exquæstors alone must have amounted to at least forty, and this was more than sufficient to fill the number of vacancies which would have occurred in ordinary times. The first qualification then for a seat in the senate was that of office. It is probable that to the qualification of office there was added a second, of property. Such was certainly the case in later times. A third limitation, that of age, followed from the rule that the senate was recruited

from the lists of official persons. No one could be a senator till he was about thirty.

Such was the composition of this great council during the best times of the republic. It formed a true aristocracy. Its members, almost all, possessed the knowledge derived from the discharge of public office and from mature age. They were recommended to their places by popular election, and yet secured from subserviency to popular will by the amount of their property. It was not by a mere figure of speech that the minister of Pyrrhus called the Roman senate “an assembly of kings.” Many of its members had exercised what was in effect sovereign power; many were preparing to exercise it. The power of the senate was equal to its dignity.

In regard to legislation, it exercised an absolute control over the centuriate assembly, because no law could be submitted to its votes which had not originated in the senate; and thus the vote of the centuries could not do more than place a veto on a senatorial decree.^[67]

In respect to foreign affairs, the power of the senate was absolute, except in declaring war or concluding treaties of peace,—matters which were submitted to the votes of the people. They assigned to the consuls and prætors their respective provinces of administration and command; they fixed the amount of the troops to be levied every year from the list of Roman citizens, and of the contingents to be furnished by the Italian allies. They prolonged the command of a general or superseded him at pleasure. They estimated the sums necessary for the military chest; nor could a sesterce be paid to the general without their order. If a consul proved refractory, they could transfer his power for the time to a dictator; even if his success had been great, they could refuse him the honour of a triumph. Ambassadors to foreign states were chosen by them and from them; all disputes in Italy or beyond seas were referred to their sovereign arbitrament.

In the administration of home affairs the regulation of religious matters was in their hands; they exercised superintendence over the pontiffs and other ministers of public worship. They appointed days for extraordinary festivals, for thanksgiving after victory, for humiliation after defeat. But, which was of highest importance, all the financial arrangements of the state were left to their discretion. The censors, at periods usually not exceeding

five years in duration, formed estimates of annual outlay, and provided ways and means for meeting these estimates; but always under the direction of the senators. In all these matters, both of home and foreign administration, their decrees had the power of law. In times of difficulty they had the power of suspending all rules of law, by the appointment of a dictator.

Besides these administrative functions, they might resolve themselves into a high court of justice for the trial of extraordinary offences. But in this matter they obtained far more definite authority by the Calpurnian law, which about fifty years later established high courts of justice, in which prætors acted as presiding judges, and senators were jurymen.

THE CENTURIATE ASSEMBLY

At some time between the decemvirate and the Second Punic War, a complete reform had been made in the centuriate assembly, as organised by Servius. When this was we know not. Nor do we know the precise nature of the reform. This only is certain, that the distribution of the whole people into tribes was taken as the basis of division in the centuriate assembly as well as in the assembly of the tribes, and yet that the division into classes and centuries was retained, as well as into seniores and juniores.

It may be assumed that the whole people was convened according to its division into thirty-five tribes; that in each tribe account was taken of the five classes, arranged according to an ascending scale of property, which, however, had been greatly altered from that attributed to Servius; and that in each tribe each of the five classes was subdivided into two centuries, one of seniores, or men between forty-five and sixty, one of juniores, or men between eighteen and forty-five. On the whole, then, with the addition of eighteen centuries of knights, there would be 368 centuries. This plan, though it allowed far less influence to wealth than the plan of Servius, would yet leave a considerable advantage to the richer classes. For it is plain that the two centuries of the first class in each tribe would contain far fewer members than the two centuries of the second class, those of the second fewer than those of the third, and all those of the first four together, probably, fewer than those of the fifth. Yet these four classes, having in all

280 or (with the knights) 298 centuries, would command an absolute majority; for the question was still decided by the majority of centuries.

THE ASSEMBLY OF THE TRIBES

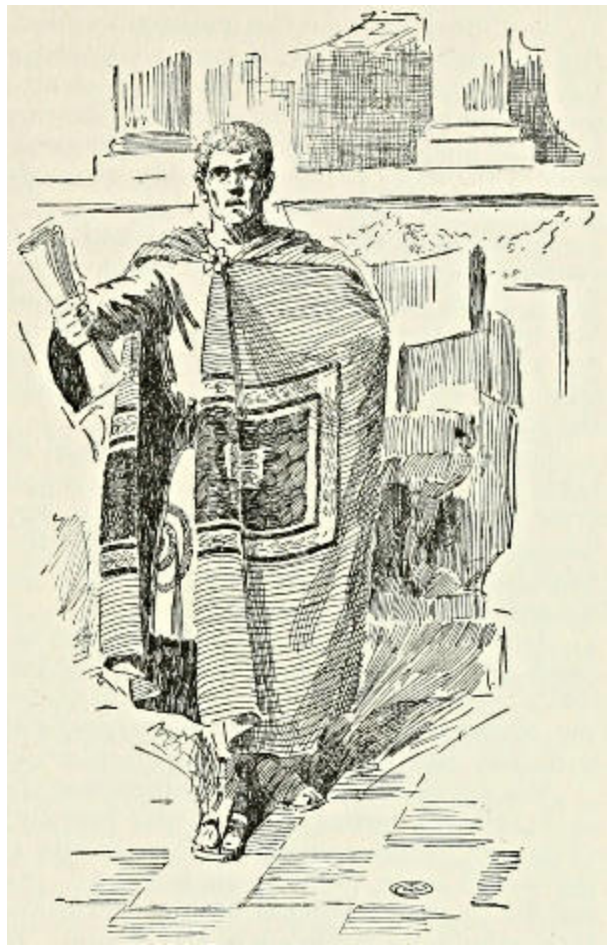
While the centuriate assembly was becoming more popular in its constitution, a still more democratic body had come into existence.^[68]

There can be no doubt that when the centuriate assembly was restored by the patricians after the expulsion of Tarquinius,^[69] it was intended to be the sole legislative body. The more recent legislative assembly of the tribes was a spontaneous growth of popular will, not contemplated by statesmen. The tribe assembly, originally intended to conduct the business of the plebeian order, gradually extended its power over the whole body politic; and its ordinances (*plebiscita*) became laws.

The tribunes were originally invested with political authority for the purpose of protecting the persons of the plebeians from the arbitrary punishments inflicted by the patrician magistrates. It was no doubt intended that this authority should be only suspensive, so as to prevent sudden acts of violence. But the tribunes soon assumed the license of standing between plebeians and the law. Thus they established the celebrated right of intercession, which in course of time they extended to all matters. They forbade trials, stopped elections, put a veto on the passing of laws. So far, however, their power was only negative. But when the tribe assembly obtained legislative rights, the tribunes obtained a positive authority. The power of the tribunes and of the tribes implied each other. The plebeian assembly was dead without able and resolute tribunes; the tribunes were impotent without the democracy.

This relation was at once established when the election of the tribunes was committed to the tribes themselves. The tribunes soon began to summon the tribes to discuss political questions; and the formidable authority which they now wielded appeared in the overthrow of the decemvirate and the recognition of the tribe assembly as a legislative body. The political powers then gained by the Valerio-Horatian laws were confirmed and extended by the popular dictators, Q. Publilius Philo and Q. Hortensius.

Thus the Roman constitution presents us with the apparent anomaly of two distinct legislative assemblies, each independent of the other. Nor were any distinct provinces of action assigned to each. This being so, we should expect to find the one clashing with the other; to hear of popular laws emanating from the one body met with a counter-project from the other. But no such struggles are recorded. The only way in which it can be known that a particular law is due to the more popular or to the more aristocratic assembly is by looking to the name of the mover, by which every law was designated. If the name be that of a tribune, the law must be referred to the tribe assembly. If the name be that of a consul, prætor, or dictator, the law must be referred to the centuriate assembly.^[70] What, then, were the causes which prevented collisions which appear inevitable?



ROMAN STATESMAN

First, it must be remembered that, though the centuriate assembly had been made more democratic, yet the tribe assembly was very far indeed from a purely democratic body. In the latter, the suffrages were taken by the head in each of the thirty-five tribes, and if eighteen tribes voted one way, and seventeen another, the question was decided by the votes of the eighteen. But the eighteen rarely, if ever, contained an absolute majority of citizens. For the whole population of Rome, with all the freedmen, were thrown into four tribes only, and if these four tribes were in the minority, there can be no doubt that the minority of tribes represented a majority of voters. Thus, even in the more popular assembly, there was not wanting a counterpoise to the will of the mere majority.

A still more effective check to collision is to be found in the fact that all measures proposed to the tribe assembly by the tribunes, as well as the centuriate laws proposed by the consuls or other ministers of the senate, must first receive the sanction of the senate itself. The few exceptions which occur are where tribunes propose a resolution granting to a popular consul the triumph refused by the senate. But these exceptions only serve to prove the rule.^[71]

Our surprise that no collision is heard of between the two assemblies now takes another form, and we are led to ask how it came that, if all measures must be first approved by the senate, any substantial power at all could belong to the tribes? It would seem that they also, like the centuriate assembly, could at most exercise only a veto on measures emanating from the great council.

That this result did not follow, is due to the rude but formidable counter-check provided by the tribunate. The persons of the tribunes were inviolable; but the tribunes had power to place even consuls under arrest. By the advance of their intercessory prerogative they gradually built up an authority capable of over-riding all other powers in the state.

We are now better able to appreciate the position of the two assemblies as legislative bodies. The tribe assembly was presided over by officers of its own choice, invested with authority generally sufficient to extort from the senate leave to bring in laws of a popular character. No such power resided in the presidents of the centuriate assembly; for the consuls were little more than ministers of the senate. The centuriate assembly more and more became a passive instrument in the hands of the senate. The tribe assembly rose to be the organ of popular opinion.

In elections, the centuriate assembly always retained the right of choosing the chief officers of state, the consuls, prætors, and censors. The tribe assembly, originally, elected only their own tribunes and the plebeian ædiles. But in no long time they obtained the right of choosing also the curule ædiles, the quæstors, the great majority of the legionary tribunes, and all inferior officers of state. But as the centuries were, generally, obliged to elect their prætors and consuls out of those who had already been elected quæstors and ædiles by the tribes, it is manifest that the elective power of the former was controlled and overridden by the latter. In conferring

extraordinary commands, such as that of Scipio in Spain, the tribes were always consulted, not the centuries.

JUSTICE

In regard to jurisdiction, it has before been noticed that Rome was tender of the personal liberties of her citizens. Various laws of appeal provided for an open trial before his peers of anyone charged with grave offences, such as would subject him to stripes, imprisonment, or death. Now the centuries alone formed a high court of justice for the trial of citizens; the tribe assembly never achieved this dangerous privilege. But the tribunician power offered to the chief officers of the tribes a ready means of interference; for they could use their right of intercession to prevent a trial, and thus screen real offenders from justice. But more frequently they acted on the offensive. There was a merciful provision of the law of Rome, by which a person liable to a state prosecution might withdraw from Italian soil at any time before his trial, and become the citizen of some allied city, such as Syracuse or Pergamus. But the tribunes sometimes threw culprits into prison before trial, as in the case of App. Claudius the decemvir and his father. Or, after a culprit had sought safety in voluntary exile, they proposed a bill of outlawry, by which he was “interdicted from fire and water” on Italian soil, and all his goods were confiscated. Offending magistrates were also fined heavily, without trial, by special *plebiscita*, which resembled the bills of attainder familiar to the reader of English history.

These encroachments of the tribunes were met by other unconstitutional measures on the part of the senate. To bar the action of the tribunes and to suspend the laws of appeal, they at one time had constant recourse to dictatorial appointments. These appointments ceased after the Second Punic War; but after this, in critical times, the senate assumed the right of investing the consuls with dictatorial power.

It must not here be forgotten that of late years circumstances had greatly exalted the power of the senate and proportionally diminished the power of the tribunes. In great wars, especially such as threaten the existence of a community, the voice of popular leaders is little heard. Reforms are forgotten. Agitation ceases. Each man applies his energies to avert present danger, rather than to achieve future improvements. The senate under the

leading of old Fabius Cunctator ruled absolutely for several years. Even elections to the consulate, which he deemed inopportune, were set aside—a thing almost without example, before and after, in Roman constitutional history. Fabius was at length superseded by young Scipio, who in his turn became absolute, and at the close of the war might have made himself dictator, had he been so pleased. At present, popular spirit had fallen asleep. Constitutional opposition there was none. The senate seemed likely to retain in peace the power which war had necessarily thrown into their hands.

PROVINCIAL GOVERNMENT

At the close of the Hannibalic War, Rome was in possession, nominally, of five provinces, which were Sicily, Sardinia, the Gallic coast of Umbria, with Hither and Farther Spain. But of these provincial possessions Sardinia and the Spains were almost to be conquered again; and Gallic Umbria was shortly after absorbed into Italy, while the magnificent district between the Alps and the Gulf of Genoa became the province of Gaul. Sicily was the only province as yet constituted on a solid foundation. To Sicily, therefore, we will confine our remarks; a course which is further recommended by the fact that we are better informed with regard to Sicily than with regard to any other of the foreign possessions of the republic.

We must call to mind that, in speaking of Sicily as of Italy, we are not to think of the country as a whole, but as broken up into a number of civic communities, each being more or less isolated from the rest. At the close of the First Punic War, when the Romans had expelled the Carthaginians from the island, the greater part of it was formed into a province; while the kingdom of Hiero, consisting of Syracuse with six dependent communities, was received into free alliance with Rome. But in the Second Punic War, Syracuse and all Sicily were reconquered by Marcellus and Lævinus, and the form of the provincial communities was altered. The cities of Sicily were now divided into three classes. First, there were those cities which had been taken by siege: these, twenty-six in number, were mulcted of their territory, which became part of the public land of Rome; their former citizens had perished in war, or had been sold as slaves, or were living as serfs on the soil which they had formerly owned. Secondly, there was a large number of communities, thirty-four in all, which retained the fee-

simple of their land, but were burdened with payment of a tithe of corn, wine, oil, and other produce, according to a rule established by Hiero, in the district subject to Syracuse. Thirdly, there were eight communities left independent, which were, like the Italians, free from all imposts.

These states were all left in possession of municipal institutions; they had the right of self-government in all local matters, with popular assemblies and councils, such as were common in Greek communities. But all were subject to the authority of a governor, sent from Rome, with the title of prætor, whose business it was to adjudicate in all matters where the interests of Rome or of Roman citizens were concerned, and, above all, to provide for the regular payment of the imposts. In Sicily, which in those days was a well-cultivated and productive country, this department was so important that the prætor was assisted by two quæstors, one stationed at Syracuse, the other at Lilybæum.

Communities which, during the wars of conquest, had joined the invaders at once or at a critical point in the war, were left free from all ordinary and annual imposts. Cities that were taken by force became, with their territory, the absolute property of Rome. Between these extremes there was a large class, which retained full possession of their lands, and complete local independence, but were subject to the payment of yearly imposts to the imperial treasury, which were levied on the produce of their land. All alike were obliged to contribute towards the expenses of the prætor's court and government.

TAXATION

The most important distinction between the Italian and provincial dominions of Rome consisted in taxation. It was a general rule that all Italian land was tax-free; and that all provincial land, except such as was specified in treaties or in decrees of the senate, was subject to tax. Hence the exemption of land from taxation was known by the technical name of *Jus Italicum* or the Right of Italy.

This last distinction implies that the imperial revenues were raised chiefly from the provinces. We will take this opportunity of giving a brief

account of the different sources from which the revenues of Rome were raised in the early period.

The imperial treasury was in the ancient temple of Saturn, situated at the end of the Forum beneath the Capitol. Here the two quæstors of the city deposited all the moneys received on account of the state, and no disbursements could be made without an order from an officer authorised by the senate. The sources of receipt were twofold, ordinary and extraordinary.

The ordinary revenues consisted of the proceeds and rent of public property, custom duties, tolls, and the like, and the tax levied on provincial lands.

The property of the state was, as has often been noticed, very large. Much of the public land, however, had been distributed to colonies, and the rent received for the rest seems to have been small. Yet the quantity of undistributed land in Italy and Sicily was so great that it must have yielded a considerable revenue. Besides this, the fisheries, with all mines and quarries, were considered public property. Even the manufacture of salt was a state monopoly from the censorship of M. Livius, who thenceforth bore the name of Salinator, or the salt-maker.

Besides these rents and monopolies, custom duties were levied on certain kinds of goods, both exports and imports, and tolls (called *portoria*) were demanded for passengers and goods carried by canals or across bridges and ferries.

There was also an ad valorem duty of five per cent imposed on the manumission of slaves. This was not carried to the account of the year, but laid by as a reserve fund, not to be used except in great emergencies.

The revenue derived from the provincial land tax was only beginning to be productive, but in a few years it formed the chief income of the republic.

It appears that for the civil government of the republic the ordinary revenues were found sufficient. The current expenses, indeed, were small. The Italian and provincial communities defrayed the expenses of their own administration. Rome herself, as we have said, claimed the services of her statesmen and administrators without paying them any public salaries.

In time of war, however, the ordinary revenues failed, and to meet the expenses of each year's campaign an extraordinary tax was levied as required. This was the *tributum*, or property tax. Its mode of assessment marks its close association with war expenses. We have seen above that the whole arrangement of the centuriate assembly was military. Not the least important of these was the census or register of all citizens, arranged according to their age and property. It was made out by the censors at intervals of five years, and served during the succeeding period as the basis of taxation. The necessities of each year determined the amount to be levied. It was usually one in a thousand, or one-tenth per cent; but once, in the Second Punic War, the rate was doubled. The senate had the power of calling for this payment.

At length it became necessary to call on wealthy individuals to furnish seamen, and to advance money by way of loan; and contracts were formed with commercial companies to furnish stores and clothing for the army, in return for which they received orders on the treasury payable at some future time. The obligations thus contracted were not left as a national debt. The first instalment of repayment was made in the year 204 B.C., immediately after the submission of Carthage; the second and third at successive intervals of four years.

At length, in the year 167 B.C., the payments exacted from the provincials became so large that the senate was enabled to dispense with extraordinary taxes altogether; and thus the ordinary revenues sufficed for the expenses of all future wars, as well as for the civil administration.

The allied communities of Italy, the municipia and colonies, were free from all direct burdens, except in time of war. Then each community was required, according to a scale furnished by its own censor, to supply contingents of soldiery to the Roman army, such contingents bearing a proportion to the number of legions levied by the Romans themselves in any given year. The Italian soldiery were fed by Rome; but their equipments and pay were provided at the expense of their own states; and therefore it is plain that every Italian community was indirectly subject to a war tax. But though these communities suffered the burdens of war like Rome, they did not like Rome profit by war. The Roman treasury repaid taxes raised for the conduct of war. But such repayment was confined to Romans. The soldiers of the Latin and Italian towns obtained their share of booty; but their

citizens at home had no hope of repayment. Moneys paid into the Roman treasury were applicable to Roman purposes only. The Italians, though they shared the danger and the expense, were not allowed to share the profit. Here was a fertile field for discontent, which afterwards bore fatal fruits.

In the provinces, on the other hand, little military service was required, but direct imposts were levied instead.

This system was itself galling and onerous. It was as if England were to defray the expenses of her own administration from the proceeds of a tax levied upon her Indian empire. But the system was made much worse by the way in which the taxes were collected. This was done by contract. Every five years the taxes of the provinces were put up to public auction; and that company of contractors which outbid the rest would receive the contract. The farmers of the taxes, therefore, offered to pay a certain sum to the imperial treasury for the right of collecting the taxes and imposts of Sicily, gave security for payment, and then made what profit they could out of the taxes collected. The members of these companies were called *publicani*, and the farmers-general, or chiefs of the companies, bore the name of *mancipes*. It is manifest that this system offered a premium on extortion: for the more the tax collectors could wring from the provincials, the more they would have for themselves. The extortions incident to this system form a principal topic in the provincial history of Rome.^b

SOCIAL CONDITIONS: THE ARISTOCRACY AND THE PEOPLE

Since the year 366 distinctions between the patricians and plebeians had been legally waived, but the importance of the patrician class still continued. The victory of the plebeians led to no democracy. The patrician families who had stood alone in the highest dignities in the state retained their prominent position; but a number of plebeian families came forward who shared with them the state offices and joined in their labours for the greatness of the country. Thus in the course of years a new aristocracy was evolved, a kind of official nobility (*nobilitas*) of the families whose forefathers had occupied such high positions in the state as those of curule magistrates, ædiles, prætors, and consuls, and whose distinctions descended from father to son.

For a long time there had been this sort of aristocracy of merit; elevation being due to neither birth nor name, but to the merits and brilliant achievements of ancestors, the sons zealously treading in the footprints of their fathers.

In Rome the power of the family life was great. It exercised the same potent influence upon the young men as public life did in Greece. The sons conformed to the standard furnished by the life and teaching of their fathers and elder relatives, and in their life at home and abroad they acquired the knowledge and capacity which fitted them for the government of the state and the leadership of armies. A youth of moderate gifts could thus make himself a capable statesman and general, and could easily attain to the same official rank as his father. But a man of the lower class seldom succeeded. It was only by the greatest talent that a new man (*homo novus*) could rise to any high office, unless his rise was due to the democratic opposition, which from a feeling of spite to the upper class insisted on seeing equality of power prevail.

It was under the government of this new aristocracy that Rome laid the foundation of her new world-wide power. The subjection of Italy was completed and the Roman dominion had been extended over the majority of the countries of the Mediterranean Sea. But it was just this ever increasing extension of the empire which forcibly impelled the *nobilitas* to unite themselves in an exclusive community and so to get the reins of government into their own hands. Continual wars gave rise to the necessity of having a group of men of more than ordinary reliability who could devote themselves exclusively to state affairs.

Before the Punic Wars the aristocracy had to a certain extent formed itself into a party against which the people soon gathered in opposition.

The nobility used their influential position to appropriate the whole administration of the state. In the senate the exclusive circle of noble families ruled, and the highest official positions were given only to men of their party. The censorship, a position of the greatest power and consideration, was an important office in their hands; it was regarded as the chief of all state dignities. Hence the aristocracy used every means to prevent a man of the plebeian order from acquiring that position. The duty of the censors was to keep the senate as free as possible from all unaristocratic elements, for they were empowered to nominate the members of the senate and to disqualify for admission to it. There was another way of entering the senate besides that of nomination by the censor; anyone who had occupied a curule chair was entitled to a seat and a voice in the senate. But the choice of the higher officials was in a certain degree in the hands of the consul, who generally belonged to the aristocracy; and as president of the centuriate assembly he could reject any candidate of whom he did not approve.



A ROMAN NOBLE

The censors also appointed the knights and therefore formed them into a purely aristocratic body. As long as they cast the earliest vote in the centuriate assembly, the nobility had a considerable advantage there. Even after this ceased, the knights formed in the assembly a distinct and distinguished party, and as the flower of the nobility they likewise formed in the army a brilliant cavalry corps. As in this corporation the nobility regarded itself as something quite distinct from the rest of the people, the ruling class tried by other external signs to distinguish themselves from the masses and to represent themselves as a superior caste.

So from the year 194 the seats of the senatorial class were kept separate from those of other people at the public festivals.

When the nobility got the government into their hands, they moulded it in conformity with their own interests. In order to raise the position of the officials as high as possible they only increased the number when absolutely necessary, and never in proportion to the increase of business consequent on the extension of the territories of the republic. It was only from the most pressing necessity that in the year 242 the work of a single prætor, the director of judicial business, was divided between two, so that the town prætor (*prætor urbanus*) had the judicial business of the Roman citizens, and the foreign prætor (*prætor peregrinus*) settled questions between aliens or between aliens and Roman citizens. After the conquest of Sicily, Sardinia, and the two Spains, four more prætors were added for the management of those provinces.

But after the year 149 they remained as a rule in Rome during their year of office to preside at the commission of inquiry respecting criminal matters introduced during that time, and then they went in the following year as pro-prætors to the provinces.

The choice of officials was, moreover, limited by the avoidance as much as possible of the re-election to the consulate. From 265 the censor was never twice the same, and the custom was made a law whereby the curule (*lex annalis* of year 180) officials were appointed in a certain degree by grade and after a certain interval.

An ædile, as we have seen, must be at least thirty-seven, a prætor forty, a consul forty-three. The right was therefore withdrawn from the voters, in case of need, to take the most competent and serviceable man without regard to seniority. The measure of worth for the selection of officials was no longer competence but birth and seigniority, and the nobility regarded office as its due right, not disdaining, however, to get from the people all they could by the arts of flattery.

The government of this official nobility exhibited in foreign policy all its time-worn energy, which was only too often united with unworthy cunning and untrustworthiness, but the administration of internal affairs became torpid and bad. The majority belied the claims of their office, mostly careful on the one hand not to forfeit by any inconsiderate or stern measure the

favour of the people to whom they were indebted for their posts and from whom they expected future favours, while on the other hand they did not hesitate to run counter to such of their colleagues as might occasionally wish to render the people reciprocal service.

The late wars had shown the weakness of the generals and the consequent lack of military discipline. In the wars of this period so much leave and furlough had been granted for money that the forces were not ready for any undertaking. Instead of fighting the enemy, generals and soldiers laid their allies and friends under contribution.

When Scipio Africanus took the command against Numantia he sent away from the camp not less than two thousand women, a number of sorcerers and priests, and a whole tribe of traders, cooks, and other servants, so sunk was the army in debauchery and effeminacy. Cowardice and idleness were so deep-seated that it required many months and the most stringent measures to make the army fit to take the field. The change in the spirit of the government was also evident in the treatment of the Roman subjects in Italy and beyond Italy. The Italian communities which had not the full rights of Roman citizens—and they were the majority—were in a bad plight. The communities which had joined Hannibal were almost all condemned to slavery, and the rest were forced to render military service whilst the Roman citizens profited by their labours and kept themselves as distinct from them as the nobility did from the citizens and the rest of the people. The Italian allies were almost excluded from the rights of Roman citizens.

The foreign provinces which at first were treated with a certain consideration were soon in a worse position than the Italians. The governors, who had a royal position in their provinces, and were almost uncontrolled by the senate, allowed themselves the greatest licence, and used the short time of their office to enrich themselves. They indemnified themselves for the expense they had been put to in Rome in order to obtain their posts, and amassed the means for life-long enjoyment.

As the governors were not paid, they had a claim upon all kinds of services and supplies from the provinces, and this they abused in every way. They robbed shamelessly when there was anything to get, and what the governors did on a large scale their numberless subordinates did on a small

one. When a province had to support an army it had much to suffer. Requisitions and levies were endless, and the people were often attacked and plundered by the general and soldiers as if they had been the enemy. To these evils were added the tax collectors and money changers who came like a plague into the country, and plied their bloodsucking callings at will under the protection of the governor. But the persecuted districts revenged themselves on their oppressors. The great wealth taken by the nobility from the provinces to Rome, the luxury and immorality of the officials and the armies, which had such a pernicious influence on the morality of high and low, became known in the uncivilised lands of the East, in Greece, and in Asia. The rich nobility was steeped in debauchery and love of pleasure, and displayed a boundless luxury against which the laws repeatedly enacted strove in vain. And the people also, since there was no country of which Rome stood in awe, began to lose its old energy and to be gradually depraved by the love of enjoyment, recklessness, and idleness.

Certainly there was always a party of honourable, independent citizens; but a sunken, impoverished populace who pandered to the nobility gradually gathered about them. The nobles took care to gain the favour of the mob by flattery, festivities, donations of corn, and even by general bribery, so as to rule in the comitium through them, and secure the official posts. It was almost impossible now for a man who was not rich to obtain office. [c](#)

SLAVES AND FREEMEN

The age of which we have been treating, from the Samnite War to the close of the Punic Wars, was always considered by the Romans, and is still considered by their admirers, to have been the golden age of the republic. A people which handed down the legends of Cincinnatus, Curius, Fabricius, Regulus, can hardly have failed to practise the thrift and honesty which they admired. The characters are no doubt idealised; but they may be taken as types of their times. In the Roman country districts, and still more in the Apennine valleys, the habits of life were no doubt simple, honest, and perhaps rude, of Sabine rather than of Hellenic character, the life of countrymen rather than of dwellers in the town.

It has been remarked that the Italians, like the Greeks, must be regarded as members of cities or civic communities. But the walled towns which were the centres of each community were mostly the residence of the chief men and their dependents and slaves, while the mass of the free citizens were dispersed over the adjoining country district, dwelling on their own farms, and resorting to the town only to bring their produce to market or to take their part in the political business transacted at the general assemblies. Such was the case at Rome in early times. The great patrician lords with their families dwelt in strong houses or castles on the Capitoline, Palatine, and Quirinal hills, while their clients thronged the lower parts adjacent. As the plebeians increased in wealth and power, their great men established themselves at first upon the Cælian and Aventine, and afterwards indiscriminately on all the hills.

In the country districts of Rome the greater part of the land was still in the hands of small proprietors, who tilled their own lands by the aid of their sons and sons-in-law. In the earliest times the dimensions of these plebeian holdings were incredibly small, an allotment being computed at not more than two jugera (about $1\frac{1}{4}$ acres). Even with very fertile soil and unremitting labour, such a piece of land could barely maintain a family. But to eke out the produce of their tilled lands, every free citizen had a right to feed a certain number of cattle on the common pastures at the expense of a small payment to the state; and in this way even a large family might live in rude abundance. In no long time, however, the plebeian allotments were increased to seven jugera (about $4\frac{1}{2}$ acres); and this increase of tilled lands indicates a corresponding improvement in the habits and comforts of the people—an improvement attributed, as all benefits conferred on the plebeians in early times were attributed, to King Servius. And this long remained the normal size of the small properties then so common in the Roman district. The farm and public pasture produced all that the family required—not only food, but flax and wool, which the matron and her daughters dressed and spun and wove, wood and stone for building and farm implements, everything except metals and salt, which were (as we have seen) state monopolies.

But a golden age generally comes to an end with increase of population. Mouths to be fed multiply; the yeomen sell their little farms and emigrate, or become satisfied with a lower scale of living as hired labourers. The

Romans had a remedy for these evils in a home colonisation. The immense quantity of public land in the hands of the state, with the necessity of securing newly-conquered districts of Italy, led to the foundation of numerous colonies between the Samnite and Punic wars, and extended the means of material well-being to every one who was willing and able to work; and this not only for Romans, but for Latins and others, who were invited to become citizens of the colony.

If, however, the superfluous sons of families settled on lands in Samnium, or Apulia, or Cisalpine Gaul, others must have lost these lands; and the question naturally occurs: What had become of these people? This question brings us to the worst point in ancient society—that is, slavery.

It was the practice of ancient nations to regard all conquered persons as completely in the light of booty, as cattle or lifeless goods. If indeed the enemy surrendered without a blow, they became subjects. But those who were taken after a struggle were for the most part sold into slavery. In early times this evil was small. Nor was it to be expected that the small proprietors could afford either to buy or to maintain slaves. They were acquired by the rich patricians and plebeians, who held large tracts of public land, or who had acquired large estates of their own. Before the decemvirate, their debtors were their slaves. But this custom had been long abolished, and it was conquest which supplied slaves to the rich. After the conquest of Samnium, thirty-six thousand persons are said to have been sold. After the reduction of Cisalpine Gaul and Sicily, still larger numbers were brought to the hammer. These were the wretches on whose lands the poorer sort of Roman citizens settled. The slaves may generally be divided into two great classes, the urban or city slaves, and those of the country. They had no civil rights; they could not contract legal marriage; they had no power over their children; they could hold no property in their own name; their very savings were not their own, but held by consent of their master; all law proceedings ran in the name of their masters. For crimes committed, they were tried by the public courts; and the masters were held liable for the damage done, but only to the extent of the slave's value. To kill, maim, or maltreat a slave was considered as damage to his master, and could only be treated as such. No pain or suffering inflicted on a slave was punishable, unless loss had thereby accrued to the owner.

But human nature is too strong always to fulfil conditions so cruel. There is no doubt that the slaves of the household were often treated with kindness; often they became the confidential advisers of their masters. The steward or bailiff of a rich man's estate, his *villicus*, was a person of considerable power. Still the mass of the slaves, especially the agricultural slaves, were treated as mere cattle. Some poor drudges were the slaves of other slaves, such ownership being allowed by the masters. Cato recommends to sell off old and infirm slaves, so as to save the expense of keeping live lumber. Englishmen feel a pang at seeing a fine horse consigned in his old age to the drivers of public carriages; but Romans wasted no such sympathy on slaves who had spent their lives and strength in cultivating their lands. Notwithstanding the better treatment of the house slaves, the humane Cicero reproached himself with feeling too much sorrow for one who had been for years his tried and faithful servant. It was in the next half-century, however, that slaves increased so much in Italy as to produce great effect upon the social condition of the people. At present the evil was only in its beginning.

Here it must be remarked that the practice of giving liberty to slaves was very common. The prospect of freedom as a reward for good conduct must have done much to prevent Roman bondsmen from sinking into that state of animal contentment and listless indifference which marked the negro slaves of later times.

The freedmen filled no mean space in Roman society. Among them were to be found able and well-educated men, who had held a high station in their native country, and often obtained great influence over the minds of their masters. Freedmen exercised most branches of retail trade, and formed the shopkeepers and petty traders and artisans of Rome; for Roman citizens, however poor, could in early times condescend to no business except that of agriculture. Rich men carried on trades by means of their slaves and freedmen; in later times freedmen often worked as artists under some patrician roof, and many of the early poets were freedmen.

Here, then, we trace the beginning of a great distinction, that afterwards was more strongly marked, between the population of the city and the population of the country—between the rustic and the civic tribes.^b

THE ROMAN FAMILY: WOMEN AND MARRIAGE

The Roman woman independent of the marriage tie was placed under the authority of her father or of a guardian.

The father's authority was absolute. All the members of an ancient Roman family—father, mother, children, and daughters-in-law—made up a close association under one ruler or head. All the wealth which came to a family was thrown into a kind of common stock and formed but one patrimony. The sole head of this association, the one master of the common resources, was the father. Until now we have seen no difference made between the children of the two sexes; paternal power presses with equal weight on the son and on the daughter, and holds them both down to the same level. Besides, the daughter like the son can sign a legal contract; like him she has her share of the family patrimony, a guaranteed share that only a formal disinheritance can take from her. More liberal than the oriental or Greek law, Roman law granted equal rights in the paternal inheritance.

But as soon as the paternal power has disappeared, the legal differences between the two sexes begin to show themselves; the son, if he is of age, becomes independent and master of his actions, the daughter, on the contrary, whatever her age, remains under the power of a guardian.

What was that perpetual guardianship of women which the Romans themselves considered as one of the most fundamental institutions of their law? Was it a protecting guardianship like that of minors? Was it a despotic power like that of the father of a family? Neither one nor the other. To grasp its real character, we must go back to the causes which led to its establishment.

In the almost patriarchal constitution of ancient Rome, the preservation of families was of great public importance and the laws were always made to benefit it. The domestic ties, always so close whilst the head of the family lived, were not broken at his death; the hereditary possessions, whilst they were divided amongst the children, did not the less remain the patrimony of the family; the perpetual worship due to the spirit of the ancestors and to the household gods remained a common debt. But supposing that amongst the children there was a daughter, the hereditary share she was to receive would not be safe in her hands; it was to be feared



A ROMAN WOMAN

(From a Statue)

that one day she would try to enrich the family she had entered at the expense of her own. It was to guard against this danger, it was to perpetuate in each family, together with the preservation of hereditary possessions, the memory of its ancestors and the glory or dignity of the house, that the Romans deprived woman of the free possession of her property and placed her under the perpetual guardianship of her *agnates*. This guardianship was not, then, established in the interest of woman, on account of her weakness and natural incapacity; it was established against her and in the interests of the guardians themselves.

This view, we must admit, has received many contradictions even in antiquity. Cicero, Ulpian, Isidorus de Sevilla, are unanimous in saying if the law has placed women under guardianship, it is on account of the weakness of their sex, their ignorance, their inexperience, their frivolity.

But listen to Gaius, the only writer amongst the ancients who discusses and sifts the question: "The vulgar opinion," he says, "is that women must be directed by guardians, because their minds are too shallow to govern themselves. This guardianship has been established in the interest of the guardians, so that the women, whose presumptive heirs they are, can neither deprive them of their inheritance by a will, nor cripple it by gifts or by debts."

Is it necessary to add another proof to the authority of Gaius? Here is one which seems irrefutable. Woman was placed under the paternal power, and, as has been already said, could make a legal contract. Once placed under a guardian, on the contrary, she can no longer contract debts without her guardian's permission. Why this strange contradiction? Why should woman, capable of acting whilst she is under a father's authority, become incapable as soon as she is freed from that authority? In the two cases, her

frivolity, her weakness are evidently the same; here is the only difference: the daughter under paternal authority has no wants, and in indulging herself she only pledges herself; but the orphan or emancipated girl has a patrimony; if she pleased herself she would engage her patrimony and in this way compromise the inheritance of her family, of her future heirs. This reveals to us the spirit of the law. Woman is placed under a guardian because she has a fortune to leave behind her; it is done to protect her heirs and not to insure her own protection.

It will now be guessed to whom the law gave the guardianship; perhaps only to her next heirs, that is to say to her *agnates*, her nearest relatives; if she were a freed slave, to her masters. For natural guardians it was not an office, but a right—a family possession. They had no accounts to render; if they were infirm, in a state of infancy, idiocy, or insanity, they would still retain their rights to this guardianship, except that in that case it would be executed by deputy. But if they could not be deprived of this right they could resign it, and give it to some one in their place; the legitimate guardian could dispose of his ward by an *in jure cessio*, as he could dispose of his house or field.

The guardian's authority was not quite similar to the parental authority. Its limits were rigorously determined by the very purpose of guardianship. The guardian had all the power necessary to safeguard the woman's patrimony, nothing less—but nothing more.

Thus in the first case, his authority only extends to the fortune of the woman, not to her person. He has no control over the conduct of his ward, nor is it his prerogative to watch over her behaviour, or inquire into those of her acts which only affect her personally, and do not touch her fortune. For example, in the matter of marriage, all the pecuniary agreements which so often accompany it have to be authorised by the guardian; his consent is necessary, either to fix the dowry, or for the *conventio in manum*, which involves, as will be seen, a kind of general community of interest. But as for the marriage itself, how can it concern or prejudice the interests of the guardian, since the *agnates*, and not the children of the marriage, will inherit at the woman's death? Thus the guardian's authority is not necessary, either for the celebration of the marriage or in the choice of a husband. The woman herself chooses her husband, assisted sometimes, according to her age, by the advice of her mother and of her near relatives. Nor do all

pecuniary transactions need the intervention of the guardian. Ulpian has given us the list, and we can separate the different proceedings that he enumerates, into two classes, the informal and the formal. In the first class we only find the alienations of *res Mancipi*, either by direct or indirect covenants. *Res Mancipi* were houses, lands, rustic servitude, slaves, beasts of burden—in a word, the soil and what was necessary to cultivate it; these were patrimonial property, and as the mainstay of the family, were placed under the vigilance and care of the guardian, so that their preservation was guaranteed. But besides this inalienable patrimony which she could not touch, the woman still had a large field of administration; she could acquire all sorts of property, dispose of the products of her fields and farm them out, dispose of her money—and thus pay her debts, recover her credit, lend, sell, bargain, and make free gifts.

For the formal proceedings, on the contrary, the law makes no distinctions and the guardian's authority is always necessary. This will, at first sight, seem so little in harmony with the preceding that an explanation has been sought in considerations foreign to the principles of wardship. It has been said that the formal proceedings which usually took place before the magistrate, or before the witnesses who represented the Roman people, had too much resemblance to political proceedings to be permitted to others than citizens, and since woman was excluded from the comitia, she ought to be excluded from the Forum as well. But it is not true that the law courts were always closed to women, even at the time when all processes were under the form of a *legis-actio*; not only could she appear before the judges accompanied by her guardian, but she could even appear alone, either as a witness or as a representative of some one else—that is to say, whenever her personal interest was not at stake. She could also execute certain formal acts alone, as, for instance, emancipation, when she was under paternal authority; here again, the act could not touch her patrimony, as she had none. These are the cases in which the guardian's authority was not necessary, although the proceeding was formal and these acts are just those which cannot touch or diminish the patrimony. Is it not, then, permissible to conclude that where the guardian can intervene in such cases, it is not on account of the formalities which surround them, it is because of the alienation they involve?

So far we have only spoken of natural guardians. But there are other kinds of guardians, and the Roman lawyers place the testamentary guardians first.

The father of the family, supreme in his own household, could, as we have already seen, dispose as he liked of the domestic patrimony; a strong reason, if he left a son and a daughter, for depriving the son of all rights of control and of the care of his sister's hereditary portion, by taking the daughter away from his guardianship. How was this to be accomplished? By making over in his will the guardianship of his daughter to a stranger; this is testamentary guardianship. This guardianship almost amounted to independence for the woman, the testamentary guardian being a stranger to the family and having no right of succession to his ward's property. What interest would he have in preventing her from disposing of her fortune as she pleased? To allow the father to choose a guardian for his daughter was really to allow his daughter to be free of all real and efficacious tutelage. We stop here, and will not tell how testamentary guardianship served as a model to the other kinds of wardships, how by the usurpation of these different nominal guardians the real guardianship, that of the family, was little by little restricted and undermined. We should be no longer describing this institution—we should be telling of its decay and downfall.

No legislators have better defined marriage than have those of ancient Rome. "It is the union of two lives, the blending of two inheritances, a common interest in everything religious and temporal." In this ancient notion of marriage we find the two principles which are the foundation of Christian and modern marriage—the indissolubility of the bond and monogamy.

We found in Greece something of oriental polygamy. In Italy, on the contrary, monogamy is as ancient as the foundation of Rome. It entered so deeply into the habits of the Romans that when later they introduced into the constitution a freer form of conjugal union, concubinage, they considered it, like legitimate marriage, under the law of monogamy. And this law could not be eluded, as at Athens, by the legitimisation of natural children. The ancient Roman law always excluded the natural children from the family circle. It admitted no legitimisation nor recognition; and that illegitimacy might not be hidden under the mask of adoption, such adoption

was itself subject to an investigation by the pontiffs and the ratification of the entire people.

The principle of monogamy had its natural complement in the indissolubility of marriage, for marriage with a possible divorce is, as has been said, but a progressive polygamy. Marriage in ancient Rome was indissoluble. Doubtless this indissolubility is not written in the law. Roman legislation would not, as we have seen, touch family independence, nor tighten by legal constraint ties that natural affection had formed. But if divorce is authorised by the law, it is forbidden by religion and custom; the man who repudiates his wife is branded by the censor, he is excommunicated by the priest, and can only atone for his fault by sacrificing a portion of his worldly wealth at the altar of the divinities that presided at his union. This moral sanction was much more efficacious than the laws ever were. Divorce was not illegal, but morally it was impossible; and all the writers of antiquity agree in saying that they have only heard of one during five centuries.

It is sufficient to remember these two fundamental principles, which are as old as Rome—namely, monogamy and the indissolubility of marriage—to show the value of the vulgar opinion which represents marital power in ancient Rome as the most odious of all tyrannies. It is difficult to believe that the husband was a despot and the wife a slave, where an inviolable fidelity was the reciprocal duty of the two; and a closer study will convince us that a Roman marriage was a real union in which the husband's authority did not exclude the independence of the wife. But to be certain in what this independence consisted, two kinds of marriage must be distinguished. Sometimes the wife, though married, lived at home under the authority of her father, or the guardianship of her *agnates*; sometimes these ties were broken by marriage and the wife went, according to the technical expression, *in manum mariti*, and had no other family than her husband's. This last kind of marriage is without doubt the more ancient. The antiquity of its origin is revealed in the particular customs that went with it, and which are found, almost identically the same, in the most ancient legislations. It is then most probable that during the first centuries of Rome, the *manus mariti* was the inevitable result of marriage. From the day the newly married couple had offered a joint sacrifice to the divinities in the nuptial chamber, the wife had no other family *agnates* or heirs than her

husband and his relatives. What became of the wife's former family ties, the rights of the *agnates* to her guardianship and to her inheritance? Marriage had destroyed them forever. But in this there was a danger to which the legislators had soon to give their attention. The guardians of the wife cannot have been very ready to consent to a marriage which deprived them of all their rights, and without their consent marriage was impossible. Could they have been compelled to give up their rights? But these rights were sacred to the guardians of the family interest; for them it was a duty to prevent the patrimony of their ancestors from passing into the hands of strangers. To satisfy all conflicting claims, the ancient principle had to be entirely altered. Two things had to be separated which until then had seemed inseparable—marriage and the *manus*, that is to say, the change of family. Side by side with the ancient marriage accompanied by the regular formalities, a new marriage was devised which was contracted simply by consent and left the wife in her family under the guardianship of her *agnates*. The consent of the guardians was always necessary for the ancient marriage with *manus*; but it was not required for the marriage pure and simple, which left the rights of the *agnates* intact. This revolution in the family usage was already accomplished, or nearly so, at the time of the laws of the Twelve Tables.

For the rest, the introduction of a new form of marriage did not insure the abandonment of the old, for both could in diverse cases in turn satisfy the same need. If the wife, at the time of her marriage, was not under a guardian, but under the parental authority, that is to say without patrimony, the *conventio in manum* could only benefit the *agnates*; for it was equivalent to the compact of renunciation, which, in ancient French law, so often accompanied marriage contracts. Thus, the same interest, that of preserving the patrimonial wealth, caused the introduction for the heiress of the marriage without *manus*, and maintained the marriage with *manus* for the daughter who had not already inherited.^d

RELIGION

The religion of Rome was, as the legends show, of Sabine origin. Much of its ceremonial, the names of many of its gods, were Etruscan; and Hellenic mythology began, at an early time, to mingle itself in the simple religious faith of the Sabine countrymen. The important question in the

history of all religions is, how far they exert power over the lives of their professors. That the old faith of Rome was not without such power in the times of which we speak is unquestionable. The simple Roman husbandman lived and died, like his Sabine ancestors, in the fear of the gods; he believed that there was something in the universe higher and better than himself; that by these higher powers his life and actions were watched; that to these powers good deeds and an honest life were pleasing, evil deeds and bad faith hateful. The principles thus established remained, as is confirmed by the weighty testimony of Polybius, delivered in a later and more corrupt age. "If," says he, "you lend a single talent to a Greek, binding him by all possible securities, yet he will break faith. But Roman magistrates, accustomed to have immense sums of money pass through their hands, are restrained from fraud simply by respect for the sanctity of an oath."^b

The primitive religion of the Italians, in its essential or fundamental beliefs resembled that of other Indo-European nations. They adored the forces of nature, favourable or otherwise, and imagined them animated living beings, of different sexes, their rivalry producing the struggles of the elements, and their union explaining the external fecundity of the world. This was also the basis of the Greek religion, but the Italian religion bore the impression of the nations who had made it. These nations were as a rule grave, sensible, prudent, and much absorbed by the miseries of this life and the dangers of the future. As they were inclined rather more towards fear than hope, they respected their gods a great deal, but feared them more, and their worship consisted more especially of humble petitions and rigorous mortifications.

Their imaginations wanted in richness and brilliance, they never therefore created anything like the rich development of the poetic legends so much admired in the Greeks. Their legends are poor and simple; springing from the hard life of agricultural labour, their character is often strangely prosaic; they are especially wanting in variety; in different times the same stories are found applied to different gods. The hero who founded or was the benefactor of the town was as a rule a child of marvellous birth, son of the god Lar, and begotten near the family hearth, sometimes by a spark from the fire. When he is young a miracle reveals his future greatness. This miracle is everywhere the same; it is a flame which burns around his head without consuming him. During his life he is wise, pious, and good; he

makes good laws and teaches men to respect the gods and justice. After a few useful deeds he disappears suddenly, "he ceases to be seen," without it being possible to say how he vanished. Doubtless he has gone to lose himself in the bosom of the great divinity from which everything emanates here below, he becomes part of this divinity, he loses his mortal name and from henceforth takes the one of the god with which he is absorbed. Thus Æneas, after his disappearance, was honoured under the name of *Jupiter Indiges* and Latinus as *Jupiter Latinus*.

Italy was thus not very rich in religious stories; the mixture of Italian races, that gave birth to Rome, was poorer still. Rome was content to accept the beliefs of the different nations which composed her by trying to unite them and making them agree; it did not seem necessary to create new ones. The only innovation which was made was inscribing on kinds of registers, called *Indigitamenta*, the list of gods that are affected by each event in a man's life, from his conception until his death, and those that look after his most indispensable needs, such as food, dwelling, and clothing. They were placed in regular order, with a few explanations as to their names and the prayers which had to be offered up to them. The gods of the *Indigitamenta* have an exclusive and entire Roman character. Without doubt in other countries the need has been felt of placing the principal acts of life under divine protection, but as a rule gods are chosen for this purpose who are known, powerful, and tried, in order to be sure that their help will be efficacious. In Greece, the great Athene, or the wise Hermes, is invoked in order that a child may be clever and learned. In Rome, special gods were preferred, created for that purpose and for no other use; there is one who makes a child utter his first cry, and one who makes him speak his first word, neither have another use, and are only invoked for this occasion. They seldom have another name but the one their special functions give them, as if to show that they had no real existence besides the act over which they preside.

Their competency is very limited; the simplest action gives birth to several divinities. When a child is weaned there is one who teaches him how to eat, another to teach him to drink, a third makes him lie still in his little bed. When he commences to walk, four goddesses protect his first steps, two accompany him when he leaves his home, and two bring him

back when he returns. The lists were thus endless and the names became indefinitely multiplied.

The fathers of the Catholic Church were much amused at “this population of little gods condemned to such small uses,” and compare them to workmen who divide the work amongst themselves in order that it may be more quickly done. For all this it is curious to study them; they are, after all, the original gods of Rome. Rome had not yet undergone the sovereign influence of Greece when the pontiffs drew up the *Indigitamenta*, and the remains that are left to us of the sacred registers can alone teach us what idea the Romans had of divinity and how they understood religious sentiment.

What is most striking at first is how all these gods seem without life. They have no history attached to them and not even a legend has been given them. All that is known of them is that at a certain crisis they must be prayed to and they can then render service. Once that moment passes, they are forgotten. They do not possess real names; those given to them do not distinguish them individually, but only indicate the function they fulfil. As a rule this name is in the form of an epithet; from this it is probable that it was not always employed alone, and that at first it was a simple emblem. It can be concluded with a great deal of apparent truth that originally the name described a powerful divinity, or even the divinity in general, the father all-powerful, as he was called so long as he limited his action to a special purpose. Thus the two gods Vaticanus and Fabulinus would be no other than the divinity itself, even when it watches over the first cries and first steps of the child.

The gods were not quite so numerous in the first ages, and it was then necessary to give each of them many more functions. These attributes were expressed, as in Christian litanies, by epithets, the list of which, more or less lengthy according to the importance of the god, followed after his name. As each invocation appealed to one of the faculties, and not to the power of the god, the epithet was practically much more important than the name and was employed alone. Soon the relationship between the name and the qualifications which existed primitively was forgotten or lost and then the epithets became divine. Thus the different functions of one god ended by being attached to independent gods. It was at the time of these changes that the *Indigitamenta* were drawn up. They are interesting to us, as they

make us grasp Roman polytheism just when it is being formed, but they also show us that it is an unfinished polytheism. After creating all these gods, Rome did not know how to make them life-like. They remained vague, undecided, floating; they never attained, as the Greek gods, precise forms with distinct features. This, besides, is the general character of the Roman religion, and the gods of Rome always resembled those of the *Indigitamenta*.

The Italian religion was always more respectful and timid than the Greek. The Roman remained at a farther distance from his gods, he dared not approach them, he would have been afraid to look at them. If the Roman veiled his face when accomplishing religious duties, it was not, as Virgil says, because he was afraid of having his attention taken off what he was doing, but in order not to risk seeing the god he is praying to. He solicits his presence, he likes to know that he is near him, listening to his vows in order to grant them, but he would have been frightened if he had seen him. "Deliver us," says Ovid in his prayer to Pallas, "from seeing the dryads or Diana's bath, or Faunus when he runs across the fields in the daytime"; and until the end of paganism the Roman peasant was very afraid, when returning home in the evening, of meeting a Faun in his path. The result of this timidity of the Italians, who did not dare look at the gods in the face, is that they saw them vaguely. They have not got clear outlines, and are represented rather by symbols than by images; here Mars is adored under the form of a lance struck in the ground, in another place a simple stone represents the great Jupiter.

According to Varro, Rome remained 170 years without statues; the idea of placing them in the temples came from abroad. It was to imitate Etruria that a painted wooden Jupiter was placed in the Capitol; on the eve of festivals they gave him a coat of paint for him to appear in all his glory. These ancient customs were never quite lost, they were preserved in the country, where the peasants honoured the gods by covering old trunks of trees with bands, and in piously pouring oil on blocks of stone. At Rome, even whilst all the temples were being filled by Grecian masterpieces the antique Vesta would not allow a single statue in her sanctuary; she was only represented by the sacred flame which was never put out.

It is probable, then, that if Rome had not known Greece, anthropomorphism would have stopped short. The Roman has an instinctive

repugnance to making his gods beings too much like us; to him they are not real persons, having an individual existence, but only divine manifestations, *numina*; and this name by which he calls them indicates perfectly the idea he has of them. Every time the divinity seems to reveal itself to the world in some manner (and as he is very religious, he believes he sees him everywhere), he notes with care this new revelation, gives it a name and worships it. These gods he creates every minute are nothing else but divine acts, and that is why they are so numerous.

No other nation has ever possessed such a vast Pantheon; and these words can be applied to the whole of Italy, that a writer of the imperial epoch lends to a woman of the Campania: "Our country is so peopled with divinities that it is much easier to meet a god than a man." This is also the reason why the Romans more than any other nation had a taste for divinised abstractions. As in reality all their gods, even the greatest, are only divine qualities or attributes and as they always preserve to some extent their abstract character, it is not surprising that the habit was soon formed of introducing simple abstractions in their company. This is a custom as a rule only introduced into religions when they become old, but in Rome we notice it from the most ancient times. Tullus Hostilius built a temple to Fear and to Pallidness; and Salvation or Prosperity of the Roman nation was early a divinity much worshipped.

Later many exaggerations were made in this manner. During the empire all the ventures of the emperors were worshipped and statues were raised to the Security of the Century and to the Indulgence of the Master. These strange personifications, which would never have entered the mind of a Greek, were the result of the manner in which the Romans of all times conceived divinity. Polytheism was formed by them by way of an abstract analysis and not, as in Greece, by a kind of outburst of imagination and enthusiasm. They always remained faithful to this method, and to the end placed in the sky abstractions rather than living beings.

This nation, so timid, scrupulous, scared, that to protect a man one felt the need of surrounding him by gods from his birth to his death, that had such a deep respect for divinity, thinking to meet it everywhere, seemed to be the prey of every superstition.

The fathers of the Catholic Church have compared the institutions of Numa, with their minute and multiplied proscriptions, to Mosaic law. The Romans, who prided themselves on following them to the letter, could be exposed to becoming absolutely like the Jews; and one asks how it is that, amongst such a devoted people, religious authority did not end by dominating over all others. What preserved them from this fate was their great political instinct.

No other nation has ever been so taken up as have the Romans with the importance of the rights of the state, and everything was sacrificed to that—their oldest customs and their dearest prejudices. It was a general belief amongst them that dead persons became gods and protected those nearest to them, and were as close as possible to those they should save; they were buried in the house and thus became good spirits. One day, however, the law ordained, by reason of hygiene, that nobody should be buried within the precincts of the towns, and everybody obeyed this law. This example shows that in Rome nothing could resist civil power; paternal authority, in spite of the extent of its rights, gave way before it.

The father of the family is the absolute master of his children; he can sell or kill his child, but if his son is in public office the father has to obey him like the others, and when he meets him on his path he must get off his horse to let him pass.

Roman religion, so powerful, so respected as it was, had to submit to the same yoke. It was thus subject to the state, or rather was blended to it. What most aided religion to attain this result was the manner in which it recruited its priests. “Our ancestors,” says Cicero, “were never wiser nor more surprised by the gods than when they decided that the same persons would preside over religion and govern the republic. It was by this means that the magistrates and pontiffs fulfilling their duties with wisdom, agreed together to save the state.” In Rome, religious functions were not separated from political ones, and there was nothing incompatible between them.

Any one could act as pontiff in the same time as consul and for the same motives. Those who wished to become such were never required to possess any special knowledge; it was sufficient for attaining these duties to have served his country in the deliberating assemblies or the battle-field. Those that obtained them did not, whilst exercising them, take a narrow and

exclusive attitude, so common to sacerdotal castes; they continued to mix with the world, they sat in the senate in the same time as in the great colleges of priests of which they formed a member; their new functions, far from taking them away from the government of their countries, gave them more right to take part in it.

These soldiers, politicians, men of business in Rome, gave to religious things that cold, practical sense which they gave to everything else. It is thanks to them that a laic undercurrent always circulated in Roman religion, that during the whole duration of the republic and of the empire no conflict ever broke out between it and the state; and that the government of Rome, in spite of all the demonstrations of piety which it lavished, never threatened to become a theocracy.⁹

TREATMENT OF OTHER NATIONS

But while morality, good faith, and self-denial prevailed among themselves, it is clear that the Romans laid no such restrictions upon their dealings with other nations. This great defect is common to Rome with all antiquity. The calmest Greek philosopher, Aristotle, regarded barbarians as naturally the slaves of the Greeks. International law was unknown, except in certain formalities observed in declaring war and making peace, and in the respect paid to the persons of ambassadors. This absence of common humanity and generosity to foreigners appears in many pages of this history, in none more strongly than in that which records the treatment of the Samnite leader C. Pontius. Gleams of better feeling appear in the war with Pyrrhus; the chivalric character of the king awakened something of a kindred spirit in the stern and rigid Romans. But nothing could be more ungenerous than the conduct of Rome to Carthage, after the Mercenary War; and still baser pieces of diplomacy occur in the subsequent dealings of the senate with the Achæans and with Carthage.

THE FINE ARTS

If Hellenic forms of thought and speech invaded the domain of literature, much more was this the case with the arts of design. There are not wanting examples to show that before this time sculpture and painting were held in

honour at Rome. The consul Carvilius (in 293 B.C.) employed part of the spoils taken from the Samnites in setting up a colossal bronze statue on the Capitoline. A quadriga, executed in terra-cotta by an Etruscan artist, is ascribed to the same date. Statues were erected in the Forum to honour divers great men of olden time. Many temples were built in thanksgiving for victories, most of which were adorned by Etruscan or Greek artists. The temple of Salus was ornamented about 305 B.C. by paintings from the hand of that C. Fabius who adopted the name of Pictor and transmitted it as an honour to his family. The Ogulnii, in their ædileship (296 B.C.), set up in the Capitol a bronze group representing the wolf suckling the twins. A painting of the battle in which the Romans defeated Hiero in 263 adorned the walls of the senate house.

Of these works, and others not recorded by history, no trace remains except the famous wolf now preserved in the Capitoline Museum. The twins are a later addition, but the animal is probably the original work noticed by Cicero and Livy. It bears the well-known marks of the archaic Greek art in the sharp, rigid forms of the limbs and muscles, the peculiar expression of the face, and the regular knots of hair about the neck and head. Here, then, we trace Hellenic artists at Rome. Others of the works mentioned are expressly assigned to Etruscan artists; and it may be remarked that Fabius, the only native artist of whom we hear, belonged to a family always associated in history with Etruscans.

But when Rome had conquered southern Italy, she was brought at once in contact with works of the finest Greek art. No coins of old Greece are so beautiful as those of her colonial settlements in the west; and it is in the coins of Rome, strange to remark, that we first trace the indisputable effect of Greek art.

Up to the time when Italy was conquered, the Romans had used only copper money of a most clumsy and inconvenient kind. A pound of this metal by weight was stamped with the rude effigy of a ship's prow, and this was the original as or libra. Gradually the as was reduced in weight till, in the necessities of the Second Punic War, it became only one-sixth of the libra by weight; yet it retained its ancient name, just as the pound sterling of silver, originally equivalent to a pound Troy-weight, is now not more than one-third, or as the French *livre* is a much smaller fraction of that weight.

[72] But even this diminished coin was clumsy for use, as trade increased

with increasing empire. After the conquest of southern Italy the precious metals became more plentiful, and the coinage of the conquered cities supplied beautiful models. The first denarius, or silver piece of ten asses, was struck in the year 269 B.C., and is evidently imitated from the coins of Magna Græcia. The Roman generals who commanded in these districts stamped money for the use of their armies with the old insignia of the conquered cities. The workmanship is, indeed, inferior to the best specimens of Hellenic coins, but far superior to anything Roman, before or after. Gold coins of similar model were not struck till near the close of the Hannibalic War (205 B.C.). The great mass of Roman coins which we possess belongs to the last century of the republic. They usually bear the family emblems of the person who presided over the mint, or of the consuls for whose use they were struck; but the execution always remained rude and unattractive.



A ROMAN ORATOR

(After Hope)

Afterwards, Roman conquest gave the means of supplying works of art by the easier mode of appropriation. In the conquest of Etruria, years before, the practice had been begun; from Volsinii alone we read that two thousand statues were brought to Rome. In following years Agrigentum, Syracuse, Corinth, and other famous cities, sent the finest works of Hellenic art to decorate the public buildings and public places of the barbarous city of the Tiber, or in many cases to ornament the villas of the rapacious generals.

In the more intellectual even of the useful arts the Romans made no great progress. The contrivances of Archimedes for the defence of Syracuse struck them with amazement. In Cicero's time they usually carried the sciences of quantity and magnitude no further than was necessary for practical arithmetic and mensuration. In 293 B.C. L. Papirius Cursor the younger set up a sun-dial at Rome, and thirty years later another was brought from Sicily by the consul M. Valerius Messalla; but no one knew how to place them, so as to make the shadow of the gnomon an

index of time. A water-clock, resembling our sand-glass, was not introduced till 159 B.C.

Nor were the common conveniences of life in an advanced state. Up to the year 264 the houses were commonly roofed with shingles of wood, like the Alpine cottages of our days; then first earthen tiles began to supersede this rude material. Agriculture must have been roughly carried on by men who were as much soldiers as countrymen. The wine of Latium was so bad that Cineas, when he tasted it, said—and the witticism was remembered—“he did not wonder that the mother of such wine was hung so high”; alluding to the Italian custom, still retained, of training the vine up elms and poplars, while in Greece it was trained (as in France and Germany) on short poles and exposed to all the heat of the sun.

A form of architecture called the Tuscan was mostly used, which bore an imperfect resemblance to that early Greek style usually called the Doric. But the existing remains of the republican period are too scanty to allow of any precise statements. The true arts of Rome were, then and always, the arts of the builder and engineer. It would not be wrong to call the Romans the greatest builders in the world. Some of their mighty works, works combining solidity of structure with beauty of form and utility of purpose, still remain for our admiration, having survived the decay of ages and the more destructive hands of barbarian conquerors. In every country subject to their sway, roads and bridges and aqueducts remain in sufficient number and perfection to justify all praise. We class the roads among the buildings, according to their own phraseology,^[73] and their construction deserves the name as justly as the works upon our own railways. The first great military road and the first aqueduct are due to the old censor Appius Cæcus, and they both remain to preserve the memory of the man, often self-willed and presumptuous, but resolute, firm of purpose, noble in conception, and audacious in execution. Other aqueducts and other roads rapidly followed; the spade and trowel were as much the instruments of Roman dominion as the sword and spear. By the close of the Punic Wars solid roads, carried by the engineer’s art over broad and rapid streams, through difficult mountain passes, across quaking morasses, had already linked Rome with Capua in the south, with Placentia and Cremona in the north. Such were the proud monuments of the Appii, the Æmilii, the Flaminii.

It may be said that these magnificent works, as well as the vast amphitheatres and baths which afterwards decorated Rome and every petty city in her provinces, were due to the invention of the arch. This simple piece of mechanism, so wonderful in its results, first appears in the Great Cloaca. It was unknown to the Greeks, or at least not used by them. It may be that the Romans borrowed it from the Etruscans; the Cloaca is attributed to an Etruscan king, and similar works are discovered in ruined cities of Etruria. But if they borrowed the principle they used it nobly, as witness the noble bridges still remaining, the copious streams carried over the plain for miles at the height of sixty or seventy feet from the level of the soil. If they had little feeling for beauty and delicacy in the use of the pencil or the chisel, their buildings are stamped with a greatness which exalted the power of the state while it disregarded the pleasure of the individual.

Their attention to practical utility in draining and watering their city is especially noted by Strabo in contrast with the indifference shown by the Greeks to these matters. To the facts already stated may be added their rule, established so early as the year 260 B.C., that no one should be buried within the city—a rule scarcely yet adopted in London. From this time dates the beginning of those rows of sepulchral monuments which the traveller beheld on either side of the road as he entered the Eternal City. It was a gloomy custom, but better at least than leaving graveyards in the heart of crowded cities.

A striking proof of engineering skill is shown in the tunnels cut through solid rock for the purpose of draining off volcanic lakes; this art we may also believe to have been originally borrowed from the Etruscans. The first tunnel of which we hear was that by which the Alban Lake was partially let off during the siege of Veii, a work which was suggested by an Etruscan soothsayer. Other works of like kind still remain, though the time of their execution is not always known. Here shall be added the notice of one work of kindred sort, which happens by a rare coincidence to combine great utility with rarest beauty. The famous M. Curius Dentatus, when censor in 272, cut a passage through the rock, by which the waters of Lake Velinus were precipitated into the Nar. By this means he recovered for his newly conquered Sabine clients a large portion of fertile land, and left behind the most lovely, if not the most sublime, of all waterfalls. The Falls of Terni, such is the famous name they now bear, were wrought by the hand of man.

“Thousands of travellers visit them,” says Niebuhr; “how few know that they are not the work of Nature!”^b

LITERATURE

Rome during this period began to form the literature which has come down to us; but unfortunately, instead of being national and original, it was imitative and borrowed, consisting chiefly of translations from the Greek. In the year after the end of the First Punic War (240), L. Livius Andronicus, an Italian Greek by birth, represented his first play at Rome. His pieces were taken from the Greek; and he also translated the *Odyssey* out of that language into Latin. Cn. Nævius, a native of Campania, also made plays from the Greek, and he wrote an original poem on the First Punic War, in which he had himself borne arms. These poets used the Latin measures in their verse; but Q. Ennius, from Rudia in Calabria, who is usually called the father of Roman poetry, was the first who introduced the Greek metres into the Latin language. His works were numerous tragedies and comedies from the Greek, satires, and his celebrated *Annals*, or poetic history of Rome, in hexameters, the loss of which (at least of the early books) is much to be lamented. Maccius Plautus, an Umbrian, and Cæcilius Statius, an Insubrian Gaul, composed numerous comedies, freely imitated from the Greek. M. Pacuvius of Brundisium, the nephew of Ennius, made tragedies from the Greek; L. Afranius was regarded as the Menander of Rome; and P. Terentius (Terence), a Carthaginian by birth, gave some beautiful translations (as we may perhaps best term his pieces) of the comedies of Menander and Apollodorus. None of these poets but Plautus and Terence has reached us, except in fragments; the former amuses us with his humour, and gives us occasional views of Roman manners, while we are charmed with the graceful elegance of the latter. It is remarkable that not one of these poets was a Roman. In fact Rome has never produced a poet.

Q. Fabius Pictor, L. Cincius Alimentus, A. Postumius Albinus, M. Porcius Cato, and L. Cassius Hemina wrote histories (the first three in Greek) in a brief, dry, unattractive style. Cincius also wrote on constitutional antiquities, and seems to have been a man of research; and a work of Cato's on husbandry has come down to us which we could well spare for his *Origines*, or early history of Italy.^c

FOOTNOTES

[64] [Both consular places were opened to the plebeians by the law of the tribune Genucius, passed in 342 B.C.; cf. Mommsen^{[h](#)} and Greenidge.^{[i](#)}]

[65] [The reduction of the comitia curiata to a mere form belongs to the fifth century B.C.]

[66] [The senators were chiefly men who had held the principal civic offices; and as these offices were monopolised by a narrow circle of wealthy families, the senatorial places must have been practically, though not constitutionally, hereditary.]

[67] [By the Publilian law of 339 B.C. (cf. [p. 185](#)) the senatorial control over the centuries was reduced to a formality. But the senate still controlled the magistrates, and the magistrates controlled the assemblies.]

[68] [In fact the tribal assembly came into existence before the comitia centuriata began to grow more popular—the tribal assembly influenced the development of the centuriate assembly in a democratic direction.]

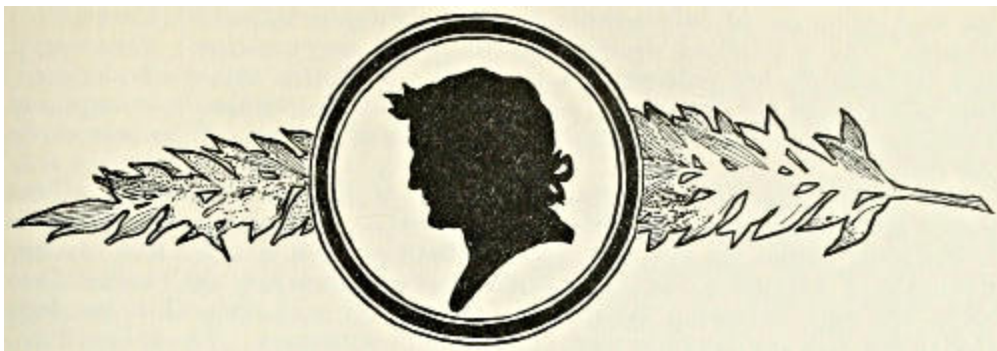
[69] [According to some authorities, however, the comitia centuriata did not come into existence before the end of the regal period.]

[70] [Rarely were laws passed by the tribal assembly under the presidency of a consul.]

[71] [After the passing of the Hortensian Law, 287 B.C., the tribunes were no longer constitutionally bound to gain the consent of the senate to their bills; and occasionally a tribune, as Flaminius in 232 and Claudius in 218, availed himself of his constitutional freedom. Generally, however, the tribunes were ministers of the senate, and more subservient than the consuls.]

[72] When the pound of weight ceased to be the same with the pound of currency, the former was usually designated *æs grave*.

[73] *Munire viam*, was their phrase.



CHAPTER XV. THE GRACCHI AND THEIR REFORMS

TIBERIUS GRACCHUS

It appears that before the time of Scipio's election to conduct the Numantian War, it had become a prevalent opinion that some measures were necessary to arrest the prevailing social evils. The frightful excesses of the Servile War called attention still more strongly to the subject; and in the year that Scipio achieved the conquest of Numantia a leader appeared who was endowed with courage, firmness, self-confidence, ability, eloquence, and every requisite for political success, except a larger experience and a larger share of patience and self-control.^b A. H. Beesley thus vividly paints the crying evils of the Roman state:

“Everywhere Rome was failing in her duties as mistress of the civilised world. Her own internal degeneracy was faithfully reflected in the abnegation of her imperial duties. When in any country the small farmer class is being squeezed off the land; when its labourers are slaves or serfs; when huge tracts are kept waste to minister to pleasure; when the shibboleth of art is on every man's lips, but ideas of true beauty in very few men's souls; when the business sharper is the greatest man in the city, and lords it even in the law courts; when class magistrates, bidding for high office, deal out justice according to the rank of the criminal; when exchanges are turned into great gambling-houses, and senators and men of title are the chief gamblers; when, in short, ‘corruption is universal, when there is increasing audacity, increasing greed, increasing fraud, increasing impurity, and these are fed by increasing indulgence and ostentation; when a considerable number of trials in the courts of law bring out the fact that the country in general is now regarded as a prey, upon which any number of vultures, scenting it from afar, may safely light and securely gorge themselves; when the foul tribe is amply replenished by its congeners at home, and foreign invaders find any number of men, bearing good names, ready to assist them in robberies far more cruel and sweeping than those of the footpad or burglar’—when such is the tone of society, and such the idols before which it bends, a nation must be fast going down hill.

“A more repulsive picture can hardly be imagined. A mob, a moneyed class, and an aristocracy almost equally worthless, hating each other, and

hated by the rest of the world; Italians bitterly jealous of Romans, and only in better plight than the provinces beyond the sea; more miserable than either, swarms of slaves beginning to brood revenge as a solace to their sufferings; the land going out of cultivation; native industry swamped by slave-grown imports; the population decreasing; the army degenerating; wars waged as a speculation, but only against the weak; provinces subjected to organised pillage; in the metropolis childish superstition, wholesale luxury, and monstrous vice. The hour for reform had surely come. Who was to be the man?"^c

Ti. Sempronius Gracchus was son of one of the few Romans in whom public spirit prevailed over the spirit of party. Though personally hostile to the great Scipio, we saw him interfere between him and his foes. After the death of Africanus, the chiefs of the party offered him the hand of Cornelia, the only surviving daughter of the hero; and from this marriage twelve sons and one daughter were born in rapid succession. The eldest, Tiberius, saw the light about 166 B.C., but the father died before his eldest son reached man's estate, and Cornelia was left a widow with her children. The daughter lived; but of all the twelve sons only two grew up—Tiberius, and Caius who was nine years younger. To the education of these precious relics Cornelia devoted all the energies of her masculine mind. She even refused an offer to share the throne of the king of Egypt. Her dearest task was to watch the opening capacities of her boys. Such was her hope of their greatness that she used to say she would be known not as the daughter of Scipio, but as the mother of the Gracchi.

According to the fashion of the day, Greek teachers were called in to educate the boys. Blossius of Cumæ, and Diophanes a Mytilenean exile, are mentioned as the instructors, and in later life as the friends, of Tiberius. Scarcely had Tiberius assumed the garb of manhood when he was elected into the college of augurs. At the banquet given to celebrate his installation, App. Claudius, the chief of the senate, offered him his daughter's hand in marriage.

When the proud senator returned home, he told his wife that he had that day betrothed their daughter. "Ah!" she cried, "she is too young; it had been well to wait a while—unless, indeed, young Gracchus is the man." Soon after his marriage he accompanied Scipio to Carthage, where he was the first to scale the walls.

The personal importance of Gracchus was strengthened by the marriage of Scipio with his only sister. But this marriage proved unhappy. Sempronia had no charms of person, and her temper was not good; Scipio's austere manners were little pleasing to a bride; nor were children born to form a bond of union between them.

[137-133 B.C.]

It was when Gracchus was about thirty years old (137 B.C.) that he served as quæstor in Spain. Before this, when he travelled through Etruria to join the army, he had noted her broad lands tilled not by free yeomen as of old, but by slaves. Soon after this the Slave War broke out. He spoke his sentiments freely, and public opinion designated him as the man who was to undertake the thankless office of reformer. In all places of public resort the walls were covered with inscriptions calling on Gracchus to vindicate the rights of all Roman citizens to a share in the state lands. He presented himself as a candidate for the tribunate, and was elected.

On December 10th, 134 B.C., he entered upon office. He had already prepared men for his projected legislation by eloquent speeches, in which he compared the present state of Italy with her olden time, deplored the decay of her yeomen and farmers, and the lack of freemen to serve in the legions. All his arguments pointed towards some measures for restoring the class of small landed proprietors who were dwindling fast away.

[133 B.C.]

In a short time his plan was matured and his bill brought forward. He proposed to revise the Licinian law of 364 B.C., by which it was enacted that no head of a family should hold more than five hundred jugera (nearly 320 acres) of the public land; but to render the rule less stringent, he added that every son of the family might, on becoming his own master, hold half that quantity in addition. ^[74] Whoever was in possession of more was to give up the excess at once to the state; but to obviate complaints of injustice, he proposed that those who gave up possession should be entitled to a fair compensation for any improvements they had made during the term of their possession. All public lands were to be vested in three commissioners (*triumviri*), who were to be elected by the tribes. Their business was to distribute the public lands to all citizens in needy circumstances, and to prevent lands so distributed being again absorbed into the estates of the rich land owners; the sale of the new allotments was altogether prohibited.

The greater part of these public lands had fallen into the hands of the rich land owners. They had held them, on payment of a small yearly rent, for generations; and many of these persons had forgotten perhaps that their possession could be disturbed. After the first surprise was over, the voices of these land holders began to be heard; but as yet the majority of the senate showed no disfavour to the law of Gracchus. The persons interested alleged that the measure, though it pretended only to interfere with state lands, did in fact interfere with the rights of private property; for these lands were held on public lease and had been made matters of purchase and sale, moneys were secured on them for the benefit of widows and orphans, tombs had been erected on them: if this law passed, no man's land could be called his own.

If Gracchus had proposed a forcible and immediate resumption of all state lands, without compensation for moneys spent on them, these arguments would have had more weight. Rights arise by prescription; and if the state had for a long course of time tacitly recognised a right of private property in these lands, it would have been a manifest injustice thus abruptly to resume possession. But the Licinian law was evidence that the state claimed a right to interfere with the tenure of the public lands. That the Romans felt no doubt about the right is shown by the fact that in framing his law Tiberius was assisted by his father-in-law App. Claudius, the chief of the senate, and by P. Mucius Scævola, consul of the year.

It was certain that the law would be carried in all the country tribes, because it was precisely in these tribes that the strength of Gracchus lay, and all his arguments show that he knew it. It was to the country people, who had lost or were afraid of losing their little farms, that he spoke.^b A few specimens of the fervent eloquence of Tiberius still remain in the fragments^[75] quoted in Plutarch^e and Appian.^g Plutarch describes the present event as follows:

“Tiberius defending the matter, which of itself was good and just, with such eloquence as might have justified an evil cause, was invincible; and no man was able to argue against him to confute him, when, speaking in the behalf of the poor citizens of Rome (the people being gathered round about the pulpit for orations), he told them, that the wild beasts through Italy had their dens and caves of abode, and the men that fought, and were slain for their country, had nothing else but air and light, and so were compelled to

wander up and down with their wives and children, having no resting-place nor house to put their heads in. And that the captains do but mock their soldiers, when they encourage them in battle to fight valiantly for the graves, the temples, their own houses, and their predecessors. For, said he, of such a number of poor citizens as there be, there cannot a man of them show any ancient house or tomb of their ancestors, because the poor men go to the wars, and are slain for the rich men's pleasures and wealth; besides, they falsely call them lords of the earth, where they have not a handful of ground that is theirs. These and such other like words being uttered before all the people with such vehemency and truth, so moved the common people withal, and put them in such a rage, that there was no adversary of his able to withstand him. Therefore, leaving to contradict and deny the law by argument, the rich men put all their trust in Marcus Octavius, colleague and fellow-tribune with Tiberius in office, who was a grave and wise young man, and Tiberius' very familiar friend. That the first time they came to him, to oppose him against the confirmation of this law, he prayed them to hold him excused, because Tiberius was his very friend. But in the end, being compelled to it through the great number of the rich men that were importunate with him, he withstood Tiberius' law, which was enough to overthrow it."^e

The morning came. The Forum was crowded with people expecting the completion of the great measure which was to restore some share in the broad lands of Italy to the sons of those who had won them. Strange faces were seen everywhere: vine-dressers from Campania and the Auruncan hills, peasants from the Sabine and Æquian valleys, farmers of valley and plain from the Clanis to the Vulturnus.

Gracchus rose. His speech was received with loud applause by the eager multitude. When he had ended, he turned to the clerk, and bade him read over the words of the law before it was put to the vote. Then Octavius stood up and forbade the man to read. Gracchus was taken by surprise. After much debate he broke up the assembly, declaring that he would again bring on his defeated bill upon the next regular day of meeting.

The intervening time was spent in preparing for the contest. Gracchus retaliated upon the veto of Octavius by laying an interdict on all public functionaries, shut up the courts of justice and the offices of police, and put a seal upon the doors of the treasury. Further, he struck the compensation

clauses out of his bill, and now simply proposed that the state should resume possession of all lands held by individuals in contravention of the Licinian law.

On the day of the second assembly Gracchus appeared in the Forum escorted by a bodyguard. Again he ordered the clerk to read the bill; again Octavius stood forth, and barred all proceedings. A violent scene followed, and a riot seemed inevitable, when two senators, friends of Gracchus—one named Fulvius Flaccus—earnestly besought him to refer the whole matter to the senate. Gracchus consented. But his late impatient conduct had weakened whatever influence his name possessed in the great council, and his appearance was the signal for a burst of reproaches. He hastily left the house, and returning to the Forum gave out that on the next day of assembly he would for the third time propose his measure; and that, if Octavius persisted in opposition, he would move the people to depose their unfaithful tribune.

As the day approached, Gracchus made every effort to avoid this desperate necessity; but Octavius repelled every advance, and on the morning of the third assembly, Gracchus rose at once and moved that Octavius should be deprived of the trust which he had betrayed.

The country tribe, which obtained by lot the prerogative of voting first, was called, and its suffrage was unanimous for the deposition of Octavius; sixteen tribes followed in the same sense; the eighteenth would give a majority of the thirty-five, and its vote would determine the question. As this tribe came up to vote, Gracchus stopped the proceedings, and besought Octavius not to force on the irrevocable step. The tribune wavered; but he caught the eye of one of his rich friends, and turned coldly from Tiberius. Then the eighteenth tribe was called, and by its vote Octavius was in a moment stripped of his sacred office.^{[b](#)}

“These acts of Tiberius Gracchus,” says Beesly, “are commonly said to have been the beginning of revolution at Rome; and the guilt of it is accordingly laid at his door. And there can be no doubt that he was guilty in the sense that a man is guilty who introduces a light into some chamber filled with explosive vapour, which the stupidity or malice of others has suffered to accumulate. But, after all, too much is made of this violation of constitutional forms and the sanctity of the tribunate. The first were effete,

and all regular means of renovating the republic seemed to be closed to the despairing patriot, by stolid obstinacy sheltering itself under the garb of law and order. The second was no longer what it had been—the recognised refuge and defence of the poor. The rich, as Tiberius in effect argued, had found out how to use it also. If all men who set the example of forcible infringement of law are criminals, Gracchus was a criminal. But in the world's annals he sins in good company; and when men condemn him, they should condemn Washington also. Perhaps his failure has had most to do with his condemnation. Success justifies, failure condemns, most revolutions in most men's eyes. But if ever a revolution was excusable this was; for it was carried not by a small party for small aims, but by national acclamation, by the voices of Italians who flocked to Rome to vote. How far Gracchus saw the inevitable effects of his acts is open to dispute. But probably he saw it as clearly as any man can see the future. Because he was generous and enthusiastic, it is assumed that he was sentimental and weak, and that his policy was guided by impulse rather than reason. There seems little to sustain such a judgment other than the desire of writers to emphasise a comparison between him and his brother.”^c

The bill itself was then passed by acclamation, and three commissioners destined to execute its provisions were elected—Tiberius himself, his father-in-law App. Claudius, his brother Caius, then a youth of twenty, serving under Scipio in Spain. The law was not deemed safe unless it was intrusted for execution to Tiberius and his kinsmen.

In a few weeks Gracchus had risen to the summit of power. He seldom stirred from home without being followed by a crowd. The Numantian War and the Servile War still lingered, and the government of the senate was not in a condition to defy attack. That body now was thoroughly alarmed, and Gracchus soon proceeded to measures which touched them in their tenderest point. Attalus Philometor, king of Pergamus, the last of the line of Eumenes, was just dead, and had bequeathed his kingdom with all his lands and treasure to the Roman people. In ordinary times the senate would at once have assumed the disposition of this bequest; but Gracchus gave notice that he would propose a bill to enact that the moneys should be distributed to those who were to receive allotments of public land, in order to assist them in purchasing stock, in erecting farm buildings, and the like; and he added that he would bring the subject of its future government

before the people without allowing the senate to interfere. He thus openly announced a revolution.

When Gracchus next appeared in the senate house, he was accused of receiving a purple robe and diadem from the envoy of the late king of Pergamus. T. Annius, an old senator, who had been consul twenty years before, openly taxed the tribune with violating the constitution. Gracchus, stung to the quick by this last assault, indicted the old consular for treason against the majesty of the people. Annius appeared; but before Gracchus could speak, he said: "I suppose, if one of your brother tribunes offers to protect me, you will fly into a passion and depose him also." Gracchus saw the effect produced, and broke up the assembly.

Moreover, many of his well-wishers had been alarmed by a law, by which he had made the triumviri absolute judges, without appeal, on disputed questions with regard to property in land. Many allotments of public land had been granted, whose titles had been lost; and every person holding under such condition saw his property at the mercy of irresponsible judges.

Gracchus felt that his popularity was shaken, and at the next assembly he thought it necessary to make a set speech to vindicate his conduct in deposing Octavius. The sum of his arguments amounts to a plea of necessity. It is true that the constitution of Rome provided no remedy against the abuse of power by an officer, except the shortness of time during which he held office and his liability to indictment at the close of that time. The tribunician authority, originally demanded to protect the people, might have turned against the people. But was it not open to Gracchus to propose a law by which the veto of a single tribune might be limited in its effect? Or might he not have waited for the election of new tribunes, and taken care that all were tried friends of his law? Instead of this he preferred a *coup-d'état*, and thus set an example which was sure to be turned against himself.

[\[76\]](#)

The violent language of Nasica and his party made it plain that in the next year, when his person was no longer protected by the sanctity of the tribunician office, he would be vigorously assailed. He therefore determined to offer himself for re-election at the approaching assembly of the tribes. But his election was far from secure. Harvest-work occupied the country

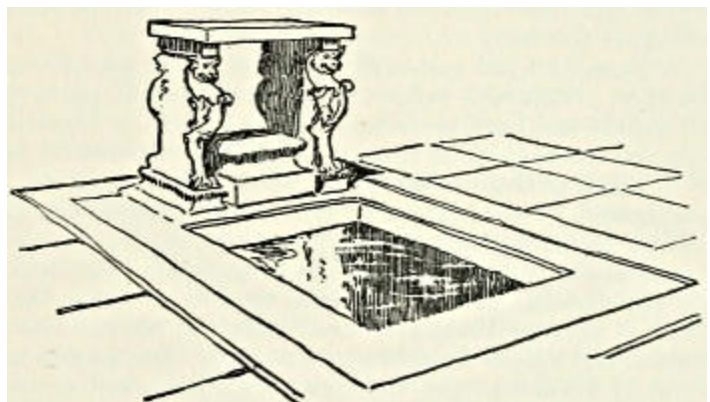
voters; many had grown cold; the mass of those who resided in the city were clients and dependents of the nobility. It was to regain and extend his popularity that he now brought forward three measures calculated to please all classes except the senatorial families. First, he proposed to diminish the necessary period of military service. Secondly, he announced a reform of the superior law courts, by which the juries were to be taken not from the senators only, but from all persons possessing a certain amount of property. Thirdly, he provided an appeal in all cases from the law courts to the assembly of the people.

These measures, which in altered forms were afterwards carried by his brother Caius, were only brought forward by Tiberius. But this was enough. His popularity returned in full tide.

When the day of the election came, the prerogative tribe gave its vote for Gracchus and his friends; so also the next. But it was objected that the same man could not be chosen in two successive years; and after a hot debate the assembly was adjourned till next day.

It wanted yet some hours of nightfall. Gracchus came forth into the Forum, clad in black, and leading his young son by the hand. In anticipation of his untimely end, he committed his precious charge to his fellow-citizens. All hearts were touched. The people surrounded him with eager gesticulations, and escorted him home, bidding him be of good cheer for the morrow. Many of his warmest adherents kept guard at his doors all night.^b

“The father’s affection and the statesman’s bitter dismay,” says Beesly, “at finding the dearest object of his life about to be snatched from him by violence need not have been tinged with one particle of personal fear. A man of tried bravery, like Gracchus, might guard his own life indeed, but only as he regarded it as indispensable to a great



ROMAN COURTYARD FOUNTAIN

cause. That evening he told his partisans he would give them a sign next day if he should think it necessary to use force at his election. It has been assumed that this proves he was meditating treason. But it proves no more than that he meant to repel force forcibly if, as was only too certain, force should be used, and this is not treason. No other course was open to him. The one weak spot in his policy was that he had no material strength at his back. Even Sulla would have been a lost man at a later time, if he had not had an army at hand to which he could flee for refuge, just as without the army Cromwell would have been powerless. But it was harvest-time now, and the Italian allies of Gracchus were away from home in the fields. The next day dawned, and with it occurred omens full of meaning to the superstitious Romans.”^c

The adjourned assembly met that morning upon the Capitol, and the area in front of the temple of Jupiter was filled chiefly by the adherents of Gracchus, among whom the tribune was himself conspicuous, in company with his Greek friend and preceptor Blossius of Cumæ. The senate also assembled hard by in the temple of Faith. Nasica rose and urged the presiding consul to stop the re-election. But Scævola declined.^[ZZ]

On this, Fulvius Flaccus left the senate, informed Gracchus of the speech of Nasica, and told him that his death was resolved upon. Then the friends of Gracchus girded up their gowns and armed themselves with staves, for the purpose of repelling force by force. In the midst of the uproar Gracchus raised his hand to his head. His enemies cried that he was asking for a crown. Exaggerated reports were carried into the senate house, and Nasica exclaimed, “The consul is betraying the republic: those who would save their country, follow me!” So saying, he drew the skirt of his gown over his head, after the manner used by the pontifex maximus in solemn acts of worship. A number of senators followed, and the people respectfully made way. But the nobles and their partisans broke up the benches that had been set out for the assembly, and began an assault upon the adherents of Gracchus, who fled in disorder. Gracchus abandoned all thoughts of resistance; he left his gown in the hands of a friend who sought to detain him, and made towards the temple of Jupiter. But the priests had closed the doors; and in his haste he stumbled over a bench and fell. As he was rising, one of his own colleagues struck him on the head with a stool; another claimed the honour of repeating the blow; and before the statues of the old

kings at the portico of the temple the tribune lay dead. Many of his adherents were slain with him; many were forced over the wall at the edge of the Tarpeian rock, and were killed by their fall. Not fewer than three hundred lost their lives in the fray.

Caius had just returned from Spain,^[78] and asked leave to bury his brother's corpse. This was refused. The triumphant party ordered the bodies of Tiberius and his friends to be thrown into the Tiber before morning. Thus flowed the first blood that was shed in civil strife at Rome.

Tiberius Gracchus must be allowed the name of Great, if greatness be measured by the effects produced upon society by the action of a single mind, rather than by the length of time during which power is held, or the success that follows upon bold enterprises. He held office not more than seven months; and in that short time he so shook the power of the senate, that it never entirely recovered from the blow. His nature was noble; his views and wishes those of a true patriot. But he was impatient of opposition, and by his abrupt and violent conduct provoked a resistance which he might have avoided. When the moment of action came, his temper was too gentle, or his will too irresolute, to take the bold course which his own conduct and that of the senate had rendered necessary.

When Scipio, in the camp before Numantia, heard of his kinsman's end, he exclaimed in the words of Homer:

“So perish all and every one who dares such deeds as he!”

But the sequel will show that it was not so much of the political measures of Gracchus that Scipio disapproved, as of the impatience which he had shown and the violence which he had used in carrying them. Such defects of character were of all most displeasing to a soldier and a stoic.

RETURN AND DEATH OF SCIPIO THE YOUNGER

[133-132 B.C.]

The struggle had now commenced between the oligarchy and the democracy. This struggle was to last till the dictator Sulla for a time restored the senate to sovereignty, which was wrested from them again by a dictator yet

more potent than Sulla. But we should be wrong to assume that the senate and the oligarchy were always identical. At times they were so, for at times the violent party among the nobles were in command of a majority in the senate; but a moderate party always existed, who stood between the nobility and the democracy. It was the violent party, headed by Nasica, not the body itself, which was responsible for the death of Gracchus. The senate did not support them.

The people were allowed to proceed quietly to the election of a new commissioner in the place of Gracchus, and their choice fell on P. Licinius Crassus, brother by blood of the consul Scævola, who had been adopted into the family of the Crassi. His daughter had lately been married to young Caius Gracchus, and he now became the acknowledged leader of the party.

Nor did the senate attempt to shield Nasica from popular indignation. He was branded as the murderer of Gracchus, and his friends advised him to quit Italy, though, as chief pontifex, he was prohibited from doing so. No long time after he died at Pergamus, and Crassus succeeded him in the pontificate.

But in the course of the next year (132 B.C.) the senate was induced to give the new consuls a commission to inquire into the conduct of those who had abetted Gracchus. They began their proceedings by associating with themselves C. Lælius, a man of known moderation. Before the inquiry commenced, Lælius sent for Blossius, and questioned him privately as to his part in the late disturbances. He excused himself on the ground that he had only followed the tribune's orders.

"That," said Lælius, "is no excuse. What would you have done if he had ordered you to set the Capitol on fire?"

"Gracchus," replied Blossius, "could never have given such an order."

"But if he had?" insisted Lælius.

"Then," said Blossius, "I would have done it."

This bold partisan, however, was suffered to escape. Diophanes of Mytilene, another of the preceptors of Gracchus, was arrested by the consuls and put to death. Others also lost their lives, and some escaped death by exile. These whole proceedings were in violation of the laws of

appeal; for the consuls had no legal power to try and condemn within the city.

It was not probably till the autumn of this year that Scipio celebrated his Numantian triumph. It was not gorgeous with spoils and a long train of captives, for the Numantians had buried themselves and their possessions beneath the ruins of their city. But the presence of Scipio, at this moment, was or might be pregnant with results; and as he passed in procession to the Capitol, many eyes turned to him with expectation. It might be thought that his approval of the death of Gracchus sufficiently indicated what part he intended to take. But it was possible for him to disapprove of the conduct of Gracchus without disapproving of his purpose. The countrymen of Latium and Italy had fought under him at Carthage and at Numantia. It was known that among the rest he had shown especial honour to a young soldier of Arpinum, of humble birth and rude manners. On one occasion he had invited this youth to supper, and placed him by his side; and when some flatterer asked where a general could be found to succeed him, "Perhaps here," he said, laying his hand on the young soldier's arm. This youth was C. Marius.

Whatever doubt might rest on Scipio's intentions, he soon made it clear that he had no intention of holding out a hand to the civic populace. One of the partisans of Gracchus, by name C. Papirius Carbo, a man of ready wit, but in character turbulent, reckless, and unprincipled, hoped to raise himself to importance by means of this rabble. He was tribune for the year, and had carried a law for extending the use of the ballot into the legislative assemblies of the people. He now brought forward another bill, making it legal to re-elect a tribune to a second year of office. Scipio and Lælius opposed the measure, and the former spoke so warmly against it, that it was rejected by the tribes, though young C. Gracchus made his first public speech in its favour. It was then that Carbo publicly demanded of Scipio what he thought of the death of Gracchus. "That he was rightly put to death," Scipio promptly replied. At these words an angry shout was raised. Scipio turned sternly to the quarter from which it came. "Peace," he said, "ye stepsons of Italy; remember who it was that brought you in chains to Rome."

[131-130 B.C.]

Early in the same year, however (131 B.C.), an incident occurred which also parted Scipio from

Crassus. The consuls for the year were Crassus himself and L. Valerius Flaccus. The former was pontifex maximus, the latter was flamen of Mars. It happened that one Aristonicus, a bastard son of the last Eumenes, had raised an insurrection in the mountain districts near Pergamus, and matters had become so serious that a consular army was required. Both consuls were eager for command; but by reason of their sacred offices they were both legally unable to leave Italy, and Scipio's tried skill in war pointed him out as the fittest man for command. Yet such was the popularity of Crassus, that out of thirty-five tribes, two only voted for Scipio and the rest for him. Considering a vote of the people as superior to the law, he completed his levies and set out for Pergamus, never to return. Scipio retired from Rome in disgust.

In this same year the censorship was held by Q. Metellus and Q. Pompeius—an event noted by all the historians as memorable, since now for the first time two men of plebeian blood were elected to the most august magistracy of the state. It is rather matter of wonder that an artificial distinction, which for all practical purposes was obsolete, should have been so long retained in the censorship, than that it should now have ceased.

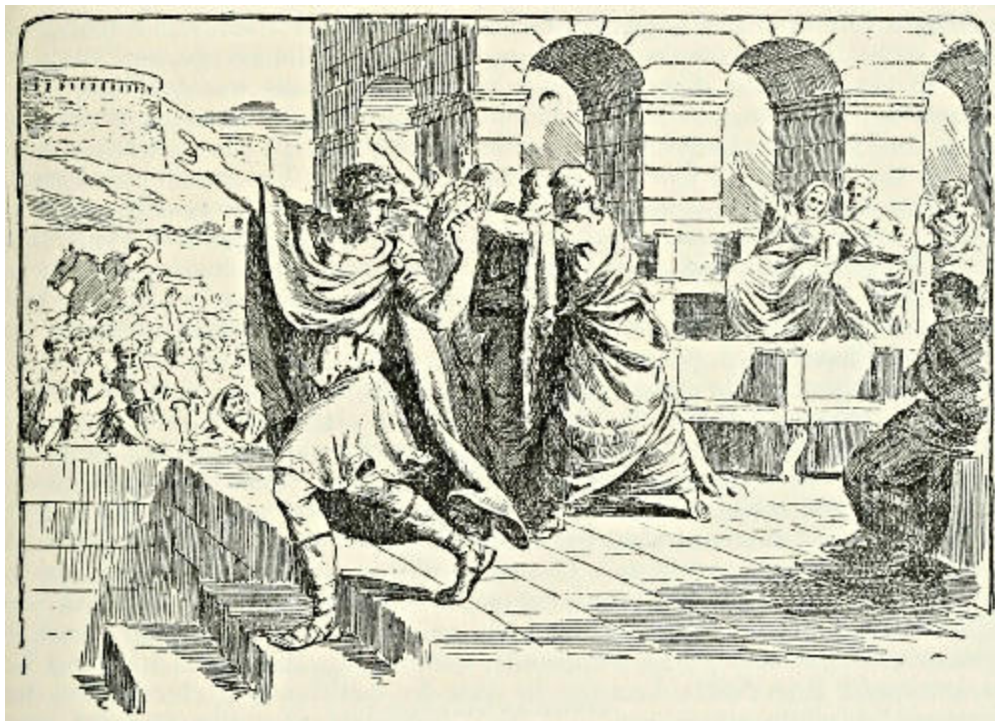
If Crassus had returned, he might have taken more active steps to diminish the violence which the democratic leaders were beginning to encourage. But early in the year 130 B.C. he was defeated by Aristonicus in a pitched battle, and taken prisoner. The Roman statesman and jurist, deeming slavery intolerable, purposely struck the barbarian who had captured him in the face with his sword-belt, and was instantly cut down. His head was carried to Aristonicus, his body interred at Smyrna.

About the same time died App. Claudius. The natural leader of the Gracchan party would now have been C. Gracchus. But this young man had withdrawn from public life at the advice of his mother Cornelia. Consequently fresh power fell into the hands of the reckless Carbo, who was supported by Fulvius Flaccus; and the whole character of the party became more positively democratic.

These leaders sought to recover their popularity with the country tribes by calling the Agrarian law into fresh life. Of the three commissioners elected for the year C. Gracchus still appeared on the list; the vacancies

made by the deaths of Crassus and App. Claudius were filled by Carbo and Flaccus.

The rich landholders had endeavoured to baffle the law by passive resistance. To foil this policy, Carbo and his colleagues issued a proclamation, calling for information against all who had not duly registered themselves as holders of public land. The call was readily obeyed, and the triumvirs were soon overburdened with names. The next step was to decide on the rights of the present holders, and to determine the boundaries between the private and the public lands in each estate. This was a task of extreme delicacy, and here the loss of Crassus was sensibly felt. The ignorant and reckless Carbo raised up a host of formidable opponents.



SCIPIO LEAVING ROME

[130-129 B.C.]

Portions of the public land had often been alienated by grant or sale. The holders were now, in consequence of Carbo's proclamation, suddenly called upon to produce their title deeds, which in many cases were missing; so that a vast number of these holders were liable to be stripped of lands which were undoubtedly their own. Further, in cases where persons held property partly public and partly private, there were often no documents to

show which part was public and which private. The commissioners acted in the most arbitrary way, and exasperated a vast number of persons throughout all Italy; and thus a new popular party was called forth, which exercised a most important influence on the events of the next fifty years. In Carbo's rash haste to win the Roman countrymen he recked not of the hostility of Latins and Italians; and those who had lately worshipped Gracchus now rose like one man to oppose those who now pretended to represent Gracchus.

These new opponents of the Agrarian law had no mind to join the Roman oligarchs, but turned to Scipio and supplicated him to undertake their cause. They had claims upon him, for they had volunteered to fill his army when the senate had no money to give him, and he had always manifested sympathy with them. Averse as he was from party politics, he did not shrink from the task, and the moderate party in the senate welcomed his return. He began by moving that a decree should issue for withdrawing from the triumvirs the judicial power with which they had been invested by Gracchus, and transferring the jurisdiction to the consuls. The decree passed, and the task was committed to C. Sempronius Tuditanus, a man of refined taste, fonder of art and literature than of business. But news came of a movement among the Iapydes, a people on the Illyrian frontier; and Tuditanus eagerly seized this excuse for hastening to Aquileia, feeling confident that he could better cope with barbarous enemies than with the more barbarous perplexities of the law.

[129 B.C.]

All proceedings were thus cut short. The senate had taken away jurisdiction from the triumvirs; the consul to whom it was committed had fled. General discontent arose. Scipio was accused of having betrayed Roman interests to the Italians. His enemies spread reports that he had sold himself to the oligarchy, that he intended to repeal the Sempronian law by force, and let loose his Italian soldiery upon the people of Rome.

Scipio felt that it was necessary to explain his motives, and announced his purpose of delivering set speeches, one day in the senate, and the day after in the Forum. The first only of these purposes was fulfilled. By his speech in the senate he pledged himself to maintain the rights of the Latins and Italians against the triumvirs, and to prevent the unjust resumption of the lands that had been granted to them. The senate loudly applauded; and

Scipio was escorted home by the mass of the senators with a jubilant crowd of Italians. Many thought this the most glorious day of his life. He retired to rest early, in good health. In the morning he was found dead in his bed. By his side lay the tablets on which he had been noting down the heads of the oration which he had intended to make next day.

The death of Scipio struck consternation into the hearts of the senators. Metullus exclaimed that he had been murdered. It is said that on the neck marks as of strangulation appeared; and when he was carried out to burial the head was covered, contrary to custom. At the moment suspicion attached to C. Gracchus, and to his sister Sempronia, the wife of Scipio. But these unfounded rumours soon passed over; and it was confidently affirmed that Carbo was the murderer. Cicero speaks of it as an undoubted fact; the character, as well as the subsequent history, of the man justifies the belief.^b Appian,^g on the other hand, is non-committal, mentioning rumours against Cornelia as well as Sempronia, and adding that “some believe he gave himself this death, because he saw he could not perform what he promised”; while others assert “that Scipio’s slaves under torment confessed that some unknown men they had let in at the back door had strangled him, and that they dared not disclose the murder, because they knew that the people, hating Scipio, rejoiced at his death.” Of modern authorities, George Long^d thinks “the circumstances of Scipio’s death were suspicious.” But he doubts even that Cicero believed his own charge against Carbo; and adds “the conclusion should be that Scipio died a natural death.” Ihne^f says: “After a minute and careful examination of the circumstances, there appears to be no reason to doubt that Scipio’s death was natural.” This, however, is perhaps stating the case a little too strongly. Whatever the balance of probability, it can never be proven conclusively whether Scipio died naturally or by violence: in the minds of some investigators, the question will always hold a place in the long list of historical uncertainties.^a

Thus died the younger Africanus. No public honours attested his public services. The funeral feast was furnished in the most thrifty manner by his nephew Q. Tubero, a rigid stoic, who was glad thus to remind the people of their ingratitude.

Scipio possessed no lofty genius like the great man whose name he bore; yet there was at Rome no one of his own time to be compared with him. To

say that he was the best general of the day is little praise, for military talent was at that time scarce; but no doubt his abilities for war would have won him glory in the best times of the republic. His disinterested generosity has been already noticed; at his death he was found to be no richer than when he succeeded to the inheritance of the great Scipio. His love of the country and his habitual reserve led him to shun public life. But the austere manner and severe gravity which he commonly affected gave way among his friends; and there is nothing that more raises our esteem for Scipio than the warm attachment borne to him by such men as Polybius, as well as Lælius, Rupilius, and others, whom Cicero has introduced into his beautiful dialogues. Scipio has usually been represented as a stiff adherent of the oligarchy, but the facts of history disprove this opinion. He might have lived some years to moderate the fury of party strife, to awe the factious, and to support just claims; for at his death he numbered no more than six-and-fifty years. His death at this moment was perhaps the greatest loss that the republic could have suffered.^b

The general verdict on Scipio is laudatory. Even George Long,^d who ridicules the usual historical summing-up of great men, finds Scipio worthy of much praise, but Beesly is of such contrary mind that he may well be quoted:

“He is usually extolled as a patriot who would not stir to humour a Roman rabble, but who, when downtrodden honest farmers, his comrades in the wars, appealed to him, at once stepped into the arena as their champion. In reality he was a reactionist who, when the inevitable results of those liberal ideas which had been broached in his own circle stared him in the face, seized the first available means of stifling them. The world had moved too fast for him. As censor, instead of beseeching the gods to increase the glory of the State, he begged them to preserve it. Brave as a man, he was a pusillanimous statesman. It was well for his reputation that he died just then. Without Sulla’s personal vices he might have played Sulla’s part as a politician, and his atrocities in Spain as well as his remark on the death of Tiberius Gracchus—words breathing the very essence of a narrow swordman’s nature—showed that from bloodshed at all events he would not have shrunk. It is hard to respect such a man in spite of all his good qualities. Fortune gave him the opportunity of playing a great part, and he shrank from it. When the crop sprang up which he had himself helped to

sow, he blighted it. But because he was personally respectable, and because he held a middle course between contemporary parties, he has found favour with historians, who are too apt to forget that there is in politics, as in other things, a right course and a wrong, and that to attempt to walk along both at once proves a man to be a weak statesman, and does not prove him to be a great or good man.”^c

CAIUS GRACCHUS AND HIS TIMES

[129-126 B.C.]

The sudden death of Scipio was followed by a calm. The turbulent Carbo vanishes from the scene, till nine years later he reappears as a champion of the violent oligarchical party. C. Gracchus was still living in retirement. Fulvius Flaccus was content to let the Agrarian law sleep in face of the portentous difficulties created by the measures of the triumvirs. Nor was there anything in foreign affairs to ruffle the general calm. But under this external tranquillity a leaven of agitation was at work. It was not to be expected that the new-born jealousy which had sprung up between the Romans on the one side and the Latins and Italians on the other, would fall asleep. Proposals, however, were set afloat for reconciling these two opposing interests. The Italians were led to hope that they might be made citizens of Rome, on condition that they should not resist the execution of the Agrarian law.

But the burgesses of Rome soon perceived that the admission of the Latins and Italians to the Roman franchise would reduce them to comparative insignificance. All the benefits now derived from the provinces by Romans exclusively must then be shared with a vastly increased number of citizens, and the profits as well as the power of a Roman must be materially diminished. In the year 126 B.C. a large number of Italian strangers flocked to Rome, eager for the promised boon. But by this time public opinion at Rome was so far changed that M. Junius Pennus, one of the tribunes, brought forward what we may call a severe alien-act, by which all strangers were compelled to quit Rome. The successors of Gracchus, however, remained constant to their new policy, and Caius himself was induced to speak in public for the second time. But he was unsuccessful. The law of Pennus was passed; and from this time may be dated that angry

contest of feeling between the Romans and the Italians which after thirty-eight years found vent in a bloody war.

When Caius delivered this speech he was quæstor-elect for the next year. He was appointed to serve under the consul L. Aurelius Orestes, when this officer undertook to reduce the Sardinian mountaineers, who had been subjugated by the father of young Gracchus fifty years before. After the first year's operations Orestes was at a loss for supplies and clothing; and from this difficulty he was relieved by his quæstor, who by the memory of his father and his own persuasive eloquence induced the Sardinian colonists to give voluntarily what the soldiers wanted. Shortly after, envoys arrived at Rome from Micipsa, son of Masinissa, offering, from respect (as they said) for the name of Gracchus, to send supplies of corn to Sardinia. The senate angrily dismissed the embassy. Orestes was directed to remain as proconsul in his province, and his quæstor was ordered to continue in office for a second year.

[126-123 B.C.]

Meanwhile the country party had succeeded in carrying the election of their present chief, Fulvius Flaccus, to the consulship for 125 B.C. He was a man with little force of oratory, but his activity and audacity gave him power, and his unchangeable attachment to the memory of Ti. Gracchus made him respectable. No sooner was he in the consul's chair than he gave full proof of his headlong temerity by giving notice of a bill for extending the franchise to all the Latin and Italian allies. It was a reform bill sweeping beyond all example. No addition had been made to the Roman territory or the number of tribes since 241 B.C., a period of 116 years, and now at one stroke it was proposed to add to the register a population much more numerous than the whole existing number of Roman burgesses. The tribes felt their interests to be at stake, and the measure of Flaccus was highly unpopular at Rome.

At this moment, the senate adroitly contrived to detach Flaccus upon foreign service. The people of Massilia, old allies of Rome, sent to demand protection against the Salluvians, a Ligurian tribe of the Maritime Alps, and Flaccus was ordered to take command of the army destined to relieve them. He remained in Gaul for more than two years, and was honoured with a triumph in the year 123 B.C. Meantime his great measure for extending the franchise fell to the ground.

But the hopes excited by the impetuous consul were not easily relinquished. The excitement was great throughout Italy, and in one of the Latin colonies the smouldering fire burst into flame.

Fregellæ was a large and flourishing city on the Latin road. It was one of the eighteen colonies which had remained faithful to Rome in the Hannibalic War. It had seen the full franchise conferred on its neighbours at Formiæ, Fundi, and Arpinum at the close of that war. And now the cup was dashed from the very lip. Fregellæ flew to arms, without concert with any other towns; and L. Opimius, one of the prætors, a man of prompt resolution and devoid of pity, was ordered by the senate to crush the insurrection. The gates were opened to him by treachery. Opimius took his seat in the Forum, and exercised a fearful vengeance on the inhabitants, for which he was rewarded by the senate with a triumph. The walls were pulled down, and the colony, stripped of all its rights, was reduced to the condition of a mere market-town (*conciliabulum*). The example of Fregellæ for a time silenced the claims of the Italians.

Thus triumphant, the senate determined to keep the chiefs of the Gracchan party absent from Rome. Flaccus had not yet finished his Gallic wars; and an order was sent to detain C. Gracchus for a third year in Sardinia. But the young quæstor perceived the drift of this order, and returned to Rome about the middle of the year 124 B.C., to the no small consternation of the senate. He was instantly summoned before the censors then in office to account for his conduct, in order that he might be branded with a public stigma, and thus disqualified from taking his seat in the senate house. He made his defence to the people in a set speech, in which he declared that the senate had no right to keep him employed as quæstor for more than one year. "No one," he added, "can say that I have received a penny in presents, or have put any one to charges on my own account. The purse which I took out full I have brought back empty; though I could name persons who took out casks filled with wine and brought them home charged with money." He was triumphantly acquitted, and at once came forward as candidate for the tribunate. The senate exerted all their influence to prevent his election, and succeeded so far that his name stood only fourth on the list. But as soon as he entered office, no one disputed his title to be first.

[123 B.C.]

The die was now cast. For ten years he had held back from public life; but the vexatious course pursued by the senate roused him to action; the pent-up energy of his passionate nature burst forth, and he threw aside all restraints both of fear and of prudence.

Hitherto there had been no proof of the young speaker's powers. Twice only had he spoken in public, and both times he had been on the losing side. But years of diligent study had passed, and he became the greatest orator that Rome had yet seen. Much as Cicero disliked Gracchus, he speaks with lively admiration of his genius, and laments the loss which Latin literature had sustained by his early death. The care which the young orator bestowed on preparation was extraordinary; he was the first to use regular gesticulation, and in his most fiery outbursts his voice was so modulated as never to offend the ear.

His first measures are marked by that which was the ruling passion of his life—a burning desire to avenge his brother's death. Nasica was beyond his reach. But others, who had persecuted the friends and followers of Tiberius, were yet alive, and he inveighed against their cruel severity on all occasions. "Your ancestors," he exclaimed, "suffered not their tribunes to be trampled down. But you—you let these men beat Tiberius to death, and murder his friends without a trial!"

Accordingly he brought a bill aimed at Popilius, who had been the head of the special commission appointed after the death of Tiberius. It declared any magistrate guilty of treason who had punished a citizen capitally without the consent of the people. Before it passed, Popilius left Rome; and the tribes, on the motion of Caius, banished him.

The young tribune next moved that any one who should have been deprived of office by a vote of the people should be incapable of holding any other office—an enactment evidently pointed at his brother's old opponent Octavius. Fortunately for the honour of Gracchus, he was stopped in his career of vengeance by the intercession of his mother.

He now turned his thoughts to measures of a public nature, and brought forward a series of important bills, long known as the Sempronian laws, so sweeping in their design, as to show that he meditated no less than a revolution in the government of Rome. They may be divided into two

classes: first, those which were intended to ameliorate the condition of the people; secondly, those which aimed at diminishing the power of the senate.

(1) Foremost in the first class we may place a bill for renewing and extending the agrarian law of his brother, which was coupled with a measure for planting new colonies in divers parts of Italy, and even in the provinces. The execution of this law was deferred till the next year.

(2) The second Sempronian law was the famous measure by which the state undertook to furnish corn at a low price to all Roman citizens. It provided that any one possessing the Roman franchise should be allowed to purchase grain from public stores at $6\frac{1}{3}$ asses the modius, or about twenty-five asses the bushel; the losses being borne by the treasury.

Public measures for distributing corn in times of scarcity had long been familiar to Roman statesmen, and individuals had more than once sought popularity by doles to the poor. But now, for the first time, was a right established by law. The necessary results of such a measure must have been, and were, very fatal. Fifty years later, it was found necessary to limit the quantity sold to five modii ($1\frac{1}{4}$ bushels) a month for each person; and forty thousand citizens were habitual purchasers. Successively demagogues reduced the price, till the profligate Clodius enacted that these $1\frac{1}{4}$ bushels should be given away without any payment. The dictator Cæsar found no fewer than 320,000 citizens in the monthly receipt of this dole. He reduced the number to 150,000, and Augustus fixed it at a maximum of 200,000 souls. Such was the mass of paupers saddled upon the imperial government by the unwise law of Gracchus. ^[79]

We now pass on to the measures which aimed at depriving the senate of the great administrative power which of late years it had engrossed.

(1) The first of these touched their judicial power. It has been mentioned that by the famous Calpurnian law (149 B.C.) all provincial magistrates accused of corrupt dealings in their government were to be tried before the prætor peregrinus as presiding judge, and a jury of senators. This was the first regular and permanent court of justice established at Rome. The principle of the Calpurnian law was gradually extended to other grave offences, and in all the superior courts the juries were composed of senators.

These courts had given little satisfaction. In all important cases of corruption, especially such as occurred in the provinces, the offenders were themselves senators. Some of the judges had been guilty of like offences, others hoped for opportunities of committing like offences; extortion was looked upon as a venial crime; prosecutions became a trial of party strength, and the culprit was usually absolved.

Gracchus now took the judicial power altogether out of the hands of the senate, and transferred it to a body of three hundred persons, to be chosen periodically from all citizens who possessed the equestrian rate of property. By this measure he smote the senate with a two-edged sword. For not only did he deprive it of the means of shielding its own members, but he also gave a political constitution to a rival order. The equestrian order, as a political body, entirely distinct from a mere military class, now first received distinct recognition.

It is doubtful whether this measure of reform was followed by the good effects intended by Gracchus. If the governors of provinces were senators, the farmers of the taxes were equites. The new juries had their personal reasons for acquitting corrupt magistrates; for without the countenance of these magistrates they could not demand money from the provincials beyond what was strictly legal. The constitution of these juries formed a chief ground of political contest for the next fifty years.

(2) Another measure which fettered the power and patronage of the senate was the Sempronian law for the assignment of the consular provinces. Hitherto the senate had refrained from determining these provinces till after the elections, and they thus had a ready way of marking displeasure by allotting unprofitable governments to consuls whom they disliked. But Gracchus now ordained that the two consular provinces should be fixed before the elections, and that the new consuls, immediately upon their election, should settle between themselves what provinces each was to administer, either by lot or by agreement (*sortitio* or *comparatio*). It was a wise and equitable provision, which remained in force as long as the republic lasted.

(3) A great blow was given to senatorial power by a measure for improving the roads of Italy. Public works of all kinds had hitherto been left

to the censors, subject to the approval of the senate. Gracchus now transferred the business to the tribunes.

This account of the chief Sempronian laws shows the spirit which animated Gracchus. It is plain that his main purpose was to diminish the increased and increasing power of the senate. It was no doubt a confusion between the purposes and the results of the Sempronian legislation that swelled the cry against Gracchus in after-times. It is clear, however, that he had no chance of amending the corrupt government of the senatorial oligarchy, unless he first weakened their power; and if he fancied that administrative functions might safely be controlled by a large and fluctuating popular assembly, something may be forgiven to political inexperience. Representative bodies are a modern invention, and the wisest of the ancients found no halting-place between aristocracy and democracy. Gracchus was not without misgivings as to the effects of his legislation. But it was too late to draw back, and his zeal was quickened by the return of Fulvius Flaccus from Gaul. By his measures Gracchus had so won all suffrages, that he and his friend Flaccus were absolute masters of the comitia. Gracchus told the people he had a favour to ask; he proposed as candidate for the consulship C. Fannius, an old comrade of his brother. Fannius was elected as a matter of course, to the rejection of L. Opimius, the senatorial candidate.

[123-121 B.C.]

The tribunician elections followed. Flaccus, though he had been consul, appeared as candidate for an office that had been raised by the Gracchi to sovereign power. But Gracchus was not by his side; for it had been made illegal that the same man should be re-elected tribune. However, there were not candidates enough for the ten places; and the people, exercising the absolute right of choice which in this contingency was allowed, re-elected Gracchus by a unanimous vote.^[80] Not more than seven months of his first year's tribunate were over, and he was secure of power for the next seventeen months at least. He now put forth all the tremendous power of the office. The senate sat powerless, and Caius Gracchus became for a time the virtual sovereign of the empire.

Immediately on re-election, Gracchus came forward with a bill for extending the Roman franchise, certainly to the citizens of all Latin colonies, probably to all free Italian communities. Here we recognise the

hand of Flaccus, who had in his consulship raised this momentous question, and resumed the project on the first opportunity after his return.



A TRIBUNE OF THE PEOPLE

There can be no doubt that some change in this direction was necessary. The admission of the Latins and Italians to full citizenship would infuse a quantity of new blood into the decaying frame of the Roman people; and, by extending to all Italians the benefits of the agrarian law, there was really a good hope of reviving that hardy race of yeomen who were regretted by all Roman statesmen. Scipio had induced the senate for a moment to take up this cause; but after the revolt of Fregellæ, all thoughts of an extension of the franchise had been dropped. The difficulty was how to favour the Italians without provoking the Roman tribesmen. It is manifest that the project was still unpopular in the Forum, for Gracchus laboured to show that the Roman people and the Italians had one grievance in common—namely, the tyranny of the senatorial oligarchy. “The other day,” he told them, “the magistrates of Teanum had been stripped naked and scourged, because the consul’s lady complained that the public baths there had not been properly cleaned for her use. How great is the insolence of the young nobles, a single example would show. One of them was travelling through Apulia in a litter, and a countryman, meeting the bearers, asked whether they had got a dead man inside. For this word, the young lord ordered the poor man to be beaten to death with the cords of the litter.”

The chiefs of the senate perceived that the proposal to enfranchise the Italians had sapped his popularity at Rome. The consul Fannius, notwithstanding the part Gracchus had taken in his election, vehemently opposed the measure. He declared that he would again bring forward the alien act of Pennus, and expel all foreigners from Rome. The senate soon after ventured a step farther. One of the new tribunes, M. Livius Drusus by name, a young man of high birth, rich, eloquent, ambitious and determined,

undertook to thwart the progress of his great colleague, and he put a veto on the law for enfranchising the Latins.

We must now return to the agrarian law. In furtherance of this law, Caius proposed to plant colonies in divers parts of Italy; Capua and Tarentum were fixed upon as the first of these new settlements: but here he showed no democratic tendencies; for no allotments were given to citizens, however poor, unless their character was respectable; and only a small number of colonists were to be sent to each place.

Drusus was not slow to take advantage of these unpopular provisions. He resolved to outbid Gracchus, and the agent of the nobility became a demagogue. He proposed to found no fewer than twelve colonies at once, each to consist of three thousand families, to be chosen without respect to character. All these colonists were to hold their allotments rent-free. Drusus openly avowed that he made these propositions in favour of the poor on the part of the senate, and declared in significant terms that he would not himself accept any part in the honour or emolument to be derived from the office of founding these colonies; whereas Gracchus had himself superintended all the public works which he had originated.

At this time, plans were on foot for extending the Italian system of colonisation to the provinces. In this very year, C. Sextius Calvinus, who had succeeded Flaccus as proconsul in Gaul, founded the town of Aquæ Sextiæ, still called Aix, in southern Gaul; four years later Narbo Martius, or Narbonne, was planted farther westward in the same country. But Gracchus himself was the first who had proposed to plant a colony beyond the Italian peninsula; and the place he fixed upon was Carthage. The plan was taken up by the senate. The new colony was to be called Junonia, and it was dexterously contrived that Gracchus himself, with Flaccus and another, should be the commissioners for distributing the lands and marking the limits of the settlement. In this way the formidable tribune and his most active supporter were obliged to quit Rome just when their presence was most needed to revive their drooping popularity.

The commissioners applied themselves to their task with so much assiduity that they returned to Rome in time for the consular elections. The ruthless Opimius was again candidate, and Gracchus exerted himself to the utmost to reorganise his party, but in vain. Popular feeling was strongly

marked by the triumphant election of Opimius to the consulship, in company with Q. Fabius, son of Scipio's elder brother, a man personally hostile to Gracchus.

The tribunician elections followed, and were equally significant of the temper of the people. Neither Gracchus nor Flaccus was re-elected. The remainder of the year indeed passed by quietly. But at the beginning of the year 121 B.C. Opimius became consul, and it was evident that danger was at hand.

[121 B.C.]

Gracchus and his friends prudently refrained from all offensive steps; but as he would give no grounds for proceeding against him, Opimius resolved to make them. News arrived from the new colony at Carthage to the effect that it had been planted on the ground cursed by Scipio; the wrath of the gods had been shown by the fact that wolves had torn down the boundary-posts. The senate met, and on the motion of Opimius ordered the tribunes to call a meeting of the tribes upon the Capitol, to rescind the law for colonising Carthage. The place was ominous, for there Ti. Gracchus had been slain.

On the appointed morning the impetuous Flaccus appeared with a large retinue armed with daggers. Gracchus followed with a considerable suite. Flaccus spoke vehemently to the tribes, while Gracchus stood aloof in the portico of the temple, in which Opimius was offering sacrifice. Here he was encountered by a retainer of the consul, who insolently pushed Gracchus aside, crying, "Make way for honest men!" Gracchus cast an angry look upon the man, who presently fell stabbed to the heart by an unknown hand. A cry of murder was raised, and the crowd fled in alarm to the Forum. Gracchus retired to his house, regretting the rash imprudence of his followers. Meantime the body of the slain man was paraded before the eyes of the terrified people. The senate armed the consuls with a decree, by which Gracchus was proclaimed a public enemy, and Opimius took station during the night in the temple of Castor, by the side of the Forum. He summoned the senate to a special sitting early next morning, and also sent to all on whom he could rely, desiring them to come armed to the Forum, and each man to bring two armed slaves. With this force he occupied the Capitol at daybreak, and prepared to execute the will of the senate.

Gracchus was irresolute; but Flaccus summoned to his house all who were ready to resist senatorial authority. Here he armed them with the Celtic weapons which he had brought home from his Gallic campaigns, and kept up their courage by deep potations of wine. Early in the morning he occupied a strong position on the Aventine, where he was joined by Gracchus, who sighed over the necessity of using force.

When the senate met, the popular leaders were summoned to attend in their places, and explain the proceedings of the previous day. They answered by proclaiming liberty to all slaves who should join them. Nothing could more show the desperate aspect which the struggle had assumed. Yet before blood flowed, Gracchus insisted on trying negotiation, and Q. Flaccus, a handsome youth of eighteen, son of the ex-tribune, was sent. But already the senate had invested Opimius with dictatorial power. The only answer the consul returned was that the leaders must appear before the senate, and explain their conduct; and when young Quintus came back with a fresh message, Opimius arrested him. He now set a price on the heads of Gracchus and Fulvius Flaccus, and ordered an immediate attack upon the Aventine. Under arms appeared the noblest men at Rome, P. Lentulus, chief of the senate, old Metellus Macedonicus, and many others. For their leader they chose not the consul, but L. Junius Brutus, the Spanish conqueror. The attack was opened under cover of a shower of arrows from a body of Cretan bowmen. Little or no resistance was offered. Flaccus fled with his eldest son. Gracchus retired into the temple of Diana, where he was hardly prevented from putting an end to his own life by two faithful friends, the knights Pomponius and Lætorius. Urged by them to flee, he threw himself on his knees, and prayed the goddess to punish the unworthy people of Rome by everlasting slavery. All three then took their way down to the Porta Trigemina, hotly pursued. Pomponius made a stand in the gateway to cover his friend's escape across the Sublician bridge, and fell pierced with many wounds. Lætorius showed no less devotion by gallantly turning to bay upon the bridge till he knew that Gracchus was safe over, when he sprang into the river and perished. Gracchus with a single slave reached the Grove of the Furies, and here both were found dead. The faithful slave had first held the sword to his master's heart, and then fallen upon it himself. One Septimuleius cut off the head of Gracchus, and was rewarded by the fierce Opimius with its weight in gold. [\[81\]](#)

Flaccus and his eldest son had found shelter in the bath-house of a friend. The consul's myrmidons tracked them, and threatened to set fire to the house. The owner, alarmed for his property, allowed another to disclose the secret, though he did not choose to speak the word himself. They were dragged forth and slain with every mark of indignity. The handsome youth who had been arrested before the assault commenced was allowed to put himself to death.

Great numbers of the partisans of Gracchus were thrown into prison, and put to death without trial. The stream of Tiber flowed thick with corpses. The inconstant mob plundered their houses without molestation. The widows and friends of the slain were forbidden by consular edict to wear mourning. When the bloody work was done, the city was purged by a formal lustration; and the consul, by order of the senate, laid the foundations of a temple of Concord. Under the inscription placed on it by Optimus was found next morning another to this effect:

“Workers of Discord raise a shrine to Concord.”

But none dared openly to avow themselves friends of the Gracchi. The son of Caius died soon after; and except Sempronia, the widow of Scipio, none of the race remained. Cornelia retired to Misenum, where she lived for many years, not so much sorrowing for the loss of her sons as dwelling with delight on the memory of their acts. Many visited her in retirement, chiefly learned Greeks, to hear the story of the bold reformers. Calmly and loftily she told the tale, declaring that her sons had found worthy graves in the temples of the gods. In after days her statue in bronze was set up in the Forum, with the Greek sandals on her feet which had been made a reproach to her illustrious father. Beneath it were placed these words only: To Cornelia, the Mother of the Gracchi.^b

To quote again from Beesly's^c acute summing-up of Caius Gracchus.

“The man who originates is always so far greater than the man who imitates, and Caius only followed where his brother led. The very dream which Caius told to the people shows that his brother's spell was still on him, and his telling it, together with his impetuous oratory and his avowed fatalism, militates against the theory that Tiberius was swayed by impulse and sentiment, and he by calculation and reason. But no doubt he profited by experience of the past. He had learned how to bide his time, and to think generosity wasted on the murderous crew whom he had sworn to punish. Pure in life, perfectly prepared for a death to which he considered himself foredoomed, glowing with one fervent passion, he took up his brother's cause with a double portion of his brother's spirit, because he had thought more before action, because he had greater natural eloquence, and because being forewarned he was forearmed.

“In spite of the labours of recent historians, the legislation of Caius Gracchus is still hard to understand. Where the original authorities contradict each other, as they often do, probable conjecture is the most which can be attained, and no attempt will be made here to specify what were the measures of the first tribunate of Caius and what of the second. The general scope and tendency of his legislation is clear enough. It was to overthrow the senatorial government, and in the new government to give

the chief share of the executive power to the mercantile class, and the chief share of the legislative power to Italians. These were his immediate aims. Probably he meant to keep all the strings he thus set in motion in his own hands, so as to be practically monarch of Rome. But whether he definitely conceived the idea of monarchy, and, looking beyond his own requirements, pictured to himself a successor at some future time inheriting the authority which he had established, no one can say. In such vast schemes there must have been much that was merely tentative. But had he lived and retained his influence we may be sure that the Empire would have been established a century earlier than it was.”^c

George Long^d says: “We may acquit the Gracchi of the Roman vice of greediness, but not of ill-directed ambition. Their object was not to enrich themselves, but to destroy the power of the Optimates by rousing against them the people, and using their votes to make a revolution. But this popular agitation increased an evil which already existed. The Gracchi used the popular vote for their purpose, as the nobles had long used it for their ends. Under the name of the public interest men on both sides sought their own.”

FOOTNOTES

[74] [The number of sons qualified to hold public property was two.]

[75] [George Long^d defends their authenticity, saying: “The critics whose eyes are so sharp that they cannot see what is before them and see what is not, tell us that these fragments are rhetorical inventions. Now Gracchus’ speeches were read in Cicero’s time and later; and it is as reasonable to suppose that Appian and Plutarch used these speeches, as to suppose that they invented speeches or copied from those who invented them. The speeches are like genuine stuff.”]

[76] [The difficulty in the way of the first alternative here suggested is that in all probability Octavius would have vetoed any proposal for reform. The second alternative was impracticable because Tiberius was constitutionally ineligible to re-election. It is doubtful whether any constitutional means of reform existed.]

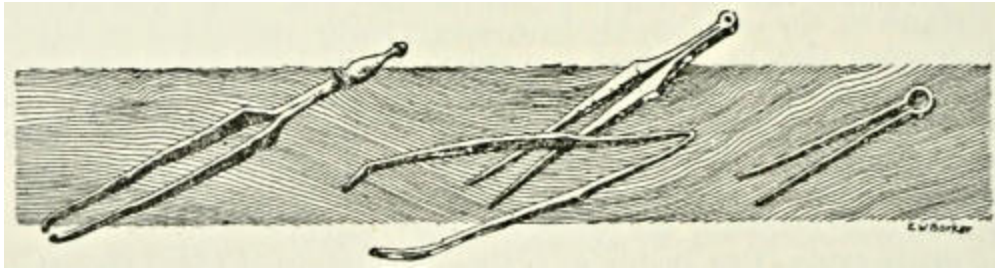
[77] Piso, the other consul, was employed in extinguishing the Slave War in Sicily.

[78] [George Long^d doubts this, saying that Caius was still in Spain.]

[79] [It is now generally agreed that various classes of poor people should be supported by the government; the question is whether the Romans were wise in supporting so many and in such a way.]

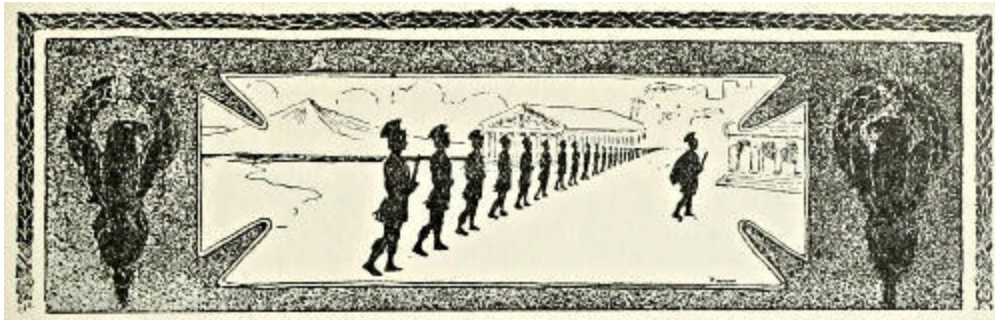
[80] [Appian,^g the authority for this matter, more probably means that before the tribuneship of Caius a law had been passed permitting the re-election of a tribune in case of a lack of candidates.]

[81] ["This," says Long,^d "is the first instance in Roman history of head-money being offered and paid, but it was not the last."]



ROMAN TWEEZERS

(In the British Museum)



CHAPTER XVI. THE JUGURTHINE AND OTHER WARS

[123-112 B.C.]

The cruel times which followed made the best men of both parties regret the untimely end of those who had sacrificed wealth, rank, tranquillity, in the hope of reforming the state by peaceful methods. But Marius was not the worst of the successors of the Gracchi. So savage were the party quarrels which followed, that good men shrank in despair from the cause of reform, and the conduct of the popular party was abandoned to needy demagogues. Such is the common course of revolutions. They begin with noble aspirations; they end in reckless violence. At length public spirit is lost, and

all men, sighing for tranquillity, seek it in the strong rule of an armed soldier. It is a thrice-told tale.

As the murder of Tiberius had been avenged upon Nasica, so there was even now found a tribune bold enough to indict Opimius. The accuser bore the time-honoured name of Decius; the defender was that Carbo who was more than suspected of Scipio's murder, and who was now consul (120 B.C.); his eloquence and the terror that prevailed procured an acquittal. But Carbo, though he earned the gratitude of the nobility by defending their champion, did not find his eloquence equally effectual in defending himself. It was at that time the practice of young Romans who aspired to distinction to attract public notice by indicting some great offender before the people. L. Licinius Crassus, son of Crassus the pontifex, and brother-in-law of C. Gracchus, though only one-and-twenty years of age, felt within him that power of speech which in later days gained him the appellation of the orator; and he singled out Carbo for attack. So fierce was the invective of the young accuser that Carbo put an end to his own life by poison.

The nobility probably cared little for the life of a worthless renegade. The best men in the senate, indeed, regretted what they considered the necessity of taking up arms against Gracchus. First among these was old Metellus Macedonicus, who died full of honours and years seven years after the death of C. Gracchus. He left four sons. Before his death three of them had been consuls; the fourth was candidate for the consulship at his father's death; but his two nephews, sons of his brother Calvus, were more distinguished than his own offspring. Quintus the younger, under the title of Numidicus, shortly afterwards became the most eminent man in the ranks of the nobility. In the course of twenty years the Metelli enjoyed six consulships and four censorships, besides five triumphs. Such an aggregation of honours in one family was without example. The worst fault of the Metelli was pride; but if they were not beloved, they were at least respected by the people.

A person who plays a large part in the events of the next years was M. Æmilius Scaurus, a man of more dubious character. Horace names him with some of the greatest men of olden time; Sallust represents him as disgracing high qualities by an inordinate love for money. The facts we shall have to record will show that in his earlier days he was infected by the corruption of his compeers, while in later life his prudence was so great as to stand for

principle. He was born in 163 B.C., so that at the fall of C. Gracchus he had reached that ripe age which was required for the consulship. Though he belonged to a great patrician gens, his family was so obscure that he was accounted a new man. His father had been a charcoal merchant, and left his son so poor that the future ruler of the empire had at one time contemplated following the trade of a money-changer. But he was encouraged to try the chances of political life, and in 115 B.C. he reached the consulate. By his ability and discretion he so won the confidence of the senate that at the first vacancy he was named princeps. He was a man less seen than felt. His oratory wanted fire; but his talents for business, and his dexterity in the management of parties, made him the most important person in the field of politics from the fall of Gracchus to the rise of Sulla.

The more prudent or more severe among the senators believed that reform in the state might be averted by a reformation of manners. But in vain. The business of Jugurtha brought into full light the venality and corruption of the dominant statesmen.

We have said little of the wars of Rome since the fall of Numantia and the termination of the Servile War. They were not considerable. The kingdom of Pergamus had formed the tenth province. The eldest son of old Metellus earned the title of Balearicus for subduing the Balearic Isles (121 B.C.); his eldest nephew that of Dalmaticus for putting down an outbreak of the Dalmatians (117 B.C.).

More attention was excited by wars in the south of Gaul, and more permanent effects followed. The success of Fulvius Flaccus, the friend of the Gracchi, in defending Marseilles, has been already noticed. C. Sextius, who succeeded Flaccus in 123 B.C., secured his conquests by founding the colony of Aquæ Sextiæ, which under the name of Aix still attracts visitors for the sake of its hot springs. These conquests brought the Romans in contact with the Allobrogians, between the Rhone and the Isère; and this people threw themselves on the protection of Bituitus, chief of the Arvernians (Auvergne). Q. Fabius, while Opimius was crushing C. Gracchus, crossed the Isère. A desperate battle ensued, in which the proconsul, with 30,000 men, is said to have so completely routed 200,000 Gauls that in the battle and pursuit no less than 130,000 fell. Fabius was suffering from a quartan ague, but in the heat of conflict shook off his disease. He assumed the title of Allobrogicus with better right than many

who were decorated with these national surnames. The war was now carried into the Arvernian country, and the great triumphs of Cæsar might have been anticipated by some senatorial commander, when it was brought to a sudden end. An enemy, formidable alike to Romans and Gauls, well known a few years later under the dreaded names of Cimbrians and Teutones, had appeared on the northeastern frontier of Gaul, and threatened to overrun all southern Europe. But circumstances deferred for a time the conflict between Italy and those barbarous hordes, and for the present the dominion of Rome was firmly established in the southern angle of Gaul, between the Alps and Pyrenees, a district which still preserves its Roman name, “the province,” in the French Provence. The whole northern coast of the Mediterranean, from the Pillars of Hercules to Syria, now owned the sovereignty of Rome.^{[b](#)}

THE JUGURTHINE WAR

The miserable inefficiency and complete worthlessness of the Roman government was especially noticeable in the Jugurthine War, which on that account, and not because of its magnitude or dangerous character, is of interest.

Masinissa, known to us as king of Numidia, died in the year 148 and left the government of his kingdom to be shared in common by his three sons, Micipsa, Gulussa, and Mastanabal. The death of the last two following soon after, Micipsa, the eldest, was left to reign alone. He was a feeble, peacefully inclined old man, who preferred devoting himself to Greek philosophy; and, as his two sons, Adherbal and Hiempsal, were not yet of age, he abandoned the administration to his nephew Jugurtha, an illegitimate son of Mastanabal. Jugurtha was a magnificent type of man, bold and full of talent, well versed in all the arts of war, and held in high esteem by the Numidians.

As leader of the Numidian auxiliary forces in the Numantian War, he had distinguished himself in Scipio’s army by his bravery, and had won many friends among the Romans of name. When he returned home he brought Micipsa a letter from Scipio, in which the latter congratulates Micipsa on his gallant nephew, who, he declares, has endeared himself to every Roman by his services. Micipsa now began to fear lest this youth, standing so high in the favour of both Romans and Numidians, might become dangerous to

his own two sons. He therefore thought it best to propitiate him by benefits; he adopted him, and in his will provided that Jugurtha should share his kingdom with his sons.

[118-112 B.C.]

Micipsa died in the year 118. His eyes were scarcely closed when his two sons, grudging Jugurtha his share in the kingdom, fell out with him so that the idea of mutual government seemed no longer feasible.

But before a division of kingdom and treasure could be arranged, Jugurtha, who had been infuriated by irritating words which Hiempsal had uttered in a rage, caused Hiempsal to be set upon in his house and murdered. He then began war against Adherbal, intending to obtain mastery over the entire kingdom. Adherbal, driven from the kingdom, fled to Rome, where he laid his complaint before the senate, which had taken upon itself to carry out the provisions of Micipsa's will. Jugurtha had taken the measure of the Romans before Numantia; he now sent an embassy with a quantity of money to Rome, and this soon convinced those who had just been pleading Adherbal's cause of the injustice of his complaint.

Jugurtha was now pronounced blameless; Adherbal had himself commenced the war, and his brother had been murdered by his own followers because of his cruelties towards them. The Roman senate was quite willing to hand over the whole kingdom to the open-handed Jugurtha, but the evidence of bribery was somewhat too strong. So in order that the scandal might not become too flagrant, the leaders of the senate decided to send a commission of ten men to Numidia, who should divide that kingdom equally between the two pretenders. L. Opimius, the conqueror of C. Gracchus, was placed at the head of the commission, and neither he nor the others let slip the opportunity of turning the occasion to their own profits.

In exchange for Jugurtha's money, it was arranged that the western half of Numidia, which was fertile and well populated, should be his portion; whilst to Adherbal was assigned the eastern part, chiefly consisting of sandy deserts. Jugurtha was not content with the half. Emboldened by his previous successes, he made inroads into Adherbal's territory, seeking plunder and hoping that Adherbal by way of revenge would make an attack on him on his own ground, and so give him a pretext for taking his lands from him.

As, however, Adherbal contented himself with making complaints to Rome, he began the war without pretext. He invaded Adherbal's territory at the head of a large force, and taking him by surprise in a night attack near Cirta (now Constantine) defeated him utterly. Adherbal with a few horsemen sought refuge in the capital. Whilst this was besieged by Jugurtha, and defended by the numerous Italians resident in the town, there appeared envoys from Rome who had been appointed to receive Adherbal's first complaints. These demanded that Jugurtha should discontinue the war, and accept their mediation. The envoys were young men who made little impression on the king; he refused their demand and the siege was continued with redoubled vigour, without the Roman senate appearing to take any further interest in the matter.

It was only after five months of siege—when Adherbal had sent a fresh appeal to Rome imploring help in the most urgent manner, pointing out that Jugurtha's aggression affected not only him but the Roman people also—that a decision was arrived at. They did not decide, however, as the honour of the state required, and the minority urged a declaration of war; but they sent a fresh embassy consisting of men of the highest consideration. At the head they sent M. Æmilius Scaurus, at that time the most honoured and influential man in Rome, but no better than the others, only possessed of more charm and experienced in the art of disguising his inward viciousness under the cloak of worth and dignity.

Jugurtha appeared in Utica at the summons of Scaurus; there were long consultations, and finally the embassy took its departure without gaining anything and without declaring war. The honourable Scaurus and his worthy companions had also permitted themselves to be bribed. The siege of Cirta was continued till Adherbal, urged by the Italian merchants who were settled in the town, and who believed their lives to be safe, surrendered on condition that his life and the lives of the garrison should be spared.

Scarcely was the surrender accomplished, when Jugurtha had Adherbal tortured to death, and the inhabitants, Africans and Italians, slaughtered. This monstrous crime of the barbarian king, which would not have been possible but for the laxity and infamous venality of the Roman government, raised a storm of indignation throughout Italy. In Rome the people clamoured for war, and were loud in their denunciation of the senate, which

had so shamefully sacrificed the honour of the state and the lives of so many Italian citizens. Still the senate hesitated to yield to the anger of the populace and declare war against Jugurtha. It was only when C. Memmius—a man of action and eloquence, who was elected for the next year to the tribuneship of the people—threatened publicly that as tribune he would call the guilty to account, that the senate became frightened, yielded, and declared war (112).

[112-111 B.C.]

The consul L. Calpurnius Bestia undertook the direction of the war, and preparations were made with great ardour; Scaurus himself going with the force as legate. Bestia pressed forward into Numidia, and fortune favoured him, so that Jugurtha lost courage and asked for a suspension of hostilities. During the conference Jugurtha bribed Scaurus and through him the consul, so that the matter was arranged. Jugurtha was to throw himself on his conqueror's mercy, and the Roman renegade, in exchange for an insignificant sum of money and some elephants, was to give him his freedom and to leave him in unrestricted possession of his kingdom.

When this bargain became known in Rome, C. Memmius, now tribune, insisted on a judicial inquiry and on Jugurtha being summoned before the assembly of the Roman people that he might give information as to the share taken by each of the different parties in the peace conference. "If the king really surrendered unconditionally," said he, "he will not refuse to appear; if he refuses, you may learn from that fact the nature of this peace and this surrender, which has brought to Jugurtha amnesty for his crimes, to a small number of our nobles exceeding riches, and to our fatherland shame and disgrace."^c For this picturesque incident we may turn to Sallust, the original authority.

SALLUST'S ACCOUNT OF JUGURTHA AT ROME

[111-110 B.C.]

During the course of these proceedings at Rome, those whom Bestia had left in Numidia in command of the army, following the example of their general, had been guilty of many scandalous transactions. Some, seduced by gold, had restored Jugurtha his elephants; others had sold him his deserters;

others had ravaged the lands of those at peace with us; so strong a spirit of rapacity, like the contagion of a pestilence, had pervaded the breasts of all.

Cassius, when the measure proposed by Memmius had been carried, and whilst all the nobility were in consternation, set out on his mission to Jugurtha, whom, alarmed as he was, and despairing of his fortune, from a sense of guilt, he admonished “that, since he had surrendered himself to the Romans, he had better make trial of their mercy than their power.” He also pledged his own word, which Jugurtha valued not less than that of the public, for his safety. Such at that period, was the reputation of Cassius.

Jugurtha, accordingly, accompanied Cassius to Rome, but without any mark of royalty, and in the garb, as much as possible, of a suppliant; and, though he felt great confidence on his own part, and was supported by all those through whose power or villainy he had accomplished his projects, he purchased, by a vast bribe, the aid of Caius Bæbius, a tribune of the people, by whose audacity he hoped to be protected against the law, and against all harm.

An assembly of the people being convoked, Memmius, although they were violently exasperated against Jugurtha (some demanding that he should be cast into prison, others that, unless he should name his accomplices in guilt, he should be put to death, according to the usage of their ancestors, as a public enemy), yet, regarding rather their character than their resentment, endeavoured to calm their turbulence and mitigate their rage; and assured them that, as far as depended on him, the public faith should not be broken. At length, when silence was obtained, he brought forward Jugurtha, and addressed them. He detailed the misdeeds of Jugurtha at Rome and in Numidia, and set forth his crimes towards his father and brothers; and admonished the prince, “that the Roman people, though they were well aware by whose support and agency he had acted, yet desired further testimony from himself; that, if he disclosed the truth, there was great hope for him in the honour and clemency of the Romans; but if he concealed it, he would certainly not save his accomplices, but ruin himself and his hopes forever.”

But when Memmius had concluded his speech, and Jugurtha was expected to give his answer, Caius Bæbius, the tribune of the people, whom I have just noticed as having been bribed, enjoined the prince to hold his

peace; and though the multitude who formed the assembly were desperately enraged, and endeavoured to terrify the tribune by outcries, by angry looks, by violent gestures, and by every other act to which anger prompts, his audacity was at last triumphant. The people, mocked and set at naught, withdrew from the place of assembly; and the confidence of Jugurtha, Bestia, and the others whom this investigation had alarmed, was greatly augmented.

There was at this period in Rome a certain Numidian named Massiva, a son of Gulussa and grandson of Masinissa, who, from having been, in the dissensions among princes, opposed to Jugurtha, had been obliged, after the surrender of Cirta and the murder of Adherbal, to make his escape out of Africa. Spurius Albinus, who was consul with Quintus Minucius Rufus the year after Bestia, prevailed upon this man, as he was of the family of Masinissa, and as odium and terror hung over Jugurtha for his crimes, to petition the senate for the kingdom of Numidia. Albinus, being eager for the conduct of a war, was desirous that affairs should be disturbed, rather than sink into tranquillity; especially as, in the division of the provinces, Numidia had fallen to himself, and Macedonia to Minucius.



When Massiva proceeded to carry these suggestions into execution, Jugurtha, finding that he had no sufficient support in his friends, as a sense of guilt deterred some and evil report or timidity others from coming forward in his behalf, directed Bomilcar, his most attached and faithful adherent, to procure by the aid of money, by which he had already effected so much, assassins to kill Massiva; and to do it secretly if he could, but if secrecy should be impossible, to cut him off in any way whatsoever. This commission Bomilcar soon found means to execute; and, by the agency of men versed in such service, ascertained the direction of his journeys, his hours of leaving home, and the times at which he resorted to particular places, and, when all was ready, placed his assassins in ambush. One of their number sprang upon Massiva, though with too little caution, and killed him; but being himself caught, he made at the instigation of

GODDESS ROMA

(After Hope)

many, and especially of Albinus the consul, a full confession. Bomilcar was accordingly committed for trial, though rather on the principles of reason and justice than in accordance with the law of nations, as he was in the retinue of one who had come to Rome on a pledge of the public faith for his safety. But Jugurtha, though clearly guilty of the crime, did not cease to struggle against the truth, until he perceived that the infamy of the deed was too strong for his interest or his money. For which reason, although at the commencement of the proceedings he had given fifty of his friends as bail for Bomilcar, yet thinking more of his kingdom than of the sureties, he sent him off privately into Numidia, for he feared that if such a man should be executed, his other subjects would be deterred from obeying him. A few days after, he himself departed, having been ordered by the senate to quit Italy. But, as he was going from Rome, he is said, after frequently looking back on it in silence, to have at last exclaimed that “it was a venal city, and would soon perish, if it could but find a purchaser!”^[82][d](#)

A WAR OF BRIBERY

The war accordingly recommenced. Spurius Postumius Albinus took the command. But the African force was so demoralised that nothing was to be done with it, and moreover Albinus also allowed himself to be bribed. Nothing was done during the whole summer. When, however, the consul went to Rome, where the election of consuls for the ensuing year demanded his presence, and gave the command into the hands of his brother Aulus Postumius—the latter, a foolhardy and incompetent man, endeavoured to make use of this short interval for his own glory and enrichment. In the middle of winter he marched to the interior of Numidia, bent on surprising and overthrowing the inaccessible fortress of Suthul, where Jugurtha kept his treasures. All went well till he came in front of the town; but as he was not able to take it, he pursued Jugurtha, who drew him into unknown parts of the country, and suddenly, one stormy night, having won over some of the Roman officers and men by bribes, attacked him in his camp. The Romans fled, mostly unarmed, and took refuge on a neighbouring hill, where they were surrounded. Nothing remained to their leader but surrender, and under conditions dictated by Jugurtha as follows: “The

Roman army to withdraw under the yoke, and to quit Numidia; the treaty of peace annulled by the senate to be again in force.”

The disgrace could not have been greater. In Rome the displeasure of the people could no longer be kept within bounds. In accordance with the proposal of the people’s tribune, C. Mamilius Limetamus, there was instituted a judicial examination of all those through whose fault Jugurtha had been able to defy the senate, and those generals and envoys who had taken money from him. An extraordinary commission of inquiry was convened, and Calpurnius Bestia, Spurius Albinus, L. Opimius—who was especially odious to the people—as well as several less celebrated men, were sentenced to exile.

That cunning scoundrel, Æmilius Scaurus, got off clear; he had indeed so managed that he was one of those chosen to act on the board of the commission of inquiry. The treaty of peace of Aulus Postumius was naturally declared inoperative, and the war was renewed. In order completely to put an end to the disgrace, the command was given to Q. Cæcilius Metellus, consul for the year 109, another, certainly, of the rigid and callous patricians, but one of the few men in the government inaccessible to bribes, and known to be an experienced and prudent general.

METELLUS IN COMMAND

[109 B.C.]

Accompanied by capable lieutenants such as C. Marius and P. Rutilius Rufus, he arrived in Africa in the year 109; but he found the army in such a state of demoralisation and confusion that he needed more time to restore it to discipline, and by dint of severe measures render it fit for service. When he entered Numidia, Jugurtha quickly recognised that the condition of affairs was changed, and he repeatedly proffered Metellus his submission, merely demanding a guarantee for his life. But Metellus intended the war to end in one way only—with the execution of Jugurtha, and he did not scruple during the negotiations to endeavour to induce the servants of the king to deliver their master dead or living into his hands. When Jugurtha realised the intentions of the Romans, he broke off negotiations and prepared himself for a desperate resistance.

During his march to the interior of Numidia, Metellus crossed a range of barren mountains, on the other side of which flowed the river Muthul, in a wide plain, a few miles distant from the mountains; from the mountains to the river a low chain of partly wooded hills traversed the plain obliquely. On these hills Jugurtha had stationed his troops, in two divisions, in order to surprise the Romans. One under Bomilcar waited near the river, but the larger division, under Jugurtha himself, was ambushed nearer the mountains.

The choice of the place and the way in which he drew up his forces proved the king's military talent. Metellus could not remain stationary on the mountains; he must try to reach the river across the waterless plain. He therefore sent a portion of his force under the legate Rufus in a straight line to the river, there to pitch their camp; he himself marched with the remainder of his army across the plain toward the line of hills on the right, intending to drive the foe from their position. But he had scarcely descended to the plain, when he was attacked on all sides by Jugurtha's men and prevented from advancing. At the same time Bomilcar threw himself upon the force under Rufus. In both places the Romans were sorely harassed, and the event long remained doubtful; at last the ability and endurance of the Roman foot soldiers conquered. When Metellus and Marius with part of their force reached the foot of the chain of hills and set themselves to storm the heights held by the enemy, the latter fled, making scarcely any resistance. Meanwhile Rufus likewise came off conqueror; and so, late that evening, the two divisions of the Roman army met in the glory of victory.

After this encounter at Muthul, Jugurtha dismissed the greater part of his troops, and confined himself to guerilla warfare. Skirmishing round Numidia, wherever the Romans were devastating the country and destroying towns, he harassed and annoyed them in every possible way. As winter approached, and Metellus, in order to facilitate the collection of supplies, withdrew his troops into the Roman provinces, Jugurtha again made overtures of peace. Metellus declared himself inclined to come to terms. First of all he demanded the surrender of the elephants, some of the horses and weapons and three hundred hostages; also that of the Roman deserters, three thousand in number, who were to be executed. Next he demanded two hundred thousand pounds of silver, and his demand was

agreed to by the king; but when finally Metellus demanded that the king himself should become his prisoner, Jugurtha broke off the negotiations.

At the same time Bomilcar, Jugurtha's most trusted friend, who took an active part in the negotiations, was secretly suborned by Metellus to deliver the king into his hands dead or alive. Bomilcar might have feared that, in the case of peace being again concluded, Jugurtha would denounce him to the Romans as the murderer of Massiva; and was therefore ready to betray his master, if Metellus guaranteed him his own safety. But Jugurtha discovered the plot and had Bomilcar executed. The war still continued.

[109-108 B.C.]

Jugurtha, though weakened, was not at the end of his resources. In that country—furrowed with deserts, as well as surrounded by them—he could long maintain the war, more particularly as not only his own subjects but the free neighbouring races were his enthusiastic followers, adoring the hero who so bravely and with such success had defended his native country against its hated enemies.

When in the year 108 Metellus again opened the campaign and engaged Jugurtha in a pitched battle, Jugurtha fled far to the south, to the confines of the great desert, where in an oasis was a fortified town called Thala. Here he retired with his children, his treasure, and his best troops; an arid desert, ten miles broad, was between him and the pursuing enemy. Still Metellus marched through the desert, taking water for his men in skins, and after forty days' siege he took Thala. But he failed to catch Jugurtha; at the critical moment he had escaped with his children and his treasure. He fled through the district south of Mount Atlas—to the Belidulgerid of to-day—and called on the hordes that dwelt there to take arms against the national enemy.

He returned to his kingdom with a force composed of Gætulians, and still further strengthened by a new ally—King Bocchus of Mauretania, his father-in-law, who, after long hesitation, had finally decided to make common cause with him against the Romans. The two monarchs led their troops to the neighbourhood of Cirta, then in the hands of the Romans, and Metellus advanced to meet them. But nothing decisive happened; for meanwhile Metellus had heard from Rome that Marius, his former lieutenant, had been chosen consul for the year 107, and had been given the

chief command in Africa by the people, and so all operations were suspended.

MARIUS APPEARS AS COMMANDER

[108-107 B.C.]

Caius Marius, who in the next few years was to play so conspicuous a part in Roman history, was a man of low birth, the son of a Latin peasant from the village of Cereatæ, near Arpinum. He was lacking in all higher culture. He was essentially a soldier, with the inborn faculty for war. When only twenty-two, he distinguished himself in the army of Scipio Æmilianus in Numantia by his bravery and by his soldierly bearing. Ambition drove him into the service of the state. In 119, supported by the powerful Metellus, he became a tribune of the people, and at that time, with much determination and military impetuosity, he carried through a law directed against the nobles, dealing with bribery and the fraudulent acquisition of office. When the consul Cotta prevailed upon the senate to oppose the law and to call Marius to account, the latter appeared in the senate and threatened to imprison Cotta by force, if he did not abandon his resolve. Cotta appealed to his fellow consul, L. Cæcilius Metellus; and when the latter agreed with Cotta, Marius ordered his servant to conduct Metellus to prison. As no tribune would intercede on Metellus' behalf, the senate gave way and the law took its course.

From that time Marius was established in the favour of the people; but the nobility worked against the ambitious aspirant where they could, and they succeeded in defeating him when he stood for the curule chair, and again when he sought the plebeian ædileship. The prætorship he succeeded in obtaining in the year 115, but with the greatest difficulty.

Marius remained legate to Q. Metellus in the Jugurthine War because of the opportunities offered for showing military activity. He helped Metellus to re-establish military discipline and to win victory for the Roman standard. His courage and knowledge of warfare, his cunning and intrepidity, and strict military discipline, were everywhere celebrated; he gained the affections of the common soldiers by sharing with them all their hardships and privations. After the battle of Muthul, where he especially distinguished himself, his praise was in every mouth; and the soldiers wrote

home that there would be no end to the war unless Marius was made consul and commander-in-chief. This was vexatious to Metellus, and there seems to have been considerable friction between these two proud men. When Marius asked for furlough from the commander-in-chief that he might go to Rome and make application for the consulship, Metellus with the pride of rank annoyed him with the question, "Will you not be content if you become consul with my son?" Metellus' son was then twenty-two years old.

Metellus only granted Marius leave of absence twelve days before the election to the consulship took place; but Marius travelled the whole way from the camp to Utica in two days and one night, and from Utica he arrived in Rome within four days. On his application for the consulship he did not scruple to disparage Metellus' conduct of the war, and hinted that he was purposely protracting the struggle so as to remain longer in command; and he promised that with even half the troops he would in a short time deliver Jugurtha, dead or alive, into the hands of the Romans. The people treated the election as a party question, and Marius as one of themselves was chosen consul by unanimous acclamation, and the conduct of the African War transferred into his hands. This was, after a long interval, another case in which a *homo novus* attained to the consulate—naturally to the great annoyance of the nobility, who however could do nothing against the will of the people, excited as they were at the idea that after long oppression they had found in Marius a chief and a leader of their own.

[107-104 B.C.]

Marius made use of the time before his departure for the seat of war to irritate the people in every way against the rule of the nobility. "The haughty nobles," said he, "passed their youth in luxury and revelling; then, when elected to the post of general, they would hasten to glean from Greek books some information on the subject of the art of war. Let the people leave them to their revels, and choose their generals from men who are inured to heat and cold, and every hardship, who, instead of pictures of ancestors, have honourable wounds and marks of conflict to display."

When levying the troops he was to lead to Africa, he chose his men contrary to the prevailing system—from the lowest orders of the people, the so-called proletariat. Through this innovation he gained at any rate a number of devoted adherents; but he degraded the tone of the army by putting swords into the hands of people without homes or property, who

would seek profit in warfare and be more eager to serve their general than their country.

When Marius came to Africa, he received his army from the hands of the legate Rufus; Metellus, infuriated, had already left, in order to avoid the rival who was to supplant him. He continued the war and was favoured by fortune, though he did not end it immediately, as he had pledged himself to do.

He plundered and devastated the whole Numidian country, and those towns not yet garrisoned he forced to submission; he overshadowed the expedition Metellus had led against Thala by a still bolder and more skilfully conducted campaign against Capsa, a fortified town further south; took a rocky fortress on the river, Mulucha on the borders of Numidia and Mauretania and conquered the two kings opposed to him one after the other in sanguinary battles. But the end of the war was not to be thought of till the person of Jugurtha should be in the hands of the Romans. That was at last compassed in the early part of the year 106.

King Bocchus, discouraged by the defeats he had suffered, had visions of peace and friendship with Rome, and in secret negotiations he treacherously promised to deliver his son-in-law Jugurtha to Marius. He desired that L. Sulla, the quæstor of Marius, and a favourite with him, should be deputed to work with him and capture Jugurtha; and Sulla had courage and determination enough to trust himself with this unknown person, whose intentions were not yet understood.

Accompanied by a son of Bocchus, he undertook the dangerous journey and rode boldly right through the camp of Jugurtha. He had to persuade Bocchus by definite and detailed proposals to decide upon a treaty with Rome. Jugurtha was enticed by Bocchus into ambush and taken prisoner, under the pretext of taking him out of the way of Sulla. "So fell the



great traitor by the treachery of those nearest to him.” He was carried with his children to the camp of Marius; and thus the war came to an end.

Marius remained till the following year in Africa, to inaugurate the new order of things there. Numidia was still reckoned a kingdom; but the new king Gauda, a half brother of Jugurtha, and the last descendant of Masinissa, was compelled to relinquish the western portion to Bocchus. Numidia was not converted into a Roman province, because the protection of the border against the hordes of the deserts would always have required a considerable standing army of Roman soldiers.^c

Ilhne^e says that the Romans were “as ungenerous and as unjust to him as to Hannibal and Perseus and all their great foes. On the whole he inspires less abhorrence than Metellus or Marius or Sulla, or the wretches who took his bribes.”

Plutarch describes the last days of Jugurtha with terrible vigour.

PLUTARCH ON JUGURTHA’S DEATH

“Marius, bringing home his army again out of Libya into Italy, took possession of his consulship the first day of January (on which day the Romans begin their [second] year) 104, and therewithal made his triumph into the city of Rome, shewing that to the Romans, which they thought never to have seen: and that was, King Jugurtha prisoner, who was so subtile a man, and could so well frame himself unto his fortune, and with his craft and subtlety was of so great courage besides, that none of his enemies ever hoped to have had him alive. But it is said, that after he was led in triumph, he fell mad straight upon it. And the pomp of triumph being ended, he was carried into prison, where the sergeants for haste to have the spoil of him, tore his apparel by force from off his back: and because they would take away his rich gold earrings that hung at his ears, they pulled away with them the tip of his ear, and then cast him naked to the bottom of a deep dungeon, his wits being altogether troubled. Yet when they did throw him down, laughing he said: O Hercules, how cold are your stoves! He lived there yet six days, fighting with hunger, and desiring always to

prolong his miserable life unto the last hour: the which was a just deserved punishment for his wicked life.”^f

THE CIMBRIANS AND THE TEUTONS

[113-105 B.C.]

Whilst in distant Africa the Romans were engaged in making war upon the various savage hordes of the desert, from the forests of Germany a new danger threatened them on the borders of their empire. For reasons unknown, the Cimbrians (*i.e.*, “the combatants”), a Teutonic tribe, had forsaken their home by the Baltic, and withdrawn to the northern Alpine countries to seek new abiding places. Here they adopted a nomadic form of existence, wandering hither and thither, taking their wives and children and all their possessions with them wherever they went. That they and the other Teutonic tribes afterwards united to them are to be classed as Germans, and not, as the Romans formerly thought, as Celts, is proved by their names, their stature, and others of their characteristics, and further by the fact that still later we find mention of the Cimbrians in the Danish or Cimbrian peninsula, and the Teutons in northeast Germany in the vicinity of the Baltic, together no doubt constituting the last remains of this tribe. But in the course of its long wandering there had been added to this German nucleus not only other German-speaking rovers in search of booty, but also numerous Celtic hordes, so that we even find leaders with Celtic names at the head of the Cimbrians. The Cimbrians and Teutons are described as tall and slightly built men with blue eyes and auburn hair—strong, wild, warlike figures. In battle they fought with impetuous bravery. After a victory they gave themselves up to the lust of cruelty; there was a general destruction and the prisoners were either hanged or butchered to make sacrifices for their gods. From the blood which flowed from the sacrifices, the priestesses, old gray-haired women in white linen garments, foretold the future.

We have no means of ascertaining for how long the Cimbrians wandered through the north and east of Europe, nor do we know which roads they traversed. From what is now Bohemia they wandered southward to Noricum—the Carinthia and Carniola of to-day. Here, on the borders of the Roman Empire, they appeared in the year 113. On being informed of this,

the Romans sent out the consul Cn. Papirius Carbo, the son of that Carbo who was a marked figure of the Gracchian period, with an army to guard the Alpine passes of that neighbourhood. When Carbo, approaching from Aquileia, entered Noricum, the Cimbrians, who had heard of the great power of the Romans, sent them envoys, who explained that they, the Cimbrians, desired to be allowed to settle amongst the Noricans, and had no desire to go to war with them. Carbo replied that the Roman people were bound to the Noricans by bonds of hereditary hospitality, and that he had not the right to grant the Cimbrians permission to settle in Noricum. The Cimbrians decided to proceed farther. Carbo gave them guides who were to lead them out of the country; but by his instructions these guides brought them to a place in the neighbourhood of Noreia (now Görz), near which he and his men were ambushed, and as the Cimbrians passed they attacked them. But this piece of treachery recoiled upon the perpetrator. Carbo's force was beaten and would have been completely destroyed had not a tremendous storm hindered the Cimbrians from pursuit. It was now in the power of the Cimbrians to enter Italy by these Alpine passes, but they preferred to cross the northern Alps and wander westward towards Gaul. In this direction they persuaded two tribes of Helvetia, the Tigurini and Tugeni, to join them, or at any rate to travel the same route. Since the conquests made in western Gaul in the year 125 by Fulvius Flaccus, the friend of C. Gracchus, the Romans had founded a new province between the Alps and the Pyrenees, bounded by the Cevennes and the Mediterranean, with a principal town, Narbo. This was now threatened by the Cimbrians and other wandering tribes, and so in 109 the Romans sent the consul M. Junius Silanus there at the head of an army.

The Cimbrians appealed to him to show them in what part of the country they might be allowed to settle; but instead of answering, he attacked them. He suffered a terrible defeat. Instead of following up their victory, the Cimbrians despatched an embassy to Rome with an appeal to be allowed to settle in that country, and turned to do battle with the neighbouring Celtic tribes. Meanwhile in the year 107 the above-mentioned Helvetian tribes invaded the Roman province under the leadership of Divico, and springing upon the consul, Cassius Longinus, from an ambush, utterly defeated him. The consul himself was killed, and his legate C. Popilius, who had fled into camp with the remainder of the force, could only save his men by a

disgraceful treaty. He gave hostages, resigned half his baggage, and withdrew under the yoke.

The position of the Romans in Gaul was so shaken by these numerous defeats that the town of Tolosa (Toulouse) revolted and took the Roman garrison prisoners. As, however, neither the Cimbrians nor the Helvetians troubled the province further, Q. Servilius Cæpio, who was the consul there in the year 106, was able to regain possession of the town by a trick. He took advantage of this opportunity to rifle completely the temple of the Gallic god of healing, called by the Romans Apollo; but when the booty—alleged to be about 100,000 pounds of gold and 110,000 pounds of silver—was sent to Massilia, the convoy was attacked on the road by bandits, who overpowered a weak resistance, and took away gold and silver, at the instigation, it is said, of Cæpio and his officers, who took their share of the plunder.

[105-103 B.C.]

In the next year, 105, the Cimbrians again appeared in the province, under their king, Boiorix, this time with the serious intention of going on into Italy. In the province, besides the troops under the proconsul Cæpio, there was now a second force under the consul Cn. Mallius Maximus; this occupied the right bank of the Rhone, the other force the left bank, both being drawn up to await the enemy, without either section paying much attention to the movements of the other. When, however, a corps under the legate M. Aurelius Scaurus was attacked and completely defeated by the Cimbrians, the consul ordered the proconsul to lead his force over the Rhone and unite with his own men. Cæpio, who had a personal enmity against Mallius, and plumed himself on his superior birth, obeyed with reluctance, but could not bring himself to make common cause with Mallius against the enemy and discuss operations with him.

Meantime, the imposing forces of the Romans had induced the Cimbrians to enter into negotiations. Cæpio, seeing the consul in negotiation with the delegates of the barbarians, and thinking that he was desirous of keeping all the honours of victory for himself, attacked them without delay. As a result his troops were entirely destroyed and his camp was taken. After this the Cimbrians engaged in battle with the troop under Mallius and utterly defeated them. The Romans suffered this terrible reverse near the town of Arausio (Orange). On the Roman side eighty thousand soldiers and forty

thousand men belonging to the commissariat are said to have been killed, only ten men being saved, amongst whom was Cæpio.

The earlier defeats had already so terrified the Italians that the raising of fresh soldiers presented difficulties; but now, after the defeat of Arausio the “Cimbrian panic” reached its height. Besides panic, the people also felt a burning rage, particularly against the corrupt government of the nobility which had jeopardised the state. Against certain individuals their indignation was extreme, particularly against Cæpio, whose insubordination had been the main cause of the defeat. By decision of the people he was now deposed from the proconsulate, and his property was confiscated; by a second decision of the people he was driven from the senate, and when, long after, in consequence of the malversation and high treason practised in Gaul, a court of judicial inquiry was convened, on the instigation of several of the people’s tribunes, Cæpio narrowly escaped the death sentence. He was banished, and went to Smyrna. Mallius Maximus and several other men of distinction were tried at the same time. The senate and their generals had lost all confidence; only one man seemed to be able to save the state in these perilous times—C. Marius, he who at the end of the Jugurthine War was regarded as the greatest general of his time. Whilst he was still in Africa he was chosen consul for the year 104, although it was against the rule to elect any one who was absent, or any one who had already been a consul at any time during the previous ten years. On the same day—January 1—on which Marius celebrated his triumph over Jugurtha, he entered upon his second consulate; and the same office was conferred upon him every succeeding year until the Cimbrian danger was over.

[103-102 B.C.]

When Marius with his force reached the Rhone, the Cimbrians, always hasty in their movements, had wandered off through southern Gaul towards the west and had entered Spain. Marius accordingly spent some time restoring the disorganised and disintegrated Gallic peoples to a sense of their duty; he raised auxiliary troops from the allied states and by dint of unswerving severity and unremitting exertions made his troops once more fit for action. Once let a soldier under Marius be accustomed to his severity of mien, his rough voice and wild looks, once let him learn never to fail in his duty, never to be insubordinate, and his fear of Marius would be changed into confidence; the man of terror would seem formidable only to his enemies.

But his chief attraction for his men was his strict justice and impartiality. It was probably in the year 103, that the Cimbrians returned to Gaul from Spain, where they had encountered a stout resistance from the Celtiberians. They marched through the country along the Atlantic coast to the Seine on the borders of Belgium. Here they were joined by Teuton tribes of the same family under their king Teutobodus, tribes which, driven like the Cimbrians from their home on the Baltic, were moving aimlessly about the world. Notwithstanding their united forces they met with such resistance from the brave Belgians that they gave way, and finally decided to go to Italy. They again divided, perhaps for convenience in obtaining supplies, into two hosts. The Cimbrians, with the Helvetian Tigurini, who seem only recently to have joined them, went back to Noricum in order to enter Italy at the same point as before. The Teutones with the Ambrones, probably a Celtic people, proceeded towards the Rhone, in order to go from thence over the western Alps.

In the summer of 102 the Teutones crossed the Rhone and proceeded down the left bank to meet the army of Marius, which was encamped in a strong position at the junction of the Isère and the Rhone and was well provisioned. Here he was barring both the highroads which at that time led to Italy, the route over the Little St. Bernard, and the route along the coast. The barbarians encamped in countless numbers on the wide plain in front of Marius' camp and challenged him to battle. He, however, following the plan of remaining strictly on the defensive, stayed quietly in camp and let them spend their strength in daily attempts to storm the Roman fortifications. In vain; their impetuosity was wrecked by the arts of war as practised by the Romans and by the prudence of Marius. At last they drew off in the direction of the south, in order to march into Italy by the road along the coast. They were six days marching past the Roman camp in enormous crowds with numberless heavily-laden carts. The Romans from their walls jeered at them as they passed, asking if they had no commands for their wives. When the procession had gone by, Marius followed with his force, and camped always close beside them, but behind strong entrenchments and in favourable positions, so that he was protected against night surprises and could not be forced into an engagement against his will. In this way they travelled until they came to Aquæ Sextiæ (now Aix in Provence); from here it was only a little way to the Alps, and Marius was compelled to consider the question of a decisive battle. He pitched his camp at a place where there

was no spring of water, and when his soldiers grumbled and asked him where they could get it, he pointed downwards to the river Canus (now the Arc) which flowed near the enemy's camp. They demanded that he should at once lead them against the enemy, whilst they had still blood to spend. He answered coolly: "First we must fortify the camp."

Whilst the soldiers were fortifying the camp Marius sent his camp-followers to the river to fetch water. For their defence they carried hatchets and axes, swords and lances. Soon a scuffle arose on the banks with the roving bands of the Ambrones who, separated from the Teutones, covered the rear of the whole army on the march. As new combatants constantly hurried to the assistance of both sides, the Ambrones at last played their full strength, thirty thousand men, and Marius was no longer able to restrain his men. In crossing the river, the Ambrones fell into disorder and the Romans, in a rush down from the heights attacked them in the rear with such force, that having suffered great loss, they fled back to their camp and barricade of wagons. Here the fight was renewed after a strange fashion, for the wives of the Ambrones, armed with swords and hatchets, rushed with wild cries to meet them as they fled, forcing them back towards the enemy, and those who saw that all was lost, fell into a frenzy and threw themselves into the midst of the combat, letting themselves be cut and hacked to pieces.

The Romans felt encouraged by this victory, but dared not give themselves over to the joy of triumph, for by far the greater number of the enemy had not yet been engaged. The great plain was still covered with myriads of Teutones, who filled the air all night with threatening cries and occupied themselves all the following day preparing for a further encounter. It was not till three days later that the fight recommenced. By break of day, Marius and his men had ranged themselves on the hill in front of the camp in order for battle. As soon as the barbarians saw them they attacked the hill with fury. The Romans waited quietly till they came within range, then threw their lances and seized their swords. There was a long and obstinate fight lasting till midday; then the Germans, weakened by their own impetuosity and the heat of the southern sun, began to give way: as they reached the plain and were in the act of reorganising their front ranks which had fallen into disarray three thousand men under Claudius Marcellus fell on them from an ambush in the rear. That decided the issue; startled at the double attack the barbarians broke up their lines and fled in wild confusion.

[102-101 B.C.]

According to Plutarch,^f over one hundred thousand men were either killed or taken prisoner. Livy^h gives the numbers in the two battles as two hundred thousand dead and ninety thousand prisoners. Among the prisoners was the gigantic King Teutobodus, among the slain a number of women, some of whom met their death on the wagons in a desperate resistance, others killed themselves to avoid slavery and a life of shame. The battle-field of Aquæ Sextiæ is said to have been so fertilised by the amount of blood and corpses, that in the following summer it bore an utterly disproportionate crop of fruit; the neighbouring Massiliots fenced their vineyards with the enormous bones of the slain.

Meanwhile the Cimbrians had arrived in Noricum without hindrance and crossed into Italy through the Alpine passes. Q. Lutatius Catulus, the second consul of the year 102, had at first held the Alpine passes, but when the enemy appeared in great numbers he withdrew to the Adige and entrenched himself there on the west bank which the enemy was approaching, at the same time securing a retreat to the other side by means of a bridge. Here, too, he was not able to hold his position long. When the Roman soldiers saw these giant barbarians hurling rocks and trunks of trees into the river to make a dam, whilst others amused themselves by sliding down the glacier on their shields as if they were sleighs, when they saw some using great trees as battering-rams against the supports of the bridges whilst others threw themselves into the river and swam across, they were seized with such a panic of terror, that heedless of their general, they fled, abandoning their camp. In order to avoid what was becoming a shameful flight, Catulus raised the standard, and hurrying to the front himself led the men over the bridge. He was, however, obliged to leave a contingent behind in the camp on the left bank. The barbarians seized the camp, but with great generosity they permitted the garrison who had fought for their native country to depart unharmed.

Catulus retreated along the southern bank of the river Po, and left the Cimbrians to plunder and devastate the country north of the river. No actual battle took place; for Catulus was waiting for the approach of Marius, the Cimbrians for the approach of the Teutones.

After Marius, named consul for the fifth time in the year 101, had waited a short time in Rome, whither he had been summoned from Aquæ Sextiæ by the senate, he betook himself to Catulus in upper Italy, and left his own

troops to follow him there from Gaul in the spring of 101. After their arrival, he and Catulus together led their troops over the Po and drew near to the enemy. The Cimbrians desired to postpone further fighting till the arrival of the Teutones, and sent envoys to Marius with the demand that he should grant them and their brothers the country and towns they might ask for. Marius asked who their “brothers” might be, and when they named the Teutones, all present laughed, and Marius replied with scorn: “Have no care for your brothers, we have already given them land to dwell in, and they shall keep it forever.”

The envoys, not understanding the jest, threatened him with instant revenge from the Cimbrians, and from the Teutones as soon as they arrived.

“They are already here,” answered Marius, “and it would not be proper that you should go without having greeted your brothers.” And with these words he commanded that King Teutobodus and the other captive leaders of the Teutones should be brought before him.

The Cimbrians now knew the fate of their brothers and they at once attacked Marius, but he merely defended his camp. Then Boiorix, king of the Cimbrians, with a few attendants came and demanded that Marius should fix a day and hour for battle. Marius chose the third day from then (it was the 30th of July, 101), and named for the place of battle the fields near Vercellæ where the superior horsemanship of the Romans would have free play. Early in the morning of the day appointed the Cimbrian foot-soldiers drew up in a square that was over three miles in breadth and depth. In the



HEAVY MARCHING ORDER OF ROMAN INFANTRY

front rank the combatants were linked together by chains fastened to their belts that their ranks might not be broken.^[83] Their riders, fifteen thousand in number, were, according to Plutarch's description, armed in most striking fashion. Their helmets were made in the likeness of the jaws of animals or the heads of monsters; and their great height was still further increased by feathers, which were made to soar upwards like enormous wings. They were besides decorated with iron coats of mail and carried shields which dazzled by their whiteness. As missiles, each carried a spear with two barbs, and in fighting hand-to-hand they used great heavy swords. The Roman force, fifty thousand men in all, was so placed by Marius that the sun and the dust came full in the faces of the enemy. Marius' troops formed the two wings, those under Catulus took the centre.



CAPTIVES PASSING UNDER THE YOKE

The Cimbrians sent their cavalry in advance of their foot-soldiers; in the thick fog of the early morning they suddenly fell upon the Roman cavalry and drew them away from their foot. The battle was carried on in some cases with great bravery, but in spite of the numbers and strength of the barbarians the superior knowledge and endurance of the Romans conquered. The greater part of the Cimbrians were killed on the field, Boiorix among the number. Several put an end to their own lives. The scenes of *Aquæ Sextiæ* were repeated, the women rushed with swords and

axes into the midst of the enemy and let themselves be hewn down; they killed those they saw flying, their children and at last themselves. The Cimbrians were destroyed, root and branch; those who were not killed, in number over sixty thousand, were sold as slaves. The Tigurini, who had accompanied the Cimbrians, had remained waiting on the spurs of the Alps; when they saw their friends defeated they fled towards their own homes.

After the battle the two parties in Rome quarrelled as to which of the two leaders could really claim the honours of the victory of Vercellæ. The aristocrats maintained that Catulus, the man of their party, had decided the battle in the centre, he had captured thirty-one standards, whilst Marius had only brought away two; to him therefore the wreath of victory. On the other hand, the people claimed for Marius the great man who had risen from their ranks, that he was the one and only subduer of the Cimbrians and Teutones, and called him the third founder of the city, for the danger which he had averted had been as great as the Gallic peril which Camillus, the “second founder of Rome,” had stamped out. The people judged aright, for Marius fought the battle of Vercellæ as consul, whilst Catulus was only proconsul, and so Marius was the commander-in-chief; and further it is certain that he greatly excelled Catulus in military ability. But most of all it must not be forgotten that but for the victory of Aquæ Sextiæ the victory of Vercellæ could never have been.

On his return to Rome, Marius was accorded a well-deserved triumph, in which he nevertheless insisted that Catulus should share.^c

THE SECOND SLAVE WAR

[102-101 B.C.]

While the arms of the republic were thus triumphant in averting external peril, the fertile province of Sicily was again a prey to the desolating horrors of a slave war.

After the former war had been happily concluded by Piso and Rupilius, several indications of similar troubles appeared in Italy itself. At Capua, a spendthrift knight armed four thousand slaves and assumed the diadem. But by prompt measures the insurrection was put down.

The rising in Sicily might have been checked with no less ease. It originated thus: Marius had been commissioned by the senate to raise troops in foreign countries to meet the difficulties of the Cimbrian War. He applied to the king of Bithynia, among other persons; but the king answered that he had no soldiers, the Roman tax-gatherers had made slaves of them all. The senate, glad to have an opportunity of censuring the equites, passed a decree that all persons unduly detained in slavery should be set free. In Sicily the number of such persons was so large that the prætor suspended the execution of the decree. Great disappointment followed. A body of slaves rose in insurrection near Agrigentum, and beat off the prætor. Their numbers swelled to twenty thousand, and they chose one Salvius, a soothsayer, to be their king. This man showed himself fit to command. He divided his followers into three bodies, regularly officered. He enforced strict discipline. To restrain his men from wine and debauchery, he kept them in the field. He contrived to provide two thousand with horses. When his men seemed sufficiently trained, he laid siege to the city of Murgantia. But the slave-masters of Morgantium offered freedom to all slaves who would remain faithful, and Salvius saw himself compelled to retire. The promise, however, was not kept, and numbers of the deceived men flocked to the insurgent camp.

This success in the east of Sicily gave birth to a similar rising in the west, which was headed by a Cilician slave named Athenion, who pretended to read the future in the stars. He soon found himself at the head of ten thousand soldiers, well found with arms and provisions. He gave out that the stars declared his sovereignty: he therefore forbade all robbery; for, said he, "the property of our masters is now ours." He now rashly laid siege to the impregnable fortress of Lilybæum; but finding its capture impossible, he drew off, alleging that an impending danger had been revealed to him.

Meanwhile Salvius, who had assumed the name of Tryphon, fixed the seat of his sovereignty at the fortress of Triocala, which had fallen into his hands, and sent orders to Athenion to repair in person to that place. Athenion obeyed the orders of King Tryphon, and appeared at Triocala with three thousand men. The king now occupied himself with adding to the strength of his new capital. He chose a senate out of his followers. On public occasions he wore the *toga prætexta* of a Roman magistrate, and was attended by the due number of lictors.

The Romans seemed unable to make head against the insurgents, till, in 101 B.C., M. Aquillius, the colleague of Marius in his fifth consulship, took the command. Meanwhile, Tryphon had died, and Athenion had become chief of the insurgents. Aquillius brought them to an engagement, in which he encountered the brave Athenion hand to hand. The consul was severely wounded, but the slave leader was killed. Aquillius remained as proconsul in Sicily for another year, in the course of which time he crushed the last embers of the war. After the fall of Athenion, the insurgents dwindled away to a band of one thousand desperate men commanded by one Satyrus, who at length surrendered to Aquillius, and were by him sent to Rome to serve as gladiators. The story of their end is very touching. Being brought out into the arena to fight with wild beasts, they slew one another at the foot of the altars which stood there; and Satyrus, being left alone, fell upon his own sword.

It is manifest, from the humanity and discipline observed by these unhappy men in their power, that their chiefs must have been originally men of station and education, reduced to slavery by the horrid practice of ancient warfare. The story of their death presents a picture not flattering to Roman civilisation.

Strict measures were adopted in Sicily to prevent a recurrence of these perils. It was made a standing order, confirmed by every successive prætor, that no slave should have a weapon in his possession. Nor was the ordinance suffered to remain a dead letter. Soon after, the prætor L. Domitius received a fine boar as a present. He inquired who had killed it. Finding that it was a slave employed as a shepherd, he summoned the man to his presence. The poor fellow came with alacrity, expecting a reward. The prætor asked him with what he had killed the animal; and finding that it was with a hunting-spear, he ordered the unfortunate wretch to be crucified. Such were the laws by which the masters of the world were obliged to maintain their power.^b

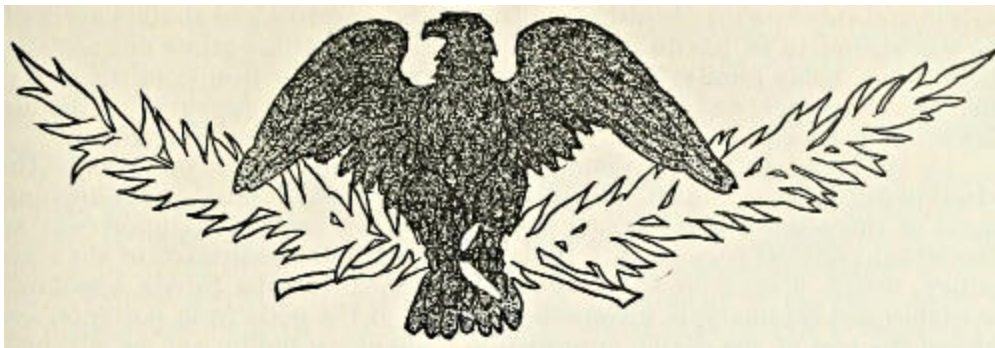
FOOTNOTES

[82] [To this famous speech the historian Florus^g retorts: "But if it had been purchasable, it had a purchaser in him, and since he did not escape, it will appear certain that it is not destined to perish."]

[83] [Such is the story as told by Plutarch (Life of Marius). Ihne^e (v, 109), commenting on “the nonsense and lies that disfigure this campaign,” which, he thinks, are traceable to Lutatius Catulus, and not to Sulla’s *Memoirs*, says: “It is difficult to conceive how such stuff could find its way into serious books of history.” To which it may be replied that if all “such stuff” were eliminated, the story of ancient history would take on quite too sober an aspect,—losing picturesqueness without always gaining authenticity. Strange things are done by men in real life; and the critic who rejects a tale simply because it tells of illogical actions is on very dangerous ground. Moreover, it will be noted that the most iconoclastic critics often give their sanction to incidents quite as improbable as others which they reject. Every intelligent reader is competent to draw his own conclusions as to the probabilities involved in these picturesque tales; but one cannot too often be reminded that pure invention is the rarest of human accomplishments. It is easy to pervert or exaggerate; but it is extremely difficult to create a truly novel situation, or to invent for mankind more incongruous actions than are spontaneously blundered into in actual life. It may well be doubted, then, that any Roman would ever have linked the Cimbrian warriors together in imagination unless those warriors had done something suggestive of this strange expedient. But, on the other hand, when we are told, *e.g.*, that after the “greater part of the Cimbrians were killed,” 60,000 survived to be sold into slavery, the scepticism which is disposed to make the mental reservation of a cipher or two may perhaps be pardoned.]



ROMAN SEAL RINGS



CHAPTER XVII. THE BEGINNING OF CIVIL STRIFE

“When Caius Gracchus fell,” said Mirabeau, “he seized a handful of dust tinged with his blood and flung it toward the sky; from that dust was born Marius.” This phrase of Mirabeau’s, though a whit rhetorical, is historically true. The patricians were willing to cede nothing to the Gracchi, and they were decimated by Marius. The struggle changed its methods: one fought no more with laws as the only weapons, but yet more with proscriptions. Marius was the incarnated pleb; as ignorant, pitiless, formidable, he had something of Danton, except that Danton was no soldier.^b

Marius had taken no part hitherto in the old contentions of classes at Rome. But his plebeian origin, the attitude of defiance he had assumed towards the nobles on the occasion of his first election to the consulship, the outrage he had done to establish usage in the enlistment of proletarians, above all, perhaps, the arrogance with which he had extorted so many successive consulships from the hands of the most illustrious competitors, all combined to mark him as the champion of the “movement party,” whatever its immediate objects or popular cry might be.

Under the shadow of his anti-oligarchical aggressions, the people and their tribunes renewed the demands of the era of the Gracchi. The knights were irritated by the loss of their monopoly of the judicia, and a cry for a new agrarian distribution was always sure to interest a portion at least of the multitude. But envy and spite against unpopular individuals among the nobles were still more effective instruments to work with. Q. Servilius Cæpio, who had been defeated by the Cimbrians, was selected as an object of popular persecution. A few years before he had captured Tolosa in Gaul by an act of signal treachery, such, however, as the Romans seldom animadverted severely upon as long as they were successful. But Cæpio had forfeited their forbearance by his recent disaster, and the hoards of gold which he had rifled from the temples of the Gallic deities were supposed to have brought the vengeance of Heaven upon him, and the country whose armies were entrusted to him. The people, at the instigation of their demagogues, proposed to deprive him of his imperium, confiscate his property, and declare him incapable of serving the state in future. The senate defended its luckless proconsul, who had helped to restore to it a share in the judicia; but the tribune Vibius Norbanus drove the nobles from the comitium, together with two of his own colleagues who sided with them. In the tumult by which this act of violence was consummated

Æmilius Scaurus, the prince of the senate, was wounded on the head by a stone. Cæpio was deprived, cast into prison and subsequently banished, unless indeed, according to another account, he was strangled in his dungeon. The retribution of his crime did not stop here. His noble family was further dishonoured by the licentious conduct of his two daughters, and the gold of Tolosa passed into a proverb, for the unlawful gain which precipitates its possessor into misery and disgrace.

[102-100 B.C.]

In the year 102 the tribune Domitius, transferred to the people the election of the chief pontiff, which had formerly been invested in the appointment of the pontifical college. The head of the national religion was an important political personage. He held in his hands the threads of the state policy, which opened or shut the oracular books of the Sibyls, appointed sacrifices and ceremonials, interpreted the will of the gods from portents, and placed the seal of the divine approbation upon every public act, or withheld it from it. This engine of government had been long firmly grasped by the nobles; it could still be handled only by patricians; but the patricians had ceased to be identified in interest and feeling with the ruling oligarchy, and from the hands of patricians the traditions of the old republic were destined to receive their rudest shocks. The appointment of the chief pontiff by the people became eventually an important agent in the overthrow of the Roman constitution. In the year of the battle of Aquæ Sextiæ, Marcius Philippus proposed an agrarian law, which, however, was rejected. But at the same time another tribune, Servilius Glaucia, carried a resolution of the people for wresting the judicia once more from the senators, and conferring them again upon the knights exclusively. He increased the stringency of an existing law against extortion in the provinces; and to the holder of the Latin franchise, who should convict a senator of its violation, he assured the superior privileges of full Roman citizenship.

THE SIXTH CONSULATE OF MARIUS

[100 B.C.]

When Marius returned to Rome (101) he was already for the fifth time consul. But he was not satisfied with this extraordinary series of honours, and was not the less anxious to obtain a further renewal of his long lease of

office. The nobles, he felt, were his natural opponents. He hastened therefore to connect himself with the leaders of the people, to whom the chief of the aristocracy was personally hostile. Allying himself with the tribunes Servilius Glaucia and Appuleius Saturninus, he mingled his disbanded legionaries with the dissolute mob of the Forum, and by threats, promises, and largesses easily overpowered the votes of the honest citizens.

[84] Marius was raised to a sixth consulship: yet he was neither popular in his manners nor eloquent in his address (100). On the contrary, in all civil matters, it is said, and amid the noise of popular assemblies, the conqueror of the Cimbrians was utterly devoid of courage and presence of mind. The undaunted spirit he showed in the field entirely failed him in the Forum, where he was disconcerted by the most ordinary praise or censure.

In his policy also Marius was unfixed and wavering; and instead of steadily courting the prejudices of the Roman rabble, he favoured and rewarded the Italians, of whom the Roman commons now entertained a deep jealousy. After his late victories he ventured to stretch the prerogative of the consulship to confer the citizenship on a thousand soldiers of the state of Camerinum, who had served him well in the field. The act was illegal as well as unpopular, and Marius did not, perhaps, make it more palatable by the excuse he gave for it: "Amid the din of arms," he said, "I could not hear the voice of the laws." [85]

The tribunes, however, who wished to strengthen their position by a new alliance, bestowed their countenance upon the Italians also. They caused a measure to be enacted, by which Marius was allowed to create three Roman citizens in every colony which enjoyed the Latin franchise, thus enabling him to bestow the boon they chiefly coveted upon many of the soldiers who had distinguished themselves in his service. With the same view Saturninus carried another measure, by which the unfortunate inhabitants of the trans-Alpine provinces were deprived of their estates, and forced to make room for the victors of Aquæ Sextiæ and Vercellæ. The nobles resented these concessions to the conquered Italians, and even the commons regarded them with uneasiness and distrust. They sought to interrupt the proceedings on the occurrence of rain or thunder. "Be still," cried Saturninus, "or it shall presently hail." His adherents armed themselves with stones. Tumults arose in the Forum; the senators and their partisans among the populace were driven away by the fury of the veterans, and Saturninus carried his rogation

with open violence. Marius kept warily aloof, and affected great horror at the illegal disturbance. He excited the nobles underhand to protest against the execution of a law carried in a manner so irregular, which the tribunes insisted on their accepting under specified penalties. As soon, however, as they had committed themselves, Marius withdrew his countenance from them, and left them the choice of submitting with dishonour, or enduring the punishment of refusal. The senators, entrapped and cowed, took the oath required, till it came to the turn of Metellus; but the haughtiest of the nobles, though urged and entreated by his friends to yield to necessity, disdained to swerve from the principles he had avowed. Saturninus demanded that he should be outlawed, and fire and water forbidden him. His friends were numerous and strong enough to have defended him with arms, but he forbade them to draw their swords, and went proudly into banishment.

Saturninus obtained the renewal of his tribunate. He had carried matters with a high hand: on the occasion of his first election he had daringly murdered an opponent; he had thwarted the nobles, and even risked his popularity with the commons by proclaiming himself the patron of the Italians. It was now requisite, perhaps, to recover his ground with his supporters in the city; and for this purpose he imposed one of his freedmen upon the citizens, as a son of their favourite Tiberius Gracchus. This intrigue, indeed, seems to have had little success; Sempronia, the widow of Scipio Æmilianus, and sister of the murdered tribunes, vehemently denounced it, and the people laughed at the imposture, if they did not resent it. But force, after all, was more familiar to Saturninus than fraud. When C. Memmius, one of his adversaries, was about to be elected consul, he caused him to be poniarded in the Forum by the bandits who surrounded his own person.^[86] But he had now gone too far. To save himself he rushed into open revolt. He climbed the Capitol, with his companion Glaucia and his band of ruffians and assassins, seized the citadel, in virtue perhaps of his official dignity, and defied the republic to arms. The nobles retorted upon him with the fatal cry, that he aspired to royalty; and the people, already perplexed at his leaning to the Italians, and shocked, perhaps, at the frantic violence of his proceedings, were not indisposed to listen to it. They acquiesced without a murmur in the decree of the senate, by which the state was declared in danger and Marius charged as consul to provide for its safety.

The city was placed in what in modern times is called a state of siege; that is, the consul, whose ordinary functions within the walls were purely judicial and administrative, received the power of the sword as fully as if he were in the camp. He proceeded to invest the fortress, which was considered impregnable to an attack, and could only be reduced by blockade. By cutting some leaden pipes, upon which, in the security of the times, the citadel of the republic had been allowed to become dependent for water, the insurgents were deprived of the first necessary of life. Saturninus offered to capitulate on the promise of personal safety. Marius guaranteed his life; and in order to preserve him from the fury of the populace, placed him, in the first instance, with his followers, in the Curia Hostilia, a large public building at the foot of the hill. But when the people scaled the walls, tore off the roof, and poured missiles upon the wretched captives, the consul made no effort to save them, and they all perished miserably—a deed of blood which was long remembered, and afforded at a later period the handle for a persecution of the nobles themselves.

No event, perhaps, in Roman history is so sudden, so unconnected, and accordingly so obscure in its origin and causes, as this revolt or conspiracy of Saturninus. The facility with which a favourite champion of the people is abandoned and slain by his own clients, seems to point to some unseen motive, with which history has forgotten to acquaint us. The Roman demagogues were well aware of the inveterate horror with which the people regarded the name of king; and none of them, it may be safely said, notwithstanding the oft-repeated calumnies of their opponents, ever ventured to aspire to it. If it be true then (as the historians represent) that Saturninus was hailed as king by his adherents, and accepted the invidious designation with joy, it is highly probable that his adherents were foreigners and Italians rather than citizens. We have already seen the use which leaders of all parties were making at this time of the claims of the Italians to emancipation from the state of conquered subjects in which they were still held. All in turn pressed these claims, when it suited their particular purpose, nor did most of them scruple to abandon them when their convenience required it. Sometimes the nobles, sometimes the commons, were cajoled into supporting them, as a counterpoise to the aggressions of their immediate opponents; but both the one class and the other were at heart bitterly opposed to them, and the hope of obtaining favour or justice from the republic seems to have gradually disappeared from the minds of

the claimants themselves. They hated Rome, and with Rome they identified, perhaps, republican government itself. They could only hope for redress of their grievances from a revolution which should overthrow the supremacy of the senate house and the Forum. This was the menace from which even the licentious rabble of the city recoiled, and which determined Marius to allow the violation of his plighted faith, and the sacrifice of his friend and ally.^[87] Even if entirely devoid of patriotic feeling, which we may well believe, Marius was deeply interested in preventing any demagogue from attaining a monarchical ascendancy superior to his own.

CLAIMS OF THE LATINS AND ITALIANS TO THE CIVITAS

[100-90 B.C.]

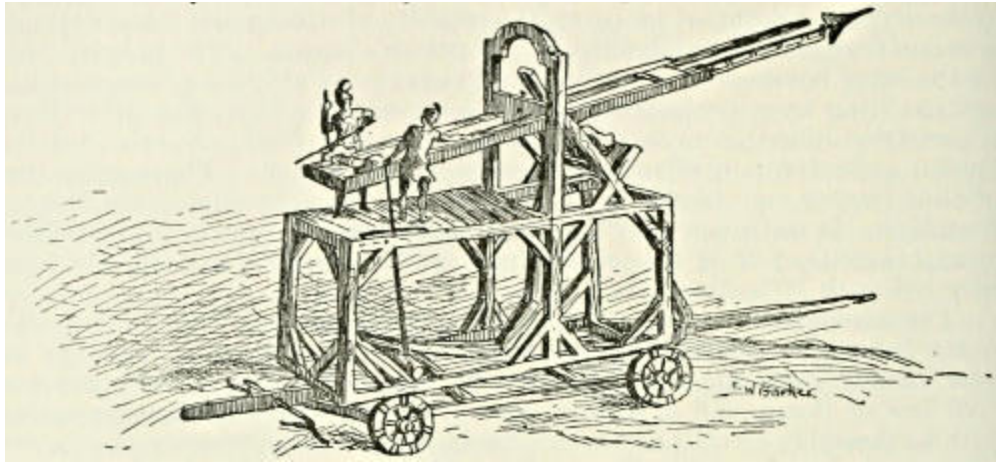
The citizen of Rome, in complete possession of that illustrious title, combined the enjoyment of two classes of rights, civil and political. The civil law regulated the forms and effects of marriage, the exercise of paternal authority, the holding of property, the capacity of willing and inheriting; it secured, further, the inviolability of the citizen's person. The political law, on the other hand, gave the right of suffrage in the election of magistrates, and in voting upon projects of law; it conferred eligibility to public office; it permitted initiation in certain religious rites, and, finally, it conceded the honour and advantage of military service in the legions. The combination of these rights and capacities constituted the complete title to the Roman franchise. It was sometimes thus conferred upon individuals, in reward for special services; in a few cases the inhabitants of a favoured city were invested with it in the mass.

The admission, however, of a foreign city, in alliance with the republic, to the full right of citizenship, required it, in the first place, to renounce its own ancient institutions. The favoured community adopted at once the civil law of Rome, and organised itself internally upon the Roman model, with an assembly of the people, a curia, representing the senate, and superior elective magistrates, generally two in number, corresponding with the consuls. A city thus constituted took the name of a *municipium*, that is, an office-bearing community. The inhabitants, when they presented themselves in Rome, might exercise the right of suffrage there, and were rendered capable of filling any of its magistracies.

It seems, however, that the petty states of Italy, attached to their own domestic institutions, were frequently unwilling to sacrifice them for these advantages, and rejected the concession of political rights, contenting themselves with the acquisition of the civil; which, while they placed them upon a footing of equality with the inhabitants of the city in respect to marriage, family authority, property, and person, did not require the surrender of their own political customs. Rome herself was not unwilling to recognise this distinction, and was wont to dispense the favour of her franchise with affected coyness, conferring her civil rights upon various states in succession, but reserving her political franchise as a special boon for the most meritorious.

Thus were formed within the bosom of the great Roman Empire various classes of communities, of different grades of civil and political condition; but every one among them, which acquired any portion of Roman rights, obtained the common designation of a municipium. Each municipium retained entire authority over everything relating to (1) the exercise of its religion; (2) the administration of its local finances, the election of its magistrates, the maintenance of its edifices and public works; (3) its internal police. The regulation of these matters appertained generally to the *curies* or governing bodies, sometimes to the mass of the people. Accordingly, the *municipes*, or citizens of such a community, possessed, as Cicero proclaims, two countries, the one natural, the other political—the one actual, the other privilegial. Thus, he continues, we regard as our fatherland both the spot where we were born, and that which has adopted us; but that one of the two has the strongest claims upon our affection which, under the name of “commonwealth,” constitutes our own country pre-eminently; it is for that fatherland that we ought to be ready to die. “I shall never deny,” he says, “Arpinum, as my country; but Rome will be always more peculiarly such; for Rome comprehends Arpinum.”

While such were the distinctions introduced by the republic among those whom she adopted as her own citizens, she did not omit to classify also the condition and privileges of the various nations of Latium and Italy which fell successively under her sway.



ROMAN CATAPULT

The first rank among the allies of Rome belonged to the tribes of the Latin confederation; their treaties with the republic contained generally more favourable conditions than were acquired by the other Italian communities. Thus, for instance, the Latins preserved their territory, their laws, their alliances, under the paramount control of Rome; they were placed, as regarded the payment of tribute, upon a footing of almost complete equality with the citizens of the republic; nor could they justly complain of being required to furnish a military contingent to fight side by side with the legions themselves. They could acquire the rights of Roman citizenship by the exercise of certain magistracies in their own state, or by the transfer of their domicile to Rome, provided they left children behind them in their native place, or by the successful impeachment of a Roman officer for political offences. In respect of property they enjoyed a portion of the Roman privileges. But they were excluded from the rights of Roman matrimony, and of paternal authority; from the faculty of willing in favour of a Roman citizen, or inheriting from one; nor could they claim the immunity from stripes and capital punishment, which was counted the most precious of all privileges by a people who invested their highest magistrate with the terrors of the axe and the rod. The condition of the Latin was far better than that of any other subjects of the republic, but it was decidedly inferior to that of the citizen; its most engaging feature was the capacity it conferred of acquiring completer rights, and changing the first foretaste of freedom into its full enjoyment.

This mass of privileges, peculiar, in the first instance, to the Latin cities, and flowing from the rights conceded to them by treaty, became extended in due time, under the general name of *jus Latii*, or *Latinitas*, both to individuals and to communities which had no connection with Latium at all. As the Roman law admitted, by a fiction, the existence of Romans without the city itself, so it allowed the name and rights of Latium to be claimed by more distant foreigners. These foreign Latins, under the name of New Latins, became, in process of time, a distinct class of citizens, a special subdivision of the second rank of the republic's favoured children.

Among the allies of the republic, the Italians occupied a rank next to the Latins. The name of Italy was confined at this period to the peninsula, extending from the rivers Isère and Rubicon on the north to the promontories of Rhegium and Iapygia. The Etruscans, the Umbrians, the Samnites, the Marsians, the Greek communities of Campania and Apulia, in submitting to the Roman arms, had generally made treaties with the republic, but had failed to secure for themselves the advantageous terms extorted by the Latins in the period of her greater weakness or moderation. Yet in transferring their swords to the service of their conquerors, they had merited on many a battle-field the amelioration of their political lot. Accordingly the Italians were allowed, for the most part, to preserve their domestic independence, their laws, magistracies, and tribunals, while they were forbidden to form political alliances among one another; and, though free in outward appearance, they received the commands of Rome, which claimed to decide upon their mutual disputes. Together with domestic liberty they enjoyed, like the Latins, immunity from personal and territorial tribute, and shared with them the same guarantees for the acquisition and enjoyment of property. The chief point in which the Italian was inferior to the Latin was his not possessing the same capacity of becoming a Roman. In the natural order of things, it was requisite for the Italian to pass through the stage of *Latinitas*, or *Latium*, to obtain Roman *civitas*; nevertheless the privileges peculiarly his own were justly regarded as a boon in comparison with mere provinciality; for even within the barrier of the Alps the Gauls and Ligurians hardly escaped the character of enemies of the republic, and were subjected to military control and the severest exactions under the plenary authority of imperators and proconsuls. Accordingly these privileges became an object of desire to the less fortunate subjects of the empire, and, as in the case of the *jus Latii*, so also the *jus Italicum* became

extended, in many instances, to individuals and communities beyond the limits of Italy.

The development of this political organisation, logical and methodical as it appears, was in fact the result of no theoretical legislation, but the gradual and almost fortuitous effect of a series of revolutions. Up to the moment of its complete accomplishment, even the wisest of the Roman statesmen neither counselled nor foresaw it. But thereupon Italy presented, under the supremacy of the metropolitan city, a hierarchy of communities, of which one was already completely Roman; the others more or less nearly prepared to become so; the whole machine, in all its parts and subordinations, seemed to gravitate with a slow and regular movement towards the central point—the franchise of the republic. But this movement was arrested by domestic jealousies and selfish prejudices. The same spirit of isolation and monopoly which had striven, in the time of the kings, to shut the gates of the city against the Latins and Etruscans, which had conceded so slowly and reluctantly the inferior grades of privilege to the Italians themselves, still arrayed itself against the natural tendency of the principle of assimilation. The jealousy of the Roman commons was blind and ignorant; that of the nobles, who came forward to marshal and direct it, was more consciously selfish and interested. All classes, with few and honourable exceptions of individual statesmen, wished to hinder, as far as they could, the Latins from becoming Romans, the Italians from becoming Latins.

The struggle for these privileges had commenced almost from the period of the first conquest of Latium and Italy; but it was not till after the overthrow of Carthage, and the commencement of a brief period of domestic repose, that it attained force and consistency, and succeeded in enlisting in its favour the leaders of Roman parties. With the extension of her conquests in the rich provinces of the East, the citizenship of Rome became more precious; and amidst the degradation of so many subject nations, the allies who had fought and bled for the republic felt themselves entitled to rise to a higher level. The Latins claimed with urgency and vehemence a perfect equality with the Romans, the Italians pretended to succeed, at least, to the privileges of the Latins; but to make the first concession was clearly no less than to open the door to the abolition of all existing distinctions. The Romans were not unnaturally alarmed at the shape in which the question now presented itself to them. The idea of

sacrificing to the conquered the nationality of the conquerors was so new in the history of antiquity that we cannot wonder at the reluctance, the pious horror, with which it was generally regarded. Moreover, practical statesmen, who might soar above the scruples of a mere sentiment, were still perplexed and terrified at the prospect of the administrative difficulties which such a change would introduce. They beheld in their imagination the roads of the peninsula crowded with troops of foreigners hastening to Rome at every recurring election, to swamp the votes of the urban population; or taking up their abode within its walls, and conquering, as it were, the citadel of their conquerors. In the amalgamation of Rome with Italy they could only foresee the annihilation of Rome itself.

Meanwhile the allies, repulsed in every overt attempt to scale the fortress of the constitution, contrived to glide surreptitiously within the sacred pale. As early as the year 286 the censors discovered no less than twelve thousand Latins settled in the city, and pretending to the rank of genuine citizens. The intruders were indignantly expelled. Ten years later a new fraud was exposed. The foreigners sold their children to actual citizens, with the understanding that they should be immediately enfranchised. The stroke of the prætor's wand conferred upon them the full franchise of the city. The precautions and prohibitions of the senate would have been of little avail, had they not been seconded, in a great measure, by the magistrates of the Italian cities themselves, who regarded with jealousy the flight of their own people to Rome, whereby the burden of their domestic dues were enhanced. The Samnites and Pelignians reclaimed four thousand of their own countrymen who had thus established themselves in the Latin town of Fregellæ, there acquiring the Latin privileges and preparing to sue for the Roman. For half a century, however, these fraudulent acquisitions of the Roman franchise were only partial or individual. The agitation of the Sempronian reforms raised a general ferment in the minds of the Italians, and gave force and volume to the tide of their ambition.

It would seem that while the great Roman nobles pretended to detain vast tracts of public domain, they cultivated and even occupied only small portions. The conquered communities, though nominally dispossessed of their lands, were allowed, by abuse and connivance, to enjoy the use of a large part of them. But when the state should resume her rights over these estates, and actually redistribute them among her poorer citizens, the claims

of the intruding natives would meet with no consideration; they would be dispossessed of them a second time, and absolutely excluded from their enjoyment. Accordingly, upon the first mooted of the Agrarian laws of Tiberius, all the Italians found themselves united by the same pressing interest, and they had no other alternative than either to defeat the passing of these laws by combining with the faction opposed to them in Rome itself, or, by obtaining the rights of the city, to acquire a legal title to share with the actual citizens. They hesitated and balanced as to their course; but upon the whole the wish to obtain Roman privileges and Roman exemptions, to escape the tyranny of Roman magistrates and enjoy the fruits of Roman conquest, combined with the legitimate ambition of their soldiers and statesmen to enter upon the noble field of Roman employments, determined them to press their claims to admission. For a hundred and fifty years the various races inhabiting the peninsula, distinct as they were in origin and language, had been arrayed together under the same discipline and a common yoke. The Romans had unconsciously formed their subjects into one nation, and the time was arrived when a common sentiment could arm the whole mighty mass in a combination against them. Italy had at last become a cry and a sentiment not less powerful than Rome herself.

The senate and the nobles, who retained the national feelings in all their strength, girded themselves to resist the threatened innovation; but in the time of the Gracchi, the mass of the commons was already adulterated by foreign admixtures, and felt far less keenly the old prejudices of race and country. Accordingly, when their favourite leaders, overlooking every ulterior consequence rather than justly estimating them, called the Latins and Italians to their standards, the Roman populace were easily persuaded to admit them to a share in their own struggle, and pledged themselves to advance together the respective interests of both. They allied themselves, under the able direction of the Gracchi, turned all their indignation against the aristocracy of the city, which they sought to make their own. They ascribed to the peculiar constitution of Rome the jealous and selfish opposition they encountered, and denounced republican government itself, on account of prejudices incident, in fact, to all conquering races. Monarchy indeed, it may be allowed, is generally more favourable than aristocracy to the surrender of national prejudices; and the Italians acted upon a genuine instinct in invoking kingly rule, and, while the tribunes allured them with

the hope of citizenship, seducing the tribunes themselves with the prospect of the regal diadem. It was said that Saturninus was actually saluted king by his seditious followers; and nothing, perhaps, but the deep impression, so sedulously fostered by the nobles, of the traditional tyranny of the Tarquins, prevented the Roman commons from joining generally in the same cry. But the title of king was destined still to remain the popular bugbear for many centuries; and no man had yet arisen with genius to disguise a monarchy under the republican names of dictator or imperator.

The nobles attacked the tribunes with brute violence; the Roman commons and the Italian confederates they managed by craft and intrigue. At one time they sought to sow dissension between them, at another to outbid their own demagogues in the liberality of their offers, which they took care never to fulfil. They debauched the populace by largesses and amusements, and detached them from the cause of the allies. Alarmed at the progress Marius had made in opening the franchise to his Italian veterans, they contrived, at last, to throw a cloud over the brilliancy of his reputation, and availing themselves of the venal voices of the tribes, to recall Metellus from banishment and consummate another aristocratic reaction. In the insolence of their triumph they enjoined the consuls of the year 95 to expel from the city all the Italians who had domiciled themselves within the walls; and the law of Crassus and Scævola, which repeated the harsh enactments of eighty and ninety years before, convinced the injured subjects of the republic that their mistress had learned neither wisdom nor justice by the triumph of her arms and the extension of her empire.

[95-91 B.C.]

But though conquered, the Italians had not ceased to be formidable. The free constitution of the generality of their cities had nourished a race of able speakers and statesmen, and the Cimbrian War had trained many thousands of brave veterans, who had been disbanded after the battle of Vercellæ, and not yet recalled to their standards by the urgency of any other foreign contest. With these resources among themselves, they had still, moreover, a powerful friend in the Roman tribunate. M. Livius Drusus, a son of the opponent of the Gracchi, whom the senate had commissioned to promise still ampler concessions to their assailants than the Gracchi themselves, had devoted himself in earnest to the policy which his father only pretended to advocate. But in assuming the patronage of the reformers, the younger

Drusus did not abandon the party of the nobles with which he was hereditarily connected. He sought, with every appearance, it may be allowed, of honest zeal,^[88] to conciliate the interests of all parties. He restored the judicia to the senators, while, at the same time, he introduced three hundred knights into the senate. He coupled these measures with a promise of lands to the needy citizens, and of the franchise to the Italians and Latins. Of all the Roman demagogues Drusus may justly be esteemed the ablest and the wisest. Full of confidence in himself, his views were large, and his frank and bold demeanour corresponded with them. He affected the generous virtues of the ancient republic. When his architect offered him the plan of a house so disposed as to exclude his neighbours' supervision, "Build me rather," he exclaimed, "a dwelling in which all my countrymen may behold everything I do." His principles however were less rigorous than his pretensions. The necessities of his position, which required him to make friends of all parties, demanded an exorbitant outlay, and the means by which he supplied it were reprobated as dishonourable. His profusion surpassed that of all his predecessors in the arts of popular flattery; and he ventured to vaunt that his successors would have nothing left to give but the skies above and the dust beneath them. His manners were overbearing, and might suggest the idea that he aimed at regal domination. He spoke of the commonwealth as "his own"; and when the senators invited him to attend at their ordinary place of meeting, he replied that he would await their coming in the curia of Hostilius, which happened to be most convenient to himself. Such was the man whom the Italians gladly invoked as their leader. In his sickness all the cities of the peninsula offered vows for his safety. It seemed as if the salvation of the country depended upon his recovery.

Drusus required indeed strong support in that quarter to enable him to bear up against the odium excited by his measures among the privileged orders at home. Even in his own house he was surrounded by timid and murmuring friends; his own family were imbued with hostility to his avowed policy. Among them was his nephew, M. Porcius Cato, at that time about four years old. A chief of the Marsians, admitted to the uncle's hospitality, amused himself by asking the child to support the cause of the Italians. Cato, so ran the story, frowardly refused; he was offered playthings and sweetmeats; still he refused. At last the Marsian, piqued at his obstinacy, held him from the window by the leg, and again demanded his

assent, threatening to cast him headlong unless he yielded. But caresses and menaces were equally fruitless, and the Marsian sighed to think of the resistance he must expect to encounter from the men, if a mere child could display such dogged inflexibility.

[91 B.C.]

During the progress of the tribune's intrigues, the indisposition of both the senate and the knights to his measures became more strongly marked; and notwithstanding the adherence of some of the principal nobles, he was compelled to draw closer the bands of alliance between himself and the Italians. The impatience of his foreign associates was not easily restrained, and he was obliged himself to denounce a plot they formed for murdering the consuls at the great festival of the Latin *feriæ*. But his influence waxed more and more powerful with them, and the oath they took to promote the common interests of the confederacy expressed their entire devotion to the person of their generous leader. They swore that they would have no other friends than his friends, that they would count his foes their foes, that they would spare nothing, neither their parents, nor their children, nor their own lives, for his advantage together with that of the common cause. "If I become a Roman citizen," the oath continued, "I will esteem Rome my country and Drusus my benefactor." The senate heard with indignation of the progress of these intrigues, at the moment when it was called upon to ratify by a vote the proposal for conferring the franchise upon its mutinous subjects. It was informed that Pompædus Silo, the chief of the Marsians, was marching at the head of ten thousand men, along by-roads and with arms concealed, towards the city, to intimidate the nobles. A force was despatched to intercept his progress, and a parley ensued, in which the leader of the Romans assured his adversary that the senate was actually prepared to concede the boon required.



ROMAN CUIRASS

For the moment blows were averted; but in the curia the discussion was still animated and the decision dubious. The classes opposed to the concession had gained some of the Italians to their side, and with the support of the Umbrians and Etruscans, alarmed at the projected foundation of new colonies in their territories, ventured still to withhold the concession. When the day for voting arrived, the consul Marcius Philippus attempted to break up the meeting. One of the tribune's officers seized and throttled him till the blood sprang from his mouth and eyes. The city was now thrown into a state of the fiercest excitement. Tribunes were arrayed against tribunes, nobles against nobles, Romans against Romans, Italians against Italians. The streets were traversed by armed bands on either side. Everything seemed to portend a bloody solution of the crisis. At this juncture Drusus, attended by a number of his adherents, was returning one evening to his house. Passing along an obscure corridor he was heard suddenly to cry out that he was struck, and fell to the ground with a poniard planted in his groin. In a few hours he expired, exclaiming with his dying breath, "When will Rome again find so good a citizen as myself?" The assassin had escaped in the crowd (91).

The murder was generally imputed to the senatorial party, and especially to the consul Philippus. The magistrates omitted to make inquiry into the circumstances, while the murdered man's opponents hastened to abrogate such of his measures as had already passed into laws; and his adherents were too stupefied to resist. Severe decrees were speedily issued against the Italians, and they were peremptorily forbidden to interfere in the affairs of the republic. An obscure tribune of foreign extraction, named Varius, was put forward by the knights to impeach some of the principal nobles, as reputed favourers of the movement. A Bestia, a Cotta, a Mummius, a Pompeius and a Memmius were condemned and banished. Among the accused was the illustrious Æmilius Scaurus. The only reply he deigned to make to the charge was this: "Varius the Iberian accuses Scaurus prince of the senate, of exciting the Italians to revolt. Scaurus denies it. Romans! which of the two do you believe?" The people absolved him with acclamations. But the knights still thirsted for vengeance upon their hereditary enemies, and the actual outbreak of the threatened insurrection alone prevented them from effecting a wider proscription of the most unpopular of the nobles.

The allies flew desperately to arms. The death of Drusus and the prostration of his adherents within the city reduced them to their own national resources; but their last scruples vanished with the loss of their Roman associates. The Marsians were summoned to take the lead, and their chief Pompædus Silo was the soul of the confederacy. Eight or more nations, the Picentines, the Vestines, the Marrucines, the Pelignians, the Samnites, the Lucanians and the Apulians, together with the Marsians, gave mutual hostages and concerted a simultaneous rising. Now for the first time they vowed to unite together in a permanent association. They proposed to constitute a great federal republic, organised on the model of Rome herself, with a senate of five hundred, two consuls, twelve prætors, and for their capital the central stronghold of Corfinium in the Apennines, to which they gave the name of Italia. They struck medals bearing the impress of the Sabellian bull trampling under foot the Roman she-wolf. This alliance indeed was confined for the most part to the nations of Sabellian origin, and its decrees were issued in the Oscan language, the common root of the idioms then in use among the central tribes of the peninsula. The Etruscans, the Latins, and the Umbrians held aloof from it, and together with Campania, which was already thoroughly Romanised, adhered to the fortunes of Rome. The Bruttians no longer existed as a nation, and the cities of Magna Græcia had ceased to have any political importance. The Gauls beyond the Rubicon, who had joined Hannibal against the Romans, long since exhausted by their struggles, made no effort now to recover their independence.

What was the relative strength of the combatants now arrayed against each other? Three centuries earlier, at the date of the great Gaulish invasion, the nations of Sabellia, together with the Apulians, could arm, it is said, 200,000 men, while the Etruscans, Latins, and Umbrians vaunted 120,000 warriors. Supposing, therefore, the proportions to remain the same at the later period, the allies alone who still remained to the republic may have balanced in numbers three-fifths of the whole force opposed to her. At the same time the census of Rome herself gave a total of at least four hundred thousand warriors; and she could draw vast numbers of auxiliaries from her provinces and dependencies beyond the limits of Italy. The forces, therefore, of Rome trebled or quadrupled those of her adversaries. She occupied, moreover, the chief places of strength throughout their territories, securely fortified against sudden attacks, and communicating with one

another and the capital by the great military roads. But from this formidable enumeration of her resources great deductions have on the other hand to be made. It was necessary to maintain powerful garrisons at every point of her vast empire. Greece and Spain, Asia and Africa, drew off her life-blood from the heart to the extremities. The disposition of her allies was doubtful and precarious; her own citizens were capricious, and might easily be seduced by the arts of the demagogues, while her internal dissensions had made her suspicious of many of her ablest statesmen. The mass of the commons of Rome took no vital interest in the political question for which the Italians contended, and served in the legions with no other feeling than that of mercenaries.

THE SOCIAL WAR

[90 B.C.]

The Social or Marsic War commenced in the year 90. The republic was taken by surprise, while her adversaries had already completed their preparations and hastened to assume the offensive. The Italian consuls, the Marsian Pompædus and Papius Mutilus, a Samnite, commanded two different branches of the confederacy—the one acting in the north between the Adriatic and the frontiers of Etruria, whence he sought to penetrate by the valley of the Tiber to Rome; the other directing himself against Campania and Latium on the south. While such was the disposition of their principal armies, various detachments, led by Judacilius, Lamponius, Afranius, Præsentius, Vettius Scato, Marius Egnatius, Herius Asinius, and others, were charged with the reduction of the strong places occupied by the Romans in the heart of their own country. The whole confederacy was in a moment in arms, and the final embassy which it despatched to Rome announced the defection of three-fourths of Italy. The senate boldly refused to listen to demands extorted by the sword, and required the allies to lay down their arms before presuming to ask a favour. The consuls summoned the citizens to their standards, and while Alba in the country of the Marsians, Æsernia in Samnium, and Pinna in the Vestinian territory, kept the confederates in check, they drafted a hundred thousand men into the legions, and went forth to confront the enemy. Lucius Julius Cæsar undertook the defence of Campania, Publius Rutilius placed himself on the line of the Liris and Tolenus, which cover Rome in the direction of the

Marsians and Pelignians. Perperna, with a smaller detachment, maintained the communications between the consular armies, and guarded the approach to Latium through the frontier of the Volscians. The great Marius himself, of whose fidelity the senate might entertain suspicion, was entrusted with a small force on the flanks of Rutilius, while Cæpio and Pompeius, Sulpicius and Crassus were directed to harass the operation of the enemy by making incursions within their territories, and menacing their armies in the rear. A considerable reserve was kept at the same time in Rome itself, and the gates and walls duly repaired and guarded against a sudden attack. Since the flight of Hannibal the city had forgotten the possibility of being again exposed to a siege.

But the Romans had scarcely time to make these dispositions before the Italians rushed impetuously upon them, and broke their lines in various quarters. The consul Cæsar was routed by Vettius Scato in Samnium, and driven from the gates of Æsernia and Venafrum, which he was anxious to support. While the first of these places continued to hold out against a rigorous blockade, the other was surrendered by treachery and its garrison put to the sword. Mutilus defeated Perperna, turned to the left and threw himself into Campania. Disregarding or masking the fortresses on his flanks and rear, he traversed the country with his troops, received the submission of Nola, Pæstum, Stabiæ, Salernum, massacring some of their defenders, and pressing others into his own ranks. But the hearts of the Campanians were still with Rome. Naples, Nuceria, Capua, and Acerræ remained firm, even while their territories were overrun by the Samnite, their slaves liberated and enlisted by thousands among the soldiers of the confederacy.

The losses and disgraces of the Romans still crowded upon one another. Lamponius defeated Crassus and recovered Grumentum, the strongest place in Lucania; while Canusium and Venusia in the same quarter were taken by Judacilius. Cæsar sustained a second defeat from Egnatius in attempting to relieve Acerræ, Pompeius received a check on the frontiers of Umbria, and lastly the consul Rutilius, drawn into an ambuscade by Vettius Scato, was routed and slain on the Tolenus with a large part of his forces. Marius, who was posted lower down the stream, was advertised of his general's disaster by the corpses wafted past him by the descending current. He promptly crossed the river, and took possession of the enemy's camp in their rear, while they were still occupied in gathering the trophies of their victory. But



TRIBUNES IN THE DRESS OF A WARRIOR

the success of this brilliant manœuvre failed to compensate even one of the many discomfitures the arms of the republic had received.

The spirits of the victors of so many encounters were elated to the highest pitch. The Etruscans and Umbrians began to falter in their allegiance to Rome, while the envoys of the Italians were seeking a more distant and still more formidable alliance at the court of Mithridates, king of Pontus, a chieftain whose power and resources the republic had not yet learned to measure. The Romans on their part, though neither dismayed nor disconcerted, began to feel the imminence of their danger. The sense of peril restored, perhaps, their national feelings of pride and mutual confidence. The bodies of the consul and the brave officers who had fallen had been carried into the city, and had excited the deepest sensations of

distress. The senate was compelled to decree that henceforth the dead should be buried on the spot where they fell. As in the days of the Gallic tumults, all the citizens arrayed themselves in arms, and swords were placed in the hands of the freedmen, of whom several corps were formed for the defence of the city and its environs. In this attitude of grave resolution they awaited the arrival of succours from the provinces. Sicily signalled its fidelity by the zeal with which it furnished the necessaries of war. The Cisalpine Gaul sent ten thousand soldiers to the army of Cæsar at Teanum; and he was further reinforced by numerous bodies of Moors and Numidians. Enabled now to reassume the offensive he advanced once more to the relief of Acerræ, defeated Mutilus with great slaughter, and threw succours into the place. The citizens were reassured by this gleam of victory, and resumed within their walls the garb and occupations of peace.

MARIUS ASSUMES THE COMMAND

With this victory of Cæsar fortune began to turn to the side of the Romans, but still with faltering and uncertain steps. After the defeat of Rutilius the senate had united his shattered forces with the divisions of Marius and Cæpio, but so deep was its jealousy of its veteran general that it combined his inexperienced colleague in the command with him with equal authority. Cæpio, dazzled by a trifling success, allowed himself to fall into the snares of Pompædus. The Marsian, pretending to deliver himself up to the republic, came with two young slaves, to personate his own sons, as hostages, with ingots of gilt lead to represent gold, and offered to surrender to the Roman the army confided to him. Cæpio put himself under his guidance, and was led into an ambuscade. Pompædus galloped to an eminence under pretence of reconnoitring, and gave the signal to his troops. The Romans were surrounded, attacked, and cut to pieces, and Cæpio the proconsul with them. This disaster, followed by the surrender of Æsernia, which had suffered the extremity of famine, compelled the senate to transfer to Marius the undivided command of all its forces in that quarter. He commenced his operations with the same circumspection which he had manifested in his campaign against the Teutones. By the able choice of his positions he secured the frontier against the inroads of the victorious Marsians, whom he refused to encounter in the open field with his own beaten and dispirited soldiers. "If you are so great a general," exclaimed his opponent, "why come you not to the combat?" "So powerful and so victorious, why do you not compel me?" replied Marius.

But when the proper moment arrived, the conqueror of the Cimbri knew how to profit by it. He engaged the enemy and defeated them with great slaughter, including the loss of Herius Asinius, chief of the Marrucinians. But the peasant of Arpinum, the accomplice of Saturninus, the man who had defied the nobles of Rome, who had armed the proletaries, and enfranchised the Italian veterans, could not fail to cherish sympathy with the nations now opposed to him. To Marius at least the war was a civil war, and many of his legionaries appear to have entertained a similar feeling. When his troops found themselves arranged in front of the forces of Pompædus, they recognised in the opposite ranks many of their own guests and kinsmen. They called one another by their names, and made kindly

gestures with their hands. The two chiefs came forth from the ranks and entered into conversation together, deploring the unnatural contest which had so long divided them. Encouraged by the familiarity of their leaders the soldiers themselves broke from their lines, and mingled with one another in the plain, like citizens in their common forum. We may believe that Marius would have been well pleased to put an end to the war by the concession upon the spot of demands to which he at least was indifferent or favourable. But he commanded a portion only of the forces of the republic, and besides the army of Cæsar in the south, he was checked by the jealous observation of his own lieutenant Sulla, who had already more than once snatched the laurels from his hand. He was forced to engage the enemy once more; but he fought without spirit, and refused to complete his victory. The honour of the day fell again to his youthful rival, who attacked the Italians in their retreat, and thoroughly routed them. It was the first time, according to the boast of the vanquished Marsians, that the Romans had ever won a battle either against them, or without them.

Marius might plead the languor and ill-training of his raw soldiers for the want of spirit he had himself manifested; but the easy success which followed upon the more decisive blows of his subordinate were sufficient to refute him. The same vacillating and inconsistent politician, who as tribune had repudiated a popular measure, who as consul had launched himself against the senate, who had seconded Saturninus and presently reduced him to submission, who had favoured the Italians and finally had led the legions against them, had now once more abandoned his post, and grounded his arms in the moment of victory. After the affair of Saturninus, suspicious and suspected on all sides, he had retired moodily into voluntary exile. He now renounced the command by which he had made the Italians his enemies without securing the gratitude of the Romans, and pretended that age and infirmities unfitted him for the duties of the camp. He retired to his villa at Misenum, formerly the residence of the mother of the Gracchi, while Sulla sprang into his place at the head of the legions and at the summit of popular favour.

Meanwhile the Roman arms had been crowned with success in other partial encounters. The Umbrians and Etruscans, who had threatened for a moment to join the general defection, were chastised and checked. But fresh dangers were accumulating in the remoter distance. The trans-Alpine

province was harassed by an insurrection of the Salyes, which required to be promptly repressed, and the king of Pontus was preparing to take up arms and wrest from the republic her possessions in the East. At such a conjuncture policy might dictate the concessions which pride had so resolutely refused, and in the moment of victory they could be accorded with a better grace. The consul Cæsar was empowered to carry a law for imparting the franchise to all the Italian states which had held aloof from the general insurrection, together with those already in the enjoyment of Latin rights. The *lex Julia*, both in its principle and its immediate effects one of the most important enactments of the republic, required the citizens of such states, including Umbria, Etruria, and the southern extremities of the peninsula, to come in person to Rome, and demand the freedom of the city within sixty days. The time allowed for deliberation was not long, and the hardships and dangers of the journey might deter many even of those who could resolve at once to renounce their own laws and institutions for the charges and immunities of the metropolis. It is probable therefore that the concession was after all more specious than real; and that the numbers who actually availed themselves of it were but limited. Nevertheless, it served to impart new hopes to the Italians, to distract their councils, and to relax the sinews of resistance.

[90-88 B.C.]

With the commencement of the second year of war (89), the Romans were enabled to assume the offensive in every quarter. Cn. Pompeius and Porcius Cato, the consuls of the year, assailed the confederates in the north; the one in Picenum, the other on the banks of the lake Fucinus. Sulla and Cæsar turned their legions against Mutilus in Campania, while the cities of Apulia and Lucania were attacked and recovered by officers of inferior note. Porcius himself was slain in battle with the Marsians, but his death was speedily avenged by his colleague. Judacilius, who commanded in Asculum, unable to repel his besiegers, constructed a pyre in the principal temple of the place, and laid his couch on the summit. He then caused a repast to be served, took poison, and applied the torch. The Romans entered the undefended walls, massacred the inhabitants, and reduced the city to ashes.

Asculum was the bulwark of the Italian confederacy in the north, and its fall opened the heart of their territories to the Romans. Another great defeat,

with the loss of Vettius Scato, crushed the spirit of the Marsians, the Pelignians, and the Marrucinians, who hastened to lay down their arms. Pompeius, the victorious general, obtained a triumph, and among the captives who were led in chains before his chariot was a child, carried at his mother's breast, who lived to become a consul at Rome and to gain the honour of a triumph himself. This was a native of Asculum, by name Ventidius, whose strange reverse of fortune deserved to become the theme of public admiration. The laurelled car was followed by the Roman legionaries, and among them we may suppose was a youth, who gained in after times a far nobler reputation, Cicero, the chief of Roman orators, who earned under the auspices of Pompeius his first and only stipend.

In the south, the death of the late consul Cæsar had thrown upon Sulla the conduct of the war. The cities of Campania fell successively before his prowess and good fortune. Stabiæ was overthrown, Herculaneum and Pompeii capitulated. His progress was checked for a moment by a mutiny in a division of his forces, in which his lieutenant, Postumius, lost his life. Sulla recalled the men to obedience, and required them to expiate the slaughter of a citizen by torrents of hostile blood. Assured of their ardour and devotion to his ascendant genius, he led them against the Samnite general, Cluentius, and gained a sanguinary victory under the walls of Nola. Leaving this impregnable fortress behind him, he next entered the territory of the Hirpinians, and sacked their capital, Æculanum. Meanwhile a Roman officer, named Cosconius, penetrated into Lucania, and defeated Egnatius by treachery. The shattered remnant of the confederate armies, reduced to thirty thousand men, were enclosed in the defiles of the Apennines. Pompædus, the last survivor of the gallant band of Italian generals, sought to envelop the Romans, as his last resource, in the flames of a servile insurrection. He summoned the slaves to rise throughout Italy, and put arms into their hands; at the same time he continued to press Mithridates for succours, and his emissaries solicited the subjects of the republics in Greece, Asia, and Africa. The final struggle of the expiring confederacy was not uncheered by a gleam of sunshine. Pompædus gained a victory, and entered Bovianum with the imitation of a Roman triumph. But his success was transient, and his laurels quickly faded. He was slain in the third year of the war in an encounter with the prætor Metellus, near Teanum in Apulia (88).

Nevertheless the exultation of the Romans at the gradual change in their fortunes had been repressed by the alarming accounts they continued to receive from Asia, where the king of Pontus, the ablest and most powerful opponent they had yet encountered in the East, was shaking the edifice of their dominion to its centre. They hastened to send their best general and their choicest armies to meet him; and they were disposed in the moment of victory to make further concessions, in order to disengage themselves from the hostility of the crushed and broken Italians. The *lex Plautia-Papiria* extended to all their Italian allies the privilege which had been accorded to Umbria and Etruria by the *lex Julia*. The franchise, that is, of the city was offered generally to such of the Italians as chose to claim it in person within sixty days. The Romans followed up this specious concession by great moderation in the use of their final victory. Very few, at least, of the captive chiefs of the confederacy were punished with death. The territory of the subjected cities was not confiscated to the state, although the condition of its finances compelled the senate to sell the lands appropriated to the pontiffs and augurs beneath the shadow of the Capitol itself. The Italians, weary of the war, were easily appeased by this politic treatment. Corfinium, the presumptive rival of Rome, dwindled once more into a petty provincial town. The political combination of the states of the peninsula, the offspring of a moment of enthusiasm, fell in pieces, never to be reunited again; and even their common language, proscribed by the Romans in the public instruments of their cities, fell into disuse, and was speedily forgotten. But the results of the war still lingered after the war itself had died away. Bands of armed marauders continued to prowl about the country, exciting partial movements in various quarters. The mountains of Samnium, and the great forests of Sila, continued to harbour the enemies of peace and order rather than the enemies of Rome. There, for more than half a century, the materials of insurrection were never wanting; political outlaws and fugitive slaves still maintained themselves against the regular forces of the republic; life and property were rendered insecure; the rustic labourer and the wayfaring man were kidnapped on the public roads; even in the cities men began to accustom themselves to the wearing of weapons, nor did the dignified and noble venture to travel abroad without an armed retinue of clients and retainers.

[88 B.C.]

The *lex Plautia-Papiria*, so called from the tribunes who effected its enactment, offered, as we have seen, the franchise to all the allies of Rome in Italy. The boon, however, was far from universally accepted. The richest and the poorest classes were those to which alone it proved seductive—to the former, for the sake of sharing the fruits of distant conquest; to the latter, on account of the largess it offered to the dissolute and idle. Of these classes many, we may suppose, flocked to Rome, and took up their residence within reach of the Forum. The names of the chiefs of the Italian confederacy, of Papius and Egnatius, of Asinius and Cluentius, of Vettius and Afranius, rank from henceforth among the aristocracy of Rome; while her orators and historians might plausibly attribute the increasing degeneracy of the inferior populace to the foreign elements which now began so deeply to tinge it. But the middle classes of the Italians, to whom these advantages were less accessible, and to whom constant attendance at assemblies and elections was impossible, found themselves amply compensated for the loss at home, where, content with their own municipal privileges and honours, they could enjoy without rivalry or disturbance the comfort and dignity of self-government. The number of new citizens thus enrolled on the list of the censors was not disproportioned, perhaps, to the new tribes, eight, or as some say ten, which were now added to the existing thirty-five. The citizen was still compelled to present himself in person at the polling-booths; the distance of his actual residence could not plead against inveterate usage and the sanction of the national religion. For the Roman Forum was a holy place, elections and assemblies were holy ordinances, sanctified by auspices and ritual ceremonies; the devices of modern governments, by which the votes of federal communities can be taken on the spot, or their voices represented by local delegates, were inadmissible on the principles of Roman, and indeed generally of all ancient polity.

The theory that the same individual could not be at the same time a citizen of two states, and that in accepting the prerogative of Roman *civitas*, he forfeited the franchise of his native country, might cause many devoted patriots to hesitate in accepting the proffered boon. Several cities, especially those of Greek origin, to whom the institutions of Hellenic civilisation were justly dear, such as Naples, Heraclea, and Puteoli, continued steadfastly to reject it. Brundisium did not at once accept it, but received the Roman privilege of immunity from the land tax at a later period from Sulla. We are at a loss to ascertain the regulations under which the municipal governments were conducted, where the inhabitants were nearly equally divided between Romans

and Italians. It is probable, however, that the concession became speedily accepted almost throughout the peninsula. The right of suffrage might be justly disregarded, but citizenship conferred rights of property, marriage, and immunity from taxation, which were felt to be substantial benefits. The inviolability of the person, and exemption from official caprice and tyranny, were advantages also which could not fail to be highly prized. From henceforth the admissibility of the provincials to the privileges of the capital became more generally recognised as a fundamental principle of policy. The full franchise was conceded in special instances to various states in Spain, Africa, and Gaul, and it became necessary to declare what nations, from their barbarism and inveterate hostility, as for instance the Germans and certain Gaulish tribes, should be formally pronounced ineligible.

The enrolment of the Italians among her own citizens deserves to be regarded as the gravest stroke of policy in the whole history of the republic. In modern times it has been frequently condemned as an unqualified error, and the general approbation it met with from the Roman writers may, doubtless, be explained by the fact that the masters of Roman literature were in almost every case Italians or provincials themselves; but in fact they require no such excuse for the opinions they have so generally expressed. They judged correctly in pronouncing the policy of comprehension upon which the republic now boldly entered, and from which she never long departed till the whole mass of her subjects were incorporated with her own children, both just and salutary. Doubtless it helped in some measure to accelerate the destruction of the old national sentiments; but these were already mortally stricken, and were destined quickly to perish in the general corruption of society. It reduced the legions more directly to instruments of their general's personal ambition; but the strongest check to that fatal tendency had been already removed by the enlistments of Marius, and these the necessities of the state, as we have seen, had both justified and approved.^c

FOOTNOTES

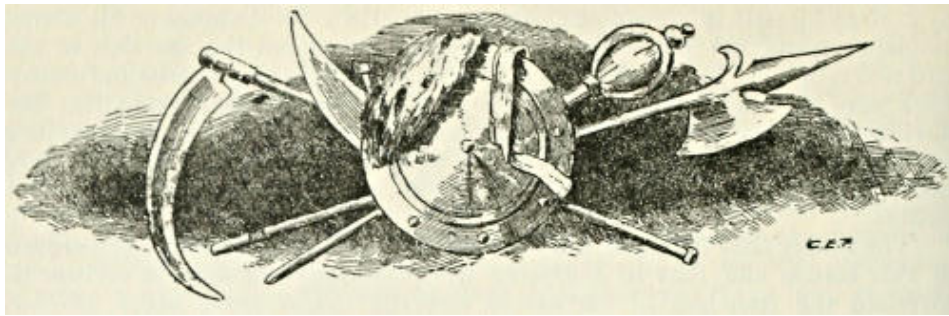
[84] [Appian^f informs us that Saturninus had at his back the country people, who were the honest citizens, whereas the dissolute mob of the Forum supported the senate. This fact has been generally overlooked.]

[85] [As a representative of the rural class, Marius consistently favoured the Italians; he was not so ignorant nor so wavering as has generally been assumed. It was the rabble which opposed Italian interests.]

[86] [His opponents, rightly or wrongly, accused him of this crime.]

[87] [Ihne^d says: "Marius found himself placed in an awkward dilemma. He was no longer able to control his own party, and was being carried along by them against his will far beyond the point to which he had intended to go."]

[88] [Ihne^d says of him, "He had something of the noble enthusiasm of the Gracchi. Generous and free from all selfishness and meanness, but without political experience, adroitness, and knowledge of men, he aspired to a task which surpassed his strength." Velleius Paterculus^e calls him "a man of the noblest birth, the greatest eloquence, and the strictest purity of life; but who in all his undertakings was more distinguished by ability and good intention than by success."]



CHAPTER XVIII. MARIUS AND SULLA

The personal rivalry of her two most fortunate generals becomes now the main channel of the history of Rome herself. In the year which closed the contest of the republic with her dependent allies (88), Sulla was forty-nine years old, Marius about seventy. The former was enjoying the full breeze of popularity and renown, while the latter, wearied but not sated with accumulated honours, was moodily throwing away the advantages he had earned in his earlier career. From campaign to campaign Sulla, as we have seen, had dogged the steps of the elder warrior, always ready to step in and seize the opportunities which the other cast recklessly in his way. Not that Marius in his exalted station was even from the first indifferent to this incipient rivalry. He was deeply jealous of his subordinate. He felt chagrin at the contrast presented by their respective birth and origin; for Sulla, though needy in point of fortune, was a scion of the illustrious house of the Cornelii, and plumed himself on the distinction and advantage such a lineage conferred. Sulla, moreover, was trained in the accomplishments of Hellenic education, which Marius, conscious of his want of them, vainly affected to despise. Sulla wrote and spoke Greek; his memoirs of his own life became the text-book of the Greek historians of Rome,

from whom we principally derive our acquaintance with him. But this varnish of superior culture seems to have failed in softening a rough plebeian nature. Sulla was one of many noble Romans who combined with pretensions to literary taste the love of gross debauchery, and pleasure in the society of mimes and vulgar jesters. He was a coarse sensualist and by his disregard of the nuptial tie offended even the lax morality of his age. His eyes, we are told, were of a pure and piercing blue, and their sinister expression was heightened by the coarseness of his complexion and a countenance disfigured by pimples and blotches, compared by the raillery of the Greeks to a mulberry sprinkled with meal. His manners, except when he unbent in the society of his inferiors, were haughty and morose; nor is there any act of kindness or generosity recorded of him. The nobles who accepted him as their champion had no personal liking for him. But selfish and ambitious though he was, the aggrandisement of his party and order was with Sulla a species of fanaticism. He despised the isolated ascendancy of a Marius, and aspired to rule in Rome at the head of a dominant oligarchy.

Marius had quitted the camp at the most critical moment of the war, and while he buried himself in a distant retreat, Sulla brought the contest to a close, having obtained his election to the consulship for the year 88. The imminence of a new war with Mithridates had hastened the arrangements for the peace, and Sulla was still consul when it became necessary to select a general to command in the East. For this important service both his merits and his position gave Sulla the highest claim; but Marius was mortified and jealous, and cursed his own folly in having at such a moment withdrawn himself from the public eye. He returned impatiently to Rome, and showed himself once more among the young soldiers who trained and exercised themselves in the Field of Mars, running, wrestling, and climbing poles in rivalry with the most vigorous and active among them, to prove that, though old in years, he possessed the energy requisite for command. But the nobles had no wish to gratify the man they feared and distrusted, while they had found one of their own order, on whose fidelity they could rely as implicitly as on his valour. They mocked the clumsy feats of the veteran candidate, and persuaded the people to follow their example, and send their old favourite with jeers to his retreat in Campania.

The enterprise demanded a man of the maturest powers and the highest abilities. Pontus, on the eastern shores of the Euxine Sea, the region from which Mithridates derived his title, constituted but a small part of the dominions over which he ruled. His patrimonial kingdom he inherited from a succession of princes of high Persian extraction, and he was himself the sixth sovereign of his

own name. To the north he had extended his sway over the tribes of the Cimbric Bosphorus as far as the banks of the Borysthenes or Dnieper, while to the south he had received from his father the sovereignty of Phrygia, which the republic had sold for a sum of money. This country, indeed, the Romans had again wrested from him at an early period of his reign; but he had taken advantage of their dissensions to interfere in the affairs of Cappadocia, to murder, it is said, its sovereign, and at last to place upon its throne an infant child of his own. The armies of Mithridates were recruited from the hardy barbarians of the Caucasus and the Taurus; but his generals were mostly perhaps of Greek extraction, skilled in military science hardly less than the Romans themselves. Nor had he failed to enlist in his service many able citizens of the republic, for the allegiance of the Romans sat but loosely upon them in the provinces, and they were easily swayed from their principles by the seductions of eastern civilisation. His own genius was conspicuous both in war and peace. He was robust in bodily frame, and expert in martial exercises. The story that he had fortified his system against poison by the constant use of antidotes is a mere romance which modern science has pronounced impossible; nor is it much more credible that he could converse, as has been asserted, with the various tribes of which his kingdom was composed, in twenty-five different languages or dialects. Our accounts of the great king of Pontus are derived entirely from Roman sources, and we cannot rely implicitly upon the particular instances of ferocity and perfidy recorded of him. As an Oriental, however, it is but too probable that he maintained himself in power by the usual arts of oriental conquerors, by shameless fraud and remorseless cruelty.

THE FIRST MITHRIDATIC WAR

[92-88 B.C.]

In the year 92, the Romans interfered to overturn the appointment Mithridates had made to the throne of Cappadocia. Mithridates did not venture to resist, but he secretly instigated Tigranes, king of Armenia, to invade the country and expel the nominee of the republic. Ariobarzanes fled to Rome, and there obtained assurance of support. Sulla, at this time prætor in Cilicia, was ordered to reinstate him, while the king of Pontus still remained tranquil. But the state of the republic's affairs in Italy soon emboldened him. The death of a king of Bithynia gave him an opportunity; and he dared to defy the western conquerors by setting up a pretender to the throne of which they claimed the disposal. At the same time he made a descent upon Cappadocia in person, and expelled the luckless Ariobarzanes a second time.

The disasters of the Social War were now carrying dismay and consternation to the heart of the republic. Sulla had been recalled to aid the efforts of her best commanders in her defence. Nevertheless, when the fugitive appeared once more before the senate with entreaties for its support, he did not appeal in vain to the old Roman constancy. An army was despatched to restore him, and once more Mithridates bowed to the storm, and retired from the disputed territory. But the Roman officers in the East were not satisfied with this act of submission. They incited their allies to harass and invade his dominions, and when appealed to by him, refused to check their aggressions. Then at last did Mithridates arm in his own defence. With an immense force he burst upon the territories both of the republic and its allies. He chased Ariobarzanes a third time from his dominions, defeated the king of Bithynia, supported by the legions of Rome, in a great battle on the river Amnias in Paphlagonia, routed the Roman commander in a second engagement, overran Phrygia and Galatia, and proclaimed himself a deliverer to the subjects of the republic in the East. His advent was hailed by the provincials with acclamations. The insolence of the conquerors and the tyranny of their fiscal agents had excited deep discontent among them. On the mainland almost every city joyfully opened its gates to Mithridates, and when in the intoxication of his triumph he issued, as we are told, a decree for the massacre of all the Roman residents in Asia, it was promptly obeyed, if indeed, as we may fairly conjecture, it had not been spontaneously anticipated. Eighty thousand citizens—some say 150 thousand, though even the lesser number is probably a gross exaggeration—are stated to have fallen by this bloody act of retribution.

THE FIRST CIVIL WAR

[88-87 B.C.]

Meanwhile the senate was preparing to encounter this formidable assailant with adequate forces, and had pitched, as we have seen, upon Sulla to take the command. Marius was disgusted at the inactivity to which he found himself condemned amidst the derision of the populace. In his retirement at Misenum he meditated revenge. The new citizens of Latium and Italy were already mortified at finding the inefficiency of their votes, confined to a small minority of the tribes, and the slender importance attached to their favour. Their nobles complained of their want of influence, their proletaries of the paltry price their votes commanded. Marius conceived the idea of turning their discontent to his own advantage. Between him and them there was an ancient sympathy, and this it was easy to improve into strict alliance. He offered to repair the injustice of

the senate towards them, and to diffuse them among the old tribes of the city, in which their voices would be more powerful than when cooped within the narrow limits of a few separate divisions. Marius recommenced his old game of popular agitation.

Among the tribunes was Sulpicius Galba, whose eloquence and learning and high aristocratic connections had raised him to eminence in the state, but who under the pressure of debt was ready to sell his services to a patron who could hold out to him at least a distant prospect of sharing the spoils of Mithridates. With this guerdon in view, he paused at no excess. Taking Saturninus as his model, he studied only to surpass him in audacity. He marshalled a body of six hundred knights around his person, and gave them the name of his opposition senate. He attacked the consuls in the public assembly with a band of armed men, and seized and massacred the son of Pompeius Rufus. Sulla, the other consul, being pursued, made his escape into the house of Marius, where he was least likely to be sought for, and so baffled the pursuers who ran past him. Marius himself received the credit of concealing and letting him out by another door, but Sulla, we are told, made no acknowledgment of such a service in his memoirs. Marius indeed was for the moment triumphant. Sulpicius, having cleared the Forum of his chief opponents, prevailed on the populace to nominate his patron to the command in Asia; and the new proconsul, while preparing to set out on his mission, despatched two tribunes to receive the army of Sulla. But Sulla, escaping from the Forum, had repaired directly to his camp. He had inflamed the fury of his devoted soldiers by the recital of his double injury. While the officers, men of birth and national feeling, refused to listen to his solicitations, the men responded to them without scruple, and carried his banners towards Rome, killing the emissaries of Marius on the way. Joined by Pompeius Rufus with the ensigns of the consulship, these tumultuous bands resumed the appearance of a regular army; and Sulla could avow himself with some show of legality the defender of the state and avenger of the insults she had sustained in the person of her chief magistrates.

This daring movement was entirely unexpected. Six legions advanced upon the city, and the men who had just seized the government were totally unprovided with arms to resist them. Marius sent two prætors to meet the enemy, and command them to desist; but the soldiers neither listened to them, nor paused in their march. They were stripped of their togas, their fasces were broken, and themselves ordered to return with every mark of indignity. Such violence betokened worse to follow. The citizens were dismayed, and without regard either to Marius or Sulpicius, sent envoys to entreat the advancing

generals to halt, while they promised to do full justice to their cause by legal and peaceful measures. Sulla himself, it is said, had faltered in his daring design; but he was reassured by a dream, in which a strange divinity, whom the Romans had learned to worship in the East, placed a thunderbolt in his hand, and directed him to launch it against his enemies. He advanced, and Marius, having vainly attempted to raise troops to oppose him, fled with precipitation. As he entered the city tiles and stones were hurled on his soldiers from the house-tops; but a threat of burning the city soon reduced every opponent to submission. Sulla had conquered Rome.^[89]

But the conqueror was moderate in the use of his victory. He caused his troops to observe the strictest discipline, and limited his personal vengeance to exacting the death of twelve of his enemies. Sulpicius was betrayed by one of his own slaves, and put to the sword. Sulla enfranchised the betrayer for his obedience to the edict, and then cast him from the Tarpeian Rock for his treachery to his master. Marius himself escaped out of the city, while a price was set upon his head, and upon that of his son also. On the morrow Sulla summoned the people to assemble in the Forum. He explained to them that factious foes had compelled him to resort to force; but having once taken up arms he was determined not to lay them down till he had secured the power of the insulted nobles against the future aggressions of the tribunes. Sulpicius, during his brief tenure of power, had recalled the exiles of the Varian law, and increased the influence of the Italians in the comitia. Sulla abrogated all these enactments, and to insure the permanence of his own, repealed the solemn statute which gave the force of law to the *plebiscita*, or resolutions of the people. The violence of Marius drove his rival to the opposite extreme, and established a counter-revolution upon the ruins of tribunician ambition. But Sulla was not yet prepared to enforce an oligarchical tyranny against every constitutional prescription. He left the people the free exercise of their suffrages, and professed himself not dissatisfied with their boldness in rejecting a nephew of his own as a candidate for the consulship.

Cn. Octavius, a firm but independent supporter of the senate, obtained one place; but the people gave him for a colleague L. Cornelius Cinna, well known as a partisan of Marius. Sulla pretended, perhaps, to guide them in this latter choice; he claimed the right of binding the new consul to favour his own measures by a solemn vow. At his direction Cinna ascended the Capitol, with a stone in his hand, which, when he had taken the oath, he hurled to the ground, imprecating upon himself that he might be cast as violently out of the city, if he failed to observe it. The Romans were deeply impressed by such religious

formalities; and the peculiar horror with which they regarded Cinna's later atrocities was coloured, perhaps, by indignation at his perjury. For, no sooner had he entered upon his office than he proceeded at once to disturb the settlement he had pledged himself to respect, and caused a process to be instituted against Sulla himself. But Sulla was eager to commence operations against Mithridates, and neither stayed to meet the charge nor to punish the accuser. The victory he anticipated would be a sufficient answer to the people, and give him the means of completing the policy of which he had hitherto laid only the foundations.



CAIUS MARIUS

Meanwhile Marius was flying for his life, and hiding the head upon which a price had been set. His romantic adventures are narrated with great animation by his biographer Plutarch. On quitting Rome he was separated in the darkness of the night from the partisans who aided his escape. Retiring to a farm he possessed at Solonium he despatched his son to get provisions from a kinsman in the neighbourhood; but during his absence, fearful of a surprise, or suspicious, perhaps, of his nearest friends, he abandoned this retreat and hurried to Ostia, where he knew that a vessel was in waiting for him. The son reached the place to which he had been sent, but the house was immediately invested by the enemy's scouts, and he was with difficulty saved from their pursuit, being conveyed in a wagon, hidden under a load of beans, to the house of his wife in Rome. The next night he made his way to the sea, and embarking in a vessel bound for Libya,

arrived there in safety.

The elder Marius was wafted along the coast of Italy by a favourable wind, but fearing to fall into the hands of Gemini, a personal enemy, one of the chief people of Tarracina, he charged the mariners to avoid touching at that place. Unfortunately the wind changed, and a strong gale setting in shore, they were unable to keep out at sea. The old man himself, alarmed at his danger, and tormented with sea-sickness, bade them run to land, which they reached near Circeii. They were now also in want of provisions, in search of which they descended from the bark, and wandered along the shore. Some herdsmen to whom they applied, but who had nothing to give them, recognised Marius, and

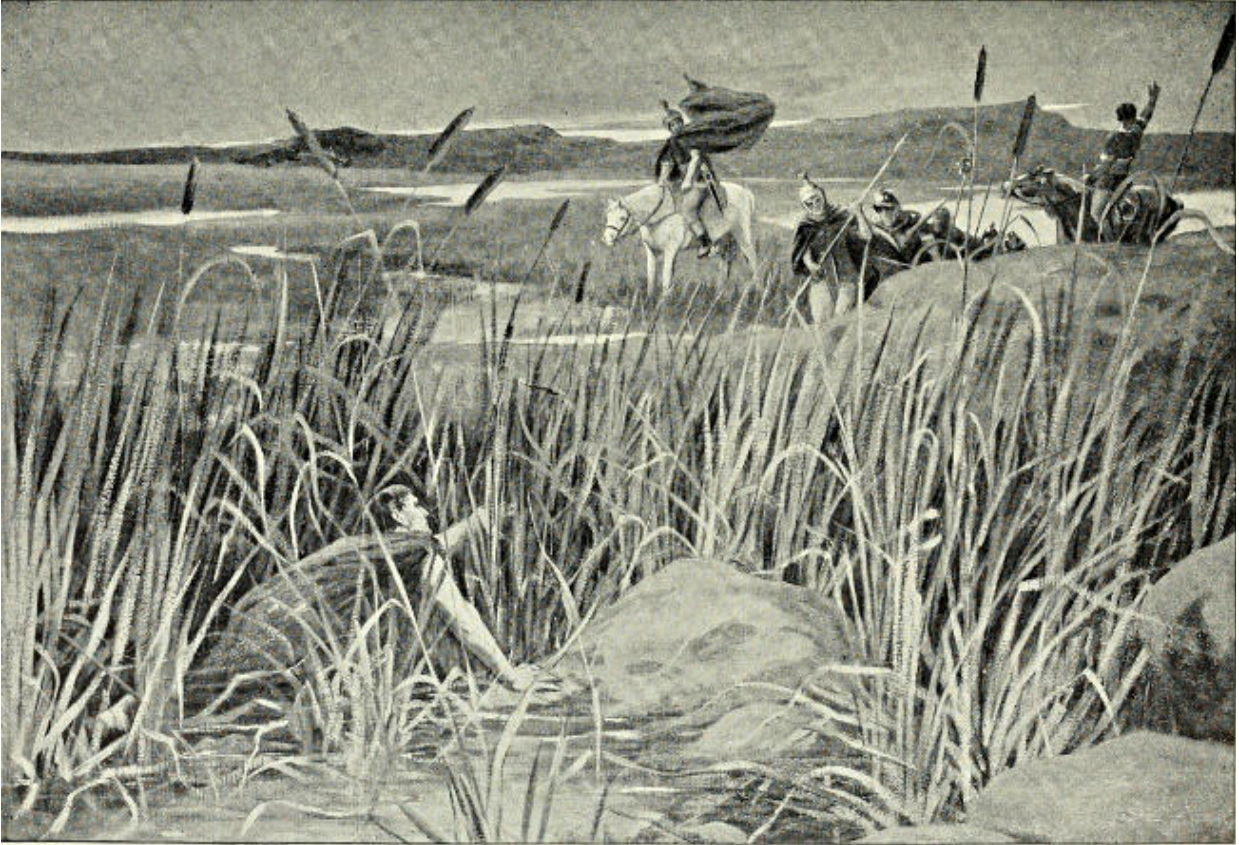
warned him that horsemen had been just seen riding about in quest of him. Weary and famishing, his life at the mercy of companions hardly less harassed than himself, he turned from the road and plunged into a deep forest, where he passed the night in extreme suffering. The next day, compelled by hunger, and wishing to make use of his remaining strength before he was completely exhausted, he once more sought the highways in quest of some hospitable retreat. He kept up his spirits and those of his followers by repeating to them the prodigies which had foretold his greatness in youth, and assured them that he was destined to enjoy the highest magistracy yet a seventh time. He had arrived within two or three miles of Minturnæ, when they perceived a troop of horse advancing towards them, and at the same moment two barks sailing along the coast. Running down to the sea as fast as their strength would allow, and casting themselves into the water, they swam towards the vessels. Marius, corpulent and heavy, and quite overcome with fatigue, was carried or hurried along by the exertions of his slaves, and with difficulty lifted on board, while the horsemen, following closely in pursuit, shouted to the sailors to abandon him in the waves. The sailors touched with pity at first refused to surrender him, and the horsemen rode off in anger; but they presently changed their minds, brought their bark to shore, and induced Marius to quit it, and take food and rest on land, while they waited, as they pretended, for the evening breeze. As soon as he was lifted out of the vessel and laid on the grass his bearers rejoined the ship; the sails were hoisted, and he found himself betrayed and abandoned. For some time he lay in despair; at last he rose, and made another effort to save himself.

The coast near the mouth of the Liris, at which he had been put on shore, was a desolate swamp, through which the wretched Marius waded with pain and difficulty, till he reached an old man's lonely cottage. Falling at his feet he begged him to save a man who, if he escaped from his present dangers, would reward him beyond all his hopes. The man, who either knew Marius of old, or perceived in the expression of his countenance the greatness of his rank, offered him shelter in his hut, if shelter was all he needed, but promised to conceal him in the marshes, if he was flying from the pursuit of enemies. With the old man's assistance Marius hid himself in a hole by the river's side, and covered himself with reeds and sedge.

But Geminus of Tarracina was in hot pursuit. After ransacking every place of refuge far and near, he reached the hut in the morass, and loudly questioned the occupant. Marius, who overheard what was passing, seized with a paroxysm of terror, drew himself out of his hiding-place, and buried himself up to the chin in the water. In this position he was discovered, dragged out, and led naked to

Minturnæ. The magistrates here and elsewhere had received orders to make search for the fugitive, and to put him to death when taken. The decurions of Minturnæ met to deliberate, and resolved to execute the sentence and claim the reward. But none of their citizens would undertake the ungracious office. Marius was placed in custody, in a private house; a Cimbrian slave, a captive of Vercellæ, was sent with a sword to despatch him. Marius was crouching in the darkest corner of the chamber, and the man, so ran the legend, declared that a bright flame glared from his eyes, and a voice issued from the gloom, "Wretch, dare you to slay Caius Marius?" The barbarian immediately took to flight, and throwing his sword down rushed through the door, exclaiming, "I cannot kill Caius Marius." The Minturnians were shocked and penetrated with remorse: "Let him go," they said, "where he pleases, as an exile, and suffer in some other place whatever fate is reserved for him. And let us pray that the gods visit us not with their anger, for ejecting Marius from our city in poverty and rags." Thereupon all the chief people of the place presented themselves before him in a body, and offered to conduct him with honour to the seacoast, furnishing him at the same time with everything requisite for his comfort. There was need of expedition, and their nearest way lay through the sacred grove of Marica, into which whatever was once carried was never permitted to be again carried out. But when an old man exclaimed that no road was impassable to Marius, his voice was hailed as a divine monition, and superstition herself fell before the champion of Italy.

Marius thus effected his escape from his nearest pursuers. He set sail for Africa, but landing for water on the coast of Sicily, was very nearly taken and slain. On the shores of Africa he hoped to find allies among the chieftains of Numidia, with whom he had formed relations of amity at the period of his war against Jugurtha. He landed to await the result of his negotiations. While he sat in silent meditation among the ruins of Carthage, himself a livelier image of ruin hardly less appalling, the Roman governor of the province sent to warn him to be gone. The Numidians could not venture to shelter him, and he was compelled to take refuge on an island off the coast, where he continued for a time unmolested.



MARIUS HIDING IN THE MARSHES

While the conqueror of the Cimbrians was thus flying before the face of his own countrymen, and his triumphant rival prosecuting the war against Mithridates in the East, affairs were hurrying on to a new and unexpected revolution at Rome. The Samnites had never entirely laid down their arms at the general pacification of Italy; they rose under their leader, Pontius Telesinus, excited fresh movements among the slaves and bandits in the south of the peninsula, and at one moment threatened a descent upon Sicily. Metellus Pius, to whom the repression of this new Social War was entrusted, was unable to bring the enemy to a decisive engagement, but continued to make head against them with various alternations of success. The army of the north was still arrayed in Picenum, under the banners of Pompeius Strabo, who showed no disposition to relinquish his command at the conclusion of hostilities in that quarter. The senate despatched the late consul Pompeius Rufus to receive its legions from his hands. But it had no means of satisfying the soldiers' demands for pay or largesses, and its emissary met with a cold reception from these disappointed mercenaries. Their discontent soon broke out in open mutiny, instigated, as has been generally suspected, by Pompeius Strabo himself. Rufus was massacred before the altar at which he was sacrificing. Strabo presently

appeared among the mutineers, and restored order, without instituting inquiry or inflicting punishment. Such were the dispositions of the army and the general upon whom Rome was now compelled to rely, both for the pacification of Italy and the maintenance of the established government.

As soon as Sulla had withdrawn to Asia, Cinna made no further concealment of his designs. Avowing himself the restorer of the late order of things, he demanded the recall of the exiles of his party, and the restoration of the laws of Sulpicius, that is to say, the full and final emancipation of Italy. In the actual temper of the public mind, such demands could not fail to produce a sedition in the Forum. Such, in fact, was the result. A disturbance ensued, and blood was shed. But Cinna had miscalculated his strength. The new citizens, upon whose efforts he relied, were few in number. The senate, his colleague Octavius, and even a majority of the tribunes of the plebs, together with the mass of the original citizens, united themselves against him. They flew to arms, and drove his partisans out of the city. Cinna, we may suppose, counted in this abortive attempt upon the support of Pompeius Strabo, while that general, reserved and perhaps undecided, contented himself with observing it from a distance, and leaving the two factions to weaken and exhaust each other.

The victorious party proceeded to deprive Cinna of the consulship, and elected L. Merula, a flamen of Jupiter, a man respectable for his birth and reputed integrity, in his room. Cinna, proscribed and outlawed, betook himself to the new citizens of Campania, and declaimed to them on the persecution to which he was exposed for his devotion to their interests. The Campanians discovered more zeal for the defence of their newly acquired rights than they had evinced in the struggle to obtain them. Cinna succeeded in collecting an armed following. Many exiles of his party flocked to his standard, and among them was Q. Sertorius, an officer of distinction. Nor did he scruple to unite himself with the Samnites and Lucanians, the avowed enemies of the republic. Clothed in black, with disordered hair and beard, he ventured to enter the camp of the Roman general commanding in Campania, and moved the soldiers to compassion at the sight of a consul kneeling to them in supplication. They insisted on placing themselves under his orders. At the head of a Roman army he demanded the restitution of his rights, and vowed the destruction of his opponents.

Wandering from coast to coast, and threading the ambuscades of a thousand enemies, Marius was not unapprised of the events that were passing. He found means of communicating with his friends, and when he suddenly threw himself on the coast of Etruria, he was joined by several adherents with a band of five

hundred fugitive slaves. Etruria was crowded, as we have seen, with a population of serfs, whose native masters kept them in a state of degradation and misery. Unconscious of the political questions in agitation, these men flocked to the adventurer's banner as the symbol of vengeance and plunder. While Marius advanced upon the city from the west, Cinna was slowly approaching in the opposite direction.

At the same time Sertorius and Carbo threatened her from other quarters, and Rome found herself encircled by four armies of her own rebellious citizens, backed by the resources of the Samnite insurrection. To resist these accumulating dangers, the senate hastily recalled Metellus, bidding him make peace with the Samnites on any terms. But the conditions they exacted in the insolence of this triumph—admission to the franchise, compensation for their losses, the surrender without return or reciprocity of their fugitive slaves—were intolerable to the pride of the Roman general. Metellus ventured to disobey his orders, and broke off the negotiation. He left a small detachment under his lieutenant Plautius to check the advance of the enemy, while he hastened in person to Rome. Plautius was speedily overpowered, and the rebel Romans were reinforced by the whole strength of the Samnite confederacy, which devoted Rome itself to destruction. There can be no peace, they exclaimed, for Italy until the forest shall be extirpated in which the Roman wolves have made themselves a den. The senate was reduced to extremity. Envoys were despatched to the quarters of Pompeius Strabo in Picenum; his command was acknowledged, his services were invoked, his return to the defence of the city earnestly entreated. At this moment Strabo might feel himself the arbiter of his country's destinies; but he still vacillated as to his course, and continued apparently to treat with both parties, until the advancing successes of the Marians diminished the value of his adhesion.

Treason was at work within the city. For a moment Rome was opened to Marius, and he well-nigh succeeded in effecting his entrance by a gate on the side of the Janiculum, from which he was repulsed after a sharp engagement. Mutiny broke out in Strabo's camp, which he had advanced almost to the walls. His soldiers seem to have personally detested him; a conspiracy was formed against his life, and defeated only by the devotion of his son, who threw himself on the ground and declared that the mutineers should pass over his body before they reached the object of their fury. The young Pompey was already beloved by the soldiers, and this spirited defiance saved the life of the father. But famine and pestilence quickly followed. The populace of the city were swept off in great numbers, nor were the soldiers, on either side, exempt from the contagion.

The consuls, abandoning the unwholesome districts round the walls, withdrew their legions to the Alban mount. Strabo himself fell a victim to the disease, or, as some accounts relate, was killed by lightning. It is not improbable that he was actually assassinated.

This last blow paralysed the resistance of the senate. A first deputation was sent to Cinna, to arrange terms of accommodation. When these were refused, a second was only charged to solicit an amnesty. Cinna received it seated in his curule chair, with the ensigns of the consular office which he claimed to bear. Marius stood by his side, squalid and unshorn, and clothed in the black rags of an exile and an outlaw, and his gloomy silence interpreted, in the worst sense, the ambiguous reply which Cinna vouchsafed the deputation. But no further time was allowed for parley. The senate hastened to invite her conquerors within the walls.

Then, at last, Marius opened his mouth with bitter words: "An exile," he exclaimed, "must not enter the city." The restoration of Cinna to his consulship, of his associate to his dignities and privileges, may have saved Rome from being delivered to the Samnites for destruction; but the victorious generals had still their own soldiers to satisfy, and they did not shrink from surrendering the city to plunder and massacre. They had pledged their words for the safety of the consul Octavius, and the augurs whom he had consulted had ventured to assure him of his security. Fortified by these assurances he had repelled the entreaties of his friends to effect his escape, and had declared that as consul he would never desert his country. He had betaken himself with a small retinue to the Janiculum, and there seated himself in his curule chair, with the ensigns of his office around him. Here he soon learned that neither the dignity of his office nor the promises of the victors would command respect. But he refused to rise from his place, and when a band of assassins approached him, calmly offered himself to the sword.^[90] His head was severed from his body, and carried to Cinna, by whose order it was suspended before the rostra. This, it is said, was the first instance of the public exhibition of these horrid trophies of civil war, and the custom, which became but too frequent in the subsequent contests of the Roman factions, was thus inaugurated in the person of the highest magistrate of the city. As the massacre proceeded, the bodies of the knights and meaner citizens were cast out for burial, but the mangled heads of the senators were reserved for exhibition in the Forum. The thirst for vengeance or plunder was succeeded by a savage delight in the horrors which accompanied it, and the populace itself, debauched and degraded, learned to gloat upon the blood of the victims. In the list of slain are included many of the noblest names of Rome. P. Crassus, who

had been both consul and censor, either slew himself or was killed by the assassins. M. Antonius, celebrated at the time, and long afterwards remembered as one of the greatest of Roman orators, was murdered by the leader of a body of soldiers, whom he had almost moved by his eloquence to spare him. Two of the Julii, kinsmen of Julius Cæsar, the future dictator, suffered. Some were caught and murdered in the act of flying; others, who ventured to throw themselves upon the mercy of Marius, were coldly repulsed and cruelly slaughtered.

Marius himself seldom condescended to answer their entreaties; but his followers were instructed to spare those only to whom he held out his hand to kiss. The swords of the hired assassins were directed, in the first instance, against the adherents of Sulla and the aristocratic faction, the special objects of the conqueror's vengeance; but their numbers were speedily swelled by slaves and Italians, who sacrificed men of every party to their indiscriminate fury.

For a few days Cinna and Marius allowed these ruffians to riot unchecked. At last they deemed it necessary to arrest their career of systematic murder and pillage. Sertorius was charged with the task of repressing them with a military force, and the assassins themselves were made to feel the edge of the sword they had so long wielded with impunity. But the new rulers of the city continued to destroy by the forms of judicial process the victims who had escaped tumultuary violence. Cinna could not pardon the illustrious Merula the crime of having succeeded to the consulship of which he had been himself deprived. The flamen of Jupiter opened his own veins, after a solemn declaration in writing that he had previously laid aside his tufted cap of office, that he might not involve his country in the guilt of sacrilege. Catulus, the noble colleague of Marius in the last battle against the Cimbri, threw himself on his knees, and vainly begged for life. "You must die," was the only response vouchsafed him; and he was compelled to suffocate himself with charcoal in a newly plastered chamber.

[87-86 B.C.]

Cinna and Marius now began to reorganise the government of the state. Not deigning even to summon the assembly of the tribes, they nominated themselves by their own authority to the highest magistracy. Marius became consul for the seventh time. At the age of seventy, with his health broken and strength failing, which had borne him through so many fatigues, he reached the summit of his aspirations and accomplished the prediction, the assurance of which had nerved his courage in such dire vicissitudes. Nevertheless, while Cinna reserved for himself the administration of affairs in Italy, the old general was destined to

resume the command of the legions, and wrest from Sulla the conduct of the war against Mithridates.

Sulla, indeed, it was already reported, had driven the king of Pontus to sue for peace, and was about to return and measure himself once more with the usurpers of the commonwealth. Marius, upon whom the auguries of his young rival's ultimate success had made no less impression than the prognostications of his own triumphs, shuddered at the approaching contest, in which he felt himself doomed to be worsted. Harassed by terrific dreams, or worn out by nightly watchings, he sought escape from his own thoughts by constant intoxication.^[91] Wearied with life, he could hardly wish to protract the existence which had become so intolerable a burden to him. One evening, it was related, while walking with some friends after supper, he fell to talking of the incidents of his life, beginning with his boyhood; and after enumerating his triumphs and his perils, no man of sense, he said, ought to trust fortune again after such alternations; upon which he took leave of his friends, and keeping his bed for seven days successively, thus died. We are tempted to suspect that, impelled by disgust and despair, he shortened his last days by suicide. The deceased consul's obsequies were celebrated with pomp, and accompanied, if we may believe the story told us, with a frightful ceremony. In ancient times, according to tradition, it had been customary to slaughter slaves or captives on the tomb of the departed hero; but if any such usage had actually prevailed among the Romans, it had been long softened at least into an exhibition of gladiatorial combats.

On this occasion, however, the tribune Flavius Fimbria determined to immolate a noble victim to the manes of the dead. He therefore caused the venerable Mucius Scævola, the chief of Roman jurists, to be led before the pyre, and bade the sacrificer plunge a sword into his bosom. The wounded old man was allowed to be carried off and tended by his friends, under whose care he recovered. But when Fimbria heard that he still lived, he brought him to the bar of judgment, and being asked what charge he had against him, coldly replied, "Having escaped with life." The story thus told by Valerius Maximus is founded, perhaps, on a misapprehension of a passage in Cicero, who only says that Fimbria required Scævola to be wounded.^[92] If the tribune had intended to



STANDARD BEARER

make a sacrifice, he would hardly have suffered it to remain incomplete. Only eleven years before, human sacrifices had been abolished by a decree of the senate. But in many expiatory and lustral rites, the shedding of a drop of blood was retained as a type of the ancient usage with which it has been frequently confounded. It may be added, that the historians have passed over this shocking occurrence in total silence; and the actual death of Scævola will be related at a later period.^b

IHNE'S ESTIMATE OF MARIUS

“The judgment pronounced on Marius by posterity is not, like that on many other eminent men, wavering and contradictory. He is not one of those who to some have appeared heroes, to others malefactors, nor has he had to wait for ages, like Tiberius, before his true character became known. Disregarding the conscious misrepresentations of his personal enemies, we may say that he has always been taken for a good specimen of the genuine old Roman, uniting in his person in an exceptional degree the virtues and the faults of the rude illiterate peasant and the intrepid soldier. No one has ever ventured to deny that by his eminent military ability he rendered essential service to his country. Nobody has doubted his austere virtues, his simplicity and honesty, qualities by which, no less than by his genius for war, he gained for himself the veneration of the people. On the other hand, it is universally admitted that as a politician he was incompetent, and that he was only a tool in the hands of those with whom he acted. But morbid ambition and revengeful passion urged him at last to deeds which make it doubtful whether it would not have been better for Rome if he had never been born. He has, therefore, neither deserved nor obtained unmixed admiration; but as his darkest deeds were committed in moments when he was half mad from sufferings and indignities he had endured, and when perhaps he hardly knew what he was doing, he may, in the opinion of humane judges, gain by comparison with Sulla, who acted from reflection and in cool blood when he consigned thousands to death and enacted the horrid spectacle of the proscriptions.”^c

Cinna now chose for his colleague Valerius Flaccus, the same who, as consul fourteen years before, had aided Marius to crush the conspiracy of Saturninus; an appointment which seems to betoken considerable respect for the usages of the state; for Flaccus, though formerly both consul and censor, had taken much less part in the recent contest than either Carbo or Sertorius, whose inferior rank counterbalanced their higher services. Cinna was now actively engaged in

fulfilling his pledges to his allies. Censors were elected on purpose to effect the complete emancipation of Italy by suppressing the ten Italian tribes, and enrolling the new citizens of the Plautian law among the thirty-five tribes of the city. Whether this inscription was based upon a principle of numerical equalisation, or of geographical distribution, or whether it was attempted to combine the two, we have, perhaps, no means of determining; but thus the last remaining distinction between the Romans and Italians was effaced, for as many at least of the latter class as chose to avail themselves of the proffered privilege. The Samnites, Lucanians, and others still scorned to accept it. Another measure, undertaken by Flaccus, was more delicate, and more generally interesting. The consul ventured to enact an adjustment of debts, and relieve the accumulating distress of the poorer citizens, by enabling all obligations to be cancelled by the payment of one-fourth of the principal. He exchanged, as the Romans phrased it, silver for coppers; for the copper coin called the as was made equivalent for the purpose to the silver sesterce, which at this time was of four times its intrinsic value. After so long a series of wars and revolutions, and the fatal changes which had long been operating in the possession of property, it is possible that this measure was adopted as a necessary expedient. But whatever the urgency of the occasion may have been, the stroke was of fearful augury for the future, and did not fail to kindle criminal hopes in the dissolute and discontented for more than one succeeding generation. Having accomplished this important measure, Flaccus placed himself at the head of the legions destined for the Pontic War, and proceeded to the East to watch the movements of Sulla.

While yet unchecked by the best troops and most accomplished generals of the republic, Mithridates had obtained the most astounding successes. The kingdoms of Bithynia and Cappadocia had fallen without resistance into his hands. The Roman province of Asia had succumbed, and even received its new master with acclamations. From thence he had crossed the Ægean Sea, accepting the submission of its rich and flourishing islands, and his admiral Archelaus had captured Athens itself, with its harbour in the Piræus and all its naval stores and equipments. The Greek cities were, for the most part, favourably disposed towards the liberator, who promised to break the rod of proconsular oppression. It was impossible to foresee how far the contagion of provincial disaffection might spread; and when Sulla landed on the eastern shores of the Adriatic, his task had swelled to the reconquest of one hemisphere of the empire.

SULLA IN GREECE

Nor had he now, like his predecessors in the career of eastern conquest, the undivided resources of the commonwealth to sustain him. Sulla was conscious that he was only the general of a party which, though for the moment triumphant, was, he well knew, insecure, and every express that arrived to him from Rome brought him alarming accounts of the fears and perils of the friends he had left behind him. He reached Greece at the commencement of the year 87 with a force of five legions, which he had no means of recruiting, and he might apprehend that in the course of another year he would be superseded by another commander, the nominee, perhaps, of his enemies. He had not a moment to lose. Instead of checking the licentiousness of his soldiers, and drawing tighter the long relaxed bands of discipline, which must have been a work of time and leisure, he was compelled to stimulate their ardour and secure their obedience by additional indulgence and license more complete. The course of his march he allowed to be marked by plunder, devastation, and sacrilege. He traversed Greece and Asia to gorge his men with booty before he turned their arms against the invader from the East. The sacred treasures of the temples at Epidaurus, Ephesus, and Olympia fell successively into his hands. When the spirits of his soldiers were elated to the utmost, he led them under the walls of Athens, which he speedily reduced, and devoted to pillage. In Bœotia he encountered the enemy in the open field, and routed them in the great battle of Chæronea (86). Flaccus was now advancing upon his steps, and summoning him to surrender his command to his legitimate successor.

[86-84 B.C.]

He was about to turn boldly upon the intruders, confident of his soldiers' devotion, when Mithridates placed a second army within his reach. A second great battle at Orchomenos broke the power of the king of Pontus, reducing him to act on the defensive beyond the waters of the Ægean. Greece remained as a clear stage for the Roman armies to contend upon. At the close of the year 86 Sulla had taken up his quarters in Thessaly, while Flaccus, not venturing to engage him, had moved in a lateral direction, and watched him from the neighbourhood of Byzantium. Among the new consul's officers was Flavius Fimbria, the tribune whose ferocity has already been signalled. Beloved by the soldiers whose licentiousness he encouraged, while his general strove fruitlessly to repress it, Fimbria conceived the idea of making himself independent of the government at home, and acting the part of a Strabo or a Sulla himself. Flaccus was assassinated in his camp, and Fimbria, who may be supposed to have

instigated the deed, was proclaimed general in his room by the soldiers themselves. But neither they nor their new leader chose to measure themselves with the rival imperator in Thessaly. Passing over into Asia (85) they ravaged every fertile plain and wealthy city, attacked the forces of Mithridates wherever they could reach them, and defeated a son of the great king himself. Mithridates was driven out of Pergamus, and reduced to shelter himself in Pitane, where he must have been captured, had not Lucullus, a lieutenant of Sulla, removed the fleet with which he co-operated to a distance, in order to prevent the upstart Fimbria from snatching the honour of such a triumph from his own superior. Mithridates escaped by sea, and Sulla opened negotiations with him. Upon his surrendering Bithynia to Nicomedes, and Cappadocia to Ariobarzanes, renouncing his pretensions to the province of Asia, and delivering up a large portion of his fleets and treasures, he was solemnly admitted to the alliance and amity of Rome. Sulla thus confined the enemy of the republic to the limits of his dominions, such as they existed before the war; but, doubtless, had his own resources been more abundant and his position more secure, he would not have been content with a barren victory, nor have returned from the frontiers of the empire without an effort to advance them.

Sulla had entered Asia to conduct his negotiations at the sword's point. As soon as they were concluded he turned abruptly upon Fimbria. The two Roman armies met near Thyatira; but Fimbria's soldiers, plied with gold, rapidly deserted, and even those who still kept to their standards, refused to engage their brethren in the field. Having failed in an attempt to procure his rival's assassination, Fimbria found himself deprived of his last resource. In this extremity Sulla promised him his life, on condition that he should resign his command, and withdraw from Asia. When Rutilius, on the part of his general, offered him a safe conduct to retire by sea, he replied proudly that he knew a shorter and a better way, and pierced himself with his sword.

Fimbria might well despair when he saw the forces with which his own victory over Mithridates had armed the champion of the party he had outraged. Sulla could leave in the East the legions which his rivals had brought to share or contest his laurels, while he took himself the route of Italy with a force of thirty thousand veterans, who had served three years under his standard, and had learned in a rapid career of glory and plunder to regard him as the founder and the pledge of their fortunes. The treasures of Mithridates, swelled by the ransom of an hundred Greek and Asiatic cities, furnished him with ample means for securing their fidelity. The vast fleets of Asia, delivered into his hands, might be used to abridge the long march through Thrace and Macedonia. The news of the

surrender and death of Fimbria was accompanied by the announcement of Sulla's speedy return; and the moderation he had professed while his successes were still incomplete was already exchanged for bitter complaints of the injuries he had received, the confiscation of his estates, the banishment of his family, the proscription of his own person, and persecution of his party. But his foes and those of the republic, whom he classed together, were now, he declared, about to suffer due chastisement; in proclaiming an amnesty for honest men of all parties, he announced that he would respect the privileges of the Italians, and leave them no excuse for devoting themselves to his adversaries.

THE RETURN OF SULLA; AND THE SECOND CIVIL WAR

[84-83 B.C.]

The senate, no less than the populace, was terrified by this manifesto. So many of the Marian party had become incorporated among the thinned ranks of the ancient aristocracy, that the counter-revolution now impending seemed not only to menace the safety of the particular faction which had aspired to rule the state, but to threaten the great mass of the nobility with indiscriminate massacre. Both in Rome and throughout the states of the peninsula, the vicissitudes of war and conflicts of special interests had gone far to efface the old distinctions of parties, and both Cinna and Sulla relied rather upon personal than political attachments. The senate, as an order in the state, could only pretend to mediate between rival chieftains.

It now ventured to send a deputation to mollify the ferocity of the conqueror; on the other hand, it forbade the consuls to make preparations for their own defence. Cinna and Carbo, who had now succeeded to Flaccus, disregarded this feeble interference. They made new levies throughout Italy, and solicited the Samnites and Lucanians to wreak their vengeance upon Rome by arming once more against her victorious champion. The Italians promised their succours; but the troops they levied for the purpose could not be induced to embark, and the expedition which Cinna rashly undertook to lead against Sulla in the East was reluctantly abandoned. Cinna himself was soon afterwards massacred in his camp by his own mutinous soldiers. Carbo took advantage of the disturbed state of affairs to withhold the election of another colleague, and remained through the rest of the year 84 in sole occupation of the consulship. He strengthened himself by a further extension of the franchise, and enrolled large numbers of emancipated slaves in the thirty-five tribes of the city. His brief usurpation was a career of unbridled violence. He hurled his enemies from the Tarpeian Rock

and expelled the tribunes from the city. He caused the terrified senate to decree that all the legions then in arms should be disbanded, hoping to fix upon Sulla a charge of disloyalty in refusing, as he of course expected, obedience to the command. Sulla had, by this time, assembled his troops at Dyrrhachium, and this decree was the signal for his crossing the sea with five legions of veterans. The invader was aware that he should have armies far more numerous than his own to encounter, but these he knew were for the most part new levies; while the old soldiers they had among them were dispersed in petty detachments and under unknown leaders: nor did he apprehend that any confidence or concert would exist among the host of generals, Carbo himself, the young Marius, Cælius, Carrinas, Brutus, Sertorius, and others, under whom they were arrayed. The Italians ranged themselves on the side of Carbo and Marius, but many tribes were at least lukewarm in the cause, the promises and bribes which Sulla could administer might be expected to find their way into the camp of the enemy. The north of Italy, the Cisalpines, the Picentines, and the Marsians were jealous of the Samnite confederacy in the south; and even the Samnites, in their implacable hostility to the Roman power, seem to have negotiated secretly with the assailant, in whom they, for their part, recognised only the enemy of the republic. Sulla's address was equal to his valour. He was enabled to penetrate into the heart of Italy without striking a blow. One by one the most illustrious officers of the government brought over their troops to him. Metellus Pius raised his standard in Liguria; the young Pompey, already the idol of his own soldiery, levied three legions for him in Picenum, and defeated the Marians in various encounters. Crassus, the son of a victim of the late proscriptions, who had been compelled to conceal himself for the last eight months in a cave, Cethegus, Dolabella, and M. Lucullus, brother to Sulla's lieutenant in Asia, gave to his cause the lustre of their noble names. The persecution which the young Marius presently renewed against the most distinguished senators, effected the complete identification of the interests of Sulla with those of the highest aristocracy of the city.

[83-82 B.C.]

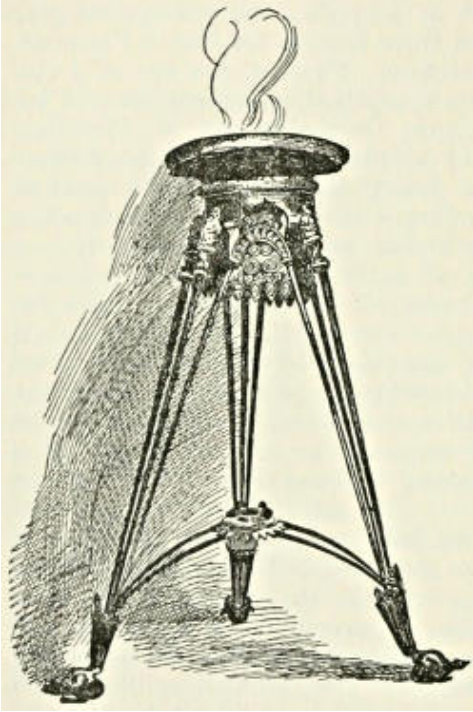
At this crisis, an event, the origin or authors of which were never discovered, threw the city into consternation. On the sixth of July 83, the Capitol was consumed by fire; even the Sibylline volumes, stored away in its most secret recesses, were devoured by the flames. This destruction of the sanctuary of the republic, the site of its wealthiest and most august temples, and of the oracles which guided the most solemn decisions of the senate, seemed to many an announcement of a great change in the destinies of the state. It was the closing of the first volume of the fortunes of Rome.

From Apulia, Sulla had passed, as we have seen, without an obstacle into Campania. He was there met by the consul Norbanus, whom he defeated in the neighbourhood of Capua. Scipio, the other consul, commanded a second force at Teanum, a few leagues in the rear of his colleague. Sulla demanded a truce and employed the interval in tampering with the fidelity of the soldiers opposed to him, who speedily passed under his colours. At the commencement of the year 82, Carbo and the young Marius took possession of the consulate: the one undertook to close the passes of the Apennines, and check the threatened attack of Metellus and Pompey on the north; the other to cover the approach to Latium against the advancing legions of Sulla. The former gained some successes against Metellus, and was only reduced to the necessity of retreating by the critical position of his colleague. Marius had selected Præneste, an impregnable position on the frontiers of Latium, for his headquarters. There he assembled his military forces, and collected all the treasures he had amassed at leisure, including the plunder of many temples in the city, and a large mass of gold and silver drawn from the vaults under the Capitol. Confiding, perhaps, in the strength of this citadel, he had not attempted to prevent Sulla from seizing the passes of the Apennines, nor did he come forth to encounter his assailant till he had arrived at Sacriportus, four leagues in advance of Præneste. The complete defeat which Marius sustained at this spot opened the road to Rome; for Sulla could venture to leave his beaten enemy behind their impregnable walls, and push on towards the city which was ready, as he well knew, to open its gates. He arrived indeed too late to prevent the crowning massacre in which Marius caused the most illustrious of his remaining enemies to be slaughtered in the curia itself. Among the victims was Mucius Scævola, the grand pontiff, who had so narrowly escaped on more than one previous occasion, and who was now sacrificed before the altar of Vesta, whose eternal fires were not extinguished by the scanty drops of blood the old man's veins could supply.

[82 B.C.]

Sulla masked Præneste with a detachment under Lucretius Ofella, while he swiftly traversed Rome, and threw himself into Etruria, where Carbo was advancing to the rescue of his colleague Marius, being himself unable to maintain his position in the Cisalpine against Metellus and Pompey. Carbo stationed himself near Clusium, behind the Clanis, with his Italian allies and some Gallic and Iberian troops. Of the Iberians, however, a portion passed over to the enemy, and the general in a fit of despair caused the remainder to be massacred. Engaging the enemy he obtained two trifling successes, and fought a bloody battle without a decisive result. But fortune became more favourable to Sulla, who cut off one large division of his adversaries, and now eagerly expected the

arrival of Metellus and Pompey to surround Carbo with irresistible numbers. In this strait Carbo, instead of dashing forwards to relieve Præneste, returned on his steps to arrest the assailants from the north.



AN INCENSE BURNER

He contented himself with detaching a division of his army to effect a junction with the Samnites, now advancing, and thus create a diversion on the right of Sulla's position. Sulla took measures to guard the defiles which lead towards Præneste, while Pompey, by a lateral movement, surprised and routed the detached division. The ground, however, was cleared around Carbo's entrenchments. He had only a single enemy, Metellus, before him, and upon him he threw himself with desperate resolution. But a great battle fought at Faventia near Ravenna resulted in his total defeat, with the loss of ten thousand slain, and several thousands of deserters. His officers hastened to pillage and betray him. His quæstor Verres plundered his military chest, while Albinovanus massacred several chiefs of the army, whom he had invited to a banquet. Norbanus took ship and fled to

Rhodes. Carbo, after raising another army in Etruria, and conducting for some time a war of guerillas in the mountains, abandoned his colleague to the fate which awaited him, and made the best of his way into Africa. Sertorius had already withdrawn from a contest which he judged to be hopeless, and was engaged in forming a new confederation in Spain. The Marian chieftains surrendered Italy to the senate, and sought to raise the provinces against it (82).

Sulla and his colleagues now directed their victorious legions upon the last of the Marian armies in their last stronghold, Præneste. But Pontius Telesinus, at the head of a combined force of Samnites, Lucanians, and Campanians, to whom the destruction or humiliation of Rome was a dearer object than the success of either party among the Romans, seized the opportunity to wreak the vengeance of their countrymen upon the capital of their common enemies. Adroitly evading the lines of the numerous legions which were now concentrating upon Præneste, they penetrated by night within ten or twelve miles of the city, which they hoped to surprise, and give to the flames. But they

spent one day in the preparations for the assault, and in the interval the slender garrison within the city was enabled to communicate with Sulla. On the first of November the Samnites advanced, but Sulla was already at their back. At the Colline Gate he came up with them, and engaged them in a long and desperate encounter. Since the invasion of the Gauls Rome had never struggled against an enemy so near to her own walls, nor been brought so nigh to destruction.

The combat lasted a day and a night. The left wing commanded by Sulla himself was put to rout, and the fugitives running to the lines before Præneste, exclaimed that the battle was lost and their imperator himself slain. But Crassus meanwhile, with the right wing, had broken the enemy's ranks, and pursued them as far as Antemnæ. Eight thousand of the Italians were made prisoners, and the Roman officers captured in their ranks were devoted to the sword. Pontius Telesinus, grievously wounded in the fight, was despatched by the conqueror on the field of battle. His whole life had been devoted to the hatred of Rome, and at the moment when she finally escaped from his murderous grasp he could no longer wish to live. He was the last Italian enemy of Rome. As the adversary of the Decii and Fabii he might have been the destroyer of the Roman name, and have changed the face of history. But in the age of Marius and Sulla he could only hope for one day of plunder and conflagration, and when this momentary triumph was snatched from him, what sweeter satisfaction could he covet than to fall among fifty thousand corpses, one-half of which were Roman?

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As soon as the Prænestines learned the result of this bloody day, and saw the heads of the Italians and Marians borne in triumph beneath their walls, they opened their gates to the victors. The young Marius had retired into a subterranean apartment with the brother of Pontius Telesinus. Determined not to fall into the enemy's hands, they challenged each other to the combat, and Marius, having slain his friend and confederate, caused himself to be despatched by the hands of a slave. A few cities still held out. At Norba in Latium, the inhabitants chose to consume themselves together with their city, rather than submit to the conqueror. Nola opened its gates after a long defence; Volaterræ resisted for two years. But the struggle in Italy was hopeless. Spain and Africa rose indeed against the Roman government; but the gates of the peninsula were securely closed against these foreign auxiliaries.

Events and circumstances had now fulfilled their part in developing Sulla's policy, and moulding his character. Fond of literature, vain of his accomplishments, attached to frivolous pleasures and frivolous people, a man, it is said, of soft and even tender feelings, and easily moved to tears by a tale of

sorrow, Sulla in his early years had surprised his countrymen, rather than alarmed them, by the success of his military career and his influence with the soldiers. The haughty jealousy of Marius had disposed him to take an opposite part in public life. The rivalry of the two great captains had been enhanced by the contrast of their manners, origin, and connections. In brooding over his personal resentments Sulla had insensibly come to identify himself with the cause of the oligarchy. The sanguinary violence of Cinna and Marius had irritated the champion of the persecuted faction, and he had vowed a bloody vengeance against the authors of the proscriptions. But the opposition he experienced in Italy expanded his views beyond the limits of party warfare. The Etrurians and the Samnites transformed him from the chief of a Roman faction into the head of the Roman nation. The vows of extermination they breathed against the sacred city of Quirinus sank deeply into his mind. He had displayed in the East his contempt for the just claims of the provincials. The cries of the miserable Greeks and Asiatics he had mocked with pitiless scorn, and had reimposed upon their necks, in its full weight and irksomeness, the yoke from which they had in vain invoked Mithridates to relieve them. The man who had reconquered the East had now reconquered Italy, and he determined to restore the supremacy of his countrymen at their own gates, which he had vindicated with triumphant success at the farthest limits of their empire.

The morning after the battle of the Colline Gate, Sulla was haranguing the senate in the temple of Bellona. As an imperator commanding a military force, the law forbade him to enter the city, and the senators attended his summons beyond the walls. Cries of horror and despair were suddenly heard outside the place of assembly. "Be not alarmed," he calmly remarked to the affrighted senators, "it is only some rascals whom I have ordered to be chastised." They were the death cries of the eight thousand Samnite prisoners, whom he had delivered to be cut to pieces by his legions in the Field of Mars. The first of his blows fell upon the Italian confederates; but he speedily launched his vengeance upon the Romans themselves. On his return from Præneste he mounted the rostra, and addressed the people. He vaunted his own greatness and irresistible power, and graciously assured them that he would do them good if they obeyed him well; but to his foes he would give no quarter, but prosecute them to the death, high as well as low, prætors, quæstors, tribunes, and whosoever had provoked his just indignation.

THE PROSCRIPTIONS

These words were a signal to his adherents, and before the names of the destined citizens were publicly announced many a private vengeance was wreaked, and many a claim advanced upon the conqueror's gratitude. The family of Marius were among the first attacked. One of his relatives named Marius Gratidianus, who had signalled his prætorship by checking the debasement of the coinage, was pursued by Catiline, a brutal young officer, and murdered with the most horrible tortures. The assassin placed the bloody head upon Sulla's banquet-table, and coolly washed his hands in the lustral waters of a neighbouring temple. The corpse of the great Marius himself, which had been buried and not burned, was torn from its sepulchre on the banks of the Anio, and cast into the stream. This desecration of the funeral rites was an impiety of which the contests of the Romans had hitherto furnished no example. It was never forgotten by a shocked and offended people. The troubled ghost, says the poet of the civil wars, continued to haunt the spot, and scared the husbandmen from their labours on the eve of impending calamity.

A great number of victims had already perished, when Catulus demanded of Sulla in the senate, "Whom then shall we keep to enjoy our victory with, if blood continues to flow in our cities as abundantly as on the battle-field?" A young Metellus had the boldness to ask when there would be an end to these miseries, and how far he would proceed before they might hope to see them stayed. "Spare not," he added, "whomsoever it is expedient to remove; only relieve from uncertainty those whom you mean to save." Sulla coldly replied that he had not yet determined whom he would spare. "Tell us then," exclaimed Metellus, "whom you intend to punish." Thereupon a list of proscriptions appeared containing eighty names. This caused a general murmur; nevertheless, two days after, 230, and the next day as many more, were added to the list. And this proscription, in which Sulla had consulted no magistrate, was accompanied with a speech in which he said that he had proscribed all he could think of for the present; by and by he might perhaps remember more. Rewards were offered for slaying the proscribed; it was rendered capital to harbour them. Their descendants were declared incapable of public office, and their fortunes were confiscated to the use of the state, though in most cases they were actually seized and retained by private hands. Nor were the proscriptions confined to Rome; they were extended to every city in Italy, and throughout the length and breadth of the peninsula neither temple nor domestic hearth offered security to the fugitives. From the first of December 82 to the first of June in the following year, this authorised system of murder was allowed to continue. Catiline, who had previously assassinated a brother, now got his victim's name placed on the fatal list, in order to secure his estate. The favourites of Sulla, his slaves and

freedmen, drove a lucrative trade in selling the right to inscribe the names of persons whom any one wished to make away with. The dignity of public vengeance was prostituted to mere private pique and cupidity.^[94] One man was killed for his house, another for his gardens, another for his baths.^[95] One unfortunate wretch, who had never meddled with affairs, examined the lists out of mere curiosity. Horror-struck on seeing his own inscribed, "My Alban farm," he exclaimed, "has ruined me"; and hardly had he spoken the words before the pursuers smote him.

Sulla might smile to see the number of accomplices he had associated in his crimes, and he sought perhaps to render their share in these horrors more conspicuous by the rewards with which he loaded them. Upon Catiline, the boldest and readiest of his partisans, a man of blasted character and ruined fortunes, he heaped golden favours. The young Crassus, who had so narrowly escaped the sword of Marius, now laid the foundation of the wealth which earned him the renown of the richest of the Romans. Pompey had executed without remorse his master's vengeance upon captives taken in arms; at his command he had consented to divorce his wife Antistia, and take in her stead Sulla's step-daughter Metella; but he withheld his hand from the stain of the proscriptions, and scorned perhaps to enrich himself with the spoils of judicial massacre. Among the kinsmen of Marius was one whom Sulla himself vouchsafed to spare. Caius Julius Cæsar, then eighteen years of age, was connected by blood with Marius,^[96] and by marriage with Cinna. Sulla contented himself with requiring him to repudiate his wife. Cæsar refused, and fled into the Sabine mountains. The assassins were on his track, while his friends at Rome exerted themselves to the utmost to obtain his pardon. The vestals interceded for him.

Some of Sulla's own adherents raised their voices in his favour, and pleaded his youth, his reckless temper and dissipated habits, in proof of his innocence or harmlessness. "I spare him," exclaimed Sulla, "but beware! in that young trifler there is more than one Marius." Cæsar was saved; but he prudently repaired to the siege of Mytilene.

The proscriptions were lists of selected victims, and though hundreds undoubtedly perished whose names had never been publicly devoted to slaughter, yet the number of the original citizens who fell in the massacres were not beyond the reach of computation. The accounts we have received vary indeed in this particular; but of senators there were slain perhaps from one to two hundred, of knights between two and three thousand. The victims of a

lower class were, we may suppose, proportionally more numerous. But the destruction of the Italians was far more sweeping and indiscriminate. Cities were dismantled, and even razed to the ground; their lands were seized and distributed among the veterans of the Sullan armies, of whom 120,000 were located in colonies from one end of the peninsula to the other. The natives driven from their houses and estates were massacred in crowds; according to popular tradition the Samnite people were utterly annihilated, and of all their cities Beneventum alone remained standing. The inhabitants of the wretched Præneste were slaughtered wholesale. The Etrurians expiated with the direst persecution the tardy aid they had given to the common cause of the Italians. The great centres of their ancient civilisation had long fallen into decay, but a new class of cities had risen upon their ruins, and attained riches and celebrity. Of these Spolegium, Volaterræ, Interamna, and Fæsulæ were delivered to Roman colonists; the latter city was dismantled, and the new town of Florentia erected with the fragments of its ruins. Throughout large districts the population became almost entirely changed; everywhere the chief people perished from the face of the land, and with them all that was distinctive in the manners and institutions, even in the language of the country. The civilisation of Etruria disappeared from the sight of men, to be rediscovered at the end of twenty centuries, among the buried tombs of forgotten lucumons.

The same exterminating policy extended also to the provinces, wherever the temper of the native races seemed to resent the uncontrolled domination of the Roman conquerors. Sulla had chastised Greece and Asia with a rod of iron. He now commissioned his lieutenants to chase his enemies from the retreats to which they had been invited in Sicily, Africa, Gaul, and Spain. Metellus fell upon the Cisalpine province, Valerius Flaccus devastated the Narbonensis, Pompey was despatched to punish the provinces of the south, and Annius was deputed to follow Sertorius into Spain and recover the vast regions which he had armed against the new government of Rome, and even against Rome herself. At the same time the republic was threatened with a renewal of her foreign warfare. The Thracians, never yet subdued, troubled the frontiers of Macedonia; Mithridates was commencing a new movement in Asia; the distressed and indignant population of the eastern coasts had betaken themselves in vast numbers to the sea, and infested the waters of Greece and even Italy itself with fleets of pirate vessels. The mountains of Etruria and Sabellia, of Samnium and Lucania, swarmed with the miserable fugitives from spoliation and massacre, and armed bands roamed beneath the walls of populous cities ready to carry off any booty that fell in their way, and rendering both life and property everywhere insecure. Even the proprietors of estates

leagued themselves with these wretched outcasts, and employed them to kidnap free citizens of the republic, to be buried as slaves in their forests, or chained in their factories.

Sulla had returned to Rome laden with the spoils of war; his troops had been gorged with plunder, and he could not plead for his proscriptions the demands of an insatiate soldiery. But the accumulating troubles of the empire, and the increasing armaments required in every quarter, demanded the opening of new sources of revenue. The provinces, harassed by war, were now crushed by imposts. Treaties and promises were alike disregarded. All were forced to contribute—not only the tributary states, but even those which had acquired by their services immunity and independence. To satisfy the requisitions made upon them, many cities were forced to pledge their public lands, their temples, their ports, and even the stones of their walls. Sulla took upon himself to sell the sovereignty of the independent kingdom of Egypt to Alexander II. Donatives were demanded of foreign kings and potentates.^b

“Zachariæ,^k” says Ihne,^e “in his book on L. Cornelius Sulla (i. 145), has hit the truth in saying: ‘We must not imagine that these horrors and cruelties were caused by the passions so powerfully excited by the civil war, nor that they are to be attributed to Sulla’s implacability and vindictiveness, nor that Sulla simply connived at them, or ordered deeds which he could not prevent, surrounded as he was by an army drunk with victory and greedy for plunder. It is true some dark passions were at work, and in several instances Sulla acted from momentary whims or was influenced by angry passions. It is true that Sulla was obliged to be indulgent and forgiving to his soldiers because he was himself in want of indulgence and forgiveness. Nevertheless we have good reason to believe that on the whole Sulla acted on a deep and coolly meditated plan.... He intended that out of the work of destruction a new and vigorous Italy was to come forth with a population from whose gratitude or satisfaction he could confidently expect security for peace, and for that constitution of the republic which he was about to establish.’” With this Freeman^l agrees, when he says that Sulla “was not cruel in the sense of delighting in human suffering. Through the whole of Sulla’s tyranny there is nothing passionate; it is not so much cruelty as recklessness of human life; it is the cold, deliberating, exterminating policy of a man who has an object to fulfill, and who will let nothing stand in the way of that object.”^a

FOOTNOTES

[89] [The Roman historian Florus^d comments on and classifies the wars thus: “This only was wanting to complete the misfortunes of the Romans that they should raise up an unnatural war among themselves and that in the midst of the city and Forum, citizens should fight with citizens, like gladiators in an amphitheatre. I should bear the calamity, however, with greater patience if plebeian leaders or contemptible nobles had been at the head of such atrocity; but even Marius and Sulla (O indignity! such men, such generals!), the grace and glory of their age, lent their eminent characters to this worst of evils. It was carried on, if I may use the expression, under three constellations, the first movement being light and moderate, an affray rather than a war, for the violence prevailed only between the leaders themselves; in the next rising, the victory spread with greater cruelty and bloodshed, through the very bowels of the whole senate; the third conflict exceeded not merely animosity between citizens, but that between enemies, the fury of the war being supported by the strength of all Italy, and rancour raging till none remained to be killed.”]

[90] [On this act of Octavius, Beesly^c cynically comments: “He was an obstinate, dull man; and if the burlesque of the conduct of the senators when the Gauls took Rome was really enacted, theatrical display must have been cold comfort for those of his party on whom his incapacity brought ruin.”]

[91] [Ihne^e says “the story is absurd,” and credits it to a calumny of his enemies. Long, however, accepts it as possible.]

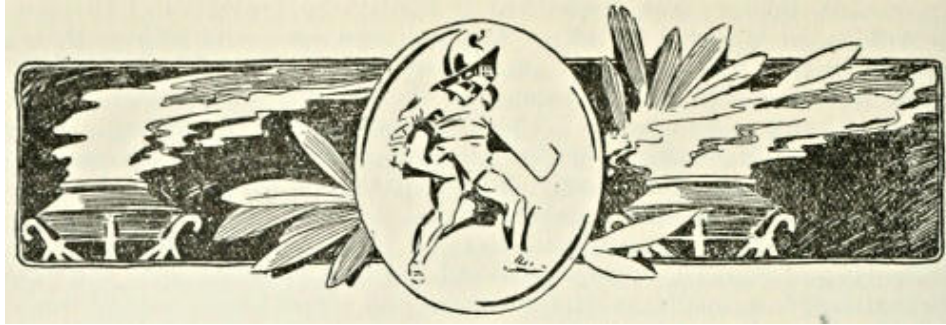
[92] [See Valerius Maximus^f and Cicero.^g Mommsen^h credits the story, and Dyerⁱ calls it “one of those ferocious jokes which find their parallel only amidst the butcheries of the French Revolution.”]

[93] [“The battle of the Colline Gate was one of the few great and decisive battles which are recorded in the history of Rome,” says Ihne.^e In spite of all this, he says, we know almost absolutely nothing of the position of the armies and the progress of the fight, “and this cannot be vouched for with any degree of confidence, as the two principal authorities cannot be satisfactorily made to harmonise.” Appian^m says that each side lost 50,000; Orosiusⁿ sets the number at only 11,000.]

[94] [Mommsen^h quotes the sale of an estate valued at £61,000 or \$305,000 for about £20 or \$100; and rates the total proceeds of confiscation at £3,050,000 or \$15,250,000.]

[95] [Cicero^g makes a grim pun which Guthrie Englished thus, “The same gentlemen who knocked down estates, knocked down men.” Later he says in the same oration that the slaughter was so great it reminded one of the battle of Lake Trasimene when Hannibal annihilated a Roman army.]

[96] [The connection with Marius was not by blood but by marriage; Julia, Cæsar’s aunt, was the wife of Marius.]



CHAPTER XIX. THE DICTATORSHIP OF SULLA

[81-79 B.C.]

The reign of violence and revolution dated from the victory of the Colline Gate, the first of November, 82. While the young Marius and his colleague still occupied the consular office, the master of Rome, omnipotent as he really was, could not legitimately be invested with any civil authority. The weapon which he wielded with such terrible effect was the unsheathed sword of his proconsular imperium. The tribunal, before which he cited the wretched victims of his policy or vengeance, was the military suggestum of the prætorian tent. The death of Marius a few days later rendered vacant one of the consuls' chairs. Carbo, who occupied the other, did not long survive, being taken in Sicily and executed by Pompey without respect to his rank or office. Before the close of the year the republic was left without a chief magistrate. The senate appointed L. Flaccus, one of Sulla's officers, interrex to hold the assembly for the election of consuls for the term which was about to commence. But Flaccus, prompted by his imperator, proceeded to recommend the creation of a dictator.

The senate obeyed, the people acquiesced, and after an interval of 120 years, which had elapsed since Q. Fabius Maximus, the citizens beheld once more the four-and-twenty lictors, who invested with invidious splendour that union of civil and military pre-eminence of which their feelings and institutions were equally jealous. The dictatorship, they might remember, had been the rare resource of the patricians in ancient times, when they roused themselves to defend their hateful privileges against the just claims of the plebeians; but since the rights of either class had been happily blended together, the office itself had ceased to have any significance. To revive it now, when no enemy was at the gates, was only to threaten the commons of Rome with a new aristocratical revolution, to menace rights and liberties acquired in a struggle of two hundred years, and on which the greatness and glory of Rome were confessedly founded. But all these misgivings were hushed in silence.^b

In the vivid words of Plutarch in North's old translation, Sulla in the beginning, was very modest and civil in all his prosperity, and gave great good hope that if he came to the authority of a prince, he would favour nobility well, and yet love, notwithstanding, the benefit of the people. And being moreover a man in his youth given all to pleasure, delighting to laugh, ready to pity, and weep for tender heart; in that he became after so cruel and bloody, the great alteration gave manifest cause to condemn the increase of honour and authority, as the only means whereby men's manners continue not such as they were at the first, but still do change and vary, making some fools, others vain and fantastical, and others extremely cruel and unnatural. But whether that alteration of nature came by changing his state and condition, or that it was otherwise a violent breaking out of hidden malice, which then came to show itself, when the way of liberty was laid open; this matter is to be decided in some other treatise. So it came to pass, that Sulla fell to shedding of blood and filled all Rome with infinite and unspeakable murders; for divers were killed for private quarrels, that had nothing to do with Sulla at any time, who suffered his friends and those about him to work their wicked wills.

But the most wicked and unjust act of all was that, he deprived the sons, and son's sons of them whom he had killed, of all credit and good name, and besides that had taken all their goods as confiscate. And this was not only done in Rome, but also in all the cities of Italy throughout; and there was no temple of any god whatsoever, no altar in anybody's house, no liberty of hospital, nor father's house, that was not imbrued with blood and horrible murder. For the husbands were slain in their wives' arms, and the children on their mothers' laps: and yet they which were slain for private hatred and malice, were nothing in respect of those that were murdered only for their goods. And they that killed them might well say, his goodly great house made that man die, his goodly fair garden the other; and his hot baths another.

But besides so many murders committed, yet were there other things also that grieved the people marvellously. For he proclaimed himself dictator, which office had not been of six score years before in use, and made the senate discharge him of all that was past, giving him free liberty afterwards to kill whom he would, and to confiscate their goods; to destroy cities, and to build up new as he listed; to take away kingdoms, and to give them where he thought good. And furthermore, he openly sold the goods confiscate, by the crier, sitting so proudly and stately in his chair of state, that it grieved the people more to see those goods packed up by them, to whom he gave and disposed them, than to see them taken from those that had forfeited them. For sometimes he would

give a whole country, or the whole revenues of certain cities, unto women for their beauty, or unto pleasant jesters, minstrels, or wicked slaves made free; and unto some, he would give other men's wives by force, and make them to be married against their wills.^c

The people crouched beneath the brandished sword of the conqueror, and the acclamations of the nobles, who relied upon his stern resolution to crush the insolence of the tribunes and repel the advance of democracy. Even the narrow limit of six months which the law had been wont to assign to the duration of this extraordinary despotism was now disregarded. Sulla was required to reform and reconstitute the commonwealth; he was allowed to determine for himself the period so arduous an enterprise would demand, nor less the principles and the means he should think fit to adopt. The Romans solemnly divested themselves of all their political rights, so long as the great reformer should deem it expedient to exercise autocratic control over them. To Sulla they committed without limit or question the power of life and death over citizens and subjects, of amercing his enemies and rewarding his friends, of building cities or destroying them, of giving away kingdoms or incorporating them in the empire. In order perhaps to mark more conspicuously the pre-eminence of this sovereign power above the legitimate dictatorship of ancient times, Sulla required that the consulship should coexist with it in a state of degrading subordination. He allowed the centuriate assembly to elect M. Tullius Decula and Cneius Dolabella for the year 81. In the following year he assumed the consular fasces himself in conjunction with Metellus Pius, while still retaining the ensigns of the dictatorship. He was elected a second time for the year 79; but his ambition was by this time satisfied and he declined the proffered title.

Proscription and massacre had cleared the ground for the social edifice which Sulla proposed to construct. With a blind and arrogant predilection for the traditionary forms of the ancient Roman municipality, he resolved to restore, as far as circumstances could be moulded thereto, by the harshest exercise of his prerogative, the civil ascendancy of the old Roman families. To re-enact indeed the letter of the old oligarchical constitution, as it had existed before the days of plebeian encroachment, was impossible; but he hoped at least to reanimate its spirit. The temper however of the dictator was too impetuous and vehement for an undertaking requiring the most delicate management. His reforms were bold and decisive, they were conceived on a single great idea, and executed with consistency and vigour; but they were not adopted with any consideration for the genuine tendencies of society, and accordingly they struck no root in the mind of the people. Sulla, we have seen, had cut off two hundred senators with

the sword of the proscriptions; Marius had probably slaughtered an equal number. The remnant had been decimated on the field of battle. To replenish this frightful void the dictator selected three hundred from the equestrian order; but however respectable in birth and rank these new senators may have been, they could hardly restore the lustre of the great council of the state, which had formerly owed its chief authority to the personal distinction of its members. We may conjecture that the numbers of the body thus reconstructed amounted to about six hundred. The vacancies which thenceforth occurred were probably more than supplied by the regular succession to the benches of the senate of the men who had filled certain high offices. Twenty quæstors were elected annually, and passed into it in due rotation.

The principle of hereditary succession to the senate was never recognised under the Roman Republic, but the practical restriction of the great offices from which it was replenished to one or two hundred families, allowed none of the chief Roman houses to remain unrepresented in the great council of the nation. To these houses Sulla wished to confine the entire legislation of the commonwealth. He repealed the *lex Hortensia*, by which the resolutions of the tribes were invested with the force of law, and gave to the senate alone the initiation of all legal enactments. To the senate he transferred once more the exclusive possession of the *judicia*, while he extended the authority of the *quæstiones perpetuæ*, or standing commissions for the trial of political offences, to a large class of criminal cases, which had hitherto fallen under the cognisance of the popular assemblies. Nothing however so much advanced the influence of the senate as the limitations Sulla placed upon the functions of the tribunate. He deprived the champions of the people of the right of proposing measures in the assembly of the tribes,^[97] forbade them to exercise their arbitrary veto upon the legislation of the curia, and restricted their protectorate of the plebs to the relief of individuals in a few trifling cases of civil or criminal process. Whatever shadow of authority the office of tribune might still retain, a stigma was cast upon it by the decree which declared its holder incapable of succeeding to any of the chief magistracies of the state. Ambitious men disdained an office condemned to silence and obscurity. By the disparagement of its leaders the assembly of the tribes lost all its real power [though it could make laws with the senate's consent and elect certain inferior magistrates]. As for the assembly by centuries, Sulla seems to have felt the impossibility of restoring the complicated machinery by which the citizens were enrolled in classes, according to their means, and the numbers of the lower ranks balanced by an artificial adjustment. If he could not restore in this popular assembly the preponderance which the Servian constitution had secured to property, the superiority he conferred upon

the senate in the matter of legislation might suffice to keep the comitia in due subordination. The assembly of the centuries retained the election to the higher magistracies; the dictator relied on the influence of wealth, rank, and dignity, in breaking down the independence of the electors, already sapped by the prevalent dissolution of manners and degeneracy of public feeling. Nevertheless, he took from the people the appointment to the college of pontiffs, and placed the great political engine of the state religion in the hands of a self-elective corporation of the noblest members of the aristocracy.

The senate thus planted one foot on the neck of the knights, the other on that of the commons. Having, as we have seen, almost re-created it by one enormous draft from an inferior order, Sulla wished to insure the permanence of its constitution, and he would have looked, we may suppose, with jealousy on the independent action of the censorship, which ought to have called all its members to account every fifth year, and summarily ejected the unworthy. Accordingly he allowed no censors to execute their functions during his retention of power, nor was their venerable office revived for several years afterwards. The slaughter of the civil wars had caused a frightful reduction in the old Roman population. It was necessary to take measures for recruiting it, and on this account, perhaps, more than from any regard for the promises he had made at an earlier period, the dictator abstained from closing the franchise against the Italians.^[98] He showed his contempt for the needy and venal populace by the enfranchisement at one blow of ten thousand slaves, the miserable remnant of the families of proscribed and murdered citizens. Left without masters they would have endangered the tranquillity of the commonwealth, but enrolled among the citizens they might become themselves masters in their turn, and help to keep the oppressed and discontented in subjection, both at home and abroad. They might at least devote themselves to the policy of the dictator.

The establishment of military colonies was one of the most important measures of the dictator. Besides satisfying claims he dared not disregard, he might hope to make these establishments the bulwark of his reforms. If so, we shall presently see how much he miscalculated their effect. But the change they produced in the social and political aspect of Italy was neither light nor transient. One hundred and twenty thousand legionaries, as has been said, received lands in the most fertile parts of the peninsula, and with them, of course, the franchise of the city, if they did not already possess it. This was carrying out an Agrarian law more sweeping and far more arbitrary than the Gracchi had even ventured to conceive. But these same legionaries, thus

pampered and enriched, became the most restless and dangerous members of the body politic. Scattered broadcast over the face of the land, they became the prolific seed of disturbance and revolution.

SULLA'S LEGISLATION

Sulla's legislation, besides its grand political bearings, descended to many minute particulars of social and civil economy. His enemies had revelled in the enjoyment of many successive consulships; he forbade any magistrate to fill the same office twice within a period of ten years. Casting a jealous eye on the proconsular imperium, the foundation of his own extraordinary power, he enacted a law of treason (*maiestas*), which defined the crimes of leaving the province, leading forth the legions, and attacking a foreign potentate without express command of the senate and people. Like other statesmen of antiquity, he was fully possessed with the notion that the moral character of a nation can be reformed and maintained by sumptuary laws. Accordingly, he sought to restrict the luxuries of the wealthy, in which the imitation of foreign tastes caused, perhaps, more scandal than the actual excess. He fixed the precise sums which might be expended on the pleasures of the table, and assigned three hundred sesterces, about sixty shillings, for suppers on the Calends, Ides, and Nones, and certain of the most solemn festivals of the year. He went even further in the same delusive path, in fixing the prices of articles by arbitrary enactment. Such laws could not outlast even the brief rule of the imposer himself, and Sulla seems, indeed, to have set the example of disregarding them in person. Nevertheless the same ineffective legislation continued to be frequently repeated at later periods.

Among other precautions for guarding the morality of the people, Sulla had denounced the vengeance of the law against the crimes of murder and adultery. But he lived himself in a course of notorious profligacy, and besides the guilt of the proscriptions, he showed that no law could deter him from shedding blood to gratify a momentary passion, or, at least, to confirm his enactments by terror. Lucretius Ofella, the officer who had so long blockaded Præneste, ventured to disregard the dictator's provision for confining the suit for the consulship to persons who had been already prætors. Sulla admonished him to desist; nevertheless he persisted in his claim. A centurion poniarded him in the middle of the Forum. When the people dragged the assassin to the dictator's tribunal, he commanded them to let the man go, avowing that he had acted by his own orders; and he proceeded, with the rude humour which he affected, to relate a

story, how a labourer, being annoyed by vermin, twice stopped from his work to pluck them off; the third time he cast them without mercy into the fire. "Twice," said Sulla, "I have conquered and spared you; take care lest, a third time, I consume you utterly."

ABDICATION OF SULLA

[79-78 B.C.]

Such acts and such language were, however, rather ebullitions of a spoiled and vicious temper than any deliberate expression of contempt for law, or the assertion of an unlimited despotism. The reigning principle of Sulla's actions was still an affectation of legality. He pretended, at least, to consider the oligarchical constitution of the early republic the only legitimate model for its renovation. The success of his schemes of ambition, the overthrow of all his opponents, the complete restoration, as he imagined, of the principles to which he had devoted himself, all combined to work upon a mind prone to superstition and addicted to fatalism, and changed him from a jealous partizan into an arrogant fanatic. Sulla claimed to be the favourite of fortune, the only divinity in whom he really believed. His reforms were complete, his work accomplished, his part performed; he feared to tempt his patroness by trespassing another moment on her kindness. By resigning his power he sought to escape the Nemesis which haunted his dreams.

In the year 79 Sulla abdicated the dictatorship. He could say that it had been conferred upon him for the reconstitution of the commonwealth, and having done what he was appointed to do, it was no longer his to enjoy. But if the Romans were amazed at this act of sublime self-sacrifice, it was with a feeling akin to awe that they beheld the tyrant descend from his blood-stained tribunal and retire with unmoved composure to the privacy of a suburban villa. Aged and infirm,^[99] and sated perhaps with pleasure as well as ambition, it is not too much to believe that such a man as Sulla was indifferent to life, and little troubled by the risk to which he might thus expose himself from the daggers of his enemies. But in truth, while his veteran colonists were sworn to maintain his policy, his person was not unprotected, by bands of armed attendants. When the magistrate of a neighbouring town, in the expectation of the old man's death, delayed paying the local contribution to the restoration of the Capitol, for the completion of which Sulla was anxious, as the only thing wanting to complete his career of prosperity, he could send men to seize the defaulter and even inflict death upon him. Sulla was evidently secure against the vengeance of his

victim's relatives. It may also be remarked that such vengeance would have been foreign to the habits of the Romans. However little they scruple to use the dagger to cut off a political enemy in the midst of his career, there is no instance perhaps in their history of exacting personal retribution from one who had ceased to possess the power of injuring.

There was, moreover, in Sulla a haughty contempt for mankind, and consequently for its highest aims and pleasures. Even while devoting his utmost energies to the pursuit of political eminence and the achievement of a national revolution, he could smile with grim moroseness at the vanity of his own exploits, and the hollowness of his triumphs. He paused in the midst of his career to break the toy with which he had so long amused himself. He had commenced life as a frivolous sensualist; he wished for nothing better than to finish it as a decrepit débauché. At the moment of laying down his office he made an offering of the tenth of his substance to Hercules, and feasted the people magnificently; so much, indeed, did the preparations made exceed what was required, that vast heaps of the superfluous supplies were thrown with ostentatious prodigality into the river.

In the midst of these entertainments, lasting several days, Metella, the consort to whom he was most permanently attached, fell sick and died. As the favourite and perhaps the priest of Venus, his house might not be polluted by the presence of death, and he was required to send her a divorce, and cause her to be removed while still breathing. The custom he observed strictly, through superstition; but the law which limited the cost of funerals, though enacted by himself, he violated in the magnificence of her obsequies. Retiring to his villa at Cumæ he finally relinquished the reins of government. Surrounded by buffoons and dancers, he indulged to the last in every sensual excess which his advancing years and growing infirmities permitted. Nevertheless he did not wholly abandon literature. He amused himself with reading Aristotle and Theophrastus,



A LICITOR

and dictating memoirs of his own life, upon which he was employed, it is said, only two days before his decease. In those pages he recorded how astrologers had assured him that it was his fate to die after a happy life, at the very height of his prosperity. Stained with the blood of so many thousand victims, and tormented with a loathsome disease—for his bowels corrupted and bred vermin, and neither medicines nor ablutions could mitigate the noisome stench of his putrefaction—in this faith he persisted to the last, and quitted the world without a symptom either of remorse or repining. He believed that a deceased son appeared to him in a dream, and entreated him to rest from his troubles, and go with him to rejoin his lost Metella and dwell with her in eternal peace and tranquillity. Fearful perhaps of the fate of Marius, he directed that his body should be burned; whereas it had ever been the custom of his house to inter the remains of their dead. A monument was erected to him in the Campus Martius, which was standing in the time of Plutarch, after the lapse of two centuries and the events of several revolutions. It bore an inscription, ascribed to Sulla himself, which said that none of his friends ever did him a kindness and none of his foes a wrong without being largely requited. Sulla survived his abdication about twelve months, and died in the year 78, at the age of sixty.

ROME'S DEBT TO SULLA

[81-79 B.C.]

Slowly and with many a painful struggle the Roman commonwealth had outgrown the narrow limits of a rustic municipality. The few hundred families which formed the original nucleus of her citizenship, and which in her earliest and simplest days had sufficed to execute all the functions of her government, had been compelled to incorporate allies and rivals in their own body, to enlarge their views, and to expand their institutions. The main object of Sulla's policy was to revive at least the spirit of the old restrictions. The old families themselves had perished almost to a man; he replaced them by a newer growth; but he strove to pare away the accretions of ages, and restore the government of the vast empire of Rome to a small section of her children. The attempt was blind and bigoted; it was not less futile than unjust. It contravened the essential principle of national growth; while the career of conquest, to which the Romans devoted themselves, required the fullest expansion and the most perfect freedom of development.

Nevertheless the legislation of Sulla was undoubtedly supported by a vast mass of existing prejudice. He threw himself into the ideas of his time, as far as

they were interpreted by history, by tradition, and by religious usage. The attempt to enlarge the limits of the constitution was in fact opposed to every acknowledged principle of polity. It was regarded equally by its opponents and its promoters as anomalous and revolutionary. It had as yet no foundation in argument, or in any sense of right, as right was then understood. Society at Rome was in a highly artificial state; and Sulla with many of his ablest contemporaries, mistook for the laws of nature the institutions of an obsolete and forgotten expediency. But nature was carrying on a great work, and proved too strong for art. Ten years sufficed to overthrow the whole structure of this reactionary legislation, and to launch the republic once more upon the career of growth and development. The champions of a more liberal policy sprang up in constant succession, and contributed, perhaps unconsciously, to the great work of union and comprehension, which was now rapidly in progress. The spirit of isolation which had split Greece and Italy into hundreds of separate communities was about to give way to a general yearning for social and moral unity. The nations were to be trained by the steady development of the Roman administration.

But though Sulla's main policy was thus speedily overthrown, he had not lived in vain. As dictator he wasted his strength in attempting what, if successful, would have destroyed his country; but as proconsul he had saved her. The tyranny of the Roman domination had set the provinces in a blaze. Mithridates had fanned the flame. Greece and Asia had revolted. The genius of the king of Pontus might have consolidated an empire, such as Xerxes might have envied, on either shore of the Ægean Sea. But at this crisis of her fate, hardly less imminent than when Hannibal was wresting from her allies and subjects within the Alps, Rome had confided her fortunes to the prowess of Sulla. The great victory of Chæronea checked the dissolution of her empire. The invader was hurled back across the Ægean; the cities of Greece returned reluctantly to their obedience, never more to be tempted to renounce it. Sulla followed Mithridates into Asia; one by one he recovered the provinces of the republic. He bound his foe by treaties to abstain from fomenting their discontents. He left his officers to enforce submission to his decrees, and quartered the armies of Rome upon the wretched populations of the East. The pressing danger of the moment was averted, though it took twenty years more to subdue the power of Mithridates, and reduce Asia to passive submission. Rome was relieved from the last of her foreign invaders; and this was the great work of Sulla, which deserved to immortalise his name in her annals. [\[100\]](#)

Nevertheless this rolling back of the tide of aggression, and the return of the legions of the republic to the limits of her former conquests, had no effect in healing the internal sickness of which the irritation of the provinces was only symptomatic. The triumph of her arms and the sense of security it engendered only served to redouble her oppressions and to aggravate the misery of her subjects. The course of events will lead us on some future occasion to trace the remains of resentment and hatred towards Rome, which lingered long in some regions of Italy itself: but for the most part the Italians were now satisfied; they were content to regard the city of Romulus as their own metropolis; and while they enjoyed the fruits of her wide-wasting domination, gradually learned to take a pride in her name. But beyond the Ionian and the Tyrrhenian seas the same ardent vows were formed for enfranchisement which had precipitated upon Rome the Marsians and the Samnites; in more than one quarter the old struggle of the Social Wars was about to be renewed on wider and more distant theatres: but the elements of strife were now more complicated than before; the parties engaged were more thoroughly alien from each other; the hostility of Rome's new enemies was the more inveterate as they had less sympathy with her institutions, and were ambitious of overthrowing rather than of sharing them. The second period of the civil wars of Rome opens with the revolt of the Iberians in the west, and the maritime devastations of the pirates in the east.

THE ROMAN PROVINCES

Italia, the region to which the privileges of the city had been conceded by the Plautian law, was bounded, as we have seen, by a line drawn across the neck of the peninsula from the Rubicon on the Adriatic, to the Isère on the Tyrrhenian Sea. To the north and south lay two provinces which held the first rank in political importance: on the one hand Gallia, or Gaul within the Alps; on the other the island of Sicily. The Gaulish province was divided into two districts by the Padus, or the Po, from whence they derived their denominations respectively, according as they lay within or beyond that river.

But the whole of this rich and extensive territory was placed under the command of a single proconsul, and the citizens soon learned to regard with jealousy a military force which menaced their own liberties at the same time that it maintained the obedience of their subjects. Sicily, on the other hand, though tranquil and generally contented, and requiring but a slender force to control it, was important to the republic from the abundance of its harvests, to which the city could most confidently look for its necessary supplies of grain.

Next among the provinces in proximity to Rome were the islands of Sardinia and Corsica, of which the former also furnished Italy with grain; but both were rudely and imperfectly cultivated, and the unhealthiness of the larger island especially continued to keep it below many far remoter regions in wealth, population, and intelligence. The first province the Romans had acquired beyond their own seas was Spain, where their arms had made slow but steady progress from the period of their earliest contests with the Carthaginians, although the legions had never yet penetrated into its wildest and most distant fastnesses. The connection between Rome and her Iberian dependencies was long maintained principally by sea, while the wide territory intervening between the Alps and Pyrenees was still occupied by numerous free and jealous communities. But in the course of the last half-century the republic had acquired the command of the coast of the Gulf of Lyons; her roads were prolonged from Ariminum to Barcino and Valentia, while the communications of her armies were maintained by numerous fortified positions in the Further Gaul, and a secure and wealthy province extending from the Var to the Garonne.

The Adriatic and the Ionian straits separated Italy from her eastern acquisitions. The great provinces of Illyricum and Macedonia comprised the whole expanse of territory from the Adriatic to the Ægean Sea, and were divided from one another by the long mountain ridges of Boion and Scardus. Ancient Greece, from Thermopylæ to Cape Malea, constituted a single command under the title of Achaia. With Asia, Rome communicated principally by sea, the route of the Hellespont being insecure, and the barbarous tribes of Thrace but imperfectly subjected. The province of Asia, recovered by Sulla, was held by an imperator with a numerous army, destined to control the dependent potentates of Bithynia, Cilicia, and Cappadocia. The eastern proconsul watched the movements of Mithridates, and unravelled his intrigues with every court from the Halys to the Tigris. He intruded himself into the affairs of Cyprus, Palestine, and Egypt, hunted down the mountaineers of Crete, and menaced with the vengeance of the republic the buccaneers who swarmed in every harbour of the eastern Mediterranean. On the southern coasts of the great inland sea the domain which once belonged to Carthage, limited on either side by the lesser Syrtis and the river Bagradas, formed the proconsular province of Africa; while the five cities of the Pentapolis acknowledged their entire dependence on the will of the republic. The extent of her empire under Sulla was hardly one-half of that which it attained under Augustus and Trajan.

The various relations in which the different classes of the provincial population stood to the ruling city, have been compared with the constitution of

a Roman household. The colonies of Roman citizens planted in the provinces, enjoying the full exercise of their national rights, and presenting a miniature of the metropolis herself, held the position of the son towards the paterfamilias. The conquered races, which had thrown themselves on the victor's mercy, were subjected to his dominion as unreservedly as the slave to that of his master. Those among them to whom the state had restored their lands and institutions, occupied a place analogous to that of freedmen. Some cities or nations had voluntarily sought a connection with Rome on terms of alliance, but with acknowledged inferiority. Others again stood on a more independent footing, offering a mutual interchange of good offices and citizenship; and lastly, there were some which entered into confederacy with the republic with perfect equality of rights on either side. All these had their prototypes respectively in the clients, the guests and the friends of the Roman noble. Within the limits of each Roman province there were generally some states which stood in these several relations to the republic; and the strictness of the military and civil administration was maintained or relaxed towards them according to their respective claims. But after all the mass of the provincial population belonged to the class of *dediticii*, that is, of those who had originally submitted without conditions, the slaves, as they may be termed, of the great Roman family. These were subjected to the severest fiscal and other burdens, enhanced by the rapacity of their rulers, who, from the consul or prætor to the lowest of their officers, preyed upon them without remorse and without satiety.

The appointment to the provincial commands was left ordinarily in the hands of the senate; nevertheless, the people had always regarded it as their own indefeasible prerogative, and sometimes, at the instigation of their demagogues, had not hesitated to resume it. It was the general rule that the consuls and prætors, after serving their year of office in the city, should proceed to administer for one, or sometimes for three years, the affairs of a province. The state placed large standing armies at their disposal, and threw enormous patronage into their hands; while their ambition, avarice, or mutual rivalry, far more than any sense of the public interests, impelled them to exert themselves, during their brief career, in reducing frontier tribes, in quelling insurrections which their own injustice excited, and, whenever they could find an excuse for it, in annihilating the ancient liberties and privileges still retained by the more favoured classes of the provincials. Surrounded by an army of officials, all creatures of their own, all engaged in the same work of carving fortunes for themselves and abetting their colleagues, the proconsuls had little sense of responsibility to the central government, and glutted their cupidity without restraint. Of all the provinces the Cisalpine and Macedonia, and latterly Asia,

were the richest and most amply furnished with military armaments, and on both these accounts they were generally coveted by the consuls, and distributed between them by lot. The tithes, tolls, and other imposts, from which the public revenue was drawn, were farmed by Roman contractors, belonging generally to the order of knights, who had few opportunities of rising to the highest political offices at home. The connivance of their superiors in the province, backed by the corrupt state of public feeling in Rome, shielded, to a great extent, the sordid arts by which they were accustomed to defraud both the government and its subjects.

The means of enrichment which the provinces afforded to the nobility became the ultimate object of the deepest political intrigues. A man of ruined fortune looked to the office of proconsul as the sole means of retrieving his affairs. To obtain it, he allied himself with the chief or the party by whose influence he might hope to rise successively through the various steps which led to the consulship. He first sued for the post of quæstor; after a due interval he might hope to be elected ædile, next prætor, and ultimately consul. His grand object was then obtained; for upon the expiration of his term of office he departed as governor to a consular province, from the emoluments of which he calculated on repaying the expenses of his numerous contests, on liquidating the debt of gratitude to his adherents, and accumulating a vast fortune for his own gratification or the advancement of his party.

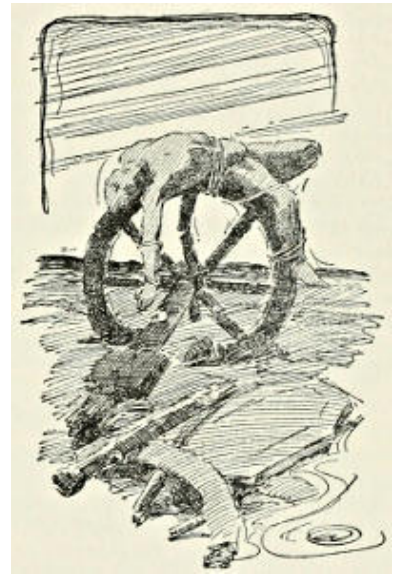
The cupidity which animated individuals was in fact the mainspring of the political factions of the time. The spoil of the provinces was the bait with which the popular leaders had lured the Italians to their standards. All the legal rights of citizenship had been conceded, but the old oligarchic families, dignified by historic associations, and revelling in the wealth accumulated by centuries of conquest, still hoped to maintain their grasp of the larger share of honours and emoluments, which they contrived to make generally accessible only to the richest. They still looked with scorn themselves, and infused the same sentiment into their inferiors, on the “new men,” the men of talents and education, but of moderate origin and fortune, who were striving on all sides to thrust themselves into public notice. The judicia was the great instrument by which they protected their monopoly; for by keeping this in their own hands, they could quash every attempt at revealing, by legal process, the enormities of the provincial administration. But as far as each party succeeded in retaining or extorting a share in the plunder, the same system was carried on by both. It would be unfair to point to either as exceeding the other in rapacity and tyranny. The distress and alienation of the provinces became the pressing evil and danger of the

times. Adventurers sprang up in every quarter, and found a floating mass of discontent around them, from which they were certain of deriving direct assistance, or meeting at least with sullen approbation.

The original vice of the provincial administration of the republic consisted in the principle, openly avowed, that the native races were to be regarded as conquered subjects. The whole personnel of the civil and military government of the provinces was literally quartered upon the inhabitants; houses and establishments were provided for it at the cost of the provincials; the proconsul's outfit, or *vasarium*, was perhaps generally defrayed by a grant from the public treasury, but the sums required for his maintenance, and that of his retinue, known by the name of *salarium*, was more commonly charged upon the local revenues. The proconsul himself indeed was supposed, in strictness, to serve the commonwealth gratuitously for the honour of the office; but practically he was left to remunerate himself by any indirect means of extortion he chose to adopt. As the supreme judicial as well as military authority there was no appeal against either the edicts he issued, or the interpretation he put upon them. The legions in occupation of the province were maintained at free quarters, and their daily pay supplied by the contributions of the inhabitants. The landowners were burdened with a tithe or other proportion of their produce, as a tribute to the conquering city. This payment was in most cases made by a composition, in which the proconsul was instructed to drive the hardest bargain he could for his employers. The local revenues were raised for the most part by direct taxes and customs' dues; and these were generally farmed by Roman contractors, who made large fortunes from the transaction. Public opinion at home was such as rather to stimulate than to check their extortions. For it was a settled maxim of Roman policy that every talent extracted from the coffers of the provincial for the enrichment of the ruling caste was the transfer of so much of the sinews of war to the state from its enemies. But the rulers of the world were not content with the extortion of money from their subjects. An era of taste in art had recently dawned upon the rude conquerors of the East, and every proconsul, quæstor, and legatus was smitten with the desire to bring home trophies of Greek and Asiatic civilisation.

Those among them ambitious of ingratiating themselves with their fellow-citizens sought out the most celebrated statues and pictures, and even the marble columns of edifices, for the decoration of public places in the city. They did not scruple to violate the shrines of the gods, and ransomed rebellious cities for the plunder of their favourite divinities. This thirst for spoil led to acts of abominable cruelty: where persuasion failed, punishments and tortures were

unsparingly resorted to; the proconsul and his officials were all bound together in a common cause, and the impunity of the subordinates was repaid by zeal for the interests of the chief. Of those who could refrain from open violence, and withhold their hands from the plunder of temples and palaces, few could deny themselves the sordid gains of money-lending usury. The demands of the government were enforced without compunction, and the provincial communities were repeatedly driven to pledge their sources of revenue to Roman capitalists. The law permitted the usurer to recover his dues by the severest process. In a celebrated instance the agent of one of the most honourable men at Rome could shut up the senators of a provincial town in their curia, till five of them actually died of starvation, to recover the debts due to his principal.



PUNISHMENT OF A TRAITOR

When indeed this intolerable tyranny reached its height, the provinces might sometimes enjoy the sweets of revenge, though with little prospect of redress, or of any alleviation of their lot. In a government by parties, the misdeeds of one set of men could not fail to rouse the pretended indignation of another; and while the factions of Rome contended for the prerogatives of conquest, they tried to brand each other with the iniquity of their abuse. The domination of the senators, as established by Sulla, soon provoked the jealous animadversions of their excluded rivals. Their administration of the provinces, protected as it was by the tribunals in which they reigned themselves supreme, presented a vulnerable point of attack, and against the crimes of the senatorial proconsuls the deadliest shafts of the popular orators were directed. The remains of Roman eloquence have preserved to us more than one full-length portrait of a proconsular tyrant. It is impossible indeed to rely upon the fidelity of the colouring, or the correctness even of the lines; nevertheless the general impression they leave upon us is amply borne out by numerous independent testimonies. There is a limit in the possible and the probable even to the rhetorical exaggerations of the Roman demagogues. A slight sketch from one of these pictures may suffice to give us an idea of the frightful originals.

THE CAREER OF VERRES

About the period of Sulla's abdication, a young noble named Caius Verres accompanied the praetor Dolabella to his government of Cilicia (80). At Sicyon in Achaia, he chose to demand a sum of money of the chief magistrate of the city, and being refused, shut him up in a close chamber with a fire of green wood, to extort the gratuity he required. From the same place he carried off several of the finest statues and paintings. At Athens he shared with his chief the plunder of the temple of Minerva, at Delos that of Apollo; at Chios, Erythræ, Halicarnassus, and elsewhere on the line of his route, he perpetrated similar acts of rapine. Samos possessed a temple venerated throughout Asia; Verres rifled both the temple and the city itself. The Samians complained to the governor of Asia; they were recommended to carry their complaints to Rome. Perga boasted a statue of Diana, coated with gold; Verres scraped off the gilding. Miletus offered him the escort of one of her finest ships; he detained it for his own use and sold it. At Lampsacus he sought to dishonour the daughter of the first citizen of the place; her father and brother ventured to defend her: one of his attendants was slain. Verres seized the pretext to accuse them both of an attempt on his life, and the Roman governor of the province obliged him by cutting off the heads of both. Such were the atrocities of the young ruffian, while yet a mere dependent of the proconsul, with no charge or office of his own. Being appointed quaestor he extended his exactions over every district of the province, and speedily amassed, by the avowal of his own principal, from two to three million sesterces [about £24,000, or \$120,000] beyond the requisitions of the public service.

[75-72 B.C.]

Verres could now pay for his election to the praetorship in the city. For one year he dispensed his favourable judgments to wealthy suitors at home, and on its termination sailed for the province of Sicily. Here his conduct on the tribunal was marked by the most glaring venality. He sold everything, both his patronage and his decisions, making sport of the laws of the country and of his own edicts, of the religion, the fortunes, and the lives of the provincials. During the three years of his government, not a single senator of the sixty-five cities of the island was elected without a gratuity to the proprætor. He imposed arbitrary requisitions of many hundred thousand bushels of grain upon the communities already overburdened with their authorised tithes. He distributed cities among his favourites with the air of a Persian despot; Lipara he gave to a boon companion, Segesta to an actress, Herbita to a courtesan. These exactions rapidly depopulated the country. At the period of his arrival, the territory of Leontium possessed eighty-three farms; in the third year of the Verrine administration only thirty-two remained in occupation. At Motya the number of

tenanted estates had fallen from 188 to 101, at Herbita from 257 to 120, at Argyrona from 250 to 80. Throughout the province more than one-half of the cultivated lands were abandoned by their miserable owners, as if the scourge of war or pestilence had passed over the island.

But Verres was an amateur and an antiquary, and had a taste for art as well as a thirst for lucre. At every city where he stopped on his progresses he extorted gems, vases, and trinkets from his hosts, or from any inhabitant whom he understood to possess them. No one ventured to complain; there was no redress even for a potentate in alliance with the republic, such as Antiochus, king of Syria, who was thus robbed of a splendid candelabrum enriched with jewels, which he was about to dedicate in the Capitol of Rome. All these objects of art were sent off to Italy to decorate the villa of the proprætor; nor were the antiques and curiosities he amassed less valuable than the ornaments of gold and silver. Finally Verres laid his hands on certain statues of Ceres and Diana, the special objects of worship among the natives, who were only allowed the consolation of coming to offer them their sacrifices in his gardens.

Nor did the extortions of Verres fall upon the Sicilians alone. He cheated the treasury at Rome of the sums advanced to him in payment of corn for the consumption of the city. He withheld the necessary equipments from the fleet which he was directed to send against the pirates, and applied them to his own use. The fleet was worsted by the enemy, and the proprætor caused its officers to be executed for cowardice. His lictors sold to the victims' relatives the miserable favour of despatching them at one blow. He crowned his enormities by punishing one of the ruling caste with death. Gavius, a Roman trader, he confined in the quarries of Syracuse; the man escaped, was retaken, and fastened to a cross on the beach within sight of Italy, that he might address to his native shores his plaintive but ineffectual exclamation, "I am a Roman citizen!"

Such is a specimen of the charges which could be plausibly advanced against a Roman officer, and which the criminal, though backed by the united influence of his party, and defended by the most experienced and successful advocate of his times, shrank from rebutting. In most cases however the governor accused of tyranny or malversation could screen himself by bribing his judges, who besides their natural anxiety to absolve one of their own order of crimes which might in turn be imputed to themselves, had been bred in the same school of corruption and venality as himself. The prosecution of these charges became indeed a ready means of acquiring notoriety, and the people, stimulated by their demagogues, encouraged, it was said, the young orators in their attacks, as

whelps are trained to hunt down beasts of prey. But the assailants were in almost every case repulsed, and even if successful the provinces themselves reaped no benefit from their efforts. The proconsuls only exerted themselves the more strenuously to grasp the means of securing their acquittal. They could boast that the fruits of three years' occupation of office would suffice—the first to make their own fortunes, the second to reward their advocates and partisans, the third and most abundant to buy the suffrages of their judges. The provinces, it might be anticipated, would soon come forward of their own accord and pray for the repeal of the laws against malversation, since they only served to redouble the extortions of their oppressors.

[72-69 B.C.]

These frightful iniquities which rendered the dominion of Rome as formidable to the nations in peace as her hostility had been in war, had grown with the progress of luxury and corruption. Her provincial governors had ever wielded their public authority with arrogance and harshness; but in purer and simpler ages they had at least refrained from the sordid exactions and selfish rapacity for which they had now become infamous. The tribunals also had degenerated both in corruption and shamelessness. The knights could venture to assert that during the forty years they had participated in the dispensation of the laws, the justice of Rome had been unstained even by the breath of suspicion. To the notorious venality of the tribunals under the administration of the senate they pointed as a proof of their own superior purity. It was indeed true that the increasing vices of the provincial government were symptomatic of the growing relaxation of morality at home. On the one hand the extension of foreign conquest and the opening in every quarter of new sources of wealth, had inflamed the passions of cupidity and ambition. On the other, half a century of domestic contentions had loosened the bonds of society, overbearing the ancient principles of justice, of respect for law and order, of reverence for things divine. But in fact this greater development of vice was accompanied at the same time by more general publicity, and a more jealous exposure of the faults of political parties. The knights, deterred from the use of force for the recovery of their lost privileges, affected a zeal for justice, to undermine their more fortunate rivals. The constitution of Sulla was assailed and eventually overthrown, not on the field of battle, but on the floor of the law courts.^b

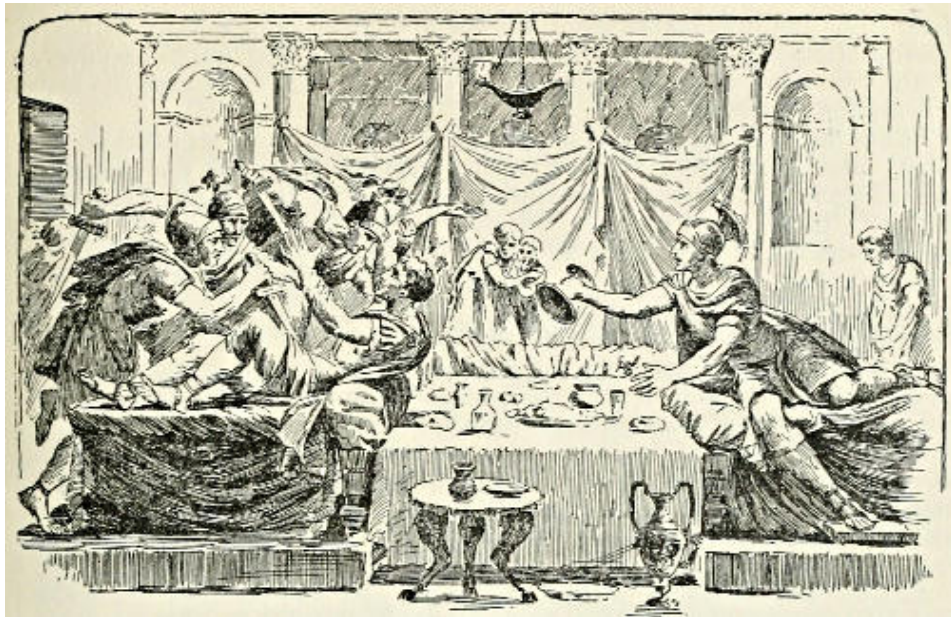
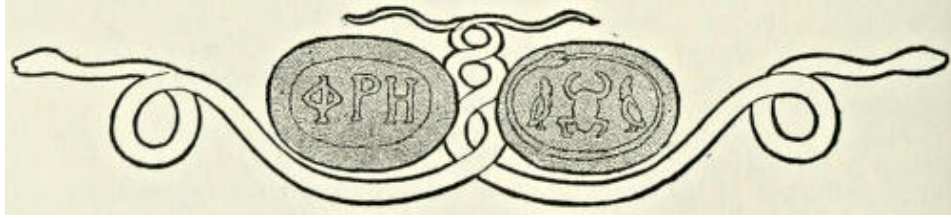
FOOTNOTES

[97] [That is, without the consent of the senate.]

[98] [Now that they were dispersed among all the tribes, and thus seemingly deprived of influence in the elections, the Italians could, in reality, if they chose, exercise far greater influence than when confined to a few tribes of their own, which always voted last. In all the assemblies they now stood on an equal footing with the rest of the citizens.]

[99] [Appian,^d however, one of our best authorities for Sulla, says that “he was still of virile age and sound constitution.”]

[100] [This achievement of Sulla is perhaps exaggerated. Either Marius or Sertorius would have been able to put down Mithridates, and restore order in the East. Sulla’s chief service was the reform of the courts and the improvement of the administration.]



DEATH OF SERTORIUS

CHAPTER XX. THE RISE OF POMPEY

LEPIDUS AND SERTORIUS

We now enter upon the last stage in the decline and fall of the republic. By a violent effort Sulla had restored the government to the senatorial nobility. But symptoms intimating the insecurity of the fabric which he had hastily reared on blood-bathed foundations showed themselves even before his death. After his secession, Q. Catulus became the chief of the senatorial party. He was son of the Catulus who shared the Cimbrian triumph with Marius, and in the year 79 B.C. he appeared among the candidates for the consulship with the certainty of election. The person who aspired to be his colleague was M. Æmilius Lepidus, a man of illustrious family, but of vain and petulant character. He was supported

by many friends, among others by young Pompey. Sulla knew the man, and warned Pompey against entrusting him with power. But Pompey, who already began to talk of “the setting and the rising sun,” disregarded the warning, and Lepidus was elected.

Scarcely was Sulla dead when his words were fulfilled. Lepidus declared himself the chief of the Italian party, and promised to restore all that Sulla had taken away. To prevent a renewal of civil war, the senate bound him and Catulus alike by oath not to take up arms during their consulate. But Lepidus retired to his province of Transalpine Gaul, and, pretending that his oath did not bind him there, began to levy troops. The senate summoned him to return to Rome. He obeyed, but it was at the head of an army. To oppose him, Catulus took post before the Milvian bridge, with Pompey for his lieutenant. Here they were attacked by Lepidus, who was easily defeated. After this failure, he fled to Sardinia, where he died shortly after. But his lieutenants, M. Perperna and M. Junius Brutus, father of Cæsar’s murderer, kept the troops together, and waited for the course of events. A war was raging in Spain, which might well encourage the hopes of discontented persons.

[78-75 B.C.]

It has been mentioned that Q. Sertorius had assumed the government of Spain. But after a vain struggle against superior forces, he was obliged to take refuge in Mauretania. The news from Italy was dispiriting. It seemed as if the Marian cause was lost forever. Sertorius lent ear to the tales of seamen who had lately made a voyage to the Fortunate Islands (so the ancients called the Azores), and seemed to recognise the happy regions which Greek legends assigned as the abode of the blessed. But while the active soldier was indulging in day-dreams of indolent tranquillity, he received an invitation from the Lusitanians to head them in rising against the senatorial governors, and obeyed without a moment’s hesitation. Viriathus himself did not use with better effect the energies of the brave mountaineers. The south of Spain was soon too hot to hold the Sullan leaders; the proscribed Marians came out of their hiding places and joined the new chief. His progress, in the course of two years’ time, became so serious that, when Metellus Pius laid down his consulship, he was sent into Spain to crush Sertorius.

But to crush Sertorius was no easy task. He was no mere soldier, but possessed political qualities of a high order. Like Hamilcar and Hasdrubal of old, he flattered the Spaniards with the hope of rising to independence under his rule. The government which he formed indicated a disposition to dispute empire with Rome. He formed a senate of three hundred, consisting partly of

proscribed Romans, partly of Spanish chiefs—a step unparalleled in the provincial government of Rome. All cities in his power he organised after the Italian model; and at Osca (now Huesca in Catalonia) he established a school for the noble youth of Spain. The boys wore the Roman garb, and were taught the tongues of Rome and Athens. Sertorius is almost the only statesman of antiquity who tried to use education as an engine of government. It cannot indeed be pretended that his views were merely philanthropic; no doubt he held the boys as hostages for the fidelity of their sires.

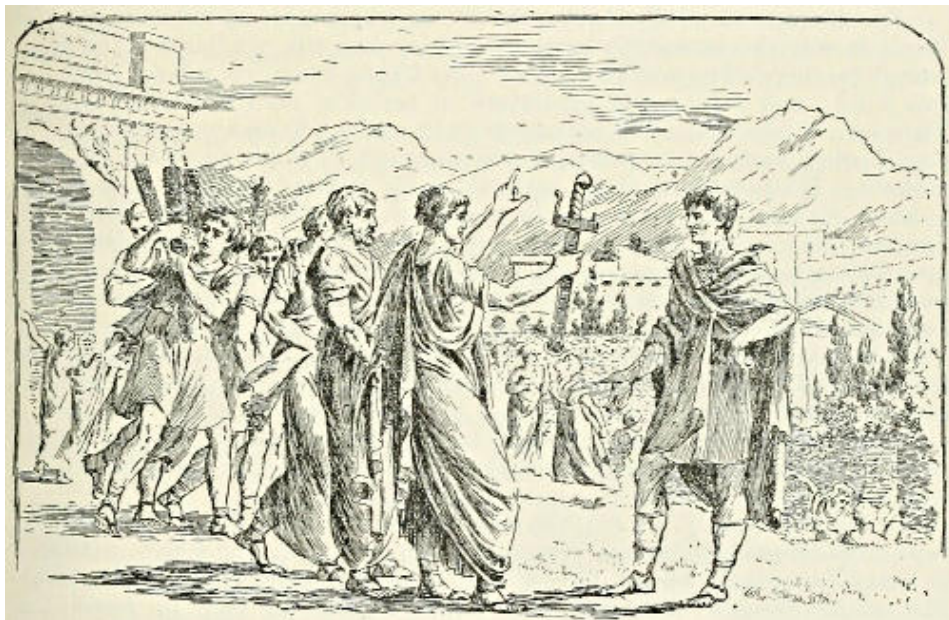
His great talents, above all his acknowledgment of equality between provincials and Romans, won him golden opinions. Everywhere the Spaniards crowded to see him, and loudly protested their readiness to die for him. Their enthusiastic reverence for his person was increased by the presence of a white doe, which continually followed him, and was regarded by the simple people as a familiar spirit, by means of which he held communication with heaven.

Metellus in two campaigns found himself unequal to cope with the new ruler of Spain. In the second of these years (77 B.C.) Perperna, who had retired to Gaul with the best troops of Lepidus, entered Spain, and joined the popular leader; and the senate hastily despatched Pompey to reinforce Metellus. On his march through Gaul, the young general encountered the other remnant of the army of Lepidus under Brutus; and Brutus, who fell into his hands, was put to death in cold blood.

[75-72 B.C.]

Pompey's aid, however, did not change the face of affairs. In the first battle the young general was saved by the approach of Metellus, on which Sertorius said: "If the old woman had not come up, I should have given the boy a sound drubbing and sent him back to Rome." At the end of 75 B.C. Pompey wrote a letter to the senate, representing the insufficiency of his forces, and two more legions were at once sent to reinforce him. Meantime Sertorius himself had reasons for apprehension. Some of his Roman friends, disliking his policy of favouring the provincials, made overtures to the senatorial commanders; and Sertorius, severe by nature, still further exasperated the Romans of his party by forming his bodyguard exclusively of Spaniards. But he still maintained his superiority in the field. Nor was it encouraging to learn that he had received envoys from Mithridates, who was about to renew war with Rome. Sertorius agreed to furnish Roman officers to train the soldiers of Asia, while the king was to repay the loan in ships and money.

The despotic power exercised by Sertorius had corrupted his nature. He indulged in the immoderate use of wine, was impatient of the slightest contradiction, and was guilty of many acts of tyranny. Even the Spaniards began to fall away; and Sertorius in a moment of irritation ordered all the boys at Osca to be put to death. This cruel and impolitic act would probably have cost him his power and his life, even if it had not been terminated by treachery. Perperna, who had at first joined him against his own inclination, thought that a favourable opportunity had arrived for grasping power. He invited Sertorius to a banquet at Osca; and the general, having drunk freely according to his custom, fell an easy prey to the dagger of the assassin (72 B.C.).



THE ROMANS URGE POMPEY TO AID METELLUS

But when Perperna had wrought this shameful deed, he found that the name of Sertorius was still powerful among the Spaniards. Many of them, now that their great leader was no more, forgot his faults, and with the devoted enthusiasm of their nation threw themselves into the flames of his funeral pyre. A few days after the death of Sertorius, Perperna attempted to lead the soldiery against Pompey, but he sustained an ignominious defeat. His men were dispersed, and he was taken prisoner. When brought before Pompey, he endeavoured to gain favour by handing him letters which had been interchanged by Sertorius with some of the chief men at Rome. But Pompey, with prudent magnanimity, threw the letters into the fire and refused to hear him. In the course of a year the last relics of the Marian party in Spain were extinguished.

Before this was effected, Rome was engaged in conflict with Mithridates. [The history of this war will be given later in the chapter.] But here must be noticed a formidable outbreak that took place in Italy, and threatened the very existence of the state. This was:

THE WAR OF THE GLADIATORS

[73-72 B.C.]

For the purpose of the barbarous shows which were so much enjoyed at Rome, it was the custom to keep schools for training gladiators, who were let out by their owners to the ædiles. At Capua there was a large school of this kind; and among the gladiators in training there was Spartacus, a Thracian, who had once led his countrymen against Roman commanders, but now, having been taken prisoner, was destined to make sport for his conquerors. He persuaded about seventy of his fellow-bondsmen to join him in breaking loose; better it was, he argued, to die in battle on the open field, than on the sand of the amphitheatre. This handful of brave men took up a strong position upon Mount Vesuvius, where Spartacus was presently joined by slaves and outlaws of all descriptions. The gladiators, old soldiers like himself, supplied him with officers. Cœnomaus and Crixus, the former a Greek, the latter a Gaul, acted as his lieutenants. He enforced strict discipline; and, so long as he was able, obliged his followers to abstain from acts of rapine. Two Roman prætors attacked him, but they were beaten with loss, and the numbers of his army swelled every day. All this happened in 73 B.C., after the Mithridatic War had broken out, and before the Sertorian War was ended.

In the next year (72 B.C.), the same which witnessed the murder of Sertorius, Spartacus had become strong enough to take the offensive. He had to face a formidable power, for both consuls were ordered to take the field. But, at the head of more than one hundred thousand men, he forced the passes of the Apennines and entered Picenum. His subordinates, however, proved unmanageable; and Spartacus, aware that the power of Rome must prevail, bent all his energies towards forcing his way across the Alps, in the hope of reaching some remote region inaccessible to Rome. As he pressed northwards, he was assaulted by both the consuls, but defeated them both, and made his way to Cisalpine Gaul; but here he was repulsed by the prætor Cassius, and obliged by the impatience of his followers to retrace his steps. Still, every other Roman officer who dared to meet him was defeated; at one time the brave gladiator is said to have meditated a descent upon Rome itself. But he relinquished his

desperate plan, and spent the remainder of the year in collecting treasure and arms. Little discipline was now observed. The extent of the ravages committed by the bands under his command may be guessed from the well-known line of Horace, in which he promised his friend a jar of wine made in the Social War, "if he could find one that had escaped the clutches of roaming Spartacus."

The management of the war was now committed to Crassus, who had really won the battle of the Colline Gate. Ever since the triumph of Sulla he had lived quietly at Rome, profiting by the proscription to buy up property cheap; and after that period he had been busied in making the most profitable use of the large fortune which he had amassed.

[72-71 B.C.]

Crassus took the field with six new legions, to be added to the remains of the consular armies. The disorganised battalions of these armies he punished by the unjust and terrible penalty of decimation; but his rigour was successful in restoring discipline. He found Spartacus besieging Rhegium, with the view of establishing a connection with Sicily, and rekindling the Servile War in that island. The gladiator had even agreed with a squadron of Cilician pirates to convey two thousand of his men across the straits; but the faithless marauders took the money and sailed without the men. Crassus determined to shut up the enemy by drawing entrenchments across the narrowest part of the Calabrian peninsula. Twice in one day did Spartacus endeavour to break through the lines; twice he was thrown back with great slaughter. But he continued to defend himself with dauntless pertinacity; and the senate, hearing that Pompey was on his way back from Spain, joined him in the command with Crassus, and urged him to accelerate his march.

Crassus, afraid of losing his laurels, determined to assault Spartacus; but the brave gladiator anticipated him by forcing a passage through the lines, and marching upon Brundisium, where he hoped to seize shipping and make his escape from Italy. But M. Lucullus, brother of Lucius, the commander against Mithridates, had just returned with a force of veteran soldiers from Macedonia to Brundisium. Spartacus, foiled in his intention, turned like a wolf at bay to meet Crassus. A fearful conflict ensued, which remained doubtful till Spartacus was wounded by a dart through the thigh. Supported on his knee, he still fought heroically, till he fell overpowered by numbers. Most of his followers were cut to pieces; but a strong body of the insurgents drew off in good order to the mountains. A division of five thousand made their way to the north of Italy, where Pompey fell in with them on his way home from Spain, and slew them to

a man. About six thousand more were taken prisoners by Crassus, who hung them along the road from Rome to Capua.

To Crassus belongs the credit of bringing this dreadful war to a close. In six months he had finished his work. But Pompey claimed the honour of concluding not only the Sertorian War, but also the war with Spartacus. In fact he had not much cause for boasting in either case. The daggers of Perperna really brought the Spanish contest to an end; and as to the gladiatorial conflict, the lucky chance by which Pompey intercepted five thousand fugitives was his only claim to credit. But the young general was a favourite with the soldiery and with the people, while Crassus from his greedy love of money enjoyed little popularity. Public opinion, therefore, seconded claims which were put forward without modesty or justice.

Neither Pompey nor Crassus would enter the city; for both desired a triumph, and their armies lay at the gates to share the honours. The wish of Pompey was at once granted; but to Crassus only an ovation was conceded.

THE CONSULSHIP OF POMPEY AND CRASSUS

[71-70 B.C.]

Before they entered the city, they had both asked permission to offer themselves as candidates for the consulship. Both were excluded by the laws of Sulla. Crassus was still prætor, and at least two years ought to elapse before his consulship. Pompey was only in his thirty-fifth year, and had not even been quæstor. The senate, however, dared not refuse Pompey; for he would not disband his army, and his tone brooked no refusal. And what was granted to Pompey could not be denied to Crassus, who also kept his soldiers under arms. Thus, at the demand of two chiefs, each backed by an army, the senate were, within eight years after Sulla's death, obliged to break his laws. Pompey was elected by acclamation. Crassus might have been less successful, had there not been a secret understanding between him and Pompey. On the calends of January, 70 B.C., Pompey and Crassus entered on their memorable consulship.

On that day Pompey gave intimation of his intention to pursue a popular course of policy. In a set speech he declared his intention of releasing the tribunes from the trammels imposed upon them by Sulla, and of attempting a reform of the judicial system. Both of Pompey's announcements were received with shouts of applause. To the former the senate offered but a feeble opposition. The tribunes were restored to the exercise of their power, and with

their restoration it may be said that the keystone of the arch erected by Sulla fell. With the resuscitation of this popular power revived also the independence of the tribe assembly, and hence followed by necessity a struggle between that body and the senate.

But the other measure broached by Pompey was one which the senate determined to oppose to the uttermost. They could not tamely abandon their absolute power over the law courts. Yet in the last ten years, scandal had been great. Among other persons Cæsar had reason to complain. After his escape from Sulla's vengeance, he also, like Cicero, resorted to the schools of Greek philosophy. On his return, though only in his twenty-third year, he indicted Cn. Dolabella for misgovernment in Macedonia. Dolabella was defended by Q. Hortensius, the first advocate of the day, a determined adherent of the senatorial party, and as a matter of course he was acquitted. It had, however, been remarked that the knights were little less corrupt than the senators; and the law proposed under Pompey's authority by the city prætor, L. Aurelius Cotta, was so devised as to establish a court composed of three elements, each of which might serve as a check upon the other two. In each jury one-third of the jurymen was to be furnished by the senate, one-third by the knights, and the remaining third by the tribunes of the treasury. Catulus endeavoured to promote a compromise; but Pompey was resolute, and the nobles prepared to maintain their privilege by arms.

An event, however, occurred which smoothed the way for Cotta's law. Cicero, after the great credit he had won by his bold defence of Sext. Roscius, had quitted Rome for two years. He returned in 77 B.C., and immediately began to dispute with Hortensius the sway which he exercised in the law courts. Except during the year 75 B.C., when he was serving as quæstor in Sicily, he was employed as an advocate at Rome. His polished eloquence excited universal admiration; his defence of many wealthy clients brought him in much money and connected him with many powerful families. He was of the same age as Pompey; and, being now a candidate for the ædileship, he began to be eager for political distinction. To obtain this by military commands was not suited to his tastes or talents. But it was possible to achieve it by the public impeachment of some powerful offender. C. Cornelius Verres, a man connected with some of the highest senatorial families, had for three years been prætor of Sicily, from which province he had returned after practising extortions and iniquities unexampled even in those days. The Sicilians, remembering the industry and equity with which Cicero had lately executed the functions of quæstor in their island, begged him to come forward as the accuser of this man; and the orator,

who saw how he might at once strengthen the hands of Pompey and share the popular triumph of the consul, readily undertook the cause.

The first attempt which the dexterous advocate of Verres made to elude Cicero's attack was to put forward Q. Cæcilius Niger, who had been quæstor under Verres, to contend that to him belonged the task of accusation. But Cicero exposed the intended fraud so unanswerably that even the senatorial jurymen named Cicero as prosecutor. He demanded ninety days for the purpose of collecting evidence in Sicily. But he only used fifty of them, and on the fifth of August he opened this famous impeachment. He had in the meantime been elected ædile. But Hortensius had also become consul-elect; and one of the Metelli, a warm friend of the accused, was designated to succeed Glabrio, who now presided in the court as prætor peregrinus. It was therefore a great object for Verres to get the trial postponed to the next year, when his great senatorial friends would fill the most important offices in the state. To baffle this design, Cicero contented himself with a brief statement of his case, and at once proceeded to call witnesses. So overpowering was the evidence that Hortensius threw up his brief, and Verres sought impunity in a voluntary exile. To show what he could have done, Cicero published the five great pleadings in which he intended to have set forth the crimes of Verres; and they remain to us as a notable picture of the misery which it was in the power of a Roman proconsul to inflict.

Soon after the trial came to this abrupt issue, the law was passed, seemingly with little opposition; and thus a second great breach was made in the Sullan constitution.

The corrupt state of the senate itself was made manifest by a step now taken by Catulus and his friends. They restored the censorial office, which had been suspended for sixteen years. The censors of the year 70 B.C. discharged their duties with severe integrity, and sixty-four senators were degraded. For Catulus they revived the high rank of princeps, and he was the last independent senator who held that rank. When it was next called into existence, it served to give a title to the despotic authority of Augustus. The review of the knights was made remarkable by the fact that the consul Pompey appeared in the procession, leading his horse through the Forum, and submitting himself to the censorial scrutiny.



ROMAN GENERAL

The jealousy of Crassus increased with Pompey's popularity. Both the consuls continued to maintain an armed force near the city; and, though the liberal measures of Pompey had won the Forum, yet the gold of Crassus commanded many followers. The senate dreaded that the days of Marius or Cinna might return. But Crassus calculated the risks of a conflict, and prudently resolved to give a pledge of peace. At the close of the year he publicly offered his hand to Pompey, which the latter deigned to accept after the manner of a prince. It did not suit Crassus to disturb credit and imperil his vast fortune by a civil war; Pompey was satisfied so long as no other disputed his claim to be the first citizen of the republic. (From Trajan's Column)

Thus ended by far the most remarkable year that had passed since the time of Sulla. Two generals, backed by an armed force, had trampled on the great dictator's laws; and one of them had rudely shaken the political edifice reared in so much blood. Behind them appeared the form of one who sought to gain by eloquence and civil arts what had lately been arrogated by the sword. But it was some years yet before Cæsar descended into the political arena.^b

POMPEY SUBDUES THE CILICIAN PIRATES

[84-67 B.C.]

During the party struggles in Italy, Sicily, Africa, and Spain, during the dictatorship of Sulla and its sanguinary effects, felt long afterwards in the Sertorian and Slave wars, the sufferings of Rome and her provinces were increased by a scourge of a peculiar character which had gradually attained alarming proportions.

The coasts of the western part of that district of Asia Minor known as Cilicia, where the wild mountains of the Taurus, which intersect the country, afford a safe refuge to the robber and his prey, had been from ancient times the home of piracy. The hopeless confusion of the Syrian kingdom, of which Cilicia formed a part, set order at defiance and for a long time allowed full play to the lucrative trade which flourished under the protection of the states of Rhodes, Cyprus, and Egypt, all of them at enmity with the Syrian monarchy.

We know how in the year 228 Rome had punished the Illyrian pirates, but it was only about the year 103 that Marcus Antonius was sent against those of Cilicia and after some time celebrated a hard-earned triumph. The torpor of the Roman government and the civil disturbances were more inimical to the safety of the seas than to that of the land; and in the war against Mithridates, in which

civil disturbances played such a disastrous part, the ships of the Cilicians offered the same refuge to the vanquished—whether he were of Pontus, Greece, or Rome, whether Mithridates or Sulla had made him homeless—as they afforded to escaped convicts, runaway slaves, and the outcasts of every nation and every country. Their pirate sails were soon to be found all over the Mediterranean Sea. After the collapse of the Grecian states and the decay of the Roman sea power there was soon no safety for any merchant ship, or coast district.

When the captured men could not ransom themselves by large sums of money, they were taken to the great slave markets of which the island of Delos was the chief depot, and in the secure and unassailable mountain castles of Cilicia the corsairs deposited the money and other property which their boats and fleets had seized throughout the whole district of the Mediterranean.

The excellent organisation of this roving power added tenfold to its danger. Any one who belonged to the great association could claim assistance from any ship that carried the pirate flag. There was no fear of treachery; a common interest, common foes, a similar life had created a kind of national cohesion and national feeling among these freebooters of the sea.

The repeated efforts of the Romans to stem the danger had been without avail. L. Murena (84-81) accomplished nothing, neither was anything of a decisive nature effected by P. Servilius Vatia (78-75), although he conducted the war with much will and energy. He did his best; and by his capture of the city of Isaura, in Taurus, he won for himself the surname of Isauricus and a triumph at which he was able to produce rich booty and, to the especial delight of the people, some pirate captains as prisoners. Cilicia was formed into a Roman province, but this left the evil practically untouched. The selection in the year 74 of Marcus Antonius, a son of the Marcus Antonius mentioned above, as proprætor against the Cilician corsairs, with considerable means at his disposal, was also a failure, for the chiefs of the Cretan pirate horde annihilated the greater portion of his fleet. Emboldened by success, the corsairs of the Syrian coasts ventured as far as the Pillars of Hercules; they mocked at the power and sapped the vitality of the Roman state. Notable men like P. Clodius and Julius Cæsar fell into their hands. Ambassadors of foreign powers on their way to Rome were captured, and Roman ambassadors and curule magistrates had to be ransomed. Twelve axes, Cicero moaned, fell into the hands of the pirates, who with these insignia in their possession mocked at the supremacy of Rome. Italian cities such as Caieta, and Misenum, to say nothing of Greek ones like Cnidus, Colophon, and Samos were plundered, and the pirate squadron—the

nimble little *myoparones*—even appeared at Ostia, at the mouth of the Tiber. Trade and the free supply of provisions were everywhere seriously obstructed and this was particularly felt at Rome; the high price of corn, and the emptiness of the treasury, whose source of replenishment was cut off, pressed heavily on the nation and at last became unendurable.

The half-measures adopted so far having accomplished nothing, it was evident that the pirates must either be destroyed by one great blow or left to do as they pleased.

[67 B.C.]

In these circumstances Gabinius, one of the tribunes of the people for the year 67, a favourite of Pompey and in the pay of the latter, came forward with the momentous proposal that a general invested with extensive powers should be entrusted with the extermination of the pirates. He should be an imperator for three years with proconsular and irresponsible power extending from the Pillars of Hercules to the farthest east. He should have unlimited command throughout the sea and four hundred stadia inland in all countries, including Italy. Fifteen senatorial legati with a prætor's privileges, and appointed by himself; two hundred ships, six thousand Attic talents and whatever land forces he might require, should be placed at the disposal of this imperator. In making this proposal no name was given, but everybody knew that it pointed to Pompey. This rogation was received with great applause. Pompey had been successful in all his preceding efforts and had just re-established the tribunician power; he was the idol of every Roman citizen, and the people reposed in him that unlimited confidence which the multitude are wont to accord to those whom they have once chosen for their favourites. Naturally the senate did not receive the appointment in the same spirit. To give one man such boundless power was the same, it was said, as to give it to him forever; it was to exchange freedom for the government of one; to turn, as the punsters said, a navarch into a monarch. Q. Catulus tried to throw the weight of his esteemed name, and Q. Hortensius that of his eloquence, into the scale against the dangerous measure. They sought to obtain the veto of the rest of the tribunes against the rogation which would place all the power of the republic at the disposal of one man, and might thus create a regular tyranny, a new Romulus; and here and there party bitterness may have vented itself in angry words, saying that the new Romulus should be treated like the old, whose mangled remains were carried away from the Field of Mars under the togas of the senators. But when the measure was put to the vote of the assembly, all opposition was futile against the unanimous and clamorous voice of the people and of the most renowned leaders of the popular party whose

interests, like those of Julius Cæsar, were intimately connected with those of Pompey. The tribune Trebellius ventured to interpose his veto and maintained it until seventeen tribes voted for his removal from office when his firmness forsook him. It was in vain that Q. Catulus counselled that the deputies should be appointed by the people and not by Pompey; all resistance was useless. One hundred and twenty thousand infantry, five thousand cavalry, twenty-four deputies and five hundred ships, which exceeded the first commission, were placed at the service of Pompey, who with assumed modesty begged to be spared the difficult task. And so high were the hopes centred in him that the price of corn fell immediately on his appointment and before he had done anything.

Pompey justified the hopes of Rome. He turned to the best account the means placed at his disposal. He divided his command into thirteen areas under his deputies, and moved with his main forces from west to east. The corsairs were chased from one lurking-place to another, from retreat to retreat, and one admiral drove them into another's net. Before forty days had elapsed the western Mediterranean was free, and the corn ships from Africa, Sardinia, and Sicily now had free course into the Roman harbours, as had not been the case for years. After a short stay at Rome, Pompey again set sail for Brundisium, and the chase commenced afresh. Treachery and submission decreased the number of the pirates who could no longer hold out and who were wisely spared by Pompey when they submitted. In less than three months he was on the western coast of wild Cilicia and arrived at the promontory of Coracesium, where a final battle put an end to the war. The remaining corsairs were there assembled and were defeated. The seas were now free, and the mountain castles opened and disgorged their plunder, their arms, their treasure, and their prisoners. Thirteen hundred ships were burned, seventy-two taken, and 306 surrendered. One hundred and twenty strongholds and towns were destroyed, ten thousand pirates were killed, and twenty thousand taken prisoners.

The liberated prisoners who now returned to their homes, the soldiers enriched by the chase, the Roman people saved from hunger, the merchants of the wide Roman dominions whose commerce was reinstated—all lauded the name of the great proconsul who had accomplished in three months what had been vainly desired for seventeen years. In fact, this extermination of the corsairs of the Mediterranean was probably the most brilliant and in any case the most meritorious achievement in the life of Pompey, although it must also be noted that this swift conquest was as illustrative of the power of Rome when it assembled and united its forces, as it was of the capacity of Pompey. The

pirates themselves moreover had no cause to complain of undue severity. The better sort were allowed to settle in the town of Soli in Cilicia, whose name, Pompeiopolis, immortalised the memory of its conqueror; others found shelter in different inland places and towns, whilst some were even bestowed in southern Italy. The temperate way in which Pompey treated the conquered led the Cretans, who had been conquered in 68 by Q. Metellus and treated with great cruelty, to send their submission by an embassy.

Pompey accepted it and sent them his deputy L. Octavius; Metellus protested loudly against this invasion of his province, and took up arms against him, but his protest was unjustifiable in face of the Gabinian law. Thus a regular civil war arose in the island, which was of little importance in itself but greatly increased the very unsettled condition of the republic and its government.

THE SECOND AND THIRD MITHRIDATIC WARS

[84-73 B.C.]

In the meanwhile Pompey was by no means inclined to be contented with this triumph. He expected that the command in the Pirate War would lead to a greater and more important one. The war in Asia had always been the object of his desires, and now, after crushing the corsairs, the people could not refuse him anything. L. Licinius Murena, left by Sulla in Asia in the year 84 with the two Fimbrian legions, had recommenced the war directly after his general's departure, but without success, and at Sulla's command he abandoned it; these military operations, which ended in the year 81 with the triumph of the proprætor Murena, were distinguished by the name of the Second Mithridatic War. Mithridates knew that the peace with Sulla was only a truce, and he saw himself threatened anew when the Romans made Bithynia a province in the year 75, its last king, Nicomedes III, having died and bequeathed his kingdom to the Roman people. We know that through the Marians who had taken refuge at his court, Mithridates entered into negotiations with Sertorius, and therefore in the year 74 the consuls, L. Licinius Lucullus and M. Aurelius Cotta, accepted the king's challenge to the Third Mithridatic War.

The king found that the corsairs were allies not to be despised on the sea; and the Roman outlaws at his court, as well as the officers sent him by Sertorius, helped him to drill his army in the Roman fashion. Lucullus and Cotta were entrusted with the direction of the war. The former, a man belonging to the aristocratic class had exhibited great capacity in the eastern seat of war, and in all the appointments since filled by him, he had proved himself a skilful and

intelligent officer, while his moderation and gentleness united with unusual cultivation had won Sulla's highest approval.

In the year 74 the war commenced. Mithridates began operations by calling many districts in Asia Minor to arms and by making himself master in Bithynia by means of his fleet and army. The Romans had retired to Chalcedon; and here Cotta, who refused to wait for his advancing colleague, was beaten by land and water, and the king proceeded in a southwesterly direction, towards the town of Cyzicus, and laid siege to it. The Hellenic inhabitants offered a firm resistance, for they knew the fate that awaited conquered cities at the hands of the Pontian king. Lucullus was therefore able to move to a spot east of the camp of Mithridates. By this stroke he cut off the king's communication with his Pontian territory and closing the way on the land side left Mithridates only the sea open to him. At the river Rhyndacus (east of Cyzicus) Lucullus defeated a portion of the enemy's army which was attempting to break through the Roman lines. The sufferings from the winter season and want of care consequent on the stoppage of the transports had naturally thinned the ranks of the three hundred thousand men who were besieging the city. So in the spring of 73 the king was finally forced to raise the siege and escape with the rest of his fleet; and the failure would have been fatal to him, had not the Roman ships been burned in the harbour the previous year.

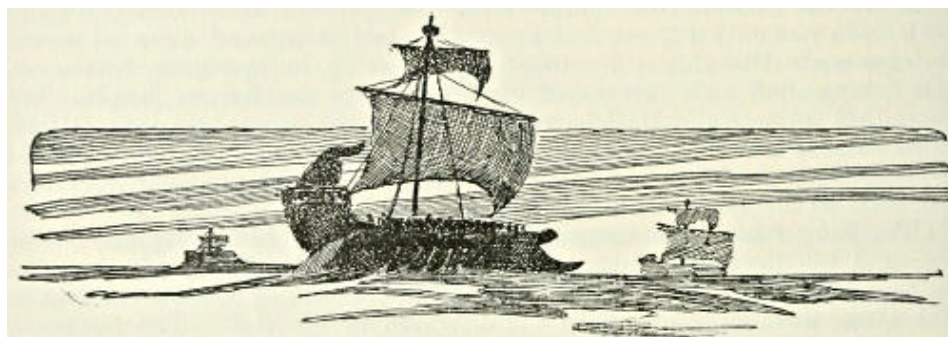
[73-70 B.C.]

Thus the Pontian fleet, which swept the Black Sea and the Propontis, met with no opposition in its expedition to the Ægean Sea, and it was said that the Roman exiles who commanded it had decided to attempt a landing in Italy. However, Lucullus himself, who had turned westward from Cyzicus, commanded the little fleet, which had been collected in the Ægean waters and defeated the enemy's squadron in a battle between Lemnos and Scyros in which most of the Roman exiles lost their lives.

In the meanwhile, Lucullus' deputies Voconius, Barba, and Triarius, united against Mithridates, who was stationed with his troops at Nicomedia (Bithynia). The king avoided a battle and fled on a pirate ship, besieged Heraclea on the way, where he assembled the rest of his fleet which the storm had almost entirely scattered, and then proceeded past Sinope to Amisus. The foes being now driven back to their own domains, the Romans took the offensive.

Aurelius Cotta stationed himself at Heraclea. Lucullus himself passed in the autumn of the year 73 into the Pontian district. Mithridates avoided a battle and retired inland where the pursuing enemy would find it difficult to obtain

supplies. Lucullus followed, leaving parties to besiege or watch Amisus and Eupatoria, the most important cities of Pontus; and deaf to the murmurs of his soldiers, quickly pursued the king and arrived in the spring of 72 at Cabira (on the Lycus in Pontus).



ROMAN GALLEY

The king had looked in vain for allies in the winter; neither the great ruler of Armenia, his son-in-law Tigranes, nor the Parthians would support him. But a powerful army of forty thousand infantry and four thousand cavalry was meanwhile levied in his own states under the command of Diophantus and Taxiles, whilst Lucullus only mustered three legions. Mithridates' cavalry, his best support, was completely defeated by Lucullus' deputy, M. Fabius Hadrianus, and when the king ordered a further retreat, the camp became the scene of blind fear and confusion which was turned into a complete rout by a timely onslaught from Lucullus. The king fled with two thousand cavalry over the border of his kingdom to Armenia, where his son-in-law Tigranes received him. The rich booty of the camp fell into the hands of the Roman soldiers; by the king's command an eunuch forced the women of the harem to drink of a flagon of poison to save them from falling into the hands of the enemy—the greatest of all disgraces for an oriental ruler.

There was now a pause in the war. The flat country submitted everywhere to the Romans; only Amisus on the Pontian coast, Sinope and Amastris on the Paphlagonian, and Heraclea on the Bithynian coast, made an obstinate resistance, supported by the troops of the king and his allies, the corsairs, with their ships.

While the deputies were occupied with these sieges, from 72-70, the commander-in-chief organised the internal affairs of the Asiatic province, where there was a pressing need for the attention of an upright man like Lucullus. Sulla's peace had left the inhabitants of these beautiful countries to their hopeless misery under Roman tax gatherers. The twenty thousand talents which

Sulla had imposed on them had grown to a debt of 120,000 talents under the usurious interest of the Roman capitalists, who advanced the community the money for the indemnity; and to satisfy the creditors the sacred vessels in the temples of the gods had to be melted down, freemen sold their sons and daughters into slavery, and where payment was delayed or impossible every torture was resorted to which inventive avarice could devise; so that according to Plutarch's expression "slavery seemed like peace and *seisachtheia*^[101] in comparison."

To mitigate this disgraceful state of things, Lucullus issued a decree at Ephesus forbidding more than twelve per cent. interest, releasing debtors from the obligation to pay interest whose total exceeded the original capital, and prohibiting the creditor from claiming more than a quarter of the debtor's property.

The provincials congratulated themselves on having such a just and humane proconsul, but his policy aroused the deadly hatred of the Roman capitalists as it injured their business, and they spared no efforts in Rome to accomplish his fall as soon as possible. In this they received great assistance from the increasing discontent of the soldiers who were as much opposed to the justice and moderation of Lucullus as they were to the long continuation of the war, which had just taken a fresh start.

Mithridates had worked the whole winter trying to draw Tigranes into the Roman war which he must sooner or later be unable to avoid. His own power had broken down, his son Machares, the satrap of his kingdom of the Bosphorus had made peace with Lucullus on his own account and his ships returning from Crete and Spain had been destroyed by Lucullus' deputy at Tenedos.

THE ARMENIAN WAR

[70-68 B.C.]

Tigranes' kingdom of Armenia had previously been, like so many others, a province of the Syrian kingdom, and its governor had asserted his independence under Antiochus the Great. Tigranes had extended it on every side and had increased it by fragments taken from the Syrian kingdom which was now falling into ruins, whilst princes of the house of the Seleucidæ quarrelled over its remains. From the year 83 Syria and Cilicia appear as Armenian provinces under Armenian governors. But the great king Tigranes himself held his gorgeous court in eastern fashion at Tigranocerta near the borders of Mesopotamia. It was one of

those gigantic cities rapidly built and filled at the bidding of a despot, the ruins of which are to be found in the East scattered here and there as witnesses to the evanescent character of despotic creations.

In earlier times the Roman government would not have so long delayed showing this despot his proper place. Lucullus, contrary to the will of the government now carried the war into Tigranes' territory, demanding from the great ruler that he should deliver up Mithridates. This was suggested by Appius Claudius, whose bold speech filled the barbarian ruler with astonishment. He was furious and enraged that Lucullus did not give him his title of "King of Kings," but only addressed him as king, and avenged himself by refusing the title of "imperator" to the Roman, and making common cause with Mithridates whom he had not previously admitted to his presence.

Lucullus led his unwilling army, of which the Fimbrian legions after thirteen campaigns were now with some reason demanding to be disbanded, over the Cappadocian Mountains and then across the Euphrates. This was an ill-advised course considering the nature of the Armenian territory and the small numbers and ill-humour of his soldiers who were in no way pleased to be leaving the Pontian district behind them.

Whilst King Tigranes was still rocking himself in the ignorance of an eastern prince and listening to his courtiers' assurances that the Roman army would never venture to face the hosts of the King of Kings, a messenger arrived to acquaint him with its approach. The messenger who brought the unpleasant news was rewarded by death, but it was none the less true. Mithrobarzanes was given the command of the band now sent against the Romans as punishment for not having joined the flatteries of the courtiers, but he was easily beaten. Tigranes left his capital just before the arrival of the Romans, and reinforcements gradually arrived from the different nations of his kingdom. Their appearance and their numbers—there were Arabians, Syrians, Medes, Adiabeniens, Armenians, Iberians, and Albanians from the heights and valleys of the Caucasus—inspired him with confidence. He rejected the counsel of Mithridates, who, from his own experience of the Romans, advised him to avoid a battle and to employ his own superior cavalry to cut off the enemy's supplies, and the heights around Tigranocerta were soon covered with the king's army of 150,000 heavy infantry, 20,000 light infantry, and 55,000 mounted men, 17,000 being in coat of mail. Lucullus left 6000 men before the city, and the remainder, who seemed to the king to be too many for an embassy and too few for an army went up the river to find a ford. "There they fly, these invincible Roman hoplites!" exclaimed the king, with confidence. However, he

soon afterwards saw to his horror, how the eagle of the first legion wheeled round and then one cohort after another crossed the river in the proud and confident manner of Roman troops. Quickly the king sought to array his followers but it was another barbarian battle, in which the stampede commenced before the troops were ranged in order. Driven back by the first attack and thrown into confusion the masses of men offered a wide target and an easy prey for the swords of the enemy.

The Romans were almost ashamed at their easy victory, for it cost them only five dead and 105 wounded. The enemy's loss was incalculable. The tiara and diadem of the Armenian king fell into Roman hands; and the city of Tigranocerta had to surrender. It was taken and given over to the soldiers to plunder; some of the heterogeneous population were sent back to their native districts.

Lucullus wished to follow up the victory so as to give the enemy no time to assemble for a fresh resistance. Submission was made to him by many of the subjects of Tigranes, and an embassy of the Parthians appeared with an offering of friendship. Only one more blow was needed to finally drive the Armenian from his throne. But it was some time before the general could appease his discontented, unwilling soldiers and the allied kings made use of the opportunity to reassemble an army of seventy thousand infantry and thirty-five thousand cavalry. This time they followed Mithridates' advice to avoid a battle. However, when Artaxata (on the Araxes) the second city of the kingdom was threatened, a battle ensued on the river Arsanias in the neighbourhood. The conflict lasted somewhat longer this time and the victory was bought more dearly, the loss of the enemy was somewhat slighter, but the result was the same. No Asiatic army, albeit large and well chosen, could be victorious over a well-commanded Roman army.

[68-67 B.C.]

But Lucullus had not yet accomplished his purpose. His military capacity was indisputable, but he was wanting in the power of attaching the soldiers to himself by that personal charm which was almost a more important gift in those times.

They murmured that the richest towns had been past by, none had been taken by storm, so that they had come in for no plunder; but they maintained that the emperor looked out for himself though he gave them nothing, and it cannot be denied that Lucullus enriched himself. In his cold, severe manner the general ignored their desire for loot, and they hated him not only because he was an aristocrat but because he treated the inhabitants of the cities with consideration,

whilst they, as savage soldiery, regarded them as profitable booty. The snow-covered mountains and the endless precipitous roads filled them with aversion; never had they wintered in a friendly Hellenic city, and the officers concurred in these complaints, particularly P. Clodius, the brother-in-law of the general, who actively fostered the feeling against Lucullus in the camp as well as the capital.

The proconsul could not induce his soldiers to help him to take Artaxata, the second city of the Armenian kingdom. Half ceding to their pressure he turned southward to Mesopotamia, whose capital Nisibis surrendered to him. But here the unwilling machine denied him further service. The troops insisted on winter quarters in Nisibis and its environs where they wished to wait for the successor of Lucullus. This was advantageous to the enemy as it delayed the final blow.

However Tigranes gained nothing, as L. Fannius came opportunely to the aid of Lucullus' soldiers whom Tigranes had surprised. Nevertheless Mithridates strove to benefit by the discontent in the Roman army and regain his kingdom.

He arrived at Pontus and attacked the Romans, who had excited universal hatred in the country, with a small force, and not unsuccessfully for he had learned somewhat in the long war, and in the following year (67) he defeated the deputy Triarius at Zela on the river Iris (southwest of Pontus) when the Romans lost seven thousand killed, amongst them a great number of officers.

Lucullus, hearing the bad news, withdrew to Mesopotamia and returned to Pontus, and Mithridates carried the war from thence to Cappadocia. When Lucullus wished to follow him thither, the Fimbrian soldiers declined to obey him as he was no longer their general and they declared they would only remain under arms with the other legions, until the autumn.

Mithridates profited by these occurrences. Acilius Glabrio, the governor of Bithynia who was to have been replaced by Lucullus, and Q. Marcius Rex, the governor of Cilicia, were inactive in their provinces, and when the ten commissioners of the Roman senate arrived to join with Lucullus in organising the conquered district of Pontus as a province, Mithridates had reconquered the greater part of it. In the meanwhile, the mine laid at Rome against the general of the aristocracy by his active enemies, namely, Pompey and his friends, the embittered members of the equestrian order, the offended officers and the misguided people, was finally sprung and the inevitable Pompey, who reaped everywhere where he had not sown, was appointed commander-in-chief in the East and this time with full powers more comprehensive and extravagant than those conferred in the previous year by the Gabinian law.^c

[67-66 B.C.]

During the year of inaction that had preceded Pompey's appointment, Mithridates had collected a fresh army, with which he occupied the frontier of Pontus. Pompey received his new commission in the summer of 66 B.C., and he at once pushed forward towards Cabira, through a country wasted by previous campaigns. Mithridates, anxious to avoid a battle, retired towards the sources of the Halys, but he was overtaken by the Roman general, and obliged to give battle on a spot afterwards marked by the city of Nicopolis, founded by Pompey in memory of the battle. Here Mithridates was entirely defeated, and with only a few stragglers succeeded in crossing the Euphrates. But Tigranes refused to harbour him in Armenia, and he made his way northward, with great difficulty, through the wild mountain tribes of Caucasus to Dioscurias (Iskuria) on the coast of Circassia. Banished from the regions south of Caucasus, his adventurous genius formed the conception of uniting the Sarmatian tribes northward of the Black Sea, and making a descent upon Italy. Panic-stricken at his father's approach, Machares, viceroy of the Crimea, sought death by his own hand; and the Crimea again became subject to Mithridates.



POMPEY

(From a coin)

So great was the terror caused by the victories of the Roman general, that Tigranes would have prostrated himself at his feet, had not Pompey prevented the humiliation; and Phraates of Parthia, who had assumed the proud title of "King of Kings," lately arrogated by Tigranes, sent to make an alliance with the victorious Roman, who turned his steps northward in pursuit of Mithridates. At midwinter he celebrated the Saturnalia on the river Cyrus (Kur), and in the spring advanced along the coast to the Phasis. But learning that Mithridates was safe in the Crimea, he turned back to his old quarters on the Cyrus, and spent the summer in reducing the tribes which occupied the southern slopes of Caucasus. One of his victories was celebrated by the foundation of another Nicopolis. But he was obliged to return to Pontus for winter quarters. Here he received ambassadors from the neighbouring potentates, and busied himself in reducing Pontus to the form of a Roman province. For the next two years he occupied himself by campaigns in the famous countries to the south of Asia Minor.^b

THE END OF MITHRIDATES

[66-63 B.C.]

Mithridates spent part of his youth away from his father's court; he had been put on the wildest horses, which he had learned to master; he retired into the most impenetrable hunting districts, so that half the time no one knew where he was. He differed from all kings with whom the Romans had fought because he had pure Persian and true Asiatic blood flowing through his veins; for he was descended from Persian satraps.

The aim of his life was to make the throne of Pontus the centre of the national Asiatic opposition to Rome. Thereby he enjoyed great momentary success: but he was defeated by the great power of the Romans in their union with the Greek element. He was then robbed of his father's lands. Nothing but the life of an adventurous fugitive remained for him. His brave wife Hypsicratia, who had to look after him and his horse, accompanied him to the citadel, where the royal treasure was kept. Mithridates divided it among the loyal followers who were still around him. He is said to have entertained the same thoughts attributed to Philip III of Macedonia of advancing on Italy through the lands of the Danube, and from the east of seeking the Romans in their home, as did Hannibal. But these daring chimeras were joined to a feeling of immediate danger.

Among his followers he divided equal shares of poison, so as to insure them against the danger of falling into the hands of the Romans. He himself did not die from poison; he sought support in his Bosphorus possessions. But as there his son rebelled against him, he had the death-blow given him by a true Gaul. The son, Pharnaces, joined the Romans.

After Mithridates had been driven out, Pompey turned against Tigranes in Armenia, who at this time was waging war with the Parthian king Phraates whom the younger Tigranes had joined. In the midst of all these dissensions in Armenia, Pompey stepped in, not precisely as an enemy, but as arbitrator. There are many accounts of the submissiveness which Tigranes expressed towards Pompey. The main point is that he praised Pompey as the man into whose hands the fate of the world had now been laid.

Tigranes had to give up all acquisitions which he had made in war with the Seleucians; he kept Armenia. The son was led away into captivity. Armenia had more or less already been drawn into the circle of universal history. But Pompey can be added to the men who have carried on the historical movement of the world in provinces which up till this time had remained undisturbed by it. At the

election he met the Albanians, who still continued in the primitive simplicity of a pastoral people. With their cavalcades they tried to prevent the Romans from reaching the Black Sea, or at least, if this was unsuccessful, to make their return impossible. In the year 65 a battle took place in which the Roman manœuvres had the upper hand. Albanians, Iberians, and a few other independent nations sealed a compact with them. Pompey is said to have had the desire, like Alexander, to seek the Caucasian Rock, to which, according to Greek tradition, Prometheus was chained. But the Roman leader was not the man to let himself be led by an illusion of this kind; it was sufficient for him to have subjected Pontus and Armenia. Already he felt himself strong enough to deprive the king of the Parthians of the title of “King of Kings.” He took up the interests of Armenia against the Parthians. As Tigranes had lost his acquisitions, so Phraates was to lose his. Phraates did not dare take up arms against the victorious Roman army. The ambassadors of Elymais and Media appeared at the winter camp of Pompey at Amisus.

POMPEY IN JERUSALEM

Through the victory in Armenia the Romans at the same time became masters in Syria, which it was impossible to give back to the Seleucians, as they did not know how to defend themselves. The survivors of this battle had to content themselves with the grant of a small province, and acknowledge the supremacy of Rome. After the example of the Syrian kings, Pompey could not think of introducing the Greek worship of the gods into Jerusalem; he occupied himself only with the political interests.^d

As he advanced southward, his authority was called in to settle a quarrel between two brothers of that royal family, which had inherited the Jewish sceptre and high priesthood from the brave Maccabees. Aristobulus was the reigning king of Judea, but his title was disputed by his brother Hyrcanus. It was the latter who applied for aid to the Roman general. Pompey accepted the appeal. But the Jews, attached to the reigning prince, refused obedience, and Pompey was obliged to undertake the siege of Jerusalem. For three months the Jews defended themselves with their wonted obstinacy; but their submission was enforced by famine, and Pompey entered the Holy City. Pillage he forbade: but, excited by the curiosity which even then the spiritual worship of Jehovah created in the minds of Roman idolaters, he entered the sacred precincts of the Temple, and ventured even to intrude into the Holy of Holies, and to stand behind that solemn veil which had hitherto been lifted but once a year, and that

by the high priest alone. We know little of the impression produced upon Pompey's mind by finding the shrine untenanted by any object of worship. But it is interesting to compare the irreverent curiosity of the Roman with the conduct attributed to the Great Alexander upon a similar occasion. Hyrcanus was established in the sovereignty, on condition of paying a tribute to Rome: Aristobulus followed the conqueror as his prisoner.

Aretas, king of the Nabatæan Arabs, defied the arms of Pompey; and the conqueror was preparing to enter the rocky deserts of Idumæa, so as to penetrate to Petra, when he received news which suddenly recalled him to Asia Minor. Mithridates was no more. Pompey hastened to Sinope, to which place the body of the old king had been sent by his son. It was honoured with a royal funeral, and placed in the sepulchre of his fathers.

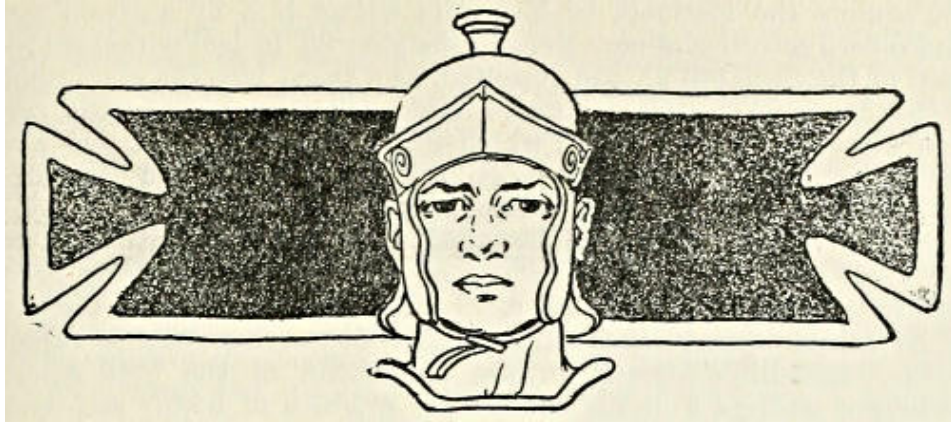
The remainder of the year 63 B.C. was spent by the general in regulating the new provinces of Bithynia, Pontus, and Syria, and in settling the kingdoms which he allowed to remain under Roman protection on the frontiers of these provinces. Pharnaces, son of Mithridates, was left in the possession of the Crimea and its dependencies; Deiotarus, chief of Galatia, received an increase of territory; Ariobarzanes was restored for the fourth time to the principality of Cappadocia. All this was done by Pompey's sole authority, without advice from the senate.

[62-61 B.C.]

Early in 62 B.C. he left Asia, and proceeded slowly through Macedonia and Greece—so slowly, that on the 1st of January, 61 B.C., he had not yet appeared before the walls of Rome to claim his triumph. He had been absent from Italy for nearly seven years. His intentions were known to none. But the power given him by the devotion of his soldiers was absolute; and the senatorial chiefs might well feel anxiety till he disclosed his will. But before we speak of his arrival in Rome, we must relate the important events that had occurred during his absence.^b

FOOTNOTES

[101] The measure by which Solon eased the burdens of the Attic creditors.



CHAPTER XXI. THE CONSPIRACY OF CATILINE

MARCUS PORCIUS CATO

Pompey, in quitting the centre of affairs, could not fail to augur that his removal would be the signal for the revival of party passions, and that a few more years' experience of the miseries of anarchy would demand his recall with fuller powers for the settlement of affairs. The nobles, on their part, having been compelled to submit to his extraordinary appointment, now cast about for the means of turning his absence to their advantage. They had placed him at their head, and he had betrayed them; they now looked for a stouter and more faithful champion, and prepared themselves, when the time should serve, to strike a blow for ascendancy, the shock of which should be felt on the Euphrates, and daunt the conqueror of Syria and Pontus.

The chiefs whom they had hitherto consulted had mortified them by their conciliatory temper, their timidity or their languor. Catulus they respected, but they distrusted his firmness: Lucullus, whose aid they next invoked, disregarded their solicitations. Hortensius was sunk in pride and indolence. There were among them many personages of inferior fame and influence, the Silani, the Scribonii, the Marcii, the Domitii, the Scipios and Marcelli, who might make good officers, but wanted the genius for command. But there was one man, still in their ranks, young in years, a plebeian by extraction, unknown in civil or military affairs, in whose unflinching zeal and dauntless courage they felt they could securely confide. Judgment, indeed, and tact he sorely needed; but these were qualities which the nobles held in little regard, and neither he nor they were sensible of this grievous deficiency.

This man was Marcus Porcius Cato, the heir of the venerable name of the censor Cato, his great-grandfather, a name long revered by the Romans for probity and simplicity. The slave of national prejudices Cato believed, like his illustrious ancestor, in the mission of a superior caste to govern the Roman state, in the natural right of the lords of the human race to hold the world in bondage, in the absolute authority of the husband over the wife, the parent over the child, the master over the servant. In his principles Cato was the most bigoted of tyrants. Yet never were these awful dogmas held by a man whose natural temper was more averse to the violence and cruelty by which alone they can be maintained, and in vain did Cato strive to fortify himself against the instincts of humanity within him by abstract speculation and severe self-discipline. Born in the year 95, he had witnessed the termination of the Social War, and resented, as a mere boy, the compromise in which that mighty struggle resulted. Nevertheless his feelings had revolted from the atrocious measures with which Sulla had avenged it, and alone of his party, he sighed over their most brilliant victories and lamented the bloody execution they did upon their enemies.

From the early days of his boyhood Cato had unremittingly trained himself in the austere pattern of the ancient manners, already becoming obsolete in the time of the censor. Inured to frugality and the simplest tastes, he raised himself above the temptations of his class to rapine and extortion. Enrolling himself in the priesthood of the god Apollo, he acknowledged perhaps a divine call to the practice of bodily self-denial, in which, in the view of the ancients, the religious life mainly consisted. He imbibed the doctrines of the stoic philosophy, the rigidity of which was congenial to his temper, and strove under their guidance to square his public conduct by the strictest rules of private integrity. If he failed, it was through the infirmity of nature, not the inconsistency of vanity or caprice; but, doubtless, the exigencies of public affairs drove him, as well as other men of less eminent pretensions, to many a sordid compromise with his own principles, while in private life the strength to which he aspired became the source of manifold weakness. It made him proud of his own virtues, confident in his judgments, inaccessible to generous impulses, caustic in his remarks on others, a blind observer of forms, and a slave to prejudices. A party composed of such men as Cato would have been ill-matched with the ranks of crafty intriguers opposed to them on every side; but when the selfish, indolent, and unprincipled chose themselves a champion of a character so alien from their own, the hollowness of the alliance and the hopelessness of the cause became sufficiently manifest.

[67 B.C.]

During the progress of the intrigues for the appointment of Pompey to his maritime command, his creatures had not ceased to worry the senate by the advocacy of fresh measures for the reformation of administrative abuses. In the year 67, a certain C. Cornelius, formerly quæstor to the great imperator, proposed, being at the time tribune, an enactment to limit the usury which the wealthy nobles demanded for the loans negotiated with them at Rome by the agents of the provinces. Laws indeed already existed for regulating this practice, but the wants of the needy and the cupidity of the capitalists had combined to disregard them, and the senate had ventured to assume the prerogative of the people in dispensing with their provisions in favour of personages of its own order. This daring encroachment Cornelius offered at the same time to repress. His measure was both popular and just. The senators could not oppose it by argument, but they gained one of the tribunes to intercede against it. But Cornelius was supported by the people, who encouraged him to persist in reading the terms of his rogation in spite of the official veto. A tumult ensued in the comitium, and, terrified by the sound of blows, Pompey, we may presume, engaged his instrument to desist from the direct attack, and allow the matter to be compromised. The senate acquiesced, but the offence was deeply resented, and speedily punished. No sooner had Cornelius quitted his functions as tribune, than he was accused of *majestas* for having disregarded the veto of a colleague. The crime was manifest, and the culprit might despair of defending himself against the powerful influences arrayed against him, when Manilius, the same who had devoted himself to the service of Pompey, caused the tribunal to be surrounded by bands of armed ruffians, and the accusers to be threatened with violence unless they desisted from their suit. The consuls interfered with a military force and gave them the means of escaping over the roofs of the neighbouring houses. In the following year the process was renewed, and Cicero, as the mouthpiece of Pompey, was retained to defend the criminal. The advocate pleaded the favour with which his client was regarded by Pompey himself, and either this consideration or the fear of further violence, or perhaps the cooling down of men's passions after so long an interval, gained him an acquittal. But the attempt, only too successful, of Manilius to overawe by force the administration of justice, deserves to be remarked for its fatal significance. From henceforth we shall find it repeated day by day with aggravated violence. Consuls and tribunes will vie with one another to destroy the foundation of all social confidence. Already the senate and the people are committed to a struggle, which must eventually involve the interference of a power paramount to both. Far-sighted men see already the shadows of monarchy advancing upon

them, which the mission of Pompey to the East, long, distant, and perilous, seems the readiest means of retarding, and possibly of averting.

Cicero's speech for Cornelius was a triumph of artifice and ingenuity. But the fame of his eloquence was already established by his harangue in favour of the bill of Manilius, and the favour of the people had already raised him to the prætorship for the year 66 by the unanimous suffrages of the centuries. After the failure of the attack upon the refractory tribune, faction slept for a short season, or prepared itself in silence for a fiercer outburst of animosity.^b

CAIUS JULIUS CÆSAR

Though the restoration of the tribunate and the withdrawal of the judicial power had given a rude shock to the senatorial oligarchy, they still remained masters of Rome. But a chief was growing up who was destined to restore life to the Marian party, to become master of the Roman world, and to be acknowledged as the greatest man whom Rome ever produced.

C. Julius Cæsar was born of an old patrician family in the year 100 B.C. He was therefore six years younger than Pompey and Cicero. His father, C. Cæsar, did not live to reach the consulship. His uncle Sextus held that high dignity in 91 B.C., just before the outbreak of the Social War. But the connection on which the young patrician most prided himself was the marriage of his aunt Julia with C. Marius; and at the early age of seventeen he declared his adhesion to the popular party by espousing Cornelia, the daughter of Cinna, who was at that time absolute master of Rome. We have already noticed his bold refusal to repudiate his wife, and his narrow escape from Sulla's assassins. His first military service was performed under M. Minucius Thermus, who was left by Sulla to take Mytilene. In the siege of that place he won a civic crown for saving a citizen. On the death of Sulla he returned to Rome, and, after the custom of ambitious young Romans, he indicted Cn. Dolabella, for extortion in Macedonia. The senatorial jury acquitted Dolabella as a matter of course; but the credit gained by the young orator was great; and he went to Rhodes to study rhetoric under Molo, in whose school Cicero had lately been taking lessons. It was on his way to Rhodes that he fell into the hands of Cilician pirates. Redeemed by a heavy ransom, he collected some ships, attacked his captors, took them prisoners, and crucified them at Pergamus, according to a threat which he had made while he was their prisoner. About the year 74 B.C. he heard that he had been chosen as one of the pontifices, and he instantly returned to Rome, where he remained for some years, leading a life of pleasure, taking little

part in politics, but yet, by his winning manners and open-handed generosity, laying in a large store of popularity, and perhaps exercising an unseen influence over the events of the time.

[74-64 B.C.]

It was in 67 B.C., as we have seen, that Pompey left the city to take the command against the pirates. At the same time, Cæsar, being in his thirty-third year, was elected quæstor, and signalled his year of office by a panegyric over his aunt Julia, the widow of Marius. His wife Cornelia died in the same year, and gave occasion to another funeral harangue. In both of these speeches the political allusions were evident; and he ventured to have the bust of Marius carried among his family images for the first time since the dictatorship of Sulla.^c Cæsar had in 65 obtained the ædileship, in conjunction with Bibulus, the candidate of the nobles. That office, which had properly the care of the public edifices, was charged also with providing for the amusements of the people. It required an enormous outlay of money, and men ambitious of higher honours spared no expense to eclipse one another in the splendour they lavished upon it. The ædiles defrayed the charge of the gladiatorial shows, and on this occasion Cæsar gained immense applause by the profusion of silver bullion with which he decorated the furniture and implements of the arena. Already deeply plunged in debt, he continued to borrow on the credit of his genius and rising fortunes. If his wealthy colleague equalled him in munificence, there seemed more merit in the generosity of the penniless adventurer, and Bibulus was obliged to liken himself to Pollux, who though he possessed a temple at Rome in conjunction with his twin-brother, heard it always designated by the name of Castor, and never by his own. Cæsar could rely on the clamorous support of the populace thus attuned to his most stirring appeals. The display of the bust of Marius had already irritated the faction of Sulla, but now a greater insult was inflicted upon them.

Among his conspicuous acts of munificence as ædile, Cæsar had adorned the Forum and the Capitol with pictures and statues: he had erected halls and porticoes for the gratification of the people, and these too he had adorned with monuments of taste and luxury. One morning there suddenly appeared among the new ornaments of the Capitol the statue of Marius, surrounded by the trophies of his Cimbrian and Jugurthine victories. The people shouted with delight; the nobles scowled with indignation. The author of the deed did not proclaim himself, but neither friends nor foes could err in ascribing it to the daring ædile. Catulus determined to bring the offender to punishment for this direct breach of law. The remembrance of the murder of his father, the noblest victim of the Marian proscriptions, inflamed the bitterness of his animosity. He

accused Cæsar of throwing off the mask from his ulterior designs; of no longer subverting the republic with mines, but of assailing it with the battering-ram. Cæsar defended himself before the senate, and succeeded in foiling his accuser; but he owed his triumph neither to the favour nor the justice of his audience, but to the temper of the people, on which the nobles dared not make an experiment. It would appear from the historians that the trophies of Marius retained possession of their place in front of the Capitol, an indication of the popular strength which must have shaken the nerves even of Cato himself.

The nobles could at least retaliate. On quitting the ædileship, Cæsar demanded a public mission to reduce Egypt to the form of a province, in virtue of the will of the king Ptolemy Alexander. This country, through which all the commerce of the East already passed into Europe, was reputed the wealthiest in the world. Pouring into the royal treasury an annual tribute of 14,800 talents, it offered a magnificent prey to the rapacious republic, and to the fortunate proconsul through whose hands these golden harvests should pass. Crassus and Cæsar disputed this rich booty; but neither the one nor the other succeeded in obtaining it. The senate mustered all its forces to baffle both claimants, and was enabled, perhaps by their division, to succeed. It employed a tribune named Papius to enact that all foreigners, and especially Cæsar's clients, the Transpadane Gauls, should be removed from the city, and thus boldly cleared the Forum of the tumultuary partisans, by whose hands, if not by whose votes, the reckless demagogue might hope to extort the prize.

[64 B.C.]

Instead of this brilliant mission Cæsar was invited (64) to preside in the tribunal, to which was committed the inquisition into cases of murder. Hitherto he had done no more than protest against the dictatorship of Sulla; he now determined to brand it with legal stigma. Among the cases which he caused to be cited before him were those of two political offenders, men who had imbrued their hands in the blood of the victims of the proscription. One of these named Bellienus was the centurion who had stabbed Ofella, the other was a more obscure assassin. He condemned these wretched ruffians, only to strike terror into higher quarters. He induced a tribune named Labienus to accuse an aged senator, Rabirius, of the slaughter of the tribune Saturninus; and by making it a criminal, and not a political, charge, he forbade



the accused to withdraw himself from the process by voluntary exile. Cicero and Hortensius defended the culprit, but failed to move the judges. Rabirius appealed to the people. Labienus attacked, and Cicero again defended him, while the senators used every effort to excite the compassion of the populace. But the people exulted in the audacious injustice of the whole proceeding: for it was well known, first, that Rabirius had not killed Saturninus; secondly, that the real slayer had been rewarded, and the deed solemnly justified by competent authority; and, thirdly, that the transaction had occurred not less than thirty-six years before, and deserved to be buried in oblivion with the birth of a new generation. The appeal of Rabirius would inevitably have been rejected but for the adroitness of the prætor, Metellus Celer, who suddenly struck the flag which floated from the Janiculum while the tribes were assembled for public business. In ancient times the striking of the flag was the signal that the Etrurians were advancing to attack the city. Immediately all business was suspended, the comitia dissolved, and the citizens rushed to man the walls. The formality still remained in force among a people singularly retentive of traditional usages; and now the multitude which had just shouted clamorously for innocent blood, laughed at the trick by which its fury was baffled, and acquiesced in the suspension of the proceedings. Cæsar had gained his point in alarming and mortifying the senate, and allowed the matter to drop, which he never perhaps seriously intended to push to extremity.

JULIUS CÆSAR
(From a statue)

[63 B.C.]

The same Labienus, devoting himself with zeal to the service of the patron he had chosen, induced the people in the next place to demand the abolition of Sulla's law, by which they had been deprived of the election of pontiffs. On recovering this prerogative they acquitted their debt to Cæsar by nominating him chief of the college, thereby placing him at the head of a great political engine, and rendering his person inviolable. Neither the notorious laxity of his moral principles, nor his contempt, of which few could be ignorant, for the religious belief of his countrymen, hindered Cæsar's advancement to the highest office of the national worship. It was enough that he should perform the stated functions of his post, and maintain the traditional usages upon which the safety of the state was popularly deemed to depend. Cæsar's triumph was the more complete, as it was a victory over Catulus, who had competed with him for this dignity, and who, knowing his pecuniary embarrassments, had offered to buy off his opposition by a loan. Cæsar rejected the bribe with scorn, and declared that he would borrow still more largely to gain the prize. The nobles were straining every nerve to implicate him in a charge of conspiracy against the state, and the

chief pontificate was necessary to insure his safety. When the hour of election arrived he addressed his mother, as he left his house, with the words, "This day your son will be either supreme pontiff, or else an exile."

The crime which it had been sought to fasten upon Cæsar was of the deepest dye and most alarming character. For some years past the city had been kept in feverish anxiety by rumours of a plot, not against any particular interest or party, but against the very constitution of the social fabric. The nobles had sounded the alarm, and their agents had insinuated complicity in some wild and treasonable enterprise against Cæsar, Crassus, and many other august citizens, objects of dislike and fear to the existing government. The fact of such a conspiracy was indeed speedily revealed, and it discovers to us in the most striking manner the frightful corruption of the times. Into its actual connections and ramifications we shall presently inquire; but first it will be well to trace its origin and motives, in order to explain the way in which the senate proposed to take advantage of it.

L. SERGIUS CATILINA AND HIS TIMES

[65-63 B.C.]

The generation of statesmen which had grown up at the feet of the Scipios and the Gracchi, though it had exchanged much of the simple dignity of the old Roman character for a tasteless affectation of Hellenic culture, was still for the most part imbued with sentiments of honour and probity, devoted to the welfare of the state, and only ambitious to shine at the head of a commonwealth of freemen. But its children, born and bred under the relaxation of all principle induced by the civil dissensions, were fearfully devoid of every moral principle. The vast accession of wealth and power which accompanied the conquest of the East overthrew whatever barriers poverty and simplicity of manners might still have set against the torrent of selfish indulgence. The acquisition of wealth, moreover, had only served to precipitate expense and prodigality. A few crafty usurers swept into their coffers the plunder won by a multitude of spendthrifts.

Political and private gambling had reduced thousands of the well born to the condition of mere needy adventurers, while the advantages of birth and station served only to make them more dangerous and their manners more seductive. Among these restless and accomplished bravos none was so conspicuous or so able as L. Sergius Catilina. His descent was one of the most ancient in Rome, and he had served with distinction among the nobles ranged under Sulla's banner. His valour indeed from the first had been tinged with brutal ferocity,

and the stories currently reported of him, believed as they undoubtedly were by his own contemporaries, may give us at least an idea of the crimes which were possible at the period. It has been already mentioned that he was accused of assassinating his brother from private malice, and of getting his name inscribed on the list of proscription for the sake of obtaining his confiscated estate. All Rome had seen him waving on the top of a pike the head of the murdered Gratidianus. It was rumoured that, wanting to marry the fair but profligate Orestilla, who waived his suit through jealousy of his son by a former consort, the father had sacrificed the youth without scruple to his passion.

Though loaded with the infamy of such crimes, Catiline had entered on the career of public honours, had obtained the prætorship for the year 68, had succeeded from thence to the government of Africa, and upon his return in 66 was about to offer himself for the consulship. Publius Clodius, a stripling, not less profligate, but as yet less notorious, crossed his path with a charge of malversation in his province. Presently the rumour ran that Catiline, thus disconcerted, formed a plot with Autronius Pætus, just deprived of the consulship for bribery, with Calpurnius Piso and other dissolute nobles, to murder the successful candidates, and to seize the powers of the state. The names both of Crassus and Cæsar were whispered in connection with this bloody enterprise. The former, it was said, was to be created dictator, the latter his master of the horse. When it was asked upon what military resources the rash intriguers relied, it was answered that Piso, who had acquired the command of one of the Iberian provinces, was charged to organise an armed force in that quarter, with which to balance the legions of the senate under Pompey. The scheme, it was alleged, was opportunely detected, the chief conspirators discovered and marked. Piso shortly afterwards was cut off in his province by banditti, or possibly by assassins; but the proceedings with which the culprits were menaced were stayed by the intervention of a tribune, and the circumstances of the plot were never formally revealed.

Such however was the influence of Catiline, or such the interest which his presumed machinations could excite among the lawless and ambitious even in the heart of the commonwealth, that not only was the government unable to convict him upon this flagrant charge, but he did not shrink from suing for the consulship itself for the following year, and that too while yet unabsolved from the accusation of Clodius. The man and the times must be more particularly described to make the story of Catiline credible to any other age than his own. For passing strange must it appear that, notwithstanding the atrocities by which he was disgraced, Catiline had been able to connect himself with many eminent

public men, by whom his suits had been openly supported. Cicero himself, a man of unsullied personal purity, was prepared, for the sake of his alliance in their common competition for the consulship, to defend his cause against Clodius, and only escaped the disgrace of appearing as his advocate by the charges themselves being dropped, as it would seem, by the venal accuser. But it was over the corrupt patrician youth that he exercised the most extraordinary ascendancy. Through dissipation he led them into the darkest crimes. He taught them to depend upon him as a trusty associate in every wickedness, and whether in bilking a creditor or negotiating a loan, in planning a seduction or compassing a murder, his boldness and invention were never found to fail them. Catiline was their friend, their champion, and their idol. They vaunted his bodily strength and vigour, his address in bodily exercises, his iron frame which could endure alike the excesses of debauch and the rudest toils of war. He became the model of the youthful aspirants to fashionable distinction, which then demanded not only splendour in dress and furniture, but skill in the use of the sword and eminence in all martial accomplishments. But these exercises could not fail to have a brutalising effect; for they connected such as sought distinction in them with the slaves, criminals, and hired ruffians who fought in the arena. Such men, admired as consummate masters of their art, became the friends and companions of the young nobility, who drank with them one day in the wineshop, and shouted over their agonies in the theatre on the morrow.

The long career of conquest which Rome had enjoyed had tended to throw all her noblest energies into the sole profession of arms, which is naturally inclined above all others to measure excellence by success, and to confound virtue with valour. When the Roman returned from the wars for a short breathing time to his own country, he beheld few objects around him which were calculated to allay the fever of his excited imagination. His pride was fed by trophies and triumphs, by the retinue of captive slaves which attended him, by the spoils of conquered palaces which decorated his home. In the intervals of danger and rapine few cared to yield themselves to the vapid enjoyments of taste and literature, or could refrain from ridiculing the arts which had failed to save Greece from subjugation. The poets, historians, and philosophers of Rome were few in number, and exercised but a transient influence on a small circle of admirers. Nor were the habits of civil life such as to soften the brutal manners of the camp. The Romans knew nothing of the relations of modern society, in which the sexes mutually encourage each other in the virtues appropriate to each, and where ranks and classes mingle unaffectedly together under the shelter of a common civilisation. The Romans lived at first in castes, afterwards in parties; even in the public places there was little fusion or intercourse of

ranks, while at home they domineered over their clients as patrons, their slaves as masters, their wives and children as husbands and fathers.

The instruction of boyhood was general in the upper ranks, but it was imparted by slaves, who corrupted the temper of their pupils far more than they improved their understanding; and when, already exhausted by premature indulgence, they were married while young from motives of convenience, they were found incapable of guiding and elevating their still more neglected consorts. The women were never associated in their husbands' occupations, knew little of their affairs, and were less closely attached to their interests than even their bondmen. They seldom partook of their recreations, which accordingly degenerated for the most part into debauches. Systematically deprived of instruction, the Roman matron was taught indeed to vaunt her ignorance as a virtue. If in the first century B.C., those Sabine housewives were no longer to be found who shut themselves up in their apartments and spun wool among their handmaids, yet to exercise their intellects or cultivate their tastes passed almost for a crime. To know Greek and Latin books, to sing and dance, to make verses, to please with conversation,—these, in the opinion of the historian Sallust, were no better than seductive fascinations, such as formed the charm and fixed the price of the courtesan. Rarely therefore did any woman break through this mental bondage, without losing in character what she gained in intellect and attraction. In either case she was almost equally despised. The men's indifference to the conduct of their spouses is a frightful feature in the social aspect of the times. Their language, it has been observed, had no word to express the sentiment of jealousy. The laws which gave them such facility of divorce show how little regard they had for the dearest interests of the married state; just as their common practice of adoption proves the weakness among them of the paternal sentiment.

Thus did the morose and haughty Roman stand isolated and alone in the centre of his family and of society around him; nor did he strive to exalt his moral nature by sympathy with the divinity above him. A century indeed had scarcely elapsed since Polybius had lauded the character of the Romans for the earnestness of its religious sentiment. Undoubtedly the moral sanctions of religion had at that time been strongly felt; the gods were actually regarded as the avengers of crime and the patrons of virtue. Even then however the principle of setting up the deity as a model for imitation, which alone is efficacious for elevating and purifying the soul, was unknown or disregarded. The coarse and sensuous pagans of Greece and Rome gloated over the wretched stories of lust and violence ascribed to the objects of their worship, and if they feared their

power never dreamed of adoring their goodness or their justice. Their religious practices therefore were not moral actions, but merely adopted as charms to preserve them from the caprice or ill-nature of their divinities. From this debasing superstition even their strongest intellects could not wholly release themselves, while in the seventh century the vulgar at least were as devoutly addicted to it as at any former period. Indeed the general relaxation of positive belief in the minds of the educated class was accompanied, as is not unfrequently the case in the history of nations, by still more grovelling prostration on the part of the ignorant multitude.

THE CONSPIRACY

[63 B.C.]

Such a state of society already trembled on the verge of dissolution, and reflecting men must have shuddered at the frailness of the bands which still held it together, and the manifold energies at work for its destruction. Catiline's designs, suspended for a moment, were ripening to another crisis; and the citizens pointed with horror to the victim of a guilty conscience, stalking through the streets with abrupt and agitated gait, his eyes bloodshot, his visage ashy pale, revolving in his restless soul the direst schemes of murder and conflagration. Involved in ruinous debt, his last hope of extrication had been the plunder of a province. The spoils of the prætorship had been wrested from him by the rapacity of his judges or his accuser, and access to the consulship was denied him. But his recent escape confirmed him in the assurance that he was too noble a culprit to be convicted; he scarcely deigned to veil his intrigues, while he solicited the aid of men of the highest families in the city. The young Roman prodigals invoked "new tables," or a clear balance sheet; and it cannot be doubted that their aims were rather personal than political—that they yearned for the extinction of their debts first, and the division of public offices afterwards.

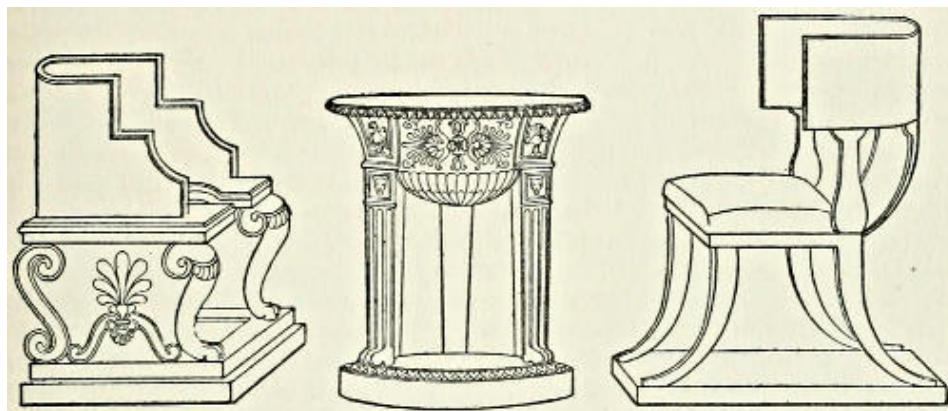
Among these conspirators were two nephews of Sulla. Autronius and Cassius had been candidates for the consulship; Bestia was a tribune elect; Lentulus and Cethegus, both members of the Cornelian house, were nobles of high distinction, though lost in character; even the consul Antonius was suspected of privity to their designs, and a secret inclination in their favour. They counted upon the support of the men who had been disgraced or impoverished by Sulla, and hoped to inflame the turbulence and lust of rapine which animated the dregs of the populace. They expected moreover the armed assistance of many of the

disbanded veterans, who had already squandered, with the recklessness of fortunate adventurers, the possessions they had so suddenly acquired. They proposed to solicit and excite the hostile feelings towards their conquerors, still prevalent among the Italian races. Finally they resolved to seize the gladiators' schools at Capua; and some of them would not have scrupled to arm a new insurrection of slaves and criminals. This last measure was the only enormity to which Catiline would not consent. He was urged to it more especially by Lentulus; and when a proposal so base was discovered in the handwriting of one of the Corneli, it crowned the horror and indignation of the Roman people.

Meanwhile among the senatorial faction there were not wanting statesmen who watched the coming storm with secret satisfaction. Too much of their power, they felt, had been surrendered to their military patron, and they longed for an opportunity to resume it in his absence. They fretted at the contempt into which they had fallen; the consulship and pontificate had become the prey of any daring adventurers, the example of usurpation had now descended to mere cut-throats and robbers: they would check it once and forever by a single retribution: they would give the great Pompey himself to understand that they could save and rule the state without him. The marked progress of Cicero in general esteem formed an important element in their calculations. By placing him in the consul's chair they hoped to secure him for their instrument, and to employ his zeal, his abilities, and his honest intentions in the great work they contemplated—the restoration of their own ascendancy. At the instigation of these crafty advisers the nobles now joined with the people in promoting Cicero's elevation. He had been prætor in the year 65, but he had refused to quit the glories of the Forum and the tribunals for the sordid emolument of a province. In the following year he was designated for the consulship by the general voice of the citizens, and the insignificance of Antonius, the colleague assigned to him, showed that to him alone all parties looked for the salvation of the state. During the early part of his career the new consul proposed various salutary measures, and devoted himself assiduously to the interests of the oligarchy with which he now first began to feel himself connected.

As the year 63 advanced the presumed schemes of Catiline withdrew attention from every other business, the conspirator only waiting for the issue of the consular comitia, at which he still pretended to seek a legitimate election. When his suit was once more rejected and Silanus and Murena chosen, he no longer meditated delay. One of his accomplices named Curius had betrayed the secret, if such it could still be called, to his mistress Fulvia; she had already communicated it to Cicero, and by his instructions obtained from her paramour

every particular of the intended outbreak. The information was laid before the senate, and a decree was immediately passed, enjoining the consuls “to provide for the safety of the state!” But in the suppression of so formidable a conspiracy every step was hazardous. We have seen how illustrious were the names enlisted in it. The time had passed when the consul could venture, after the manner of an Ahala or an Opimius, to draw his sword, call the citizens to follow him, and rush boldly upon the men whom the senate had denounced as its foes. Though the nobles still claimed this power for their chief magistrate in the last resort, it contravened a principle which the people would never consent to surrender, which gave to every citizen accused of a capital crime the right of appealing to the tribes. Cæsar and Crassus, if not themselves connected with the conspirators, were doubtless on the watch to thwart the slightest stretch of prerogative against them. On the other hand the danger was becoming imminent. The conspirators had almost completed their preparations, and collected their magazines of arms. They had fixed the day for the intended outbreak, and assigned to each man his proper post and office. The veterans of Etruria, of Samnium, and Umbria, long since solicited by their emissaries, were flocking to their appointed rendezvous. The fleet in the port of Ostia was supposed to be gained, and insurrections were promised both in Africa and Spain. All the legions of the republic were with Pompey in the East, or dispersed in other provinces; the city itself was not defensible for a day, and even the fortresses on the Capitoline and Janiculum retained only the tradition of their ancient strength. Rome had neither a garrison nor a police; all her citizens were soldiers, and with no foreign enemy to fear she had neglected to provide against the dangerous ambition of her own children. At the moment concerted the various bodies of insurgents were to advance against her, and their accomplices within the city were to fire it in a hundred places.



ROMAN CHAIRS AND TABLE

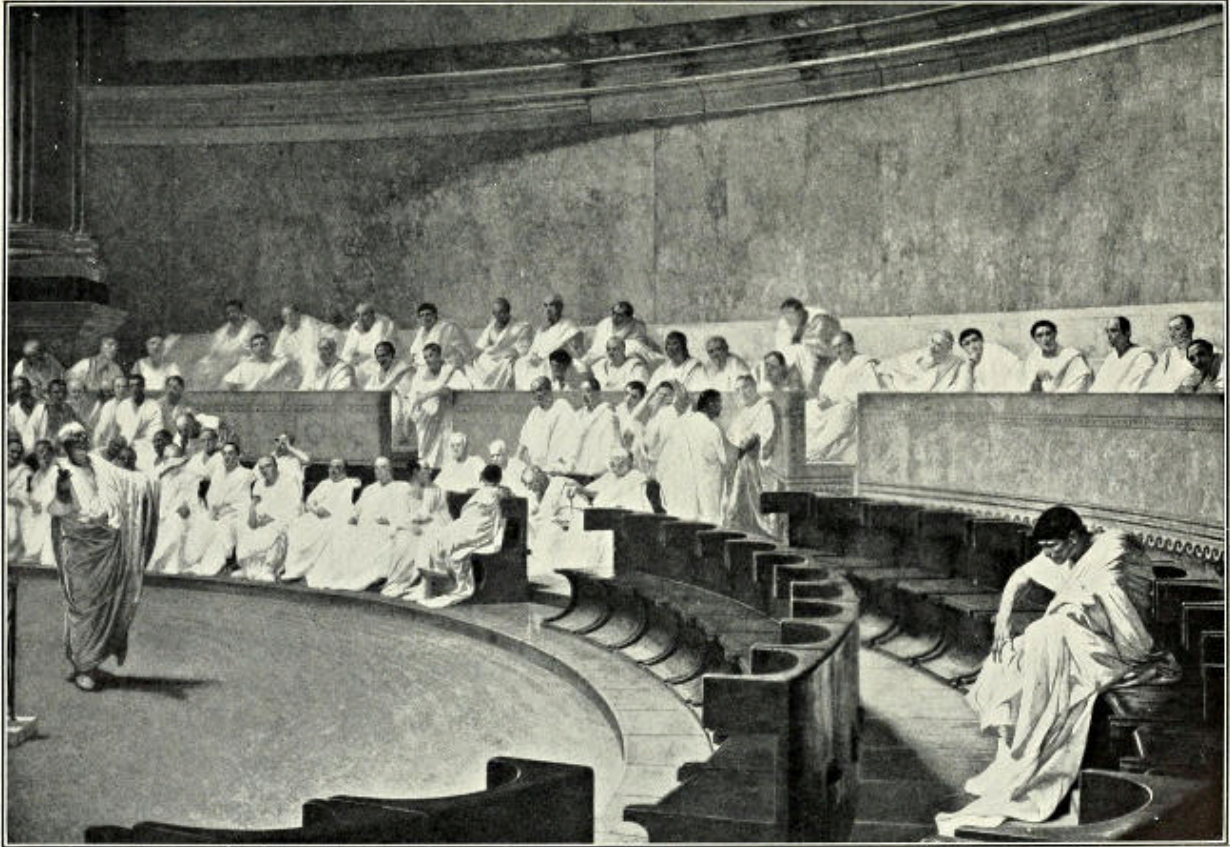
Fortunately for the state, two proconsuls, Marcius Rex and Metellus Creticus, arrived at this moment from the East with some legionary forces, and awaited at the gates of the city the triumph which they demanded of the Senate. Marcius was immediately directed against Mallius, Catiline's lieutenant in Etruria; Metellus was ordered to make head against the insurgents in Apulia. Some hasty levies were despatched at the same time to check the advance of the men of Picenum. Measures were promptly taken for removing the gladiators from Capua, and distributing them in small numbers among the neighbouring towns. Rome was placed, according to the modern phrase, in a state of siege. Citizens were enrolled and armed guards posted at the gates, the walls and streets patrolled; Cicero assumed command.

Both parties were equally ready for the encounter when the consul boldly summoned the arch conspirator to discover himself. On the 7th of November he had convened the senators in the temple of Jupiter Stator. Catiline appeared in his place: his fellow senators shrank from contact with him, and left a vacant space on the benches around him. Suddenly the consul rose, and poured forth the torrent of his indignant eloquence:

“How long then, Catiline, how long will you abuse our patience? What, are you quite unmoved by the guard which keeps night-watch on the Palatine, by the patrols of the city, by the consternation of the people, by the rushing of all good citizens together, by this fortress-temple in which the senate is assembled, by the fear and horror of the senators themselves? Think you that all your schemes are not open to us as the day? Alas for our times! alas for our principles! The senate knows the plot; the consul sees it—and the man still lives! Lives! did I say? Aye, and comes into the midst of us, partakes of our public councils, observes and marks us, one by one, for slaughter. And yet we, the consuls, who have received the senators' last decree for the preservation of the state—we into whose hands has been thrust the sword of Scipio, of Opimius, of Ahala, still suffer it to sleep in its scabbard! Yes, I still wait, I still delay; for I wish you not to perish till you cease to find a citizen so perverse as to excuse or defend you. Then, and not till then, the sword shall descend upon you. Meanwhile live, as you now live, tracked by enemies, surrounded by guards; all our eyes and ears shall be fixed upon you as they long have been, and watch you when you think not of it. Renounce then your designs; they are discovered and frustrated. Shall I tell you what they were? Remember how on the 20th of October I announced that Manlius was to rise on the 27th; was I wrong? That the 28th was fixed for the massacre; was it not averted only by my vigilance? On the 1st of November would you not have seized Præneste, and

did you not find it apprised and guarded? I track your deeds, I follow your steps, I know your very thoughts.

“Let me tell you whither you repaired last night. Was it not to the house of Læca? There you met your accomplices, you assigned them each their places—who should remain at Rome, who with yourself should quit it; you marked out the quarters to be fired: you only lingered still a moment because I still lived. Then two Roman knights offered to rid you of that anxiety, and to kill me in my bed before the dawn of the morrow. All this I discovered, almost ere your meeting was dissolved: I doubled my guards, I shut the door against the wretches whom you sent so early to salute me; aye, the same wretches whom I had already designated to many as the men who were coming to murder me. You call upon me to impeach you; you say you will submit to the judgment of the senators; you will go into exile if it be their pleasure. No, I will not impeach you; I will not subject myself to the odium of driving you into banishment; though if you wait only for their judgment, does not their silence sufficiently declare their sentiments? But I invite, I exhort you to go forth from the city! Go where your armed bands await you! join Manlius, raise your ruffians, leave the company of honest citizens, make war against your country! Yet why do I invite you to do that which you have already determined to do; for which the day is fixed, and every disposition made?”



CICERO UPBRAIDING CATILINE IN THE SENATE

And then turning to the senators the orator explained the meaning of this strange address. He dared not bring the criminal to justice: he had too many friends even in the senate itself; too many timid people would declare his guilt unproved; too many jealous people would object to rigorous measures, and call them tyrannical and regal. But as soon as he should actually repair to Mallius' camp, there would no longer be room for doubt. The consul pledged his word from that moment to lay the proof of the conspiracy before them, to crush the movement, and to chastise the guilty. And in order to assure them that he could do so, he pointed to the knights, who at his bidding were crowding the area and steps of the temple, and listening in violent agitation at the door, ready at his word to dart upon his victim, and tear him in pieces before the eyes of the senate.

Catiline had kept his seat throughout this terrible infliction, agitated by rage and apprehension, yet trusting to the favour of his numerous connections, and relying on the stolid incredulity of the mass of the audience; for the habitual use of exaggerated invective had blunted the force of truth, and rendered the senators callous for the most part even to the most impassioned oratory. The

appearance perhaps of the consul's myrmidons, and the fear, not of any legal sentence, but of popular violence, at last made him start to his feet. He muttered a few broken sentences, in a tone of deprecation, appealing to his birth, rank, and aristocratic sentiments, in gage of his loyalty, and in contrast to the specious pretensions of the base-born foreigner, his accuser. But the senators, encouraged or awed by the presence of the knights, murmured and groaned around him, calling him an enemy and a parricide. Then at last losing all self-command, Catiline, rushed wildly out of the chamber, exclaiming: "Driven to destruction by my enemies, I will smother the conflagration of my own house in the ruin of the city."

Catiline fled to his house, shut himself up alone, and for a moment deliberated. At nightfall he quitted the city and threw himself into the quarters of his armed adherents in Etruria. He left behind him instructions for his accomplices in the city, in which he charged them not to quit their posts, but watch their opportunity to assassinate the consul if possible, at all events to make all ready for a domestic outbreak as soon as his preparations should be complete for attacking the city from without. To Catulus, whom he regarded as a personal friend, or on whom he wished perhaps to throw the suspicions of the senators, he addressed a letter of exculpation, while he secured, as he said, his own personal safety in the ranks of a hostile army, recommending to his fidelity and friendship the care of his dearest interests. Cicero had reason to exult in the success of his first harangue, which cleared the way before him. Catiline had openly avowed himself a public enemy; but his associates still refused to disclose themselves; and the consul's next step was to drive them, by similar threats and sarcasms, to an overt act of rebellion. But for the most part they remained firmly at their posts, as their leader had enjoined them. One youth, the son of a senator, quitted the city to join Catiline. His father, informed of his treason, pursued and arrested him, and caused his slaves to slay him upon the spot. But Lentulus, Cethegus, and Bestia continued still in Rome, sometimes threatening to impeach Cicero for the exile of a citizen without judgment pronounced, and meanwhile planning a general massacre of the magistrates during the approaching confusion of the Saturnalia. Cicero, served by a legion of spies, tracked all their movements; but he dared not strike, while still devoid of written proofs against them. The imprudence of the conspirators at last placed such documents in his hands.

There happened to be at the time in Rome certain envoys of the Allobroges, a Gallic people, who had long vainly sued for justice from the republic, under the cruel exactions to which they had been subjected by the government in the

province. The wild mountaineers whose cause they pleaded had risen more than once to extort their claims by arms; their discontent, swelling under repeated disappointment, was ready once more to explode at any favourable opportunity, while the senate, full of more important and more alarming affairs, still treated them with contemptuous neglect. So favourable was the moment that the conspirators addressed the envoys through a citizen well known to them, named Umbrenus, disclosing their contemplated plan for the overthrow of the government, and offering them a dire revenge as the price of their nation's assistance. They at once embraced the proposal and promised the aid of their countrymen. But presently, awed by their deep impression of the invincibility of the consuls and imperators, they sought the counsel of Fabius Sanga, the patron of their tribe in Rome. By him they were persuaded to reveal the negotiation to Cicero, who caused them to affect the deepest interest in the conspiracy, and to extract from the traitors a written engagement for the price of their alliance. Lentulus, Cethegus, and Statilius affixed both their names and seals to the document required. On receiving it the envoys quitted the city in company with Volturcius, one of the conspirators, deputed to conclude the negotiation with the Allobroges in their own country. The consul, kept duly informed of all their proceedings, caused them to be waylaid at the foot of the Milvian bridge, three miles beyond the gates, and they immediately surrendered their despatches. While this was in progress the consul summoned the chief conspirators into his presence. They came without mistrust; surrounding them with his lictors and archers, he led them directly to the senate. In the face of the assembled Fathers he produced the fatal letters; and the culprits, overwhelmed with confusion, acknowledged their guilt by their silence. Lentulus, who had fondly flattered himself on the strength of a reputed oracle of the Sibyls that, after Cinna and Sulla he should be the third Cornelius to reign in Rome, was compelled to abdicate the prætorship on the spot, and, placed with his associates in the custody of the most dignified senators, to await the decision of their fate.

Meanwhile, the examination being closed, Cicero addressed the people, who crowded in agitation and alarm around the doors of the curia, upon the rumour of the awful disclosures going on within. To the multitude the wary consul submitted no judicial proof of the culprit's designs. He contented himself with declaring the evidence upon which they had been convicted to be their correspondence with Catiline, a public enemy, and their detected intercourse with the hostile Allobroges. This sufficed to brand them as pledged to succour an invader, to harbour him within the city, to deliver Rome to the fury of Etrurians and Gauls. But to prove their ulterior designs would have involved the discovery of the consul's secret sources of information, it would have been

unbecoming the dignity of the government, and inconsistent with the politic reserve of an aristocratic assembly.

CÆSAR AND THE CONSPIRACY

[63-62 B.C.]

The conspiracy thus critically arrested has been represented, in accordance with the evidence before us, as the work of mere private cupidity or ambition. But the ruling party sought to incriminate in it their public adversaries. They had already studied to implicate both Cæsar and Crassus in the presumed machinations of Catiline at an earlier period. They now repeated the effort with increased virulence, and Catulus himself was foremost in urging Cicero to produce testimony against Cæsar. Such testimony might doubtless have been suborned; loose surmises might at least have been construed into grave presumptions. But to such a project the consul steadily refused to lend himself. He was sensible perhaps that Cæsar's popularity would in fact screen from justice every culprit associated with him, and in giving him the charge of Statilius, one of the criminals, Cicero openly declared himself convinced of his innocence. Indeed the great difficulty was still to be overcome, and the consul would not permit himself recklessly to enhance it. Nine of the conspirators had been denounced, five were convicted and confined; but the nature of their punishment yet remained for decision. The law of the republic, as interpreted at least by the patricians, invested the chief magistrate with power of life and death, on the senate issuing its ultimate decree. On this authority alone bold men had slain presumed criminals, and the senate had loudly applauded them.

But against such a stretch of prerogative the commons had always protested. They had resented such daring deeds, and retaliated them with violence. They had constantly appealed to the principle of Roman law, which forbade any citizen to be put to death except by a vote of the tribes. Nor could the tribes themselves, however sternly disposed, deprive a citizen, as long as he retained his rights as such, of liberty to evade sentence by voluntary exile. To the people, accordingly, Cicero could not venture to appeal, nor would he assume on the other hand the responsibility of acting on the mere decree of his own order. Hitherto, even while defying the spirit of the laws, he had scrupulously adhered to their forms. He had abstained from arresting the conspirators in their own houses, to avoid the violation of a citizen's domicile. He had not given Lentulus in charge to his lictors; but had led him before the senate with his own hand, because none but a consul might put a prætor under restraint. Finally, he had

caused the criminals to be declared *perduelles*, or public enemies, in order to strip them of the prerogatives of citizenship, before proceeding to their punishment. He now threw himself once more on the senate itself. He restored to the assembly the sword which it had thrust into his hands. The fathers met in the temple of Concord, the ground-plan of which may yet be traced under the brow of the Capitoline, and from the memorials still preserved to us, we may picture to ourselves a vivid representation of the debate which followed. While strong patrols traversed the streets, and the knights armed and in great multitudes surrounded the place of assembly, the consul-designate, Silanus, invited first to deliver his opinion, pronounced boldly for death. All the consulars, successively, followed on the same side. It seemed as if the meeting would have been unanimous, for Crassus had absented himself, and Cæsar, it might be thought, conscious of his own complicity or at least of the suspicions to which he was subjected, would desire to efface the stigma in the blood of the convicted traitors. But he, taking counsel only of his own boldness and spirit, of the claims of his party, and indeed of his own natural clemency, declared in a speech of remarkable power, for perpetual imprisonment, and with confiscation. He allowed indeed that the culprits were justly liable to the extreme penalty; but to free and high-minded men, degradation, he contended, was worse than death, which he dared to characterise as mere oblivion. This speech made a great impression upon the assembly. Those who were next asked their opinion voted one after the other with Cæsar.

Among them was Quintus Cicero, the consul's own brother; Silanus himself thought fit to explain away the sentiments he had just delivered in accordance with the last speaker. Cicero then rose to stem the current, and demonstrated with all his eloquence the impossibility of stopping at the point recommended by Cæsar after having gone so far, and both offended and alarmed so many dangerous enemies. But this appeal to the fears of the assembly rather increased than allayed their anxiety to escape from the immediate responsibility. Cicero's real influence with them was never great. A master in the Forum, he was only a minister in the senate. There he was too generally regarded as a mere bustling politician, who used the means put into his hands by others for his own glory or advancement. The senators would have little heeded his counsel, had it not been reinforced by an energetic speech from Cato, who pronounced for the execution of the criminals in a tone of deep conviction and unflinching courage. Once more the audience was swayed round to the side of severity, and Cato's influence was openly avowed by the language of the fatal decree itself, which was expressed in his own words. The knights, who waited impatiently for the result, were furious at the obstruction Cæsar had thrown in the way of justice,

and when he appeared on the steps of the temple could hardly be restrained from assassinating him. Some of the younger senators carried him off in their arms, and among them C. Scribonius Curio was conspicuous for his spirit and courage.

The knights, it was said, had looked to Cicero for the signal to consummate their vengeance; but the consul had turned away. He was giving orders for the immediate execution of the senate's decree, in order to prevent the interference of the tribunes, or a rescue by main force. He went in person to the house where Lentulus was detained on the Palatine, and brought him to the Tullianum, the prison under the Capitol, whither the prætors at the same time conducted the other criminals. The executioners were at hand. Lentulus was strangled first, and Cethegus, Gabinius, Statilius, and Ceparius suffered the same fate successively. When the consul, who had attended to the last, traversed the Forum on his route homeward, he exclaimed to the crowds through which he made his way, "They have lived," and the people shuddered in silence.



BASE OF A ROMAN
COLUMN

Cicero had performed, as he well knew, an action, the fame of which must resound through all ages, and for the moment the head of the aspiring Arpinate swam with the conviction that his name was now linked indissolubly with the greatest crisis in the history of Rome. The execution took place on the 5th of December [Feb. 7th, 62] and he had yet another month of office before him, and Catiline was in arms in Etruria. While he turned from the contemplation of his own glory to finish his work, the nobles could dwell with grim satisfaction on an exploit, which proved, as they conceived, to them that they could defend themselves henceforth without the aid of a military chief. The patron they suspected and feared had withdrawn from their presence to collect his forces and assail their prerogative from a distance. He had left them exposed to the attacks of the Marians, whose courage had revived in his absence. But, trusting in themselves alone, they had checked opposition, crushed sedition, and strangled revolution. Should the survivors appeal, on his return to Pompey, they at once threw down the gauntlet and defied the commander of their own legions. We shall see how rash their hot-brained courage was, and how soon they cooled in the presence of the avenger whom they had evoked. But those among them who already apprehended his calling

them to account, were prepared at least to make a sacrifice of Cicero, assured that he would accept the victim and pardon the offence.

The successes of the generals of the senate had doubtless inspired Cicero with confidence to accomplish the act, which he regarded as the eternal glory of his consulate, and the salvation of his country. The presence of the troops of the republic had repressed the movements of insurrection in every quarter. In Etruria alone was the resistance serious and obstinate. Cicero had purchased the co-operation of his colleague Antonius, whose vacillation had given confidence to the conspirators, by ceding to him the province of Macedonia. He had placed him at the head of the troops destined to act against Catiline in person; but he had furnished him with firmer and more faithful lieutenants in Sextius and Petreius. While this army covered Rome, another under Metellus occupied the Cisalpine, and cut off the rebel's communications with his Gallic allies. Catiline had assembled twenty thousand men, but only one-quarter of this number were regularly equipped. Menaced both in front and rear he turned alternately from the one opponent to the other, and was trying to shake the loyalty of Antonius, when the news of the death of his associates threw him into despair. He was now assured that the senate would never retreat from its position, and even the gaining of Antonius could only postpone by a few days the ruin which must eventually overwhelm him. His men too deserted from him by whole cohorts, and he soon found himself at the head of no more than four thousand followers. He attempted to penetrate the Apennines, and evading the forces of Metellus, gain the Alps and excite an insurrection in Gaul. But the defiles were closed against him, and again he threw himself on Antonius. The consul himself affected sickness and entrusted his legions to Petreius. The armies met not far from Pistoria.^b

Catiline, when he saw that he was surrounded by mountains and by hostile forces, that his schemes in the city had been unsuccessful, and that there was no hope either of escape or of succour, thinking it best, in such circumstances, to try the fortune of a battle, resolved upon engaging as speedily as possible with Antonius. Having, therefore, assembled his troops, he addressed them in the following manner:

“I am well aware, soldiers, that words cannot inspire courage; and that a spiritless army cannot be rendered active, or a timid army valiant, by the speech of its commander. Whatever courage is in the heart of a man, whether from nature or from habit, so much will be shown by him in the field; and on him whom neither glory nor danger can move, exhortation is bestowed in vain; for the terror in his breast stops his ears.

“I have called you together, however, to give you a few instructions, and to explain to you at the same time my reasons for the course which I have adopted. You all know, soldiers, how severe a penalty the inactivity and cowardice of Lentulus has brought upon himself and us; and how, while waiting for reinforcements from the city, I was unable to march into Gaul. In what situation our affairs now are, you all understand as well as myself. Two armies of the enemy, one on the side of Rome, and the other on that of Gaul, oppose our progress; while the want of corn and of other necessities prevents us from remaining, however strongly we may desire to remain, in our present position. Whithersoever we would go, we must open a passage with our swords. I conjure you, therefore, to maintain a brave and resolute spirit; and to remember, when you advance to battle, that on your own right hands depend riches, honour, and glory, with the enjoyment of your liberty and of your country. If we conquer, all will be safe; we shall have provisions in abundance; and the colonies and corporate towns will open their gates to us. But if we lose the victory through want of courage, those same places will turn against us; for neither place nor friend will protect him whom his arms have not protected. Besides, soldiers, the same exigency does not press upon our adversaries, as presses upon us; we fight for our country, for our liberty, for our life; they contend for what but little concerns them, the power of a small party.

“We might, with the utmost ignominy, have passed the rest of our days in exile. Some of you, after losing your property, might have waited at Rome for assistance from others. But because such a life to men of spirit was disgusting and unendurable, you resolved upon your present course. If you wish to quit it you must exert all your resolution, for none but conquerors have exchanged war for peace. To hope for safety in flight, when you have turned away from the enemy the arms by which the body is defended, is indeed madness. In battle, those who are most afraid are always in most danger; but courage is equivalent to a rampart.

“When I contemplate you, soldiers, and when I consider your past exploits, a strong hope of victory animates me. Your spirit, your age, your valour, give me confidence—to say nothing of necessity, which makes even cowards brave. To prevent the numbers of the enemy from surrounding us, our confined situation is sufficient. But should Fortune be unjust to your valour, take care not to lose your lives unavenged; take care not to be taken and butchered like cattle, rather than, fighting like men, to leave to your enemies a bloody and mournful victory.”^[102]

When he had thus spoken, he ordered, after a short delay, the signal for battle to be sounded, and led down his troops, in regular order, to the level ground. Having then sent away the horses of all the cavalry, in order to increase the men's courage by making their danger equal, he himself on foot, drew up his troops suitably to their numbers and the nature of the ground. As a plain stretched between the mountains on the left, with a rugged rock on the right, he placed eight cohorts in front, and stationed the rest of his force, in close order, in the rear. From among these he removed all the ablest centurions, the veterans, and the stoutest of the common soldiers that were regularly armed, into the foremost ranks.

On the other side, Caius Antonius, who, being lame, was unable to be present in the engagement, gave the command of the army to Marcus Petreius, his lieutenant-general. Petreius ranged the cohorts of veterans, which he had raised to meet the present insurrection, in front, and behind them the rest of his force in lines. Then, riding round among his troops, and addressing his men by name, he encouraged them, and bade them remember that they were to fight against unarmed marauders, in defence of their country, their children, their temples, and their homes. Being a military man, and having served with great reputation, for more than thirty years, as tribune, prefect, lieutenant, or prætor, he knew most of the soldiers and their honourable actions, and, by calling these to their remembrance, roused the spirits of the men.

When he had made a complete survey, he gave the signal with the trumpet, and ordered the cohorts to advance slowly. The army of the enemy followed his example; and when they approached so near that the action could be commenced by the light-armed troops, both sides, with a loud shout, rushed together in a furious charge. They threw aside their missiles, and fought only with their swords. The veterans, calling to mind their deeds of old, engaged fiercely in the closest combat. The enemy made an obstinate resistance; and both sides contended with the utmost fury. Catiline, during this time, was exerting himself with his light troops in the front, sustaining such as were pressed, substituting fresh men for the wounded, attending to every exigency, charging in person, wounding many an enemy, and performing at once the duties of a valiant soldier and a skilful general.

When Petreius, contrary to his expectation, found Catiline attacking him with such impetuosity, he led his prætorian cohort against the centre of the enemy, amongst whom, being thus thrown into confusion, and offering but partial resistance, he made great slaughter, and ordered, at the same time, an assault on both flanks. Manlius and the Fæsulan, sword in hand, were among the first that

fell; and Catiline, when he saw his army routed, and himself left with but few supporters, remembering his birth and former dignity, rushed into the thickest of the enemy, where he was slain, fighting to the last.

When the battle was over, it was plainly seen what boldness, and what energy of spirit, had prevailed throughout the army of Catiline; for, almost everywhere, every soldier, after yielding up his breath, covered with his corpse the spot which he had occupied when alive. A few, indeed, whom the prætorian cohort had dispersed, had fallen somewhat differently, but all with wounds in front. Catiline himself was found, far in advance of his men, among the dead bodies of the enemy; he was not quite breathless, and still expressed in his countenance the fierceness of spirit which he had shown during his life. Of his whole army, neither in the battle, nor in flight, was any free-born citizen made prisoner, for they had spared their own lives no more than those of the enemy.

Nor did the army of the Roman people obtain a joyful or bloodless victory; for all their bravest men were either killed in the battle, or left the field severely wounded.

Of many who went from the camp to view the ground, or plunder the slain, some, in turning over the bodies of the enemy, discovered a friend, others an acquaintance, others a relative; some, too, recognised their enemies. Thus, gladness and sorrow, grief and joy, were variously felt throughout the whole army.^d

While the generals of the republic were still hunting the common enemy in the Apennines, and even before the execution of Lentulus, the leaders of the senate had been quarrelling among themselves, as if they had no one to fear either within or without the city. The election of consuls for the ensuing year had fallen upon D. Junius Silanus and L. Licinius Murena. We have seen that Catiline had presumed to offer himself; but a worthier candidate, the great jurist Sulpicius, was also disappointed, and resenting the notorious bribery employed by his rivals, had rushed to prosecute Murena. Bribery there had been probably on all sides, and Rome could ill afford at such a moment to waste her energies in a private squabble. Cicero, intent upon his schemes for the frustration of the conspiracy, could not endure that the public attention should be withdrawn to the miserable intrigues of the rival candidates, and stepped forward to defend Murena. But Cato, insensible to every argument from expediency, and unable to see two sides of any question, supported the suit of the accuser with headlong pertinacity. A part of Cicero's speech was directed to undermine the influence of so virtuous an advocate. "Would you know, judges, what sort of person a sage

of the Porch is? He concedes nothing to favour, he never pardons. Compassion, he says, is frivolousness and folly; the wise only are beautiful, though crooked and deformed; he only is rich though a beggar, a lord though a slave; but we, he declares, who are no sages, are no better than runaways, outlaws, enemies, and madmen. All faults, he affirms, are equal; every error is a heinous sin; to wring a fowl's neck without just reason is as bad as to strangle one's father. The wise man never doubts, never repents, is never deceived, can never change his mind." And in this strain he continued to the infinite amusement of his audience, who were well pleased to hear the philosopher bantered. Cato joined good-humouredly in the laugh. "How witty a consul we possess," was the only remark he made. Nor did he afterwards retain any feeling of displeasure against the orator who both defeated his prosecution and turned him into ridicule. [\[103\]](#)

THE RISE OF JULIUS CÆSAR

[62 B.C.]

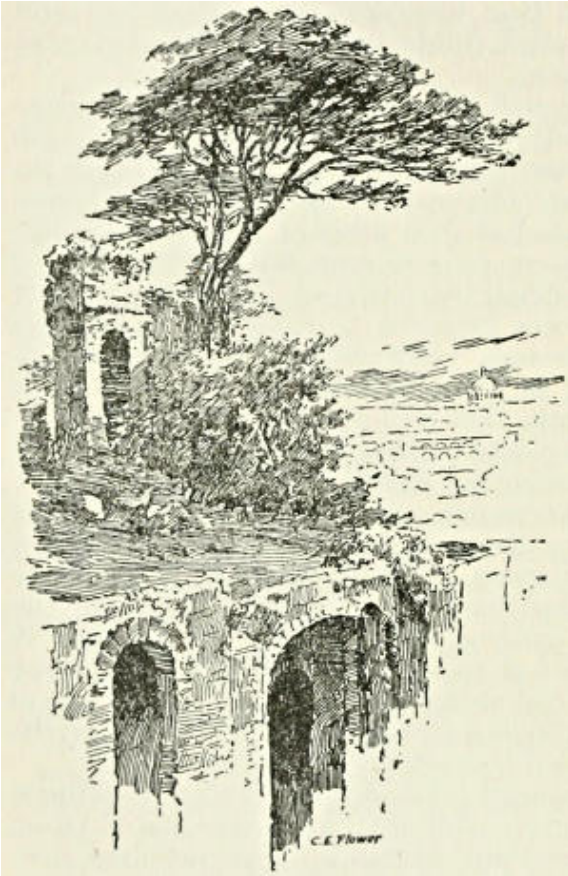
In the midst of their contentions amongst themselves for the highest magistracy, the nobles had allowed Cæsar to obtain the prætorship, the second rank in the scale of office. Pompey had despatched one of his creatures, Metellus Nepos, from Asia to secure one place in his interest on the bench of tribunes. Cato had refused to be nominated to another; and he was journeying into Lucania to avoid the turmoil of the elections, in which he declined to take a part, when he met the Pompeian candidate on the road, and learned the object of his return. He now felt it incumbent upon him, as a true patriot, to watch and check the intrigues of the dangerous proconsul. Hastily retracing his steps, he presented himself to the people for election, and obtained a seat in the tribunate in conjunction with Metellus and others. Jealousies, suspicions, and preparations for violence were rife on all sides. The people were alarmed for the safety of their favourite Cæsar, and after the execution of Lentulus, when he was once detained longer than usual in the senate, surrounded the curia with hostile cries, insisting on his being produced to satisfy them of his safety. The Marian chief indeed was himself far from daunted. He laughed to scorn the new-born courage of the nobles. On the 1st of January the chief men and dignitaries of the state were wont to ascend the Capitol, and there offer their greetings to the new consuls. Cæsar, however, instead of assisting in this act of official courtesy, took advantage of the absence of his colleagues and rivals to address the people in the Forum, and to propose that Catulus should be deprived by their vote of the honours due to him as restorer of the temple of Jupiter Capitolinus. Since its destruction by fire in the time of Sulla, it had taken twenty years to rebuild that

august edifice, the glory of the city and the empire; and the work had now been brought to completion by Catulus, to whom, as prince of the senate, the most dignified of all the citizens, that honourable duty had been assigned. Catulus might now expect that his name, as the restorer of the structure, should be engraved upon its front; and no noble Roman would fail to prize such a commemoration of his services as dearly as a consulship or a triumph. Cæsar now charged him with peculation, and insisted on the production of his accounts; meanwhile, he urged the people to resolve that the final consummation of the work should be transferred to Pompey. But the nobles, on hearing what was passing, rushed from the presence of the consuls with all their friends and adherents into the Forum, and succeeded in averting the blow. The name of Lutatius Catulus was duly inscribed upon the proudest monument of the national pride, and bore witness to the glory of the most blameless hero of the later commonwealth, till the temple was again destroyed in the wars of Vitellius and Vespasian.

Nor was this the only defiance hurled against the senate on that memorable day. Nepos, the tribune, had put himself in communication with Cæsar, and combined with him to insult the dominant faction, even in the moment of its victory. The execution of the conspirators had already been denounced as a murder, ere the echoes had died away of the shouts amidst which it had been perpetrated. Cicero, on resigning the fasces, presented himself to harangue the people, and detail the events of his consulship. It was a proud day for him, and he was prepared to enjoy it. But Nepos abruptly interposed: "The man," he said, "who condemned our fellow-citizens unheard, shall not be listened to himself"; and he required him to confine himself to the customary oath, that he had done nothing contrary to the laws. "I swear," exclaimed Cicero, "that I have saved the state." The nobles shouted applause: Cato hailed him as "the father of his country"; and the general acclamations of the people overwhelmed every opposing whisper. The nobles were elated by the unaccustomed sounds of popular applause; but Nepos threatened the recall of Pompey, ostensibly to oppose Catiline, who was still in arms, but really to bear down the free act of the senate. Cato vowed that while he lived no such rogation should pass. A scuffle ensued in which Cato proceeded to actual violence; his colleague declared his sanctity violated, and fled to his patron's camp. The senate declared his office vacant (for the tribune was forbidden by law to quit the city); and at the same time suspended Cæsar from his functions.

The prætor refused to quit his tribunal till compelled by a military force, whereupon he dismissed his lictors, divested himself of the ensigns of office,

and retired with dignity to his pontifical dwelling. The populace now assembled to avenge the insult cast upon their favourite. A riot ensued, which compelled the consuls to retrace their steps, not without obsequious expressions of respect and deference towards him. Cicero had become already sobered from the intoxication of his recent triumph. The cold distance Pompey observed towards his party mortified and alarmed him. Crassus loudly accused him of having calumniated him, and the enmity of Crassus was not to be despised. Finally a tribune had just seemed to menace him with impeachment, notwithstanding the decree of the senate which had forbidden any action to be brought against those who had aided in the punishment of the conspirators. These resentments the discreet consular now studied to allay. He sought to appease Crassus; he proclaimed aloud the zeal which Cæsar had displayed in being the first, as he attested, to disclose to him Catiline's machinations; and he who had lately exclaimed, "Let arms give place to the gown," now prostrated himself before Pompey, whom he exalted above Scipio, begging only for himself the humble place of a Lælius. He even sought allies for himself among the accomplices of Catiline. P. Sulla, one of the conspirators, was defended by Cicero, and acquitted in the face of manifest proofs. The orator struggled to maintain that union between the two privileged orders of the commonwealth, the senators and knights, the cherished aim of his policy, which seemed at last to be accomplished on the steps of the temple of Concord. But when the nobles spurned the knights haughtily from them; when Cato, reckless of the misery of the provincials, repulsed the prayer of the publicans of Asia, who sought relief from their contract with the treasury, on account of the deep impoverishment of the revenues they had undertaken to farm, insisting that they should be held to the strict letter of their bargain; when the chasm between the two orders seemed once more to open before his eyes, having now to choose between the class to which he belonged by birth and natural sympathies and that to which his genius had exalted him, Cicero weakly threw himself upon the former, and proclaimed himself the creature of the aristocracy which despised him. The concessions he had made came too late to save either himself or them. The friends of Catiline still devoted him to their direst revenge; the demagogues lashed the people into fury against him; Cæsar smiled at his mistakes, while Crassus scarcely disguised the rancour of his hate under the veil of frigid courtesy.



RUINS OF THE PALACE OF THE CÆSARS, ROME

The nobles committed indeed no greater error than when they inflamed the enmity of Crassus by divulging their suspicions of him, and at the same time shrank from disarming it by force. Assuredly they should have made him their friend, and this they might have done perhaps at a trifling sacrifice of their vanity. Crassus was liked by none, but few could afford to despise him; while his ambition might have been kept within bounds by the concession of legitimate honours and dignities, and the show of listening to his counsels. At the moment when Pompey was passing over to the people, Crassus might have been retained on the side of the oligarchy from which he had never wholly estranged himself. His immense riches, the sources of which lay close at hand, gave him clients in the senate as well as among the knights: his slaves, his freedmen, his debtors and his tenants constituted an army in the heart

of the city, to sway the debates of the Forum and overawe its seditions. But when the nobles refused to support him in his suit for the consulship, they drove him to league himself with his popular competitor Pompey: when they denounced him as a confederate of Catiline, they threw him into the arms of Cæsar. By lending money to the Marian spendthrift, Crassus thought that he made him his own; but in fact he bound himself to the fortunes of his rival, from whose entire success he could alone hope to be repaid.

Cæsar's suspension from his prætorship had only served to attach his party more closely to him; an incident soon occurred by which it was hoped to sow discord between them. P. Clodius, the corrupt accuser of Catiline, a turbulent intriguer like so many members of his house, had ingratiated himself with the people by his popular manners. This beardless youth, already alike notorious for his debts and his gallantries, had introduced himself into Cæsar's house in female attire during the celebration of the rites of the Bona Dea, which should

have been studiously guarded from male intrusion. A servant-maid discovered him and uttered a cry of alarm; the mysteries were hastily veiled and the intruder expelled; but the assembled matrons rushing hastily home revealed each to her husband the scandal and the sin. The nobles affected grave alarm; the pontiffs were summoned and consulted, and the people duly informed of the insult offered to the deity. As chief of the sacred college, Cæsar could not refrain from lending himself to the general clamour; but his position was delicate. On the one hand the presumed delinquent was an instrument of his own policy, while on the other his own honour and that of his wife Pompeia were compromised by the offence. ^[104] He disappointed everybody. He divorced his wife, not because she was guilty, but because “the wife of Cæsar,” as he said, “should be above suspicion.” But he refused to countenance the measures which the consuls took, by direction of the senate, for the conviction of the reputed culprit; and it may be suspected that the money with which Clodius bribed his judges was a loan negotiated with Crassus by Cæsar himself. Cicero for his part had been lukewarm in an affair, the barefaced hypocrisy of which he was perhaps too honourable to countenance; but, urged by his wife Terentia, a violent woman who meddled much in his affairs, and was jealous at the moment of a sister of the culprit, he clearly disproved his allegation of absence from the city, and thus embroiled himself, to no purpose, with an able and unscrupulous enemy. The senate believed their cause gained; the proofs indeed were decisive, and they had assigned at their own request a military guard to the judges to protect them from the anticipated violence of a Clodian mob; but to their consternation, on opening the urns, the votes for an acquittal were found to be thirty-one opposed to twenty-five. “You only demanded a guard, then,” exclaimed Catulus with bitter irony, “to secure the money you were to receive.” Cicero attributed to Crassus the scandal of this perversion of justice; the nobles sneered at the corruption of the knights, and the gulf which separated the two orders yawned more widely than ever.

THE RETURN OF POMPEY

[62-61 B.C.]

The profanation of the mysteries had occurred in December of the year 62, but the Clodian process, retarded by various intrigues, did not take place for some months. Meanwhile, before the end of January, Pompey had returned from the East, and reached the gates of the city. He appeared there as an imperator, to solicit a triumph, at the head of a small detachment of his legionaries; but no sooner had he touched land at Brundisium than he had dismissed the mass of

his victorious army, with the promise of estates which he made no doubt of obtaining for them from the senate. All parties were in anxious expectation of the use he would make of his power in quelling the feuds of the city, and some perhaps apprehended that he would extinguish the legitimate powers themselves from the perversion of which they sprang. All were amazed at the generosity or arrogance with which he divested himself of the support of his soldiers, and trusted to the glory of his name for maintaining his ascendancy in the commonwealth. The senators indeed regarded it as a weakness, and presumed that their adversary cowered under the imposing attitude they had assumed. The laws forbade him to enter the city while he yet retained the military command, but both the senate and the people held meetings in the Field of Mars to hear him recount his exploits, and to collect from his own mouth the policy he proposed to adopt. Of his own actions he spoke magniloquently; but when he touched on domestic affairs his language was studiously moderate and conciliatory. He declared his deep respect for the great council of the nation; but withheld a word of approval of their recent or their pending measures. In order to draw him out Crassus was induced to utter an encomium on Cicero's conduct in his consulship; and upon that hint, Cicero himself rose to improve the occasion, and enlarged with his usual copious rhetoric on the dangers from which he had saved the state. He spoke, as he alone could speak, of the dignity of the senate, the loyalty of the knights, the favour of the Italians, the paralysis of every element of disaffection, the cheapness of provisions, the security of the commonwealth. The senate responded to the speaker's satisfaction; it was the crowning day of Cicero's vanity, yet one triumph was wanting to it—Pompey would not be drawn into any indication of his views.

Pompey seems to have held himself aloof from the proceedings relative to Clodius. Cæsar was also anxious to extricate himself from them, and the expiration of his prætorship had opened to him an honourable retreat in the province of the Further Spain. But there were two impediments in his way; the one lay in the deep embarrassment of his debts; the other was a decree of the senate, passed on purpose to retain him at home, by which the magistrates were forbidden to go to their provinces before the decision of the Clodian process. Cæsar's private means had been long exhausted. The friends who had continued to supply his necessities had seemed to pour their treasures into a bottomless gulf; so vast was his expenditure in shows, canvasses, and bribes; so long and barren the career of public service through which this ceaseless profusion had to be maintained. At this period when the bold gamester was about to throw his last die, he could avow, that he wanted 250,000,000 sesterces (above £2,000,000 or \$10,000,000) to be "worth nothing." Before he could enter on the

administration of his province he had pressing creditors to satisfy, and expensive preparations to make. Every other resource had been drained, but Cæsar could apply to Crassus for a loan. The wealthiest of the Romans hated the Great Captain who had just returned to the city, and he saw in Cæsar the readiest instrument for lowering his estimation. He held in pawn the treasures of Iberia. The sum required was 830 talents (£200,000) and this was placed at once in Cæsar's hands. With the other impediment the proprietor ventured to deal in a more summary manner. He had reason to apprehend that a scheme was in contemplation to retain him at home by a political impeachment; but he knew that once at the head of his legions his foes would not dare recall him, and he trusted to reap such a harvest both of treasure and reputation as would screen him from the effects of their malice on his return.

The evasion of Cæsar and the escape of Clodius mortified the senate, which wreaked its sullen humour on Pompey by delaying the official ratification of his acts, and the satisfaction of his veterans. It had conceded the honour of a triumph to Lucullus in spite of the impediments opposed thereto by his successor in the eastern command, and still more recently, by conferring a similar distinction on Metellus, together with the surname of Creticus, it had expressed its approbation of the conduct of the very general against whom Pompey had made war for disobedience to his orders. Now that the conqueror of Mithridates had himself returned to claim the last reward of military prowess, it seems to have harassed him with mortifying delays, for it was not till the end of September, nine months after his return to Rome, that his triumph was actually celebrated. Meanwhile he had been compelled to intrigue for the election of a creature of his own to the consulship; and while he thus bought the interest of Afranius, a weak and frivolous friend, he was mortified by the appointment of Metellus Celer, a decided enemy, as his colleague. His vanity was perhaps in some measure indemnified by the glories of his triumph, which lasted two days, amidst a display of spoils and trophies such as Rome had never before witnessed. The proconsul boasted that he had conquered twenty-one kings, and that Asia, which he had found the farthest province of the empire, he had left its centre. Banners borne in the procession announced that he had taken 800 vessels, 1000 fortresses and 900 towns; thirty-nine cities he had either founded or restored; he had poured 20,000 talents (about £5,000,000 sterling) into the treasury, and nearly doubled the national revenues. Above all he plumed himself, says Plutarch, on having celebrated his third triumph over a third continent. For though others before him had triumphed three times, Pompey by having gained his first over Libya, his second over Europe, and this the last over

Asia, seemed in a manner to have brought the whole world within the sphere of his conquests.

But on descending from his chariot the hero found himself alone in the city in which he had once been attended by such crowds of flatterers and admirers. Lucullus, stimulated beyond his wont by the presence of his rival, attacked his conduct in every particular; the senate was cold or hostile; even Cicero discovered that his idol was formed of ordinary clay. When the new consuls entered on their office Afranius was no match for his far abler colleague, and the ratification of the proconsul's acts was still petulantly withheld. Pompey had disposed of crowns, he had made and unmade kingdoms, he had founded municipal commonwealths, in short he had regulated everything at his sovereign pleasure, from the Ægean to the Red Sea. It concerned his honour to show to his friends and foes throughout the East, that he was not less powerful in the city than he had pretended to be in the camp. He demanded a public ratification, full, prompt, and unquestioning. But Lucullus, supported by Cato, demanded that each separate act should be separately discussed. Such a method of proceeding could not fail to result in numerous checks and mortifications to him; even the delay would suffice to show that he had fallen from his vaunted supremacy. Pompey chose rather to forego altogether the formal ratification of arrangements which he knew were not likely to be in fact disturbed. At the same time he instructed a tribune named Flavius to demand lands for his veterans. Cato and Metellus again opposed him; then violence ensued, and the tribune complaining that his sanctity was profaned, dragged the consul to prison. The senate insisted upon sharing the insult offered to its chief, and Pompey, ashamed of the insolence of his own creature, gave way once more, and withdrew his demands for a more favourable opportunity. But he was deeply chagrined at the treatment he had experienced, which dishonoured him in the eyes of his soldiers and of all Asia. Then, too late, he began perhaps to regret the disbanding of his legions. Repulsed by the nobles he betook himself once more to the people, and sought by popular arts to revive the prestige of his arms. But the first place in their regards was no longer vacant. Cæsar was securely lodged in their hearts, and with him the newcomer must be content to share a divided empire.^b

FOOTNOTES

[102] [Of course, this is not Catiline's speech; Sallust^d composed it in order to represent what under the circumstances Catiline might appropriately have said to his

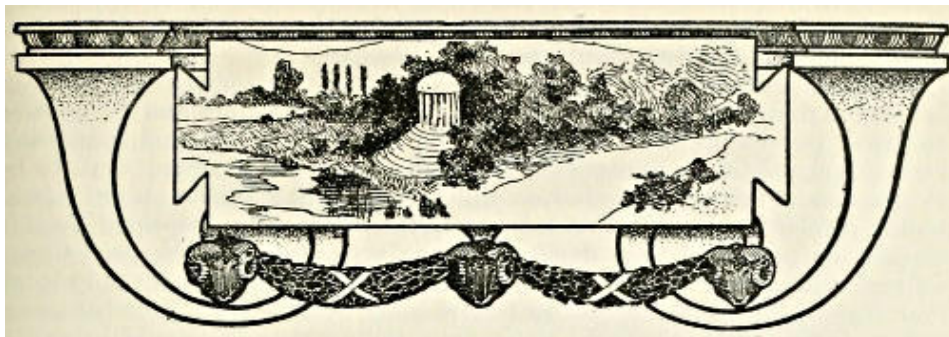
troops. Most speeches found in the ancient historians are of a similar character; few of them have been drawn from documents.]

[103] [Compare the words of Velleius Paterculus,^e “To praise Cato for his honesty would be rather derogatory to him than otherwise; but to accuse him of ostentatiously displaying it would be just.”]

[104] [According to Appian,^f when Clodius had invaded the rites of the Bona Dea “he had laid a blemish upon the chastity of Cæsar’s wife.”]



A ROMAN STATESMAN



CHAPTER XXII. CÆSAR AND POMPEY

THE FIRST TRIUMVIRATE

[60-59 B.C.]

Cæsar had taken his departure for Spain before Pompey's return. In that province he availed himself of some disturbances on the Lusitanian border to declare war against that gallant people. He overran their country, and turned his arms against the Gallæcians, who seem to have been unmolested since the days of Dec. Brutus. In two campaigns he became master of spoils sufficient not only to pay off a great portion of his debts, but also to enrich his soldiery. There can be no doubt that he must have acted with great severity to wring these large sums from the native Spaniards; indeed he never took thought for the sufferings of people not subject to Roman sway. But he was careful not to be guilty of oppression towards the provincials; and his rule in the Spanish provinces was long remarked for its equitable adjustment of debts due to Roman tax-collectors.^b

Cæsar, who by expeditions against the Lusitanians had, as he considered, gained sufficient materials for a triumph, and was anxious to obtain the consulate, hastened home when the time of the elections was at hand (60). As there was no room for delay, he applied to the senate for permission to enter the city before his triumph in order to canvass the people; but Cato and his friends opposing, it was refused. Cæsar, who was not a man to sacrifice the substance for the show, gave up the triumph; and entering the city formed a coalition with L. Lucceius, a man of wealth who was also a candidate, of which the terms were that Lucceius should distribute money in his own and Cæsar's name conjointly, and Cæsar in like manner give him a share in his influence. The nobles, when they saw this coalition, resolved to exert all their interest in favour of M. Calpurnius Bibulus, the other candidate, and, with even Cato's consent, authorised him to offer as high as Lucceius, engaging to raise the money among them. Bibulus therefore was elected with Cæsar, whose daring projects the senate thus hoped to restrain.

Cæsar, who well knew the character of Pompey, resolved to make him and Crassus the ladder of his ambition. He represented to them how absurd their jealousy and enmity was, which only gave importance to such people as Cato and Cicero; whereas if they three were united they might command the state. They saw the truth of what he said, and each blinded by his vanity and ambition, expecting to derive the greatest advantage from it, agreed to the

coalition; and thus was formed a triumvirate, as it is termed, or confederacy, bound by a secret pledge that no measure displeasing to any one of the parties should be allowed to pass.

Cæsar, as soon as he entered on his office (59), introduced an agrarian law for dividing the public land among Pompey's soldiers and the poorer citizens; purchasing it however from the present possessors, and appointing twenty commissioners to carry the law into effect, among whom were to be Pompey and Crassus. This law, to which they could make no objection, was highly displeasing to the adverse party in the senate, who suspected Cæsar's ulterior designs, and Cato declared strongly against any change. Cæsar ordered a lictor to drag him off to prison; he professed himself ready to go that instant, and several rose to follow him. Cæsar then grew ashamed and desisted, but he dismissed the senate, telling them he would bring the matter at once before the people; and he very rarely called the senate together during his consulate.

He then laid before the people his bill for dividing the lands of Campania, in lots of ten jugera, among twenty thousand poor citizens with three or more children; [\[105\]](#) and being desirous to have some of the principal persons to express their approbation of it, he first addressed his colleague, but Bibulus declared himself adverse to innovation; he then affected to entreat him, asking the people to join with him, as if Bibulus wished they might have it; "Then," cried Bibulus, "you shall not have it this year even if you all will it," and went away; Cæsar, expecting a similar refusal from the other magistrates, made no application to them, but bringing forward Pompey and Crassus desired them to say what they thought of the law. Pompey then spoke highly in favour of it, and on Cæsar and the people asking him if he would support them against those who opposed it, he cried, elate with this proof of his importance, "If any man dares to draw a sword I will raise a buckler!" Crassus also expressed his approbation, and as the coalition was a secret, the example of these two leading men induced many others to give their consent and support to the law. Bibulus however was still firm, and he was supported by three of the tribunes; and, as a means of impeding the law, he declared all the remaining days of the year *nefasti*, or holy days. When Cæsar, regardless of his proclamations, fixed a day for passing the law, Bibulus and his friends came to the temple of Castor, whence he was haranguing the people, and attempted to oppose him; but he was pushed down, a basket of dung was flung upon him, his lictors' *fascēs* were broken, his friends (among whom were Cato and the tribunes) were beaten and wounded, and so the law was passed. Bibulus henceforth did not quit his house, whence he continually issued edicts declaring all that was done on the nefast

days to be unlawful. The tribune P. Vatinius, one of Cæsar's creatures, had even attempted to drag him to prison, but he was opposed by his colleagues.

The senate was required to swear to this law, as formerly to that of Saturninus. Metellus Celer, Cato, and Cato's imitator Favonius at first declared loudly that they would not do so; but having the fate of Numidicus before their eyes, and knowing the inutility of opposition, they yielded to the remonstrances of their friends.

Having thus gained the people, Cæsar proceeded to secure the knights, and here Cato's Utopian policy aided him. This most influential body thinking, or pretending, that they had taken the tolls at too high a rate, had applied to the senate for a reduction, but Cato insisted on keeping them to their bargain. Cæsar without heeding him or the senate reduced them at once a third, and thus this self-interested body was detached from the party of the aristocracy, and all Cicero's work undone. Cæsar now found himself strong enough to keep his promise to Pompey, all whose acts in Asia were confirmed by the people.

[59-58 B.C.]

The triumvirate, or rather Cæsar, was extremely anxious to gain Cicero over to their side, on account of the influence which he possessed. But though he had a great personal regard for Pompey he rejected all their overtures. Cæsar then resolved to make him feel his resentment, and the best mode seemed to be to let Clodius loose at him. This profligate had long been trying to become a tribune of the people, but for that purpose it was necessary he should be a plebeian, which could only be effected by adoption. His first efforts were unavailing; but when Cicero, in defending his former colleague Antonius, took occasion to make some reflections on the present condition of the commonwealth, Cæsar to punish him had the law for Clodius' adoption passed at once, Pompey degrading himself by acting as augur on this occasion, in which all the laws and rules on the subject were violated. This affair is said to have been done with such rapidity, that Cicero's words which gave the offence were only uttered at noon and three hours after Clodius was a plebeian!



CLODIUS

(From a statue)

Some time after, a knight named L. Vettius, who had been one of Cicero's informers in the affair of Catiline, being suborned, it is said, by Cæsar, declared that several young noblemen had entered into a plot, in which he himself partook, to murder Pompey; the senate ordered him to prison; next day Cæsar produced him on the rostra, when he omitted some whom he had named to the senate, and added others, among whom were Lucullus and Cicero's son-in-law Piso, and hinted at Cicero himself. Vettius was taken back to prison, where he was privately murdered by his accomplices, as Cæsar said,—by Cæsar himself, according to others.

The senate, to render Cæsar as innocuous as possible, had, in right of the Sempronian law, assigned the woods and roads as the provinces of the consuls on the expiration of their office. But Cæsar had no idea of being foiled thus; and his creature, the tribune Vatinius, had a law passed by the people, giving him the province of Cisalpine Gaul and Illyricum, with three legions, for five years; and when on the death of Metellus Celer he expressed a wish to have Transalpine Gaul added, the senate, as he would otherwise have applied to the people, granted it to him with another legion. In order to draw the ties more closely between himself and Pompey, he had given him in marriage his lovely and amiable daughter Julia, and he himself married the daughter of L. Calpurnius Piso, whom, with A. Gabinius, a creature of Pompey, the triumvirs had destined for the consulate of the following year. They also secured the tribunate for Clodius; and thus terminated the memorable consulate of Cæsar and Bibulus.

CLODIUS EXILES CICERO

[58-57 B.C.]

Clodius lost no time (58) in preparing for his attack on Cicero. To win the people, he proposed a law for distributing corn to them gratis; by another law he re-established the clubs and unions, which the senate had suppressed, and formed new ones out of the dregs of the populace and even of the slaves; by a third law he prohibited any one from watching the heavens on assembly days; ^[106] by a fourth, to gain the profligate nobility, he forbade the censors to note any senator unless he was openly accused before them, and that they both agreed. He then made sure of the consuls, who were distressed and profligate men, by engaging to get Macedonia and Achaia for Piso as his province, and Syria for Gabinius. Having thus, as he thought, secured the favour of the consuls, the nobility, and the people, and having a sufficient number of ruffians from the clubs and unions at his devotion, he proposed a bill interdicting from fire and water any person

who, without sentence of the people, had or should put any citizen to death. Cicero, who, though he was not named, knew that he was aimed at, was so foolish and cowardly as to change his raiment (a thing he afterwards justly regretted), and go about supplicating the people according to custom, as if he were actually accused; but Clodius and his followers met him in all the streets, threw dirt and stones at him, and impeded his supplications. The knights, the young men, and numbers of others, with young Crassus at their head, changed their habits with him and protected him. They also assembled on the Capitol, and sent some of the most respectable of their body on his behalf to the consul Gabinius and the senate, who were in the temple of Concord; but Gabinius would not let them come near the senate, and Clodius had them beaten by his ruffians. On the proposal of the tribune L. Ninnius, the senate decreed that they should change their raiment as in a public calamity; but Gabinius forbade it, and Clodius was at hand with his cut-throats, so that many of them tore their clothes, and rushed out of the temple with loud cries.

Pompey had told Cicero not to fear, and repeatedly promised him his aid; and Cæsar, whose design was only to humble him, had offered to appoint him his legate, to give him an excuse for absenting himself from the city; but Cicero suspecting his object in so doing, and thinking it derogatory to him, had refused it. He now found that Pompey had been deceiving him, for he kept out of the way lest he should be called on to perform his promises. Sooner, as he says, than be the cause of civil tumult and bloodshed, he retired by night from the city, which but five years before he had saved from the associates of those who now expelled him. Cæsar, who had remained in the suburbs waiting for the effect of Clodius' measures, then set out for his province. When Clodius found that Cicero was gone, he had a bill passed interdicting him from fire and water, and outlawing any person living within four hundred miles of Rome who should entertain him. He burned and destroyed his different villas and his house on the Palatine, the site of which he consecrated to Liberty! His goods were put up to auction, but no one would bid for them; the consuls, however, had taken possession of the more valuable portions of them for themselves.

Cicero, it is much to be lamented, bore his exile with far less equanimity than could have been wished for by the admirers of his really estimable character; his extant letters are filled with the most unmanly complaints, and he justly drew on himself the derision of his enemies. But his was not one of those characters which, based on the high consciousness of worth, derive all their support and consolation from within; it could only unfold its bloom and display its strength beneath the fostering sun of public favour and applause, and Cicero was great

nowhere but at Rome. It was his first intention to go to Sicily, but the prætor of that island, C. Virgilius, who had been his intimate friend, wrote desiring him not to enter it. He then passed over to Greece, where he was received with the most distinguished honours, and finally fixed his residence in Macedonia, where the quæstor Cn. Plancius showed him every attention.

Having driven Cicero away, Clodius next proceeded to remove Cato, that he might not be on the spot to impede his measures. He proposed at the same time to gratify an old grudge against the king of Cyprus, the brother of the king of Egypt; for when Clodius was in Asia he chanced to be taken by the pirates, and having no money he applied to the king of Cyprus, who being a miser, sent him only two talents, and the pirates sent the paltry sum back, and set Clodius at liberty without ransom. Clodius kept this conduct in his mind; and just as he entered on his tribunate, the Cypriots happening to send to Rome to complain of their king, he caused a bill to be passed for reducing Cyprus to the form of a province, and for selling the king's private property; he added in the bill, that this province should be committed to Cato as quæstor, with prætorian power, who (to keep him the longer away from Rome) was also directed to go to Byzantium, and restore the exiles who had been driven thence for their crimes. Cato, we are assured, undertook this most iniquitous commission against his will; he executed it, however, most punctually. He went to Rhodes, whence he sent one of his friends named M. Canidius to Cyprus, to desire the king to resign quietly, offering him the priesthood of the Paphian goddess. Ptolemy however preferred death to degradation, and he took poison. Cato then, not trusting Canidius, sent his nephew, M. Junius Brutus, to look after the property, and went himself to Byzantium, where he effected his object without any difficulty. He then proceeded to Cyprus to sell the late king's property; and being resolved to make this a model sale, he attended the auction constantly himself, saw that every article was sold to the best advantage, and even offended his friends by not allowing them to get bargains. He thus brought together a sum of seven thousand talents, which he made up in vessels containing two talents five hundred drachmæ each, to which he attached a cord and cork, that they might float in case of shipwreck. He also had two separate accounts of the sale drawn out, one of which he kept, and the other he committed to one of his freedmen, but both happened to be lost, and he had not the gratification of proving his ability of making the most of a property.

When the news that Cato had entered the Tiber with the money reached Rome, priests and magistrates, senate and people, poured out to receive him; but though the consuls and prætors were among them, Cato would not quit his

charge till he had brought his vessel into the docks. The people were amazed at the quantity of the wealth, and the senate voted a prætorship to Cato, though he was under the legal age, and permission to appear at the games in a *prætecta*, of which however he took no advantage. No one thought of the iniquity of the whole proceeding; and when Cicero, after his return, wished to annul all the acts of Clodius' tribunate, Cato opposed him, and this caused a coolness between them for some time.

Cicero had been only two months gone when his friend Ninnius the tribune, supported by seven of his colleagues, made a motion in the senate for his recall. The whole house agreed to it, but one of the other tribunes interposed. Pompey himself was, however, now disposed to join in restoring him, for Clodius' insolence was gone past his endurance. This ruffian had by stratagem got into his hands the young Tigranes, whom Pompey had given in charge to the prætor L. Flavius. He had promised him his liberty for a large sum of money; and when Pompey demanded him, he put him on board a ship bound for Asia. A storm having driven the vessel into Antium, Flavius went with an armed force to seize the prince, but Sex. Clodius, one of the tribune's bravos, met him on the Appian road, and, after an engagement in which several were slain on both sides, drove him off. While Pompey was brooding over this insult, one of Clodius' slaves was seized at the door of the senate-house with a dagger, which he said his master had given him that he might kill Pompey; Clodius' mob also made frequent attacks on him, so that out of real or pretended fear he resolved to keep his house till the end of the year; indeed he had been actually pursued to and besieged in it one day by a mob, headed by Clodius' freedman Damio, and the consul Gabinius had to fight in his defence. Pompey therefore now resolved to befriend Cicero; and P. Sextius, one of the tribunes-elect, took a journey into Gaul to obtain Cæsar's consent. About the end of October the eight tribunes again proposed a law for his recall, and P. Lentulus Spinther, the consul-elect, spoke strongly in favour of it. Lentulus' colleague, Q. Metellus Nepos, though he had been Cicero's enemy, seeing how Cæsar and Pompey were inclined, promised his aid, as also did all the tribunes-elect: Clodius, however, soon managed to purchase two of them, namely, Num. Quinctius and Sex. Serranus.

THE RECALL OF CICERO

[57-56 B.C.]

On the 1st of January (57) Lentulus moved the senate for Cicero's recall. L. Cotta said that as he had been expelled without law, he did not require a law for his

restoration. Pompey agreed, but said that for Cicero's sake it would be better if the people had a share in restoring him. The senate were unanimously of this opinion, but the tribune Sex. Serranus interposed. The senate then appointed the 22nd for laying the matter before the people. When that day came, the tribune Q. Fabricius set out before it was light with a party to occupy the rostra; but Clodius had already taken possession of the Forum with his own gladiators, and a band he had borrowed from his brother Appius, and his ordinary troop of ruffians. Fabricius' party was driven off with the loss of several lives, another tribune, M. Cispus, was treated in a similar manner, and Q. Cicero only saved himself by the aid of his slaves and freedmen. In the picture which Cicero draws in his orations of this scene, the Tiber and the sewers are filled with dead bodies, and the Forum covered with blood as in the time of the contest of Cinna and Octavius.

The contest was renewed with daylight, and the tribune Sextius was pierced with twenty wounds and left for dead. Clodius then, elate with his victory, burned the temple of the Nymphs, where the books of the censors were kept; and he attacked the houses of the prætor L. Cæcilius, and the tribune T. Annius Milo. The latter impeached Clodius, *de vi*, but his brother Appius the prætor, and the consul Metellus, screened him, and meantime aided his suit for the ædileship, which would protect him for another year. Milo then, to repel force by force, also purchased a band of gladiators, and daily conflicts occurred in the streets.

The senate, resolved not to be thus bullied, directed the magistrates to summon well-affected voters from all parts of Italy. They came in great numbers from every town and district. Pompey, who was then at Capua, exerted himself greatly in the affair. Encouraged by their presence the senate passed a decree in proper form for Cicero's restoration; but Clodius still was able to prevent its ratification by the people. The senate then met on the Capitol; Pompey spoke highly in praise of Cicero; others followed him; Metellus, who had been playing a double part all through, ceased to oppose, and a decree was passed, Clodius alone dissenting. The senate met again the next day; and Pompey and the other leading men having previously addressed the people, and told them all that had been said, the law was made ready to be laid before the centuries; on the 4th of August the centuries met on the Field of Mars and by a unanimous vote Cicero was recalled.

That very day Cicero sailed from Dyrrhachium, and the following day he landed at Brundisium. He advanced leisurely towards Rome, the people poured out from every town and village as he passed to congratulate him, and all ranks

and orders at Rome received him at the Capena Gate (Sept. 4). Next day he returned thanks to the senate; and to prove his gratitude to Pompey, he was the proposer of a law giving him the superintendence of the corn trade for a term of five years, and Pompey in return made him his first legate. The senate decreed that Cicero's house and villas should be rebuilt at the public expense. Cicero then asserted that as Clodius had become a plebeian in an illegal manner, all the acts of his tribunate were equally so, and should be annulled. But here he was opposed by Cato, whose vanity took alarm, and who feared lest he should lose the fame of the ability with which he had conducted the robbery of the king of Cyprus; and this produced a coolness between him and Cicero, who also was disgusted, and with reason, with the conduct of several of the other leaders of the aristocratic party, at which we need not be surprised when we find them, purely to annoy Pompey, aiding Clodius so effectually that he was chosen *ædile* without opposition (56). This pest of Rome immediately accused Milo of the very crime (*de vi*) of which he had been accused himself. Pompey appeared and spoke for Milo, and it came to a regular engagement between their respective partisans, in which the Clodians were worsted and driven off the Forum. Pompey now saw that Crassus was at the bottom of all the insults offered him, and that Bibulus and others of the nobles were anxious to destroy his influence, and he resolved to unite himself more closely than ever with Cæsar in order to counteract their intrigues.

Cicero at this time abstained as much as he could from public affairs, attending entirely to the bar. To understand his conduct we must keep his known character in view, in which vanity and timidity were prominent; but he was also grateful, placable, and humane. He had all his life had a strong personal affection for Pompey, and he was now full of admiration for the exploits of Cæsar in Gaul, by whom he was moreover treated with the utmost consideration, while he was disgusted with the paltry conduct of the leading aristocrats. Hence we find him, at the request of Cæsar or Pompey, employing his eloquence in the defence of even his personal enemies, and doing things for which we sometimes must pity, sometimes despise him. It is pleasing, however, to behold the triumph of his eloquence in the defence of his friend Sextius, whom the Clodians had the audacity to prosecute *de vi*, for not having died, we may suppose, of his wounds. Cicero also carried a motion in the senate, that as there was not money in the treasury to purchase the Campanian lands, which by Cæsar's law were to be divided, the act itself should be reconsidered. Finding, however, that this was highly displeasing to Cæsar and Pompey, and that those who applauded him for it did it because they expected it would produce a

breach between the latter and him, he thought it best to consult his interest, and therefore dropped it. [\[107\]](#)

SECOND CONSULATE OF POMPEY AND CRASSUS

[56-55 B.C.]

It was Cæsar's custom to return, after his summer campaigns in Gaul, to pass the winter in his Cisalpine province, in order to keep up his intercourse with Rome. He came in the present winter to Lucca, on the verge of his province, whither, in the month of April, 56, Pompey, Crassus, and such a number of the Roman magistrates repaired to him, that 120 lictors have been seen at a time at his gates. It was there privately agreed by the triumvirate that Pompey and Crassus should stand for the consulate, and that if successful, they should obtain a renewal of Cæsar's government for five years longer. As the actual consuls, Cn. Cornelius Lentulus Marcellinus, and L. Marcius Philippus, were adverse to the triumvirate, the tribune C. Cato was directed to impede all elections for the rest of the year; and in consequence of his opposition, the consular elections were held by an interrex in the beginning of the next year (55). Pompey and Crassus were chosen without opposition, for M. Cato's brother-in-law, L. Domitius Ahenobarbus, who alone ventured to stand, was, we are told, attacked by their party as he was going before day to the Field of Mars, where the election was to be held; the slave who carried the torch before him was killed; others were wounded, as was Cato himself; Domitius fled home, and gave up the contest. Cato then stood for the prætorship, but the consuls, aware of the trouble he would give them if elected, made every effort to prevent him from succeeding. They bribed extensively for his opponent P. Vatinius, and procured a decree of the senate that the prætors should enter on their office at once, instead of remaining private men for sixty days, as was the usual course, to give an opportunity of accusing them if they were suspected of bribery. The first century however, when the election came, voted for Cato. Pompey, who presided, pretended that he heard thunder, and put off the election; and the consuls took care to have Vatinius chosen on the following one. The tribune C. Trebonius then by their directions proposed a bill, giving them when out of office the provinces of Syria and the Spains for five years, with authority to raise what troops they pleased; this law, though strongly opposed in the senate, was carried, and then Pompey proposed and carried the one he had promised Cæsar.

[55-53 B.C.]

The consuls having drawn lots for their provinces, or more probably arranged them by a private agreement, Syria, as he coveted, fell to Crassus; and Pompey was equally well pleased to have the Spains, which, as being at hand, he could govern by his lieutenants, while he himself, under the pretext of his office of inspector of the corn-market, might remain at Rome and enjoy the domestic happiness in which he so much delighted. The triumvirs not thinking it necessary to interfere, L. Domitius and App. Claudius were elected consuls, and Cato one of the prætors, for the following year.

Crassus, though nothing was said in the law about the Parthians, made little secret of his design to make war on them; and Cæsar, it is said, wrote encouraging him to it. Many, however, were, or affected to be, shocked at the injustice of waging war against a people who had given no just cause of offence, and the tribune C. Ateius Capito was resolved to prevent his departure. Crassus begged of Pompey to see him out of the city, as he knew he should be opposed. Pompey complied with his request, and the people made way in silence; but Ateius meeting them, called to Crassus to stop, and when he did not heed him, sent a beadle to seize him; the other tribunes however interposed. Ateius then ran on to the gate, and kindling a fire on a portable altar, poured wine and incense on it, and pronounced direful curses on Crassus, invoking strange and terrible deities (54).

THE PARTHIAN WAR OF CRASSUS

[53 B.C.]

Heedless of the tribune's imprecations, Crassus proceeded to Brundisium and embarked, though the sea was rough and stormy. He reached Epirus with the loss of several of his ships, and thence took the usual route overland to Syria. He immediately crossed the Euphrates, and began to ravage Mesopotamia. Several of the Greek towns there cheerfully submitted; but instead of pushing on, he returned to Syria to winter, thus giving the Parthians time to collect their forces. He spent the winter busily engaged in amassing treasures; to a Parthian embassy which came to complain of his acts of aggression he made a boastful reply, saying that he would give an answer in Seleucia;^[108] the eldest of the envoys laughed, and showing the palm of his hand said, "Crassus, hairs will grow there before *you* see Seleucia."

The Roman soldiers, when they heard of the numbers of the Parthians and their mode of fighting, were dispirited; the soothsayers announced evil signs in

the victims; C. Cassius Longinus, the quæstor, and his other officers, advised Crassus to pause, but in vain. To as little effect did the Armenian prince Artavasdes, who came with six thousand horse, and promised many more, counsel him to march through Armenia, which was a hilly country, and adverse to cavalry, in which the Parthian strength lay: he replied that he would go through Mesopotamia, where he had left many brave Romans in garrison. The Armenian then retired, and Crassus passed the river at Zeugma (53); thunder roared, lightning flashed and other ominous signs, it is said, appeared; but they did not stop him. He marched along its left bank, his army consisting of seven legions, with nearly one thousand horse, and an equal number of light troops.

As no enemy appeared, Cassius advised to keep along the river till they should reach the nearest point to Seleucia; but an Arab emir named Abgarus, who had been on friendly terms with the Romans when Pompey was there, now came and joined Crassus, and assuring him that the Parthians were collecting their most valuable property with the intention of flying to Hyrcania and Scythia, urged him to push on without delay. But all he said was false; he was come to lead the Romans to their ruin: the Parthian king Orodes had himself invaded Armenia, and his general Surenas^[109] was at hand with a large army. Crassus, however, giving credit to the Arab, left the river and entered on the extensive plain of Mesopotamia. Cassius gave over his remonstrances; the Arab led them on, and when he had brought them to the place arranged with the Parthians, he rode off, assuring Crassus that it was for his advantage. That very day a party of horse, sent to reconnoitre, fell in with the enemy, and were nearly all killed. This intelligence perplexed Crassus, but he resolved to proceed; he drew up his infantry in a square, with the horse on the flanks, and moved on. They reached a stream, where his officers wished him to halt for the night, and try to gain further intelligence; but he would go on, and at length they came in sight of the enemy. Surenas however kept the greater part of his troops out of view, and those who appeared had their armour covered to deceive the Romans. At a signal the Parthians began to beat their numerous kettledrums; and when they thought this unusual sound had thrilled the hearts of the Romans, they flung off their coverings and appeared glittering in helms and corslets of steel, and pouring round the solid mass of the Romans, showered their arrows on them, numerous camels being at hand laden with arrows to give them fresh supplies of their missiles. The light troops vainly essayed to drive them off; Crassus then desired his son to charge with his horse and light troops. The Parthians feigning flight drew them on, and when they were at a sufficient distance from the main army turned and assailed them, riding round and round so as to raise such a dust that the Romans could not see to defend themselves.

When numbers had been slain, P. Crassus broke through with a part of the horse, and reached an eminence, but the persevering foe gave them no rest. Two Greeks of that country proposed to P. Crassus to escape with them in the night, but he generously refused to quit his comrades. Being wounded, he made his shield-bearer kill him; the Parthians slew all that were with him but five hundred, and cutting off his head set it on a spear.

Crassus was advancing to the relief of his son when the rolling of the Parthians' drums was heard, and they came exhibiting the head of that unfortunate youth. The spirits of the Romans were now quite depressed; Crassus vainly tried to rouse them, crying that the loss was his not theirs, and urging them to renewed exertions. The Parthians after harassing them through the day retired for the night. Cassius and the legate Octavius, having tried, but in vain, to rouse their general, who was now sunk in despair, called a council of the officers, and it was resolved to attempt a retreat that night. The wailing of the sick and wounded who were left behind informed the Parthians, but it not being their custom to fight at night they remained quiet till morning. They then took the deserted camp, and slaughtered four thousand men whom they found in it, and pursuing after the army cut off the stragglers. The Romans reached the town of Carrhæ, in which they had a garrison. Surenas to keep them from retreat, made feigned proposals of peace; but finding that he was only deceiving them, they set out in the night under the guidance of a Greek: their guide however proved treacherous, and led them into a place full of marshes and ditches. Cassius, who suspected him, turned back and made his escape with five hundred horse; Octavius with five thousand men, having had faithful guides, reached a secure position among the hills, and he brought off Crassus, who was assailed in the marshes by the Parthians. Surenas fearing lest they should get away in the night, let go some of his prisoners, in whose hearing he had caused to be said that the king did not wish to carry things to extremities; and he himself and his officers rode to the hill with unbent bows, and holding out his hand he called on Crassus to come down and meet him. The soldiers were overjoyed, but Crassus put no faith in him; at length when his men, having urged and pressed, began to abuse and threaten him, he took his officers to witness of the force that was put on him, and went down accompanied by Octavius and some of his other officers. The Parthians at first affected to receive him with respect, and a horse was brought for him to mount; but they soon contrived to pick a quarrel, and killed him and all who were with him. The head and right hand of Crassus were cut off; quarter was then offered to the troops, and most of them surrendered. The loss of the Romans in this unjust and ill-fated expedition was twenty thousand men slain and ten thousand captured. The

Parthians, it is said, poured molten gold down the throat of Crassus, in reproach of his insatiable avarice. They afterwards made irruptions into Syria, which Cassius gallantly defended against them.

When the news of Crassus' defeat and death reached Rome, the concern felt for the loss of the army was considerable, that of himself was thought nothing of; yet this was in reality the greater loss of the two, for he alone had the power to keep Cæsar and Pompey at unity, as Julia, whom they both agreed in loving as she deserved, and who was a bond of union between them, had lately died in childbirth, to the grief not merely of her father and husband, but of the whole Roman people (54).

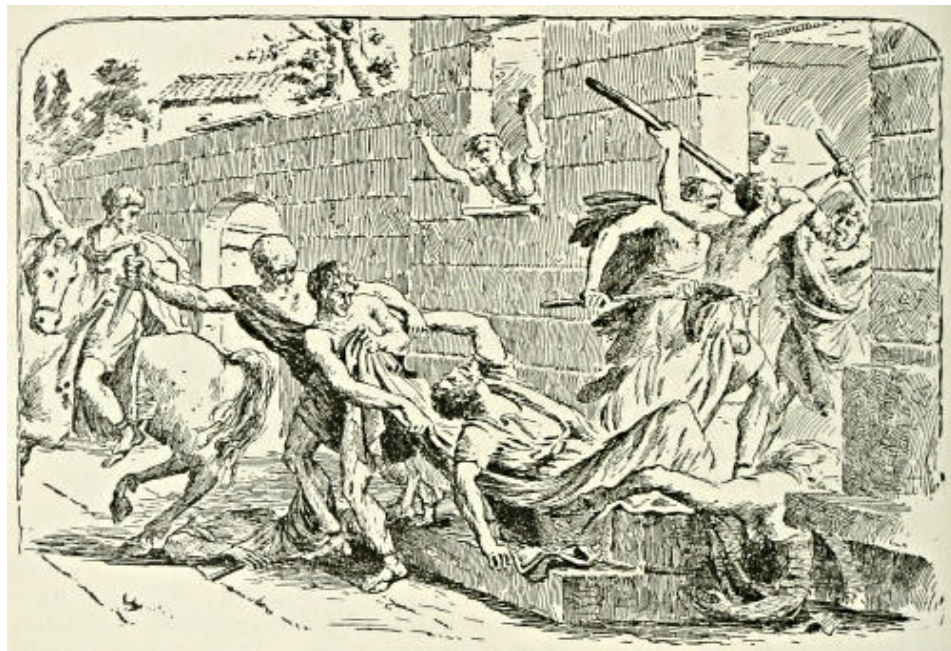
ANARCHY AT ROME

[54-52 B.C.]

Affairs at Rome were now indeed in a state of perfect anarchy; violence and bribery were the only modes of obtaining office. In 54 all the candidates for the consulate were prosecuted for bribery; and C. Memmius, one of them, actually read in the senate a written agreement between himself and a fellow-candidate Cn. Domitius Calvinus on one part, and the actual consuls L. Domitius Ahenobarbus and App. Claudius on the other, by which the two former bound themselves, if elected through the consul's influence, to pay them each forty thousand sesterces unless they produced three augurs to declare that they were present when the curiate law was passed, and two consulars to aver that they were present when the consular provinces were arranged, which would give the ex-consuls the provinces they desired—all utterly false. By these and other delays the elections were kept off for seven months, Pompey looking quietly on in hopes that they would be obliged to create him dictator. Many spoke of it as the only remedy; and though they did not name, they described him very exactly as the fittest person; but Sulla had made the name of dictator too odious; others talked of consular military tribunes. Cn. Domitius Calvinus and M. Valerius Messalla were, however, chosen consuls at the end of the seven months.

The next year (52) T. Annius Milo, P. Plautius Hypsæus, and Q. Metellus Scipio were the candidates, and they all bribed to a most enormous extent. Clodius stood for the prætorship, and between his retainers and those of Milo and the other candidates, scenes of tumult and bloodshed occurred in the streets almost daily. Pompey and the tribune T. Munatius Plancus purposely kept the patricians from meeting to appoint an interrex to hold the elections. On the 20th

of January, Milo, who was dictator of his native place Lanuvium, had occasion to go thither to appoint a chief priest of Juno Sospita, the patron deity of the place; Clodius, who had been to harangue the magistrates at Aricia, where he had a great deal of influence, happened to be returning just at this time, and he met Milo near Bovillæ. Milo was in his carriage with his wife, the daughter of Sulla, and a friend, and he was attended by a numerous train, among which were some of his gladiators; Clodius was on horseback, with thirty armed bravos, who always accompanied him. Two of Milo's people followed those of Clodius and began to quarrel with them, and when he turned round to menace them, one of them ran a long sword through his shoulder. The tumult then became general; Clodius had been conveyed into an adjoining tavern, but Milo forced it, dragged him out, and killed him outright; his dead body was thrown on the highway, where it lay till a senator, who was returning to the city from his country-seat, took it up and brought it with him in his litter. It was laid in the hall of Clodius' own house, and his wife Fulvia with floods of tears showed his bleeding wounds to the rabble who repaired thither, and excited them to vengeance. Next morning Clodius' friends, the tribunes Q. Pompeius Rufus and T. Munatius Plancus, exposed it on the rostra, and harangued the populace over it. The mob snatched it up, carried it into the senate house, and making a pyre of the seats burned it and the house together. They then ran to Milo's house intending to burn it also, but they were beaten off by his slaves.



DEATH OF CLODIUS

(After Mirys)

The excesses committed by the mob having injured the Clodian cause, Milo ventured to return to the city, and to go on bribing and canvassing for the consulate. The tribune M. Cælius, whom he had gained, having filled the Forum with a purchased mob, led Milo thither to defend himself, in hopes of having him acquitted by them as by the people; but the adverse tribunes armed their partisans and fell on and scattered them. ^[110] Milo and Cælius were forced to fly in the dress of slaves; the rabble killed, wounded, and robbed without distinction; houses were broken open, plundered, and burned, under the pretext of seeking for the friends of Milo. These excesses lasted for several days, and the senate at length decreed that the interrex, the tribunes of the people, and Pompey, should see that the republic sustained no injury; and finally, as there seemed an absolute necessity for some extraordinary power, to avoid a dictatorship and to exclude Cæsar (who was spoken of) from the consulate, it was resolved, on the motion of Bibulus, with the assent of Cato, to make Pompey sole consul.

POMPEY SOLE CONSUL

[52 B.C.]

Pompey (who was resolved to crush Milo) as soon as he entered on his office (February 25), had two laws passed, one against violence, the other against bribery. He ordained that trials should last only four days, the first three to be devoted to the hearing of evidence, the last to the pleadings of the parties; he assigned the number of pleaders in a cause, giving two hours to the prosecutor to speak, three to the accused to reply, and forbidding any one to come forward to praise the accused. To insure prosecutions for bribery, he promised a pardon to any one found guilty of it if he convicted two others of an equal or lesser degree or one of a greater. He directed that a consular chosen by the people, and not the prætor as in ordinary cases, should preside in the trials for violence.

These preparations being made, the prosecution of Milo commenced. L. Domitius Ahenobarbus, the consul of the year 54, was chosen president by the people, and a jury, one of the most respectable we are assured that Rome ever beheld, was appointed. Milo and Cælius had recourse to every means to prevent a conviction. The former was charged with having seized five persons who had witnessed the murder of Clodius, and kept them in close custody for two months at his country-seat; the latter with taking by force one of Milo's slaves out of the house of one of the triumviri capitales. Cicero was to plead Milo's cause. On the first day the tumult was so great that the lives of Pompey and his

lictors were endangered; soldiers were therefore placed in various parts of the city and Forum, with orders to strike with the flat of their swords any that were making a noise; but this not sufficing, they were obliged to wound and even kill several persons. When Cicero rose to speak on the fourth day, he was received with a loud shout of defiance by the Clodian faction; and the sight of Pompey sitting surrounded by his officers, and the view of the temples and places around the Forum filled with armed men, so daunted him, that he pleaded with far less than his usual ability. Milo was found guilty, and he went into exile at Massilia.

Other offenders were then prosecuted. P. Plautius Hypsæus was found guilty of bribery, as also were P. Sextius, M. Scaurus, and C. Memmius. This last then accused, under the late law, Pompey's own father-in-law, Q. Metellus Scipio. [111] Pompey was weak enough to become a suppliant for him, and he sent for the three hundred and sixty persons who were on the jury panel, and besought them to aid him. When Memmius saw Scipio come into the Forum surrounded by those who would have to try him, he gave over the prosecution, lamenting the ruin of the constitution. Rufus and Plancus when out of office were prosecuted for the burning of the senate house, and Pompey again was weak enough to break his own law by sending a written eulogy of Plancus into the court. Cato, who was one of the jury, said that Pompey must not be allowed to violate his own law. Plancus then challenged Cato; but it did not avail him, as the others found him guilty.

Pompey, having acted for some time as sole consul, made his father-in-law his colleague for the remaining five months of his consulate. He caused his own command in Spain to be extended for another term of five years, but he governed his province, as before, by legates; and to soothe Cæsar, he had a law passed to enable him to sue for the consulate without coming to Rome in person. To strengthen the laws against bribery, it was enacted that no consul or prætor should obtain a province till he had been five years out of office; and to provide for the next five years, it was decreed that the consulars and prætorians who had not had provinces should now take them. Cicero, therefore, much against his will, was obliged to go as proconsul to Cilicia; his government of it was a model of justice and disinterestedness, and proves how he would have acted had he been free at all times to follow his own inclinations, and we may add, if less under the influence of vain glory and ambition. We must now turn our regards to Cæsar and his exploits in Gaul.

While such was the condition of affairs at Rome, this great man was acquiring the wealth and forming the army by means of which he hoped to

become master of his country. He has himself left a narrative of his Gallic campaigns, which, though of course partial, is almost our only authority for this part of the Roman history.

THE GALLIC WARS (58-50 B.C.)

[58-52 B.C.]

Fortune favoured Cæsar by furnishing him with an early occasion of war, though his province was tranquil when he received it (58).^[112] The Helvetii, a people of Gallic race, who dwelt from Mount Jura far into the Alps, resolved to leave their mountains and seek new seats in Gaul; and having burned all their towns and villages, they set forth with wives and children to the number of 368,000 souls. As their easier way lay through the Roman province, they sent, on hearing that Cæsar [who marched from Rome in eight days] had broken down the bridge over the Rhone at Geneva, and was making preparations to oppose them, to ask a free passage, promising to do no injury. Cæsar, who had not all his troops with him, gave an evasive answer, and meantime ran a ditch and rampart from the Lake of Geneva to Mount Jura. The Helvetii then turned, and going by Mount Jura entered the country of the Sequani and Ædui; but Cæsar fell on them as they were passing the Arar (Saone), and defeated them; he afterwards routed them again, and finally compelled them to return to their own country, lest the Germans should occupy it.

The Ædui, who were ancient allies of Rome, then complained to Cæsar that their neighbours, the Arverni and Sequani, having in their disputes with them invited a German chief named Ariovistus (*Heer-fürst*, ‘Army-prince’?) to their aid, he had been joined by large bodies of his countrymen, and had occupied a great part of the land of the Sequani, and now menaced the freedom of all the surrounding peoples; their only hopes, they added, lay in the Romans. This invitation was, as they knew, precisely what Cæsar desired; he promised aid, and as in his consulate he had been the means of having Ariovistus acknowledged as a king and friend of the Roman people, and he now wished to put him in the wrong, he sent to require him to meet him at a certain place. The German haughtily replied, that if Cæsar wanted to speak with him he should come to him.^[113] Cæsar, further to irritate him, desired him to give back the hostages of the allies of Rome, and not to enter their lands or to bring over any more auxiliaries from Germany. Ariovistus replied by seizing on the Sequanian town of Vesontio (Besançon). On learning that the powerful nation of the Suevi was sending troops to Ariovistus, Cæsar resolved to march against him at once.

But his soldiers were daunted at what they heard of the strength and ferocity of the Germans, till he made a speech to reassure them, in which he declared that with the tenth legion alone he would prosecute the war. At the desire of Ariovistus a conference was held, at which however nothing could be arranged; and while it was going on, news (true or false) was brought to Cæsar that the Germans had attacked the Romans: this broke off the conference; Cæsar refused to renew it; and a battle taking place, Ariovistus was defeated and forced to recross the Rhine.

Cæsar then retired for the winter to Cisalpine Gaul under the pretext of regulating the province, but in reality to keep up his communication with Rome and acquire new friends there. As he had left his troops in the country of the Sequani, the Belgæ, a powerful people, who were a mixture of Germans and Gauls, and dwelt in the northeast of Gaul, fearing for their independence, resolved to take up arms. The Germans on this side of the Rhine joined them, and they invaded (57) the states in alliance with the Romans. Cæsar lost no time in repairing to the defence of his allies; and the Belgæ finding that the Ædui had invaded their country, and moreover being in want of supplies, returned home; but they were fallen on and defeated with great loss by a division of Cæsar's troops, and he himself entering their country took the town of Noviodunum (Noyon), and obliged the Suessiones (Soissons), Bellovaci (Beauvais), and Ambiani (Amiens) to sue for peace. He then entered the territory of the Nervians (Hainault). This people, the bravest of the Belgæ, attacked him by surprise, routed his cavalry, and killed all the centurions of two legions; the camps on both sides were taken, and Cæsar himself was for some time surrounded with his guards on a hill; but victory was finally won by the Romans.^c

THE BATTLE WITH THE NERVII

[57 B.C.]

Here is Cæsar's own account of this famous battle; the narrator, as always, speaking of himself in the third person:

Upon the territories of the Ambiani bordered the Nervii, concerning whose character and customs when Cæsar inquired he received the following information: that "there was no access for merchants to them; that they suffered no wine and other things tending to luxury to be imported; because they thought that by their use the mind is enervated and the courage impaired: that they were a savage people and of great bravery; that they upbraided and condemned the

rest of the Belgæ who had surrendered themselves to the Roman people; that they openly declared they would neither send ambassadors, nor accept any condition of peace.”

After he had made three days’ march through their territories, he discovered from some prisoners that the river Sambre was not more than ten miles from his camp; that all the Nervii had stationed themselves on the other side of that river, and together with the Atrebatæ and the Veromandui, their neighbours, were there awaiting the arrival of the Romans—for they had persuaded both these nations to try the same fortune of war (as themselves); that the forces of the Aduatuci were also expected by them, and were on their march; that they had put their women, and those who through age appeared useless for war, in a place to which there was no approach for an army, on account of the marshes.

Having learned these things, he sent forward scouts and centurions to choose a convenient place for the camp. And as a great many of the surrounding Belgæ and other Gauls, following Cæsar, marched with him, some of these, as was afterwards learned from the prisoners, having accurately observed, during those days, the army’s method of marching, went by night to the Nervii, and informed them that a great number of baggage trains passed between the several legions, and that there would be no difficulty, when the first legion had come into the camp, and the other legions were at a great distance, to attack that legion while under baggage, which being routed, and the baggage train seized, it would come to pass that the other legions would not dare to stand their ground. It added weight also to the advice of those who reported that circumstance, that the Nervii, from early times, because they were weak in cavalry—for not even at this time do they attend to it, but accomplish by their infantry whatever they can—in order that they might the more easily obstruct the cavalry of their neighbours if they came upon them for the purpose of plundering, having cut young trees, and bent them, by means of their numerous branches (extending) on to the sides, and the quick-briers and thorns springing up between them, had made these hedges present a fortification like a wall, through which it was not only impossible to enter, but even to penetrate with the eye. Since (therefore) the march of our army would be obstructed by these things, the Nervii thought that the advice ought not to be neglected by them.

The nature of the ground which our men had chosen for the camp was this: a hill, declining evenly from the top, extended to the river Sambre, which we have mentioned above; from this river there arose a (second) hill of like ascent, on the other side and opposite to the former, and open for about two hundred paces at the lower part; but in the upper part woody (so much so) that it was not

easy to see through it into the interior. Within those woods the enemy kept themselves in concealment; a few troops of horse-soldiers appeared on the open ground, along the river.

Cæsar, having sent his cavalry on before, followed close after them with all his forces; but the plan and order of the march were different from that which the Belgæ had reported to the Nervii. For as he was approaching the enemy, Cæsar, according to his custom, led on as the van six legions unencumbered by baggage; behind them he had placed the baggage trains of the whole army; then the two legions which had been last raised closed the rear, and were a guard for the baggage train. Our horse, with the slingers and archers, having passed the river, commenced action with the cavalry of the enemy. While they from time to time betook themselves into the woods to their companions, and again made an assault out of the wood upon our men, who did not dare to follow them in their retreat further than the limit to which the plain and open parts extended, in the meantime the six legions which had arrived first, having measured out the work, began to fortify the camp. When the first part of the baggage train of our army was seen by those who lay hid in the woods, which had been agreed on among them as the time for commencing action, as soon as they had arranged their line of battle and formed their ranks within the woods, and had encouraged one another, they rushed out suddenly with all their forces and made an attack upon our horse. The latter being easily routed and thrown into confusion, the Nervii ran down to the river with such incredible speed that they seemed to be in the woods, the river, and close upon us almost at the same time. And with the same speed they hastened up the hill to our camp and to those who were employed in the works.

Cæsar had everything to do at one time: the standard to be displayed, which was the sign when it was necessary to run to arms; the signal to be given by the trumpet; the soldiers to be called off from the works; those who had proceeded some distance for the purpose of seeking materials for the rampart to be summoned; the order of battle to be formed; the soldiers to be encouraged; the watchword to be given. A great part of these arrangements was prevented by the shortness of time and the sudden approach and charge of the enemy. Under these difficulties two things proved of advantage: first, the skill and experience of the soldiers, because, having been trained by former engagements, they could suggest to themselves what ought to be done, as conveniently as receive information from others; and, secondly, that Cæsar had forbidden his several lieutenants to depart from the works and their respective legions, before the camp was fortified. These, on account of the near approach and the speed of the



A GALLIC CHIEF

enemy, did not then wait for any command from Cæsar, but of themselves executed whatever appeared proper.

Cæsar, having given the necessary orders, hastened to and fro into whatever quarter fortune carried him, to animate the troops, and came to the tenth legion. Having encouraged the soldiers with no further speech than that “they should keep up the remembrance of their wonted valour, and not be confused in mind, but valiantly sustain the assault of the enemy”; as the latter were not farther from them than the distance to which a dart could be cast, he gave the signal for commencing battle. And having gone to another quarter for the purpose of encouraging (the soldiers) he finds them fighting. Such was the shortness of the time, and so determined was the mind of the enemy on fighting, that time was wanting not only for affixing the military insignia, but even for putting on the helmets

and drawing off the covers from the shields. To whatever part any one by chance came from the works (in which he had been employed), and whatever standards he saw first, at these he stood, lest in seeking his own company he should lose the time for fighting.

The army having been marshalled, rather as the nature of the ground and the declivity of the hill and the exigency of the time, than as the method and order of military matters required; whilst the legions in the different places were withstanding the enemy, some in one quarter, some in another, and the view was obstructed by the very thick hedges intervening, as we have before remarked, neither could proper reserves be posted, nor could the necessary measures be taken in each part, nor could all the commands be issued by one person. Therefore, in such an unfavourable state of affairs, various events of fortune followed.

The soldiers of the ninth and tenth legions, as they had been stationed on the left part of the army, casting their weapons, speedily drove the Atrebatæ, for that division had been opposed to them, who were breathless with running and fatigue, and worn out with wounds, from the higher ground into the river; and following them as they were endeavouring to pass it, slew with their swords a great part of them while impeded (therein). They themselves did not hesitate to

pass the river; and having advanced to a disadvantageous place, when the battle was renewed, they (nevertheless) again put to flight the enemy, who had returned and were opposing them. In like manner, in another quarter two different legions, the eleventh and the eighth, having routed the Veromandui, with whom they had engaged, were fighting from the higher ground upon the very banks of the river. But, almost the whole camp on the front and on the left side being then exposed, since the twelfth legion was posted in the right wing, and the seventh at no great distance from it, all the Nervii, in a very close body, with Boduognatus, who held the chief command, as their leader, hastened towards that place; and part of them began to surround the legions on their unprotected flank, part to make for the highest point of the encampment.

At the same time our horsemen, and light-armed infantry, who had been with those, who, as I have related, were routed by the first assault of the enemy, as they were betaking themselves into the camp, met the enemy face to face, and again sought flight into another quarter; and the camp followers who from the Decuman Gate, and from the highest ridge of the hill had seen our men pass the river as victors, when, after going out for the purposes of plundering, they looked back and saw the enemy parading in our camp, committed themselves precipitately to flight; at the same time there arose the cry and shout of those who came with the baggage train; and they, (affrighted), were carried some one way, some another. By all these circumstances the cavalry of the Treviri were much alarmed, (whose reputation for courage is extraordinary among the Gauls, and who had come to Cæsar, being sent by their state as auxiliaries) and, when they saw our camp filled with a large number of the enemy, the legions hard pressed and almost held surrounded, the camp retainers, horsemen, slingers, and Numidians fleeing on all sides divided and scattered, they, despairing of our affairs, hastened home, and related to their state that the Romans were routed and conquered, (and) that the enemy were in possession of their camp and baggage train.

Cæsar proceeded, after encouraging the tenth legion, to the right wing; where he perceived that his men were hard pressed, and that in consequence of the standards of the twelfth legion being collected together in one place, the crowded soldiers were a hindrance to themselves in the fight; that all the centurions of the fourth cohort were slain, and the standard-bearer killed, the standard itself lost, almost all the centurions of the other cohorts either wounded or slain, and among them the chief centurion of the legion. P. Sextius Baculus, a very valiant man, who was so exhausted by many and severe wounds, that he was already unable to support himself, he likewise perceived that the rest were

slackening their efforts, and that some, deserted by those in the rear, were retiring from the battle and avoiding the weapons; that the enemy (on the other hand) though advancing from the lower ground, were not relaxing in front, and were (at the same time) pressing hard on both flanks; he also perceived that the affair was at a crisis, and that there was not any reserve which could be brought up; having therefore snatched a shield from one of the soldiers in the rear, for he himself had come without a shield, he advanced to the front of the line, and addressing the centurions by name, and encouraging the rest of the soldiers, he ordered them to carry forward the standards, and extend the companies, that they might the more easily use their swords. On his arrival, as hope was brought to the soldiers and their courage restored, whilst every one for his own part, in the sight of his general, desired to exert his utmost energy, the impetuosity of the enemy was a little checked.

Cæsar, when he perceived that the seventh legion, which stood close by him, was also hard pressed by the enemy, directed the tribunes of the soldiers to effect a junction of the legions gradually, and make their charge upon the enemy with a double front; which having been done, since they brought assistance the one to the other, nor feared lest their rear should be surrounded by the enemy, they began to stand their ground more boldly, and to fight more courageously. In the mean time, the soldiers of the two legions which had been in the rear of the army, as a guard for the baggage train, upon the battle being reported to them, quickened their pace, and were seen by the enemy on the top of the hill; and Titus Labienus, having gained possession of the camp of the enemy, and observed from the higher ground what was going on in our camp, sent the tenth legion as a relief to our men, who, when they had learned from the flight of the horse and the sutlers in what position the affair was, and in how great danger the camp and the legion and the commander were involved, left undone nothing (which tended) to despatch.

By their arrival, so great a change of matters was made, that our men, even those who had fallen down exhausted with wounds, leaned on their shields, and renewed the fight: then the camp retainers, though unarmed, seeing the enemy completely dismayed, attacked (them though) armed; the horsemen too, that they might by their valour blot out the disgrace of their flight, thrust themselves before the legionary soldiers in all parts of the battle. But the enemy, even in the last hope of safety, displayed such great courage that when the foremost of them had fallen, the next stood upon them prostrate, and fought from their bodies; when these were overthrown, and their corpses heaped up together, those who survived cast their weapons against our men (thence) as from a mound, and

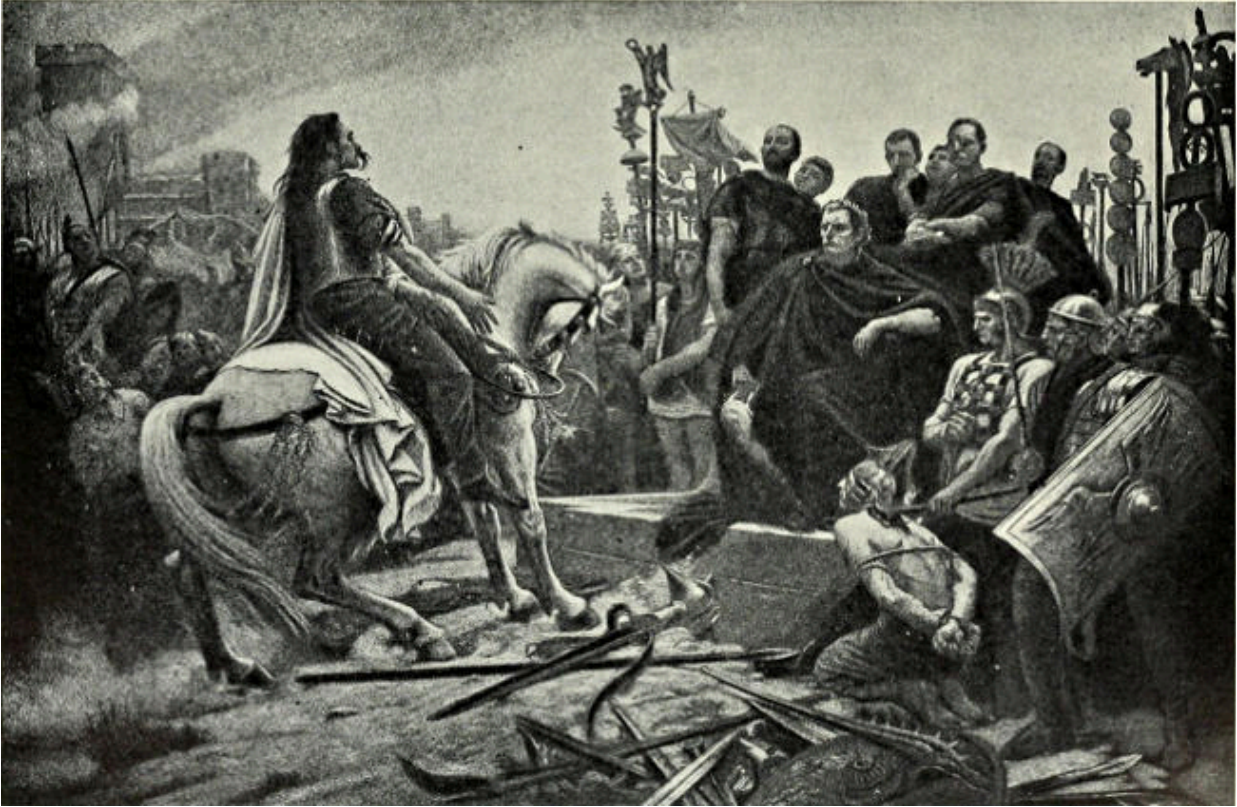
returned our darts which had fallen short between (the armies); so that it ought not to be concluded that men of such great courage had injudiciously dared to pass a very broad river, ascend very high banks, and come up to a very disadvantageous place; since their greatness of spirit had rendered these actions easy, although in themselves very difficult.

[57-56 B.C.]

This battle being ended, and the nation and name of the Nervii being almost reduced to annihilation, their old men, whom together with the boys and women we have stated to have been collected together in the fenny places and marshes, on this battle having been reported to them, since they were convinced that nothing was an obstacle to the conquerors, and nothing safe to the conquered, sent ambassadors to Cæsar by the consent of all who remained, and surrendered themselves to him; and in recounting the calamity of their state, said that their senators were reduced from six hundred to three; that from sixty thousand men they (were reduced) to scarcely five hundred who could bear arms; whom Cæsar, that he might appear to use compassion towards the wretched and the suppliant, most carefully spared; and ordered them to enjoy their own territories and towns, and commanded their neighbours that they should restrain themselves and their dependents from offering injury or outrage (to them).^d

The Aduatici, when they saw the military machines advanced against their walls, submitted; but they soon resumed their arms, and Cæsar took and plundered the town, and sold fifty-three thousand of the inhabitants. Cæsar's legate, P. Crassus, who (we are not told why) had led a legion against the Veneti (Vannes) and other neighbouring peoples on the ocean, now sent to say that they had submitted. The legions were then placed for the winter in the country of the Carnutes (Chartres), Andecavi (Anjou), and Turones (Touraine), and Cæsar returned to Italy. On the motion of Cicero the senate decreed a supplication of fifteen days for these victories—the longest ever as yet decreed.

During the winter, P. Crassus, who was quartered with the seventh legion in the country of the Andecavi, being in want of corn, sent some of his officers in quest of supplies to the Veneti and the adjoining peoples. The Veneti however detained the envoys in order to get back their hostages in exchange, and the rest followed their example. Cæsar, when he heard of this, sent directions to have ships of war built on the Liger (Loire), and ordered sailors and pilots to repair thither from the province, and in the spring (56) he set out to take the command in person. The Veneti were a seafaring people, their towns mostly lay on capes where they could not easily be attacked, and their navy was numerous.^e



VERCINGETORIX BEFORE CÆSAR

THE SEA FIGHT WITH THE VENETI

Cæsar, after taking many of their towns, perceiving that so much labour was spent in vain and that the flight of the enemy could not be prevented on the capture of their towns, and that injury could not be done them, he determined to wait for his fleet. As soon as it came up and was first seen by the enemy, about 220 of their ships, fully equipped and appointed with every kind of (naval) implement, sailed forth from the harbour, and drew up opposite to ours; nor did it appear clear to Brutus, who commanded the fleet, or to the tribunes of the soldiers and the centurions, to whom the several ships were assigned, what to do, or what system of tactics to adopt; for they knew that damage could not be done by their beaks; and that, although turrets were built (on their decks), yet the height of the stems of the barbarian ships exceeded these; so that weapons could not be cast up from (our) lower position with sufficient effect, and those cast by the Gauls fell the more forcibly upon us. One thing provided by our men was of great service, viz., sharp hooks inserted into and fastened upon poles, of a form not unlike the hooks used in attacking town walls. When the ropes which fastened the sail yards to the masts were caught by them and pulled, and our

vessel vigorously impelled with the oars, they (the ropes) were severed; and when they were cut away, the yards necessarily fell down; so that as all the hope of the Gallic vessels depended on their sails and rigging, upon these being cut away, the entire management of the ships was taken from them at the same time. The rest of the contest depended on courage; in which our men decidedly had the advantage; and the more so, because the whole action was carried on in the sight of Cæsar and the entire army; so that no act, a little more valiant than ordinary, could pass unobserved, for all the hills and higher grounds, from which there was a near prospect of the sea, were occupied by our army.

The sail yards (of the enemy) as we have said, being brought down, although two and (in some cases) three ships (of theirs) surrounded each one (of ours), the soldiers strove with the greatest energy to board the ships of the enemy; and, after the barbarians observed this taking place, as a great many of their ships were beaten, and as no relief for that evil could be discovered, they hastened to seek safety in flight. And, having now turned their vessels to that quarter in which the wind blew, so great a calm and lull suddenly arose, that they could not move out of their place, which circumstance, truly, was exceedingly opportune for finishing the business; for our men gave chase and took them one by one, so that very few out of all the number, (and those) by the intervention of night, arrived at the land, after the battle had lasted almost from the fourth hour till sunset.^d

The Veneti were forced to sue for peace, and as they had only detained his agents, Cæsar was mercifully content with putting their whole senate to death, and selling the people for slaves,—a characteristic exhibition of Roman clemency towards conquered “barbarians.”

[56-55 B.C.]

As the Morini and Menapii of the north coast (Picardy) had been in league with the Veneti, Cæsar invaded their country, which abounded in woods and marshes, but the approach of the wet season obliged him to retire. Having put his troops into winter quarters, he set out to look after his affairs in Italy. During this summer P. Crassus, who had been sent into Aquitaine to keep it quiet, or rather, as it would appear, to raise a war, routed the people named the Sotitates (Sos), forced their chief town to surrender, and defeated a large army of the adjoining peoples, and the Spaniards who had joined them. Shortly after he left Gaul to join his father in Syria, taking with him one thousand Gallic horse.

Tribes of Germans named Usipetes and Tencteri having crossed the Rhine and entered the Menapian country, Cæsar, fearing lest their presence might

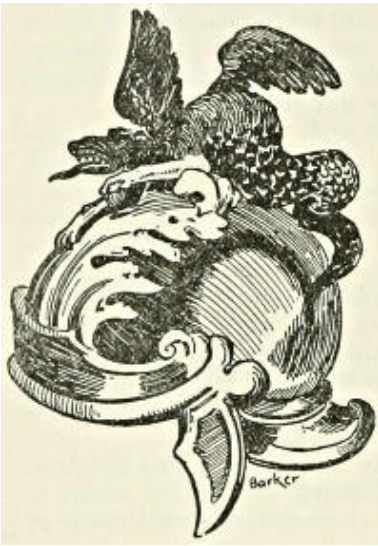
induce the Gauls to rise, hastened (55) to oppose them. Some negotiations took place between them, during which a body of eight hundred German horse fell on, and even put to flight, with a loss of seventy-four men, five thousand of Cæsar's Gallic cavalry; and they then had the audacity, as Cæsar represents it, to send an embassy, in which were all their principal men, to the Roman camp to justify themselves and to seek a truce.^c

THE MASSACRE OF THE GERMANS

[55 B.C.]

After this engagement, Cæsar considered that neither ought ambassadors to be received to audience, nor conditions be accepted by him from those who, after having sued for peace by way of stratagem and treachery, had made war without provocation. And to wait till the enemy's forces were augmented and their cavalry had returned, he concluded, would be the greatest madness; and knowing the fickleness of the Gauls, he felt how much influence the enemy had already acquired among them by this one skirmish. He (therefore) deemed that no time for concerting measures ought to be afforded them. After having resolved on these things and communicated his plans to his lieutenants and quæstor in order that he might not suffer any opportunity for engaging to escape him, a very seasonable event occurred, namely, that on the morning of the next day a large body of Germans, consisting of their princes and old men, came to the camp to him to practise the same treachery and dissimulation; but, as they asserted, for the purpose of acquitting themselves for having engaged in a skirmish the day before, contrary to what had been agreed and to what, indeed, they themselves had requested; and also if they could by any means obtain a truce by deceiving him. Cæsar, rejoicing that they had fallen into his power, ordered them to be detained. He then drew all his forces out of the camp, and commanded the cavalry, because he thought they were intimidated by the late skirmish, to follow in the rear.

Having marshalled his army in three lines, and in a short time performed a march of eight miles, he arrived at the camp of the enemy before the Germans could perceive what was going on; who being suddenly alarmed by all the circumstances, both by the speediness of our arrival and the absence of their own officers, as time was afforded neither for concerting measures nor for seizing their arms, are perplexed as to whether it would be better to lead out their forces against the enemy, or to defend their camp, or seek their safety by flight. Their consternation being made apparent by their noise and tumult, our



ROMAN HELMET

soldiers, excited by the treachery of the preceding day, rushed into the camp; such of them as could readily get their arms for a short time withstood our men, and gave battle among their carts and baggage waggons; but the rest of the people, (consisting) of boys and women (for they had left their country and crossed the Rhine with all their families) began to fly in all directions; in pursuit of whom Cæsar sent the cavalry.

The Germans, when upon hearing a noise behind them (they looked and) saw that their families were being slain, throwing away their arms and abandoning their standards, fled out of the camp, and when they had arrived at the confluence of the Meuse and the Rhine, the survivors despairing of further escape, as a great number of their countrymen had been killed, threw themselves into the river and there perished, overcome by fear, fatigue, and the violence of the stream. Our soldiers, after the alarm of so great a war, for the number of the enemy amounted to 430,000 [including women and children], returned to their camp, all safe to a man, very few being even wounded. Cæsar granted those whom he had detained in the camp liberty of departing. They however, dreading revenge and torture from the Gauls, whose lands they had harassed, said that they desired to remain with him. Cæsar granted them permission.^d

Being resolved that Gaul should be all his own, Cæsar thought it would be well to show the Germans that their country too might be invaded. Accordingly, under the pretext of aiding the Ubii who had placed themselves under the protection of Rome against the Suevi, he threw a bridge over the Rhine, and having ravaged the lands of the Sugambri, who had retired to their woods, he entered the country of the Ubii; then hearing that the Suevi had collected all their forces in the centre of their territory, and waited there to give him battle, he returned to the Rhine, having, as he says, accomplished all he had proposed. This run (as we may term it) into Germany had occupied only eighteen days; and as there was a part of the summer remaining, he resolved to employ it in a similar inroad into the isle of Britain, whose people he asserts, but untruly, had been so audacious as to send aid to the Gauls when fighting for their independence against him: moreover, the invasion of unknown countries like Germany and Britain would tell to his advantage at Rome. He accordingly had

ships brought round from the Loire to the Morinian coast (Boulogne), and putting two legions on board he set sail at midnight. At nine next morning he reached the coast of Britain; but as the cliffs (Dover) were covered with armed men, he cast anchor, and in the evening sailed eight miles further down (Deal), and there effected a landing, though vigorously opposed by the natives. The Britons soon sent to sue for peace; and they had given some of the hostages demanded of them, when a spring tide having greatly damaged the Roman fleet, they resolved to try again the fate of war.^c

THE ROMAN ARMY MEETS THE BRITONS

On discovering these things the chiefs of Britain, who had come up after the battle was fought to perform those conditions which Cæsar had imposed, held a conference, when they perceived that cavalry, and ships, and corn were wanting to the Romans, and discovered the small number of our soldiers from the small extent of the camp (which, too, was on this account more limited than ordinary, because Cæsar had conveyed over his legions without baggage), and thought that the best plan was to renew the war, and cut off our men from corn and provisions and protract the affair till winter; because they felt confident that, if they were vanquished or cut off from a return, no one would afterwards pass over into Britain for the purpose of making war. Therefore, again entering into a conspiracy, they began to depart from the camp by degrees and secretly bring up their people from the country parts.

But Cæsar, although he had not as yet discovered their measures, yet, both from what had occurred to his ships, and from the circumstance that they had neglected to give the promised hostages, suspected that the thing would come to pass which really did happen. He therefore provided remedies against all contingencies; for he daily conveyed corn from the country parts into the camp, used the timber and brass of such ships as were most seriously damaged for repairing the rest, and ordered whatever things besides were necessary for this object to be brought to him from the continent. And thus, since that business was executed by the soldiers with the greatest energy, he effected that, after the loss of twelve ships, a voyage could be made well enough in the rest.

While these things are being transacted, one legion had been sent to forage, according to custom, and no suspicion of war had arisen as yet, and some of the people remained in the country parts, others went backwards and forwards to the camp, they who were on duty at the gates of the camp reported to Cæsar that a greater dust than was usual was seen in that direction in which the legion had

marched. Cæsar, suspecting that which was really the case, that some new enterprise was undertaken by the barbarians, ordered the two cohorts which were on duty to march into that quarter with him, and two other cohorts to relieve them on duty; the rest to be armed and follow him immediately. When he had advanced some little way from the camp, he saw that his men were overpowered by the enemy and scarcely able to stand their ground, and that, the legion being crowded together, weapons were being cast on them from all sides. For as all the corn was reaped in every part with the exception of one, the enemy, suspecting that our men would repair to that, had concealed themselves in the woods during the night.

Then attacking them suddenly, scattered as they were, and when they had laid aside their arms and were engaged in reaping, they killed a small number, threw the rest into confusion, and surrounded them with their cavalry and chariots.

Their mode of fighting with their chariots is this: firstly, they drive about in all directions and throw their weapons and generally break the ranks of the enemy with the very dread of their horses and the noise of their wheels; and when they have worked themselves in between the troops of horse, leap from their chariots and engage on foot. The charioteers in the meantime withdraw some little distance from the battle, and so place themselves with the chariots that, if their masters are overpowered by the number of the enemy, they may have a ready retreat to their own troops. Thus they display in battle the speed of horse, (together with) the firmness of infantry; and by daily practice and exercise attain to such expertness that they are accustomed, even on a declining and steep place, to check their horses at full speed, and manage and turn them in an instant and run along the pole, and stand on the yoke, and thence betake themselves with the greatest celerity to their chariots again.

Under these circumstances, our men being dismayed by the novelty of this mode of battle, Cæsar most seasonably brought assistance; for upon his arrival the enemy paused, and our men recovered from their fear; upon which, thinking the time unfavourable for provoking the enemy and coming to an action, he kept himself in his own quarter, and, a short time having intervened, drew back the legions into the camp. While these things are going on and all our men engaged, the rest of the Britons who were in the fields departed. Storms then set in for several successive days, which both confined our men to camp and hindered the enemy from attacking us. In the meantime the barbarians despatched messengers to all parts, and reported to their people the small number of our soldiers, and how good an opportunity was given for obtaining spoil and for liberating themselves forever, if they should only drive the

Romans from their camp. Having by these means speedily got together a large force of infantry and of cavalry, they came up to the camp.

[55-54 B.C.]

Although Cæsar anticipated that the same thing which had happened on former occasions would then occur—that, if the enemy were routed, they would escape from danger by their speed; still, having got about thirty horse, which Commius the Atrebatian [whom Cæsar had made a chief], had brought over with him from Gaul, he drew up the legions in order of battle before the camp. When the action commenced, the enemy were unable to sustain the attack of our men long, and turned their backs; our men pursued them as far as their speed and strength permitted, and slew a great number of them; then, having destroyed and burned everything far and wide, they retreated to their camp.

The same day, ambassadors sent by the enemy came to Cæsar to negotiate a peace. Cæsar doubled the number of hostages which he had before demanded; and ordered that they should be brought over to the continent, because, since the time of the equinox was near, he did not consider that, with his ships out of repair, the voyage ought to be deferred till winter. Having met with favourable weather, he set sail a little after midnight, and all his fleet arrived safe at the continent, except two of the ships of burden which could not make the same port which the other ships did, and were carried a little lower down.

When our soldiers, about three hundred in number, had been drawn out of these two ships, and were marching to the camp, the Morini, whom Cæsar, when setting forth for Britain, had left in a state of peace, excited by the hope of spoil, at first surrounded them with a small number of men, and ordered them to lay down their arms, if they did not wish to be slain; afterwards however, when they, forming a circle, stood on their defence, a shout was raised and about six thousand of the enemy soon assembled; which being reported, Cæsar sent all the cavalry in the camp as a relief to his men. In the meantime our soldiers sustained the attack of the enemy, and fought most valiantly for more than four hours, and, receiving but few wounds themselves, slew several of them. But after our cavalry came in sight, the enemy, throwing away their arms, turned their backs, and a great number of them were killed.

The day following Cæsar sent Labienus, his lieutenant, with those legions which he had brought back from Britain, against the Morini, who had revolted; who, as they had no place to which they might retreat, on account of the drying up of their marshes (which they had availed themselves of as a place of refuge the preceding year), almost all fell into the power of Labienus. In the meantime

Cæsar's lieutenants, Q. Titurius and L. Cotta, who had led the legions into the territories of the Menapii, having laid waste all their lands, cut down their corn and burned their houses, returned to Cæsar because the Menapii had all concealed themselves in their thickest woods. Cæsar fixed the winter quarters of all the legions amongst the Belgæ. Thither only two British states sent hostages; the rest omitted to do so. For these successes, a thanksgiving of twenty days was decreed by the senate upon receiving Cæsar's letter.^d

As only two of the British states sent the hostages, Cæsar resolved to make this a pretext for a second invasion of their island. When, therefore, he was setting out as usual for Italy, he directed his legates to repair the old and build new ships; and on his return in the summer (54) he found a fleet of twenty-eight long ships and six hundred transports ready. He embarked with five legions and two thousand Gallic horse, and landed at the same place as before. The Britons retired to the hills; and Cæsar, having left some troops to guard his camp, advanced in quest of them. He found them posted on the banks of a river (the Stour) about twelve miles inland. He attacked and drove them off; but next day, as he was preparing to advance into the country, he was recalled to the coast by tidings of the damage his fleet had sustained from a storm during the night. Having given the needful directions, he resumed his pursuit of the Britons, who laying aside their jealousies had given the supreme command to Cassivelaunus, king of the Trinobantes (Essex and Middlesex); but the Roman cavalry cut them up so dreadfully when they attacked the foragers, that they dispersed, and most of them went to their homes. Cæsar then advanced, and forcing the passage of the Thames invaded Cassivelaunus' kingdom, and took his chief town. Having received the submissions and hostages of various states, and regulated the tributes they should (but never did) pay, he then returned to Gaul, where it being now late in autumn, he put his troops into winter quarters. The Gauls however, who did not comprehend the right of Rome and Cæsar to a dominion over them, resolved to fall on the several Roman camps, and thus to free their country. The eighth legion and five cohorts that were quartered in the country of the Eburones (Liège) were cut to pieces by that people, led by their prince Ambiorix; the camp of the legate Q. Cicero was assailed by them and the Nervii, and only saved by the arrival of Cæsar in person, who gave the Gauls a total defeat. The country became now tolerably tranquil; but Cæsar, knowing that he should have a war in the spring, had three new legions raised in Italy, and he prevailed on Pompey to lend him one which he had just formed.

[54-52 B.C.]

The most remarkable event of the following year (53) was Cæsar's second passage of the Rhine to punish the

Germans for giving aid to their oppressed neighbours. He threw a bridge over the Rhine a little higher up the river than the former one, and advanced to attack the Suevi; but learning that they had assembled all their forces at the edge of a forest and there awaited him, he thought it advisable to retire, fearing, as he tells us, the want of corn in a country where there was so little tillage as in Germany. Having broken down the bridge on the German side, and left some cohorts to guard what remained standing, he then proceeded with all humanity to extirpate the Eburones, on account, he says, of their perfidy. He hunted them down everywhere; he burned their towns and villages, consumed or destroyed all their corn, and then left their country with the agreeable assurance that those who had escaped the sword would perish of famine. Then having executed *more majorum* a prince of the Senones, and thus tranquillised Gaul, as he terms it, he set out for Italy to look after his interests there.

The next year (52) there was a general rising of nearly all Gaul against the Roman dominion. The chief command was given to Vercingetorix, prince of the Arverni (Auvergne), a young man of great talent and valour.^[114] Cæsar immediately left Italy, and crossing Mount Cebenna (Cevennes), though the snow lay six feet deep on it, at the head of his raw levies entered and ravaged the country of the Arverni, who sent to recall Vercingetorix to their aid. Then leaving M. Brutus in command, Cæsar departed, and putting himself at the head of his cavalry, went with all speed to the country of the Lingones (Langres), and there assembled his legions. Vercingetorix then laid siege to Gergovia, the capital of the Boii: Cæsar hastened to its relief; on his way he took the towns of Vellaunodunum (Beaune) and Genabum (Orleans), and having crossed the Loire, laid siege to Noviodunum (Nouan), in the territory of the Bituriges (Berri), and on its surrender advanced against Avaricum (Bourges), the capital of the country and one of the finest cities in Gaul. Vercingetorix, who had raised the siege of Gergovia, held a council, in which he proposed, as the surest mode of distressing the Romans, to destroy all the towns and villages in the country. This advice being approved of, upwards of twenty towns were levelled; but, at the earnest entreaty of the Bituriges, Avaricum was exempted. A garrison was put into that town, and the Gallic army encamped at a moderate distance from it in order to impede the besiegers. It nevertheless was taken after a gallant defence; the Romans spared neither man, woman, nor child, and of forty thousand inhabitants eight hundred only escaped. Cæsar then prepared to lay siege to a town of the Arverni also named Gergovia; but though he defeated the Gallic armies, he was obliged to give up his design on account of the revolt of the Ædui. Some time after, Vercingetorix, having attacked Cæsar on his march, and being repulsed, threw himself into Alesia (Alise), a strong town in modern

Burgundy, built on a hill at the confluence of two rivers. The Gauls collected a large army and came to its relief; but their forces were defeated and the town was compelled to surrender. Vercingetorix was reserved to grace the conqueror's triumph, to whom a supplication of twenty days was decreed at Rome.

[52-50 B.C.]

In the next campaign (51) Cæsar and his legates subdued such states as still maintained their independence. As the people of Uxellodunum (in Querci) made an obstinate defence, Cæsar (his lenity being, as we are assured, so well known that none could charge him with cruelty), in order to deter the rest of the Gauls from insurrection and resistance, cut off the hands of all the men and then let them go that all might see them. The following year (50), as all Gaul was reduced to peace, he regulated its affairs, laying on an annual tribute; and having thus established his dominion over it, he prepared to impose his yoke on his own country.

The military talent displayed by Cæsar in the conquest of Gaul is not to be disputed, and it alone would suffice to place him in the first rank of generals. We are told that he took or received the submission of eight hundred towns, subdued three hundred nations; defeated in battle three millions of men, of whom one million was slain, and another taken and sold for slaves.^c

FOOTNOTES

[105] Cicero (ad Att. ii. 16) highly disapproved of this measure. He however expected that as the land would yield but 6000 lots, the people would be discontented.

[106] Because thunder, etc., would cause the assembly to be put off, and by this means bad measures, and good ones, too, had often been stopped.

[107] [In the year 56, Mithridates of Parthia, the successor of Phraates, declared war against King Artavasdes of Armenia, the son of Tigranes and the client of Rome. Thereupon Gabinius, the able and spirited governor of Syria, led the legions across the Euphrates. Meanwhile Mithridates had been overthrown in Parthia and his brother Orodes placed on the throne. Mithridates now made common cause with Rome and sought the camp of Gabinius. The latter was now ordered to restore the king of Egypt, but before leaving for Alexandria, he induced Mithridates to commence the war.]

[108] The Parthian capital was Ctesiphon, of which Seleucia, built on the opposite side of the Tigris, was a suburb.

[109] [The Surenas was the person next in rank to the king among the Parthians and the Persians.]

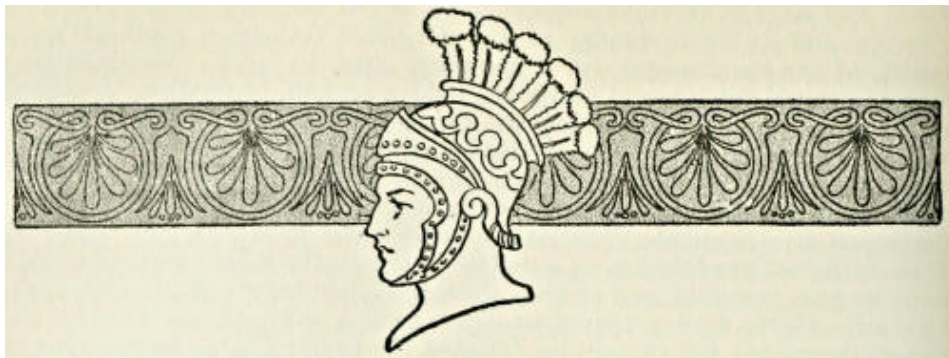
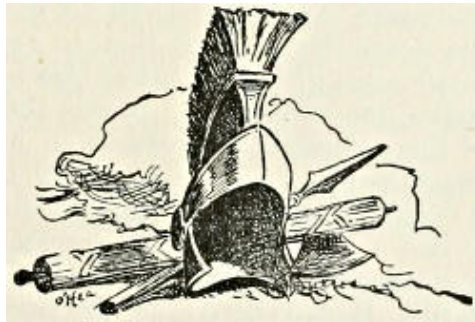
[110] One of the tribunes of this year was Sallust the historian. As Milo had some time before caught him in adultery with his wife Fausta, and had cudgelled him and made him pay a sum of money, he now took his revenge.

[111] Pompey was now married to Scipio's daughter Cornelia, the widow of the younger Crassus, a young lady of the highest mental endowments and of great beauty and virtue.

[112] [As Florus^e says: "When Asia was subdued by the efforts of Pompey, Fortune conferred what remained to be done in Europe upon Cæsar."]

[113] [And how great was the haughtiness of Ariovistus! When our ambassadors said to him, "Come to Cæsar," "And who is Cæsar?" he retorted; "let him come to me, if he will. What is it to him what our Germany does? Do I meddle with the Romans?" In consequence of this reply, so great was the dread of the unknown people in the Roman camp, that wills were publicly made even in the *principia*. But the greater the vast bodies of the enemy were, the more were they exposed to swords and other weapons. The ardour of the Roman soldiers in the battle cannot be better shown than by the circumstance that when the barbarians, having raised their shields above their heads, protected themselves with a testudo, the Romans leaped upon their very bucklers, and then came down upon their throats with their swords.^e]

[114] [Florus^e calls him "that prince so formidable for his stature, martial skill, and courage; his very name, Vercingetorix, being apparently intended to excite terror."]



CHAPTER XXIII. CÆSAR AT WAR WITH POMPEY

[133-60 B.C.]

At this point the Roman historian Florus casts a backward look over the history of his people. Giving the point of view of the first century of the empire, it shows no little acumen and is well worth quoting.

“This,” he says, “is the third age of the Roman people, with reference to its transactions beyond the sea; an age in which, when they had once ventured beyond Italy, they carried their arms through the whole world. Of which age, the first hundred years were pure and pious, and, as I have called them, ‘golden’; free from vice and immorality, as there yet remained the sincere and harmless integrity of the pastoral life, and the imminent dread of a Carthaginian enemy supported the ancient discipline.”^[115]

“The succeeding hundred, reckoned from the fall of Carthage, Corinth, and Numantia, and from the inheritance bequeathed us by King Attalus in Asia, to the times of Cæsar and Pompey, and those of Augustus who succeeded them, and of whom we shall speak hereafter, were as lamentable and disgraceful for the domestic calamities, as they were honourable for the lustre of the warlike exploits that distinguished them. For, as it was glorious and praiseworthy to have acquired the rich and powerful provinces of Gaul, Thrace, Cilicia, and Cappadocia, as well as those of the Armenians and Britons, so it was disgraceful and lamentable at the same time, to have fought at home with our own citizens, with our allies, our slaves, and gladiators.

“I know not whether it would have been better for the Romans to have been content with Sicily and Africa, or even to have been without them, while still enjoying the dominion of Italy, than to grow to such greatness as to be ruined by their own strength. For what else produced those intestine distractions but excessive good fortune? It was the conquest of Syria that first corrupted us, and the succession afterwards in Asia, to the estate of the king of Pergamus. Such wealth and riches ruined the manners of the age, and overwhelmed the republic, which was sunk in its own vices as in a common sewer. For how did it happen that the Roman people demanded from the tribunes lands and subsistence, unless through the scarcity which they had by their luxury produced? Hence there arose the first and second sedition of the Gracchi, and a third, that of Apuleius Saturninus. From what cause did the equestrian order, being divided from the senate, domineer by virtue of the judiciary laws, if it was not from avarice, in order that the revenues of the state and trials of causes might be made a means of gain? Hence again it was that the privilege of citizenship was promised to the Latins, and hence were the arms of our allies raised against us. And what shall we say as to the wars with the slaves? How did they come upon

us, but from the excessive number of slaves? Whence arose such armies of gladiators against their masters, if it was not that a profuse liberality, by granting shows to gain the favour of the populace, made that an art which was once but a punishment of enemies? And to touch upon more specious vices, did not the ambition for honours take its rise from the same excess of riches? Hence also proceeded the outrages of Marius, hence those of Sulla. The extravagant sumptuousness of banquets, too, and profuse largesses, were not they the effects of wealth, which must in time lead to want? This also stirred up Catiline against his country. Finally, whence did that insatiable desire of power and rule proceed, but from a superabundance of riches? This it was that armed Cæsar and Pompey with fatal weapons for the destruction of the state.”

THE WAR BETWEEN CÆSAR AND POMPEY

“Almost the whole world being now subdued,” Florus continues, “the Roman empire was grown too great to be overthrown by any foreign power. Fortune, in consequence, envying the sovereign people of the earth, armed it to its own destruction. The outrages of Marius and Cinna had already made a sort of prelude within the city. The storm of Sulla had thundered even farther, but still within the bounds of Italy. The fury of Cæsar and Pompey, as with a general deluge or conflagration, overran the city, Italy, other countries and nations, and finally the whole empire wherever it extended; so that it cannot properly be called a civil war, or war with allies; neither can it be termed a foreign war; but it was rather a war consisting of all these, or even something more than a war. If we look at the leaders in it, the whole of the senators were on one side or the other; if we consider the armies, there were on one side eleven legions, and on the other eighteen; the entire flower and strength of the manhood of Italy. If we contemplate the auxiliary forces of the allies, there were on one side levies of Gauls and Germans, on the other Deiotarus, Ariobarzanes, Tarcondimotus, Cotys, and all the force of Thrace, Cappadocia, Cilicia, Macedonia, Greece, Ætolia, and all the East; if we regard the duration of the war, it was four years, a time short in proportion to the havoc made in it, if we attend to the space and ground on which it was conducted, it arose within Italy, whence it spread into Gaul and Spain, and returning from the West, settled with its whole force on Epirus and Thessaly; hence it suddenly passed into Egypt, then turned towards Asia, next fell upon Africa, and at last wheeled back into Spain, where it at length found its termination. But the animosities of parties did not end with the war, nor subsided till the hatred of those who had been defeated satiated itself with the murder of the conqueror in the midst of the city and the senate.

“The cause of this calamity was the same with that of all others, excessive good fortune. For in the consulship of Quintus Metellus and Lucius Afranius, when the majesty of Rome predominated throughout the world and Rome herself was celebrating, in the theatres of Pompey, her recent victories and triumphs over Pontus and Armenia, the overgrown power of Pompey, as is usual in similar cases, excited among the idle citizens a feeling of envy towards him. Metellus, discontented at the diminution of his triumph over Crete, Cato, ever an enemy to those in power, calumniated Pompey, and raised a clamour against his acts. Resentment at such conduct drove Pompey to harsh measures, and impelled him to provide some support for his authority. Crassus happened at that time to be distinguished for family, wealth, and honour, but was desirous to have his power still greater. Caius Cæsar had become eminent by his eloquence and spirit, and by his promotion to the consulate. Yet Pompey rose above them both. Cæsar, therefore, being eager to acquire distinction, Crassus to increase what he had got, and Pompey to add to his, and all being equally covetous of power, they readily formed a compact to seize the government. Striving, accordingly, with their common forces each for his own advancement, Cæsar took the province of Gaul, Crassus that of Asia, Pompey that of Spain; they had three vast armies and thus the empire of the world was now held by these three leading personages. Their government extended through ten years, at the expiration of this period (for they had previously been kept in restraint by dread of one another) a rivalry broke forth between Cæsar and Pompey, consequent on the death of Crassus among the Parthians, and that of Julia, who, being married to Pompey, maintained a good understanding between the son-in-law and father-in-law by means of this matrimonial bond. But now the power of Cæsar was an object of jealousy to Pompey and the eminence of Pompey was offensive to Cæsar. The one could not bear an equal nor the other a superior. Sad to relate, they struggled for mastery, as if the resources of so great an empire would not suffice for two.”^d

[60-50 B.C.]

It was particularly fortunate for Cæsar that the conquest of Gaul was completed before his enemies at Rome combined against him, and that Vercingetorix was vanquished before Pompey took up arms against him. The meeting at Lucca and the decisions thereof had again put a great deal of power in the hands of Pompey.

At Lucca, Cæsar had been promised the consulate for the year 48. This aim attained and supported by his victorious army, with the prestige of his deeds and his superior intellect he could easily have overreached Pompey, who was no

statesman. Cæsar would have organised the popular party, and completed in some form or other the work of a democratic monarchy which had been commenced by Gracchus and had failed in the unskilful hands of Marius; the achievement would have been more glorious for him if it had been accomplished without the aid of military force.

But the most enthusiastic of Pompey's partisans now adopted a high tone. They declined to concur in any compromise or compact which involved danger to the republic; and at the beginning of the year 51 they threw down the gauntlet to Cæsar. M. Claudius motioned for the newly appointed consuls to be sent on the 1st of March in the year 49 to Cæsar's two vicegerencies of Cisalpine and Transalpine Gaul. The party also demanded Cæsar's disbandment of his army and maintained that his grant of citizen rights to the colonies which he had founded, was not legal. An inhabitant of Novum Comum, a town to which Cæsar had granted the Latin privilege, was struck with rods.

Cæsar's followers showed the unreasonableness of these views and courses by references to Pompey's position, and Pompey delayed doing anything or declaring himself. The debate on the business of the nomination was fixed for the 1st of March in the year 50. The union between Pompey and the aristocrats became closer and closer, and the time they lost was to the advantage of Cæsar.

[50-49 B.C.]

In the mean time he suppressed the rebellion of Vercingetorix, and Gaul began to calm down. To show his desire for peace, Cæsar followed the senate's command to disband two legions, the one he had borrowed some years before from Pompey and the other which he had raised himself. He recompensed both before he dismissed them. However, the government did not keep to the agreement of sending them to the Euphrates, but retained them in the Campania for any emergency closer at hand. Cæsar also gained increasing ground at Rome, where clever agents worked for him, and he won an important victory through Curio, the plebeian tribune, a dissolute but talented and wide-awake man, whom he gained over to his side by paying his debts.^[116] This ally maintained that what was due from Cæsar was also due from Pompey, and threatened to put his veto upon all one-sided courses against Cæsar.

The aristocrats hesitated, and in the meantime Cæsar arrived but without his army, at Ravenna, the most southern point of his province. Then Curio formulated his measure that Cæsar and Pompey should simultaneously resign their provinces and thus allay the fears of the Roman people. The plan was very well laid, and as the event showed, very cleverly arranged. The measure was put

to the vote of the senate and to the astonishment of all concerned it resulted in 370 voting for the motion and twenty against it. It therefore seemed that there were only twenty in the senate upon whom Pompey could implicitly rely. "Then take Cæsar as your chief!" exclaimed the consul Marcellus in a rage as he closed the sitting.

Pompey's party was in fact in a great strait; and Cæsar (probably at a high price) had attained what he wished. He had forced his adversaries to enter the list as insurrectionists. Pompey began raising troops without the necessary authority, whilst Cæsar, who was with a legion at Ravenna, sent the order to his assembled troops to disband without delay. He also despatched a letter to the senate, in which he offered to resign the governorship of Cisalpine Gaul, to reduce his ten legions to two, if he were allowed to retain these and the governorship of Cisalpine Gaul until the election of the consul for 48. This document was delivered to the senate by Curio. The tribunes Mark Antony and C. Cassius insisted on its being read aloud. The sitting was stormy, and the two consuls C. Claudius Marcellus, and L. Cornelius Lentulus made a point of Cæsar's appearing as a private individual before the judicature.

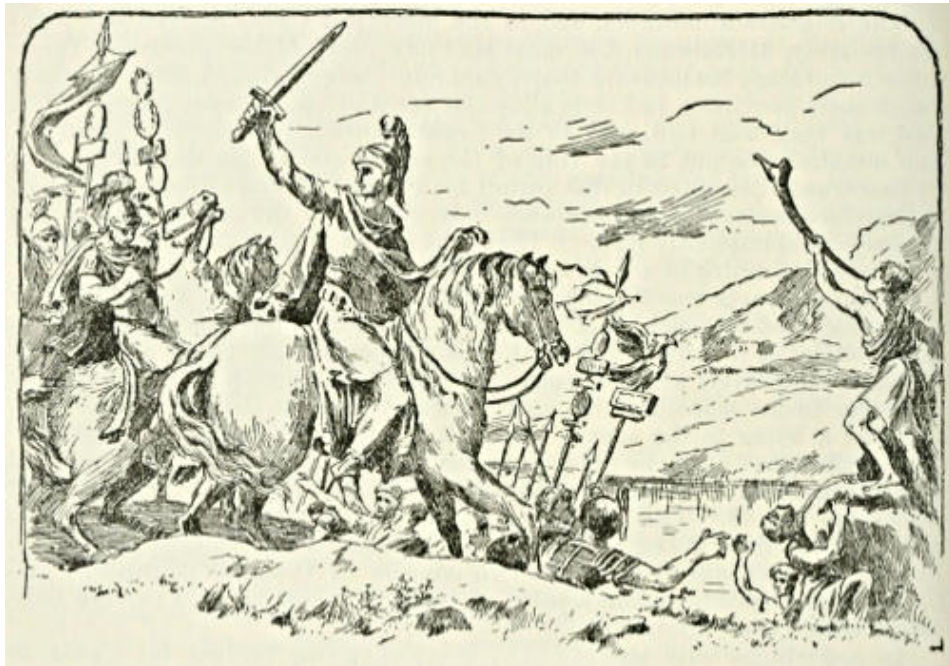
In accordance with their views, the motion was carried for Cæsar to resign his province and to disband his army within a fixed time; his neglect to concur with this decree was to be considered high treason. In that case L. Domitius was nominated as his successor. This motion was passed on the 1st of January, 49, but the tribunes put their veto on it, and a great excitement prevailed in the city, into which Pompey had brought two legions. With this support the terrified senate, after expelling the dissentient tribunes from the curia, issued the decree which involved the declaration of war. The senate solemnly conjured the leaders, the officials supported by a military force in the city and its neighbourhood, to watch over the safety of the endangered state. The tribunes renewed their veto, but threatened by the soldiers of Pompey, against whom they were powerless, they fled from Rome and repaired to Cæsar's headquarters. The decisive step was taken, the swords were unsheathed. Cæsar still remained with his single legion at Ravenna when the tribunes arrived in the character of fugitives. He had already carefully weighed the matter, and had conceived a clear decided course. He had his own army which had served him for ten years in danger and in victory. He knew every cohort, almost every soldier in his command; and every single man was devoted to the general who shared danger and honour with them all, and who had never deserted them in any strait. Moreover he had the Transpadian, or Romanised Gauls of the Po

district, to whom he had granted full civic rights on his own authority; this however was the end of his resources.

CÆSAR CROSSES THE RUBICON

[49 B.C.]

On the other side all the other forces of Rome, the legions in Spain, the state treasure, the fleet, the tribute of the dominions, the contingents and the money of the whole of the East, and the respected name of the republic were at the disposal of Pompey, who boasted, and not without cause, that he had only to stamp upon the ground for armies to appear. Perhaps the charm of the old fame of Pompey exceeded the attraction of the more recent victories of Cæsar. But Cæsar did not hesitate. On the other side of the little river Rubicon which separated the Cisalpine province from Italy, lay his native land, and the civil war which could only end with his overthrow or his complete victory.^b



CÆSAR CROSSING THE RUBICON

“Cæsar had sent people to bring his army,” says Appian, “but being accustomed to succeed more by diligence, striking a terror and hardiness, than any mighty preparations, he resolved to begin this great war with his five thousand men, and to seize some places of Italy that were commodious for him. First he sent before to Ariminum some centurions and men who were to enter

the city as passengers, and then all of a sudden to seize on that city (the first that offers itself coming from Gaul); and himself, in the evening, going out as if he had found himself ill after a feast, leaves his friends, and mounting in a chariot drove himself the same way, followed at a distance by his cavalry. When he came to the banks of Rubicon he stopped some time, looking upon the water, and thinking of the calamities he was about to be the cause of, if he passed that river in arms.

“At length turning to those of his train, ‘My friends,’ said he, ‘if I pass not this river immediately, it will be to me the beginning of all misfortunes; and if I do pass it, I go to make a world of people miserable’; and there withal, as if he had been pressed forward by some divinity, he drove into the stream, and crossing it, cries with a loud voice, ‘The lot is cast.’ From whence, continuing on his way with speed, he seized Ariminum by break of day, and all in an instant places garrisons in all the good places of that country, which he reduced either by force or favour.

“Meanwhile, as it happens in these unexpected alarms, the whole country was filled with people flying, the countrymen forsaking their habitations, and nothing was to be heard but cries, and lamentations, and groans, yet no man knew from whence this disorder came, but all imagined that Cæsar was upon them with all his forces. The consuls receiving the news, gave not Pompey, who perfectly understood war, leisure to prepare himself, and take his own time; they began to press him to be gone out of the city, and make levies of forces in Italy, as if Rome had been in immediate danger of being taken and plundered. And the senate surprised with so unlooked for an irruption, were terrified, and began to repent they had not accepted those reasonable conditions offered by Cæsar; but this was not till fear had opened their eyes, and led them back from partiality to reason; for now men talked of a great many prodigies and extraordinary signs which had appeared in the heavens, that it had rained blood in many places, that in others the statues of the gods had sweat, that many temples had been struck with thunderbolts, that a mule had engendered, besides an infinite of other things which seemed to foretell the change of the present state, and the ruin of the commonwealth, so as it should never be re-established; wherefore they made vows and prayers as in a public consternation. And the people, remembering again the miseries they had suffered because of the dissensions of Sulla and Marius, cried out that they ought to take away the command as well from Cæsar as from Pompey, since that was the only means to prevent a war. Cicero himself was of opinion that deputies should be sent to Cæsar to treat an accommodation, but the consuls absolutely opposed it.

“Favonius, quipping at Pompey because of a word he had once said with too much arrogance, bade him stamp on the ground with his foot, and see if any armed men would rise. To which Pompey answered: ‘You will want none so you will follow me, and are not troubled to leave the city, and Italy, itself, if there be occasion; for people of courage,’ said he, ‘do not make liberty consist in the possession of lands and houses; they cannot want in any place they come to; and if they lose not their courage, will soon recover their houses and lands.’

“After having said these words, and protested he would hold him for an enemy, who out of fear to lose what he possessed, deserted the commonwealth in extreme danger, he went out of the palace, and soon after out of the city, to join the army that was at Capua. The consuls followed him presently, but the other senators weighed it a little longer, and spent all the night in the palace, without resolving anything; and at length as soon as it was break of day, the greater part followed the same way after Pompey. Meantime, Cæsar having reached at Corfinium, L. Domitius, whom they had sent for his successor with four thousand men (of which he had already lost a part), he besieged him in the city, from whence, endeavouring to escape, the inhabitants stopped him at the gate, and brought him to Cæsar, to whom the remainder of his forces yielded themselves; he received them kindly, that he might draw others by their example, and without doing any wrong to Domitius, he suffered him to go whither he pleased, with all his equipage, hoping by this courtesy to oblige him to take his party, yet without hindering him from going to find out Pompey. Pompey on the other side marched from Capua to Brundisium, that he might thence pass to Epirus, where he designed to establish the seat of war; he sent to all provinces and to kings themselves that they should send him what forces they could supply.”^c

Pompey having accordingly decided that the most prudent course to adopt was to quit Italy and retire across the sea, had assembled all the available troops at Brundisium, though the greater half had already happily crossed to Greece. Cæsar reached the city accompanied by his legions. But Pompey, until the return of the fleet, succeeded in baffling his efforts to close the mouth of the harbour. He now barricaded the city and the two roads leading to the harbour; the rest of the army embarked, and the retreat was made on the ships, which they carried across the sea.^[117] Cæsar being left with the empty town, found his hope had failed of ending the war as quickly as he had commenced it.

CÆSAR’S SERIOUS POSITION

This success was great, but the seriousness and danger of Cæsar's position were now evident. He could not follow Pompey as long as the general's seven powerful Spanish legions under their legates M. Petreius and L. Afranius were behind him; and if he went to Spain against them, where was he, who had no fleet, to get the means to oppose the return to Italy of Pompey, who ruled the seas? Moreover, Italy was more surprised than conquered. He had not been able in two months to gain the influence which Pompey had spent ten years to win. What would happen if insurrection broke out against him, and if Pompey's fleet stopped supplies? The one mode of contravening these dangers was to double his force by the swiftness of his movements. But the difficulties of his position did not end here. If he plundered like Marius and Sulla, he would arouse the diverse elements of resistance against him; if he protected life and property, he would estrange such men of his own force as Mark Antony and P. Cornelius Dolabella, who expected to pay their debts by Cæsarian proscription lists.

In the hope of subsequently disbanding Pompey's Spanish army, Cæsar repaired first to Rome, untiring in his efforts to win over to his side the peaceful burgesses who formed the party of order. The feared proscription lists did not appear, and pardons were bruited from all sides. Perhaps this was the reason Cæsar found that the assembly of the remaining senators which he summoned were not very willing to endow him with all-embracing legal authority. Pompey was still considered the stronger; Cæsar's success seemed only transient, and his moderation was put down to a sense of weakness. Hence Cicero, who played a pitiful part in these days and stood undecided between both parties, did not appear in the Cæsarian senate. He like many other weaklings cast longing glances to the other camp beyond the sea without mustering courage to join either party. There was at least an attempt at resistance in Rome. The plebeian tribune L. Metellus covered with his body the door leading to the public treasure. Cæsar calmly gave the necessary commands regardless of the senate, and the obstinate tribune was quietly carried from the door, which Cæsar then forced open. The gold discovered proved a powerful ally. The Pompeian party left behind in the haste of their flight not less than £3,500,000.

Cæsar then took measures and did all that was necessary to create a fleet. He gave the prætor M. Æmilius Lepidus the appointment of city prefect, and despatched his officers. The legate Valerius was sent with a legion against Sardinia, and M. Cotta, Pompey's follower who was there in command. C. Curio was commissioned to go with three legions to Sicily against M. Porcius Cato and thence to Africa. To others he deputed the organisation of the fleet, and with the remaining nine legions he repaired to Spain.

CÆSAR LORD FROM ROME TO SPAIN

[49-48 B.C.]

The seven Pompeian legions were stationed on the Ebro under Afranius and Petreius. The important city of Massilia (Marseilles) had gone over to Pompey through the L. Domitius whom Cæsar had released after he fell into his hands at Corfinium. Cæsar was moreover prevented from taking the Pyrenean passes by the legates of his foe who now took up a position somewhat north of the Iberus at Ilerda (Lerida) on the Sicoris (the left tributary of the Ebro). Cæsar took up a position opposite, whilst he left Decimus Brutus at Massilia.

During the month of June the strength of both armies was tested in numerous battles and difficult movements, until finally Cæsar, whose knowledge of war was quite different from that of his enemies, succeeded in getting the army on to the left bank of the Sicoris and cutting his enemy off from the Ebro. Having put the enemy into this position his men began to fraternise with the Pompeians. Further bloodshed seemed superfluous. At the beginning of August, 49, the Pompeians capitulated, part of the army disbanding and part joining Cæsar. The capitulation of the army on this side led to that of Further Spain also. The province was under the command of Terentius Varro, a celebrated scholar and a zealous republican, and Massilia surrendered at the same time and escaped further condemnation by resigning its arms and fleet, a part of its territory and its garrison.

Things did not go so well in places where Cæsar could not himself be present. During his absence in Spain, M. Æmilius Lepidus, whom he had left as prefect of the city to govern Italy, had named him dictator. He assumed the great dignity thus conferred upon him, but held it only eleven days. In that period he presided at the comitia and was elected consul, together with P. Servilius Isauricus, one of his old competitors for the chief pontificate. He also passed several laws. One of these restored all exiles to the city, except Milo, thus undoing one of the last remnants of Sulla's dictatorship. A second provided for the payment of debts, so as to lighten the burdens of the debtors without satisfying the democratic cry for an abolition of all contracts. A third conferred the franchise on the citizens of Transpadane Gaul, who had since the Social War enjoyed the Latin right only. Certainly Sardinia and Sicily were held by Cæsarian lieutenant-generals who kept the Pompeian force in check; and Curio, who here again gave evidence of his great talent, was at first victorious over the soldiers of

Pompey when he was transferred from Sicily to Africa. He was victorious at Utica, and commenced the siege of the city. But a false report which led him to believe he had only to deal with a small force of the foe drew him into the Bagradas plain. He began the battle boldly, but it ended in his entire defeat when King Juba of Numidia, the ally of the Pompeians appeared in the vicinity with his ready prepared army. Curio himself fell. The rest of his troops surrendered the following day to P. Atius Varus, the Pompeian governor of Africa. Cæsar met with another reverse in Illyricum. The ships under P. Dolabella, and the land forces under C. Antonius were seized and destroyed by superior Pompeian forces in the attempt to avoid an attack of Pompey on this side.

Pompey himself had done nothing all the summer but make preparations on a colossal scale. He was probably hampered in doing what he knew would be advisable by the brainlessness, the inaccuracy, and the pride of the aristocrats about him, which, from all we know, we cannot overestimate. But it certainly gives us a very poor idea of his talent as a general when we see that whilst he was engaged, during the whole of the important summer of 48, in these fruitless preparations, he let his enemy gain possession of Spain, Italy, Sardinia, the cities of Sicily and as far as he was concerned, Africa too, without making any resistance, and even allowing the foe time to collect a naval force.

The place of assembly of the aristocrats and Pompeians was Macedonia. Their senate was held at Thessalonica where its members numbered two hundred. To their remarkable incapacity for politics the aristocrats added a deplorable want of judgment; the useless rage of this class expended itself in wild talk and revengeful plans. Defeated through their own fault, they avenged themselves with fine words for Cæsar's energetic deeds. Their obstinate pride rejected every peace negotiation offered by Cæsar, and regaled itself in vengeance-breathing declamations. "They are," writes Cicero, who had finally decided which party to join, "devastating in war and in their speech so wild, that I shudder at their success. They are an exalted people, but deeply in debt—but what would you have? They have nothing good about them but the cause." Yet even the cause was bad if it had no other supporters. It was natural for Pompey to feel crippled with these generals of high rank, these incompetent officers. But he at least knew how to use the rich supplies which came to him from the East, over which

he still exercised unconditional control. Eleven legions, seven thousand horsemen, Celts, Thracians, Commagenian archers, Armenians, Numidian cavalry, a fleet of 500 sail, and a well-filled treasure chest were placed at his disposal. He assembled his forces on the coast of Epirus.

CÆSAR IN GREECE

[49 or 48 B.C.]

In the meanwhile Cæsar had returned from Spain, and after a short dictatorship, he was elected in Rome consul for the year 48, and at the beginning of the year [or by the rectified calendar in November 49] collected his troops at Brundisium. He had succeeded with great trouble in collecting a fleet which, to the great surprise of the crews, brought him and his six legions safely to the Acroceraunian coast. But the bold venture might have been fatal. The fleet of the foe commanded the sea and the second fleet of transports did not appear. Cæsar found himself cut off from Italy with scarcely twenty-five thousand men. He would have been lost if Pompey had promptly advanced against him from Dyrrhachium.^{[b](#)}

APPIAN DESCRIBES THE BATTLE OF DYRRHACHIUM

[48 B.C.]

“Cæsar pitched his camp directly against him, on the other side of the river Alora, which parted the two armies, where yet there happened some horse skirmishes, now one party and then another passing the river, but neither would engage with all their forces, because Pompey thought good first to exercise his forces that were newly levied, and Cæsar expected those that were to come from Brundisium. He thought if they stayed till spring, and then should come over with ships of burden (and he had no other) they could no way be secured, Pompey having such a number of galleys to defend the passage; but if they embarked during winter, they might slip by their enemies, who now lay harboured in the islands, or if they were engaged, might open themselves a passage by the violence of the winds, and the bulk of their vessels; wherefore he did all he could to hasten their coming.

“And therefore out of impatience that the rest of his army came not from Brundisium, he resolved himself to go privately over, thinking they would sooner follow him than any other; wherefore without discovering his design to any one, he sent three of his slaves to a river not above twelve furlongs distant, to secure some very light boat, and a good pilot, as if he had an intention to send him upon some design, and feigning himself ill, rose from the table where he desired his friends to continue, and taking the habit of a private man, mounting his chariot, came to the boat as Cæsar’s messenger.

“He had given orders to his slaves to command the mariners what they had to do, whilst he kept himself concealed under coverlids and the darkness of the night. Though the wind were contrary, and very raging, the slaves made the pilot put off, bidding him be of courage, and make use of his time to escape the enemy, who were not far from them, they laboured so hard, that by force of oars they got the mouth of the river, where the waves of the sea beating against the stream of the river, the pilot (who on the other side was afraid of falling into the enemies hands) did all that was possible for man to do, till seeing they gained nothing, and the seamen not able to pull any longer, he left the helm. Then the consul discovering his head, cried out, ‘Courage, pilot, fear no storm, for thou carriest Cæsar and his fortune.’ Whereupon the pilot and his crew astonished at these words, redoubling their force, passed the mouth of the river; got out to sea; but because the winds and the waves still drove them towards the lee shore in spite of all their endeavours, and day approaching, the mariners fearing to be discovered by the enemy, Cæsar angry at fortune that envied him, suffered the pilot to regain the river, and the boat presently running afore the wind, came to the place from whence they set out: Cæsar’s friends admired at his boldness, others blamed him for having done an action more proper for a private soldier than a general; and he seeing his design had not succeeded, and that it was impossible for him to pass over without being known, sent Postumius in his place. He first had charge to tell Gabinius that he should presently embark the army, and bring it to him; and if he refused, then to address himself to Antony, and at last to Calenus, and if none of these three had spirit enough to execute these orders, he had a letter for the army in general, by which the soldiers were exhorted to come over and follow Postumius, landing at any place they could, without regarding the ships; for he had more need of men than ships, so much confidence had he in fortune, indeed more than in prudence.

“Pompeius then judging he ought no longer to delay, drew out his army in battalia, and caused them to advance against Cæsar; but two of his soldiers being entered into the river to sound the ford, and one of Cæsar’s men having slain them both, he took this as an ill presage, and led back his forces into the camp, though many lamented the loss of so fair an occasion.

“As for the forces at Brundisium, Gabinius, refusing to follow the orders brought by Postumius, with all that would follow him, went the way of Illyricum by land, taking such long marches that his men being quite tired the inhabitants of the country cut them all in pieces, for which Cæsar could not yet be revenged, being engaged in affairs of more importance. Antony shipped away the rest, and having the wind right aft, passed in sight of Apollonia with a merry gale; but about noon the wind beginning to slacken, they were discovered by twenty of Pompey’s galleys, who made up towards them; they were fearful lest the stems of the long ships running on board them should pierce through and sink them. However, they were preparing to fight, every man laying hold of his sling, his javelin, or arms of the like nature; when on a sudden there sprung up a fresher gale than the former; so that Antony, setting his low sails, went spooning away before, whilst the others, not able to bear sail, were tossed to and fro where the winds and waves pleased, and at length driven into the narrows and cast upon lee shores where there was neither port nor harbour. Thus Antony safely recovered the port of Nymphæum without losing more than two ships, which unfortunately running upon the flats were taken by the enemies.

“Cæsar having now with him all his forces as well as Pompey, they pitched their camps in sight of each other upon eminences where each entrenched themselves, raising out forts, which were often attacked by one party and the other, one general still striving to block up the other’s army and cut them off from provisions, so that there happened many skirmishes. In this new mode of making war, as Cæsar’s men one day proved the weaker in a fort assailed by the enemy, a centurion called Scæva, famous before for many gallant actions, being wounded in an eye, leaped from the rampart, and making a sign with his hand for silence, as if he had something to say, he called to one of the centurions of the contrary party, a man of reputation, to whom he said, ‘Save the life of one of thy own quality, save the life of thy friend; send somebody to lead me by the hand, thus wounded as I am.’ Whereupon two soldiers stepping in to receive him as a runaway,

he slew one before he suspected the deceit, and knocked the other down. He did this action out of the pure despair he was in of being able to defend the place; but it succeeded better than he imagined, for this happy success so raised the courage of his companions that they repulsed the enemy and remained masters of the fort. Minucius, who commanded, had a great share in the glory as well as in the danger of this assault, for 'tis said that his buckler was six and twenty times pierced through, and he was wounded in the eye as well as Scæva; so Cæsar honoured them both with many military recompenses.

“Meantime he had formed intelligence in Dyrrhachium, and upon hopes the place would be delivered to him, he came with a small company to the gate which is near the temple of Diana; but his design being discovered, came off again without doing anything. The same winter Scipio, father-in-law to Pompey, bringing him another army out of Syria, was set upon in Macedon by C. Calvisius, whom he defeated, and slew him a whole legion, fourscore soldiers only escaping. There came now no more provisions to Cæsar by sea, Pompeius being the stronger, wherefore the soldiers were forced to make bread of a certain kind of herb, pieces of which being by some runaways brought to Pompey, thinking it would be to him a joyful present. Instead of rejoicing at it, ‘What sort of beasts,’ said he, ‘have we to deal with?’ Cæsar now pinched with necessity drew together his forces, resolving to engage Pompey whether he would or no; but Pompey being now possessed of several good forts, kept close in his trenches, which so much troubled Cæsar that he undertook a work almost impossible, and scarcely credible, which was to enclose all the forts Pompey had with a trench drawn from the sea, judging that though his design took not effect, he should gain the reputation of a man capable of great things; for this trench must have been twelve hundred furlongs in length. Pompey on his part, drew lines and trenches directly opposite to Cæsar’s works; thus one eluded the enterprises of the other.

“At length there happened a great fight between them, wherein Pompey bravely repulsing Cæsar’s men and having put them to flight, pursued them to their very camp. Many colours they took and had taken the eagle of a legion, if the standard-bearer who carried it had not thrown it with all his force into the trenches, that he might preserve it for Cæsar; for the Roman soldiery have a great respect for their standards. Cæsar with other

companies came to the relief of those that fled, but so terrified were these too, that as soon as they beheld Pompey at a distance, though they were near the camp, it was not possible for Cæsar to stop them, nor to make them go in again, nor so much as to hearken to him; the soldiers fled away in disorder without shame, without reason, or without anything to oblige them to it; Cæsar might well run up and down, and with reproaches show them that Pompey was yet a great way off. This hindered them not from throwing down their arms and flying, or else standing still, silent and immovable, fixing their eyes upon the ground with shame and confusion, so great was that panic fear that possessed them. There was an ensign who, as his general would have stopped him, presented him the point of his javelin, but he was upon the spot punished by the gods as he deserved. Those who escaped into the camp were so cast down that they kept no guard at the gates nor lined the rampire, but the trenches were left without any to defend them. All men believed that Pompey might have thrown himself into the camp with the flyers, and so have made an end of the war, if Labienus (for God would have it so) had not persuaded him rather to pursue those he had routed, then march up to the trenches; him therefore he believed, whether it were that he was not in such haste as to make an end of all at once, or that seeing the camp defenceless, he feared some ambushade, or else being victorious, scorned that little advantage. Going therefore to charge those that were still abroad, he made yet a great slaughter, so that in two engagements in one day he gained twenty-eight colours, and twice lost the opportunity of ruining his enemy beyond redress. And Cæsar himself stuck not to say that that day the war had been ended, had his enemy known how to make use of his victory.

“Pompey after this glorious success wrote largely of it to the kings and commonalties; and conceived hopes that in a short time Cæsar’s army, either oppressed by famine or terrified with disgrace, would yield themselves to him; especially the tribunes, fearful of being punished for a fault they knew themselves guilty of. But they and all the soldiers touched with repentance as by divine inspiration, confessed themselves criminals; and afflicted themselves the more, that their general spoke kindly to them, and granted them pardon before they asked it: they would not forgive themselves; but with a wonderful change desired, as a punishment of their fault, they might be decimated according to the custom of their ancestors, but he would by no means admit it; which increased their shame the more

that they should be guilty of such cowardice in prejudice of the best man of the world, and who most deserved their faith and their services.

“They besought him that at least he would punish the ensigns, who had been the cause of this rout; for in flying they had only followed their colours; and seeing Cæsar could not resolve to do that, but with much ado would consent to the punishment of a few, his moderation begot in the mind of the soldiers a general joy.

“They began all with one voice to cry out that he should lead them against the enemy, that by gaining a new victory they might wipe away their infamy; and in the sight of their general they swore by whole companies one to the other, never to return from the fight but victorious. Wherefore his friends advised him to take the army at their words, and make trial of them upon this height of repentance before their zeal grew cooler; but he answered them before all the multitude that he would choose a time more proper to show them the enemy; exhorting them then to remember the good will they now protested, and in private he told his confidants that it was convenient to let that fear which so late a loss had imprinted be worn a little out of the minds of the soldiery; and by temporising, let the fierceness of his enemies heightened by their late victory, be likewise a little cooled: He confessed withal he had committed a great fault in coming to a camp so near Dyrrhachium, where Pompey had all things in abundance; whereas if he had drawn himself farther off, they might have met with equal difficulties.

“After having discoursed in this manner, he came to Apollonia, and from thence privately by night took his march towards Thessaly; and on the way, coming to a little city called Gomphi, that refused to open their gates, he took it by storm and gave the plunder to his soldiers; who having long endured scarcity, fed now beyond measure, and filled themselves with wine, especially the Alamanni, whose drunkenness made them ridiculous to all the rest: so that here again in all appearance Pompey lost a fair occasion of victory by not pursuing an enemy he despised; but lying still, whilst in seven days’ march he got into Thessaly, and encamped near Pharsalia.”^c

The pride of the victorious party after the success of Dyrrhachium knew no bounds. They were in no hurry to follow the advice of prudent men and to get possession of Italy again. The danger, if it had ever existed, now

seemed past. The rest of the campaign would be nothing more than a safe march; the wild plans of revenge with which they had hoped to exceed the Sullanian restoration and its terrors seemed quite near their fulfilment.

Such was the mood of the army, especially of the conceited young aristocracy, when Pompey's army joined with Scipio's corps at Larissa, whilst Cato remained with eighteen cohorts at Dyrrhachium, and the Pompeian fleet of three hundred ships dropped anchor at Corcyra.

PHARSALIA

Cæsar had stationed himself by the town of Pharsalia on the left bank of the river Enipeus, which traverses the plain between the line of hills of Cynoscephalæ in the north and the mountains of Othrys in the south, and Pompey took up his stand on the right bank, at the foot of the Cynoscephalæ hills. Pompey could have conquered his foe by prolonging the war, and he, with his own experience of war, was himself conscious of the fact. But he had long ceased to be master in his camp. It was ruled by a hydra-headed regiment of high-born people, and the hot-blooded noble youth were already, as if victory was assured, disputing the division of the honours of Cæsar and the property of his allies. They pressed for a decisive blow, and they gave Pompey to understand that he was too fond of playing the part of Agamemnon, the king of kings, the commander-in-chief of so many prætors and consuls, the king of vassals and the prince of clients.^[118] Confident of success they pointed to the forty-seven thousand foot-soldiers, and the seven thousand horsemen of their own army, which far exceeded the twenty thousand of Cæsar's beaten force.

Pompey could not resist the pressure. He had put himself into this position, so he ceased to delay; and on the fateful 9th of August 48 [6th of June by the rectified calendar] he led his army over the river Enipeus.

Success seemed to favour the aristocrats when their numerous superior cavalry surrounded Cæsar's right wing, which faced the plain, whilst the fighting by Cæsar's left wing was resultless, and the weak cavalry of Cæsar could not long withstand the masses of Pompeian horsemen. T. Labienus commanded the corps against his former imperator, but as he pressed forward victoriously he was opposed by the two thousand picked

legionaries which Cæsar, foreseeing the enemy's attack, had placed there. "Strike the pretty young dancers on the face," cried their general to them, and the determined, unexpected method in which they, contrary to custom, used the pila as lances threw the enemy's cavalry into disorder and forced it to flight.

Cæsar profited by this movement to make his reserve line advance for a general attack. Pompey's legions, greatly inferior to Cæsar's veterans in military prowess, began to retreat across the Enipeus. All was not yet lost, but Pompey, too spoiled by success to bear a moment's reverse, neglected his duty, and throwing up the sponge he rode back to the camp. The vanquished legions gradually followed suit, as it became known in their ranks that mercy and consideration would be shown them by the enemy. They were driven from the camp by fresh onslaughts, and at midday it was stormed by the Cæsarians.

But Pompey had already mounted his horse and fled. His soldiers, in increasing disorder, destitute of command albeit fighting continuously, withdrew to the hills in the attempt to reach Larissa by that route.

But the dissolution was at hand; a number cast down their arms trusting to the victors' promised mercy, and those who reached the heights were disappointed in their hope of getting to Larissa, for they were surrounded in the evening by Cæsar's lines. The next morning twenty thousand men, a whole army, laid down their arms; fifteen thousand capitulated the previous day, whilst not more than six thousand lost their lives.

The victory did not cost Cæsar more than one thousand men. The enemy's army was destroyed, but the results of the battle were not foreseen. They depended upon the course Pompey would take. Of him nothing was known but that he had taken the road to the sea and had escaped.

It is evident that this battle was mainly lost from want of command. But why did Pompey so quickly give it up for lost without any attempt to arrest the course of fate? We have no record from his headquarters which can throw light upon these facts, but it seems that the party of which he was the chief had grown too much for him; that a deep discontent and ill-humour took possession of him, and both the party and the cause for which he had sacrificed himself had become loathsome to him before the battle took place. This is the only explanation of his conduct at the battle. How could it

be otherwise? His aim and object were quite opposed to those of the party to which he was chained, and he was so entirely in its power that even complete victory would have only benefited them, not him. Perhaps the shame of appearing before his own party drove him to this hasty flight; perhaps he was afraid of personal danger at the hands of his colleagues, for this Pompeian camp was torn with every passion. Suffice it to say he escaped, and this flight made the defeat dangerous, for his person was the rallying point for the resistance of his party.

He hastened to Larissa; then disguised, and with a few companions, he proceeded to the mouth of the Peneus, the celebrated Vale of Tempe, and from thence by ship to Amphipolis.

At Mytilene he took his wife Cornelia and his son Sextus on board, but he did not stop there, as the news of the disastrous battle and the unexpected consequence had spread all over Asia Minor. It did not seem advisable to attempt anything here. But he conceived the plan of putting himself at the head of his large fleet and joining the victorious land force in Africa. Choosing another course and another country, he might, perhaps, hope to be more independent. So he decided to turn to Egypt and start fresh undertakings, with this excellent position as a basis. But they were undertakings in which he had no real confidence, through having once been crossed by fortune.

Whilst the princes and powers of the East hastened to lay down their arms and cast themselves upon the mercy of the conqueror after the battle of Pharsalia, Pompey pursued the lonely course in which he met his fate.

From the coast of Asia Minor he sailed to Cyprus and from thence to the Egyptian shore after announcing his intended arrival to the king who was still a minor. The eunuch Pothinus persuaded Ptolemy, a thirteen year old boy, to secure as he thought, by a bloody deed, the favour of the victor whose support he would need against the claims of his sister, Cleopatra, who disputed his claim to the throne.

The ships of Pompey came in sight east of Pelusium by the Cassian Mountains. Egyptian troops were assembled on the shore, and in their midst stood the king. Then there pushed off from the shore a little boat, in which were Achillas, the commander-in-chief of the Egyptian army, and two Roman officers. One of them greeted the imperator and invited him to

board the boat as the shallow water of the shore prevented a large ship being sent. His party was suspicious. But Pompey, deaf to their warning and adjurations, embarked in the boat with two companions. Before he left he was heard to repeat to Cornelia the lines of Sophocles:

“Who to the tyrant turns his step
Becomes his slave altho’ he went as a liberator.”

The boat approached the shore. “Do I see in thee one of the dangers of war?” said Pompey to one of the officers who bowed his head in silence, whereupon Pompey without further parley took a leaf in his hand and wrote a message to the king in the Greek language. The boat arrived, Pompey arose to disembark. At that moment he received a blow from behind and the two other men straightway fell upon him. Resistance was impossible. Pompey resigned himself to his fate without making a sound, he covered his face and fell dying to the ground. He was in the fifty-eighth year of his life and he died in the thirty-fifth of his career as a general. The body was left upon the beach, a prey to animals, but perhaps some faithful followers may have secretly saved it; the head, the witness of their scandalous deed, was taken off by the Egyptians.

Such was the sad end of a man whom the freaks of fortune and the great confusion of the Roman state raised to a height beyond his natural power. He, like Marius, was above all, a great soldier, clever enough to accomplish deeds when favoured by fortune but not independent enough to attain them against odds. He was unequalled in warlike courage, military skill, and personal bravery, and his moderate life in spite of his great wealth put the aristocrats of his time to shame. But he was utterly wanting in the higher qualities which secure lasting success, overthrow effete state organisations and construct new ones in their places. He was hard, selfish, and cruel. “As oppressor,” as a Roman subsequently said of him, “not better than Marius or Sulla.” Neither did he retain his position as a great general when the time came to prove his real worth, and his utter want of independence and capacity as a statesman was the rock upon which his life was wrecked; whilst Cæsar’s success was due to his capacity as a general as well as a statesman, and the power of bringing both these qualities to bear upon his course.^b

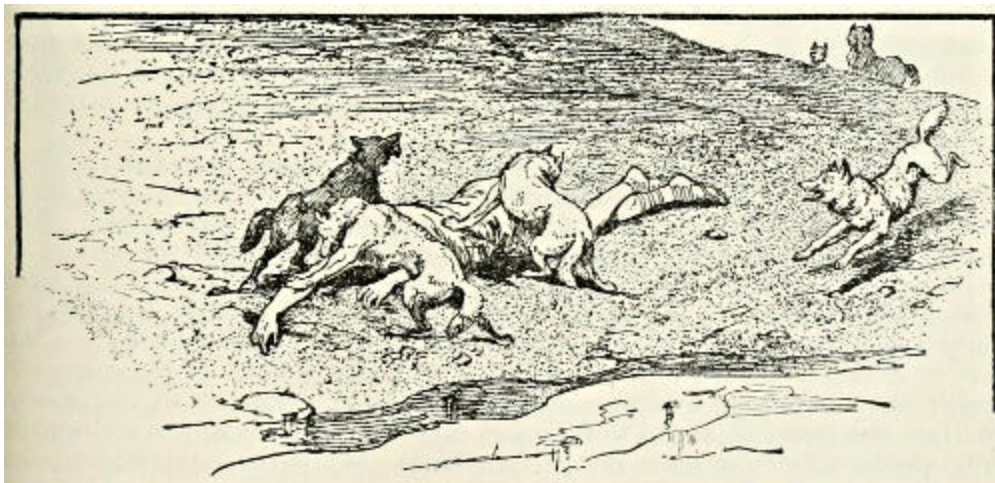
FOOTNOTES

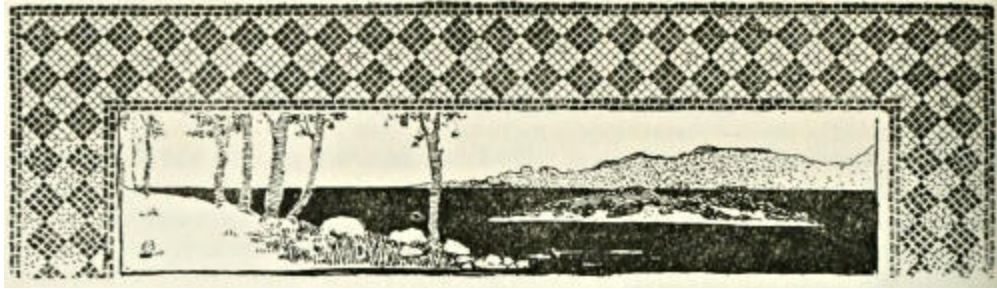
[115] [The purity of this primitive age has been universally exaggerated. Early Roman virtue was based on poverty and ignorance.]

[116] [Of him Velleius Paterculus^e says, “For producing the civil war and all the calamities that ensued from it for twenty successive years, there was no one that supplied more flame and excitement than Caius Curio. He was of noble birth, eloquent, intrepid, prodigal alike of his own reputation and fortune and those of others; a man ably wicked and eloquent to the injury of the public, and whose passions and designs no degree of wealth or gratification could satisfy.”]

[117] [Says Florus:^d “Dishonourable to relate! he that was recently as the head of the senate, the arbiter of peace and war, fled across the sea over which he had once triumphed, in a single vessel that was shattered and almost dismantled.”]

[118] [“Thus the fates hurrying him on, Thessaly was chosen as the theatre for battle, and the destiny of the city, the empire, and the whole of mankind, was committed to the plains of Philippi. Never did fortune behold so many of the forces, or so much of the dignity, of the Roman people collected in one place. More than three hundred thousand men were assembled in the two armies, besides the auxiliary troops of kings and nations. Nor were there ever more manifest signs of some approaching destruction; the escape of victims, swarms of bees settling on the standards, and darkness in the daytime; while the general himself, in a dream by night, heard a clapping of hands in his own theatre at Rome, which rung in his ears like the beating of breasts in sorrow; and he appeared in the morning (an unlucky omen!) clad in black in the centre of the army.”—FLORUS.^d]





CHAPTER XXIV. FROM PHARSALIA TO THE DEATH OF CATO

CÆSAR IN EGYPT

The nobles betrayed their own cause at Pharsalia by their want of courage and self-devotion. It is in vain that Lucan rounds a poetical period with the names of the Lepidi, the Metelli, the Corvini, and the Torquati, whom he supposes to have fallen in the last agony of the defence; of all the great chiefs whom we know as leaders in the Pompeian camp, Domitius alone perished on that day, and even he was killed in flight.

The fragments of the mighty ruin were scattered far away from the scene of disaster. Pompey and a few adherents fled, as we have seen, in one direction to Larissa; a larger number escaped by the road to Illyricum, and met again within the walls of Dyrrhachium. The principal reserve of the Pompeian forces was there commanded by M. Cato, and there also was the common resort of the wavering and dissatisfied, such as Varro and Cicero, who wished to secure their own safety in either event. The fleets of the republic, under Octavius and C. Cassius, still swept the seas triumphantly; the latter had recently burnt thirty-five Cæsarian vessels in the harbour of Messana. But the naval commanders were well aware that their exploits could have little influence on the event of a contest which was about to be decided by the whole military force of the Roman world; and forming their own plans, and acting for the most part independently, they began more and more to waver in their fidelity to the common cause. As soon as the event of the great battle became known, the squadrons of the allies made the best of their way home, while some, such as the Rhodians, attached themselves to the conqueror.

Then the soldiers in garrison at Dyrrhachium became turbulent. They plundered the magazines and burnt the transports on which they were destined to be conveyed to some distant theatre of protracted warfare. The desertion of the allies, the mutinous spirit of the troops, and the report of the numerous adhesions which Cæsar was daily receiving from the most conspicuous of the nobles, convinced Cato that the last hope of keeping the party together, and maintaining the struggle effectually, depended upon the fate of Pompey himself. In the event of the destruction of the acknowledged chief of the senate, he only contemplated restoring to the shores of Italy the troops confided to him, and then betaking himself to retirement from public affairs in some remote province. While the fatal catastrophe was yet unknown he withdrew from Dyrrhachium to Corcyra, where the headquarters of the naval force were established; and there he offered to surrender his command to Cicero as his superior in rank. But the consular declined the perilous honour, and refused to take any further part in a contest which, from the first, had inspired him with distrust and remorse. The young Cneius Pompey had urged the exercise of summary vengeance upon whomsoever should threaten defection at such a crisis, and it was with difficulty he was restrained from using personal violence against Cicero, when he declared his intention of embarking at once for Italy. The recreant consular's life was barely saved by Cato's vigorous interference. At Corcyra many of the fugitives from the field of battle rejoined their confederates. Among them were Scipio and Afranius, the former of whom now assumed the command of their combined forces, and it was upon him, as soon as the fact of Pompey's death was ascertained, that the leadership of the party most naturally devolved.

Meanwhile, Cæsar followed up his success with unabated activity. He allowed his soldiers at the most only two days' repose on the scene of their triumph, and amidst the spoils they had acquired. His care was divided between improving the victory he had gained in the East, and securing his acquisitions in the West. With the latter view he ordered Antony to return to Italy with a large part of his forces, and watch over his interests in that quarter, where he apprehended that some of the beaten faction might hazard a descent upon the centre of his resources. He also required his lieutenant Calenus to complete, without delay, the subjugation of southern Greece. Athens had not yet opened her gates to him, but the event of the great battle determined her to obey his summons. The long resistance this city had

made exposed it, by the laws of ancient warfare, to the vengeance of the conqueror; but Cæsar ordered it to be spared, for the sake, as he said, of its illustrious dead. The Peloponnesus was now speedily evacuated by the forces of the republic, and Calenus occupied the points on the coast where he anticipated the possibility of fresh intrusion. Scipio had landed at Patræ, probably to receive the remnant of the Pompeian garrisons in that province, but straightway abandoned it, and stretched his sails for Africa.

Cæsar devoted himself to the pursuit of Pompey with the utmost energy and impatience, being anxious not merely to prevent his assembling a new armament, but if possible to secure his person. He pushed forward with a squadron of cavalry, and was followed by a single legion. He reached Amphipolis just after the fugitive's departure, and, taking the route of Asia by land, crossed the Hellespont with a few small vessels. In the passage he fell in with the squadron of C. Cassius, who had been despatched to the Euxine to stimulate or co-operate with Pharnaces, king of Pontus, whose promised succours were urgently demanded. It was remarked as an extraordinary instance of the good fortune ever supposed to wait upon the mighty conqueror, that the mere terror of his name induced Cassius to surrender his galleys to a few fishing-boats. There can be little doubt that the republican commander had already made up his mind to change his side, when accident threw this favourable opportunity in his way. As a man of influence and authority, as well as an able soldier, he was well received by his adopted leader, and the good offices attributed to Brutus could hardly have been required to conciliate to him the favour of Cæsar.

Having now arrived on the Asiatic coast, Cæsar advanced more leisurely. He had received information of Pompey's flight to Egypt, and was aware that, if the suppliant were received there, he could not be dislodged except by regular military operations. He was content therefore to await the arrival of ampler succours, and employed himself in the meanwhile with repairing the injuries which Scipio was accused of having inflicted upon the unfortunate provincials. He earned their favourable opinion by the remission of taxes, and by restraining the exactions of the farmers of the revenue. He saved a second time from spoliation the treasures of the Ephesian Diana, which Ampius, an adherent of the opposite party, had been on the point of seizing. These benefits he accompanied with further favours and distinctions, and then handed over the government of the province to

Calvinus, to whom he entrusted three legions, to defend it against Pharnaces and the other oriental allies of the senate. Cæsar retained only two legions about his own person, and those so much reduced in number as to contain much less, than half their proper complements. The whole of this force consisted of only 3200 infantry, and eight hundred cavalry, and with these he sailed without hesitation for Egypt. It was only a few days after the death of Pompey that he appeared thus attended off the port of Alexandria. No sooner was his arrival known than Theodotus hastened to meet him on board his vessel, and brought to him the head and ring of his murdered rival. The latter might be of important service to assure the wavering of the event which had occurred, and Cæsar took and preserved it for that purpose; but from the mangled head he turned away with horror, and gave orders, with tears in his eyes, that it should be consumed with the costliest spices. The ashes he caused to be deposited in a shrine which he erected to the avenging Nemesis. The murderers were confounded and alarmed at the feeling he exhibited, nor were they less astonished, perhaps, at the perfect confidence with which he disembarked upon their coast, and claimed with his handful of followers to settle the concerns of a powerful kingdom.

It had been Cæsar's policy to spare the wealth of the provinces which he wished to attach to his side, and his system was directly opposed to the confiscation of his enemies' estates; but his want of money was urgent, and it was in arranging the quarrels of a dependent kingdom that the best opportunity might be found for exacting it. This undoubtedly was the urgent motive which impelled him to intrude upon the affairs of a jealous people, in which his principal designs were in no way implicated. When Auletes came to Rome to negotiate his restoration to the throne, he had purchased the support of the leaders of the senate by the most lavish bribes. Cæsar himself had received the promise of seventeen millions and a half of drachmæ; an obligation which had never yet been discharged. He now confined his demand to ten millions, but sternly rejected the representations of Pothinus, who pleaded for a longer time for the payment of so large a sum. But even at the moment of landing Cæsar was warned of the difficulties into which he was rushing. His military force was contemptible; it was upon the dignity of his title as consul of the republic that he could alone rely. Accordingly, he entered the streets of Alexandria with all the insignia of his office, thereby offending the populace, who were easily persuaded that he offered an intentional insult to their independence. A riot

ensued, in which many of the Cæsarian soldiers lost their lives. Cæsar felt that he had mistaken the character of the nation, and underrated their jealousy of foreigners.

But policy would not allow him to give way. He summoned the rival sovereigns before him, and offered to decide their disputes in the name of the republic. Ptolemy left his camp at Pelusium, and gave Cæsar a meeting in the palace of Alexandria, where he soon found himself watched and detained as a hostage. Cleopatra had already implored the consul's mediation, and now, when her brother or his ministers obstructed her approach to his presence, she caused herself to be carried by stratagem into his chamber. The fame of Cleopatra's beauty, which was destined to become second only to Helen's in renown, was already bruited widely abroad. She had been seen by Mark Antony during the brief inroad of Gabinius into Egypt; and grave legates of the republic had brought back to Rome glowing reports of the girlish charms of the Lagid princess. She was indeed, at the time of her introduction to Cæsar, not twenty years old, and her wit and genius in the arts of female conquest were yet unknown. Perhaps it was fortunate for their celebrity that the man upon whom she was first to prove their power was already predisposed to submit. Cæsar forthwith undertook the championship of the distressed beauty, for it suited his purpose to play off her claims against the haughty minions of her rival. In devoting himself to her cause he did not deny himself the reward of his gallantry; but while he indulged in the luxuries and dissipations of the most sensual of capitals, he kept his eye steadily fixed on his main object, and at the same time carefully guarded his own person from the machinations of his unscrupulous enemies.

The ministers of the young king were well assured that the reconciliation of the brother and sister would be the signal for their own disgrace. They employed every artifice to rouse the passions of a jealous mob, and alarmed the fanaticism of priests and people against a foreigner, whom they accused of desecrating their holy places, of eating accursed meats, and violating their most cherished usages. Cæsar had despatched an urgent message to Calvinus to hasten to his succour with all the forces he could muster. But while waiting for the arrival of reinforcements, the necessity of which he now keenly felt, he dissembled every appearance of apprehension, and occupied himself in public with the society of Cleopatra, or in conversation

with the Egyptian sages, and inquiry into their mysterious lore. His judgment was no more mastered by a woman's charms than by the fascinations of science; but the occupation of Alexandria was essential to his plans, and he assumed the air of curiosity or dissipation to veil his ulterior designs. With this view he visited with affected interest all the vaunted wonders of the city of the Ptolemies, and even proposed, it was said, to relinquish his schemes of ambition to discover the sources of the Nile. At the first outset of his career of glory, his imagination had been fired at Gades by the sight of Alexander's statue; now that the highest summit of power was within his reach, he descended to the tomb of the illustrious conqueror, and mused perhaps on the vanity of vanities beside his shrouded remains.

The young king, though kept in hardly disguised captivity within the walls of his palace, had found means to communicate to his adherents the alarm and indignation with which he viewed the apparent influence of his sister over the Roman commander. The Macedonian dynasty which had reigned for three centuries in Alexandria was not unpopular with its Egyptian subjects. Though the descendants of Lagus had degenerated from the genius and virtues of the first sovereigns of their line, their sway had ever been mild and tolerant, and both conquerors and conquered reposed in equal security under the shadow of their paternal throne. Achilles, the general of the king's armies, had a force of twenty thousand men, consisting principally of the troops which Gabinius had employed in the restoration of Auletes, and which had been left behind for his protection. These men had for the most part formed connections with the natives, and had imbibed their sentiments at the same time that they adopted their manners. The camp was filled, moreover, with a crowd of deserters and fugitive slaves from all parts of the Roman Empire, for Alexandria was the common resort of the desperate and abandoned, who purchased impunity for their crimes by enlisting in the king's service. These were the men who had placed Auletes on his throne, who had murdered the sons of the Roman legate Gabinius, and expelled Cleopatra from her royal inheritance. They were the reckless agents of the populace of Alexandria in each capricious mood of turbulence or loyalty. They were now prepared to join in the general outcry against the intrusion of the Romans, and encouraged by their leader and Arsinoe, the younger sister of their sovereign, they entered the city, and imparted vigour and concentration to the hostile ebullitions of the multitude.

[48-47 B.C.]

Cæsar awaited anxiously the expected succours; in the meantime he sought to avert the danger by concession, and while he proposed that Ptolemy and Cleopatra should resume their joint sovereignty, he was prepared to satisfy the claims of Arsinoë by surrendering to her, together with another younger brother, the province of Cyprus. But before these arrangements were completed, the discontent of the Alexandrians revived with more alarming violence. A skirmish which occurred in the streets between the Roman soldiers and the Egyptians determined Cæsar to take the bold step of seizing and burning the royal fleet. It was thus only that he could hope to keep the coasts open for the approach of his reinforcements. The city of Alexandria stretched along the sea-shore, and its port was formed by an island named Pharos, which lay over against it, and was connected with the mainland in the middle by a narrow causeway and bridge. The island was occupied by the villas of the Alexandrians and the suburbs of the great city. Its position enabled it to command the entrances of the double port which were apparently much narrower than at the present day. As a military position therefore it was invaluable, and while the tumult was raging in the streets Cæsar transported into it a portion of his troops, and seized the tower or fortress which secured its possession. At the same time he continued to occupy a portion of the palace on the mainland, which held the keys of communication with Pharos by the causeway. He strengthened the defences with additional works, destroying in every direction the private houses of the citizens, which being built entirely of stone, even to the floors and roofs, furnished him with abundant materials for his massive constructions. The Egyptian troops set to work with no less energy in forming triple barricades of hewn stone at the entrance of every street, and thus entrenching themselves in a fortress in the heart of their city. They looked forward



ROMAN TRUMPETER

(After De Montfaucon)

already to the arrival of winter, and were convinced that the enemy must fall eventually into their hands, when he could no longer derive supplies from beyond the sea.

But in the meanwhile the shade of Pompey began to be avenged on his murderers. At the commencement of the outbreak Cæsar had seized the person of Pothinus, who was in attendance upon the young king, and detecting him in correspondence with Achilles he put him summarily to death. Soon after, Arsinoë, who hoped to make use of the Egyptian general to elevate herself into the royal seat, having reason to be dissatisfied with his conduct, induced her confidant Ganymedes to assassinate him. The adhesion of the army she secured by a munificent largess, appointed Ganymedes her minister and general, and, assuming the diadem of her ancestors, caused herself to be proclaimed sole queen of Egypt.

The Alexandrians pressed the blockade with pertinacity. They could not hope to dislodge the enemy by force, but they expected to reduce him by cutting off his means of subsistence. A contemporary writer describes the artificial contrivances by which the population of Alexandria obtained their water, an abundance of which is of such primary necessity in the climate of Egypt. It is well known that rain rarely falls there, nor were there living springs for the supply of fountains. The common people, indeed, were content with the water of the Nile in the turbid state in which it flows through their slimy plain; but the houses of the wealthier classes were supplied by means of subterranean channels, with which the whole city was mined, and through which the stream of the river was carried into reservoirs, where the noxious sediment was gradually deposited. Such of these channels as led to the parts of the city occupied by the Romans the Alexandrians obstructed, so as to prevent the river from flowing into them, while on the other hand they filled them with sea-water, raised by hydraulic machinery, in the construction of which they were eminently expert. This operation caused at first great consternation among the Romans, and still more among the native population shut up within their defences. But its effect was defeated by Cæsar's sagacity. He caused his soldiers to dig pits on the sandy beach, and the brackish water which oozed up in them furnished a sufficient supply, not altogether unfit for drinking. At the same time the arrival of a legion from Asia, with a convoy of provisions and

military stores, at a point a little to the west of Alexandria, revived the courage of the besieged, and restored the fortunes of their commander.

The Rhodian vessels which had betaken themselves to Cæsar's side were now of great service to him in establishing a communication with these reinforcements. The islanders of Rhodes had succeeded to the nautical skill of Athens and Corinth, and were among the expert mariners of the time. Combined with the small flotilla which Cæsar had brought with him, and the ships which had lately arrived, these new allies presented a formidable force. The Egyptians, however, though the royal fleet had been destroyed, possessed considerable resources for the equipment of a naval armament. They collected from every quarter all the vessels they could muster, and hastily constructed others, till they found themselves in a condition to dispute once more the approach to the harbour. Nor were they less vigorous in the attack they made upon the enemy's defences by land. The crisis of danger called forth all Cæsar's energies; he never exposed his person more boldly, or encountered more imminent peril. At one moment he was so hard pressed as to be forced to leap from his vessel into the sea, and swim for his life, carrying his most valuable papers in his hand above the water, and leaving his cloak in the possession of the assailants, who retained it as a trophy, as the Arverni had preserved his sword.

The Egyptians indeed were ultimately worsted in every encounter, but they could still return to the attack with increased numbers; and Cæsar's resources were so straitened that he was not disinclined to listen to terms of accommodation, the insincerity of which was transparent. The Alexandrian populace declared themselves weary of the rule of their young princess, and disgusted with the tyranny of Ganymedes. Their rightful sovereign once restored to them, they would unite heartily with the republic, and defy the fury of the upstart and the usurper. It cannot be supposed that the Roman general was deceived by these protestations; the bad faith of the Alexandrians was already proverbial in the West. But he expected perhaps that the rivalry of Ptolemy and Arsinoe would create dissension in their camps; he may have preferred coping with the young king in open war, to keeping a guard over him, and watching the intrigues with which he beguiled his captivity; possibly the surrender was made in concession to a pressure he could not resist, and was adopted as a means of gaining time. But when Ptolemy was restored to his subjects, and immediately led them

to another attack upon the Roman position, the soldiers are said to have felt no little satisfaction at the reward of what they deemed their general's weak compliance.

Cleopatra, whose blandishments were still the solace of the Roman general throughout his desperate adventure, rejoiced to see her brother thus treacherously array himself in rash hostility to her protector. The toils were beginning to close around the young king. Mithridates of Pergamus, an adherent in whose fidelity and conduct Cæsar placed great reliance, was advancing with the reinforcements he had been commissioned to collect in Syria and the adjacent provinces. He reduced Pelusium, the key of Egypt by land as Pharos was by sea, and crossed the Nile at the head of the Delta, routing a division of the king's troops which attempted to check his progress. Ptolemy led forth his army to give battle to the new invader, and was followed by Cæsar. The Romans came up with the Egyptians, crossed the river in the face of their superior numbers, and attacked them in their entrenchments, which, from their knowledge both of the Macedonian and the Roman art of war, were probably not deficient in scientific construction. But the shock of the veterans was irresistible. The Egyptians fled, leaving great numbers slaughtered within the lines, and falling into their own ditches in confused and mangled heaps. The fugitives rushed to the channel of the Nile, where their vessels were stationed, and crowded into them without order or measure. One of them in which Ptolemy had taken refuge was thus overladen and sank.

This signal defeat, and still more the death of their unfortunate sovereign, reduced the defenders of the monarchy to despair. The populace of Alexandria issued from their gates to meet the conqueror in the attitude of suppliants and with the religious ceremonies by which they were wont to deprecate the wrath of their legitimate rulers. He entered the city, and directed his course through the principal streets, where the hostile barricades were levelled at his approach, till he reached the quarters in which his own garrison was stationed. He now reconstituted the government by appointing Cleopatra to the sovereignty, in conjunction with another younger brother, while he sent Arsinoë under custody to await his future triumph at Rome. The throne of his favourite he pretended to secure by leaving a Roman force in Alexandria. The pride of the republic was gratified by thus advancing another step towards the complete subjugation

of a country it had long coveted. Cæsar was anxious that so much Roman blood as had been shed in his recent campaigns should not appear to have sunk into the earth, and borne no fruit of glory and advantage to the state. The whole of this episode in his eventful history, his arrogant dictation to the rulers of a foreign people, his seizing and keeping in captivity the person of the sovereign, his discharging him on purpose that he might compromise himself by engaging in direct hostilities, and his taking advantage of his death to settle the succession and intrude a foreign army upon the new monarch, form altogether a pregnant example of the craft and unscrupulousness of Roman ambition.^b

The ancients have given us no satisfactory solution of Cæsar's object in allowing himself to be entangled in this war. We cannot believe that he was really intoxicated by a passion for Cleopatra, and surrendered his judgment and policy to her fascinations. It is more probable that he had fixed his eyes upon the treasures of Alexandria, to furnish himself with the resources of which he stood greatly in need; for he still firmly abstained from the expedients of plunder and confiscation within the limits of the empire, and the great victory of Pharsalia though rich in laurels had proved barren of emolument. He had yet another campaign to undertake against the beaten party, and his troops, so often balked of their prize, might require an instalment of the rewards of their final triumph. But when once engaged in a contest with the Egyptians, it was no longer politic, indeed it was hardly possible to withdraw. Cæsar threw himself, as was his wont, heart and soul into the struggle, and risked everything in a warfare which he felt to be ignoble. But when at last fortune favoured his arms, he still allowed himself to remain three months longer to consolidate the advantage he had gained. He had acquired a footing in the wealthiest kingdom in the world; he had placed there a sovereign of his own choice, whose throne he secured by means of a guard of Romans, thus preparing the way for the reduction of the country at no distant period to the form of a Roman province. As long as the remnant of the Pompeians were still scattered and unprepared, he lost little by neglecting to prosecute the war against them. He might wish them to gather head again, that he might again strike them down in a single blow. Indeed he now found leisure for a campaign against Pharnaces, the son of Mithridates.

THE WAR WITH PHARNACES

[47 B.C.]

Though professing himself an ally of Pompey, the king of the Bosporus had failed to bring his contingent to the republican camp. After the battle of Pharsalia he hoped to profit by the ruin of his father's foe, and the confusion of the republic. He mustered his forces and drove Deiotarus and Ariobarzanes from Armenia the lesser and Cappadocia. These princes sought the succour of Cæsar's lieutenant Calvinus, and though they had just fought on the Pompeian side, he received instructions to restore them. Calvinus however was routed by Pharnaces, who recovered his father's dominions in Asia Minor, and proceeded to expel from them the Roman settlers. Cæsar quitted Alexandria in April (47), landed at Tarsus, traversed Cilicia and Cappadocia, and reached the barbarian host at Zela in Pontus. A bloody battle ensued in which the Roman was completely victorious. The undisciplined hordes of the eastern sovereign once routed never rallied again. Pharnaces escaped from the field, but he was stripped of his possessions, and perished soon afterwards in an obscure adventure. The war was finished in five days, and the terms in which Cæsar is said to have announced it to the senate can hardly be called extravagant: "I came, I saw, I conquered." When he compared this eastern "promenade" with the eight years' struggle in which he had conquered Gaul by inches, he might exclaim on the good fortune of Pompey who had acquired at so little cost the reputation of a hero. After regulating with all despatch the affairs of the province, he hastened back to Italy, where his protracted absence had given occasion to serious disorders.

The measures which the dictator had enacted for the adjustment of debts were not received with equal satisfaction in every quarter. As soon as he was removed from the centre of affairs, the passions of the discontented found vent, and a prætor named Cælius fanned the flame for objects of personal ambition. Cælius was a clever, restless intriguer, and shrewd observer of other men, as appears in his amusing letters to Cicero, but altogether deficient in knowledge of himself, and much deceived in the estimate he formed of his own powers. He raised the criminal hopes of the worst and neediest citizens by proposing an abolition of debts; but he was unable to direct the passions he had excited, or to cope with the firmness of

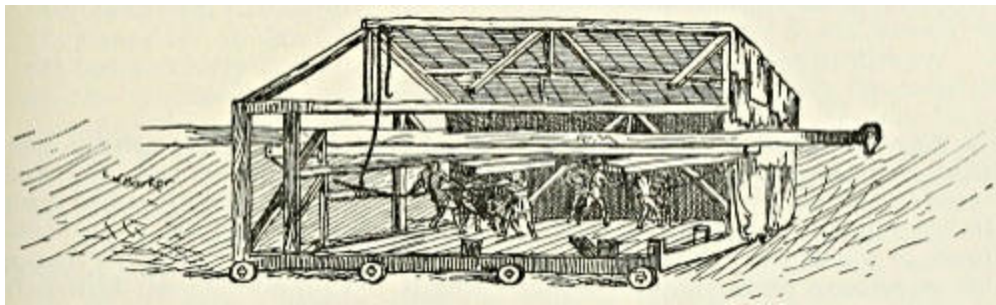
Servilius and the Cæsarian senate. He was declared incapable of holding any magistracy, expelled from the curia, and finally repulsed from the tribunate. He quitted Rome in disgust and fury, and had the temerity to plunge into an insurrection. Joining himself with Milo, who had left his place of exile and armed his gladiators in the south of Italy, he traversed Campania and Magna Græcia, soliciting the aid of outlaws and banditti. But the authorities of the capital had hardly time to take measures against the rebels, before they were reassured by the destruction of the one before Cosa, the other at Thurii.

CÆSAR RETURNS TO ROME

Cæsar's protracted absence from the capital strongly marked the confidence he felt in the stability of his arrangements there. Notwithstanding these symptoms of transient and partial disaffection the great mass of the citizens was firmly attached to him, and to this result the ferocious menaces of the Pompeians had in no slight degree contributed. We may imagine with what anxious suspense the upper classes at Rome had awaited the event of the campaign in Illyricum; nor were they altogether relieved by the report of the victory of Pharsalia. For this welcome news was accompanied or closely followed by the assurance that the victor was plunging still farther into the distant East, while the forces of his enemy, supported by their innumerable navies, were gathering once more in his rear. Nevertheless, his adherents insisted on the statues of Pompey and Sulla being ignominiously removed from the Forum, and his secret enemies were controlled by spies, and compelled to join in the public demonstrations of satisfaction. Much of the anxiety which still prevailed was removed by the account of the death of Pompey, confirmed by the transmission of his signet to Rome. None could now distrust the genius and the fortune of the irresistible conqueror. There was no longer any hesitation in paying court to him. His flatterers multiplied in the senate and the Forum, and only vied with one another in suggesting new honours for his gratification. Decrees were issued investing him with unbounded authority over the lives and fortunes of the vanquished. He was armed with full powers for suppressing the republican party which was again making head in Africa. In October, 48, Cæsar was created dictator for a second time; and the powers of the tribunate were decreed to him for the term of his life. He appointed Antony

his master of the horse, and commandant of the city. Brave, but violent and dissolute, Antony possessed neither the vigour nor the prudence which circumstances demanded.

The rumours which soon began to circulate at Rome of the perils which Cæsar was incurring at Alexandria, rendered his conduct uncertain; he hesitated to put down, with a firm hand, the disturbers of the republic, whom the death of his master might make more powerful than himself. The son-in-law of Cicero, Cornelius Dolabella, overwhelmed with debt, had followed the example of Clodius in getting himself adopted by a plebeian, and had thus acquired the tribunate. In this position he had recommended himself, like Cælius, to the worst classes of the citizens, by urging an abolition of debts. One of his colleagues resisted, and both betook themselves to violence. For some time Antony looked on as if uncertain which party to espouse; but a domestic affront from Dolabella, who had intrigued with his wife, roused his passion; he attacked the turbulent mob with arms, and filled the streets with the indiscriminate slaughter of eight hundred citizens. He did not venture, however, to punish the author of the disturbance, but contented himself with menaces and precautions till the fortunate arrival of the dictator himself in September, 47.



ROMAN BATTERING-RAM WITH TESTUDO

Contrary to the apprehensions of many of the citizens Cæsar's return was marked by no proscription. He confined himself to the confiscation of the estates of the men who still remained in arms against him; and that of Pompey himself, whose sons were in the hostile camp, he set up to public auction. A portion of them was bought by Antony, who ventured to evade the due payment of the price. He conceived that his services might command the trifling indulgence of release from a paltry debt. He found, however, that his patron was in earnest, and prudently submitted to the

affront. The dictator remained only three months in Rome. Every moment was fully occupied in the vast work of reconstructing the government; but we know not what were the special measures enacted at this period, and Cæsar's legislation may fitly be reserved to be contemplated hereafter at a single view. Two consuls were appointed for the remaining three months of the year, and for the next ensuing Cæsar nominated himself for the third time, together with Lepidus. He caused himself also to be again created dictator. His partisans he loaded with places and honours, and sated the populace with largesses. The soldiers demanded the fulfilment of his repeated promises. Those of the tenth legion broke out into open revolt, and ran from Campania to Rome to extort their claims. Cæsar convoked them in the Field of Mars, approached them unattended, mounted his tribunal, and demanded the statement of their grievance. At the sight of their redoubted general their voices faltered, their murmurs died away; they could only ask for their discharge. "I discharge you, citizens," replied the emperor; and they cowered under this disparaging appellation, abashed and humiliated. To the fierce and haughty soldier the peaceful name of *citizen* seemed a degradation. They entreated to be restored to their ensigns, and submitted to severe punishment in expiation of their fault. This simple incident is a key to the history of the times. This application of the title of citizen, and the effect it produced, show plainly that the basis of Cæsar's force was purely military, and that Cæsar himself knew it. This was the point at which every party leader in turn had tried for years to arrive, and Cæsar had succeeded.

THE AFRICAN WAR

As soon as this sedition was repressed Cæsar departed to crush the remnant of his enemies assembled in Africa. The defeated host had been scattered in various directions, but the largest division of the fugitives had made its way to Dyrrhachium, and there deliberated on its further movements. Cato, to whom the command was offered, waived it in favour of Cicero, as his superior in rank; but the orator declined to associate himself further in the honours and perils of a fruitless struggle, and departed mournfully for Italy. His life was with difficulty preserved from the fury of Cneius, the elder son of the great Pompey, a man of ungovernable passions and slender capacity. Shortly afterwards Scipio assumed the command of the main body, and carried it to Utica in the province of Africa. Cato at the

head of another division skirted the coasts of Greece and Asia, and picked up some scattered adherents of the cause. He followed in the track of Pompey, but when the news of his chief's assassination reached him, he landed on the shore of Libya, and demanded admission within the walls of Cyrene. The natives shut their gates; but Cato, always loath to exercise any unprofitable severity, generously abstained from chastising them. Anxious now to effect a junction with the remainder of his friends, he coasted westward as far as the lesser Syrtis, and then plunged with his little army into the sandy desert. The seven days' march through this inhospitable region, torrid with heat and infested with serpents, was justly considered one of the noblest exploits of the Roman legionaries. The poet of the *Pharsalia* exalts it above the three triumphs of Pompey and the victories of Marius over the tyrant of Numidia. He turns with pardonable enthusiasm from the deified monsters, the Caligulas and Neros of his own day, to hail its achiever as the true Father of his Country, the only worthy object of a free man's idolatry.

The arrival of Cato at the headquarters of the republicans in Utica was quickly followed by that of Cneius Pompey, and in the course of the year 47 the remains of the great host of Pharsalia were assembled with many reinforcements under the banners of Scipio. These forces amounted to not less than ten complete legions, and Juba, who could bring one hundred and twenty elephants into the field, besides innumerable squadrons of light cavalry, had promised his assistance. The officers began to brag of their future triumphs almost as loudly as before their recent disasters. Their defiance was re-echoed to the opposite shores of Italy, and caused fresh dismay to the time-servers, who had abandoned the Pompeian cause on the event of its first discomfiture. But this force, numerous as it was, was not in a condition, it would seem, to choose a distant field of operations. The want of money may have compelled its chief still to act on the defensive, and await through a whole year the expected attack of the enemy. Nor were these chiefs themselves unaffected by personal jealousies. Scipio and Varus contended for the command, the one as the foremost in rank and dignity, the other as the legitimate proconsul of the province; while Juba, conscious of his own importance to the cause, affected to lord it over both. Cato alone continued still to act with his usual simplicity of purpose and patriotic devotion. But his noble demeanour rebuked the selfishness of his associates, and they contrived to remove him from their counsels by

charging him with the defence of Utica, while they shifted their own quarters to the neighbourhood of Hadrumetum. The brave philosopher rejoiced that he was not compelled to draw his sword in civil strife, while he busied himself not the less earnestly in the collection of stores and preparation of defence. Of all the professed asserters of Roman liberty he alone really lamented the necessity of arming in her cause; from the first outbreak of the war he had refused to trim his venerable locks or shave his grizzled beard, and from the fatal day of Pharsalia he had persisted in sitting at his frugal meals, and denied himself the indulgence of a couch.

[47-46 B.C.]

A whole year had now passed, while the republicans contemplated with folded arms the perils Cæsar had surmounted in Alexandria, the victory he had gained over Pharnaces, and the brilliant reception he had met with in Rome. Cæsar assembled six legions and two thousand horse at Lilybæum in Sicily, and in the middle of October 47, he appeared off the African coast with the first division of his forces, and summoned the republicans in their camp at Hadrumetum to surrender to “Cæsar the emperor.” “There is no emperor here but Scipio,” they replied, and inflicted death upon his envoy as a deserter. The dictator sailed on to Leptis, and was there invited to take shelter, while he awaited the arrival of the rest of his armament.

While these reinforcements were coming slowly in he was attacked by Scipio, and subjected to annoyance and peril from the movements of the enemy’s cavalry. Labienus, who frequently charged him at the head of the Roman horse, distinguished himself by the bitter taunts with which he addressed the veterans whom he had so often led to victory. But Cæsar maintained himself in a fortified position till he could move forward with a force of five legions. At the same time the alliance he had formed with the Mauretanian kings, Bogudes and Bocchus, the jealous rivals of the Numidians, enabled him to draw off Juba to the defence of his own capital Cirta. He pushed on, offering battle, which Scipio, though with double his numbers, steadily refused, until Juba returned with his vaunted elephants and cavalry. The necessities of the Roman chiefs compelled them to submit to revolting indignities at the hands of this barbarian ally. He forbade Scipio the use of the emperor’s purple cloak, which he declared to belong only to kings. When he issued his royal mandates to the Roman officers, they were

observed to be even more punctually obeyed than the orders of the general himself.

At last on the 4th of April the armies met on the field of Thapsus. On this occasion many of Cæsar's men were fresh recruits, and he was not without some misgivings about their steadiness. But they were not less impatient for the onset than the veterans, whom their general recommended to their imitation, and loudly demanded the signal to engage. While he still hesitated, checking with hand and voice the impatient swaying of the lines, suddenly the blast of a single trumpet burst forth on the right wing. The impetuous ferocity of the tenth legion could no longer brook restraint; they had raised the signal unbidden; and now the whole army rushed forward in one unbroken body, overpowering their officers' efforts to detain them. Cæsar, when he beheld rank after rank pouring by him, without the possibility of recall, gave the word "Good luck" to his attendants, and spurred his horse to the head of his battalions. The combat was speedily decided. The elephants, thrown into confusion by the first discharge of stones and arrows, turned upon the ranks they were placed to cover, and broke in pieces their array. The native cavalry, dismayed at losing their accustomed support, were the first to abandon the field. Scipio's legions made little resistance; they sought shelter behind their entrenchments. But their officers had fled, and the men, left without a commander, rushed in quest of their discomfited allies. They found the Numidian camp in the hands of the enemy; they begged for quarter, but little mercy was shown them, and Cæsar himself beheld with horror a frightful massacre which he was powerless to control. Scipio escaped to the coast, and embarked with others for Spain, but was intercepted and slain.^[119] Juba and Petreius fled together, and sought refuge within the walls of Zama. But the Numidians rejoiced in the defeat of their tyrants and refused them solace or shelter. The fugitives, repulsed in every quarter, and disdaining to solicit the victor's clemency, placed themselves at a banquet together, drank their fill of wine, and challenged each other to mortal combat. Petreius, the elder of the two, was despatched by his opponent, who then threw himself upon his own sword.^[120]

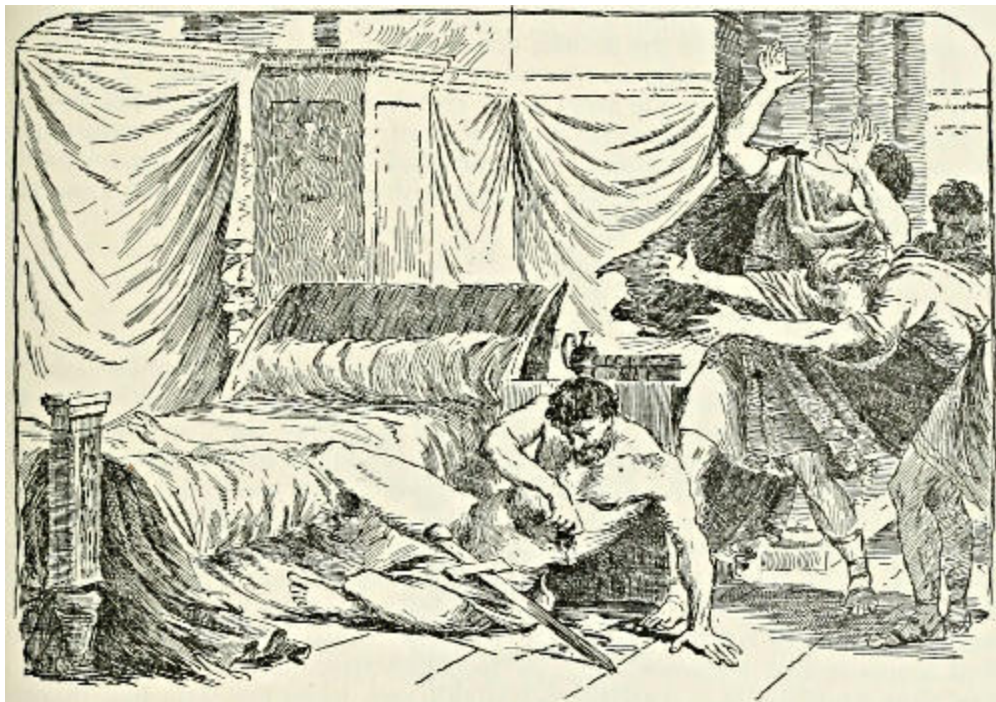
The rout of Thapsus was known at Utica on the same evening. On the morrow Cato convened the Roman officers and residents, and laid before them the state of their affairs. Calmly and cheerfully he enumerated his

means of defence, and desired them to decide for themselves whether they would resist the conqueror, or seek safety in flight or capitulation. The knights and senators, despairing of pardon, would have held out to the uttermost; but the traders and men of peace, who had long settled in Utica, and were conscious that they had done nothing hitherto to provoke the wrath of the assailant, insisted on a timely surrender. When it was known that Cæsar was approaching, Cato caused all the gates to be closed except that which led to the sea, and urged all that would to betake themselves to the ships. He dismissed his personal friends, of whom a few only, and among them his own son, insisted on remaining with him; for he had plainly intimated that for his own part he would not quit his post. With these cherished associates he sat down to supper, and discoursed with more than his usual fervour on the highest themes of philosophy, especially on the famous paradox of the stoics, that the good man alone is free, and all the bad are slaves. His companions could not fail to guess the secret purpose over which he was brooding. They betrayed their anxiety only by silent gestures; but Cato, observing the depression of their spirits, strove to reanimate them, and divert their thoughts by turning the conversation to topics of present interest.

[46 B.C.]

The embarkation was at this moment proceeding, and Cato repeatedly inquired who had already put out to sea, and what were the prospects of the voyage. Retiring to his chamber he took up the *Dialogue on the Soul*, in which Plato recorded his dying master's last aspirations after immortality. After reading for some time he looked up and observed that his sword had been removed. In the irritation of the moment he gave way to a burst of violence, such as often marked the behaviour of the Roman master to his slave; calling his attendant to his presence he struck him on the mouth, bruising his own hand with the blow. He then sent for his son and friends, and rebuked them sharply for their unworthy precaution; "as if," he said, "I needed a sword to kill myself, and might not, if I chose, put an end to my existence by dashing my head against the wall, or merely by holding my breath." Reassured perhaps for the moment by the calmness of his demeanour, they restored him his weapon, and at his earnest desire once more left him alone. At midnight, still anxious about those who were departing, he sent once again to inquire if the embarkation were completed. The messenger returned with the assurance that the last vessel was now on

the point of leaving the quay. Thereupon Cato threw himself on his bed, as if about to take his rest for the night; but when all was quiet he seized his sword and thrust it into his stomach. The wound was not immediately mortal, and the victim rolled groaning on the floor. The noise at once summoned his anxious attendants. A surgeon was at hand, and the sufferer was unconscious while the protruding intestines were replaced, and the gash sewn up. But on coming to himself he repulsed his disconsolate friends, and tearing open the fatal wound, expired with the same dogged resolution which had distinguished every action of his life.



DEATH OF CATO

(From a drawing by Mirys)

Cato had no cause to despair of retaining life under the new tyranny. At an earlier period he had meditated, in such a contingency, seeking refuge in retirement and philosophy. But his views of the highest good had deepened and saddened with the fall of the men and things he most admired. He now calmly persuaded himself that with the loss of free action the end of his being had failed of its accomplishment. He regarded his career as prematurely closed, and deemed it his duty to extinguish an abortive existence. ^[121] Cæsar, when he heard of his self-destruction, lamented that

he had been robbed of the pleasure of pardoning him, and to his comrades in arms he exhibited, according to the most credible accounts, the same clemency by which he had so long distinguished himself. But the same man who could now speak and act thus generously, did not scruple, at a later period, to reply to Cicero's panegyric with a book which he called the *Anti-Cato*, in which he ridiculed the sage's vain pretensions, and scoffed at him for raking in his brother's ashes for the golden ornaments of his pyre, for transferring to Hortensius the wife who had borne him as many children as he desired, and taking the widow to his arms again enriched with a magnificent dowry. Could the proud philosopher have anticipated a time when the wantonness of power might sport unchecked with the good fame of its victims, he would have shrunk from such moral degradation with greater horror than from the servitude of the body.^c

SALLUST'S COMPARISON OF CÆSAR AND CATO

“After hearing and reading of the many glorious achievements which the Roman people had performed at home and in the field, by sea as well as by land, I happened to be led to consider what had been the great foundation of such illustrious deeds. I knew that the Romans had frequently, with small bodies of men, encountered vast armies of the enemy; I was aware that they had carried on wars with limited forces against powerful sovereigns; that they had often sustained, too, the violence of adverse fortune; yet that, while the Greeks excelled them in eloquence, the Gauls surpassed them in military glory. After much reflection, I felt convinced that the eminent virtue of a few citizens had been the cause of all these successes; and hence it had happened that poverty had triumphed over riches, and a few over a multitude. And even in later times, when the state had become corrupted by luxury and indolence, the republic still supported itself, by its own strength, under the misconduct of its generals and magistrates; when, as if the parent stock were exhausted, there was certainly not produced at Rome, for many years, a single citizen of eminent ability. Within my recollection, however, there arose two men of remarkable powers, though of very different character, Marcus Cato and Caius Cæsar, whom, since the subject has brought them before me, it is not my intention to pass in silence, but to describe, to the best of my ability, the disposition and manners of each.

“Their birth, age, and eloquence, were nearly on an equality; their greatness of mind similar, as was also their reputation, though attained by different means. Cæsar grew eminent by generosity and munificence; Cato by the integrity of his life. Cæsar was esteemed for his humanity and benevolence; austereness had given dignity to Cato. Cæsar acquired renown by giving, relieving, and pardoning; Cato by bestowing nothing. In Cæsar there was a refuge for the unfortunate; in Cato, destruction for the bad. In Cæsar, his easiness of temper was admired; in Cato, his firmness. Cæsar, in fine, had applied himself to a life of energy and activity; intent upon the interests of his friends, he was neglectful of his own; he refused nothing to others that was worthy of acceptance, while for himself he desired great power, the command of an army, and a new war in which his talents might be displayed. But Cato’s ambition was that of temperance, discretion, and, above all, of austerity; he did not contend in splendour with the rich, or in faction with the seditious, but with the brave in fortitude, with the modest in simplicity, with the temperate in abstinency; he was more desirous to be, than to appear, virtuous; and thus, the less he courted popularity, the more it pursued him.”^e[122]

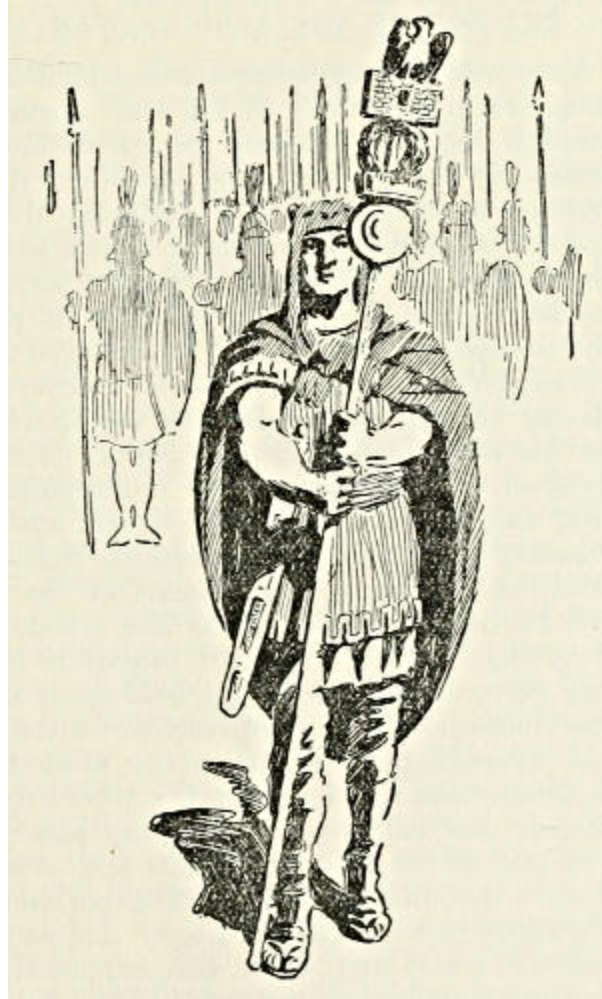
FOOTNOTES

[119] [Florus^d says: “Scipio got off in a ship but, as the enemy overtook him, he thrust his sword into his bowels; and when some one asked where he was, he returned this answer: ‘The general is well.’” Appian^f says: “he ran his sword through his body, and threw himself into the sea.”]

[120] [Says Florus^d: “Petreius slew both Juba and himself; and the half-consumed meats and funeral dishes were mixed with the blood of a king and a Roman.”]

[121] [Florus^d in Roman fashion says: “Hearing of the defeat of his party, he did not hesitate to die; but even cheerfully, as became a wise man, hastened his own death.”]

[122] [Sallust’s comparison of Cæsar and Cato should not mislead the reader as to the importance of the latter, who in fact exercised little influence on the great events of his age.]



CHAPTER XXV. THE CLOSING SCENES OF CÆSAR'S LIFE

THE END OF THE AFRICAN WAR

The suicide of Cato was the consistent act of a heathen philosopher, determined at least to maintain the purity of his soul uncontaminated by base compliances. Assuredly the calm dignity of its execution demands our respect and compassion, if not the principle on which it was based. Far different was the manner in which the rude barbarian Juba and the coarse soldier Petreius ran forward to meet their ends. They had escaped together from the field of battle, and the Numidian offered to provide shelter for his companion in one of his own strongholds. The Roman province was so ill-disposed towards the barbarian chief that he was obliged to hide himself by day in the most secluded villages, and roam the country on his homeward flight during the hours of darkness. In this way he reached Zama, his second capital, where his wives and children, together with his most valuable treasures, were deposited. This place he had taken pains to fortify at the commencement of the war, with works of great extent and magnitude. But on his appearance before the walls, the inhabitants deliberately shut their gates against him and refused to admit the enemy of the victorious Roman. Before setting out on his last expedition, Juba had constructed an immense pyre in the centre of the city, declaring his intention, if fortune went ill with him, of heaping upon it everything he held most dear and precious, together with the murdered bodies of the principal citizens, and then taking his own place on the summit, and consuming the whole in one solemn conflagration. But the Numidians had no sympathy with this demonstration of their sovereign's despair, and resolved not to admit him within their walls. Juba having tried in vain every kind of menace and entreaty, to which no reply was vouchsafed, at last retired, but only to experience a similar reception in every other quarter to which he resorted. He at least had little to hope from the clemency which the victor had extended to his conquered countrymen. His companion, hard as his own iron corslet, scorned to accept it. The fugitives supped together, and, flushed with the fumes of the banquet, challenged each other to mutual slaughter. They were but unequally matched; the old veteran was soon despatched by his more active

antagonist, but Juba was constant in his resolution, and only demanded the assistance of an attendant to give himself the last fatal stroke.

Nor was the fate of Considius, of Afranius, and Faustus Sulla less disastrous. The first of these had abandoned the defence of Thysdrus at the approach of the forces which Cæsar despatched against it, and attempted to make his escape with the treasures he had amassed into the territories, until now friendly, of the Numidian chieftains. He was destroyed, for the sake of his hoarded booty, by the Gætulians who accompanied him in his flight. The others had retained the command of a squadron of Scipio's cavalry, and after burning one town which had shut its gates against them had made a desperate attack on the military post which Cato maintained outside the walls of Utica, to wreak an unworthy vengeance on the Cæsarian partisans there kept in custody. Baffled in this object they had made their way into Utica, while Cato still commanded there, and had added bitterness to his last days by the violence and ferocity of their behaviour. From thence they led their ruffians along the coast in the hope of finding means of transporting them into Spain. But on their way they fell in with Sittius, who was advancing to join Cæsar; their men were routed and themselves taken. The bands of the Roman adventurer carried on war with the same brutality as the barbarians among whom they practised it. The captors quarrelled among themselves; their passions were inflamed, perhaps, in the distribution of the prisoners and the booty; and both Afranius and Faustus were killed in the fray which ensued. But the massacre of the son of the dictator Sulla, accidental as it was, or at least unauthorized, could hardly fail of being charged as a deliberate act upon the representative of Marius.

While his foes were thus flying and falling, Cæsar advanced triumphantly from the scene of his last exploit, receiving the submission of the towns on his way, carrying off the stores and treasure collected for his enemies' use, and leaving garrisons to retain them in fidelity. As he drew near to Utica he was met by L. Cæsar, whose petition for mercy seems to have been confined to his own person, and to whom, as well as to a long list of distinguished nobles, the conqueror extended the promise of his protection. He lamented with every appearance of sincerity that Cato had robbed him of the pleasure of pardoning one who, of all his antagonists, had been the most obstinate in his opposition, and the most inveterate in his hatred. The fatal compliance of the Utican senators, who, not content with obeying his

enemies' commands, had contributed money to their cause, furnished him with a specious pretence for rifling their coffers of the treasures he now most urgently needed. His requisitions amounted to two hundred millions of sesterces. At the same time the city of Thapsus was mulcted in two millions, and the company of Roman traders in three. Hadrumetum paid down three millions, and its Roman capitalists five. Leptis and Thysdrus also suffered in due proportion. A grand auction was held at Zama for the sale of all the objects of Juba's royal state, and of the goods of the Roman citizens who had borne arms under the tyrant's orders. Upon the people who had so boldly defied their sovereign, and refused him admittance within their walls, honours and largesses were munificently showered, and the taxes heretofore demanded for the royal treasury were partially remitted by the collectors of the republic. But the country of Numidia was deprived of its independence, and definitely reduced to the form of a province, under the proconsulate of Sallust. The rewarded and the punished acquiesced equally in the conqueror's dispositions; the submission of Africa to his authority was from thenceforth complete. The Uticans were allowed to commemorate with a funeral and a statue the humane and noble conduct of their late governor.

THE RETURN TO ROME

Cæsar settled the affairs of Africa with his usual despatch, and sailed from Utica on the fourteenth day of April, 46 B.C. On his way to Italy, he stopped at Caralis, in Sardinia. The aid which the island had afforded to his adversaries furnished him with a decent pretext for extorting from the inhabitants large sums of money. At the end of the same month he again weighed anchor; but the prevalence of easterly winds drove him repeatedly to shore, and he at last reached Rome on the twenty-eighth day after his departure from the Sardinian capital. The reports he received at this time of the revival of the republican cause in Spain did not give him much uneasiness. Cneius had been detained by sickness in the Baleares, and the fugitives from the field of Thapsus had been almost all cut off in their attempts to reach the point to which their last hopes were directed. The legionaries who had mutinied against Cassius Longinus were still either unsatisfied with their treatment under the commander who had superseded him, or fearful of their general's vengeance when a fitting opportunity

should arrive. It was from Cæsar's own soldiers that the invitation had gone forth to the republican chiefs to renew the struggle on the soil of Spain. The spirit of the old commonwealth still survived in many of the towns of Bætica; promises of support were freely given; but the remnant of the African armament was contemptible both in numbers and ability. Of all the haughty nobles who had thronged the tent of Pompey at Luceria or Thessalonica, not one with a name known to history remained in arms, except Labienus alone. He indeed had succeeded in making his escape from Africa, in company with Varus; but the insurgents had already placed themselves under the command of Scapula and Aponius, officers of their own, nor would they suffer themselves to be transferred from them to any other except the son of the great Pompey. The extent to which the flame of insurrection had spread was probably unknown at this time to Cæsar. He was impatient to reap at last the fruit of so much bloodshed, to assume the post of honour he had won, and to work out the principles and objects of so many years of anticipation. A distant and contemptible outbreak might be subdued without meeting it in person. Accordingly, C. Didius, an officer of no eminent reputation, was sent with a naval and military force to the succour of Trebonius, whom, however, he found already expelled from his government by the growing force of the new movement.

Meanwhile Rome had sunk, during the conqueror's absence, into a state of torpid tranquillity. The universal conviction that the dictator's power was irresistible had quelled all further heavings of the spirit of discontent. Dolabella had been gratified with a command in the late campaign; while others, in whose fidelity and military skill he could rely, had been left behind to overawe disaffection. The most illustrious of the nobility having now no occasion to remain at Rome for the sake of paying court to a jealous ruler, had retired generally to their country seats; but Cicero seems to have feared giving occasion for distrust if he withdrew himself from the broad eye of public observation. He occupied himself, however, in his philosophical studies, and could rejoice that he had never, like so many of his contemporaries when plunging into the excitements of political life, abandoned the literary pursuits common to them in youth. While he still regarded the contest in Africa with the sentiments of a true republican, he confessed with a sigh that though the one cause was assuredly the more just, yet the victory of either would be equally disastrous. He probably held aloof from the proceedings of the servile senate, which occupied itself

during the months of Cæsar's absence in devising new honours for his acceptance. First of all it decreed the religious ceremony of a thanksgiving of forty days, being twice the term to which the compliance of popular gratitude had ever previously extended, and it was by the length of the observance that the honour was estimated. Next it appointed that the victor's triumphal car should be drawn by horses of white, the sacred colour, and that the number of his attendant lictors should be doubled. He was to be requested to undertake the office of censor for three years, under a new title, which should not remind the citizens too closely of the times of republican liberty, that of *præfectus morum*, or regulator of manners. The changes which the revolutionary storm had effected in the condition of so many of the citizens justified a resort to the old constitutional resource for purging the senate of scandalous or impoverished members, and infusing new blood into its veins.

The most substantial of all these tributes to Cæsar's ascendancy was the decree by which he was appointed dictator for a period of ten years; for thus the initiative of legal measures was united in his hands with the command of the legions both at home and abroad. Other specious honours, in the taste of the times, were accumulated upon him. His chair was to be placed between those of the consuls in the assembly of the senate; he was to preside and give the signal in the games of the circus; and his figure in ivory was to be borne in procession among the images of the gods, and laid up in the Capitol, opposite the seat of Jupiter himself. A statue was to be erected to him in bronze, standing upon a globe, with the inscription, "Cæsar the demi-god." His name was to be engraved on the entablature of the Capitol, in the place of that of Catulus, its true restorer. The historian who recounts these honours assures us that many others besides these were offered; he has only omitted to specify them because Cæsar did not think fit to accept them. It is difficult to imagine to what lower depth of obsequiousness the senate could have descended, or what higher dignities the conqueror would have rejected.

CÆSAR'S TRIUMPHS

The time had now arrived for the celebration of the Gallic triumph, which had been so long postponed. In the interval, the emperor's victories had

been multiplied, and the ranks of his veterans had been recruited by fresh enlistments; so that every soldier who had shared in his later perils and successes demanded the reward of participating in his honours. Cæsar claimed not one, but four triumphs: the first, for his conquest of the Gauls; the second for his defeat of Ptolemy; another, for his victory over Pharnaces; and the last, for the overthrow of Juba. But he carefully avoided all reference to what were in reality the most brilliant of his achievements. In Spain and Thessaly he had routed the disciplined legions of his own countrymen; but their defeat brought no accession of honour or territory to the republic. The glory it reflected on the victor was dubious and barren. The four triumphs were celebrated, with intervals of a few days between each, that the interests of the public might not pall with satiety. The first procession formed in the Campus Martius, outside the walls of the city. It defiled through the triumphal gate at the foot of the Capitoline Hill, and crossed the deep hollow of the Velabrum and Forum Boarium, on its way to the Circus Maximus, which occupied the valley between the Palatine and Aventine. In passing through the Velabrum, the chariot in which the emperor stood, happened to break down; a mischance which so affected him that he never afterwards, it is said, ascended a vehicle without repeating a charm.

The long procession wound round the base of the Palatine, skirting the Aventine and Cælian hills, to the point where the arch of Constantine now stands. There it began the ascent of the gentle slope which separates the basin of the Colosseum from that of the Roman Forum. It followed the same track which now leads under the arch of Titus, paved at this day with solid masses of hewn stone, which may possibly have re-echoed to the tramp of Cæsar's legions. Inclining a little to the right at the point where it gained the summit of the ridge and looked down upon the comitium and rostra, in the direction of the Capitol, it passed before the spot where the temple of Julius was afterwards built; thence it skirted the right side of the Forum, under the arch of Fabius, till it reached a point just beyond the existing arch of Severus, where the two roads branched off, the one to the Capitoline temple, the other to the Mamertine prison. Here it was that Cæsar took the route of triumph to the left, while Vercingetorix was led away to the right, and strangled in the subterranean dungeon. The Gallic hero doubtless met with firmness and dignity the fate to which he had so long been doomed, while his conqueror was exhibiting a melancholy

spectacle of human infirmity, crawling up the steps of the Capitol on his knees, to avert, by an act of childish humiliation, the wrath of the avenging Nemesis. The next instance of similar degradation recorded is that of the emperor Claudius, who being corpulent and clumsy performed the ungraceful feat with the support of an arm on either side. The practice was probably of no unusual occurrence, and was deeply rooted, we may believe, in ancient and popular prejudices. A remnant of it still exists, and may be witnessed by the curious, even at the present day, on the steps of the Ara Cœli and at the Santa Scala of the Lateran.



A SACRIFICATOR

The days of triumph which succeeded passed over with uninterrupted good fortune. The populace were gratified with the sight of the Egyptian princess Arsinoe led as a captive at the conqueror's wheels; but she was spared the fate of the Gallic chieftain out of favour to her sister, or perhaps out of pity to her sex. The son of the king of Numidia who followed the triumphal car was also spared, and lived to receive back his father's crown from Augustus. Though Cæsar abstained from claiming the title of a triumph over his countrymen, he did not scruple to parade their effigies among the shows of the procession. The figures or pictures of the vanquished chiefs were carried on litters, and represented the manner of their deaths. Scipio was seen leaping desperately into the sea; Cato plunging the sword into his own bowels; Juba and Petreius engaged in mortal duel; Lentulus stabbed by the Egyptian assassin; Domitius pierced perhaps in the back, in token of his flight. The figure of Pompey alone was withheld for fear of the commiseration it might excite among the people whose favourite he had so lately been. Nor, as it was, were the spectators unmoved. Upon the unfeeling display of Roman defeat and disaster they reflected with becoming sensibility. But the pictures of Achilles and Pothinus were received with unmingled acclamations, and loud was the cry of scorn at the exhibition of Pharnaces flying in confusion from the field. After all, the most impressive part of the ceremony must

have been the appearance of the rude veterans whose long files closed the procession. With what ignorant wonder must the children of Gaul and Iberia, of Epirus and Africa, have gazed at the splendour of the city, of which the fame resounded in their native cabins! What contempt must they have felt for the unarmed multitudes grinning around them! How reckless must they have been of the dignity of the consuls and senators, they who claimed the license of shouting derisive songs in the ears of their own commander! Little did they think that grave historians would sum up their coarse camp jokes in evidence against the fame of their illustrious leader; still less did they dream of the new power which the military class was thenceforth to constitute in the state. Rome in fact was their own; but it was a secret they were not yet to discover.

The satisfaction of his armed supporters, however, was the first condition on which the supreme power of the dictator must henceforth be maintained in the city. It was a matter, indeed, of hardly less importance to secure the good humour of the urban population. While the soldiers receive each a donative of twenty thousand sesterces, the claims of the much larger multitude of the free citizens were not undervalued severally at four hundred; especially as they received the additional gratification of one year's remission of house rent. It does not appear how this indulgence differed from that for which Cælius and Dolabella had raised their commotions; but the dictator had so strenuously resisted every attempt to set aside the just claims of creditors on all previous occasions, that it can hardly be doubted that in this case he gave the landlords compensation from the public treasury. The mass of the citizens was feasted at a magnificent banquet, at which the Chian and Falernian wines, the choicest produce of Greece and Italy, flowed freely from the hogshead, and towards which six thousand lampreys, the most exquisite delicacy of the Roman epicure, were furnished by a single breeder. The mighty multitude reclined before twenty-two thousand tables; each table having its three couches, and each couch, we may suppose, its three guests; so that the whole number feasted may have amounted to nearly two hundred thousand. When Cæsar undertook the functions of his censorship, the number of recipients of the public distributions of corn was estimated at 320,000. Upon a scrutiny into their claims as genuine and resident citizens, he was enabled to strike off as many as 150,000 from this list. Adding to the remainder the senators and knights, and the few wealthy individuals who might have scorned to partake

of a state provision, the sum will correspond pretty accurately with the number of the imperial guests as above computed.

The public shows with which these gratifications were accompanied were carried out on a scale of greater magnificence than even those recently exhibited by Pompey. There was nothing in which the magistrates of the republic vied more ostentatiously with one another than in the number of wild beasts and gladiators which they brought into the arena. The natural taste of the Italian people for shows and mummery degenerated more and more into an appetite for blood; but in this, as in every other respect, it was Cæsar's ambition to outdo his predecessors, and the extraordinary ferocity and carnage of the exhibitions which he complacently witnessed excited a shudder even in the brutal multitude. The combatants in the games of the Circus were either professional gladiators, who sold their services for a certain term of years, or captives taken in war, or lastly public criminals. But Cæsar was, perhaps, the first to encourage private citizens to make an exhibition of their skill and valour in these mortal combats. He allowed several men of equestrian rank, and one the son of a prætor, to demean themselves in the eyes of their countrymen by this exposure to the public gaze. It was only when a senator named Fulvius Setinus asked permission thus to prostitute his dignity, that the dictator was at last roused to restrain the growing degradation.

If the people of Rome were shocked at the bloodshed which they were invited to applaud, it seems that they were offended also at the vast sums which were lavished on these ostentatious spectacles. They would have preferred, perhaps, that the donative to themselves should have been greater, and the soldiers even exhibited symptoms of discontent and mutiny in consequence. No instance of Cæsar's profuse expenditure excited greater admiration than his stretching a silken awning over the heads of the spectators in the Circus. This beautiful material was brought only from the farthest extremity of India, and was extremely rare and precious at Rome at that time. Three centuries later it was still so costly that a Roman emperor forbade his wife the luxury of a dress of the finest silk unmixed with a baser fabric. But a more permanent and worthy object of imperial expenditure was the gorgeous Forum of which Cæsar had long since laid the foundation with the spoils of his Gallic Wars. Between the old Roman Forum and the foot of the Quirinal, he caused a large space to be enclosed with rows of

marble corridors, connecting in one suite halls of justice, chambers of commerce, and arcades for public recreation. In the centre was erected a temple to Venus the ancestress, the patroness for whom Cæsar had woven a breastplate of British pearls, and whose name he had used as his watchword on the days of his greatest victories. He now completed the series of his triumphal shows by the dedication of this favourite work. It remained for centuries a conspicuous monument of the fame and magnificence of the first of the Cæsars. His successors were proud to cluster new arches and columns by its side, and bestowed their names upon the edifices they erected in connection with it. Finally, Trajan cut through the elevated ridge which united the Capitoline with the Quirinal, and impeded the further extension of the imperial forums. He filled the hollow with a new range of buildings, occupying as much ground as the united works of his predecessors in this quarter. The depth of his excavation is indicated, it is said, by the height of the pillar which bears his name.

THE LAST CAMPAIGN

[46-45 B.C.]

Our review of the dictator's proceedings in the discharge of his civil functions must be postponed, but only for a moment, to relate the short episode of his last military exploit. The despatches of his lieutenants in Spain represented that province as rapidly falling into the hands of the republican faction. Varus and Labienus had escaped from Africa, and joined the standard under which Scapula marshalled the disaffected legions in Spain. Cneius Pompeius had also issued from his retreat in the Balearic Isles, and as soon as he appeared in their camp every chief of the oligarchy waived his own pretensions to the command in deference to the man who represented the fame and fortunes of their late leader. Yet Scapula had the confidence of the soldiers, Labienus was an officer of tried ability and reputation, and Varus had at least held the highest military commands, while Cneius himself was personally unknown to the legions in Spain, and his only achievement in war had been a dashing naval exploit. So cowed by its repeated reverses was the spirit of the old Roman party, which had revived for a moment in Africa with vain exultation at finding itself relieved from the ascendancy of its own military champion. Cneius, on his part, seems to have regarded the renewed contest in the light of a private quarrel. His war-

cry was not “Rome,” “Liberty,” or “The Senate,” but “Pietas,” “Filial Duty.”

The disaffection among Cæsar’s soldiers had become widely spread; a large body of them had enrolled themselves under their new leaders; their numbers had been augmented by provincial enlistments; even slaves had been drafted into the ranks; while the cities and states of the peninsula lent their aid more or less openly to the cause. It was not in the remoter parts of the province or among the half-subdued native principalities, but in the centre of Roman influence and civilisation, in Corduba itself, that the standard of the adventurers was unfurled. Cæsar had completed the ceremonies of his quadruple triumph, and was deeply engaged in the arduous task of legislation for the new system of government which he had undertaken to raise, when he found it necessary to postpone every other occupation to meet his enemies once more in arms. So uncertain and tedious was the navigation of those days that he may have chosen the land route across the Alps and Pyrenees, for the sake of reaching his destination with greater speed. [\[123\]](#)

The details of the campaign into which he immediately plunged are given, but very obscurely, in the last of the series of contemporary memoirs which have hitherto been our guides throughout the military history of the period. In point of composition it betrays less literary accomplishment than any of its kindred works. The rude soldier who seems to have been its author had no hesitation in recording in their undisguised enormity the cruelties which disgraced the conduct of both parties. Cæsar’s character for humanity suffers more in this than in any other contemporary narrative of his actions. The campaign was, indeed, a series of butcheries on either side, but Cneius was, perhaps, the most savagely ferocious of all the captains of the civil wars. The scene of the last act of Roman liberty was laid in the valley of the Guadalquivir and the defiles of the Sierra de Tolar. After a variety of desultory movements, of which we obtain from the narrative only an indistinct notion, we find the rival armies at last drawn up in hostile array on the field of Munda. Cæsar was this time superior in numbers, and especially in cavalry; but the enemy was well posted, and fought well: never, it is said, was the great conqueror brought so near to defeat and destruction. [b](#)

“When the armies were going to close, Cæsar, seeing his men go on but coldly and seem to be afraid, invoked all the gods, beseeching them with hands lifted up to heaven, not to let the lustre of so many glorious actions be darkened in one day, and running through the ranks, encouraged his soldiers, taking off his head-piece that he might be better known. But do what he could, he could not raise their spirits, till snatching a buckler out of a soldier’s hand, he said to the tribunes who were about him, ‘This shall be the last day of my life, and of your engagement in the war.’ And at the same time made furiously towards the enemy; he had scarce advanced ten feet but he had above two hundred darts thrown at him, some of which he avoided by bending his body, and others received on his buckler, when the tribunes ran with emulation to get about him, and the whole army thereupon charging with all their fury, they fought all day with divers advantage, and at length towards the evening the victory fell to Cæsar, and it is reported that hereupon he was heard to say these words, ‘that he had often fought for victory, but that now he had fought for life.’

“After the defeat, Pompeius’ men flying into Corduba, Cæsar, to prevent their escape thither, lest they should rally and renew the fight, caused the place to be invested by the army, where the soldiers being so tired that they could not work in the circumvallation, heaped up together the bodies and armour of the slain, which they kept piled up with their javelins stuck into the ground, and lay all night under that kind of rampire. Next morning the city was taken. Of Pompeius’ captains, Scapula setting up on a pile of wood burned himself; the heads of Varus, Labienus, and other persons of quality were brought to Cæsar. As for Pompeius, he fled from the battle with a hundred and fifty horse, bending his course towards Carteia where his fleet lay; he entered the port in a litter, and in the habit of a private man. But seeing the seamen had likewise lost all hopes, he threw himself in a little boat, in which as he was going out to sea, his foot tangling in the cordage, one of his people going to cut the rope, by mischance cut his heel, so that to cure his wound he was forced to go ashore at a small village, where hearing that Cæsar’s horsemen were coming, he took his flight through a country covered with thorns and briers, which added to his wound, so that being tired and sitting down at last under a tree, he was found by those who gave him chase, and slain, generously defending himself; his head was carried to Cæsar, who caused it to be buried. Thus [says Appian] was this war ended by one only fight and contrary to the opinion of all the world.”⁹

Of all the leaders of the senatorial party, Sextus Pompeius was now the only survivor. He had made his escape from the field of Munda, and had an asylum in the wildest districts of the Hither Province. He had nothing to hope from the clemency of the conqueror, who had shown unusual bitterness against his family by the confiscation of their patrimonial estates, and was now preparing to celebrate his triumph over them as foreigners and enemies of the state. Thus driven to despair, he infused new spirit into the predatory habits among the tribes among whom he had taken refuge, and continued to defy the power of the provincial authorities. Cæsar occupied himself for some months in reconstituting the government of Spain, taking precautions for the entire subjugation of the party which had shown such vitality in that quarter. The battle of Munda was fought on the seventeenth of March, but the dictator was not at liberty to return to Italy till September, after an absence of ten months.

The hostile attitude of the last of the Pompeians in Spain was not the only exception to the tranquillity which prevailed generally throughout the empire. In Gaul the Bellovaci had risen in arms; but this movement was expeditiously repressed by Decimus Brutus, the proconsul of the newly conquered province. In the extreme East, however, the republican party still continued to make head, under the leadership of Cæcilius Bassus. Their champion was an obscure knight, and their forces were insignificant, consisting principally of two legions which Bassus had seduced from their allegiance to Sextus Cæsar, the commander to whose care Syria had been entrusted by his kinsman. But the proximity of the Parthians, ever on the watch for an opportunity to wound the sides of their great rivals, rendered any movement in this quarter formidable. Sextus Cæsar was murdered by his soldiers, and Bassus took possession of the city of Apamea, which, with the assistance of the national enemies, he continued to keep against the petty attempts which were made to dislodge him. The dictator kept his eye upon him, and already meditated his destruction; but for the present he was content to leave his temerity unpunished, while he applied himself to the consolidation of his power by bold and comprehensive legislation at home.^b

THE LAST TRIUMPH

[45 B.C.]

On the 13th of September, 45, the dictator appeared once more at the gates of Rome, but he did not triumph till the commencement of October. His victory was represented as gained over the Iberians; the miserable outcasts whom Cneius had banded together were all confounded together under the common title of strangers and enemies. Two of the dictator's lieutenants, Fabius, and Pedius who was also his kinsman, were allowed the honour of separate triumphs. These ceremonies were followed as usual with games and festivals, which kept the populace in a fever of delight and admiration. They had complained that among the numerous spectacles offered to their view each citizen could witness only a portion, while to the foreigners who flocked to this great feast of nations, the dramatic entertainments had been unintelligible. The games were now multiplied in various quarters of the city, while plays were represented in different languages for the benefit of every people. The subjects of the empire had entered Rome as conquerors in Cæsar's train, and thus he inaugurated the union of the capital with the provinces. Kings and commonwealths sent their ambassadors to this mighty congress of nations. Among them were the Moors and the Numidians, the Gauls and the Iberians, the Britons and the Armenians, the Germans and the Syrians. The Jews, insulted by Pompey and rifled by Crassus, offered their willing homage to the champion who alone of all the Romans had spoken to them in the language of kindness and respect. Cleopatra the queen of Egypt came, her crown in her hand, offering her treasures and her favours to her admirer and preserver. All in turn had trembled at the official caprices of the Roman knights, and Cæsar could afford them perhaps no sweeter revenge, nor represent to them more vividly the extent of his power, than in degrading before their faces these petty tyrants of the provinces. He compelled one of them, named Laberius, who was also a dramatic composer, to enact one of his own comic pieces, that is, to dance and sing upon the stage before the concourse of citizens and strangers. "Alas!" said the wretched man in his prologue, "after sixty years of honour I have left my house a knight, to return to it a mime. I have lived one day too long." Cæsar restored to him the golden ring of knighthood, forfeited by this base but compulsory compliance. He presented him also with a large sum of money, to show perhaps more completely the prostration of his order.

Such trifling persecutions, whether personal or political in their objects, are undoubtedly pitiable enough. But it is Cæsar's glory that his arm fell

heavily upon none of his fellow-citizens. The nephew of Marius forgot the banishment of his uncle, the ruins of Carthage, and the marshes of Minturnæ; the avenger of the Sullan revolution scorned to retaliate the proscriptions; the advocate of Cethegus and Lentulus refrained from demanding blood for blood. It is worth remarking that Cicero, the most humane perhaps of his own party, the most moderate in sentiments, the fairest estimator of men and measures, could hardly persuade himself of the possibility of Cæsar abstaining from massacre. Such was the wise man's reading of the history of his countrymen; and when at last he found that the conqueror meditated no such use of his victory, his heart, we fear, still remained untouched, and he never, perhaps, renounced the secret hope that Cæsar's opponents would prove less merciful than himself.

Nor was the conqueror's clemency confined to sparing the lives of his opponents. He refrained from confiscation which had been wont to accompany the edicts of his predecessors. The wealth indeed which was poured into Rome from the tribute of so many new subjects, and the plunder of so many temples, rendered it more easy to practise this unusual liberality. It was ungenerous perhaps to make the estates of his great rival the chief exception to this rule of moderation. But Cæsar intended to brand as rebels to constituted authority the men who renewed the strife after Thapsus, and this confiscation was meant, not as an insult to the dead, but as a punishment of the living opponent. The name of the Great Pompey had already passed into the shrine of history, and the victor was proud of closing the fasti of the republic with so illustrious a title. Far from approving the precipitation of his flatterers in removing the statues of Pompey and Sulla, he caused them to be restored to their places in front of the rostra, among the effigies of the noblest champions of the free state. Towards the institutions of the commonwealth he evinced a similar spirit of deference. He sought no new forms under which to develop his new policy. Sulla had attempted to revive the aristocratic spirit of the ancient constitution by overthrowing the existing framework of the laws; but the popular dictator, in laying the foundation of a more extensive revolution, studied to preserve it intact. While making himself an autocrat in every essential exercise of power, he maintained, at least in outward seeming, all the institutions most opposed to autocracy, the senate, the comitia, and the magistracies. But he had long before said that the republic was no more than a shadow, and these

very institutions had long been merely the instruments by which tyrants had worked out the ends of their selfish ambition.

Cæsar now was fully aware that he could sway the Roman world unchecked by the interference of a senate, two-thirds of which perhaps were nominees of his own. Under the sanction of an organic law he had raised the number of the assembly to nine hundred, thus degrading the honour by making it cheap; and he still more degraded it in the eyes of the proudest of the citizens by pouring into it his allies from the provinces, his soldiers, and even, if we may believe their bitter sarcasms, the captives who had just followed his car of triumph. The Romans exercised their wits on these upstart strangers losing themselves amidst the forests of columns which thronged the public places, and placards were posted recommending no good citizen to guide them to the senate house. This servile council, with less respect for appearances than its chief, would have given him the right of nominating to all curule and plebeian offices, to the entire abrogation of the electoral prerogatives of the people. But Cæsar declined to destroy the last shadow of liberty, assured that no man would venture to sue for a magistracy without his consent. He contented himself with recommending certain candidates to the suffrages of the people, and these recommendations were equivalent to commands. Moreover the senate had imposed upon the elected the obligation to swear before entering on their office, that they would undertake nothing against the acts of the dictator, for every act of his was invested with the force of law. The consuls, prætors, and other officers thus continued to exercise their ordinary functions under the dictator's superintendence; the prætors were increased in number, while the consuls, though never exceeding two at the same time, were rapidly supplanted, sometimes month by month, by fresh aspirants whom it was expedient to gratify. As the avowed champion of the people Cæsar retained the appropriate distinction of the tribunitian power, which also rendered his person inviolable;^[124] while both the senators and the knights offered to surround him with a guard of honour of their own members to secure this inviolability by a stronger instrument than the law. To the reality of power he added its outward signs. In the senate, the theatre, the circus, and the hall of justice he might seat himself on his golden chair in a robe of regal magnificence, while his effigy was impressed upon the public coinage.^[125] Apart from the title of king there is no outward symbol of royalty more

appropriate than that of the hereditary transmission of offices and distinctions. The imperium, or military supremacy, which had been granted to Cæsar for his life, was rendered transmissible to his children, and with it the august distinction of the sovereign pontificate.

In fine, the dictatorship for life and the consulship for five years, with the right of drawing at pleasure upon the public treasury, secured to Cæsar the executive power of the state; the imperium gave him the command of its forces; the tribunate invested him with a veto upon its legislation. As prince, or first man of the senate, he guided the debates of that assembly; as controller of manners even its personal composition depended upon his will. As chief pontiff he interpreted the religion of the state, and made omens and auguries declare themselves at his bidding. Thus the finances, the army, the religious system, the executive with a portion of the judicial power, and indirectly almost the whole functions of the legislature were combined in the hands of the autocrat of the Roman commonwealth. Nevertheless he had assumed no title inconsistent with the principles of the republic, and the precedents of constitutional history.

CÆSAR'S REFORMS

[46-44 B.C.]

What then were the objects to which Cæsar proposed to direct this enormous accumulation of powers? His cherished scheme for the amalgamation of the various elements of the empire was necessarily slow in progress. He did not seek to precipitate it by violent measures.^c

From his last triumph to his death was somewhat more than five months (October, 45 B.C.-March, 44 B.C.): from his quadruple triumph to the Spanish campaign was little more than four months (June-September, 46 B.C.). Into these two brief periods were compressed most of the laws which bear his name, and of which we will now give a brief account. The evils which he endeavoured to remedy were of old standing. His long residence at Rome, and busy engagement in all political matters from early youth to the close of his consulship, made him familiar with every sore place and with all the proposed remedies. His own clear judgment, his habits of rapid decision, and the unlimited power which he held, made it easier for him to legislate than for others to advise.

The long wars, and the liberality with which he had rewarded his soldiers and the people at his triumphs, had reduced the treasury to a low ebb. He began by revising the register of citizens, principally for the purpose of abridging the list of those who were receiving monthly donations of grain from the treasury. Numbers of foreigners had been irregularly placed on the list, and he was able to reduce the list of state paupers resident in or near Rome from 320,000 to less than half that number. The treasury felt an immediate and a permanent relief.

But though, for this purpose, Cæsar made severe distinctions between Roman citizens and the foreign subjects of the republic, no ruler ever showed himself so much alive to the claims of all classes of her subjects. Other popular leaders had advocated the cause of the Italians, and all free people of the peninsula had in the last thirty years been made Romans: but no one had as yet shown interest in the claims of the provincial subjects of Rome, except Sertorius, and his object was rather a transference of power from Italians to Spaniards, than an incorporation of Spain with Italy. Cæsar was the first acknowledged ruler of the Roman state who extended his view beyond the politics of the city and took a really imperial survey of the vast dominions subject to her sway. Towards those who were at war with Rome he was as relentless as the sternest Roman of them all; but no one so well as he knew how “to spare the submissive”; hardly any one except himself felt pleasure in sparing. All the cities of Transpadane Gaul, already Latin, were raised to the Roman franchise. The same high privilege was bestowed on many communities of Transalpine Gaul and Spain. The Gallic legion which he had raised, called *Alauda* from the lark which was the emblem on their arms, was rewarded for its services by the same gift. All scientific men, of whatever origin, were to be allowed to claim the Roman franchise. After his death a plan was found among his papers for raising the Sicilian communities to the rank of Latin citizens.

The imperial character of the great dictator’s government is strongly shown by his unfulfilled projects. Among these was the draining of the Pontine marshes, the opening of lakes Lucrinus and Avernus to form a harbour, a complete survey and map of the whole empire—plans afterwards executed by Agrippa, the minister of Augustus. Another and more memorable design was that of a code of laws embodying and organising the scattered judgments and precedents which at that time regulated the courts.

It was several centuries before this great work was accomplished, by which Roman law became the law of civilised Europe.

The liberal tendency of the dictator's mind was shown by the manner in which he supplied the great gaps which the Civil War had made in the benches of the senate. Of late years the number of that assembly had been increased from its original three hundred.^[126] Cicero on one occasion mentions 415 members taking part in the votes, and many of course were absent. But Cæsar raised it to nine hundred, thus greatly exceeding the largest number that had ever been counted in its ranks. Many of the new senators were fortunate soldiers who had served him well. In raising such men to senatorial rank he followed the example of Sulla. Many also were enfranchised citizens of the towns of Cisalpine Gaul. The old citizens were indignant at this invasion of barbarians. "The Gauls," said one wit, "had exchanged the trews [trousers] for the toga, and had followed the conqueror's triumphal car into the senate." "It were a good deed," said another, "if no one would show the new senators the way to the house."

The curule offices, however, were still conferred on men of Italian birth. The first foreigner who reached the consulship was Balbus, a Spaniard of Gades, the friend of Cæsar; this was four years after the dictator's death.

To revive a military population in Italy was not so much the object of Cæsar as that of former leaders of the people. His veterans received few assignments of land in Italy. The principal settlements by which he enriched them were in the provinces. Corinth and Carthage were made military colonies, and regained somewhat of their ancient splendour and renown.

He endeavoured to restore the wasted population of Italy by more peaceful methods. The marriage tie, which had become exceedingly lax in these profligate times, was encouraged by somewhat singular means. A married matron was allowed to use more ornaments and more costly carriages than the sumptuary laws of Rome permitted to women generally. A married man who had three children born in lawful wedlock at Rome, or four born in Italy, or five born in the provinces, enjoyed freedom from certain duties.

The great abuse of slave labour was difficult to correct. It was attempted to apply remedies familiar to despotic governments. An ordinance was issued that no citizens between twenty and forty years of age should be

absent from Italy for more than three years. An ancient enactment was revived that on all estates at least one-third of the labourers should be free men. No doubt these measures were of little effect.^d

Viewing the dominions over which he presided as a whole, endowed, or speedily to be endowed with a general equality of rights, and Rome herself no longer as an isolated municipium and a mistress-city, but the centre and capital of the Roman world, he proceeded to lay the groundwork of a comprehensive scheme of universal legislation. His first care was to develop the material unity of the vast regions before him, by an elaborate survey of their local features. A commission of geographers and mathematicians was appointed, as we have just said, to construct the map of the Roman Empire, a work so novel and so full of detail, as to require the labour, as it afterwards proved, of no less than thirty-two years. Another effort, not less gigantic, was required to impress a moral unity upon this vast machine. Cæsar prepared to collect and combine in a single code the fragments of Roman law, dispersed in thousands of precedents, the edicts of the prætors, the replies of the learned, the decisions of pontiffs, and the traditions of patrician houses. Such a mighty work had already been contemplated by Cicero, as the hopeless vision of the philanthropist and philosopher; but Cæsar's practical sagacity saw that it not only ought to be done, but could be done, and doubtless had he but lived ten or twenty years longer, he would have anticipated by six centuries the glory of the imperial legislator Justinian.

Another work of equal utility but fortunately of much smaller compass was the reformation of the calendar, and this it was given to the great Julius to effect, and to call after his own name. The Roman year, even before the time of Cæsar, ought to have equalled on the average 365 days and six hours; so near had the astronomers of the period of Numa already arrived to the real length of the earth's revolution round the sun. This year had been calculated on a basis of 354 days, with the intercalation every second year of a month of twenty-two and twenty-three days alternately; but another day had been added to the 354 to make an odd or fortunate number, and to compensate for this superfluous insertion the number of intercalations was proportionally diminished by a very intricate process. The simplicity of the original arrangement being thus violated, great carelessness had soon prevailed in making the requisite corrections. In course of time the pontiffs,

to whose superior skill the guardianship of the calendar had been entrusted, had shrouded their science in a veil of religious mystery, and turned it to political or private ends. They commanded the intercalation of a month arbitrarily, when it suited them to favour a partisan who desired the extension of his year of office, or the postponement of the day on which his debts should become due. They abstained from the requisite insertion at the instance of some provincial governor, who was anxious to hasten his return to the enjoyments of the capital. This control over the length of the civil year, as well as the power of proclaiming the days on which business might or might not be transacted, had become an engine of state in the hands of the oligarchical government, with which the pontiffs were for the most part politically connected. The grievance had lately become intolerable. In the distracted state of public affairs and amidst conflicting personal interests, the pontiffs had abstained from intercalating since the year 52, and had even then left the civil calendar some weeks in advance of the real time. Since then each year had reckoned only 355 days, and the civil equinox had got eighty days in advance of the astronomical. The consuls accordingly, who entered on their office the 1st of January, 47, really commenced their functions on the 13th of October. The confusion hence resulting may be easily imagined. The Roman seasons were marked by appropriate festivals assigned to certain fixed days, and associated with the religious worship of the people. At the period of harvest and of vintage, for instance, seasonable offerings were to be made, which it was no longer possible to offer on the days specifically assigned for them. The husbandman rejected the use of the calendar altogether, and depended on his own rude observations of the rising and setting of the constellations.

Cæsar had acquired a competent knowledge of astronomy, in which his duties as chief of the pontiffs gave him a particular interest. He composed himself a treatise on the subject, which had long retained its value as a technical exposition. With the help of the astronomer Sosigenes, he recurred again to the simple calculations of Numa, and was content to disregard the discrepancy, which he conceived perhaps with Hipparchus to be more trifling than it really is, between the length thus assigned to the year and the true period of the earth's revolution. In the course of centuries this error has grown into importance, and in the year A.D. 1582, when the Julian calendar was corrected by Pope Gregory XIII, the civil year had got forward no less than ten days. The requisite correction was not made, as is well known, in

England till the middle of the eighteenth century. The basis of Cæsar's reform was that the commencement of the new era should coincide with the first new moon after the shortest day. In order to make the year 46 thus begin, ninety days required to be added to the current year. In the first place an intercalary month of twenty-three days was inserted between the twenty-third and twenty-fourth of February, and at the end of November two new months were added comprehending sixty days, together with a supplemental addition of seven more. The period which was marked by this series of alterations received vulgarly the appellation of "the year of confusion"; but "the last year of confusion," it has been justly remarked, would be its more appropriate title.

Besides these noble efforts of social organisation, Cæsar, like almost every other great man of his nation, had an intense passion for material construction. He had already distinguished himself by the Forum, which he called by his own name in the heart of the city; a work which was loudly demanded on account of the inconvenient narrowness of the spot on which the public business of the republic had been transacted from the period of its infancy. But among the honours now showered upon him was one which had been granted only once or twice before to conquerors who had furthest enlarged the limits of the empire, and which, it has been remarked, was alone wanting to complete the "good fortune" of Sulla. This was the permission to extend the *pomærium*, the space left open about the walls of the city, partly within and partly without them, originally perhaps for the convenience of defence; but which was consecrated by solemn ceremonies, and traversed by religious processions. Cæsar proposed, it is said, to remove this line, and with it probably the walls themselves, so as to embrace the Campus Martius, which he would have enlarged by turning the Tiber westward with a bold sweep from the Milvian to the Vatican bridge. This grand project was never destined to be accomplished, and though in later times the emperor Augustus and others were allowed to extend the *pomærium*, the walls of Rome were not removed beyond the lines traced by Servius till the time of Aurelian, three centuries after Cæsar. Nor was the dictator more fortunate in completing the many other works of public interest and utility which he was already meditating. He planned, it is said, the emptying of the lake Fucinus, the draining of the Pomptine marshes, the construction of a canal from Rome to Tarracina, of a new road across the Apennines, and of a magnificent harbour at Ostia, the erection of a superb

temple to Mars, and the cutting of the Isthmus of Corinth. Of all these designs the temple and the harbour were alone accomplished by his successor; it is probable that Cæsar himself had commenced them. [Under his patronage the first public library was opened at Rome, and for the transaction of public business he erected the magnificent building called the Basilica Julia.]

CÆSAR'S LIFE IN ROME

Such were the subjects of meditation which engrossed Cæsar's mind during the days and nights he devoted to public affairs. But he had also his hours of recreation, and he shone in private life among the most cultivated men of his time, the most refined in habits, the most fascinating in manners.

There is no feature of Roman life perhaps which we can regard with so much satisfaction as the tone of habitual intercourse among public men at this period. The daily conflicts at the bar or in the Forum to which they were trained, would have only embittered their feelings towards one another, had they not been accompanied by the humanising influence of social discussion on topics of literature and philosophy. The combination of these two habits seems indeed to form the best discipline of society, imparting to it earnestness without violence, and a masculine courtesy far removed from servility and adulation. The records of Roman debate present us with hardly a single scene of personal altercation, while the private reunions of the most eminent statesmen are described to us as full of modest dignity and kindly forbearance. To this pleasing result every school of philosophy contributed; but none of them perhaps studied so well as the Epicurean the science of making society agreeable. To this school both Cæsar himself and most of his personal friends professed their adherence. The circle of his intimates comprised: Cornelius Balbus, an acute man of business; Asinius Pollio, a devoted student; A. Hirtius, who like his master both fought, wrote, and talked well; C. Oppius, full of gentleness and affection; C. Matius, thoughtful, generous, and disinterested. To these may be added Vibius Pansa, a loungeur and a good liver, yet neither incapable of office, nor inexperienced in action. Antony, the gayest of boon companions, has already been mentioned; but under the garb of good fellowship, he hardly concealed the most intense selfishness, and of all Cæsar's friends he

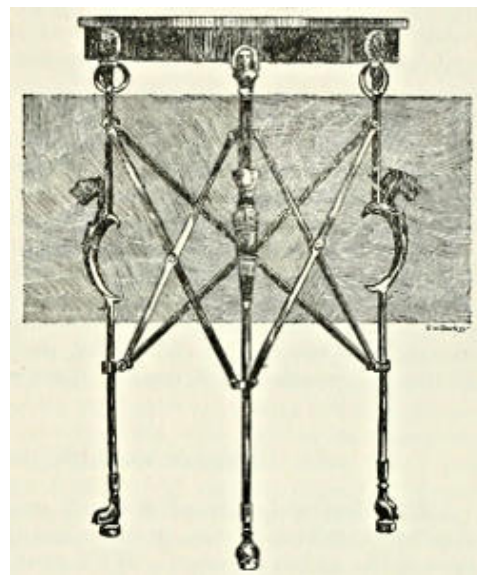
alone stands open to the suspicion of intriguing against the life of his patron. Among these men and others of similar stamp Cæsar unbent from the cares of empire, and often abandoned himself without restraint to the enjoyments of festive mirth. With little wit of his own he was amused by the witticisms of others, even when directed against himself, and treasured up every caustic remark which fell from the lips of Cicero, whose patriotism, relieved from the fear of impending proscription, now exhaled itself in malicious pleasantries against the policy of the dictator. At table indeed, surrounded by companions addicted to the grossest self-indulgence, Cæsar was distinguished for his moderation. Cato had said of him long before, that of all the revolutionists of the day he alone had come sober to the task of destruction. But his amours were numerous, and their character peculiarly scandalous; for his countrymen still professed to regard the corruption of a Roman matron as a public wrong, while his attachment to a foreigner, such as Cleopatra, was denounced as a flagrant violation of religious and social principles.

In religion the Epicureans were sceptics, and Cæsar went farther and openly professed his unbelief. The supreme pontiff of the commonwealth, the head of the college whence issued the decrees which declared the will of the gods, as inferred from the signs of the heavens, the flight of birds, and the entrails of victims, he made no scruple in asserting before the assembled fathers that the dogma of a future state, the foundation of all religion, was a vain chimera. Nor did he hesitate to defy the omens which the priests were especially appointed to observe. He gave battle at Munda in despite of the most adverse auspices, when the sacrifices assured him that no heart was found in the victim. "I will have better omens," he said, "when I choose." Yet Cæsar, freethinker as he was, could not escape the general thralldom of superstition. We have seen him crawling on his knees up the steps of the temple to appease an indignant Nemesis. Before the battle of Pharsalia he addressed a prayer to the gods whom he denied in the senate, and derided among his associates. He appealed to the omens before passing the Rubicon. He carried about with him in Africa a certain Cornelius, a man of no personal distinction, but whose name might be deemed auspicious on the battlefields of Scipio and Sulla.

The queen of Egypt had followed her august admirer to Italy, and scrupling perhaps to exhibit her publicly in the city, he had installed her in

his house and gardens on the other side of the river.^[127] There she had her levees for the reception of the noblest Romans, and her blandishments were not perhaps ineffectual in soothing the asperity of their resentments. Cicero himself condescended to solicit an interview with her. She rewarded him with the promise of some Greek volumes from Alexandria, rendered perhaps doubly precious by the recent conflagration. But the populace were shocked at the report that Cæsar meditated raising this barbarian mistress to the dignity of a Roman wife. He was married indeed already to the noble daughter of Calpurnius Piso; but divorce was easy, and might be resorted to without public scandal; Cicero himself had lately dismissed Terentia for alleged incompatibility of temper, and allied himself in her place with a youthful heiress. Besides, one of his creatures was prepared, it was said, with a measure to remove all restrictions upon the dictator's passions, and allow him to marry as many wives as he pleased, of whatever race or station.

Though arrived, as we have seen, at the summit of real power, it was manifest that Cæsar still chafed under the restraints imposed upon him by opinion and prejudice. His firm and well-poised mind seems at last to have lost its equilibrium, and given way to fretful impatience, and a capricious longing for some unattainable object. The Roman nobles, accustomed to the most perfect equality in their intercourse with one another, were mortified at the haughtiness assumed by the chief of the republic, surrounded by a crowd of flatterers through whom the independent patrician could with difficulty force his way.



ROMAN BRAZIER

Once when the senators came in a body to communicate to him their decrees in his honour, he omitted to rise from his seat to receive them. Balbus, it was said, the upstart foreigner, had plucked him by the sleeve and bade him remember that he was their master. It was reported that he had called Sulla a fool for resigning the dictatorship. But while the lines of his domestic policy were yet hardly laid, and every institution in Rome still demanded the pressure of his moulding hand, Cæsar himself was dreaming of foreign conquests, and sighing for his accustomed place at the head of his legions. The disaster of Carrhæ, yet unavenged, might furnish a pretext for war, and the influence of Mithridates, it might be remembered, had extended from the Caspian and the Euxine to the head of the Adriatic. He conceived, we are assured, the gigantic project of first crushing the Parthians, and then returning across the Tanaïs and Borysthenes, subduing the barbarians between the Caucasus and the Carpathian Mountains, and assailing the Germans in the rear. Cleopatra, who felt herself more secure of her admirer in the provinces than in Rome, would doubtless lend her influence to urge him on. The republicans in the city were not perhaps less anxious to remove him to a distance, and launch him on a long and dangerous enterprise. At the close of the year 45 he directed his legions to cross the Adriatic, and assemble in Illyricum, there to await his own speedy arrival. He contemplated an absence of considerable duration. He provided beforehand for the succession of consuls and prætors for the two following years. On the 1st of January, 44, he entered upon his fifth consulship, in which he associated himself with Antony.

At the same time he obtained the designation of Hirtius and Pansa for 43, of Decimus Brutus and Munatius Plancus for 42. The prætors appointed for the year 44 were sixteen in number, and among them were M. Brutus and Cassius.

EVENTS LEADING TO THE CONSPIRACY

[45-44 B.C.]

The destined heir of Cæsar's imperium was already in the camp at Apollonia, taking lessons at the same time both in arts and arms under the care of the ablest teachers. This young man was Caius Octavius, the son of Cæsar's sister's daughter, who, now beginning his nineteenth year, gave splendid promise of future excellence, marred only by the extreme delicacy of his health, which had hitherto prevented him from seeking distinction in the field. The favour with which his great-uncle regarded him had induced him to demand the mastership of the horse, but this had been refused him as a distinction beyond his years. Cæsar, however, had promoted his family from the plebeian to the patrician class, an honour which he had accorded to a few gentes, whose names were of great antiquity, among which was the Tullian, to which the character of Cicero had imparted so much new lustre. He had allowed it, moreover, to be understood that he was about to make the young Octavius his own son by adoption, to bequeath to him the bulk of his patrimony, and the dignities which the senate had declared hereditary in his family. These dignities indeed were not associated in the mind of the Romans with any ideas of succession. It was difficult for them to conceive the descent of the dictatorship from the hands of mature experience to those of untried youth, or the establishment in the sphere of a particular family of the tribunitian power, the free gift of the sovereign people. It was natural for them to conclude that their hero was intent on securing a title, the only recognised title, on which according to their notions a dynasty could be founded. Cæsar, it was reported, desired to be hailed as king. His flatterers suggested it, his enemies readily believed it, and hoped to make him unpopular by urging him to claim it. One morning a laurel garland, with a diadem attached, was found affixed to his statue before the rostra. The tribunes, Flavius and Cæsetius, indignantly tore it down; the populace expressing great satisfaction at their conduct, and saluting them with the title of the new Bruti. Cæsar affected at least to applaud them. Shortly afterwards a second experiment was tried. As the dictator returned from the Latin festival, celebrated on the Alban Mount, officious voices were hired to salute him as king. A low and stifled murmur again indicated the disapprobation of the people. "I am no king, but Cæsar," he hastily exclaimed; but when the tribunes punished some persons

who had joined in the cry, he rebuked them for their superfluous or invidious zeal, in which he detected a scheme for bringing him under unjust suspicions.

Cæsar's friends, however, if such were the real promoters of the intrigue, were not yet satisfied that the prize was beyond his reach. They might familiarise the people with the idea of royalty by bringing it repeatedly before them. Perchance the sight of the white linen band, the simple badge of oriental sovereignty, might disabuse them of their horror at an empty name. On the 15th of February, the day of the *Lupercalia*, Cæsar was seated on his golden chair before the rostra, to preside over the solemn ceremonies of that popular festival. The Julian flamens were elevated to the same rank as the priests of the god Lupercus or Pan. Antony, the consul, was at their head, and next to the dictator occupied the most conspicuous place in the eyes of the multitude. Possibly the novelty of the sight of the one consul stripped to his skin, with only a narrow girdle round his loins, waving in his hand the thong of goat's hide, and striking with it, as he ran rapidly through the principal streets, the women who presented themselves to the blow which was supposed to avert sterility, was still more attractive than that of the other in the laurel crown and triumphal robes which use had already rendered familiar. When Antony had run his course he broke through the admiring multitude and approached the seat of the dictator. Drawing from beneath his girdle a diadem, he made as if he would offer it to him, exclaiming that it was the gift of the Roman people. The action was hailed by some clapping of hands; but it was faint and brief and manifestly preconcerted. When, however, Cæsar put away from him the proffered gift, a much louder burst of genuine applause succeeded. Antony offered it a second time; again there was a slight murmur of applause, and again on Cæsar's rejection of it a vehement cry of satisfaction. "I am not king," repeated Cæsar; "the only king of the Romans is Jupiter." He ordered the diadem to be carried to the Capitol and suspended in the temple of the god, to commemorate the gracious offer of the people and his own modest refusal.

THE CONSPIRACY

[44 B.C.]

The tact with which Cæsar withdrew the claims which were thus prematurely advanced for him baffled every attempt of the republican leaders to excite a popular feeling against him. But in the upper ranks of the nobility there were many who cherished such sentiments of hostility towards him, nor were his personal enemies confined to the ranks of his political adversaries. A plot was formed for

his destruction, which embraced sixty or even eighty conspirators, many of whom had been most conspicuous in their devotion to him, and seemed most to merit his confidence. Among them were doubtless some whose hopes of preferment he had disappointed. But such was not the case with Decimus Brutus, who had received from him the government of the Cisalpine, and was already designated as the consul of a future year. Such was not the case with Trebonius, who had just quitted the consulship for the administration of Asia. Basilus, Casca, and Cimber had all received greater or less marks of the dictator's favour. Yet all these men now joined in the intrigue against his life. Had they really loved the republic better than their emperor, and regarded him as a tyrant and a traitor, they should not have accepted the highest offices at his hands. But even the chiefs of the opposite party betrayed no reluctance to profit by his generosity. It was not the needy or disappointed among them, but those whom he had honoured and promoted, who now raised their hands against him. The most active conspirator, and perhaps the author of the design, was C. Cassius, who had recently been appointed prætor. The cry of liberty and the republic, which was in the mouths of all his associates, could have little real influence on the sentiments of Cassius, whose avowed Epicurean principles, no less than his late political conduct, might vouch for his indifference to party. "I prefer," he had written to Cicero, "our old and clement master Cæsar to the ferocious upstart, the son of Pompey." But he was by nature vain and vindictive; his temper fluctuated between mean subservience and rude independence. His sharp and acrid humour had not escaped the observation of Cæsar, by whom the pale and lean were accounted dangerous, and who loved, as he said, the company of the sleek and light-hearted.

The conspirators required the charm of a popular name to sanction their projected tyrannicide. M. Junius Brutus, the nephew of Cato, pretended to trace his descent from a third son of the founder of the republic, whose elder brothers had perished, as was well known, childless by the axe of the lictor. His mother Servilia derived her lineage from the renowned Ahala, the slayer of Spurius Mælius. But far from inheriting the zeal of his progenitors, the Brutus of the expiring republic had acquiesced in Cæsar's usurpation with less apparent reluctance than perhaps any other member of the Pompeian party. Despondent in her hour of distress, he had been the last to join, the earliest to desert the unfurled banner of the republic. After Pharsalia, he was the first to seek refuge in the camp of the victor; in the city he was the foremost to court the friendship and claim the confidence of the dictator.

He zealously served his interests by the discharge of important offices; nor did he blush to govern Cisalpine Gaul for Cæsar, while his uncle still held Utica against him. A feeble panegyric of the sturdy sage whom he had abandoned while he affected to adopt his principles and emulate his practice, seemed to Brutus a sufficient tribute to his virtues. He had divorced his consort Claudia to espouse the philosopher's daughter Porcia, a woman of more masculine spirit than his own. But thus doubly connected with strength and virtue, Brutus had failed nevertheless to acquire the firmness which nature had denied him. While professing the character of a student he still courted public life for the sake of its emoluments. The countenance of Cæsar raised him to an eminence which pleased and dazzled him, while his uncle's renown seemed also to shed a light upon him, and his vanity was excited by a saying, possibly a jest, ascribed to Cæsar, implying that of all the Romans he was the worthiest to succeed to supreme power. The weakness of his character may be estimated from the means employed to work upon him. A bit of paper affixed to the statue of the ancient Brutus with the words, "Would thou wert alive"; billets thrust into his hand inscribed, "Brutus, thou sleepest, thou art no longer Brutus," shook the soul of the philosopher to its centre. Under the influence of Cassius, who had married his sister, he was led to embrace the schemes of the conspirators, and assumed the place of chief adviser, which they pretended at least to offer him.

His renowned name became at once a charm of magic potency. It raised the sick Ligarius from his bed. A pardoned partisan of Pompey, the clemency of Cæsar rankled in his bosom. "How sad for Ligarius," said Brutus to him, "to be disabled at such a moment." The sick man raised himself on his elbow, and replied, "If thou hast any project worthy of the name of Brutus, behold, I am well again." Ligarius was admitted to the secret, and took an active part in the deed which followed. We learn with pleasure that the conspirators did not venture even to sound Cicero. The fatal intrigue was now ripening to its execution. As long as Cæsar remained at Rome his fearless demeanour exposed him to the daggers of assassins, for he had dismissed the guard which had at first surrounded him, and appeared daily in public with no other attendance than that of his unarmed companions.

His legions had been despatched to Illyricum. To the remonstrances of his friends, from whom perhaps the rumours of his peril were not altogether concealed, he had replied that it was better at once to die than to live always in fear of dying. But from the moment he should assume the command of his armies, his safety would be assured by the fidelity of his troops. Once intoxicated with the splendour of royalty in the provinces, he would never

consent to return a citizen to Rome. He had promised, it was said, to restore the towers of Ilium, the cradle of the people of Æneas and Romulus. Possibly he might transfer thither the throne which the pride of the Romans forbade him to establish in the Capitol. Or if the charms of Cleopatra should still retain their power, he might take up his abode in Alexandria, and remove the seat of empire to the shrine of the Macedonian conqueror.

Such considerations as these forbade delay. The preparations for Cæsar's departure were almost complete. The senate was convened for the ides of March, the 15th day of the month, and the royal name and power, it was said, were then to be conferred upon him in the provinces. On this day, as soon as he should enter the curia, it was determined to strike the blow. The prediction was already current that the ides of March should be fatal to him. Still Cæsar refused to take any precautions. He had lived, he said, enough either for nature or glory; his ambition was satisfied, or perhaps disappointed, and he was proudly indifferent to longer existence.^c

THE ASSASSINATION

On the evening of the 14th of March, Cæsar was supping with M. Lepidus, his master of the horse, who was now at the head of a body of troops without the walls, and was preparing shortly to march with them into Transalpine Gaul, which had been assigned to him by Cæsar as his province. It happened that Cæsar was engaged in writing, when the rest of the party began to discuss the question, "What kind of death is most to be desired?" The subject on which they were talking caught his attention, and he cried out, before any one else had expressed an opinion, that the best death was a sudden one.

A coincidence so remarkable was likely to be remembered afterwards by all who had been present; but it is said, also, that he had been often warned by the augurs to beware of the ides of March; and these predictions had, probably, wrought on the mind of his wife, Calpurnia, so that, on the night that preceded that dreaded day, her rest was broken by feverish dreams, and in the morning her impression of fear was so strong, that she earnestly besought her husband not to stir from home. He himself, we are told, felt himself a little unwell; and being thus more ready to be infected by superstitious fears, he was inclined to comply with Calpurnia's wishes, and allowed some part of the morning to pass away, and the senate to be already assembled, without having as yet quitted his house.

At such a critical moment as this the conspirators were naturally wide awake to every suspicion; and becoming uneasy at his delay, Decimus Brutus was sent to call on him, and to persuade him to attend the senate by urging to him the offence that he would naturally give if he appeared to slight that body at the very moment when they were preparing to confer on him the title of king. Decimus Brutus visited Cæsar, and being entirely in his confidence, his arguments were listened to, and Cæsar set out about eleven o'clock to go to the senate house. When he was on his way thither, Artemidorus of Cnidus, a Greek sophist, who was admitted into the houses of some of the conspirators, and had there become acquainted with some facts that had excited his suspicions, approached him with a written statement of the information which he had obtained, and putting it into his hand, begged him to read it instantly, as it was of the last importance. Cæsar, it is said, tried to look at it, but he was prevented by the crowd which pressed around him, and by the numerous writings of various sorts that were presented to him as he passed along. Still, however, he held it in his hand, and continued to keep it there when he entered the senate house.

Mark Antony, who was at this time Cæsar's colleague in the consulship, was on the point of following him into the senate, when C. Trebonius called him aside, and detained him without, by professing to desire some conversation with him. It is said that some of the conspirators had wished to include him in the fate of Cæsar; but Brutus had objected to it as a piece of unnecessary bloodshed; and when it was remembered that he himself, not long ago, had proposed to Trebonius the very act which they were now about to perform, they consented that his life should not be endangered. Meantime, as Cæsar entered the senate house, all the senators rose to receive him. The conspirators had contrived to surround his person in the street, and they now formed his immediate train as he passed on to the curule chair, which had been prepared, as usual, for his reception. That chair had been placed near the pedestal of a statue of Pompey the Great; for the building in which the senate was assembled had been one of Pompey's public works; and it is said, that Cassius, labouring under the strong feeling of the moment, turned himself to the image, and seemed to implore its assistance in the deed which was to be perpetrated.



DEATH OF CÆSAR

When Cæsar had taken his seat, the conspirators gathered more closely around him, and L. Tillius Cimber approached him as if to offer some petition, which he continued to press with vehemence when Cæsar seemed unwilling to grant it, and the other conspirators joined in supporting his request. At last, when Cæsar appeared impatient of further importunity, Cimber took hold of his robe and pulled it down from his shoulders; an action which was the signal agreed upon with his associates for commencing their attack. It is said that the dagger of P. Casca took the lead in the work of blood, and that Cæsar, in the first instant of surprise, attempted to resist and to force his way through the circle which surrounded him. But when the conspirators rushed upon him, and were so eager to have a share in his death, that they wounded one another in the confusion, he drew his robe closely around him, and having covered his face, fell without a struggle or a groan. He received three and twenty wounds, and it was observed that the blood, as it streamed from them, bathed the pedestal of Pompey's statue. ^[128] No sooner was the murder finished, than M. Brutus, raising his gory dagger in his hand, turned round towards the assembled senators, and called on Cicero by name, congratulating him on the recovery of

their country's liberty. But to preserve order at such a moment was hopeless; the senators fled in dismay. Antony made haste to escape to his house. A universal consternation was spread through the city, till the conspirators, going in a body to the Forum, addressed the people, and by assuring them that no violence was intended to any one, but that their only object had been to assert the liberty of Rome, they succeeded in restoring comparative tranquillity. Still, however, distrusting the state of the popular feeling, they withdrew into the Capitol, which Decimus Brutus had secured with a band of gladiators whom he retained in his service; and there, having been joined by several of the nobility, they passed the first night after the murder. Meanwhile, the body of Cæsar was left for some hours, amidst the general confusion, on the spot where it fell; till at last three of his slaves placed it on a litter, and carried it home, one of the arms hanging down on the outside of the litter, and presenting a ghastly spectacle. It was asserted by the surgeon, who examined the wounds, that out of so many, one alone was mortal; that, namely, which he had received in the breast when he first attempted to break through the circle of his assassins.^e

Such was the untimely ending of Cæsar's dramatic and history-making career. Appian has left us a minute account of his last deeds and of the plot against him. Let us look to him for certain familiar details, beginning with Cæsar's last military project.

APPIAN'S ACCOUNT OF CÆSAR'S LAST DAYS

“At length, whether he lost all hopes, or else for the better preservation of his health, never more afflicted with the falling sickness and sudden convulsions than when he lay idle, he resolved upon a far distant expedition against the Getæ and the Parthians. A rumour was spread that there was an oracle of the Sibyls which declared that the Parthians could not be subdued by the Romans, unless they were commanded by a king. This made some talk publicly that in regard of other nations taxed under the Roman Empire, there needed no scruple be made at the giving Cæsar that title. He having still refused it, hastened all he could to get out of the city where many envied him. But four days before the day appointed for his departure he was slain by his enemies in the palace, either out of malice to see him raised to such supreme felicity and height of command, or else (as themselves said) out of a desire to restore the commonwealth to its first estate; for they feared that, after having overcome these other nations, nothing could hinder him from making himself king; yet as it appears to me it

was only for the name's sake they attempted all things; for in the thing itself there is no difference between dictator and king.

“There were two chiefs of this conspiracy, the son of that Brutus whom Sulla put to death, M. Brutus Cæpio, who came for refuge to Cæsar himself after the battle of Pharsalia, and C. Cassius who yielded to him the galleys in the Hellespont, both of Pompey's party, and with them was joined one of Cæsar's most intimate friends, Decimus Brutus Albinus. He had always treated them honourably, and with great confidence, and when he was going to the war in Africa, he had given them armies, and the government of the Gauls, to Decimus Brutus of the Transalpine, and to M. Brutus of the Cisalpine. Brutus and Cassius were at this time designed prætors, and were in difference for a jurisdiction which among the citizens is accounted the most honourable of all others, whether they contended out of ambition, or only feigned to do it, lest their conspiracy should be perceived. Cæsar was arbitrator between them, and, as it is said, he acknowledged to his friends that Cassius had reason, but yet he would favour Brutus, so much he loved and honoured him, for all men believed he was his son, because he visited Servilia Cato's sister at the time she grew with child of Brutus, wherefore it is likewise said, that in the battle of Pharsalia he ordered his captains to have a great care of Brutus' life.

“However, whether he was ungrateful, or knew nothing of it, or did not believe it, or that he thought his mother's incontinence of dishonour, whether love of liberty made him prefer his country before his own father, or being of the ancient race of the Bruti who had expelled the kings, and now pricked forward by the reproaches of the people, who on the statues of the old Brutus, and on his prætor's tribunal had secretly written such words as these, ‘Brutus thou sufferest thyself to be corrupted with gifts. Brutus thou art dead, would to God thou wert now alive; either thy successors degenerate, or thou hast not begot them.’ He, I say, young as he was, chafed by these and such like things, engaged himself in this enterprise as an act worthy his predecessors.

“The discourses concerning the royalty were not then quite extinct, when just as they were going to the senate Cassius took Brutus by the hand, and said, ‘What shall we do if Cæsar's flatterers propose to make him king?’ To which Brutus answered, that he would not be at the senate. Whereupon, the other again demanded, ‘What if they summon us as prætors, what shall we do then, my friend?’ ‘I will,’ he said, ‘defend my country, even till death.’ Whereupon, Cassius embracing him said, ‘And what persons of quality will you take for companions in so brave an attempt? Do you think there are none but tavern-people and artificers that put writings on your tribunal? Know that they are the

prime men of the city, who expect from other prætors only plays and shows; but require their liberty from you as the work of your predecessors.' Thus they discovered to each other what they had long had in their thoughts; and began to try their own friends, and some of Cæsar's, according as they knew them capable of good things. They engaged in their design the two brothers, Cæcilius and Bucolianus, Rubrius Rex, Q. Ligarius, M. Spurius, Servilius Galba, Sextius Naso, Pontius Aquila: and of Cæsar's friends they drew to their conspiracy Decimus, of whom I have already spoken; Caius Casca, Trebonius, Attilius Cimber, Minucius, and Basilus. When they thought they had companions enough, for it was not convenient to communicate this design to all the world, they gave their words one to another without either oath or sacrifice, and yet no one changed his mind or ever discovered the plot.

"There was nothing now wanting but choice of time and place. The time urged, for within four days Cæsar was to depart and take guards. For the place they thought the palace most convenient; for they concluded that all the senators, though they were not made privy to it, yet, seeing the action, would joyfully join with them; which, as it is said, happened at the death of Romulus, after having changed the regal power into tyranny. Wherefore this attempt would have the same success with that; especially being not privily executed, but in the palace, and for the good of the commonwealth. That they needed not to fear anything from Cæsar's army, being all composed of Roman people; in conclusion, that the authors of this great action doing it publicly, could expect nothing but reward.

"Having all decreed the palace for the place of execution, there were divers opinions concerning the manner of doing it; some being of opinion that they should likewise make away Antony, Cæsar's colleague, the most powerful of his friends, and well beloved of the soldiery. But Brutus opposed that, saying, that it was only by killing Cæsar, who was as a king, that they ought to seek for the glory of destroying tyrants; and that if they killed his friends too, men would impute the action to private enmity, and the faction of Pompey. This advice prevailing, they only expected the assembling of the senate. Now the day before Cæsar being invited to sup with Lepidus, carried along with him Decimus Brutus Albinus; and during supper the question being proposed what death was best for man; some desiring one kind, and some another; he alone preferred the suddenest and most unexpected. Thus divining for himself they fell to discourse of the morrow's affairs. In the morning finding himself somewhat out of order with the night's debauch, and his wife Calpurnia having been frightened with dismal dreams, she advised him not to go abroad and in many sacrifices he

made there were none but affrightful tokens; he therefore gave order to Antony to dismiss the senate. But Decimus Brutus persuading him that it was more convenient, he went himself, to avoid the opinion that might be conceived, that he did it out of pride or scorn, he went to dismiss them himself, coming to the palace in his litter.

“There were at that time plays in Pompey’s theatre, and almost all the senators were at the windows of the neighbouring houses, as is the custom in the time of spectacles. The same morning the prætors, Brutus and Cassius, gave audience to those who made suit for it, with great tranquillity, in a gallery before the theatre. But when they had heard what happened to Cæsar in the sacrifices, and that therefore they deferred the senate, they were much troubled. One of those that stood there having taken Casca by the hand, told him: ‘You kept it close from me that am your friend, but Brutus has told me all.’ Whereupon Casca pricked in conscience, began to tremble; but the other continuing with a smile: ‘Where then will you raise the money to come to the ædility?’ Casca gave him an account. Brutus and Cassius themselves being talking together, one of the senators, called Popilius Lænas, drawing them aside said: ‘I pray God what you have in your hearts may succeed happily, but it is fit you make haste.’ At which they were so surprised that they gave him no answer.

“At the same time that Cæsar went to the palace in his litter, one of his domestics, who had understood something of the conspiracy came to find Calpurnia; but without saying anything else to her but that he must speak with Cæsar about affairs of importance, he stayed expecting his return from the senate, because he did not know all the particulars; his host of Cnidus called Artemidorus running to the palace to give him notice of it came just at the moment of his being killed; another, as he sacrificed before the gate of the senate house, gave him a note of all the conspiracy; but he going in without reading it, it was after his death found in his hands. As he came out of his litter, Lænas, the same who before had spoken to Cassius, came to him, and entertained him a long time in private; which struck a damp into the chiefs of the conspiracy, the more because their conference was long; they already began to make signs to one another that they must now kill him before he arrested them; but in the sequel of the discourse, observing Lænas to use rather the gesture of suppliant than accuser, they deferred it; till in the end, seeing him return thanks to Cæsar, they took courage.

“It is the custom of the chief magistrates entering the palace, first to consult the divine: and here as well as in the former sacrifices, Cæsar’s first victim was found without a heart, or as some say without the chief of the entrails. The

divine hereupon telling him it was a mortal sign, he replied laughing, that when he went to fight against Pompeius in Spain he had seen the like; and the other having replied, that then likewise he had run hazard of losing his life; but that at present the entrails threatened him with greater danger. He commanded they should sacrifice another victim, which foreboding nothing but ill, he feared to seem tedious to the senate; and being pressed by his enemies, whom he thought to be his friends, without considering the danger, entered the palace; for it was of necessity that the misfortune to befall him should befall.

“They left Trebonius at the gate to stop Antony under pretence of discoursing some business with him; and as soon as Cæsar was seated, the other conspirators surrounded him according to custom, as friends, having each his dagger concealed. At the same time Attilius Cimber standing before him began to entreat him to grant the return of his brother who was an exile; and upon his refusal, under pretence of begging it with more humility, he took him by the robe and drawing it to him, hung about his neck, crying out, ‘Why do you delay, my friends?’ Thereupon Casca first of all reaching over his head, thought to strike his dagger into his throat, but wounded him only in the breast. Cæsar having disengaged himself from Cimber, and caught hold of Casca’s hand, leaped from his seat, and threw himself upon Casca with a wonderful force; but being at handy grips with him, another struck his dagger into his side, Cassius gave him a wound in the face, Brutus struck him quite through the thigh, Bucolianus wounded him behind the head, and he, like one enraged, and roaring like a savage beast, turned sometimes to one and sometimes to another; till strength failing him after the wound received from Brutus, he threw the skirt of his robe over his face and suffered himself gently to fall before Pompey’s statue. They forebore not to give him many stabs after he was down; so that there were three and twenty wounds found in his body. And those that slew him were so eager that some of them through vehemence, without thinking of it, wounded each other.

“After this murder committed in a hallowed place, and on a sacred person, all the assembly took their flight, both within the palace and without in the city. In the crowd there were several senators wounded, and some killed: there were slain likewise other citizens and strangers; not with design, but without knowing the authors, as happens in a public tumult; for the gladiators, who were armed in the morning to give divertisement to the people, ran from the theatre to the senators’ houses; the spectators affrighted, dispersed as fast as their legs would carry them, the commodities exposed to sale were made plunder of, the gates were shut, and many got upon the roofs of their houses to secure themselves

from violence. Antony fortified himself in his house, judging that they had a design upon his life as well as upon Cæsar's; and Lepidus, general of the horse, hearing upon the place what had passed, made haste to the island in the river, where he had a legion; which he drew into the Field of Mars, that he might be in readiness to execute the orders of Antony; for he yielded to him, both in the quality of Cæsar's friend and consul.

“The soldiers would very willingly have revenged Cæsar's death so basely murdered, but that they feared the senate, who favoured the murderers, and expected the issue of things. Cæsar had no soldiery with him, for he loved not guards, but contented himself with ushers; besides, he was accompanied by a great number of people of the robe, and whole troops of as well citizens as strangers, with freedmen and slaves, followed him from his house to the palace; but in a moment all these crowds were vanished, there remained with him only three unhappy slaves; who putting him in his litter, and taking it upon their shoulders, carried him, who but a little before was master of both sea and land. The conspirators after the execution had a mind to have said something to the senate; but nobody staying to hear them, they twisted their robes about their left arms instead of bucklers, and with their bloody daggers in their hands ran through the streets, crying out, that they had slain the king and the tyrant; causing to march before them a man carrying a cap on the head of a pike, which is the badge of liberty; they exhorted likewise the people to the restoring of the commonwealth; putting them in mind of the first Brutus, and the oath wherein he had engaged the citizens, and with them their posterity.”^g

FOOTNOTES

[123] Appian^g says that Cæsar arrived in Spain from Rome in twenty-seven days, accompanied by a part of his army; Suetoniusⁱ that he reached the Further Province in twenty-four. Strabo^j seems to rely on the same authorities as Appian. From Rome to Corduba or Obulco is more than a thousand miles, a distance which it is utterly impossible for an army to accomplish in the longest of these periods. The author of the *Commentary on the Spanish War* is contented with the expression *celeri festinatione*, and Dion Cassius^k prudently follows him.

[124] [According to Nicolaus, it was the conspirators who moved the senate to declare Cæsar inviolable. They prompted this decree with the cunning aim of hereby making Cæsar secure (as he would think) and so inducing him to dismiss his bodyguard. After his return from Spain whenever he came forth in public, not only in the country but also in town, he had himself accompanied by a bodyguard. He did not dismiss this bodyguard until shortly before his appointment as perpetual dictator, which took place between the 26th of January and the 15th of February, in the year 44 B.C.]

“That this statement of Nicolaus rests on a pure invention can hardly be assumed,” says Wiegandt, who gives it full credit, and adds:

“This is all the more probably true of the above-mentioned decree, because it served the most vital interests of the conspirators. For, so long as Cæsar was protected by his bodyguard any attack upon him exposed their own lives to the hazard. Consideration of their own personal safety, again, influenced the conspirators at every step. Even after Cæsar had dismissed his bodyguard, the attempt was constantly being postponed in view of the danger resulting from his numerous attendance. In this way were rejected the various designs to murder him on the Via Sacra, on the occasion of the meeting of electoral committees in the Campus Martius, or during the gladiatorial games at the theatre. What recommended the senate house to the combined choice of the conspirators as a fit place in which to execute the blow was this, that here, secretly armed themselves, they had nothing to fear from the unarmed friends of Cæsar, and, moreover, might rely on the protection of the gladiators of Decimus Brutus.

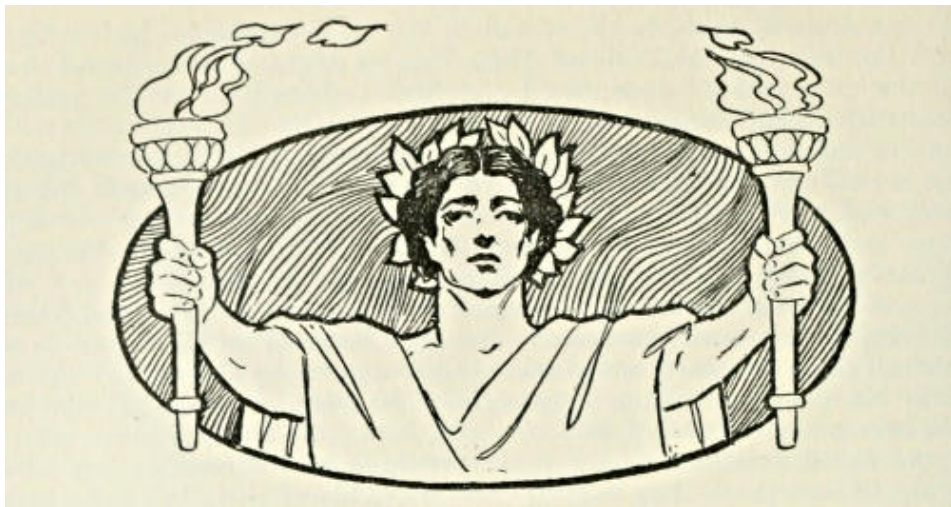
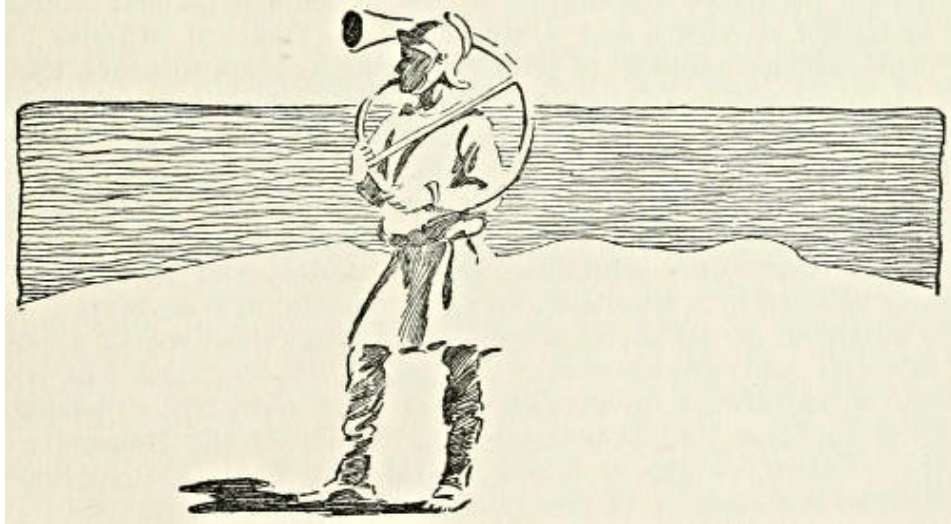
“A second argument in favour of the statement of Nicolaus is that a still broader decree of the senate appears to have been based on the same cunning motive. The conspirators had reckoned too little with Cæsar’s sober practical nature when they hoped that as a man sacrosanct he would renounce all armed attendance. As a matter of fact he attached so little significance to the decree, that it never occurred to him to dismiss his escort.”^h]

[125] [“But,” says Florus,^f “all these honours were but as decorations laid on a victim doomed to die.”]

[126] [Sulla had raised the number of senators to six hundred; cf. [page 444](#).]

[127] [On this much discussed question of Cæsar and Cleopatra it is interesting to quote Froude’s opinion from his *Cæsar*: “Cleopatra is said to have joined Cæsar at Rome after his return from Spain, and to have resided openly with him as his mistress. Supposing that she did come to Rome, it is still certain that Calpurnia was in Cæsar’s house when he was killed. Cleopatra must have been Calpurnia’s guest as well as her husband’s; and her presence, however commented upon in society, could not possibly have borne the avowed complexion which tradition assigned to it. On the other hand, it is quite intelligible that the young queen of Egypt, who owed her position to Cæsar, might have come, as other princes came, on a visit of courtesy, and that Cæsar, after their acquaintance at Alexandria, should have invited her to stay with him. But was Cleopatra at Rome at all? The only real evidence for her presence there is to be found in a few words of Cicero: ‘Reginæ fuga mihi non molesta.’ (‘I am not sorry to hear of the flight of the queen.’) There is nothing to show that the ‘queen’ was the Egyptian queen. Granting that the word Egyptian is to be understood, Cicero may have referred to Arsinoë, who was called queen as well as her sister, and had been sent to Rome to be shown at Cæsar’s triumph.”]

[128] [“Thus,” says Florus,^f “he who had deluged the world with the blood of his countrymen, deluged the senate house at last with his own.”]



CHAPTER XXVI. THE PERSONALITY AND CHARACTER OF CÆSAR

But yesterday the word of Cæsar might
Have stood against the world; now lies he there,
And none so poor to do him reverence.

—SHAKESPEARE.

Cæsar was assassinated in his fifty-sixth year. He fell pierced with twenty-three wounds, only one of which, as the physician who examined his body affirmed, was in itself mortal. In early life his health had been delicate, and at a later period he was subject to fits of epilepsy, which attacked him in the campaign of Africa, and again before the battle of Munda. Yet the energy and habitual rapidity of all his movements seem to prove the robustness of his constitution, at least in middle life. It may be presumed that if he had escaped the dagger of the assassin, he might, in the course of nature, have attained old age; and against any open attack his position was impregnable. He might have lived to carry out himself the liberal schemes which he was enabled only to project. But it was ordained, for inscrutable reasons, that their first originator should perish, and leave them to be eventually effected by a successor, within a quarter of a century.

The judgment of the ancients upon this famous deed varied according to their interests and predilections. If, indeed, the republic had been permanently re-established, its saviour would have been hailed, perhaps, with unmingled applause, and commanded the favour of the Romans to a late posterity. Cicero, though he might have shrunk from participating in the deed, deemed it expedient to justify it, and saluted its authors in exulting accents, as tyrannicides and deliverers. But the courtiers of the later Cæsars branded it as a murder, or passed it over in significant silence. Virgil, who ventures to pay a noble compliment to Cato, and glories in the eternal punishment of Catiline, bestows not a word on the exploit of Brutus. Even Lucan, who beholds in it a stately sacrifice to the gods, admits the detestation with which it was generally regarded. Augustus, indeed, wisely tolerant, allowed Messalla to speak in praise of Cassius; but Tiberius would not suffer Cremutius to call him with impunity the last of the Romans. Velleius, Seneca, and, above all, Valerius Maximus, express their abhorrence of the murder in energetic and manly tones. It was the mortification, they said, of the conspirators at their victim's superiority, their disappointment at the slowness with which the stream of honours flowed to them, their envy, their vanity, anything rather than their patriotism, that impelled them to it. The Greek writers, who had less of prejudice to urge them to extenuate the deed, speak of it without reserve as a monstrous and abominable crime. Again, while Tacitus casts a philosophic glance on the opinions of others, and abstains from passing any judgment of his own, Suetonius allows that Cæsar was, indeed, justly slain, but makes no attempt to absolve his assassins. From Livy and Florus, and the epitomiser of Trogus, we may infer that the sentiments expressed by Plutarch were the same which the most reasonable of the Romans generally adopted; he declared that the disorders of the body politic

required the establishment of monarchy, and that Cæsar was sent by providence, as the mildest physician, for its conservation. On the whole, when we consider the vices of the times and the general laxity of principle justly ascribed to the later ages of Greek and Roman heathenism, it is interesting to observe how little sympathy was extended by antiquity to an exploit which appealed so boldly to it.^b

The following extract from Suetonius' *Lives of the Cæsars* is our chief source of knowledge as to Cæsar's personality.

He is said to have been tall, of a fair complexion, round limbed, rather full faced, with eyes black and lively, very healthful, except that, towards the end of his life, he would suddenly fall into fainting-fits, and be frightened in his sleep. He was likewise twice seized with the falling sickness in the time of battle. He was so nice in the care of his person that he had not only the hair of his head cut and his face shaved with great exactness, but likewise had the hair on other parts of the body plucked out by the roots, a practice with which some persons upbraidingly charged him. His baldness gave him much uneasiness, having often found himself upon that account exposed to the ridicule of his enemies. He therefore used to bring forward his hair from the crown of his head; and of all the honours conferred upon him by the senate and people, there was none which he either accepted or used with greater pleasure than the right of wearing constantly a laurel crown. It is said that he was particular in his dress. For he used the *latus clavus*^[129] with fringes about the wrists, and always had it girded about him but loosely. This circumstance gave origin to the expression of Sulla, who often advised the nobility to beware of "the loose-coated boy."

He first lived in Subura in a small house; but, after his advancement to the pontificate, in a house belonging to the state in the Sacred way. Many writers say that he affected neatness in his person, and niceness in his entertainments: that he entirely took down again a country-seat, near the grove of Aricia, which he erected from the foundation, and finished at a vast expense, because it had not exactly suited his fancy, though he was at that time poor and in debt; and that he carried about in his expeditions marble pavement for his tent.

They likewise report that he invaded Britain in hopes of finding pearls, the bigness of which he would compare together, and examine the weight by poisoning them in his hand; that he would purchase at any cost gems, carved works, and pictures, executed by the eminent masters of antiquity; and that he would give for handsome young slaves a price so extravagant that he was ashamed to have it entered in the diary of his expenses.

The same authors inform us that he constantly kept two tables in the provinces, one for the officers of the army, or the gentlemen of the provinces, and the other for such of the Roman gentry as had no commission in the troops, and provincials of the first distinction. He was so very exact in the management of his domestic affairs, both small and great, that he once put a baker in fetters, for serving him with a finer sort of bread than his guests; and put to death a freedman, and a particular favourite, for debauching the lady of a Roman knight, though no complaint had been made to him of the affair.

It is admitted by all that he was much addicted to women, as well as very expensive in his intrigues with them, and that he debauched many ladies of the highest quality; among whom were Postumia the wife of Servius Sulpicius, Lollia the wife of Aulus Gabinius, Tertulla the wife of M. Crassus, and likewise Mucia the wife of Cn. Pompeius. For it is certain that the Curios, father and son, and many others, objected to Pompey in reproach, "that to gratify his ambition, he married the daughter of a man upon whose account he had divorced his wife, after having had three children by her, and whom he used, with a heavy sigh, to call Ægisthus." But the mistress whom of all he most loved was Servilia, the mother of M. Brutus; for whom he purchased in his consulship, next after the commencement of their intrigue, a pearl which cost him six millions of sesterces; and in the Civil War, besides other presents, consigned to her, for a trifling consideration, some valuable estates in land, which were exposed to public auction. When many persons wondered at the lowness of the price, Cicero facetiously observed, "To let you know how much better a purchase this is than ye imagine, Tertia is deducted"; for Servilia was supposed to have prostituted her daughter Tertia to Cæsar.

That he had intrigues likewise with married women in the provinces appears from a distich, which was much repeated in the Gallic triumph.

In the number of his mistresses were also some queens, such as Eunoe, a Moor, the wife of Bogudes, to whom and her husband he made, as Naso reports, many large presents. But his greatest favourite was Cleopatra, with whom he often revelled all night till daybreak, and would have gone with her through Egypt in a pleasure-boat, as far as Ethiopia, had not the army refused to follow him. He afterwards invited her to Rome, whence he sent her back loaded with honours and presents, and gave her permission to call by his name a son, who, according to the testimony of some Greek historians, resembled Cæsar both in person and gait. Mark Antony declared in the senate that Cæsar had acknowledged the child as his own; and that C. Matius, C. Oppius, and the rest of Cæsar's friends knew it to be true. On which occasion Oppius, as if it had

been an imputation which he was called upon to refute, published a book to show that the child which Cleopatra fathered upon Cæsar was not his. Helvius Cinna, tribune of the commons, told several persons as a fact that he had a bill ready drawn up, which Cæsar had ordered him to get enacted in his absence, that, with the view of procuring issue, he might contract marriage with any one female, or as many as he pleased.

It is acknowledged even by his enemies that in respect of wine he was abstemious. A remark is ascribed to M. Cato, "that he was the only sober man amongst all those who were engaged in a design to subvert the government." For in regard to diet, C. Oppius informs us, he was so indifferent for his own part, that when a person in whose house he was entertained had served him, instead of fresh oil, with oil which had some sort of seasoning in it, and which the rest of the company would not touch, he alone ate very heartily of it, that he might not seem to tax the master of the house with inelegance or want of attention.

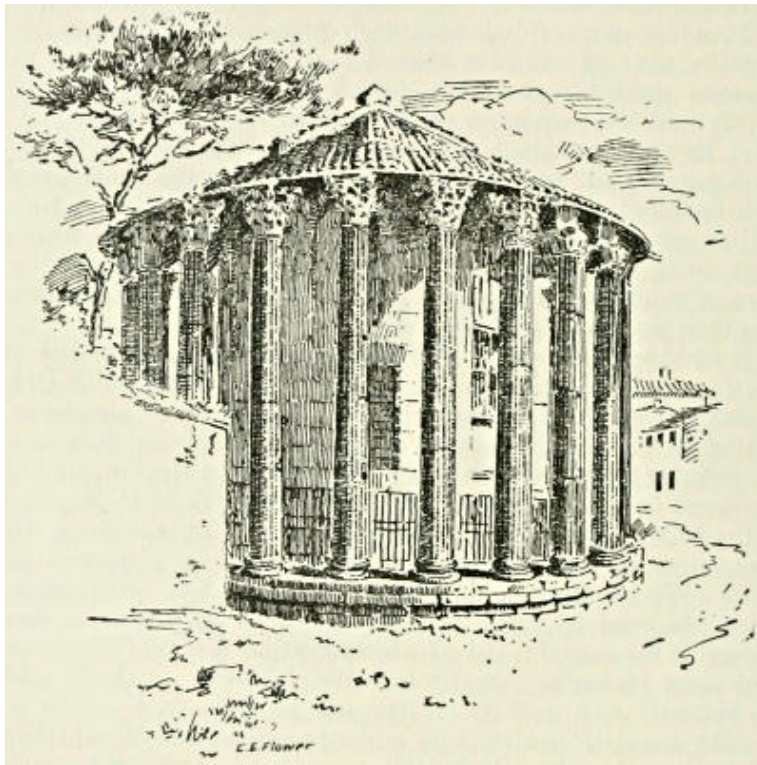
He never discovered any great regard to moderation, either in his command of the army, or civil offices; for we have the testimony of some writers that he requested money of the proconsul his predecessor in Spain, and the Roman allies in that quarter, for the discharge of his debts; and some towns of the Lusitanians, notwithstanding they attempted no resistance to his arms and opened to him their gates, upon his arrival before them he plundered in a hostile manner. In Gaul, he rifled the chapels and temples of the gods, which were filled with rich presents; and demolished cities oftener for the sake of plunder than for any offence they had given him. By this means gold became so plentiful with him that he exchanged it through Italy and the provinces of the empire for three thousand sesterces the pound. In his first consulship he stole out of the Capitol three thousand pounds' weight of gold, and placed in the room of it the same weight of gilt brass. He bartered likewise to foreign nations and princes, for gold, the titles of allies and kings; and squeezed out of Ptolemy alone near six thousand talents, in the name of himself and Pompey. He afterwards supported the expense of the Civil Wars and of his triumphs and public shows, by the most flagrant rapine and sacrilege.

In point of eloquence and military achievements, he equalled at least, if he did not surpass, the greatest men. After his prosecution of Dolabella, he was indisputably esteemed among the most distinguished pleaders. Cicero, in recounting to Brutus the famous orators, declares "he does not see that Cæsar was inferior to any one of them; that he had an elegant, splendid, noble, and magnificent vein of eloquence." And in a letter to C. Nepos, he writes of him in

the following terms: “What! which of all the orators, who, during the whole course of their lives, have done nothing else, can you prefer before him? Which of them is ever more pointed in expression, or more often commands your applause?” In his youth he seems to have chosen Strabo Cæsar as his model; out of whose oration for the Sardinians he has transcribed some passages literally into his *Divinatio*. He is said to have delivered himself with a shrill voice, and an animated action which was graceful. He has left behind him some speeches, among which are a few not genuine; as that for Q. Metellus. These Augustus supposes, and with reason, to be the production of blundering writers of shorthand, who were not able to follow him in the delivery, rather than anything published by himself. For I find in some copies the title is not “for Metellus,” but “what he wrote to Metellus”; whereas the speech is delivered in the name of Cæsar, vindicating Metellus and himself from the aspersions cast upon them by their common defamers. The speech addressed “to his soldiers in Spain,” Augustus considers likewise as spurious. Under this title we meet with two; one made, as is pretended, in the first battle, and the other in the last; at which time Asinius Pollio says, he had not leisure to address the soldiers, on account of the sudden assault of the enemy.

He has likewise left commentaries of his own transactions both in the Gallic and the civil war with Pompey; for the author of the Alexandrian, African, and Spanish wars is not known with any certainty. Some think they are the production of Oppius, and some of Hirtius; the latter of whom composed the last book, but an imperfect one, of the Gallic War. Of those memoirs of Cæsar, Cicero in his *Brutus* speaks thus: “He wrote his memoirs in a manner that greatly deserves approbation; they are plain, precise, and elegant, without any affectation of ornament. In having thus prepared materials for such as might be inclined to compose his history, he may perhaps have encouraged some silly creatures to enter upon such a work, who will needs be dressing up his actions in all the extravagance of bombast; but he has discouraged wise men from ever attempting the subject.” Hirtius delivers his opinion of the same memoirs in the following terms: “So great is the approbation with which they are universally perused, that, instead of exciting, he seems to have precluded the efforts of any future historian. Yet with regard to this subject, we have more reason to admire him than others; for they only know how well and correctly he has written, but we know likewise how easily and quickly he did it.” Pollio Asinius thinks that they were not drawn up with much care, or with a due regard to truth: for he insinuates that Cæsar was too hasty of belief with respect to what was performed by others under him; and that, in respect of what he transacted in person, he has not given a very faithful account—either with design, or through

a defect of memory; expressing at the same time an opinion that Cæsar intended a new and more correct production on the subject.



TEMPLE OF VESTA, ROME

He has left behind him likewise two books of analogy, with the same number under the title of *Anti-Cato*, and a poem entitled *The Journey*. Of these books he composed the first two in his passage over the Alps, as he was returning to his army from holding the assizes in Hither Gaul; the second work about the time of the battle of Munda; and the last during the four-and-twenty days he was upon his expedition from Rome to Further Spain. There are extant some letters of his to the senate, written in a manner never practised by any before him, for they are divided into pages in the form of a pocket-book; whereas the consuls and generals, till then, used constantly in their letters to continue the line quite across the sheet, without any folding or distinction of pages. There are extant likewise some letters from him to Cicero, and others to his friends concerning his domestic affairs; in which, if there was occasion for secrecy, he used the alphabet in such a manner that not a single word could be made out. The way to decipher those epistles was to substitute “d” for “a” and so of the other letters respectively. Some things likewise pass under his name, said to have been written by him when a boy or a very young man; as the *Encomium of Hercules*, a tragedy entitled *Ædipus*, and a collection of apophthegms; all which Augustus

forbid to be published, in a short and plain letter to Pompeius Macer, whom he had appointed to direct the arrangement of his libraries.

He was a perfect master of his weapons, a complete horseman, and able to endure fatigue beyond all belief. Upon a march, he used to go at the head of his troops, sometimes on horseback, but oftener on foot, with his head bare in all kinds of weather. He would travel in a post-chaise at the rate of a hundred miles a day, and pass rivers in his way by swimming, or supported with leathern bags filled with wind, so that he often prevented all intelligence of his approach.

In his expeditions, it is difficult to say whether his caution or boldness was most conspicuous. He never marched his army by a route which was liable to any ambush of the enemy, without having previously examined the situation of the places by his scouts. Nor did he pass over into Britain, before he had made due inquiry respecting the navigation, the harbours, and the most convenient access to the island. But when advice was brought to him of the siege of a camp of his in Germany, he made his way to his men, through the enemy's guards, in a Gallic habit. He crossed the sea from Brundisium and Dyrrhachium, in the winter, through the midst of the enemy's fleets; and the troops which he had ordered to follow him not making that haste which he expected, after he had several times sent messengers to expedite them, in vain, he at last went privately, and alone, aboard a small vessel in the night-time, with his head muffled up; nor did he discover who he was, or suffer the master to desist from prosecuting the voyage, though the wind blew strong against them, until they were ready to sink.

He was never discouraged from any enterprise, nor retarded in the prosecution of it, by any ill omens. When a victim which he was about to offer in sacrifice had made its escape, he did not therefore defer his expedition against Scipio and Juba. And happening to fall, upon stepping out of the ship, he gave a lucky turn to the omen, by exclaiming, "I hold thee fast, Africa." In ridicule of the prophecies which were spread abroad, as if the name of the Scipios was, by the decrees of fate, fortunate and invincible in that province, he retained in the camp a profligate wretch, of the family of the Cornelii, who, on account of his scandalous life, was surnamed Salutio.

He engaged in battle not only upon previous deliberation, but upon the sudden when an occasion presented itself; often immediately after a march, and sometimes during the most dismal weather, when nobody could imagine he would stir. Nor was he ever backward in fighting, until towards the end of his life. He then was of opinion that the oftener he had come off with success, the

less he ought to expose himself to new hazards; and that he could never acquire so much by any victory as he might lose by a miscarriage. He never defeated an enemy whom he did not at the same time drive out of their camp; so warmly did he pursue his advantage that he gave them no time to rally their force. When the issue of a battle was doubtful, he sent away all the officers' horses, and in the first place his own, that being deprived of that convenience for flight they might be under the greater necessity of standing their ground.

He rode a very remarkable horse, with feet almost like those of a man, his hoofs being divided in such a manner as to have some resemblance to toes. This horse he had bred himself, and took particular care of, because the soothsayers interpreted those circumstances into an omen that the possessor of him would be master of the world. He backed him too himself, for the horse would suffer no other rider; and he afterwards erected a statue of him before the temple of Venus Genitrix.

He often alone, by his courage and activity, restored the fortune of a battle; opposing and stopping such of his troops as fled, and turning them by the jaws upon the enemy; though many of them were so terrified that a standard bearer, upon his stopping him, made a pass at him; and another, upon a similar occasion, left his standard in his hand.

The following instances of his resolution are equally, and even more remarkable. After the battle of Pharsalia, having sent his troops before him into Asia, as he was passing the Hellespont in a ferry boat, he met with L. Cassius, one of the opposite party, with ten ships of war; whom he was so far from avoiding, that he advanced close up to him; when, advising him to surrender, and the other complying, he took him into the boat.

At Alexandria, in the attack of a bridge, being forced by a sudden sally of the enemy into a boat, and several hurrying in with him, he leaped into the sea, and saved himself by swimming to the next ship, which lay at the distance of two hundred paces; holding up his left hand out of the water, for fear of wetting some papers which he held in it; and pulling his general's cloak after him with his teeth, lest it should fall into the hands of the enemy.

He never estimated a soldier by his manners or fortune, but by his strength alone; and treated them with equal severity and indulgence; for he did not always keep a strict hand over them, except when an enemy was near. Then indeed he was so rigorous an exactor of discipline, that he would give no notice of march or battle until the moment he was to enter upon them; that the troops might hold themselves in readiness for any sudden movement; and he would

frequently draw them out of the camp, without any necessity for it, especially in rainy weather, and upon holy days. Sometimes, giving them warning to watch him, he would suddenly withdraw himself by day or night, and would oblige them to long marches, on purpose to tire them, if they were tardy.

When at any time his soldiers were discouraged by reports of the great force of the enemy, he recovered them, not by denying the truth of what was said, or by diminishing the fact, but on the contrary by exaggerating every particular. Accordingly, when his troops were under great apprehensions of the arrival of King Juba, he called them together, and said, "I have to inform you that in a very few days the king will be here, with ten legions, thirty thousand horse, a hundred thousand light-armed foot, and three hundred elephants. Let none therefore presume to make any further inquiry, or to give their opinion upon the subject, but take my word for what I tell you, which I have from undoubted intelligence; otherwise I shall put them aboard a crazy old vessel, and leave them exposed to the mercy of the winds."

He neither took notice of all their faults, nor proportioned his punishments to the nature of them. But after deserters and mutineers he made the most diligent inquiry, and punished them severely; other delinquencies he would connive at. Sometimes, after a successful battle, he would grant them a relaxation from all kinds of duty, and leave them to revel at pleasure; being used to boast that his soldiers fought nothing the worse for being perfumed. In his speeches, he never addressed them by the title of "soldiers," but by the softer appellation of "fellow-soldiers"; and kept them in such fine condition that their arms were ornamented with silver and gold, not only for the purpose of making the better appearance, but to render the soldiers more tenacious of them in battle, from their value. He loved his troops to such a degree that, when he heard of the disaster of those under Titurius, he neither cut his hair nor shaved his beard until he had revenged it upon the enemy; by which means he engaged extremely their affection, and rendered them to the last degree brave.

Upon his entering into the Civil War, the centurions of every legion offered each of them to maintain a horseman at his own expense, and the whole army agreed to serve gratis, without either corn or pay; those amongst them who were rich charging themselves with the maintenance of the poor. No one of them, during the whole course of the war, went over to the enemy; and most of those who were made prisoners, though they were offered their lives upon the condition of bearing arms against him, refused to accept the terms. They endured want, and other hardships, not only when themselves were besieged, but when they besieged others, to such a degree that Pompey, when blocked up

in the neighbourhood of Dyrrhachium, upon seeing a sort of bread, made of an herb, which they lived upon, said, "I have to do with wild beasts," and ordered it immediately to be taken away; because, if his troops should see it, they might be impressed with a dangerous apprehension of the hardiness and desperate resolution of the enemy. With what bravery they fought, one instance affords sufficient proof; which is, that after an unsuccessful engagement at Dyrrhachium, they desired him to punish them; insomuch that their general found it more necessary to comfort than punish them.

In other battles, in different parts, they defeated with ease immense armies of the enemy, though they were much inferior to them in number. To conclude, one battalion of the sixth legion held out a fort against four legions belonging to Pompey, during several hours; being almost every one of them wounded, by the vast number of arrows discharged against them, and of which there were found within the ramparts a hundred and thirty thousand. This is no way surprising, when we consider the behaviour of some individuals amongst them; such as that of Cassius Scæva, or C. Acilius a common soldier. Scæva, after he had an eye struck out, was run through the thigh and the shoulder, and had his shield pierced in a hundred and twenty places, maintained obstinately the guard of a gate in a fort, with the command of which he was intrusted. Acilius, in the sea fight at Marseilles, having seized a ship of the enemy with his right hand, and that being cut off, in imitation of that memorable instance of resolution in Cynægirus amongst the Greeks leaped into the ship, bearing down all before him with the boss of his shield.

They never once mutinied during all the ten years of the Gallic War, but were sometimes a little refractory in the course of the Civil War. They always however returned quickly to their duty, and that not through the compliance but the authority of their general; for he never gave ground, but constantly opposed them on such occasions. The whole ninth legion he dismissed with ignominy at Placentia, though Pompey was at that time in arms; and would not receive them again into his service, until not only they had made the most humble submission and entreaty, but that the ringleaders in the mutiny were punished.

When the soldiers of the tenth legion at Rome demanded their discharge and rewards for their service, with great threats, and no small danger to the city, though at that time the war was warmly carried on against him in Africa, he immediately, notwithstanding all the efforts of his friends, who endeavoured to prevent him from taking such a measure, came up to the legion and disbanded it. But addressing them by the title of "quirites," instead of "soldiers," he by this single word so thoroughly regained their affections that they immediately cried

out they were his “soldiers,” and followed him into Africa, though he had refused their service. He nevertheless punished the most seditious amongst them, with the loss of a third of their share in the plunder and the land which had been intended for them.

In the service of his clients, while yet a young man, he evinced great zeal and fidelity. He defended the cause of a noble youth, Masintha, against King Hiempsal, so strenuously that in a wrangle which happened upon the occasion he seized by the beard the son of King Juba; and upon Masintha being declared tributary to Hiempsal, while the friends of the adverse party were violently carrying him off, he immediately rescued him by force, kept him concealed in his house a long time, and when, at the expiration of his prætorship, he went to Spain, he carried him with him in his litter, amidst his sergeants, and others who had come to attend and take leave of him.

He always treated his friends with that good nature and kindness, that when C. Oppius, in travelling with him through a forest, was suddenly taken ill, he resigned to him the only place there was to lodge in at night, and lay himself upon the ground, and in the open air. When he had come to have in his own hands the whole power of the commonwealth, he advanced some of his faithful adherents, though of mean extraction, to the highest posts in the government. And when he was censured for this partiality, he openly said, “Had I been assisted by robbers and cut-throats in the defence of my honour, I should have made them the same recompense.”

He never in any quarrel conceived so implacable a resentment as not very willingly to renounce it when an opportunity occurred. Though C. Memmius had published some extremely virulent speeches against him, and he had answered him with equal acrimony, yet he afterwards assisted him with his vote and interest, when he stood candidate for the consulship. When C. Calvus, after publishing some scandalous epigrams against him, endeavoured to effect a reconciliation by the intercession of friends, he wrote of his own accord the first letter. And when Valerius Catullus, who had, as he himself observed, in his verses upon Mamurra put such a stain upon his character as never could be obliterated, begged his pardon, he invited him to supper the same day; and continued to take up his lodging with his father occasionally, as he had been accustomed to do.

His disposition was naturally averse to severity in retaliation. After he had made the pirates, by whom he had been taken, prisoners, because he had sworn he would crucify them, he did so indeed; but previously to the execution of that

sentence, ordered their throats to be cut. He could never bear the thought of doing any harm to Cornelius Phagita, who had kidnapped him in the night, with the design of carrying him to Sulla; and from whose custody, not without much difficulty and a large bribe likewise, he had been able to extricate himself. Philemon, his secretary, who had made a promise to his enemies to poison him, he put to death only, without torture. When he was summoned as a witness against P. Clodius, his wife Pompeia's gallant, who was prosecuted for a pollution of religious ceremonies, he declared he knew nothing of the affair, though his mother Aurelia and his sister Julia gave the court an exact and full account of the transaction. And being asked why then he had divorced his wife: "Because," said he, "I would have those of my family untainted, not only with guilt, but with the suspicion of it likewise."

Both in the administration of government and his behaviour towards the vanquished party in the Civil War, he showed a wonderful moderation and clemency. And whilst Pompey declared that he would consider all those as enemies who did not take arms in defence of the republic, he desired it to be understood that he should regard all those who remained neuter as his friends. In respect of all those to whom he had, on Pompey's recommendation, given any command in the army, he left them at perfect liberty to go over to him, if they pleased. When some proposals were made at Ilerda for a surrender, which gave rise to a free communication between the two camps, and Afranius and Petreius, upon a sudden change of resolution, had put to the sword all Cæsar's men that were found in the camp, he scorned to imitate the base treachery which they had practised against himself. In the field of Pharsalia, he called out to the soldiers "to spare their fellow-citizens," and afterwards gave liberty to every man in his army to save an enemy. None of them, so far as appears, lost their lives but in battle, excepting only Afranius, Faustus, and young Lucius Cæsar; and it is thought that even they were put to death without his consent. Afranius and Faustus had borne arms against him, after their pardon had been granted them; and L. Cæsar had not only in the most cruel manner destroyed with fire and sword his freedmen and slaves, but cut to pieces the wild beasts which he had prepared for the entertainment of the people. And finally, a little before his death, he granted liberty to all whom he had not before pardoned, to return into Italy, and admitted them to a capacity of bearing offices both civil and military.

He even erected again the statues of Sulla and Pompey, which had been thrown down by the populace. And any machinations against him, or reflections upon him, he chose rather to put a stop to than punish. Accordingly, with regard to any conspiracies against him which were discovered, or nightly cabals, he

went no further than to intimate by a proclamation that he knew of them; and as to those who indulged themselves in the liberty of reflecting severely upon him, he only warned them in a public speech not to persist in their obloquy. He bore with great moderation a virulent libel written against him by Aulus Cæcina, and the abusive lampoons of Pitholaus, most highly reflecting on his reputation.

His other actions and declarations, however, with regard to the public, so far outweigh all his good qualities, that it is thought he abused his power and was justly cut off. For he not only accepted of excessive honours, as the consulship every year successively, the dictatorship for life, and the superintendency of the public manners, but likewise the titles of “imperator,” and “father of his country,” besides a statue amongst the kings, and a throne in the place allotted to the senators in the theatre. He even suffered some things to be decreed for him that were unsuitable to the greatest of human kind; such as a golden chair in the senate house and upon the bench when he sat for the trial of causes, a stately chariot in the Circensian procession, temples, altars, images near the gods, a bed of state in the temples, a peculiar priest, and a college of priests, like those appointed in honour of Pan, and that one of the months should be called by his name. He indeed both assumed to himself, and granted to others, every kind of distinction at pleasure. In his third and fourth consulship he had only the title of the office, being content with the power of dictator, which was conferred upon him at the same time; and in both years he substituted other consuls in his room, during the three last months; so that in the intervals he held no assemblies of the people for the election of magistrates, excepting only tribunes and ædiles of the commons; and appointed officers, under the name of prefects, instead of the prætors, to administer the affairs of the city during his absence. The honour of the consulship, which had just become vacant by the sudden death of one of the consuls, he instantly conferred, the day before the 1st of January, upon a person who requested it of him, for a few hours.

With the same unwarrantable freedom, regardless of the constant usage of his country, he nominated the magistrates for several years to come. He granted the insignia of the consular dignity to ten persons of prætorian rank. He called up into the senate some who had been made free of the city, and even natives of Gaul, who were little better than barbarians. He likewise appointed to the management of the mint and the public revenue of the state some of his own servants; and entrusted the command of three legions, which he left at Alexandria, to an old catamite of his, the son of his freedman Rufinus.

He gave way to the same extravagance in his public conversation, as T. Ampius informs us; according to whom he said: “The commonwealth is nothing

but a name, without substance, or so much as the appearance of any. Sulla was an illiterate fellow to lay down the dictatorship. Men ought to be more cautious in their converse with me, and look upon what I say as a law." To such a pitch of arrogance did he proceed that, when a soothsayer brought him word that the entrails of a victim opened for sacrifice were without a heart, he said: "The entrails will be more favourable when I please; and it ought not to be regarded as any ill omen if a beast should be destitute of a heart."

But what brought upon him the greatest and most invincible odium was his receiving the whole body of the senate sitting, when they came to wait upon him before the temple of Venus Genitrix, with many honourable decrees in his favour. Some say, as he attempted to rise, he was held down by C. Balbus. Others say he did not attempt it at all, but looked somewhat displeased at C. Trebatius, who put him in mind of standing up. This behaviour appeared the more intolerable in him because, when one of the tribunes of the commons, Pontius Aquila, would not rise up to him, as in his triumph he passed by the place where they sat, he was so much offended, that he cried out, "Well then, master tribune, take the government out of my hands." And for some days after, he never promised a favour to any person, without this proviso, "if Pontius Aquila will allow of it."

To this extraordinary affront upon the senate, he added an action yet more outrageous. For when, after the sacrifice of the Latin festival, he was returning home, amidst the incessant and unusual acclamations of the people, one of the crowd put upon a statue of him a laurel crown, with a white ribbon tied round it, and the tribunes of the commons, Epidius Marullus and Cæsetius Flavius, ordered the ribbon to be taken away and the man to be carried to prison; being much concerned either that the mention of his advancement to regal power had been so unluckily made, or, as he pretended, that the glory of refusing it had been thus taken from him, he reprimanded the tribunes very severely, and dismissed them both from their office. From that day forward, he was never able to wipe off the scandal of affecting the name of king; though he replied to the people, when they saluted him by that title, "My name is Cæsar, not King." And at the feast of the Lupercalia, when the consul Antony in the rostra put a crown upon his head several times, he as often put it away, and sent it into the Capitol to Jupiter. A report was extremely current that he had a design of removing to Alexandria or Ilium, whither he proposed to transfer the strength of the empire, and to leave the city to be administered by his friends. To this report it was added that L. Cotta, one of the fifteen commissioners entrusted with the care of the Sibyl's books, would make a motion in the house that, as there was

in those books a prophecy that the Parthians should never be subdued but by a king, Cæsar should have that title.^[130] This was why the conspirators precipitated the execution of their design.^c

APPIAN COMPARES CÆSAR WITH ALEXANDER

“Happy in all things, magnificent; and with just reason comparable to Alexander; for they were both beyond measure ambitious, warlike, ready in the execution of what they had resolved and hardy in dangers; they spared not their bodies; and in war relied not so much upon their conduct, as upon their bravery and good fortune. The one went a long journey in a country without water to go to Ammon, happily crossed over the bottom of the Pamphylian Gulf, the sea being retired as if his genius had locked up the waters; as another time marching in the champian, it caused it to cease from raining. He navigated an unknown sea; being in the Indies, he first scaled the walls of a city, and leaped down alone into the midst of his enemies, receiving thirteen wounds; was always victorious; and whatever war he was engaged in, he ended it in one or two battles.

“In Europe he subdued many barbarous people, and reduced them under his obedience, together with the Grecians, a fierce people, and lovers of liberty, who never before obeyed any person but Philip; who commanded them for some time under the honourable title of general of the Greeks. He carried his arms almost through all Asia with an incredible celerity. And to comprise in a word the happiness and power of Alexander, all the countries he saw he conquered; and as he was designing to conquer the rest, he died.

“As for Cæsar, passing the Ionian Sea in the midst of winter, he found it calm, as well as the British Ocean, which he passed without any knowledge of it in a time when his pilots, driven by storm against the English rocks, lost their ships; another time embarking alone by night in a little boat, and rowing against the waves, he commanded the pilot to hoist sail and rather to consider the fortune of Cæsar than the sea. He threw himself more than once all alone into the midst of his enemies, when his men were all struck with panic fear; and is the only general of the Romans that ever fought thirty times in pitched battle against the Gauls, and subdued in Gaul forty nations, before so dreadful to the Romans, that in the law dispensing with priests and old men from going to war, the wars against the Gauls are excepted, and the priests and all men obliged to bear arms. Before Alexandria, seeing himself alone enclosed upon a bridge, he laid down his purple, threw himself into the sea, and pursued by his enemies,

swam a long time under water, only by intervals lifting up his head to take breath; till coming near his ships, he held up his hands, was known, and so saved.

“For the civil wars, which he neither undertook out of fear (as he himself says), or out of ambition, he had to deal with the greatest generals of the age, fighting at the head of many great armies; not barbarian, but Romans, encouraged by their former actions, and by their good fortune, yet he defeated them all; and not one of them but he ruined in a fight or two. But we cannot say of him as of Alexander, that he was never overcome; for he suffered once a great loss against the Gauls, under the conduct of Titurius and Cotta, his lieutenants. In Spain his army was so near blocked up by Petreius and Afranius, that he wanted but little of being besieged. At Dyrrhachium and in Africa they turned their backs; and in Spain, against the young Pompeius they fled. But for Cæsar himself, he was always undaunted; and whatever war he engaged in, came off in the end victorious; and the Roman Empire, which now extends itself by sea and land, from the Euphrates to the Atlantic Ocean, was brought under his power, partly by his valour, and partly by his clemency. He settled himself much better than Sulla, and governed himself with more moderation; for being king in effect, in spite of all the world, he took not that name.

“At last, making his preparations for other wars, he was surprised by death as well as Alexander. Their armies were also alike; for the soldiers of both were cheerful in fight and hardy, but stubborn and mutinous when over-wrought with labour. The deaths of both of them were equally mourned and lamented by their armies, who attributed to them divine honours. They were both well made in body and of noble aspect; both descended from Jupiter; one by Eacus and Hercules, and the other by Anchises and Venus. Though they were inflexible when resisted, they were easier to pardon and be reconciled, and likewise to do good to such as they had vanquished; contented themselves with the victory.

“Hitherto the comparison is just, save only that their beginnings were not equal; for Alexander began with the quality of a king, in which he had been before instructed by his father Philip; but Cæsar was only a private man; and though he were of an illustrious race, yet his fortunes were much encumbered. They both despised the presages that threatened them, without injuring those divines who foretold their death; and almost the same signs happened to them, and a like event; for in the sacrifices made by one and the other twice, they found not the chief of the entrails of the victims; the first time they were only threatened with great danger. Alexander’s happened when besieging the Oxydracæ, being mounted first upon the wall, and the too great weight breaking

the ladders behind him, he beheld himself deserted by his men, and threw himself into the midst of his enemies, where having received many wounds on his breast and a great blow on the neck, he was ready to die, when the Macedonians, touched with shame, broke open the gates and relieved him.

“The like happened to Cæsar in Spain in the fight between him and young Pompeius; where, seeing his men went on trembling, he advanced betwixt the two armies, received two hundred darts on his buckler, till such time as fear having given place to shame, all the army ran in and secured him from the danger. Thus the first entrails without the chief threatened only danger of death, but the second were certain presage of death itself. Pythagoras the divine, after having sacrificed, said to Apollodorus, who feared Alexander and Hephæstion, that he need fear nothing, for they both should shortly die. Hephæstion, dying some time after, Apollodorus, doubting lest there might be some conspiracy formed against the king, gave him notice of the prediction; he only laughed at it; and informing himself of Pythagoras what those presages meant, he told him it was a sign of death; whereupon he again laughed, praising Apollodorus’ love and the divine’s freedom.

“As for Cæsar, the last time he went to the senate, as we have said a little before, the same presage presenting, he said, smiling, he had seen the like in Spain, to which the augur answering that he was then in danger, but now the sign was mortal, he yielded in some measure to that advice, and offered another sacrifice; but tired with the length of the ceremony, entered the palace and perished. There happened to Alexander the same thing; for when he returned from the Indies to Babylon with his army, being come nigh the city, the Chaldeans counselled him to defer his entry; to whom having given this verse for answer,

‘Who promises most good’s the best divine,’

they besought him at last that he would not let his army enter with their faces to the west; but would fetch a compass, that in entering they might see the rising sun and the city. It is said he would have obeyed them in this; but in marching about he met with a marshy ground, which made him slight the second as well as the first advice, so that he entered the city with his face to the west. Some time after embarking upon the Euphrates, and going down to the river Pallakopas, which receives the Euphrates and carries its waters into marshes and pools which might happen to drown all Assyria, he resolved to make a dam;

and it is said that going down the river he laughed at the Chaldeans because he had gone into Babylon and come out of it again in a boat without any harm; but death attended him at his return from this voyage.

“Cæsar’s raillery with the augur, who told him the ides of March were fatal to him, was much alike; he answered him jeering, the ides were come, and yet he was killed the same day. So that herein there was great agreement between them, both in the presages they received from the divines without being offended, their raillery, and the event of the prediction. They were likewise great lovers of the sciences, as well of their own country as strangers’. Alexander conferred with the Brachmanes, who were esteemed the most subtile and sagacious of the Indians, as the Magi are of the Persians. Cæsar did the like with the Egyptians when he re-established Cleopatra in her kingdom, which occasioned him when the peace was made to reform many things amongst the Romans; and that after the example of the Egyptians he regulated the year by the course of the sun, which before was governed by the moon; and so till then were unequal, by reason of the intercalary days. It happened to him likewise that one of those who conspired his death escaped, but were all punished as they deserved by his son, and as the murderers of Philip were by Alexander.”^e

From this we turn to what is probably the most masterly estimate of Cæsar’s character and abilities ever penned by a student of Roman history. It is the estimate of one who is an enthusiastic admirer of Cæsar’s genius, but also a keen historical critic.

MOMMSEN’S ESTIMATE OF CÆSAR’S CHARACTER

The new monarch of Rome, the first ruler over the whole extent of Roman and Hellenic civilisation, Caius Julius Cæsar was in his fifty-sixth year—he was born the 12th of July, 100 B.C.—when the battle of Thapsus, the last of the long chain of victories which led to such important consequences, gave the decision of the world’s future into his hands. Few men’s quality has been so severely tested as that of this creative genius, the only one that Rome and the last that the ancient world produced—that world which was to continue to march in the paths he had marked out for it, till the time of its own downfall.

A scion of one of the oldest of the noble families of Latium, which traced its genealogy back to the heroes of the *Iliad* and the kings of Rome, and even as far as Venus Aphrodite, a goddess common to both nations, the years of his boyhood and young manhood had gone by as those of the noble youths of that

epoch were wont to pass. He too had tasted both the froth and the lees of the cup of fashionable life, had recited and declaimed, had occupied his leisure with the pursuit of literature and the making of verses, had dallied with every species of love-making, and had been initiated into all the mysteries of shaving, hair-curling, and ruffles, which belonged to the science of dress as understood at that period, besides the far more difficult art of always borrowing and never paying. But the pliant steel of that nature resisted even these shallow and ruinous courses; Cæsar's bodily vigour remained unimpaired, as did the temper of his mind and heart. In fencing and riding he was a match for any of his soldiers, and his swimming saved his life at Alexandria; the incredible speed with which he travelled, generally by night so as to gain time,—a direct contrast to the procession-like slowness with which Pompey moved from one place to another,—was the astonishment of his contemporaries and not the least important factor in his success.

As his body, so was his spirit. His marvellous insight revealed itself in the sureness and practical character of all his arrangements even when he gave orders without personal investigation. His memory was incomparable and it was easy for him to carry on several affairs concurrently and with equal precision. Gentleman, genius, and monarch, he still had a heart. As long as he lived he preserved the purest reverence for his excellent mother Aurelia, his father having died early; on his wife, and more especially on his daughter Julia, he bestowed a worthy affection which was not without its effect on politics. In their several ways the ablest and worthiest men of his time both of higher and lower rank stood to him in relations of mutual trust. As he never abandoned his adherents in Pompey's ungenerous and heartless fashion, but stood by his friends unshaken in good and evil days, and this not merely from calculation, so also many of them, like Aulus Hirtius and Caius Matius, gave noble witness of their attachment to him even after his death.

If in a nature so harmoniously organised one particular side may be dwelt upon as characteristic, it is this that anything of an ideological or visionary character was far removed from it. It is needless to say that Cæsar was a passionate man, for there is no genius without passion; but his passions were never stronger than he. He had been young, and song, love, and wine had played their part in his joyous existence; but they did not penetrate the inmost heart of his being. Literature attracted his long and earnest attention; but if the Homeric Achilles kept Alexander awake, Cæsar in his sleepless hours prepared considerations on the inflections of Latin nouns and verbs. He made verses, as

every one did at that time, but they were feeble; on the other hand he was interested in astronomical subjects and in those of physical science.

If for Alexander wine was and remained the dispeller of care, the temperate Roman entirely avoided it after the period of his youthful revels. Like all those who have been surrounded in youth by the full glow of the love of women, its imperishable glamour still rested on him; even in later years love adventures and successes with women still came in his way, and he still retained a certain dandyism in his outward bearing, or, more correctly, a joyous consciousness of the masculine beauty of his own appearance. The laurel wreaths with which he appeared in public in later years were carefully disposed so as to cover the baldness of which he was painfully sensible, and he would doubtless have given many of his victories if that could have brought back his youthful locks.

But however gladly he may have played the monarch amongst the women, he was only amusing himself with them and allowed them no influence over him; even his much-talked-of relations with Queen Cleopatra were only entered into for the purpose of masking a weak point in his political position. Cæsar was thoroughly matter-of-fact and a true realist; and what he attempted and performed was carried through and effected by that coolness which was his most essential quality and itself a manifestation of genius. To it he owed the power of living actively in the present and undisturbed by memory and expectation, as well as the ability to act at each moment with all his force and to apply his full genius to the smallest and most casual beginnings. He owed to it also the versatility with which he grasped and mastered whatever the understanding can seize and the will compel, the confident carelessness with which he commanded his words and sketched his plans of campaign, the “marvellous joyousness” which remained faithful to him in good and evil days, and the complete self-dependence which allowed no favourite nor mistress, nor even a friend to exercise power over him.

But it is to this perspicacity that we may also trace the fact that Cæsar never deluded himself concerning the power of fate and human capabilities; for him the kindly veil was lifted which hides from man the insufficiency of his toil. However cleverly he might lay his plans and weigh all the possibilities, there was always present with him a feeling that in all things fortune, that is chance, must contribute the largest part; and with this may be connected the fact that he so often gave odds to fate, and in particular again and again hazarded his person with foolhardy indifference. As men of unusual intelligence have betaken themselves to games of pure chance, so too there was in Cæsar’s rationalism a point where in a certain sense he came in touch with mysticism.

From such materials a statesman could not fail to be produced. Cæsar was a statesman from his earliest youth and in the deepest sense of the word, and his aim was the highest which a man may set before himself—the political, military, intellectual, and moral revival of his own deeply fallen nation and that still more deeply fallen Hellenic people which was so closely allied with his own. The hard school of thirty years' experience had changed his views concerning the means by which this goal was to be attained; his aim remained the same in the days of hopeless depression as in the fullness of unlimited power, in the days when as a demagogue and conspirator he glided to it by obscure paths and in those in which as participant of the highest power and then as monarch, he created his works in the full sunshine before the eyes of a world. All the measures of a permanent character which originated with him at the most various times ranged themselves in their appropriate places in the great scheme. Strictly, therefore, we should not speak of solitary performances of Cæsar; he created nothing solitary.

Cæsar the orator has been justly praised for his virile eloquence, which made a mock of all the advocate's art and like the clear flame gave light and warmth at the same time. Cæsar the writer has been justly admired for the inimitable simplicity of his composition, the singular purity and beauty of his language. The greatest masters in the military art in all periods have justly praised Cæsar the general who, emancipated as no other has been from the entanglements of routine and tradition, always managed to find that method of warfare by which in a particular case the enemy might be vanquished and which is consequently the right one in that case. With the certainty of a diviner he found the right means for every purpose, after defeat stood like William of Orange ready for battle, and ended every campaign without exception with victory. He applied in unsurpassed perfection that principle of warfare whose employment distinguishes military genius from the ability of an ordinary officer—namely, the principle of the swift movement of masses; and found security for victory not in great numbers but in swift movement, not in long preparations but in swift and even rash action even with inadequate resources.

But with Cæsar all this is only subsidiary; he was indeed a great orator, writer, and general, but he only became each of these because he was an accomplished statesman. The soldier in him, in particular, plays an entirely incidental rôle, and one of the most remarkable peculiarities which distinguishes him from Alexander, Hannibal, and Napoleon is that in him not the commander but the demagogue was the starting-point of his political activity. According to his original plan he had intended to attain his goal as Pericles and Caius

Gracchus had done, without having recourse to arms; and as leader of the popular party he had moved for the space of eighteen years exclusively in the sphere of political plans and intrigues, before, unwillingly convinced of the necessity of military support, he placed himself at the head of an army at a time when he was already forty years old. It was explicable enough that at a later period he should have still remained more statesman than general; as Cromwell also transformed himself from leader of the opposition into a military chief and democratic king and, on the whole, little as the puritan prince may seem to resemble the dissolute Roman, he is of all statesmen perhaps the one who is most closely allied to Cæsar both in his development and in his aims and achievements.

Even in Cæsar's manner of warfare his impromptu generalship is still clearly recognisable; the lieutenant of artillery who had risen to be general is not more distinctly apparent in Napoleon's enterprises against England and Egypt than is the demagogue metamorphosed into a general in the like undertakings of Cæsar. A trained officer would hardly have laid aside the most important military considerations for political reasons of a not very imperative nature, as Cæsar frequently did, the most astonishing instance being the occasion of his landing in Epirus. Individual proceedings of his are consequently blameworthy in a military sense. But the general loses only what the statesman gains.

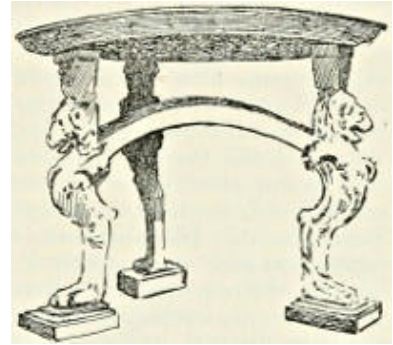
The statesman's task, like Cæsar's genius, is of a universal character; though he turns his attention to the most complex and diverse affairs, yet they all without exception have their bearing on the one great goal which he serves with boundless fidelity and consistency; and of all the numerous phases and directions of his great activity he never gave the preference to one above another. Although a master of the military art, he nevertheless, with a statesman's foresight, did his utmost to avoid civil war, and even when he began it to earn no bloody laurels. Although the founder of a military monarchy, he exerted an energy unexampled in history to prevent the formation of either a hierarchy of marshals or a prætorian government. He preferred the sciences of arts and peace to those of war.

The most noteworthy characteristic of his work as a statesman is its perfect harmony. In fact all the necessary qualifications for this most difficult of all human tasks were united in Cæsar. Realist through and through, he never allowed consecrated tradition and the images of the past to trouble him; nothing was of any importance to him in politics save the living present and intelligent law, as in the character of a grammarian he set aside historical and antiquarian inquiry and only recognised, on the one hand the usages of the living language,

on the other the laws of conformity. A born ruler, he swayed the minds of men as the wind drives the clouds, and compelled the most diverse characters to abandon themselves to him—the simple citizen and the rough soldier, the noble ladies of Rome and the fair princesses of Egypt and Mauretania, the brilliant cavalry leader and the calculating banker.

His talent for organisation was wonderful; Cæsar forced his coalition and his legions into close union and held them firmly together as no other statesman ever did with his allies, nor any general with an army composed of unruly and conflicting elements; never did ruler judge his instruments with so keen an eye and put each in its appropriate place. He was a monarch, but he never played the king. Even as absolute master of Rome he retained the bearing of a party leader; perfectly pliant and complaisant, easy and agreeable in conversation and courteous to all, he appeared to desire to be nothing more than the first among his equals. Cæsar entirely avoided the mistake of so many men otherwise as great as he—that of carrying the spirit of the military commander into politics; however great the temptation arising from his vexatious relations with the senate, he never had recourse to such acts of brute force as that of the 18th Brumaire. Cæsar was a monarch, but he was never caught by the glamour of tyranny. He is perhaps the only one among the Lord's mighty ones, who in great things as in small never acted in response to fancy or caprice but in all cases in accordance with his duty as a ruler, and who, when he looked back on his life, might indeed deplore miscalculations but could repent of none of the errors of passion. There is nothing in the story of Cæsar's life which can compare even in a small degree with those ebullitions of poetic sensuality, with the murder of Clitus or the burning of Persepolis, of which the history of his great predecessor in the East has to tell. Finally he is perhaps the only one of those mighty ones who preserved to the very end of his career a statesman-like sense of the possible and impossible and who did not shipwreck on the great problem which is the hardest of all for natures of the grand order, the problem of recognising the natural limits of success even at its very pinnacle.

What was practicable he performed, and never neglected the attainable good for the sake of the impossible better; never disdained at least to mitigate an incurable evil by some palliative. But where he perceived that fate had spoken he always listened. Alexander at the Hypanis, Napoleon in Moscow turned back



ROMAN TRIPOD

because they were compelled to do so, and reproached fate because she granted only limited success. Cæsar at the Thames and the Rhine retired of his own free will, and at the Danube and Euphrates laid no extravagant schemes for the conquest of the world, but merely planned the execution of some carefully considered frontier regulations.

Such was this singular man whom it seems so easy and is so hopelessly difficult to describe. His whole nature is pellucidly clear, and concerning him tradition has preserved more abundant and vivid details than of any of his peers in the ancient world. Such a personality might indeed be conceived as shallower or more profound but not really in different ways; to every not wholly perverse inquirer this lofty figure has appeared with the same essential traits, and yet none has succeeded in restoring it in clear outline. The secret lies in its completeness. Humanly and historically speaking Cæsar stands at that point of the equation at which the great conflicting principles of life neutralise one another. Possessing the greatest creative force and yet at the same time the most penetrating intelligence, no longer a youth but not yet an old man, highest in will and highest in achievement, filled with republican ideals and yet a born king, a Roman to the deepest core of his being and again destined to reconcile and unite Roman and Hellenic civilisations both externally and in their inward relations—Cæsar is the complete and perfect man. This is why in him more than in any other historical personality we miss the so-called characteristic traits, which are really nothing else than deviations from the natural human development. What are taken for these at the first superficial glance reveal themselves on closer inspection, not as individual qualities, but as the peculiarities of the period of civilisation or of the nation; thus as his youthful adventures are common to him and to all his gifted contemporaries who were similarly situated, so his unpoetic but energetic and logical nature is mainly Roman.

Besides this it is in accordance with Cæsar's perfectly human character that he was in the highest degree dependent on time and place; for there is no such thing as humanity pure and simple; the living man can but exhibit the qualities of a given nation and a particular stamp of civilisation. Cæsar was a perfect man only because he had placed himself, as none other had done, in the central stream of the tendencies of his day, and because more than any other he possessed the essential characteristic of the Roman nation, the true citizen quality in its perfection; while his Hellenism also was only that which had long since become closely intertwined with the national spirit of the Italians.

But herein lies the difficulty, we might perhaps say the impossibility, of giving a distinct portrait of Cæsar. As the artist can paint anything save perfect beauty, so also the historian, where once in a thousand years he encounters perfection, can only be silent before it. For the rule may indeed be laid down, but we have only a negative idea of the absence of defect; nature's secret, of uniting the normal and the individual in their fullest manifestations, cannot be expressed. Nothing is left us but to duly appreciate those who saw this perfection and to obtain a dim idea of the imperishable reflection which rests on the works created by this great nature. It is true that these also show the mark of his age. The Roman himself might be compared with his young Greek predecessor not merely as an equal but as a superior; but the world had grown old since then and its youthful lustre had grown dim. Cæsar's work was no longer, like that of Alexander, a joyous effort to advance towards the immeasurable distance; he was engaged in construction, and that from ruins, and was satisfied to work as profitably and securely as possible in the wide but defined sphere already indicated. The fine poetic sense of the nations is therefore justified in paying no heed to the unpoetic Roman, while it has surrounded the son of Philip with all the golden splendour of poetry and all the rainbow colours of legend. But with equal justice the political life of nations has for thousands of years returned again and again to the lines which Cæsar traced, and if the peoples to whom the world belongs still apply his name to the chiefest of their monarchs, there is in this a profound warning and one, unfortunately, also calculated to rouse feelings of shame.

MOMMSEN'S ESTIMATE OF CÆSAR'S WORK

Cæsar had been a leader of the popular party from a very early period and as it were by hereditary right, and for thirty years he had upheld its shield without ever changing or even hiding his colours; even as monarch he was still a democrat. As he entered into the entire inheritance of his party, of course with the exception of the wrong-headed notions of Catiline and Clodius, cherished the bitterest and even a personal hatred towards the aristocracy and the true aristocrats, and retained unaltered the principal watchwords of the Roman democracy—namely, the amelioration of the position of debtors, foreign colonization, the gradual abolition of the existing differences of privilege between the various classes in the state and the emancipation of the executive power from the senate; so his monarchy also was so little in conflict with the democracy that, on the contrary, it was through it that the latter first attained completion and fulfilment. For this monarchy was no oriental despotism by the

grace of God, but a monarchy such as Caius Gracchus wished to found, such as Pericles and Cromwell founded—the representation of the people by the man who possessed its supreme and unlimited trust. Thus the ideas which underlie Cæsar's work were not exactly new; but their development, in the last instance always the main thing, belongs to him, and to him the grandeur of the realisation which might have surprised even the originating genius could he have seen it, and which has inspired and will ever inspire all who have encountered it in actual operation or in the mirror of history, whatever the historical period or political complexion to which they may belong, with deeper and deeper emotion and wonder according to the measure of their capacity for comprehending human and historical greatness.

This is perhaps the right place to expressly declare what the historian always tacitly assumes and to enter a protest against the custom common alike to simplicity and dishonesty, the custom of employing the praise and blame of history independent of the special conditions, as phrases of general application, in this case of transforming the verdict on Cæsar into a judgment on so-called Cæsarism. In truth the history of past centuries should be the teacher of that in progress, but not in the common sense, as though men could read the junctures of the present in the records of the past and in those on the art of political diagnosis and prescriptions could read up the symptoms and their remedies; but history is only instructive in so far as the study of ancient civilisations reveals the general organic conditions of civilisation itself, with those primary forces which are everywhere the same and those combinations which are everywhere different, and in so far as, instead of producing unthinking imitation, it guides and inspires independent creations on old lines. In this sense the history of Cæsar and the Roman Cæsarship, with all the unsurpassed greatness of the master workman and all the historical necessity of the work, is verily a keener criticism of modern autocracy than the hand of man could write.

By the same law of nature in accordance with which the most insignificant organism is infinitely superior to the most cunning machine, any constitution, however defective, which allows free play for the spontaneous action of a majority of citizens is infinitely superior to absolutism, even though conducted with the greatest amount of humanity and genius; for the former is capable of development, and is therefore living, the latter remains what it is, that is it is dead. This law of nature also asserted itself in the case of the absolute military monarchy of Rome, and only the more completely because under the inspired guidance of its creator and in the absence of any real complications with foreign countries the development of that monarchy was less hampered and limited than

any similar government. From the time of Cæsar, as Gibbon long ago pointed out, the Roman Empire had only an external cohesion and was only extended in mechanical fashion, whilst inwardly it wholly withered and expired with himself. If at the commencement of the autocracy and especially in Cæsar's own mind there still prevailed a sanguine hope of a union of free popular development with absolute rule, even the government of the highly gifted emperors of the Julian line soon taught in terrible fashion how far it is possible to mingle fire and water in one vessel.

Cæsar's work was necessary and beneficial, not because it did or could of itself bring blessing, but because an absolute military monarchy was the least of evils and the logical and necessary conclusion determined by the ancient organisation, founded as it was on slavery and entirely alien to republican and constitutional representation, and by the legal constitution of the city, which in the course of five hundred years had ripened into an oligarchical absolutism. But history will not consent to diminish the honour of the true Cæsar because where there are spurious Cæsars a similar device may bewilder simplicity and furnish evil with an opportunity for lying and fraud. History too is a bible, and if it no more than the latter can defend itself from being misunderstood by the fool or quoted by the devil, it too will be in a position to endure and render his due to each.^d

FOOTNOTES

[129] The *latus clavus* was a broad stripe of purple, in the form of a ribbon, sewed to the tunic on the fore part. There were properly two such; and it was broad, to distinguish it from that of the equites, who wore a narrow one.

[130] [This interesting extract contains, of course, much unfounded gossip. In general we should set down as historical those acts and sayings only which could be known to the public or which were immediately recorded.]





MARK ANTONY

(From a bust at Rome)

CHAPTER XXVII. THE LAST DAYS OF THE REPUBLIC

The noble Brutus
Hath told you Cæsar was ambitious:
If it were so, it was a grievous fault;
And grievously hath Cæsar answered it.

—SHAKESPEARE.

While the conspirators were at their bloody work, the mass of the senators rushed in confused terror to the doors; and when Brutus turned to address his peers in defence of the deed, the hall was well-nigh empty. Cicero, who had been present, answered not, though he was called by name; Antony had hurried away to exchange his consular robes for the garb of a slave. Disappointed of obtaining the sanction of the senate, the conspirators sallied out into the Forum to win the ear of the people. But here too they were disappointed. Not knowing what massacre might be in store, every man had fled to his own house; and in vain the conspirators paraded the Forum, holding up their blood-stained weapons and proclaiming themselves the liberators of Rome. Disappointment was not their only feeling; they were not without fear. They knew that Lepidus, being on the eve of departure for his province of Narbonese Gaul, had a legion encamped on the island of the Tiber; and if he were to unite with Antony against them, Cæsar would quickly be avenged. In all haste, therefore, they retired to the Capitol. Meanwhile three of Cæsar's slaves placed their master's body upon a stretcher, and carried it to his house on the south side of the Forum with one

arm dangling from the unsupported corner. In this condition the widowed Calpurnia received the lifeless clay of him who had lately been sovereign of the world.

Lepidus moved his troops to the Campus Martius. But Antony had no thoughts of using force; for in that case probably Lepidus would have become master of Rome. During the night he took possession of the treasure which Cæsar had collected to defray the expenses of his Parthian campaign, and persuaded Calpurnia to put into his hands all the dictator's papers. Possessed of these securities, he barricaded his house on the Carinæ, and determined to watch the course of events.

In the evening Cicero, with other senators, visited the self-styled liberators in the Capitol. They had not communicated their plot to the orator, through fear (they said) of his irresolute counsels; but now that the deed was done, he extolled it as a godlike act. Next morning, Dolabella, Cicero's son-in-law, whom Cæsar had promised to make his successor in the consulship, assumed the consular fasces and joined the liberators; while Cinna, son of the old Marian leader, and therefore brother-in-law to Cæsar, threw aside his prætorian robes, declaring he would no longer wear the tyrant's livery. Dec. Brutus, a good soldier, had taken a band of gladiators into pay, to serve as a bodyguard of the liberators. Thus strengthened, they ventured again to descend into the Forum. Brutus mounted the tribune, and addressed the people in a dispassionate speech, which produced little effect. But when Cinna assailed the memory of the dictator, the crowd broke out into menacing cries, and the liberators again retired to the Capitol.

That same night they entered into negotiations with Antony, and the result appeared next morning, the second after the murder. The senate, summoned to meet, obeyed the call in large numbers. Antony and Dolabella attended in their consular robes, and Cinna resumed his prætorian garb. It was soon apparent that a reconciliation had been effected; for Antony moved that a general amnesty should be granted, and Cicero seconded the motion in an animated speech. It was carried; and Antony next moved that all the acts of the dictator should be recognised as law. He had his own purposes here, but the liberators also saw in the motion an advantage to themselves; for they were actually in possession of some of the chief magistracies, and had received appointments to some of the richest provinces of the empire. This proposal, therefore, was favourably received; but it was adjourned to the next day, together with the important question of Cæsar's funeral.

CÆSAR'S WILL AND FUNERAL

On the next day, Cæsar's acts were formally confirmed, and among them his will was declared valid, though its provisions were yet unknown. After this, it was difficult to reject the proposal that the dictator should have a public burial. Old senators remembered the riots that attended the funeral of Clodius, and shook their heads. Cassius opposed it. But Brutus, with imprudent magnanimity, decided in favour of allowing it. To seal the reconciliation, Lepidus entertained Brutus at dinner, and Cassius was feasted by Mark Antony.

The will was immediately made public. Cleopatra was still in Rome, and entertained hopes that the boy Cæsarion would be declared the dictator's heir, for though he had been married thrice there was no one of his lineage surviving. But Cæsar was too much a Roman, and knew the Romans too well, to be guilty of this folly. Young C. Octavius was declared his heir. C. Octavius was the son of his niece Atia, and therefore his grand-nephew. He was born, as we have noted, in the memorable year of Catiline's conspiracy, and was now in his nineteenth year. From the time that he had assumed the garb of manhood his health had been too delicate for military service. Notwithstanding this, he had ventured to demand the mastership of the horse from his uncle. But he was quietly refused, and sent to take his first lessons in the art of war at Apollonia, where a large and well-equipped army had been assembled.



SPEECH OF ANTONY OVER CÆSAR'S BODY

Legacies were left to all Cæsar's supposed friends, among whom were several of those who had assassinated him. His noble gardens beyond the Tiber were devised to the use of the public, and every Roman citizen was to receive a donation of three hundred sesterces (between £2 and £3). The effect of this recital was electric. Devotion to the memory of the dictator and hatred for his murderers at once filled every breast.

Two or three days after this followed the funeral. The body was to be burned and the ashes deposited in the Campus Martius near the tomb of his daughter Julia. But it was first brought into the Forum upon a bier inlaid with ivory and covered with rich tapestries, which was carried by men high in rank and office. There Antony, as consul, rose to pronounce the funeral oration. He ran through the chief acts of Cæsar's life, recited his will, and then spoke of the death which had rewarded him. To make this more vividly present to the excitable Italians, he displayed a waxen image marked with the three-and-twenty wounds, and produced the very robe which he had worn, all rent and blood-stained. Soul-stirring dirges added to the solemn horror of the scene. But to us the memorable

speech which Shakespeare puts into Antony's mouth will give the liveliest notion of the art used and the impression produced. That impression was instantaneous. The senator friends of the liberators who had attended the ceremony looked on in moody silence. Soon the menacing gestures of the crowd made them look to their safety. They fled; and the multitude insisted on burning the body, as they had burned the body of Clodius, in the sacred precincts of the Forum. Some of the veterans who attended the funeral set fire to the bier; benches and firewood heaped round it soon made a sufficient pile.

From the blazing pyre the crowd rushed, eager for vengeance, to the houses of the conspirators. But all had fled betimes. One poor wretch fell a victim to the fury of the mob—Helvius Cinna, a poet who had devoted his art to the service of the dictator. He was mistaken for L. Cornelius Cinna the prætor, and torn to pieces before the mistake could be explained. ^[131]

Antony was now the real master of Rome. The treasure which he had seized gave him the means of purchasing good will, and of securing the attachment of the veterans stationed in various parts of Italy. He did not, however, proceed in the course which, from the tone of his funeral harangue, might have been expected. He renewed friendly intercourse with Brutus and Cassius, who were encouraged to visit Rome once at least, if not oftener, after that day; and Dec. Brutus, with his gladiators, was suffered to remain in the city. Antony went still further. He gratified the senate by passing a law to abolish the dictatorship forever. He then left Rome, to win the favour of the Italian communities and try the temper of the veterans.

Meanwhile another actor appeared upon the scene. This was young Octavius.^b

THE ACTS OF THE YOUNG OCTAVIUS

[44-43 B.C.]

Julius Cæsar had in truth determined to take his great-nephew with him to the war against the Parthians, for which he was already eagerly preparing. As his legions were collected in Macedonia he sent on Caius Octavius in October of 45 B.C. to Apollonia to complete there his education in the science of warfare and rhetoric. As companions Cæsar gave him two of his contemporaries, Marcus Vipsanius Agrippa and Quintus Salvidienus, members of no distinguished family it must be admitted, but men who by their military services had done credit to Cæsar's penetration in judging men. During the preparations for the Parthian War

Roman troops were constantly in Apollonia, single detachments from time to time were ordered off from the army in Macedonia to enable the young Octavius to take part in their manœuvres and gain closer access to their leaders; in short, no effort was spared to make him popular with the army.

While the soldiers were making strenuous preparations for the Parthian War and eagerly looking forward to the arrival of their leader as soon as the favourable time of the year should be upon them, they were suddenly confronted with the news of his assassination. It was evening when the intelligence of the ides of March was delivered in Apollonia. An immediate resolution was imperative, as it was impossible as yet to know whether the lives of Cæsar's friends and relatives were not also in jeopardy. Some one even hazarded the wild suggestion that the Macedonian legions should be led against Rome; such a plan, that admitted of no preparations and at once exposed its originator to the danger of failing at its inception, and so making it wholly impracticable if the legions remained faithful to their sworn duty, was in direct antagonism to the character of Octavius, and was duly rejected.

Taking leave of the leaders of the army he returned home to Italy, as a private man. He did not dare land at a great port like Brundisium; on the contrary, he took care to select a harbour as little known as that of Lupiæ. Here he received more direct intelligence from Rome, particularly on the subject of his adoption. With the firm determination to claim his inheritance he turned to Brundisium, where he was immediately hailed as Cæsar by Cæsar's adherents and veterans. Many joined his side, it would seem, there and then, accompanying him to Naples. Cicero, who was taking a journey into lower Italy at the time, wrote to Atticus on the 11th of April, full of curiosity and dread anticipation: "But I would fain know what the arrival of Octavius portends? Does the multitude flock to him? Is there danger of a revolution? I don't think so myself; but whatever is the case I should like to know it." Arrived at his villa at Puteoli he writes to the same friend, apparently quite as an after-thought, that Octavius too came to Naples on the 18th of April; but the next day he again recurs to this subject: "Octavius, too, has come here, and occupies the villa of my neighbour Philippus. He is quite my humble servant." Close upon this he writes on the 22nd of April: "Octavius treated me with great consideration and friendliness at his visit. His household, it is true, are accustomed to address him as Cæsar, but his stepfather does not follow suit, nor do I. I cannot allow that he is a good citizen. There are too many in his neighbourhood who threaten our party with death. He describes the present position of affairs as not to be endured. Yes, but what think you will happen when this boy comes to Rome?"

The boy was not in such a hurry to come to Rome. He was in the very neighbourhood of Italy in which Cæsar had most endeared himself to his veterans. These negotiations were entered into even at this time with the object of ascertaining the colour of their minds. Young Cæsar then conducted his journey slowly to Tarracina and thence to Rome which he entered in the opening days of May before Antony had had time to return. We still possess to-day in the Museo Chiaramonti a marble bust in a fit condition to bring before our present eye the impression made by the man who was to be so mighty a ruler. The features are distinguished and fine, but energetic too; almost even disquieting.

His first steps in Rome concerned the will of Cæsar. Although his family, and notably his stepfather, strongly dissuaded him, he declared fearlessly, with a premature confidence in his determination that is striking, that his intention was to bid for Cæsar's inheritance, and this in the presence of Caius Antonius who had taken over the affairs of a town prætor since the flight of Brutus; shortly after this, in about the middle of May, he was presented to the people as Cæsar by the people's tribune, Lucius Antonius, a brother of Caius. The young Cæsar hereby pledged himself to the Roman people to exclude his adoptive father's legates, nor could he hope that Mark Antony would be prepared to deliver up to him that adoptive father's treasure.

Mark Antony indeed after his return did everything in his power to load young Cæsar's position with difficulty. His conduct to the son of his friend was loveless it is true, yet we can hardly deny that it is explicable. Two things there were especially which separated their interests: Antony would not and could not pay back Cæsar's treasure to the legitimate heir—equally impossible was it for him to divide the conduct of his party with a boy of nineteen. At the very first personal encounter between the two in the gardens of Pompey, which were then occupied by Antony, the incompatibility of aims which separated them came clearly to light, and the attempts of friends common to them both to bring the two rivals closer to each other could not avail to avert an open breach.

Rightly did Antony oppose the illegal bid of his rival for the tribunate of the people, but nothing but petty spite was the source of his refusal to allow the confirmation by the curiæ of the perfectly valid adoption by Cæsar. Moreover, the young Cæsar, in order to curry favour with the people, had declared his readiness to fulfil a vow of the dictator and to grant games in honour of the victory of Cæsar. Caius Matius and other friends of the dictator gave him every support at these games, from the 20th to the 30th of July; but Mark Antony, who had no power to prohibit games, succeeded in preventing a golden chair with a

coronal from being publicly set up in honour of Julius Cæsar. To the friend of Cæsar this Cæsar worship appeared at once of doubtful taste, a worship which his youthful rival sought to organise with all the outward show of an agitator; and before the decisive sentence of the consul the private man had at last to yield. But the later Augustus tells with peculiar satisfaction in his memoirs that, suddenly, in the course of the games, a mighty comet with a long tail was seen, and that it was greeted by the multitude as the star of Cæsar. The star of the Julii was again in the ascendant; and the son who had reared a brazen statue, surmounted with a star of gold, to his father in the temple of Venus, the mother of his stock, secretly hoped to attract the rays from this auspicious talisman upon his own future. A comet always stirs up the imagination of the people mightily, it signifies war; so a contemporary poet mourns: Comets full of foreboding never shone so frequent. This time the people were right; the figure of Nemesis for the murder of Cæsar stood in the doorway.

The nearer things came to a crisis the blacker grew Cæsar's situation. Antony had contemptuously rejected a confederacy with him; an apparent reconciliation on the Capitol had no enduring consequences. By the outbreak of a civil war, in which a Cæsar could not (even if he would) remain neutral, the young man could only rank himself as a bond fellow of the senate, of the very men who had murdered Cæsar. The thought was so intolerable to him that he did not shrink from an attempt to free himself of his opponent by assassination. Luckily for Cæsar's cause the attempt failed, and Antony was free a few days later to make away to his legions at Brundisium. Had the attempted assassination succeeded, the young Cæsar, whose security grew more and more perilous would, in all probability, not have been in a position to reap the benefit of this bloody deed. When we take into account the prudence of Cæsar's conduct on every other occasion but this, we can only explain this folly by the light of that systematic opposition with which Antony had met all his aspirations. To the murderers of Cæsar and the senate he behaved with somewhat greater caution.^f

Still Antony remained in possession of all actual power. The senate voted, on his demand, that the provinces of Macedonia and Syria, though granted to Brutus and Cassius by the act of Cæsar, should be given to C. Antonius and Dolabella, and that the coveted province of Cisalpine Gaul should be transferred from Dec. Brutus to Antony himself. The news of these arbitrary acts convinced the liberators that they had nothing to hope at Rome. Dec. Brutus immediately left the city and took possession of his province by force. But M. Brutus and Cassius still dallied. Their vacillating conduct during this time gives us an unfavourable impression of their fitness for any enterprise of mark. Cicero, not

himself remarkable for political firmness, in this crisis displayed a vigour worthy of his earlier days, and was scandalised by the unworthy bickerings of his friends. At length they set sail from Velia for Greece. This was in the month of September. Cicero also had at one moment made up his mind to retire from public life and end his days at Athens, in learned leisure. In the course of this summer he continued to employ himself on some of his most elaborate treatises. His works on *The Nature of the Gods* and on *Divination*, his *Offices*, his *Dialogue on Old Age*, and several other essays belong to this period and mark the restless activity of his mind. But though he twice set sail from Italy, he was twice driven back to port at Velia, where he found Brutus and Cassius. Here he received letters from A. Hirtius, and other friends of Cæsar, which gave him hopes that, in the name of Octavius, they might successfully oppose Antony, and restore constitutional government. He determined to return, and announced his purpose to Brutus and Cassius, who commended him, and went their way to the East to raise armies against Antony; he repaired to Rome to fight the battles of his party in the senate.

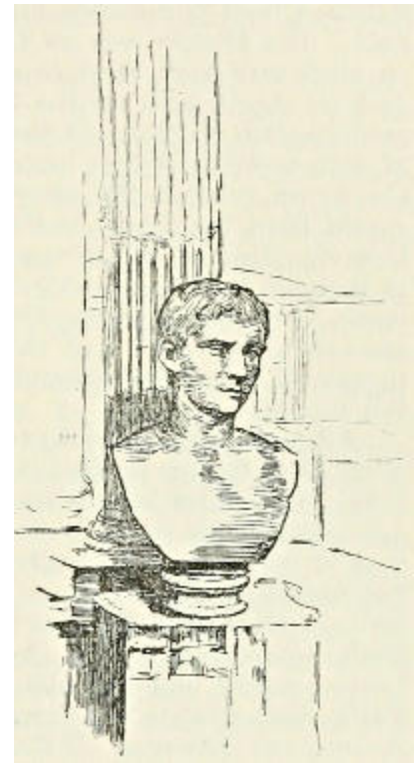
Meanwhile Antony had been running riot. In possession of Cæsar's papers, with no one to check him, he produced ready warrant for every measure which he wished to carry, and pleaded the vote of the senate which confirmed all the acts of Cæsar. When he could not produce a genuine paper, he interpolated or forged what was needful.

On the day after Cicero's return (September 1st) there was a meeting of the senate. But the orator did not attend, and Antony threatened to send men to drag him from his house. Next day Cicero was in his place, but now Antony was absent. The orator rose and addressed the senate in what is called his *First Philippic*. This was a measured attack upon the government and policy of Antony, but personalities were carefully eschewed. But Antony, enraged at his boldness, summoned a meeting for the 19th of September, which Cicero did not think it prudent to attend. He then attacked the absent orator in the strongest language of personal abuse and menace. Cicero sat down and composed his famous *Second Philippic*, which is written as if it were delivered on the same day, in reply to Antony's invective. At present, however, he contented himself with sending a copy of it to Atticus, enjoining secrecy.

Matters quickly drew to a head between Antony and Octavius. The latter had succeeded in securing a thousand men of his uncle's veterans who had settled at Campania, and by great exertions in the different towns of Italy had levied a considerable force. Meantime four of the Epirot legions had just landed at Brundisium, and Antony hastened to attach them to his cause. But the largess

which he offered them was only a hundred denarii a man, and the soldiers laughed in his face. Antony, enraged at their conduct, seized the ringleaders, and decimated them. But this severity only served to change their open insolence to sullen anger, and emissaries from Octavius were ready to draw them over to the side of their young master. They had so far obeyed Antony as to march northwards to Ariminum, while he repaired to Rome. But as he entered the senate house, he heard that two of the four legions had deserted to his rival, and in great alarm he hastened to the camp just in time to keep the remainder of the troops under his standard by distributing to every man five hundred denarii.

The persons to hold the consulship for the next year had been designated by Cæsar. They were both old officers of the Gallic army, C. Vibius Pansa and A. Hirtius, the reputed author of the eighth book of the *History of the Gallic War*. Cicero was ready to believe that they had become patriots, because, disgusted with the arrogance of Antony, they had declared for Octavius and the senate. Antony began to fear that all parties might combine to crush him. He determined, therefore, no longer to remain inactive; and about the end of November, having collected all his troops at Ariminum, he marched along the Æmilian road to drive Dec. Brutus out of Cisalpine Gaul. Decimus was obliged to throw himself into Mutina (Modena), and Antony blockaded the place. As soon as his back was turned, Cicero published the famous *Second Philippic*, in which he lashed the consul with the most unsparing hand, going through the history of his past life, exaggerating the debaucheries, which were common to Antony with a great part of the Roman youth, and painting in the strongest colours the profligate use he had made of Cæsar's papers. Its effect was great, and Cicero followed up the blow by the following twelve *Philippics*, which were speeches delivered in the senate house and Forum, at intervals from December, 44 B.C., to April in the next year.



BUST OF OCTAVIUS

(In the British Museum)

Cicero was anxious to break with Antony at once, by declaring him a public enemy. But the latter was still regarded by many senators as the head of the Cæsarian party, and it was resolved to treat with him. But the demands of Antony were so extravagant that negotiations were at once broken off, and nothing remained but to try the fortune of arms. The consuls proceeded to levy troops; but so exhausted was the treasury that now, for the first time since the triumph of Æmilius Paulus, it was found necessary to levy a property tax on the citizens of Rome.

[43 B.C.]

Octavius and the consuls assembled their forces at Alba. On the first day of the new year (43 B.C.) Hirtius marched for Mutina, with Octavius under his command. The other consul, Pansa, remained at Rome to raise new levies; but by the end of March he also marched to form a junction with Hirtius. Both parties pretended to be acting in Cæsar's name.

Antony left his brother Lucius in the trenches before Mutina, and took the field against Hirtius and Octavius. For three months the opponents lay watching each other. But when Antony learned that Pansa was coming up, he made a rapid movement southward with two of his veteran legions, and attacked him. A sharp conflict followed, in which Pansa's troops were defeated, and the consul himself was carried, mortally wounded, off the field. But Hirtius was on the alert, and assaulted Antony's wearied troops on their way back to their camp, with some advantage. This was on the 15th of April, and on the 27th, Hirtius drew Antony from his entrenchments before Mutina. A fierce battle followed, which ended in the troops of Antony being driven back into their lines. Hirtius followed close upon the flying enemy; the camp was carried by storm, and a complete victory would have been won had not Hirtius himself fallen. Upon this disaster Octavius drew off the troops. The news of the first battle had been reported at Rome as a victory, and gave rise to extravagant rejoicings. The second battle was really a victory, but all rejoicing was damped by the news that one consul was dead and the other dying. No such fatal mischance had happened since the Second Punic War, when Marcellus and Crispinus fell in one day.

After his defeat Antony felt it impossible to maintain the siege of Mutina. With Dec. Brutus in the town behind him, and the victorious legions of Octavius before him, his position was critical. He therefore prepared to retreat, and effected this purpose like a good soldier. His destination was the province of Narbonese Gaul, where Lepidus had assumed the government, and had promised him support. But the senate also had hopes in the same quarter. L. Munatius Plancus commanded in northern Gaul, and C. Asinius Pollio in southern Spain. Sext. Pompeius had made good his ground in the latter country, and had almost expelled Pollio from Bætica. Plancus and Pollio, both friends and favourites of Cæsar, had as yet declared neither for Antony nor Octavius. If they would declare for the senate, Lepidus, a feeble and fickle man, might desert Antony; or, if Octavius would join with Dec.

Brutus, and pursue him, Antony might not be able to escape from Italy at all. But these political combinations failed. Plancus and Pollio stood aloof, waiting for the course of events. Dec. Brutus was not strong enough to pursue Antony by himself, and Octavius was unwilling, perhaps unable, to unite the veterans of Cæsar with troops commanded by one of Cæsar's murderers. And so it happened that Antony effected his retreat across the Alps, but not without extreme hardships, which he bore in common with the meanest soldier. It was at such times that his good qualities always showed themselves, and his gallant endurance of misery endeared him to every man under his command. On his arrival in Narbonese Gaul he met Lepidus at Forum Julii (Fréjus), and here the two commanders agreed on a plan of operations.

The conduct of Octavius gave rise to grave suspicions. It was even said that the consuls had been killed by his agents. Cicero, who had hitherto maintained his cause, was silent. He had delivered his fourteenth and last *Philippic* on the news of the first victory gained by Hirtius. But now he talked in private of "removing" the boy of whom he had hoped to make a tool. Octavius, however, had taken his part and was not to be removed. Secretly he entered into negotiations with Antony. After some vain efforts on the part of the senate to thwart him, he appeared in the Campus Martius with his legions. Cicero and most of the senators disappeared, and the fickle populace greeted the young heir of Cæsar with applause. Though he was not yet twenty he demanded the consulship, having been previously relieved from the provisions of the *Lex Annalis* by a decree of the senate, and he was elected to the first office in the state, with his cousin Q. Pedius. [\[132\]](#)

A curiate law passed, by which Octavius was adopted into the patrician gens of the Julii, and was put into legal possession of the name which he had already assumed—C. Julius Cæsar Octavianus. We shall henceforth call him Octavian.

The change in his policy was soon indicated by a law in which he formally separated himself from the senate. Pedius brought it forward. By its provisions all Cæsar's murderers were summoned to take their trial. Of course none of them appeared, and they were condemned by default. By the end of September Octavian was again in Cisalpine Gaul, and in close negotiation with Antony and Lepidus. The fruits of his conduct soon

appeared. Plancus and Pollio declared against Cæsar's murderers. Dec. Brutus, deserted by his soldiery, attempted to escape into Macedonia through Illyricum; but he was overtaken near Aquileia, and slain by order of Antony.

Italy and Gaul being now clear of the senatorial party, Lepidus as mediator arranged a meeting between Octavian and Antony, upon an island in a small river near Bononia (Bologna). Here the three potentates agreed that they should assume a joint and co-ordinate authority under the name of "triumvirs for settling the affairs of the commonwealth." Antony was to have the two Gauls, except the Narbonese district, which, with Spain, was assigned to Lepidus; Octavian received Sicily, Sardinia, and Africa. Italy was for the present to be left to the consuls of the year, and for the ensuing year Lepidus, with Plancus, received promise of this high office. In return Lepidus gave up his military force, while Octavian and Antony, each at the head of ten legions, prepared to conquer the eastern part of the empire, which could not yet be divided like the western provinces, because it was in possession of Brutus and Cassius.

THE PROSCRIPTION

But before they began war the triumvirs agreed to follow the example set by Sulla—to extirpate their opponents by a proscription, and to raise money by confiscation. They framed a list of all men's names whose death could be regarded as advantageous to any of the three, and on this list each in turn pricked a name. Antony had made many personal enemies by his proceedings at Rome, and was at no loss for victims. Octavian had few direct enemies; but the boy despot discerned with precocious sagacity those who were likely to impede his ambitious projects, and chose his victims with little hesitation. Lepidus would not be left behind in the bloody work. The author of the *Philippics* was one of Antony's first victims; Octavian gave him up, and took as an equivalent for his late friend the life of L. Cæsar, uncle of Antony. Lepidus surrendered his brother Paulus for some similar favour. So the work went on. The description already given of Sulla's proscription may be repeated here literally, except that every horror was increased, and the number of victims multiplied. Not fewer than three hundred senators and two thousand knights were on the list. Q. Pedius, an

honest and upright man, died in his consulship, overcome by vexation and shame at being implicated in these transactions.

As soon as their secret business was ended, the triumvirs determined to enter Rome publicly. Hitherto they had not published more than seventeen names of the proscribed. They made their entrance severally on three successive days, each attended by a legion. A law was immediately brought in to invest them formally with the supreme authority, which they had assumed. This was followed by the promulgation of successive lists, each larger than its predecessor.^b

Appian gives a multitude of instances of the terrors of this proscription.

“The proscription being published,” he says, “guards were forthwith placed at the gates and all the avenues of the city, at the seaports, and in the marshes, and in all places where there was any likelihood an unhappy man might shelter himself; besides, centurions were commanded abroad, to make search in the country, which was done all at an instant; so that both within and without the city many persons died suddenly several kinds of deaths. The streets were filled with the sad spectacle of heads carrying to the triumvirs, to receive the reward; and every step some person of quality endeavouring to save himself, was met shamefully disguised; some running down into wells, and others into privies; some hiding themselves in the tops of the chimneys, or under the tiles, where they durst not utter a sigh or a groan; for they stood in more fear of their wives, or children, or freedmen, or slaves, or debtors, or neighbours that coveted some of their goods, than of the murderers themselves.

“All private grudges were now discovered; and it was a strange change to see the prime men of the senate, consulars, prætors, tribunes, or pretenders to these dignities cast themselves at the feet of their slaves with tears in their eyes, begging and caressing them, calling them their saviours and patrons; and, which is most deplorable, not to be able with all these submissions to obtain the least favour. The most pernicious seditions and cruellest of wars never had anything in them so terrible as the calamities wherewith the city was now affrighted; for in war and tumult none but enemies were feared, and domestics were confided in; whereas now domestics were more dreadful than enemies, because having no cause to fear for themselves, as in war or tumult, from familiars they became of a

sudden persecutors; either out of a dissembled hate, or out of hope of recompense publicly proposed, or because of some silver or gold hid in the house; so that no person found himself secure in his house, servants being ordinarily more sensible of profit than of the affection they owe to their masters; and though some might be found faithful and kind, yet they durst not assist a proscrip, nor conceal him, nor so much as stay with him, for fear of falling into the same misfortune.

“There was now much more danger than when the seventeen first proscribed were fallen upon; for then no person being publicly proscribed, when on a sudden they saw some killed, one man defended another, for fear lest the same should happen to him. But after the proscription was published, those comprised in it were presently forsaken by all the world; some that thought themselves secure, having their minds bent on profit, sought them to deliver them to the murderers, that they might have the reward; others pillaged the houses of those that had been killed, and with the present gain comforted themselves against the public misery.

“The most prudent and moderate surprised at a thing so extraordinary, stood like men astonished, considering that other cities turmoiled with divisions were re-established by the concord of their citizens; whereas the Romans, already afflicted with civil dissensions, completed their ruin by this reconciliation. Some were killed defending themselves; others, who thought themselves not condemned, without any defence; some let themselves die with hunger, or hanged, or drowned themselves, or threw themselves headlong from the tops of houses, or cast themselves into the fire, or ran to meet their murderers; others again sought to protract the time; and either hid themselves, or begged shamefully, or fled, or offered money to save their lives. Many likewise were slain contrary to the intention of the triumvirs, either by mistake, or out of some particular grudge; but the bodies of the proscrip,ts might be known from the others, because they wanted the head, which was cut off, and carried before the tribunal for orations, where they paid the reward. On the other side, wonderful examples were to be seen of the affection of wives, children, brethren and slaves; who found out a thousand inventions to save their husbands, fathers, brethren, or masters; died with them when they were discovered, or killed themselves upon those bodies they were not able to defend.

“Of those that escaped the proscription, some pursued by their ill fortune, perished by shipwreck; others saved beyond all probability, came afterwards to exercise dignities in the city, to have command of armies, and arrive at the honour of triumph. Such wonderful things were to be seen in those days which do not happen in an ordinary city, or in a small kingdom; but in the mistress of the world, as well by sea as land; Providence disposing it so to reduce things to that excellent order wherein you now see them. Not but that Rome felt the same miseries under Sulla, and before him under Marius; and we have in writing of them reported many actions of cruelty, even to the depriving their enemies of burial; but what passed under the triumvirs made much more noise, because of the height of their reputation; and particularly the valour and good fortune of him, who having fixed the foundations of this empire, has left it to those of his race and name, even to this present.”^c

DEATH OF CICERO

Among the victims far the most conspicuous was Cicero. With his brother Quintus the old orator had retired to his Tusculan villa after the battle of Mutina; and now they endeavoured to escape in the hope of joining Brutus in Macedonia: for the orator's only son was serving as a tribune in the liberator's army. After many changes of domicile, they reached Astura, a little island near Antium, where they found themselves short of money, and Quintus ventured to Rome to procure the necessary supply. Here he was recognised and seized, together with his son. Each desired to die first, and the mournful claim to precedence was settled by the soldiers killing both at the same moment.

Meantime Cicero had put to sea. But even in this extremity he could not make up his mind to leave Italy, and put to land at Circeii. After further hesitation, he again embarked, and again sought the Italian shore near Formiæ (Mola di Gaëta). For the night he stayed at his villa near that place; and next morning would not move, exclaiming, “Let me die in my own country,—that country which I have so often saved.” But his faithful slaves forced him into a litter, and carried him again towards the coast. Scarcely were they gone when a band of Antony's bloodhounds reached his villa, and were put upon the track of their victim by a young man who owed

everything to the Cicerones. The old orator from his litter saw the pursuers coming up. His own followers were strong enough to have made resistance; but he desired them to set the litter down. Then, raising himself on his elbow, he calmly waited for the ruffians, and offered his neck to the sword. He was soon despatched.

The chief of the band, by Antony's express orders, hewed off the head and hands and carried them to Rome. Fulvia, the widow of Clodius and now the wife of Antony, drove her hair pin through the tongue which had denounced the iniquities of both her husbands. The head which had given birth to the *Second Philippic*, and the hands which had written it, were nailed to the rostra, the home of their eloquence. The sight and the associations raised feelings of horror and pity in every heart.

Cicero died in his sixty-fourth year. He had fallen on evil times; and being eminently a man of peace was constantly called upon to mingle in counsels of civil war. From his first appearance in public during the dictatorship of Sulla to the great triumph of his consulship, he rose with a vigorous and unflagging energy, which gave promise of a man fit to cope with the dangers that were then closing round the constitution. But the performance was not equal to the promise. When once Cicero had joined the ranks of the senatorial nobility, his political conduct is marked by an almost peevish vacillation. His advances were coldly rejected by Pompey. He could not make up his mind to break entirely with Cæsar. His new senatorial associates never heartily welcomed the new man, whose laborious habits contrasted disadvantageously with their own. As the first orator of the day, he thought he had a claim to be considered as equal to the first statesman; and the rejection of this claim even by his own party threw him still more out of harmony with that party.

If we turn from his public to his private character, our commendations need less reserve. None but must admire the vigorous industry with which from early youth he prepared for his chosen profession of advocate, full of the generous belief that every branch of liberal studies must be serviceable to one who is expected to bring out of his treasure things new and old. To mould his multifarious knowledge he possessed a readiness of speech which sometimes betrayed him into verbosity. The advocate with an eye only to his verdict is sometimes forgotten in the orator who desires to display his own powers. When the Forum and the senate house were closed

to him, he poured the overflowing abundance of his acquirements into those dialogues and treatises which we still read with delight. He wrote rapidly and fluently as he spoke, rather to amuse and employ his mind in times of enforced idleness than as one who feels a call to instruct or benefit mankind.

His disposition was extremely amiable. He felt no jealousy for rivals; Hortensius was among his intimate friends, and is chiefly known to us by Cicero's generous praise. No man had more friends. In his family relations he shines brightly amid the darkness of that age. His wife Terentia was one with whom he had little sympathy; her masculine energy was oppressive to his less resolute character. It was a relief, doubtless, to find an excuse for divorcing her in the troubles of the Civil War. But divorces were matters of course in these times. Nor did public opinion condemn him when to mend his broken fortunes he married Publilia, a girl of large property, who was his ward. To his affection for his brother Quintus and for his children there is no drawback. On the whole his character displays much weakness, but very little evil; while the perfect integrity and justice of his life, in an age when such qualities were rare, if they do not compensate for his defects in a political point of view, yet entitle him to the regard and admiration of all good men.

Many of the proscribed escaped their fate, and found refuge, some with Brutus in the East, some in Africa, more still with Sext. Pompeius. This adventurer took advantage of the troubles in Italy to extend his power. He occupied Sicily, and his fleets swept the coasts of Italy to afford assistance to the proscribed. Next year, while Antony was intrusted with the task of levying troops against Brutus and Cassius, Octavian undertook to wrest Sicily from the hands of Sextus. But his fleet was encountered and beaten off by the skilful captains of the enemy; and Octavian was compelled to depart for the East without accomplishing his purpose.

BRUTUS AND CASSIUS

[44-42 B.C.]

Brutus and Cassius, when they left Italy in the autumn of 44 B.C., at once repaired to the provinces allotted to them, though by Antony's influence the senate had transferred Macedonia from Brutus to his own brother Caius,

and Syria from Cassius to Dolabella. C. Antonius was already in possession of parts of Macedonia; but Brutus succeeded in dislodging him. Meanwhile Cassius, already well known in Syria for his successful conduct of the Parthian War, had established himself in that province, before he heard of the approach of Dolabella. This worthless man left Italy about the same time as Brutus and Cassius, and at the head of several legions marched without opposition through Macedonia into Asia Minor. Here C. Trebonius had already arrived. But he was unable to cope with Dolabella; and the latter surprised him and took him prisoner at Smyrna. He was put to death with unseemly contumely in Dolabella's presence. This was in February 43 B.C.; and thus two of Cæsar's murderers, in less than a year's time, felt the blow of retributive justice.

When the news of this piece of butchery reached Rome, Cicero, believing that Octavian was a puppet in his hands, was ruling Rome by the eloquence of his *Philippics*. On his motion, Dolabella was declared a public enemy. [\[133\]](#) Cassius lost no time in marching his legions into Asia, to execute the behest of the senate, though he had been dispossessed of his province by the senate itself. Dolabella threw himself into Laodicea, where he sought a voluntary death.

By the end of 43 B.C., therefore, the whole of the East was in the hands of Brutus and Cassius. But instead of making preparations for war with Antony, the two commanders spent the early part of the year 42 B.C. in plundering the miserable cities of Asia Minor. Brutus demanded men and money of the Lycians; and, when they refused, he laid siege to Xanthus, their principal city. The Xanthians made the same brave resistance which they had offered five hundred years before to the Persian invaders. They burned their city, and put themselves to death rather than submit. Brutus wept over their fate, and abstained from further exactions. But Cassius showed less moderation; from the Rhodians alone, though they were allies of Rome, he demanded all their precious metals. After this campaign of plunder, the two chiefs met at Sardis and renewed the altercations which Cicero had deplored in Italy. It is probable that war might have broken out between them, had not the preparations of the triumvirs waked them from their dream of security. It was as he was passing over into Europe that Brutus, who continued his studious habits amid all disquietudes, and limited his time of sleep to a period too small for the requirements of health, was

dispirited by the vision which Shakespeare, after Plutarch, has made famous. It was no doubt the result of a diseased frame, though it was universally held to be a divine visitation. As he sat in his tent in the dead of the night, he thought a huge and shadowy form stood by him; and when he calmly asked, "What and whence art thou?" it answered, or seemed to answer, "I am thine evil genius, Brutus; we shall meet again at Philippi."

PHILIPPI

[42 B.C.]

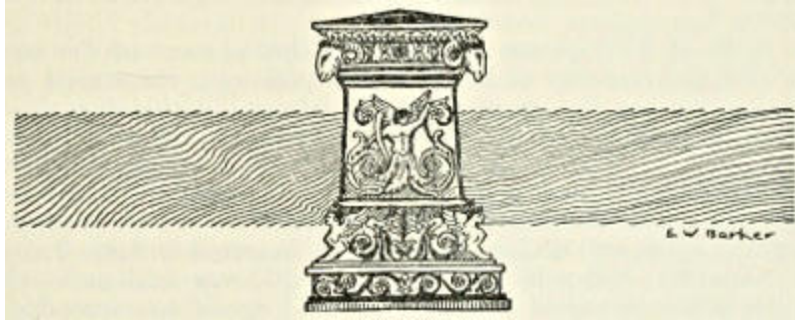
Meantime Antony's lieutenants had crossed the Ionian Sea, and penetrated without opposition into Thrace. The republican leaders found them at Philippi. The army of Brutus and Cassius amounted to at least eighty thousand infantry, supported by twenty thousand horse; but they were ill supplied with experienced officers. For M. Valerius Messalla, a young man of twenty-eight, held the chief command after Brutus and Cassius; and Horace, who was but three-and-twenty, the son of a freedman, and a youth of feeble constitution, was appointed a legionary tribune. The forces opposed to them would have been at once overpowered, had not Antony himself opportunely arrived with the second corps of the triumviral army. Octavian was detained by illness at Dyrrhachium, but he ordered himself to be carried on a litter to join his legions. The army of the triumvirs was now superior to the enemy; but their cavalry, counting only thirteen thousand, was considerably weaker than the force opposed to it. The republicans were strongly posted upon two hills, with entrenchments between; the camp of Cassius upon the left next the sea, that of Brutus inland on the right. The triumviral army lay upon the open plain before them in a position rendered unhealthy by marshes; Antony, on the right, was opposed to Cassius; Octavian, on the left, fronted Brutus. But they were ill supplied with provisions, and anxious for a decisive battle. The republicans, however, kept to their entrenchments, and the other party began to suffer severely from famine.

Determined to bring on an action, Antony began works for the purpose of cutting off Cassius from the sea. Cassius had always opposed a general action, but Brutus insisted on putting an end to the suspense, and his colleague yielded. The day of the attack was probably in October. Brutus

attacked Octavian's army, while Cassius assaulted the working parties of Antony. Cassius' assault was beaten back with loss, but he succeeded in regaining his camp in safety. Meanwhile, Messalla, who commanded the right wing of Brutus' army, had defeated the host of Octavian, who was still too ill to appear on the field, and the republican soldiers penetrated into the triumvir's camp. Presently, his litter was brought in stained with blood, and the corpse of a young man found near it was supposed to be Octavian. But Brutus, not receiving any tidings of the movements of Cassius, became so anxious for his fate that he sent off a party of horse to make inquiries, and neglected to support the successful assault of Messalla.

Cassius, on his part, discouraged at his ill success, was unable to ascertain the progress of Brutus. When he saw the party of horse, he hastily concluded that they belonged to the enemy, and retired into his tent with his freedman, Pindarus. What passed there we know not for certain. Cassius was found dead, with the head severed from the body. Pindarus was never seen again. It was generally believed that Pindarus slew his master in obedience to orders; but many thought that he had dealt a felon blow. The intelligence of Cassius' death was a heavy blow to Brutus. He forgot his own success, and pronounced the eulogy of Cassius in the well-known words, "There lies the last of the Romans." The praise was ill-deserved. Except in his conduct of war against the Parthians, Cassius had never played a worthy part.

After the first battle of Philippi, it would still have been politic in Brutus to abstain from battle. The triumviral armies were in great distress, and every day increased their losses. Reinforcements coming to their aid by sea were intercepted—a proof of the neglect of the republican leaders in not sooner bringing their fleet into action. Nor did Brutus ever hear of this success. He was ill fitted for the life of the camp, and after the death of Cassius he only kept his men together by largesses and promises of plunder. Twenty days after the first battle he led them out again. Both armies faced each other. There was little manœuvring. The second battle was decided by numbers and force, not by skill; and it was decided in favour of the triumvirs.



ROMAN SARCOPHAGUS

Brutus retired with four legions to a strong position in the rear, while the rest of his broken army sought refuge in the camp. Octavian remained to watch them, while Antony pursued the republican chief. Next day Brutus endeavoured to rouse his men to another effort, but they sullenly refused to fight, and Brutus withdrew with a few friends into a neighbouring wood. Here he took them aside one by one, and prayed each to do him the last service that a Roman could render to his friend. All refused with horror; till at nightfall a trusty Greek freedman, named Strato, held the sword, and his master threw himself upon it. ^[134] Most of his friends followed the sad example. The body of Brutus was sent by Antony to his mother. His wife Porcia, the daughter of Cato, refused all comfort; and being too closely watched to be able to slay herself by ordinary means, she suffocated herself by thrusting burning charcoal into her mouth. Messalla, with a number of other fugitives, sought safety in the island of Thasos, and soon after made submission to Antony.

[42-41 B.C.]

The name of Brutus has, by Plutarch's beautiful narrative, sublimed by Shakespeare, become a by-word for self-devoted patriotism. This exalted opinion is now generally confessed to be unjust. Brutus was not a patriot, unless devotion to the party of the senate be patriotism. Towards the provincials he was a true Roman, harsh and oppressive. He was free from the sensuality and profligacy of his age, but for public life he was unfit. His habits were those of a student. His application was great, his memory remarkable. But he possessed little power of turning his acquirements to account; and to the last he was rather a learned man than a man improved by learning. In comparison with Cassius, he was humane and generous; but

in all respects his character is contrasted for the worse with that of the great man, from whom he accepted favours, and whose murderer he then became.

The battle of Philippi was in reality the closing scene of the republican drama. But the rivalry of the triumvirs prolonged for several years the divided state of the Roman world; and it was not till after the crowning victory of Actium that the imperial government was established in its unity.

The hopeless state of the republican, or rather the senatorial party was such that almost all hastened to make submission to the conquerors; those whose sturdy spirit still disdained submission resorted to Sext. Pompeius in Sicily. Octavian, still suffering from ill health, was anxious to return to Italy; but before he parted from Antony, they agreed to a second distribution of the provinces of the empire. Antony was to have the eastern world; Octavian the western provinces. To Lepidus, who was not consulted in this second division, Africa alone was left. Sext. Pompeius remained in possession of Sicily.

Antony at once proceeded to make a tour through western Asia, in order to exact money from its unfortunate people. About midsummer (41 B.C.) he arrived at Tarsus, and here he received a visit which determined the future course of his life and influenced Roman history for the next ten years.

ANTONY AND CLEOPATRA

[41 B.C.]

Antony had visited Alexandria fourteen years before, and had been smitten by the charms of Cleopatra, then a girl of fifteen. She became Cæsar's paramour, and from the time of the dictator's death Antony had never seen her. She now came to meet him in Cilicia. The galley which carried her up the Cydnus was of more than oriental gorgeousness; the sails of purple; oars of silver, moving to the sound of music; the raised poop burnished with gold. There she lay upon a splendid couch, shaded by a spangled canopy; her attire was that of Venus, around her flitted attendant Cupids and Graces. At the news of her approach to Tarsus, the triumvir found his tribunal deserted by the people. She invited him to her ship, and he complied. From that moment he was her slave. He accompanied her to Alexandria,

exchanged the Roman garb for the Græco-Egyptian costume of the court, and lent his power to the queen to execute all her caprices.

Meanwhile, Octavian was not without his difficulties. He was so ill at Brundisium that his death was reported at Rome. The veterans, eager for their promised rewards, were on the eve of mutiny. In a short time Octavian was sufficiently recovered to show himself. But he could find no other means of satisfying the greedy soldiery than by a confiscation of lands more sweeping than that which followed the proscription of Sulla. The towns of Cisalpine Gaul were accused of favouring Dec. Brutus, and saw nearly all their lands handed over to new possessors. The young poet Virgil lost his little patrimony, but was reinstated at the instance of Pollio and Mæcenas, and showed his gratitude in his first *Eclogue*. Other parts of Italy also suffered—Apulia, for example, as we learn from Horace's friend Ofella, who became the tenant of the estate which had formerly been his own.

But these violent measures deferred rather than obviated the difficulty. The expulsion of so many persons threw thousands loose upon society, ripe for any crime. Many of the veterans were ready to join any new leader who promised them booty. Such a leader was at hand.

Fulvia, wife of Antony, was a woman of fierce passions and ambitious spirit. She had not been invited to follow her husband to the East. She saw that in his absence imperial power would fall into the hands of Octavian. Lucius, brother of Mark Antony, was consul for the year, and at her instigation he raised his standard at Præneste. But L. Antonius knew not how to use his strength; and young Agrippa, to whom Octavian intrusted the command, obliged Antonius and Fulvia to retire northwards and shut themselves up in Perusia. Their store of provisions was so small that it sufficed only for the soldiery. Early in the next year Perusia surrendered, on condition that the lives of the leaders should be spared. The town was sacked; the conduct of L. Antonius alienated all Italy from his brother.

ANTONY MEETS WITH REVERSES

While his wife, his brother, and his friends were quitting Italy in confusion, the arms of Antony suffered a still heavier blow in the eastern provinces which were under his special government. After the battle of

Philippi, Q. Labienus, son of Cæsar's old lieutenant Titus, sought refuge at the court of Orodes, king of Parthia. Encouraged by the proffered aid of a Roman officer, Pacorus the king's son led a formidable army into Syria. Antony's lieutenant was entirely routed; and while Pacorus with one army poured into Palestine and Phœnicia, Q. Labienus with another broke into Cilicia. Here he found no opposition; and, overrunning all Asia Minor even to the Ionian Sea, he assumed the name of Parthicus, as if he had been a Roman conqueror of the people whom he served.

These complicated disasters roused Antony from his lethargy. He sailed to Tyre, intending to take the field against the Parthians; but the season was too far advanced, and he therefore crossed the Ægean to Athens, where he found Fulvia and his brother, accompanied by Pollio, Plancus, and others, all discontented with Octavian's government. Octavian was absent in Gaul, and their representation of the state of Italy encouraged him to make another attempt. Late in the year (41 B.C.) Antony formed a league with Sext. Pompeius; and while that chief blockaded Thurii and Consentia, Antony assailed Brundisium. Agrippa was preparing to meet this new combination; and a fresh civil war was imminent. But the soldiery was weary of war; both armies compelled their leaders to make pacific overtures, and the new year was ushered in by a general peace, which was rendered easier by the death of Fulvia. Antony and Octavian renewed their professions of amity, and entered Rome together in joint ovation to celebrate the restoration of peace. They now made a third division of the provinces, by which Scodra (Scutari) in Illyricum was fixed as the boundary of the west and east. Lepidus was still left in possession of Africa. It was further agreed that Octavian was to drive Sext. Pompeius, lately the ally of Antony, out of Sicily; while Antony renewed his pledges to recover the standards of Crassus from the Parthians. The new compact was sealed by the marriage of Antony with Octavia, his colleague's sister, a virtuous and beautiful lady, worthy of a better consort. These auspicious events were celebrated by the lofty verse of Virgil's *Fourth Eclogue*, styled *The Pollio*.

[41-39 B.C.]

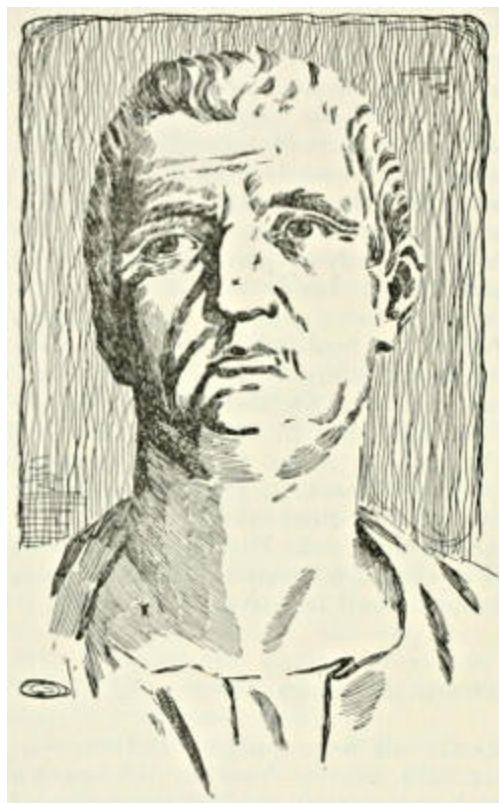
Sext. Pompeius had reason to complain. By the Peace of Brundisium he was abandoned by his late friend to Octavian. He was not a man to brook ungenerous treatment. Of late years his possession of Sicily had given him command of the Roman corn market. During the winter which followed the

Peace of Brundisium (40-39 B.C.), Sextus blockaded Italy so closely that Rome was threatened with a positive dearth. Riots arose; the triumvirs were pelted with stones in the Forum; and they deemed it prudent to temporise by inviting Pompeius to enter their league. He met them at Misenum, and the two chiefs went on board his ship to settle the terms of alliance. It is said that one of his chief officers, a Greek named Menas or Menodorus, suggested to him the expediency of putting to sea with the great prize, and then making his own terms. Sextus rejected the advice with the characteristic words: "You should have done it without asking me." It was agreed that Sicily, Sardinia, and Corsica should be given up to his absolute rule, and that Achaia should be added to his portion; so that the Roman world was now partitioned amongst four—Octavian, Antony, Lepidus, and Sext. Pompeius. On their return the triumvirs were received with vociferous applause.

Before winter, Antony sailed for Athens in company with Octavia, and for the time seems to have banished Cleopatra from his thoughts. But he disgusted all true Romans by assuming the attributes of Grecian gods, and indulging in Grecian orgies.

[39-36 B.C.]

He found the state of things in the East greatly changed since his departure. He had commissioned P. Ventidius Bassus, an officer who had followed Fulvia from Italy, to hold the Parthians in check till his return. Ventidius was son of a Picenian nobleman of Asculum, who had been brought to Rome as a captive in the Social War. In his youth he had been a contractor to supply mules for the use of the Roman commissariat. But in the civil wars which followed, men of military talent easily rose to command; and such was the lot of



AGRIPPA

(From a bust in the Capitol)

Ventidius. While Antony was absent in Italy, he drove Q. Labienus into the defiles of Taurus, and here that adventurer was defeated and slain. The conqueror then marched rapidly into Syria, and forced Pacorus also to withdraw to the eastern bank of the Euphrates.

In the following year (38 B.C.) he repelled a fresh invasion of the Parthians, and defeated them in three battles. In the last of these engagements Pacorus himself was slain on the fifteenth anniversary of the death of Crassus. Antony found Ventidius laying siege to Samosata, and displaced him, only to abandon the siege and return to Athens. Ventidius repaired to Rome, where he was honoured with a well-deserved triumph. He had left it as a mule jobber; he returned with the laurel round his brows. He was the first, and almost the last, Roman general who could claim such a distinction for victory over the Parthians.

The alliance with Sext. Pompeius was not intended to last, and it did not last. Antony refused to put him in possession of Achaia; and to avenge himself for this breach of faith Pompeius again began to intercept the Italian corn fleets. Fresh discontent appeared at Rome; and Octavian equipped a second fleet to sail against the naval chief; but after two battles of doubtful result the fleet was destroyed by a storm, and Sextus was again left in undisputed mastery of the sea. Octavian, however, was never daunted by reverses, and he gave his favourite Agrippa full powers to conduct the war against Pompeius. This able commander set about his work with that resolution that marked a man determined not to fail. As a harbour for his fleet he executed a plan of the great Cæsar—namely, to make a good and secure harbour on the coast of Latium, which then, as now, offered no shelter to ships. For this purpose he cut a passage through the narrow necks of land which separated Lake Lucrinus from the sea and Lake Avernus from Lake Lucrinus, and faced the outer barrier with stone. This was the famous Julian Port. In the whole of the two years 38 and 37 B.C., Agrippa was occupied in this work and in preparing a sufficient force of ships. Every dockyard in Italy was called into requisition. A large body of slaves were set free that they might be trained to serve as rowers.

On the 1st of July, 36 B.C., the fleet put to sea. Octavian himself, with one division, purposed to attack the northern coast of Sicily, while a second squadron was assembled at Tarentum for the purpose of assailing the eastern side. Lepidus, with a third fleet from Africa, was to assault

Lilybæum. But the winds were again adverse; and, though Lepidus effected a landing on the southern coast, Octavian's two fleets were driven back to Italy with great damage. But the injured ships were refitted, and Agrippa was sent westward towards Panormus, while Octavian himself kept guard near Messina. Off Mylæ, a place famous for having witnessed the first naval victory of the Romans, Agrippa encountered the fleet of Sext. Pompeius; but Sextus, with the larger portion of his ships, gave Agrippa the slip, and sailing eastward fell suddenly upon Octavian's squadron off Tauromenium. A desperate conflict followed, which ended in the complete triumph of Sextus, and Octavian escaped to Italy with a few ships only. But Agrippa was soon upon the traces of the enemy. On the 3d of September, Sextus was obliged once more to accept battle near the Straits of Messina, and suffered an irretrievable defeat. His troops on land were attacked and dispersed by an army which had been landed on the eastern coast by the indefatigable Octavian; and Sextus sailed off to Lesbos, where he had found refuge as a boy during the campaign of Pharsalia, to seek protection from the jealousy of Antony.

Lepidus had assisted in the campaign; but after the departure of Sextus he openly declared himself independent of his brother triumvirs. Octavian, with prompt and prudent boldness, entered the camp of Lepidus in person with a few attendants. The soldiers deserted in crowds, and in a few hours Lepidus was fain to sue for pardon, where he had hoped to rule. He was treated with contemptuous indifference. Africa was taken from him; but he was allowed to live and die at Rome in quiet enjoyment of the chief pontificate.

It was fortunate for Octavian that during this campaign Antony was on friendly terms with him. In 37 B.C. the ruler of the East again visited Italy, and a meeting between the two chiefs was arranged at Tarentum. The five years for which the triumvirs were originally appointed were now fast expiring; and it was settled that their authority should be renewed by the subservient senate and people for a second period of the same duration. They parted good friends; and Octavian undertook his campaign against Sext. Pompeius without fear from Antony. This was proved by the fate of the fugitive. From Lesbos Sextus passed over to Asia, where he was taken prisoner by Antony's lieutenants, and put to death.

Hitherto Octavia had retained her influence over Antony. But presently, after his last interview with her brother, the fickle triumvir abruptly quitted a wife who was too good for him, and returned to the fascinating presence of the Egyptian queen, whom he had not seen for three years. From this time forth he made no attempt to break the silken chain of her enchantments. During the next summer, indeed, he attempted a new Parthian campaign.^b It has been described by Florus as follows:

“Such was the excessive vanity of the man, that being desirous from a love of distinction, to have Araxes and Euphrates read under his statues, he suddenly quitted Syria and made an inroad on the Parthians, and that without any cause or reason, or even pretended proclamation of war, as if it were among a general’s accomplishments to surprise people by stealth. The Parthians, who, besides having confidence in their arms, are crafty and subtle, pretended to be alarmed, and to retreat across the plains. Antony, as if already victorious, instantly pursued, when a body of the enemy, not very numerous, rushed suddenly forth like a storm of rain upon the Romans, who, as it was evening, were tired with the day’s march. Discharging their arrows from all sides, they overwhelmed two legions.

“But this was nothing in comparison with the destruction that would have met them on the following day, had not the mercy of the gods interposed. One of the Romans who had survived the overthrow of Crassus, rode up to the camp in a Parthian dress, and having saluted the soldiers in Latin, and thus gained credit with them, told them of the danger which threatened them; saying that the king would soon come up with all his forces; that they ought therefore to retreat and take shelter in the mountains; and that possibly, even if they did so, enemies would not be wanting. In consequence, a smaller number of enemies overtook them than had been intended. Overtake them, however, they did; and the rest of the army would have been destroyed, had not the soldiers, while the arrows were falling on them like hail, fortunately sunk down, as if they had been taught, upon their knees, holding up their shields above their heads, and making it appear as if they were killed. The Parthians then refrained from shooting.

“When the Romans afterwards rose up, the proceeding appeared so like a miracle, that one of the barbarians exclaimed: ‘Go! and fare ye well, Romans; fame deservedly speaks of you as the conquerors of nations, since you have escaped death from the arrows of the Parthians.’ After this, there

was no less endured from want of water, than at the hands of the enemy. The country, in the first place, was deadly from its drought; the river, too, with its brackish and bitter water, was more deadly to some; and besides, even good water was pernicious to many, being drunk greedily when they were in a weak condition. Subsequently the heat of Armenia, the snows of Cappadocia, and the sudden change in climate from one to the other, was as destructive as a pestilence. Scarce the third part, therefore, of sixteen legions being left, the excellent general, begging death from time to time, at the hands of a gladiator of his, escaped at last into Syria, where, by some unaccountable perversion of mind, he grew considerably more presuming than before, as if he had conquered because he had escaped.”^e

[36-35 B.C.]

In the next year he contented himself with a campaign in Armenia, to punish the king of that country for alleged treachery in the last campaign. The king fell into his hands; and with this trophy Antony returned to Alexandria, where the Romans were disgusted to see the streets of a Græco-Egyptian town honoured by a mimicry of a Roman triumph. For the next three years he surrendered himself absolutely to the will of the enchantress. [\[135\]](#)

To this period belong those tales of luxurious indulgence which are known to every reader. The brave soldier who in the perils of war could shake off all luxurious habits, and could rival the commonest man in the cheerfulness with which he underwent every hardship, was seen no more. He sank into an indolent voluptuary, pleased by childish amusements. At one time he would lounge in a boat at a fishing party, and laugh when he drew up pieces of salt fish, which by the queen’s order had been attached to his hook by divers. At another time she wagered that she would consume ten million sesterces at one meal, and won her wager by dissolving in vinegar a pearl of unknown value. While Cleopatra bore the character of the goddess Isis, her lover appeared as Osiris. Her head was placed conjointly with his own on the coins which he issued as a Roman magistrate. He disposed of the kingdoms and principalities of the East by his sole word. By his influence Herod, son of Antipater, the Idumæan minister of Hyrcanus, the late sovereign of Judea, was made king to the exclusion of the rightful heir. Polemon, his own son by Cleopatra, was invested with the sceptre of Armenia. Encouraged by the absolute submission of her lover, Cleopatra

fixed her eye upon the Capitol, and dreamed of winning by means of Antony that imperial crown which she had vainly sought from Cæsar.

[35-32 B.C.]

While Antony was engaged in voluptuous dalliance, Octavian was resolutely pursuing the work of consolidating his power in the west. His patience, his industry, his attention to business, his affability, were winning golden opinions and rapidly obliterating all memory of the bloody work by which he had risen to power. He had won little glory in war; but so long as the corn fleets arrived duly from Sicily and Africa, the populace cared little whether the victory had been won by Octavian or by his generals. In Agrippa he possessed a consummate captain, in Mæcenās a wise and temperate minister. It is much to his credit that he never showed any jealousy of the men to whom he owed so much. He flattered the people with the hope that he would, when Antony had fulfilled his mission of recovering the standards of Crassus, engage him to join in putting an end to their sovereign power and restoring constitutional liberty. In point of fidelity to his marriage vows Octavian was little better than Antony. He renounced his marriage with Clodia, the daughter of Fulvia, when her mother attempted to raise Italy against him. He divorced Scribonia, when it no longer suited him to court the favour of her kinsman. To replace this second wife, he forcibly took away Livia from her husband, Ti. Claudius Nero, though she was at that time pregnant of her second son. But in this and other less pardonable immoralities there was nothing to shock the feelings of Romans.

OCTAVIAN AGAINST ANTONY; THE BATTLE OF ACTIUM

But Octavian never suffered pleasure to divert him from business. If he could not be a successful general, he resolved at least to show that he could be a hardy soldier. While Antony in his Egyptian palace was neglecting the Parthian War, his rival led his legions in more than one dangerous campaign against the barbarous Dalmatians and Pannonians, who had been for some time infesting the province of Illyricum. In the year 33 B.C. he announced that the limits of the empire had been extended northward to the banks of the Savus.

Octavian now began to feel that any appearance of friendship with Antony was a source of weakness rather than of strength at Rome.

Misunderstandings had already broken out. Antony complained that Octavian had given him no share in the provinces wrested from Sext. Pompeius and Lepidus. Octavian retorted by accusing his colleague of appropriating Egypt and Armenia, and of increasing Cleopatra's power at the expense of the Roman Empire. Popular indignation rose to its height when Plancus and Titius, who had been admitted to Antony's confidence, passed over to Octavian, and disclosed the contents of their master's will. In that document Antony ordered that his body should be buried at Alexandria, in the mausoleum of Cleopatra. Men began to fancy that Cleopatra had already planted her throne upon the Capitol. These suspicions were sedulously encouraged by Octavian.

Before the close of 32 B.C., Octavian, by the authority of the senate, declared war nominally against Cleopatra. Antony, roused from his sleep by reports from Rome, passed over to Athens, issuing orders everywhere to levy men and collect ships for the impending struggle. At Athens he received news of the declaration of war, and replied by divorcing Octavia. His fleet was ordered to assemble at Corcyra; and his legions in the early spring prepared to pour into Epirus. He established his headquarters at Patræ on the Corinthian Gulf.

But Antony, though his fleet was superior to that of Octavian, allowed Agrippa to sweep the Ionian Sea, and to take possession of Methone, in Messenia, as a station for a flying squadron to intercept Antony's communications with the East, nay even to occupy Corcyra, which had been destined for his own place of rendezvous. Antony's fleet now anchored in the waters of the Ambracian Gulf, while his legions encamped on a spot of land which forms the northern horn of that spacious inlet. But the place chosen for the camp was unhealthful; and in the heats of early summer his army suffered greatly from disease. Agrippa lay close at hand watching his opportunity. In the course of the spring Octavian joined him in person.

[31-30 B.C.]

Early in the season Antony had repaired from Patræ to his army, so as to be ready either to cross over into Italy or to meet the enemy if they attempted to land in Epirus. At first he showed something of his old military spirit, and the soldiers, who always loved his military frankness, warmed into enthusiasm; but his chief officers, won by Octavian or disgusted by the

influence of Cleopatra, deserted him in such numbers that he knew not whom to trust, and gave up all thoughts of maintaining the contest with energy. Urged by Cleopatra, he resolved to carry off his fleet and abandon the army. All preparations were made in secret, and the great fleet put to sea on the 28th of August. For the four following days there was a strong gale from the south. Neither could Antony escape, nor could Octavian put to sea against him from Corcyra. On the 2nd of September, however, the wind fell, and Octavian's light vessels, by using their oars, easily came up with the unwieldy galleys of the eastern fleet. A battle was now seen to be inevitable.

Antony's ships were like impregnable fortresses to the assault of the slight vessels of Octavian; and, though they lay nearly motionless in the calm sea, little impression was made upon them. But about noon a breeze sprang up from the west; and Cleopatra, followed by sixty Egyptian ships, made sail in a southerly direction. Antony immediately sprang from his ship of war into a light galley and followed. Deserted by their commander, the captains of Antony's ships continued to resist desperately; nor was it till the greater part of them were set on fire that the contest was decided. Before evening closed the whole fleet was destroyed; most of the men and all the treasure on board perished. A few days after, when the shameful flight of Antony was made known to his army, all his legions went over to the conqueror.

DEATH OF ANTONY AND CLEOPATRA

[30-29 B.C.]

It was not for eleven months after the battle of Actium that Octavian entered the open gates of Alexandria. He had been employed in the interval in founding the city of Nicopolis to celebrate his victory on the northern horn of the Ambracian Gulf, in rewarding his soldiers, and settling the affairs of the provinces of the East. In the winter he returned to Italy, and it was midsummer, 30 B.C., before he arrived in Egypt.

When Antony and Cleopatra arrived off Alexandria they put a bold face upon the matter. Some time passed before the real state of the case was known; but it soon became plain that Egypt was at the mercy of the conqueror. The queen formed all kinds of wild designs. One was to transport the ships that she had saved across the Isthmus of Suez and seek

refuge in some distant land where the name of Rome was yet unknown. Some ships were actually drawn across, but they were destroyed by the Arabs, and the plan was abandoned. She now flattered herself that her powers of fascination, proved so potent over Cæsar and Antony, might subdue Octavian. Secret messages passed between the conqueror and the queen; nor were Octavian's answers such as to banish hope.

Antony, full of repentance and despair, shut himself up in Pharos, and there remained in gloomy isolation.

In July, 30 B.C., Octavian appeared before Pelusium. The place was surrendered without a blow. Yet, at the approach of the conqueror, Antony put himself at the head of a division of cavalry, and gained some advantage. But on his return to Alexandria he found that Cleopatra had given up all her ships; and no more opposition was offered. On the 1st of August (Sextilis as it was then called) Octavian entered the open gates of Alexandria. Both Antony and Cleopatra sought to win him. Antony's messengers the conqueror refused to see; but he still used fair words to Cleopatra. The queen had shut herself up in a sort of mausoleum built to receive her body after death, which was not approachable by any door; and it was given out that she was really dead. All the tenderness of old times revived in Antony's heart. He stabbed himself, and in a dying state ordered himself to be laid by the side of Cleopatra.

The queen touched by pity, ordered her expiring lover to be drawn up by cords into her retreat, and bathed his temples with her tears. After he had breathed his last, she consented to see Octavian. Her penetration soon told her that she had nothing to hope from him. She saw that his fair words were only intended to prevent her from desperate acts, and reserve her for the degradation of his triumph. This impression was confirmed when all instruments by which death could be inflicted were found to have been removed from her apartments. But she was not to be so baffled. She pretended all submission; but when the ministers of Octavian came to carry her away, they found her lying dead upon her couch, attended by her faithful waiting-women, Iras and Charmion. The manner of her death was never ascertained; popular belief ascribed it to the bite of an asp, which had been conveyed to her in a basket of fruit.

Cleopatra was an extraordinary person. At her death she was but thirty-eight years of age. Her power rested not so much on actual beauty as on her fascinating manners and her extreme readiness of wit. In her follies there was a certain magnificence, which excites even a dull imagination. We may estimate the real power of her mental qualities by observing the impression her character made upon the Roman poets of the time. No meditated praises could have borne such testimony to her greatness as the lofty strain in which Horace celebrates her fall, and congratulates the Roman world on its escape from the ruin which she was threatening to the Capitol.

Octavian dated the years of his imperial monarchy from the day of the battle of Actium. But it was not till two years after (the summer of 29 B.C.) that he established himself in Rome as ruler of the Roman world. Then he celebrated three magnificent triumphs, after the example of his uncle the great dictator, for his victories in Dalmatia, at Actium, and in Egypt. At the same time the temple of Janus was closed (notwithstanding that border wars still continued in Gaul and Spain) for the first time since the year 235 B.C. All men drew breath more freely, and all except the soldiery looked forward to a time of tranquillity. Liberty and independence were forgotten words. After the terrible disorders of the last century, the general cry was for quiet at any price. Octavian was a person admirably fitted to fulfil these aspirations. His uncle Julius was too fond of active exertion to play such a part well. Octavian never shone in war, while his vigilant and patient mind was well fitted for the discharge of business. He avoided shocking popular feeling by assuming any title savouring of royalty; but he enjoyed by universal consent an authority more than regal.^b

AN ESTIMATE OF THE PERSONALITY OF ANTONY

We cannot well take leave of the fallen Antony without a few words of characterisation: "He was," says Liddell, "by nature a genial, open-hearted Roman, a good soldier, quick, resolute, and vigorous, but reckless and self-indulgent, devoid alike of prudence and of principle. The corruptions of the age, the seductions of power, and the evil influence of Cleopatra, paralysed a nature capable of better things. We know him chiefly through the exaggerated assaults of Cicero in his *Philippics*, and the narratives of writers devoted to Octavian. But after all deductions for partial

representation, enough remains to show that Antony had all the faults of Cæsar, with little of his redeeming greatness.”^b This is scant praise. A more sympathetic estimate is that of Gardthausen who, eloquently summarising the heroic qualities of Antony’s character, sees in him a type of man rare in antiquity. Here is his characterisation:

Antony’s chivalrous bearing and the chivalrous bent of his mind contributed to his success in a manner highly impressive in a character of the antique ages. These can boast of few characters that may be called chivalrous, at the most an occasional Homeric hero, the princely leader of a national army, such as Alexander the Great, Pyrrhus, and Demetrius, the counterfeit presentment to Plutarch’s Antonius; possibly chivalrous standards of life may have been spread among the Greek mercenaries. The chivalrous warrior was a man who was ready at any moment to pledge his person and mindful of the ups and downs of battle to treat his opponent as he himself would be treated were their situations reversed. The small republics of antiquity were not fit soil to nourish such a character as this. The ancients were not soldiers before everything else, their ideals were sought in another region.

Chivalrous as he was, he was ready to credit others with a similar disposition; and his confidence was seldom misplaced. At the head of five ships he defied the warnings of those about him and sailed against the whole fleet of Domitius Ahenobarbus with chivalrous recklessness; he accepted an invitation from Sextus Pompeius the admiral to eat with him on board his vessel; a word would have sufficed to effect his imprisonment or his murder; but this word was never spoken, for his unquestioning reliance on the pledged honour of his foe had disarmed that foe. Where he was deceived, however, as for example later on by that same Domitius Ahenobarbus who went over to the enemy before the battle of Actium, Antony had enough generosity of mind to send over to him into the enemy’s camp his possessions and his slaves. To Sextus Pompeius later on he showed admirable forbearance in Asia Minor and shrank as long as it was possible from believing in the treachery of a man who had stood by his side first as ally and then as supplicant for protection. Even when fate was against him, he assumed the same chivalrous spirit in his foe that he himself would have manifested had the circumstances been reversed. So for instance after the battle of Actium he challenged Cæsar to personal combat

although the acceptance of the challenge by his opponent, who was everything rather than chivalrous, was on the face of it very improbable.

As the knight for his lady so Antony in an official despatch declared his constant readiness to die for Cleopatra, and on receiving news of her death he said again that now his last reason for living had fallen away. Even in death he was consoled with the thought that it was as a Roman of Romans that he had been subdued.

In conclusion “chivalrous” is the term that I would apply to that exaggerated sensibility of honour which could not reconcile itself to giving the command for an absolutely indispensable retreat after the Median campaign and so charged a field officer under him with the burden of issuing that command.

To talk of the personal bravery of Antony, which his foes too recognised, were superfluous; like his Herculean frame, it was part of his birthright, not a thing acquired with years through the steady energy of his will. He was equally at home with his men whether on the field of battle or in the young men’s wrestling ring. He was most in his element however at the head of his trusty horsemen, when after a mad ride he could flash unexpected upon the enemy like lightning, reduce them to nothing or take them captive. As an instance of this, take the brilliant cavalry engagement with Servilius in lower Italy and the last victory he won over Cæsar’s horsemen at the hippodrome before Alexandria. His pride was then at the height of its ascension when he could come before Cleopatra as the knight before his lady to demand as the reward of victory, a kiss for himself, for the bravest of his horsemen a golden suit of armour.

Perhaps the foreign trait of faithlessness in him was just a symptom of that sultanic nature which very quickly developed itself in Antony as in many other Romans who ruled the East. Bountiful he had always been even before he possessed anything to give away, but in the East this bounty soon acquired a far more splendid play. In public he felt himself king of kings, bestowing on Monæses the Parthian refugee as the king of the Persians once bestowed on Themistocles, three towns, constantly making a new map of the East and giving provinces to his Egyptian queen, granting Polemon little Armenia as the reward for an embassy, giving his actors the town of Priene, in return for a good luncheon, making his cook as rich as a wealthy

Magnesian. We can best see what sort of task he set his cook from a story that was whispered in Plutarch's circle. At every time in the day the cook had to be in a position to serve a complete luncheon immediately. Eight wild boars were turning on the spit at the same time, because at a given moment one had to be ready roasted to be set instantly upon the table, and in this way all the preparations necessary for a luncheon for not more than twelve persons were conducted. Plutarch's characteristic anecdote is a proof at once of the costliness of Antony's court and the irregularity of his mode of life. If the preparation of one daily meal involved such expenditure we hardly need to reckon the crazy wagers with Cleopatra to arrive at an explanation of the immense sums raised and squandered by Antony in the East. His example set the standard for his own people; his eldest son Antyllus was yet a boy when he gave a doctor such a sum for a paradox in medical language that the man did not believe his ears.

But this extravagant expenditure was not all; it belonged to some extent to the maintenance of a sultan, and impressed the eastern imagination. The effect of the East upon the character of Antony was damaging in that it robbed him of requisite elasticity. There are characters that only reach their full altitude under circumstances of prosperity, and in the absence of these wither and fall away as the flower that lacks sunlight; others again will nowhere prove so defective as when exposed to a succession of good fortune; their better self slides out of sight until it is again summoned into activity by dire need which alone can spur them to heroic endeavour. Antony's was of the latter kind; he required pressure from outside to recover his elasticity and bring out his resources to the full. In the noise and pother of battle, in the dire need of retreat after the defeat of Mutina and the Median campaign he did great deeds, but with the termination of the danger, the activity which it had called forth came also to an end; he sank into Eastern torpidity from which nothing could rouse him. Political questions ceased to exist for him, whole months passed in which not even the current business of administration was despatched.

Labienus might overwhelm Syria and Asia with Parthian horsemen and drive back the Romans upon the islands; at the same time one ugly despatch after another might come from Italy whither he was urged to go and lend succour by his wife, his brother, his legates who struggled vainly with Cæsar's power; but nothing availed to tear him away from his idle

indulgences at Alexandria. At the very crisis of the rupture when all the peoples of the ancient world were arming themselves either for or against him, he withdrew to Samos to live a life of pleasure undisturbed by the clash of arms.

Here are examples enough to prove how he regarded his high place in the world, to what use he in reality put it for the pursuit of his private love affairs, how he accepted the privileges without recognising the responsibilities of his position.

He entirely lacked a sense of responsibility as a prince—the reproach weighs only too heavily upon him—and in a similar way, so little patriotic spirit for Rome survived in him during his life in the East, that he did not want even to leave his ashes to his fatherland. We miss in his indolent nature all joy in business and in those creative strokes that he still made every few years; he followed the impulses of the moment without reflecting what would be their ultimate consequences; this habit grew so natural to him that he followed it at Actium and plunged himself and his followers in ruin.

Paradoxical as it may sound, Antony was no more a genuine commander than a genuine statesman. As a subordinate officer of the dictator he won well-earned encomium. Once in the position of dictator himself and the difference, the great difference, is evident.

Certainly the victory at Philippi was exclusively due to him, but Cæsar's party owed Philippi to the tactics, not to the strategy of Antony. He had to take battle upon ground chosen by the enemy, and had to thank his own bravery and his legions for victory. From this time forward, as the ancients have already contended, Antony only conquered through his subordinate officers, while, by himself, he was beaten. The honour of a triumph to which the subordinate officers could, strictly speaking, make no claims, was accorded to them, although with a less generous spirit than his colleague Cæsar showed; only in cases of immoderate success was his suspicion aroused and then he was led to thrust aside officers of too conspicuous good fortune like Ventidius. He alone must be made responsible for the disastrous issue of the Medo-Parthian campaign. The conception was wrong, the execution defective, in as much as the best time was over before he

commenced operations. Before the last crisis of the war he again let the auspicious moment slip past him.

Instead of making rapid use of the advantage assured to him by the well-filled condition of his military exchequer and the forward condition of his armaments, instead of hurling his force upon Italy which could well have been overpowered in view of the scarcity of money and the deep disaffection that prevailed, he again frittered away the best time with Cleopatra in Samos and at last was compelled to postpone the decisive action, much to his own disadvantage, until the next year, thus losing the advantage in readiness of equipment which he had had over his opponent. Finally one may ask, did ever a general, who deserved the name of general, prematurely pronounce a battle to be lost, in which not only supremacy and life but the destiny of a whole world was at stake? But Antony loved to treat serious issues lightly and trifles as if they were of supreme importance.

In his relations to women his sensual sultanic nature and his chivalrous character unite. We need not here concern ourselves with the foul love stories of his youth. His enemy Cicero speaks frequently of Antony's men and women friends and also of others about whom it is uncertain whether they should be classed with the former or with the latter. Antony was always regardless of his reputation; he well knew that in this direction he had nothing left to spoil. We will not here intrude upon his innumerable liaisons with beautiful dancers, distinguished Roman ladies and eastern princesses. Cleopatra alone could claim, at all events in their last years, to exercise her dominion over him undivided with any other wife or mistress. This dominion was so absolute and so enduring that in the days of the ancients it was thought impossible to explain it by natural means and recourse was had to the superstition of a magic potion.

Could we have seen Antony on foot with a bevy of eunuchs following the litter of his mistress at the entry into some Egyptian town, we might have concluded him to be a knight doing homage to his lady's honour. Mediæval worship of women is absolutely foreign to antiquity; but Antony based his descent on Hercules, who after his twelve Labours became a slave of Omphale, and laid aside club and crossbow to help his lady at the spinning-wheel. Antony followed the example of his great ancestor and paid obedience in effeminate sloth where it was within his power and his duty to be sovereign. The sacrifices he made to his lady are without a parallel in the

history of the world; and Cleopatra's thanks were, to betray him first at Actium and then at his death in Alexandria. In a word one may sum up the verdict in the language of the ancients: Nature had intended Mark Antony for a Deuteragonist, chance and misfortune made him Protagonist. But Shakespeare says: "His taints and honours waged equal with him."^f

FOOTNOTES

[131] This story is however rendered somewhat doubtful by the manner in which Cinna is mentioned in Virgil's Ninth Eclogue, which was certainly written in or after the year 40 B.C.

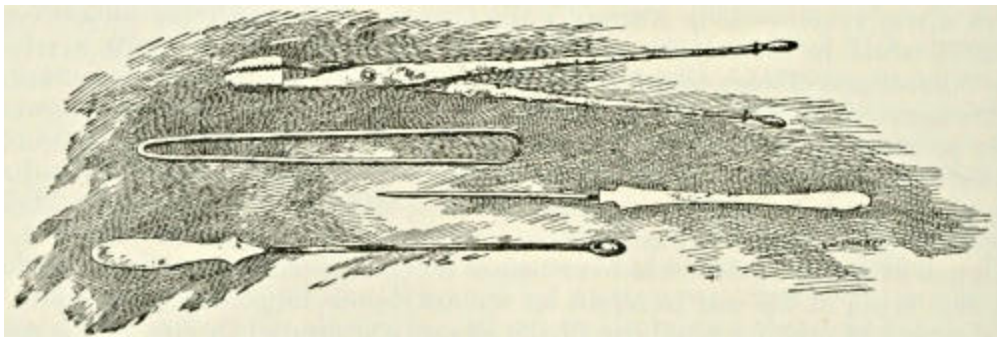
[132] Pedius was son of Cæsar's second sister, Julia minor, and therefore first cousin (once removed) to Octavius.

[133] He had divorced Tullia, the orator's daughter, before he left Italy.

[134] [Velleius Paterculus^d thus contrasts Brutus and Cassius:

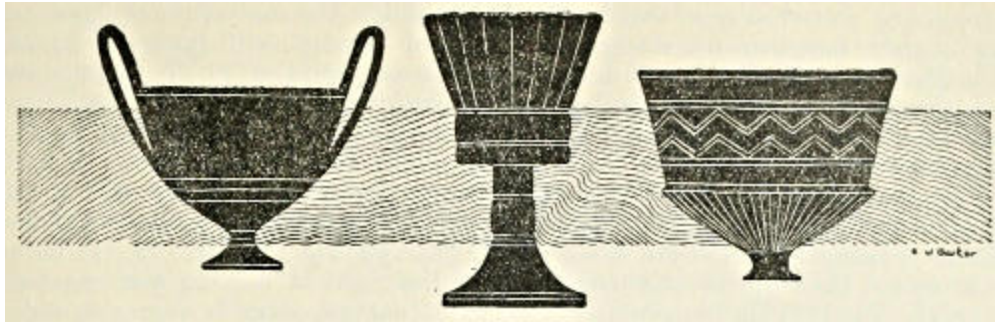
"Such was the end assigned by fortune to the party of Marcus Brutus, who was then in his thirty-seventh year, and whose mind had been incorrupt till the day which obscured all his virtues by the rashness of one act. Cassius was as much the better commander, as Brutus was the better man. Of the two, you would rather have Brutus for a friend; as an enemy, you would stand more in dread of Cassius. In the one there was greater ability, in the other greater virtue. Had they been successful, it would have been as much for the interest of the state to have had Brutus for its ruler rather than Cassius, as it was to have Cæsar rather than Antony."]

[135] [Says Florus^e: "The madness of Antony, which could not be allayed by ambition, was at last exterminated by luxury and licentiousness. The Egyptian woman demanded of the drunken general, as the price of her favours, nothing less than the Roman Empire. This Antony promised her; as though the Romans had been easier to conquer than the Parthians."]



ROMAN SURGICAL INSTRUMENTS

(In the British Museum)



CHAPTER XXVIII. THE STATE OF ROME AT THE END OF THE REPUBLIC

A RETROSPECTIVE VIEW OF THE REPUBLICAN CONSTITUTION

Shortly before the year 500 B.C. the change was accomplished which transformed the Roman State from a monarchy or military dictatorship (in which the dictator was confronted by the influence of a powerful council drawn from the ranks of the original burgher families, and by the legal necessity of the concurrence of the whole people, and therefore moved within the limits of a system developed in harmony with customary usages and closely analogous to the organisation of other Latin cities) into an aristocratic-oligarchic republic, with a strong executive authority in the hands of a magistracy annually elected by the people; the substructure of political life keeping in general outline the form into which it had developed and in which it had to a great extent become fixed by the end of the monarchical period.

This constitution was not formulated from the first in any general and fundamental law (any more than the older system had been), nor was it determinately fixed by such a law at any subsequent period, while, by means of particular statutes, some more or less important innovations were by degrees adopted as supplementary to the organisation handed down from primitive times and to the traditional code. Many things were gradually and silently modified by the mere force of altered circumstances. The will of the people was the foundation of all law and all authority in the state, and every

man who enjoyed the full rights of citizenship contributed directly, by his vote in the legislative and elective assemblies, to the expression of the popular will; though with varying degrees of influence in individual cases and within the limits of set form and inherited opinion.

The freedom of republican Rome presupposed the existence of a servile population to do the most menial work, a population from which in earlier times the burgher class received only a small accession, invariably unwelcome and regarded with contempt in the first generation of citizenship. At the same time, the ancient usages *mos majorum* were held by the freemen in high honour, enhanced by a kind of religious reverence, as having come into being by the favour and help of the gods, and having continued to exist under their constant control and in virtue of their intervention (*religio*).

Among these ancient usages was the classification of burghers according to their wealth and economic independence or their poverty and precarious means of subsistence; a classification which found expression in early times in class divisions and in the application of the same standard to the citizen army, and was even more strikingly manifested in the exclusive employment of wealthy burghers for the special duties of cavalry, with its complement, the formation of an order of knighthood, on the basis of which there arose another class numerically small and a governing body of citizens, to wit, the senate. The majesty of the people (*maiestas populi*) was recognised by the highest executive power (by the lowering of the symbols of consular authority, *fascēs submissi*, traced back by tradition to Valerius Publicola in the first year of the consulate) and from the people all authority in the state was derived; *nemo potestatem habet nisi a populo* (Cic. *de Leg. Agr.* II, 11). In them was vested the right of enacting laws and the right of making war or peace (Polyb. VI, 14); by the popular election of the magistrates they also indirectly determined the composition of the senate and they originally exercised the highest jurisdiction. But their effective action in popular assemblies was dependent on the initiative of the magistrates, which in turn was partly under the control of the senate.

This body (which consisted of life members, and was consequently subject only to gradual change by the infusion of fresh blood, and which maintained its honourable character by the expulsion of unworthy members), as the centre of rule and administration, preserved continuity and

balance in the policy of the state by means of special regulations and injunctions set forth within the bounds permitted by express law and ancient custom; but the senate itself could not transact business or pass resolutions except under the presidency and direction of competent magistrates. Moreover, the execution of all decrees and the maintenance of law and order were (like the initiative in legislation and the superintendence of the transactions of the council) in the hands of two or more co-ordinate magistrates elected annually. But these magistrates were chosen solely from among the economically independent burgesses, regard being had to age and to promotion through a fixed course of preliminary steps—requirements which were enforced with more minuteness and exactitude as time went on. From the consulate, that is from the two colleagues invested with the highest authority in matters civil and military (*imperium*), which they wielded at first with but a limited amount of assistance (from the quæstors), the magisterial authority was gradually split up among a series of officials armed with special powers (*potestas*) for special functions and departments of the public service. The citizens obeyed the orders of these magistrates with strict subordination and discipline, especially in time of war.

In the records of the first century and a half of the republic the development of the state system and administration from this primary and general basis and the modifications it underwent during the growth (slow at first and then more rapid) of the power and greatness of Rome, are obscured by the fact that a struggle for higher political employment—*i.e.*, over the question whether it should be extended from a close corporation of burgesses (the patricians) to the whole body of citizens—is intermingled with a struggle between aristocracy and democracy for changes in the character of the system and administration itself. This twofold aspect has not been clearly perceived by later writers,^[136] and was probably not adequately brought out in the brief historical records of remote antiquity. We shall probably not be wrong in assuming that the patricians, though gradually forced to resign their class privileges, and the institutions and ordinances associated with them, such as the *comitia curiata*, continued to maintain aristocratic interests and institutions by assuming more and more the position of nobles and allying themselves with the most prominent plebeian families; while the plebeians, as long as they were engaged in the

struggle for equal rights, asserted the interests of democracy and extended democratic principles to the whole working of the state.

The first step in the change and development of the older system which had survived the abolition of monarchy, a step which decided the whole subsequent course of the movement, was the creation of an office for the benefit of the less privileged citizens, the tribunate of the plebs (*tribunatus plebis*), an office which had originally no executive functions but was charged with the protection of the individual citizen and the control of the action of the magistracy. By degrees the tribunate acquired an initiative, first as the medium of the demand of the less privileged citizens for equal rights, and then as the promoter of the interests of the common people and of a general democratic tendency in legislation and administration. The latter function came more decidedly into the foreground when the struggle between patricians and plebeians had been fought out (after 366-300 or 286), though for a considerable time it manifested itself only in constitutional opposition to everything that bore the semblance of encroachment on the part of the senate or of magisterial authority.

But although a twofold initiative had thus come into being in the legislature, that of the consulate in the comitia curiata, relying mainly on the support of the senate, and that of the tribunate in the comitia tributa, legalised by the *lex Publilia* in 339, the government preserved its aristocratic character during the period between the formation of a confederated state (340-338) and the end of the Punic War, the senate retaining a strong executive authority and an undisturbed supremacy in all affairs, general and particular, without any signal interference on the part of the people beyond what was sanctioned by ancient usage; the reason for this being that only in exceptional cases did the tribunes advance legislative proposals in direct opposition to the will of the senate.

It was not till after the destruction of Carthage, when on the one hand the commons had greatly increased in numbers (in the municipal towns and colonies as well as in Rome) as compared with the ruling or senatorial class, and the poorer portion of the former class had congregated in the capital, and when, on the other hand, discontent was rife in the Italian confederacy; when the senate was falling more and more under the control of a limited number of noble families, who appropriated the major part of the advantages accruing from the enforced exertions of subject provinces,

leaving a share in the profits to such members of the knightly class only as came forward in the character of *publicani* or *negotiatores*, and to them not enough to satisfy their cupidity—that the tribunate of the plebs assumed the character of an opposition pure and simple, a character which became more strongly marked after the time of the Gracchi. It developed a legislative activity which, however we may judge of the objects that individual statesmen had in view—as to ameliorate the condition of the poorer citizens by the allotment of arable land or the distribution of corn at reduced prices, to limit the arbitrary power of the magistrates or of the senate, to prevent the excessive concentration of government influence and authority, to promote the movement in favour of equal rights among the members of the confederacy, to appoint particular persons for the conduct of public affairs especially in the case of military command—could not but have a pernicious effect, because, forcibly dissociated from the senate, it was by its very nature in the hands of individuals distinguished by the accident of an official tenure liable to annual change and dependent on popular favour.

After a series of conflicts and violent political measures (inaugurated by the Gracchi, Saturninus, and others) and a short-lived victory of the democratic party under Marius and Cinna, a reaction in favour of aristocracy combined with the military dictatorship of an individual set in under Sulla, the ancient boundary lines of state and people having been swept away by the outcome of the Social War. The cardinal points of this reaction were the abolition of the initiative of the tribunate, and the strengthening of senatorial influence by appointing none but senators to magisterial office.

But this reaction, though carried through with ruthless severity, was the less capable of holding its ground from the fact that the old forms in which it was embodied were absolutely unsuited to the dimensions of the state and the geographical distribution of the people under the radical change of conditions brought about by the Social War. After the lapse of ten years the rights of the tribunate were restored. But from that time forth it placed itself at the head of the democratic and turbulent elements in the capital and its immediate neighbourhood, and so became a mere instrument in the hands of individual despots who attempted (sometimes by wealth, but more generally by deeds of arms and popularity with the soldiery) to build up a personal sway before which the tottering authority of the senate was forced

to bow, in spite of the resistance offered by the aristocrats who (like Catulus and Hortensius) maintained the principles of Sulla, and of men who (like Cicero) based their influence on services of a peaceful character.

At length, having endured a civil war between the leaders of opposing factions, weary of discord and of struggles in which all political institutions had sunk to the level of empty and impotent forms liable to perpetual violation and abuse, the state found under an autocracy the repose and external order which the vast majority of the inhabitants of Italy were not unwilling to accept in exchange for a political life from participation in which they must have been virtually excluded, to a great extent, by the inadequacy of the forms in which it was embodied.^b

We have now traced the progress and decline of the Roman constitution through its several stages. We have seen it pass from a monarchy into a patrician oligarchy, from a patrician oligarchy into a limited republic, from a limited republic into an oligarchy of wealth; and now, after a century of civil war, in which the state swayed from one extreme to the other, we close with the contemplation of an absolute despotism.^[137] Every page of the latter portion of our narrative shows how inevitably events were tending to this issue. The Roman world had long been preparing for it. At no time had such authority been altogether alien from the minds of the people of Rome. Dictatorships were frequent in their earlier history. In later times the consuls were, by the will of the senate, raised to dictatorial power to meet emergencies, military or civil. The despotic commands conferred upon Sulla and Pompey, the powers seized first by Cæsar, and after him by the triumvirate, were all of the same form as the authority conferred upon Octavian—that is, all were, in form at least, temporary and provisional. The disorders of the state required the intervention of one or more persons of absolute authority. And whether power was vested in a dictator, such as Sulla and Cæsar; in a sole consul, such as Pompey; in a commission of three, such as the triumvirate of Antony, Octavian, and Lepidus; or in an emperor, such as Octavian alone, the constitutional principle was the same. These despotic powers were in every case, except in the cases of Sulla and Cæsar, granted for a definite term; even Cæsar's first dictatorships were conferred for limited periods. The triumvirate was renewed at intervals of five years, the imperial rule of Octavian at intervals of ten. In theory these powers were conferred exceptionally, for a temporary

purpose; and when the purpose was served, the exception was to yield to the rule. Even in the reign of Octavian there were some persons credulous enough to expect a restoration of the republic.

Octavian's adroitness has often been commended. But he had many examples to warn and to guide him. Above all, the precedent of his uncle, the great dictator, proved that the Romans were not prepared to accept even order and good government at the price of royalty; and he dexterously avoided the danger. The cruelties of the triumviral proscription he was able to throw chiefly upon Antony. But these very cruelties stood him in stead; for they induced men to estimate at more than its real worth the clemency which distinguished his sole government. He avoided jealousy by assuming a power professedly only temporary.

The title by which he liked to be known was that of "prince"; for he revived in his own person the title *princeps senatus*, which had slept since the death of Catulus. But in fact he absorbed all the powers of the state. As imperator he exercised absolute control over the lives of all Roman citizens not within the limits of the city. As pontifex maximus, an office for which he waited patiently till the death of Lepidus, he controlled the religion of the state. He assumed the censorial power without a colleague to impede his action; thus he was able to revise at pleasure the register of the citizens and the list of the senate, promoting or degrading whom he pleased. He appropriated also the tribunician power; and thus the popular assembly was by a side blow deprived of vitality, for without its tribunes it was naught. Consuls were still elected to give name to the year; and the assembly of the centuries still met for the empty purpose of electing those whom the prince named. Often, indeed, several pairs were elected for one year, after a practice begun by the great dictator.

The name of Italy now at length assumed the significance which it still bears; for all free inhabitants of Cisalpine Gaul obtained the rights of Roman citizens. But little was done to repair the losses and decays of which we have spoken in former chapters. The military colonies planted by Sulla and Octavian had lowered its condition even beyond its former misery. Ancient and respectable citizens made way for reckless and profligate soldiery—such as the centurion who would have slain the poet Virgil. Our pity for the ejected inhabitants is somewhat lessened by the thought that all the civilised world was open to them, for all the world was Roman. Gaul,

and Spain, and Sicily, and the provinces of the East, depopulated by long wars, gratefully received families of Italian citizens, who brought them their habits of civilised life, industry, and such property as they had saved from the ruin of their homes. Great as was the injustice of expelling these persons, the actual loss and suffering, after the pain of leaving home was over, must have been incalculably less than we, in the present condition of Europe, are apt to imagine. After the settlement of these colonies, it is probable that what could be done for the welfare of Italy was done by Augustus and his able ministers, Agrippa and Mæcenas. But the evils were too great and too recent to admit of palliation; and Italy probably never recovered from the effects of the Roman wars of conquest, till she received a new population from the north.

The provinces were gainers by the transference of power from the senate to a single man. The most important provinces were governed by deputies appointed by the prince himself;^[138] the rest were left to the rule of senatorial proconsuls. The condition of the imperial provinces was preferred; for the taxes exacted were lighter, and the government was under severer control. Instances occur of senatorial provinces requesting as a favour to be transferred to the rule of the emperor. But even the senatorial government was more equitable than of old. The salaries of the proconsuls were fixed; greedy men were no longer left to pay themselves by extortion; and the governors held power for several years, so that they had more temptation to win the good opinion of their subjects. The examples of Pilate and Felix show, indeed, that glaring injustice was still perpetrated; but these very cases show that the governors stood in awe of those whom they governed—for in both cases the iniquity was committed through fear of the Jews, whom these men had misgoverned and whose accusations they feared. It may be added that both these men were severely punished by the Romans for their misgovernment.

The world, therefore, on the whole, was a gainer by the substitution of the imperial rule for the constitution falsely named republican. For nearly two centuries the government was, with two intervals, administered by rulers of great abilities and great energy; and though, no doubt, there was enough of oppression and to spare, yet there was much less than had been common in the times of senatorial dominion.

But if the provinces—that is, the empire at large—continued to be content with a central despotism, in comparison with the old senatorial rule of “every man for himself,” this was not the case at Rome. The educated classes at least, and the senatorial nobility, soon began to regret even the turbulent days of Marius and Pompey. The practice of oratory, in which Romans excelled and took chief delight, was confined to mere forensic pleadings, and lost all that excitement which attached to it when an orator could sway the will of the senate, and calm or rouse the seething passions of the Forum. We cannot wonder at Cicero, notwithstanding his hatred for commotion, throwing himself into the conflict against Antony with the fervid energy which is revealed in the *Philippics*. He felt that this was the last chance of supporting the old freedom of the Forum, which, with all its turbulence, he loved, partly as the scene of his own glories, partly as a barrier against the crushing force of military despotism. And though the slaughter of the proscription and of the Civil War removed many of the leading senators, men of independent will revolted against the deadening weight of despotic government, as is revealed in the pages of Tacitus.

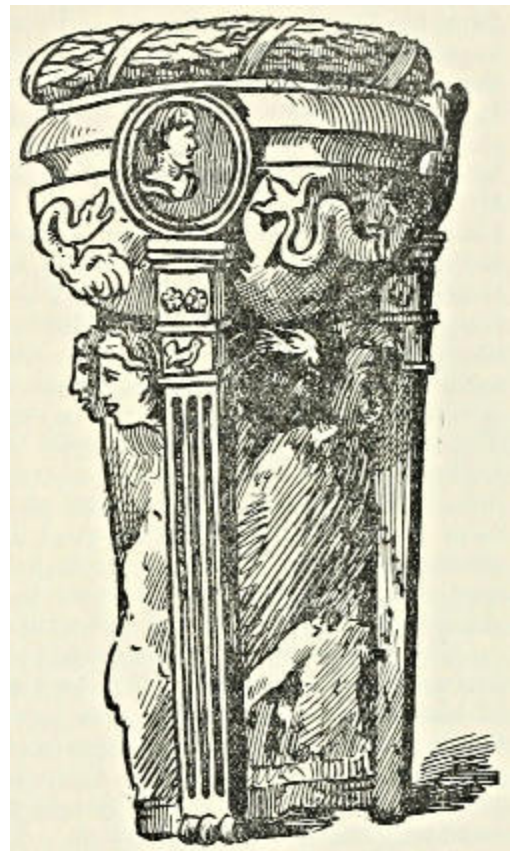
For a time, however, there was a general disposition, even at Rome, to welcome the tranquillity ensured by the rule of Octavian, and nothing can more strongly show the security that men experienced, even before the battle of Actium, than the sudden burst with which literature and the polite arts rose from their slumbers.

LITERATURE

Since the close of the period of conquest literary pursuits had languished—the natural effect of political excitement and perilous times. Oratory indeed had flourished, as every page of our history indicates; and oratory may be called the popular literature of Rome, as truly as journalism may be called the popular literature of to-day. Cicero, a master of his art both in theory and practice, has left us an account of a host of orators whom he thought worthy of being placed in a national catalogue. Of the Gracchi, of Antonius, of Crassus, of Sulpicius, we have spoken. After their time Cotta was the chief favourite, and then Hortensius rose to be “king of the courts.” He was what we may call an advocate by profession, taking little part in politics till he had made a large fortune by the presents which at that time

stood in the place of regular fees; and even in the hot conflicts that distinguished the rise of Pompey's popularity he took but a languid part. His style of speaking was what Cicero styles Asiatic—that is, florid and decorated beyond what even the liberal judgment of his critic could approve. Cicero considered his own youthful manner to partake of this character, and refers to the brave speech in which he defended Sext. Roscius of Ameria as an example of this style. But that elaborate phraseology and copious flow of language remained with him to the last. It was only when his feelings were strongly excited, or when his time was limited, as when he defended old Rabirius or assailed Catiline in the senate, that he displayed anything of that terrible concentration of speech with which Demosthenes smote his antagonists. So far as we can judge from the scanty remnants preserved, C. Gracchus, more than any other Roman, possessed this fierce earnestness.

The example and criticism of Cicero lead to the conclusion that Roman oratory generally had a tendency to be redundant, if not wordy. This tendency may be ascribed to the prevailing mode in which the young orators of the day sought to acquire skill in speaking. The schools of the rhetorical teachers were thronged by them; and here they were taught to declaim fluently on any subject, without reference to passion or feeling or earnestness of purpose. The Romans of a former generation endeavoured to crush such schools; and it was not at Rome that the most celebrated teachers were to be found. Athens and Rhodes were the fashionable universities, as we may call them, to which the young Romans resorted, when they had finished their schooling at Rome. After learning grammar and reading Latin and Greek poets in their boyhood, they repaired to the more famous haunts of Grecian



A ROMAN URN

learning to study a little geometry and a little philosophy; but it was to rhetoric or the acquirement of a facile power of speaking on any given subject that the ambitious youth devoted their chief efforts.

Education in Greek literature led many persons in this period to compose Greek memoirs of the stirring scenes in which they had lived or acted. Examples of this kind had been set as early as the Second Punic War by Cincius and Fabius. It now became very common; but many began to employ the vernacular language. C. Fannius Strabo, who mounted the walls of Carthage by the side of Ti. Gracchus, and his contemporary L. Cælius Antipater, wrote Latin histories famous in their time. Both were thought worthy of abridgment by Brutus. The former is commended by Sallust, the latter was preferred to Sallust by the emperor Hadrian. Even Cicero commended Antipater as an improver of Latin composition; his follower Asellio, says the orator, returned to the meagre dullness of the ancient annalists. Then came L. Cornelius Sisenna, who witnessed the bloody scenes of the Social and First Civil wars and wrote their history. Cicero commends his style; Sallust speaks with praise of his diligence, but hints at his subserviency to Sulla and the senate. But the great men who made history at this epoch also took up the pen to write history. Q. Lutatius Catulus, the colleague of Marius, left an account of the Cimbrian War. The good Rutilius Rufus employed his leisure in penning an historical work. Sulla composed a memoir of his own political life, to which Plutarch often refers; but from the specimens which he gives the dictator seems not to have been scrupulously impartial in his narrative. Lucullus composed similar memoirs. Cicero drew up a Greek notice of his consulate with his own ready pen, and endeavoured to persuade L. Lucceius to undertake a similar task. Even the grim Marius wishes his deeds commemorated.

The *Commentaries* of Cæsar have been already quoted as illustrating one characteristic of the great dictator's mind. His pen was taken up by several of his officers—A. Hirtius, who completed the narrative of the Gallic War, C. Oppius, to whom the memoirs of the dictator's wars in Egypt, Africa, and Spain are often attributed, L. Cornelius Balbus, and others. But the most remarkable prose writer of the late republican era is C. Sallustius Crispus, familiarly known to us as Sallust. The two works that remain to us from the pen of this vigorous writer, the account of the Catilinarian conspiracy and the Jugurthine War, are rather to be styled political

pamphlets than histories. Sallust was, as we have mentioned, an ardent partisan of the Marian and Cæsarian party. He had been expelled from the senate. Dislike of the reigning oligarchy appears at every turn, notwithstanding the semblance of impartiality assumed by a man who practised the profligacy which he indignantly denounces. But Sallust's writings are valuable in a literary point of view, because they disclose the terse and concentrated energy of which the Latin language was capable, qualities little favoured by the oratorical tendencies of the day, but used with marvellous effect in a later age by Tacitus.

Other writers now first endeavoured to hand down in Latin a history of Rome from her foundation, or from early periods of her existence. Such were C. Licinius Macer, Q. Claudius Quadrigarius, and Q. Valerius Antias, all born about the beginning of the last century before the Christian era. The works of these and other annalists were used and swallowed up by the history of Livy, who was born, probably at Padua, in the year 59 B.C., and belongs to the imperial era of Augustus.

Some few writers in this same period began to cultivate grammatical and philological studies. The founder of these pursuits at Rome is reputed to be L. Ælius Stilo, the friend of Q. Metellus Numidicus and his companion in exile. He was closely followed by Aurelius Opilius, a freedman, who attended Rutilius Rufus into exile, as Stilo had attended Metellus. But the man whose name is in this department most conspicuous is M. Terentius Varro of Reate. He was born in 116 B.C., ten years later than Cicero, whose friendship he cultivated to the close of the great orator's life. Varro was a laborious student, and earned by his successful pursuit of all kinds of knowledge a reputation not deserved by his public life. From the first he adhered to the cause of Pompey. After Pharsalia, Cæsar received him with the same clemency that he had shown to all his foes, and employed him in promoting the plans which he had formed of establishing a public library at Rome. After the death of Cæsar he retired to the country, and confined himself to literary pursuits; but this did not save him from being placed on the proscription list. He escaped, however, to be received into favour by Octavian, and continued his studies in grammar, philology, and agriculture, till he reached the great age of eighty-eight, when he died in peace. Of his great work on the Latin language, originally consisting of twenty-four books, six remain to attest the industry of the man and the infantine state of

philological science at the time. His work on agriculture in three books, written when he was eighty years old, is still in our hands, and forms the most accurate account we possess from the Romans of the subject. Fragments of many other writers on all kinds of topics have been handed down to justify the title given to Varro—"the most learned of the Romans."

We will close this sketch of the prose literature of the last age of the republic with a notice of Cicero's writings. Of his oratory and of his epistles something has been said in former pages; and it is to these productions that we must attribute the great orator's place in the commonwealth of letters. Of his poems it were better to say nothing. Of his memoirs and historical writings little is known, unless we count the fragments of *The Republic* in this class. But his rhetorical and philosophical essays each fill a goodly volume; and the writings have been the theme of warm admiration for ages past. Yet it is to be doubted whether the praises lavished upon them are not chiefly due to the magic influence of the language in which they are expressed. The *Brutus* doubtless is extremely interesting as containing the judgment of Rome's greatest orator on all the speakers of his own generation and of foregoing times. The dialogues on *The Orator* are yet more interesting as furnishing a record of his own professional experience. But the philosophical works of Cicero are of little philosophical value. They were written not so much to teach mankind as to employ his time at moments when he was banished from the city. Their highest merit consists in that lucid and graceful style which seduced the great Italian Latinists at the end of the fifteenth century to abjure all words and phrases which did not rest on Ciceronian authority, and which led Erasmus himself, who resisted this pedantry, to "spend ten years in reading Cicero."

THE DRAMA

The dramatic art fell more and more into dishonour. We hear, indeed, of two illustrious actors, Æsopus and Roscius, who were highly honoured at Rome, and died in possession of large fortunes. But it was from the great families that their honours and the means of making money came. The theatres, as we have before observed, remained mere temporary buildings till the second consulship of Pompey, when the first stone theatre at Rome was erected by one of his wealthy freedmen. The pieces represented were



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more of the nature of spectacles. Those in which Roscius and Æsopus acted must have been old plays revived. In this period hardly one name of a dramatic author occurs. It was not in theatres, but in amphitheatres, that Rome and Roman towns sought amusement. Not only is the Flavian amphitheatre the most gorgeous of the remains of imperial Rome, but at all places where Roman remains are preserved, at Verona in Transpadane Gaul, at Arles and Nismes in “the Province,” at Treves on the distant Moselle, it is the amphitheatre that characterises the Roman city, as it is the theatre that marks the Greek.

During this period, indeed, a new kind of dramatic representation was introduced, which enjoyed a short-lived popularity. This was the mime. The name at least was borrowed from the Greeks of Sicily. The Greek mime was a kind of comic dialogue in prose, adapted to the purposes afterwards pursued by the Roman satire. But while the Greek mime in the hands of Sophron assumed a grave and dignified character, so that Aristotle classes him among poets though he wrote in prose, the Roman mime was generally coarse and licentious. Sulla was particularly fond of these productions and their authors. After his time, Dec. Laberius, a knight, strove to give them greater dignity. His mimes, as the fragments show, were in iambic verse, and differed from comedy chiefly in their absence of plot and their relation to the topics of the day. The fame of Laberius was rivalled by Publilius Syrus, a freedman who acted in his own mimes, whereas the knighthood of Laberius forbade this degradation. Cæsar, however, on the occasion of his quadruple triumph, thought fit to order Laberius to enter into a contest with Syrus; and the knight, though a man of sixty years, dared not refuse. His sense of the indignity was strongly marked by a fine passage in the prologue, still preserved:

“The Gods themselves cannot gainsay his might;
And how can I, a man, think to gainsay it?
So then, albeit I’ve lived twice thirty years
Free from all taint of blame, I left my house
At morn a Roman knight and shall return
At eve a sorry player. ’Faith, my life
Is one day longer than it should have been.”

In the course of the dialogue he expressed himself with freedom against the arbitrary power of the great dictator:

“And then, good people, we’ve outlived our freedom.”

And in another line almost ventured to threaten:

“It needs must be
That he fears many, whom so many fear.”

Cæsar, however, took no further notice of these caustic sallies than to assign the prize to Syrus.

POETRY

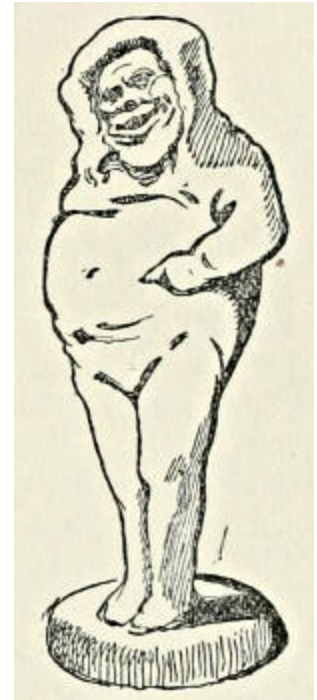
In poetry, the long period from the death of Lucilius to the appearance of Virgil and Horace—a period of about sixty years—is broken only by two names worthy of mention. But it must be admitted that these names take a place in the first ranks of Roman literature. It is sufficient to mention Lucretius and Catullus.

T. Lucretius Carus was a Roman of good descent, as his name shows. All we know of him is that he was born about 95 B.C., and died by his own hand in the forty-fourth year of his age. But if little is related of his life, his great poem on *The Nature of the Universe* is known by name at least to all. It is dedicated to C. Memmius Gemellus, a profligate man and an unscrupulous politician, who sided now with the senatorial party, now with Cæsar, and ended his days in exile at Mytilene. But Memmius had a fine sense in literature, as is evinced by his patronage of Lucretius and of Catullus.

The poem of Lucretius seems to have been published about the time when Clodius was lord of misrule in the Roman Forum, that is, about 58 B.C. Memmius took part against the demagogue, and to this the poet probably alludes in the introduction to the first book, where he regrets the necessity which involved his friend in political struggles.

The attempt of Lucretius in his great poem is to show that all creation took place and that all nature is sustained, without the agency of a creating and sustaining God, by the self-operation of the elemental atoms of which all matter is composed and into which all matter may be resolved. The doctrine is the doctrine of Epicurus; but his arguments are in great part borrowed from the early Greek philosophers, who delivered their doctrines in heroic verse of the same majestic kind that extorts admiration from the reader of Lucretius. He professes unbounded reverence for the name of Empedocles; and doubtless if the works of this philosopher, of Anaxagoras, and others were in our hands, we should see, what their fragments indicate, the sources from which Lucretius drew. Mingled with the philosophic argument are passages of noble verse; but here also it may be doubted how far we can believe in his originality. One of the most magnificent passages—the sacrifice of Iphigenia—is taken in every detail from the famous chorus in the *Agamemnon* of Æschylus. When we see this, and know that the almost universal habit of Latin poets was not to create but to adapt and borrow, we must pause before we give Lucretius credit for originality.

Yet none can rise from the perusal of Lucretius without feeling that he was a true poet. The ingenuity with which he employs Latin, a language unused to philosophical speculation, to express in the trammels of metre the most technical details of natural phenomena, is itself admirable. But more admirable are those majestic outbursts of song with which the philosophical speculations are diversified. The indignant and melancholy passion with which he attacks the superstitious religion of his time cannot but touch us,



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though we feel that his censure falls not upon superstition only, but upon the sacred form of religion herself. But he was little appreciated at Rome. Cicero speaks of him with that cold praise which is almost worse than censure. Horace never makes mention of his name. Virgil alone showed the true feeling of a poet by his value for Lucretius. He scrupled not to borrow whole lines from his poem; many passages in the *Georgics* bear witness to the faithful study which he had bestowed on the works of his great predecessor, and in one often-quoted place he confesses his inferiority to the great didactic poet. On the whole, it may be affirmed that Lucretius possessed the greatest genius of all Roman poets.

In striking contrast to the majestic gravity of Lucretius appears the second poet whom we have named. C. or Q. Valerius Catullus (for his first name is variously given) was a native of Verona, or its neighbourhood. He was born about 97 B.C., and is known to have been alive in the consulship of Vatinius (47 B.C.). He was then fifty years of age, and we hear of him no more. His father was a friend of Cæsar, and left his son in the possession of some property. He had a house on the lovely peninsula of Sirmio, at the foot of Lake Benacus, well known from his own description; he had a villa near Tibur, and many of his poems indicate the licentiousness of the life which he led at Rome. He endeavoured to mend his broken fortunes by attending Memmius, the friend of Lucretius, when he went as prætor into Bithynia, but was little satisfied with the result, and bitterly complained of the stinginess of his patron. When he was in Asia, his brother died, and he addressed to Hortalus, son of the orator Hortensius, that beautiful and affecting elegy which alone would entitle him to a foremost place among Roman poets. Fearless of consequences, he libelled Cæsar in language too coarse for modern ears. The great man laughed when he heard the libel, and asked the poet to dinner the same day.

The poems of Catullus range from gross impurity to lofty flights of inspiration. The fine poem called the *Atys* is the only Latin specimen which we possess of that dithyrambic spirit which Horace repudiated for himself. The elegy to Hortalus is perhaps the most touching piece of poetry that has been left us by the ancients. The imitation of Callimachus is a masterpiece in its way. The little poems on passing events—*pièces de circonstance*, as the French call them—are the most lively, natural, and graceful products of the Latin muse. To those who agree in this estimate it seems strange that

Horace should only notice Catullus in a passing sneer. It is difficult to acquit the judge of jealousy. For Catullus cannot be ranked with the old poets, such as Livius, Ennius, and others, against the extravagant admiration of whom Horace not unjustly protested. His lyric compositions are as finished and perfect as the productions of Horace, who never wrote anything so touching as the elegy to Hortalus, or so full of poetic fire as the *Atys*.

With Catullus may be mentioned his friend C. Licinius Macer, commonly called Calvus, whom Horace honours by comprehending him in the same condemnation. He was some fifteen years younger, and was probably son of Licinius Macer the historian. He was a good speaker, and a poet (if we believe other authors, rather than Horace) not unworthy to be coupled with Catullus. He died at the early age of thirty-five or thirty-six.

Another poet highly praised by Catullus was C. Helvius Cinna, supposed to be the unlucky man torn to pieces by the rabble after Cæsar's funeral by mistake for L. Cornelius Cinna.

At the time that the battles of Philippi secured to Italy somewhat of tranquillity, many others began to devote themselves to poetry. Among these were L. Varius Rufus, celebrated by Horace as the epic poet of his time, and the few fragments from his pen which remain do much to justify the praise. He was the intimate friend both of Horace and Virgil.

Furius Bibaculus also may be mentioned here as an epic poet, who attempted to commit to verse the campaign of Cæsar in Gaul. Horace ridicules his pretensions in two well-known passages; but there is reason to think that in the case of Furius also the satirist was influenced by some personal feeling.

But the fame of all other poets was obscured by the brightness which encircled the names of Virgil and Horace. Properly their history belongs to the Augustan or imperial era. But as they both published some of their best works before the battle of Actium, a slight notice of them may be permitted here.

P. Virgilius (or Vergilius) Maro was born at Andes, a village near Mantua, in the famous year 70 B.C., so that he was entering manhood about the time when Lucretius put an end to his own life. From his father he inherited a

small estate. After the battle of Philippi, he was among those whose lands were handed over to the soldiery of the victorious triumvirs. But what seemed his ruin brought him into earlier notice than otherwise might have been his lot. He was introduced to Mæcenas by Asinius Pollio, himself a poet, who had been made governor of Cisalpine Gaul, and was reinstated in his property. This happy event, as everyone knows, he celebrates in his first *Eclogue*. But it appears that when he tried to resume possession he was nearly slain by the rude soldier who had received a grant of the land, and it was some months before he was securely restored. In company with Horace, Varius, and others, he attended Mæcenas in the famous journey to Brundisium (probably in 37 B.C.). He had already (in the year 40 B.C.) written the famous eclogue on the consulship of Pollio, of which we have before spoken; and soon after this he began the *Georgics*, at the special desire of Mæcenas. They seem to have been published in their complete form soon after the battle of Actium. For the rest of his life, which he closed at Brundisium in the fifty-first year of his age (19 B.C.), he was occupied with his *Æneid*, which with modest self-depreciation he ordered to be destroyed. But it was revised by his friends Varius and Plotius, and published by order of the emperor, whom he had accompanied in a tour through Greece just before his death.

The character of Virgil was gentle and amiable, his manners simple and unobtrusive, and we hear little from himself of the great men with whom he was associated in friendship. His health was feeble, and his life passed away in uneventful study, of which his poems were the fruit and are the evidence. Nothing can be more finished than the style and versification of Virgil. His phraseology is so idiomatic as often to defy translation; his learning so great, that each page requires a commentary. He bestowed the greatest labour in polishing his writings; his habit being, as is said, to pour forth a vast quantity of verses in the morning, which he reduced to a small number by continual elaboration, after the manner (as he said) of a bear licking her cubs into shape.

It may be said that Cicero, Horace, and Virgil himself, completed the hellenising tendency which had begun with Ennius. Lucretius, though he borrowed his matter from the old Greek philosophers, is much more Roman in his style. Catullus is more Roman still. But Virgil, except in idiom, is Greek everywhere. His *Eclogues* are feeble echoes of the Doric grace of

Theocritus. His *Georgics* are elaborately constructed from the works of Hellenic writers, tempered in some of the noblest poetic passages with the grave majesty of Lucretius. In his *Æneid* almost every comparison and description is borrowed from Homer, Apollonius, and other Greek poets. In strength of character his epic fails entirely. No one person in the *Æneid* excites awe, love, sympathy, or any other strong feeling, unless we except the untimely end of Nisus and Euryalus, the fates of young Lausus and young Pallas, and the death of the heroine Camilla. But, notwithstanding all this, such is the tender grace of his style, such the elaborate beauty of his descriptions, that we read again and yet again with renewed delight.

To give any adequate account of the gay Horace in a page is impossible. Q. Horatius Flaccus was born in the colony of Venusia in the year 65 B.C., two years before the consulship of Cicero. He was therefore nearly six years younger than Virgil, and two years older than Octavian. He died in the fifty-seventh year of his age (8 B.C.), following his friend and patron Mæcenas, who died a month or two before, according to his own prophetic promise. His father was a freedman by birth, and by profession a tax-collector, a good and tender parent, caring above all things for the education of his son. He was at the expense of taking the promising boy to Rome, probably when he was about twelve years old, where he attended the school of Orbilius, known to others besides Horace for his belief in the maxim that the “sparing of the rod spoils the child.” There he learned Greek as well as Latin, by reading Homer and the old Roman poets. About the age of eighteen he went to complete his education at Athens, where Q. Cicero was his fellow-student. He was at Athens when Cæsar was murdered, and became an officer in the army of Brutus. After the battle of Philippi he returned to Rome, and was thrown entirely upon the world. He obtained, we know not how, a clerkship in the treasury, on the proceeds of which he contrived to live in the most frugal manner; vegetables and water formed his truly poetic diet.

But he was not left to languish in poverty. He became acquainted with Varius and Virgil, and was by them introduced to Mæcenas; and we have from his own pen a pleasing narrative of the introduction. For several months, however, he received no sign of the great man’s favour; but before the journey to Brundisium he was evidently established in intimacy as great as Virgil’s. Soon after this he published the first book of the *Satires*. The

second book and the *Epodes* followed; but in the interval he had received a substantial reward from his patron in the present of the Sabine farm, so prettily described by himself. At a latter period he became master of a cottage at Tibur, distant about fifteen miles from his Sabine villa. But it must be said that, notwithstanding his dependence upon patrons, Horace always maintained a steady determination not to be subservient to any one, emperor or minister. The *Epistle to Mæcenæ*s deserves especial notice; for it is written in a tone equally creditable to the poet who would not condescend to flatter the patron, and to the patron who tolerated such freedom in the poet.

Hitherto he had declined the name of poet. But the publication of the three books of his *Odes* in rapid succession indicated his title to this name, though still he declined to approach subjects of epic grandeur. Before this he had been introduced to Agrippa, and somewhat later to Octavia. The first book of his *Epistles* seems to have been completed in 21 B.C., when the poet was beginning his forty-fifth year. Then followed the *Carmen Seculare*, which may be fixed, by the occasion to which it belongs, to the year 17 B.C. After this came the fourth book of *Odes* and the second book of *Epistles*, works in great part due to the express request of Augustus.

The popularity of the *Odes* of Horace has ever been great. He disclaims the title of poet for his other writings; and of the odes he says that he wrote poetry only under the sharp compulsion of poverty. Much is borrowed from the Greek, as we know; and if the works of the Greek lyric poets remained to us in a less fragmentary form, we should doubtless find far more numerous examples of imitation. But the style of Horace is so finished, his sentiments expressed with so much lively precision, and in words so happily chosen, that he deserves the title which he claims of “Rome’s lyric minstrel.” No doubt his poetry was the result of great labour, and every perusal of his odes strengthens the belief that he spoke literally when he compared himself to “the matine bee,” rifling the sweets of many flowers, and finishing his work with assiduous labour. It is in the first book of the *Epistles* that we must seek the true genius of Horace—the easy man of the world, popular with his great patrons, the sworn friend of his brother poets, good-natured to every one, except the old poets of Rome, whom he undervalued partly (as in the case of Livius) from dislike for a rude and

imperfect style, partly (as we must suspect in the case of Catullus and Calvus) from an irrepressible emotion of jealousy.

The elegiac poets, Tibullus and Propertius, with their younger and more famous compeer Ovid, and many writers of lesser note, belong to the imperial era of Augustus.

THE FINE ARTS

A few words may be added on the subject of art generally. With the great fortunes that had been amassed first by senatorial rulers and afterwards by the favourites of the triumvirs, it is natural that art in some shape should be cultivated. But Greek masters still ruled at Rome; and a taste began for collecting ancient works, such as resembles the eagerness with which the pictures of the old masters are sought in modern Europe. In the oration of Cicero against Verres we have an elaborate exposure of the base and greedy arts by which that wholesale plunderer robbed the Sicilians of their finest works of art. It was, no doubt, an extreme case; but Verres would not have dared to proceed to extremities so audacious, unless he had been encouraged by many precedents.

The arts also of the builder and engineer grew with the growing wealth of Rome. It was one of the chief and favourite occupations of C. Gracchus, during his brief reign, to improve the roads and the bridges. The great dictator Cæsar had many projects in view when he was cut off—as, for instance, the draining of the mountain lakes by tunnels, of the Pontine marshes by canal. Many of these works were afterwards executed by Agrippa, who also (as we have said) constructed the Julian harbour, by uniting the Lucrine and Avernian lakes with the sea. In the year 33 B.C. he condescended to act as ædile, and signalled his magistracy by a complete repair of the aqueducts and sewers.

Before this time, also, had begun the adornment of the city with noble buildings of public use. A vast basilica was laid out and begun by M. Æmilius Paulus, consul in 50 B.C. This magnificent work was said to have been erected with money received from Cæsar as the price of the consul's good services. But the Basilica Æmilia was eclipsed by the splendid plans of the dictator Cæsar. A great space had lately been cleared by the fire

kindled at the funeral of Clodius. Other buildings were pulled down, and the Basilica Julia extended on the south of the Forum along the frontage formerly occupied by the Tabernæ Veteres. The great work was completed by Octavian. Still more magnificent edifices were the Thermæ or hot-baths of Agrippa, and the noble temple erected by the same great builder, which still remains under the name of the Pantheon. In this structure the arch, that instrument by which Rome was enabled to give that combination of stability and magnitude which distinguishes all her works, achieved its greatest triumph; and here was seen the first of those great vaulted domes which became the distinctive attribute of the Christian architecture of modern Italy. By these and many other works—politic both because they increased the magnificence and the health of the capital, and also gave constant employment to workmen who might otherwise have been turbulent—the emperor Augustus was enabled to boast that he had “found Rome of brick, and left it of marble.”

But it was not to Rome alone that Augustus, Agrippa, and others confined their labours. Nothing more excites our wonder than to stumble upon costly works, built with a solidity that seems to imply immortality, in the mountain districts of Italy or in remote valleys of Gaul or Asia Minor or Africa. Wherever the Roman went he carried with him his art of building. The aqueduct which was constructed by Agrippa to supply Nemausus (Nismes), a colony of no great note, with water, is a proof of this assertion. The largest modern cities can hardly show a work of public utility so magnificent as the structure which is known to thousands of modern travellers under the name of the Pont du Gard.

SOCIAL CONDITIONS; RELIGION

It is needless here to repeat the dismal tale of corruption and vice which was presented in the life of most of the eminent Romans of the time. Even the rich who were not vicious in their pleasures, such as Lucullus and Hortensius, showed less of taste and good sense in their expenditure than a desire of astonishing by display. The old religion had lost its hold upon the public mind, though superstitious practices lingered among the uneducated classes. Philosophy did little to supply the void. The practical tendencies of the Roman mind attached it to the most practical doctrines of the Hellenic

teachers. The moral philosophy of Zeno and Epicurus divided the Roman world; for here were to be found broad and positive principles of action, comprehensible by all. The finer speculations of the academic and peripatetic schools found few votaries among men who were equally downright in their purposes of virtuous or vicious living. In earlier times the stoic doctrines had found a response in the hearts of men who revived the stern simplicity of the old Roman life.

Some of the best men, in the times that followed the Punic Wars, were stoics by practice as well as in profession. Such were Æmilius Paulus and his son the younger Scipio. Notwithstanding the pride and self-sufficiency which was the common result of Zeno's discipline, there was something ennobling in the principle that a man's business in life is to do his duty, regardless of pleasure or pain, riches or poverty, honour or disgrace. But nature is too strong for such a system to prevail for many years or over many men. The popular philosophy of the later times was borrowed from the school of Epicurus, but it was an easy and fashionable modification of the morality of that philosopher. Epicurus taught that human happiness could not exist without pleasure, but he added that without the practice of virtue real pleasure could not exist. The former precept was adopted by the sensualists of Rome; the latter was set aside.

Nothing more strongly proves the vicious state of society than the neglect of the marriage tie and the unblushing immorality of the female sex. Cæsar and Octavian, though their own practice was not such as to set example to society, both saw the danger of this state of things, and both exerted themselves to restore at least outward decency. Lawful marriage they endeavoured to encourage or even to enforce by law.

But if religion had given way, superstition was busy at work. Men in general cannot entirely throw aside those sentiments which are unfolded with more or less of strength in every mind and in every state of social existence. There will still be cravings after spiritual things and the invisible world. The ancient oracles had fallen into disrepute, and soon after the fall of the republic (as is well known to Christian students) shrank into ignoble silence. But behind the Hellenic, a new world was now opened to Rome. She became familiar with the mystic speculation and the more spiritual creeds of the East. The fanatical worship of the Egyptian divinities, Isis and Serapis, became common even in Rome, notwithstanding the old feeling

against Cleopatra, and notwithstanding many attempts to crush this worship. It became a common practice to seek for revelations of the future by means of the stars. The grim Marius carried about with him a Syrian soothsayer. To consult Babylonian star readers was familiar to the friends of Horace. Magi were the companions of Roman magistrates. One of Juvenal's most striking pictures is that of the gloomy voluptuary Tiberius sitting in his island palace surrounded by a host of Chaldean astrologers. Nor could the purer and sublimer images of the Hebrew scriptures be unknown. Jews abounded in every populous city of the empire long before they were scattered by the fall of their Holy City, and wherever they went they must soon have made their influence felt. Others sought the presence of God in nature, and confounded the divinity with his works. Man seemed to them such a mass of contradictory meannesses, that they tried to solve the riddle of evil by supposing that he, like the animals and the whole creation, was but a machine animated by the universal and pervading spirit of the deity. Such was the idea of the elder Pliny, who forfeited a life spent in the study of nature to the curiosity which led him to brave the fires of Vesuvius.

Out of this seething mass of doubts and fears, uncertain belief and troubling disbelief, rose an eagerness to find and a readiness to receive the principles of that religion which took root a few years later in Galilee and Judea, and which extended itself with marvellous rapidity over every province of the empire. The purity of its morality attracted those whose hearts were still craving for something better than could be found in the religions or philosophies of the day. Its aspirations offered great attractions to those who were looking with doubt and fear upon all that lay before or behind. The breaking up of national distinctions, the union of all the Mediterranean shore under one strong and central government, the roads and canals which connected countries and provinces under the magnificent rule of the first Cæsars, were potent instruments in assisting the rapid march of the new religion. All things, moral and physical, internal and external, concurred to promote the greatest, but most silent, revolution that has ever passed over the mind of the civilised portion of the world.^c

FOOTNOTES

[136] It is a marked feature of the representation of the struggle between patricians and plebeians as given by Livy and Dionysius, that the writers constantly waver in their own conception of the plebeians and their leaders,—at times even flatly contradicting themselves,—exhibiting them now as men demanding only right and justice, now as passionate and unscrupulous agitators and partisans; while in the same way the defenders of patrician rights appear now as the supporters of law and order, now as the selfish and arrogant champions of usurped privileges.

[137] [According to Herzog,^d however, the government of Augustus was by no means an absolute monarchy; it became a despotism by the development of the power of the prince during the period from Augustus to Diocletian.]

[138] Legati or præfecti Cæsaris.

BRIEF REFERENCE-LIST OF AUTHORITIES BY CHAPTERS

[The letter ^a is reserved for Editorial Matter.]

CHAPTER I. LAND AND PEOPLE

^b HENRY G. LIDDELL, *A History of Rome from the Earliest Times to the Establishment of the Empire*.

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^d E. MEYER, *Geschichte des Alterthums*.

CHAPTER II. EARLY LEGENDS OF ROME—ÆNEAS AND ROMULUS

^b THOMAS ARNOLD, *History of Rome*.

^c TITUS LIVIUS, *The History of Rome* (translated from the Latin by D. Spillan, C. Edmonds, and W. A. M'Devitte).

^d ALBERT SCHWEGLER, *Römische Geschichte*.

^e B. G. NIEBUHR, *Lectures on the History of Rome*.

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^b THOMAS ARNOLD, *History of Rome*.

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^d DIONYSIUS HALICARNASSENSIS, *The Roman Antiquities of* (translated from the Greek by Edward Spelman).

CHAPTER IV. THE BANISHMENT OF THE KINGS—CRITICISMS OF MONARCHIAL HISTORY

^b THOMAS ARNOLD, *History of Rome*.

^c ALBERT SCHWEGLER, *Römische Geschichte*.

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^f B. G. NIEBUHR, *Lectures on the History of Rome*.

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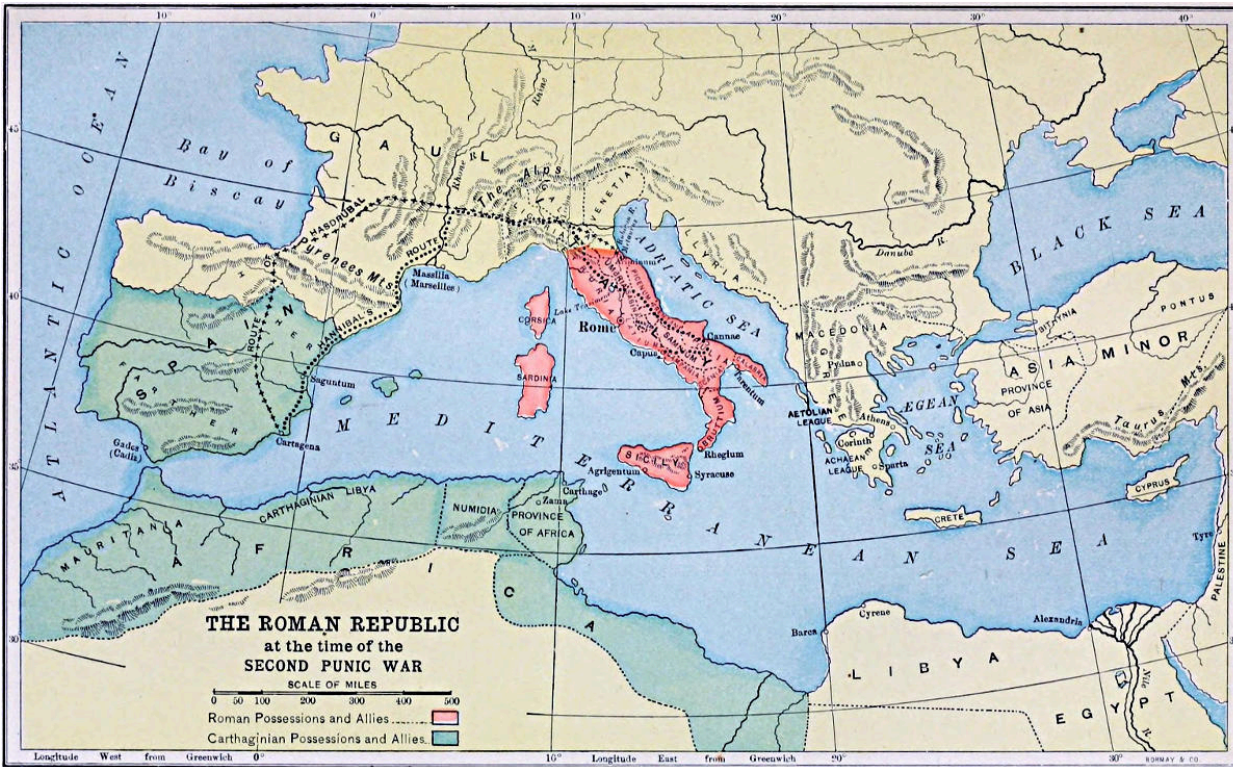
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